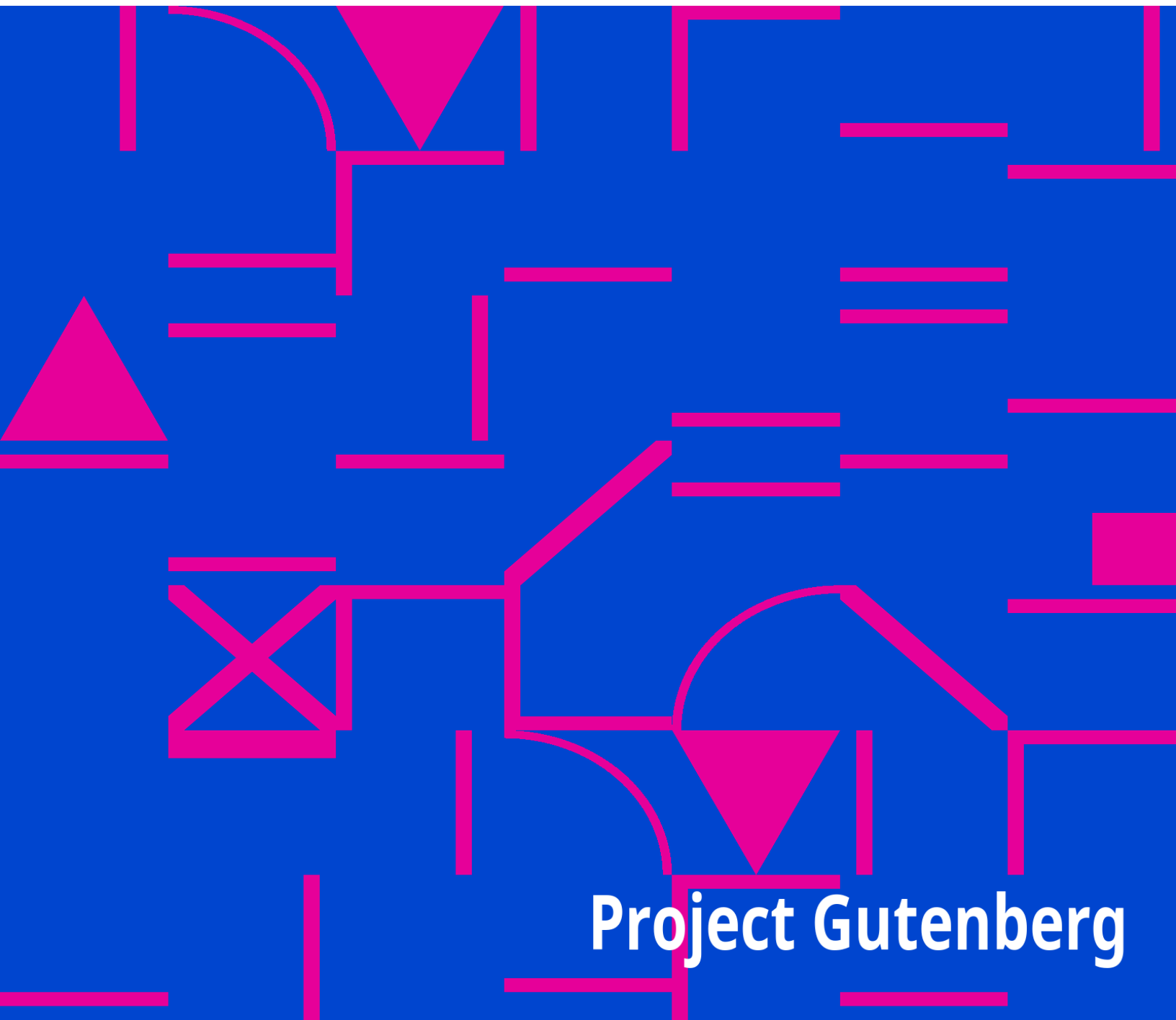


History for ready reference, Volume 7

Recent history (1901 to 1910)

J. N. Larned

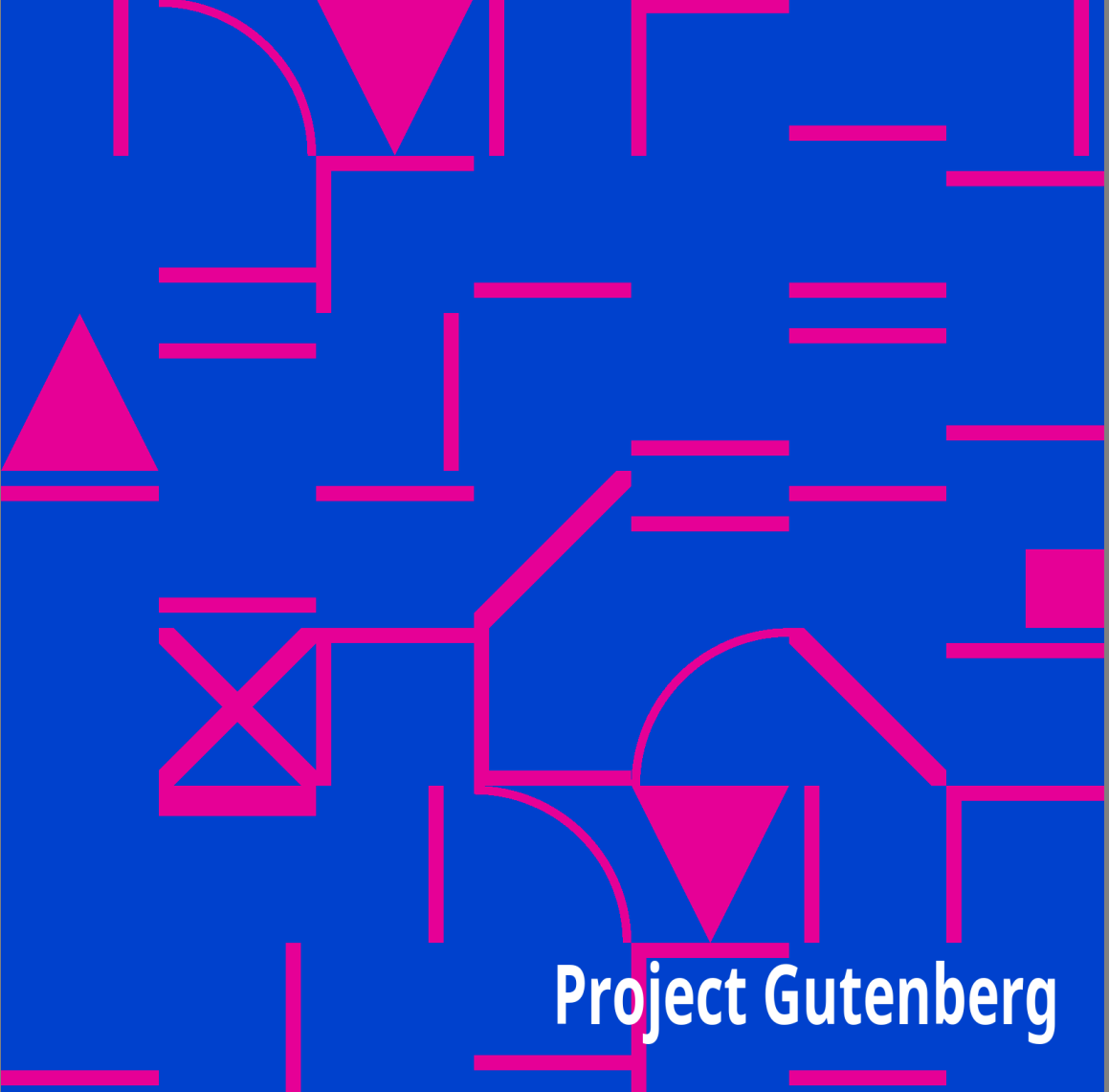
The background of the lower half of the image is a solid blue color. Overlaid on this is a complex, abstract pattern of bright pink lines and shapes. The pattern includes various geometric elements: straight lines of different lengths and orientations, right angles, triangles (both pointing up and down), and curved lines that form partial circles or arcs. Some of these elements intersect to form more complex shapes, such as a square with an 'X' inside and a house-like silhouette. The overall effect is a modern, geometric, and somewhat chaotic design.

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History for ready reference, Volume 7

Recent history (1901 to 1910)

J. N. Larned



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VOLUME 7 ***

[Transcriber's notes.

This work is derived from:

<https://archive.org/details/historyforreadyr07larn>

To provide some "foresight" on the many international conflicts mentioned in this work, I suggest reading a review of World War I, which commences four years after the publication of this work. For example:

https://en.wikipedia.org/wiki/World_War_I

These modifications are intended to provide continuity of the text for ease of searching and reading.

1. To avoid breaks in the narrative, page numbers (shown in curly brackets "{1234}") are usually placed between paragraphs. In this case the page number is preceded and followed by an empty line.

To remove page numbers use the Regular Expression:

"^{\[0-9]+\}" to "" (empty string)

2. If a paragraph is exceptionally long, the page number is placed at the nearest sentence break on its own line, but without surrounding empty lines.
3. Blocks of unrelated text are moved to a nearby break between subjects.
5. Use of em dashes and other means of space saving are replaced with spaces and newlines.
6. Subjects are arranged thusly:

MAIN SUBJECT TITLE IN UPPER CASE
Subheading one.

Subheading two.

Subject text.

See CROSS REFERENCE ONE.

See Also CROSS REFERENCE TWO.

John Smith,
External Citation Title,
Chapter 3, page 89.

Main titles are at the left margin, in all upper case (as in the original) and are preceded by an empty line.

Subheadings (if any) are indented three spaces and immediately follow the main title.

Text of the article (if any) follows the list of subtitles (if any) and is preceded with an empty line and indented three spaces.

References to other articles in this work are in all upper case (as in the original) and indented six spaces. They usually begin with "See", "Also" or "Also in". "See" is followed by either "(in this Volume)" or the Volume number of one of the preceding six Volumes.

Citations of works outside this book are indented six spaces and in italics (as in the original). The bibliography in Volume 1, APPENDIX F on page xxi provides additional details, including URLs of available internet versions.

-----Subject: Start-----

-----Subject: End-----

indicates the start/end of a group of subheadings or other

large block.

To search for words separated by an unknown number of other characters, use this Regular Expression to find the words "first" and "second" separated by between 1 and 100 characters:
"first.{1,100}second"

A list of all words used in this work is found at the end of this file as an aid for finding words with unusual spellings that are archaic, contain non-Latin letters, or are spelled differently by various authors. Search for:

"Word List: Start".

I use these free search tools:

Notepad++ — <https://notepad-plus-plus.org>

Agent Ransack or FileLocator Pro — <https://www.mythicsoft.com>

Several tables are best viewed using a fixed spacing font such Courier New.

End Transcriber's Notes.]

{i}

HISTORY

FOR READY REFERENCE

FROM THE BEST

HISTORIANS, BIOGRAPHERS, AND SPECIALISTS

THEIR OWN WORDS IN A COMPLETE

SYSTEM OF HISTORY

FOR ALL USES, EXTENDING TO ALL COUNTRIES AND SUBJECTS,

AND
REPRESENTING FOR BOTH READERS AND STUDENTS THE
BETTER AND NEWER LITERATURE OF HISTORY
IN THE ENGLISH LANGUAGE

BY

J. N. LARNED

WITH NUMEROUS HISTORICAL MAPS FROM ORIGINAL STUDIES
AND DRAWINGS BY

ALAN C. REILEY

REVISED AND ENLARGED EDITION

IN SEVEN VOLUMES

Volume VII.—RECENT HISTORY
(1901 TO 1910)

A to Z

SPRINGFIELD, MASS.

THE C. A. NICHOLS CO., PUBLISHERS

1910

{ii}

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The Riverside Press, Cambridge, Mass., U. S. A.

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{iii}

PREFACE TO THE SEVENTH VOLUME

In the preface to the Sixth Volume of this work, published in the spring of 1901, it was remarked that the last half-dozen years of the Nineteenth Century, which that Volume covered, had been filled with events so remarkable and changes so revolutionary in political and social conditions that many people had asked for an extension of my work to report them. The years then reviewed disclosed only the beginnings of what the decade since has been developing, in movements and achievements so varied, so numerous, in such rapid succession, with effects so profound and so problematical, that their appeal to our interest seems the strongest that has come to us yet from human history. That the interest in them justifies this further extension of my compilation of "recent history" has been made clear to me by the frequency of the suggestions of another Volume which have come to the publisher and to myself. In the new Volume I have striven to make a clear exhibit of all these strangely pregnant evolutionary and revolutionary movements of the present time, which are traversing all divisions and institutions of all society, occidental and oriental, along all the lines of its organization,—international, national, municipal, political, industrial, intellectual, moral,—leaving nothing in life untouched.

A few indications of the subjects dealt with most extensively in the Volume may convey some idea of its scope, and of the

aims pursued in its preparation. For example: "Railways" and "Combinations" ("Trusts"), treated mainly as the subjects of regulative governmental action, occupy 38 pages in all. "Labor Organization" fills 25 pages with the incidents of its trade unions, labor parties, strikes, mediations, arbitrations and industrial agreements. "Labor Protection" receives 6 pages, for the account of what has been done in various countries in the matters of employers' liability, industrial insurance, hours of work, etc. "Labor Remuneration" receives 9 pages, for the reporting of experiments in cooperation, profit-sharing, wages-regulation, pensions, etc. Various dealings with the problems of "Poverty and Unemployment" are set forth in 8 pages; similarly the problems of "Crime and Criminology" receive nearly 6; those of the Liquor Traffic 9; those of the Opium evil, 3. The development of organized work for "Social Betterment" is traced in 5 pages; that of reform in "Municipal Government" in 12. The "Race Problems," which are troubling many countries and people, are depicted in 15 pages. Twenty-six pages are given to the Educational history of the last decade; recent "Science and Invention" are reported in 16. "Children under the Law" are the subject of 8 interesting pages on recent legislation touching the young.

The contradictory states of temper in the world on the subject of War are depicted under two contrasted headings—"War, The Preparations for" and "War, The Revolt against," in particulars which fill 35 pages. Of the one great war of the period, between Japan and Russia, and the triumph of mediation which brought it to a close, the narrative, in about 20 pages, is full. The story of the late revolution in Turkey is told authentically in 9 pages, and that of Persia in 10. The abortive attempts at revolution in Russia, and the sham of constitutional government conceded, have their history in 18 pages. The signs of awakened life in China are described in 12. The discontent of India and Lord Morley's measures of reform in the

British-Indian government, enlarging the native representation in it, are set forth broadly in 15. Generally, as concerns the British Empire, the interesting conditions that have arisen in it very lately, adding South Africa to the group of unified Colonial Dominions, which are young British nations in the making, and drawing them all into a league with the "Mother Country" for organized imperial defense, are amply portrayed. So, too, are the agitations in recent British politics at home, which have arisen from an increasing antagonism between popular interests represented in the House of Commons and class interests intrenched in the House of Lords. In American politics, the remarkable invigoration and freshening of spirit which characterized the administration of President Roosevelt are made apparent in a broad exhibit of their many effective results.

As was said of Volume VI., it can be said, I think, with even more truth of this, that it presents "History in the making,—the day by day evolution of events and changes as they passed under the hands and before the eyes and were recorded by the pens of the actual makers and witnesses of them."

As an appendix to the present Volume, a new feature, related to the whole work, has been introduced. It offers a considerably extensive series of systematic courses for historical study and reading, the literature for which is supplied in the seven Volumes of "History for Ready Reference." This has been prepared in response to many requests which the publishers have received. Even for casual investigations it will be found serviceable to every possessor and user of the work.

J. N. L.

Buffalo, New York, May, 1910.

{v}

ACKNOWLEDGMENTS

I am indebted to the following named authors and publishers for permission kindly given me to quote from books and periodicals, all of which are duly referred to in connection with the passages borrowed severally from them:

The publishers of
The American Catholic Quarterly Review,
The American Monthly Review of Reviews,
The Associated Prohibition Press,
The Atlantic Monthly Magazine,
The Boston Transcript,
The Century Magazine,
The Contemporary Review,
The Fortnightly Review,
The New York Evening Post,
The New York State Journal of Medicine,
The Nineteenth Century Review,
The North American Review,
The Outlook,
The Times (London),
Messrs. T. & T. Clark, Edinburgh,
Messrs. Doubleday,
Page & Co.,
Messrs. E. P. Dutton & Co.,
Messrs. Harper & Brothers,
Messrs. Henry Holt & Co.,
Messrs. Houghton Mifflin Company,
Messrs. John Lane Company,
Messrs. Charles Scribner's Sons;
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Mr. Frederick H. Clark, Head of History Department,
Lowell High School, San Francisco;
Mr. George Iles, author of "Inventors at Work",

Dr. James Brown Scott, Solicitor of the U. S. Department of State.

I am much indebted, furthermore, to the courtesy of many societies and persons from whom I have received reports and other documents that were essential to my work; and especially do I owe much to the helpfulness of many on the staff of the Buffalo Public Library.

{1}

HISTORY FOR READY REFERENCE

ABD EL AZIZ, Sultan of Morocco.

See (in this Volume)
MOROCCO: A. D. 1903, and 1907-1909.

ABDUL HAMID II., Sultan of Turkey.
His forced restoration of the Constitution of 1876 .
His faithlessness to it.
His deposition.

See (in this Volume)
TURKEY: A. D. 1908 (July-December.),
and 1909 (January-May).

ABDULLA MOHAMMED, The Mullah.

See (in this Volume)
Africa: Somaliland.

ABDURAHMAN,
Ameer of Afghanistan: Death, 1901.

See (in this Volume)
AFGHANISTAN: A. D. 1901-1904.

ABERDEEN, The Earl of: Lord Lieutenant of Ireland.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

ABERDEEN, Lady.

See (in this Volume)

WOMEN, INTERNATIONAL COUNCIL OF.

"ABIR," or A. B. I. R. COMPANY, The.

See (in this Volume)

CONGO STATE: A. D. 1903-1905.

ABYSSINIA: A. D. 1902 .

The French in favor.

Their railway building and plans.

"Through Abyssinia the French hope to establish a line of trade across Africa from east to west in opposition to our Cape to Cairo railway from north to south. In this they have already achieved some success. They have settled themselves along the Gulf of Tadjoura, on the south of which they hold the magnificent Bay of Djibouti, while on the north their flag waves over the small port of Obok. But their real triumph in these regions has been the establishment of a lasting friendship with Abyssinia by judicious consignments of arms and ammunition—which were used against Italy in the war of 1896. Finally, they are now in the act of building a French railway from Djibouti to Addis Abeba, the capital of Abyssinia. This railway will completely cut out the British port of Zeila, for in the concession granted by Menelik it is stipulated that no company is to be permitted to construct a railroad on Abyssinian territory that shall enter into competition with that of M. Ilg and M. Chefneux. ...

"At Menelik's capital, Addis Abeba, there is, to use the expression of M. Hugues le Roux, a silent duel in progress between the representatives of the various nationalities. We are represented by Colonel Harrington. But, although Menelik is wise enough to extend a friendly greeting to all, there is no reason to suppose that we should enjoy as great a share of favour as other nations. Although throughout the war we preserved a strict neutrality, we are regarded as a powerful and aggressive neighbour, and as the ally of Italy, whereas the French have been the truest friends of Abyssinia. The Russians are also in communication with the Negus, and their efforts are, of course, seconded by France. As for the Italians, their position seems now to be as good as that of any European nation."

G. F. H. Berkeley,
The Abyssinian Question and its History
(Nineteenth Century, January, 1903).

ABYSSINIA: A. D. 1902.

Treaty with Great Britain.

A treaty between Great Britain and the Emperor Menelek, of the kingdom of Ethiopia (Abyssinia), signed on the 15th of May, 1902, defines the boundaries between the Soudan and Ethiopia, and contains the following important provisions:

"Article III.

His Majesty the Emperor Menelek II., King of Kings of Ethiopia, engages himself towards the Government of his Britannic Majesty not to construct, or allow to be constructed, any work across the Blue Nile, Lake Tsana, or the Sobat, which would arrest the flow of their waters into the Nile, except in agreement with his Britannic Majesty's Government and the Government of the Soudan.

Article IV.

The Emperor Menelek engages himself to allow his Britannic Majesty's Government and the Government of the Soudan to select in the neighborhood of Itang, on the Baro River, a block of territory having a river frontage of not more than 2000 metres, in area not exceeding 400 hectares, which shall be leased to the Government of the Soudan, to be administered and occupied as a commercial station, so long as the Soudan is under the Anglo-Egyptian Government. It is agreed between the two high contracting parties that the territory so leased shall not be used for any political or military purpose.

Article V.

The Emperor Menelek grants his Britannic Majesty's Government and the Government of the Soudan the right to construct a railway through Abyssinian territory to connect the Soudan with Uganda. A route for the railway will be selected by mutual agreement between the two high contracting parties."

ACCIDENTS TO WORKMEN:

In the United States.

See (in this Volume)

LABOR PROTECTION.

ACHINESE, Dutch hostilities with the.

See (in this Volume)

NETHERLANDS: A. D. 1904.

ACRE DISPUTES, The:

Claims on the region by Brazil, Peru, and Bolivia.

Its final partition.

A considerable territory of much richness in the southwestern part of the Amazon Valley, around the upper waters of the Madeira, the Aquiry, and the Purus tributaries, was long in

dispute between Brazil, Bolivia, and Peru, and became a cause of serious quarrel between the two first named in 1903. The then Brazilian President, Rodriguez Alves, in his first annual message, May, 1903, stated the situation from the Brazilian standpoint as follows:

"Our former relations of such cordial friendship with Bolivia have suffered a not insignificant strain since the time when the Government of that sister Republic, unable to maintain its authority in the Acre region, inhabited exclusively, as you know, by Brazilians who, many years previously, had established themselves there in good faith, saw fit to deliver it over to a foreign syndicate upon whom it conferred powers almost sovereign. That concession, as dangerous for the neighboring nations as for Bolivia itself, encountered general disapproval in South America As the most immediately interested, Brazil, already in the time of my illustrious predecessor, protested against the contract to which I refer, and entered upon the policy of reprisals, prohibiting the free transit by the Amazon of merchandise between Bolivia and abroad.

{2}

Neither that protest nor the counsels of friendship produced at that time the desired effect in La Paz, and, far from rescinding the contract or making the hoped-for modifications therein, the Bolivian Government concluded an especial arrangement for the purpose of hurrying the entrance of the syndicate into the possession of the territory.

"When I assumed the government that was the situation, and in addition the inhabitants of the Acre, who had again proclaimed their independence, were masters of the whole country, excepting Puerto Acre, of which they did not get possession until the end of January. Although since January negotiations have been initiated by us for the purpose of removing amicably the cause of the disorders and complications which have had their seat of action in the Acre ever since the time when for

the first time the Bolivian authorities penetrated thither, in 1899, yet the Government of La Paz has nevertheless thought proper that its President and his minister of war should march against that territory at the head of armed forces with the end in view of crushing its inhabitants and then establishing the agents of the syndicate."

The Brazilian President proceeded then to relate that he had notified the Bolivian Government of the intention of Brazil to "defend as its boundary the parallel of 10° 20' south," which it held to be the line indicated by the letter and the spirit of a treaty concluded in 1867; and that Bolivia had then agreed to a settlement of the dispute through diplomatic channels. "Upon the Bolivian Government agreeing to this," he continued, "we promptly reestablished freedom of transit for its foreign commerce by Brazilian waters. Shortly after this the syndicate, by reason of the indemnity which we paid it, renounced the concession which had been made it, eliminating thus this disturbing element."

In conclusion of the subject, President Alves reported: "To the Peruvian Government we have announced, very willingly, since January, that we will examine, with attention, the claims which in due time they may be pleased to make upon the subject of the territories now in dispute between Brazil and Bolivia."

The result of the ensuing negotiations between Brazil and Bolivia was a treaty signed in the following November and duly ratified, the terms of which were summarized as follows in a despatch from the American Legation at La Paz, December 26: "Three months after exchange of ratifications Brazil is to pay an indemnity of £1,000,000 and in March, 1905, £1,000,000. A small strip of territory, north Marso, Brazilero, embracing Bahia Negra and a port opposite Coimbra, on Paraguay River, are conceded, and all responsibilities respecting Peruvian contentions are assumed. The disputed Acre territory is

conceded by Bolivia. A railroad for the common use of both countries is to be built from San Antonio, on Madeira River, to Cuajar Ameren, on Mamore River, within four years after ratification. Free navigation on the Amazon and its Bolivian affluents is conceded. A mixed commission, with umpire chosen from the diplomatic representation to Brazil, will treat all individual Acre claims."

Subsequently it was determined in Bolivia that the entire indemnity received from Brazil should be expended on railroads, with an additional sum of £3,500,000, to be raised by loan.

For the settlement of the remaining question of rights in the Acre territory, between Bolivia and Peru, a treaty of arbitration, negotiated in December, 1902, but ratified with modifications by the Bolivian Congress in October, 1903, provided that "the high contracting parties submit to the judgment and decision of the Government of the Argentine Republic, as arbitrator and judge of rights, the question of limits now pending between both republics, so as to obtain a definite and unappealable sentence, in virtue of which all the territory which in 1810 belonged to the jurisdiction or district of the Ancient Audience of Charcas, within the limits of the viceroyalty of Buenos Ayres, by acts of the ancient sovereign, may belong to the Republic of Bolivia; and all the territory which at the same date and by acts of equal origin belonged to the viceroyalty of Peru may belong to the Republic of Peru."

The case was pending until July, 1909, when judgment favorable to the claims of Peru was pronounced by the President of the Argentine Republic, Señor Figueroa Alcorta. According to the award, as announced officially from Peru, the line was drawn to "follow the rivers Heath and Madre de Dios up to the mouth of the Toromonas and from there a straight line as far as the intersection of the river Tehuamanu with meridian 69. It will

then run northwards along this meridian until it meets the territorial sovereignty of another nation."

The Bolivians were enraged by the decision against them, and riotous attacks were made on the Argentine Legation at La Paz, the Bolivian capital, and on Argentine consulates elsewhere. Worse than this in offensiveness was a published declaration by President Montes of Bolivia that the arbitration award respecting the frontiers of Bolivia and Peru had been given by Argentina without regard to Bolivia's petition that an actual inspection of the territory should be made in case the documents and titles submitted were unsatisfactory. "Had this been done," said the President of Bolivia, "the arbitrator would have been convinced of the respective possessions of the two countries. It is inexplicable how the arbitrator, after examining the titles and documents, could give such a decision. He passed over the elementary principles of international rights in awarding to Peru territory which had never been questioned as belonging to Bolivia. As a consequence Bolivia rejects the award."

The insulted Government of Argentina demanded explanations; diplomatic relations between the two countries were broken off, and war seemed imminent. Fortunately the term of President Montes was near its close, and a man of evidently cooler temper, Elidoro Villazon, succeeded him in the Presidency on August 12th. The new President, in his message to Congress next day, while characterizing the award as unjust, said: "We must proceed circumspectly, and be guided by international rights and the customs of civilized nations in similar cases. I consider it right to avail ourselves of the means offered by diplomacy to obtain a rectification of the new frontier line given by arbitration, thus saving the compromised possessions of Bolivia."

With this better spirit entering into the controversy, Bolivia was soon able to arrange with Peru for a concession from the latter which made her people willing to recognize the award. This agreement was effected on the 11th of September, and its terms, as made known in a despatch from Rio de Janeiro, were as follows:

"Peru surrenders to Bolivia a very small extent of territory lying between the Madre de Dios River and the Acre, traversed by the rivers Tahuamano and Buyamaro, which together form the river Orton, an affluent of the Beni River. This territory, with an area of about 6,500 square kilometres, was discovered and colonized by Bolivians, who to-day are in possession of numerous prosperous industries there. Peru gets possession of all the upper course of the Madre de Dios, from its head waters to its confluence with the river Heath. Such a slight modification as the foregoing from the decision reached by the arbitrator in no way disturbs the Argentine Republic."

As between Peru and Brazil the boundary question was settled by a treaty signed at Rio de Janeiro on the 8th of September, three days before the Bolivian pacification.

This probably closes a territorial dispute which has troubled four countries in South America for many years, and brought quarrelling couples to the verge of war a number of times.

ADANA, Massacres at.

See (in this Volume)

TURKEY: A. D. 1909 (January-May), and (April-December).

ADDIS ABEBA, Capital of Abyssinia.

See (in this Volume)

ABYSSINIA: A. D. 1902.

ADULTERATIONS, Laws against.

See (in this Volume)

PUBLIC HEALTH: PURE FOOD LAWS.

AEHRENTHAL, Baron.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1905-1906.

AERONAUTICS.

See (in this Volume)

SCIENCE AND INVENTION, RECENT.

AFGHANISTAN: A. D. 1901-1906.

Death of Abdurahman.

Succession of his son, Habibullah.

Signs of a progressive spirit in the new Ameer.

The late Ameer, Abdurahman, died in October, 1901, and was succeeded by his eldest son, Habibullah. Early in the third year of his reign the new Ameer began to show signs of a wish to have his country move a little on the lines of European progress, in the march which so many of his Asiatic neighbors were joining. His undertakings were disturbed for a time by trouble with his half-brother, Omar Jan, and with the latter's mother, the Bibi Halima or Queen of the Harem; but he brought the trouble to an end which does not seem to have been tragical, and that, in itself, is a notable mark in his favor. The Russo-Japanese War interested him immensely, and he established a daily post between Khyber and Cabul to bring speedy news of events. He then read the reports in public, with expositions, to make the listening people understand the bearing of what was happening on their own interests, and the lessons they should learn from what the Japanese were doing. He is said to have done much in the way of improving

agriculture and horse-breeding in Afghanistan; he has a desire to establish a Chiefs' College, with the English language as the basis of instruction, but has met with strong opposition in this undertaking; and he has introduced electric lighting, with probably other luxuries of modern science, in Cabul. Such things in Afghanistan mark a highly progressive man. His political intelligence is proved by the cordiality of his relations with the British Indian Government. An interesting account of conditions in the Ameer's country in 1904 was given by Mr. D. C. Boulger, in the Fortnightly Review of December, that year, under the title of "The Awakening of Afghanistan."

AFGHANISTAN: A. D. 1905.

The Ameer becomes King.

In a new treaty between the Government of Great Britain and the Ameer of Afghanistan, the latter was recognized as King.

AFGHANISTAN: A. D. 1907.

Convention between Great Britain and Russia relative to Afghanistan.

See (in this Volume)

EUROPE: A. D. 1907 (AUGUST).

AFRICA:

Its Colonizability by white peoples.

The regions habitable by Europeans.

"There are three obstacles to the white race from Europe overrunning and colonising the continent of Africa as it has overrun and colonised the two Americas and Australasia. The first is the insalubrity of the well-watered regions and the uninhabitability of the desert tracts; the second is the opposition of strong indigenous races; and the third, of quite recent growth, is a growing sentiment which is increasingly influencing public opinion, in Europe more especially, and

which forbids the white man to do evil that good may come: namely, to displace by force of arms pre-existing races in order that, the white man may take the land they occupy for his own use. It is probable that the second and third reasons combined may in future prove the more effective checks. Deserts, to be made habitable and cultivable, only need irrigation, and apparently there is a subterranean water supply underlying most African deserts which can be tapped by artesian wells. The extreme unhealthiness of the well-watered parts of Africa is due not so much to climate as to the presence of malaria in the systems of the Negro inhabitants. This malaria is conveyed from the black man to the white man by certain gnats of the genus *Anopheles*—possibly by other agencies. But the draining of marshes and the sterilisation of pools, together with other measures, may gradually bring about the extinction of the mosquito; while, on the other hand, it seems as though the drug (*Cassia Beareana*) obtained from the roots of a cassia bush may act as a complete cure for malarial fever. ...

"For practical purposes the only areas south of the Sahara Desert which at the present time are favourable to white colonisation are the following. In West Africa there can be no white colonisation under existing conditions; the white man can only remain there for a portion of his working life as an educator and administrator. ... In North-East Africa, Abyssinia and Eritrea will suggest themselves as white man's countries—presenting, that is to say, some of the conditions favourable to European colonisation. The actual coast of Eritrea is extremely hot, almost the hottest country in the world, but it is not necessarily very unhealthy. The heat, however, apart from the existence of a fairly abundant native population, almost precludes the idea of a European settlement. But on the mountains of the hinterland which are still within Italian territory there are said to be a few small areas suited at any rate to settlement by Italians, who, by-the-by, seem to be getting on very well with the natives in

that part of Africa. But a European colonisation of Abyssinia, possible as it might be climatically, is out of the question in view of the relatively abundant and warlike population indigenous to the Ethiopian Empire. ...

{4}

"Then comes Central Africa, which may be taken to range from the northern limits of the Congo basin and the Great Lakes on the north to the Cunene River and the Zambesi on the south. British East Africa and Uganda offer probably the largest continuous area of white man's country in the central section of the continent. The Ankole country in the southwest of the Uganda Protectorate and the highlands north of Tanganyika, together with the slopes of the Ruwenzori range, offer small tracts of land thoroughly suited to occupation by a white race so far as climate and fertility are concerned; but these countries have already been occupied, to a great extent, by some of the earliest forerunners of the Caucasian (the Bahima), as well as by sturdy Negro tribes who have become inured to the cold. To the northeast of the Victoria Nyanza, however, there is an area which has as its outposts the southwest coast of Lake Rudolf, the great mountains of Debasien and Elgon, and the snow-clad extinct volcanoes of Kenia and Kilimanjaro. This land of plateaux and rift valleys is not far short of 70,000 square miles in extent, and so far as climate and other physical conditions are concerned is as well suited for occupation by British settlers as Queensland or New South Wales. But nearly 50,000 square miles of this East African territory is more or less in the occupation of sturdy Negro or Negroid races whom it would be neither just nor easy to expel. ...

"The only portion of German East Africa which is at all suited to European settlement lies along the edge of the Nyasa-Tanganyika Plateau. Here is a district of a little more than a thousand square miles which is not only elevated and

healthy, but very sparsely populated by Negroes. A few patches in the Katanga district and the extreme southern part of the Congo Free State offer similar conditions.

"In British Central Africa we have perhaps 6,000 square miles of elevated, sparsely populated, fertile country to the northwest of Lake Nyasa and along the road to Tanganyika. There is also land of this description in the North-East Rhodesian province of British Central Africa, in Manikaland, and along the water-parting between the Congo and the Zambesi systems. Then in the southernmost prolongation of British Central Africa are the celebrated Shire Highlands, which, together with a few outlying mountain districts to the southwest of Lake Nyasa, may offer a total area of about 5,000 square miles suitable to European colonisation. A small portion of the Mozambique province, in the interior of the Angoche coast, might answer to the same description. Then again, far away to the west, under the same latitudes, we have, at the back of Mossamedes and Benguela, other patches of white man's country in the mountains of Bailundo and Shella.

"In South Africa, beyond the latitudes of the Zambesi, we come to lands which are increasingly suited to the white man's occupation the further we proceed south. Nearly all German South-West Africa is arid desert, but inland there are plateaux and mountains which sometimes exceed 8,000 feet in altitude, and which have a sufficient rainfall to make European agriculture possible. ... About two-thirds of the Transvaal, a third of Rhodesia, a small portion of southern Bechuanaland, two-thirds of the Orange River Colony, four-fifths of Cape Colony, and a third of Natal sum up the areas attributed to the white man in South Africa. The remainder of this part of the continent must be considered mainly as a reserve for the black man, and to a much smaller degree (in South-East Africa) as a field for Asiatic colonisation, preferentially on the part of British Indians.

"Counting the white-skinned Berbers and Arabs of North Africa, and the more or less pure-blooded, light-skinned Egyptians, as white men, and the land they occupy as part of the white man's share of the Dark Continent, we may then by a rough calculation arrive (by adding to white North Africa the other areas enumerated in the rest of the continent) at the following estimate: that about 970,000 square miles of the whole African continent may be attributed to the white man as his legitimate share. If, however, we are merely to consider the territory that lies open to European colonisation, then we must considerably reduce our North African estimate."

***H. H. Johnston,
The White Man's Place in Africa
(Nineteenth Century, June, 1904).***

AFRICA:

Agreements between England and France concerning Egypt, Morocco, Senegambia, and Madagascar.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

AFRICA:

British, German, and Congo frontier agreement.

The following was telegraphed to the Press from Berlin,
November 29, 1909:

"An agreement was signed in Berlin during the summer, Reuter's representative learns, whereby various questions affecting the frontier lines between British Uganda and German East Africa and the Congo, which have been under discussion for years, were definitely settled. The agreement is understood to be satisfactory to both parties, but the details are not to be published as yet."

AFRICA:

French Central: A Land-locked Empire.

"Since 1898, successive expeditions have converged from the French Niger Territories, from South Algeria, and from the French Congo towards Lake Tchad, which has ever exercised a mystic charm over the minds of explorers. Rabah, the usurper of Bornou, has been killed, and his son Fadel'allah recently met the same fate, so that all the belt of black countries stretching from the north of Sokoto, the north of Bornon and Baghirmi to the confines of Wadaï, the most easterly limit of the French sphere, are now occupied in a military sense. ... Even if we consider the French as now firmly settled in these countries, peopled with timid blacks from whom little is to be feared, the succeeding problem, what to do with them, presents no seductive outlook.

"The key to the situation is the question of transport, for here we have a vast land-locked empire, the roads to which are long, complicated, and difficult. For the present the question of a great Trans-Saharan railway may be left out of account, and in all probability more mature consideration will convince the French of the futility of such a scheme. Three roads running through French territory are available; from the east by the Niger, from the south by the French Congo, and from the north, Tunis or Algeria, across the great Sahara.

{5}

Of the three, the only one which can be made of practical utility for a long time to come is that across the Sahara. From the centre of Africa there are several well-known caravan routes, all capable of being commercially used, provided the intervening tribes can be brought to acquiesce in the French domination. All these terminate in Turkish territory."

E. J. Wardle,
The French in Central Africa
(*Contemporary Review*, October, 1902).

AFRICA:

Subjugation of Hausa Land and occupation of Sokoto.

Early in 1903 the High Commissioner of Nigeria, Sir F. Lugard, sent an expedition against the Emir of Kano, in the northern part of the Nigerian Protectorate, within the Sultanate of Sokoto, which had never been made submissive to the rule which Great Britain claimed. Kano was reached and taken by assault on the 3d of February, the Emir and his horsemen escaping toward Sokoto. The expedition then proceeded against Sokoto, where feeble resistance was offered, and the seat of the Sultanate was taken on the 15th of March. These conquests are believed to have effected a firm establishment of British ascendancy throughout the Niger territory, from the coast to the Saharan sphere of the French. The possession of Kano is important, as it is the starting point of caravan routes eastward and northward and the chief commercial town of the Western Sudan.

AFRICA:

Rapid development of the railway system.

See (in this Volume)
Railways: Nigeria.

AFRICA:

French Mauretanie.

See Morocco: A. D.1909.

AFRICA:

French Western: Eradication of Yellow Fever.

See PUBLIC HEALTH: A. D. 1901-1905.

AFRICA:

German Colonies: Cost to Germany.
Small number of German Colonists.

See GERMANY: A. D. 1903.

AFRICA:

Unpopularity of the Colonial Policy in Germany.

See GERMANY: A. D. 1906-1907.

AFRICA:

Wars with the Natives.

In the German Parliament, on the 12th of January, 1905, it was stated by the Director of the Colonial Department, Dr. Stübel, that up to that date 11,000 German troops had been employed against the Hereros and Witbois in Southwest Africa, and that the campaign of 1904 had cost 42,000,000 marks (about \$10,500,000). The military estimate for 1905 was 60,000,000 marks. General von Trotha, Governor of the colony, who had been in command of operations, and who had set a price on the heads of Morenga and other insurgent chiefs, and had threatened the whole tribe with extermination, was to be superseded; but the Emperor, notwithstanding, conferred on him the Order "Pour le Merite." A similar conflict with the natives in German East Africa was opened in August, 1905, by the murder of Bishop Spiers and four missionaries and Sisters of Mercy. The Wangonis are of the Zulu race, mustering about 30,000 warriors, and reinforcements of the German troops had to be sent out.

AFRICA:

Opening of Diamond Fields.

Diamond discoveries in German Southwest Africa began to acquire importance in 1908. As stated in a lecture on the subject by Herr Dernburg, the German Colonial Secretary, at

Berlin, in January, 1909, these diamond deposits lie in crescent form around Lüderitz Bay, beginning to the south of Elizabeth Bay and extending northwards to the sea-coast in the vicinity of Anischab. The full extent of the stretch of diamond-bearing sand can only be ascertained by careful measurement, but it is even now permissible to describe the deposits as very considerable. The diamonds, which are found mixed with small agates and other half-precious stones, vary from one-fifth to three-quarters of a carat—the average not exceeding one-third of a carat. They are almost perfect octahedrons of good water. The regular exploitation may be said to have begun in September, 1908, the total recovered before that date only amounting to 2,720 carats. In September the amount was 6,644 carats, in October 8,621, in November 10,228, and in December 11,549, or in all 39,762, the price of which would be about £55,000. The administrative regulations introduced stipulate, first, that half the net profit shall go to the Southwest African Treasury; secondly, that measures shall be taken to secure an adequate market for the new supply and to prevent depreciation; thirdly, that suitable conditions shall be established for the working of the mines; and, fourthly, that their exploitation shall be mainly reserved for German capital, and that increased work shall be provided for the German diamond-cutting industry.

AFRICA: Portuguese: A. D. 1905-1908.

Continued existence of slavery.

General F. Joubert-Pienaar, one of the prominent Boer leaders in the Boer-British War, is the authority for startling statements concerning the continued maintenance of slavery in Portuguese Africa. He attempted to become a settler in that region, and related subsequently what he saw and heard during his stay in it. Of an experience at the Island Principe he said: "The English director of the cable office took me to some of the cocoa plantations, with which the slopes of the hills are covered. He told me that it was a terribly unhealthy

place to live, and that Europeans could not exist there for more than a couple of months at a time, and that frequent changes have to be made, therefore, in the telegraph department. He told me, further, that the year before the whole original population of the island had died from malarial fever, and that the following year they imported five hundred slaves, men and women, to repopulate the island. That was ten months before my visit. Pointing to five women walking on the street, he said: 'There are all that are left of the women imported, and only about a dozen men remain.' I asked him how they carried on the work of the plantations. He said it was done by simply importing slaves, from time to time, to replace those who had died."

General Joubert-Pienaar declares that he never heard of a single case where one of these slaves had returned to his own country, while in the coast towns the abnormal proportion of native women and children noticeable is due to the fact that the men have been sent as slaves to the islands. The method of obtaining the slaves and of making the pretense of a contract with them is thus described: "When any slaves are wanted in the islands, the plantation owner informs the slave-traders on the mainland. The slave-trader goes to a strong chief, inland, and bargains with him for the number of slaves he requires, generally paying him in rifles and ammunition.

{6}

This chief will not send any of his own men to the islands, but, calling his braves, he goes to some weaker tribe, attacks it, and annihilates the tribe, taking the men, women, children, and cattle captive. The men, and as many women as are necessary, he hands over to the slave-trader, the rest of the women and the cattle he keeps for himself and his people, and the children he sells to colonists for slaves. On these slave-hunting expeditions the most terrible cruelties are enacted and the most gruesome atrocities perpetrated. ... Arriving at the coast, these men—and sometimes women when they are

required—are brought before an officer appointed for the purpose. He reads the contract to them in Portuguese; and after the contract has been read to these people, who do not understand one word of the language, a black man, who is stationed there for the purpose, shouts to these slaves to say 'Yes!' Of course they all repeat the 'Yes' after him, and the Portuguese official then certifies that these men have all agreed to go and work on the islands under the terms of the contract read to them. He then takes a little tin box, in which a copy of the contract is placed, and ties it around the neck of each of the slaves."

AFRICA:

Somaliland: Troubles with the Mullah.

In 1902 the British in their Somali Coast Protectorate began to be harassed by raids from the bordering desert region led by a religious agitator who had assumed the character known as that of a Mullah. Three years previously the British Consul at Berbera had reported to London the appearance of this personage, Muhammad Abdullah by name, in the Dolbahanta country, and that he was said to be "collecting arms and men with a view to establishing his authority over the southeastern portion of the Protectorate." He had made several pilgrimages to Mecca, and had attached himself there to a sect which "preaches more regularity in the hours of prayer" and "stricter attention to the forms of religion." He had begun the use of force to compel the tribes of his region to join his sect, and was evidently gaining power to make trouble. The trouble was realized in due time, and became serious in 1902, when, in October, Colonel Swayne, with a native levy of troops, having driven the Mullah's raiders back into the desert, followed them thither, and suffered a serious reverse. He was attacked and compelled to retreat, with a loss of two officers and 70 men killed and two officers, with about 100 men wounded. Troops were then sent to the Protectorate from India and careful preparations were made for dealing with the

Mullah in a more effectual way. He, meantime, sent demands for political recognition and for the cession to him of a port.

Early in 1903 operations against the Mullah were renewed, with strongly increased forces from India and from African native levies; but the results were again disastrous. A detachment from a column which pursued the Mullah into his own region ventured too far in the advance and was overwhelmed, losing nearly 200 officers and men. There appears to have been no success during the year to counterbalance this reverse.

AFRICA:

Peace with the Mullah.

The Mullah was brought at last to an agreement with Great Britain and Italy which established comparative peace for the time being in Somaliland, with the promise of freedom in trade.

Notwithstanding the pacific agreement with the Mullah, effected in 1905, troubles on the Somali border have continued, because of his attacks on friendly tribes. Early in 1909 it was announced that the British forces in Somaliland were to be increased, but that there was no intention to embark on any expedition against the Mullah. A despatch from Bombay, India, on the 3d of January, said: "Further operations against the Somaliland Mullah are strongly deprecated. It is impossible to conduct a successful campaign, owing to the difficulty of obtaining supplies, unless a light railway 200 miles long is built to Bohotle. The Mullah, who is an able man, is not believed to be anxious to engage in fresh hostilities with the British, but he is determined to dominate the Hinterland. Experts consider that no new movement on the lines of the last campaign would produce a satisfactory result. The Mullah's strength is unknown, but it is probably great, as his camp sometimes covers ten square miles. His mobility is astonishing, and he can always elude our troops.

Our present advanced outpost is Burao, 80 miles from Berbera, where there is a small force of the King's African Rifles. The country is practically worthless, and the best course, probably, is to hold the coast and to leave the far interior severely alone. The friendly tribes cannot be further effectively protected without permanently employing a large force. Minor operations are now merely a waste of money."

AFRICA:

Sudan: Suppression of a new Mahdi.

A new Mahdi proclaimed himself in Southern Kordofan in November, 1903. He was a native of Tunis, named Mahomed El Amin, who had twice made the pilgrimage to Mecca. Colonel Mahon, the Deputy-Governor of the Sudan, on hearing of Mahomed's proclamation, started instantly from Khartoum, with 200 cavalry, sending orders to El Obeid for 200 infantry, with Maxims, to meet him near Tagalla. With this force, after a five days march, through the desert toward the Tagalla mountains, he caught the Mahdi, took him to El Obeid and tried and hanged him straightway.

AFRICA:

Population.

Lord Cromer, in his annual report, 1904, estimated the population of the Sudan, within the British-Egyptian Condominium, at no more than 1,870,000, to which number it had been reduced by war and disease from former estimates of 8,525,000, prior to the Mahdi domination.

See, also, ALGIERS, CONGO, EGYPT, MOROCCO, RHODESIA, SOUTH AFRICA, etc.

AGLIPAY, Padre Gregorio:

His secession from the Roman Catholic Church in the Philippines.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1902.

AGRAM TRIALS, The.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1908-1909.

AGRARIAN INTEREST, in Germany:
Its triumph in 1909.

See (in this Volume)
GERMANY: A. D. 1908-1909.

AGRARIAN LAW, The Russian.

See (in this Volume)
RUSSIA: A. D. 1909 (APRIL).

AGRICULTURAL CRISIS IN RUSSIA.

See (in this Volume)
RUSSIA: A. D. 1905.

AGRICULTURE:
Coöperative and other unions among farmers.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1909;
AND LABOR REMUNERATION: COÖPERATIVE
ORGANIZATION.

AGRICULTURE:
Dry Farming.

See (in this Volume)
SCIENCE AND INVENTION: AGRICULTURE.

{7}

AGRICULTURE:

Germany: Decrease of agricultural population.

See GERMANY: A. D. 1907.

AGRICULTURE:

Increasing cooperative organization in Great Britain.

See LABOR REMUNERATION: COÖPERATIVE ORGANIZATION.

AGRICULTURE: International Institute:

Its origin and purpose.

Created under the auspices of the King of Italy.

Forty nations associated in its membership.

Its seat near Rome.

The idea of an international organization for systematizing the agricultural production of the world and regulating the markets of food products, by constant and authentic knowledge of crops and conditions, was conceived some years ago by Mr. David Lubin, of California. It was first expressed by him publicly at Budapest in 1896, but was the growth of thirteen years of thought preceding that date. As the result of Mr. Lubin's efforts to interest governments and peoples in the project, King Victor Emmanuel III., of Italy, became its hearty patron in 1903, and took the initiative step toward effecting an organization as wide as the civilized world, by inviting all nations to take part in a convention of delegates for the purpose, at Rome, in May, 1905. The invitation, as addressed to the Government of the United States by the Italian Ambassador at Washington, on the 26th of February, 1905, was in these words: "By order of my government, I have the honor to inform your excellency that His Majesty the King, my august sovereign, has taken the initiative in the formation

of an international institute of agriculture to be composed of representatives of the great agricultural societies of the various countries and of delegates from the several governments. This institute, being devoid of any political intent, should tend to bring about a community of interests among agriculturists and to protect these interests in the markets of the world. It will study agricultural conditions in the different countries, periodically indicating the supply and the quality of products with accuracy and care, so as to proportion production to demand, increase and distribute the various crops according to the rate of consumption, render the commerce of agricultural products less costly and more expeditious, and suitably determine the prices thereof. Acting in unison with the various national bureaus already existing, it will furnish accurate information on conditions regarding agricultural labor in various localities, and will regulate and direct the currents of emigration. It will favor the institution of agricultural exchanges and labor bureaus. It will protect both producers and consumers against the excesses of transportation and forestalling syndicates, keeping a watch on middlemen, pointing out their abuses, and acquainting the public with the true conditions of the market. It will foster agreements for common defense against the diseases of plants and live stock, against which individual defense is less effectual. It will help to develop rural cooperation, agricultural insurance, and agrarian credit. It will study and propose measures of general interest, preparing international agreements for the benefit of agriculture and the agricultural classes.

"Carrying out the intention of His Majesty, the Italian Government appeals to all friendly nations, each of which ought to have its own representatives in the institute, appointed to act as the exponents of their respective governments, as organs of mutual relations, and as mediums of reciprocal influence and information. It accordingly now invites them to participate through their delegates in the

first convention, which is to be held at Rome next May for the purpose of preparing rules for the new institute.

"The King's Government trusts that the United States will be willing to cooperate in the enterprise, the first inspiration of which is due to an American citizen, and that, accepting the invitation to the conference at Rome, it will send thither a delegation commensurate with its importance as the foremost agricultural nation in the world."

Gratifying responses to the invitation were made by most, if not all, of the governments addressed, and the Conference at Rome was held at the appointed time. It concluded its sessions on the 7th of June by attaching the signatures of the delegates of the Powers represented to a final Act, which embodies the resolutions on which they had agreed. This Act of organization was as follows:

"Article 1.

There is hereby created a permanent international institute of agriculture, having its seat at Rome.

"Article 2.

The international institute of agriculture is to be a government institution, in which each adhering power shall be represented by delegates of its choice. The institute shall be composed of a general assembly and a permanent committee, the composition and duties of which are defined in the ensuing articles.

"Article 3.

The general assembly of the institute shall be composed of the representatives of the adhering governments. Each nation, whatever be the number of its delegates, shall be entitled to a number of votes in the assembly which shall be determined according to the group to which it belongs, and to which reference will be made in article 10.

"Article 4.

The general assembly shall elect for each session from among its members a president and two vice-presidents. The sessions shall take place on dates fixed by the last general assembly and according to a programme proposed by the permanent committee and adopted by the adhering governments.

"Article 5.

The general assembly shall exercise supreme control over the international institute of agriculture. It shall approve the projects prepared by the permanent committee regarding the organization and internal workings of the institute. It shall fix the total amount of expenditures and audit and approve the accounts. It shall submit to the approval of the adhering governments modifications of any nature involving an increase in expenditure or an enlargement of the functions of the institute. It shall set the date for holding the sessions. It shall prepare its regulations. The presence at the general assemblies of delegates representing two-thirds of the adhering nations shall be required in order to render the deliberations valid.

"Article 6.

The executive power of the institute is intrusted to the permanent committee, which, under the direction and control of the general assembly, shall carry out the decisions of the latter and prepare propositions to submit to it.

{8}

"Article 7.

The permanent committee shall be composed of members designated by the respective governments. Each adhering nation shall be represented in the permanent committee by one member. However, the representation of one nation may be intrusted to a delegate of another adhering nation, provided that the

actual number of members shall not be less than fifteen. The conditions of voting in the permanent committee shall be the same as those indicated in article 3 for the general assemblies.

"Article 8.

The permanent committee shall elect from among its members for a period of three years a president and a vice-president, who may be reelected. It shall prepare its internal regulations, vote the budget of the institute within the limits of the funds placed at its disposal by the general assembly, and appoint and remove the officials and employees of its office. The general secretary of the permanent committee shall act as secretary' of the assembly.

"Article 9.

The institute, confining its operations within an international sphere, shall—

(a) Collect, study, and publish as promptly as possible statistical, technical, or economic information concerning farming, both vegetable and animal products, the commerce in agricultural products, and the prices prevailing in the various markets:

(b) Communicate to parties interested, also as promptly as possible, all the information just referred to;

(c) Indicate the wages paid for farm work;

(d) Make known the new diseases of vegetables which may appear in any part of the world, showing the territories infected, the progress of the disease, and, if possible, the remedies which are effective in combating them;

(e) Study questions concerning agricultural coöperation,

insurance, and credit in all their aspects; collect and publish information which might be useful in the various countries in the organization of works connected with agricultural coöperation, insurance, and credit;

(f) Submit to the approval of the governments, if there is occasion for it, measures for the protection of the common interests of farmers and for the improvement of their condition, after having utilized all the necessary sources of information, such as the wishes expressed by international or other agricultural congresses or congresses of sciences applied to agriculture, agricultural societies, academies, learned bodies, etc.

All questions concerning the economic interests, the legislation, and the administration of a particular nation shall be excluded from the consideration of the institute.

"Article 10.

The nations adhering to the institute shall be classed in five groups, according to the place which each of them thinks it ought to occupy. The number of votes which each nation shall have and the number of units of assessment shall be established according to the following gradations:

	Groups of nations.	Numbers of votes
	Units of assessment.	
	I	5
16		
	II	4
8		
	III	3
4		
	IV	2

In any event the contribution due per unit of assessment shall never exceed a maximum of 2,500 francs. As a temporary provision the assessment for the first two years shall not exceed 1,500 francs per unit. Colonies may, at the request of the nations to which they belong, be admitted to form part of the institute on the same conditions as the independent nations.

"Article 11.

The present convention shall be ratified and the ratifications shall be exchanged as soon as possible by depositing them with the Italian Government."

In communicating this Act of the Conference to the Government of the United States, the Italian Ambassador at Washington wrote August 9, 1905: "The final act of the conference was signed by the delegates under reservation of the approval of their respective governments, nor could it be otherwise. After this approval the convention, which constitutes the essential part of the act, shall, if approved (as the King's Government does not doubt it will be), assume the character of an obligation on the part of the nations which shall have adhered to it through the signature of plenipotentiaries appointed for the purpose."

On March 27, 1906, he was able to announce that "the States which were represented at the Conference of last year at Rome ... have now all sanctioned by the signature of their plenipotentiaries the Convention drafted at that Conference." As appears from a copy transmitted, the Convention had been signed by the plenipotentiaries of forty nations, including twelve American republics besides the United States. To this gratifying announcement the Ambassador from Italy added the

following:

"His Majesty the King at the council of January 28 last signed a decree, a few copies of which I have the honor to inclose, by which a royal commission is established, and whose precise duty is to carry into effect, as soon as it becomes operative, the convention which will soon be referred to the several contracting governments for ratification."

At the second general meeting of the Institute at Rome, December 12, 1909, more than 100 foreign delegates were present.

"His Majesty the King, desiring again to prove how much he has at heart the contemplated international institute, has ordered that the net income of the royal domains of Tombelo and Coltano, amounting yearly to 300,000 lire, shall be turned over to the above-mentioned royal commission from the 1st of July next until the day when, the international institute of agriculture being legally constituted, the administration and usufruct of the said domains shall, in accordance with the announcement made to the international conference at its session of June 6, 1905, be transferred to the institute itself.

"In obedience to His Majesty's interest, the royal commission has decided to apply the sum graciously placed at its disposal for the aforesaid period to the construction of a palace, where the international institute will have its headquarters, and which will therefore be solely due to the munificence of the sovereign. The new building that is to stand on the village Umberto I., near the Porta Pinciana, and will cover 10,000 square meters of public property, will, it is fully expected, be completed about the end of next year, which is the time when the permanent committee of the institute will likely be convened at Rome. This munificent act of His Majesty the King, whereby the erection of quarters worthy of the

international institute of agriculture is provided for, thus begins the execution of the convention of June 7, 1905."

{9}

Transmitting to the American Ambassador at Rome the President's ratification of the Convention, on the 11th of July, 1906, Secretary Root made known that Congress had appropriated \$4800 as the quota of the United States to the support of the International Institute of Agriculture for the fiscal year 1907, and \$8000 for the travelling expenses of the delegates to be appointed to the grand assembly of the Institute, and for the salary of one member of the permanent committee; and to this he added: "In pursuance of the authority thus conferred, Mr. David Lubin, of Sacramento, California, has been selected to represent this Government on the permanent committee, it being understood that he is willing to serve without salary."

Papers relating to the Foreign Relations of the United States, 1905 and 1906

AGUINALDO Y FAMY, Emilio.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901.

AHMED RIZA.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

ALASKA: A. D. 1903.

Settlement of the boundary question.
Dissatisfaction in Canada dissipated by better knowledge of the facts.

The Alaska boundary question (see in Volume VI. of this work, under ALASKA BOUNDARY QUESTION) was brought to a settlement in

1903 by an arrangement which submitted it to a Commission of six, three representing the United States and three acting for Great Britain and Canada. The American Commissioners were the Honorable Elihu Root, Secretary of War, and senators Henry C. Lodge and George Turner, of Massachusetts and the State of Washington respectively. The British and Canadian members were the Lord Chief Justice of England, Lord Alverstone, Sir Louis Jette, of Quebec, and A. B. Aylesworth, of Toronto, Ontario. The Commission, meeting in London, arrived at its decision in October, signing, on the 20th, an agreement on all the questions submitted. "By this award," said President Roosevelt, in his subsequent Message to Congress, "the right of the United States to the control of a continuous strip or border of the mainland shore, skirting all the tide-water inlets and sinuosities of the coast, is confirmed; the entrance to Portland Canal (concerning which legitimate doubt appeared) is defined as passing by Tongass Inlet and to the northwestward of Wales and Pearse islands: a line is drawn from the head of Portland Canal to the fifty-sixth degree of north latitude: and the interior border line of the strip is fixed by lines connecting certain mountain summits lying between Portland Canal and Mount St. Elias and running along the crest of the divide separating the coast slope from the inland watershed, at the only part of the frontier where the drainage ridge approaches the coast within the distance of ten marine leagues stipulated by the treaty as the extreme width of the strip around the heads of Lynn Canal and its branches. While the line so traced follows the provisional demarcation of 1878 at the crossing of the Stikine River, and that of 1899 at the summits of the White and Chilkoot passes, it runs much farther inland from the Klehine than the temporary line of the later *modus vivendi*, and leaves the entire mining district of the Porcupine River and Glacier Creek within the jurisdiction of the United States. The result is satisfactory

in every way. It is of great material advantage to our people in the Far Northwest. It has removed from the field of discussion and possible danger a question liable to become more acutely accentuated with each passing year. Finally it has furnished a signal proof of the fairness and good will with which two friendly nations can approach and determine issues involving national sovereignty, and by their nature incapable of submission to a third power for adjudication."

***Message of President Roosevelt,
December 7, 1903.***

In Canada the feeling was very different from that expressed by President Roosevelt. There, the dissatisfaction was intense. The two Canadian Commissioners had opposed the award, while Lord Alverstone cast his vote with the three Americans, which provoked the accusation that his decision had been given, at the instigation of the British Government, not judicially, but diplomatically, for the pleasing of the United States, at the sacrifice of Canadian interests and rights. The groundlessness of such defamatory suspicions became plain when Lord Alverstone made public the reasons for his vote. A recent historian of Canada ends his account of the matter with the following remarks:

"In vain did students and experts declare that they had felt before the tribunal met that Canada had, in very many respects, a weak case. It was pointed out that some of the Canadian surveys gave the line as the Americans claimed it, that Americans had by long occupation got a hold upon and a right of possession to various ports and sections, and that against this occupancy there had been no British protest whatever. Finally one distinguished citizen reminded the Canadians that if they had been allowed to select one man as sole arbitrator they would have been glad to accept Lord Alverstone. Lord Alverstone was really the one arbitrator and judge. Had he decided against the Americans, the case would

have been deadlocked for years. In time Canadians came to a more sober and reasonable attitude on the subject. They came to see that Lord Alverstone could not have been prejudiced and that his decision was really the only one that was fair and unbiased. Some came also to see that the American case was much the stronger, and that in this light the decision was a just one. But they were not and are not ready to believe that the whole scheme was anything but one contrived at Washington to get the contest settled to the advantage of the Americans."

***F. B. Tracy,
Tercentenary History of Canada,
Volume 3, page 1044
(Macmillan Co., New York, 1908).***

A full account of the arbitration with the correspondence preceding it, and the opinions written by the arbitrators severally, is given in the British Parliamentary

***Papers by Command
(United States, Number 1, 1904), Cd. 1877.***

ALASKA: A. D. 1906.

Convention to provide for final establishment of the boundary line.

Final proceedings for establishing the boundary line of Alaska were provided for in a Convention between the United States and Great Britain, signed April 21, 1906. The need and object of the Convention were set forth in its preamble as follows:

{10}

"Whereas by a treaty between the United States of America and His Majesty the Emperor of all the Russias, for the cession of the Russian possessions in North America to the United States, concluded March 30, 1867, the most northerly part of the

boundary line between the said Russian possessions and those of His Britannic Majesty, as established by the prior convention between Russia and Great Britain, of February 28/16 [sic] 1825, is defined as following the 141st degree of longitude west from Greenwich, beginning at the point of intersection of the said 141st degree of west longitude with a certain line drawn parallel with the coast, and thence continuing from the said point of intersection, upon the said meridian of the 141st degree in its prolongation as far as the Frozen Ocean.

"And whereas, the location of said meridian of the 141st degree of west longitude between the terminal points thereof defined in said treaty is dependent upon the scientific ascertainment of convenient points along the said meridian and the survey of the country intermediate between such points, involving no question of interpretation of the aforesaid treaties but merely the determination of such points and their connecting lines by the ordinary processes of observation and survey conducted by competent astronomers, engineers and surveyors;

"And whereas such determination has not hitherto been made by a joint survey as is requisite in order to give complete effect to said treaties."

To make such determination it was agreed that each Government should "appoint one Commissioner, with whom may be associated such surveyors, astronomers and other assistants as each Government may elect."

ALASKA: A. D. 1906.

Election of a delegate to Congress.

An Act to authorize the election of a Delegate to Congress from the Territory of Alaska was approved by the President May 7, 1906.

ALASKA COAL FIELDS.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

ALASKA-YUKON-PACIFIC EXPOSITION.

See (in this Volume)

SEATTLE: A. D. 1909.

ALBANIA: A. D. 1904.

Hostility to the Mürzsteg programme.

See (in this Volume)

TURKEY: A. D. 1903-1904.

ALBERT, King of Belgium.

See (in this Volume)

BELGIUM; A. D. 1909 (DECEMBER).

ALBERT, Marcellin:

Leader of the winegrowers revolt in France.

See (in this Volume)

FRANCE: A. D. 1907 (MAY-JULY).

ALBERTA:

Organized as a province of the Dominion of Canada.

See (in this Volume)

CANADA: A. D. 1905.

ALCOHOL PROBLEM.

ALCOHOL: Austria: A. D. 1903.

Resolution of the National Convention of the Social Democratic Party against alcoholic drinks.

At a convention of the Social Democracy of the Austrian Empire, held at Vienna, in November, 1903, Dr. Richard Frohlich read an elaborate report against the use of intoxicating liquors, concluding with an earnest appeal, in these words; "We want to create a new social order: to give the world a new face! To lay the foundations for the new society is the task of political and industrial organization—and there is no greater deterrent to the accomplishment of that task than alcohol. In building the new mansion of the future we think also of the men who are to dwell in it. Does it not bring a blush of shame to our cheeks merely to imagine that the men of the future society will be contented because they are *intoxicated*! Contentment in that new order will arise from a sound brain and the satisfaction of the rational desires which proceed from it. We have enough retarding forces to contend with in our struggle for this ideal of the future generation. One such force we are able to-day to overcome if we will. That is alcoholism, the last refuge of philistinism and stupid conservatism. If we really want the new world, we must provide the new men to make it. The program of total abstinence does not set new ideals for us, but it gives us a new weapon, sharp and effective for the conquest of our old ideals. The responsibility is upon us to use this weapon. Let us do it!"

In response, the Convention adopted the following resolution:

"The convention of the party recognizes in alcohol a serious detriment to the physical and mental power of the working man, and a great hindrance to all efforts of organization in the social democracy. Every means should be employed to remove the evils which have come from it.

"The first aim in this struggle must be the economic betterment of the proletariat. And that must be accomplished by a clear teaching of the effects of alcohol, and by the removal of the common toleration of drinking.

"The convention of the party, therefore, recommends that all the party groups and brotherhoods lend their support to the crusade against alcohol, and declares that the first step in this direction must be the abolishment of compulsory drinking in all of the meetings of the organization. Members of the party who are converted to total abstinence are recommended to form total abstinence clubs, to continue the propaganda and to see to it that their members are true to the political and economic duties of the party organization."

ALCOHOL: CANADA: A. D. 1906-1908.

The Canada Temperance Act.

Under what was known as the Scott Act, of 1878, the privilege of local option had been given to counties and cities in Canada, and had been brought into exercise by nine cities and seventy-three counties, which prohibited the sale of intoxicating liquors within their limits; but in most of these the supporters of the law were gradually overcome and the prohibition removed. In all the provinces except Quebec, a referendum vote taken in 1898 showed majorities in favor of a Dominion Prohibition Law; but the vote cast was so light and the adverse majorities in cities was so large that the government did not feel warranted in bringing forward a Bill. In 1906, however, the demand for local option in the matter of permitting alcoholic liquors to be sold had become strong enough to extort from Parliament the desired legislation. As amended in 1908, Part II. of this Canada Temperance Act (Part I. having prescribed the proceedings for bringing Part II. into force) provides that "from the day on which this Part comes into force and takes effect in any county or city, and for so long thereafter as, and while the same continues or is

in force therein, no person shall, except as in this Part specially provided, by himself, his clerk, servant or agent,—
{11}

- (a) expose or keep for sale, within such county or city, any intoxicating liquor; or,
- (b) directly or indirectly on any pretense or upon any device, within any such county or city, sell or barter, or, in consideration of the purchase of any other property, give to any other person any intoxicating liquor; or,
- (c) send, ship, bring or carry or cause to be sent, shipped, brought, or carried to or into any such county or city, any intoxicating liquor; or,
- (d) deliver to any consignee or other person, or store, warehouse, or keep for delivery, any intoxicating liquor so sent, shipped, brought or carried."

But these last two subsections are not to "apply to any intoxicating liquor sent, shipped, brought or carried to any person or persons for his or their personal or family use, except it be so sent, shipped, brought or carried to be paid for in such county or city to the person delivering the same, his clerk, servant, or agent, or his master or principal, if the person delivering it is himself a servant or agent."

To bring Part II. of the Act into force in any county or city, not less than one-fourth of the total number of electors therein must petition the Governor in Council for a poll of votes on the question, and when the vote is taken there must be an affirmative majority; failing which no similar petition can be put to vote in the same community for three years.

On the 2d of May, 1909, the following announcement of the operation of the law in the province of Ontario was made: "May Day, 1909, will long be remembered by the advocates of local option in Ontario. One hundred and forty-two bars passed out of existence yesterday, and of the 807 municipalities in the province 334 are now without a single license in force. The

Toronto commissioners have cut off 40 licenses, leaving only 110 in a city of nearly 400,000 people."

ALCOHOL:

Casual occurrences of saloon suppression, showing what goes with it.

Communities in which the liquor traffic is ordinarily favored are sometimes compelled by exigencies of circumstance to suppress it temporarily, and are forced then to see how much of crime and disorder goes with it. During the weeks in which military authority cleared saloons from San Francisco, after the calamity of 1906, every observer made note of the conspicuous freedom of the city "from all kinds of violence and crime," though the whole organization of life was upset. One trustworthy journal reported conditions six months after the calamity as follows: "During the two months and a half after April 18 San Francisco was probably the most orderly large city in the United States. Violence and crime were practically unknown. During that time the saloons and liquor stores of the city were closed tight. About the middle of July the saloons were permitted to open again. This action of the city government was accompanied by the expectation on the part of many citizens of an outbreak of violence and disorder. Clergymen, and it is said even the police, advised men and women to carry firearms for their own protection. For the past three months San Francisco has been living under a reign of m. In eighty days eighty-three murders, robberies, and assaults were registered on the police records. A despatch to Ridgway's, the new weekly periodical, reports the sale in San Francisco during one week in October of over six thousand revolvers."

When Stockholm, in the summer of 1909, was undergoing the trials of the great general strike, and by general consent of all concerned the sale of liquors was stopped, the same report went out, that magistrates and police had little to do. And

that is the standing account of things from the Panama Canal Zone, about which an English visitor, Sir Harry Johnston, wrote in April, 1909:

"The whole of the canal zone (ten miles on either side of the canal banks) is 'teetotal,' except in the actual towns of Panama and Colon. No alcohol is sold by the Canal Commission at its hotels or boarding-houses. And the general result of these stern measures—the improvement in health and the absence of crime—amply justifies this anti-alcohol policy. ... There is singularly little serious crime throughout the canal zone. One has the sensation of being perfectly safe anywhere at any time of day or night. Petty dishonesty among the lower classes is common, especially at the railway stations, where one is liable to lose small articles of baggage if they are left unguarded. Panama in this respect is worse than the other towns of the Isthmus, new or old. But there is no open shock to any one's prejudices or sentiments in the way of flagrant immorality (as at New Orleans, for example)."

So easily can communities solve half, at least, of their most troublesome problems, and cure half, at least, of their worst social maladies, if they will!

ALCOHOL: ENGLAND: A. D. 1902 .

Passage of an amended licensing law.

A moderate reform.

A Licensing Bill, moderately in the interest of temperance reform, was discussed and passed in Parliament during the summer of 1902. It made publicans more strictly responsible for drunkenness incurred on their premises; strengthened the prohibition of liquor-selling to habitual drunkards; improved measures for the suppression of public drunkenness; subjected licenses to tradesmen for the sale of liquors off their premises to the unqualified discretion of justices, and facilitated the separation of husbands and wives from a

drunken mate.

ALCOHOL: A. D. 1904.

Passing of a new Licensing Bill, providing compensation for the withdrawal of licenses on grounds of public policy.

An agitation in Great Britain which almost equalled for a time that produced in the same period by Mr. Chamberlain's campaign for a preferential tariff was stirred up by a new Licensing Bill, introduced as a Government measure on the 20th of April, 1904. The bill provided for compensation to be made, at the expense of the liquor trade, for the taking of a license away from any public house, on grounds of public policy, no matter how briefly the license had been held. A fund for the compensations was to be raised by assessment on all engaged in the trade. Authority to refuse the renewal or transfer of licenses on any ground other than ill conduct or character was withdrawn from local magistrates and exercised by the courts of quarter sessions (composed of the justices of the peace in each county) only. When a public house was thought to be superfluous by local magistrates they were required to report the case to quarter sessions, where a hearing upon it would be given.

{12}

If the Bench of quarter sessions decided to extinguish the license, it must specify the grounds of its decision in writing, and award a compensation, based on the estimated difference between the value of the licensed premises and the value of the same premises without a license. If no agreement on this basis could be reached, the Inland Revenue Commissioners should determine the sum.

The Bill was advocated in the interest of temperance, as being calculated to reduce the number of public houses, and to raise their character. Mr. Balfour upheld it as "a great temperance measure." It should be the aim of Government, he argued, to "encourage respectable persons to keep public houses, and with

that object they should make the trade secure." On the other side it was opposed with exceeding bitterness as a measure that had the backing and was in the interest of the brewers and the whole liquor trade; that created vested interests in the trade, rooting it to a new depth; that tended to add value to the low class of public houses, and obstructed future temperance reform. Repeated attempts to introduce a limit of years after which the awarding of compensation for the withdrawal of license would cease were defeated, and the Bill passed both Houses in August, substantially as it came into Parliament four months before.

ALCOHOL: A. D. 1907.

Drink in its relation to crime.

Testimony of judges.

"The following is from a newspaper report of a speech by Judge Rentoul, delivered in the Guildhall, Cambridge, on the 15th of October, 1907. He happened to be one of the judges of the chief criminal courts of this country, and he said to them on that platform that 90 per cent. of the cases that came to the Central Criminal Court of England came directly through drink. The late Lord Brampton, formerly Sir Henry Hawkins, perhaps the greatest criminal judge during the past century, had also put the figures at 90 per cent. Lord Coleridge, speaking at one Assizes, said, 'Every single case in my present list comes from the use of strong drink.' 'If it were not,' said his Honour, 'for alcohol, three fourths of our criminal courts would be closed in this country and closed forever.'"

H. A. Giles,

Opium and Alcohol in China

(Nineteenth Century, December, 1907).

ALCOHOL: A. D. 1908.

Passage of a new Licensing Bill by the Commons and its rejection by the Lords.

Nothing contributed more to the defeat of the Conservative Ministry in the British Parliamentary elections of 1905 than the moral repugnance of the country to the Licensing Bill of 1904 (described above); and the Liberal Government came to power with no commission from the people more positive than was in the demand for an amendment of that law. In 1908 it brought into Parliament and passed through the House of Commons a Bill which answered the demand, asserting the right and the need and the power in Government to put limitations on the granting of licenses for the sale of intoxicating liquors, without treating them as vested interests under a sacred guard. The limitation, in fact, was made definite and mandatory by the first provision of the Bill, which declared; "Licensing justices shall, in accordance with this Act, reduce the number of on-licenses in their district so that at the end of a period of fourteen years from the fifth day of April nineteen hundred and nine the number of those licenses in any rural parish or urban area in their district shall not exceed the scale set out in the First Schedule to this Act as applied to that parish or area under the provisions of that schedule." The schedule referred to was as follows:

Persons per acre.

2 or less

Exceeding 2 but not exceeding 25

Exceeding 25 but not exceeding 50

Exceeding 50 but not exceeding 75

Exceeding 75 but not exceeding 100

Exceeding 100 but not exceeding 200

Exceeding 200

Number of on-licenses.

1 to 400 persons or part of 400
1 to 500 persons or part of 500
1 to 600 persons or part of 600
1 to 700 persons or part of 700
1 to 800 persons or part of 800
1 to 900 persons or part of 900
1 to 1,000 persons or part of 1,000

The Bill provided further for local option in the matter of granting new licenses, permitting a majority of voters in any licensing district to prohibit further grants; and introduced other changes of law in the interest of temperance, but not going to any extreme. When the measure went to the House of Lords it suffered there the same fate that had been meted out to the Education Bill of 1906. How serious an issue between the Commons and the Lords was raised by that occurrence is intimated in one passage of a speech made by the Liberal Prime Minister, Mr. Asquith, in July, 1909. He was reviewing some of the significant incidents of recent political history, and when he came to the Licensing Bill there was more feeling in his remarks than he had shown before. "That," he said, "was a Bill, as you know, which was debated for weeks and for months and passed through the House of Commons with sustained and unexampled majorities. When it reached 'another place,' what was its fate? It was rejected without even any pretence of consideration of its details, it was rejected in pursuance of a preconcerted party resolution, it was rejected with every circumstance of contumely and contempt. I will not pause to dwell upon, certainly not to praise, the provisions of the Licensing Bill, which, I may say, was to some extent my own handiwork. But in regard to its rejection I will say that it has made two things—that rejection and the circumstances preceding, following, and attending it have made two things—abundantly plain. The first is that it has ruined the prospects of any really effective temperance reform on anything like a large and comprehensive scale during the

lifetime of the present Parliament. I will say next the circumstances of that rejection have brought into greater prominence than ever before the fact that our constitutional system is not, or at least that it can be made not to be, the embodiment, but the caricature of a representative and responsible Government. And the question of the relations between the two Houses of Parliament must be for us Liberals, at any rate, as I described it at the time, the dominant issue in our programme."

{13}

The requirement of the Act of 1904 that compensation should be paid to every license-holder whose license was withdrawn for public reasons, put so narrow a limit on the reductions made, that the 138,011 licensed houses in England and Wales in 1904 had only been diminished by about 3000 in 1908; whereas the country demanded a great cutting down of the excessive number.

ALCOHOL: A. D. 1908.

Provisions of The Children Act for the Protection of Children.

See (in this Volume)

CHILDREN, UNDER THE LAW: AS DEPENDENTS, &C.

ALCOHOL: A. D. 1909.

Taxation of the Liquor Trade proposed in the Budget.

See (in this Volume)

ENGLAND: A. D. 1909 (APRIL-DECEMBER).

ALCOHOL: A. D. 1909.

The Decreased Consumption of Whiskey caused by increased tax.

Speaking in Parliament of the increased whiskey tax in his Budget, on the 29th of October, some months after it had gone into effect and its yield was being shown, the Chancellor of

the Exchequer, Mr. Lloyd-George, acknowledged that he had greatly overestimated the revenue it would produce. He said: "The whole point was to what extent would an addition of a halfpenny a glass deter a man from taking his usual share of drink. I could no more estimate that than any other member of the House. I made a very liberal allowance for decrease in consumption, so liberal that nobody either in or out of the House agreed with it. Many said it was absurd. ... I assumed that people who could afford it would not regard the halfpenny at all; that they would buy exactly the same quantity of whisky as before. The working classes I assumed would probably purchase a smaller quantity. Supposing a man says, I spend 2s. 6d. on drink; he would not spend more; therefore he would consume less.

"I made a rough calculation upon such information as I had how that would affect the consumption of whisky as a whole, but I find the change has gone beyond that, and my information now is not merely that there are thousands of people who drink a percentage which is, in proportion to the increase, less, but some of them drop it altogether. Some of them are barely drinking half what they were before. Altogether a most extraordinary effect has been produced upon the habits of the people. I am not here to apologize for that at all. In some districts, I am told, the drinking of spirits has gone down by 70 percent, in Ireland, I think. I hear that there are districts in Scotland where it has gone down 50 per cent. I have a communication in regard to the whisky distillers of Glasgow saying that the decrease in Glasgow during September has been 36 per cent.

"People have not even been driven to the consumption of beer. It is really almost unaccountable. People have not been driven from one form of alcohol to another, but have been driven from alcohol altogether. The fact is very extraordinary, and has gone beyond anything I have anticipated. ... Our anticipations now are that the consumption of spirits, both of foreign and

home manufacture, will go down by something between 20 and 25 per cent. That means that a smaller quantity of spirits will be consumed in this country during this year by eight or nine million gallons.”

ALCOHOL: A. D. 1909.

Organization of "The True Temperance Association."
Its aim and appeal.

Under the name of "The True Temperance Association," a London organization headed by Lord Halsbury made the following appeal to the English public, in May, 1909: "Let us take what is to hand—the publichouse; the regulated refreshment house of the people. Let us transform that out of its present condition of a mere drink-shop into a house of general, reasonable, and reputable entertainment—a place where there will be other things to consume besides beer and whisky, and other forms of recreation besides mere drink. We should imitate the model of the Continental café and German *bierhaus*; the White City and other exhibitions have shown us that they would not be exotics in this country; and those exhibitions with their wonderful record of sobriety also show us that there is every ground to expect that England, with transformed publichouses, would be as sober, and withal as bright as are Continental countries."

ALCOHOL: A. D. 1900:

England, United States, France, and Germany.
Comparative statement of the consumption of alcoholic drink.

"The consumption of alcoholic drink in the above countries, per ten of population, was in the year 1900 as follows:

Drink-consumption per 10 of population.

Country.	Beer, spirits,	Beer.
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Spirits.		Wine.		and wine.	
Gallons.		Gallons.		Gallons.	
20	France		336		62
		254			
11	United Kingdom		332		317
		4			
19	Germany		309		275
		15			
11	United States		147		133
		3			

"Some years ago, the late P. G. Hamerton in his book *French and English* mentioned the increase of drinking in France, and we see that French drink-consumption per head is now greater than British consumption. The French drink more spirits, more wine, and have a larger total consumption per head than any of these three other nations.

"The most striking fact in the above statement is the low drink-consumption per head in the United States. The American total per head is less than one-half of the total consumption per head in any of the three other countries. The superior sobriety of the American workman as compared with the Englishman has often been noticed, and observation in social grades higher than that of the artizan tends to show that American superiority in this respect is a general superiority not confined to workmen only. The developed alertness and prompt energy of the American may, it is quite likely, be due in some part to this relative abstinence from alcoholic drink which is now illustrated.

"Looking back over the fifteen years 1886-1900, for the purpose of observing the increase or the decrease in

drink-consumption per head of population, the following results have been obtained;—

Country.	Average yearly drink-	
consumption,	per head of population,	
during		

	1886-1890.	1891-1895.
1890-1900.		

	Gallons.	Gallons.
Gallons.		

France	26.5	31.5
32.3		

United Kingdom.	29.4	31.1
33.1		

Germany	24.4	26.6
29.9		

United States	11.8	14.3
14.2		

The drink-consumption per	The drink-
consumption per	
head during 1886-1890	head during
1896-1900 was	
being taken at 100	
per cent.	per
cent.	

France	100	122
United Kingdom.	100	113
Germany	100	123
United States	100	120

{14}

"In each country the drink-consumption per head of population has increased since 1886-1890, and, with the exception of the United States, there has been an increase during each five-yearly period observed,

"Comparing the period 1896-1900 with the period 1886-1890, we see that the percentage of increase per head of population in drink-consumption was smaller in the United Kingdom than in any of the three other countries. Germany and France have had the largest relative increases per head of population.

"In the United States, the increase of 20 per cent in the drink-consumption per head of population is due to an increase in beer-drinking—the consumption per head of wine and of spirits has declined."

J. H. Schooling,

Drink: in England, the United States, France, and Germany
(Fortnightly Review, January, 1902).

ALCOHOL: France: A. D. 1907.

Revolt of the Wine Growers of Southern France against wine adulteration.

See (in this Volume)

FRANCE: A. D. 1907 (MAY-JULY).

ALCOHOL: Germany:

Temperance requisite in railway employees.

The dangers to the traveling public that are attendant on the use of alcoholic stimulants by railway employees were discussed very seriously not long since by a writer in the ***Deutsche Monatsschrift***. "The constantly growing demands

upon transit service for safety and speed," he observed, "call for an increasingly higher efficiency of the personnel, not only as regards prudence, judgment, decision, and clearheadedness, but a sense of duty, all which qualities are, it has been proved, vitiated by nothing so readily and to such a degree as by indulgence in alcoholic drinks. The chief danger, moreover, consists not so much in excessive drink resulting in drunkenness, which is easily recognized, as in the more moderate but habitual use of liquor, which is harder to control, and the after-effects of heavy drinking.

Scientific investigation has established the fact that even a moderate use of alcoholic beverages impairs the acuteness of sight and hearing, including the power of distinguishing colors. Most of the violations of discipline and duty in the German transportation service are due to indulgence in drink, besides leading to misery and want in the home."

The writer alludes to an association of German railway officials started by himself, whose object it is to enlighten the public regarding the worthlessness of alcoholic drinks as a tonic and how they may be dispensed with as a means of refreshment. This society, he states, has been most encouragingly successful in its efforts. He adds the important statement that the Prussian Government, owing to recent serious accidents, has issued an order prohibiting all railway employees from taking any beverage containing alcohol while on duty.

ALCOHOL: A. D. 1902.

Resolution of Socialist Congress.

The subject in Prussian schools.

The German Socialist Congress, sitting at Munich in September, 1902, adopted a resolution which warned the working classes against the dangers from immoderate indulgence in alcoholic drinks, but declined to make total abstinence a condition of party membership. In the previous March the Prussian minister

of education had given instructions to the school authorities mm of the kingdom which aimed at the enlightening of the people as to the deleterious effects, both physical and economical, of an excessive use of alcoholic liquors. The same subject had been agitated in the Prussian parliament, and there was discussion of measures of more strict regulation of public houses.

ALCOHOL:

International Congress on Alcoholism.

For twenty-four years an International Congress on Alcoholism has held biennial meetings in different European cities, beginning at Antwerp in 1885, steadily demonstrating a growth of opposition—especially of scientific opposition—even in Continental Europe, to the use of alcoholic liquors. The meeting of 1905 was at Budapest; that of 1907 at Stockholm; that of 1909 at London. The delegates to the latter numbered about 1300, coming from nearly every European country, and from the United States, Canada, and South Africa. Of the strong character of the discussions at the London meeting the New York *Evening Post* said after its adjournment:

"Men and women from every country, representing varying conditions of society, offered evidence tending to show, by actual figures of loss, the bad effects of drinking. From the standpoint of education, science, medicine, society, economics, efficiency, and law, the speakers all reached the same conclusion, bringing strong testimony in support. Efficiency was the keynote of papers representing public service on the part of the post office, the railroad, the navy, and the army of Great Britain."

An interesting figure at the Congress, it was said by an American newspaper correspondent, was Judge William J. Pollard, of St. Louis, who went as a representative of the United States Government, and who was known widely as the

originator of the pledge instead of prison method of dealing with drunkards. When he spoke on that subject he was given a double allowance of time, on the motion of a delegate from France, and, although under the constitution of the congress no resolution could be put, a declaration in favor of the plan was signed by practically every delegate in the hall. The declaration reads as follows:

"We, the undersigned members and delegates attending the International Congress on Alcoholism assembled in Loudon, July, 1909, desire to record our gratification at the recognition in statute law by Great Britain, Vermont, United States of America, and Victoria (Australia) of the principle of reforming drunkards by the probation on pledge method, commonly known as the Pollard plan. The possibilities of this wise and beneficent policy are so great that we desire to commend its adoption throughout the world."

"Judge Pollard's plan, established in the Saint Louis police court nine years ago, consists in giving the drunkards a chance of reform. Instead of sentencing them to prison or fining them, Judge Pollard requires persons charged before him with drunkenness to take the pledge. If they do so he suspends sentence on them, and if the pledge is kept for a certain period they hear no more about the matter. If it is broken the fine or sentence is enforced."

One of the results of the Congress was the organization of a "World's Prohibition Confederation," "to better amalgamate the forces in various countries working along their respective lines towards the one common aim of the total suppression of the liquor traffic."

{15}

Two sessions were held and the Conference finally decided by unanimous vote upon the following outline of the purposes and

methods of the new Confederation:

"(1) Name—

The name of this association shall be 'The International Prohibition Confederation (Confederation Prohibitioniste Internationale—Internationaler Verbaud fuer Alkoholverbot).'

"(2) Object—

(a) To amalgamate the forces in various countries working along their respective lines towards the one common aim of the total suppression of the liquor traffic,

(b) To obtain notes of progress, information, and news from all parts of the world, and send such information to all organizations joining the Confederation and other applicants.

"(3) Membership—

The membership shall consist of representatives of temperance organizations in all countries approving of the objects and such officers as may be elected by the Confederation.

"(4) Finances—

The financial support shall be gained from such contributions as the various affiliated societies and individual associate members may subscribe."

ALCOHOL: New Zealand: A. D. 1896-1908.

Twelve years of Local Option.

Increasing majorities against the liquor traffic.

The vote of women.

Under the operation of a local option law since 1896, New Zealand has been steadily narrowing the liquor traffic, with what seems to be a fair prospect of extinguishing it entirely. The law provides for the taking of a vote in each parliamentary electoral district once in three years on three propositions, as follows:

"1. That the number of licensed houses existing in the district shall continue.

"2. That the number shall be reduced.

"3. That no licenses whatever shall be granted.

"Electors may vote for one of these proposals or for two of them. The prohibitionists strike out the top line, and thus vote for a reduction of the number of licenses, and also for total prohibition in their district. Those who oppose prohibition usually strike out the second and third lines, so as to vote for the continuance of existing licensed houses; while there are others, again, who strike out the first and third issues, with a view simply to a reduction in the number of licensed houses. An absolute majority of the votes carries reduction; but it requires a three-fifths majority to carry 'no-license.' If reduction is carried the licensing committee must then reduce the publicans' licenses in the district by not less than 5 per cent. or more than 25 per cent, of the total number existing."

The local option vote has now been taken five times, with a slow but steady increase of majorities given against the liquor traffic, either to restrict or to end it,—as the following table shows:

	Continuance.	Reduction.	No-license.
Valid votes.			
1896	139,500	94,500	98,300
259,800			
1899	142,400	107,700	118,500
281,800			
1902	148,400	132,200	151,500

318,800			
1905	182,800	151,000	198,700
396,400			
1908	186,300	161,800	209,100
410,100			

The figures here entered of the vote in 1908 are not official, but are said to be close to accuracy.

The New Zealand correspondent of the London Times, from whose report the above is taken, adds these particulars: "The result of the local option poll taken in December, 1905, was to carry 'no license' in three new districts and reduction in four districts. In 36 of the other districts a majority of the votes polled was for 'no license,' though the three-fifths majority necessary to carry the proposal was not obtained. The results of the recent poll were very striking. In six new districts 'no-license' was carried, and in some others 'no-license' and 'reduction' were only lost by narrow margins. The rapid advance made by the 'no license' party is certainly remarkable.

"While the proportion of votes cast for continuance is steadily declining, the proportion for 'no-license' is increasing at an accelerated rate. Already there is a bare majority of the total votes in favour of prohibition; while if we had national instead of local option the chances are that in a comparatively short period the necessary three-fifths majority to secure total prohibition in the country might be obtained. There are now indications that the 'no-license' party will make a bold bid, not only for a bare majority vote on the no-license issue, but also for national option. In this event they will alienate the sympathies of the great majority of the moderates who now vote with them, so that the 'no-license' cause may receive, at least, a temporary check.

"Three important suggestions have been made to save the trade—viz., reform from within, State control, and municipalization. Judging from past experience, the first idea seems hopeless. The trade has had its lessons, but has not taken sufficient heed. State control will scarcely be tolerated, since most people realize that the liquor trade in the hands of a Government might be a dangerous political engine, besides which there would always be the temptation ever present to a Government to use it for revenue purposes. Without very necessary reform from within, therefore, the only chance for the liquor trade would seem to lie in the direction of municipalization. Under municipal control, with the abolition of the open bar in favour of the cafe system, with better liquor, and with a thorough system of inspection and analysis, the liquor trade in New Zealand might obtain a new lease of life. Under the present system there is every indication that its doom is sealed."

The importance of the vote of women, on this question especially, appears in the following statements: "In 1902, 138,565 women, or 74.52 per cent. of those on the rolls, voted; in 1905, 175,046, or 82.23 per cent. of those on the rolls, voted. The proportion of females to males voting at successive general elections also shows a gradual increase from 69.57 per cent. in 1893 to 78.99 in 1905. Then there is the gradual increase in the proportion of females to males in the population of a young country to be considered. At the foundation of the colonies the males, naturally, largely outnumbered the females; but eventually the sexes will become more nearly equal in number. Thus, while in 1871 the proportion of females to males in the colony was only 70.52, in 1906 it was 88.65. Furthermore, women are taking a keener interest than ever in politics. They are beginning to appreciate the franchise and to exercise it intelligently in ever-increasing numbers."

The warning and alarming effect of the local option vote of December, 1908, on the New Zealand liquor dealers was made apparent by their action taken soon after, as reported in the following Press despatch from Wellington, January 18, 1909:

"As a result of the large 'moderate' vote cast at the recent poll on the question of total prohibition or reduction of facilities for obtaining drink, it was unanimously resolved to-day, at a meeting of the Auckland Brewers and Licensed Victuallers' Association, representing all the wholesale and nearly every member of the retail trade, to abolish barmaids, to abolish private bars, and to raise the age-limit of youths who may be supplied with liquor from 18 to 20. No woman will be supplied with liquor for consumption on the premises unless she is boarding in the house.

"In an interview, the Mayor of Auckland, who is himself a brewer, stated that since the trade has to ask the public every three years for the continuance of its existence, it is necessary for it to be conducted on lines approved by the public at large."

ALCOHOL: United States: A. D. 1904-1909.

The progress of State, County, and Town Prohibition in the five years.

The following exhibit of the status of state and local prohibition in every State of the United States, on the 1st of November, 1909, compared with the same in 1904, is reproduced, with permission, from the latest leaflet published at the time of this writing (January 1, 1910) by the Associated Prohibition Press, located at 92 La Salle Street, Chicago:

"The record at Prohibition National Headquarters, Chicago, shows that during the past four years the amount of Prohibition territory has been doubled and 20,000,000 people

added to those living in Prohibition cities, counties and states, making an aggregate of over 40,000,000 now by their own choice in saloon-free districts.

"The figures below show that nearly two-thirds of the territory and nearly one-half of the people are under Prohibition protection:

"17,000,000 people in the South under Prohibition in 1904.

"25,000,000 people in the South under Prohibition in 1909.

"There are to-day 375 Prohibition cities in the United States, having a population of over 5,000 each, with a total population of more than three million and a half.

"In 1904 there were scarcely 100 Prohibition cities of 5,000 or over; there are now 90 Prohibition cities of 10,000 or over. There are fifty-five industrial centers in fourteen different states of 20,000 population and over, with an aggregate of 2,000,000 population, now under Prohibition law.

"The Prohibition party is organized and at work in practically every state in the Union.

"In 1904 the National Liquor League of the United States was organized at Cincinnati, January 7th and 8th, to put the 'lid' on the apparent beginnings of a Prohibition renaissance. Five years of the 'National Liquor League of the United States' has resulted in 20,000,000 people being added to the Prohibition population of the country; 250 new Prohibition cities; 6 new Prohibition states, hundreds of new Prohibition counties, and thousands of new Prohibition towns and villages in all the rest of the country.

"One of the most striking contrasts between 1904 and 1909 is seen in the transformation which has been wrought in the

attitude of the daily and secular press towards the Prohibition question. Since 1904 leading daily papers in all parts of the country have begun to exclude liquor advertising from their columns.

"The daily press of America is to-day giving ten times more attention to and far more friendly treatment of the Prohibition issue than was the case in 1904.

"On November 1st, 1909, the record of state and local Prohibition territory in the United States, at National Prohibition Headquarters, was as follows:

The Situation by States.

State.	1904.	November 1, 1909.
Alabama	20 Prohibition counties.	State enforcement
Prohibition;		
legislation	11 Dispensary.	enacted by
Legislature,	35 License.	August, 1909.
business prospers,		Data shows
decreasing.		crime
on Constitutional		Popular vote
November 29, 1909.		Prohibition

Arizona	No Prohibition	New county
Prohibition law bare	territory.	two-thirds
requirement.	Two-thirds	Four-fifths of
Territory "dry"	majority required.	in 12 months
is prediction.		
Arkansas	44 Prohibition	57 Prohibition
counties.	counties.	State certain
in next	29 License.	Legislature.
	2 Partially	
	license.	
California	175 Prohibition	250 "dry"
towns.	towns.	Sentiment
rapidly growing		for State
Prohibition.		
Colorado	Few Prohibition towns.	100
towns "dry."	No local-option law.	Stricter
law enforcement.		

Prohibition sentiment growing.

Connecticut	Half of State	Large
increase in no-license	local Prohibition.	vote.
Legislature passed		several
important restrictive		measures.

Delaware	Few small	Two-thirds
of State Prohibition.	Prohibition towns.	

{17}

District of		
Columbia	Apathy dominant.	New high
license law.		Sentiment
for Prohibition		organizing.
		Stricter
enforcement.		

Florida	30 Prohibition	35 counties
"dry."	counties.	Popular
vote State		Prohibition

November, 1910.

Georgia	104 Prohibition	State
Prohibition.		
counties out		Supporting
sentiment grows.		
of 134.		Atlanta
elects law-enforcement		
Large cities		Mayor.
Crime largely decreasing.		
all license.		
Idaho	No Prohibition	County law
passed.		
	territory.	Seven vote
"dry."		
	"Wide-open" State.	State
Prohibition campaign on.		
Illinois	8 Prohibition	36 "dry"
counties.		
	counties.	2500 "dry"
towns.		
	500 Prohibition	23 "dry"
cities.		
	towns.	No license
fight on in Chicago.		
	"Wide open" Sunday.	
Indiana	140 Prohibition	70 Counties
"dry."		

townships.
Prohibition majority 67,025.
fourths of the
population under Prohibition.
for State Prohibition
active;
or 65 per cent of
population in "dry"
cities (5,000 and over).

"Net
Three-
State
Sentiment
very
1,780,839
State
territory;
32 "dry"

Iowa 25 License counties.
for State Prohibition
Lax enforcement
developing great enthusiasm.
of law.

Campaign

Kansas STATE PROHIBITION.
Legislature passed 1909
Lax enforcement.
additions to
Law enforcement
law.

important

State

crusade at Kansas

The sale

of alcohol in any		
City, Kan.,		form
absolutely prohibited.		
a "fizzle."		Strict
enforcement the rule.		
Kentucky	47 Prohibition	96
Prohibition counties;		
counties.		1,541,613
or 66 per cent of		
Legislature defeated		total
population in "dry"		
very moderate		
territory.		
local option bill.		State
Prohibition campaign		launched
in earnest.		
Louisiana	20 Prohibition	
Prohibition sentiment grows.		
parishes out of 54.		Local
Prohibition proves		
		notable
success in		
		33 "dry"
parishes.		
Maine	STATE PROHIBITION.	Move for
resubmission		
Lax enforcement.		

emphatically defeated

Legislature.

for law enforcement

steadily.

Maryland 15 Prohibition
locals gains.

counties.

license

Baltimore.

Massachusetts. 250 Prohibition
local gains.

towns and cities.

five thousand

majority against license.

campaign for State

Prohibition;

"dry" out of 321;

"dry" out of 33;

State majority

by State

Sentiment

growing

Some

New high-

law for

Some

Twenty-

State

Definite

261 towns

20 cities

26,297

license.		against
Michigan 2 Prohibition		Thirty
Prohibition counties.		Important
counties.		
new restrictive		
400 Prohibition towns.		
legislation took effect		September
1, 1909.		State
Prohibition campaign on.		
Minnesota 400 Prohibition		1,611
"dry" towns.		State
towns.		
wide union		of
Prohibition forces.		
Mississippi 65 Prohibition		
Enforcement of State-wide		law
counties.		
passed February, 1908.		
Legislature defeated		Governor
Noel a vigorous		
State Prohibition		
prohibitionist.		
amendment.		

Missouri	3 Prohibition	77 'dry'
counties.		
	counties 1905.	State
Prohibition		campaign
definitely under way.		Vote
November, 1910.		
Montana	No Prohibition	
Prohibition sentiment		growing
territory.		
with notable increase		of party
vote in several		
districts.		
Nebraska	200 Prohibition	26
Prohibition counties.		
	towns.	Many
local gains.		State
capital Lincoln, 50,000,		voted
"dry."		State
Prohibition campaign on;		48 "dry"
county seats.		

Nevada No Prohibition Sentiment
against gambling and
 territory.
liquor selling growing.
Prohibition of gambling State
October 1, 1910. effective

New Hampshire. State Prohibition 183 "dry"
towns.
 repealed 1903.

New Jersey "Wide-open" State. Whole
year of 1909 filled with
agitation. Law-
defying Atlantic City ring
provokes widespread public
sentiment. County
option expected.

{18}

New Mexico Nothing.
Prohibition forces very active

at legislative

session. Strong sentiment for

State

Prohibition growing.

New York 285 Prohibition towns. Few

changes. Concerted State

Cities all license wide

campaign on in 300 local

by State law.

Prohibition contests.

North Carolina. Local-option passed 1903.

Success of State

Raleigh, capital, had

Prohibition shown by

dispensary run by church

official statistics.

deacons.

In force January, 1908.

North Dakota STATE PROHIBITION.

Same law. Sentiment

Lax enforcement in

back of Prohibition

some sections.

law overwhelming

throughout State.

Strong supplementary

legislation passed 1909.

Ohio First State 61
counties "dry."

local-option law
Campaigns in largest
passed.
cities, and State

Prohibition scheduled

for near future.

Net Prohibition majority in
70 county contests,

66,132.

Oklahoma Few Prohibition towns.
Enforcement of State

Prohibition law

steadily growing success.

Governor Haskell heartily

supporting it.

Prohibition Party

organized September 27,

1909.

Oregon No Prohibition
State Prohibition vote
territory.

November, 1910.

 No local-option law. 21
counties "dry."

Pennsylvania Prohibition sentiment
County option defeated
 apathetic.

1909 but sentiment

rapidly growing.

Confident of advanced

legislation at next

session.

Rhode Island 20 Prohibition towns.
Little change

South Carolina State dispensary. 37
Prohibition counties
(Abolished 1908.)

out of 42.

Sweeping Prohibition

victories August 17, 1909.

State campaign definitely on.

South Dakota Scattering Prohibition
Few local changes.
towns.

Sentiment for State

Prohibition campaign

developing.

Tennessee* 8 License cities.
State Prohibition passed
Liquor men threatened
January, 1909.

repeal of Adams
Effective July 1, 1909.
local-option law.

Liquor manufacture

prohibition.

Law effective

January 1, 1910.

Remarkably beneficial
effects of Prohibition
immediately shown in
Nashville and other
cities.

* A proposal to embody state-wide prohibition in a constitutional amendment was voted down heavily in Tennessee on the 29th of November, 1909.

Texas 140 Prohibition
154 Prohibition counties.
 counties.

State Prohibition
referendum narrowly
defeated by Legislature,
only increased agitation
for that object.

Vote expected within

two years.

Utah No Prohibition
County Prohibition and
 territory.
State referendum

defeated in Legislature,

expected at next session.

Vermont Prohibition
216 towns "dry."
 repealed 1903.
Demand for resubmission
 138 Prohibition
of State Prohibition growing.
 towns out of
Prohibition majority
 240 in 1904.
8,819 in whole State.

of

Virginia Local-option law
Prohibition counties.
 passed 1903.
Democratic primary being

71

fought out on Prohibition

issue.

Washington Few Prohibition towns.
Compromise local

Prohibition law,
passed Legislature, 1909.

Prohibition sentiment
growing. Alaska-Yukon
Exposition, Seattle,
first big "dry" exposition.

West Virginia. 40 out of 54
Some local gains.
 counties "dry"
Charleston, state capital
"dry" since July 1.

Only three wholly "wet"
counties.

State campaign on.

Wisconsin 300 Prohibition towns
789 towns "dry."

Prohibition sentiment

growing rapidly;

4,000 business men

cheer argument for

Prohibition in great

debate at Milwaukee

March, 1909.

Wyoming No Prohibition

New law effective

territory.

January, 1910, puts

whole State under

Prohibition outside

of

incorporated towns.

{19}

ALCOHOL: A. D. 1908-1909.

Diminished consumption of whiskey and beer.

According to the annual report of the Commissioner of Internal

Revenue for the fiscal year ending June 30, 1909, there were about 5,000,000 less gallons of whiskey contributing to the Federal revenue than in the fiscal year preceding, and something like 2,500,000 fewer barrels of beer and ale. "This seems clearly to mirror the effect of the prohibition movement which has lately gained such headway in certain sections of the South and West. Ordinarily, the consumption of spirits and malt liquor is fairly steady in times of depression; and when an industrial revival is under way, their use increases and reflects itself in larger revenue returns. The absolute shrinkage in consumption in the past fiscal year, therefore, is doubly significant."

-----ALCOHOL: End-----

ALCORTA, Jose Figueroa:
President of Argentine Republic.

See (in this Volume)
ACRE DISPUTES.

ALDERMAN, Edward Anderson:
President of the University of Virginia.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

ALDRICH, Nelson W.:
Work on the Payne-Aldrich Tariff.

See (in this Volume)
TARIFFS: UNITED STATES.

ALEXANDER, King of Servia:
His murder.

See (in this Volume)

BALKAN AND DANUBIAN STATES: SERVIA.

ALEXEIEFF, Admiral:

Appointed Viceroy in Manchuria, 1903.

See (in this Volume)

JAPAN: A. D. 1901-1904.

ALFARO, General Elroy:

Made President of Ecuador by a revolution.

See (in this Volume)

ECUADOR: A. D. 1905-1906.

ALFONSO XIII.:

His Coronation.

See (in this Volume)

SPAIN: A. D. 1901-1904.

ALFONSO XIII.:

Marriage.

Attempted assassination.

See (in this Volume)

Spain: A. D. 1905-1906.

ALGECIRAS CONFERENCE, and Act.

See (in this Volume)

EUROPE: A. D. 1905-1906, and

MOROCCO: A. D. 1907-1909.

ALGIERS: A. D. 1896-1906.

Encroachments on the Moroccan boundary.

See (in this Volume)

MOROCCO: A. D. 1895-1906.

ALIENS ACT, The English.

See (in this Volume)

IMMIGRATION: ENGLAND: A. D. 1905-1909.

ALIENS, Rights of:

Pan-American Convention.

See (in this Volume)

American Republics.

ALI RIZA PASHA.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

ALL INDIA MOSLEM LEAGUE.

See (in this Volume)

INDIA: A. D. 1907 (DECEMBER), and 1907-1909.

ALLIANCES:

Franco-Russian.

Effect of Russo-Japanese War.

See (in this Volume)

EUROPE: A. D. 1904-1909.

ALLIANCES:

Great Britain with Japan.

See Japan: A. D. 1902, and 1905 (August).

ALLIANCES:

The Triple Alliance.

See TRIPLE ALLIANCE.

ALMENARA, Dr. Domingo.

See (in this Volume)
PERU.

ALSOP CLAIM, The.

See (in this Volume)
CHILE: A. D. 1909.

ALVERSTONE, Sir Richard Everard Webster, Lord Chief Justice:
On the Alaska Boundary Commission.

See (in this Volume)
ALASKA: A. D. 1903.

ALVES, Rodriquez.

See (in this Volume)
ACRE DISPUTES.

AMADE, General d':
Operations in Morocco.

See (in this Volume)
MOROCCO: A. D. 1907-1909, and 1909.

AMADOR, Manuel:
President of Panama.

See (in this Volume)
PANAMA.

AMALGAMATED ASSOCIATION, of Iron, Steel, and Tin Plate Workers:

Its strike in 1901.

See (in this Volume)

Labor Organization, &c.: United States: A. D. 1901.

AMALGAMATED SOCIETY OF RAILWAY SERVANTS, British:
In Taff Vale case.

See (in this Volume)

LABOR ORGANIZATION, &c.: ENGLAND: A. D. 1900-1906.

AMALGAMATED SOCIETY OF RAILWAY SERVANTS, British:
In strike of 1907

See (in this Volume)

LABOR ORGANIZATION, &c.: ENGLAND: A. D. 1907-1909.

AMARAL, Admiral Ferreira do.

See (in this Volume)

PORTUGAL: A. D. 1906-1909.

AMBAN, Chinese.

See (in this Volume)

TIBET: A. D. 1902-1904.

AMERICAN CIVIC ASSOCIATION.

See (in this Volume)

SOCIAL BETTERMENT: UNITED STATES.

AMERICAN FEDERATION OF LABOR.

See (in this Volume)

LABOR ORGANIZATION, &c.: UNITED STATES.

"AMERICAN INVASION" OF CANADA, The.

See (in this Volume) CANADA: A. D. 1896-1909.

-----AMERICAN REPUBLICS: Start-----

AMERICAN REPUBLICS:

The South and Central American nations:

Their recent rapid advance in character, dignity, and importance.

Among the astonishing. changes that have come upon the political face of the world within a few years past, producing new arrangements of rank or standing and new distributions of influence in the great family of nations, the emergence of the South American republics from generally chronic disorder and obscure unimportance to a position, almost suddenly recognized, of present weight and dignity and great promise to the future, is far from the least.

In 1890, when Mr. Blaine, as Secretary of State, opened the first well-planned endeavor of our government to put itself into such relations with them, of friendly influence, as the elder and stronger in the family of American republics ought to hold, there was little appreciation of the importance of the movement. Even Mr. Blaine did not seem to be fully earnest and fully sanguine in it, or else his chief and his colleagues in the government were not heartily with him; for his admirable scheme of policy was almost wrecked in the second year of its working, by the unaccountable impatience and harshness with which President Harrison wrung humiliating apologies from Chili for a trifling offense in 1892. The seeming arrogance of power then manifested cast a reasonable suspicion on the motives with which the great republic of North America had made overtures of fraternity to the republics of the South, and it freshened an old distrust in their minds.

Happily, however, Mr. Blaine, in 1890, had brought about the creation of a harmonizing and unifying agency which needed only time to effect great results. This was the Bureau of the American Republics, established at Washington, by a vote of the delegates from eighteen North, South, and Central American governments, at an International American Conference, held in that city in March of the year named. Its immediate purpose was the promotion of commercial intercourse; but the information spread with that object, through all the countries concerned, has carried with it every kind of pacific understanding and stimulation. The common action with common interests thus organized must have had more than anything else to do with the generating of a public spirit, lately, in the Spanish-American countries, very different from any ever manifested before. It has wakened national ambitions in them and sobered the factious temper which kept them in political disorder so long.

Ten years ago, the Central and South American republics had so little standing among the nations that few of them were invited to the Peace Conference of 1900, and the invitation was accepted by none. Spanish America was represented by Mexico alone. At the conference of 1907 at The Hague there were delegates from all, and several among their delegates took a notably important part, giving a marked distinction to the peoples they represent. It was by a special effort on the part of our then Secretary of State that they were brought thus into the council of nations.

Mr. Root has had wonderful success, indeed, in realizing the aim of the policy projected and initiated by Mr. Blaine. He has cleared away the distrust and won the confidence of our fellow Americans at the middle and south of the continent, bringing them to a friendly acceptance of the leading which goes naturally with the power and the experience of these

United States. The resulting weight in world politics of what may be called the Concert of America, paralleling the Concert of Europe, is one of the greater products of the present extraordinary time.

AMERICAN REPUBLICS:

Their Second International Conference, at the City of Mexico, in 1901-1902.

Its proceedings, conventions, resolutions, etc.

The First International Conference of American Republics was held at Washington in the winter and spring of 1889-1890, attended by delegates from eighteen Governments of the New World.

See, in Volume VI. of this work,
American Republics.

On the suggestion of President McKinley, ten years later, and on the invitation of President Diaz, of Mexico, a second Conference was convened at the City of Mexico, on the 23d of October, 1901. The sessions of this Conference were prolonged until the 31st of January, 1902. It was attended by delegates from every independent nation then existing in America, being twenty in number; but the delegation of Venezuela was withdrawn by the Government of that State on the 14th of January, and the withdrawal was made retroactive to and from the preceding 31st of December. The delegation from the United States was composed of ex-United States Senator Henry G. Davis; Mr. William I. Buchanan, formerly Envoy Extraordinary and Minister Plenipotentiary to the Argentine Republic; Mr. John Barrett, formerly Minister Resident of the United States to Siam; and Messrs. Charles M. Pepper and Volney W. Foster.

The following account of the work of the Conference and its results is compiled from the report made by the delegates of the United States to the Department of State:

"Señor Raigosa, chairman of the Mexican delegation, was chosen temporary president, and the Conference then preceded to its permanent organization by the election of his excellency Señor Lic. Don Ignacio Mariscal, minister of foreign affairs of Mexico, and Honorable John Hay, Secretary of State of the United States, honorary presidents; Senor Lic. Don Genaro Raigosa, of Mexico, president; Senhor Don José Hygino Duarte Pereira, of Brazil, first vice-president, and Señor Doctor Don Baltasar Estupinian, of Salvador, second vice-president. ... Under the rules adopted 19 committees were appointed and the work of the conference was apportioned among them. ...

"Discussion between the representatives of the Republics that would constitute the conference began months previous to its opening upon the subject of arbitration, and while every desire was manifested then and thereafter by all to see a conclusion reached by the conference in which all might join, unsettled questions existed between some of the Republics that would participate in the conference of a character that made their avoidance difficult in any general discussion of the subject. ... This difficulty became more apparent as the conference proceeded with its work. ... It was tacitly agreed between delegations, therefore, that the discussion of the subject should be confined, so far as possible, to a committee. ... There was at no time any difficulty with regard to securing a unanimous report favoring a treaty covering merely arbitration as a principle; all delegations were in favor of that. The point of discussion was as to the extent to which the principle should be applied. Concerning this, three views were supported in the conference:

- (a) Obligatory arbitration, covering all questions pending or future when they did not affect either independence or the national honor of a country;
- (b) Obligatory arbitration covering future questions only and defining what questions shall constitute those to be excepted from arbitration; and

(c) Facultative or voluntary arbitration, as best expressed by The Hague convention. ...

"A plan was finally suggested providing that all delegations should sign the protocol for adhesion to the convention of The Hague, as originally suggested by the United States delegation, and that the advocates of obligatory arbitration sign, between themselves, a project of treaty obligating their respective governments to submit to the permanent court at The Hague all questions arising or in existence, between themselves, which did not affect their independence or their national honor. Both the protocol and treaty were then to be brought before the conference, incorporated in the minutes without debate or action, and sent to the minister of foreign relations of Mexico, to be officially certified and transmitted by that official to the several signatory governments. After prolonged negotiations this plan was adopted and carried out as outlined above, all of the delegations in the conference, excepting those of Chile and Ecuador, signing the protocol covering adherence to The Hague convention before its submission to the conference.

{21}

These, after a protracted debate on a point of order involving the plan adopted, later accepted in open conference a solution which made them—as they greatly desired to be, in another form than that adopted—parties to the protocol. The project of treaty of compulsory arbitration was signed by the delegations of the Argentine Republic, Bolivia, Santo Domingo, El Salvador, Guatemala, Mexico, Paraguay, Peru, Uruguay, and Venezuela. ...

"By the above plan the conference attained the highest possible end, and for the first time each of the American Republics, as a result of that action, takes her place by the side of the other countries of the world in favor of international arbitration; more than this, by the unanimous acceptance thus of The Hague convention on the part of the 19

Republics represented in the conference, it is given that force and character which places it to-day as the formal expression of the governments of the entire civilized world in favor of peace. The delegates of the United States believe, hence, that substantial progress and a noteworthy and historic step in advance has been taken in the interests of peace, and that means have been provided by which wars will be rendered less frequent, if not wholly avoided, between the countries of the Western Hemisphere. The opening of the doors of the permanent tribunal of The Hague to all of the Republics of America, as this protocol has done, is of itself an achievement of the greatest importance. As a result of this action the American Republics now have at their command the machinery of that great international body for the pacific settlement of any dispute they may desire to refer to arbitration. Beyond this the obligations imposed by their adhesion to the convention to have recourse, as far as circumstances allow, to the good offices or mediation of any one or more friendly powers, and to permit these offers to be made without considering them unfriendly, is certainly a point of great value gained by all.

"In addition to accepting The Hague convention the conference went further. It accepted the three Hague conventions as principles of public American international law, and authorized and requested the President of the Mexican Republic, as heretofore explained, to enter upon negotiations with the several American Governments looking toward the most unrestricted application of arbitration possible should the way for such a step appear open. In addition to the protocol and treaty referred to, another step was taken in the direction of the settlement of international controversies by the adoption and signing, on the part of every country represented in the conference, of a project of treaty covering the arbitration of pecuniary claims. Under this the several republics obligate themselves for a period of five years to submit to the arbitration of the court at The Hague all claims

for pecuniary loss or damage which may be presented by their respective citizens and which cannot be amicably adjusted through diplomatic channels, when such claims are of sufficient importance to warrant the expense of arbitration. Should both parties prefer that a special jurisdiction be organized, according to article 21 of the convention of The Hague this may be done, and if the permanent court of The Hague shall not be open to one or more of the signatory republics for any cause, they obligate themselves to stipulate then in a special treaty the rules under which a tribunal shall be established for the adjustment of the matter in dispute and the form of procedure to be followed in such arbitration. As a supplement to the protocol and treaty above referred to, this project of treaty is of great importance and will most certainly be of wide benefit to the good relations and intercourse between the United States and her sister republics of this Hemisphere." ...

"Among the most important recommendations made by the First International American Conference, held in Washington in 1889-1890, with a view to facilitating trade and communication between the American Republics, was that looking to the construction of an intercontinental railway, by which all of the republics on the American continent would be put into rail communication with each other. In pursuance of the recommendations of that conference, an international railway commission was organized, and under its direction surveys were made which showed that it would be entirely practicable, by using, as far as possible, existing railway systems and filling in the gaps between them. ... The report of the intercontinental railway commission showed that the distance between New York and Buenos Ayres by way of the proposed line would be 10,471 miles, of which a little less than one-half had then been constructed, leaving about 5,456 miles to be built. Following up the work of the first conference and the intercontinental railway commission, the present conference adopted a strong report and a series of carefully considered

recommendations on this subject. ...

"The resolution ... providing for the meeting of an international American customs congress in the city of New York within a year, to consider customs administrative matters, is one of the subjects on which early action should be taken by our Government if the success of the congress is to be assured. The governing board of the International Bureau of the American Republics is to fix the date for the meeting of this congress. ... This congress will have nothing whatever to do with the subject of tariff rates in any of the countries represented. Its functions ... briefly stated, are to consider means for bringing about, as far as may be practicable, the adoption by the several republics of uniform and simple methods of custom-house procedure and a uniform and simple system of port regulations and charges; measures to secure the adoption and use in customs schedules and laws of a common nomenclature of the products and merchandise of the American republics, to be issued in English, Spanish, Portuguese, and French, and that it may become the basis for the statistical data of exports and imports; to provide for the organization of a permanent customs committee or commission, composed of persons having technical and expert knowledge, which, as a dependency of the International Bureau of the American Republics, or otherwise, shall be charged with the execution of the resolutions and decisions of the congress and the study of the customs laws of the American republics, in order to suggest to the several governments the adoption of laws and measures which, with regard to custom house formalities, may tend to simplify and facilitate mercantile traffic. ...

{22}

"Another resolution which contemplates that early action must be taken by the several Governments is that regarding quarantine and sanitary matters. In dealing with this subject the object of the conference was to make sanitation take the

place of quarantine. When the ideal had in view by the conference shall have been realized, the cities of the Western Hemisphere will have been put in such perfect sanitary condition that the propagation of disease germs in them will be impossible and quarantine restrictions upon travel and commerce, with their vexations and burdensome delays and expenses, will be unnecessary.

"The conference fully recognized the value and importance to all the Republics of the International Bureau of the American Republics, which was established in Washington in pursuance of the action of the First International American Conference. ... With a view to rendering the Bureau still more useful to all the countries represented in its administration, and making it still more valuable in establishing and maintaining closer relations between them, the conference adopted a plan of reorganization, or rather of broadening and expanding the existing organization. ... The new regulations adopted provide that the Bureau shall be under the management of a governing board to be composed of the Secretary of State of the United States, who is to be its chairman, and the diplomatic representatives in Washington of all the other governments represented in the Bureau. This governing board is to meet regularly once a month, excepting in June, July, and August of each year. ...

"In order that the archæological and ethnological remains existing in the territory of the several Republics of the Western Hemisphere might be systematically studied and preserved, the conference adopted a resolution providing for the meeting of an American international archæological commission in the city of Washington, D. C., within two years from the date of the adoption of the resolution. ...

"The conference gave its most hearty indorsement to the project for the construction of an interoceanic canal by the Government of the United States." ...

"The recommendation of the conference that there be established in New York, Chicago, San Francisco, New Orleans, Buenos Ayres, or any other important mercantile center, a bank with branches in the principal cities in the American republics, is in line with the similar resolution adopted by the First International American Conference in Washington in 1889-1890."

"In addition to the protocol for the adhesion of the American Republics to the Convention of The Hague, the treaty of compulsory arbitration signed by nine delegations, and the treaty for the arbitration of pecuniary claims, the Conference agreed to and signed a treaty for the extradition of criminals, ... including a clause making anarchy an extraditable offense when it shall have been defined by the legislation of the respective countries; a convention on the practice of the learned professions, providing for the reciprocal recognition of the professional diplomas and titles granted in the several Republics; a convention for the formation of codes of public and private international law; ... a convention on literary and artistic copyrights; ... a convention for the exchange of official, scientific, literary, and industrial publications; ... a treaty on patents of invention, etc.; ... and a convention on the rights of aliens." The treaty on patents and the convention on the rights of aliens could not be signed by the delegates of the United States, for reasons set forth in their report.

"The delegates desire especially to express their most grateful appreciation of the courtesy extended by the Mexican Government in preparing for the comfort of delegates and in all the arrangements for the conference. Every convenience at the command of that Government was placed at the disposal of delegates to assist them in the discharge of their labors. ...

"It is the belief of the delegates of the United States that

the results of the Second International American Conference will be of great and lasting benefit to the nations participating in its deliberations. ... That the relations between the American Republics have been improved as a result of the conference cannot be doubted. The intimate daily association for nearly four months, of leading men from every American Republic of itself tended toward this result. Delegates learned that, while existing international relations made differences of opinion inevitable between the representatives of some of the countries, they all had many interests in common. As a result, toleration for the opinions of others was shown by delegates to a marked degree, and the sessions of the conference were remarkably free from acrimonious debates and reflections on the policies of delegations or their Governments."

***57th Congress, 1st Session 1901-1902,
Senate Document 330.***

AMERICAN REPUBLICS:

Their Third International Conference,
at Rio de Janeiro, Brazil, in 1906.
Proceedings, conventions, resolutions.

The Third International Conference of American Republics was held at Rio de Janeiro, Brazil, from July 21st to August 26th, 1906. It was attended by delegates from each of the 21 American Republics, excepting only Hayti and Venezuela. The delegates from the United States of America were the Honorable William I. Buchanan, chairman, formerly Envoy Extraordinary and Minister Plenipotentiary to the Argentine Republic; Dr. L. S. Rowe, Professor of Political Science, University of Pennsylvania; Honorable A. J. Montague, ex-Governor of Virginia; Mr. Tulio Larrinaga, Resident Commissioner from Porto Rico in Washington; Mr. Paul S. Reinsch, Professor of Political Science, University of Wisconsin; Mr. Van Leer Polk, ex-Consul-General; with a staff of secretaries, etc., from

several departments of the public service at Washington.

The Conference was attended also by the Secretary of State of the United States, the Honorable Elihu Root, incidentally to an important tour through many parts of South America which he made in the months of that summer. In the course of his journey he visited, on invitation, not only Brazil, but Uruguay, Argentina, Chile, Peru, Panama, and Colombia; and, as stated in the next annual Message of President Roosevelt, "he refrained from visiting Paraguay, Bolivia, and Ecuador only because the distance of their capitals from the seaboard made it impracticable with the time at his disposal. He carried with him a message of peace and friendship, and of strong desire for good understanding and mutual helpfulness; and he was everywhere received in the spirit of his message."

{23}

In the instructions to the delegates from the United States, prepared by Secretary Root, this wise admonition was conveyed:—

"It is important that you should keep in mind and, as occasion serves, impress upon your colleagues, that such a conference is not an agency for compulsion or a tribunal for adjudication; it is not designed to compel States to make treaties or to observe treaties; it should not sit in judgment upon the conduct of any State, or undertake to redress alleged wrongs, or to settle controverted questions of right. A successful attempt to give such a character to the Conference would necessarily be fatal to the Conference itself, for few if any of the States represented in it would be willing to submit their sovereignty to the supervision which would be exercised by a body thus arrogating to itself supreme and indefinite powers. The true function of such a conference is to deal with matters of common interest which are not really subjects of controversy, but upon which comparison of views

and friendly discussion may smooth away differences of detail, develop substantial agreement and lead to coöperation along common lines for the attainment of objects which all really desire. It follows from this view of the functions of the Conference that it is not expected to accomplish any striking or spectacular final results; but is to deal with many matters which, not being subjects of controversy, attract little public attention, yet which, taken together, are of great importance for the development of friendly intercourse among nations; and it is to make such progress as may now be possible toward the acceptance of ideals, the full realization of which may be postponed to a distant future. All progress toward the complete reign of justice and peace among nations is accomplished by long and patient effort and by many successive steps; and it is confidently hoped that this Conference will mark some substantial advancement by all the American States in this process of developing Christian civilization. Not the least of the benefits anticipated from the Conference will be the establishment of agreeable personal relations, the removal of misconceptions and prejudices, and the habit of temperate and kindly discussion among the representatives of so many Republics."

The following account of the Conference and its action is derived from the subsequent official report of the Delegates of the United States:—

"The sessions of the Conference were held in a spacious and ornate building, erected especially for this purpose by the Brazilian Government, and situated on the superb new boulevard that for nearly four miles follows the shore of the Bay of Rio, and at the end of the new Avenida Central. The building is a permanent one, reproduced in granite and marble from the plans of the palace erected by Brazil at the Louisiana Purchase Exposition, at St. Louis. It is surrounded by an exquisite garden, and, facing as it does the entrance to the wonderfully beautiful Bay of Rio, the building is a notable

landmark. It was christened 'The Monroe Palace' by special action of the Brazilian Government. The Brazilian Government installed in the palace a complete telegraph, mail, and telephone service, and telegrams, cables, and mail of the different delegations and of individual delegates were transmitted free. Recognition is due in this connection to the governments of the Argentine Republic, Paraguay, Uruguay, and Chili, which officially extended, through the director of telegraphs of Brazil, the courtesy of free transit for all telegrams sent by delegates over the telegraph lines of their respective countries. This marked courtesy on the part of Brazil and of the Republics mentioned was greatly appreciated by the delegates. In connection with the work of the Conference, the Brazilian Government organized and maintained at its expense an extensive and competent corps of translators, stenographers, and clerical assistants, whose services were at all times at the command of the delegates. A buffet lunch, for the convenience and comfort of delegates and their guests, was maintained in the palace throughout the period of the Conference. The palace was elaborately lighted and was the center of attraction day and night for great crowds of people, and nothing in connection with its equipment and administration or that concerned the comfort or convenience of delegates was left undone by the Brazilian Government. The Monroe Palace now becomes a national meeting place for the people of Brazil. It will remain as an adornment of the splendid new Rio that has risen from the old city during the past two or three years, and as an evidence of the progress and energy of the Brazilian people.

"The Conference was formally opened in the presence of a large and distinguished audience on the evening of July 23, 1906, by His Excellency the Baron do Rio Branco, the distinguished Brazilian minister for foreign affairs. The approaches to the palace were lined with troops, the public grounds and avenues of the city brilliantly illuminated and packed with people. ... The Conference unanimously chose as its president, His

Excellency Señor Dr. Joaquim Nabuco, the Brazilian Ambassador to the United States; as honorary vice-presidents, His Excellency the Baron do Rio Branco, and the Honorable Elihu Root, Secretary of State of the United States, and as its Secretary-General, His Excellency, Señor Dr. J. F. de Assis-Brasil, the Brazilian envoy extraordinary and minister plenipotentiary to the Argentine Republic. The latter selected as his assistants one of the most competent and distinguished groups of men that has served any of the preceding conferences. ... These officers left nothing undone toward aiding and facilitating the work of delegates, and to them the United States delegation feels greatly indebted for the many courtesies and the great kindness extended on all occasions.

"The conference was attended by delegates from each of the 21 American Republics, with the exception of Haiti and Venezuela." ...

{24}

"The distinguishing note of the Conference was the extraordinary session convened to receive the Secretary of State of the United States, Honorable Elihu Root, who, as stated earlier in this report, had been named one of the two honorary presidents of the Conference. The reception accorded the Secretary of State by the Conference was one of the most notable political events that has taken place in our relations with Central and South America, and manifested the feeling of good fellowship and sympathy that exists between the American Republics. We believe the visit of the Secretary of State to South America has resulted in greater good to our relations with Central and South America than any one thing that has heretofore taken place in our diplomatic history with them. The extraordinary session of the Conference to receive the Secretary of State was held on the evening of July 31 and was one of great brilliancy. In introducing the Secretary of State to the Conference, His Excellency Dr. Joaquim Nabuco, the

Brazilian Ambassador to the United States and President of the Conference, delivered a notable address, to which the Secretary of State replied."

It was, indeed, a notable utterance of pregnant and impressive thought which Mr. Root addressed to this important congress of the American Republics, and it well deserved the distinction that was accorded to it by the President of the United States, when he appended it to his Message to Congress the following December. A considerable part of the brief but richly filled address may fitly be quoted here:

"I bring from my country," said the Secretary, "a special greeting to her elder sisters in the civilization of America. Unlike as we are in many respects, we are alike in this, that we are all engaged under new conditions, and free from the traditional forms and limitations of the Old World in working out the same problem of popular self-government.

"It is a difficult and laborious task for each of us. Not in one generation nor in one century can the effective control of a superior sovereign, so long deemed necessary to government, be rejected and effective self-control by the governed be perfected in its place. The first fruits of democracy are many of them crude and unlovely; its mistakes are many, its partial failures many, its sins not few. Capacity for self-government does not come to man by nature. It is an art to be learned, and it is also an expression of character to be developed among all the thousands of men who exercise popular sovereignty.

"To reach the goal toward which we are pressing forward, the governing multitude must first acquire knowledge that comes from universal education, wisdom that follows practical experience, personal independence and self-respect befitting men who acknowledge no superior, self-control to replace that external control which a democracy rejects, respect for law,

obedience to the lawful expressions of the public will, consideration for the opinions and interests of others equally entitled to a voice in the state, loyalty to that abstract conception—one's country—as inspiring as that loyalty to personal sovereigns which has so illumined the pages of history, subordination of personal interests to the public good, love of justice and mercy, of liberty and order. All these we must seek by slow and patient effort; and of how many shortcomings in his own land and among his own people each one of us is conscious!

"Yet no student of our times can fail to see that not America alone but the whole civilized world is swinging away from its old governmental moorings and intrusting the fate of its civilization to the capacity of the popular mass to govern. By this pathway mankind is to travel, whithersoever it leads. Upon the success of this our great undertaking the hope of humanity depends. Nor can we fail to see that the world makes substantial progress towards more perfect popular self-government. ...

"It is not by national isolation that these results have been accomplished or that this progress can be continued. No nation can live unto itself alone and continue to live. Each nation's growth is a part of the development of the race. There may be leaders and there may be laggards, but no nation can long continue very far in advance of the general progress of mankind, and no nation that is not doomed to extinction can remain very far behind. It is with nations as with individual men; intercourse, association, correction of egotism by the influence of others' judgment, broadening of views by the experience and thought of equals, acceptance of the moral standards of a community the desire for whose good opinion lends a sanction to the rules of right conduct—these are the conditions of growth in civilization. ...

"To promote this mutual interchange and assistance between the

American republics, engaged in the same great task, inspired by the same purpose, and professing the same principles, I understand to be the function of the American Conference now in session. There is not one of all our countries that cannot benefit the others; there is not one that cannot receive benefit from the others; there is not one that will not gain by the prosperity, the peace, the happiness of all. ...

"The association of so many eminent men from all the Republics, leaders of opinion in their own homes; the friendships that will arise among you; the habit of temperate and kindly discussion of matters of common interest; the ascertainment of common sympathies and aims; the dissipation of misunderstandings; the exhibition to all the American peoples of this peaceful and considerate method of conferring upon international questions—this alone, quite irrespective of the resolutions you may adopt and the conventions you may sign, will mark a substantial advance in the direction of international good understanding.

"These beneficent results the Government and the people of the United States of America greatly desire. We wish for no victories but those of peace; for no territory except our own; for no sovereignty except the sovereignty over ourselves. We deem the independence and equal rights of the smallest and weakest member of the family of nations entitled to as much respect as those of the greatest empire, and we deem the observance of that respect the chief guaranty of the weak against the oppression of the strong. We neither claim nor desire any rights, or privileges, or powers that we do not freely concede to every American republic. We wish to increase our prosperity, to expand our trade, to grow in wealth, in wisdom, and in spirit, but our conception of the true way to accomplish this is not to pull down others and profit by their ruin, but to help all friends to a common prosperity and a common growth, that we may all become greater and stronger together.

"Within a few months, for the first time the recognized possessors of every foot of soil upon the American continents can be and I hope will be represented with the acknowledged rights of equal sovereign states in the great World Congress at The Hague. This will be the world's formal and final acceptance of the declaration that no part of the American continents is to be deemed subject to colonization. Let us pledge ourselves to aid each other in the full performance of the duty to humanity which that accepted declaration implies; so that in time the weakest and most unfortunate of our republics may come to march with equal step by the side of the stronger and more fortunate. Let us help each other to show that for all the races of men the liberty for which we have fought and labored is the twin sister of justice and peace. Let us unite in creating and maintaining and making effective an all-American public opinion, whose power shall influence international conduct and prevent international wrong, and narrow the causes of war, and forever preserve our free lands from the burden of such armaments as are massed behind the frontiers of Europe, and bring us ever nearer to the perfection of ordered liberty. So shall come security and prosperity, production and trade, wealth, learning, the arts, and happiness for us all."

The fruits of the Conference were embodied in four conventions and a number of important resolutions. The text of a convention agreed to, which establishes between the States signing it the status of naturalized citizens who again take up their residence in the country of their origin, will be found elsewhere in this Volume, under the subject-heading Naturalization. Another, which amends and extends the operation of a treaty signed at the Second Conference, at Mexico, in 1902 (see above) is as follows:—

"Sole article.

The treaty on pecuniary claims signed at Mexico January thirtieth, nineteen hundred and two, shall continue in force, with the exception of the third article, which is hereby abolished, until the thirty-first day of December, nineteen hundred and twelve, both for the nations which have already ratified it, and for those which may hereafter ratify it."

The third Convention signed was a modification and extension of another of the agreements of the Second Conference, at Mexico, having relation to patents of invention, literary property, etc. The fourth Convention provides for an "international Commission of Jurists, composed of one representative from each of the signatory States, appointed by their respective Governments, which Commission shall meet for the purpose of preparing a draft of a code of Private International Law and one of Public International Law, regulating the relations between the nations of America." The more important of the resolutions adopted were the following:

"To ratify adherence to the principle of arbitration; and, to the end that so high a purpose may be rendered practicable, to recommend to the Nations represented at this Conference that instructions be given to their Delegates to the Second Conference to be held at The Hague, to endeavor to secure by the said Assembly, of world-wide character, the celebration of a General Arbitration Convention, so effective and definite that, meriting the approval of the civilized world, it shall be accepted and put in force by every nation."

"To recommend to the Governments represented therein that they consider the point of inviting the Second Peace Conference, at The Hague, to examine the question of the compulsory collection of public debts, and, in general, means tending to diminish between Nations conflicts having an exclusively pecuniary origin."

Other resolutions of the Conference were directed to a broadening of the work and an enlargement of the influence of the International Bureau of the American Republics; to the erection of a building for that Bureau and for the contemplated Library in Memory of Columbus; to the creation in the Bureau of a section having "as its chief object a special study of the customs legislation, consular regulations and commercial statistics of the Republics of America," with a view to bringing them into more harmony, and to securing the greatest development and amplification of commercial relations between American Republics; to promote the establishment and maintenance of navigation lines connecting the principal ports of the American continent; to bring about more effective cooperation in international sanitary measures; to advance the construction of lines that shall form, connectedly, the desired Pan-American Railway, extending through the two continents.

The time and place of future conferences are to be determined by the Governing Board of the Bureau of American Republics.

AMERICAN REPUBLICS: The International Bureau:

Its increased efficiency.

The gift of a building to it by Mr. Carnegie.

The International Bureau of the American Republics, instituted at Washington in 1890 (see in Volume VI. of this work), assumed larger functions and increased importance in 1906, after the return of Mr. Root, United States Secretary of State, from his tour of visits to the South American States.

The Honorable John Barrett, who had successively represented the Government of the United States in Panama, in Argentina and in Colombia, as well as at the Second Pan-American Conference, in Mexico, was made Director of the Bureau, and entered upon its duties with an exalted belief in the possibilities of good to be done in the American hemisphere by an energetic promotion of more intimate relations between its

peoples. At the same time a new dignity was given to the International Union of the American Republics, embodied in the work of the Bureau, by the provision of a stately building for its use. Mr. Root had persuaded Congress to appropriate \$200,000 for the site and building of such a home, to be offered to the Union, and this inadequate sum was supplemented by a generous private gift. It was easy to interest Mr. Andrew Carnegie in a project which bore so directly on the promotion of international friendliness and peace, and he offered an addition of \$750,000 to the fund for the Pan-American Building.

The site secured for the structure is that of the old Van Ness mansion, about half-way between the State, War and Navy Building and the Potomac River. It covers a tract of five acres, facing public parks on two sides. There the corner stone of a central seat of Pan-American coöperations and influences was laid in May, 1908, in the presence of official representatives from twenty-one American republics, and under their assembled flags.

{26}

AMERICAN SCHOOL PEACE LEAGUE, The.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1908.

AMERICAN SOCIETY OF EQUITY.

See (in this Volume)
LABOR ORGANIZATION, &c.:
UNITED STATES: A. D. 1902-1909.

AMERICAN SUGAR REFINING COMPANY (the "Sugar Trust").

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1907-1909, and 1909.

AMSTERDAM: A. D. 1907.

Meeting of International Woman Suffrage Alliance.

See (in this Volume)
Elective Franchise: Woman Suffrage.

AMUNDSEN, Roald: Arctic Exploration.
Magnetic Pole Researches.

See (in this Volume)
POLAR EXPLORATION.

ANAM: Deposition of the King.

Toward the end of 1906, France asserted sovereignty over Anam, which had been a French Protectorate for many years, by adjudging its king to be insane, placing him in confinement, and thus ending his reign. He was accused of almost incredible atrocities, in torturing and murdering his wives and other subjects within his reach. Even cannibalism was included among his alleged crimes.

ANARCHISM IN INDIA.

See (in this Volume)
INDIA: A. D. 1907-1908, and 1907-1909.

ANATOLIAN RAILWAY.

See (in this Volume)
RAILWAYS: TURKEY: A. D. 1899-1909.

ANDERSON, Judge A. B.:
Acquittal of the Standard Oil Company.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1904-1909.

ANDRASSY, Count.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1905-1906.

ANGELL, James Burrill:
Retirement from Presidency of University of Michigan.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

ANGLE HILL, Capture of.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

ANJUMAN,
ENJUMEN.

A term which seems to signify in Persia either a local
assembly or a political association of any nature.

See (in this Volume)
PERSIA: A. D. 1908-1909.

ANNUITIES, for Workingmen.

See POVERTY, PROBLEMS OF.

ANTARCTIC EXPLORATION.

See POLAR EXPLORATION.

ANTHRACITE COAL:
The Railroad Monopoly.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1906-1909.

ANTHRACITE COAL STRIKES.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES.

ANTI-REBATE LEGISLATION.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1870-1908,
and 1903 (FEBRUARY).

ANTI-SEMITIC DEMONSTRATIONS.

See (in this Volume)
JEWS.

ANTI-TRUST, or Sherman Act, of 1890 .

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1890-1902.

ANTI-TRUST DECISIONS, in United States Courts.

See (in this Volume)
SUPREME COURT OF THE UNITED STATES.

ANTUNG: Opened to Foreign Trade.

See (in this Volume)
CHINA: A. D. 1903 (MAY-OCTOBER).

ANTUNG-MUKDEN RAILWAY QUESTION, between Japan and China.

See (in this Volume)

CHINA: A. D. 1905-1909

APOSTOLIC CONSTITUTION OF THE CURIA.

See (in this Volume)

PAPACY: A. D. 1908.

APPALACHIAN MOUNTAIN FORESTS, Preservation of the.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

APPONYI, Count Albert.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1904; 1905-1906; 1908-1909.

ARABIA: A. D. 1903-1905.

"Holy War" with the Sultan opened by the Sheik Hamid Eddin, of the Hadramaut, claiming the Caliphate.

See (in this Volume)

TURKEY: A. D. 1903-1905.

ARBITRATION, INDUSTRIAL.

See LABOR ORGANIZATION.

ARBITRATION, INTERNATIONAL:

General Treaties, since the First Peace Conference, of 1899.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1899-1909.

ARBITRATION, SPECIAL:

Of the Pious Fund Dispute between Mexico and the United States.

See (in this Volume)

MEXICO: A. D. 1902 (MAY).

ARBITRATION, OF CLAIMS AGAINST VENEZUELA.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

ARBITRATION, Of Alaska Boundary, between the United States and Great Britain.

See (in this Volume)

ALASKA: A. D. 1903.

ARBITRATION, Of Brazil and British Guiana:
Boundary Dispute.

See (in this Volume)

BRAZIL: A. D. 1904.

ARBITRATION, Of Great Britain and Russia:
The Dogger Bank Incident.

See (in this Volume)

JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

ARBITRATION, Of Fisheries Questions between the United States and Great Britain.

See (in this Volume)

NEWFOUNDLAND: A. D. 1905-1909.

ARBITRATION, Central American Court of Justice.

See (in this Volume)

CENTRAL AMERICA: A. D. 1907.

ARBITRATION, Of Casablanca Incident, between Germany and France,
at The Hague.

See (in this Volume)

MOROCCO: A. D. 1907-1909.

ARCTIC EXPLORATION.

See (in this Volume)

POLAR EXPLORATION.

ARGENTINE REPUBLIC: A. D. 1901-1906.

Participation in Second and Third International Conferences
of American Republics, at Rio de Janeiro.

See (in this Volume)

AMERICAN REPUBLICS.

ARGENTINE REPUBLIC: A. D. 1902.

Noble ending of naval rivalries with Chile.
A model arbitration treaty.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1902.

ARGENTINE REPUBLIC: A. D. 1903.

The Foreign Population.

"Statistics of 1903 showed 1,000,000 foreigners in Argentina
in a total of 5,000,000. Of these 500,000 were Italians,
200,000 Spaniards, 100,000 French, 25,000 English, 18,000
Germans, 15,000 Swiss, 13,000 Austrians, and the remainder of

many nationalities. The number of Americans did not exceed 1,500, although many are coming now, to go into cattle-raising and farming in the country or into all kinds of business in Buenos Ayres. English influence is very strong, especially in financial circles, with the Germans almost equally active."

***John Barret,
Argentina
(American Review of Reviews, July, 1905).***

ARGENTINE REPUBLIC: A. D. 1904.
Inauguration of President Quintana.

Dr. Manuel Quintana, elected President of the Republic, was inaugurated on the 12th of October, 1904, and entered on an administration which promised much good to the country.

{27}

ARGENTINE REPUBLIC: A. D. 1905.
A revolutionary movement promptly suppressed.

A revolutionary undertaking, in Buenos Aires and several provinces, had its outbreak on the 4th of February, but was suppressed so promptly that the public disturbance by it was very brief. Particulars of the affair were reported by the American Minister at Buenos Aires, Mr. Beaupré, as follows:

"On the afternoon of the 3d instant rumors of an intended movement subversive of the established government of this country came to the Federal authorities from various parts of the Republic. These rumors were at first discredited, but finally proved so persistent that the President and heads of the various departments of the government proceeded to take measures of precaution. In the early hours of the morning of the next day, the 4th instant, the anticipated outbreak came simultaneously in the capital, Rosario, Mendoza, Cordoba, and

Bahia Blanca, these being the largest cities of the Republic and the principal political and military centers.

"In the capital the plan of the revolutionists seems to have been to attack the police stations and military arsenal, with a view perhaps of forcing the police of the capital into their ranks and of supplying themselves with arms and munitions. At the arsenal, by a simple stratagem of the minister of war, the malcontents were lured into the building and arrested. About the police stations there was some fighting, particularly at Station No. 14; but the insurgents proved unprepared and insufficiently organized, so that by dawn the movement had completely failed in this city. Except that many of the shops remained closed throughout the day of the 4th, and except for the presence of armed police in the streets, there were no evidences of any revolutionary effort. Some half dozen fatalities are reported.

"The prompt and effective suppression of the revolution in this city is due in large measure to the energy and judgment displayed by the President and his ministers, who spent the entire night in the Government House in council. Following up the precautionary measures of the 3d instant and the active measures of the night of the 3d and 4th, the President proceeded at 8 A. M. of the 4th to declare the Republic in a state of siege for a period of thirty days, to call out the reserves and to establish a censorship of the press and of the telegraph service.

"The movement in Rosario was about as brief and unsuccessful as that in the capital, so that by the forenoon of the 4th it was known to have failed in the two principal cities of the Republic. Here there was also some blood shed.

"In the meantime the real center of the movement was the city of Cordoba, while serious trouble seemed in view in the city of Mendoza, where the revolutionists were said to be in a

strong position, and in the province of Buenos Aires, where troops and marines were already in movement from Bahia Blanca upon the capital."

Forces despatched to those points made as quick an ending of the revolt there as at the capital. "The revolutionary forces at Cordoba had made prisoners of the vice-president of the Republic, Dr. Figueroa Alcorta, and other prominent citizens. These prominent men they are reported to have proposed putting in their vanguard unless concessions were made to them. This and the conditions of the revolutionists the vice-president telegraphed to the Executive, who did not allow himself to be moved by threats or even by sympathy for his colleague. Consequently the revolutionists, finding threats and resistance vain, fled yesterday before the government troops arrived. With the failure of the movement in Cordoba the revolution is considered at an end and the country has returned to its former condition of peace and tranquillity."

ARGENTINE REPUBLIC: A. D. 1906.

Death of its President.

Dr. Manuel Quintana, the much esteemed President of the Argentine Republic, died in March, 1906, and was succeeded by the Vice-President, Dr. Figuero Alcorta, who will fill the office until 1910.

ARGENTINE REPUBLIC: A. D. 1908.

Dreadnought building.

See (in this Volume)

WAR, THE PREPARATIONS FOR.

ARGENTINE REPUBLIC: A. D. 1909.

Assassination of Colonel Falcon.

As Colonel Falcon, Prefect of Police at Buenos Ayres, was

returning from a funeral, with his secretary, on the 14th of November, a bomb was thrown into the carriage and exploded, with fatal effects to both. The assassin, a youth of nineteen years, was captured. The murder had been preceded by a number of bomb explosions in the past six months, all attributed to anarchists from Europe, of whom large numbers were said to have been collected in Buenos Ayres.

ARGENTINE REPUBLIC: A. D. 1909.

Chief food supply to Great Britain.

"How many readers of *The Times* (said a special correspondent of the *London Times* writing from Buenos Aires, October 15, 1909), if asked to name the country which supplied the United Kingdom last year with the largest quantity of wheat, of maize, and of refrigerated and frozen cattle, would unhesitatingly award the first place to the Argentine Republic? How many English people realize that this South American Republic is changing places with the North American Republic in the exporting of these and other food products to the United Kingdom? The Argentine Republic last year occupied, and may in the future occupy, the first, whilst the United States may have to be content with the second, place in the exportation of foodstuffs. The change is partly due to the shortage of meat in America, and partly to the fact that with their increasing population the United States will have less and less surplus provisions with which to supply the world. Last year, the Argentine Republic sent England three times more maize than the United States did, something like four and a half million cwt. more wheat, and considerably over twice the amount of refrigerated and frozen cattle. The shipments of meat are considerably heavier for the first nine months of 1909, so the proportion shipped by the Argentine Republic is not likely to be less for the present year."

ARGENTINE REPUBLIC: A. D. 1909.

Arbitration of the Acre boundary dispute between

Bolivia and Peru.

See (in this Volume)
ACRE DISPUTES.

ARGENTINE REPUBLIC: A. D. 1909.
Building of the Transandine Railway Tunnel.

See (in this Volume)
RAILWAYS: ARGENTINA-CHILE.

ARGENTINE REPUBLIC: A. D. 1910.
Agreement with Uruguay concerning the River Plate.

The following message came from Buenos Ayres on the 6th of January, 1910: "A burning question between Argentina and Uruguay, which for two years was seemingly insoluble and possibly involved Brazil, has been settled by Señor Roque Saenz-Peña.

{28}

As Argentine Plenipotentiary he signed a Protocol at Montevideo yesterday, of which the following is a summary: Recognizing the reciprocal desire for friendly relations, fortified by the common origin of the two nations, the parties agree to declare that past differences are not capable of being regarded as a cause of offence and shall not be allowed to continue. The navigation and use of the waters of the River Plate will continue as heretofore without alteration, and differences which may arise in the future will be removed and settled in the same spirit of cordiality."

ARICA-LA PAZ RAILWAY.

See (in this Volume)
RAILWAYS: CHILE-BOLIVIA.

ARICA QUESTION.

See (in this Volume)
CHILE: A. I). 1907.

ARID LANDS, Reclamation of.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

ARIZONA:

Refusal of statehood in union with New Mexico.

See (in this Volume)
UNITED STATES: A. D. 1906.

ARMENIANS: A. D. 1903-1904.

Incursions of Armenian revolutionists from Russia and Persia.
Exaggerated accounts of massacre.

See (in this Volume)
TURKEY: A. D. 1903-1904.

ARMENIANS: A. D. 1905.

Massacre by Tartars in the Caucasus.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

ARMENIANS: A. D. 1909.

Massacre at Adana and vicinity.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY) and (APRIL-DECEMBER).

ARMAMENTS.

Armies.

See (in this Volume)
WAR, THE PREPARATION FOR.

ARMOUR & CO., et al.,
The case of the United States against.

See (in this Volume)
COMBINATIONS, INDUSTRIAL:
UNITED STATES: A. D. 1903-1906.

ARMOUR PACKING COMPANY:
Decision against in rebating case.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1908.

ARMSTRONG, Vice-Consul J. P.:
Reports on affairs in the Congo State.

See (in this Volume)
CONGO STATE: A. D. 1906-1909.

ARMSTRONG INVESTIGATION COMMITTEE.

See (in this Volume)
INSURANCE, LIFE.

ARNOLDBSEN, K. P.

See (in this Volume)
NOBEL PRIZES.

ARRHENIUS, SVANTE AUGUST.

See (in this Volume)

NOBEL PRIZES.

ARYA SAMAJ, The:

This is "an organization founded in Bombay more than 30 years ago by a devout Gujarati Brahmin who was born in Kathiawar. So far as I am aware, it has few followers in Bombay nowadays: but in the last few years it has waxed very strong in the Punjab. Originally it was a purely religious movement, based upon the teaching of the Vedas. It promotes the abolition of caste and idolatry, condemns early marriages, and permits the remarriage of widows. At the same time it is violently hostile to Christianity. There can be no question that large numbers of members of the Arya Samaj are only concerned with its spiritual side; but there can be equally no question that the organization, as a whole, has developed marked political tendencies subversive of British rule. ...

"In the United Provinces it is believed that there are now about 40,000 members of the Arya Samaj. I have entirely failed to secure any trustworthy estimate of the number of its members in this province [the Punjab], but there are flourishing branches of the Samaj in every large town and in many of the important villages, and proselytism is being actively pursued with marked success. The members of the Samaj strenuously deny that their organization has a political side. The literature of the sect, and particularly the writings of their founder, the ardent ascetic Dayanand Saraswati, who came from Kathiawar, show no trace of any interest in mundane politics. Dayanand was an enthusiast who denounced the idolatrous tendencies of modern Hinduism, and advocated a return to the earlier, purer faith. ... Dayanand's clarion call of "Back to the Vedas" produced a complete revulsion of feeling, and he made the Punjab a stronghold of the new creed. For that reason, the Arya Samaj is to this day the bitterest opponent of Christianity in India; and Punjabi Mahomedans declare that it is also their most formidable foe."

India correspondence of The Times.

ASHOKAN RESERVOIR.

See (in this Volume)
NEW YORK CITY: A. D. 1905-1909.

ASIATIC IMMIGRATION:

The resistance to it in South Africa, Australia,
America, and elsewhere.

See (in this Volume)
RACE PROBLEMS.

ASQUITH, Mr. Herbert Henry, Chancellor of the Exchequer.

See (in this Volume)
ENGLAND: A. D. 1905 (DECEMBER), and 1905-1906.

ASQUITH, Mr. Herbert Henry:

On the German attitude toward an international reduction of
naval armaments.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

ASQUITH, Mr. Herbert Henry:

Address at the Imperial Conference of 1907
on Preferential Trade.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

ASQUITH, Mr. Herbert Henry:

Prime Minister.

See
ENGLAND: A. D. 1908 (APRIL).

ASQUITH, Mr. Herbert Henry:
On the rejection of the Licensing Bill by the House of Lords.

See (in this Volume)
Alcohol Problem: England: A. D. 1908.

ASQUITH, Mr. Herbert Henry:
On the Budget of 1909.

See (in this Volume)
ENGLAND: A. D. 1909 (APRIL-DECEMBER).

ASIA:
The Asiatic future of Russia as it appeared at the beginning
of the twentieth century.

See (in this Volume)
RUSSIA.

ASSAM:
United with Eastern Bengal.

See (in this Volume)
INDIA: A. D. 1905-1909.

ASSASSINATIONS:
Of King Alexander, Queen Draga, and others of the Servian
Court.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA.

ASSASSINATIONS:
Of Count Alexei Ignatief.

See (in this Volume)
RUSSIA: A. D. 1906.

ASSASSINATIONS:
Of Ali Akbar Khan, the Atabek Azam.

See (in this Volume)
PERSIA: A. D. 1907.

ASSASSINATIONS:
Of Ashutosh Biswas.

See (in this Volume)
INDIA: A. D. 1907-1908.

ASSASSINATIONS:
Of the Atabeg-i-Azam.

See (in this Volume)
PERSIA: A. D. 1907 (JANUARY-SEPTEMBER).

ASSASSINATIONS:
Of General Beckman.

See (in this Volume)
DENMARK: A. D. 1909 (JUNE).

ASSASSINATIONS:
Of Governor-General Bobrikoff.

See (in this Volume)
FINLAND: A. D. 1904.

ASSASSINATIONS:
Of M. Bogoliefpoff, Russian Minister of Instruction.

See (in this Volume)
RUSSIA: A D. 1901-1904.

ASSASSINATIONS:
Of King Carlos I. and Crown Prince Luiz Felipe.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

ASSASSINATIONS:
Of Sir Curzon-Wyllie.

See (in this Volume)
INDIA: A. D. 1909 (JULY).

ASSASSINATIONS:
Of Premier Delyannis.

See (in this Volume)
GREECE: A. D. 1905.

{29}

ASSASSINATIONS:
Of Colonel Falcon.

See (in this Volume)
ARGENTINE REPUBLIC: A. D). 1909.

ASSASSINATIONS:
Of Fehim Pasha.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER),
and 1909 (JANUARY-MAY).

ASSASSINATIONS:

Of Prince Ito.

See (in this Volume)

JAPAN: A. D. 1909 (OCTOBER).

ASSASSINATIONS:

Of Colonel Karpoff.

See (in this Volume)

RUSSIA: A. D. 1909 (DECEMBER).

ASSASSINATIONS:

Of President McKinley.

See (in this Volume)

BUFFALO: A. D. 1901;

and UNITED STATES: A. D. 1901 (SEPTEMBER).

ASSASSINATIONS:

Of General Min.

See (in this Volume)

RUSSIA: A. D. 1906 (AUGUST).

ASSASSINATIONS:

Of M. Plehve.

See (in this Volume)

RUSSIA: A. D. 1901-1904.

ASSASSINATIONS:

Of General Sakharoff.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

ASSASSINATIONS:

Of Count Schouvaloff.

See (in this Volume)

RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

ASSASSINATIONS:

Of Grand Duke Sergius.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

ASSASSINATIONS:

Of Shemsi Pasha.

See TURKEY: A. D. 1908 (JULY-DECEMBER).

ASSASSINATIONS:

Of M. Sipiagin.

See RUSSIA: A. D. 1901-1904.

ASSASSINATIONS:

Of ex-Governor Steunenberg, of Idaho.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES. A. D. 1899-1907.

ASSASSINATIONS:

Of D. W. Stevens.

See KOREA: A. D. 1905-1909.

ASSASSINATIONS:

Attempted murder of Minister Stolypin.

See RUSSIA: A. D. 1906 (AUGUST).

ASSINIBOIA:

Absorbed in the Province of Saskatchewan.

See (in this Volume)

CANADA: A. D. 1905.

ASSIS-BRAZIL, Dr. J. F.:

Secretary-general of Third International Conference of
American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

ASSOCIATIONS, Law: French.

See (in this Volume)

FRANCE: A. D. 1902 (APRIL-OCTOBER), and 1903.

ASSOCIATIONS, Law: German.

See GERMANY: A. D. 1908 (APRIL).

ASSUAN DAM, Completion of.

See (in this Volume)

EGYPT: A. D. 1902 (DECEMBER).

ASTRONOMY OF THE INVISIBLE.

See (in this Volume)

SCIENCE AND INVENTION.

ATABEG-I-AZAM: Premier of Persia.

His assassination.

See (in this Volume)

PERSIA: A. D. 1907 (JANUARY-SEPTEMBER).

ATABEGS,
ATABEKS.

See (in this Volume)
Persia: A. D. 1905-1906.

ATCHINESE, Dutch hostilities with the.

See (in this Volume)
NETHERLANDS: A. D. 1904.

ATHABASCA:
Absorbed in the Provinces of Alberta and Saskatchewan.

See (in this Volume)
CANADA: A. D. 1905.

ATLANTA: A. D. 1906.
Anti-Negro Riot.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1906.

ATWATER, Professor W. O.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: CARNEGIE INSTITUTION.

AUSGLEICH, Austro-Hungarian.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1902-1903, and 1907.

-----AUSTRALIA: Start-----

AUSTRALIA:

The Race Problem.
Reasons for dread of Asiatic immigration.
The demand for a white Australia.

See (in this Volume)
RACE PROBLEMS.

AUSTRALIA:
Woman Suffrage.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

AUSTRALIA:
Government ownership of railways.
Disconnecting gauges in the several states.

See (in this Volume)
RAILWAYS: AUSTRALIA.

AUSTRALIA: A. D. 1901-1902.
The Tariff Question in the First
Parliament of the Commonwealth.
Issue between the Senate and the Representative Chamber.

"The tariff originally proposed by the government was framed on lines of extreme protection, with special reference to the languishing industries of Victoria; it was inevitable that the opposition, mainly representing New South Wales, should fight tooth and nail to prevent its becoming law. The result of the struggle, which lasted almost without a serious interruption for nine months, has been a compromise which leaves the tariff of the commonwealth neither one thing nor the other. There can be little doubt that in debating power and political generalship the victory lay generally with the opposition; but after all the result, so far as it was a victory for the party of free trade, was due to the action of the Senate.

"To many, and apparently not least to the cabinet, the prompt and effective interference of the Senate in a question of taxation, which was generally supposed to be practically placed by the constitution almost as much beyond their control as custom has placed it beyond that of the House of Lords in England, was a great surprise, and as the first test of the respective powers of the two chambers of the legislature it can hardly fail to be of great political importance. It was provided by the constitution not only that all bills involving the taxation of the people, directly or indirectly, should, as in this country, originate in the representative chamber of the legislature, but further that such bills should not be altered or amended in their passage through the Senate. As a concession to the less populous states, it was agreed when the constitution was framed that while only the chamber, elected on a strict basis of population, should impose or control taxation, the Senate, in which all the states enjoy, as in America, equal representation, should have the right to suggest, for the consideration of the other chamber, any amendments it thought desirable in any money bill sent on for its assent. This provision, mild and inoffensive as it was supposed to be, has now been used in a way to upset the policy of the government, and practically to compel the assent of the representative chamber to the views of a Senate majority. The tariff bill as passed by the government majority was subjected to an exhaustive criticism by the Senate, and finally fully fifty items of the schedule imposing duties were referred back to the representative chamber, with a request for their reconsideration and reduction or excision.

{30}

"The government attempted to meet the difficulty by agreeing to a few trifling amendments on the lines suggested, and got the chamber peremptorily to reject all the others, sending the bill back in effect as it was. To this the Senate replied by

calmly adhering to the views it had already expressed, and sending the bill back again for further consideration, allowing it to be pretty plainly understood that, in the event of their views being ignored, they would place their reasons on record and reject the bill altogether, thus preventing any uniform tariff being established during the session. Face to face with so grave a difficulty the cabinet gave way, and agreed to a compromise which they would not have dreamed of doing but for the action of the Senate, with its free-trade majority of two votes. The immediate result of the long struggle has been the passing of a tariff act which pleases neither party, but will apparently raise the required revenue of \$40,000,000, needed to meet the wants of the federal and state governments."

***Hugh H. Lusk,
The First Parliament of Australia
(American Review of Reviews, March, 1903).***

AUSTRALIA: A. D. 1902.

The "States Rights" temper.

Question of constitutional relations between Commonwealth and States in external affairs, as raised by South Australia.

Decision of the Imperial Government.

"State-rights" questions and the provincialistic spirit behind them made a prompt appearance in the Australian Commonwealth after its federation was accomplished. One of the first wrangles to occur between the General Government and that of a State was appealed necessarily to the Imperial Government at London, because it arose out of a call from the latter, in September, 1902, for information about an incident which concerned a Dutch ship. The request for information went from London to the Commonwealth Government, and from the latter to the Government of South Australia, where the incident in question occurred, involving some act of its officials. The South Australian Ministry declined to pass the desired

information through the channel of the Commonwealth Ministry, but would give it to the British Colonial Office, direct. A long triangular argumentative correspondence ensued, in the course of which much that seems like a repetition of the early history of the United States of America appears. Such as this, for example, in one of the letters of the Acting Premier of South Australia to the Lieutenant-Governor of that State: "The importance to the States, especially to the smaller States, of strictly maintaining the lines of demarcation between Commonwealth and State power is manifest. Already a movement has begun to destroy the Federal element in the Constitution. A remarkable indication of this may be gathered from a speech made by Sir William Lyne, the Commonwealth Minister for Home Affairs, at Kalgoorlie, in Western Australia, on the 2nd day of the present month. Speaking of the Constitution, Sir William Lyne said: 'If the population increased in the States as he expected, he did not think three of the larger States would still consent to be governed by four of the smaller ones. He hoped that when the time came there would not be bloodshed, but that things would settle themselves in a manner worthy of the records of the first Parliament.'

"Believing, as Ministers do, that the peaceful and successful working of the Constitution depends upon the strict maintenance of the lines of demarcation between the powers of the Commonwealth and those of the States, and that that line is drawn clearly in the Constitution, they cannot agree to the opinions of the Right Honourable the Secretary of State for the Colonies, which increase, by implication, the power of the Commonwealth, and which seem to Ministers to tend to Unification, and to a sacrifice of the Federal to the National principle."

This communication, transmitted to London, drew from the then Colonial Secretary, Mr. Chamberlain, an unanswerable reply, addressed to the Lieutenant-Governor and dated April 15, 1903, in part as follows:

"Your Ministers contend 'that the grant of power to the Commonwealth, notwithstanding the general terms of Section 3 of the Act, is strictly limited to the Departments transferred, and to matters upon which the Commonwealth Parliament has power to make laws and has made laws,' and that 'in the distribution of legislative and consequently of executive power, made by the Constitution, all powers not specifically ceded to the Commonwealth remain in the States.'

"They are unable to agree 'with the contention that there does not appear to be anything in the Constitution to justify this limitation,' and argue that the validity of any claim of the Commonwealth to any particular power, should be tested by enquiring:—Does the Constitution specifically confer the power?

"The view of the Act which I take is that it is a Constitution Act, and creates a new political community. It expressly declares that 'the people of New South Wales, Victoria, South Australia, Queensland, and Tasmania, and also, if Her Majesty is satisfied that the people of Western Australia have agreed thereto, of Western Australia, shall be united in a Federal Commonwealth under the name of the Commonwealth of Australia.' The object and scope of the Act is defined and declared by the preamble to be to give effect to the agreement of the people of New South Wales, Victoria, South Australia, Queensland, and Tasmania 'to unite in one indissoluble Federal Commonwealth under the Crown of the United Kingdom of Great Britain and Ireland, and under the Constitution hereby established.'

"The whole Act must be read in the light of this declaration and the provisions of Section 3. So far as other communities in the Empire or foreign nations are concerned, the people of Australia form one political community for which the Government of the Commonwealth alone can speak, and for everything affecting external states or communities, which

takes place within its boundaries, that Government is responsible. The distribution of powers between the Federal and State Authorities is a matter of purely internal concern of which no external country or community can take any cognizance. It is to the Commonwealth and the Commonwealth alone that, through the Imperial Government, they must look, for remedy or relief for any action affecting them done within the bounds of the Commonwealth, whether it is the act of a private individual, of a State official, or of a State government. The Commonwealth is, through His Majesty's Government, just as responsible for any action of South Australia affecting an external community as the United States of America are for the action of Louisiana or any other State of the Union.

{31}

"The Crown undoubtedly remains part of the constitution of the State of South Australia and, in matters affecting it in that capacity, the proper channel of communication is between the Secretary of State and the State Governor. But in matters affecting the Crown in its capacity as the central authority of the Empire, the Secretary of State can, since the people of Australia have become one political community, look only to the Governor-General, as the representative of the Crown in that community."

The published correspondence ends with this, and it is to be assumed that South Australia had no more to say.

***Correspondence respecting the Constitutional Relations
of the Australian Commonwealth and States in regard to
External Affairs
(Parliamentary Papers, Cd. 1587).***

AUSTRALIA: A. D. 1902.

British Colonial Conference at London.

See (in this Volume)
BRITISH EMPIRE.

AUSTRALIA: A. D. 1902.
The Governor-Generalship.

The office of Governor-General was resigned by Lord Hopetoun in the summer, and he was succeeded by Lord Tennyson.

AUSTRALIA: A. D. 1902-1909.
Undertakings of irrigation and forestry.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: AUSTRALIA.

AUSTRALIA: A. D. 1903.
The Governor-Generalship.

In August, Lord Northcote, previously Governor of the Presidency of Bombay, was appointed Governor-General of Australia, succeeding Lord Tennyson.

AUSTRALIA: A. D. 1903-1904.
Resignation of Premier Barton.
The Deakin Ministry.
Four months of power for the Labor Party.
Its influence in the Commonwealth.

Sir Edmund Barton, who had been the Prime Minister of the Australian Commonwealth since its Union in 1900 (see Australia in Volume VI. of this work), resigned in 1903 to accept a place on the bench of the High Federal Court, and was succeeded by Mr. Alfred Deakin, previously Attorney-General in the Federal Cabinet. The most important occurrence of the year in the Commonwealth was the election of a new House of Representatives in the Federal Parliament and of one third of

its Senate. These were the first federal elections occurring since those of 1900 which constituted the original Parliament, opened in May, 1901, and the first in which women went to the polls. The main issue in the elections was between the Labor Party and its opponents, and the rising power of the former was shown by its gain of six seats in each House, four from the Ministry and two from the opposition in the Senate, and all six from the Ministry in the lower House. This threw the balance of power into its hands in both branches of Parliament. Naturally, in these circumstances, labor questions became dominant in Australian politics, with Socialistic tendencies very strong.

The Deakin Ministry was defeated in April, 1904, on an industrial arbitration bill which excluded State railway employées and other civil servants from its provisions, contrary to the demands of the Labor Party. The adverse majority was made up of 23 Labor representatives, 13 opponents of the protectionist policy of the Government, and 4 from the ranks of its own ordinary supporters. The ministry resigned, and the leader of the Labor Party, Mr. J. C. Watson, a young compositor by trade, was called to form a Government, which he did, drawing all but its Law Officer from the Labor Party. It is creditable to the capability of this Labor Ministry that, with so precarious a backing in the House, it should have held the management of Government, with apparently good satisfaction to the public, for about four months. It was defeated in August on another labor question, and gave way to a coalition Ministry of Free Traders and Moderate Protectionists, formed under Mr. George Houston Reid.

An account of the Labor Ministry and its leader, from which the following facts are taken, was given by ***The Review of Reviews for Australasia*** at the time of its ascendancy: The average age of the members is only forty-three years, while in England sixty is the average age at which corresponding rank is attained. The nationalities of the members are as follows:

One, the prime minister, is a New Zealander, two are Australian-born, two are Irish, two are Scotch, and one is Welsh. There is not one who was born in England.

Mr. John Christian Watson, the premier, is but thirty-seven years of age. He was born in Valparaiso, where his parents were on a visit, but was only a few months old when they returned to New Zealand. At an early age he began his apprenticeship as a compositor, joining the Typographical Union. When nineteen, he came to Sydney and joined the composing staff of the *Star*. Then he became president of the Sydney Trades and Labor Council, and president of the Political Labor League of New South Wales. In 1894, he was returned to a New South Wales Parliament, and took the leading place among the Labor members. In 1901, he was returned to the first federal Parliament. He was selected to lead the Labor party in the federal House, and has won golden opinions in that position. He is a born leader of men, and has rare tact. He overcame the apprehension caused by his youth. He curbed the extremists of his party. Power came to him at once. He seized the advantage of leading a third party between two opponents. It was he, rather than Sir Edmund Barton or Mr. Deakin, who decided what should pass and what not.

The situation developed in this period is described by an American writer, whose sympathies are ardently with the Labor Party, as follows:

"Protectionists and Free Traders (so called) were so divided in the Australian Parliament that neither could gain a majority without the Labor Party. A succession of governments bowled over by labor votes drove this hard fact into the political intelligence. The Labor Party was then invited to take the government. For five months men that had been carpenters, bricklayers, and painters administered the nation's affairs. No convulsion of nature followed, no upheavals and no disasters. It is even admitted that the

government of these men was conspicuously wise, able, and successful. But having a minority party, their way was necessarily precarious, and on the chance blow of an adverse vote they resigned. Some scene shifting followed, but in the end the present arrangement was reached, by which the government is in the hands of the Protectionists that follow Mr. Deakin, and the ministry is supported by the Labor Party on condition that the Government adopt certain legislation. And that is the extent of the 'absolute rule of the Labor gang.' The Deakin Government does not greatly care for the Labor Party, nor for the Labor Party's ideas, but it rules by reason of the Labor Party's support, and in return therefor has passed certain moderate and well-intentioned measures of reform.

{32}

Indeed the sum-total of the 'revolutionary, radical, and socialistic laws' passed by the Labor Party, directly or by bargaining with the Deakin or other ministries, indicates an exceedingly gentle order of revolution. It has done much in New South Wales and elsewhere to mitigate the great estate evil by enacting graduated land taxes; it has passed humane and reasonable laws regulating employers' liability for accidents to workmen and laws greatly bettering the hard conditions of labor in mines and factories. It has passed a law to exclude trusts from Australian soil. It has stood for equal rights for men and women. In New South Wales it has enormously bettered conditions for toilers by regulating hours of employment even in department and other stores and by instituting a weekly half-holiday the year around for everybody. It has tried with a defective Arbitration and Conciliation Act to abolish strikes. To guard Australia against the sobering terrors of the race problem that confronts America, it has succeeded in keeping out colored aliens. It has agitated for a Henry George land tax and for the national ownership of public services and obvious monopolies. And with one exception this is the full catalogue of its misdeeds." [The "one exception" is the abolition of

coolie labor.]

***Charles E. Russell,
The Uprising of the Many,
chapter 24
(Doubleday, Page and Company, New York, 1907).***

See, also, (in this Volume)
Labor Organization: Australia.

AUSTRALIA: A. D. 1905-1906.

Mr. Deakin's precarious ministry.
Power of the Labor Party without responsibility.
Its principles and its "Fighting Platform."
Important legislation of 1905.
The Federal Capital question.
General election of 1906.

Mr. Reid, the Free Trade Premier, had taken office on an agreement with Mr. Deakin, the Protectionist leader, that the tariff question should not be opened during the term of the existing Parliament. But the truce became broken early in 1905, each party attributing the breach to the other, and the Reid Ministry, beaten on an amendment to the address replying to the Governor-General's speech, resigned. The Protectionists, in provisional alliance with the Labor Party, then came back to power, with Mr. Deakin at their head.

Of the political situation in 1905 it was said by a writer in one of the English reviews: "The Labour Party can dictate terms to the Ministry, and ensure that its own policy is carried out by others. It is strongest whilst it sits on the cross benches. During the few months it was in office it was at the mercy of Parliament; it left most of the planks of its platform severely alone, and it had, during that time, less real power than it has had either before or since. It is not likely again to take office, unless it can command an absolute

majority of its own members to give effect to its own ideas, and, indeed, it perhaps would be better for Australia that it had responsibility as well as power, rather than as at present power without responsibility. However, if not at the next general election, the party is bound ere long to get the clear Parliamentary majority it seeks. Under these circumstances, great importance attaches to its aims and organisation. ...

"To quote from the official report of the decisions of the last Triennial Conference of the Political Labour organisations of the Commonwealth, which sat in Melbourne last July, the objective of the Federal Labour party is as follows:

"(a) The cultivation of an Australian sentiment, based upon the maintenance of racial purity, and the development in Australia of an enlightened and self-reliant community,
(b) The security of the full results of their industry to all producers by the collective ownership of monopolies, and the extension of the industrial and economic functions of the State and Municipality. The Labour party seek to achieve this objective by means of a policy that they invariably refer to as their platform. The planks of what is called the 'Fighting Platform' are as follows:

- "(1) The maintenance of a white Australia.
- (2) The nationalisation of monopolies.
- (3) Old age pensions.
- (4) A tariff referendum.
- (5) A progressive tax on unimproved land values.
- (6) The restriction of public borrowing.
- (7) Navigation laws.
- (8) A citizen defence force.
- (9) Arbitration amendment."

***J. W. Kirwan,
The Australian Labour Party
(Nineteenth Century, November, 1905).***

A strike in one of the coal mines of New South Wales during 1905 brought the Arbitration Act of that province to an unsatisfactory test. The dispute, concerning wages, went to the Arbitration Court and was decided against the miners. They refused to accept the decision, abandoning work, and the court, when appealed to by the employers, found itself powerless to enforce the decision it had made. The judge resigned in consequence, and there was difficulty in finding another to take his seat.

The Labor Party secured the passage of an Act which gives the trades-union label the force of a trade mark. Another important Act of 1905 modified the Immigration Restriction Act, so far as to admit Asiatic and other alien students and merchants, whose stay in the country was not likely to be permanent, and which, furthermore, permitted the introduction of white labor under contract, subject to conditions that were expected to prevent any lowering of standard wages.

The location of a federal capital became a subject of positive quarrel between the Government of the Commonwealth and that of New South Wales. By agreements which preceded the federation, the Commonwealth capital was to be in New South Wales, but not less than a hundred miles from Sydney. This hundred-mile avoidance of Sydney was considerably exceeded by the Federal Government when it chose a site, to be called Dalgety, about equidistant from Sydney and Melbourne. New South Wales objected to the site and objected to the extent of territory demanded for it. Mr. Deakin proposed a survey of 900 square miles for the Federal District. New South Wales saw no reason for federal jurisdiction over more than 100 square miles.

Ultimately Dalgety was rejected and a site named Yass-Canberra, or Canberra, was agreed upon and the choice confirmed by legislation. It is in the Murray district, about 200 miles southwest of Sydney.

A general election in the Commonwealth, near the close of 1906, gave the Protectionists a small increase of strength in Parliament, and the Labor Party gained one seat, raising its representation from 25 to 26. The losers were the so-called Free Traders, or opponents of protective tariff-making. Their leader, Mr. Reid, in the canvass, dropped the tariff issue and made war on the State Socialism of the Labor Party. He held in the new Parliament a considerably larger following than the Protectionist Premier, Mr. Deakin, could muster, but it contained more Protectionists than Free Traders.

{33}

AUSTRALIA: A. D. 1906.

Developing the water supply.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: AUSTRALIA.

AUSTRALIA: A. D. 1907.

The "New Protection," under the Tariff Excise Act.

See (in this Volume)

LABOR REMUNERATION: THE "NEW PROTECTION."

AUSTRALIA: A. D. 1907.

Statistics of state schools.

See EDUCATION: AUSTRALIA.

AUSTRALIA: A. D. 1907 (April-May).

Imperial Conference at London.

See BRITISH EMPIRE: A. D. 1907.

AUSTRALIA: A. D. 1908 (December).

Population of the Commonwealth.

According to a letter to the London *Times*, from Sydney, "the population of Australia on December 31, 1908, was estimated at 4,275,304 (exclusive of full-blooded blacks), showing an increase of 509,965, or of 13.5 per cent. in the eight years of federation. That," said the writer, "is not a satisfactory expansion, and we should have fared better. New South Wales gained 231,367, or 17 per cent. and Western Australia 87,143, or 48.4 per cent. but all the other States fared indifferently. There is reason to hope that in the change of fashion, Australia will again grow into some favour with the emigrant from home."

AUSTRALIA: A. D. 1908.

Change of Ministry.

Late in the year, the Ministry of Mr. Deakin lost the provisional support of the Labor party, which had kept it in control of the Government for nearly four years, and suffered a defeat in Parliament which threw it out. For the second time a short-lived Labor Ministry was formed, under Mr. Andrew Fisher.

AUSTRALIA: A. D. 1908.

The Governor-Generalship.

After five years of service as Governor-General, Lord Northcote returned to England in the fall of 1908 and was succeeded by Lord Dudley.

AUSTRALIA: A. D. 1909.

Attitude of the people toward immigration.

Land-locking against settlement.

See (in this Volume)

Immigration: AUSTRALIA.

AUSTRALIA: A. D. 1909.

A summary of sixty years of growth and progress.

Sir John Forrest, Treasurer of the Commonwealth of Australia, in his Budget Speech to the Federal House of Representatives, in August, 1909, surveyed the position of Australia as part of the British nation,—a continent, he observed, containing two billion acres, with a coast line of 12,000 miles, no other nation having right or title to any part of this splendid heritage of the Southern Hemisphere, which was another home for the British race. Sixty years ago, said Sir John, the population of Australia was 400,000 and there were no railways. Now the inhabitants numbered nearly four-and-a-half millions, of whom 96 per cent were British. They had £112,000,000 deposited in banks and deposits in savings banks to the amount of over £46,000,000, the depositors in these being one-third of the entire population. They had produced minerals to the value of £713,000,000. Ten million acres were under crop. During last year Australia had produced 62,000,000 bushels of wheat. It had exported butter of the value of £2,387,000 and wool of the value of £23,000,000. Australia had 90,000,000 sheep, 10,000,000 cattle, and 2,000,000 horses. The oversea trade in 1908 represented £114,000,000.

AUSTRALIA: A. D. 1909.

Proposed federalization of state debts.

On the 8th of September, 1909, the Government introduced a Bill in the House of Representatives for the amendment of the Constitution so as to enable the Commonwealth to federalize the State debts incurred since the inauguration of the Commonwealth, in addition to those then existing. The Premier urged that if the agreement was carried out the Commonwealth would be freed financially, and if the debts were taken over the per capita payments would be appropriated to meet the interest on the debts, the States making up any deficiency.

The Bill was passed by the House on the 7th of October.

AUSTRALIA: A. D. 1909.

Federal acquisition of the Northern Territory.

A Bill providing for the transfer to the Commonwealth of the vast unpopulated Northern Territory of the Australian Continent was before the Parliament of the Commonwealth during the last summer. In advocating its passage, the Minister for External Affairs explained that "the area to be transferred under the Bill was equal to France, Germany, Belgium, Switzerland, and Italy together. Port Darwin was nearer to Hongkong than to Sydney, and while the Northern Territory remained unpeopled it was a perpetual menace to Australia. The military authorities, Sir George Le Hunte, formerly Governor of South Australia, and Lord Northcote, formerly Governor-General of the Commonwealth, had all strongly urged its effective occupation, and Mr. Roosevelt had advised the Commonwealth to fill its 'empty north.'

"By the terms of the agreement the Commonwealth would assume responsibility for the debt of the territory, amounting to £2,725,000, and the accumulated deficit of the past administration, amounting to £600,000. The measure provided for the taking over of the Port Augusta-Oodnadatta Railway at a price of £2,240,000, and for the Commonwealth to undertake the construction of a trans continental line connecting the territory with South Australia, at an estimated cost of £4,500,000. The latest reports showed that the interior of the territory was a fertile and well-watered white man's country, the healthiest in the tropical world, and that it was capable of carrying a large population."

Despatch from Melbourne to The Times, London.

AUSTRALIA: A. D. 1909 (May-June).

Opening of the session of Parliament.

Programme of business proposed.
The political situation.
Coalition under Mr. Deakin against the ministry.
Its success.
Resignation of Premier Fisher and Cabinet.
Return of Mr. Deakin to power.
His programme.

The Federal Parliament was opened at Melbourne on the 26th of May. In the speech of the Governor-General, Lord Dudley, as reported to the English Press, he stated that "notwithstanding a decrease in the Customs and postal revenue, arrangements had been made to pay old-age pensions from July 1. Large financial obligations would be incurred in the near future and would demand careful attention. Parliament would be invited to consider the financial relations between the Commonwealth and the States, with a view to an equitable adjustment of them. Proposals would be submitted for the establishment of a Commonwealth silver and paper currency.

{34}

"The Governor-General went on to refer to the coming Imperial Defence Conference and the establishment of a General Staff for the Empire. Engagements had, he said, been entered into for the building of three destroyers, and Parliament would be asked to approve a policy of naval construction including the building of similar vessels in Australia and the training of the necessary crews. A measure providing for an effective citizens' defence force would be introduced at an early stage.

"It being recognized that the effective defence of Australia required a vast increase in the population, it was proposed to introduce a measure of progressive taxation on unimproved land values, leading to a subdivision of large estates, so as to offer immigrants the inducement necessary to attract them in large numbers.

"Proposals would be submitted for the amendment of the Constitution, so as to enable Parliament to protect the interests of the consumer while ensuring a fair and reasonable wage to every worker to extend the jurisdiction of Parliament in regard to trusts and combinations, and to provide for the nationalization of monopolies."

See (in this Volume),
LABOR REMUNERATION: THE 'NEW PROTECTION'.

In an editorial article on the situation at this juncture in Australia, which was, it remarked, "as interesting as it is obscure," the London *Times* rehearsed the main facts of it as follows:

"It will be remembered that towards the close of last year the withdrawal of its support by the Labour party led somewhat unexpectedly to the defeat and resignation of Mr. Deakin's Cabinet. A Labour Ministry was subsequently formed, and was enabled by Mr. Deakin's refusal to combine with the Opposition against it to prorogue Parliament and get into recess. It has since elaborated a programme, announced by Mr. Fisher, the Prime Minister, to his constituents at Gympie, a few weeks ago, and recapitulated yesterday in the Governor-General's speech, which strongly resembles in most particulars the national policy advocated by Mr. Deakin when in power, and includes besides one or two additional proposals, such as 'the nationalization of monopolies,' more exclusively the property of the Labour party itself. These latter aspirations are probably more pious than practical, and are certainly not the issues on which the Labour Ministry is now to stand or fall. It will stand or fall by its proposals for the readjustment of the financial relations between the Commonwealth and the States, the establishment of a local flotilla designed for coastal defence, the creation of a citizen army based on universal training, and the imposition of a progressive land

tax calculated to bring about the subdivision of large estates.

"This latter proposal is the only one in which the Labour party cannot claim to be carrying out the spirit, if not the letter, of Mr. Deakin's own programme; but, curiously enough, it does not seem to be the question on which Mr. Deakin has taken immediate issue with them. He is taking issue, we gather, first and foremost on the question of defence. The Labour Ministry is to be censured for refusing to make the offer of the Australian Dreadnought in the name of the Commonwealth. In taking this line Mr. Deakin has already made it clear that he has not in any way modified his previous views on the necessity of providing immediately for the creation of an Australian flotilla, but he considers that this necessity should in no way prevent Australia from adding in emergency to the strength of the British fleet. Speaking at Sydney last month, he said: 'Our defence needs not only our own flotilla but a fleet on the high seas as well. It is for us to recognize that by joining New Zealand and making our offer of a Dreadnought for the Imperial Navy ... the Commonwealth must do its share to prove the reality of Australia's federal unity, to prove the unity of the Empire, to stand beside the stock from which we came.'

"On this point there is no obscurity. It presents a clear difference of view dividing Mr. Deakin and the two sections of the Opposition with which he has now coalesced from the policy of the Ministry in power. But while it provides a rallying ground from which the coalition may defeat the Ministry, it provides no subsequent line of united advance. The terms on which the coalition has been formed seem indeed to contemplate no definite policy at all."

The coalition against the Ministry of Mr. Fisher, referred to in the above, accomplished its purpose on the day after the opening of Parliament, by carrying a vote of adjournment which

the Ministry accepted as a vote of want of confidence, and resigned. The former Premier, Mr. Deakin, then resumed the reins of Government, with a following that does not seem to have been expected to hold together very long. On the reassembling of Parliament, June 23, the Prime Minister made a statement of the business to be submitted to the House, including along with other measures the following: "A Bill would be introduced establishing an inter-State commission which, in addition to the powers conferred by the Constitution, would undertake many of the functions of the British Board of Trade. It would also undertake the duties of a Federal Labour Bureau, which would comprise the study of the question of unemployment and a scheme for insurance against unemployment. The commission would also assist in the supervision of the working of the existing Customs tariff. ... An active policy of immigration would be undertaken, it was hoped with the cooperation of all the States. ... The appointment of a High Commissioner in London with a well-equipped office was necessary to take charge of the financial interests of the Commonwealth, to supervise immigration, and to foster trade and commerce. ... The Old Age Pensions Act was to be amended in the direction of simplifying the conditions for obtaining the pensions. ... The policy of the Government in the matter of land defence would be founded on universal training, commencing in youth and continuing towards manhood. A military college, a school of musketry, and probably a primary naval college would be established to train officers. The counsel of one of the most experienced commanders of the British Army would be sought for with regard to the general development and disposition of Australia's adult citizen soldiers.

"In view of the approaching termination of the ten year period of the distribution of the Customs revenue provided for in the Constitution, a temporary arrangement was being prepared, pending a satisfactory permanent settlement of the financial relation between the State and the Commonwealth."

{35}

AUSTRALIA: A. D. 1909 (June).

Federal High Court decision on Anti-Trust Law.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.: AUSTRALIA.

AUSTRALIA: A. D. 1909 (July-September).

The Imperial Defense Conference.

Defense Bill in Parliament.

Proposed compulsory military training.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY AND NAVAL.

AUSTRALIA: A. D. 1909 (September).

Coal Miners strike in New South Wales.

See (in this Volume)

LABOR ORGANIZATION: AUSTRALIA: A. D. 1905-1909.

AUSTRALIA: A. D. 1909 (September).

Meeting at Sydney of Empire Congress of Chambers of Commerce.

See (in this Volume)

BRITISH EMPIRE: A. D. 1909 (SEPTEMBER).

AUSTRALIA: A. D. 1910.

The last year of a troublesome Constitutional Requirement.

Article 87 of the Constitution of the Commonwealth of Australia (see in Volume VI. of this work), reads as follows:

"During a period of ten years after the establishment of the Commonwealth, and thereafter until the Parliament otherwise provides, of the net revenue of the Commonwealth from duties

of custom and of excise not more than one fourth shall be applied annually by the Commonwealth towards its expenditure. The balance shall, in accordance with this Constitution, be paid to the several States, or applied toward the payment of interest on debts of the several States taken over by the Commonwealth." This, which has been known as the Braddon section, has imposed a serious handicap on the Federal Government. As its working was described recently by an English Press correspondent, "it made the Commonwealth raise four pounds whenever it wanted to spend one. It made the States begrudge the Commonwealth every penny it spent, even out of its own quarter—for every penny saved out of that quarter was an extra penny for the States. And it prevented every State Treasurer from knowing, until the Federal Treasurer had delivered his Budget speech, how much money he was likely to get from Federal sources for his own spending."

At the end of the year 1910 the requirement of the Article will cease to be obligatory, and the Federal Parliament will be free to make a different appropriation of the revenue from customs and excise. Meantime the subject is under discussion, and in August, 1909, it was announced that a conference of the State Governments had come to an agreement—subject to ratification by the Federal Government—which provides for the annual per capita payment of 25s. in lieu of the three-fourths of the Customs revenue which has hitherto been returned to them. Western Australia to receive a special extra contribution of £250,000, decreasing by £10,000 annually until it ceases. Until the arrangement becomes operative, the Commonwealth may deduct from the statutory payments to the States £600,000 annually towards the cost of old-age pensions.

The readjustment of State shares in the Customs revenue is said to involve an annual loss to New South Wales of £1,000,000. According to a London newspaper correspondent, "the main effects to the Commonwealth are the abolition of the book-keeping system between the States, the power to issue

Australian stamps, telegrams, &c., and the securing of about £2,300,000 a year, or more, additional revenue. The States lose revenue to a similar amount, but there is a transfer of old-age pensions to the amount of nearly £1,000,000, of which they are relieved. In three of the States, all of which suffer little by the change, the pensions are new, and a considerable boon to the people. But more than half the money sacrifice falls upon New South Wales, and it goes to relieve her less prosperous neighbours. Well, that is true Federation! Naturally the Southern States would have nothing but a *per capita* distribution from the Commonwealth, and the New South Wales Ministers agreed to it with their eyes open. At present the Commonwealth Government secures the further revenue needed. But whether this agreement will so distinctly suit that Government as the State populations grow is another matter."

A Bill for the required amendment of the Federal Constitution was introduced in the House of Representatives by the Prime Minister, Mr. Deakin, on the 8th of September. On the 4th of November, in opposition to the Government, an amendment to the Bill, limiting the duration of the agreement, instead of giving it force in perpetuity, was carried in committee of the whole by the casting vote of the chairman. On the 1st of December the Bill had its third reading in the Senate.

-----AUSTRALIA: End-----

-----AUSTRIA-HUNGARY: Start-----

AUSTRIA-HUNGARY: A. D. 1870-1905.

Increase of population compared
with other European countries.

See (in this Volume)

EUROPE: A. D. 1870-1905.

AUSTRIA-HUNGARY: A. D. 1902 (June).
Renewal of the Triple Alliance.

See (in this Volume)
TRIPLE ALLIANCE.

AUSTRIA-HUNGARY: A. D. 1902-1903.

Notice by Austria of intention to end, in 1904, the
Customs Union which formed part of the Ausgleich, or
Federation Compact of 1867.
Language struggle in Austria.

The difficulties between Austria and Hungary, concerning a
renewal of the Ausgleich, or federation compact of 1867, which
created the dual empire,—some account of which is given in
Volume VI. of this work,—were compromised in 1900 by an
agreement which extended the Ausgleich temporarily until 1907.

See, in Volume VI.
AUSTRIA-HUNGARY: A. D. 1899-1900.

It was stipulated, however, in the agreement, that if no
permanent settlement of the questions involved should have
been reached by the end of the year 1902, either party to the
Ausgleich should be free to dissolve the Customs Union
that formed part of it after 1904, provided that said party
should have formally denounced the compact prior to January 1,
1902. The formal notice or denunciation was given accordingly
by Austria, whose government gave notice that it would end the
Customs Union unless better terms from Hungary could be
secured. In Hungary the Independence party led by Ferencz
Kossuth, the son of Louis Kossuth, was eager for the break,
desiring no union with Austria beyond that of the two crowns
on one head. The tariff question seemed insoluble, because
Hungary wanted protection for its agriculture, which Austria
believed to be greatly disadvantageous to herself.

The prime ministers of the two Governments came to an agreement which was submitted to the two parliaments early in 1903, but obstruction in both bodies prevented any effective action. On other questions the antagonism was no less pronounced. The Hungarian Independence party was resolute in determining to separate the Hungarian from the Austrian army, making it distinctly Hungarian, under Hungarian officers and using the Hungarian word of command. This drew from the Emperor, in September, a public announcement that he must and would hold fast to the existing organization of the army. At length, in December, Kossuth agreed, for his party, to abandon obstruction on condition that Parliament should proclaim, as a principle, that "in Hungary the source of every right, and in the army the source of rights appertaining to the language of service and command, is the will of the nation as expressed through the legislature." But though obstruction from the Independence party ceased then it was continued by a Catholic party, on grounds of personal hostility to the Protestant Premier, Count Tisza, and the Government, deprived of authority to recruit the army, kept in service the men whose term had expired.

An almost equal deadlock of legislation prevailed in Austria, where the struggle over language questions between Czechs and Germans went fiercely on; while Croatia was full of rebellious spirit, excited by the Magyarizing policy of its Hungarian governor.

Twice, during 1903, the Hungarian administration underwent a change, the Szell Ministry giving way in June to one headed by Count Kuen Hedervary, he, in turn, being displaced by Count Tisza in October. The latter was a son of Koloman Tisza, who had formerly held the reins in Hungary for many years.

AUSTRIA-HUNGARY: A. D. 1903-1904.

Concert with Russia in submitting the Mürzsteg Programme of reform in Macedonia to Turkey.

See (in this Volume)

TURKEY: A. D. 1903-1904.

AUSTRIA-HUNGARY: A. D. 1904.

Paralysis of Government in both divisions of the dual empire.

Legislation in both Austria and Hungary was paralyzed throughout 1904 by obstructive oppositions which nothing could pacify. In Austria it was the battle of Czech against German for language rights; but, in the end, the German Premier, Dr. Körber, lost the support of his own race, by allowing Italian law-classes to be formed in the University at Innsprück, with a faculty of their own. He resigned on the last day of the year, and was succeeded by Baron Gautsch.

In Hungary the obstruction was maintained by a combination of three parties,—the Independence Party of Ferencz Kossuth, which is irreconcilable in its repudiation of the union with Austria, the Liberal-Conservative Separatists, so-called, led by Count Apponyi, and a Catholic People's Party, under Count Zichy. The extraordinary attitude of these practical anarchists, as they would seem to be, is indicated by a performance at the opening of the session of the Hungarian Parliament on the 13th of December, 1904, which is described in the *Annual Register*, as follows:

"They entered the House before the usual time of meeting, assaulted the police when they endeavored to prevent some of the members from mounting the President's platform, tore down the woodwork, destroyed the furniture, and finally had themselves photographed, with the ex-Premier Baron Banffy at their head, in the midst of the ruin they had wrought. This extraordinary scene was described by M. Kossuth as 'a symbol

of the political maturity of the Magyars, who, after asserting their rights, refrain from excesses;’ and by Count Apponyi as ‘an evidence of the importance attached to continuity of legal right in Hungary.’ When the broken furniture was removed and the House was restored to something like its former appearance, the members returned; but all the attempts of the Government to speak were howled down by the Opposition." The Opposition which accomplished this paralysis of Government in Hungary numbered, in its three divisions, only 190 members, out of 451.

AUSTRIA-HUNGARY: A. D. 1904-1909.

Effects in Europe and on the Triple Alliance of the Russo-Japanese War.

See (in this Volume)

EUROPE: A. D. 1904-1909.

AUSTRIA-HUNGARY: A. D. 1905.

Action with other Powers in forcing financial reforms in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

AUSTRIA-HUNGARY: A. D. 1905.

Hostility to the Serbo-Bulgarian Customs Union.

See (in this Volume)

BALKAN STATES: BULGARIA AND SERVIA: A. D. 1902.

AUSTRIA-HUNGARY: A. D. 1905-1906.

Continued deadlock, seated mainly in Hungary.

Resignation of Count Tisza.

The Fejervary Ministry.

Dissolution of the Hungarian Parliament.

Kossuth and his allies take office.

Universal male suffrage adopted in Austria.

The deadlock of political forces in the Dual Empire was prolonged through another year, Hungary being the main seat of the block. Elections for the Hungarian Diet, in January, went heavily against the Ministry of Count Tisza and strongly in favor of that section of the Opposition which bore the name of the Independence Party and which was led by Ferencz Kossuth. Count Tisza resigned, and the Emperor-King endeavored to make terms with Kossuth, Apponyi, and Andrassy under which the Government might be carried on with parliamentary support. This proved impracticable, especially by reason of the insistent demand of the Opposition for a separation of the Hungarian from the Austrian part of the imperial army, and the determination of the sovereign not to yield to that demand. Count Tisza and his colleagues were kept in office until June, despite a heavy vote of censure in the Diet, and then the Emperor appointed as Premier General Baron Fejervary, who commanded no more support than his predecessor had done. The majority in the representative chamber denounced the Ministry as unconstitutional, and issued a manifesto, calling on the people to withhold taxes and military service from this simulacrum of Government, which had no lawful claim to either. This was accepted as good counsel by great numbers of people, and grave embarrassments resulted from the non-payment of taxes.

{37}

In the August number (1905) of ***The American Review of Reviews*** Count Albert Apponyi, leader of one of the parties united more or less in the Hungarian Opposition, gave the Hungarian side of the political issues with Austria. In part, he wrote: "The writer had the honor of delivering at St. Louis, at the Arts and Science Congress of last year, a short historical account of our relation with the Austrian dynasty. There are to be found the chief facts, which show:

- (1) That our forefathers called that dynasty to the Hungarian throne, not in order to get Hungary absorbed into an Austrian or any other sort of empire, but, on the contrary, under the express condition of keeping the independence and the constitution of the Hungarian kingdom unimpaired;
- (2) that this condition has been accepted and sworn to by all those members of the dynasty (Joseph II. alone excepted) who ascended the Hungarian throne;
- (3) that, nevertheless, practical encroachments on our independence, followed by conflicts and reconciliations, have been at all epochs frequent;
- (4) but that a juridical fact never occurred which could be construed into a modification of that fundamental condition of the dynasty's title to Hungary. ...

The physical person of the ruler is, in truth, the same in both countries, but the juridical personality of the King of Hungary is distinct and, as to the contents of its prerogative, widely different from the juridical personality of the Emperor of Austria. Hungary is the oldest constitutional country on the European Continent. The royal prerogative in her case is an emanation of the constitution,—not prior to it,—and consists in such rights as the nation has thought fit to vest in her king. In Austria, on the other hand, the existing constitution is a free gift of the Emperor, and has conferred on the people of Austria such rights as the Emperor has thought fit to grant to them. The title of 'Emperor of Austria-Hungary' ... [sometimes used] is simply nonsense. The time-hallowed old Hungarian crown has not been melted into the brand-new Austrian imperial diadem. That imperial title does not contain, to any extent, the Hungarian royal title. The Emperor of Austria, as such, has just as much legal power in Hungary as the President of the United States has. He is, juridically speaking, a foreign potentate to us.

"On these fundamental truths, no Hungarian—to whatever party he may belong—admits discussion. ... The Liberal party,

vanquished at the last elections, does not in the least differ from the victorious opposition as to the principles laid down in these pages; it only advocated a greater amount of forbearance against the petty encroachments which practically obscured them. That policy of forbearance became gradually distasteful to the country; seeing it shaken in the public mind, the recent prime minister, Count Tisza, formed the unhappy idea of gaining a new lease of power on its behalf by a parliamentary *coup d'état*. The rules of the House were broken, in order to prevent future obstruction, chiefly against military bills. This brought matters to an acute crisis. The parliament in which that breach of the rules had taken place became unfit for work of any sort, the country had to be consulted, and down went the Liberal party and the half-hearted policy it represented with no hope for revival.

"The army question, with its ever-recurring difficulties, is a highly characteristic feature of the chronic latent conflict between the Austrian and the Hungarian mentality. It amounts to this, that, as we are a nation, we mean to have an armed force corresponding to our national individuality, commanded in our language, and serving under our flags and emblems. It would be unnatural for any nation, and would be, in fact, an abdication of the title of 'nation,' to renounce such a national claim. The Austrians, on the other hand,—and, unhappily, their influence is still prevalent in this question,—not yet having abandoned the idea of a pan-Austrian empire, uncompromisingly adhere to the present military organization, which makes the German language and the imperial emblems prevalent throughout the whole army, its Hungarian portion included."

In September, 1905, the Emperor-King summoned the chiefs of the opposing coalition to Vienna and renewed his endeavor to make terms with them; but his own conditions, relative to the army, to the language of command and service in it, to the tariff relations between Austria and Hungary, and to other

matters of dispute, were apparently as uncompromisable as theirs, and only intensified the bad feeling in the country.

A little later the Fejervary Ministry announced a programme of policy which offered concessions and many excellent measures, but all save one of them were scorned. That one was a proposal of universal suffrage, with direct secret balloting, which in both Hungary and Austria had now become a subject of wide popular demand. The agitation for it became clamorous in the later months of the year, especially in the Austrian towns. But the leaders of the Hungarian Opposition were supposed to be personally hostile to universal suffrage. "As representatives of the most educated, wealthy, and powerful race in the kingdom, they have long enjoyed absolute political control. But universal suffrage," says a contemporary journalist, "would so increase the non-Magyar elements in Parliament as to deprive the Magyar leaders of much of their ascendancy. At present these leaders are strong enough to defeat the King's magnificent programme, announced by Baron Fejervary. But such a defeat would place them in an embarrassing position. They would have definitely assumed an attitude which belies their name of Liberal."

The Fejervary programme was well planned to be troublesome to the opponents of the Government. While not surrendering to their demand for the Magyar language of command in the Hungarian part of the Imperial army, it proposed that the men who do not speak that language should be trained in it as far as possible. And it included a number of other most important measures: for compulsory free education; for compulsory insurance of workmen; for small farm grants to the peasantry; for the conversion of mortgage debts that weigh on small landowners, and for various taxation reforms. Evidently the Opposition endeavored to keep public attention and public feeling focused on the claim for a distinct Hungarian army, with the Magyar language for its word of command. Kossuth, the dominating leader of the coalition against the Government,

defined the argument for this claim. No mention, he said, is made of any common army in the agreement on which the Dual Empire is founded. The Hungarian Constitution vests in the Emperor of Austria, as King of Hungary, "all those things which refer to the commanding and administration ... of the Hungarian army."

{38}

But the Constitution does not hint that the Hungarian army should be commanded in German. It has not specifically forbidden such a thing, but in another part of the Constitution it is provided that the language of public services in Hungary shall be Hungarian. And is not the army a "public service"? he asked. Besides, he explained: "A century ago the Hungarian magnates, generally, paid for their own soldiers, and ours was not, in the beginning, a State army. When the combination with Austria came about, the officers were of all nations, and the Austrians brought in many of their own. To tell the truth, our own Hungarians were too lazy—there is no other word for it—to take the trouble to reorganize and start a Hungarian army, so they left it to the Austrians for the time being. It was for this reason, and with the consciousness of this defect, that Article XI. expressly left the language of command to be determined, constitutionally, later. But we also expressly confined it within the limits of our own Constitution ... and we spoke of a Hungarian army, not a common one."

The year 1906 opened with the discords of the situation in Hungary rather heightened than lessened, and on the 19th of February the Emperor dissolved the Hungarian Parliament, announcing that he did so for the reason that the parties of the Opposition had "persistently refused to take over the Government on an acceptable basis without violating the Royal rights as by law guaranteed." Disturbances on the occasion were prevented by strong forces of soldiery and police. Two

days later the Austro-Hungarian tariff and a commercial treaty, both of which had been refused ratification in Hungary, were promulgated as of force, pending future action; and by various other arbitrary measures the Emperor-King assumed the right to prevent a governmental collapse. This attitude on the part of the sovereign appears to have produced a change of attitude among his opponents; for early in April M. Kossuth and Count Andrassy entered into an arrangement with him for the formation of a Ministry by themselves and their associates of the Coalition, with the understanding that the army question should be put aside until after the election of a new Parliament, to meet in May. At that session they promised to pass the budget, the new international commercial treaties, to maintain in every way the existing condition of things between Austria and Hungary, to permit the passage of a bill providing for universal manhood suffrage, and then for Parliament to terminate its labors, allowing the election of a new one under the universal suffrage system, the Cabinet to be re-formed conformably to the desires of the parliamentary majority. Thereupon the Emperor-King requested Dr. Alexander Wekerle, a former Hungarian Prime Minister, to form a Cabinet, including in it Kossuth, Apponyi, Andrassy, and Zichy. At the election, held soon after, the Independence party won about 250 out of 400 seats. The new Parliament was opened on the 22d of May.

In Austria, the grand event of 1906 was the franchise reform, which extinguished the whole system of class representation and established a representative Parliament on the broad basis of a manhood vote. "Every male citizen who had completed his twenty-fourth year and was not under any legal disability was entitled to be registered as a voter after one year's residence. Every male, including members of the Upper House, who had possessed Austrian citizenship for at least three years and had completed his thirtieth year, was eligible for election as a deputy; but members of the Upper House elected to the Lower could not sit in both at once. Voting was to be

direct in all provinces. In Galicia, however, every constituency would return two deputies, each voter having one vote, so as to permit of the representation of racial minorities, the population being composed of Poles and Ruthenians. Voting was to be obligatory under penalty of a fine wherever a provincial Diet should so decide. This Bill was passed, in the face of the opposition of the Conservative and aristocratic members of both Houses and of the extreme representatives of the various nationalities, mainly through the influence of the Emperor. He regarded it as the only way to get rid of Parliamentary obstruction, and the best means of stimulating loyalty to the dynasty."

Two changes of Ministry occurred in Austria during 1906, Baron Gautsch, as Premier, giving way to Prince Hohenlohe in April, and the latter resigning in June, to be succeeded by Baron Beck. Count Goluchowski, who had been Austro-Hungarian Minister of Foreign Affairs since 1895, resigned in October, because of ill-feeling against him in Hungary, and was succeeded by Baron Aehrenthal.

AUSTRIA-HUNGARY: A. D. 1906 (January-April).

At the Algeciras Conference on the Morocco question.

See (in this Volume)

EUROPE: A. D. 1905-1906.

AUSTRIA-HUNGARY: A. D. 1907.

Effects of universal and equalized suffrage in Austria.

Elections were held in Austria a few months after the passage of the law which introduced equal and universal male suffrage, and the character and disposition of the elected Reichsrath, which met in June, 1907, afforded indications of some remarkable effects from the extension and equalizing of the franchise. It was expected, of course, to popularize the Reichsrath, and break the domination of the upper classes in

that body; but, according to reports, it has done much more. Prior to 1896, the members of the Abgeordncten or lower house of the Reichsrath, then numbering 353, were all divided into four sections, elected by four classes of people, as follows: 85 elected by the owners of large landed estates, 22 by chambers of commerce and manufactures; 115 by town taxpayers assessed for five florins of annual tax, and by doctors of universities; 131 by country taxpayers assessed for five florins yearly. In that year the membership was enlarged by an addition of 72, who were to be representatives of the whole people, elected by universal male suffrage, while the old classified representation remained as before. The new law has swept away the whole system of a classified representation, and the representative house is now leveled to one footing, as a body of deputies from the people at large.

The most conspicuous effect of this in the elections appears to have been a sudden break of the power which the German element in the much-mixed population of the Austrian dominion has been able to exercise hitherto. Hence, it must be the fact that the Germans hold far more than their proportion of the property which the old system represented, and derived from that, formerly, a weight in the Reichsrath which their numbers cannot give them on the equalized vote.

{39}

Altogether, in the various Cisleithan states—the two Austrias proper, Bohemia, Moravia, Galicia, Silesia, Salzburg, Tyrol, Styria, Carinthia, Carniola, Istria, Dalmatia—they form a little more than one third of the total population, the other two thirds being mainly Slavonic, in many divisions, principally Czech, Polish, and Slovene.

Ten years ago the Austrian Reichsrath was offering a spectacle of factious disorder so violent that it drew the attention of the world, and was made entertaining as well as interesting by

Mark Twain, then a resident for some months at Vienna and writing descriptions of the scenes of tumult that went on before his eyes.

See in Volume VI. of this work

AUSTRIA-HUNGARY: A. D. 1897 (OCTOBER-DECEMBER).

The specially bitter race quarrel was over a language question between the Germans and the Czechs. The Czechs had succeeded in forcing the government to give their own tongue its rightful public use in Bohemia, where the German had displaced it officially for along time past. The determination of the Germans in the Reichsrath to undo this change practically paralyzed that legislature for a number of years, and seemed to be driving the realm of the House of Austria to inevitable wreck.

Indeed, some factions of the Germans made no concealment of their wish for such a wreckage, out of which the German Kaiser at Berlin might pick the pieces that it pleased him to take. They have never doubted the sympathy and countenance of their kinsmen in the neighboring empire, and that has emboldened them to an attitude which a minority, in other circumstances, would hardly take.

Within the last few years there has been a quieting of the antagonism; but most observers of the state of things in Austria have looked for serious troubles to arise, whenever the great personal influence of the present Emperor is withdrawn by his death. The imperial dominion of the Austrian archdukes could not be dissolved and its parts redistributed without subjecting the peace of Europe to such a trial as it never yet has gone unbrokenly through. If the Germans lose disturbing power in the Reichsrath, as the late elections are said to indicate that they will, and if racial factions give place to political parties, as a consequence of the equalized and universalized suffrage, then Austria may possibly be

welded into a nation, and her neighbors may not be tempted to quarrel over her dismembered remains.

AUSTRIA-HUNGARY: A. D. 1907.

Final negotiation of a new financial Ausgleich.

Adjustment of the vexed questions of tariff, joint debt, and revenue quotas.

The long struggle toward a readjustment of the **Ausgleich** or Agreement of 1866 between Austria and Hungary, on its financial side, was brought to a close on the 8th of October, 1907, by the signing of a new agreement that day. It continued the common customs arrangement until 1917, and provided that commercial treaties concluded with foreign powers must be signed by the representatives of both Austria and Hungary—a concession by Austria to Hungary. Hitherto the Austrian Minister of Foreign Affairs had conducted such negotiations. On its part, Hungary made the minor concession of conforming its stock exchange laws to those of Austria. Previously, excise duties had been common to both states; henceforth they were to be left to each state to be determined and levied. In the joint fiscal burden, Hungary's contribution was increased from 34.4 per cent to 36.4 per cent. Provision was made for a court of arbitration, composed of four Austrian and four Hungarian members, who must chose a ninth member as chairman.

AUSTRIA-HUNGARY: A. D. 1908-1909.

Hungarian politics.

The State Bank question.

Split in the Independence party.

M. de Justh, a new party leader.

Attitude of M. Kossuth.

Deadlock returned.

The complete deadlock of legislation in Hungary from 1904 into 1906 was overcome but partially, and not for long, by the

patched-up coalition which started the wheels of Government anew, under Dr. Wekerle, in April, 1906, as related above. In the course of the next two years the Wekerle Ministry accomplished some useful legislation, besides achieving the ratification of the important tariff and commerce agreement which settled long-troublesome disputes with Austria; but its very slight coherent energy was exhausted soon,—too soon for its promise of universal suffrage to be fulfilled.

Practically, it seems to have been at the end of its capabilities for some time before the spring of 1909, when, in April, it resolved to resign, and began an effort to escape from office which went on through the year without success. The Crown could induce no one to take from Dr. Wekerle the impossible task of government, and kept that unfortunate gentleman in his powerless place.

In Austro-Hungarian politics a new contention had now been developed, which divided the Independence party, led hitherto by M. Kossuth and Count Apponyi, so that it acquired on the new question a third more extreme sectional chief, in the person of the President of the Chamber, M. de Justh. The followers of M. de Justh were demanding the transformation of the existing joint State Bank into two autonomous banks, connected in operation, but distinctly Hungarian in one organization and Austrian in the other. This demand was opposed in Austria as determinedly as the obnoxious demand for army use of the Hungarian language in Hungarian regiments, and the Crown would give sanction to neither. Apparently, neither Kossuth nor Apponyi would act with M. de Justh on the bank question, and the Independence party lost, consequently, its advantage as the largest of the various parties in the Chamber.

In November, when a test of numbers occurred at a conference of the party, the following of M. de Justh was found to be largely in the majority. A resolution demanding the separate Hungarian State Bank was adopted by 120 votes against 74,

despite a declaration by M. Kossuth that he would quit the party if it took that stand. According to a Press report of what occurred at the conference, the burden of Kossuth's speech to the conference was "that without his name and his leadership the party would never have obtained the majority, and that many of those who were about to vote against him owed their seats in Parliament to his recommendation. His speech was indeed a scarcely-veiled threat that when deprived of the support of his name his opponents would find themselves forsaken by their constituents. The defeated minority proceeded forthwith to constitute itself as the 'Independence, 1848, and Kossuth party,' as distinguished from the 'Independence and 1848 party,' over which M. de Justh now reigns supreme."

{40}

Immediately after his triumph at the party conference M. de Justh resigned the presidency of the Hungarian Chamber and presented himself for reelection. In that test he suffered defeat, the combined forces of the Andrassy Liberals, the Clerical People's party, and the Kossuth group casting 201 votes against 157. The Croatian Deputies abstained, owing, it is said, to a promise made to them by Dr. Wekerle that, if they remained neutral, he would deliver Croatia from the oppressive rule of the Ban, Baron Rauch. The political situation in Hungary was thus more than ever confused.

AUSTRIA-HUNGARY: A. D. 1908-1909.

The "Greater Servia Conspiracy."

Alleged treasonable movement of Servians in Croatia.

The Agram trials.

The following telegram to the newspaper press, from Agram, Austria, October 5, 1909, reported the conclusion and the result of a long prosecution which had drawn wide attention and excited deep feeling in many parts of Europe for a full

year:

"After a trial lasting seven months, sentences were handed down to-day in the cases of fifty-two school teachers, priests, and other persons charged with connection with what is known as the 'Greater Serbia conspiracy.' The prisoners were accused of high treason in participating in a movement for the union of Croatia, Slavonia, and Bosnia to Serbia, even carrying the propaganda among the troops of the Austro-Hungarian army. Thirty of the accused are condemned to terms of rigorous imprisonment varying from four to twelve years, and twenty-two were acquitted. The persons condemned have given notification of appeal."

On the 31st of December it was announced from Vienna that all but two of the condemned had been set at liberty pending their appeal, this being consequent on the revelations of forgery in the documents on which they were convicted.

See (in this Volume)

EUROPE: A. D. 1908-1909 (OCTOBER-MARCH)

at close of article.

AUSTRIA-HUNGARY: A. D. 1908-1909.

Arbitrary annexation of Bosnia and Herzegovina.

Violence to the Treaty of Berlin.

The European disturbance and its settlement.

See (in this Volume)

EUROPE: A. D. 1808-1809 (OCTOBER-MARCH).

AUSTRIA-HUNGARY: A. D. 1909.

The language quarrel in Austria.

"Amid deafening uproar from the Czech Radicals, the Austrian premier has submitted to the Chamber [February 3, 1909] two bills for the regulation of the Bohemian language question.

The bills, which in present circumstances appear to have little chance of becoming law, divide Bohemia into 239 judicial and 20 administrative districts. Of the former, 95 are German, 138 Czech, and the remainder mixed, while of the administrative districts five are German, 10 Czech, and five mixed. In the German districts German is to be the predominant language, and in the Czech districts Czech, while in the mixed districts, which include Prague, the two languages are placed on an equal footing. Provision is, however, made for the use of either language if necessary throughout the whole province."

NEW YORK EVENING POST.

A telegram to the same journal from Vienna, March 10, reported:

"The Lower House of the Austrian Parliament, which closed on February 5, after a scene of extraordinary turbulence arising from old racial ill-feeling between the Germans and the Czechs, reopened to-day with every promise of a continuance of the disorders. The galleries of the House were crowded with partisans of the two factions, and as soon as the ministers appeared hostile shouts came from the Czech and radical benches, drowning the cheers of the members of the Left party and the Poles.

"Premier von Bienerth, amid an incessant tumult, declared the nineteenth session opened, saying he hoped the work would be crowned with success and the proceedings not disturbed. His statement sounded ironical in face of the unbroken uproar."

The following is a later Press despatch, November 2, from Vienna:

"The Emperor has accepted the resignations of the two Czech Ministers in the Austrian Cabinet, and has sanctioned the laws

adopted by the Diets of Upper and Lower Austria, Salzburg and Vorarlberg, to establish the unilingual German character of those provinces. In the name of the Czech people the Czech National Council addressed yesterday a telegram to the Emperor begging that the laws might not be sanctioned, since, runs the telegram, they affect the honour of the Czech people and must cause constant racial strife both in the provinces and in Vienna, 'which is not only the capital of Lower Austria, but is also the capital of the whole empire and of all its races. These laws are a dangerous beginning of constitutional changes in your Majesty's glorious empire.' A copy of the telegram was sent to the Polish leader, Dr. Glombinski, with an 'expression of the deepest regret that members of the Polish party should have supported as Ministers these anti-Slav laws.'"

A revival of turbulent obstruction to legislative proceedings in the lower house of the Austrian Reichsrath led, at last, in December, to the enactment of rules which so enlarge the powers of the speaker as to enable him to suppress factious obstruction and to suspend deputies who outrage the decencies of behavior in the Chamber. The measure was limited in its operation to a year, but is expected to be prolonged.

AUSTRIA-HUNGARY: A. D. 1909 (December).

Alleged plan of a Federated Triple Monarchy.

"There has been circulated in Paris a curious document, full of figures, supposed to be based on authentic information. This document relates to the plan attributed to Prince Lentur and Count d'Aehrenthal to change the dual monarchy of Austria-Hungary into a triple monarchy. Croatia, Bosnia-Herzegovina, and Dalmatia, according to the scheme, would be united into an independent and constitutional kingdom, corresponding to the old Illyria. The double state, Austria-Hungary, would be changed into a three-fold Austria-Hungary-Illyria. A Slav nation would thus stand side by side with the Teutonic nation of Austria and the Magyar

nation of Hungary. Its extent would be a good deal smaller, a little more than one-third, of the other two, and its population about a quarter of the Hungarian and one-sixth of the Austrian. According to this document, which is declared to have strong claims to be considered authentic, this change would no doubt be followed by a further one. Bohemia and Moravia would also want home rule. The monarchy would thus become a kind of Federal state. Hungary alone would remain standing strong and united as the centre and leader of this federation."

***New York Evening Post,
December 29, 1909.***

{41}

AUSTRIA-HUNGARY: A. D. 1909-1910.

The Hungarian situation.

Late in December, Dr. de Lukacs, who had served in the former Szell Ministry, was persuaded by the Crown to undertake the formation of a Government which might hope to secure some measure of parliamentary support, and on the 4th of January he was formally appointed Prime Minister; but his undertaking ended on the 11th, when he resigned, and Count Khuen Hedervary was heroic enough to accept the apparently hopeless task. The Hedervary Ministry suffered defeat on the 28th of January, when a vote of no confidence was carried by M. de Justh, and the King thereupon prorogued the chamber until March 24. A majority of the members, however, remained in session until they had adopted a resolution declaring the Government to be unconstitutional and forbidding the payment of taxes to it. Such is the Hungarian situation at the time this record of events goes to print—February, 1910.

AUSTRIA-HUNGARY: A. D. 1910.

The Archduke Franz Ferdinand,

Heir Apparent to the thrones.

Since the tragically mysterious death (January 30, 1889) of the Emperor's only son, Rudolph, the heir apparent to the several Hapsburgh crowns has been the Archduke Franz Ferdinand, son of the Emperor's brother, the late Archduke Karl Ludwig. In order to contract a morganatic marriage, some years ago, he renounced the right of his children to the imperial and regal succession; but it is believed that he will force the regularizing of his marriage and the annulling of his renunciation, as he is reputed to be a man of strenuous will. According to report, also, he is strongly anti-democratic and reactionary, and extremely likely to give trouble as a sovereign to this democratic generation.

-----AUSTRIA-HUNGARY: End-----

AUTOCRAT:

Title denied to the Czar by the Third Duma.

See (in this Volume)

RUSSIA: A. D. 1906-1907.

AZAD-UL-MULK.

See (in this Volume)

PERSIA: A. D. 1905-1907.

AZEFF:

The Russian police spy and agent provocateur.

See (in this Volume)

RUSSIA: A. D. 1909 (JANUARY-JULY).

AZUL, Party of the.

See (in this Volume)

PARAGUAY.

B.

BABISM.

See (in this Volume)
PERSIA: A. D. 1908-1909.

BACON, Robert:
Secretary of State.

See (in this Volume)
UNITED STATES: A. D. 1905-1909.

BADEN: A. D. 1906.
Introduction of universal suffrage.

See (in this Volume)
ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

BAEYER, Adolf von.

See (in this Volume)
NOBEL PRIZES.

BAGDAD RAILWAY, The.

See (in this Volume)
RAILWAYS: TURKEY: A. D. 1899-1909.

BA HAMED, Late Grand Wazeer of Morocco.

See (in this Volume)
MOROCCO: A. D. 1903.

BAHIA HONDA:

Coaling and naval station leased to the United States.

See (in this Volume)
CUBA: A. D. 1903.

BAHIMA, The.

See (in this Volume)
AFRICA: ITS COLONIZABILITY.

BAILEY, L. H.:
On Country Life Commission.

See (in this Volume)
UNITED STATES: A. D. 1908-1909 (AUGUST-FEBRUARY).

BAKHMETIEFF, Madame:
Her humane work in Macedonia.

See (in this Volume)
TURKEY: A. D. 1902-1903.

BAKHTIARI, The.

See (in this Volume)
PERSIA: A. D. 1908-1909.

BAKU: Destruction of Oil Industry.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

BALDWIN ARCTIC EXPEDITION.

See (in this Volume)
Polar Exploration.

BALFOUR, Arthur J.:
Becomes Prime Minister of England.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

BALFOUR, Arthur J.:
His puzzling attitude on Mr. Chamberlain's declaration for
preferential trade with the Colonies.
Correspondence on Mr. Chamberlain's resignation.

See ENGLAND: A. D. 1903 (MAY-SEPTEMBER).

BALFOUR, Arthur J.:
In the "Dreadnought" debate of 1909.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

BALFOUR MINISTRY:
Its resignation.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

-----BALKAN AND DANUBIAN STATES: Start-----

BALKAN AND DANUBIAN STATES: A. D. 1903-1907.
Complaint of European non-action by Christian subjects
of Turkey.

See (in this Volume)
TURKEY: A. D. 1903-1907.

BALKAN AND DANUBIAN STATES: Bosnia: A. D. 1908.
Arbitrary annexation to Austria-Hungary.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BALKAN AND DANUBIAN STATES: Bulgaria:
The influence of Robert College.

See (in this Volume)
EDUCATION: TURKEY, &c.

BALKAN AND DANUBIAN STATES: A. D. 1901.
The Bulgarian committee which directs revolutionary operations
and assassinations in Macedonia.

See (in this Volume)
TURKEY: A. D. 1901.

BALKAN AND DANUBIAN STATES: A. D. 1903.
Alleged promotion of revolt in Macedonia.

See (in this Volume)
TURKEY: A. D. 1902-1903.

BALKAN AND DANUBIAN STATES: A. D. 1905-1908.
Barbarities of Bulgarian bands in Macedonia.

See (in this Volume)
TURKEY: A. D. 1905-1908.

BALKAN AND DANUBIAN STATES: A. D. 1908.
The race struggle in Macedonia.

See TURKEY: A. D. 1908 (MARCH).

BALKAN AND DANUBIAN STATES: A. D. 1908-1909.
Independence of Turkey declared and won.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BALKAN AND DANUBIAN STATES: A. D. 1909.

Prince Ferdinand assumes the title of King.

On the acquisition of complete Bulgarian independence, Prince Ferdinand was said at first to be intending to assume the title of Tsar; but that intention, if it had been formed, was changed, and he took the title of King.

{42}

BALKAN AND DANUBIAN STATES: Bulgaria and Servia: A.D. 1905.

Customs Union Convention between the two States.

Anger and Hostility of Austria.

Dictatorial demands on Servia.

The frontier closed to trade.

"Servia and Bulgaria, in July, 1905, signed a Customs Convention, creating a customs union and breaking down the tariff barriers between the two countries. The age is the age of union in business, in finance, in every department in life. ... Not only has the Customs Convention between the two countries, which is, after all, but the first step towards a real zollverein, demonstrated the trend of international development, but it has enabled the world to see clearly the relations existing between the small Balkan States—unprotected by any guarantee of neutrality—and their great neighbours. It has been made clear that, despite all the many protestations in Vienna of goodwill to the Balkan States, Austria does not wish to see real progress in that part of Europe. And what is true of Austria is true also of Russia. ...

"True to her unvarying policy, Austria no sooner heard of the Customs Convention than she set to work to destroy it, claiming that it damaged her commercial interests. By her

unjust attempts at coercion, plain and undisguised, Austria brought into being a political bond between Bulgaria and Servia which was not in existence at the time of the signature of the Customs Convention. ...

"In the past Servia has fallen more and more completely under the domination of Austria; her geographical position and her internal troubles made her an easy prey for Vienna, and had it not been for the desire of Russia to share the dainty morsel, Servia would in all probability have gone ere this to join the Servian provinces of Bosnia and Hersegovina as an integral part of the Austrian Empire. Her commerce is almost solely with Austria or Hungary, and her finances are under the control of a French-Austrian syndicate. It might therefore well seem incredible that the small State, bound thus hand and foot to the oppressor, should dare to oppose her desire for liberty to the Austrian desire for gain, political, commercial, or financial. But just as under the Turkish rule the Servians began to fight for freedom in small bands, so the Customs Convention with Bulgaria represents the first blow for economic and political freedom. ... While the Convention represents an effort on Servia's part to free herself from the thrall of Austria, it was not directed against that country. It seeks rather to open up new markets and new means of export, for which there was sufficient reason in the fact that there was no increase in the export of Servian goods to Austria during the last few years, some of which even showed a decrease. Commercial development demanded that new markets should be sought and a new route via Bulgaria to the Black Sea ports be opened up. ...

"On January 8th the Austrian Minister in Belgrade presented a note from his Government making it a condition that in order that the negotiations for a commercial treaty should not be suspended, the Servian Government should engage not to bring the Customs Union before the Skouptchina before the conclusion of the treaty. At the same time he indicated the disastrous

results of refusal on Servia's part. The Servian Cabinet accepted the Austrian proposals as to the postponement of the presentation of the Customs Union to the Skouptchina, and promised also to consider the modification of the Convention in so far as these modifications were not contrary to the nature of the Customs Union. The Austrian Minister recommended a change of the reply, because his Government would not accept it as it stood. On the Servians refusing to make any change, he gave them till the afternoon of the next day to repent, with the alternative that the treaty negotiations would be broken off and the frontiers closed. ... Servia insisted upon maintaining her dignity as a nation, while expressing her readiness to meet Austria in every possible economic way. Furious at the Servian refusal, the Viennese authorities ordered the closing of the frontiers to Servian cattle, pigs, and even fowls. This last restriction was contrary to the existing treaty of commerce between the two countries which does not expire till March 1st, 1906. The cattle and pigs were excluded under the arbitrary veterinary convention, it having been found that a pig had died of 'diplomatic swine fever,' a contagious disease, prevalent when Servia opposes Austrian desires. The cool indifference with which Austria ignored her treaty obligations with Servia led to a profound feeling that it was hardly worth making sacrifices in order to obtain a new commercial treaty, which could be as equally well ignored. Patriotic fervour waxed great in Servia, and the people prepared to make a good fight for their liberty. But it was never overlooked that the relations with Austria were of great and vital importance."

***Alfred Stead,
The Serbo-Bulgarian Convention and its Results
(Fortnightly Review, March, 1906).***

BALKAN AND DANUBIAN STATES: Herzegovina: A. D. 1908.
Annexation to Austria.

See (in this Volume)

EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BALKAN AND DANUBIAN STATES: Montenegro: A. D. 1905.

Prince Nicholas's Constitution, and his operation of it.

"When Prince Nicholas heard that the Czar had promised his people a Constitution, he, disciple of Russia in all things, determined to outdo Nicholas II., and, as a matter of fact, granted his little country [December, 1905] a more liberal Constitution than that which Russia enjoys. In Russia certain things were not to be discussed in the Duma. In Montenegro, everything could be discussed. When this principle began to be put in practice, however, although in the most loyal and respectful manner, the Prince took offence and began to imprison politicians who dared to ask for information about the financial condition of the principality. As a consequence, he made himself unpopular among what in Russia would be called the 'intelligencia,' but, being a man of far stronger personality and more striking genius than the Czar of Russia, he is still feared and obeyed. He is, in fact, an old soldier with all the old soldier's preference for barrack discipline as the only method of rule, and in thinking that he understood what is meant by the words 'constitutional government' he deceived himself, for he does not understand, and being an old man surrounded by flatterers, he is perhaps less able to understand now than he would have been thirty years ago.

"If he had been more adaptable, and had taken greater pains to instruct his people in the methods of parliamentary government, the constitutionalist movement might have been a success, but unfortunately he withdrew from Cetinje in a 'huff' when the Skupschina passed some criticisms on the government, and declined to coöperate with the deputies, though they were all very anxious to have his advice. It is stated, on the other hand, however, that the Skupschina interpreted in too large a sense the Constitution that had

been granted to them."

***Special Correspondent New York Evening Post,
Cettinje, December 15, 1908.***

{43}

BALKAN AND DANUBIAN STATES: A. D. 1908-1909.

With Servia against Austrian annexation of Bosnia
and Herzegovina.

See (in this Volume)

EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BALKAN AND DANUBIAN STATES: Roumania: A. D. 1866-1906.

Development of the country under King Charles I. and
his admirable Queen.

"The efforts of King Charles have been principally devoted towards internal improvement. Railways have increased and improved since the State purchased them in 1886, at an outlay of 237,500,000 francs. Then there were 1,407 kilometres; in 1903 these had increased to 3,177. In the Dobrudja, given to Roumania after the war with Turkey, the King has created a great commercial port at Constantza, whence the grain and petroleum of Roumania can flood the market. From here will radiate a Roumanian merchant marine, which will bear the Roumanian flag to all parts of the world. Agriculture has been carefully cherished, and to-day the country is one of the principal grain-exporting countries of the world, and the lot of the peasant, formerly so low, has been improved. An educational system has sprung into being, owing much to the direct support and inspiration of the Royal family. The finances have been put on a stable footing, and although the nation has already acquired a sufficiency of debt, the future is not at all dangerously beset. Thanks to the discovery of extensive petroleum fields, Roumania has been strengthened and

raised from the position of a country relying solely on the rain and sun for its prosperity; while thanks to the King's indefatigable efforts and unceasing watchfulness, the petroleum industry has been protected from becoming the monopoly either of the ruthless Standard Oil Trust or of the politically guided and government-supported German Bank. Had King Charles done nothing else for Roumania, his determined and wise action in this question would have earned him all praise. But whether it be in the question of the Danube, with its international Commission, or of the transformation of the twelve enormous Crown lands, dispersed over the kingdom, into national and social models, to see and follow—a work due principally to M. Kalindero—the King's interest in all things which directly or indirectly touch Roumania is unabated.

"And what manner of man is this, who has thus created a European State out of the remnants of a land cursed by a Turkish rule and Phanariot sway? First and foremost he is always a Hohenzollern, swayed by his obedience to duty, and based upon that Hohenzollern saying: 'It is not enough to be born a prince, you must show that you are worthy of the title,' and second, he is ever a true Roumanian, who has caught much of the inspiration of those great former Roumanian leaders and warriors. His youth was one of discipline and healthy education, while the influence of his father on his character can never be overestimated. Every inch a king, he never forgets that he is always also a man—personal animosities never cloud his national judgment. An indefatigable worker and on an organised plan tending towards definite ends, King Charles devotes his whole time to his never-ceasing task. By his marriage to Princess Elizabeth of Wied' [known in literature as Carmen Sylva] 'a marriage so non-political as to make it a political event of the first importance,' he brought to Roumania a queen who made herself beloved of all, and speedily became the centre of all charitable ideas and works."

Alfred Stead,
King Charles I. of Roumania
(Fortnightly Review, July, 1906).

BALKAN AND DANUBIAN STATES: A. D. 1902.

Oppression of the Jews.

Appeal of the United States to the signatories
of the Treaty of Berlin.

On the 11th of August, 1902, Mr. John Hay, Secretary of State in the Government of the United States, addressed a communication to the American Ambassadors and Ministers in Great Britain, France, Germany, Austria-Hungary, Russia, Italy, and Turkey, whose governments were parties to the Berlin Treaty of 1878, directing that it be read to the proper ministers in the governments of those countries. The communication related to the treatment of the Jews in Roumania, which had long been a matter of deep concern to the United States, not only from sympathy with the persecuted people, but also because of the state in which it drove them as emigrants to this land. An abridgment of Secretary Hay's despatch, published at the time, renders its substance as follows:

"As long ago as in 1872 this country protested against the oppression of these Jews under Turkish rule. The Treaty of Berlin it was supposed would cure this wrong by the provisions of its forty-fourth article, which prescribed that 'in Roumania the difference of religious creeds and confessions shall not be alleged against any person as a ground for exclusion or incapacity in matters relating to the enjoyment of civil and political rights, admission to public employments, functions and honors, or the exercise of the various professions and industries in any locality whatsoever. These prescriptions, however, have, in the lapse of time, been rendered nugatory as regards the native Jews of Roumania.

Apart from the political disabilities of the Jews in that country, and their exclusion from the liberal professions, they are denied the inherent rights of man as a breadwinner in the ways of agriculture and trade. They are prohibited from owning land or from cultivating it as common laborers; they are debarred from residing in the rural districts, and many branches of petty trade and manual production are closed to them in the cities. They have become reduced to a state of wretched misery. The experience of the United States shows that the Jews possess in a high degree the qualities of good citizenship. No class of immigrants is more welcome to our shores when coming equipped in mind and body, but when they come as outcasts, made doubly paupers by physical and mental oppression in their native land, their migration lacks the essential conditions which make alien immigration either acceptable or beneficial. Many of these Roumanian Jews are forced to quit their native country, and the United States is almost the only refuge left to them. They come hither unfitted by the conditions of their exile to take part in the new life of this land, and they are objects of charity for a long time. Therefore the right of remonstrance against the acts of the Roumanian Government is fairly established in favor of this Government. This Government cannot be a tacit party to what it regards as an international wrong. It is constrained to protest against the treatment to which the Jews of Roumania are subjected. The United States is not a signatory to the Treaty of Berlin, and cannot, therefore, appeal authoritatively to the stipulations of that treaty, but it does earnestly appeal to the principles consigned therein, because they are the principles of international law and eternal justice."

{44}

BALKAN AND DANUBIAN STATES: A. D. 1907.

Agrarian and anti-Semitic riots.

Serious riotings of the peasants of Roumania, in both Moldavia and Wallachia, occurred in April, 1907. Before the rising could be suppressed more than 100,000 troops were employed; the capital, Bucharest, was in a state of siege, and martial law was proclaimed throughout the country. At first the character of the uprising seems to have been purely agrarian. The peasants demanded land at low prices and tried to throw off the yoke of the middlemen, who are mostly Jews. As the revolt spread, villages, farms, and even some towns were plundered and destroyed by wholesale. Hundreds of peasants were killed, and in several sections a state of real war existed for more than a week. King Charles issued a proclamation to his people promising the redress of their grievances. The Conservative ministry resigned on March 24 and a Liberal government was at once formed under the presidency of Dr. Sturdza.

BALKAN AND DANUBIAN STATES: Servia: A. D. 1901-1903. Royal Constitution-making and unmaking.

The character of the Servian monarchy, and the value to the nation of its king-made Constitution, may be judged from the following report, May 12, 1903, to the State Department of the United States Government, by its Minister at Athens, who has the care of American interests at Belgrade: "The Servian constitution now in force is that which was granted the country by King Alexander on April 6-19, 1901. Under this constitution the influence of the radical party had gradually increased to such an extent that the King thought it was dangerous to the welfare of the country. For some time there were rumors to the effect that a new constitution was in contemplation and would probably be put into force on the anniversary of its predecessor. More or less excitement was caused by these reports, and in consequence the King determined to act at once.

"On the afternoon of March 24—April 6 last [1903] a royal

proclamation was issued to the Servian people, explaining the King's views of the situation, suspending the constitution referred to above, annulling the ukase of April 6, 1901, and all subsequent ukases relating to the election of senators, retiring all the members of the council of state, dissolving the Skupshtina (national chamber of deputies), annulling the election of all senators chosen for the period 1901-1906, annulling various laws relating to the liberty of the press, the election of deputies, etc., and putting into force certain laws which had previously been repealed.

"The next morning a second proclamation was issued, putting the same constitution in force again, and directing the life senators to elaborate a provisional law for the election of senators and deputies, who should hold office, respectively, until September, 1909, and May, 1907.

"The date for the elections has been fixed for the first part of June. It is considered probable that the Radical members of the Government (four ministers, I believe) will soon withdraw from the cabinet."

BALKAN AND DANUBIAN STATES: A. D. 1903.

The murder of King Alexander, Queen Draga, her brothers, and two ministers of state.

The military plot.

King Alexander, who received the Servian crown, as a mere boy, by the abdication of his father, the erratic King Milan, in 1889, began his reign autocratically, but attempted twelve years later, to propitiate popular favor by the grant of a liberal constitution, in 1901.

See, in Volume I. of this work,

BALKAN AND DANUBIAN STATES: A. D. 1879-1889.

This failed, however, to win the good will of his subjects,

and he annulled it in April, 1903, with much of the legislation it had produced. This intensified public feeling against him, and against his unpopular Queen,—the former lady-in-waiting at his mother's court, Madame Draga Maschin. This marriage in 1900 is related in:

See in Volume VI. of this work

BALKAN AND DANUBIAN STATES: SERVIA.

There were fears of an intention to force recognition of Queen Draga's brother as heir apparent to the crown, and feeling in the army became especially bitter against both king and queen. The outcome was an awful tragedy of murder on the night of June 11, 1903, when a party of officers broke into the palace and slew, with barbaric ferocity, the King, the Queen, the Queen's brothers, the Prime Minister, and the Minister for War. The following account of the horrible tragedy appeared in the next issue of *The Contemporary Review*:

"All traces of the midnight carnage in the palace of Belgrade have been cleared away. The Pretender for whose benefit it was perpetrated comes in. First proclaimed in the midst of the still warm corpses, the title of military acclamation has been ratified by a National Assembly, convened by the Pretorians almost simultaneously with the massacre to meet three days after that event, and in the palace where Colonel Maschine and his lieutenants, acting in the names of outraged national dignity and social purity, put to shame human nature, Karageorgevich, whose career as a Pretender in some points resembles that of Louis Napoleon, accepts the proffered crown. The telegraphic agencies have informed us that order reigns at Belgrade, and that Peter I. has entered his capital amid demonstrations of public joy. The representatives of the Press of Europe, numbering about a hundred, were, through the civility of a palace official who witnessed the nocturnal invasion, taken through the theatre of one of the most revolting crimes of modern history. They were minutely

informed of the circumstances connected with it, saw the smashed doors and floors where dynamite tubes had exploded, the pistol shots in walls and ceilings; the timepieces shaken by the explosion had stopped at five minutes past one on the morning of the 12th June. The palace official took them into the little wardrobe room in which the King and Queen had hidden themselves, and, when found, met their doom, unshriven, offering no resistance. ...

{45}

"Officers who had studied in the Zurich Polytechnic school knew how to use dynamite without injury to themselves when they wanted to break in doors massive as those of a church. Those who had been told off to cut the electric wires communicating with lamps had indiarubber gloves. They searched by the light of composite candles they had brought in their pockets for the hiding-place of the King and Queen. When they discovered the fugitives, some of the officers held high the candles for their comrades to lay on and not spare the unfortunate pair. There was no attempt to resist. All Alexander wanted was 'to die with Draga,' and this elevated him into the region of romance. It may hereafter furnish a theme to Servian bards. Another modern circumstance makes one's flesh creep. The bodies, flung out of a window, lay on a garden walk until dawn, when a soldier received an order to wash them there with a fireman's hydrant, and when they had been cleansed to lay them on the tables of the palace kitchen for dissection. The surgeons had been requisitioned to come there at five o'clock. ...

"At the post-mortem in the palace kitchen at Belgrade, the surgeons counted in the body of Alexander six revolver wounds, each deadly, and forty-two sword wounds. Draga received two pistol balls and sixty-two sword cuts and slashes. She had been cut to pieces, but they left her face unmutated. And—still more frightful—her corpse bore black and blue marks

that testified to a merciless pounding with strong fists. The regicides gave so many conflicting accounts of their adventure that one did not know what to believe. It is now certain that the King and Queen were defenceless, that they at once on being aroused by the dynamite took refuge in her wardrobe room, and that they never sought to escape by the roof, and did not run through a long suite of rooms, slamming the doors after them. They had not a moment's time to utter a prayer.

"Draga's brothers received a five minutes' respite to make their souls. Nicodemus, the eldest, for whom Mademoiselle Pach mourns in Brussels, asked for cigars and for leave to embrace his brother. He and Nicholas faced unflinchingly a firing party, casting away the cigar ends as they stood before a wall. ...

"Colonel Maschine, who figures as the ringleader in the conspiracy, had been in the inner circle of King Milan, who thought him a valuable officer. Milan, a man with considerable ability and without his match in playing an intricate and difficult diplomatic game, had been educated in his mother's fast set in Vienna, and at a Paris lycée. ... Military force as a means of government recommended itself to his barbarous mind. It may be that he saw in Maschine a man suitable for *coup d'état* work. An ostensible reason for taking him into favour was Maschine's bravery in the campaign against Bulgaria and his personal fidelity to Milan, as twice evinced in saving his life. The partiality of the King buoyed up Maschine's hopes of a brilliant military career. Death overtook Milan, who so often had escaped poison and assassin's bullets, on his way to Belgrade, where he was to have set Alexander aside and remounted the throne. His unexpected decease blighted the colonel's prospects, inasmuch as Draga gained thereby uncontrolled influence over the King. She and the Maschines had long kept up a bitter feud. Barbarians like to brood over their grievances, real or imaginary. Colonel Maschine could not forget or forgive, and his pride prevented

him from trying to propitiate her when she let him know that he thought her more intractable than she really was. He had set about the slander that she poisoned her first husband, and then made believe he committed suicide. This story had been told by the Colonel to Milan. Alexander, when his father repeated it to him, called it a 'machination,' the name he ever after gave to slanders and libels that came to his knowledge about Draga. He refused to hear calumnious tales, but could not prevent anonymous letters passing into the hands of his secretary, and spoke of the Court of Russia as being stupidly turned against his wife by 'machinations.' One can understand from this why Colonel Maschine became the soul of the horrible conspiracy, and bent his whole mind to carry out a plan which has succeeded, through his perfect generalship as to *ensemble*, the minutest attention to details, the widest prescience, the coolest head and an utter unscrupulousness."

*Ivanovich,
The Servian Massacre
(Contemporary Review, July, 1903).*

In the same issue of *The Contemporary*, Dr. Dillon wrote: "A graphic version of one scene of the tragedy, which was given to me by one of the murderers, Adjutant N., is as follows:

'We were wild with passion, trembling with excitement, incapable of receiving any impressions from the things and people around us. Hence we cannot say who shot the King in the head, who in the heart. But I have a vivid recollection of some things. I remember turning out the electric light and going to fetch candles to light my comrades on the way. That done I remained together with them to the end. I remember our breaking into the King's bedroom, finding it empty, and then looking into the Queen's wardrobe room, where we found the pair. Who fired first? I don't know; nobody knows. At first we

did not fire at all. We drew our sabres and cut off the fingers of the King and Queen; four fingers were hewn from the King's hand. Then we fired.'"

E. J. Dillon,
Servia and the Rival Dynasties
(Contemporary Review, July, 1903).

The hideous crime which ended the reign of King Alexander excited horror everywhere except in Servia. There it seemed to be approved and rejoiced over universally, even the head of the national Servian Church, the Metropolitan of Belgrade, officiating at a thanksgiving service and commending the army for what it had done. Senators and Deputies of the Skupstchina filled the vacant throne by the election of Prince Peter Karageorgievitch, descendant of Kara Georg (Black George), the primary hero of the later struggle of the Servians with the Turk. King Alexander had been of the house of Milosh Obrenovitch, founder of the Obrenovitch dynasty, which supplanted that of Kara Georg.

See in Volume I. of this work,
BALKAN AND DANUBIAN STATES:
14TH-19TH CENTURIES: SERVIA.

Prince Peter, then in exile at Geneva, accepted the blood-stained crown, and was welcomed at Belgrade on the 24th of June. Foreign governments, except those of Russia and Austria-Hungary, gave no recognition to the new sovereign for some time; but, said a writer in *The Fortnightly Review* of the next month, "no thrill of horror has been manifested by the 'dear brothers' and 'cousins' of the royal victims; on the very day of the holocaust, when the mangled corpses of a King and Queen were being exposed to the outrages of frenzied fiends, there was never a pause in the pomp and circumstance and revelry of European Courts.

But the ghastly details of the deed have appealed to the melodramatic instincts of the vulgar, arousing a morbid indignation throughout every land. What honest person could fail to be stirred by the story of the conspirators, sitting over their wine under the verandah of the Srbski Kruna, uproariously urging the gipsy band to play Queen Draga's March before they sallied forth to hack her to pieces with their swords; by the airy apologies of the baffled murderers when they roused a citizen for axes and candles, wherewith to track down their victims in the sleeping palace; by the thought of the ill-starred young Sovereigns lying in their own gardens, riddled with bullets, sighing through the small hours for the long-delayed relief of death? In the pages of ancient or mediaeval history, even in sensational fiction, such hellish horrors could not fail to arouse intense emotion; in the cold glare of the twentieth century they are brought home so vividly that we are almost eye-witnesses."

***Herbert Vivian,
A 'Glorious Revolution' in Servia
(Fortnightly Review, July, 1903).***

A general election in September gave the Radicals a decisive majority in the Skupstchina, and a Radical Ministry under General Gruitch was formed.

BALKAN AND DANUBIAN STATES: A. D. 1904.

Coronation of King Peter.

King Peter was anointed and crowned with due ceremony, at Zicha, on the 9th of October, 1904. Representatives of all the Powers in Europe except Great Britain did honor to the occasion by their presence; thus condoning the foul crime which smeared the new King's crown with blood. The officers who committed the crime had been dismissed from their palace posts, but rewarded by military promotion.

BALKAN AND DANUBIAN STATES: A. D. 1908-1909.
Attitude toward Austria on the annexation of Bosnia and Herzegovina.

See (in this Volume)

EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BALKAN AND DANUBIAN STATES: A. D. 1908-1909.
The alleged "Greater Serbia Conspiracy."
The Agram Trials.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1908-1909.

BALKAN AND DANUBIAN STATES: A. D. 1909.
Renunciation of the crown by the Crown Prince.

The following note was addressed to the Prime Minister of Serbia by the Crown Prince, George, on the 25th of March, 1909: "Driven by unjustified insinuations based on an unfortunate occurrence, I beg in defence of my honour, as well as of my conscience, to declare that I renounce all claims to the Throne, as well as any other privileges to which I am entitled. I beg you to take note of this, and to take the necessary steps that this action may receive the necessary sanction. I place my services as a soldier and citizen at the disposal of my King and Fatherland, ready to give my life for them.

—George."

The "unfortunate occurrence" alluded to was the death of one of the Prince's servants from injuries which the Prince was believed by the public to have inflicted, as he was reputed to have a brutal temper.

BALKAN AND DANUBIAN STATES: Servia and Bulgaria: A.D. 1905.
Customs Union Convention.

See above:
BULGARIA AND SERVIA.

-----BALKAN AND DANUBIAN STATES: End-----

BALLINGER, Richard A.:
Secretary of the Interior, United States.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

BALLINGER, Richard A.:
Action against Water Power Monopoly.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1909.

BALLOONS, Dirigible.

See (in this Volume)
SCIENCE AND INVENTION, RECENT.

BALTIC FLEET, The Russian:
Its voyage and destruction.

See (in this Volume)
JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

BALTIC PROVINCES:
Peasant insurrection.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

BALTIMORE: A. D. 1904.

Destructive fire.

Next to that at Chicago in 1871, the most destructive fire among the many that have devastated the cities of the United States occurred at Baltimore on February 7th and 8th, 1904. It burned for thirty hours, in the heart of the city, the center of its business, destroying some 2600 buildings and consuming property to the estimated value of \$75,000,000.

BAMBAATA.

See (in this Volume)

SOUTH AFRICA: NATAL: A. D. 1906-1907.

BANNARD, Otto T.:

See (in this Volume)

NEW YORK CITY: A. D. 1909.

BARCELONA: A. D. 1902.

General strike and battle with soldiery.

See (in this Volume)

LABOR ORGANIZATION: SPAIN.

BARCELONA: A. D. 1909.

Revolutionary outbreak.

Trial and execution of Professor Ferrer.

See (in this Volume)

SPAIN: A. D. 1907-1909.

BARCELONA: A. D. 1909.

Riotous hostility to war in Morocco.

See MOROCCO: A. D. 1909.

BARGE (ERIE) CANAL, The.

See (in this Volume)
NEW YORK STATE: A. D. 1898-1909.

BARNATO, Harry.
Bequest for cancer research.

See (in this Volume)
PUBLIC HEALTH.

BARRETT, Charles Simon:
President of the National Farmers' Union.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1909.

BARRETT, John.

See (in this Volume)
AMERICAN REPUBLICS, INTERNATIONAL BUREAU OF.

BARRETT, John.
Delegate to Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

BARTHOLDT, Richard.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1904-1909, and 1907.

BARTON, Sir Edmund:
Premier of Australia.

See (in this Volume)
AUSTRALIA: A. D. 1903-1904.

BAST, The taking of.

See (in this Volume)
PERSIA: A. D. 1905-1907.

BASUTOLAND:

See (in this Volume)
SOUTH AFRICA: A. D. 1904, and 1909.

BAVARIA: A. D. 1906.
Introduction of direct voting.

See (in this Volume)
ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

BEATIFICATION OF JOAN OF ARC.

See (in this Volume)
PAPACY: A. D. 1909 (APRIL).

BECHUANALAND: A. D. 1904.
Census.

See (in this Volume)
SOUTH AFRICA: A. D. 1904, and 1909.

BECK, Baron.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1905-1906.

BECQUEREL, Henri.

See (in this Volume)
SCIENCE, RECENT: RADIUM;
also, NOBEL PRIZES.

"BEEF TRUST," The:
Investigations and prosecutions by the U. S. Government.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES:
A. D. 1901-1906; 1903-1906; and 1910.

{47}

BEERNAERT, M.

See (in this Volume)
NOBEL PRIZES

BEHRING, Emil Adolf von.

See (in this Volume)
NOBEL PRIZES.

BEIRUT:
Joy over the restored constitution of Turkey.

See (in this Volume)
TURKEY: A. D). 1908 (JULY-DECEMBER).

-----BELGIUM: Start-----

BELGIUM: A. D. 1870-1905.
Increase of population compared with other European countries.

See (in this Volume)
EUROPE: A. D. 1870-1905.

BELGIUM: A. D. 1900-1904.

Municipal systems of insurance against unemployment.

See (in this Volume)

POVERTY, PROBLEMS OF: UNEMPLOYMENT.

BELGIUM: A. D. 1902.

Popular opposition to the plural vote.

Demand for constitutional revision defeated.

General strike in the country.

Substantially universal but not equal suffrage is given to the male citizens of Belgium by the Constitution of the kingdom as revised in 1893.

See in Volume I. of this work,

CONSTITUTION OF BELGIUM.

All have one vote, but certain classes of persons, qualified by property ownership, tax-payments, education, office-holding or professional dignity, are given one or two supplementary votes. Opposition to this political inequality had been growing from the first, until it united the Socialist and Liberal parties in a demand for the revision of the Constitution, not only to abolish the plural suffrage, but to introduce proportional representation and compulsory education. The agitation attending this demand brought about, in April, a general strike throughout the country of workmen in all departments of industry, to the extent of 350,000. The Government resisted the demand, maintaining that the system of plural voting had not been sufficiently tried, and the bill for constitutional revision was defeated in the Chamber of Representatives, after a bitter debate, by 84 votes to 64.

The situation was described as follows by Mr. Townsend, the American Minister to Belgium, in a despatch of April 19:

"The struggle between labor and capital in Belgium has become extremely acute in the past few years. A large industrial population, confined to a small superficial area, with long hours of labor and small wages, have combined to produce a feeling of discontent among the working classes, who, perhaps unjustly, blame the existing Government for a condition of affairs which may be due to economic conditions rather than political. This is a factor which may be largely responsible for the rapid growth of Socialism in Belgium during the past few years. Liberals and Socialists have combined to fight for universal suffrage, and have raised the cry 'one man one vote' as a panacea for the existing ills.

"The Clericals maintain that the existing system of plural voting meets the present requirements of the country; that it places a premium on education, and acts as a check to the power of the ignorant, who are prone to resort to violence and disorder. The more moderate Liberals in the House of Representatives expressed a willingness to accept a compromise in the shape of a total abolition of the triple vote, granting one vote at 25 years and a second vote to married men of 35 or 40 years, with legitimate issue. The Clericals, however, would not consider a compromise and opposed revision in any form.

"During the past fortnight, while the debates on the subject of revision were being held in the House of Representatives, the socialists and workmen have held nightly meetings at the Maison du Peuple, and have frequently paraded the streets shouting for universal suffrage and 'one man one vote.' The Liberal members, as well as some of the socialist leaders in the House, have cautioned the paraders to be calm, to avoid violence and disorder. But the ranks of the paraders have been swelled by the addition of the representatives of the very lowest and criminal classes of the population, the result being a conflict with the police followed by the breaking of windows and other damages to property. Shots were exchanged between the gendarmes and rioters, several of the latter being

killed and wounded. Similar scenes were at the same time enacted in other towns in Belgium, consequently the Government called out the troops. Order has been restored, but the streets of Brussels, as well as the large towns, are lined with soldiers. A general strike has taken place in all the industrial centers of Belgium, with the avowed object of forcing the Government to grant universal suffrage, but without success. The feeling of unrest is very general all over the country."

***Papers relating to the Foreign Relations of
the United States, 1902, page 85.***

BELGIUM: A. D. 1903.

Enactment to compensate workmen for injurious accidents.

See (in this Volume)

LABOR ORGANIZATION: BELGIUM: A. D. 1903.

BELGIUM: A. D. 1903.

Agreement for settlement of claims against Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

BELGIUM: A. D. 1903-1905.

King Leopold's administration of the Congo State.

See (in this Volume)

CONGO STATE: A. D. 1903-1905.

BELGIUM: A. D. 1904.

Liberal gains in the elections, at the expense of the Catholics and Socialists.

Belgian elections, in May, reduced the majority by which the Clericals still retained control of the Government, and took

six seats in the representative chamber from the Socialists, adding in all nine to the representation of the Liberal party. The latter continued, with no success, its demand for a revision of the Constitution, especially for the abolition of the plural vote, which gives the Church party its majority in Parliament, while its voters are an actual minority of the nation.

Belgian feeling on the subject of the charges of brutal oppression in the Congo Free State was deeply stirred, and its current ran strongly against the accusers of the King. The public in general appears to have been fully persuaded that interested motives were actuating the whole criticism of Congo administration, and that the stories of inhumanity to the natives were wholly false.

BELGIUM: A. D. 1906.

At the Algeiras Conference on the Morocco question.

See (in this Volume)

EUROPE: A. D. 1905-1906.

BELGIUM: A. D. 1908.

North Sea and Baltic agreements.

See (in this Volume)

EUROPE: A. D. 1908.

BELGIUM: A. D. 1908 (October).

Annexation of the Congo State.

See (in this Volume)

CONGO STATE: A. D. 1906-1909.

BELGIUM: A. D. 1909.

New military law.

Compulsory service with no substitution.

See (in this Volume)
WAR, THE PREPARATIONS FOR: BELGIAN.

BELGIUM: A. D. 1909 (October).
The Government's programme of reforms in the Congo State.

See CONGO STATE: A. D. 1909 (OCTOBER).

{47}

BELGIUM: A. D. 1909 (December).
Death of King Leopold.
Accession of King Albert.

On the 17th of December, 1909, King Leopold died. He was succeeded on the throne by Prince Albert, son of his brother, the Count of Flanders. Of the new King, who was born in 1875, it was said by The Times, of London: "The happiest expectations are cherished in Belgium for the new King's reign. He has shown, together with his gracious Consort, that desire to identify himself with the interests of the humblest of his subjects which we are accustomed to admire among the characteristic merits of our own Royal Family. He was naturally precluded by his position from taking any part in the controversies connected with the Congo, but it may reasonably be thought that if his uncle's life had been less prolonged the constitutional difficulties raised by the 'Congo question' would have been avoided. He is known to have been painfully impressed by the need of reform during his recent visit to the colony."

-----BELGIUM: End-----

BELL, Richard:
Secretary of the Amalgamated Society of Railway Servants.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1907-1909.

BENEDICTINES: Forbidden to teach in France.

See (in this Volume)

France: A. D. 1908.

BENGAL: A. D. 1905.

Partition of the Province.

See (in this Volume)

INDIA: A. D. 1905-1909.

BEQUESTS.

See GIFTS.

BERESFORD, Admiral Lord Charles:

On the "Dreadnought."

See (in this Volume)

WAR, THE PREPARATIONS FOR: DREADNOUGHT ERA.

BERKELEY, California:

Perfect example of the "Commission Plan" of Government.

See (in this Volume)

MUNICIPAL GOVERNMENT: CALIFORNIA.

BERLIN: A. D. 1903.

Sweeping victory of Socialists in Imperial election.

See (in this Volume)

GERMANY: A. D. 1903.

BERLIN: A. D. 1905.

Strike in electrical industries.

See (in this Volume)
LABOR ORGANIZATION: GERMANY.

BERLIN TREATY OF 1878, Violations of the.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BETHMANN-HOLLWEG, Dr. von:
Appointed Chancellor of the German Empire.

See (in this Volume)
GERMANY: A. D. 1908-1909, AND 1909 (OCTOBER-DECEMBER).

"BIG SIX," The.

See (in this Volume)
Combinations, Industrial: United States: A. D. 1903-1906.
The "Beef Trust."

BIRRELL, Augustine,
President of the Board of Education.

See (in this Volume)
ENGLAND: A. D. 1905 (DECEMBER), and 1905-1906.

BIRRELL, Augustine,
Chief Secretary for Ireland.
Proposed Councils Bill for Ireland.

See (in this Volume)
IRELAND: A. D. 1907 (MAY).

BISWAS, Ashutosh, Assassination of.

See (in this Volume)
INDIA: A. D. 1907-1908.

BITUMINOUS COAL STRIKES.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES.

BJORNSON, Bjornstjerne.

See (in this Volume)
NOBEL PRIZES.

BLACK HAND, The.

See (in this Volume)
CRIME AND CRIMINOLOGY.

BLERIOT, Louis.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

BLIND, Karl:
On the "Young Turks."

See (in this Volume)
TURKEY: A D. 1908 (JULY-DECEMBER).

"BLOC," Chancellor Bülow's:
Incongruous coalition in the German Reichstag.

See (in this Volume)
GERMANY: A. D. 1906-1907.

Its break.

See GERMANY: A. D. 1908-1909.

"BLOODY SUNDAY."

See (in this Volume)
RUSSIA: A. D. 1904-1905.

BOARDS OF CONCILIATION.

See Labor Organization:
GERMANY: A. D. 1905-1906.

BOBRIKOFF, Governor-General of Finland:
His assassination.

See (in this Volume)
FINLAND: A. D. 1904.

BOER-BRITISH WAR, Last year of the.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

BOERS, The:
Repatriation and resettlement.

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1903.

BOERS, The:
Active in movement for South African Union.

See (in this Volume)
SOUTH AFRICA: A. D. 1908-1909.

BOGOLIEPOFF, M.,
Assassination of.

See (in this Volume)
RUSSIA: A. D. 1901-1904.

BOLIVIA: A. D. 1901-1906.
Participation in Second and Third International Conferences
of American Republics, at Rio de Janeiro.

See (in this Volume)
American Republics.

BOLIVIA: A. D. 1901.
Broad Treaty of Arbitration with Peru.

See (in this Volume)
ARBITRATION, INTERNATIONAL: A. D. 1902 (NOVEMBER).

BOLIVIA: A. D. 1903-1909.
Boundary disputes in the Acre region with Brazil and Peru.

See (in this Volume)
ACRE DISPUTES.

BOMBAY PRESIDENCY, The Bubonic Plague in.

See (in this Volume)
Public Health: Bubonic Plague.

BONAPARTE, Charles J.:
Secretary of the Navy and Attorney-General.

See (in this Volume)
UNITED STATES: A. D. 1905-1909.

BOND, Sir Robert: Premier of Newfoundland.
Negotiation of the Hay-Bond Reciprocity Treaty.

See (in this Volume)
NEWFOUNDLAND: A. D. 1902-1905.

BOND, Sir Robert:
At the Imperial Conference of 1907.

See (in this Volume)
British Empire: A. D. 1907.

BOND, Sir Robert:
Resignation and defeat at election.

See (in this Volume)
NEWFOUNDLAND: A. D. 1908-1909.

BONHAM, Captain W. F.

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1903.

BONILLA, General Manuel:
Revolutionary President of Honduras.

See (in this Volume)
CENTRAL AMERICA: A. D. 1903, and 1907.

BONUS SYSTEM, The.

See (in this Volume)
LABOR REMUNERATION: THE BONUS SYSTEM.

"BOODLERS," so called, in municipal government.

See (in this Volume)
MUNICIPAL GOVERNMENT.

BORSTAL SYSTEM, The.

See (in this Volume)
CRIME AND CRIMINOLOGY: PREVENTIVE DETENTION.

BOSHIN CLUB.

See (in this Volume)
JAPAN: A. D. 1909.

BOSNIA.

See (in this Volume)
BALKAN AND DANUBIAN STATES.

BOSTON: A. D. 1904.
International Peace Congress.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1904.

BOSTON: A. D. 1909.
New plan of city government chosen by popular vote.

See (in this Volume)
MUNICIPAL GOVERNMENT.

{49}

BOTHA, GENERAL LOUIS:
In the closing year of the Boer-British War.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

BOTHA, GENERAL LOUIS:
Premier of the Transvaal.
At the Imperial Conference of 1907.

See BRITISH EMPIRE: A. D. 1907.

BOTHA, GENERAL LOUIS:

Leader in movement for South African Union.

See (in this Volume)

SOUTH AFRICA: A. D. 1908-1909.

BOURGEOIS, Leon:

President of the French Chamber of Deputies.

See (in this Volume)

FRANCE: A. D. 1902. (APRIL-OCTOBER).

BOURGEOIS, Leon:

President of Chamber of Deputies.

See (in this Volume)

FRANCE: A. D. 1903.

BOURGEOIS, Leon:

Minister of Foreign Affairs.

See FRANCE: A. D. 1906.

BOURSE LAW, German:

Revision of it.

See (in this Volume)

GERMANY: A. D. 1908.

BOURSES DU TRAVAIL.

See (in this Volume)

LABOR ORGANIZATION: France: A. D. 1884-1909.

BOXER OUTBREAK, The:
Penalty paid by China for it.

See (in this Volume)
CHINA: A. D. 1901-1908.

BOXER OUTBREAK, The:
Recurrence of.

See (in this Volume)
CHINA: A. D. 1902.

BOYCOTTING: In China:
The boycotting of the United States in 1905.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

BOYCOTTING: In India.

See INDIA: A. D. 1905-1906.

BOYCOTTING: In Ireland:
The recent practice.

See IRELAND: A. D. 1902-1908.

BOYCOTTING: In Turkey, of Austrian commodities.

See EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

BOYCOTTING: In the United States:
By Trade Unions.
Decisions of courts.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1908-1909.

BRADDON SECTION, The.

See (in this Volume)
AUSTRALIA: A. D. 1910.

BRANCO, Baron do Rio.

See (in this Volume)
AMERICAN REPUBLICS: THIRD INTERNATIONAL
CONFERENCE.

BRAUN, Ferdinand.

See (in this Volume)
NOBEL PRIZES.

BRAZIL: A. D. 1901-1902.
Participation in Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

BRAZIL: A. D. 1902.
Inauguration of President Alves.

Dr. Rodriguez Alves was inducted in office as President of the
United States of Brazil on the 15th of November, 1902,
succeeding Dr. Campos Salles.

BRAZIL: A. D. 1903.
Settlement of boundary dispute with Bolivia.

See (in this Volume)
ACRE DISPUTES.

BRAZIL: A. D. 1904.

An impromptu Revolt that became a comedy of errors.

"To the American who is under the impression that all South America is continually in the throes of one or another revolution it will come as a surprise to learn that this vast district, comprising one half the territory and almost two thirds the population of the whole continent, has known no revolution since the founding of the Republic. The revolts of 1893, 1897, and 1904, menacing in varying degree, were outbursts fostered by a centralization of national vitality which inspired the belief in each insurrectionist that it was but necessary to strike the head,—the body would lie dormant. The justification of this belief lay in the historical fact that the vast majority of successful revolts throughout South America have consisted merely in *coups d'état*. The masses *have* lain dormant, and the fighting, if any, has generally come after the somersault.

"The revolt of November of last year in Brazil was so typical of South American revolutions, and so elementary, that it affords a lucid illustration. Owing to the prompt and efficient measures taken by the government to suppress true reports of the disturbance, and owing, too, to its signal failure, this revolt was scarcely mentioned by the American press. Nevertheless, it missed by little causing international commotion. ...

"A great epidemic of smallpox led the government to require of Congress a law making vaccination compulsory. Long and heated debate on the constitutionality of the measure went on, while the epidemic assumed alarming proportions. The Executive's patience being worn out, arbitrary pressure was brought to bear, and the law passed. This intervention brought down the general censure of the press, and the opposition seized the handle with disproportionate avidity. On the eleventh of November a mass meeting was held in one of the central squares

of Rio Janeiro. ... The mounted police broke up the meeting with the flat of the sword: no lives were lost. On the following day the scene was duplicated, several people injured, and a life lost. By night riots had broken out in various parts of the city.

"Up to the fourteenth of November, revolution was not even rumored. ... Toward evening city and government were genuinely surprised by the news that General Travassos, who was to have commanded a battalion in the review, immediately upon the announcement of its postponement had proceeded to the Military Academy on the outskirts of the city, and, before the student body, had demanded of the officer in charge transfer of his command. Frightened by the attitude of the cadets, the commanding officer made a puerile protest, and surrendered. He and his staff were allowed to withdraw, and carried the news of the revolt to the city. It was soon confirmed: the cadets were advancing on the President's palace, under the leadership of General Travassos. ...

"The shortest line of march was along the bay front, and to repulse the attack were sent by land a battalion of the line reinforced by police, and by sea two gunboats under the play of searchlights from an armored cruiser. The cadets marched under the assurance that no soldier of the line would fire on them, as the army was back of the movement. ... They were met by an armed force, indistinguishable owing to the destruction of all the lamps by rioters. The force was the advancing battalion, and it is generally believed that it fired on the cadets, mistaking them for the returning body of police which had followed the water front. Brisk fighting ensued, when suddenly the cry arose among the cadets that they had been betrayed, and were attacked by soldiers of the line. They broke and made a disorderly retreat to the Academy. Almost simultaneously the soldiers learned their mistake, and that they had opposed a commanding officer; and they turned in precipitous flight. General Travassos was mortally wounded in

the engagement. ...

{50}

"Meanwhile the detachment of police dispatched from the city had advanced along the bay front to the stone quarry, where they awaited the rebels. Drawn up at this spot under close formation, they were mistaken by the gunboats for the cadets, and were made the target of a disastrous hail of bullets from quick-firing guns. Their retreat also was precipitous.

"Such was the comedy of errors which will be known as the Revolt of 1904. Its net results were a rude but salutary recall of the government to watchfulness; added prestige abroad for the government, vouched by a rise in its bonds; and, most significant of all, spontaneous and immediate support of the Chief Executive from neighboring states. And yet the credit was not due to the government, which avowedly had been caught napping, but to the Goddess of Chance, the arbiter of every *coup d'état*."

G. A. Chamberlain,
The Cause of South American Revolutions
(*Atlantic Monthly*, June, 1905).

BRAZIL: A. D. 1904.

Settlement of boundary between Brazil and British Guiana.

By the decision of the King of Italy, to whom the boundary question in dispute between Brazil and British Guiana had been referred, the line separating the territories of the two states was defined, as drawn by Nature, along the watershed, starting from Mount Yakontipu and running easterly to the source of the river Mahu, thence down that river to the Tacuta and up the latter to its source, where it touches the boundary already determined. Both countries to have free navigation of the rivers in question.

BRAZIL: A. D. 1906.
Presidential Election.

The quadrennial presidential election occurring in Brazil in the spring of 1906 raised Dr. Alfonso Moreira Penna from the Vice-Presidency to the Presidency of the Republic, with no disturbance of its quiet.

BRAZIL: A. D. 1906.
German Colonies.

"Already 500,000 Germans, emigrants and their offspring, are resident in Brazil. The great majority of them, it is true, have embraced Brazilian citizenship, but their ideals and ties are essentially and inviolably German. In the south, where they are thickest, they have become the ruling element. German factories, warehouses, shops, farms, schools and churches dot the country everywhere. German has superseded Portuguese, the official language of Brazil, in scores of communities. Twenty million pounds of vested interests—banking, street railroads, electric works, mines, coffee-plantations, and a great variety of business undertakings—claim the protection of the Kaiser's flag. A cross-country railway and a still more extensive projected system are in the hands of German capitalists. The country's vast ocean traffic, the Amazon river shipping, and much of the coasting trade are dominated by Germans.

"Over and above this purely commercial conquest, however, looms a factor of more vital importance to North American susceptibilities—namely, the creation of a nation of Germans in Brazil. That is the avowed purpose of three German colonising concerns, which have become lords and masters over 8,000 square miles of Brazilian territory, an area considerably larger than the kingdom of Saxony, and capable of dwarfing half-a-dozen German Grand Duchies. It is the object of these territorial syndicates to people their lands with

immigrants willing to be 'kept German'—a race of transplanted men and women who will find themselves amid conditions deliberately designed to perpetuate 'Deutschthum,' which means the German language, German customs, and unyielding loyalty to German economic hopes."

***F. W. Wile,
German Colonisation in Brazil
(Fortnightly Review, January, 1906).***

"The talk about German exploitation of Brazil for colonization purposes is pure buncombe. The writer has visited the southern Brazilian provinces of Rio Grande do Sul, Santa Catharina, and Parana, where most of the Germans reside, and he has seen no more reason for Brazil to fear ulterior purposes on the part of Germany than has the United States because Germans form a large percentage of the population of New York, Chicago, and Milwaukee. The Germans make excellent Brazilian citizens, while loving the Fatherland from association and respecting the Emperor for his great personality."

***John Barrett,
The United States and Latin America
(North American Review, September 21, 1906).***

See (in this Volume), also,
GERMANY: A. D. 1904.

BRAZIL: A. D. 1906.

Third International Conference of American Republics
at Rio de Janeiro.

See (in this Volume)
AMERICAN REPUBLICS.

BRAZIL: A. D. 1907.

Adoption of obligatory military service.

By a law enacted in 1907 military service was made obligatory.

BRAZIL: A. D. 1908.

Dreadnought building.

See (in this Volume)

WAR, THE PREPARATIONS FOR.

BRAZIL: A. D. 1908-1909.

Increasing immigration.

See (in this Volume)

IMMIGRATION AND EMIGRATION.

BRAZIL: A. D. 1909.

Frontier agreements and demarcations.

The Message of President Penna to Congress, May 3, 1909,
contained the following announcements:

"On September 15 last, a treaty between Brazil and Holland was finally approved at The Hague, to determine the limits of our frontier with the Colony of Surinam or Dutch Guiana. The demarcation of the new frontier line between Brazil and Bolivia in Matto Grosso is now completed, and awaits only the approval of the two Governments interested. The same mixed commission to which was intrusted this survey will now proceed to reconnoitre the head-waters of the Rio Verde. The Government of the French Republic proposes the appointment of a mixed commission for the demarcation of the common boundary established on December 1, 1900, by arbitration of the Swiss Federal Council. An agreement will shortly be arrived at with Great Britain to determine the frontier of Brazil with British Guiana."

BRAZIL: A. D. 1909.

Death of President Penna.
Accession of the Vice-President.

Dr. Alfonso Penna, President of Brazil, died suddenly on the 14th of June, 1909, and was succeeded in the office by the Vice-President, Señor Nilo Pecanha, who will fill out the presidential term, ending November 15, 1910. Meantime an active canvass of candidates for the succeeding term has been in progress, the names most discussed being those of General Hermes de Fonseca, Baron Rio Branco, Minister of Foreign Affairs, and Señor Ruy Barbosa, a prominent advocate.

-----BRAZIL: End-----

BRENNAN MONO-RAIL SYSTEM.

See (in this Volume)
SCIENCE AND INVENTION: RAILWAYS.

BRIAND, Aristide:
in the Ministry of France as Minister of Public
Instruction and Public Worship.

See (in this Volume)
FRANCE: A. D. 1906.

{51}

BRIAND, Aristide:
Prime Minister of France.

See (in this Volume)
FRANCE: A. D. 1909 (JULY).

BRIAND, Aristide:
On the French secular or neutral schools and the clerical
attack on them.

See (in this Volume)
EDUCATION: FRANCE: A. D. 1909.

BRENT, Bishop:
Service on International Opium Commission and on
Philippine Committee.

See (in this Volume)
Opium Problem.

BRITISH CENTRAL AFRICA:
Its parts suitable for European Settlement.

See (in this Volume)
AFRICA.

BRITISH COLUMBIA: A. D. 1901-1902.
Census.
Increased representation in Parliament.

See (in this Volume)
CANADA: A. D. 1901-1902.

BRITISH EAST AFRICA:
Its habitability by whites.

See (in this Volume)
AFRICA.

-----THE BRITISH EMPIRE: Start-----

THE BRITISH EMPIRE:
A Census of the Empire.

In March, 1906, a "Census of the British Empire"—the first
ever undertaken—was published as a Parliamentary Blue Book.

Its preparation had been proposed by Mr. Chamberlain, who suggested, while Colonial Secretary, that the figures of the census of the United Kingdom in 1901 should be collated with those of other portions of the empire, to be analyzed, tabulated, and published as a whole. A full realization of the plan of collation had been found impracticable, owing to the wide differences of circumstance and of the forms of census-taking in different parts of the Empire; but many summings up of highly interesting and important facts were obtained.

The territory covered by the British Empire was shown to be 11,908,378 square miles, being an increase of 40 per cent. since 1861, and embracing more than a fifth of the land surface of the globe. This exceeds the area of the Russian Empire (European and Asiatic) by more than three millions of square miles. It is nearly three times the area of the Chinese Empire, and more than three times that of the United States and their exterior possessions. An exact count of population in all regions of the Empire was impossible, but the estimated total is 400,000,000, of which 300,000,000 is assigned to Asia and 43,000,000 to Africa. The United Kingdom contains 41,500,000, British America 7,500,000, Australasia, 5,000,000, the Mediterranean possessions 500,000, and there are 150,000 in the Channel Islands and the Isle of Man. Classified by religion, there 208,000,000 Hindus, 94,000,000 Mohammedans, 58,000,000 Christians, 12,000,000 Buddhists, and 23,000,000 of other religions—Parsees, Confucians, Jews, Sikhs, and Jains, over whom Edward VII. of England reigns as Emperor or King. His Asiatic subjects alone are three-fourths as many as the Emperor of China is supposed to rule, and considerable more than twice the number that live within the whole sweep of the scepter of the Tsar.

THE BRITISH EMPIRE: A. D. 1902.

Conference at London with the Prime Ministers
of the self-governing Colonies.

Address of the Colonial Secretary, Mr. Chamberlain.
Results of the Conference.

Taking advantage of the presence in London of the Prime Ministers of the various self-governing colonies of Britain, on the occasion of the coronation of King Edward VII., a Conference with them, touching questions of general interest, was arranged by the Secretary of State for the Colonies, Mr. Chamberlain, in meetings which extended from June to August, 1902. The proceedings were confidential, and no report of discussions made public; but the resulting resolutions, together with the opening address of the Colonial Secretary, and certain statements on subjects considered, are printed in a Parliamentary paper (Cd. 1299) from which the following account of the Conference is derived:

Mr. Chamberlain in his address argued strongly and with feeling for a political federation of the Empire. He said: "I may be considered, perhaps, to be a dreamer, or too enthusiastic, but I do not hesitate to say that, in my opinion, the political federation of the Empire is within the limits of possibility. I recognize as fully as any one can do the difficulties which would attend such a great change in our constitutional system. I recognise the variety of interests that are concerned: the immense disproportion in wealth and the population of the different members of the Empire, and above all, the distances which still separate them, and the lack of sufficient communication. These are difficulties which at one time appeared to be, and indeed were, insurmountable. But now I cannot but recollect that similar difficulties almost, if not quite as great, have been surmounted in the case of the United States of America. And difficulties, perhaps not quite so great, but still very considerable, have been surmounted in the federation of the Dominion of Canada. ... We have no right to put by our action any limit to the Imperial patriotism of the future; and it is my opinion that, as time goes on, there will be a continually

growing sense of the common interests which unite us, and also, perhaps, which is equally important, of the common dangers which threaten us. At the same time I would be the last to suggest that we should do anything which could by any possibility be considered premature. We have had, within the last few years, a most splendid evidence of the results of a voluntary union without any formal obligations, in the great crisis of the war through which we have now happily passed. The action of the self-governing Colonies in the time of danger of the motherland has produced here a deep and a lasting impression. ... I feel, therefore, in view of this it would be a fatal mistake to transform the spontaneous enthusiasm which has been so readily shown throughout the Empire into anything in the nature of an obligation which might be at this time unwillingly assumed or only formally accepted. The link which unites us, almost invisible as it is sentimental in its character, is one which we would gladly strengthen, but at the same time it has proved itself to be so strong that certainly we would not wish to substitute for it a chain which might be galling in its incidence. And, therefore, upon this point of the political relations between the Colonies and ourselves. His Majesty's Government, while they would welcome any approach which might be made to a more definite and a closer union, feel that it is not for them to press this upon you. The demand, if it comes, and when it comes, must come from the Colonies. If it comes it will be enthusiastically received in this country.

{52}

"And in this connection I would venture to refer to an expression in an eloquent speech of my right honorable friend, the Premier of the Dominion of Canada—an expression which has called forth much appreciation in this country, although I believe that Sir Wilfrid Laurier has himself in subsequent speeches explained that it was not quite correctly understood. But the expression was, 'If you want our aid call us to your

councils.' Gentlemen, we do want your aid. We do require your assistance in the administration of the vast Empire, which is yours as well as ours. The weary Titan staggers under the too vast orb of its fate. We have borne the burden for many years. We think it is time our children should assist us to support it, and whenever you make the request to us, be very sure that we shall hasten gladly to call you to our councils. If you are prepared at any time to take any share, any proportionate share, in the burdens of the Empire, we are prepared to meet you with any proposal for giving to you a corresponding voice in the policy of the Empire. And the object, if I may point out to you, may be achieved in various ways. Suggestions have been made that representation should be given to the Colonies in either, or in both, Houses of Parliament. There is no objection in principle to any such proposal. If it comes to us, it is a proposal which His Majesty's Government would certainly feel justified in favourably considering, but I have always felt myself that the most practical form in which we could achieve our object would be the establishment or the creation of a real council of the Empire, to which all questions of Imperial interest might be referred, and if it were desired to proceed gradually, as probably would be our course—we are all accustomed to the slow ways in which our Constitutions have been worked out—if it be desired to proceed gradually, the Council might in the first instance be merely an advisory council. But, although that would be a preliminary step, it is clear that the object would not be completely secured until there had been conferred upon such a Council executive functions, and perhaps also legislative powers, and it is for you to say, gentlemen, whether you think the time has come when any progress whatever can be made in this direction."

Turning naturally from this to the subject of imperial defence, Mr. Chamberlain gave the substance of a paper which would be submitted to the Conference, exhibiting comparatively the naval and military expenditure of the United Kingdom and

of the different self-governing colonies. The cost of the armaments of the United Kingdom had increased enormously since 1897, and "that increase," he said, "is not entirely due to our initiative, but it is forced upon us by the action of other Powers who have made great advances, especially in connection with the Navy, which we have found it to be our duty and necessity to equal. But the net result is extraordinary. At the present moment the estimates for the present year for naval and military expenditure in the United Kingdom—not including the extraordinary war expenses, but the normal estimates—involve an expenditure per head of the population of the United Kingdom of 29s. 3d. per annum. In Canada the same items involve an expenditure of only 2s. per head of the population, about one-fifteenth of that incurred by the United Kingdom. In New South Wales—I have not the figures for the Commonwealth as a whole, but I am giving those as illustrations—and I find that in New South Wales the expenditure is 3s. 5d.; in Victoria, 3s. 3d.; in New Zealand, 3s. 4d.; and in the Cape and Natal, I think it is between 2s. and 3s. Now, no one, I think, will pretend that that is a fair distribution of the burdens of Empire. No one will believe that the United Kingdom can, for all time, make this inordinate sacrifice. ... I think, therefore, you will agree with me that it is not unreasonable for us to call your serious attention to a state of things which cannot be permanent. We hope that we are not likely to make upon you any demand that would seem to you to be excessive. We know perfectly well your difficulties, as you probably are acquainted with ours."

The speaker passed next to the question of commercial relations between the mother land and its colonies. "Two salient facts" he set with emphasis before his colonial audience. "The first is this. That if we chose—that is to say, if those whom we represent chose—the Empire might be self-sustaining. It is so wide; its products are so various; its climates so different, that there is absolutely nothing

which is necessary to our existence, hardly anything which is desirable as a luxury, which can not be produced within the borders of the Empire itself. And the second salient fact is that the Empire at the present time, and especially the United Kingdom—which is the great market of the world—derives the greater part of its necessities from foreign countries, and that it exports the largest part of its available produce—surplus produce—also to foreign countries. This trade might be the trade, the inter-imperial trade, of the Empire. It is at the present time, as I say, a trade largely between the Empire and foreign countries. Now, I confess, that to my mind that is not a satisfactory state of things, and I hope that you will agree with me that everything which can possibly tend to increase the interchange of products between the different parts of the Empire is deserving of our cordial encouragement. What we desire, what His Majesty's Government has publicly stated to be the object for which they would most gladly strive, is a free interchange. If you are unable to accept that as a principle, then I ask you how far can you approach to it? If a free interchange between the different parts of the Empire could be secured it would then be a matter for separate consideration altogether what should be the attitude of the Empire as a whole or of its several parts towards foreign nations? ...

"Three proposals have been made for the consideration of the present Conference, on the initiative of New Zealand. The first and the most important one is that a preferential tariff should be arranged in favour of British goods which are now taxable in the respective Colonies and in the United Kingdom. And although no proposal comes to us from Canada, I am, of course, aware that similar questions have been recently specially discussed very actively and very intelligently in the Dominion, and that a strong opinion prevails there that the time is ripe for something of this kind."

Thereupon Mr. Chamberlain examined the results of the Canadian preferential tariff, showing that England derived very little commercial benefit from it, and continued: "I think the very valuable experience, somewhat disappointing and discouraging as I have already pointed out, but the very valuable experience which we have derived from the history of the Canadian tariff, shows that while we may most readily and most gratefully accept from you any preference which you may be willing voluntarily to accord to us, we cannot bargain with you for it; we cannot pay for it unless you go much further and enable us to enter your home market on terms of greater equality."

On the subject of imperial defence, the result of the Conference was an agreement from Australia and New Zealand to increase their contribution towards an improved Australasian squadron and the establishment of a branch of the Royal Naval Reserve to £200,000 a year for the former and £40,000 for the latter; an agreement from Cape Colony and Natal to contribute £50,000 and £35,000 per annum respectively toward the general maintenance of the Navy, and a pledge from Newfoundland of £3000 per annum toward a branch of the Royal Naval Reserve. From Canada no agreement was reported. In a "Memorandum by the First Lord of the Admiralty" of interviews held with the several Premiers it is said: "Sir Wilfrid Laurier informed me that His Majesty's Government of the Dominion of Canada are contemplating the establishment of a local Naval force in the waters of Canada, but that they were not able to make any offer of assistance analogous to those enumerated above."

Concerning preferential trade, the following resolutions were adopted:

"1. That this Conference recognises that the principle of preferential trade between the United Kingdom and His Majesty's Dominions beyond the seas would stimulate and

facilitate mutual commercial intercourse, and would, by promoting the development of the resources and industries of the several parts, strengthen the Empire.

"2. That this Conference recognises that, in the present circumstances of the Colonies, it is not practicable to adopt a general system of Free Trade as between the Mother Country and the British Dominions beyond the seas.

"3. That with a view, however, to promoting the increase of trade within the Empire, it is desirable that those Colonies which have not already adopted such a policy should, as far as their circumstances permit, give substantial preferential treatment to the products and manufactures of the United Kingdom.

"4. That the Prime Ministers of the Colonies respectfully urge on His Majesty's Government the expediency of granting in the United Kingdom preferential treatment to the products and manufactures of the Colonies either by exemption from or reduction of duties now or hereafter imposed.

"5. That the Prime Ministers present at the Conference undertake to submit to their respective Governments at the earliest opportunity the principle of the resolution and to request them to take such measures as may be necessary to give effect to it."

The Prime Ministers of the Colonies also stated the extent to which they were prepared to recommend to their several Parliaments a preferential treatment of British goods: The Premier of Canada would propose to continue the existing preference of 33 1/3 per cent., and an additional preference on lists of selected articles—

(a) by further reducing the duties in favor of the United Kingdom;

(b) by raising the duties against foreign imports;

(c) by imposing duties on certain foreign imports now on the free list.

In New Zealand the recommendation would be of a general preference by 10 per cent., or an equivalent in respect of lists of selected articles on the lines proposed by Canada. At the Cape and Natal a preference of 25 per cent. would be advised, or its equivalent given by increasing duties on foreign imports. The recommendation in Australia would be of a preferential treatment not yet defined.

A resolution was adopted favoring future Conferences at intervals not exceeding four years. Other resolutions recommended that a preference be given to products of the Empire in all Government contracts, Imperial or Colonial; that the privileges of coastwise trade within the Empire be refused to countries in which the corresponding trade is confined to ships of their own nationality; that a mutual protection of patents within the Empire be devised; that the principle of cheap postage between the different parts of the Empire on all newspapers and periodicals published therein be adopted; that the metric system of weights and measures be adopted throughout the Empire. These were the mainly important conclusions derived from the Conference, and it was difficult to regard them as quite satisfactory.

THE BRITISH EMPIRE: A. D. 1903.

Mr. Chamberlain's declaration for preferential trade with the Colonies.

Its political effects in Great Britain.

His resignation from the Cabinet.

Disclosures of the correspondence.

See (in this Volume)

ENGLAND: A. D. 1903 (MAY-SEPTEMBER).

THE BRITISH EMPIRE: A. D. 1907.

Conference of Imperial and Colonial Ministers at London.
Formulation of the Constitution of the Conference, to be known as the Imperial Conference.
Discussion of preferential trade, imperial defence, and other subjects.
Resolutions adopted.

According to the resolution adopted by the Colonial Conference of 1902, the next Conference should have been held in 1906, but by agreement of all parties it was deferred until the following year. In the interval, a protracted correspondence occurred between the Colonial Office and the Governments of the several States federated in the Commonwealth of Australia, each of which claimed representation in the Conference by its own Ministers, and protested against the sufficiency of the representation that would be given to it by the General Government of the Commonwealth. The "State Rights" doctrine received no encouragement, however, and only the Premier of the Commonwealth, Mr. Deakin, and one of the members of his Cabinet, took part in the Conference, which held its first meeting in London on the 15th of April and its final one on the 14th of May.

{54}

At the first meeting there were present, as representatives of the Imperial Government, the Prime Minister, Sir Henry Campbell-Bannerman, the Secretary of State for the Colonies, the Earl of Elgin, in the Chair, and several other Members of the Cabinet and officials of the Administration. The Premiers of the self-governing colonies, excepting Sir Robert Bond, of Newfoundland, who arrived a few days later, were all in attendance,—namely, Sir Wilfrid Laurier, of Canada, the Honorable Alfred Deakin, of Australia, the Honorable Sir J. G. Ward, of New Zealand, Dr. L. S. Jameson, of Cape Colony, the Honorable F. R. Moor, of Natal, and General Louis Botha, of the Transvaal. The Conference was first addressed by the Prime

Minister, and responses to his remarks were made by the several colonial premiers. It was then agreed that the constitution of the Conference and the question of military defence should be the subjects first considered. Before ending this preliminary sitting it was decided, as one ruling on the constitution of the Conference, that any Ministers accompanying their Prime Ministers, should be at liberty to attend its meetings.

At the second session of the Conference resolutions brought forward by the Governments of Australia and New Zealand, proposing to give the character of an Imperial Council to the Conference, and a resolution from the Government of Cape Colony on the subject of Imperial Defence, together with a draft resolution concerning the constitution of the Conference which the Chairman, Lord Elgin, submitted, were discussed, without action taken. The discussion was continued at the third and fourth meetings, and the resolution proposed by the Secretary of State for the Colonies, being amended in some particulars, was adopted at the end, as follows:

"That it will be to the advantage of the Empire if a Conference to be called the Imperial Conference is held every four years at which questions of common interest may be discussed and considered as between His Majesty's Government and his Governments of the self-governing Dominions beyond the seas. The Prime Minister of the United Kingdom will be *ex officio* President, and the Prime Ministers of the self-governing Dominions *ex officio* members of the Conference. The Secretary of State for the Colonies will be an *ex officio* member of the Conference and will take the chair in the absence of the President. He will arrange for such Imperial Conferences after communication with the Prime Ministers of the respective Dominions.

"Such other Ministers as the respective Governments may appoint will also be members of the Conference—it being

understood that, except by special permission of the Conference, each discussion will be conducted by not more than two representatives from each Government, and that each Government will have only one vote.

"That it is desirable to establish a system by which the several Governments represented shall be kept informed during the periods between the Conferences in regard to matters which have been or may be subjects for discussion, by means of a permanent secretarial staff charged under the direction of the Secretary of State for the Colonies with the duty of obtaining information for the use of the Conference, of attending to its resolutions, and of conducting correspondence on matters relating to its affairs.

"That upon matters of importance requiring consultation between two or more Governments which cannot conveniently be postponed until the next Conference, or involving subjects of a minor character or such as call for detailed consideration, subsidiary conferences should be held between representatives of the Governments concerned specially chosen for the purpose."

On the subject of Imperial Defence, which was then taken up, and in the discussion of which the Secretary of State for War took part, the following resolutions were approved:

"That the Colonies be authorized to refer to the Committee of Imperial Defence through the Secretary of State for advice any local questions in regard to which expert assistance is deemed desirable.

"That whenever so desired, a representative of the colony which may wish for advice should be summoned to attend as a member of the Committee during the discussion of the questions raised.

"That this Conference welcomes and cordially approves the exposition of general principles embodied in the statement of the Secretary of State for War, and, without wishing to commit any of the Governments represented, recognizes and affirms the need of developing for the service of the Empire a General Staff, selected from the forces of the Empire as a whole, which shall study military science in all its branches, shall collect and disseminate to the various Governments military information and intelligence, shall undertake the preparation of schemes of defence on a common principle, and without in the least interfering in questions connected with command and administration, shall at the request of the respective Governments advise as to the training, education, and war organization of the military forces of the Crown in every part of the Empire."

At subsequent meetings the following resolutions were adopted or accepted:

On the subject of Emigration: "That it is desirable to encourage British emigrants to proceed to British colonies rather than foreign countries. That the Imperial Government be requested to cooperate with any colonies desiring immigrants in assisting suitable persons to emigrate."

On the subject of Judicial Appeals: The Conference "agreed to the following finding: The resolution of the Commonwealth of Australia, 'That it is desirable to establish an Imperial Court of Appeal,' was submitted and fully discussed.

"The resolution submitted by the Government of Cape Colony was accepted, amended as follows:

'This Conference, recognizing the importance to all parts of the Empire of the appellate jurisdiction of His Majesty the King in Council, desires to place upon record its opinion—

“(1) That in the interests of His Majesty’s subjects beyond the seas it is expedient that the practice and procedure of the Right Honourable the Lords of the Judicial Committee of the Privy Council be definitely laid down in the form of a code of rules and regulations.

“(2) That in the codification of the rules regard should be had to the necessity for the removal of anachronisms and anomalies, the possibility of the curtailment of expense, and the desirability of the establishment of courses of procedure which would minimize delays.

{55}

“(3) That, with a view to the extension of uniform rights of appeal to all colonial subjects of His Majesty, the various Orders in Council, instructions to Governors, charters of justice, ordinances and proclamations upon the subject of the appellate jurisdiction of the Sovereign should be taken into consideration for the purpose of determining the desirability of equalizing the conditions which gave right of appeal to His Majesty.

“(4) That much uncertainty, expense, and delay would be avoided if some portion of His Majesty’s prerogative to grant special leave to appeal in cases where there exists no right of appeal were exercised under definite rules and restrictions.’

"The following resolutions, presented to the Conference by General Botha and supported by the representatives of Cape Colony and Natal, were accepted:

“(1) That when a Court of Appeal has been established for any group of colonies geographically connected, whether federated or not, to which appeals lie from the decisions of the Supreme Courts of such colonies, it shall be competent for the

Legislature of each such colony to abolish any existing right of appeal from its Supreme Court to the Judicial Committee of the Privy Council.

“(2) That the decisions of such Court of Appeal shall be final, but leave to appeal from such decisions may be granted by the said Court in certain cases prescribed by the statute under which it is established.

“(3) That the right of any person to apply to the Judicial Committee of the Privy Council for leave to appeal to it from the decision of such Appeal Court shall not be curtailed.”

And now, at last, on the 30th of April, the Conference came to the discussion of the question which had been dominant in all minds from the first,—the question of preferential trade. Essentially it was a settled question already,—settled, that is, by the voters of the United Kingdom a year and a half before, when they took the administration of their Government away from the party which had approved the fiscal proposals of Mr. Chamberlain. The commercial negotiation of the colonies now was with a Ministry that stood pledged against the preferential tariff arrangements they desired. On their side they had committed their fortunes to the stimulant working of protective tariffs, against which the judgment and experience of England was still firm. The preferential tariffs which preferential trade involved were in the line of their policy, but directly antagonistic to hers. How impossible this made an arrangement of reciprocity on that line was intimated gently by the Prime Minister when he spoke to the Conference at its first sitting, but set forth later in plain words by the Chancellor of the Exchequer, Mr. Asquith, and by the President of the Board of Trade, Mr. David Lloyd-George. "If the Colonies," said Mr. Asquith, "thought it their duty to foster industries by protective tariffs their action would not evoke remonstrance or even criticism from him. He noted that various self-governing Colonies gave preference to the Mother Country,

but it was a fact that these preferential tariffs did not admit the manufactures of the Mother Country to compete on equal terms with the local product. Doubtless the Colonies held this to be vital to their interests, and in the same way His Majesty's Government held that free trade was vital in the interests of the United Kingdom. Reference had been made to the fact that Cobden advocated free trade here as a part of a universal system of free trade, but the official author of the policy, Sir Robert Peel, defended it on the ground of its necessity to this country alone. His Majesty's Government held that it was more necessary now than it was in his day. He pointed out the position now existing. We had a population of 44,000,000 bearing the whole weight of an enormous debt largely contracted in building up the Empire, and of the cost of Imperial diplomacy and Imperial defence. That population was dependent for food and raw materials on external sources of supply. This is the essential point for consideration. He asked how the supremacy of Great Britain was maintained. He thought it must be attributed to our special productive activity, to the profits which we obtain from keeping the biggest open market in the world, and to the enormous earnings of our shipping. All these were based in the long run on keeping our food and our raw materials on the same basis and as nearly as possible at the same price. Free trade was no shibboleth, but a principle maintained because it was a matter of vital national interest. He drew attention to the tariff reform campaign, and observed that, after the fullest examination and discussion, the people of England had declared in favour of free trade by a majority of unexampled size. As spokesman for the people, His Majesty's Government could not accept any infringement of that policy, even by way of such an experiment as Dr. Jameson had suggested. It was necessary to state that fact fully and frankly at the outset. ...

"For these reasons His Majesty's Government, speaking for the people of this country, could not accept the principle of preferential trade by way of tariff preference. He thought,

however, that the discussion had thrown light on other methods by which inter-imperial trade relations might be improved. Reference had been made to the improvement of means of communication, especially steamer services, to the increase in the number of commercial agents in the Colonies, to the desirability of removing or reducing the Suez Canal dues, and of establishing mail communication with the Australasian Colonies via Canada. All these were matters on which His Majesty's Government would be fully ready to consider and cooperate with any practical proposals, and he said this the more earnestly as he felt that in the performance of his duty it had been necessary for him to enunciate a general policy which was not in accord with the views of the Colonial representatives."

Mr. Lloyd-George was equally plain spoken. "He had hoped," he said, "it might have been possible for those present, acknowledging the limitations imposed on them by the convictions they respectively held on fiscal issues, to see whether it might not be possible to find other means of attaining the object in view. The Colonies regard a tax on our foods as necessary both for raising revenue and also for the protection of their own industries. Mr. Deakin acknowledged that the late election in Australia was fought on the issue of protection and preference. It was open for the representatives of the Imperial Government to have ignored the mandate given to Mr. Deakin and to have endeavoured to commit their colleagues here to a policy of free trade within the Empire, to which those colleagues would not assent without being false to the trust reposed in them by their own people. Sir William Lyne the other day had urged the commercial union of the whole Empire, quoting the consolidation of the United Kingdom, the United States, and the Federation of South Africa and Australia. In these cases all tolls and tariffs were removed.

"Had a free-trade resolution been pressed by His Majesty's Government and refused, it might have been said by the Press that the Colonies had refused to listen to the appeal of the Mother Country to be put on equal terms with her children, and later that the door had been slammed in the old mother's face by her ungrateful progeny. His Majesty's Government had not taken this course, recognizing the unfairness of ignoring local conditions and exigencies. They were not here to attempt to manoeuvre each other into false positions, but to discharge the practical business of the Empire. They were in perfect accord as to the objects they could strive to promote. His Majesty's Government were in favour of any scheme for the development of inter-imperial trade which did not inflict sacrifices on any individual community so as to create a sense of grievance deep enough to introduce the elements of discontent and discord, and thus impair the true unity of the Empire. ...

"He agreed that this federation of free commonwealths is worth making some sacrifice for. He differed only on ways and means. He was convinced that to tax the food of our people is to cast an undue share of sacrifice on the poorest part of the population, and that a tax on raw material would fetter us in the severe struggle with our foreign competitors. This, therefore, was a sacrifice which would weaken our power to make further sacrifices, and we ought not to be called upon to make it. In Mr. Deakin's resolution the Government were asked to do what no protectionist country in the world would do—viz., to tax necessities of either life or livelihood which we cannot produce ourselves, and of which the Colonies cannot supply us with a sufficiency for many years.

"He wished to acknowledge the considerable advantage conferred upon the British manufacturer by the preference recently given to him in colonial markets. The Canadian tariff had produced a satisfactory effect on our export trade, and apparently had also benefited Canada, for our purchases from Canada had also

increased. The South African and New Zealand tariffs had not yet been put to, the test by much actual experience, but would no doubt have a similarly happy result. The same applied to Australia, and Great Britain felt grateful, not merely for the actual concessions, but for the spirit of comradeship and affection which inspired the policy. But it was said, 'What are you prepared to do in return?' His first answer was that Great Britain was the best customer the Colonies have got for their products. To illustrate this he gave the following figures: In 1905, the last year for which the information was available, the exports from the self-governing Colonies to all foreign countries only amounted to 40½ millions, while the exports to the United Kingdom amounted to 65¾ millions, exclusive of bullion and specie (21¾ millions)."

The outcome of the discussion was a simple reaffirmation of the five resolutions on the subject that were adopted at the Conference of 1902, and which will be found in the report of that Conference, preceding this. Before putting those resolutions to vote Lord Elgin stated that His Majesty's Government could not assent to them so far as they implied that it is necessary or expedient to alter the fiscal system of the United Kingdom. They were agreed to, subject to that reservation. Sir Wilfrid Laurier, who moved their readoption, said in doing so: "Free trade within the Empire had been suggested, just as there was free trade within the boundaries of the United States, Germany, and France. For the British Empire this was impossible for two reasons—the United Kingdom was not prepared to limit free trade to the Empire, and the Colonies were not prepared to accept free trade even within its boundaries. In Canada the policy of free trade within the Empire was impracticable, as it was necessary for her to have Customs duties as a main source of revenue. Canada had given the British preference deliberately, and had no cause to regret it; she had from time to time increased it, and in the last tariff had maintained it generally at the increased amount of 33 1/3 per cent. Canadian opinion had been almost

unanimous in favour of preference, for Canada felt that she would as a result of the preference sell more to Great Britain and buy more from her. Mr. Asquith had not given Canada all the credit to which he thought she was entitled in making a comparison which showed no great advantage to British goods. He dwelt on the effect of the proximity of a nation like the United States, of their own stock, enormous in numbers, and most enterprising in trade; it was not a matter for surprise that their trade with that country had increased. But, so far as they could, they had done everything to keep trade within the Empire. They had built canals and railways from east to west of Canada, and they had taken care to assist the principle of mutual trade so far as legislation could do it. ... He explained that in the recent revision of the Canadian tariff they had adopted a new principle in providing an intermediate tariff for negotiation. They were prepared to negotiate with nations like France or Italy on the basis of that tariff, but their lower preference tariff remained reserved for the British Empire."

Other resolutions adopted or accepted during the last two sessions of the Conference were as follows:

"That it is desirable that the attention of the Governments of the Colonies and the United Kingdom should be called to the present state of the navigation laws in the Empire, and in other countries, and to the advisability of refusing the privileges of coastwise trade, including trade between the Mother Country and its Colonies and possessions, and between one colony or possession and another, to countries in which the corresponding trade is confined to ships of their own nationality, and also to the laws affecting shipping, with a view of seeing whether any other steps should be taken to promote Imperial trade in British vessels." (This was voted by the representatives of the Colonies only, "His Majesty's Government dissenting.")

"That it is desirable that His Majesty's Government, after full consultation with the Colonies, should endeavour to provide for such uniformity as may be practicable in the granting and protection of trade marks and patents."

"That it is desirable, so far as circumstances permit, to secure greater uniformity in the trade statistics of the Empire, and that the Note prepared on this subject by the Imperial Government be commended to the consideration of the various Governments represented at this Conference."

"That it is desirable, so far as circumstances permit, to secure greater uniformity in Company Laws of the Empire, and that the memorandum and analysis prepared on this subject by the Imperial Government be commended to the consideration of the various Governments represented at this Conference."

"That, in view of the social and political advantages and the material commercial advantages to accrue from a system of international penny postage, this Conference recommends to His Majesty's Government the advisability, if and when a suitable opportunity occurs, of approaching the Governments of other States, members of the Universal Postal Union, in order to obtain further reductions of postage rates, with a view to a more general and if possible a universal adoption of the penny rate."

"That, with a view to attain uniformity so far as practicable, an inquiry should be held to consider further the question of naturalization, and in particular to consider how far, and under what conditions, naturalization in one part of His Majesty's dominions should be effective in other parts of those dominions, a subsidiary conference to be held, if necessary, under the terms of the resolution adopted by this Conference on April 20 last."

"That in the opinion of this Conference the interests of the Empire demand that in so far as practicable its different portions should be connected by the best possible means of mail communication, travel, and transportation; That to this end it is advisable that Great Britain should be connected with Canada, and through Canada with Australia and New Zealand by the best service available within reasonable cost; That for the purpose of carrying the above project into effect such financial support as may be necessary should be contributed by Great Britain, Canada, Australia, and New Zealand in equitable proportions."

THE BRITISH EMPIRE: A. D. 1909.

The total of its prospective Military Strength when present Imperial plans are carried out.

In a speech made in March, 1909, Mr. Haldane, Minister for War, summed up the total of defensive military strength which the Empire might count on when recent plans for Imperial defence are carried out. He said: "With the divisions between the Cape and Malta and those which Lord Kitchener had in India, the Regular Army had for overseas work 16 divisions, equivalent to eight army corps, which was larger than any other nation had for overseas work, the reason being that we, unlike others, were responsible for 12 million square miles and 400 millions of human beings. The second line, what one might call the local line of home defence, consisted of the 14 divisions of the Territorial Army. Supposing Canada, the population of which was very rapidly increasing, were to build on the foundations laid at the Conference, by the new proposals which Canada had accepted she might easily add five or six Territorial divisions of her own. Those would be for her own defence, but they knew that in 1899, when a supreme emergency arose, she did not scruple to send forth her strength to help the Mother Country. In Australia there was a remarkable movement for the organization of the forces of the

Crown, which might easily produce five Australian Territorial divisions. New Zealand might produce another division, and South Africa could rapidly produce four or five. ... If they could add to the 14 second line divisions at home 16 for the second line Army of the Empire there would be 30 divisions altogether, and these, added to the 16 Regular first line divisions for use overseas, would give us an army for war conceivably and practicably of 46 divisions, equivalent to 23 army corps. The army of Germany had 23 army corps, and no other army in the world had an organization so great. He was speaking of possibilities."

THE BRITISH EMPIRE: A. D. 1909 (June).
The Imperial Press Conference in England.

Among the many endeavors of late years in England to draw the distant peoples of the great British Empire into closer relations with its sovereign Mother Country, and into the feeling of stronger ties of unity among themselves and with her, none seems to have been wiser or more surely of effect than that which brought about the Imperial Press Conference of June, 1909. It assembled sixty representatives of the Newspaper Press of every part of the Empire and of every shade of political opinion. It entertained them delightfully and impressively for three weeks. It made all England and its colonies and dependencies listen to their discussion of many questions, all bearing on the fundamental desire to make the most and best that can be made of the great political organism which extends its law to every continent and its influence to all the world. It brought before them its most distinguished and eloquent men to address them at meetings and feasts. It assembled at Spithead its stupendous central fleet of battleships, to pass it in review before them. It filled their minds with an undoubtedly new realization of what the United Kingdom of Great Britain and Ireland—the sovereign, the seat, the center of greatness in their Empire—is to it; and they went back to Canada, to Australia, to South Africa, to New

Zealand, even to India, to propagate that realization in other minds.

A Western Australian editor, speaking at one of the banquets of the Conference, referred to this result, saying: "The influence that had been brought to bear upon the overseas delegates could not fail to have very great effects upon their writings in the future. Coming as they did from isolated parts of the Empire, it was an agreeable surprise to them to find that they had all been thinking Imperially, and thinking in much the same way. While the spirit of nationalism was growing up very strongly, they felt that the spirit of nationalism was in no way out of harmony with the true spirit of Imperialism; and it had been a revelation to the delegates to find the unanimity that existed, not only among the English-speaking people of the Empire, but among those who came from different races. They had been helped to strengthen that feeling of Imperial unity in the certain hope that eventually the highest ideals of the best form of Imperialism would be realized. That form of Imperialism was not associated with a policy of aggrandisement, but was associated with the policy that would tend to promote the peace of the world, and the prosperity and the betterment of humanity generally."

{58}

A writer in ***The Times***, reviewing the Conference after it closed, quoted the above and added: "The speaker just quoted travelled for seven days across Australia before he reached the capital of the State where he joined his fellow-delegates from the Commonwealth. The Australian party, when once it had left Sydney, was three weeks on the ocean before it reached the Pacific coast of Canada. A Canadian delegate, speaking at a banquet in Glasgow, declared that when at home he was as remote from one of his Canadian colleagues as Egypt is from London, and as remote from another, in the opposite direction, as London is from Russia. It might have

been supposed that distances like those just indicated would have had the effect of causing some estrangement between men so widely separated; but the contrary proved to be the case. The Australians, following the All-Red route, which was defined as the official route, were greeted on their arrival on Canadian soil with an enthusiasm which both surprised and touched them. Wherever they went they found themselves among friends, anxious and eager to exchange views and ideas on all sorts of subjects affecting the common interests of the two peoples. They were banqueted by many representative men, from the Governor-General downwards, and, having been welcomed with the utmost heartiness at Victoria on the Pacific coast, were given a not less hearty 'God-speed' from Quebec on the St. Lawrence.

"Among the indirect results of the Conference must be mentioned the knowledge gained from such experiences. When in Canada the Australians were able to see how far their own trade interests were identical with those of the people among whom they had come, how the Canadians are facing the same problems both of politics and material development, of commerce and agriculture. And when, the feastings over, they found themselves on board the steamer with their Canadian fellow-delegates, a community of interests was at once established, and lasting friendships were formed.

"Similarly, when the delegates had all assembled in England there arose a spirit of comradeship which subsisted without a jarring note from the beginning of the Conference to the end. Nor must it be forgotten that the men who formed part of this company of editors and writers of the overseas Press were not wholly of British race. From Canada came representatives of the French-Canadians, from South Africa some of Boer and Dutch extraction, from India one delegate at least of Indian blood. The welding together of all these men in a spirit of loyalty to the Empire in which they as well as we have a share has been one of the most significant features of the Conference."

The practical object for which the Press Conference strove most earnestly was a cheapening of telegraphic communication, by cable or wireless, between the distant parts of the Empire, to the end that there may be an ampler publication of news from each division of it in every other. It received strong assurances of coöperation from the Imperial Government in its efforts to accomplish this end. To a deputation which waited on him, the Premier, Mr. Asquith, said: "Your Conference, if I may venture to say so, has very wisely appointed a standing committee to deal with that matter. The Post Office and other Government departments concerned will be anxious to assist and to keep themselves in touch with this committee by information and intercommunication and in all other ways that may be practicable. I think it will be the solid and substantial result of your deliberations on this very great Imperial necessity that in regard to the development of electric communication between different parts of the Empire we shall now have on the side of the Press a body formally organized and constantly existing with which we can enter into necessary communication, and by mutual discussion and reference, having regard to the various considerations to which I have already adverted, we may accelerate the developments of what we all agree to be one of the first requisites of an Empire such as ours—a cheap, a certain, a constant, a convenient, and a universally accessible system of electric communication."

THE BRITISH EMPIRE: A. D. 1909 (July-August).
Imperial Defence Conference.

See (in this Volume)
War, The Preparations for: Military and Naval.

THE BRITISH EMPIRE: A. D. 1909 (September).
Congress of Empire Chambers of Commerce.

A Congress of Chambers of Commerce, representing all parts of

the Empire, which was assembled at Sydney, New South Wales, on the 14th of September, 1909, gave much of its discussion to the proposition that the several parts of the Empire should afford preferential treatment to each other in their several markets, on a basis of reciprocity, and adopted resolutions to the effect that the Congress "urges upon the Governments of the Empire that they should treat this matter as of present practical importance, and that the organizations represented at this Congress pledge themselves to press their respective Governments to take such action at the next Imperial Conference as will give effect to the principle advocated in this resolution." This was carried on individual voting, by 81 votes to 31. On voting by chambers, the resolution was passed with 60 for, 8 against, and 11 neutral.

Among the other resolutions of the Congress were the following: "That this Congress urges upon his Majesty's Government and upon the Governments of the Colonies the appointment of an Advisory Imperial Council to consider questions of Imperial interest, especially those tending to promote trade between the various parts of the Empire."

"That the settlement in adequate Volume of the Anglo-Saxon race in the British Dominions is deserving of the constant solicitude of the Home and Colonial Governments, who are hereby urged to consider what further or better steps than those at present existing should be taken to elaborate a general State-aided scheme at reduced rates to encourage emigration of suitable settlers under well-considered conditions."

"This Congress is of opinion that it is desirable to complete the Imperial route between the Motherland, Canada, Australia and New Zealand by State-owned electric communication across Canada to Great Britain and that the postal departments of the various Governments of the Empire should be requested to frame a combined scheme of substantial reductions in telegraphic

rates."

{59}

BRITISH GUIANA: A. D. 1904.

Settlement of Brazilian boundary dispute.

See (in this Volume)

Brazil: A. D. 1904.

BRITISH SOUTH AFRICA.

See SOUTH AFRICA

BROWNSVILLE AFFAIR, The.

See (in this Volume)

UNITED STATES: A. D. 1906 (August).

BRYAN, William Jennings:

Suggestion at the Peace Congress in New York.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

BRYAN, William Jennings:

Nominated for President of the United States.

See UNITED STATES: A. D. 1908(April-November).

BROTHERHOODS OF LOCOMOTIVE FIREMEN AND OF RAILWAY
TRAINMEN.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES.

BRUSSELS: A. D. 1902-1907.

Sugar Bounty Conference and Convention, 1902,
and Additional Act, 1907.

See (in this Volume)
SUGAR BOUNTY CONFERENCE.

BRYCE, James:
Chief Secretary for Ireland.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

BUBONIC PLAGUE.

See (in this Volume)
PUBLIC HEALTH.

BUCHANAN, William I.:
Delegate to Second and Third International Conferences
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

BUCHANAN, William I.:
Diplomatic Service in Venezuela.

See VENEZUELA: A. D. 1907-1909.

BUCHANAN, William I.:
Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

BUCHANAN, William I.:
Death, October 16, 1909.

BUCHNER, Eduard.

See (in this Volume)
NOBEL PRIZES.

BUCKS STOVE COMPANY CASE.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1908-1909.

BUDGET OF 1909, The British.

See (in this Volume)
ENGLAND: A. D. 1909 (April-December).

BUFFALO: A. D. 1901.

The Pan-American Exposition.

Assassination of President McKinley.

Vice-President Roosevelt becomes President of the United States.

In Volume VI. of this work, which went to press in the spring of 1901, an account was given of the plan and preparations made for the Pan-American Exposition at Buffalo, then just at the point of being opened, on the 1st of May. The following characterization of the Exposition by a visitor is sufficient to add what was then said of it:

"They have staged electricity at Buffalo this summer, and they call it the Pan-American Exposition. It took a rectangle of 350 acres for the stage, and over \$10,000,000 for the settings. The result, baldly stated, is the most glorious night scene the world has ever had the fortune to witness. The staging of Niagara is the one unforgettable thing about the affair. The Pan-American is, however, much more than this. ...

"It may be well to say that the original generic scheme for

the Exposition, that of joining the three Americas in a unified attempt to show one another their trade resources, seems to be in results far less prominent than was hoped at first. For one reason or another,—I have heard European influences in South America given as a chief cause,—the Latin Americas did not cooperate as was expected. The great trade idea upon which the Pan-American was originally based gradually faded, and gave place to the idea of an electrical beatification—for which the spectator will perhaps be thankful. There are exhibits, to be sure, from most of the South American countries, but the United States occupies industrially foreground, background, and middle distance. The other countries fill in the odd corners. The ardent patriot will see no lack of proportion in this; and as there is a hint of Mexico and the Argentine, and very creditable exhibits by Chile and Honduras, we have enough of the sister continent to justify the name. Most of the southern republics are represented in one way or another. It is hard, however, to explain the insufficiency of Canada's exhibit. It is upon much too small a scale to do credit to her great resources. It is worthy of note that when the other countries realized the importance and beauty of the Pan-American, they set about vigorously to retrieve themselves.

"So the staging of electricity was undertaken. There was Buffalo to start with, and Buffalo is backed in the great race of American cities by the power of Niagara and the commerce of the Lakes. It is delightfully accessible and pleasing. Here was the psychological place. It was also the psychological moment,—a period of general prosperity, a time when America had set about her great task of making commercial vassals of the Old World countries. The psychological idea came with electricity, and under this happy triad of influences conspiring for success the work was begun.

"The managers took a big rectangle of unused land to the north of a beautiful park, and welded with it the most attractive

portion of that park for their groundwork. Then they charted an effect. They put millions into an attempt to please, and did more, for they have both pleased and startled,—an effect peculiarly delightful to Americans."

***E. R. White,
Aspects of the Pan-American Exposition
(Atlantic Monthly, July, 1901).***

The Pan-American Exposition may be said to have been paralyzed in the first week of its fifth month by the awful tragedy of the wanton murder of President McKinley, while it entertained him as its guest. Mr. McKinley, with Mrs. McKinley, had arrived in Buffalo on the 4th of September, for a long planned visit to the Exposition, and had accepted the hospitality of its President, Mr. John G. Milburn. On the afternoon of the 6th he held a public reception in the Temple of Music, on the Exposition grounds, and it was there that the brutal assassin found his opportunity for the deed. The following graphic narrative of the tragedy is from the pen of Mr. Walter Wellman in the American Review of Reviews:

"Usually a secret-service agent is stationed by the President's side when he receives the public, but on this occasion President Milburn stood at the President's left. Secretary Cortelyou was at his right, and a little to the rear. Opposite the President was Secret-Service Officer Ireland.

{60}

Eight or ten feet away was Officer Foster. When all was ready, the line of people was permitted to move, each one pausing to shake the hand of the President. He beamed upon them all in his courtly way. When one stranger timidly permitted himself to be pushed along without a greeting, the President called out, smilingly, 'Hold on, there; give me your hand.' Mr. McKinley would never permit any one to go past him without a handshake. He was particularly gracious to the children and to

timid women. Here, as we have often seen him in Washington and elsewhere, he patted little girls or boys on the head or cheek and smiled at them in his sweet way. A woman and a little girl had just passed, and were looking back at the President, proud of the gracious manner in which he had greeted them. Next came a tall, powerful negro—Parker. After Parker, a slight, boyish figure, a face bearing marks of foreign descent, a smooth, youthful face, with nothing sinister to be detected in it. No one had suspected this innocent-looking boy of a murderous purpose. He had his right hand bound up in a handkerchief, and this had been noticed by both of the secret-service men as well as by others. But the appearance in a reception line of men with wounded and bandaged hands is not uncommon. In fact, one had already passed along the line. Many men carried handkerchiefs in their hands, for the day was warm.

"So this youth approached. He was met with a smile. The President held out his hand; but it was not grasped. Supporting his bandaged right hand with his left, the assassin fired two bullets at the President. The first passed through the stomach and lodged in the back. The second, it is believed, struck a button on the President's waistcoat and glanced therefrom, making an abrasion upon the sternum. The interval between the two shots was so short as to be scarcely measurable. As the second shot rang out, Detective Foster sprang forward and intercepted the hand of the assassin, who was endeavoring to fire a third bullet into his victim. The President did not fall. He was at once supported by Mr. Milburn, by Detective Geary, and by Secretary Cortelyou. Before turning, he raised himself on tiptoe and cast upon the miserable wretch before him, who was at that moment in the clutches of a number of men, a look which none who saw it can ever forget. It appeared to say, 'You miserable, why should you shoot me? What have I done to you?' It was the indignation of a gentleman, of a great soul, when attacked by a ruffian. A few drops of blood spurted out and fell on the President's waistcoat. At once the wounded man was led to a chair, into

which he sank. His collar was removed and his shirt opened at the front. Those about him fanned him with their hats. Secretary Cortelyou bent over his chief, and Mr. McKinley whispered, 'Cortelyou, be careful. Tell Mrs. McKinley gently.'

"A struggle ensued immediately between the assassin and those about him. Detective Foster not only intercepted the arm of the murderer, and prevented the firing of a third shot from the revolver concealed in the handkerchief, but he planted a blow square upon the assassin's face. Even after he fell, Czolgosz endeavored to twist about and fire again at the President. Mr. Foster threw himself upon the wretch. Parker, the colored man, struck him almost at the same instant that Foster did. Indeed, a half-dozen men were trying to beat and strike the murderer, and they were so thick about him that they struck one another in their excitement. A private of the artillery corps at one moment had a bayonet-sword at the neck of Czolgosz, and would have driven it home had not Detective Ireland held his arm and begged him not to shed blood there before the President. Just then the President raised his eyes, saw what was going on, and with a slight motion of his right hand toward his assailant, exclaimed: 'Let no one hurt him.'"

As soon as possible, the wounded President was removed to the Exposition Hospital, and surgeons were quickly in attendance. The medical director of the Exposition, Dr. Roswell Park, President of the American Society of Surgeons, chanced to be absent, at Niagara Falls, where he was performing an operation at the time. The necessary operation upon the President was performed by Dr. Matthew D. Mann, assisted by Dr. Herman Mynter, Dr. Eugene Wasdin, of the Marine Hospital service, and others. The one fatal bullet of the two that were fired was found to have passed through both walls of the stomach, and its further progress was not traced. Dr. Park arrived on the scene before the operation was finished and took part in the subsequent consultations.

From the hospital Mr. McKinley was removed to Mr. Milburn's house, where Mrs. McKinley, being an invalid, had remained that day. There he received all possible care during the eight days in which the nation hoped against hope that he might be saved. Dr. Charles McBurney was called from New York to join the attending physicians and surgeons, and approved all that had been done. For a week there seemed good ground for believing that the sound constitution of the President would defeat the assassin's attempt; but on Friday the 13th the signs underwent a rapid change, and at fifteen minutes past two o'clock of the morning of Saturday he breathed his last.

Vice-President Theodore Roosevelt, who was then at a camp in the Adirondacks, was summoned at once, and arrived in the city that afternoon. At the house of Mr. Ansley Wilcox (whose guest he became), in the presence of the members of the late President's cabinet and of a few friends and newspaper correspondents, he took the oath of office as President, administered by Judge Hazel, of the United States District Court. Before taking the oath he said: "I wish to say that it shall be my aim to continue, absolutely unbroken, the policies of President McKinley for the peace, the prosperity, and the honor of our beloved country."

The assassin, who called himself Nieman at first, was identified as Leon Czolgosz, a Pole, having reputable parents at Cleveland, Ohio. He had come under anarchist influences and been taught to believe that all heads of government were enemies of the people and ought to be slain. There was no other motive discoverable for his crime. He was arraigned in the County Court, before Justice Emory, on the 17th of September, three days after his victim's death, and, having no counsel, two former Justices of the Supreme Court of the State, Loran L. Lewis and Robert C. Titus, consented to be assigned for his defence.

{61}

On the 23d he was tried in the Supreme Court, Justice Truman

C. White presiding, the only defence possible being that on the question of sanity, and his guilt was pronounced by the verdict of the jury. On the 26th he was sentenced to be executed, in the State Prison at Auburn, within the week beginning October 28.

See, also, (in this Volume) under
UNITED STATES: A. D. 1901 (SEPTEMBER).

BU HAMARA, the Mahdi.

See (in this Volume)
MOROCCO: A. D. 1903-1904, and 1909.

BULGARIA.

See (in this Volume)
BALKAN AND DANUBIAN STATES.

BÜLOW, Bernhard, Count von: Chancellor of the German Empire:
Action on the Morocco question.

See (in this Volume)
EUROPE: A. D. 1905-1906.

BÜLOW, Bernhard, Count von:
On German Navy-building.

See WAR, THE PREPARATIONS FOR: NAVAL.

BÜLOW, Bernhard, Count von:
Defeat in the Reichstag on attempted financial reform.
His resignation.

See GERMANY: A. D. 1908-1909.

BUREAU OF THE AMERICAN REPUBLICS, INTERNATIONAL.

See (in this Volume)
AMERICAN REPUBLICS.

BUREAU OF MUNICIPAL RESEARCH.

See (in this Volume)
MUNICIPAL GOVERNMENT: NEW YORK CITY.

BURGER, SCHALK W.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

BURLEY TOBACCO SOCIETY.

See (in this Volume)
KENTUCKY: A. D. 1905-1909.

BURNS, John:
President of the Local Government Board.

See (in this Volume)
ENGLAND: A. D. 1905-1906, 1905-1909, and 1909.

BURNS, William J.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO.

BURTON, Joseph R.:
United States Senator.

Convicted of having received \$2500 from a fraudulent concern, which had been debarred from using the United States mails, in return for his efforts to have embargo removed; sentenced to a fine of \$2500 and nine months imprisonment, May, 1909.

BUTLER, Charles Henry:
Technical delegate to the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

BUTLER, Edward:
Political "Boss" of St. Louis, as seen in the confessions of
Charles F. Kelly.

See (in this Volume)
MUNICIPAL GOVERNMENT.

BUTLER, Nicholas Murray:
President of Columbia University.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

BUTLER, Nicholas Murray:
Arrangement of professorial interchanges
with German universities.

See EDUCATION: INTERNATIONAL INTERCHANGES.

BUXTON, Sidney C.:
Postmaster-General (British).

See (in this Volume)
ENGLAND: A. D. 1905-1906.

C.

CACERES, Ramon.

See (in this Volume)
SAN DOMINGO: A. D. 1904-1907.

CADETS, Russian.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

CAJAL, Ramon y.
See (in this Volume)
NOBEL PRIZES.

CALABRIA:
Destructive earthquake in 1905.

See (in this Volume)
EARTHQUAKES.

CALAMITIES, Recent extraordinary.

See (in this Volume)
EARTHQUAKES, FAMINES, FIRE, FLOODS, VOLCANIC
ERUPTIONS.

CALIFORNIA: A. D. 1900-1909.

Growth.

Industries.

Products.

Railway facilities, etc.

"Within the past decade numerous events have tended to direct the attention of the United States and of the world to the importance of the Pacific ocean and the lands bordering upon it, as the field of great activities in the near future. The Spanish-American war, and particularly the voyage of the battleship Oregon around South America hastened the movement

for an inter-oceanic canal. The development of the Alaskan gold fields gave a great impetus to shipping and trade in staple supplies in Pacific coast cities. The war between Russia and Japan revealed the maritime enterprise and established the naval prestige of Japan.

"Since the earliest days of American occupation California has been steadily filling up with people. These later movements in Pacific coast history, together with the steady development of natural resources, have greatly accelerated the advance in population, especially in cities as the centers of industrial and commercial activity. The census of 1900 showed a total population of 1,485,053. At the beginning of 1909 the number is estimated by the State Board of Trade at 2,564,363. The growth of cities in the same period is shown by the following instances,—the first figure being the population by the census of 1900, the second the State Board of Trade estimate for 1909.

	1900 .	1909 .
Alameda	16,464	25,000
Berkeley	13,214	40,000
Fresno	12,470	32,000
Los Angeles	102,479	305,000
Oakland	66,960	200,000
Sacramento	29,282	55,000
San Francisco	342,782	500,000
San Jose	21,500	45,000
Stockton	17,506	25,000

"Two features characterize the recent development of California agriculture,—the increased value of the products, and a greater variety of crops. Originally wheat was the staple crop, but now sugar beets, hops, beans, alfalfa, and

garden seeds must be added to the common cereals to make the list of staples. In 1908 the wheat crop was valued at \$18,894,961, and the barley at \$26,841,394.

"Orchards and vineyards furnish one of the best records of advancing wealth. Shipments out of the state by rail and by sea are given by the State Board of Trade as follows:

	1898 .	1908 .
	Tons .	Tons .
Green Deciduous Fruits	69,732	161,224
Citrus Fruits	180,658	399,094
Dried Fruits	76,662	133,846
Raisins	47,796	29,601
Nuts	5,815	10,887
Canned Fruits	52,219	85,135

{62}

"About ninety per cent of all the citrus fruits go from the southern part of the State (south of Tehachapi mountains) and substantially all the fresh deciduous fruits go from the northern and central portions, Sacramento being one of the largest shipping points. Nearly all the dried fruits, raisins, canned fruits, wine and brandy, go from the northern and central portions. Most of the walnuts are grown in the south, and most of the almonds in the northern and central parts of the state. Olives are grown in about equal quantities, north and south. General farming, including stock raising, is much more widely pursued north of Tehachapi than south, and the same is true of the mining industry. The principal forests of the state are in the Sierra region and in the Coast Range Mountains north of Sonoma county.

"Formerly wool was an important product of California. The industry reached its maximum about thirty years ago,—the wool clip of 1876 amounting to 56,550,973 pounds. Since that date the wool product steadily declined till 1906, when the total amount was 24,000,000 pounds. Since 1906 the decline has been swift, as shown by the total of 15,000,000 pounds for 1908.

"In the production of the precious metals the record of California is very steady in recent years,—the gold output for 1900 being valued at \$15,863,355, and for 1907 at \$16,727,928. On the other hand the oil industry shows a marvelous advance. The output of petroleum from California oil wells was 4,000,000 barrels in 1900, and 48,300,758 barrels in 1908. Since 1906 the oil product of California has amounted to over twenty-five per cent of the total production of the United States. California petroleum now exceeds in value the output of her gold mines.

"For a long time the high cost of fuel retarded the growth of manufactures in California. Recently, however, the production of fuel oil and the introduction of electrical power developed from the water power in the streams of the Sierras have given a great impetus to manufacturing industries. The use of electricity is certain to be greatly increased in the near future and for this reason the people of California are tremendously interested in the policy of the federal government in the preservation of the mountain streams and in the disposition of water-power sites. The value of the products of manufacturing enterprises in the state for 1908 is estimated at about \$500,000,000, of which the sum of \$175,000,000 is credited to San Francisco, \$62,000,000 to Los Angeles, \$52,000,000, to Oakland, with Sacramento, San Jose, Stockton and Fresno following in the order of naming.

"California is a state of magnificent dimensions and it is quite in keeping with the size of the state to find that in 1907, with but two per cent, of the total population of the

United States she had three per cent. of the total railway mileage of the country. New construction was almost entirely suspended in 1908, but has been resumed in 1909. The most important new road is the Western Pacific which enters the state by the Beckwith Pass to the north of the line of the Central Pacific route, from Sacramento to Ogden, and with the advantage of crossing the Sierras at 2000 feet less elevation. It reaches the Sacramento Valley by the canyon of the Feather River and opens up a large area of rich country to railway communication. It will be completed through to San Francisco in 1910, and will be the fifth trans continental line terminating on San Francisco Bay.

"Another great work of railway construction in progress in 1909 is the rebuilding upon an improved grade of the Central Pacific road through the Sierras. The extreme elevation of the present road at the summit of the range (7000 feet) is to be diminished by a lengthy tunnel. Other work of construction soon to be brought to completion is the extension of the Northwestern Pacific, a coast road north from San Francisco Bay to Eureka on Humboldt Bay, and the extension of the Ocean Shore Railway south along the coast to Santa Cruz.

"The records of the State Railroad Commission show in 1909 a total mileage in the state of 6744.54 miles.

"The lines operated by the principal companies measure up as follows:

MILES.

Southern Pacific System.

3,582

Santa Fé System.

978

Northwestern Pacific.

404

San Pedro, Los Angeles and Salt Lake.

341

Western Pacific.

237

Yosemite Valley Railroad.

79

"Suburban electric railways have reached a high stage of development and utility in Southern California, in the Santa Clara Valley, connecting numerous cities and towns in the vicinity of San Francisco Bay, and in the Sacramento Valley. The increase of electric power by the further utilization of the water power of the Sierra Nevada streams will certainly bring about in the near future a great extension of electrical transportation for freighting as well as in passenger traffic."

***Frederick H. Clark,
Head of History Department,
Lowell High School, San Francisco.***

CALIFORNIA: A. D. 1900-1909.
Constitutional changes.

"Amendments to the state constitution originate with the legislature, and are placed before the voters of the state at the biennial state elections. Dissatisfaction with parts of the state constitution is manifested by an increasing number of proposed amendments. So long as property interests are not antagonized, the voters show a willingness to make changes by ratifying a large majority of the amendments proposed. Among the important subjects upon which amendments have been adopted within the past ten years are the following:

authorization of legislation for the control of

primary elections;
providing for the use of voting machines;
the establishment of a system of state highways;
increasing the salaries of judges and of state
executive officers;
changing the pay of members of the legislature from
\$8.00 per diem for a period not to exceed 60 days to
the sum of \$1000 for the regular session;
authorizing the legislature to provide a state tax for the
support of high schools;
permitting exemption from taxation of various forms of
property, such as buildings used exclusively for religious
purposes and the endowments of the Leland Stanford Junior
University, the California School of Mechanical Arts,
and the Cogswell Polytechnical College,
—also personal property at the will of the owner
to the amount of \$100;
eight hours made a legal day's work on all public work
throughout the state;
authorization for the depositing of public funds in banks.

{63}

An important change in the state judiciary was made in 1904 by the creation of district courts of appeal for the relief of the congested condition of the business of the State Supreme Court. The state was divided into three judicial districts, in each of which was established a court of appeal consisting of three judges elected from within the district for a term of twelve years.

"A plan for the reorganization of the revenue system of the state was placed before the voters in 1908, but failed of adoption. The proposed amendment was the outcome of a movement that began in 1905 with the appointment of a special commission on taxation. This commission employed expert assistance and made a thorough study of the subject of public

revenues. Its work was placed before the next meeting of the legislature from which came the proposed amendment. Its central object was to discover new sources of revenue for the state treasury, leaving the direct property tax for the maintenance of local government alone."

***Frederick H. Clark, Head of History Department,
Lowell, High School, San Francisco.***

CALIFORNIA: A. D. 1904-1909.
Anti-Japanese agitation.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

CALIFORNIA: A. D. 1906.
The earthquake of April 18.
Destruction at San Francisco by fire following the shock.
Cause of the occurrence.

See (in this Volume)
SAN FRANCISCO: A. D. 1906.

CALIPHATE, The Mohammedan:
The Turkish Sultan's title disputed.

See (in this Volume)
TURKEY: A. D. 1903-1905.

CAMPBELL, H. W.

See (in this Volume)
SCIENCE AND INVENTION: AGRICULTURE.

CAMPBELL-BANNERMAN, SIR HENRY:
Prime Minister of the British Government.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

CAMPBELL-BANNERMAN, SIR HENRY:
Address at Colonial Conference.

See BRITISH EMPIRE: A. D. 1907.

CAMPBELL-BANNERMAN, SIR HENRY:
DEATH, April 22, 1908.

-----CANADA: Start-----

CANADA: A. D. 1896-1909.

The interchange of people between Canada and the United States.
The "American Invasion."
Rapid settlement of the Canadian Northwest.
Immigration in the last decade.

"Nature is healing the schism of the race by her own slow but efficacious methods. Hundreds of families of the United Empire stock have gone back to the United States, in some instances to the very place of their origin. Upwards of a million native Canadians are now living in the States, the great majority as naturalised Americans; whilst American farmers, attracted by cheap land and good laws, are entering the Canadian North-West at the rate of 50,000 a year. The exodus, as migration across the line is called, is a heavy drain on Canada; like an ancient conqueror, it sweeps away the flower of both sexes, leaving the unfittest to survive. During the last 30 years we have spent \$10,000,000 on immigration work in Europe, yet our population has not held its natural increase, has not, that is, grown as fast as the population of an old and over-crowded country like England. The Canadian lad thinks no more of transferring himself to Buffalo or Chicago than a Scotch youth of going up to London, perhaps not so much. On the other hand, American tourists, 'drummers,' lecturers, sportsmen and

investors come and go in Canada precisely as if this were a State of the Union. When we produce a champion athlete, a clever journalist or eloquent divine, they annex him and advertise him next day as a Yankee. Marrying and giving in marriage is going on without the slightest regard for the doctrines of the Loyalists. There are said to be 200 college professors of Canadian birth in the United States. I am acquainted with some of them, and in their opinion, whatever it may be worth, Canada can best serve herself by becoming politically independent, and could best serve England by joining the American Union, where her presence and vote would offset the Anglophobia latent or active in other elements.

"The influence of the Canadian-Americans, to say nothing of that of the Americans proper, is visible on every side in English Canada; they are constantly visiting the old home, in many cases paying the interest of the mortgage on it. The French Canadians in New England have taught those in Quebec that the priest has no business to interfere unduly in elections, or to make war on Liberalism; that the Press ought to be free, and the State, not the Church, supreme within the sphere she defines as her own. Every day the French Canadian papers publish columns of correspondence from the French settlements in the factory towns across the line, but of British affairs editors and readers know little, and, apparently, care less. I mention this not to sneer at the French Canadian Press, but to show those Englishmen who urge us to cultivate the Imperialist spirit how difficult it would be for Mrs. Partington to keep out the Atlantic.

"In English Canada, our newspapers supply us with British news filtered through American channels; we read American books, are interested in American politics, frequent their watering-places and race tracks, imitate their tariffs, play baseball and poker, live under local institutions fashioned after theirs, think like them, speak like them, eat like them, dress like them; when we visit England, we find ourselves

taken for them and treated well in consequence, better than if we confessed ourselves Colonials."

***E. Farrer,
Canada and the new Imperialism
(Contemporary Review, December, 1903).***

"Some ten years since there began to trickle into the vast wastes of the West the tiny rivulet of immigration which has now become a great stream. Many influences have gone toward widening this current of immigration, but the initial impulse which set it in motion came from the courage of one man. In 1896 Clifford Sifton, a young man, thirty-five years of age, who had already played a considerable *rôle* in the politics of Manitoba, became Minister of the Interior in the Dominion Government. He was equipped with a genius for organization, an almost unequaled capacity for persistent hard work, and, above all, a faith in the West which knew neither wavering nor questioning.

{64}

He threw himself with immense energy into the task of advertising the Canadian West to the world and inducing immigration. His conception of the problem and its solution was Napoleonic; for he saw what others could not see and even scouted as absurd, that the people who could be induced most easily to lead the procession into the vacant prairies lived in the adjoining States of the American Union. A new generation had grown up in these States on the farms secured as free grants by their fathers in the '70's, and he saw that when they looked for lands for themselves there would be none available at all comparable with those of Western Canada. Therefore, he argued, to acquaint them with the opportunities and possibilities of the new land to the north would be to insure such a migration as he desired, and if the stream once began flowing it would widen by its own velocity. This was the great idea which, given effect to by an organization called into being by first-class executive talent, operating with

limitless resources, broke forever the great silence of the prairies and made them the Mecca of the world's landless folk.

"There had been for years Canadian immigration agencies at various places in the United States, but they had been administered in a spirit of perfunctory hopelessness. These offices were reorganized; new ones opened; tens of thousands of dollars were expended in advertising and in the distribution of printed literature; enterprising drummers were sent abroad throughout the Western States to preach up the opportunities of Western Canada; representative farmers were induced to take trips through the Canadian West, all expenses paid by the government,—in fact, everything that trained business talent could suggest was done.

"The result? In the first year of the new order of things 2412 Americans came to Canada, and thereafter the number mounted yearly. By 1899 the figures had reached 11,945; 1901, 17,987; 1902, 26,388; 1903, 49,473; 1904, 45,171; 1905, 43,652; 1906, 57,919. During the ten years ending June 30, 1906, no less than 272,609 persons left the United States to become residents of Western Canada. These people came from all parts of the United States. The government homestead records for 1906 show applications from persons coming from every State and Territory of the United States, including the District of Columbia and Alaska. North Dakota led in the applications, with Minnesota a close second; then came Iowa, Michigan, Washington, Wisconsin, Illinois, tapering to two from Alabama and one from Georgia. ...

"It has given Canada over a quarter of a million of settlers with the highest average of efficiency. They, almost without exception, have sufficient capital to make a good start, a most important consideration in a new country where money is scarce and dear. Akin to the Canadians in race, language, political and social customs, they become a part of the community just as naturally as one stream flows into another

at the same level. These settlers have also brought with them fifty years' experience in prairie farming, and by their example have enormously affected agricultural methods. ...

"More important, however, was the advertisement which the 'American invasion' gave Western Canada. It was precisely what the country needed—indeed there could have been no substitute for it in effectiveness. The Eastern Canadian was rather out of conceit with his own West; and if a migratory instinct drove him onward he went to the United States. In Great Britain Western Canada could get no hearing at all,—her emigrants went to Australia, the United States, New Zealand, or even to alien lands in preference to Canada. It is doubtful whether any possible exertions by the Government could have turned the attention of these people to Canada had not the influx of Americans to the prairies, loudly announced by all controllable agencies of publicity, challenged their attention and pricked their national pride. Once the fact was driven into their consciousness they began to hold that if Western Canada was good enough for 'Yankees' it was good enough for them. British newspapers in particular showed a belated but very real interest.

"The result has been a heavily increasing immigration from the British Isles, until it now exceeds by many thousands every year the arrivals from the United States. For the ten-year period specified above there were 311,747 immigrants from Great Britain, compared with 272,609 from the United States; with 248,250 from 'other countries,' chiefly continental Europe. The Scandinavian, Teutonic, and Slavic peoples are all strongly represented in Western Canada. The most numerous non-British people are the Ruthenians, or little Russians. In addition there is a large yearly influx of Canadian settlers from the older provinces, of whom there is no record excepting in the homestead applications. These figures showed that out of 41,869 applications for homesteads last year 27 per cent. were Canadians, 29 per cent. Americans, 20 per cent. from the

British Isles, while the remaining 24 per cent. comprised persons of eighteen different nationalities. These statistics show that Western Canada is overwhelmingly English-speaking."

John W. Dafoe,
Western Canada: Its Resources and Possibilities
(American Review of Reviews, June, 1907).

Writing from Toronto, June 24, 1909, the regular Correspondent of the London ***Times*** took the subject of Canadian immigration, especially that from the United States, for extended treatment. Part of his remarks were as follows:

"So long as the American States had free, fertile lands, it was natural that population should flow into the Republic. America, in the mind of Europe, was the land of promise and the home of freedom, and the United States was America. Canada was but a fringe of inhospitable British territory, where the spring came late and summer was brief, and winter was long and stern. The first great impulse to settlement came with the construction of the Canadian Pacific Railway, but an even more material factor in Canadian development was the comparative exhaustion of the free land of the Western States and the increasing reputation of the Canadian West as a wheat-growing country. If the 20th century belongs to Canada, as Sir Wilfrid Laurier has said, it is primarily because the American Republic has become a far less formidable competitor for British and European immigration, and because thousands of American farmers have discovered that they can sell their improved farms at good prices and secure lands of equal value in Canada for themselves and their sons with a very small investment of capital.

{65}

"The total immigration since 1901 is estimated at 1,200,000. In that year it was 49,149. It rose in 1902 to 67,379. Thence

there was a steady increase until 1907, when the figures were 262,469. In 1908 the total immigration was between 140, 000 and 142,000, and for this year the estimate is 200,000.

British immigrants began to come in considerable Volume in 1901, when there were 17,269 arrivals. The best year was 1907, when the number reported was 120,182, as compared with 83,975 from the Continent of Europe and 58,312 from the United States. The decline in 1908 was chiefly in British and European immigration. Between 50,000 and 55,000 came from across the border, which was a greater number than came from either Britain or Europe. This year it is estimated that 70,000 Americans will come into the country. They will take up between 20,000 and 25,000 homesteads, and as it is considered that they bring property to the average value of \$1,000 each this would give a total new capital of \$70,000,000. In 1907, the year in which we had our greatest Volume of immigration, there were 178,500 British and Americans as compared with 84,000 from the Continent of Europe. For the last year there were 100,000 British and Americans and not a third as many from Europe.

"It is apparent that, even with the best business management the Empire can apply to the direction of its population, the American immigration to Canada will continue to exceed that from Great Britain. One of the most careful and soberminded of our public men with whom I talked a few days ago, a man who knows the West and for years has had intimate official knowledge of the movements of population on both sides of the border, believes that in the next ten or twelve years five millions of Americans will come into Canada. Upon this I pronounce no opinion, save to agree that the overflow from the United States is bound to increase in Volume. Naturally there are those amongst us who regard 'the American invasion' with uneasiness, and fear the ultimate effect upon our institutions and upon the relation of Canada to the Empire. In this connexion I can only say that for some years I have been at pains to consult men from all parts of the West who should

know the mind of these American settlers and their general disposition towards the social and political institutions of the country, and as yet I have not found a single Western Canadian to express apprehension. They all agree that, while the Americans have a natural affection for 'Old Glory' and as yet may confuse the Fourth with the First of July, they pay ready allegiance to the flag under which they have come to live, and very generally agree that the impartial and inflexible administration of justice in Canada is in itself sufficient reason for the permanence of the British allegiance and an honest loyalty to Canadian institutions. What may be hidden in the womb of the future, when many of these Americans sit in the Legislatures and in the Federal Parliament, and become powerful in moulding public policy, we cannot know, but at least it is seldom that the seeds of revolution thrive amongst a prosperous agricultural population.

"But it is to one particular phase of the movement of population that I desire chiefly to call attention. The migration to the West has had a marked effect on the older Canadian provinces. Many farms in the long settled districts have been almost deserted. The old remain; the young have gone. The only compensation is that the sons prosper in the West."

According to a despatch from Ottawa in September, 1909, "the annual Immigration Report states that the total arrivals in Canada during the last fiscal year were 146,908. For the first time in Canadian history immigrants from the United States exceeded those from the United Kingdom; the figures are respectively 59,832 and 52,901. The total immigration during the 13 years which the present Government has been in office was 1,366,658. American immigrants in that period have brought to Canada £12,000,000 in cash and effects. Immigration from France and Belgium declined last year and Japanese immigration fell off by 7,106. Only six Hindus entered Canada, compared with 2,623 in the previous year; 3,803 immigrants were

rejected at ocean ports, of whom 1,748 were deported. The total deportations since 1902, when the system was first inaugurated, were 3,149, of whom 2,607 were English."

Two months later it was reported from Ottawa that during the first six months of 1909 "homestead entries were made by 27,296 bona fide settlers, representing free grants of Dominion lands of 4,367,360 acres. This is an increase of 939 entries and of 150,200 acres as compared with the corresponding period of 1908. In September the total number of homestead entries was 2,902; of these 926 were American, 325 English, 109 Scotch, 54 Irish, 336 Canadians from Ontario, and 83 Canadians from Quebec."

Previously, in August, it had been stated that "German capitalists have interested Toronto men in a big plan to colonize the lands of Alberta and Saskatchewan on a time-payment system. The scheme includes advances to settlers for the purchase of implements and for help in house building. The expectation is that 20,000 Germans will avail themselves of the scheme."

CANADA: A. D. 1898-1903.

German retaliation for the tariff discrimination in favor of British goods.

See (in this Volume)
TARIFFS.

CANADA: A. D. 1901-1902.

The Census of the Dominion.

New apportionment of parliamentary representation.

The census of the Dominion, taken in 1901, showed
a total population of 5,370,000,

of which	
Ontario contained	2,182,947;
Quebec,	1,648,898;
Nova Scotia,	459,574;
New Brunswick,	331,120;
Manitoba,	254,947;
British Columbia,	177,272;
Prince Edward Island,	103,259;
The Northwest Territories,	
Yukon included,	211,649.

The new distribution of parliamentary representation, determined this year, gave the House of Commons a total membership of 214, apportioned as follows; Quebec 65 (as guaranteed by the Confederation Act); Ontario 86; Nova Scotia 18; New Brunswick 13; Manitoba 10; British Columbia 7; Northwest Territories 10; Prince Edward Island 4; the Yukon 1. The basis was one representative for each 2500 people. Ontario lost 6 seats, Nova Scotia 2, New Brunswick and Prince Edward Island 1 each; all the other provinces gained, British Columbia to the extent of 7 seats, the Northwest Territories 4, and Manitoba 3.

CANADA: A. D. 1902.
Colonial Conference at London.

See (in this Volume)
BRITISH EMPIRE.

{66}

CANADA: A. D. 1903.
Discovery of the cobalt silver mines in Ontario.

Ore bodies carrying values in silver, cobalt, nickel, and

arsenic were discovered in 1903, during the building of the Temiskaming and North Ontario Railway near the town of Haileybury, at a distance of about 103 miles from North Bay. The railway line ran over the most important vein that has been found, and signs of the latter were noticed in the spring of the year named. Prospecting was begun in the fall with quick results of important discovery, and the rapid attraction of a large mining population to what has become famous as the Cobalt District. The production of silver in the district increased from \$111,887 in 1904 to \$9,500,000 in 1908. The ores are said to be unique among those of North America.

16th Annual Report of Ontario Bureau of Mines.

CANADA: A. D. 1903 (May).

Adoption of "Empire Day" in Great Britain.

See (in this Volume)

ENGLAND: A. D. 1903 (May).

CANADA: A. D. 1903 (October).

Settlement of the Alaskan boundary question.

See (in this Volume)

ALASKA: A. D. 1903.

CANADA: A. D. 1903-1904.

Measures to establish sovereignty over land and sea of Hudson Bay region.

"The agreement by Britain and America to arbitrate at The Hague the Newfoundland Fishery Question will probably pave the way for a similar solution of another entanglement, as threatening and complicated as that respecting the Alaskan Boundary, apparently now imminent between Canada and the United States over the sovereignty of Hudson Bay. This has a special relation to the Newfoundland problem, being also based

on the treaty of 1818. The Canadian Government in August, 1903, despatched the Newfoundland sealing steamer 'Neptune' (one of the type of wood-built ships suited for the work) to the region, with an official expedition whose three-fold object was:

- (1) to reassert British sovereignty over all the land and seas there;
- (2) to expel or subject to Canadian authority the United States whalers who fish there, illegally, it is held; and
- (3) to secure further data tending to determine the navigability of the waters for an ocean grain route and justify subsidising or discouraging the construction of railways from the north-west to the shores of Hudson Bay.

"In the summer of 1904, in anticipation of the 'Neptune's' return, the Canadian Government purchased from Germany the Antarctic exploring steamer 'Gauss,' re-named her the 'Arctic,' and sent her to Hudson Bay as an official cruiser, she conveying also Major Moodie, of the North-West Mounted Police, who was commissioned as 'Governor of Hudson Bay ' and was accompanied by a body of that famous force, to assist him in the administration of this extensive province, they to build posts there and establish themselves at the most important points. ... The undisguised purpose of the Dominion is to take all possible steps to prevent the United States from securing any advantage, territorial or diplomatic, which would enable her to put forward pretensions such as have been advanced by her with respect to the Alaskan Boundary.

"The similarity of this question to that of the Alaskan Boundary is quite striking. Geographically, the Hudson Bay region is to the Northeastern portion of the continent what Alaska is to the North-western. In the variety and value of natural resources both have much in common. The development of the Hudson Bay region, while not as advanced as that of Alaska, seems destined to be much accelerated in the near future in every department of industrial endeavour. The United

States whalers, voyaging from New Bedford into Hudson Bay, and from San Francisco into Alaskan seas, penetrate to the very confines of the Arctic zone itself. To proceed against them now, after their having enjoyed for over seventy years an unrestricted access to Hudson Bay, whether entitled thereto or not, is a step which may provoke a repetition of the difficulties which were recently experienced over the Alaskan Boundary. ...

"[Canada] contends that from the entrance to Hudson Strait, which she says is in a line drawn from Cape Chidley, the northern projection of Labrador, to Resolution Island, the southern extremity of Baffin Land, all the waters and lands to the west, including the numerous islands of Arctic America, are her exclusive possession. She bases this contention on the following grounds:—

"1. Discovery (the waters, coastline and hinterland having been discovered and charted by British explorers).

"2. Occupation (the region having been occupied only by the Hudson Bay Company).

"3. Treaty cession (the British rights to the region having been admitted by the French in 1713).

"4. Acquiescence (the United States having acknowledged the Hudson Bay Company's rights in 1818).

"5. Purchase (Canada having bought out the Company in 1870).

"But Americans are indisposed to acquiesce in any such conclusion as regards the waters of the Bay. They contend that the British had originally no rights beyond the three-mile limit, that the French in 1713 could cede them no more, and that the American concurrence in 1818 could apply only to the same territorial waters. In other words, they question the

right of the British Monarch to grant such a Charter as he did, and it may be observed here that the same point has frequently been made in England also in the past by opponents of the Company and by legal critics."

***P. T. McGrath,
The Hudson Bay Dispute
(Fortnightly Review, January, 1908).***

CANADA: A. D. 1903-1905.

Attitude of the Canadian Manufacturers' Association toward Great Britain and the United States on the Tariff question.

"The attitude of the Canadian Manufacturers' Association toward both the United States and Britain has been very frequently misrepresented by opponents of tariff reform in Canada and England. ... The views of the Association were clearly set forth in the recommendations made by the Tariff Committee at the annual meeting in September, 1903, and adopted by the Association after full discussion. The attendance was very large, and the meeting was practically unanimous, only one member dissenting. The resolutions were as follows:

{67}

""(1) That we reaffirm the tariff resolution passed at the last annual meeting in Halifax, as follows: Resolved, That in the opinion of this Association, the changed conditions which now obtain in Canada demand the immediate and thorough revision of the tariff, upon lines which will more effectually transfer to the workshops of our Dominion the manufacture of many of the goods which we now import from other countries; that, in any such revision, the interests of all sections of the community, whether of agriculture, mining, fishing, or manufacturing, should be fully considered, with a view, not only to the preservation, but to the further development, of

all these great natural industries; that, while such a tariff should primarily be framed for Canadian interests, it should nevertheless give a substantial preference to the Mother Country, and also to any other part of the British Empire with which reciprocal preferential trade can be arranged, recognizing always that under any conditions the minimum tariff must afford adequate protection to all Canadian producers.

(2) That, except in very special cases, we are opposed to the granting of bounties in Canada as a substitute for a policy of reasonable and permanent protection.

(3) That we are strongly opposed to any reciprocity treaty with the United States affecting the manufacturing industries of Canada.

(4) We recommend that the Dominion Government establish in Canada a permanent tariff commission of experts, who shall have constant supervision of tariff policy and changes, and shall follow closely the workings of the Canadian tariff with a view to making such recommendations to the Government as will best conserve and advance the interests of the Dominion.'

"These resolutions were reaffirmed at the annual conventions in 1904 and 1905, meeting with no opposition."

***Watson Griffin,
Canadian Manufacturers' Tariff Campaign
(North American Review, August, 1906).***

CANADA: A. D. 1903-1909.

New transcontinental railway project.
The Grand Trunk Pacific.

"The project for a new transcontinental railway made the year 1903 industrially significant. The scheme when finally

presented to Parliament by Sir Wilfrid Laurier, on July 31st, provided for the building of a new line from Moncton, New Brunswick, through Quebec to Winnipeg and the Pacific Coast at a terminus then not fixed, but now known to be Prince Rupert. The road is to be divided into two parts; the Eastern from Moncton to Winnipeg, which is to be built by the Government, and the Western from Winnipeg to Prince Rupert, to be built by the Grand Trunk Pacific Railway Company. Provision was made for a lease of the Eastern section by the company and its purchase after fifty years. This company is practically the same as the Grand Trunk Railway Company. Sir Wilfrid estimated the cost at \$13,000,000. There were provisions for Government assistance in the guaranteeing of the bonds of the new company."

***F. B. Tracy,
Tercentenary History of Canada,
Volume 3, page 1034 (Macmillan Company, New York, 1908).***

At the half yearly meeting of the Grand Trunk Company in London, October 21, 1909, the President, Sir C. Rivers Wilson, who had recently returned from Canada, spoke of the present state and prospects of the transcontinental line, partly as follows:

"They were, he remarked, under an obligation to complete their road through to Prince Rupert by December 1, 1911, but, owing to the want of labour, he feared there was very little chance of their succeeding in doing so. ... They had built through to Winnipeg on the one hand and to Lake Superior on the other, but there remained an unfortunate link of 245 miles to complete their junction with Lake Superior. ... After what had happened he was very chary of making any prediction, but he should think that, after all that had taken place, and after the great pressure which was now being put on the contractors, the road would be finished by next summer. Their great object, of course, was to link up the west with their eastern system.

That would be done during the summer by the road coming down to Lake Superior, which would enable them to communicate by water with their Georgian Bay port, and during the winter, when navigation was closed, by way of land north of Lake Superior by the line the Government was to build to a place called Cochrane, about 540 miles distant, where they would obtain communication with North Bay and put themselves in contact with their own Ontario road."

CANADA: A. D. 1904.

General Election.

Continuance of the Laurier Ministry.

The Earl of Minto succeeded as Governor-General by Earl Grey.

The general election in 1904 resulted in a parliamentary majority of 64 for the Liberals, thus firmly reseating the Laurier Ministry. The Conservatives carried Ontario, but were beaten heavily in the Maritime Provinces, in Quebec, and in the West. The general prosperity of the country gave a backing to the Liberals which no political criticism could overcome.

The Earl of Minto was succeeded as Governor-General, in 1904, by Earl Grey, grandson of the Earl Grey who, as Prime Minister of England in 1832, carried through the first Reform of Parliament, extinguishing the "rotten boroughs," transferring political power from the land-owning aristocracy to the middle class of English people, and beginning the democratizing of government, which two later reforms have made nearly complete. "There can be no doubt," said a Canadian correspondent of one of the London journals lately, "that the present Governor-General is more widely popular in Canada than any of his predecessors in that high office were, or could have been. Happy in his personality, happier still in his opportunities, he is known and liked by all sorts and conditions of Canadians in every part of the country; whereas more than one of those who have represented the Sovereign there since the creation of the Canadian Confederacy were regarded as august functionaries

forming the 'dignified part' of the constitutional mechanism (to use Bagehot's phrase), and as sedulously avoiding close contact with the people at large."

Within the past year it has been announced officially from Ottawa that Lord Grey will fill out his full period of six years in the office of Governor-General, expiring in December, 1910.

CANADA: A. D. 1904.

Creation of the Board of Railway Commissioners.
Its large regulative powers.

See (in this Volume)
RAILWAYS: CANADA.

CANADA: A. D. 1904-1909.

Race problems.
Restriction of Chinese Immigration.
Labor hostility.
Riotous attacks on Japanese, Chinese, and Hindu laborers.

See (in this Volume)
RACE PROBLEMS: CANADA.

{68}

CANADA: A. D. 1905.

New Provinces created.
Alberta and Saskatchewan.
Revival of the Separate School controversy.
The compromise settlement.

By Bills brought into the Dominion Parliament by the Premier, Sir Wilfrid Laurier, on the 21st of February, 1905, and subsequently passed, the four Northwest Territories ceded to the Dominion by Great Britain in 1870 were reorganized as two

provinces, and admitted to membership in the Canadian Federal Union, bearing the names of Alberta and Saskatchewan, with Edmonton for the capital of the former and Regina for the latter.

See, in Volume IV. of this work,
NORTHWEST TERRITORIES OF CANADA.

Saskatchewan includes the territories of Saskatchewan, Assiniboia, and one-half of Athabasca, and Alberta the territory of Alberta and the remainder of Athabasca. The entire area of the two provinces is 550,345 square miles, and it extends from Manitoba west to the 110th meridian, and from the United States boundary to 60 north latitude. The population of each province was reckoned at 250,000, and was rapidly increasing. The Dominion Government retains control of the public lands. Each of the new provinces received at the beginning five representatives in the Dominion House of Commons and four in the Senate. A single Legislative Chamber of twenty-five members was provided for each; each has a Lieutenant-Governor, with a Cabinet of responsible Ministers. The Dominion Treasury contributes \$250,000 yearly to the revenue of each.

A provision in these bills for conceding separate schools to religious minorities revived the controversy which raged in Canada for many years, after the Province of Manitoba, in 1890, had abolished denominational schools and established a free, compulsory, unsectarian school system.

See, in Volume VI. of this work,
CANADA: A. D. 1890-1896, and A. D. 1898 (JANUARY).

The Government was forced to amend the provision, devising a compromise which cannot be said to have satisfied either party to the dispute, but which saved the Government from a probable defeat. This affords a half hour of religious teaching, by

denominational teachers, at the end of school hours, the denominational character of the instruction determined by the majority in attendance, and its reception to be optional. As explained at the time by a writer in *The Outlook*, the working of the system is as follows. "The half-hour is the only noteworthy feature of the separate schools. They are liable for no other school taxation than that which is necessary to support those schools. In all other respects, in every detail of government control and oversight, they are exactly like the schools of the majority. From nine o'clock in the morning until three o'clock in the afternoon the order of lessons is the same for all; so are the textbooks, the standards of efficiency, and the qualifications of the teachers. There cannot be any control of the school by any clerical or sectarian body. There cannot be any sectarian teaching between nine o'clock in the morning and three o'clock in the afternoon. The Normal schools of the new provinces will give a uniform normal training for all teachers, and there will be uniform curricula and courses of study for all schools of the same grade. There will be complete and absolute control of all schools as to their government and conduct by the central school authority created by the new provincial Legislature. The distribution of the legislative grant to all schools will be according to educational efficiency, a wise provision which did not apply to separate schools of the old type. To recapitulate, all the schools are alike, except that where the trustees are Protestant there is Protestant religious teaching from half-past three to four, and where the trustees are Roman Catholic there is Roman Catholic teaching during the half-hour. That is the only distinction, and neither Protestant nor Roman Catholic children, when they are in the minority, need remain to hear any religious teaching against their parents' wishes."

CANADA: A. D. 1906.

Dominion Forest Reserves Act.

See (in this Volume)
Conservation of Natural Resources.

CANADA: A. D. 1906.
Passage of the "Lord's Day Act."

See (in this Volume)
SUNDAY OBSERVANCE.

CANADA: A. D. 1906.
Prisons and Reformatory Act.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

CANADA: A. D. 1906 (May).
Departure of the last British garrison.

On the 1st of May, 1906, the last British garrison in the Dominion was withdrawn from Esquimaux, in British Columbia, under an arrangement which leaves the Canadian Government in undivided control of all military posts.

CANADA: A. D. 1906-1907.
Political experiments in Ontario.
Broadening the functions of government.

The Canadians of their Middle West, who used to be the most conservative of Britons, have manifested lately a new spirit, wafted, perhaps, from adventuresome New Zealand, and are trying governmental experiments that would stagger Oklahoma,—trying them, too, with what looks like success.

For the development of the rich cobalt and silver mining region on its eastern border, and for the encouragement of colonization farther northward on the same border, the Ontario Government has not hesitated to construct and own and operate

officially an important line of railway, the Temiskaming and Northern Ontario, which is reported to have been profitable from the start. The road may possibly be extended to James Bay, the southward projection of Hudson Bay.

The progressive government of Ontario has also undertaken to work for its own benefit the mines in a large lately opened block of the Cobalt mining territory, covering about 100 square miles. In somewhat the same line of economic policy, it determined in 1906 to control the development and transmission of electric power at and from Niagara Falls, and accomplished its purpose by a contract with the Ontario Power Company, which secures power to municipalities in Ontario at an extremely reasonable rate.

This adventurous policy in economic directions is less surprising, however, than an absolutely novel experiment in the officializing of political parties, as agencies in representative government, which has been put on trial in Ontario during two parliamentary sessions. For the first time in constitutional history, the opposition leader in a legislature has been made a recognized functionary and salaried by the Government to the extent of \$7,000 a year. Theoretically, the importance of an effectively critical opposition to the majority party in a legislature is always acknowledged. Is there not good sense, then, theoretically at least, in a policy of government which aims to increase the efficiency of that criticism and give it a responsible character, in the mode which the Ontarians are trying?

{69}

After between two and three years trial of this last named experiment, with a salaried leader of the Opposition, the Toronto correspondent of the London *Times* wrote, in June, 1909, to that paper as follows:

"This is an experiment in Parliamentary government which has not been attempted elsewhere. It has both advantages and disadvantages. There are few men of wealth or leisure in Canadian public life, and generally a private party fund has been provided for the support of the leader of the Opposition. The charge was commonly made that as this fund was likely to be provided by the few wealthy men of the party they would exact compensation in the form of official appointment or legislative favour when the Opposition leader became the head of the Government. It was decided, therefore, to give a salary, equal to the emoluments of a Minister of the Crown, to the leader of the Opposition. Mr. Borden [leader of the Opposition in Ontario for some time past] sanctioned this legislation and accepted the remuneration provided. It was argued that he thus became a pensioner on the Government, and that a servile consideration for his salary would affect his independence and restrain his criticism of the paymasters on the Treasury benches. Mr. Borden, while disposed more than once to relinquish the salary, felt that this criticism was unjust, and, knowing the grave financial distresses which some of his predecessors had experienced, waited patiently for the attack to exhaust itself and for opportunity to prove that he was not a dependent of the Treasury. At length his course seems to be justified, and the appropriation of a salary for the leader of the Opposition seems likely to become a settled feature of the Canadian Parliamentary system. The real test will come, however, if the system of Parliamentary groups should ever replace the established two-party system in Canada. But for the time the experiment has been justified, and under the conditions which so often obtain in Canada it may even be said that the official salary enhances the independence and dignity of the Opposition leader in Parliament."

CANADA: A. D. 1906-1908.

The Canada Temperance Act.

See (in this Volume)
ALCOHOL PROBLEM: CANADA.

CANADA: A. D. 1907.
The founding of Macdonald College.

See (in this Volume)
EDUCATION: CANADA: A. D. 1907.

CANADA: A. D. 1907 (March).
The "Industrial Disputes Investigation Act," to aid in the prevention and settlement of Strikes and Lockouts.

See (in this Volume)
LABOR ORGANIZATION: CANADA: A. D. 1907-1908.

CANADA: A. D. 1907 (April-May).
Imperial Conference at London.

See (in this Volume)
British Empire: A. D. 1907.

CANADA: A. D. 1907-1909.
Convention respecting commercial relations with France and its amendment.

A Convention which greatly liberalized the tariff regulations affecting trade between Canada and France was concluded between the British and French Governments and signed at Paris on the 19th of September, 1907. It gave "the benefit of the minimum tariff and of the lowest rates of customs duty applicable to like products of other foreign origin," reciprocally, in each country to certain enumerated products of the other; with mutual pledges that every reduction granted by either to any foreign country should apply to similar products of the other.

In January, 1909, an amended Convention was negotiated which liberalized still further this commercial agreement, enlarging the schedules of favored products, especially the agricultural schedules, giving important advantages to Canada in the French market. The amended Convention was ratified in France on the 13th of July, and in Canada early in December.

CANADA: A. D. 1908.
Child Labor legislation.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS WORKERS.

CANADA: A. D. 1908.
Governmental undertaking of a railway to Hudson Bay.

See (in this Volume)
RAILWAYS: CANADA: A. D. 1908-1909.

CANADA: A. D. 1908 (April).
Convention for the preservation and propagation of Food
Fishes in waters contiguous to the United States and Canada.

See (in this Volume)
FOOD FISHES.

CANADA: A. D. 1908 (April).
Treaty respecting the demarcation of the International
Boundary between the United States and Canada.

A Treaty "providing for the more complete definition and demarcation of the international boundary between the United States and the Dominion of Canada," negotiated by Ambassador Bryce and Secretary Root, appointed Plenipotentiaries of the Governments of Great Britain and the United States, respectively, was signed at Washington on the 4th of June, 1908. The Treaty provides for parcelling the boundary line in

eight sections, for the determination in each of which each Government "shall appoint, without delay, an expert geographer or surveyor to serve as Commissioner." Its first article prescribes with minuteness the procedure to be followed and the consideration to be given to former surveys and determinations of the boundary line "in the waters of Passamaquoddy Bay from the mouth of the St. Croix River to the Bay of Fundy." The second article defines similarly the task appointed to the Commissioners who shall determine the "line drawn along the middle of the River St. Croix from its mouth in the Bay of Fundy to its source." The third article instructs the Commissioners who shall fix the line from the source of the St. Croix to the St. Lawrence. The fourth deals in like manner with the next section of the line, from "the point of its intersection with the St. Lawrence River near the forty-fifth parallel of north latitude, as determined under articles I. and VI. of the Treaty of August 9, 1842, between Great Britain and the United States, and thence through the Great Lakes and communicating waterways to the mouth of Pigeon River, at the western shore of Lake Superior." The fifth pursues the line from "the mouth of Pigeon River to the northwestern-most point of the Lake of the Woods." The sixth traces the work to be done on the line from that point of the Lake of the Woods to the summit of the Rocky Mountains. The seventh relates to the section of boundary "along the forty-ninth parallel of north latitude, from the summit of the Rocky Mountains westward to the eastern shore of the Gulf of Georgia, as defined in article I. of the Treaty of June 15, 1846, between Great Britain and the United States and as marked by monuments along its course,"—for the renewing and completing of which monuments commissioners were appointed by concurrent action of the two Governments in 1902 and 1903. The eighth article has to do with the western terminal section of the task, carrying the boundary line "from the forty-ninth parallel of north latitude along the middle of the channel which separates Vancouver's Island from the mainland and the Haro Channel and of Fuca's Straits to the Pacific Ocean, as

defined in article I. of the Treaty of June 15, 1846, between Great Britain and the United States, and as determined by the award made on October 21, 1872, by the Emperor of Germany as arbitrator.

{70}

In articles one and two there are provisions for the arbitration of disagreements; and the concluding article contains the following:

"If a dispute or difference should arise about the location or demarcation of any portion of the boundary covered by the provisions of this Treaty and an agreement with respect thereto is not reached by the Commissioners charged herein with locating and marking such portion of the line, they shall make a report in writing jointly to both Governments, or severally each to his own Government, setting out fully the questions in dispute and the differences between them, but such Commissioners shall, nevertheless, proceed to carry on and complete as far as possible the work herein assigned to them with respect to the remaining portions of the line.

"In case of such a disagreement between the Commissioners, the two Governments shall endeavor to agree upon an adjustment of the questions in dispute, and if an agreement is reached between the two Governments it shall be reduced to writing in the form of a protocol, and shall be communicated to the said Commissioners, who shall proceed to lay down and mark the boundary in accordance therewith, and as herein provided, but without prejudice to the special provisions contained in Articles I and II regarding arbitration.

"It is understood that under the foregoing articles the same persons will be appointed to carry out the delimitation of boundaries in the several sections aforesaid, other than the section covered by Article IV, unless either of the

Contracting Powers finds it expedient for some reason which it may think sufficient to appoint some other person to be Commissioner for any one of the above-mentioned sections."

CANADA: A. D. 1908 (July).

Tercentenary Celebration of the Founding of Quebec.

The three hundredth anniversary of the founding of Quebec by Champlain was celebrated at that city in July, 1908, with remarkable spirit and success. The Government of the Dominion took an active and important part in the preparations, nationalizing the battle-field of Wolfe's victory over Montcalm, on the Plains of Abraham, and converting it into a park, where the principal pageants and ceremonies of the occasion were performed. The Imperial Government interested itself warmly in the undertaking, the Prince of Wales, Lord Roberts, the Duke of Norfolk, and other distinguished personages from Great Britain coming as guests of the festivity and to bear a part. Living descendants of Wolfe and Montcalm were also invited guests, and the Governments of France and the United States were officially represented. Battleships from the fleets of these nations and from Germany, Italy, Spain, Japan and the Argentine Republic were brought to a friendly concourse in the harbor of Quebec, for participation in the brilliant spectacles of the fête. These included a military representation of the armies of Wolfe and Montcalm, on the field where they fought; a representation of the landing of Champlain, from a ship which duplicated the structure and equipment of his own, and a number of other historical pageants, all admirably planned and executed, and offering a rare entertainment to the many thousands of visitors who were attracted to Quebec from all parts of the Dominion and the United States.

The celebration began on the 19th of July and continued through two weeks.

CANADA: A. D. 1908 (September).
Act to amend Civil Service Act.

See (in this Volume)
CIVIL SERVICE REFORM: CANADA.

CANADA: A. D. 1909.
The projected Georgian Bay Canal.
Present state of the project.

"The scheme for a canal to give through transport for ocean-going steamers from Montreal to the Great Lakes may now be said to have emerged from the field of idealism into that of practical politics, the need for such a waterway having been generally recognized by Canadian politicians. In commercial circles there is the strongest feeling that the canal works should be put in hand at once, and at the end of April last a powerful deputation representing 20 Canadian Boards of Trade and 54 municipalities pressed this point of view upon the Government. At the present time questions of finance alone prohibit the practical adoption of the enterprise. ... When the work is started, it will probably be found that the contract will be entrusted to private enterprise under Government supervision.

... The present position of the negotiations between the Government and the canal company is that the latter corporation having matured its scheme, the Government engineers have made a report, and a compromise has now to be effected on those points where the recommendations of the Government engineers differ from the scheme of construction drawn up by the Georgian Bay Canal Company.

"The total distance of the route planned by the canal company engineers between Georgian Bay on Lake Huron to Montreal, the head of ocean navigation on the St. Lawrence River, is 440 miles. The project is essentially a river and lake

canalization scheme, and for the greater part of its course the projected route follows the course of the French River and the Ottawa. River and its lakes. From Georgian Bay to the summit level it is proposed to utilize the middle channel of French River to Lake Nipissing. From the northern side of this lake to the summit level, a distance of over 80 miles from Georgian Bay, it would be mainly an artificial waterway. From the summit level, 677 ft. above sea level, there is a long fall to Montreal, and the route proposed by the canal company engineers is *via* Trout and Turtle Lakes, the little Mattawa River into Talon Lake to Sand Bay, a distance of 21 miles. A canal three miles long would carry the waterway to the Mattawa River, 13 miles of which would be utilized, and a short canal cut would give access to the Ottawa River, which would then be followed for a distance of 293 miles. Thence the St. Lawrence River or a branch of the Ottawa River, known as the Back River, would form the new waterway for the last 25 miles. The difference in elevation of 659 ft. between Montreal and the summit level, and 99 ft. between the summit and Georgian Bay would be bridged by 27 locks, ranging in lift from 5 ft. to 50 ft. These locks would be designed for a length of 940 ft., with a width of 70 ft. and with 22 ft. of water upon the lock sills, the proposed depth of the canal being 24 ft.

{71}

The total length of canal cutting for the route is estimated at from 28 to 34 miles, and in all about 108 miles out of the total length of 440 miles would require excavation work for lock approaches, canals, and submerged channels.

"The plans of the Government engineers, as embodied in a report to the Department Of Public Works, do not differ materially from those of the canal company. The latter proposes a 24 ft. waterway, with 22 ft. upon the lock sills; the Government plans provide for a 22 ft. waterway, which, it is pointed out, would more than equal the conditions as they exist to-day in the channels connecting the waters of the

Great Lakes, which govern the draught of boats on the Lakes. ... The opening up of the Great Lakes for the first time to ocean-going traffic would be an event of the first commercial magnitude. It is not generally recognized that the trade of the Lakes is greater than the coasting trade of England, of France, and of Germany put together. The statistical reports of Lake commerce passing through the canals at Sault Ste. Marie, Michigan and Ontario, show that the tonnage passing through these canals increased during 1897 to 1907 from 18,982,755 to 58,217,214.

"Reference should also be made to the water powers which would be created by the present plans for the construction of the canal. The report of the Government engineers states that nearly 1,000,000 h. p. could be secured along the Ottawa and French rivers and it is estimated that 100,000 h. p. would be available within almost a mile of the city of Montreal.

"The question yet to be decided is when can the country afford to start the work. Sir Robert Perks, M. P., who has been intimately associated with the scheme, recently submitted an offer to the Government on behalf of the canal company, who own the charter, to provide £5,000,000 at a 3 per cent. guarantee, with ½ per cent. sinking fund, for the construction of the French River section of the canal, a distance of about 86 miles, and to build docks and warehouses at North Bay on Lake Nipissing. ... It is estimated that it would take ten years from the inception of the work before the canal would be open for navigation, and that the total cost would be about £20,000,000."

***Engineering Correspondence London Times,
August 18, 1909.***

CANADA: A. D. 1909.
The Great Mackenzie Basin.
The Newest Canadian West.

A report on the agricultural possibilities of the great Mackenzie Basin, prepared by a select committee of the Dominion Senate, was made public in the summer of 1909. "Basing their calculations upon the testimony of witnesses, the Committee calculate that some two million square miles between the northern limits of Saskatchewan and Alberta and the Arctic Circle can be used for pasturage and for the cultivation of wheat, barley, potatoes, and other vegetables. Until a few years ago not only the Mackenzie basin but the valley of Peace rivers were on account of their high latitudes considered to be unfit for cultivation. The comparatively mild climate, which, as the report shows, they in reality enjoy, is said to be due to the proximity of large bodies of water such as the Great Slave and Great Bear lakes and to the **chinook** wind, the warm current of air that blows across the Rocky Mountains from the Pacific. The shortness of the sub-Arctic summer appears to be offset by the proportionate length of the days and by the clearness of the air. In regard to the future of the district with which it deals the report points out that in 1870 the representatives of the people of Eastern Canada were anxious to obtain in regard to what is now the prosperous province of Manitoba exactly the same information as the Committee has been engaged in collecting about Canada's 'newest west.'"

CANADA: A. D. 1909.

The opposition in Newfoundland to union with the Dominion.

See (in this Volume)

NEWFOUNDLAND: A. D. 1909.

CANADA: A. D. 1909 (January).

The Waterways Treaty between the United States and Great Britain, concerning the waters between the former and Canada.

Resulting from the labors of an International Waterways

Commission, appointed four years before, a Waterways Treaty, having reference to the lakes and rivers that lie along the boundary between Canada and the United States, was concluded by Ambassador Bryce, on the part of the British Government, and Secretary of State Root, on the part of the United States, in January, 1909. The Treaty was ratified by the Senate of the United States in the closing hours of the Congressional session which ended March 4, but with a proviso, in the form of a resolution attached. The following is a summary of the provisions of the Treaty as it went to the Senate:

"A preliminary article defines the Canadian and American boundary waters.

"Article I. enacts that the navigation of these waters, including Lake Michigan and the canals connecting them, shall for ever continue free and open for the purposes of commerce to the inhabitants of both countries. Regulations affecting canals in the territory of either country shall apply equally to inhabitants of the other who may wish to make use thereof.

"Article II. reserves to the signatories and to the State and provincial Governments exclusive control over the use, diversion, &c., of such waters in their territory as flow into the boundary waters or across the frontier. Any inhabitant of either country injured by the use of this privilege will be entitled to the legal remedies he would have if he were a native of the defendant country. The contracting parties, however, reserve the right of objection whenever navigation on their own side of the boundary is imperilled by any diversion of water across it.

"Articles III. and IV. provide that no works shall be undertaken on either side of the line, if such works would be likely to affect the level of the waters on the other side, without agreement between the contracting parties and the sanction of the Joint Commission. Pollution of the waters is

also forbidden.

"Article V., which relates to the diversion of the waters of Niagara, the control of the level of Lake Erie, and the flow of the Niagara River, has a clause which states that it is the desire of both parties to accomplish these objects with the least possible injury to the investments which have already been made in the construction of power plants on the United States side of the Niagara River under grants of authority from the State of New York, and on the Canadian side of the river under licenses authorized by the Dominion of Canada and the Province of Ontario.

{72}

"Article VI. apportions the uses of the St. Mary's and Milk rivers and their tributaries in the west.

"Article VII. provides for the creation of an International Joint Commission, consisting of three representatives of Canada and three of the United States.

"Article VIII. provides that the Commission shall have jurisdiction over, and shall decide all cases involving, the waterways where, under articles III. and IV., their approval is required, and gives principles for their guidance. The contracting parties are to have equal and similar rights. The uses of the water are to be considered in the following order:—First, domestic and sanitary purposes; secondly, purposes of navigation; third, purposes of power and irrigation. The Commission is invested with some discretion with regard to departure from the principle of equal division, &c. In case of a tie vote each Commissioner is to make a separate report to his Government; whereupon the two Governments shall attempt to reach an agreement.

"The two following articles, IX. and X., requiring that all

disputes shall be referred to the Commission, stand out as the most important provisions of the treaty. Article IX., after stating that matters of difference shall be referred to the Commission whenever either Government desires, goes on to authorize the Commission in each case so referred to examine into and report upon the facts and circumstances of the particular questions referred, together with such conclusions and recommendations as may be appropriate, subject, however, to any restrictions or exceptions which may be imposed with respect thereto by the terms of reference. Such reports of the Commission are in no way to have the character of an arbitral award. The Commission shall make joint report to both Governments in all cases wherein all or a majority of the Commissioners agree, and in case of disagreement the minority may make joint report to both Governments, or separate reports to their respective Governments. In case the Commission is evenly divided upon any question referred to it, separate reports shall be made by the Commissioners, one on each side to their own Government.

"Article X. extends the powers of the Commission by providing that other matters of difference affecting the rights of either country may be referred to the Commission. In each case so referred the Commission is authorized to examine into and report upon the facts and circumstances of the particular questions and matters referred, together with such conclusions and recommendations as may be appropriate, subject, however, to any restrictions or exceptions which may be imposed with respect thereto by the terms of reference. A majority of the Commission shall have power to render a decision or finding upon any of the questions or matters so referred.

"In the event of a failure of the Commission to agree upon the issues submitted to them for decision or report, the article requires the Commissioners to make a joint report to both Governments, or separate reports to their respective Governments, showing the different conclusions arrived at with

regard to matters or questions so referred, which shall thereupon be submitted for decision by the high contracting parties to an umpire chosen in accordance with procedure prescribed in the fourth, fifth, and sixth paragraphs of Article XLV. of The Hague Convention for the pacific settlement of international disputes, dated October 18, 1907. Such umpire, the article concludes, shall have power to render a final decision on matters whereon the Commission have failed to agree."

The resolution attached to the Treaty by the Senate of the United States related to the use of waters flowing at the rapids of St. Mary's River at Sault Ste. Marie, and was introduced by Senator Smith of Michigan. It is as follows:

"Resolved—As part of this ratification, the United States approves this treaty, with the understanding that nothing in the treaty shall be construed as affecting or changing any existing territorial or riparian right in the water, or the rights of owners of lands under water, on either side of the international boundary, at the rapids of St. Mary's River at Sault Ste. Marie, in the use of waters flowing over such lands, subject to the requirements of navigation in the boundary waters and of the navigation of canals, and without prejudice to the existing right of the United States and Canada, each to use the waters of St. Mary's River within its own territory; and that this interpretation will be mentioned in the ratification of this treaty as conveying the true meaning of the treaty, and will in effect form part of the treaty."

This stipulation was objectionable to Canada, and the consent of the Dominion Government to a ratification of the Treaty on the part of Great Britain was withheld. It has been understood, however, that the objection will be substantially removed if the Government of the United States acquires possession of the lands and riparian property concerned, which

was provided for by an Act of Congress passed in March. The necessary proceedings will consume some time.

CANADA: A. D. 1909 (February).

The institution of a Department of External Affairs.

An Associated Press despatch from Ottawa, on the 18th of February, 1909, made known that "the Canadian Government has announced its intention of creating a portfolio of external affairs. Heretofore all of the foreign business of Canada has been carried on through the channel of the British colonial and foreign office. Even after the external affairs branch is created by Canada this will be the principal avenue for such business. That method is cumbersome. In the case of negotiations with the United States, papers have to cross the Atlantic twice in passing from Washington to Ottawa, being sent first to the colonial office and then back to Canada. The process has been much criticised and both the prime minister and the opposition leader have declared themselves in favor of a modification. The creation of the external department is regarded as the first step. The most radical proposal is the intimation that in negotiations with the United States there will hereafter be direct communication between Washington and Canada, through the medium of the British Ambassador."

{73}

In the British Parliament, on the 4th of March, the Prime Minister, Mr. Asquith, replied to a question on the subject, as follows:

"It is understood that the Canadian Government propose to establish a Department of External Affairs. This department is merely intended—like the corresponding department of the Com [Commonwealth?] wealth Government—to conduct correspondence with the Secretary of State for the Colonies, and his Majesty's Ambassador at Washington, and with the several

departments of the Canadian Government. At present delay occurs in dealing with the correspondence, as there is no department to conduct the work. No suggestion has been made by the Canadian Government for the increase of their powers in dealing with external affairs."

CANADA: A. D. 1909 (February).

Participation in a North American Conference on the Conservation of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: NORTH AMERICA.

CANADA: A. D. 1909 (April).

Statistics of the Budget speech.

Revenue.

Trade.

No increase of taxation.

The following was reported in a despatch from Ottawa, April 20, 1909:

"Notwithstanding the financial stringency of the past year, which reduced the revenue of Canada by \$11,500,000, Mr. Fielding, Minister of Finance, in his Budget speech today made the gratifying announcement that there was a surplus of \$1,500,000 for the year ended March 31. The increase in the net debt was \$46,029,000, of which \$32,000,000 was for the National Transcontinental Railway and the Quebec Bridge. The total trade of the country during the past year was \$553,737,000, a decrease of \$97,000,000, principally in imports. The estimated expenditures for the current year were \$80,078,624. In the judgment of the Government there was no necessity for increased taxation, but the situation should be met by a substantial reduction in expenditures."

CANADA: A. D. 1909 (June).

Important ruling by the Railway Commission affecting
American Railways.

See (in this Volume)
RAILWAYS: CANADA: A. D. 1909.

CANADA: A. D. 1909 (July-August).
Imperial Defence Conference.
Its agreements.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY AND NAVAL.

CANADA: A. D. 1909 (August).
Meeting of the British Association for
the Advancement of Science.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: PHYSICAL.

CANADA: A. D. 1909 (August).
Proposed union of the Maritime Provinces.

A Press despatch of August 19, from Ottawa, reported:

"At a conference of the Boards of Trade of the Maritime
Provinces at Charlottetown a resolution was adopted in favour
of the union of the Maritime Provinces. The Governments of
Nova Scotia, New Brunswick, and Prince Edward Island were
asked to appoint a committee to draft terms of union. The
general opinion is that only union can avert the overwhelming
influence of the West in future."

CANADA: A. D. 1909 (December).
Convention relating to obstructions in the St. John River.

"Commissioners have been appointed on the part of the United

States to act jointly with commissioners on the part of Canada in examining into the question of obstructions in the St. John River, between Maine and New Brunswick, and to make recommendations for the regulation of the uses thereof, and are now engaged in this work."

***Message of the President of the United States to Congress,
December 6, 1909.***

CANADA: A. D. 1909-1910.

As affected by the new tariff of the United States.

See (in this Volume)
TARIFFS: UNITED STATES.

CANADA: A. D. 1910.

Anti-Trust Bill in the Dominion Parliament.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: CANADA.

CANADA: A. D. 1910 (January).

Announcement of naval programme.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

-----CANADA: End-----

CANADA STEEL CORPORATION.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: CANADA: A. D. 1909.

CANADIAN PACIFIC RAILWAY STRIKE, 1908.

See (in this Volume)

LABOR ORGANIZATION: CANADA: A. D. 1907-1908.

CANAL ZONE.

See (in this Volume)
PANAMA CANAL.

CANALS.

See (in this Volume)
PANAMA, GEORGIAN BAY,
and (for Barge Canal) NEW YORK STATE: A. D. 1898-1909.

CAMPANILE OF ST. MARK'S, at Venice.
Its fall.

See (in this Volume)
VENICE: A. D. 1902.

CANBERRA,
YASS-CANBERRA.
Chosen site of the Capital of Australia.

See (in this Volume)
AUSTRALIA: A. D. 1905-1906.

CANCER RESEARCH.

See (in this Volume)
PUBLIC HEALTH.

CANDAMO, PRESIDENT MANUEL.

See (in this Volume)
PERU.

CAPE COLONY.

See (in this Volume)
SOUTH AFRICA.

CAPITALISTIC COMBINATIONS.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.;
also RAILWAYS: UNITED STATES.

CAPUCHINS:

Forbidden to teach in France.

See (in this Volume)
FRANCE: A. D. 1903.

CARDUCCI, Giosue.

See (in this Volume)
NOBEL PRIZES.

CARLOS I., King of Portugal. His assassination.

See (in this Volume)
Portugal: A. D. 1906-1909.

CARMEN SYLVA: Queen of Roumania.

See (in this Volume)
BALKAN AND DANUBIAN STATES: ROUMANIA: A. D. 1866-
1906.

CARNEGIE, ANDREW:

Gift to Scottish universities and students.

See (in this Volume)
EDUCATION: SCOTLAND: A. D. 1901.

CARNEGIE, ANDREW:
Gift of a building at Washington for the
Bureau of the American Republics.

See (in this Volume)
AMERICAN REPUBLICS, INTERNATIONAL BUREAU OF.

CARNEGIE, ANDREW:
Gift of a court house and library for the Permanent Court of
Arbitration at The Hague.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1903.

CARNEGIE, ANDREW:
At Peace Congress in New York.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

CARNEGIE FOUNDATION, FOR THE ADVANCEMENT OF
TEACHING.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1905-1908.

CARNEGIE HERO FUNDS.

April 15, 1904, a letter from Andrew Carnegie was made public announcing that he had set apart a fund of \$5,000,000 to be known as "The Hero Fund." In this letter Mr. Carnegie said: "We live in an heroic age. Not seldom are we thrilled by deeds of heroism where men or women are injured or lose their lives in attempting to preserve or rescue their fellows; such are

the heroes of civilization.

{74}

The heroes of barbarism maimed or killed. I have long felt that the heroes and those dependent upon them should be freed from pecuniary cares resulting from their heroism and as a fund for this purpose I have transferred to a commission \$5,000,000 of collateral 5 per cent bonds of the United States Steel Corporation." Only such as follow peaceful vocations on sea or land in the United States or Canada are eligible to receive money or medals for heroic deeds. The commission which has charge of the fund has its headquarters in Pittsburg, Pennsylvania. A similar fund in Great Britain was created soon afterward by Mr. Carnegie, and in May, 1909, he placed, for the same purpose, \$1,000,000 of the bonds of the United States Steel Corporation in the hands of trustees in France, under the sanction of the French Government.

CARNEGIE INSTITUTE, The, at Pittsburg:
Its enlargement and re-dedication.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1907.

CARNEGIE INSTITUTION OF WASHINGTON.

See (in this Volume)
SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

CARTAGO, COSTA RICA:
Institution of the Central American Court of Justice.
Gift of a building by Mr. Carnegie.

See (in this Volume)
Central America: A. D. 1908.

CARTELS.

See (in this Volume)
COMBINATIONS, INDUSTRIAL (IN GERMANY).

CASABLANCA:
Bombardment by French and Spanish fleets.
The Casablanca incident.

See (in this Volume)
MOROCCO: A. D. 1907-1909.

CASEMENT, ROGER: British consul in the Congo State.
His reports.

See (in this Volume)
CONGO STATE: A. D. 1903-1905.

CASTRO, CIPRIANO:
President of Venezuela.

See in this Volume)
VENEZUELA,
also COLOMBIA: 1898-1902.

CASTRO, Luciano de.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

CATALONIA: A. D. 1902.
Disorders.

See (in this Volume)
SPAIN: A. D. 1905-1906, and 1907-1909.

CATHOLIC DISABILITIES, IN ENGLAND:
Majority vote in Commons for removing.

See (in this Volume)
ENGLAND: A. D. 1909 (May).

CATHOLIC PEOPLE'S PARTY.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1904.

CATSKILL AQUEDUCT.

See (in this Volume)
NEW YORK CITY: A. D. 1905-1909.

CATTLE DRIVING.

See (in this Volume)
IRELAND: A. D. 1902-1908.

CAUCASUS, The: Conflict of Tartars and Armenians.

See (in this Volume)
RUSSIA: A. D. 1905 (February-November).

CENSORSHIP.

See (in this Volume)
RUSSIA: A. D. 1909.

CENSUS BILL, PRESIDENT ROOSEVELT'S VETO OF THE.

See (in this Volume)
CIVIL SERVICE REFORM: UNITED STATES.

CENSUS BUREAU, CREATION OF A PERMANENT.

See (in this Volume)

UNITED STATES: A. D. 1902 (March).

CENTER, or CENTRUM PARTY.

See (in this Volume)

GERMANY: A. D. 1906-1907.

-----CENTRAL AMERICA: Start-----

CENTRAL AMERICA: A. D. 1901-1906.

Participation of all the states in the Second and Third
International Conferences of American republics.
Their signature of an obligatory arbitration convention.

See (in this Volume)

AMERICAN REPUBLICS.

CENTRAL AMERICA: A. D. 1902.

Treaty of compulsory arbitration and obligatory peace
between the five republics.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1902.

CENTRAL AMERICA: A. D. 1903.

Honduras: Revolution, establishing General Bonilla
in the Presidency.

In the spring of 1903 a rising in Honduras against the
Government was reported to be in progress, under General
Bonilla. Early in March the situation was stated by the
American consular agent at Amapala as follows:

"A great part of the members of the Congress that was in
session in Tegucigalpa, amongst them the President of the
Congress, fled from the capital to the frontier of Salvador
the 30th of January, so that Congress was de facto dissolved

on that date. It seems that the council of ministers formed a new Congress out of the remaining deputies and the substitutes of the fugitives. The new Congress proclaimed Dr. Juan Angel Arias president, and General Maximo B. Rosales vice-president of the Republic. The new Government was recognized by Nicaragua, but I do not know if it was recognized by the other Central American Republics. In the meantime General Bonilla has gone ahead with his military operations against the new government. His forces have taken the fortified towns of Ocotepeque, Santa Rosa, and Gracias, near the frontier of Nicaragua. On the 22d of February General Bonilla was attacked in El Aceituno by General Sierra, the ex-president, who was completely defeated and escaped with several hundred men, the remainder of his troops, to the fortified town of Nacaome, where he still is. General Bonilla has now an army of about 4,500 men."

In despatches of the 15th and 24th of April, Minister Combs, who represented the United States in transactions with both Guatemala and Honduras, advised the State Department that General Bonilla was in possession of Tegucigalpa; that ex-President Arias was a prisoner; that peace was restored, and that Bonilla should be recognized as President. Accordingly the recognition was given.

CENTRAL AMERICA: A. D. 1904.

Nicaragua, Honduras, Salvador, and Guatemala: Peace Conference.

A despatch, August 31, 1904, from the American Minister at San José, Costa Rica, to the State Department at Washington, was as follows:

"I have the honor to advise that on the 21st instant, at Corinto, Nicaragua, the Presidents of Nicaragua, Honduras, and El Salvador, and a special delegate representing the President of Guatemala, held a conference ostensibly for the purpose of securing the peace of Central America. ... The parties holding

the conference have issued a lengthy manifesto, which indicates nothing of interest to our Government except that the four governments represented are controlled by parties who will aid each other by military force, if necessary, in maintaining the status quo, and that the peace of Central America is thus reasonably assured by making revolutionary efforts more difficult and less liable to achieve success."

{75}

CENTRAL AMERICA: A. D. 1904. Nicaragua and Honduras: Agreement to arbitrate boundary dispute.

In October, 1904, the United States Government was informed that Nicaragua and Honduras had agreed to submit a boundary dispute to the King of Spain.

CENTRAL AMERICA: A. D. 1905. Nicaragua: Treaty with Great Britain concerning the Mosquito Territory.

The following treaty between Great Britain and the Republic of Nicaragua was signed at Managua, Nicaragua, April 19, 1905:

Article I.

The High Contracting Parties agree that the Treaty of Managua of January 28, 1860, is and shall remain abrogated.

Article II.

His Britannic Majesty agrees to recognize the absolute sovereignty of Nicaragua over the territory that constituted the former Mosquito Reserve, as defined in the aforesaid Treaty of Managua.

Article III.

In consideration of the fact that the Mosquito Indians were at one time under the protection of Great Britain, and in view of the interest that His Majesty's Government and the Nicaraguan

Government take in their welfare, the Nicaraguan Government agree to grant them the following concessions:

(a) The Government will submit to the National Assembly a law exempting, for fifty years from the date of the ratification of this Treaty, all the Mosquito Indians and the Creoles born before the year 1894, from military service, and from all direct taxation on their persons, property, possessions, animals, and means of subsistence.

(b) The Government will allow the Indians to live in their villages enjoying the concessions granted by this Convention, and following their own customs, in so far as they are not opposed to the laws of the country and to public morality.

(c) The Nicaraguan Government will concede a further period of two years for them to legalize their rights to the property acquired in conformity with the Regulations in force before 1894 in the Reserve. The Government will make no charge to the said inhabitants either for the lands or the measurement thereof, or for the grant of title-deeds. For this purpose the title-deeds in the possession of the said Indians and Creoles before 1894 will be renewed in conformity with the laws, and, in cases where no such title-deeds exist, the Government will give to each family, at their place of residence, eight manzanas of land, if the members of the family do not exceed four in number, and two manzanas for each person if the family exceeds that number.

(d) Public pasture lands will be reserved for the use of the inhabitants in the neighbourhood of each Indian village.

(e) In the event of any Mosquito Indians or Creoles proving that the lands which they held in conformity with the Regulations in force before 1894 have been claimed by and allotted to other persons, the Government will indemnify them by the grant of suitable public lands of approximate value as

near as possible to their present residences.

Article IV.

The ex-Chief of the Mosquito Indians, Robert Henry Clarence, will be permitted by the Nicaraguan Government to reside in the Republic of Nicaragua and to enjoy full protection so long as he does not transgress the laws, and provided his acts do not tend to incite the Indians against Nicaragua.

Article V.

The Mosquito Indians, and other inhabitants of the former Reserve, will enjoy the same rights as are secured by the laws of Nicaragua to other Nicaraguan citizens.

CENTRAL AMERICA: A. D. 1906. Honduras, Guatemala, and Salvador: War, ended by mediation of the United States and Mexico.

Neither the Convention of Peace and Compulsory Arbitration signed at Corinto in 1902 by the presidents of all five of the Central American republics, nor the peace agreement between four of them two years later, sufficed to prevent an outbreak of war in 1906 which involved the three states of Honduras, Guatemala, and Salvador. President Roosevelt, in his annual Message to Congress that year, referred to the war as having arisen from "trouble which had existed for some time"; but does not indicate the nature of the "trouble"; nor is any light thrown on it in a long diplomatic correspondence between the parties to it and the governments of the United States and Mexico, which appears in the American report of Foreign Relations for 1906. Probably nobody outside of the belligerents ever learned definitely why they felt called upon to fight, or what they had to settle when peace was made.

Seemingly Honduras was the aggressor; but the affair seems hardly worth the trouble of any deep investigation. Its chief importance is in the successful mediation that was undertaken jointly by the governments of the United States and Mexico, of

which President Roosevelt made report in the Message referred to above:

"The thoroughly good understanding which exists between the United States and Mexico," said the President, "enabled this Government and that of Mexico to unite in effective mediation between the warring Republics; which mediation resulted, not without long-continued and patient effort, in bringing about a meeting of the representatives of the hostile powers on board a United States warship as neutral territory, and peace was there concluded; a peace which resulted in the saving of thousands of lives and in the prevention of an incalculable amount of misery and the destruction of property and of the means of livelihood. The Rio Conference passed the following resolution in reference to this action:

"‘That the Third International American Conference shall address to the Presidents of the United States of America and of the United States of Mexico a note in which the conference which is being held at Rio expresses its satisfaction at the happy results of their mediation for the celebration of peace between the Republics of Guatemala, Honduras, and Salvador.’

"This affords an excellent example of one way in which the influence of the United States can properly be exercised for the benefit of the peoples of the Western Hemisphere; that is, by action taken in concert with other American republics and therefore free from those suspicions and prejudices which might attach if the action were taken by one alone."

{76}

The resulting "General Treaty of Peace and Amity, Commerce, etc., between the Republics of Costa Rica, Salvador, Guatemala, and Honduras," signed September 25, 1906, involved solemn engagements in its first four articles, as follows:

"ARTICLE 1.

There shall be perpetual peace and a frank, loyal, and sincere friendship among the Republics of Costa Rica, Salvador, Guatemala, and Honduras, each and every one of the aforesaid Governments being in duty bound to consider as one of their principal obligations the maintenance of such peace and the preservation of such friendship, by endeavoring to contribute every means to procure the desired end, and to remove, as far as lies in their power, any obstacles, whatever their nature, which might prevent it. In order to secure such ends they shall always unite when the importance of the case demands it, to foster their moral, intellectual, and industrial progress, thus making their interests one and the same, as it becomes sister countries.

"ARTICLE 2.

In the event, which is not to be expected, that any of the high contracting parties should fail to comply with or cause any deviation from any of the subjects agreed to in the present treaty, such event, as well as any particular difficulty which may arise between them, shall necessarily be settled by the civilized means of arbitration.

"ARTICLE 3.

The Governments of Salvador, Guatemala, and Honduras, in conformity with the stipulations of the treaty executed on board the ***Marblehead***, hereby appoint as umpires, Their Excellencies the Presidents of the United States of America and of the United Mexican States, to whom all particular difficulties arising among said Governments shall be submitted for arbitration.

"For the purpose of agreeing on the manner to effect such arbitration, the above-mentioned Republics shall accredit, at the latest within three months from this date, their respective legations near the Governments of the United States of America and Mexico, and in the meanwhile arbitration shall

be ruled according to the stipulations of the treaty of compulsory arbitration concluded in Mexico on the 29th of January, 1902.

"ARTICLE 4.

Guatemala not having subscribed to the Corinto convention of January 20, 1902, Costa Rica, Salvador, and Honduras do hereby respectively declare, that said Corinto convention is to continue in force, and that any particular difference which may arise among them shall be settled in conformity with the aforesaid convention and with the regulations established by the Central American court of arbitration on the 9th of October of that year."

Notwithstanding these grave pledges to each other, three of the parties to this treaty were at war the next year.

CENTRAL AMERICA: A. D. 1907.

Nicaragua, Honduras, and Salvador: War.

Mexican and American Mediation.

The Washington Peace Conference.

General Treaty of Peace and Amity.

Central American Court of Justice.

In February, 1907, a fresh outbreak of Central American war occurred, originally between Nicaragua and Honduras, but involving Salvador, presently, in alliance with Honduras. The arbitration convention of 1904 had not accomplished a specific settlement of the boundary disputes between Honduras and Nicaragua, and President Zelaya, of the latter republic, accused the former of encroachments. Mexico and the United States had endeavored to pacify the disputants before hostilities began, but without success. The quarrel was fought out, and a complete victory won by Nicaragua, whose forces captured the Honduran capital and drove President Bonilla from the country. A provisional government was established in Honduras and terms of peace arranged, April 24th. Then the

good offices of President Roosevelt and President Diaz were employed again, with the result which the former communicated to Congress in his Message of December 3, 1907, as follows:

"The effort to compose this new difficulty has resulted in the acceptance of the joint suggestion of the Presidents of Mexico and of the United States for a general peace conference between all the countries of Central America. On the 17th day of September last a protocol was signed between the representatives of the five Central American countries accredited to this Government agreeing upon a conference to be held in the City of Washington 'in order to devise the means of preserving the good relations among said Republics and bringing about permanent peace in those countries.' The protocol includes the expression of a wish that the Presidents of the United States and Mexico should appoint 'representatives to lend their good and impartial offices in a purely friendly way toward the realization of the objects of the conference.' The conference is now in session and will have our best wishes and, where it is practicable, our friendly assistance."

The first regular session of the Conference was held on the 14th of November, the place of meeting being the building of the International Bureau of the American Republics. In addition to the delegates present from the States of Costa Rica, Salvador, Guatemala, Honduras, and Nicaragua, the Republic of Mexico designated Señor Don Enrique C. Creel, Ambassador Extraordinary and Plenipotentiary to the United States, and the United States designated Honorable William I. Buchanan, as representatives from Mexico and the United States at the conference. The Honorable Elihu Root, Secretary of State of the United States, was present, also, at the first session, over which he presided until the organization of the Conference had been effected. His opening address to the Conference included these wise and impressive remarks:

"We cannot fail, gentlemen, to be admonished by the many failures which have been made by the people of Central America to establish agreement among themselves which would be lasting, that the task you have before you is no easy one. The trial has often been made and the agreements which have been elaborated, signed, ratified, seem to have been written in water. Yet I cannot resist the impression that we have at last come to the threshold of a happier day for Central America.

"It would ill become me to attempt to propose or suggest the steps which you should take, but I will venture to observe that the all-important thing for you to accomplish is that while you enter into agreements which will, I am sure, be framed in consonance with the most peaceful aspirations and the most rigid sense of justice, you shall devise also some practical methods under which it will be possible to secure the performance of those agreements.

{77}

The mere declaration of general principles, the mere agreement upon lines of policy and of conduct are of little value unless there be practical and definite methods provided by which the responsibility for failing to keep the agreement may be fixed upon some definite person, and the public sentiment of Central America brought to bear to prevent the violation. The declaration that a man is entitled to his liberty would be of little value with us in this country were it not for the writ of ***habeas corpus*** that makes it the duty of a specific judge, when applied to, to inquire into the cause of his detention, and set him at liberty if he is unjustly detained. The provision which declares that a man should not be deprived of his property without due process of law would be of little value were it not for the practical provision which imposes on specific officers the duty of nullifying every attempt to take away a man's property without due process of law.

"To find practical definite methods by which you shall make it somebody's duty to see that the great principles you declare

are not violated, by which if an attempt be made to violate them the responsibility may be fixed upon the guilty individual—those, in my judgment, are the problems to which you should specifically and most earnestly address yourselves."

The address of Secretary Root was followed by one of excellent counsel from the Mexican Ambassador, and a reply to both was made, on behalf of the Conference, by Señor Don Luis Anderson, Minister of Foreign Affairs of Costa Rica. The Conference then elected its officers, choosing Minister Anderson for its President, and proceeded to the transaction of business.

Fourteen sessions were held between November 14 and December 20, resulting from which eight conventions were agreed to and signed on the latter date. These conventions are:

General Treaty of Peace and Amity;
Additional Convention to the General Treaty;
Establishing a Central American Court of Justice;
Extradition;
On Future Conferences (Monetary);
On Communications;
Establishing an International Central American Bureau;
and Establishing a Pedagogical Institute.

The essential provisions of the General Treaty of Peace and Amity are in the following articles:

"ARTICLE I.

The Republics of Central America consider as one of their first duties in their mutual relations, the maintenance of peace; and they bind themselves to always preserve the most complete harmony, and decide every difference or difficulty that may arise amongst them, of whatsoever nature it may be, by means of the Central American Court of Justice, created by the Convention which they have concluded for that purpose on

this date."

"Article III.

Bearing in mind the central geographical position of Honduras and the facilities which this circumstance has afforded in order that its territory should have been most often the theatre of Central American conflicts, Honduras declares from now on its absolute neutrality in any event of conflict amongst the other Republics; and the latter, in their turn, provided such neutrality be observed, bind themselves to respect it and in no case to violate the Honduran territory.

"ARTICLE IV.

Bearing in mind the advantages which must be gained from the creation of Central American institutions for the development of their most vital interests, besides the Pedagogical Institute and the International Central American Bureau which have been established according to the Conventions celebrated to that end by this Conference, the creation of a practical Agricultural School in the Republic of Salvador, one of Mines and Mechanics in that of Honduras, and another of Arts and Trades in that of Nicaragua, is especially recommended to the Governments.

"ARTICLE V.

In order to cultivate the relations between the States, the contracting parties obligate themselves each to accredit to the others a permanent Legation.

"ARTICLE VI.

The citizens of one of the contracting parties, residing in the territory of any of the others, shall enjoy the same civil rights as nationals, and shall be considered as citizens in the country of their residence if they fulfill the conditions which the respective constituent laws provide. Those that are not naturalized shall be exempt from obligatory military

service, either by sea or land, and from every forced loan or military requirement, and they shall not be obliged on any account to make more contributions or ordinary or extraordinary imposts than those which nationals pay."

"ARTICLE X.

The Governments of the contracting Republics bind themselves to respect the inviolability of the right of asylum aboard the merchant vessels of whatsoever nationality anchored in their ports. Therefore, only persons accused of common crimes and by order of the competent judge, after due legal procedure, can be taken from them. Those prosecuted on account of political crimes or common crimes in connection with political ones, can only be taken therefrom in case they have embarked in a port of the State which claims them, whilst they may remain in its jurisdictional waters, and after the requirements hereinbefore exacted in the case of common crime have been fulfilled."

"ARTICLE XIV.

Public instruments executed in one of the contracting Republics shall be valid in the others, provided they shall have been properly authenticated and in their execution the laws of the Republic whence they proceed shall have been observed."

"ARTICLE XVI.

Desiring to prevent one of the most frequent causes of disturbances in the Republics, the contracting Governments shall not permit the head men or principal chiefs of political emigrations, nor agents thereof, to reside in the departments fronting on the countries whose peace they might disturb.

"Those who may have been actually established in a permanent manner in a frontier department shall be able to remain in the place of their residence under the immediate surveillance of the Governments affording them an asylum, but from the moment when they become a menace to public order they shall be

included in the rule of the preceding paragraph.

"ARTICLE XVII.

Every person, no matter what his nationality, who, within the territory of one of the contracting parties, shall initiate or foster revolutionary movements against any of the others, shall be immediately brought to the capital of the Republic, where he shall be submitted to trial according to law."

"ARTICLE XIX.

The present Treaty shall remain in force for the term of ten years counted from the day of the exchange of ratifications. Nevertheless, if one year before the expiration of said term, none of the contracting parties shall have given special notice to the others concerning its intention to terminate it, it shall remain in force until one year after such notification may have been made."

{78}

The "Additional Convention to the General Treaty "is in three articles, as follows:

"ARTICLE I.

The Governments of the High Contracting Parties shall not recognize any other Government which may come into power in any of the five Republics as a consequence of a coup d'Etat, or of a revolution against the recognized Government, so long as the representatives of the people, freely elected, have not constitutionally reorganized the country.

"ARTICLE II.

No Government of Central America shall in case of civil war intervene in favor of or against the Government of the country where the struggle may take place.

"Article III.

The Governments of Central America, in the first place, are recommended to endeavor to procure by the means at their command a constitutional reform in the sense of prohibiting the reelection of the President of a Republic, where such prohibition does not exist, in the second place to adopt all measures necessary to effect a complete guarantee of the principle of alternation in power."

The "Convention for the Establishment of a Central American Court of Justice" contains thirty-eight articles, with a "Provisional Article" and an "Annexed Article" appended. The more important provisions are in the following:

"ARTICLE I.

The High Contracting Parties agree by the present Convention to constitute and maintain a permanent tribunal which shall be called the 'Central American Court of Justice,' to which they bind themselves to submit all controversies or questions which may arise among them, of whatsoever nature and no matter what their origin may be, in case the respective Departments of Foreign Affairs should not have been able to reach an understanding.

"ARTICLE II.

This Court shall also take cognizance of the questions which individuals of one Central American country may raise against any of the other contracting Governments, because of the violation of Treaties or Conventions, and other cases of an international character; no matter whether his own Government supports said claim or not; and provided that the remedies which the laws of the respective country provide against such violation shall have been exhausted and that a denial of justice shall be shown.

"ARTICLE III.

It shall also take cognizance of the cases which by common accord contracting Governments may submit to it, no matter

whether they arise between two or more of them or between one of said Governments and individuals.

[Footnote: After signing the treaties an omission was discovered in this Article. An additional protocol was thereupon signed by all the delegates adding to this Article, and to be considered as an integral part of the Convention, the following words:

"It shall also have jurisdiction over cases arising between any of the contracting Governments and individuals, when by common accord they may have been submitted to it.]

"Article IV.

The Court may likewise take cognizance of the international questions which by special agreement any one of the Central American Governments and a foreign Government may have determined to submit to it.

"ARTICLE V.

The Central American Court of Justice shall sit at the City of Cartago in the Republic of Costa Rica, but it shall be authorized to transfer its residence to another point in Central America when it may deem it proper to do so for reasons of health, of guaranteeing the exercise of its functions, or of the personal security of its members.

"ARTICLE VI.

The Central American Court of Justice shall consist of five Justices named, one from each Republic and selected from among the jurists who possess the qualifications which the laws of each country may exact for the exercise of high judicial functions, and enjoy the highest consideration, not only because of their moral character but also on account of their professional ability. The vacancies shall be filled by substitute Justices, named at the same time and in the same manner as the regular ones and who shall unite the same

qualifications as the former. The attendance of the five Justices who constitute the Tribunal is indispensable in order to have a legal quorum in the judgments of the Court.

"ARTICLE VII.

The legislative power of each one of the five contracting Republics shall name one regular and two substitutes as their respective Justices. The salary of each Justice shall be eight thousand dollars, gold, per annum, which shall be paid by the Treasury of the Court. The salary of the Justice of the place where the Court resides shall be designated by the respective Government. Besides, each State shall contribute two thousand dollars, gold, annually for the ordinary and extraordinary expenses of the Tribunal. The Governments of the contracting Republics bind themselves to include their respective contributions in their budgets of expenses and to remit quarterly in advance to the Treasury of the Court the proportion which corresponds to them on account of such expenditures."

"ARTICLE XIII.

The Central American Court of Justice represents the national conscience of Central America, wherefore the Justices who compose the Tribunal shall not consider themselves prohibited from the exercise of their functions because of the interest which the Republics, whence they derive their appointment, may have in any case or question. With regard to implications and challenges, the rules of procedure which the Court may fix shall make proper provision."

"ARTICLE XXII.

The Court is authorized to determine its jurisdiction, interpreting the Treaties and Conventions germane to the matter in dispute, applying the principles of international law.

"ARTICLE XXIII.

Every final or interlocutory decision shall be rendered in accordance with the agreement of at least three of the Justices of the Court. In case of disagreement, one of the substitute Justices shall be chosen by lot, and if still a majority of three be not obtained other Justices shall continue to be chosen by lot until three votes in the same sense shall have been obtained.

"ARTICLE XXIV.

The decisions must be in writing and shall contain a statement of the reasons upon which they are based. They must be signed by all the Justices of the Court and countersigned by the Secretary. Once they have been published they cannot be altered on any account; but, at the request of any of the parties, the Tribunal may decide the interpretation which must be given to its judgment.

{79}

"Article XXV.

The judgments of the Court shall be communicated to the five Governments of the Contracting Republics. The interested parties solemnly bind themselves to submit to said judgment; and they all agree to lend every moral support that may be necessary in order that they may be properly fulfilled, in this manner constituting a real and positive guarantee of respect for this Convention and for the Central American Court of Justice."

"Article XXVII.

The High Contracting Parties solemnly declare that for no motive nor in any case will they consider the present Convention as lapsed; and that, therefore, they will consider it as being always in force during the term of ten years counted from last ratification. In the event that the political entity of one or more of the Contracting Republics is changed or altered, the attributes of the Central American

Court of Justice created by this Convention shall be suspended *ipso facto*; and a conference to adjust the constitution of said Court and the new order of things shall be forthwith convoked by the respective Governments; in case they do not unanimously agree the present Convention shall be considered as rescinded."

"PROVISIONARY ARTICLE.

As a recommendation of the five Delegations an Article is annexed which contains an amplification of the Central American Court of Justice, in order that the Legislatures that may deem it proper may see fit to include it upon ratifying this Convention."

"ANNEXED ARTICLE.

The Central American Court of Justice shall also have jurisdiction over the conflicts which may arise between the Legislative, Executive and Judicial Powers, and when as a matter of fact the judicial decisions and congressional resolutions are not respected."

CENTRAL AMERICA: A. D. 1908.

Inauguration of the Central American Court of Justice.
Gift of a building for its use by Mr. Carnegie.

The Central American Court of Justice, contemplated in the treaty of 1907, quoted above, was formally instituted, at Cartago, Costa Rica, with appropriate ceremony, in the last week of May, 1908. The Honorable William I. Buchanan, in attendance as Commissioner from the United States, added interest to the occasion by announcing the proffer of a gift of \$100,000 by Mr. Andrew Carnegie, for the erection of a building to be dedicated to the exclusive use of the Court.

CENTRAL AMERICA: A. D. 1909.

Financial undertakings in New York.
Honduras, Costa Rica, and Guatemala.

In the summer of 1909 various financial undertakings by great banking houses in New York were announced, involving some handling of the debts of Honduras, Costa Rica, and Guatemala. It was thought that these operations were in line with efforts of the State Department at Washington and the Bureau of American Republics to bring about the establishment of a chain of American banking houses in the Latin-American countries, for the advancement of American trade and the promotion of more intimate Pan-American relations.

CENTRAL AMERICA: A. D. 1909.

Nicaragua.

Establishment of a colony of Sioux Indians from the United States.

A dispatch to the Press from Boston, November 17, 1909, made the following statement:

"To save the remnant of the Sioux tribe of Indians from extinction by consumption and other diseases, a colony of the Indians will be established in Nicaragua early in the new year. Chief Little Bison, a full-blooded Sioux, sailed from Boston on the steamship Esparta to-day for Nicaragua, where he will receive the deeds to 16,000 acres of land granted by the Nicaraguan government for the establishment of the colony. The project is supported financially by F. S. Dellenbaugh, head of the American Geographical Society, and several wealthy New York people. The emigration of the Indians is expected to begin in January."

CENTRAL AMERICA: A. D. 1909.

President Zelaya a menace to peace.

His conduct trying the patience of the United States.

In the early spring of 1909 the disturbing attitude and conduct of the Nicaraguan President, Zelaya, not only towards

his near neighbors of Salvador and Honduras, but also in the relations of his Government with that of the United States, had caused the latter to enter again into consultation with the Mexican Government, as to joint action to preserve peace.

For some years the United States had been trying to bring about the settlement of a claim against the Nicaraguan Government preferred by an American company. This Emery claim, as it was known, arose in connection with a concession granted in 1898 for cutting and exporting mahogany. The concession provided that any differences which should arise between the Government and the company should be arbitrated by a tribunal of three members, one to be selected by the Government, one by the company, and the third by these two arbitrators. In 1903 an accusation of smuggling was brought against the company, and the questions raised were submitted to the stipulated tribunal. This decided that, inasmuch as the company had paid taxes to the Government three years in advance, amounting to \$30,000, the concession could not be annulled, as President Zelaya wished to have done. Nevertheless Zelaya declared it annulled, and caused proceedings to be instituted for stopping the company's exportations. This led the American Government to interpose. Under instructions from Washington, its Minister at Managua, Mr. Merry, addressed the following note to the Nicaraguan Minister of Foreign Affairs, December 15, 1906:

"I have the honor to inform you that I have received instructions from my Government to make an urgent and firm request that your Excellency's Government will settle the Emery company controversy by an international arbitration, and that until a decision has been given thereby, your Excellency's Government will restore to the Emery company all its property, dismissing all legal prosecutions in the case, and permitting the company to resume its work under its concession, as if no controversy had arisen."

This communication secured a promise of the desired

international arbitration, and the stopping meantime of proceedings of interference with the company's business. But when the protocol of arbitration was to be drawn the Nicaraguan Government refused to have any question of damages to the company included. On this contention the settlement was blocked for more than two years, and the patience of the Washington Government was about worn out. In just what wrappings of diplomatic language it made that fact apparent has not yet been disclosed to the public; but evidently the understanding of Señor Zelaya was duly penetrated.

{80}

On the 26th of May last (1909) his representative at Washington signed a protocol which provided that the questions at issue between the Government of Nicaragua and the Emery Company should be submitted to arbitration, unless the parties could make their own settlement within four months.

This, however, did not end troubles with Nicaragua,—or, rather, with its presidential dictator. Revolutionary attempts in the republic to unseat him gave rise to new offenses on his part against the United States, which President Taft, in his Message to Congress, December 6, 1909, recounted as follows:

"Since the Washington conventions of 1907 were communicated to the government of the United States as a consulting and advising party, this government has been almost continuously called upon by one or another, and in turn by all of the five Central American republics, to exert itself for the maintenance of the conventions. Nearly every complaint has been against the Zelaya government of Nicaragua, which has kept Central America in constant tension or turmoil. The responses made to the representations of Central American republics, as due from the United States on account of its relation to the Washington conventions, have been at all times conservative and have avoided, so far as possible, any semblance of interference, although it is very apparent that the considerations of geographic proximity to the Canal Zone

and of the very substantial American interests in Central America give to the United States a special position in the zone of these republics and the Caribbean Sea.

"I need not rehearse here the patient efforts of this government to promote peace and welfare among these republics, efforts which are fully appreciated by the majority of them who are loyal to their true interests. It would be no less unnecessary to rehearse here the sad tale of unspeakable barbarities and oppression alleged to have been committed by the Zelaya government. Recently two Americans were put to death by order of President Zelaya himself. They were officers in the organized forces of a revolution which had continued many weeks and was in control of about half of the republic, and as such, according to the modern enlightened practice of civilized nations, they were entitled to be dealt with as prisoners of war.

"At the date when this message is printed this government has terminated diplomatic relations with the Zelaya government, for reasons made public in a communication to the former Nicaraguan chargé d'affaires, and is intending to take such future steps as may be found most consistent with its dignity, its duty to American interests, and its moral obligations to Central America and to civilization. It may be necessary for me to bring this subject to the attention of the Congress in a special message."

Some days previous to the date of the President's Message, the Secretary of State, Mr. Knox, had addressed a letter of extreme severity to the Nicaraguan Chargé d'Affaires at Washington, Mr. Rodriguez, reviewing the conduct of the Nicaraguan Government, and saying: "In these circumstances the President no longer feels for the government of President Zelaya that respect and confidence which would make it appropriate hereafter to maintain with it regular diplomatic relations, implying the will and the ability to respect and

assure what is due from one State to another." The conclusion of the letter was as follows: "To insure the future protection of legitimate American interests, in consideration of the interests of the majority of the Central American republics, and in the hope of making more effective the friendly offices exerted under the Washington conventions, the government of the United States reserves for further consideration at the proper time the question of stipulating also that the constitutional government of Nicaragua obligate itself by convention for the benefit of all the governments concerned as a guarantee for its future loyal support of the Washington conventions and their peaceful and progressive aims.

"From the foregoing it will be apparent to you that your office of charge d'affaires is at an end. I have the honor to enclose your passports for use in case you desire to leave this country. I would add at the same time that, although your diplomatic quality is terminated, I shall be happy to receive you as I shall be happy to receive the representative of the revolution, each as the unofficial channel of communication between the government of the United States and the de facto authorities to whom I look for the protection of American interests pending the establishment in Nicaragua of a government with which the United States can maintain diplomatic relations."

President Zelaya at once protested against this arraignment, telegraphing to Secretary Knox that his sources of information had been prejudiced, and asking that the United States send a commission of investigation, proposing to resign if his administration was shown to be detrimental to Nicaragua. Receiving no reply, he resigned the presidency of Nicaragua on the 16th of December, announcing the fact by cable to President Taft in these words:

"To avoid harm to my country, and desiring that it shall renew friendly relations with the United States, I have to-day sent

my resignation to Congress. As my opponents consider my presence a disturbing factor, I propose to show my good faith by leaving Nicaragua. I stand ready to account for my acts."

The vacant presidential office was filled by the Congress of Nicaragua, which elected Dr. Madriz, the choice having been dictated, it was believed, by Zelaya. The revolutionists with whom Zelaya had been contending since October, and who had, on their part, elected and proclaimed their leader, General Juan Estrada, Provisional President of Nicaragua, refused to recognize this Congressional election, and continued, against the government of Madriz, the revolt they had organized against Zelaya, determined to secure for Estrada the power to order a presidential election by the people.

On Christmas Eve Zelaya left Nicaragua for Mexico, being conveyed by a Mexican gunboat from Corinto to Salina Cruz. A few weeks later he migrated to Europe and is understood to have taken up his residence in Belgium.

The revolt led by General Estrada is still in progress at the time this writing goes into print (early in March, 1910), but the latest reports do not warrant expectations of its success.

-----CENTRAL AMERICA: End-----

{81}

CENTRAL AMERICAN REPUBLICS.

See, (in this Volume) also,
AMERICAN REPUBLICS.

CENTRAL BANK QUESTION.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909-1910.

CENTRO CATOLICO.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

CHAFFEE, Major-General Adna R.:
Military Governor of the Philippines.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901.

CHAFIN, Eugene W.:
Nominated for President of the United States.

See (in this Volume)
UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

CHAMBERLAIN, Austen:
Postmaster-General in the English Ministry.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

CHAMBERLAIN, Joseph:
Address at opening of Colonial Conference of 1902.

See (in this Volume)
BRITISH EMPIRE.

CHAMBERLAIN, Joseph:
On a State-rights question in Australia.

See (in this Volume)
AUSTRALIA: A. D. 1902.

CHAMBERLAIN, Joseph:

Declaration for Preferential Trade with the Colonies.
His resignation from the Cabinet.

See (in this Volume)
ENGLAND: A. D. 1903 (MAY-SEPTEMBER).

CHAMBERLAIN, Joseph:
Visit to South Africa.
Views on the Labor question.

See (in this Volume)
SOUTH AFRICA: A. D. 1903-1904.

CHAMPLAIN TERCENTENARY CELEBRATION.

See (in this Volume)
NEW YORK STATE: A. D. 1909.

CHANG CHIH-TUNG:
Measures as viceroy to check the use of opium.

See (in this Volume)
OPIUM PROBLEM.

CHANTABUN:
Restored to Siam.

See (in this Volume)
SIAM: A. D. 1902.

CHANUTE, OCTAVE.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

CHARITIES.

See (in this Volume)
POVERTY, PROBLEMS OF; SOCIAL BETTERMENT; and
CHILDREN, UNDER THE LAW.

CHARLES I., King of Roumania.
What he has done for his kingdom.

See (in this Volume)
BALKAN AND DANUBIAN STATES: ROUMANIA.

CHARLES, Prince, of Denmark:
Election to the Norwegian Throne.
Assumes the name of Haakon VII.

See (in this Volume)
NORWAY: A. D. 1902-1905.

CHARLESTON: A. D. 1901.
The "South Carolina and Interstate and West Indian
Exposition."

Under this name, a very beautiful and successful exhibit of the progress of Southern industry and art, and of the possibilities of West Indian and Spanish-American trade, was opened at Charleston on the 1st of December, 1901. The site of the exposition was a tract of one hundred and sixty acres of ground, only two and a half miles from the business section of the city, embracing the famous old Lowndes estate, with its historic mansion, which the present owner permitted to be used as the Women's Building of the occasion. Fine taste and a high public spirit entered into the making of this very interesting Fair.

CHARTREUX MONKS.

See (in this Volume)
FRANCE: A. D. 1904 (June-July).

CHEMULPHO.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY) and (FEBRUARY-AUGUST).

CHICAGO: A. D. 1896-1909.

Institution and work of the Municipal Voters' League.

See (in this Volume)

MUNICIPAL GOVERNMENT: CHICAGO.

CHICAGO: A. D. 1899.

Institution of the first Juvenile Court.

See (in this Volume)

CHILDREN, UNDER THE LAW: AS OFFENDERS.

CHICAGO: A. D. 1903.

The burning of the Iroquois Theater.

Chicago has now two of the most painful memories of fire that are in the past of any city. The second was added on the afternoon of December 30, 1903, when 588 people perished in the burning of the Iroquois Theater. The audience was made up principally of women and children, many of whom belonged to prominent families. The whole city was plunged in grief, and the whole world shared in the sorrow and manifested its sympathy. The theater was a new one, and was regarded as the best of any in the city in its method of construction. But inquiry soon proved that it was defective in its provisions for safety. Further examination, moreover, showed a similar condition in other places of assembly, with the result that all the theaters, with many churches and halls in Chicago, were closed by order of the mayor, pending their compliance

with certain provisions of the law.

CHICAGO: A. D. 1905.

Strike of the Teamsters' Union.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1905 (APRIL-JULY).

CHICAGO: A. D. 1905-1908.

Struggle for a better charter.

See (in this Volume)

MUNICIPAL GOVERNMENT.

CHICAGO: A. D. 1906.

Packing-House Investigation.

See (in this Volume)

Public Health: PURE FOOD LAWS: UNITED STATES.

CHICAGO: A. D. 1907.

National Conference on Trusts.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1907.

CHICAGO: A. D. 1909.

Population, and race mixture.

The City Statistician of Chicago, in his manual for 1909, gives the number of the inhabitants of the city as 2,572,835, of whom 699,554 are Americans or persons whose parents are not foreign born. The Germans rank second, with a population of 563,708; the Irish third, with a population of 240,560. Next come the Poles, with 173,409; the Swedes, with 143,307; the Russians, with 123,238; the Bohemians, with 116,549. Thirty

other foreign countries given are all below the 100,000 mark.
The Chinese population is given as 1,801, the Japanese as 257.
The Albanians are the lowest, with a population of 39.

CHICAGO: A. D. 1909.

"The Chicago Plan."

Systematizing the future development.

"Early in 1906 the Merchants' Club, comprising a group of the younger business and professional men of the city, arranged for the preparation of a complete project for the future development of Chicago. The next year the Merchants' Club was merged with the Commercial Club under the name of the latter organization, and the city-planning work was continued under the auspices of that body." The resulting "Plan of Chicago" was reported in the course of the summer of 1909. "The report represents about thirty months' work by men whose thoughts for years have dwelt upon the subject of city building and beautification. The work was in charge of Daniel H. Burnham, chief architect and director of works of the World's Columbian Exposition of 1893, who gave his services to his city without compensation for the purpose of this report. Even so, the expense of preparing and publishing the report has approximated \$75,000, all raised by voluntary subscriptions from the business men of Chicago."

George C. Sikes,
The New Chicago
(The Outlook, August 28, 1909).

{82}

CHICAGO: A. D. 1909 (May).

The Second National Peace Congress.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1909.

CHICAGO, MILWAUKEE AND ST. PAUL TRANSCONTINENTAL LINE.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1909.

CHI-KUAN-SHAN, Fort, Capture of.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

-----CHILDREN, UNDER THE LAW: Start-----

CHILDREN, UNDER THE LAW:

As Dependents:

England: The Poor Law Children.

The following is from a speech in Parliament June 17, 1909, by Mr. John Burns, President of the Local Government Board, which administers the Poor Laws and the Public Health Laws:

"In England and Wales there were 235,000 children supported by the rates either inside or outside Poor Law institutions, and of these 70,000 were in cottage homes, barrack schools, scattered homes, and similar institutions. The cost per child maintained in cottage homes varied from 12s. 9d. to 25s. 2d. per week, and in scattered homes from 8s. 6d. to 11s. 2d. At this moment the number of children in workhouse schools, which in 1870 was 29,000, was only from 500 to 600; 19,000 of the Poor Law children were being educated in elementary schools outside. ... With regard to sick children he was delighted to hear the almost unanimous chorus of appeal that the Local Government Board should do a great deal by administration. They had, in fact, transferred 1,000 out of the 2,500 sick children from the London workhouses and infirmaries to an institution on the healthy and breezy downs of Surrey at

Carshalton, where they could be better treated, and where they would recover much more quickly than in any of the workhouses and infirmaries in London. If he could find more buildings or institutions available he would transfer more children. He should not rest until all the sick children throughout the country were transferred from workhouses and infirmaries to institutions in the country where they would recover health more rapidly."

CHILDREN, UNDER THE LAW:

United States: Proposed Federal Child Bureau.

Transmitting to Congress, on the 5th of February, 1909, the proceedings of a conference held at Washington on the care of dependent children, President Roosevelt accompanied it with a message, in which he urged the establishment of a Bureau in one of the Departments of the Federal Government, to centralize attention to the subject; with the enactment of such legislation as will bring the laws and practices in regard to the care of dependent children in all Federal territory into harmony, and certain legislation in behalf of dependent children in the District of Columbia. The President maintained that such legislation is important not only for the welfare of the children immediately concerned, but "as setting an example of a high standard of child protection by the National Government to the several States of the Union, which should be able to look to the nation for leadership in such matters."

Statistics showing the large number of dependent children in the country were presented by Mr. Roosevelt. "Each of these children, he said, represents either a potential addition to the productive capacity and the enlightened citizenship of the nation, or, if allowed to suffer from neglect, a potential addition to the destructive forces of the community. The ranks of criminals and other enemies of society are recruited in an altogether undue proportion from children bereft of their

natural homes and left without sufficient care. The interests of the nation are involved in the welfare of this army of children no less than in our great material affairs."

In urging a Children's Bureau, one of whose duties will be to investigate and report upon all matters pertaining to the welfare of children and child life, the President pointed out that "the National Government is the only agency which can effectively conduct such general inquiries as are needed for the benefit of all our citizens."

CHILDREN, UNDER THE LAW:

As Dependents and as Offenders:

England: The Children Act of 1908.

Infant Life Protection.

Reformatory and Industrial Schools.

Treatment of Youthful Criminals.

No death-sentence for them.

Special "Places of Detention."

Juvenile Courts.

An act entitled The Children Act, passed by the Parliament of the United Kingdom in December, 1908, and which came into effect April 1, 1909, has such importance that it has been described as "The Children's Charter." According to its full title it is "An Act to consolidate and amend the Law relating to the Protection of Children and Young Persons, Reformatory and Industrial Schools and Juvenile Offenders, and otherwise to amend the Law with respect to Children and Young Persons." It gathers into one great enactment nearly everything in which the guardianship of Law can be specially extended to them, except the matters of education and child labor, which are subjects of distinct legislation. It repeals wholly twenty-one previous enactments and amends more or less seventeen more. It contains 134 sections and fills a so-called Parliamentary "White Book" of 93 pages.

As used in the Act, the word "child" means a person under 14 years; the expression "young person" means one above that age, but under sixteen.

The Act is divided into six parts, which are concerned with the following main subjects:

- (1) Infant Life Protection.
- (2) The Prevention of Cruelty to Children and Young Persons.
- (3) Juvenile Smoking.
- (4) Reformatory and Industrial Schools.
- (5) Juvenile Offenders.
- (6) Miscellaneous and General.

The provisions for "infant life protection" have to do mainly with the supervision of "baby-farming." Foster parents are forbidden to insure the life of a nurse-child and insurance companies are forbidden to accept any such insurance.

Juvenile smoking is dealt with very drastically, the penalties for selling cigarettes or the material for making them to persons under sixteen years of age being sharp, and both policemen and park-keepers in uniform being empowered to take such materials from the persons of Juvenile smokers.

{83}

The part of the Act which relates to reformatory and industrial schools enables the Courts to deal effectively with youthful offenders without subjecting them to the prison taint. Boys or girls between the ages of 12 and 16 who are convicted of offences punishable in the case of adults with penal servitude or imprisonment may be sent to a certified reformatory school. In certain defined cases, children may be taken from depraved or drunken parents and consigned to a certified industrial school. In these cases the child may be brought before the Court by any person in order that the provisions of the Act may be set in force. Parents who are

unable to control their children may themselves take advantage of the Act, and in these cases the Court may place the children under the supervision of a probation officer instead of sending them to an industrial school. In all cases of children who are liable to be consigned to an industrial school, there is given to the Courts the alternative power of committing them to the care of relatives or other fit persons with or without the supervision of the probation officer.

The most important part of the Act, perhaps, is that relating to juvenile offenders. It allows no young person under sixteen years of age to be sentenced to death. "Sentence of death," says this Law, "shall not be pronounced on or recorded against a child or young person, but in lieu thereof the Court shall sentence the child or young person to be detained during his Majesty's pleasure."

In future, also, no child may be sentenced to imprisonment or penal servitude for any offence, or committed to prison in default of payment of a fine, damages, or costs. No young person may be sentenced to penal servitude for any offence, nor may he be sentenced to imprisonment or committed to prison in default of payment of a fine or costs, unless the Court certifies that he is of so unruly a character or so depraved that it is not desirable to send him to a "place of detention" provided under the Act. These provisions relating to the substitution of "detention" for imprisonment did not come into force until January 1, 1910.

This part of the Act makes elaborate arrangements for the treatment of youthful criminals, both before and after trial. Special "places of detention" are to be opened in all petty sessional divisions. Here children will be placed on arrest (if for some special reason they cannot be released on a recognizance), or after being remanded or committed for trial. Here they may be kept in custody instead of being lodged in gaol if they are sentenced to terms of imprisonment of less

than one month. Persons under 16 years of age must also be tried in special "juvenile Courts," unless they are charged jointly with adult offenders. A "juvenile Court" must sit "either in a different building or room from that in which the ordinary sittings of the Court are held, or on different days or at different times from those at which the ordinary sittings are held." Only the Court officials, those directly interested in the case, and the representatives of the Press may be admitted to these Courts, unless the special leave of the magistrate is obtained. Every effort is to be made, both before and after trial, to prevent the association of children with adult criminals. Finally, parents and guardians are to be required to attend the hearing of charges against their children or wards, and may be ordered to pay any fines, damages, or costs imposed.

The miscellaneous provisions of the Act include a number of importance, to prevent the giving of intoxicating liquors to children, to exclude them from drinking places, to safeguard them at entertainments, and to make the Act applicable to Scotland and Ireland.

CHILDREN, UNDER THE LAW: As Offenders:
Canadian provision for Separate Detention,
Reformatory Imprisonment, etc.

The Canadian Prisons and Reformatory Act of 1906 provides that—"Young persons apparently under the age of sixteen years who are,

- (a) arrested upon any warrant; or,
- (b) committed to custody at any stage of a preliminary inquiry into a charge for an indictable offence; or,
- (c) committed to custody at any stage of a trial, either for an indictable offence or for an offence punishable on summary conviction; or,
- (d) committed to custody after such trial, but before

imprisonment under sentence;

shall be kept in custody separate from older persons charged with criminal offences and separate from all persons undergoing sentences of imprisonment, and shall not be confined in the lock-ups or police stations with older persons charged with criminal offences or with ordinary criminals."

Other sections of the Act confer discretionary authority on courts and magistrates to sentence convicted offenders whose age does not exceed sixteen years, and whose offence is punishable by imprisonment, to reformatory prisons, for not less than two nor more than five years; also, in certain cases, to commit such offenders to a certified industrial school, from which they may sometimes be permitted to be taken for apprenticeship to any respectable and trustworthy person.

CHILDREN, UNDER THE LAW:

The George Junior Republic.

Much attention has been turned from many directions, within the last few years, upon the reformatory experiment which bears the name of The George Junior Republic. From an ordinary undertaking to give a few summer weeks of country fresh air to a group of neglected, roughly-bred boys, out of the slums of the City of New York, it has grown into a unique institution, which remolds character and refashions life for hundreds of the young of both sexes, who had been given wrong startings in the world by the circumstances into which they were born. It has done this by the simple method of organizing them into a self-governing community,—a republic in which they are citizens, invested with all the responsibilities, duties, and cares that go with republican citizenship in its larger spheres. They make and administer its laws, conduct its public business and its politics, manage its institutions, generate and have experience of its public opinion. The moral and social influence of this training has now been proved by more

than a decade of success.

This remarkable organization was not framed up by its architect, Mr. William R. George, on the lines of a preconceived theory, but took its shape slowly from suggestions of experience as they came.

{84}

He began in 1890 to take companies of boys of the hoodlum class from New York City to his place of summer residence, at Freeville, a few miles from Ithaca and not far from Auburn, New York. He found it hard to rule them, and no satisfactory corrections of wrong-doing and bad behavior could be devised. Physically they were bettered by their summer outings, but he could not see much gain in other ways. This continued for some seasons before his experiments with them began. The first to be applied was a rule that such articles of clothing and the like as had formerly been given to the boys must be paid for in work. At the outset they resented the idea; but before the summer was over they were all cheerfully at work, and the tone of the party was much improved. In the next year culprits, who robbed orchards and committed other misdemeanors, were arraigned before the whole community, for a hearing and a public verdict as to their guilt. Hard labor at stone-breaking and the building of a road now became the penalty for wrong-doing, and, presently, there was a boy constable to see that they did their work.

So, step by step, from year to year, the fabric of self-government and self-supporting industry was constructed, until the Junior Republic emerged, with its President and other executive officers, its representative legislature, its courts, its police, its own monetary system and bank,—a political and industrial commonwealth of boys and girls (for both sexes have been included), taken out of a derelict class for treatment by this simple inoculation with social responsibilities. Writing of the George Junior Republic in 1908, Dr. Lyman Abbott said:

"It now has as a territory a hundred and fifty acres of land owned by the Board of Trustees, and the practical use of a hundred and fifty more belonging to Mr. George and some other friends of the Republic who have made their home here because such residence affords them an opportunity to give guidance and inspiration to the boys and girls. The citizens, i. e. the boys and girls in the Republic, number upwards of a hundred and fifty. They are in some cases signed over to the Republic by the parents, in other cases practically committed on suspended sentences by the courts. They are extraordinarily free within the territory, but are not free to leave it.

Laundry, baking, carpentry, and printing are the principal trades indoors; road-making and land improvement the principal industries out-of-doors. There are two jails, one for the boys, one for the girls; a library, a school-house, a chapel, bank, and a well-organized banking and currency system. There is a court, and there is a judge, who is elected every year by the citizens. From this court an appeal lies in certain cases to a Supreme Court chosen by the boys from the Board of Trustees, but this court only passes on the regularity of the proceedings in the court below, that is, on what might be regarded as equivalent to constitutional and jurisdictional questions. There are a President, a Vice-President, a Secretary of State, and a Secretary of the Treasury, all of whom are elected annually; the three latter officers constituting the Police Commissioners, the Board of Health, and the President's Cabinet. There are both a girl and a boy District Attorney, who are appointed by the President, and certain police officers and prison keepers. All citizens of the Republic, both boys and girls, over fourteen years of age, are voters; no one can remain a citizen after twenty-one. The legislature has been abolished by the citizens themselves, and all laws are made in town meeting, which is held once a month.

...

"The Republic has been in existence long enough to give the

experiment a fair trial, and the results justify the expectations of its friends. In round numbers, about five hundred have gone out from the Republic into life, most of them taken from the class of boys and girls whose environment was fruitful of crime and whose tendency was toward a criminal career. Of these five hundred two or three are known to have returned to crime, and five or six have disappeared entirely. But of these eight or ten failures not one was in the Republic more than a few months—not long enough to get the benefit of the training. The other four hundred and ninety are known to be earning an honest livelihood by honorable labor; and of these four hundred and ninety, twenty have either graduated from college, are now in college, or are just preparing to enter college. At this writing two new Republics are about being organized, one in Georgia and one in California, and a movement is on foot for the organization of a National Association."

Some months later than the above account of the Junior Republic there were reported to be kindred organizations modelled upon it in Connecticut and Maryland, with movements to the same end in Massachusetts, Pennsylvania, and New Jersey, as well as in some countries abroad. Mr. Thomas M. Osborne, of Auburn, who has been from an early day the chief supporter of Mr. George in his work, said recently in a published letter:

"I believe that the success of the Junior Republic idea, as we have worked it out during the last fourteen years, is no longer dependent upon Mr. George, its originator, or upon any one man. Its established principles will now live on into the far future, and work the sure righting of thousands of youngsters gone wrong in every section of the greater republic."

But it may work much more than "the sure righting of thousands of youngsters gone wrong." It may, if its working widens and

roots itself among the institutions of the future, as it seems likely to do, have a very potent and positive political influence in the world. If men and women representative of a class that is now troublesome to democracy, politically as well as otherwise, should by and by be brought in large numbers yearly from graduation in the Young Republic training schools of imitative citizenship, to be joined with their elders in larger spheres of more entire self-government, are they not likely to introduce a profounder change in the operation of republican institutions than can now be foreseen?

CHILDREN, UNDER THE LAW: Juvenile Courts.

Their origin and development.

A collection of reports on "Children's Courts in the United States," prepared for the International Prison Commission and edited by Mr. Samuel J. Barrows, Commissioner for the United States, was published in 1904 as House Document No. 701 of the 58th Congress, 2d Session. The following account of the origin of the now widely established Juvenile Courts of America and Europe, and of their development in the United States during the first four years of their existence, is derived from those reports.

{85}

Commissioner Barrows opens his introduction to the collected reports with the following remarks:

"If the question be asked, 'What is the most notable development in judicial principles and methods in the United States within the last five years?' the answer may unhesitatingly be, 'The introduction and establishment of juvenile courts.' Never perhaps has any judicial reform made such rapid progress. Beginning in Chicago in 1899, this institution has sprung up in city after city and State after State until it is now established in eight States and eleven

large cities. This progress has been made not merely by changes in procedure or legal technique, nor by the introduction of a new method; it is most of all by the introduction of a new spirit and a new aim. ... It must not be supposed that the juvenile court is only a smaller court for smaller offenders or simply a court holding separate sessions for such offenders; it represents an altogether different principle. The juvenile court is a life-saving institute in society.

"It is scarcely necessary to say that child-saving methods, institutions, and organizations have long flourished in the United States. The Northern States have regarded juvenile reformatories as a part of their correctional equipment, and the courts have served as vestibules for such institutions; but they have only been incidentally a part of the process. We have not before realized what the court might be and do before resorting to institutions. The children's court still maintains relations with the reform school, but it represents in itself active and vital forces and invokes a whole range of influence and motives which are personal and formative. It appeals to the reform school not as the first, but only as the last resort. The juvenile court has discovered that the child is a child, and, as Judge Hurley says, 'The child should be treated as a child. Instead of reformation, the thought and idea in the judge's mind should always be formation. No child should be punished for the purpose of making an example of him.' ...

"The methods of children's courts, or juvenile courts, as they are termed in some States, differ in different places. In some States the judge is detailed from some other court; in some courts but one judge is assigned to this work. In New York several judges from the court of special sessions act successively in turn as judges of the children's court. In Maryland and Indiana the judges of the children's courts exercise this function only, and it is claimed that it is

better than the method of rotation, since the judge who confines himself to juvenile court cases becomes a specialist in this work. In Colorado Judge Lindsey is not only judge of the juvenile court, but also of the county court. He finds advantage in the fact that in his first capacity he can protect the child, while as judge of the county court he can also sentence the guardian or parent who is responsible for the child's delinquency.

"An essential feature of every juvenile court is the probation system and probation officers. Their duty is to investigate the case before trial, and, if the child is placed on probation, to exercise watchcare over them until the period of probation is closed. It is in this way that the parental care of the State is exerted."

The City of Chicago and the Legislature of Illinois have the honors of the origination of the Children's Court as a distinct creation of law. The Visitation and Aid Society of Chicago had been laboring since 1891 to secure various measures of advanced legislation bearing on child-saving, without much success, until, as related in a report by Mr. Hurley, of that Society, the Bar Association of Chicago took the matter in hand, in 1899, and appointed a committee to press it. This committee drafted the first juvenile court law ever planned distinctly to that end and secured its enactment by the Legislature of the State. The law went into force on the 1st of July, 1899. The Court was soon opened, and Judge Tuthill, of the Circuit Court of Illinois, who presided in it from the first, has stated the principles of its constitution and action in these following words:

"The basic principle of the law is this: That no child under 16 years of age shall be considered or be treated as a criminal; that a child under that age shall not be arrested, indicted, convicted, imprisoned, or punished as a criminal. It of course recognizes the fact that such children may do acts

which in an older person would be crimes and be properly punishable by the State therefor, but it provides that a child under the age mentioned shall not be branded in the opening years of its life with an indelible stain of criminality, or be brought, even temporarily, into the companionship of men and women whose lives are low, vicious, and criminal.

"The law divides children into two classes, the 'dependent' and the 'delinquent.' A dependent child, in the language of the law, is a child—'who for any reason is destitute or homeless or abandoned, or has not proper parental care or guardianship, or who habitually begs or receives alms, or who is found living in any house of ill fame or with any vicious or disreputable person, or whose home, by reason of neglect, cruelty, or depravity on the part of the parents, guardian, or other person in whose care it may be, is an unfit place for such a child.' A 'delinquent child' is defined to be—'any child under the age of 16 who violates any law of this State or any city or village ordinance, or who is incorrigible, or who knowingly associates with thieves, vicious, or immoral persons, or who is growing up in idleness or crime, or who knowingly frequents a house of ill fame, or who knowingly patronizes any policy shop or place where any gaming device is or shall be operated.'

"The law places its enforcement upon the judges of the circuit court, who are required to select one of their number to perform these duties as a part of the judicial work of such judge. ... The circuit court is a court of original and unlimited jurisdiction, the highest in the State, and the duty of holding the juvenile court was placed in the circuit court (which for convenience is designated the 'juvenile court') as an indication by the legislature of the importance to the State of the work to be done.

"The case of each child brought into court, whether dependent or delinquent, becomes of record, and every step taken in the

case is shown upon the court record."

Interest in the Illinois Law was awakened quickly in many parts of the country, and requests for copies of it, says Mr. Hurley in his historical sketch, "began to pour in from all directions. These requests were promptly answered and copies of the Juvenile Court Record, published by the Visitation and Aid Society, containing the necessary information, were sent to applicants.

{86}

Agitation began in other States for a law similar to the one passed in Illinois, and those who helped to form the Illinois law were invited to visit other States to explain the measure and the method of administering the law in Cook County.

"The Illinois law proved so satisfactory that many judges throughout the country, not wishing to await the action of a legislature, established branches in their several courts for children cases only, and in the treatment of the cases applied the probate and chancery powers of the court. This was the case especially in Denver, Colorado, where Judge Ben D. Lindsey had a complete and well-equipped juvenile court and probation system before the legislature took any action whatever. A like court was subsequently adopted in Indianapolis by George W. Stubbs. The two latter courts were carried on practically in the same way that they have been since laws were adopted by these States. In most of the States the probation officers are volunteers."

Judge Lindsey, of Denver, has won celebrity among the presiding magistrates of the Juvenile Courts by the kindly shrewdness of the methods by which he has won the confidence, the admiration and devotion of the boys and girls of his city, within the classes with which he has to deal. The scene which his court-room presents on the appointed days when the delinquents on probation come in a body to report to him and to be talked to by him has been often described, and it seems

to exemplify a kind of influence that would go farther than any other in resistance to the vitiating conditions which surround masses of the young in all cities. Judge Lindsey's extended report of his work and experience in the Denver Juvenile Court, published in the collection referred to above, is a paper of remarkable interest.

As stated already, the Juvenile Court is now an established institution in nearly every part of the United States, and in many countries abroad. It was established in Great Britain by the notable "Children Act" of 1908 (see above), and was instituted that year in several of the German cities. A Press despatch from Berlin, March 15, 1909, reported the opening of a congress in that city, under the auspices of the German Association for the Care of the Young, which aims at the extension of this important reform. "The labors of the society," says the despatch, "seem to have been stimulated by the passing of the English Children Act of 1908, a German translation of which has been distributed to members of the congress. The movement for the establishment of special Courts for juvenile offenders was taken up in Germany later than in some other countries, but has recently made rapid progress. The first children's Courts were established on January 1, 1908, at Cologne, Stuttgart, and Breslau, and there are now 26 such Courts in Prussia. Official statistics, however, indicate that in recent years the total number of juvenile offenders in Germany has grown about three times as fast as the total number of offenders of all ages. During 1906, 55,211 persons under the age of 18 were sentenced, as compared with 51,232 in 1905 and 49,993 in 1904."

At the meeting of the International Prison Commission, at Lausanne, Switzerland, in 1907, it was significant of the deep interest which the children's court has awakened in Europe that nineteen societies in France, including the Academy of Moral and Political Sciences, the General Society of Prisons, and the faculties of law of Paris, Lille, and Montpellier, and

several of the most prominent tribunals in France, asked to have the whole subject of the organization of children's courts elucidated and discussed. A similar interest was shown in Switzerland and Germany.

In an extended letter to the London *Times*, published August 19, 1909, Miss Florence Davenport-Hill traced the origin of children's courts to Massachusetts, and gave the following account of their introduction from that source of suggestion into Australia, and thence, to some extent, into Great Britain. Miss Davenport-Hill's statements on the subject are, in part, as follows:

"Although we hear little now from our earliest exemplar, Massachusetts—possibly because she has, I believe, cleared away the class to be dealt with—it is desirable to remember it was she who evolved the then new principle of absolute separation of child from adult, and devised its potent supporter, the probation system—a system affording watchful and kindly help to strong and maybe wilful weaklings. Thus did Massachusetts become a noble example, making the way plain for her successors. Mr. Joseph Sturge, attracted early in the eighties by reports of the 'plan,' visited Boston to investigate its methods. He describes in a pithy narrative subsequently published how his highest expectations were fulfilled; and it is interesting to learn from his pen that 'the probation system by which juvenile offenders are saved from imprisonment has been so successful, economically and morally, that the city of Boston now employs a probation agent to deal with suitable adult cases in a corresponding manner.'

"A copy of Mr. Sturge's narrative reached, by good fortune, the Chief Justice of South Australia, then presiding at a Royal Commission of inquiry concerning adult and juvenile dependents on the State. He recognized, and in his forthcoming report expounded, the value of the Massachusetts plan in its application to children. The result was the creation by the

South Australian Government of a department, entitled the State Children's Council, consisting of 12 ladies and gentlemen nominated by the State as honorary members, to deal with erring and neglected children on the lines of that plan.

...

"Nineteen years ago the Children's Court was opened in Adelaide, and in October, 1903, thanks, Sir, to your sympathetic courtesy, the reproduction in *The Times* of a letter describing it in the *Melbourne Argus* from Miss Alice Henry made known among us its scope, methods, and success. Gradually Benches of Magistrates in various parts of Great Britain and of Ireland who led the way tried the experiment, which was then discovered to be already existing among us here and there, and in a more or less developed form, as at Greenwich, Hull, &c."

CHILDREN, UNDER THE LAW: As Workers:

Canada: Child Labor Legislation.

"There is not in any province a comprehensive act dealing with the subject of child labor as a whole, and even in Ontario, which has its Factories Act, its Shops Act, its Mines Act, its Municipal Act, its Truancy Act—all bearing on the matter more or less directly—it is still possible for young children to be kept at work by their parents for mercilessly long hours under sweat-shop conditions.

{87}

Prince Edward Island, Saskatchewan, and Alberta have neither Shops nor Factories Acts. Ontario, Nova Scotia, Manitoba, and British Columbia have both; Quebec and New Brunswick have Factories Acts, and six of the provinces have Mines Acts. The several Factories Acts resemble one another closely. In general, they prohibit the employment of girls under eighteen and boys under sixteen in factories where the work is dangerous or unhealthy; forbid the employment of children under fourteen in any manufacturing establishment (except

canning factories) in three provinces; limit the hours of labor for women and children to ten hours a day and sixty hours a week; and specify the amount of overtime permissible for these classes of workers. The Shops Acts, upon the whole, allow greater latitude to the employers of children; thus the hours of labor are longer and the conditions often not less injurious than those in factories. Except in Ontario, no age limit is set under which a child may not begin work in a shop. Again by the Mines Acts of British Columbia, children of twelve may be employed above ground, and by those of Saskatchewan and Nova Scotia boys of twelve may work under ground. The enforcement of the laws restricting child labor has, from various causes, proved somewhat inadequate. For instance, Nova Scotia has had a Factories Act since 1901, but no inspector of factories till the present year; while Ontario, with a Truancy Act that, if enforced, would prevent many children from engaging in unsuitable labor, has vested the appointment of truancy officers in the municipalities, and these, in many instances, have neglected to make appointments."

The Outlook,
November 14, 1908.

Recent changes in child labor laws in Canada are as follows:

In Ontario the Factories Act limits the working time of boys under sixteen to ten hours, forbids the employment of children under twelve within doors, and restricts the privileges extended to canning factories. The Shops Act is amended by raising the age limit from ten to twelve years. Manitoba forbids the employment of minors as bartenders. Alberta has raised the age limit of children employed in mines from twelve to sixteen years. British Columbia prohibits the employment of boys under fourteen and girls under fifteen except in the canning of fish.

CHILDREN, UNDER THE LAW: England:
The Employment of Children Act, 1903.

An Act "to make Better Provision for Regulating the Employment of Children" became law in August, 1903. Most of the responsibility for a proper protective regulation of child labor was imposed by this enactment on the local authorities of the Kingdom. Among its provisions were the following:

- "1. Any local authority may make byelaws—
- (i) prescribing for all children, or for boys and girls separately, and with respect to all occupations or to any specified occupation,—
 - (a) the age below which employment is illegal; and
 - (b) the hours between which employment is illegal; and
 - (c) the number of daily and weekly hours beyond which employment is illegal:
 - (ii) prohibiting absolutely or permitting, subject to conditions, the employment of children in any specified occupation.

"2. Any local authority may make byelaws with respect to street trading by persons under the age of sixteen. ...

"3.

(1) A child shall not be employed between the hours of nine in the evening and six in the morning: Provided that any local authority may, by byelaw, vary these hours either generally or for any specified occupation.

(2) A child under the age of eleven years shall not be employed in street trading.

(3) No child who is employed half-time under the Factory and Workshop Act, 1901, shall be employed in any other occupation.

(4) A child shall not be employed to lift, carry, or move anything so heavy as to be likely to cause injury to the child.

(5) A child shall not be employed in any occupation likely to be injurious to his life, limb, health or education, regard being had to his physical condition. ...

"4.

(1) A byelaw made under this Act shall not have any effect until confirmed by the Secretary of State, and shall not be so confirmed until at least thirty days after the local authority have published it in such manner as the Secretary of State may by general or special order direct. ...

"13. In this Act—The expression 'child' means a person under the age of fourteen years:

"The expression 'guardian,' used in reference to a child, includes any person who is liable to maintain or has the

actual custody of the child:

"The expression 'employ' and 'employment,' used in reference to a child, include employment in any labour exercised by way of trade or for the purposes of gain, whether the gain be to the child or to any other person: ...

"The expression 'street trading' includes the hawking of newspapers, matches, flowers, and other articles, playing, singing, or performing for profit, shoe-blackening, and any other like occupation carried on in streets or public places."

CHILDREN, UNDER THE LAW: Germany: Child Labor Legislation and its operation.

The Reichstag, in 1903, passed a new law for the protection of children, concerning the operation of which a well known English student of social conditions in Germany wrote as follows in 1908:

"Several significant facts may be noted in relation to the protection of childhood in Germany. The legal age of admission to full employment in factories and workshops is fourteen years, though on the production of efficiency certificates children may be employed for not more than six hours daily at the age of thirteen, yet of the 5,607,657 industrial workers subject to inspection in 1905 only 10,245, or under 0.2 per cent., were below fourteen years, and in some States there were none. To show the progress which has been made in this respect it may be stated that in 1875 10 per cent. (88,000 out of a total of 880,500) of the factory workers were between twelve and fourteen years of age. ... At the same time there is reason to believe that a serious exhaustion of juvenile strength takes place in the unregulated home industries of Germany. Further, from the age of six the child of the people attends the primary school for seven or eight years, and in many cases he is required to attend a continuation school

several years longer. In most of the large towns the scholar from first to last receives free systematic medical care at the hands of the school doctors. It begins with a thorough examination on admission, and the health record thus opened is continued throughout the whole period of school life, so that the child is under constant medical supervision until it reaches the working age. Many towns have gone further, and have established dental surgeries, and attached eye and ear specialists to the primary schools."

***W. H. Dawson,
The Evolution of Modern Germany,
page 327 (Unwin, London; Scribner's, New York).***

{88}

CHILDREN, UNDER THE LAW: United States:
Child Labor Laws of the several States in 1908,
and as amended since.

The requirements of an effective child labor law are set forth in Pamphlet No. 60 of the National Child Labor Committee as resting "primarily upon certain definite prohibitions, among which are the following:

Labor is prohibited (1) for all children under the age of fourteen years;

labor is prohibited (2) for all children under sixteen years of age who do not measure sixty inches and weigh eighty pounds;

labor is prohibited (3) for all children under sixteen years of age who cannot read fluently and write legibly simple sentences in the English language;

labor is prohibited (4) for all children under the age of sixteen years, between the hours of 7 p. m. and 7 a. m. or

longer than eight hours in any twenty-four hours, or longer than forty-eight hours in any week;

labor is prohibited (5) for all children under the age of sixteen years in occupations dangerous to life, limb, health or morals."

Further prescriptions of the Committee relate to the regulations and agencies of authority requisite to an effective enforcement of the Law.

In Bulletin Number 62 of the United States Bureau of Labor published in January, 1906, there is published a compilation of the laws relating to child labor in each State of the Union, as amended and in force at the close of the year 1905. An examination of them shows that the proposed standard had not then been measured up to in any State, or approached even nearly by more than a few. In not one had the law prescribed a test by weight or measure of the bodily development of a child that should mark Nature's consent to his employment in any kind of work.

Thirteen States, namely, California, Connecticut, Delaware, Indiana, Kansas, Minnesota, New Jersey, Ohio, Oregon, Pennsylvania, Tennessee, West Virginia, and Wisconsin, prohibited in general terms the employment of children under fourteen years in mechanical, manufacturing or mercantile establishments, or to that apparent effect. New York did the same, with the proviso that children over twelve might have employment during school vacation times. Rhode Island, likewise, excepted the vacation time for children under fourteen. The State of Washington allowed certain judges to make exemptions from a similar prohibition, for the needed support of helpless parents. Maine, Michigan, New Hampshire, North Dakota, Texas, Vermont, Virginia, West Virginia, and Wisconsin fixed the age under which no child may be employed in wage-earning labor at twelve. Louisiana appointed it at

twelve for a boy and fourteen for a girl. Colorado placed it at twelve for labor in mines only. Florida raised it to fifteen, but only as prohibitory without consent of "those having legal control" of the child. Alabama and Nebraska had it lowered to ten years. South Carolina had kept it at ten until 1903, at eleven until 1904, and at twelve until May, 1905. In the Massachusetts law no absolute prohibition of child labor within any age line appeared.

Educational requirements, conditioning the employment of children, were in most of the State laws, as they stood at the end of 1905, and many of them satisfied the third rule propounded by the National Child Labor Committee, as given above.

In the next three years after the Bureau of Labor's compilation of child labor laws, great reforms in them were brought about, as shown by comparison with the "Handbook 1908" of "Child Labor Legislation" compiled by Josephine Goldmark for the National Consumers' League, and published originally as a Supplement to the Annals of the American Academy of Political and Social Science, May, 1908. Some statements from this are given below:

"The age below which child labor is prohibited varies from sixteen to ten years. The number of employments prohibited also varies greatly—from all employment during school hours to mine work only. ... Eleven states prohibit work to the sixteenth birthday in either mines or specific occupations injurious to health, or both. These are, for mines, New York, Oklahoma, Pennsylvania (inside anthracite mines), Texas; for specific occupations, Kentucky, Minnesota, Missouri, Ohio, Wisconsin; for both, Illinois and Montana."

The fifteen year age limit is prescribed in only one State, South Dakota, which forbids it in mines, factories, hotels, laundries, theatres, bowling alleys, elevators, messenger

service, or places where liquors are sold.

The age limit of fourteen years is prescribed differently in different States. With various qualifications, employment below that age in factories, stores, offices, laundries, hotels, theatres, bowling alleys, is prohibited in California, Idaho, Illinois, Iowa, Indiana, Kentucky, Michigan, Missouri, Nebraska, New York, Ohio, Pennsylvania, and Wisconsin.

In factories or stores it is forbidden in Connecticut, Massachusetts, North Dakota, Oregon, Rhode Island, and Washington.

In factories it is not permitted in Arkansas, Colorado, Delaware, Kansas, Louisiana, Maine, Minnesota, New Jersey, Tennessee, Texas, Wisconsin.

In messenger service it is made unlawful in California, Idaho, Illinois, Kentucky, Maryland, Michigan, Missouri, Nebraska, New York, Ohio, Oregon, Pennsylvania, Vermont, Washington, Wisconsin.

Children under this age are excluded from mines in Arkansas, Colorado, Idaho, Indiana, Iowa, Kansas, Kentucky, Minnesota, Missouri, North Dakota, Ohio, Oregon, Pennsylvania, Tennessee, Utah, Washington, Wisconsin, Wyoming.

In all the prohibitions above cited many and various exceptions are allowed in the laws of different States—as for school-vacation periods, for children of widows and disabled fathers, etc. In like manner, the following State laws which, on general principles, forbid all employment of children under fourteen years during school hours, provide for numerous and different exceptional circumstances: California, Colorado, Connecticut, District of Columbia, Idaho, Illinois, Kentucky, Massachusetts, Minnesota, Missouri, Montana, Nebraska, New Hampshire, New York, North Dakota, Ohio, Oregon, South Dakota,

Vermont, Washington, West Virginia, Wisconsin.

{89}

The thirteen year age limit is fixed only in North Carolina, which excepts apprentices.

The twelve year limit is applied (with exceptions for the vacation months) to factories or stores in California, to most descriptions of regular employment in Maryland, and to factories in West Virginia. It is applied to factories, with varied exceptions, in Arkansas, Florida, Georgia, Louisiana, Mississippi, New Hampshire, North Dakota, South Carolina, and Texas. It applies to factories, quarries, railroads, and messenger service in Vermont, and to factories, stores, and mines in Virginia. To mines distinctly it applies in Alabama, Florida, Maryland (if the twelve-year child is not wholly illiterate), North Carolina, North Dakota (in school hours), Pennsylvania (in bituminous mines only), South Carolina, Virginia, West Virginia (vacation excepted).

The ten year old limit for labor to be lawful was only in Georgia factories, with exceptions for the babes of widows and disabled fathers.

As to hours of labor, "six states limit employment to 9 hours in one day and 54 in one week:—California, Delaware, Florida, Idaho, Missouri, and New York (applying to children under 16 in stores and as messengers).

"Twenty-four states restrict work to 10 hours in one day and either 55, 58 or 60 hours in one week.

"Five states, Alabama, Georgia, North Carolina, Pennsylvania and Tennessee allow more than 10 hours work in one day," in the hours per week they permit.

"Those states which fail to restrict the hours of labor allowed in one **week** as well as in one **day** invite the possibility of seven days' labor. In Washington, for example, women and girls may not only work ten hours at night, they may do this every night, including Sunday.

"Work at night is effectively restricted to the 16th birthday in 18 states. Twelve states set an early closing hour for children under 16 years, New York fixing 5 p. m.; Michigan, Ohio, Oregon and Wisconsin 6 p. m., and Alabama, Idaho, Illinois, Kentucky, Minnesota, Missouri and New Jersey (in stores) fixing 7 p. m. Of these, the Ohio law is the most comprehensive, since it includes girls to the 18th birthday."

"Children have no positive immunity from night work unless the hours are explicitly stated between which it is unlawful to employ them. ... The District of Columbia, 4 territories and 20 states fail to prohibit work at night after a definite closing hour. The sinister feature of this list is the presence of Connecticut, Delaware, Indiana, Louisiana, Maine, Maryland, New Hampshire, Tennessee and West Virginia, all of them important manufacturing states having industries in which children are employed."

Since the compilation of the above several states have made important changes in or additions to their child labor laws, as follows:

In Kentucky the age limit is raised to 14 years during school terms, children between 14 and 16 not to be employed without certificate from school authorities. The hours of labor are limited to ten hours a day and sixty hours a week, and night work is prohibited for children under 16 years.

In Louisiana a fourteen-year age limit is established, with a 9 hour working day, and night work is prohibited for boys under 16 and girls under 18 years.

Mississippi has established a twelve-year limit, applicants under sixteen being required to furnish a certificate of age and educational advantages, and one from county health officer showing physical condition. The time limit is ten hours daily, 58 hours a week.

"New Jersey enacted a compulsory education law, requiring school attendance of all children between the ages of seven and seventeen, except that children of fifteen who have completed the grammar grades and are regularly employed may be excused. This places the age limit for employment during the school period at fifteen years.

"In New York a law was passed transferring the enforcement of the mercantile child labor law from local boards of health in cities of the first class to the State Labor Department, and providing for the creation of a bureau of mercantile inspection. This law became effective October 1st, 1908." It made important changes, affecting dangerous employments, which became effective October 1st, 1909.

"In Ohio an important measure was passed limiting the hours for boys under sixteen and girls under eighteen to eight per day and forty-eight per week."

***National Child Labor Committee
(General Secretary's Annual Report).***

An act to regulate the employment of child labor in the District of Columbia was passed by Congress on May 28, 1908. This law prescribes an age limit of fourteen years, and prohibits employment during school hours. Exceptions may be made for children in the service of the Senate, or for those whose labor is necessary for the support of a disabled or widowed parent. Street trades are forbidden to boys under ten and girls under sixteen years of age. The time limit for

children under sixteen is eight hours a day and forty-eight hours a week.

The report of the National Child Labor Committee, for the year ending September 30, 1909, gives the following additional changes: In South Carolina a system of factory inspection was adopted. The hours of labor, however, were changed from 10 to 11 hours a day. In Maine an educational test was adopted, and the hours reduced from 60 to 58 per week. Rhode Island reduced the hours for women and children from 60 to 56 per week. Pennsylvania enacted a law requiring adequate proof of age of children seeking employment, and requiring school certificate.

Hours of labor have been reduced in the following States: Michigan to 54 hours a week for all women and for males under 18; Kansas, Oklahoma, North Dakota to 8 hour day and 48 hour week; Delaware to 9 hour day and 54 hour week; Maine to 10 hour day and 58 hour week for boys under 16, and girls under 18; Rhode Island to 56 hour week for minors under 16 and all women.

Night work has been prohibited in the following additional States: Delaware, Kansas, North Dakota, Michigan, Oklahoma, California.

Compulsory education laws have been passed in Arkansas and Tennessee, and revised and improved in New Jersey, New York, and Missouri.

See, also.

LABOR PROTECTION: HOURS OF LABOR.

-----CHILDREN, UNDER THE LAW: End-----

{90}

CHILDREN, Public Playgrounds for.

See (in this Volume)
PLAYGROUND MOVEMENT.

CHILDS, RICHARD S.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES.

-----CHILE: Start-----

CHILE: A. D. 1901-1906.

Participation in Second and Third International Conferences
of American Republics, at Rio de Janeiro.

See (in this Volume)
AMERICAN REPUBLICS.

CHILE: A. D. 1902.

Noble Peace Agreements between Chile and the Argentine
Republic.

Treaty for Arbitration of all Disputes.

Limitation of Armaments.

See (in this Volume)
War, The Revolt against: A. D. 1902.

CHILE: A. D. 1903.

Sale of war vessels to Great Britain.

Pursuant to her Convention with Argentina, for the reduction
of armaments, Chile, in this year, sold two newly built war
vessels to Great Britain.

CHILE: A. D. 1906.

Installation of President Montt.

His prospective difficulties.

Don Pedro Montt, elected President of Chile in June, 1906, was installed in office on the 10th of September following—the anniversary of Chilean independence. United States Minister Hicks, reporting the ceremony to his Government, added the following remarks on the political situation:

"The new President takes office while enjoying great personal popularity. He is the son of Don Manuel Montt, who was President of Chile from 1851 to 1862. His reputation is that of a calm, well-balanced man, of unimpeachable integrity, strong and self-reliant, but conciliatory and far-seeing. He begins his career with many difficulties on his hands. One question left over from the last administration—that of the rectorship of the university—is already causing considerable trouble. Under the law the President appoints the rector from three persons named by the doctors of the university itself. Señor Letelier has been so named, but as he is said to be a liberal and even a freethinker, the church party and the conservatives generally are fighting him. The new President selected a cabinet last week entirely different from the one now in office, but owing to the rectorship question and some other things it failed and a new one had to be appointed hurriedly.

"Among other difficulties to be met by the new President is the opposition of the Senate. It is understood that there is a majority in that body against him, and it is liable to operate unfavorably to him. Still his friends have full confidence that he will succeed in quieting opposition and will retain the unlimited confidence of the people.

"Under the Chilean constitution much of the power delegated to the President under the American Constitution is retained by Congress. That body really dictates to the President the appointment or removal of his cabinet and thus his functions are quite different from those of the President of the United

States."

CHILE: A. D. 1906.

Destructive earthquake.

See (in this Volume)

EARTHQUAKES: CHILE.

CHILE: A. D. 1907.

Diplomatic relations with Peru reestablished.

Diplomatic relations with Peru were reestablished in 1907; but the old sore question between the two countries, concerning the interpretation of the peace treaty of Ancón (1884), relative to the provinces of Tacna and Arica, which Chile took from Peru in the preceding war, remains open.

See (in Volume VI.)

CHILE.

CHILE: A. D. 1909.

Contract given for the Arica-La Paz Railway.

See (in this Volume)

RAILWAYS: CHILE-BOLIVIA.

CHILE: A. D. 1909.

Arbitration of the Alsop Claim of the United States.

"Many years ago diplomatic intervention became necessary to the protection of the interests in the American claim of Alsop and Company against the government of Chili. The government of Chili had frequently admitted obligation in the case, and had promised this government to settle it. There had been two abortive attempts to do so through arbitral commissions, which failed through lack of jurisdiction. Now, happily, as the result of the recent diplomatic negotiations, the governments

of the United States and Chili, actuated by the sincere desire to free from any strain those cordial and friendly relations upon which both set such store, have agreed by a protocol to submit the controversy to definitive settlement by his Britannic Majesty, Edward VII."

***Message to Congress of President Taft,
December, 1909.***

The claim referred to is that of "the Alsop Company of New York and Connecticut which advanced large sums of money to the Bolivian government in exchange for the right to valuable guano deposits in that country and other concessions. The government contracted further to return a part of the loan from the receipts of customs at the port of Arica. Before her contract could be fulfilled Bolivia lost Arica and the adjoining districts to Chili in war. In 1885, following representations by the American State Department, Chili agreed to assume the obligations of Bolivia to the Alsop Company. She has never, however, made good her promise, and the matter has been the subject of diplomatic negotiations ever since. The claim now amounts to more than \$1,500,000."

CHILE: A. D. 1909.

Building of the Transandine Railway Tunnel.

See (in this Volume)

RAILWAYS: ARGENTINA-CHILE.

CHILE: A. D. 1909 (October).

Naval plans.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL: CHILEAN.

-----CHILE: End-----

-----CHINA: Start-----

CHINA: A. D. 1887-1907.

Increase of Christian Mission Schools.

See (in this Volume)

EDUCATION: CHINA.

CHINA: A. D. 1900-1905.

Sudden and rapid upspringing of newspapers.

"Without giving actual statistics, it may be mentioned that Peking, which had no newspaper up to the time of the Boxer rising—except a short-lived weekly started by the Peking Reform Club and suppressed by the Empress Dowager—has now three daily newspapers and two fortnightly ones, some of these being partly illustrated. Tientsin has at least three dailies, one of these, the '*Ta-kung Pao*' ('The Impartial'), having the very respectable circulation of twenty thousand. The official organ which calls itself the 'Times' (the '*Shih Pao*'), although not so widely circulated, is well written under European auspices and has considerable influence.

{91}

In Shanghai there are now sixteen daily papers (price, eight to ten *cash* each), some of which have circulations of as much as ten thousand, and besides these there are many journals published there. Further south (at Foochow, Soochow, and Canton), there are in all some six or seven daily papers, and at Hong-Kong five, while Kiaochoh has one, which is supported by the local German government. In addition to these, several papers are now published in the interior, but the majority, for various reasons, flourish in the treaty ports."

A. R. Colquhoun

The Chinese Press of To-day

(North American Review, January, 1906).

CHINA: A. D. 1900-1906.

Progressive tariff and internal taxation measures to check the consumption of opium.

See (in this Volume)
OPIUM PROBLEM.

CHINA: A. D. 1901-1902.

The Russian grip on Manchuria.

Coercive negotiations with China.

Protests from other Powers.

The Manchurian Treaty of 1902 and its impotence.

Early in December, 1901, the American Minister to China, Mr. Conger, reported to Secretary Hay, at Washington, an impending treaty which Russia seemed likely to force on the Chinese Government, which would practically secure to that aggressive Power, through a prolonged agreement of China with the Russo-Chinese Bank, exclusive railway and mining concessions in Manchuria, and which would protract the Russian evacuation of that country through three years. England and Japan were using all their influence at Peking to prevent the signing of the treaty, and Mr. Hay entered a vigorous protest on the part of the Government of the United States, "animated now, as heretofore, by the sincere desire to insure to the whole world full and fair intercourse with China on equal footing." The pressure from Russia on China was so potent, however, that Mr. Conger, on the 29th of January, 1902, reported to Mr. Hay that Prince Ch'ing, who acted with authority from his Government in the negotiation with Russia, had informed him "that the latter has done the best he could and has held out as long as possible, but that Russian possession of Manchuria has become intolerable, and that China must at once sign the convention or lose everything; that he has therefore agreed to sign the convention [modified in some particulars] and will also sign

the separate agreement with the Russo-Chinese Bank, which practically gives exclusive privileges of industrial development in Manchuria." Nevertheless the consummation of the Russian project of coercive diplomacy was delayed until the 8th of April, and the terms of the treaty then signed were considerably moderated from the original design. Its provisions of interest to others than the contracting parties were as follows:

"ARTICLE I.

His Majesty the Emperor of all the Russias, desiring to give a fresh proof of his love of peace and his sentiments of friendship for His Majesty the Emperor of China, notwithstanding the fact that the first attacks upon the peaceable Russian population were made from various points of Manchuria, which is situated on the frontier, consents to the reestablishment of the authority of the Chinese Government in the aforesaid province, which remains an integral part of the Empire of China, and restores to the Chinese Government the right to exercise governmental and administrative powers there as before its occupation by the Russian troops.

"ARTICLE II.

In resuming possession of governmental and administrative powers in Manchuria, the Chinese Government confirms, as well in regard to the terms as to all the other articles, the engagement strictly to observe the stipulations of the contract concluded with the Russo-Chinese Bank on the 27th of August, 1896, and assumes, according to article 5 of said contract, the obligation to protect the railroad and its personnel by every means, and also pledges itself to guarantee the security in Manchuria, of all Russian subjects in general who reside there and the enterprises established by them. The Russian Government, in view of the assumption of this obligation by the Emperor of China, consents on its part, in case there shall be no agitations of any sort, and if the action of the other powers shall offer no obstacle thereto,

gradually to withdraw all its troops from Manchuria so as
(a) To withdraw, in the course of six months from the signing of the convention, the Russian troops from the southwest portion of the province of Moukden, as far as the Liao-he River, and again to place China in control of the railways;

(b) To withdraw, in the course of the six months following, the Imperial Russian troops from the remaining portion of the province of Moukden and the province of Kirin; and

(c) To withdraw, in the course of the six months following, the remainder of the Imperial Russian troops now in the province of Hei-lung Kiang.

"ARTICLE. III.

In view of the necessity of obviating in future a repetition of the disturbances of 1900, in which the Chinese troops quartered in the provinces adjacent to Russia took part, the Russian Government and the Chinese Government agree to order the Russian military authorities and the dzian-dziuns, to come to an understanding for the purpose of regulating the number and determining the places of cantonment of the Chinese troops in Manchuria until the Russian troops shall have been withdrawn therefrom. The Chinese Government further pledges itself not to organize any other troops above the number thus agreed upon by the Russian military authorities and the dzian-dziuns which shall be sufficient to exterminate the brigands and to pacify the country. After the complete evacuation of the country by the Russian troops, the Chinese Government shall have the right to make an examination of the number of troops in Manchuria which are subject to increase or diminution, giving timely notice of such examination to the Imperial Government, for the maintenance of troops in the aforesaid province in superfluous numbers would manifestly lead to the increase of the Russian military forces in the adjacent districts, and would thus occasion an increase of military expenses, to the great disadvantage of both

countries. For police service and the maintenance of internal order in this region outside of the territory ceded to the Chinese Eastern Railway Company, there shall be formed, near the local dzian-dziun governors, a police force, both on foot and mounted, composed exclusively of subjects of the Emperor of China

"ARTICLE IV.

The Russian Government consents to restore to their owners the railway lines of Shan-hai-kwan—Yin-kow—Simminting, which have been occupied and protected by the Russian troops since the end of the month of September, 1900. In consideration of this the Government of the Emperor of China pledges itself:

{92}

"1. That in case it shall become necessary to insure the security of the aforesaid railway lines it will itself assume that obligation, and will not request any other power to undertake or participate in the defense, construction, or exploitation of these lines, and will not permit foreign powers to occupy the territory restored by Russia.

"2. That the above-mentioned railway lines shall be completed and exploited on the precise bases of the agreement made between Russia and England April 16, 1899, and on those of the contract concluded September 28, 1898, with a private company, relative to a loan for the construction of the aforesaid lines, and, moreover, in observance of the obligations assumed by the company, especially: Not to take possession of the Shan-hai-kwan—Yin-kow—Simminting line or to dispose of it in any manner whatever.

"3. That if a continuation of the railway lines in the south of Manchuria, or the construction of branch lines connecting with them, and the construction of a bridge at Yin Kow or at the transfer of the terminus of the Shan-hai-kwan Railroad,

which is situated there, shall hereafter be undertaken, it shall be done after a previous understanding between the Government of Russia and that of China."

***Papers relating to the Foreign Relations
of the United States, 1902, pages 271-281.***

During the next two years Russia was accused from all sides of infidelity to the engagements of this treaty, and her conduct, which seemed especially menacing to Japan, gave rise to the Russo-Japanese War.

See (in this Volume)
JAPAN: A. D. 1901-1904.

CHINA: A. D. 1901-1902.

Edicts for educational reform.
Modernizing examinations for literary and military degrees.
Establishing universities, colleges, and schools.
Sending students abroad.

See (in this Volume)
EDUCATION: CHINA: A. D. 1901-1902.

CHINA: A. D. 1901-1904.

Persistent occupation of Manchuria by the Russians.
Remonstrances of the Japanese.

See (in this Volume)
JAPAN: A. D. 1901-1904.

CHINA: A. D. 1901-1908.

Settlement of the indemnity to be paid to fourteen Powers on account of the Boxer Rising.
Remission of part of it by the United States.

In April, 1901, when the record of events connected with the

Boxer rising against foreigners in China was closed in Volume VI. of this work, the Chinese government had promised satisfaction and indemnity to the fourteen Powers whose subjects had suffered from the barbarous attack and whose forces had overcome it, and the measure of indemnity to be paid was then being discussed. The discussion and the reckonings involved were prolonged till September. The final protocol was signed September 7, but it was not until the 30th of that month that the formulated claims of the Powers concerned were accepted by China, and the responsibility of payment assumed by an imperial decree. The total was 450,000,000 taels, equivalent to \$334,000,000, divided between Austria-Hungary, Belgium, Denmark, France, Germany, Great Britain, Italy, Japan, Netherlands, Portugal, Russia, Spain, Sweden, and the United States. The sum was not reckoned solely for the covering of losses and expenses, consequent on the Boxer outrages, but was intended to be, in some degree, a penalty imposed on the Chinese nation; and some of the claimant nations were said to be more exacting on this score than others were.

The amount for which the United States stipulated was \$24,440,000, and the American government received an indemnity bond for that sum. But when the expenses of the American relief expedition had been accurately ascertained, and all losses and destruction of property belonging to American claimants had been settled, it was found that they would be largely overpaid. It was possible, according to common practice in international dealings, to regard the excess as justly punitive; but a different view was dictated by the wish to show friendliness to China, and a return of the overpayment was proposed. Recommended by President Roosevelt, the necessary sanction was given by Congress, and on the 11th of July, 1908, the American Minister to China addressed the following communication to the Prince of Ch'ing, President of the Wai-Wu-Pu, or Board of Foreign Affairs, at Peking:

"Your Highness:

"It is with great satisfaction that I have the honor to inform your Highness, under direction of the Secretary of State of the United States, that a bill has passed the Congress of the United States authorizing the President to modify the indemnity bond given the United States by China under the provisions of Article VI. of the final protocol of September 7, 1901, from twenty-four million, four hundred and forty thousand dollars (\$24,440,000), United States gold currency, to thirteen million, six hundred and fifty-five thousand, four hundred and ninety-two dollars and twenty-nine cents (\$13,655,492.29), with interest at four per cent (4%) per annum. Of this amount two million dollars (\$2,000,000) are held pending the result of hearings on private claims presented to the Court of Claims of the United States within one year. Any balance remaining after such adjudication is also to be returned to the Chinese Government, in such manner as the Secretary of State shall decide.

"The President is further authorized under the Bill to remit to China the remainder of the indemnity as an act of friendship, such payments and remissions to be made at such times and in such a manner as he may deem just.

"I am also directed by the Secretary of State to request the Imperial Government kindly to favor him with its views as to the time and manner of the remissions.

"Trusting that your Imperial Highness will favor me with an early reply to communicate to my Government, I avail myself of this occasion to renew to your Highness the assurance of my highest consideration

—W. W. ROCKHILL."

In his reply, after reciting the statements conveyed to him by Mr. Rockhill, the Prince wrote (as translated) the following:

"On reading this despatch I was profoundly impressed with the justice and great friendliness of the American government, and wish to express our sincerest thanks.

"Concerning the time and manner of the return of the amounts to be remitted to China, the Imperial Government has no wishes to express in the matter. It relies implicitly on the friendly intentions of the United States Government, and is convinced that it will adopt such measures as are best calculated to attain the end it has in view.

{93}

"The Imperial Government, wishing to give expression to the high value it places on the friendship of the United States, finds in its present action a favorable opportunity for doing so. Mindful of the desire recently expressed by the President of the United States to promote the coming of Chinese students to the United States to take courses in the schools and higher educational institutions of the country, and convinced by the happy results of past experience of the great value to China of education in American schools, the Imperial Government has the honor to state that it is its intention to send henceforth yearly to the United States a considerable number of students there to receive their education. The Board of Foreign Affairs will confer with the American Minister in Peking concerning the elaboration of plans for the carrying out of the intention of the Imperial Government.

"A necessary despatch.

"SEAL OF THE WAI-WU-PU."

Simultaneously with the note from Prince Ch'ing, the Wai-Wu-Pu as a body addressed the following to Mr. Rockhill:

***"To his Excellency W. W. Rockhill,
American Minister, Peking:***

"Referring to the despatch just sent to your Excellency regarding sending students to America, it has now been determined that from the year when the return of the indemnity begins, one hundred students shall be sent to America every year for four years, so that four hundred students may be in America by the fourth year. From the fifth year and throughout the period of the indemnity payments a minimum of fifty students will be sent each year.

"As the number of students will be very great, there will be difficulty in making suitable arrangements for them. Therefore, in the matter of choosing them, as well as in the matters of providing suitable homes for them in America and selecting the schools which they are to enter, we hope to have your advice and assistance. The details of our scheme will have to be elaborated later, but we take this occasion to state the general features of our plan, and ask you to inform the American Government of it. We sincerely hope that the American Government will render us assistance in the matter.

"Wishing you all prosperity,
(Signed)

PRINCE OF CH'ING, YUAN-SHIH-K'AI,
NA-TUNG LIEN-FANG
LIANG-TUN-YEN."

The remittance of somewhat more than \$10,000,000 of the indemnity did not involve a repayment of that sum of money to the Chinese government, for the reason that payments on the original indemnity bond were to be in annual instalments, running until 1940, certain revenues being pledged to secure them. The remittance is effected, accordingly, by a readjustment of those payments hereafter.

Writing in *The Outlook* of this transaction, and of the impression it has made in China, Mr. George Marvin, who has been for some time in official connection with the Chinese

Government, says:

"In pledging itself to the American educational mission the Chinese Government has given the fullest evidence of its appreciation. According to estimates made in Peking last summer, it was calculated that by and after the fourth year of the proposed educational foundation the investment necessary to finance the Chinese students in America would amount to \$500,000 annually, a sum nearly equivalent to the entire yearly revenue remitted. Already, and quite apart from the scheme proposed in the note of the Wai-Wu-Pu, there are maintained in the United States by Imperial and Provincial funds one hundred and fifty-five Chinese students, picked boys and young men, sons of officials and prominent and wealthy merchants, chosen often by competitive examinations. The students now to be sent annually by the Imperial Government will be still more carefully selected. These are the men destined for positions of responsibility and influence in that 'Awakening China' of which we hear so much."

G. Marvin, in The Outlook, November 14, 1908.

A Special Ambassador from China, bearing a letter of thanks from the Emperor, presented it to the President on the 2d of December, 1908.

CHINA: A. D. 1902.

Return to Peking of the Emperor, Empress-Dowager, and Court.
Receptions to foreign representatives.
Withdrawals of foreign troops.
Recurrence of Boxer outbreaks.

The Emperor, Empress Dowager, and their suite reentered Peking on the 7th of January, 1902. On the 22d the foreign representatives were admitted to audience with the Emperor; on the 28th the Emperor and Empress-Dowager, together, gave a reception to the diplomatic body, the Empress-Dowager being

throned on a higher seat than the Emperor; on the 1st of February the Empress-Dowager entertained the ladies of the foreign legations at a banquet, where presents of jewelry were made to all the guests. Sorrow for the misdoings from which the foreigners in China had suffered was expressed on all these occasions, and there seemed to be an earnest desire to make amends for them.

Foreign troops were withdrawn from Tien-tsin on the 15th of August, 1902, and the city delivered to the Chinese Viceroy. Many improvements in streets, bridges, and public grounds had been made by the provisional government which the Allies instituted in 1900. Shanghai was evacuated by the allied forces at the end of the year 1902.

Some recurrence of Boxer movements and insurrections occurred in different parts of the Empire during 1902. Several missionaries and a number of native converts were murdered, chapels were burned, and other outrages committed; but in general there was a restoration of order in the country, and considerable building of railways and forwarding of other enterprises went on.

CHINA: A. D. 1902.

Russo-Chinese Treaty concerning Tibet.

See (in this Volume)

TIBET: A. D. 1902.

CHINA: A. D. 1902 (January).

Agreement respecting China between Great Britain and Japan.

See (in this Volume)

JAPAN: A. D. 1902.

CHINA: A. D. 1902 (February).

Wei-hai-wei found to be strategically worthless by the

British Government.

See (in this Volume)

ENGLAND: A. D. 1902 (FEBRUARY).

CHINA: A. D. 1902-1904.

The British opening of Tibet by force.

See TIBET: A. D. 1902.

{94}

CHINA: A. D. 1903 (MAY-OCTOBER).

Treaty with the United States.

Opening of two ports in Manchuria.

Rights and privileges enlarged.

"In the protocol of September 7, 1901, China had agreed to extend the scope of her commercial treaties with the powers.

See, (in this Volume)

above, A. D. 1901-1908.

When the negotiation of a new treaty was begun by Consul-General Goodnow at Shanghai, the United States demanded that at least two new ports in Manchuria be opened to foreign trade and residence. The Chinese commissioners declined to discuss this subject, on the alleged ground that they had no instructions to do so. It was evident that there was secret opposition somewhere, and on May 7, 1903, Mr. Conger reported that it came from the Russian charge d'affaires. Later he secured a written acknowledgment from the Chinese government that such was the case. ... Mr. Hay then appealed with the utmost directness to the Russian government. ... On July 14 a definite answer was at length received from Russia, in which she declared that it had never entered into her views to oppose the opening of certain cities in Manchuria to foreign

commerce, but that this declaration did not apply to Harbin, one of the cities selected by the United States, which was situated within the railway zone, and therefore was not under the complete jurisdiction of China. A copy of this note was shown to the Chinese government; which finally agreed to insert in the treaty on October 8 (the date on which Russia had agreed to completely withdraw from Manchuria) a provision for the opening of two ports. The United States agreed to this arrangement, and on October 8 the treaty was signed, and Mukden and Antung named as the open ports."

***John H. Latané,
America as a World Power,
chapter 6 (Harper & Bros., New York, 1907).***

The further scope of the treaty was announced by President Roosevelt in his Message to Congress, December 7, 1903, as follows: "It provides not only for the ordinary rights and privileges of diplomatic and consular officers, but also for an important extension of our commerce by increased facility of access to Chinese ports, and for the relief of trade by the removal of some of the obstacles which have embarrassed it in the past. The Chinese Government engages, on fair and equitable conditions, which will probably be accepted by the principal commercial nations, to abandon the levy of 'liken' and other transit dues throughout the Empire, and to introduce other desirable administrative reforms. Larger facilities are to be given to our citizens who desire to carry on mining enterprises in China. We have secured for our missionaries a valuable privilege, the recognition of their right to rent and lease in perpetuity such property as their religious societies may need in all parts of the Empire."

CHINA: A. D. 1904.

Railways and Chinese travel on them.
Unused British Concessions.

"It may not have passed out of the public mind that in February, 1899, Mr. Balfour came down to the House of Commons and paraded before it and the country the magnificent triumph England had won in China in respect of Railway Concessions.

See, in Volume VI.,
CHINA: A. D. 1898 (FEBRUARY-DECEMBER.).

They totalled up to 2,800 miles! The House cheered, the country indulged in a fit of self-complacency, and the critic who asked questions was an ignoramus or a nuisance. Well, five years have gone by, and not one mile of those railways is in existence except the Chinese Northern State Railway, which has passed out of our hands. Of the rest the two great trunk lines, one from Hankow to Canton, and the other in Yunnan, have been abandoned, while among those of shorter length the only one that still remains in active force is the subject of this paper. ...

"In more than one recently published consular dispatch attention has been drawn to the fact that the Chinese, backward or hesitating in the adoption of every other European or Western innovation, have shown no reluctance to avail themselves of improved means of locomotion. The Northern Railway is used by several million passengers every year; the sections already open of the German railway in Shantung and of the Belgian in Shansi can complain of no lack of traffic. The fears of an earlier period as to what the Chinese would do with regard to railways have been dissipated by experience."

***D. C. Boulger,
The Shanghai-Nanking Railway
(Contemporary Review, June, 1904).***

CHINA: A. D. 1904.
The Russo-Japanese War in Manchuria.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY) and after.

CHINA: A. D. 1904-1909.

The Hankau Sze-chuen Railway Loan.

The question of American participation.

In 1904 the American Minister at Peking concluded an agreement with the Chinese Government to the effect that, when loans for the construction of a projected railway into the western province of Sze-chuen, from Hankau, should be negotiated, Americans should have an opportunity to subscribe to it. Nearly five years passed before arrangements for the loan were made, and then, in the spring of 1909, it was found that terms had been concluded with a group of British, German, and French bankers for the whole sum sought, of \$27,500,000, while American capitalists had not been given the promised opportunity. On behalf of the latter the Government of the United States intervened, claiming fulfilment of the agreement of 1904. The matter was regarded as being both politically and financially important. "A precedent is what we want to establish," said Mr. Crane, the newly appointed Minister to China, in an interview on the subject at New York. "The task of this Government to maintain its position with the European Powers in the East will be less difficult. We are looking twenty years ahead." As the result of communications in July from Washington to Peking, in which President Taft took part personally, the loan arrangement was readjusted, and American capitalists became participant in it to the extent of one-fourth.

According to a despatch from Peking, August 17, the matter was settled definitely that day, on the following terms: "The loan to be increased from \$27,500,000 to \$30,000,000, and of this latter amount American bankers to get one-quarter, the other three-quarters going to British, French, and German interests. Americans are to have equal opportunity with the other nations

to supply material for both the Sze-chuen and the Canton lines and the branches; they will appoint subordinate engineers, and they will have also one-half of all future loans of the Sze-chuen Railroad and its branches with the corresponding advantages."

{95}

Subsequently, however, some difficulty in the readjustment of business details in the matter arose, which delayed the final settlement. The motives of the American Government in claiming a participation in the enterprise were stated as follows by President Taft in his Message to Congress, December 6, 1909: "By the treaty of 1903 China has undertaken the abolition of likin with a moderate and proportionate raising of the customs tariff along with currency reform. These reforms being of manifest advantage to foreign commerce as well as to the interests of China, this government is endeavoring to facilitate these measures with the needful acquiescence of the treaty Powers. When it appeared that Chinese likin revenues were to be hypothecated to foreign bankers in connection with a great railway project, it was obvious that the governments whose nationals held this loan would have a certain direct interest in the question of the carrying out by China of the reforms in question. Because this railroad loan represented a practical and real application of the open-door policy through coöperation with China by interested Powers, as well as because of its relations to the reforms referred to above, the Administration deemed American participation to be of great national interest. Happily, when it was as a matter of broad policy urgent that this opportunity should not be lost, the indispensable instrumentality presented itself when a group of American bankers, of international reputation and great resources, agreed at once to share in the loan upon precisely such terms as this government should approve. The chief of those terms was that American railway material should be upon an exact equality with that of the other nationals joining in

the loan in the placing of orders for this whole railroad system. After months of negotiation the equal participation of Americans seems at last assured. It is gratifying that Americans will thus take their share in this extension of these great highways of trade, and to believe that such activities will give a real impetus to our commerce, and will prove a practical corollary to our historic policy in the Far East."

CHINA: A. D. 1905 (August).

New agreement respecting China between Great Britain and Japan.

See (in this Volume)

JAPAN: A. D. 1905 (AUGUST).

CHINA: A. D. 1905 (December).

Treaty with Japan relative to Manchuria.

By a treaty with Japan, concluded December, 1905, China consented to lease to Japan the Kwangtung peninsula, at the southern extremity of which are Port Arthur and Dalny, formerly held by Russia under lease from China, and concede to Japan the control of the railway on the peninsula northward as far as Changchin. China also conceded to Japan the right to build a railway from Antung on the Yalu River to Mukden, the ancient capital of Manchuria, provided, however, that at the end of a certain period the road may be purchased by China. More important is the fact that China agreed in the treaty to open to the world's commerce and trade sixteen principal ports and cities in Manchuria, including Harbin, or Kharbin, the modern Russian capital of the province and its most important railway center.

CHINA: A. D. 1905-1908.

The stir of new ideas.

Imperial Commission to study Representative Systems of Government.

Signs of fruit from it.

Reformative movements.

The Constitutional Programme set forth in August, 1908.

Nine years of approach to a Promised Constitution.

A significant token of the dawning in China of a changed state of mind respecting the western world of Europe and America, and its very different development of scientific knowledge and of social institutions, was afforded in the fall of 1905, when an imperial commission, headed by Prince Tsai-Tse, was sent abroad to study representative systems of government. The Commission returned in the following July, and in August a committee of high dignitaries, with Prince Ch'ing for its chairman, was appointed to consider the report it had submitted on administrative reforms. The outcome, soon afterwards, was an imperial edict which recognized a "lack of confidence between the highest and the lowest, between the throne and ministers and the masses," and went so far as to say that "foreign countries become wealthy and powerful by granting a constitution to the masses and allowing suffrage to all." While intimating that China must look forward to a similar admission of the masses to some voice in the government, the edict set forth the prior need of many reforms, in the official system, in the laws, in education, in the finances, and in the army and police. To begin the undertaking of such reforms, Prince Tsai-Tse was put at the head of a committee for dealing with the official system, and before the year closed there were several changes of importance introduced, tending towards more simplicity of methods in public business and more centering of responsibilities. Examinations in Western subjects of knowledge began to replace the old conventional examinations in classic Chinese literature, as tests for admission and promotion in official service, and eagerness was shown in the opening of schools and colleges that approached the European and American type. Simultaneously with these stirrings of a new consciousness and purpose in China, a great moral reform

was taken in hand. This was no less than an attempt to rescue the nation from its opium curse. Some account of the opium edict issued in September, 1906, will be found elsewhere.

See, (in this Volume)
OPIUM PROBLEM.

That these reformative steps were actually taken with a view to the ultimate granting of "a constitution to the masses and allowing suffrage to all" was proved in the summer of 1908, when a programme of gradual approach to constitutional government, by stages which extend through the next nine years, was promulgated at Peking on August 27th. According to Western ideas the document lacks definiteness, but it is not difficult to believe in the sincerity of its intent. There may be great wisdom of sincerity in the serial planning of successive measures that are to unfold and introduce a constitution at the end of nine years.

The edict of August 27 was summarized and partially translated in a communication to the New York *Tribune*, as follows:

"The preamble alone fills twenty large pages and is written in an incongruous mixture of Chinese Classical terms and new Japanese terminology invented to fit Western meanings. The efforts of the authors have been aimed at conveying to the Chinese mind an understanding of things hitherto beyond its comprehension. The explanations often convey nothing to the Western mind.

{96}

"The subject is approached in an almost prayerful attitude. The fact that China obtains this constitution 'by the imperial will' is reiterated again and again. It is set forth that the imperial government, under the constitution, shall not be criticised, on the principle that the 'sacred majesty of the

sovereign may not be offended against,' and that the leaders of the political parties are to be appointed by the throne. Full government under this constitution will become effective at the end of nine years. While the proposed system is called constitutional, it is far removed from Western constitutional government.

"Broadly speaking, the document follows the constitution of Japan. Some of its most striking clauses follow:

"'We beg, as the condition of the country is perilous, and the hearts of the people are uneasy—trouble within and calamity from without, danger threatening, and no parliament at the side to investigate matters—that urgent measures may be taken to overcome half-heartedness and procrastination, that there may be peace above and completion below.

"'We have therefore laid down the general principles of the constitution and the programme for the work of getting everything in readiness in nine years. These may not be changed in the least particular.

"'There will be boundless daily improvement. May the "silken sounds" descend to inform the empire and fix the road for ten thousand years, comforting the hopes of the myriads who long for peace.'

"Fourteen laws are then submitted, as follows:

"1. The Ta Ch'ing Emperor will rule supreme over the Ta Ch'ing Empire for one thousand generations in succession, and be honored forever.

"2. Majesty of the sovereign.

"3. Right of promulgating laws.

"4. Convocation, suspension, extension and dissolution of parliament.

"5. Appointment, payment, promotion, degradation of officials.

"6. Command over army and navy.

"7. Power to make war, peace, treaties; to receive and appoint ambassadors.

"8. Martial law.

"9. Rewards and pardons.

"10. Right over judges and the administration of laws.

"11. Injunction.

" 12. Right of raising funds when parliament is not in session.

"13. Right of fixing the expenses of the imperial household.

"14. Respecting authority over the imperial clan.

"“We look to our Empress Dowager and Emperor and see that they take the measure of heaven and earth as their measure and the heart of the people as their heart. The officials and people within the wide seas are reverently grateful.

"“The people should earnestly fulfil all the duties without selfish reservations, which would hinder the public welfare, and without rash impatience, which would confuse the regulation; not looking on the matter as too easy, so that the deliberations become empty wrangling, not failing to understand the limitation of powers, so as to make laws which overstep authority.

"‘The sovereign has absolute power, which he exercises in constitutional form.’

"It is then set forth that on the dissolution of parliament the people shall be called on to elect a new parliament, and the document continues:

"‘Mercy is from above; officials, below, may not arrogate it to themselves.

"‘Officers and people who keep within the law will have freedom of speech, of the press and of assembly. They shall not be disturbed without cause in their possession of property, nor interfered with in their dwellings; and they have the obligation to pay taxes and render military service and the duty of obedience to the law of the land.

"‘Members of parliament shall not speak disrespectfully of the court or slander others. Violation of this law will be punished.’

"The nine year programme is as follows:

"‘Thirty-fourth year of Kwang Hsu, or 1908—Local self-government; rules for reorganization of finance; fusion of the Manchu and Chinese military; revision of criminal code.

"‘Thirty-fifth year, or 1909—Election of provincial assemblymen; election to constitutional commission; local self-government bureaus established; census; provincial budgets; determination of functions of Peking officials; issuing of school books.

"‘Thirty-sixth year, or 1910—Provincial assemblies opened; local self-government established; census reports; tax rate fixed; organization of provincial officials; courts of law at provincial capitals and treaty ports; publishing criminal

code; extension of schools; preparation for organization of sub-prefecture; department and district police.

"'Thirty-seventh year, or 1911—Local self-government continued; public account; imperial budget; rules on imperial taxation; rules governing appointments and salaries of civil officials; extension of schools; codes of municipal and commercial laws and civil and criminal procedure drawn up.

"'Thirty-eighth year, or 1912—Completion of general arrangement of urban self-government; census reports; publication of taxation laws of empire; perfection of arrangements for provincial and lesser courts; extension of schools.

"'Thirty-ninth year, or 1913—Police registration; imperial trial budget of variable expenses; Supreme Court; courts of law in prefectures, sub-prefectures, departments and districts; criminal code promulgated; urban self-government established; rules for rural self-government; rules for urban police.

"'Fortieth year, or 1914—Imperial trial budget of fixed expenses; publication of system of national accounts; rural self-government established; rules for lower courts.

"'Forty-first year, or 1915—Imperial household expenses fixed; organization of the Banners' controller's office; public accounting enforced; lower courts established; municipal and commercial laws and civil and criminal procedure rules established; police system complete.

"'Forty-second year, or 1910—Promulgation of full constitution and the laws of the imperial clan; parliamentary rules and rules for parliamentary elections; budget for consideration of parliament; reorganized official system; appointment of a premier.'

"The document concludes with these words:

{97}

"In the forty-third year of Kwang Hsu, or 1917, China will be, by following this plan, a parliamentary country like Japan or Russia."

China's Constitution
(New York Tribune, October 19, 1908).

Prince Ito, the veteran statesman of Japan, regards the constitutional experiment in China with more anxiety than hopefulness. Speaking on the subject in August, 1909, he expressed doubt of its success, and thought failure would imperil peace in the Far East. His reasoning in brief was this:

"First—the enormous area of the Empire and the defective facilities for communication would greatly impede the assembling of a Parliament, especially in time of emergency.

Secondly, the immovable character of Chinese conservatism forbade a change even of the system of taxation, notwithstanding the State's urgent need of funds, and there was, therefore, still greater difficulty in effecting the radical alterations required by a constitutional system.

Thirdly, the Chinese were untrained in local administration, the institution of which was an essential prelude to a national Assembly. He said he was astonished at the silence of Occidental publicists on this question so vital to the peace of the Orient."

CHINA: A. D. 1905-1908.

Chinese Exclusion Laws of the United States.

Boycott of American goods in the Empire.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

CHINA: A. D. 1905-1909.

Disputes with Japan.

The Fa-ku-menn Railway and the Antung-Mukden Railway questions.

Settlement of the latter by Japanese ultimatum.

It could hardly have been possible for cordially friendly relations to be maintained between China and Japan, in the circumstances which transferred to the latter the extensive rights and privileges in Southern Manchuria, which Russia had acquired in that Chinese province by treaty and lease. By a protocol of December, 1905, after the closing of the Russo-Japanese War, there was an attempt, between Peking and Tokyo, to define the effects of the Treaty of Portsmouth, especially in the bearings of that article of the Treaty which ceded to Japan, "with the consent of the Government of China, the lease of Port Arthur, of Talien, and of the adjacent territories and territorial waters, as well as the rights, privileges and concessions connected with this lease or forming part thereof," and likewise, of "all the public works and property within the territory over which the above lease extends"; but misunderstandings and differences of opinion were sure to arise. Whether it has been more by the fault of Japan than of China that they arose and increased until, in the past year, they became a serious estrangement, is a question on which the judgment of foreign observers is conflicting. The veteran representative of the London Times at Peking, whose friendship for the Chinese is fast-fixed by long residence among them, lays the greater weight of responsibility on Japan, though he finds a lack of reasonableness on both sides. Japan, he says (writing July 19, 1909), was welcomed in China with open arms after her victorious war. "No nation ever had a greater opportunity, and

faulty must have been the policy which in so short a time has wrought so great a change. Japan is now regarded with a comprehensive distrust that is most disquieting.

Not long ago more than 1,000 Japanese of different classes were employed in China, in schools and colleges, in the army and police, in law and prison reform, in agriculture and sericulture, in telephone and electric light companies, on railways, and in many other capacities. At present there are fewer than 400, 52 of whom are in Peking, and these numbers will be further reduced as existing contracts expire. Similar reductions are noted in the number of Chinese being educated in Japan. Three years ago there were more than 20,000; last year there were more than 10,000. The number now is 5,125, and only yesterday it was arranged that in the case of a body of 300 Government students just returned to China, only 88 would be sent to take their places."

"At present each country, through its Press, is protesting against the unreasonableness of the other. Contradictory statements on questions of fact are made on almost every point at issue."

The main contention has related to the projected extension by China of a railway to Fa-ku-menn from the terminus of an existing line at Hsin-min-tun, west of Mukden. It was in the agreement of December, 1905, that no railways in competition with the South Manchurian line, which Japan took from Russia, should be built. The Japanese assert that they had in view this very Fa-ku-menn extension when that stipulation was inserted. The Chinese declare that the negotiation on their part had reference solely to the area east of the Liao River. Japan made two alternative proposals for the settlement of this question: "One that the Chinese should build a railway from Fa-ku-menn to the South Manchurian Railway instead of to Hsin-min-tun, or that the Japanese should build a railway from the South Manchurian line to Fa-ku-menn and thence to the North, in which case Japan would withdraw her objection to the

Fa-ku-menn-Hsin-min-tun railway, provided that China undertook not to extend the line beyond Fa-ku-menn without a previous agreement with Japan." China is said to have declined discussion of these proposals, but offered arbitration of the whole matter. Japan objected to arbitration without previous discussion of her new proposals. And so the dispute seemed deadlocked.

Another dispute turned on the interpretation of a clause in the Agreement of December, 1905, which reads: "China agrees that Japan has the right to improve the Antung-Mukden Railway so as to make it fit for the conveyance of commercial and industrial goods of all nations." Japan undertook, as a necessary "improvement" of the road, to reconstruct it, with a change of gauge to connect it with the standard gauge of the South Manchuria and Korean roads. China denied that the agreement gave a right to reconstruction. Several other questions arising between the two peoples have helped to raise hard feeling on both sides; but these have seemed to be at the front.

At length on the 6th of August, 1909, Japan brought discussion of the Antung-Mukden Railway question to a summary ending, by a note to the Chinese Government which announced that "the Imperial Government is now compelled to take independent action, and to proceed to carry out the necessary work of reconstruction and improvement according to treaty rights."

{98}

Before taking this decisive step, the Japanese Government is said to have consulted Great Britain and other powers, and to have had approval of her action from London, if not from elsewhere. China yielded to the ultimatum, and this leading cause of quarrel between the great nations of the East was removed on the 4th of September by the signing, at Mukden, of a memorandum of agreement, reported in substance as follows:

China agrees, first, not to construct the

Hsin-min-tum-Fa-ku-men Railroad without consulting Japan; second, that half the capital required to extend the Kirin Railroad shall be borrowed in Japan; third, that Japan will be permitted to extend the Yinkow and improve and modernize the Antung-Mukden Railroads, to which China was bitterly opposed; fourth, that Japan may work the mines in the Fushun and Yentai districts, and have joint exploitation of the mines reached by the Antung and Manchurian Railroad lines.

In the Chientao boundary dispute Japan agrees to recognize China's sovereignty, while China agrees to open four trade marts in the district.

In a letter to a London journal, a few days before this settlement of the Antung-Mukden Railway question, Lord Stanhope said:

"The Chinese have surely deeper reasons for opposing this scheme than the mere fact of reconstruction. They well realize that this railway, crossing narrow valleys, can have no commercial future, but is virtually a strategic railway to strengthen the Japanese grip on Manchuria."

CHINA: A. D. 1906.

A Commission sent to America and Europe for the study of political and other institutions.

The new spirit astir in China was manifested in the early months of 1906 by the sending of a large Commission of carefully chosen men to the United States and Europe, for observations that would be helpful toward reforms in their own country. It was headed by two High Commissioners of distinction, Tai Hung-chi and Tuan Fang, and they were attended by thirty-five scholars and functionaries of note. They received much attention during their stay of five weeks in the United States, and were placed by the Government under the special charge of Professor J. W. Jenks. Writing

subsequently of their mission Professor Jenks said:

"The purpose of the commission is, primarily, to make such a study of the political institutions of the various countries visited that they will be able, on their return, to offer valuable suggestions for the improvement of their own. There is even serious talk among the high officials in China of some form of a constitution. In consequence, the commissioners are as eager to learn regarding the working of some of our institutions as regarding their form of organization. Inasmuch as political reform necessarily involves social reform, even as a condition precedent, the commission is devoting special attention to the study of education, in universities and schools, and to methods of social amelioration, in prisons and asylums for the insane and the poor. They, however, are not neglecting the study of our large manufacturing plants, and have clearly in mind, also, the improvement of the industrial conditions of China. It is a matter of peculiar interest that the Empress-Dowager charged them to inquire especially into the education of girls in the United States, since she hoped, on their return, to be able to found a school for the education of the daughters of the princes."

CHINA: A. D. 1906.

Sixty cities being opened to foreign settlement.

A memorandum on the subject of the foreign settlements at the open ports of China, prepared by the Chinese Secretary of the American Legation at Peking, was transmitted to the State Department at Washington in December, 1906. It conveyed the following information:

"In China proper and in Manchuria 46 cities and towns have been thrown open already to foreign residence and international trade. This does not include Dalny, in Manchuria, leased to Japan; Wei-hai-wei, in Shantung, leased to Great Britain; Kiaochow, in Shantung, leased to Germany;

Kowloon, in Kuangtung, leased to Great Britain; nor Kuang-chou-wan, in Kuangtung, leased to France. Besides the above, there are 3 cities in Tibet thrown open to trade, making 49 ports in the Empire. In addition to these already declared open, there are 13 cities whose opening in the immediate future is arranged for, and 3 others whose opening depends upon the acceptance by other treaty powers of the provisions of Article VIII. of the last commercial treaty between China and Great Britain. No account is taken of the cities of Turkestan, Mongolia, and the Amur region, in which Russian subjects have for many years enjoyed privileges of trade and consular jurisdiction. It will be seen, therefore, that in the immediate future foreigners will enjoy the right of residence for purposes of trade at more than 60 cities of the Chinese Empire."

CHINA: A. D. 1906.

Edict against the use of opium.

See (in this Volume)
OPIUM PROBLEM.

CHINA: A. D. 1906 (January).

Chinese students in Japan.

See (in this Volume)
EDUCATION: CHINA: A. D. 1906.

CHINA: A. D. 1906-1907.

Flood and famine in the region traversed by the Grand Canal.

One of the frequent destructive floods in China which produce famine befell the region that is traversed by the Grand Canal in the summer of 1906. Heavy rains covered its vast plains with lakes of water, which drowned out the crops throughout an area estimated at 40,000 square miles. From ten to fifteen millions of people were reduced to famine, and could only be

kept alive until the harvests of another year by the generosity of the outside world. It was not vainly appealed to; but the suffering and death in the afflicted country were appallingly great.

CHINA: A. D. 1906-1907.
Christian Missions.

See (in this Volume)
MISSIONS: CHINA.

CHINA: A. D. 1907-1909.
Restriction on Chinese immigration to Canada.
Labor hostility.
Riotous attacks.
Lately modified regulations.

See (in this Volume)
RACE PROBLEMS: CANADA.

CHINA: A. D. 1908.
Expansion of the Postal Service.

According to a report from Peking on the working of the Imperial Chinese Post Office in 1908, "the operations show an unprecedented expansion." The postal routes cover 88,000 miles, of which 68,000 are courier lines. The number of post offices open in 1901 was 176. There were 2,803 open in 1907, and 3,493 in 1908. The number of postal articles handled in 1901 was 10,000,000. The number was 168,000,000 in 1907, and 252,000,000 in 1908. The number of parcels was 127,000, weighing 250 tons, in 1901; 1,920,000, weighing 5,509 tons, in 1907; and 2,445,000, weighing 27,155 tons, in 1908.

CHINA: A. D. 1908.
Administration of the Department of Education.

See (in this Volume)
EDUCATION: CHINA: A. D. 1908.

{99}

CHINA: A. D. 1908.
Chinese students in the United States.

See (in this Volume)
EDUCATION: CHINA: A. D. 1908.

CHINA: A. D. 1908 (November).
Death of the Emperor, Kuang-hsu,
and of the Empress-Dowager, Tze-Hsi.
Accession of the child-Emperor, Hsuan-Tung (Pu-Yi).

The circumstances of the death, almost simultaneously, of the late Emperor, Kuang-hsu, and of the Dowager-Empress, Tze-Hsi, who had been the real ruler of the Empire, are involved in considerable obscurity. The Emperor is said to have died on the 14th of November, 1908, and the Empress on the following day. The announcement of their decease was preceded by the publication of two imperial edicts, one of which made Prince Chun, of the royal family, Regent of the Empire, while the other named Pu-Yi, the Prince's son, three years old, as the heir presumptive to the throne. As communicated later to foreign governments, the Regent was given, by another imperial rescript, full power over the civil and military departments of government, and the entire appointment and dismissal of officials. The promised creation of a Parliament was anticipated in the prescription of his duties, among which were the following:

"When a Parliament has been established the Prince Regent shall attend the same in place of the Emperor, but he need not attend the ordinary sessions. When the Constitutional Commission meets, the Prince Regent shall likewise represent

the Emperor there.

"The Prince Regent shall have full authority in negotiating treaties and in appointing representatives abroad.

"The Prince Regent shall enter and leave his chair at the Ch'ien Ch'ing gate. The yamens, according to their duty, shall draw up and report on regulations modelled on the precedent established by Prince Jui-Chung regarding the equipage, escort, and general preparations for movements of the Prince Regent outside the palace.

"Every year the Board of Finance shall transfer to the Department of the Imperial Household the sum of taels 150,000 for disbursement. When the Emperor comes of age, his studies being completed, and his marriage takes place, the official body shall unite in asking him to assume personal direction of the government."

On the 21st of November the members of the Diplomatic Corps at Peking were received in a body at the palace, to present the condolences of the Governments they represent on the deaths of the late Emperor and Empress. As reported to the Associated Press, there were present on the occasion "every official or member of the imperial family who recently has been reported ill, dead by his own hand or estranged from the government, and the desired impression of official stolidity at Peking which, it was most evident, this occasion was intended to convey, was imparted successfully. This was the answer of the government to the rumors of suicides and deaths current in Peking for the last week.

"Prince Ching, for the first time since the passing away of their majesties, appeared officially as the head of the foreign board. The heads of the various governmental departments were present, with the members of the imperial clan, and, in addition, several thousand minor officials, all

in white, had assembled at imperial command. At the conclusion of the functions, in honor of the dead, the diplomats paid homage to Prince Chun, the regent."

On the 2d of December the strict mourning observed at Peking was suspended briefly, to permit the ceremonies attending the ascension of the dragon throne by the child-Emperor, Pu-Yi, who, as Emperor, took the name of Hsuan-Tung. The ceremonies, described to the Associated Press, lasted but half an hour.

"The function began by the princes of the imperial family and the high officials of the empire kowtowing to the memorial tablets of their late majesties. After this they all kowtowed in turn to Pu-Yi: Pu-Yi then offered a sacrifice before the tablets of the Emperor and the Dowager Empress. After this he was relieved of his dress of mourning and clad with much care in a diminutive imperial garment, embroidered with the imperial dragon. His nurses performed this duty with great attention and care. Thus arrayed, the toddling Emperor ascended the throne amid a fanfare of drums, bells and firecrackers. He made his way alone and showed no need of the assistance which willing hands would have given him had his little feet faltered. From the throne Pu-Yi kowtowed to his stepmother, the Dowager Empress Yiahonala. He then received the kowtows, while still on the throne, of all the princes and officials present. This over, he descended from the throne and was again clad in his little dress of mourning.

"The ceremony took place in the throne hall of the Forbidden City. The officials present were selected with great care and were the highest men in the empire. According to an old established custom, a number of humble coolies, men from the lowest walks of life, were brought into the sacred precincts of the Forbidden City to act as witnesses. The soldiery played but an inconspicuous part in the proceedings."

Following the ceremony, an imperial edict proclaiming the ascension was issued. This edict grants amnesty for certain

specified offences; rewards all the imperial princes, princesses, and dukes; promotes all officials by one degree and bestows honors on their parents; erases the demerits entered against minor officials; advances the degree of scholars; dismisses all pending petty criminal cases; excuses certain liabilities, and grants bounties to the soldiers in the service of the empire.

CHINA: A. D. 1908 (December).

Decree reaffirming the Constitutional Programme of the late Empress Dowager.

An imperial edict reaffirming the determination of the new government of China to carry out in its entirety the Constitutional programme laid down by the late Empress Dowager of China in August, 1908, was promulgated on the 4th of December. A literal translation was made public at Washington in January as follows:

"On the first day of the 8th moon (August 27, 1908), the late Emperor reverently received the excellent decree of the late great Empress Dowager strictly ordering the officials and people of Peking and of the provinces to carry out completely by the ninth year all the preparatory work, so that at the appointed time the Constitution may be proclaimed. Also proclamations for the members of Parliament to assemble, and other decrees brightly manifested the sacred instructions, and all between the seas applauded.

{100}

From ourselves down to the officials and people high and low all must sincerely obey the excellent decree previously issued. The eighth year of Hsuan T'ung [whose first year dates from January 22, 1909] is the limit of time. Let there be no 'reabsorption of sweat' in this matter. Our hope is that this will certainly be carried out. Let the officials of Peking and the provinces on no account look idly on, and procrastinate, delaying the opportune time. Let patriotism be shone forth.

Exert yourselves that constitutional government may be established. And court and 'wilds' (people) may have peace; and so we may comfort the spirits of the late great Empress Dowager and the late Emperor in heaven, and make firm the foundations of countless years of peaceful government."

CHINA: A. D. 1909.

Progress in the opium reform.

See (in this Volume)
OPIUM PROBLEM.

CHINA: A. D. 1909.

Progress in technical education.

See (in this Volume)
EDUCATION: CHINA: A. D. 1909.

CHINA: A. D. 1909.

Existing treaties with United States and existing laws in the latter country relative to the admission of Chinamen.

The question of their consistency with each other.

Present status of the question.

See (in this Volume)
RACE PROBLEMS: IN THE UNITED STATES.

CHINA: A. D. 1909 (January).

Abrupt dismissal of Viceroy Yuan Shih-kai from his offices.

Much disturbance of feeling and apprehension of a troublesome reaction in Chinese policy was excited among the foreign representatives in China, on the 2d of January, 1909, by the sudden dismissal of the able and powerful Viceroy of Chi-li, Yuan Shih-kai, from all his offices. He had been looked upon as the great leader of progress in China,—the statesman to be counted on for the most and best influence in the government

of the Empire for some years to come. He had the confidence of foreign powers, and was supposed to have acquired a sure footing in the councils at Peking. Latterly, however, it is said to have become known in Peking that "a powerful Manchu cabal was working for his downfall, led by Tieh-liang, the Minister of War, and supported by the aged doctrinaire and Chinese ex-Viceroy, Chang Chih-tung," and the stroke which overthrew him at the beginning of the new year was ascribed to that source. "The cabal has been successful," was the wired message of the Peking correspondent of the London **Times** to his paper; and he summarized the merits of the fallen statesman thus: "No man in China deserved better of his country. He has been in the forefront of progress, and is the best administrator China has produced in this generation. When Governor of Shantung in 1900 his action in resisting the Boxer insurrection and in safeguarding foreigners really saved the Empire from disruption. He created China's modern army and was the leader of the modern educational movement in China, and his famous memorial of September 2, 1905, urging the summary abolition of the antiquated system of literary examination was epoch-making. Under his Viceroyalty the Metropolitan province became the most advanced in the Empire. With Tang Shao-yi he led the anti-opium movement. Since he entered the Ministry for Foreign Affairs China has attained a measure of respect among the Powers which was unknown before."

Some weeks after the blow had fallen, and when the peculiarly Oriental manner of its infliction had been learned, a letter from Peking to the New York **Evening Post** told of it as follows:

"At 11 a. m. on Saturday, January 2, the grand councillors were summoned by the regent. Prince Ching had evidently heard a whisper of what was to come, and he pleaded illness. The other grand councillors answered the summons promptly, but when Yuan reached the door of the council chamber he was told that he was not wanted. Three grand councillors therefore went

in and found the regent awaiting them with the edict dismissing Yuan Shih-kai already drawn up. 'I want no discussion. Sign this edict!' said the regent. Chang Chih-tung turned to reply. The regent repeated his words impressively, and the edict was signed without further demur.

"Within the next hour, while Yuan Shih-kai was hastily making plans for his personal safety, the news flew around Peking and the city throbbed with excitement. Every one but his immediate councillors was astounded at Prince Chun's temerity. Never in the history of China had such a man as Yuan been thrown out of office at such short notice. To the Western mind, however, there was nothing very harsh in the edict; it said simply:

"'Yuan Shih-kai, a member of the Grand Council and president of the Waiwupu, formerly received repeated offices and advancement under the late Emperor. After our enthronement we gave him great honors, because we considered that his talent certainly was one that could be made use of, if he exerted himself in the public service. Unexpectedly Yuan Shih-kai has now contracted rheumatism in the foot, which makes it hard for him to walk and difficult for him to attend to the duties of his offices. Yuan Shih-kai, therefore, is ordered to vacate his posts and return to his native place to nurse his disorder. Thus is our great mercy to him manifested.'"

Yuan Shih-kai left Peking in haste, evidently in fear of his life, and it was expected that his whole following of friends and supporters would be swept out of their offices and employments. But no such result followed, and credit began to be given to the assurances of the Imperial Government that the dismissal of Yuan meant no reversal of policy or reaction whatever. He was distrusted, it was intimated, because he had been disloyal to the late Emperor in 1898, when the latter attempted great reforms.

See, in Volume VI. of this work,

CHINA: A. D. 1898 (JUNE-SEPTEMBER), and after.

Yuan Shih-kai was then the chief agent and instrument of the Dowager-Empress in overcoming the well-meaning but weak sovereign and annulling his reformatory work. Hence, it was claimed, the present Government's distrust of him.

The Ministers of Great Britain and the United States had ventured some questions as to the significance of the act, but their colleagues did not join them, and no further discussion of the matter diplomatically took place.

CHINA: A. D. 1909 (February).

Meeting of the International Opium Commission at Shanghai.

See (in this Volume)
OPIUM PROBLEM.

CHINA: A. D. 1909 (May).

New Russo-Chinese Agreement concerning the
Chinese Eastern Railway.
Municipalities on the Line.
The Kharbin question.

The Chinese Eastern Railway, so named, is the line which Russia, by Convention with China in August, 1896, obtained permission to construct, from a point on her Trans-Siberian Railway, through Northern Manchuria, to Vladivostok.

{101}

Under that agreement the Russian authorities claimed a right to institute certain organizations of municipal administration at Kharbin and other towns of rising importance on the line. This right was challenged in 1908 by the American Consul at Kharbin (sometimes written Harbin), Mr. Fisher, who refused to recognize some ordinances of the Russian administration, on the ground that he was accredited to China, only, and could know no other sovereignty in Manchuria than the Chinese. This

led to a new Russo-Chinese Agreement, signed at Peking on the 10th of May, 1909, distinctly authorizing the "organization of municipalities on the lands" of the Chinese Eastern Railway. The "sovereign rights of China" are "not to be prejudiced in any way," says the new Agreement; but "municipal bodies are to be established in the commercial centres of a certain importance situated on the lands of the railway. The inhabitants of these commercial centres, according to the importance of the localities and the number of the residents, shall elect delegates by vote, who shall choose an Executive Committee; or else the residents themselves shall take part in the business of the municipality and a representative shall be elected from amongst them who will take upon himself to carry out the resolutions decided upon by meeting of all the residents.

"No difference shall be made on the lands of the railway between the Chinese population and that of other nationalities; all residents shall enjoy the same rights and be subject to the same obligations.

"The right to vote shall belong to every member of the community who owns real estate of a fixed value or who pays a fixed annual rental and taxes."

Reading no farther in the Agreement than this, imperial Russia and China would seem to have jointly planted a seed of democratic municipalities in Manchuria; but that impression is destroyed by qualifying provisions, such as this:

"The President of the Chiao-She-Chu [a Mixed Russo-Chinese Court, formerly created] and the director of the railway, occupying a position superior to the Presidents of the assemblies of delegates and of committees, have a right of control and personal revision, which they may exercise whenever they think fit. ... in the event of decisions by the assembly of delegates not being approved by the President of

the Chiao-She-Chu or the director of the railway, these decisions shall be returned to the assembly for further consideration. If the original decision is adopted by a majority of three-quarters of the members present, it becomes binding."

The effect of the whole agreement would undoubtedly be to give the Russian railway officials supreme authority in the so-called municipalities. Remonstrances against it by the Government of the United States have been supported by Great Britain, Germany, and Austria. The question remains open and troublesome. Dr. Morrison, of *The Times*, wrote of the situation in November as follows:

"The situation in Manchuria is receiving close attention from the Legations because of the increasing difficulty of the problems created by Russian and Japanese claims to territorial and administrative jurisdiction in connexion with their respective railways, claims which conflict with China's unimpaired sovereignty and with the treaty rights of other nations. A tentative proposal was recently submitted to the consideration of the Diplomatic Body, with the approval of the Wai-wu-pu and M. Korostovetz, to create an international settlement at Kharbin on a separate site adjoining the railway settlement. The proposal was unacceptable to the Powers interested because it implied a fundamental discrimination in favour of the railway company, leaving it to exercise, in an important trade centre, powers which are incompatible with treaties and which are not conferred by its charter. ...

"The Chinese Government entirely fails to avail itself of its opportunities at this juncture. The local authorities are unable, and the Peking Government is unwilling, to take any initiative. The Wai-wu-pu adheres to its policy of shifting opportunism, as shown by its proposal to the Russian Minister to cancel, in deference to the protests of the Powers, the agreement with regard to the Kharbin municipal regulations

concluded on May 10, a proposal unaccompanied by any practical alternative whereby political requirements might be reconciled with the undeniable vested interests of the railway. In this connexion it is interesting to note that, whereas England, America, France, Germany, Italy, and Austria-Hungary refused an unqualified assent to the Kharbin agreement, yet no exception has been taken to the regulations of the Japanese railway settlements, although, without any reference to China, they confer the widest powers on the Japanese authorities, including the right of arbitrary taxation and forcible expulsion."

The Russian side of the question was presented in a semi-official statement, made public in October, 1909, as follows:

"The representatives of certain Powers which have trade interests in China have, both in Peking and St. Petersburg, expressed doubts as to the rights of authority exercised by the Kharbin municipality. These representatives have endeavoured, in notes presented to the Chinese and Russian Governments on the matter, and in verbal communications, to prove that certain paragraphs of the treaty which was signed at Peking on May 10, 1909, violated the extra-territorial rights granted to their nationals by treaty with China, and further that some of the measures taken by the Kharbin authorities were opposed to the regulations of the international concession which, in their opinion, has been recently established at Kharbin.

"It is easy to demonstrate that such a point of view is based on a misunderstanding. Extra-territorial rights, so far as they are secured by treaty, comprise exclusively the right of every foreigner to be judged by his own Consul. They do not, however, in any way exempt him from the obligation to pay town and other taxes, or to submit to established regulations. The difference between the pure Chinese open ports where there are

no foreign concessions and places which lie in the territorial zone of the Chinese Eastern Railway, and are open to foreign trade, consists solely in the fact that in the former the Chinese authorities have the power to make administration rules at their own discretion, while in places in the territorial zone of the Eastern Railway the Chinese Government has, by the concession agreement signed on August 28, 1896, and the convention of May 10, 1909, transferred the rights of administration to the Chinese Eastern Railway Company, as a private concession, so that the company acts as the agent of the Chinese Government in supervising the administration of Kharbin and other places.

{102}

"Another misunderstanding has evidently given rise to the statement that Kharbin has recently been converted into an international concession. The contracting parties never had any such intentions. By reason of legal acts, as well as of traditions and conditions of a local character, under which Kharbin originated, it is clear that this is a special kind of concession, which is distinguished from other concessions by its exceptionally liberal and exceedingly hospitable regulations in regard to foreigners."

CHINA: A. D. 1909 (October).
Naval plans.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL: CHINESE.

CHINA: A. D. 1909 (October).
Opening of the Peking-Kalgan Line of Railway.
A purely Chinese undertaking.

See (in this Volume)
RAILWAYS: CHINA.

CHINA: A. D. 1909 (October).

Death of Chang Chih-Tung.

Chang Chih-Tung, Grand Councillor of the Empire of China, died on the 4th of October, 1909, and Tai Hung-tze, President of the Board of Justice, was appointed his successor in office.

CHINA: A. D. 1909 (October-November).

Election and opening of Provincial Assemblies.

Beginnings of the institution of Constitutional and Representative Government.

The following, from the Peking reports to *The Times*, London, narrates the actual beginning of the series of proceedings planned and promised for the gradual institution of representative constitutional government. The first is of the date of October 14, 1909:

"To-day marks an era in the establishment of constitutional government in China. In obedience to the Imperial decrees of October 19, 1907, and of July 22, 1908, ordering the establishment, within one year of the latter date, in each of the 22 provinces of China proper and in Manchuria and the New Dominion of provincial deliberative assemblies, elections have been in progress for some time past, and the assemblies meet in accordance with the regulations for the first time to-day, the first day of the ninth moon. ...

"The elections have taken place according to the regulations, and halls have been erected for the assemblies to sit wherever a Viceroy or a Governor has his seat. The number of members varies from 140 in Chih-li, 114 in Che-kiang, to 30 each in Kirin, Lchlun-chiang, and Hsin-kiang. The incomplete returns which have been published show nearly 1,000 voters for each representative.

"For weeks past reports have been coming in from provincial authorities asking for instructions and information concerning this new departure. An edict issued last night renews the Imperial admonitions to members of the assemblies as to their deliberations, and to Viceroys and Governors as to their supervision of the deliberations, and exhorts all to display a loyal patriotism so that the country may attain strength and prosperity. The event may be one of great historical importance."

The next was sent from Peking on the 6th of the following November:

"Already, in the opening debates of these Provincial Assemblies, one apprehends the coming chaos, one hears the first whispering of the approaching storm. Peking, panoplied in ignorance and petrified in medieval statecraft, trifles with Demos at its doors, evidently hoping that the Assemblies will consume their own smoke, and that the Mandarin may be preserved by the time-honoured device of holding the balance between contending classes. But the spirits which the Vermilion Pencil has called from the Celestial deep, though elected with all possible precautions of 'silkcoated' franchise, and under the close direction of Viceroys and Governors, show signs of scant respect for the Central Government and of little sympathy for its difficulties. Already, within a fortnight of their birth, many of the Assemblies have passed resolutions denouncing several of the Government's pet proposals—e. g., the opium monopoly, the stamp tax, and the foreign loan for the Hankau-Canton and Hankau-Szechuan Railways. In the case of the stamp tax, 15 provinces have expressed the opinion, and have induced the local officials in many cases to endorse it, that the proposed levy is impracticable, so that, in the words of the native Press, 'its imposition is deferred and the Ministry of Finance is at its wits' end.' Concerning the vexed question of the railway loan, the Hupei Assembly is reported to have endorsed,

without a dissentient, their chairman's declaration that the Government's scheme should be resisted 'to the death.'

"The spirit which animates these Assemblies is evidently very similar to that which speaks through the vernacular Press; iconoclastic, patriotic—in the sense that it denounces everything foreign—but lacking, so far, in intelligent leadership and constructive policy. Their attitude towards the Central Government is generally one of scarcely veiled contempt. I cannot illustrate better its general tendency than in the words of a native journalist who, in a recent criticism of the Grand Council, congratulated these rulers of China on their remarkable longevity, but observed that 'there is little hope of longevity for an Empire that is governed by such incompetent survivals.'"

A few weeks later, after the forty days' session of the new Provincial Assemblies had ended, this writer had changed his view. Writing on the 22d of December, he said: "A study of the reports of the proceedings so far available of the first session of the Provincial Assemblies supports the contention that the Throne has been justified in granting the subjects of the Empire a limited right of speech through their chosen representatives. The programmes of debate have been strictly in accordance with the Imperial edict, and the proceedings have been marked with dignity and decorum. The net result justifies the declaration made by a high authority, who has been given special opportunity of forming a judgment, that the 'members have fulfilled their appointed task of working in harmony with the executive authorities in the interests of their respective provinces.'"

CHINA: A. D. 1909-1910.

Proposal of the United States for the neutralization of Manchurian Railways.

Proposed Chinchow-Aigun Railway.

Late in December, 1909, the United States Government submitted to that of China, and to the interested Powers, a proposition which contemplated the neutralization of the railways in Manchuria, now partly under Russian and partly under Japanese control, and which looked, also, to an international undertaking of the construction of a Chinchow-Aigun line, to tap the Russian Trans-Siberian road at Tsitshar.

{103}

In a published statement subsequently, the American Secretary of State, Mr. Knox, explained that his Government, during the recent railway loan negotiations, had pointed out to the interested Powers that the greatest danger to the policy of the open door in China and the development of her foreign trade arose from disagreements among the great Western nations, and had expressed the opinion that nothing would afford so impressive an object-lesson to China and the world as the spectacle of the four great capitalist nations—Great Britain, Germany, France, and the United States—standing together for equality of commercial opportunity. The American Government believed that one of the most effective steps to this end in order to secure for China the enjoyment of all political rights in Manchuria and to promote the normal development of the Eastern provinces was to take the Manchurian railroads out of Eastern politics and to place them under an economic and impartial administration by vesting in China herself the ownership of the railways. Such a policy would require the cooperation, not only of China, but of Russia and Japan, both of whom it would enable to shift their onerous responsibilities in connexion with those railways on to the shoulders of the combined Powers, including themselves, and would effect a complete commercial neutralization of Manchuria.

The proposal of a neutralization of the existing Manchurian railways was not received with favor in either Japan or Russia, and the other Powers concerned have manifested a disposition to defer to the view taken by those two

Governments, which are most immediately touched by it. The position of the Japanese Government on the question was stated publicly in an address to the Diet on the 27th of January by Baron Komura, Minister for Foreign Affairs, who said:

"The United States government recently proposed a plan regarding the neutralization of Manchurian railways. The Imperial government, in view of the important Japanese interests involved, and considering that the proposal came from a friendly Power with which the empire was on terms of close intimacy, submitted the question to the most careful examination. While determined to adhere scrupulously to the policy of the open door and equal opportunity, it should be recognized that the realization of the proposed plan would involve radical changes in the condition of affairs in Manchuria which were established by the treaties of Portsmouth and Peking. The change must be attended by serious consequences. In the region affected by the South Manchurian Railway numerous undertakings have been promoted in the belief that the railway would remain in our possession. As a consequence, the Imperial government, with regret, was obliged to announce its inability to consent to the proposal. I trust that the United States will appreciate our position and that the other Powers will equally recognize the justice of Japan's attitude."

The Russian Government is understood to have taken substantially the same ground, on the general question of a neutralization of Manchurian railways. There and elsewhere, however, there is said to be a readiness to consider the incidental proposition of an internationally financed Chinchow-Aigun road.

-----CHINA: End-----

CHINA EMERGENCY APPEAL COMMITTEE.

See (in this Volume)
EDUCATION: CHINA: A. D. 1909.

CHINCHOW-AIGUN RAILWAY, Proposed.

See (in this Volume)
CHINA: A. D. 1909-1910.

CHINESE HIGHBINDER ASSOCIATIONS:
Their dangerous character.

See (in this Volume)
SAN FRANCISCO: A. D. 1902.

CHINESE IMMIGRATION:
The Resistance to it in America, Australia, and South Africa.

See (in this Volume)
RACE PROBLEMS.

CH'ING, Prince of.

See (in this Volume)
CHINA: A. D. 1901-1908.

CHOATE, Joseph H.:
Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

CHRISTENSEN, Jens Christian.

See (in this Volume)
DENMARK: A. D. 1901, and 1905-1909.

CHRISTIAN IX., King of Denmark:

Death.

See (in this Volume)
DENMARK: A. D. 1906.

CHRISTIAN MISSIONS.

See (in this Volume)
MISSIONS, CHRISTIAN.

CHUN, Prince:
Regent of China.

See (in this Volume)
CHINA: A. D. 1908 (NOVEMBER).

CHURCH OF SCOTLAND:

Act of Parliament authorizing change of the Formula of
Subscription required from its ministers.

See (in this Volume and Volume 4.)
SCOTLAND: A. D. 1904-1905.

CHURCH, Roman Catholic.

See (in this Volume and Volume 4.)
PAPACY.

CHURCH AND STATE:

The French Separation Law and its execution.

See (in this Volume)
FRANCE: A. D. 1905-1906, 1906, and 1907;
also, PAPACY.

CHURCH AND STATE:

Russia: Emancipation of the Church urged by M. Witte.

See (in this Volume)
RUSSIA: A. D. 1905 (APRIL-AUGUST).

CHURCH SCHOOL CONTROVERSIES.

See (in this Volume)
FRANCE: A. D. 1903;
ENGLAND: A. D. 1902, and 1906;
CANADA: A. D. 1905.

CHURCHILL, Winston L.:
Under Secretary for the Colonies.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

CHURCHILL, Winston L.:
President of the Board of Trade.

See ENGLAND: A. D. 1908 (April).

CHURCHILL, Winston L.:
To the British Suffragettes.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

CHURCHILL, Winston L.:
On the Budget of 1909 and the House of Lords.

See ENGLAND: A. D. 1909 (APRIL-DECEMBER).

CITIZENSHIP, American:
Principles of Naturalization defined.
The New Law.

See (in this Volume)
NATURALIZATION.

CITY GOVERNMENT.

See (in this Volume)
MUNICIPAL GOVERNMENT.

CITY PLANNING.

See (in this Volume)
SOCIAL BETTERMENT;
also, CHICAGO: A. D. 1909.

CIVIC FEDERATION, The National.

See (in this Volume)
SOCIAL BETTERMENT: UNITED STATES;
also, NATIONAL CIVIC FEDERATION.

{104}

CIVIL SERVICE REFORM: CANADA: A. D. 1908.

Introduction of Competitive Examinations and the Merit
System of appointment and promotion.

An "Act to Amend the Civil Service Act," which came into force September 1, 1908, divides the Civil Service of the Dominion into the Inside Service and the Outside Service, the former embracing "that part of the public service in or under the several departments of the Executive Government of Canada and in the offices of the Auditor General, the Clerk of the Privy Council, and the Governor-General's Secretary, employed at the City of Ottawa, or at the Experimental Farm Station or the Dominion Astronomical Observatory near Ottawa." The employés of this Inside Service are required to be classified according to their salaries, in three divisions, and all appointments to

positions in it are (except as otherwise provided in the Act) to "be by competitive examination, which shall be of such a nature as will determine the qualifications of candidates for the particular positions to which they are to be appointed, and shall be held by the Commission from time to time in accordance with the regulations made by it and approved by the Governor in Council."

For the administration of the Act a Civil Service Commission is created, consisting of two members appointed by the Governor in Council, who are to have no other office or employment, and who may employ necessary assistance for the examinations they conduct. The following are provisions of the Act:

"No person shall be admitted to such an examination unless he is a natural-born or naturalized British subject, and has been a resident of Canada for at least three years, and is, at the time of the examination, of the full age of eighteen years and not more than thirty-five years, and presents the required certificates as to health, character and habits.

"Before holding any such examination the Commission shall require each head of a department to furnish it with the number of additional permanent officers or clerks likely to be required in his department within the next six months.

"On this basis, and having regard also to the requirement of the several departments for temporary services, a computation shall be made by the Commission of the number of competitors to be selected at the next ensuing examination.

"If there remain from a previous examination successful competitors who have not received appointments, their number shall be deducted in making the computation, and their names, in the order of merit, shall be placed at [the top of the list] to be prepared in accordance with section 17 of this

Act.

"Thereupon due notice of the examination shall be given by the Commission, stating the character and number of the positions to be competed for.

"Immediately after the examination the Commission shall make out a list of the successful competitors thereat for each position, in the order of merit, up to the number computed in accordance with Section 15.

"From the said list the Commission, on the application of the deputy head, with the approval of the head, of any department, shall supply the required clerks, whether for permanent or temporary duty. ...

"The selections shall be, so far as practicable, in the order of the names on the list, but the Commission may select any person who in his examination shows special qualifications for any particular subject. ...

"The cause of the rejection shall be reported by the deputy head to the Commission, who shall thereupon select another person to take the place of the one rejected, and decide whether the latter shall be struck off the list or allowed a trial in another department.

"After a person so selected has served a probationary term of six months, [he shall be deemed] to be permanently accepted for the service. ...

"The head of the department, on the report in writing of the deputy head, may, at any time after two months from the date of assignment, and before the expiration of six months, reject any person assigned to his department. ...

"Promotion, other than from the third to the second division,

shall be made for merit by the Governor in Council upon the recommendation of the head of the department, based on the report in writing of the deputy head and accompanied by a certificate of qualification by the Commission to be given with or without examination, as is determined by the regulations of the Commission.

"Except as herein otherwise provided, vacancies in the first division shall be filled by promotions from the second division."

Regulations prepared by the Civil Service Commission appointed under the Act require fees, ranging from \$2 to \$10 to be paid by the candidates for examination.

CIVIL SERVICE REFORM: United States: A. D. 1901-1909.
Progress of reform under President Roosevelt.

At the close of the administration of President Roosevelt, the journal published by the National Civil Service Reform League, entitled ***Good Government***, bore the following testimony to the fidelity with which the principles of the reform had been upheld and promoted by the retiring executive:

"One of the first acts of President Roosevelt was the reorganization of the civil service commission, which, under the administration of President McKinley, had become lax and ineffective. Since then the enforcement of the law and rules by the commission has been sincere, vigorous and impartial. Particularly strict has been the enforcement of the prohibition against political assessments. Twice in the midst of political campaigns has the President ordered the removal of prominent officials for levying assessments on their subordinates.

"During his administration President Roosevelt has extended the scope of competition to many new and important offices.

Notable among these extensions have been the restoration of the field service of the War Department (withdrawn by President McKinley) and the classification of the rural free delivery service (now numbering some 40,000), the forestry service, deputy collectors of internal revenue, deputy collectors of customs, deputy naval officers, and cashiers and finance clerks in post offices. Prevented by the civil service law from 'classifying' unskilled laborers, President Roosevelt, under general executive authority, has prescribed a system of examination for laborers in Washington and the principal cities. By executive order of June 27, 1906, he provided a system of examination and promotion for the consular service which has done away with the more flagrant evils of that service. His latest and most striking extension has been the classification of over 15,000 fourth-class postmasters, thereby taking them out of politics.

{105}

"He has prohibited the participation of competitive officials in politics further than to vote as they please and to express privately their opinions, and has made this prohibition effective by incorporating it in the civil service rules, thus giving to the commission the power to investigate. He has by vetoing the Crumpacker census bill defeated the attempt by Congress to obtain as spoils some 4,000 clerkships for the next census.

"This is a brief record of President Roosevelt's service to civil service reform during his administration. In considering the criticisms of his course which have been made from time to time by the League and the press, this service should be kept in mind and carefully weighed. For instance, against this record of constant advancement, the suspension of the rules in individual cases—in all about 370—although in our opinion arbitrary and dangerous as precedents, are of comparatively minor importance. A few have been made for political reasons;

the far greater number, however, were acts of charity or personal impulse, and President Roosevelt himself realized the danger in this practice and took steps to curtail it.

"In passing on the justice of the other criticisms of President Roosevelt's course regarding the civil service one should keep in mind the distinction which he has so sharply drawn between the classified and the unclassified service. This is clearly set forth in a reply to a letter from the civil service commission calling his attention to the omission from the postal regulations of President Cleveland's 'pernicious activity' order, and quoting a passage from the 11th report of the commission. President Roosevelt said:

'I personally drew the paragraph which you quote. The paragraph was drawn with a view to making a sharp line between the activity allowed to public servants within the classified service and those without the classified service—the latter under our system are as a rule chosen largely with reference to political considerations, and as a rule are, and expect to be, changed with the change of parties. ... It seemed to me at the time, and I still think, that the line thus drawn was wise and proper.'

"In considering such appointments to positions in the unclassified service as that of James C. Clarkson as surveyor of the Port of New York for instance, a just analysis must take into account these frankly expressed views. President Roosevelt drew a line between the classified and unclassified service, and as to the latter recognized and availed himself to some extent of existing conditions. He believed that so long as positions remained in the unclassified service it was impractical to eliminate political considerations and that any attempt to do so led to hypocrisy. His remedy was to place the positions in the classified service, wherever practicable. And he has extended the line of the classified service higher than ever before. The League does not believe this theory is ideal,

but in carrying it out the President has certainly not set the reform back. Criticism based only on the fact that one who has rendered great service to a cause has not accomplished all that its ardent supporters wish to accomplish can be properly set down as captious.

"In performing its duty to the public, the League has at various times during his administration frankly criticised certain acts of President Roosevelt, which in its opinion were not in line with the best interests of the service. But this does not prevent us from recognizing that during his entire administration President Roosevelt has been loyal to the reform with which he has been so prominently identified. We do not believe that any act of his was intended to injure the reform. Wherever he has thought it practicable to extend the reform he has done so. A President less devoted to the reform would not have been criticised for what President Roosevelt has failed to do."

***Good Government,
March, 1909.***

The following exhibit of the whole progress in civil service reform, from its beginning to the end of 1908, was made in the annual report of the Council of the National Civil Service Reform League, presented at the meeting of the League, on the 17th of December in that year:

"The whole United States civil service, in 1883, consisted of 110,000 persons, and of these 14,000 were put under the civil service law. Now the federal civil service has grown to 352,000 positions, and, including the last extension, those under the competitive system have increased from 14,000 to about 222,000. Not only in numbers but in proportion to the total has the competitive service increased from 12.7% in 1883 to 63% now."

CIVIL SERVICE REFORM: A. D. 1902-1903.

Extension of classification to the Rural Free Delivery Service.
Order concerning unclassified laborers.

"During the year ended June 30 [1903], 25,566 persons were appointed through competitive examinations under the civil-service rules. This was 12,672 more than during the preceding year, and 40 per cent of those who passed the examinations. This abnormal growth was largely occasioned by the extension of classification to the rural free-delivery service and the appointment last year of over 9,000 rural carriers. A revision of the civil-service rules took effect on April 15 last, which has greatly improved their operation. ... Executive orders of July 3, 1902; March 26, 1903, and July 8, 1903, require that appointments of all unclassified laborers, both in the Departments at Washington and in the field service, shall be made with the assistance of the United States Civil Service Commission, under a system of registration to test the relative fitness of applicants for appointment or employment. This system is competitive, and is open to all citizens of the United States qualified in respect to age, physical ability, moral character, industry, and adaptability for manual labor: except that in case of veterans of the civil war the element of age is omitted. This system of appointment is distinct from the classified service and does not classify positions of mere laborer under the civil-service act and rules. Regulations in aid thereof have been put in operation in several of the Departments and are being gradually extended in other parts of the service. The results have been very satisfactory, as extravagance has been checked by decreasing the number of unnecessary positions and by increasing the efficiency of the employees remaining."

***President's Message,
December 7, 1903.***

CIVIL SERVICE REFORM: A. D. 1906.

Excellent legislation in Pennsylvania.

See (in this Volume)
PENNSYLVANIA.

CIVIL SERVICE REFORM: A. D. 1906-1909.

The Reform of the Consular Service.

A great and greatly needed reformation of the consular service of the United States was begun in 1906, by the passage of an Act of Congress, approved April 5, which provided for the reorganization of the service, primarily by the classifying and grading of the consuls-general and the consuls, and the fixing of salaries in each class. Consuls-general were placed by the Act in seven classes, with salaries as follows:

Class one, twelve thousand dollars.
London, Paris.

Class two, eight thousand dollars.
Berlin, Habana, Hongkong, Hamburg, Rio de Janeiro, Shanghai.

Class three, six thousand dollars.
Calcutta, Cape Town, Constantinople, Mexico City,
Montreal, Ottawa, Vienna, Yokohama.

Class four, five thousand five hundred dollars.
Antwerp, Barcelona, Brussels, Canton, Frankfort, Marseilles,
Melbourne, Panama, Saint Petersburg, Seoul, Tientsin.

Class five, four thousand five hundred dollars.
Auckland, Beirut, Buenos Ayres, Callao, Chefoo, Coburg,
Dresden, Guayaquil, Halifax, Hankau, Mukden, Munich,
Niuchwang, Rome, Rotterdam, Saint Gall, Singapore.

Class six, three thousand five hundred dollars.
Adis Ababa, Bogota, Budapest, Guatemala, Lisbon, Monterey,
San Salvador, Stockholm, Tangier.

Class seven, three thousand dollars.
Athens, Christiania, Copenhagen.

Consuls were divided among nine classes, receiving salaries that range from \$8000 in the first class and \$6000 in the second, down to \$2000 in the ninth. The first and second classes hold but one incumbent each, at Liverpool and Manchester, respectively. There are eight places in the third class, twelve in the fourth, and then the numbers mount rapidly, up to the sixty-nine included in the ninth class.

All fees allowed to be collected for services rendered in connection with the duties of the consular office (which the President may prescribe) are directed by the Act to be accounted for thereafter and paid into the Treasury of the United States. All consular officers whose salaries exceed \$1000 are forbidden to be interested in or to transact any business as a merchant, factor, broker, or other trader, or a clerk or other agent of one, or to practice as a lawyer for compensation, or to be interested in the fees or compensation of any lawyer. The whole service is placed under inspection by five inspectors, to be appointed from the members of the consular service; and each consular office must be inspected at least once in every two years.

In June following this important enactment, the Secretary of State, Mr. Root, submitted to President Roosevelt the draft of a recommended executive order, which prescribed new rules to be followed in filling the consular offices, as classified by the recent Act. In doing so, the Secretary made this explanation: "The main features of the order were embodied in the early forms of the Consular Reorganization Bill passed at this session of Congress, but they were dropped out, largely

for the reason that their enactment by Congress would appear to be an infringement upon the President's constitutional power to appoint consuls. Your adoption of these rules by executive order will be free from that objection, and judging from the very positive commendation which many members of both Houses have expressed for the proposed change in the method of appointing consuls, I do not doubt that the new system will receive the hearty approval of the Senate and of Congress whenever occasion may arise for an expression upon the subject."

The recommended order was approved and issued by the President. "Subject to the advice and consent of the Senate," it declared in substance as follows:

(1) Vacancies in the office of Consul-General and in the office of Consul above class 8 (salary, \$2500) shall be filled by promotion from the lower grades of the service, based upon "ability and efficiency, as shown in the service";

(2) vacancies in the office of Consul of these two remaining classes, 8 and 9, are to be filled

(a) by promotion, "on the basis of ability and efficiency, as shown in the service," of consular clerks, vice-consuls, and consular agents, and

(b) by new appointments from candidates who have passed an examination;

(3) officials in the service of the Department of State, with salaries of \$2000 or upward, shall be eligible for promotion, always on the basis of ability and efficiency, as shown in the service, to any grade of the consular service above the eighth class;

(4) the board of examiners for admission to the service shall

consist of the Secretary of State (or such other officer of the department as the President shall designate), the chief of the Consular Bureau, and the chief examiner of the Civil Service Commission (or such other officer, as this commission shall designate);

(5) this board of examiners shall formulate the rules for examinations;

(6) among the compulsory subjects shall be at least one modern language other than English, the natural industrial and commercial resources and commerce of the United States, political economy, and the elements of international, commercial, and maritime law;

(7) 80 per cent. shall be necessary for eligibility;

(8) candidates must be over twenty-one and under fifty years of age, citizens of the United States, and of good character and physique. They must also have been specially designated by the President for examination.

Other significant provisions of the order are to the effect that no promotion shall be made except for efficiency and conduct, that "neither in the designation for examination or certification or appointment will the political affiliations of the candidate be considered"; and that "due regard should be had to the rule that, as between candidates of equal merit, appointments should be made so as to secure in the service proportional representation of all the States and Territories."

The first examination of candidates for appointment under this order was held on the 14th and 15th of March, 1907, since which time no one has entered the consular service of the United States without satisfying that test.

In June, 1908, Secretary Root announced the promotion or transfer of nearly sixty consular offices, setting in motion the desirable advancement of these officials from post to post, to make the best use of their proved capacity and acquired experience. About a year later, Mr. Root's successor, Secretary Knox, made public the promotion of twenty-seven incumbents of consular office, and the appointment of twenty-three new recruits to the service from his eligible list. So the long striven-for reform of the American consular service may safely be said to have arrived.

{107}

A bill introduced in the Senate, providing for a permanent consular service, based on competitive examinations, was decided by the Committee on Foreign Relations to be unconstitutional, for the reason that the Constitution itself confers the power of appointment of consular officers upon the President, and that Congress has no right to limit this power in any way. President Taft, by an executive order, has practically put the scope of the proposed bill into effect, thereby, in part, limiting the power conferred upon himself. This, in the opinion of the Senators, is all that can be done legally.

CIVIL SERVICE REFORM: A. D. 1908.

Extension of the Merit System to nearly one-third of the Fourth Class Postmasters of the country.

In the Annual Report of the Council of the National Civil Service Reform League, presented at the annual meeting of the League in December, 1908, it was said:

"The great event of the year, which so aptly commemorates the 25th anniversary of the passage of the Pendleton bill, is the extension of the competitive system to all fourth class postmasters in the part of the country north of the Ohio and

east of the Mississippi, that is, in the New England States, New York, New Jersey, Pennsylvania, Ohio, Indiana, Illinois, Wisconsin, and Michigan. This is an extension covering more positions than suggested by the civil service commission. It is an extension large enough to be of present advantage, is made in the more thickly settled portions of the country, where it is easiest to carry it out, and yet it is not on so large a scale as to invite mistakes or perhaps partial failure. This extension covers about 15,000 positions. The order of President Cleveland of May 26, 1896, covered about 31,000 places; and yet, from the point of political significance, this present extension is the most important, we believe, in the history of civil service reform since January 16, 1883, and when its purpose is fully carried out it will include some 53,000 places."

***See, in Volume VI. of this work,
Civil Service Reform: United States.***

The report then reviewed the efforts that had been in progress since 1889, with the support of Presidents Cleveland and Roosevelt, to bring about the inclusion of this class of postmasters, at the least, under the rule of appointment subject to competitive examination. President Roosevelt, in his annual Message of 1907, had said:

"The fourth-class postmasters' convention has passed a very strong resolution in favor of placing the fourth-class postmasters under the civil-service law. The Administration has already put into effect the policy of refusing to remove any fourth-class postmasters save for reasons connected with the good of the service; and it is endeavoring so far as possible to remove them from the domain of partisan politics. It would be a most desirable thing to put the fourth-class postmasters in the classified service. It is possible that this might be done without Congressional action, but, as the matter is debatable, I earnestly recommend that the Congress

enact a law providing that they be included under the civil-service law and put in the classified service."

Congress refused the desired legislation. The law committee of the League was unanimous in the opinion that the President held authority already to make the change by Executive Order, and Mr. Roosevelt gave a hearing on the subject to Messrs. McIlhenny and Greene, of the National Civil Service Commission, and the Honorable Richard Henry Dana, Chairman of the Council of the League. Evidently he became persuaded that his authority was sufficient, and was prepared to act accordingly. About the middle of November, 1908, the National League of Postmasters of the United States, which had been organized in 1905, sent a Committee, with its President, Mr. A. K. Hoag, of Orchard Park, New York, to present to the authorities at Washington their claim to a footing of non-political appointment under civil service rules. By good fortune they met at Washington Mr. Dana and Mr. Goodrich, of the National C. S. R. League, who were visiting the Capital on the same errand, and the doubled appeal had quick success. In an interview with President Roosevelt, the Committee of the Postmasters' League received assurances that he would issue an order on the subject, provided that the President-elect, Mr. Taft, would approve his taking that step. The Committee went at once to the Hot Springs in Virginia, where the President-elect was then sojourning, received his ready endorsement of the plan, and conveyed it to the President in power. A fortnight later, on the 1st day of December, the memorable order was proclaimed. On the 1st of the following February a plan of filling vacancies was put into effect.

It was wise, no doubt, to apply the extension of the reform in post-office appointments to one large and important section of the country, and obtain a showing of practical results, before attempting to overturn the old system as a whole. That more will follow in due time is reasonably sure. Mr. Hoag, the President of the National League of Postmasters, in a private

note, remarks:

"It is already evident that the change is to redound to a better service. Scores of new buildings, new quarters and new equipments are being installed by the emancipated postmasters; which shows that postmasters of this class dare, for the first time, to invest their money in better equipment, feeling that they are likely to remain postmasters long enough to make the investment a paying one, now that their tenure of office does not depend upon their relations to a political faction or boss."

CIVIL SERVICE REFORM: A. D. 1909.

The Census Bill.

Inveteracy of Spoils-seeking in Congress.

Veto of the bill in its first form by the President.

The Amended Bill which became law.

The greatness of the advance of civil service reform in the United States, within the quarter century since its beginning, is one of the most hopefully inspiring facts in recent American history. But, by the side of it stands the warning and shaming fact, that it has been achieved, from first to last, by forces outside of Congress, and outside of all other legislative bodies which supposedly represent the political will of the people. Every measure of legislation that has promoted it has been wrung from unwilling majorities in those bodies,—yielded only when they feared to refuse. That Congress, in both Houses, would wreck with eagerness, to-day, if it dared, the bettered public service of the nation, to recover for its members and their party henchmen the old "spoils" of office and place, was shown unmistakably, within the last year of this record, by its action on the bill to provide for the taking of the Census of 1910.

The President, and every responsible official connected with the Census Bureau, had borne testimony to the inefficiency and wasteful costliness of previous census-taking under the old system of appointment, and had besought Congress to provide in the bill for an effective test of qualification for the employment by competitive examination. Considerable majorities in both House and Senate turned an equally deaf ear to all considerations of public interest in the matter, and passed a bill which enabled Senators and Representatives to parcel out between themselves the large number of appointments to be made.

President Roosevelt did not hesitate to veto the bill, and gave it a thorough dissection in the Message which explained his disapproval. In part, his comments on the Act offered to him were as follows:

"Section 7 of the act provides in effect that appointments to the census shall be under the spoils system, for this is the real meaning of the provision that they shall be subject only to non-competitive examination. The proviso is added that they shall be selected without regard to political party affiliations. But there is only one way to guarantee that they shall be selected without regard to politics and on merit, and that is by choosing them after competitive examination from the lists of eligibles provided by the Civil Service Commission. The present Director of the Census in his last report states the exact fact about these non-competitive examinations when he says:

‘A non-competitive examination means that every one of the many thousands who will pass the examinations will have an equal right to appointment, and that personal and political pressure must in the end, as always before, become the determining factor with regard to the great body of these temporary employments. I cannot too earnestly urge that the Director of the Census be relieved from this unfortunate

situation.'

"To provide that the clerks and other employés shall be appointed after non-competitive examination, and yet to provide that they shall be selected without regard to political party affiliations, means merely that the appointments shall be treated as the perquisites of the politicians of both parties, instead of as the perquisites of the politicians of one party. I do not believe in the doctrine that to the victor belongs the spoils; but I think even less of the doctrine that the spoils shall be divided without a fight by the professional politicians on both sides; and this would be the result of permitting the bill in its present shape to become a law. Both of the last censuses, the eleventh and the twelfth, were taken under a provision of law excluding competition; that is, necessitating the appointments being made under the spoils system. Every man competent to speak with authority because of his knowledge of and familiarity with the work of those censuses has stated that the result was to produce extravagance and demoralization."

The veto went to Congress on the 5th of February, 1909, one month before the expiration of President Roosevelt's term of office. His successor-to-be was well known to be in sympathy with his views of the public service, and no attempt was made either to pass the bill over the veto, or to proffer its spoils-seeking provisions to the new occupant of the Presidency when he came in. Congress was compelled, in this case, as in many before, to surrender its cherished spoils of salaried public employment to civil service reform, simply because public interests and public sentiment are better represented, as a rule, in the White House than in the Capitol, which is not a pleasing fact.

During the extra session that was called by President Taft, in March, an amended bill was passed which came near to satisfying the demands of reform. It kept a little opening for

political favoritism, in a proviso, that the director of the Census may, "when the exigencies of the service require," make his selections from the list of eligibles, not by the candidates' rating, but on the ground of "immediate availability" or previous experience in census work; but this was so small a loophole that the President's signing of the bill was generally approved. "The act empowers the director of the census to appoint special agents to whom will be assigned principally the work of obtaining statistics from manufacturing establishments, mines and quarries. While no qualifying test is required by law for the appointment of these agents, Director Durand has nevertheless provided for their selection subject to a carefully worked out scheme of **competitive** examinations, to be conducted by the United States civil service commission. In rating the candidates the experience declaration and practical test are to be given equal credit. All candidates who receive a combined rating of 70 will be placed on an eligible list, from which selection will be made as the needs of the service require. Eligibility, according to the instructions, 'is not of itself a guarantee of appointment, but selection will be made solely with reference to equipment and availability for appointment.'"

***Good Government,
October, 1909.***

CIVIL VETO, in Papal Elections.

See (in this Volume)
PAPACY: A. D. 1904.

CIVILISTAS, The.

See (in this Volume).
PERU.

CLANRICARDE ESTATE, Evicted tenants of the.

See (in this Volume)
IRELAND: A. D. 1907.

CLARION FELLOWSHIP.

See (in this Volume)
SOCIALISM: ENGLAND: A. D. 1909.

CLARK, Edgar E.:
On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

CLEMENCEAU, Eugene:
In the Sarrien-Clemenceau Ministry, and as Prime Minister.

See (in this Volume)
FRANCE: A. D. 1906, and after.

CLEMENCEAU, Eugene:
Disclaims for France the desire to revenge the German conquest of Alsace.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907-1908.

CLEMENCEAU, Eugene:
Triumph in the senatorial elections of 1909.

See FRANCE: A. D. 1909 (JANUARY).

CLEMENCEAU, Eugene:
His downfall from Premiership produced by an intemperate speech.

See (in this Volume)
FRANCE. A. D. 1909 (JULY).

CLERICAL PARTY.

See (in this Volume)
FRANCE: A. D. 1903;
BELGIUM: A. D. 1904;
GERMANY: A. D. 1906-1907.

CLEVELAND, Grover:
Trustee of stock controlling the
Equitable Life Assurance Society.

See (in this Volume)
INSURANCE, LIFE.

{109}

CLEVELAND, Ohio: A. D. 1901-1908.
The Farm Colony Experiment.

See (in this Volume)
CRIME AND CRIMINOLOGY, PROBLEMS OF.

COAL, Wasteful mining and use of.

See (in this Volume)
Conservation of Natural Resources.

COAL AND COKE CARTELS.

See (in this Volume)
COMBINATIONS, INDUSTRIAL (IN GERMANY).

COAL COMBINATION, Alleged Anthracite:
Proceedings of Government against it.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1907-
1909,
AND RAILWAYS: UNITED STATES: A. D. 1906-1909.

COAL MINES EIGHT HOURS ACT.

See (in this Volume)
LABOR PROTECTION: HOURS OF LABOR: ENGLAND.

COAL MINING STRIKES.

See (in this Volume)
LABOR ORGANIZATION.

COBALT SILVER MINES.

See (in this Volume)
CANADA: A. D. 1903, and 1906-1907.

COLLECTIVISM.

See (in this Volume)
SOCIALISM.

COLLEGES.

See (in this Volume)
EDUCATION.

COLOGNE:
Insurance against unemployment.

See (in this Volume)
POVERTY, PROBLEMS OF: UNEMPLOYMENT.

COLOMBIA: A. D. 1898-1902.

Castro, of Venezuela, and the Liberals (Yellows) of Colombia.
How they helped one another.

The following passages are from an article in the *American Review of Reviews* on "South American War Issues," by Edwin Emerson, Jr., who spent some time with the Colombian insurgents in 1902 and acquired a good knowledge of the troubled political conditions in that republic and its near neighbors. It adds something to what is told in Volume VI. of this work concerning the revolt started in 1899 by Rafael Uribe-Uribe, and about its relation to the beginnings of the career of Cipriano Castro, in Venezuela

See, in Volume VI,
COLOMBIA, and VENEZUELA).

"At the time when Spain was losing Cuba, the last Congress of Colombia sat in Bogota. The Liberal party had but one spokesman in the Congress—to wit, Rafael Uribe-Uribe. The government majority championed the cause of Spain. Many of the more ardent Liberals were fighting in the field for 'Cuba Libre.' Uribe-Uribe was the only man in the Congress who spoke for America as against Spain. He was hissed down. Next, the Panama Canal question came up. The French concession was to be extended for ten years. Again Uribe-Uribe spoke for America as against France. The project was voted down. The Congress was dissolved. President San Clemente, on his own motion, extended the French concession. For this he is said to have received one million dollars, cash. Then the revolution broke out, and Uribe-Uribe took the field, in Santander, the richest coffee-growing state of Colombia. He fell upon the town of Cúcuta and took it, only to be driven out again after a disastrous rout at Palo Negro. To make things worse for the rebels, the Bishop of Santander ordered the excommunication of those who would not renounce liberalism or all connection with Liberals. It was a crushing blow, aimed at the wives and

daughters of the fighting insurgents.

"While affairs were thus disturbed in Santander, Cipriano Castro, a Venezuelan exile living in Cúcuta, profited by the occasion to lead a small band of Colombian Liberals into Venezuela. They dashed across the border by night, and fell into Castro's native town, Capachio Viejo. Castro's father and five brothers, with other townsfolk, joined his standard and helped him win his first battle over a small detachment of Venezuelan government troops. Now the number of his adherents grew, especially as he won battle after battle or bought over his rival leaders. After a crushing defeat at Valencia, President Andrade fled the country, and Castro entered Caracas in triumph. His early Colombian adherents got Venezuelan government jobs.

"All went well for a while, especially after the prompt suppression of a counter-revolution, until Castro's sympathies with the Colombian Liberals in the field began to tell on his foreign policy. Uribe-Uribe had been badly beaten in Colombia. He was made welcome by Castro in Venezuela, and was intrusted with the command of a division on the Colombian frontier. The command was recruited from Colombians across the border. At the same time, Castro arbitrarily stopped all navigation on the Zulia and Catacumbo rivers, running from Colombian Cordillera to the Lake of Maracaibo, in Venezuela. This was a death-blow to the coffee industry of the Colombian state of Santander, which has no other outlet to the sea. Cúcuta was ruined. A German house failed for half a million dollars, an American hacienda lost \$200,000, and other foreign merchants suffered in proportion. All commerce in Cúcuta and Maracaibo coffee almost came to a standstill. Then it was that the government forces in Santander, to bring relief to the stricken district, tried to open the closed rivers by a sudden armed invasion into that region. For the sake of appearances, they were led by Rangel Garbiras, a Venezuelan revolutionist. They made for the prosperous town of San Cristobal, but

Uribe-Uribe had managed to gather his corps of insurgents, and beat off the attack in a three days' battle. Some two thousand men fell on both sides. Uribe-Uribe promptly prepared a counter invasion. He was aided in this by Castro, who practically put all Venezuelan forces in the Cordillera at his disposal.

"President Castro, who was furious at so overt an act of war on the part of his old enemies, the Colombian Clericals, furthermore sent another expedition across the Goajira desert to aid his Colombian insurgent friends in that peninsula to take the Colombian port of Rio Hacha. Venezuelan gunboats appeared before Rio Hacha to do their part in the capture. Unfortunately for the Liberal cause, the Venezuelan army in the Goajira was taken unawares while on the march, and was all but annihilated. The gunboats chose to retire without firing a shot. Castro never recovered from this reverse. The expenses of his various armed expeditions ate up all his ready finances. When he could no longer maintain Uribe-Uribe's troops, Uribe cut loose and recrossed the border, to join forces with other insurgent leaders in the interior of Colombia. Uribe's cousin proceeded to Panama, and the civil war there broke out with fresh vigor. By their recent brilliant stroke in the harbor of Panama, the Colombian Liberals have won the command of the sea on the Pacific side. To assist them in doing the same on the Atlantic side, Castro has now supplied them with a torpedo-boat and a small gunboat."

{110}

These last mentioned successes of Uribe-Uribe had no permanent effectiveness, for his surrender, with 1300 men and 10 pieces of artillery, was announced presently as having occurred on the 25th of October, 1902. It seemed unfortunate that he did not succeed in overthrowing the Conservatives, or "Blues," who held the government, since most accounts of their rule

represented it as hopelessly bad; but a change for the better came without revolution after no long time.

The state of civil war was closed by a treaty of peace, signed on board the United States battleship Wisconsin, November 21.

COLUMBIA: A. D. 1901-1906.

Participation in Second and Third International Conferences of American Republics, at Rio de Janeiro.

See (in this Volume)
AMERICAN REPUBLICS.

COLUMBIA: A. D. 1903.

Rejection of Treaty with the United States for the building of the Panama Canal.

Revolt and independence of Panama.

See (in this Volume)
PANAMA CANAL.

COLUMBIA: A. D. 1903-1906.

Feeling toward the United States.

Of the feeling in Colombia toward the United States, consequent on what occurred in Panama, Mr. Barrett, American Minister at Bogota, reported in 1906 as follows:

"The question is continually asked me: What is the attitude of the Colombian Government and people toward Americans and American interests on account of the Panama affair? Without entering upon any political discussion, I wish, in answering this pertinent inquiry, to take advantage of the opportunity to pay a just and frank tribute to Colombia. Speaking in the first place for myself as minister, I can truthfully say that, ever since my arrival here seven months ago, I have been treated with a generous kindness and sincere hospitality that

have made a deep impression on me and increased my respect for Colombians in particular and Latin Americans in general. The United States minister has been extended invitations official and personal, and the United States legation in turn has been continually frequented by leading men of all parties, as if nothing had ever happened to mar the *entente cordiale* of the two countries.

"In the granting of concessions and in the hearing of claims the Government has treated Americans with as much consideration as Europeans. During my stay here, and up to this writing, there has not been one complaint lodged by Americans in this legation of unkind treatment by Colombians due to any political anti-American feeling. In my own travels in various parts of the country, officials and peons alike have everywhere accorded me polite and even gracious attention. To let it be known that I was United States minister has always led to extra courtesies rather than to any lack of them.

"I could not, however, have it understood abroad that there is not still strong feeling against the United States. It does exist, but the passing of years, and generous, fair treatment of Colombia and Colombians by the United States and its citizens, in international relations and friendly social and commercial intercourse, can effect its gradual disappearance. Such feeling does not take the attitude of personal enmity toward Americans. The Colombians, high and low, are too polite and sensible for that. It is a feeling in the minds and hearts, based on high political and patriotic grounds, which, however, with commendable philosophy, recognizes the inevitable and now turns to the future to bring blessings that will counterbalance the losses and sorrows of the past. The very courage and nobility of this attitude of Colombia is one of the chief reasons why I predict for her a magnificent future. Already this policy—if I may call it a policy—is bearing fruit in the development of a greater and more

friendly and sympathetic interest throughout the United States in Colombia, which is destined to lead to a mutually favorable understanding and settlement of all differences in the near future."

COLUMBIA: A. D. 1904.

Arbitration of boundary dispute with Ecuador.

A treaty for the arbitration of boundary questions with Ecuador was concluded November 4, 1904 .

COLUMBIA: A. D. 1905.

Arbitration Treaties with Peru.

See (in this Volume)

PERU: A. D. 1905.

COLUMBIA: A. D. 1905-1906.

A New Era, under President Reyes.

"The New Era in Colombia" is the title of an article in the *American Review of Reviews*, May, 1906, by Francis P. Savinien, writing from the country in question.

"By judicious, if not generous, action," says the writer, "President Rafael Reyes [who became President in the previous year] has succeeded in harmonizing nearly all elements of the population. His administration is neither Liberal nor Conservative. It is Nationalist. Placed in power by Conservatives and sustained by Liberals, his favors to the former preserve order in the center of the country, and his implicit trust in the latter insures peace on the frontiers. He has made General Uribe-Uribe minister to Chile, Argentina, and Brazil, and General Herrera commander along the Venezuelan border, thus bestowing the highest diplomatic and military honors on Liberals. From Conservatives he chose all his ministers (except Dr. Modesto Garees, of the Department of

Public Works), the governor of the capital district, and other high officials for the center of government. His government is like that of Panama, the secession of which made a policy of reconciliation predominant in both countries. ... The Colombian army has become a body of laborers. Troops are converted into sappers and employed in building or improving ways of communication. Idleness, as well as agitation, is beginning to receive general condemnation. It is true that there is little liberty. There is, however, less persecution than formerly. Journals are abject and individuals mute. There is no free speech or press. But there are few persons in prison or exile for political reasons. The policy of the government has become that of abstention rather than restraint."

General Reyes had represented Colombia at the Pan-American Conference in the City of Mexico, in 1902, and had made a most favorable impression on the delegates from the United States. Referring to the occasion long afterwards, Mr. Sylvester Baxter said of him: "It is notable that in that Conference Colombia was represented by General Rafael Reyes, a high type of man—gentleman by birth and education, of scientific attainments, a natural leader, one of the strong characters of Spanish America; a man whose existence makes things seem hopeful when else they might look hopeless; a soldier-statesman in whom many see the potentialities of a second Diaz."

{111}

A similar expression of admiration appears in an interesting special report, entitled "Colombia, a Land of Great Possibilities," made in June, 1906, by the Honorable John Barrett, then American Minister to Colombia, more recently the Director of the International Bureau of American Republics. "Great credit," wrote Mr. Barrett, "is due to General Rafael Reyes, President of this Republic, for his untiring efforts to restore the prosperity of his country to the position it

occupied before the last civil war and the loss of Panama. If he succeeds, he will deserve a place in history like that of President Diaz in Mexico. He has so far effectually stopped revolutions, and, if his life and health are spared, Colombia would seem to be assured of peace at least during his administration."

COLUMBIA: A. D. 1905-1909.

Troubles with Venezuela over the navigation of rivers flowing through both countries.

The arbitrary action begun by the ill-tempered and arrogant Castro, of Venezuela, in 1902, when he stopped navigation on the rivers which flow from Colombia to Lake Maracaibo, in Venezuela, and thus open communication to the sea (see above), was continued or resumed in subsequent years, and was a distressing trouble to his Colombian neighbors.

In July, 1905, the Colombian Government appealed to that of the United States for its good offices in maintaining the principle of free navigation on rivers that are common to neighboring countries. "From the time of the award which decided the boundary dispute between the two countries," said the Colombian Minister to the United States, in a communication to the American Secretary of State, "the policy of Venezuela in matters relating to the transit trade of Colombia and the navigation of the common rivers, has been marked by a conspicuous spirit of hostility. ... Neither logical arguments nor historic precedents, such as those submitted by the Colombian chancellery to the Government of Venezuela for the recognition by the latter of the principle of free trade over the natural waterways placed by God at the disposal of all nations, have availed."

The writer then reviewed at considerable length the arguments with which the Government of the United States had contended in the past with Spain and Great Britain for the free

navigation of the Mississippi and the St. Lawrence, and said in conclusion: "It would be desirable, and I would ask that it be done if this note were favorably received by the Government of the United States, that the American minister at Caracas be appropriately instructed in the sense of declaring on behalf of the commercial interests of the citizens of the United States his desire that the Government of Venezuela make the navigation of the Zulia and Orinoco rivers free, and urging, by persuasion, that the principle be solemnly consecrated in its public treaties. My Government will join in such an action, which comes within its traditional policy in the matter, and will interpose no obstacle or delay to the meeting of an international mixed commission for the framing of regulations concerning the use of the above-named rivers without detriment to the legitimate interests of the countries through which they flow."

To this request the then Acting Secretary of State, Mr. Adee, made a favorable reply, August 5, saying:

"The principle of the free navigation of rivers has been advocated by the United States and maintained in its relations with its neighbors for many years. This government is ready, therefore, to use its good offices in the sense requested, and Mr. Russell has been instructed upon arriving at his new post in Venezuela to take advantage of fitting occasion to express to the minister for foreign affairs the great satisfaction with which the United States would view the adoption and proclamation by Venezuela of the general principle of the free navigation of rivers and fluvial arteries of communication common to neighboring countries.

"It is of course to be understood that in touching upon this matter this government does not seek to intervene or mediate in any way in the relations between Colombia and Venezuela, but is merely interested in the universal recognition of a policy beneficial to the commerce of the world."

In the following December, the endeavor seemed promising; for the American Minister to Colombia was able to report the signing, at Bogota, of a protocol, preparatory to a new treaty of amity, commerce, and navigation, to be concluded at Caracas. Four months later, on the 27th of April, 1906, Minister Russell, at Caracas, announced the arrival there of the Colombian plenipotentiary, General Benjamin Herrera, appointed for the negotiation of the treaty agreed upon, but reported further that the Venezuelan Government had refused to receive him, demanding that somebody else be sent. No settlement of the matter could be obtained while Castro controlled Venezuela. Since his elimination it has been reported that President Gomez, his successor, has annulled his decrees of hostility to Colombian commerce.

COLUMBIA: A. D. 1906-1909.

Efficient but arbitrary Government produces discontent.
Opposition to treaty with Panama and the United States.
Vacation of President Reyes which ends in resignation.
Revolt.
Elections.

While the Government organized under President Reyes was undoubtedly efficient and effective in restoring order and prosperity to the country, it was not satisfactory to the people; and perhaps it speaks well for them that they showed discontent. It was not a representative government, the existing Congress not being an elective body, but a provisional legislature made up by appointment. As admitted in the quotation above from a friendly Colombian writer, the citizens under it were tongue-tied subjects, having no free speech or Press. The political situation and the differing states of feeling produced by it were discussed in April, 1909, by a special correspondent of the New York Evening Post, who wrote from Bogotá:

"It seems to be confessed by the great majority of the people here that the country has not entered on that stage of political development in which the people can govern themselves by parliamentary methods. The history of their nearly one hundred years of independent national life has been that of almost continual civil strife, and of frequent civil wars, which have interrupted and almost destroyed all efforts at self-government; so that the present system of government by executive decrees, to be ratified by an appointed 'Constitutional and Legislative Assembly,' is about the only one that can preserve the peace and direct the country into the line of prosperity and progress.

{112}

"Under this system of government the country has enjoyed almost perfect internal peace during the year. This is the political theory that is most widely accepted at the present time in Colombia. Of course, there are those who do not agree with this theory, which they consider as the natural action of men who are more anxious to preserve order than they are to establish truth and justice, and there are not lacking those who say that in the long run it will be found to be a foolish system.

"It is pointed out that the idea that grievances can be done away with by forbidding men to complain, or that the criticisms can be met by excommunicating the critics, or that changes can be prevented by putting the troublers to silence, is contradicted by the experience of the rest of the world. The kind of effort that is being made in Colombia to prevent the liberty of the press, of public speech, and of personal opinion, is like the effort to prevent the escape of steam by the safety valve, and is very likely to result in an explosion."

The state of public feeling in Colombia became further

complicated, no doubt, when, early in January, 1909, a tripartite treaty was negotiated, with Panama and the United States, for the settlement of questions connected with the secession of Panama in 1903. Panama, in this treaty, agreed to pay Colombia the sum of \$3,500,000, as her share of the Colombian public debt, receiving recognition of her independence in return. The treaty was submitted to the Colombian Congress by President Reyes on the 24th of February, with a special message of recommendation; but public feeling was said to be bitterly against it, for the reasons that no wrongfulness in the transaction was recognized and the indemnity was insufficient. Disturbances which broke out at Bogota and in the provinces about the middle of March were attributed mostly to this cause of discontent. For some reason of discouragement or disgust, the President was reported to have resigned his office on the 13th, but was persuaded to resume it next day.

It was now decided to suspend consideration of the tripartite treaty, until it could be submitted to an elected National Congress, the election for which would be held on the 20th of the coming July. In June, a few weeks before the appointed election, President Reyes made a sudden departure for Europe. Rumors that he had gone because tired of political strife and would not return were contradicted by the Colombian Consul at New York, in a published note which said: "His departure, the causes of which are well known throughout Colombia, was due to the fact that after five years' strenuous labor he desired a rest, and last March to the National Assembly expressed his desire to retire temporarily from the Presidency, but, owing to the opposition of public sentiment and the strong desire of the people to have him remain, he determined not to leave the Presidency until elections to the coming Congress had been made. To this Congress, about to be convened, and in which all parties are represented, President Reyes confides many of the cares of government, left by law under his jurisdiction until Congress should assemble, and withdraws, temporarily only,

from the discharge of his Presidential duties, leaving in his stead General Jorge Holguin, his most intimate friend and former minister of war, who will continue to pursue in all matters the same policy as that adopted by his predecessor. General Reyes during his stay in Europe, whence he has gone, will perfect plans for developing railroad and other industries in Colombia. There is absolute peace and tranquillity in all parts of the country."

But the "absolute peace and tranquillity" of the country was shaken in the first week of July by a revolutionary outbreak at Barranquilla, soon suppressed, and the resignation of President Reyes was received soon thereafter, from abroad. The election of his successor now devolved on the new National Congress, elected by the people on the 20th of July. It gave the office, for the remainder of the unfinished term (which expires August 7, 1910) to Señor Gonzales Valencia, who had been proclaimed by the Barranquilla revolutionists the month before, though he disavowed their movement.

COLONIAL CONFERENCES, British.

See (in this Volume)
BRITISH EMPIRE.

COLONIAL DOMINION, The passing of the age of.

See (in this Volume)
WORLD MOVEMENTS.

COLONIZATION: The colonizable regions of Africa.

See (in this Volume)
AFRICA.

COLORADOS.

See (in this Volume)
PARAGUAY: A. D. 1902.

COLUMBIA UNIVERSITY:
Interchange of Professors with German and Scandinavian
universities.

See (in this Volume)
EDUCATION: INTERNATIONAL INTERCHANGES.

COMBES, Justin Louis Émile:
Head of French Ministry.

See (in this Volume)
FRANCE: A. D. 1902 (April-October;
also 1903, and 1905-1906.

COMBES, Justin Louis Émile:
Vindication under scandalous charges.

See (in this Volume)
FRANCE: A. D. 1904 (JUNE-JULY).

-----COMBINATIONS, INDUSTRIAL AND COMMERCIAL: Start---

COMBINATIONS: AUSTRALIA: A. D. 1909.
Decision of the Federal High Court on the Anti-Trust Law.
Prosecutions by the Government.

"The first case brought under the Federal Anti-Trust Law ended
in June last in a decision of the High Court to the effect
that two important sections of the Act were ultra vires, as
the Constitution only empowered the Commonwealth to regulate
foreign and inter-State trade and gave it no authority to
interfere with trade within a State. The Federal Government is
now instituting proceedings against 27 firms which are alleged

to belong to a coal combine trading with other countries and among the States of the Commonwealth. Each firm has been called upon to answer certain questions under the Act in question."

***Reuter Telegram,
Melbourne, September 27, 1909.***

{113}

COMBINATIONS: Canada: A. D. 1909.

Merger of Dominion Iron, Steel, and Coal Companies.
Cement Combination.

The following is a Press despatch from Halifax, Nova Scotia, November 13, 1909:

"The formation of the Canada Steel Corporation, the proposed \$70,000,000 merger of the Dominion Iron and Steel Company and the Dominion Coal Company, was made possible by the agreement of James Ross of Montreal, president of the Dominion Coal Company, to transfer to a syndicate of Toronto capitalists a portion of his holdings of the coal company stock. Final arrangements regarding the stock transfer will be made here to-day. President Ross owns coal company stock of a par value of \$5,000,000, and, although he does not dispose of all this, he is to transfer enough to give control of the coal company to the Toronto capitalists, who have already acquired a controlling interest in the steel company. The plants of the Dominion Iron and Steel Company and the Dominion Coal Company are in Cape Breton, where they give employment to thousands of men, and where they have caused little fishing villages to spring up into flourishing cities."

Announcement of the completion of the merger was made in December.

COMBINATIONS: CANADA: A. D. 1910.
Anti-Trust Bill in the Dominion Parliament.

A strongly constructed measure for controlling and regulating commercial and industrial combinations, to check restraints of trade and undue enhancement of prices, was brought into the Dominion House of Commons on the 18th of January, 1910, by the Minister of Labor, Mr. Mackenzie King, and its passage was said to be assured. Mr King's explanation of the Bill, as summarized for the Associated Press, was as follows:

"The Bill, Mr. King stated, was not designed to interfere with trade, but to protect the public from the operation of monopolies. The bill provides that if six or more persons show prima facie evidence to a superior court judge that a combine exists, which has unduly enhanced the price of a manufactured article, unduly limited the production of any commodity, or unduly restricted trade in any way, the judge shall order the minister of labor to have an investigation made. This shall be done by a board of three, one member to be appointed by those who complain, one by those complained against, and a chairman by the first two, and if they fail to select the judge who has heard the complaint shall act.

"This board has the full powers of a court to compel the attendance of witnesses and the production of evidence. The board must report to the minister and he must give the report the fullest publicity.

"Two remedies are provided where a combination is reported to exist. The government may withdraw the tariff protection from the articles produced by the combine and bring the manufacturers into competition with the world.

"The other remedy is a provision that if the combine persists in its course after ten days there shall be a fine of \$1,000 a day imposed until the abuse is remedied. There is also

provision that when a patentee makes use of the protection of the patent act to restrict trade or unduly enhance prices his patent may be revoked.

"The act provides for its expeditious and thorough enforcement, and all expenses of investigation are to be borne by the government.

"Where question is raised as to the scope of the investigation, the board shall make it as thorough and complete as public interest requires. Boards are to conduct their investigations in public and the decision of two members shall be the decision of the board. Whenever the minister of labor believes that counsel should aid the investigation, the board may retain the services of a lawyer upon the consent of the minister of justice. Witnesses are to be allowed the same fees and traveling expenses allowed at the present in civil suits. With the consent of the minister of labor a board may employ experts to examine books and to report upon technical questions."

COMBINATIONS: GERMANY:

Corporation Reform as the Germans have handled it.

"Thirty years ago the German people went through corporation experiences much like our own. There, as here, the corporation, as originally designed, was a mere shell. There, as here, under the shelter of that shell, the property of the country was being transferred from the German people at large, even the little they had, to the few. There, thirty years ago, as here now, great corporate scandals were exposed. And there, as here, the human nature that is everywhere behind civilization eventually began to recoil. It began there before it began here, only because conditions reached a climax there earlier than here, and because we as a people were too prosperous and too busy to look even a little way beneath the surface of things.

"But when the work of reform did come there, it was a genuine reform. It did not content itself with indiscriminate denunciation, or with mere lawsuits. Nor did it die out, leaving the door still open to every character of corporation the cunning of men might conceive. Before a corporation can be organized in that country, it must prove, as in a court proceeding, its rightful title to a corporate existence. In the same way it must establish the amount and the character of the capitalization it is allowed to put out. When property is turned in, its value must be judicially ascertained. Upon officers and directors is not conferred supreme power; in the German corporation the shareholders' meeting is the counterpart of our New England town meetings—a genuine assembly intended to do something more than pass resolutions of approval. And every violation of trust, not merely to the public, but to the shareholder as well, is quickly punished with punishment that smarts. There is in the German corporation no room for one to do, with impunity, in his capacity as a corporation officer or promoter, what if done individually would land him in the penitentiary."

***Judge Peter S. Grosscup,
The Corporation and the People
(The Outlook, January 12, 1907).***

COMBINATIONS: The Cartels.

Industrial combinations, quite as effective as the Trusts of the United States, have been created in Germany on a wholly different plan. The constituent organizations in them, of capital and industry, are simply knitted or tied together by hard and fast agreements, instead of being fused into huge corporations, as the Trusts are. For the kind of covenant which unites them a military term has been borrowed, and they are called Cartels. The difference between the Cartel and the Trust is described by a Scottish writer, D. H. Macgregor, in his work on Industrial Combinations, as follows:

"The Cartel is an agreement for a time, the Trust is a permanent structure; the former is therefore a factor in industry full of speculative possibilities, both as regards its actual operation, and because the 'residual' competition of parties who break away at the end of the period is considerably to be feared. ... The principle of the pure Cartel is compensatory action. It is an organization in which certain producers deal with themselves, and exist for that purpose in a double relation; they are producers of goods, and purchasers of their own produce. What they stand to lose in one aspect they stand to gain in the other. ...

"The operation is broadly as follows. The members of the Cartel, meeting as producers in general assembly, determine a price for their product which covers cost of production, being in fact practically a competitive price. This is the base or normal price (*Richtpreis*). Thus they assure themselves, in this capacity, of adequate remuneration. They then sell to the Syndicate, that is to themselves as members of the Syndicate, for what is called the 'taking over' or 'accounting' price (*Verrechnungspreis*) which is usually on the average higher than the base price, so that they have now created for themselves as producers a 'Cartel advantage.' The Syndicate then resells to the consumer, for a price which will be as high as it can get, but which varies with the competition to be met in different parts of the market; this price (*Verkaufspreis*) may not in some cases be so high as the taking-over price, or may not exceed it by more than the margin necessary to cover the Syndicate's expenses of management. ... It is the Syndicate which figures in the public eye; and while it itself offers no sign of monopoly profit it shelters the companies which gain by its handling of their goods. It conceals monopoly dividends."

D. H. Macgregor,
Industrial Combination
(G. Bell & Sons, London, 1906).

COMBINATIONS: The Coal and Coke Cartels.
Their influence.

An elaborate history and description of the "Monopolistic Combinations in the German Coal Industry," by Francis Walker, was published for the American Economic Association in 1904. These are treated as representative, because, says Mr. Walker, "the most important and fundamental of all German castellated industries" are those in mining and metallurgy. He traces their development from a beginning in 1858, when an association of the mining interests of the mining district of Dortmund was founded. In part, his conclusions as to the effect of the coal cartels are as follows:

"The German coal cartels have not had an injurious influence, in general, on the production of coal. More particularly they cannot be accused, justly, of unduly limiting production among themselves. Nor have they attempted to accomplish the same end by crushing outside competition, by unfair methods. It would be preposterous to say that they have hindered technical progress. The cost of production, on the other hand, probably has been somewhat increased by the preservation of weak and costly mines through participation in the cartels. In regard to prices, the policy of the coal cartels, on the whole, has been moderate, taking circumstances into consideration, while the policy of the coke cartel may be fairly pronounced extortionate. The prices of coal have been more stable than they would have been under free competition; during the *hausse* they were not screwed up so high as they might easily have been, but, on the other hand, they have not declined so quickly with the *baisse*. The like may be said of the coke prices, but, at the same time, they were exorbitant considered from the point of view of costs and profits. ... The

déroute of the iron industry was not due to the coal or coke cartels in any important degree, i. e., even with low prices, disaster to the iron industry would have been inevitable. No other industry was affected so much as iron, and it is at least very questionable whether the cartels in general (excluding the coal cartels in particular) are to be blamed for the crisis. ... That they are to be blamed for the ill-judged over-development of certain industries, which was apparently the real cause of the crisis, does not seem to be a just conclusion. On the other hand, the cartels may be accused, with more probability of truth, of retarding the convalescence of German industry by not reducing prices, and if this is true, the coal and coke cartels are specially to blame."

F. Walker,
Monopolistic Combinations in the German Coal Industry
(American Economic Association), 1904.

COMBINATIONS: Growing magnitude of companies.
Industrial concentration.

"The tendency to industrial concentration is shown by the returns of public companies, which point to the growing domination of large undertakings. Of 4,749 registered public companies in 1895, 13.6 per cent. had a share capital not exceeding £5,000, but in 1906, of 5,000 such companies, only 9.6 per cent. had a capital of that amount; the companies with a capital of from £5,000 to £12,500 decreased from 14.0 to 10.4 per cent., and those with a capital of from £12,500 to £25,000 decreased from 16.9 to 14.2 per cent. On the other hand the companies with a capital of from £25,000 to £50,000 increased from 20.7 to 21.3 percent.; those with a capital of from £50,000 to £250,000 increased from 28.5 to 35.0 per cent.; those with a capital of from £250,000 to £500,000 increased from 3.4 to 5.4 per cent., and those with a capital exceeding £500,000 increased from 2.9 to 4.1 per cent. In 1896

there were only two companies with a capital exceeding five millions; in 1906 there were nine such companies, and their combined capital was over seventy millions, having been more than doubled since 1896. In spite of this tendency towards the concentration of capital and the multiplication of large undertakings, however, Germany is still an interesting illustration of an industrial country which has not yet entirely gone over to the factory system of production. The handicrafts, the characteristic feature of which is the small, independent master-workman, surrounded by his handful of journeymen and apprentices, contend tenaciously, yet unfortunately with only partial success, against the on-coming tide of 'great capitalism' (private joint stock, and cooperative), and the house industries continue to afford employment to a multitude of workers of both sexes, estimated at half a million."

***William H. Dawson,
The Evolution of Modern Germany,
pages 59-60 (Unwin, London; Scribner's, New York, 1909).***

{115}

"Among the home interests of the country nothing loomed up so large last year [1904] as the subject of industrial combinations. The process of consolidating industries and banks into powerful organizations again made gigantic strides; and the public mind, dazed and disquieted, is wondering what will be its final outcome. All the largest steel manufacturers have united in an association that shall have complete control of the steel and iron products of the country; and it is already effecting agreements with manufacturers of other countries for parceling out the world's markets. At the same time the Coal Syndicate was reorganized to include all the independent producers of the West; and in connection with it, a great shipping and selling company was formed for the purpose of controlling the retail trade and eliminating

recalcitrant dealers. These steel and coal combinations are working in complete harmony, and no independent manufacturer can exist against their will.

"In that great industrial region many large iron companies had come into possession of coal mines. In order to induce these to put their mines into the Syndicate, they were given the right to produce, over and above their allotments, all the coal that they might need for their own furnaces. A new impetus was thus given to the process of consolidation. Strong coal companies hastened to absorb iron establishments, in order to earn larger profits by consuming their own coal in indefinite quantities. Furthermore, as the allotments were fixed absolutely for a long period, the strongest companies proceeded to buy weaker, less economically worked collieries, in order to shut them down and produce their allotments elsewhere at lower cost. This movement assumed large proportions. Miners by the thousand had to betake themselves to other parts of the country, and entire communities were threatened with depopulation. Industrial towns held indignation meetings, to protest, and to demand the nationalization of the mines; and excited operatives are still holding conferences to discuss a general strike. The Government has sent a commission to inquire into the movement; and the Minister of Commerce has urged the coal magnates to proceed as mildly as possible.

"This powerful concentric movement of industries has taken a strong hold upon the thoughts of people and Government alike. The public is deeply concerned at the growth of private monopolies, and many persons who had hitherto favored letting economic development take its own course now call for drastic measures of prevention and repression. Country squires of the most conservative type advocate the nationalization of all coal deposits; and it is already asserted that a majority of the Prussian Diet would vote for such a measure. This convergence of the views of extreme Conservatism and radical

Socialism is certainly one of the oddest results of the movement under discussion,—and one of the most instructive. The natural trend of events is unquestionably in the direction of some form of socialism. The Social Democracy clearly perceives this, and so hails every industrial consolidation as but another milestone on the way to state collectivism."

W. C. Dreher,
Recent Events in Germany
(Atlantic Monthly, March, 1905).

COMBINATIONS: International:
Of Transatlantic Shipping Companies.
Agreements with the British Government.

Announcement was made in October, 1902, of the incorporation on the 1st of that month, under a New Jersey charter, of the International Mercantile Marine Company, with a capital of \$120,000,000, and an issue of 4½ per cent. bonds to the amount of \$75,000,000. The combination included the American, the Red Star, the White, the Atlantic Transport, the Leyland and the Dominion lines. Both American and British capitalists were represented in the board of directors, the former in the majority. Several partners in the firm of J. Pierpont Morgan & Company were included, and Mr. Morgan was understood to be the architect of the combination; but he did not appear personally in its organization.

The first step towards such a shipping combination had been taken sixteen years before, when the British Inman steamship line was taken over by the International Navigation Company, made up of Americans, at the head of whom was Mr. Clement A. Griscom, of Philadelphia. "The British Government promptly withdrew the liberal subsidy which it had been paying to the Inman liners; but Mr. Griscom and his comrades brought the **New York** and **Paris** beneath the Stars and Stripes, built the St. Louis and **St. Paul**, secured a

subsidy from the United States and gave the first-class British lines a most formidable competitor. Indeed, commercial rivalry in high grade ships on the North Atlantic soon became too keen to permit of reasonable dividends and Mr. Griscom found British ship-owners in a responsive mood when he broached anew the great idea of an international combination.

"This union was made all the easier by the fact that meanwhile another important British steamship concern, the Leyland line, had been acquired by Mr. J. Pierpont Morgan in the spring of 1901. This line, itself the fruit of several consolidations, controlled the largest British tonnage in the North Atlantic trade. It owned no fast mail ships, no greyhounds. But it did possess forty or fifty good, useful steamships of moderate speed, many of them of large tonnage, and fit for passengers as well as freight. The main Leyland service lay between Boston or New York on this side, and Liverpool or London on the other, and the business of the company had been so profitable for a long term of years that its shares were quoted at a handsome premium. Mr. Morgan paid a generous price for his maritime investment. It is said that he gave £14 10s. for each £10 share, or a bonus of 45 per cent. But amazement at Mr. Morgan's 'liberality' ceased when the next stage in the great, far-sighted negotiation was unfolded.

"This was the dramatic uniting of the Leyland line with the American and Red Star lines of the International Navigation Company, and the Atlantic Transport line, another British steam fleet owned by American capital. Later still it transpired that the famous White Star line of fast mail, passenger, and freight ships and the smaller but excellent Dominion line were embraced in the huge consolidation. The White Star was one of the two lines—the Cunard was the other—which performed the British mail service between Queenstown and New York. Its fleet included the great liners *Oceanic* and *Celtic*, the swift *Teutonic* and *Majestic*, and the favorite *Britannic* and

Germanic which had held ocean records in their day, together with a considerable number of large and efficient freighters. The American purchase of the White Star line was long disputed, and when it was finally confirmed, something like consternation seized the British press and people, for the White Star fleet had been regarded as distinctively a British institution as the Bank of England. Its fast ships received not only the mail pay of the post-office, but the subventions of the Admiralty, and were enrolled on the 'merchant cruiser' list."

Winthrop L. Marvin,
The Great Ship "Combine"
(American Review of Reviews, December, 1902).

{116}

The anxieties with which the combination was regarded at first in Great Britain were allayed materially by Mr. G. Balfour, President of the Board of Trade, who made public, in a speech at Sheffield, the terms of an arrangement that had been made by the Government with the Cunard Company, on one hand, and the Combination on the other. The Cunard Company, he said, "pledged themselves to remain in every respect a British company, managed by British directors—the shares not to be transferred to any but British subjects. Their ships were to be officered by British officers. They also engaged to construct two vessels of twenty-four to twenty-five knots which, as well as the entire Cunard fleet, the Admiralty would have the right to charter or purchase at any time on terms fixed in the agreement. The money for the construction of the fast steamers would be advanced to the company at the rate of 2¾ per cent. interest, while in lieu of the present Admiralty subvention—£28,000 a year for the contingent use of three ships—the company would receive £150,000 a year. With Mr. Pierpont Morgan, the head of the Shipping Combination, who had shown the utmost readiness to meet the wishes of His Majesty's

Government, it had been agreed that the British companies in the Combination should remain British, not merely in name but in reality. The majority of their directors were to be British subjects. All their ships now flying the British flag were to continue to fly it, and at least one-half of those hereafter to be built for the Combination would likewise fly British colours, be commanded by British officers, and manned in reasonable proportion by British sailors. On the other hand, the combined companies would continue to be treated, as heretofore, on a footing of equality with other British companies in respect of any services, whether postal, or military, or naval, which His Majesty's Government might require from the British mercantile marine. It had been further stipulated that in the event of the Combination pursuing a policy hostile to our mercantile marine or to British trade, the King's Government should have the right to terminate the agreement."

COMBINATIONS: United States: A. D. 1900.

Definition of the term Industrial Combination formulated at the Census Bureau.

Statistics as collected in 1900.

"The officials of the Census Office, in order to prevent misconceptions and insure consistency in the plan and system of tabulation, formulated the following definition of the term 'industrial combination':

"'For the purpose of the Census, the rule has been adopted to consider no aggregation of mills an industrial combination, unless it consists of a number of formerly independent mills which have been brought together into one company under a charter obtained for that purpose. We therefore exclude from this category many large establishments comprising a number of mills, which have grown up, not by combination with other mills, but by the erection of new plants or the purchase of old ones.' ...

"So far as can be ascertained from the data in the Census Office, the number of these industrial consolidations is 183. They control 2203 separate plants, scattered throughout the United States, 2029 being active and 174 idle during the census year. For 56 of the idle plants no returns could be obtained, making the total number of reporting plants 2147. The 183 combinations extend to almost all lines of industry, producing articles of luxury, materials essential to the upbuilding and growth of the country, and even the very necessities of life. Fully 50 per cent. of these combinations were chartered just prior to or during the census year; and it is noteworthy that the epidemic of industrial consolidation, as far as the so-called monopolies are concerned, has been practically confined to the past four years. It is evident, therefore, that the disease—if it be regarded as such—has spread very rapidly.

"Naturally enough, iron and steel, with 69 combinations, heads the list. The number of reporting plants engaged in this industry is 469, and the capital invested, consisting of land, buildings, machinery, tools and implements, and cash and sundries, is valued at \$348,000,000."

W. R. Merriam,
"Trusts" in the Light of Census Returns
(Atlantic Monthly, March, 1902).

COMBINATIONS: A. D. 1901-1903.

The question of Federal Control and Regulation.

Urgency of President Roosevelt for effective legislation.

In his first Message to Congress, three months after his succession to the Presidency, President Roosevelt expressed his mind frankly and clearly on the then increasing demand in the country for more stringent measures of government, to control and regulate the exercise of the power which great

aggregations of incorporated capital have created in recent times. In part, he then said:

"The tremendous and highly complex industrial development which went on with ever accelerated rapidity during the latter half of the nineteenth century brings us face to face, at the beginning of the twentieth, with very serious social problems. The old laws, and the old customs which had almost the binding force of law, were once quite sufficient to regulate the accumulation and distribution of wealth. Since the industrial changes which have so enormously increased the productive power of mankind, they are no longer sufficient. The growth of cities has gone on beyond comparison faster than the growth of the country, and the up building of the great industrial centers has meant a startling increase, not merely in the aggregate of wealth, but in the number of very large individual, and especially of very large corporate, fortunes. ... The process has aroused much antagonism, a great part of which is wholly without warrant. It is not true that as the rich have grown richer the poor have grown poorer. On the contrary, never before has the average man, the wage-worker, the farmer, the small trader, been so well off as in this country and at the present time. There have been abuses connected with the accumulation of wealth; yet it remains true that a fortune accumulated in legitimate business can be accumulated by the person specially benefited only on condition of conferring immense incidental benefits upon others. ...

{117}

The captains of industry who have driven the railway systems across this continent, who have built up our commerce, who have developed our manufactures, have on the whole done great good to our people. Without them the material development of which we are so justly proud could never have taken place. ... It cannot too often be pointed out that to strike with ignorant violence at the interests of one set of men almost inevitably endangers the interests of all. ... Much of the

legislation directed at the trusts would have been exceedingly mischievous had it not also been entirely ineffective. In accordance with a well-known sociological law, the ignorant or reckless agitator has been the really effective friend of the evils which he has been nominally opposing.

"All this is true; and yet it is also true that there are real and grave evils, one of the chief being over-capitalization because of its many baleful consequences; and a resolute and practical effort must be made to correct these evils. There is a widespread conviction in the minds of the American people that the great corporations known as trusts are in certain of their features and tendencies hurtful to the general welfare. This springs from no spirit of envy or uncharitableness, nor lack of pride in the great industrial achievements that have placed this country at the head of the nations struggling for commercial supremacy. ... It is based upon sincere conviction that combination and concentration should be, not prohibited, but supervised and within reasonable limits controlled; and in my judgment this conviction is right. ... The first essential in determining how to deal with the great industrial combinations is knowledge of the facts—publicity. In the interests of the public, the Government should have the right to inspect and examine the workings of the great corporations engaged in interstate business. ...

"When the Constitution was adopted, at the end of the eighteenth century, no human wisdom could foretell the sweeping changes, alike in industrial and political conditions, which were to take place by the beginning of the twentieth century. At that time it was accepted as a matter of course that the several States were the proper authorities to regulate so far as was then necessary, the comparatively insignificant and strictly localized corporate bodies of the day. The conditions are now wholly different and wholly different action is called for. I believe that a law can be framed which will enable the National Government to exercise

control along the lines above indicated; profiting by the experience gained through the passage and administration of the Interstate-Commerce Act. If, however, the judgment of the Congress is that it lacks the constitutional power to pass such an act, then a constitutional amendment should be submitted to confer the power."

***President's Message to Congress,
December 3, 1901.***

In the following summer, during a tour which he made through some of the New England States the President gave prominence to the same subject in his addresses, emphasizing the necessity of federal legislation to arm the General Government with more effective authority for regulating the action of corporations engaged in interstate trade. In speaking at Providence especially, his remarks caused a great stir of feeling in the country, and seem to have signalled the beginning of an open array of hostile corporate interests against him. On that occasion he spoke partly as follows:

"Those great corporations containing some tendency to monopoly, which we have grown to speak of rather loosely as trusts, are the creatures of the State, and the State not only has the right to control them, but is in duty bound to control them wherever the need for such control is shown. There is clearly a need of supervision—need to exercise the power of regulation on the part of the representatives of the public, wherever, as in our own country at the present time, business corporations become so very strong, both for beneficent work and for work that is not always beneficent. It is idle to say that there is no need for such supervision. A sufficient warrant for it is to be found over and over again in any of the various evils resulting from the present system, or, rather, lack of system.

"There is in our country a peculiar difficulty in the way of

exercising such supervision and control because of the peculiar division of governmental power. When the industrial conditions were simple, very little control was needed, and no trouble was caused by the doubt as to where power was lodged under the constitution. Now the conditions are complicated, and we find it difficult to frame national legislation which shall be adequate, while as a matter of practical experience State action has proved entirely insufficient, and in all human probability cannot or will not be made sufficient, to meet the needs of the case. Some of our States have excellent laws—laws which it would be well indeed to have enacted by the national legislature. But the wide differences in these laws, even between adjacent States, and the uncertainty of the power of enforcement result practically in altogether insufficient control.

"I believe that the nation must assume this power of control by legislation, and if it becomes evident that the constitution will not permit needed legislation, then by constitutional amendment. The immediate need of dealing with trusts is to place them under the real, not nominal, control of some sovereign to which, as its creature, the trusts shall owe allegiance, and in whose courts the sovereign's orders may with certainty be enforced. That is not the case with the ordinary so-called 'trust' to-day, for the trust is a large State corporation, generally doing business in other States also, and often with a tendency to monopoly. Such a trust is an artificial creature not wholly responsible to or controllable by any legislature, nor wholly subject to the jurisdiction of any one court. Some governmental sovereign must be given full power over these artificial and very powerful corporate beings. In my judgment this sovereign must be the national government. When it has been given full power, then this full power can be used to control any evil influence, exactly as the government is now using the power conferred upon it under the Sherman Anti-Trust law.

"Even when the full power has been conferred it would be highly undesirable to attempt too much or to begin by stringent legislation. The mechanism of modern business is as delicate and complicated as it is vast, and nothing would be more productive of evil to all of us, and especially to those least well off in this world's goods, than ignorant meddling with this mechanism, and, above all, if the meddling was done in a spirit of class or sectional rancor.

{118}

It is desirable that this power should be possessed by the nation, but it is quite as desirable that the power should be exercised with moderation and self-restraint. The first exercise of that power should be the securing of publicity among all great corporations doing an interstate business. The publicity, though non-inquisitorial, should be real and thorough as to all important facts with which the public has concern. The full light of day is a great discourager of evil. Such publicity would by itself tend to cure the evils of which there is just complaint, and where the alleged evils are imaginary, it would tend to show that such is the case. When publicity is attained it would then be possible to see what further should be done in the way of regulation.

"Above all, it behooves us to remember not only that we ought to try to do what we can, but that our success in doing it depends very much upon our neither attempting nor expecting the impossible. ...

"I see no promise of a complete solution for all the problems we group together when we speak of the trust question. But we can make a beginning in solving these problems, and a good beginning if only we approach the subject with a sufficiency of resolution, of honesty and of that hard common sense which is one of the most valuable, and, unfortunately, not one of the most common, assets in the equipment of any people. I think the national administration has shown its firm intention to enforce the laws as they now stand on the statute books

without regard to persons, and I think that good has come from this enforcement. I think, furthermore, that additional legislation should be had, and can be had, which will enable us to accomplish much more than has been accomplished along these same lines."

***Theodore Roosevelt,
Address at Providence, August 23, 1902
(New York Tribune, August 24, 1902).***

In his next Message to Congress, President Roosevelt renewed his urgency for the needed legislation. "No more important subject can come before the Congress," he said, "than this of the regulation of interstate business. This country cannot afford to sit supine on the plea that under our peculiar system of government we are helpless in the presence of the new conditions, and unable to grapple with them or to cut out whatever of evil has arisen in connection with them. The power of the Congress to regulate interstate commerce is an absolute and unqualified grant, and without limitations other than those prescribed by the Constitution. The Congress has constitutional authority to make all laws necessary and proper for executing this power, and I am satisfied that this power has not been exhausted by any legislation now on the statute books."

***President's Message to Congress,
December 2, 1902.***

A year later, when the President addressed his Message to the next Congress, at the opening of its first session, he was able to say:

"The country is especially to be congratulated on what has been accomplished in the direction of providing for the exercise of supervision over the great corporations and combinations of corporations engaged in interstate commerce.

The Congress has created the Department of Commerce and Labor, including the Bureau of Corporations, with for the first time authority to secure proper publicity of such proceedings of these great corporations as the public has the right to know. It has provided for the expediting of suits for the enforcement of the Federal anti-trust law; and by another law it has secured equal treatment to all producers in the transportation of their goods, thus taking a long stride forward in making effective the work of the Interstate Commerce Commission."

***President's Message to Congress,
December 1, 1903.***

COMBINATIONS: A. D. 1901-1906.

A summary of governmental action against corporate wrongdoers, by Elihu Root.

Legislation.

Litigation.

Court decisions.

"The act creating the bureau of corporations, the act expediting the trial of trust cases, the anti-rebate act, the act for the regulation of railroad rates, have made possible redress which was impossible before. Under the direction of two successive Attorney Generals of the first order of ability, sincerity and devotion, in hundreds of courts, incessant warfare has been waged and is being waged under the federal laws against corporate wrongdoers.

"The Northern Securities Company, which sought to combine and prevent competition between two great continental railroads, has been forced to dissolve by the judgment of the Supreme Court of the United States. The methods of the Beef Trust in combining to suppress competition in the purchase of livestock and the sale of meat have been tried and condemned, and the trust has been placed under injunction to abandon these

practices by judgment of the Supreme Court. The combination of paper manufacturers in the territory from Chicago to the Rocky Mountains has been dissolved by the judgment of the Supreme Court, and the combination has been abandoned, and the price of white paper in that territory has gone down 30 per cent. The Retail Grocers' Association in this country has been dissolved by decree of the court. The elevator combination in the West has been dissolved in like manner. The salt combination west of the Rocky Mountains has been dissolved by decree of the court. The Wholesale Grocers' Association in the South, the meat combination and the lumber combination in the West, the combination of railroads entering the city of St. Louis to suppress competition between the bridges and ferries reaching that city; the Drug Trust, which suppresses competition all over the country, are being vigorously pressed in suits brought by the federal government for their dissolution. The salt combination has been indicted and convicted and fined for failing to obey the judgment of dissolution. The Beef Trust has been indicted for failing to obey the injunction against them, and have been saved so far only by a decision that they had secured temporary immunity by giving evidence against themselves. One branch of the Tobacco Trust is facing an indictment of its corporations and their officers in the federal court in New York, and the other branches are undergoing investigation. The lumber combination in Oklahoma is under indictment. The Fertilizer Trust, a combination of thirty-one corporations and twenty-five individuals to support and fix prices, has been indicted, the indictments have been sustained by the courts, and the combination has been dissolved. The ice combination of the District of Columbia is facing criminal trial. Special counsel are investigating the coal combination, and special counsel are investigating the Standard Oil combination.

{119}

"Three of the causes won in the Supreme Court of the United

States have furnished decisions of the utmost importance. In the Tobacco Trust case of *Hale v. Henkel*, the Supreme Court denied the claim of the trust corporations to be exempt under the Constitution from furnishing testimony against themselves by the production of their books and papers before a federal grand jury. Thus, the protection of secrecy for corporate wrongdoing is beaten down. In the Northern Securities case the Supreme Court held that a wrong accomplished by means of incorporating in accordance with the express provision of the New Jersey statute was just as much a violation of federal law as if there had been no incorporation. Thus, the state rights defence of protection from favoring state statutes is beaten down. In the Beef Trust case the Supreme Court held that, although the business of manufacture was carried on within the limits of a single state, yet the purchase of the raw material in different states and the sale of the finished product in different states brought the business within the interstate commerce clause of the Constitution and gave the federal government authority over it. Thus, the defence that the state alone can deal with manufacturing corporations, however widespread their business, is beaten down.

"The obstacles to the enforcement of the federal anti-trust act thus removed are obstacles which stood in the way of all proceedings, and they had to be cleared away before any proceedings of the same character against the same classes of corporations could be successfully maintained. They have been removed, not by newspaper headlines and denunciation, but by skill, ability, and energy of the highest order.

"After the Elkins anti-rebate law was passed by Congress in 1903 it was supposed, and the Interstate Commerce Commission reported, that the railroads had substantially abandoned giving rebates. Their good resolutions do not seem, however, to have lasted. The struggle for business enabled the shippers soon to secure a renewal of rebates, or, by ingenious devices advantages equivalent to rebates. Thereupon the Department of

Justice began active prosecutions for the enforcement of the law. Fifty-three indictments have been found against hundreds of defendants and covering many hundreds of transactions. There have been fourteen criminal convictions. Fourteen individuals have been fined, to the gross amount of \$66,125. Nine corporations have been fined to the amount of \$253,000. Thirty-five indictments are ready for trial in their regular order upon the court calendar. The original statute provided only for punishment by fine. Last winter it was amended by providing for punishment by imprisonment, and, if the lines imposed under the original law shall not prove to have stopped the practice, we shall see whether fear of the penitentiary under the amendment will not do so.

"Under this statute also it was necessary to sweep away defences which stood as barriers to general prosecution, and in the New York, New Haven & Hartford Railroad case, decided by the Supreme Court February 19 of this year, and the Milwaukee Refrigerator Transit case, decided in the Seventh Circuit on May 31 of this year, the courts have held that the substance and not the form is to control in the application of the statute, and that, however the transaction may be disguised, an unlawful discrimination can be reached and punished. The way is therefore cleared for all other prosecutions.

"The Railroad Rates act, which was the subject of such excited discussion during the last session of Congress, has already justified itself. Since the passage of the act, less than five months ago, there have been more voluntary reductions of rates by our railroads than during the entire nineteen years of the previous life of the Interstate Commerce Commission. On the single day of the 29th of August, 1906, two days before the act went into force, over five thousand notices of voluntary reduction of rates were filed with the Interstate Commerce Commission by the railroads of the United States."

***Elihu Root,
Speech at Utica, November 1, 1906
(New York Tribune, November 2, 1906).***

COMBINATIONS: A. D. 1903-1906.

The "Beef Trust" suits and investigations.

The United States v. Swift & Co. et al.

Commissioner Garfield's investigation.

Indictment of Armour & Co. and others.

Immunity decision of Judge Humphrey.

Fines for receiving rebates from railways.

In the case known as that of the United States v. Swift & Company et al., the defendants were seven corporations, one copartnership, and twenty-three other persons (commonly styled "the Beef Trust"), charged with violations of the anti-trust law, by combination in restraint of the trade which they conducted, namely, the buying of live stock, slaughtering the same in different states and selling the meats thus produced. It was affirmed by the Government that they, together, controlled about sixty per cent. of the total Volume of that trade in the country, and that if the alleged combination among them did not exist they "would be and remain in competition with each other"; but that by such "unlawful combination and conspiracy" they were directing and requiring their agents

(1) not to bid against one another in the live-stock markets of the different States;

(2) to bid up prices for a few days so as to induce cattlemen to send their stock to the stock-yards;

(3) to fix prices at which they would sell, and hence, when necessary, to restrict shipments of meat;

(4) to establish a uniform rule of credit to dealers and to keep a blacklist;

(5) to make uniform and improper charges for cartage; and

(6) to obtain less than lawful rates from the railways to the exclusion of all competitors.

The case, on motion for injunction, was tried first in the Circuit Court of the Northern District of Illinois, Judge Peter S. Grosscup. The Opinion of the Court, given April 18, 1903, held that, under the definition of the term by the Supreme Court in the Trans-Missouri Freight Association Case (see, in this Volume, Railways: United States: A. D. 1890-1902), "there can be no doubt that the agreement of the defendants to refrain from bidding against each other in the purchase of cattle is combination in restraint of trade: so also their agreement to bid up prices to stimulate shipments, intending to cease from bidding when the shipments have arrived.

{120}

The same result," continued the judge, "follows when we turn to the combination of defendants to fix prices upon and restrict the quantities of meat shipped to their agents or their customers. Such agreements can be nothing less than restriction upon competition, and, therefore, combination in restraint of trade; and thus viewed, the petition, as an entirety, makes out a case under the Sherman Act. ... The demurrer is overruled, and the motion for preliminary injunction granted."

On appeal, the case went to the Supreme Court, where it was argued in January, 1905, and decided on the 30th of the same month. The Opinion of the Court, rendered by Justice Holmes, with no dissent, affirmed, but modified, the decree of injunction issued by Judge Grosscup; the aim of the modifications being to give more definiteness to the decree. "The defendants," said Justice Holmes, for example, "cannot be ordered to compete, but they properly can be forbidden to give directions or to make agreements not to compete. The injunction follows the charge. No objection was made on the ground that it is not confined to the places specified in the bill. It seems to us, however, that it ought to set forth more exactly the transactions in which such directions and

agreements are forbidden. The trade in fresh meat referred to should be defined somewhat as it is in the bill, and the sales of stock should be confined to sales of stock at the stock-yards named, which stock is sent from other States to the stock-yards for sale or is bought at those yards for transport to another State."

***Federal Anti-Trust Decisions, 1900-1906,
Volume 2, prepared and edited by James A. Finch,
by direction of the Attorney-General
(Washington: Government Printing Office, 1907).***

COMBINATIONS:

Investigation by the Commissioner of Corporations.

On the 7th of March, 1904, the House of Representatives adopted a resolution requesting the Secretary of Commerce and Labor to "investigate the causes of the low prices of beef cattle in the United States since July 1st, 1903, and the unusually large margins between the prices of beef cattle and the selling prices of fresh beef, and whether the said conditions have resulted in whole or in part from any contract, combination, in the form of trust or otherwise, or conspiracy, in restraint of commerce among the several States and Territories or with foreign countries; also, whether said prices have been controlled in whole or in part by any corporation, joint stock company, or corporate combination engaged in commerce among the several States or with foreign nations; and, if so, to investigate the organization, capitalization, profits, conduct and management of the business of such corporations, companies, and corporate combinations, and to make early report of his findings according to law."

In compliance with this resolution, the Commissioner of Corporations, Mr. James R. Garfield, went to Chicago in April and began the requested investigation, which was prosecuted

throughout most of the ensuing year. "The inquiries of the Bureau of Corporations were naturally concerned chiefly with the six great concerns which, by the injunction of 1902, were grouped together, and which were popularly considered as the Beef Trust. The 'Big Six,' in the approximate order of their magnitude as indicated by the number of animals slaughtered, are: Swift & Company, with seven large plants; Armour & Company, and the Armour Packing Company, which have the same stockholders, and which together operate five packing-houses; the National Packing Company, with eight comparatively large plants and two or three minor ones; Morris & Company, operating three plants; the Cudahy Packing Company, with three plants in the middle West and a minor one at Los Angeles; and the Schwarzschild & Sulzberger Company, operating three plants. Nearly all of the important packing-houses of these six companies are situated in the eight great live-stock markets,—Chicago, Kansas City, South Omaha, East St. Louis, South St. Joseph, Fort Worth, South St. Paul, and Sioux City."

As for the National Packing Company, it grew, apparently, out of an abortive scheme for the consolidation of the other five concerns which was rumored in 1902. "Shortly prior to the formation of this company the Armour interests had acquired control of the G. H. Hammond Company and the Omaha Packing Company, the Swifts had secured the Anglo-American Provision Company and the Fowler Packing Association, and the Morris family had become dominant in the United Dressed Beef Company of New York. The National Packing Company, organized in 1903, took over the control of the various corporations thus previously acquired by the three packing interests named, and has since absorbed two or three other smaller concerns. The directorate of the National Company consists almost wholly of representatives of the Armour, Swift, and Morris companies. Aside from this community of interest, the bureau finds that there is no important inter-ownership of securities among the six leading packing companies."

"The 'Big Six' are by no means the only slaughterers of cattle in the United States. They, with a few minor affiliated concerns, killed 5,521,697 cattle in 1903, while, from the best available data, the Bureau of Corporations computes the total slaughter of the country at about 12,500,000. But the proportion of 45 per cent. thus indicated by no means measures the full economic significance of the six great packers. Their importance lies in the fact that they are the only concerns which do an extensive business in shipping dressed beef. ... The 'Big-Six' kill about 98 percent, of the cattle slaughtered at the eight leading Western markets above named."

***Edward Dana Durand,
The Beef Industry and the Government Investigation
(American Review of Reviews, April, 1905).***

Early in March, 1905, just before the adjournment of Congress, his report of it, in part, was transmitted by the President to Congress. The following summary of important facts set forth in the extended report was published in ***The Outlook*** of the following week:

"The report as sent to Congress deals with the prices of cattle and dressed beef, the margins between such prices, and the organization, conduct, and profits of the corporations engaged in the beef-packing business. In some respects the conclusions presented are distinctly favorable to the packers; in others, quite as unfavorable. It appears that the profits of the six great companies whose operations were covered by the investigation were very much smaller during the years 1902 and 1903 than the public had been led to suppose,—that, in fact, for a part of that period the business was conducted at an actual loss.

{121}

The percentage of profit on the gross Volume of business during the years 1902-1904 was comparatively low. That realized by Swift & Company is placed at two per cent. This, however,

we repeat, is the percentage on total sales, which is a very different thing from profit on the investment. It is a well-known fact that the actual capitalization of the packing companies is very much less than the annual Volume of business. From statements made by the six companies to the Bureau of Corporations it appears that their gross business is not less than \$700,000,000 per year, while their nominal capitalization is only \$88,000,000, exclusive of \$5,000,000 bonds of Swift & Company. On the other hand, it is practically impossible, as the report shows, to determine accurately just what proportion of the total investment represents plants and properties concerned with the beef industry exclusively. Still, it is obvious that Swift & Company's net profit of two per cent. on their sales would amount to very much more than two per cent, on their investment. The report makes an approximate estimate of twelve per cent.

"On one other count the report is favorable to the companies. It declares that they are apparently not overcapitalized. This conclusion, it is true, is robbed of some of its exculpatory force when the private-car system is taken into consideration. It is shown that the companies' profits on refrigerator cars, derived from mileage paid by the railroads, has ranged from 14 to 22 per cent. The report gives clear and definite information as to the trust's field of operations. It shows that the six companies slaughtered in 1903 only about 45 per cent. of all the cattle killed in that year, but that these companies slaughter nearly 98 per cent. of all the cattle killed in the leading Western packing centers, and that they control a large percentage of the trade in beef in many large cities—75 per cent. in New York, 85 per cent. in Boston, 95 per cent. in Providence, and in a number of other important cities from 50 to 90 per cent. In all these centers of population the consumer is now paying more for meats than ever before, while the cattle-grower on the Western plains is receiving less for his beeves. These two facts are doubtless capable of explanation, but the published results of the

investigation ordered by Congress throw little light on the matter."

COMBINATIONS:

Case of the United States v. Armour & Company et al.

Soon after the publication of the report of the Bureau of Corporations a special Federal Grand Jury at Chicago began the investigation of charges brought by the Attorney-General of the United States against five of the corporations engaged in the meat-packing business and seventeen of their officials. An indictment was returned by the Grand Jury on the 1st of July, 1905, charging, in a number of counts, persistent violation of the injunction laid on these corporations and their officials by Judge Grosscup with affirmation by the Supreme Court, and continued combination in restraint of trade,—by requiring their purchasing agents to refrain from bidding in good faith against one another; by agreements that fixed the prices of beef; by restricting sales to maintain prices, etc. On the trial of the indictment, which was begun on the 29th of January and concluded on the 21st of March, 1906, the defendants claimed immunity, under that clause of the Fifth Amendment to the Constitution of the United States which reads:

"Nor shall any person be compelled in any criminal case to be a witness against himself."

Their claim for immunity under this constitutional prescription was founded on the fact that "upon the lawful requirement of the Commissioner of Corporations" they "had furnished evidence, documentary and otherwise, of and concerning the matters charged in the indictment"; and that a section of the Act creating the Department of Commerce and Labor provides that persons testifying or producing evidence before the Commissioner shall be entitled to the immunities conferred by the Act in relation to testimony before the

Interstate Commerce Commission of February 11, 1893. Judge Humphrey, of the United States District Court, before whom the case was tried, sustained the plea in his charge to the jury, so far as concerned the individual defendants, saying: "Under the law of this case, the immunity pleas filed by the defendants will be sustained as to the individual defendants, the natural persons, and denied as to the corporations, the artificial persons, and your verdict will be in favor of the defendants as to the individuals, and in favor of the Government as to the corporations."

COMBINATIONS:

Fines for accepting rebates.

The same Federal Grand Jury at Chicago which returned the indictments dealt within the case mentioned above brought another indictment against four men in the employ of one of the meat-packing companies, who were accused of unlawfully combining and agreeing to solicit rebates for their corporation from the Michigan Central, the Chicago, Rock Island and Pacific, the Grand Trunk Western, the Lehigh Valley, the Boston and Maine, and the Mobile and Ohio railroads. It was charged that the defendants conspired with one another in presenting to the railroad companies pretended claims for damages which were in fact claims for rebates. They were brought for trial before Judge Humphrey in September, 1905, and pleaded guilty. The Judge then pronounced sentence on them as follows:

"Punishment for this offense as fixed by Congress has a wide range, giving the Court unusual latitude, ranging from a nominal fine without imprisonment to a heavy fine and two years' imprisonment, all in the discretion of the Court. I am disposed to consider this case with reasonable moderation. The sentence of the Court in the case of the defendant Weil will be a fine of \$10,000 and costs, and commitment to the county jail until the fine is paid, and in the cases of Todd,

Skipworth, and Cusey a fine of \$5,000 and costs, with the same provision in regard to payment."

COMBINATIONS: A. D. 1904-1909.

The Standard Oil Company.

Federal Government investigation of its methods of business.

Criminal prosecutions for violation of the law against rebates.

The \$29,000,000 fine and its annulment.

Acquittal of the Company.

After a dozen years or more of slight oil production in Kansas, that state became quite suddenly, in 1904, one of the important sources of petroleum supply. The Standard Oil Company had taken care to be prepared for whatever development might occur, and had organized its operations in this western field under the name of the Prairie Oil and Gas Company, of Kansas.

{122}

Its refineries were ready to furnish a market to the Kansas producers of crude oil, and they had no other. Independent enterprises in oil refining were made quite impossible, and the Prairie Oil and Gas Company was complete master of the situation. The Kansas oil producers were soon writhing under its dictation of prices and rules of dealing, as the Pennsylvanians had been years before, and the Kansas Legislature came promptly to their rescue. In the winter of 1904-1905 it passed five vigorous acts; authorizing the establishment of a State oil refinery; making pipe lines common carriers within the State; placing them under the jurisdiction of the State board of railroad commissioners; fixing maximum rates for the transportation of oil by freight or pipe line; and, finally, prohibiting discrimination between localities in the sale of any commodities. Furthermore, the anti-trust laws of the State were brought into action against the Standard Oil Company and the railroads accused of giving it special rates and privileges.

At the same time, the Kansas situation was brought to the attention of Congress and the Federal Executive. On motion of a Kansas representative, the lower House of Congress, in February, adopted a resolution calling on the President for an investigation of the methods of business pursued by the Standard Oil Company. The desired investigation was conducted in the following year by Commissioner Garfield, the head of the Bureau of Corporations, and his report was communicated to Congress on the 5th of May, 1906, with an accompanying special message, by the President. Nothing of the detail of facts in the report can be given here; but the conclusions drawn from them by the Commissioner were summed up by him, as follows:

"Upon the request of its attorney, all the essential facts discovered by this Bureau were presented to the company at the close of the investigation, and an exhaustive statement relating thereto was made by its chief traffic officer. There was no denial of the facts found, but explanations of particular situations were offered, and it was urged that the facts did not show any violation by the Standard of the letter or spirit of the interstate-commerce law. A most careful review of the facts and the explanations leads to the following conclusions:

"The Standard Oil Company has habitually received from the railroads, and is now receiving, secret rates and other unjust and illegal discriminations.

"During 1904 the Standard saved about three-quarters of a million dollars through the secret rates discovered by the Bureau of Corporations, and of course there may be other secret rates which the Bureau has not discovered. This amount represents the difference between the open rates and the rates actually paid. Many of these discriminations were clearly in violation of the interstate-commerce law, and others, whether technically illegal or not, had the same effect upon

competitors. On some State business secret rates were applied by means of rebates.

"These discriminations have been so long continued, so secret, so ingeniously applied to new conditions of trade, and so large in amount as to make it certain that they were due to concerted action by the Standard and the railroads.

"The Standard Oil Company is receiving unjust discriminations in open rates.

"The published rates from the leading Standard shipping points are relatively much lower than rates from the shipping points of its competitors. The advantage to the Standard over its competitors from such open discriminations is enormous, probably as important as that obtained through the secret rates.

"If an unfair discrimination be obtained by one shipper through a device which in itself is seemingly not prohibited by law, that fact shows that the law is defective and should be strengthened; it does not show that the discrimination is proper or just.

"The following are a few of the most important discriminations and the methods by which they were obtained:

"(1) For about ten years the New England territory has been in control of the Standard Oil Company by reason of the refusal of the New York, New Haven and Hartford road and of the Boston and Maine road, on all but a few divisions, to pro-rate—i. e., to join in through rates—on oil shipped from west of the Hudson River, and by means of the adjustment of published rates. ...

"(2) The Standard Oil Company has been able to absolutely control for many years the sale of oil in the northeastern

part of New York and in a portion of Vermont by means of secret rates from its refineries at Olean and Rochester. ...

"The saving to the Standard during 1904 by the secret rate from Olean to Rochester alone was \$115,000. This and other less important rates from Olean were unknown to the independent refiners, and were not published on the ground that they were wholly State rates; yet in fact they were used for oil consigned to points beyond the State boundary of New York. Furthermore, all shipments from Olean on these secret rates were blind-billed—*i. e.*, the rates were not shown on the waybills.

"(3) The Standard Oil Company has maintained absolute control of almost the whole section of the country south of the Ohio River and east of the Mississippi by means of secret rates and open discriminations in rates from Whiting, Indiana. ...

"(4) The Standard Oil Company has for at least ten years shipped oil from Whiting to East St. Louis, Illinois, at a rate of 6 or 6¼ cents on three of the five railroads running between those places, while the only duly published rate on all roads has been 18 cents during all that period! This discrimination saved the Standard about \$240,000 in 1904. ...

"Whiting is located in Indiana, about two miles from the Illinois line. East St. Louis is in Illinois, just across the river from St. Louis. The secret low rates were given by the Chicago, Burlington and Quincy, Chicago and Alton, and Chicago and Eastern Illinois railroads. They were not published, on the ground that they were State rates. ...

"(5) In the Kansas-Territory field there were some unfair open rates. ...

"(6) In California direct rebates, as well as discriminations by the use of secret rates, have been given on oil. ...

"(7) Open published rates from Whiting into a large part of the United States have given the Standard Oil Company an unfair advantage of from 1 to 20 cents per hundred pounds.

{123}

"This discrimination seriously limits independent refiners in some markets, and shuts them out completely from other markets. It is accomplished by the use of commodity rates—that is, rates which apply only to petroleum and its products—and by refusal to pro-rate."

Report of the Commissioner of Corporations on the Transportation of Petroleum, May 2, 1906, Letter of Submittal, pages xxi-xxv. (59th Congress, 1st Session House Document. number 812).

Consequent on the information secured by this investigation, criminal proceedings against the Standard Oil Company in its various State organizations were instituted in 1906-1907. The number and character of the indictments found in these cases are set forth in tabular form, in an article on "The Oil Trust and the Government," by Francis Walker, published in the ***Political Science Quarterly***, March, 1908. The following statement of them is summarized from that table:

In the Northern District of Illinois, August 27, 1906, against the Standard Oil Co. of Indiana, 1903 and 134 indictments on shipments over the Chicago and Alton Railway, from Whiting, Indiana, to East St. Louis, Illinois, and from Chappell, Illinois, to St. Louis, Missouri.

In same District, same date, against same Company, 2124 and 220 indictments on shipments over the Chicago, Burlington and Quincy Railway, from Whiting to East St. Louis and St. Louis.

In same District, same date, against same Company, 1318 and 597 indictments on shipments over the Chicago and Eastern Illinois and the Evansville and Terre Haute railways, from Whiting to Evansville.

In same District, same date, against same Company, 103 indictments, on shipments over the Chicago and Eastern Illinois and the Evansville and Terre Haute railways from Whiting, via Grand Junction, Tennessee, to various points in the South.

In the Eastern Division of the Western District of Tennessee, October 16, 1906, against the Standard Oil Company of Indiana, 1524 indictments, on shipments over the Illinois Central and Southern railways, from Evansville, via Grand Junction, to various points.

In the Eastern District of Missouri, November 18, 1906, against the Waters-Pierce Oil Company, 76 indictments, on shipments over the St. Louis, Iron Mountain and Southern Railway, to various points.

In the Western District of Louisiana, January 28, 1907, against the Waters-Pierce Oil Company, 32 indictments, on shipments over the St. Louis, Iron Mountain. and S. Railway, to various points.

In the Western District of New York, August 10, 1907, against the Vacuum Oil Company, 23 indictments, on shipments from Olean to Vermont.

In the Western District of New York, August 24, 1906, against the Standard Oil Company of New York, 23 and 123 indictments, on shipments from Olean to Vermont.

In same District, August 9, 1907, against same Company, 188 and 40 indictments, on shipments from Olean, New York, to

Burlington, Vermont, over New York Central and Rutland and Vermont Central railways.

In same District, same date, against the Vacuum Oil Company, 188 and 40 indictments on shipments from Olean to Burlington and to Rutland and Burlington.

In same District, September 6, 1907, against the Standard Oil Company of New York, 54 indictments, on shipments from Olean and Rochester to points in Vermont.

The most notable of these criminal prosecutions has been the one described first in the list above. The opening chapter of its history is sketched as follows by Mr. Walker, in the article already referred to:

"The only important case which, up to December, 1907, had come to trial, was the indictment against the Standard Oil Company of Indiana for accepting a secret rate on shipments over the Chicago and Alton Railway, from Whiting, Indiana, to East St. Louis, Illinois, and from Chappell, Illinois, to St. Louis, Missouri. The published rate on this traffic was eighteen cents per hundred pounds (as far as East St. Louis, a bridge toll of one and a half cents being added on shipments to St. Louis); while the rate paid by the Standard Oil Company of Indiana, during the period of about three years covered by the indictment and for many years before, was only six cents per hundred pounds. On this rate, the Standard had transported, as charged in the indictment, 1903 carloads of oil, each carload being made the subject of a distinct count and separate proof. The trial of this case began in Chicago, on March 4, 1907.

"The defence not only exhausted every device of technical objection and obstruction but also attacked the constitutionality of the 'Elkins' law forbidding rate discrimination, alleging the right of the railroads and shippers to make private contract rates, an impudent assertion

which the court justly characterized as an 'abhorrent heresy.' The question of guilt in the matter of technical proof depended to a large extent on the requirements of the law that carriers must file rates, and the argument of the prosecution was that shippers must be charged with the knowledge as to whether such rates were lawfully filed or not. The defendant pretended ignorance of the fact that the six-cent rate had not been filed by the Alton and alleged that it was an unreasonable requirement to charge it with such knowledge. On this point the court said in rendering judgment:

"'The honest man who tenders a commodity for transportation by a railway company will not be fraudulently misled by that company into allowing it to haul his property for less than the law authorizes it to collect. For the carrier thus to deceive the shipper would be to deliberately incriminate itself, to its own pecuniary detriment, which it may safely be trusted not to do. The only man liable to get into trouble is he who, being in control of the routing of large Volumes of traffic, conceives a scheme for the evasion of the law, and connives with railway officials in its execution.'

"The jury returned a verdict of guilty on 1462 counts, on April 14, 1907: a considerable number of counts, namely 441, were thrown out on technical grounds. In the matter of penalty, the Standard's counsel argued

- (1) that there were only three offences shown, namely, one for each year in which the rate was in force;
- (2) that there were only 36 offences shown, namely, one for each monthly settlement of freight charges; and
- (3) that each train load constituted a separate offence. The court held, however, that the unlawful rate was made on a carload basis, and that each carload unlawfully transported constituted a distinct offence.

{124}

In considering the amount of the fine to be levied, the court demanded information from the officials of the Standard Oil

Company regarding the net earnings and dividends of the chief holding company of the trust—the Standard Oil Company of New Jersey. Their attendance and testimony were obtained only by writ of subpoena; and it was admitted that the net profits during the years 1903 to 1905 (when these rebates existed) amounted to \$81,336,994, \$61,570,110, and \$57,459,356 respectively.

"In view of the fact that the counsel of the defendant openly maintained the right of the railways and shippers to make private contracts for rates, the court declared that it was 'unable to indulge the presumption that in this case the defendant was convicted of its virgin offence.' The defendant also claimed that, as there were no other shippers of oil over the Chicago and Alton Railway, no one was injured by the secret rate. On this matter the court said:

"'It is novel, indeed, for a convicted defendant to urge the complete triumph of a dishonest course as a reason why such a course should go unpunished.

"'Of course, there was no other shipper of oil, nor could there be, so long as, by secret arrangement, the property of the Standard Oil Company was hauled by railway common carriers for one-third of what anybody else would have to pay.'

"Moved by these considerations, the court adjudged, on August 3, 1907, that the defendant should pay the maximum penalty and fined the Standard Oil Company \$20,000 for each offence, that is, for each of the 1462 counts in the indictment upon which conviction was obtained. The total fine, therefore, amounted to \$29,240,000."

***Francis Walker,
The Oil Trust and the Government
(Political Science Quarterly, March, 1908).***

On a writ of error the case went now to the United States Circuit Court of Appeals for the Seventh Circuit, where it was argued at the April session, 1908, and the opinion, by Judge Peter S. Grosscup, Circuit Judge, delivered on the 22d of the following July. In this opinion the District Court was held to have erred in deciding that each single carload of oil was to be dealt with as a separate offence, and that it reasoned erroneously in determining the fine imposed. On this latter point Judge Grosscup said:

"Did the court, in the fine imposed, abuse its discretion? The defendant indicted, tried, and convicted, was the Standard Oil Company, a corporation in Indiana. The capital stock of this corporation is one million dollars. There is nothing in the record, in the way of evidence, either before conviction, or after conviction and before sentence, that shows that the assets of this corporation were in excess of one million dollars. There is nothing in the record, either before conviction, or after conviction and before sentence, that shows that the defendant, before the court, had ever before been guilty of an offence of this character. It may, therefore, be safely assumed, that but for the relation of the defendant before the court to another corporation, not before the court—a relation to be presently stated—the court would have measured out punishment on the basis of the facts just stated.

"That under such circumstances the punishment would have been the maximum punishment, does not seem possible; for the maximum sentence, put into execution against the defendant before the court, would wipe out, many times, and for its first offence, all the property of the defendant. ...

"Briefly stated, the reason of the trial court for imposing this sentence was because, after conviction and before sentence, it was brought out, on an examination of some of the officers and stockholders of the Standard Oil Company of New

Jersey, that the capital stock of the Standard Oil Company of Indiana, the defendants before the court, was principally owned by the New Jersey corporation, a corporation not before the court—the trial court adding (upon no evidence however to be found in the record, and upon no information specially referred to) that in concessions of the character for which the defendant before the court had been indicted, tried, and convicted, the New Jersey corporation was not a ‘virgin’ offender.

"Is a sentence such as this, based on reasoning such as that, sound? Passing over the fact that no word of evidence or other information supporting the trial court's comment is to be found in the record, would the comment, if duly proven, justify a sentence such as this—one that otherwise would not have been imposed? Can a court, without abuse of judicial discretion, wipe out all the property of the defendant before the court, and all the assets to which its creditors look, in an effort to reach and punish a party that is not before the court—a party that has not been convicted, has not been tried, has not been indicted even? Can an American judge, without abuse of judicial discretion, condemn any one who has not had his day in court?

" That, to our mind, is strange doctrine in Anglo-Saxon jurisprudence. ...

"The judgment of the District Court is reversed and the case remanded with instructions to grant a new trial, and proceed further in accordance with this opinion."

The Government failed in attempts to secure a rehearing before the Appellate Court, as well as in an application for the reviewing of the case by the Supreme Court.

On the new trial to which the case was remanded Judge Landis, whose judgment had been set aside, declined to sit, and Judge

A. B. Anderson, of Indianapolis, was called to Chicago to occupy his bench. The trial was opened on the 23d of February, 1909. On the 2d of March Judge Anderson sustained the motion of the defence that the government must proceed on the theory that there were thirty-six alleged offences—that is, that each settlement on which an alleged rebate was paid instead of each carload, constituted a separate offence. This made it impossible to claim a penalty beyond \$720,000, being at the rate of \$20,000 for each offence. But even that was put out of the question by the ultimate decision of the Judge, that the law, as laid down by the United States Court of Appeals, required him to direct the jury to find the Standard Oil Company not guilty on the charge of accepting rebates from the Chicago and Alton Railroad. This instruction he gave on the 10th of March, thus bringing the case to an end.

{125}

The outcome in this case was said to mean that all but two of the pending indictments against the Standard Oil Company of Indiana, as recapitulated above, are void and would be abandoned by the Government. The two cases not affected are cases involving the shipment of 1915 carloads of oil from Whiting, Indiana, to Evansville, Indiana, via Dolton Junction, over the Chicago and Eastern Illinois Railroad.

On the 15th of March, five days after the acquittal of the Company in Illinois, a fine of \$20,000 was imposed upon it by the United States District Court of the Western District of New York, on one of the indictments founded on shipments from Rochester and Olean to points in Vermont. Previously, the New York Central Railroad had paid a heavy fine for granting rebates on those shipments.

Numerous State prosecutions, under State laws in Missouri, Texas, Minnesota, Ohio, and elsewhere, had been assailing the monopolistic corporation simultaneously with the proceedings

of the General Government against it, and some of them with greater seriousness of effect than the Federal prosecutors had accomplished. The more important of these were in Texas, against the subsidiary Waters-Pierce Oil Company of Missouri, and in Missouri, against that Company in association with the Standard of Indiana, and with another of the same Trust family. The Texas suit, after making its slow way through the State courts and to the United States Supreme Court, came to its conclusion early in 1909, with the result of a fine of \$1,623,500, and the exclusion of the Company from business in the State. The suit in Missouri, as decided at about the same time by the Supreme Court of the State, resulted in an order for the dissolution of the Waters-Pierce Company and for the perpetual exclusion of the other companies, chartered elsewhere, from operations within the State. The outcome of this vindication of the law of the State is understood to have been an arrangement under which the business of the Waters-Pierce Company is taken over by a new company, the stock of which is held by trustees approved by the Supreme Court of the State and acting as officers of the Court.

COMBINATIONS: A. D. 1905-1906.

The Tobacco Trust Case of *Hale v. Henkel*.

Denial by the Supreme Court of the claim of corporations to be exempt from the production of books and papers before a Grand Jury.

A proceeding begun by the Government of the United States, in the spring of 1905, to ascertain the lawfulness or unlawfulness of the methods of business pursued by the so-called Tobacco Trust, was embarrassed by the refusal of a witness to give evidence for which he was summoned before the grand jury of the Circuit Court of the United States for the Southern District of New York. The case pending was between the United States and the American Tobacco Company and MacAndrews & Forbes Company. The witness, Hale, was secretary and treasurer of the MacAndrews & Forbes Company. He refused

to answer any questions that were put to him concerning the business of that company, or to produce any of the books, accounts, contracts, correspondence, etc., that were demanded, being advised by counsel that he was under no legal obligation to do so, and that the evidence given or produced by him might tend to incriminate himself. He was held to be in contempt of Court and was committed to the custody of the United States Marshal. Being then, on a writ of ***habeas corpus***, brought before another judge of the same Court, after a hearing, the writ was discharged and he was remanded to custody (June 18, 1905). An appeal to the Supreme Court followed, which was argued in the early days of January, 1906, and decided on the 12th of March following.

The decision of the Court, rendered by Justice Brown, was on two issues which it found to be presented in the case: The first involving "the immunity of the witness from oral examination; the second the legality of his action in refusing to produce the documents called for by the ***subpœna duces tecum***." The witness justified his refusal to answer questions, "1st upon the ground that there was no specific 'charge' pending before the grand jury against any particular person; 2d that the answers would tend to criminate him." On the first point the Court found it "entirely clear that under the practice in this country, at least, the examination of witnesses need not be preceded by a presentment or indictment formally drawn up, but that the grand jury may proceed, either upon their own knowledge or upon the examination of witnesses, to inquire for themselves whether a crime cognizable by the Court has been committed." As to the plea of an apprehended self-incrimination, the Court held that the witness was protected by the act which provides that no person shall be prosecuted on account of anything concerning which he may testify or produce evidence. But it was further insisted that while the immunity statute may protect individual witnesses it would not protect the corporation of which the appellant was the agent and representative. "This is true," says the Court,

"but the answer is that it was not designed to do so. The right of a person under the Fifth Amendment to refuse to incriminate himself is purely a personal privilege of the witness. It was never intended to permit him to plead the fact that some third person might be incriminated by his testimony, even though he were the agent of such person."

On the second issue in the case, the substance of the decision is in the following passages from it:

"Having already held that, by reason of the immunity act of 1903, the witness could not avail himself of the Fifth Amendment, it follows that he cannot set up that Amendment as against the production of the books and papers, since in respect to these he would also be protected by the immunity act. ... We are of the opinion that there is a clear distinction in this particular between an individual and a corporation, and that the latter has no right to refuse to submit its books and papers for an examination at the suit of the State. ... The individual may stand upon his constitutional rights as a citizen. He is entitled to carry on his private business in his own way. ... Among his rights are a refusal to incriminate himself, and the immunity of himself and his property from arrest or seizure except under a warrant of the law. ... Upon the other hand, the corporation is a creature of the State. It is presumed to be incorporated for the benefit of the public. ... Its rights to act as a corporation are only preserved to it so long as it obeys the laws of its creation. There is a reserved right in the Legislature to investigate its contracts and to find out whether it has exceeded its powers. ... The defense amounts to this: That an officer of a corporation, which is charged with a criminal violation of the statute, may plead the criminality of such corporation as a refusal to produce its books.

{126}

To state this proposition is to answer it. While an individual may lawfully refuse to answer incriminating questions unless

protected by an immunity statute, it does not follow that a corporation, vested with special privileges and franchises, may refuse to show its hand when charged with an abuse of such privileges."

Taking note of the fact that the franchises of the corporation in this case were derived from one of the States, the Court proceeds to say:

"Such franchises, so far as they involve questions of inter-State commerce, must also be exercised in subordination to the power of Congress to regulate such commerce, and in respect to this the General Government may also assert a sovereign authority to ascertain whether such franchises have been exercised in a lawful manner, with due regard to its own laws. ... The powers of the General Government in this particular, in vindication of its own laws, are the same as if the corporation had been created by an act of Congress."

Justices Harlan and McKenna dissented from some of the views set forth in the opinion of the majority, as declared by Justice Brown, but concurred in the final judgment, which affirmed the order of the Circuit Court, remanding the prisoner to the custody of the Marshal. Justice Brewer and the Chief Justice dissented from the conclusions relative to corporations, and from the judgment, holding that "the order of the Circuit Court should be reversed and the case remanded with instructions to discharge the petitioner, leaving the grand jury to initiate new proceedings not subject to the objections to this."

***Federal Anti-Trust Decisions, 1900-1906,
prepared and edited by
James A. Finch by direction of the Attorney-General,
Volume 2, page 874
(Washington: Government Printing Office, 1907).***

COMBINATIONS: A. D. 1906-1910.

The Standard Oil Company.

Suit of the Government for its dissolution.

Decree for its dissolution by the Circuit Court.

Appeal to the Supreme Court.

Entirely distinct from the criminal prosecutions of the Standard Oil Company by the United States Government, as reviewed above was a suit begun in November, 1906, in the United States Circuit Court for the Eastern Division of Missouri. The former actions were to penalize the Company for violations of the Elkins Act, by the procuring of railway rebates. The later suit was to dissolve the combination in restraint of trade which the Company was alleged to be, and therefore illegally existing, in the view of the Sherman Anti-Trust Law. The complaint was directed against the parent organization, known as the Standard Oil Company of New Jersey, with its various subsidiary corporations. It was also directed against seven individuals namely, John D. Rockefeller, William Rockefeller, Henry M. Flagler, Henry H. Rogers (now deceased), John D. Archbold, Oliver H. Payne, and Charles M. Pratt. The main company, its branches, and these individuals were charged in the complaint with having entered into an agreement, combination, and conspiracy to restrain trade and commerce among the several States, to monopolize the trade in petroleum, both in its purchase and its shipment and transportation by pipe-line, steamships and by rail, also in the manufacture and refining of petroleum.

One of the evidences of its monopoly adduced by the Government was the enormity of its earnings which were summarized thus: The Standard Oil Trust and the Standard Oil Company, on an investment of \$69,024,480, had earned up to the end of 1906, \$838,783,783. Adding the estimated profits of 1907 and 1908, we have substantially, the brief states, a billion dollars earned by this company in twenty-seven years, with an original investment of about \$69,000,000.

The United States asked for a perpetual injunction, and for the dissolution of the Standard Oil combination. Hearings were held in New York, Washington, Chicago, Cleveland, and St. Louis, about four hundred witnesses being examined. It was not until the 5th of April, 1909, that the case reached the stage of argument, before Judges Walter H. Sanborn, Willis Van Devanter, William C. Hook and Elmer B. Adams, constituting the United States Circuit Court at St. Louis. The decision of the Court was announced on the 20th of the following November, the four judges concurring in the opinion, written by Judge Sanborn, which held the Standard Oil Company to be an illegal corporation and decreed its dissolution. The character of the decision appears from the syllabus of Judge Sanborn's opinion, which reads:

"Congress has power under the commercial clause of the Constitution to regulate and restrict the use in commerce among the several States, and with foreign nations, of contracts, of the method of holding title to property and of every other instrumentality employed in that commerce, so far as it may be necessary to do so, in order to prevent the restraint thereof denounced by the Anti-Trust Act of July 2, 1890 (26 Stat. 29).

"Test of the legality of a combination under this act is its necessary effect upon competition in commerce among the States or with foreign nations. If its necessary effect is only incidentally or indirectly to restrict the competition, while its chief result is to foster the trade and increase the business of those who make and operate it, it does not violate that law. But if its necessary effect is to stifle or directly and substantially to restrict free competition in commerce among the States, or with foreign nations, it is illegal within the meaning of that statute.

"The power to restrict competition in commerce among the

several States, or with foreign nations, vested in a person or an association of persons by a combination, is indicative of the character of the combination, because it is to the interest of the parties that such a power should be exercised, and the presumption is that it will be.

"The combination in a single corporation or person, by an exchange of stock, of the power of many stockholders holding the same proportions, respectively, of the majority of the stock of each of the several corporations engaged in commerce in the same articles among the States, or with foreign nations, to restrict competition therein, renders the power thus vested in the former greater, more easily exercised, more durable, and more effective than that previously held by the stockholders, and it is illegal.

{127}

"In 1899 the stockholders of the Standard Oil Company of New Jersey owned a majority of the stock of nineteen other corporations in the same proportions that they owned the stock of the Standard Company, and those twenty corporations controlled by the owners of the majority of their stock or otherwise many other corporations. Each of these corporations was engaged in some part of the business of producing, buying, refining, transporting, and selling petroleum and its products, and they were conducting about 30 per cent. of the production of the crude oil and more than 75 per cent. of the business of the purchasing, refining, transporting, and selling petroleum and its products in this country. Many of them were engaged in commerce in these articles among the several States and with foreign nations, and were naturally competitive.

"During the ten years prior to 1879 the seven individual defendants had acquired control of many corporations, partnerships, and refiners that had been competing in this

business, had placed the majority of the stock of those corporations and the interests in property in business thus obtained in various trustees to be held and operated by them for the stockholders of the Standard Oil Company, one of the nineteen companies in which the individual defendants were principal stockholders, and had thereby suppressed competition among these corporations and partnerships.

"In 1879, they and their associates caused all the trustees to convey their interests in the stock, property and business of these corporations to five trustees, to be held, operated and distributed by them for the stockholders of the Standard Company of Ohio. From 1879, until 1892, they prevented these corporations and others engaged in this business, of which they secured control, from competing in this commerce by causing the control of their operations and generally of a majority of their stocks, to be held in trust for the stockholders of the Standard Company of Ohio, and, from 1892, until 1899, they accomplished the same result by a similar stock-holding device, and by the joint equitable ownership of the majority of the stocks of the corporations."

Appeal from the decree has been taken to the Supreme Court, where it was preceded by the appeal of the Tobacco Trust from a similar decree, involving substantially the same questions, according to what seems to be the general view of the Bar. On the 17th of January, 1910, the Supreme Court of the United States granted the motion of the Government for the advancement on the docket of the Standard Oil case, and set the hearing for March 14.

COMBINATIONS: A. D. 1907.

The chief existing combinations.

Their operation through stock ownership.

"Passing the matter of railroad combinations, as to which it may be said that through stock ownership the control of all

American lines is now concentrated in seven groups of parent properties, we are chiefly concerned with the practical use that has been made of the new corporate power by the largest and strongest of our manufacturing and industrial enterprises.

"The United States Steel Corporation, organized under the laws of New Jersey, with a capital stock of \$1,100,000,000 owns a majority of the stock of eleven subsidiary companies, and controls industries scattered over the entire country under different styles and corporate names. This corporation owns or manages 213 manufacturing and transportation plants and forty-one mines located in eighteen different States; it has more than 1,000 miles of railroad tracks to ore, coke and manufacturing properties, and a lake fleet of 112 vessels. This stock ownership gives it control of hundreds of millions of capital that is not represented by its own billion dollars of stock.

"The Amalgamated Copper Company, incorporated in New Jersey, has no asset whatever except the stocks of other corporations. It owns all the stock of four operating companies and a controlling interest in seven others, and has taken them over by an issue of \$155,000,000 of its own stock.

"The American Smelting and Refining Company, organized under the laws of New Jersey, controls the business of thirteen corporations, in which it either owns the entire stock or a majority interest. Associated with it are the American Linseed Company, the National Lead Company and the United Lead Company, and they together control twenty-eight concerns and ninety-three affiliated corporations.

"The Standard Oil Company, incorporated in New Jersey, with a capital stock of \$110,000,000, controls, directs and manages more than seventy corporations through its possession of a majority of their stock. Some of these companies own stock in still other corporations, and all together the combine

operates more than 400 separate and distinct properties, thus monopolizing 90 per cent, of the export oil trade and 84 per cent. of the domestic trade. The market value of its capitalization is about \$650,000,000, and all this vast property was brought together under one head without the payment of a single dollar of cash, the whole consolidation being effected through the issue of stock in the holding company in payment of stock in the companies that are held.

"The United Gas Improvement Company, incorporated in Pennsylvania, own stock in thirty corporations doing the character of business for which it was organized, and in addition to this is interested in numerous street railway properties, including the New York City surface railways. With it is allied the Public Service Corporation of New Jersey and the Rhode Island Securities Company, which last named owns all the stock of the Rhode Island Company, which again has leased for 999 years several of the most important railroad companies doing business in that State. The power of this corporation, through this system of stock ownership, is scarcely calculable, and the value of properties controlled would equal hundreds of millions, although its own capital stock is but \$36,000,000.

"The American Tobacco Company, organized under the laws of New Jersey, with a capital stock of \$40,000,000, practically controls the whole market through its ownership of the stock of innumerable other corporations.

"The International Harvester Company, incorporated in New Jersey, with a capital stock of \$120,000,000, while probably not a holding company, maintains most, if not all, the corporations which it has bought out, and they are operated as if they were distinct and competing concerns.

"The American Sugar Refining Company, incorporated in New Jersey, with a common stock of \$40,000,000, controls

fifty-three other corporations.

{128}

"The American Telegraph and Telephone Company, incorporated in New York, with a capital stock of \$250,000,000 controls, through stock ownership, thirty-five subsidiary corporations.

"The Western Union Telegraph Company owns stock in twenty-four other corporations; the Distillers' Security Company owns 90 per cent. of the stocks of the Distilling Company of America, and has acquired ninety-three plants, representing 60 per cent. of the industry; the Philadelphia Rapid Transit Company owns the stock of twelve elevated and street railway companies; the Brooklyn Rapid Transit Company owns the stock of seven others; the Metropolitan Securities Company of New York owns the stock of many traction companies, and the controlling interest in others; the Inter-State Railways of New Jersey own all the stock of the United Power and Transportation Company, which latter company controls the capital and franchises of about forty other projected companies in New Jersey and Pennsylvania; while the International Mercantile Marine Company of New Jersey owns a majority of the shares of many of the most important steamship companies whose vessels cross the Atlantic Ocean.

"These are but a few instances of the promotion of combinations through stock ownership."

***Wade H. Ellis,
Attorney-General of Ohio,
Paper read at National Conference on Trusts and
Combinations, Chicago, October 22, 1907.***

COMBINATIONS: A. D. 1907.

National Conference on the Trust Question, invited by the National Civic Federation.

A remarkably representative and impressive assembly at Chicago, of delegates from all parts of the country, and voicing all interests, was brought about by the invitation of the National Civic Federation, in October, 1907, for a thorough discussion of the questions which troubled the country and confused its attitude toward Trusts and Combinations, as subjects of regulation by law. There had been a similar conference at Chicago in 1899, at the call of the Civic Federation of that city; but no common ground of agreement could then be found. The subject, as was afterwards said, "was too new, too vaguely understood for men to be of one mind in regard to it." But eight years later, in 1907, "it appeared to the leaders of the National Civic Federation not improbable that a new conference might lead to some definite pronouncement of opinion. ... Leaders of opinion in all walks of life gave the project their hearty endorsement. ... The matter was taken up with great interest by the Governors of the several States and by the presidents of commercial bodies, who named delegates in response to the invitation of the National Civic Federation. A significant evidence of this greater interest is found in the larger number of delegations appointed in 1907 than in 1899. The records show the following:

Delegations.	1899.	1907.
Appointed by Governors	33	39
Appointed by national and State organizations	22	33
Appointed by labor organizations	7	14

Appointed by local commercial bodies	33	58
Total	95	144

"Furthermore, the attendance of 492 delegates in 1907 might be contrasted with that of 238 delegates at the earlier conference.

"The conference of 1907, though larger in numbers, was much more of a unit in sentiment. It developed at an early stage of the discussion that there was no important element antagonizing the trust and combination as such. There were few speakers who failed to dwell upon the advantages which had accrued to the nation from some combinations, and from the spirit of association which, after all, cannot be separated from them. On the other hand, there was no lack of emphasis in dwelling upon the evils which had been disclosed among trusts and combinations.

"The resolutions of the conference, adopted by a unanimous vote, reveal these tendencies. They are a call for further examination and more light, but a call for such examination along certain pretty well-defined lines. They should receive the attention of Congress as an expression of the popular will on this pressing question."

The Conference held nine sessions, extending over four days, focusing the thought of the best minds of the country, and the counsels of the largest practical experience, on all points in the many-sided problem before it. On all that appear most important among those points it came to a full and clear agreement in its conclusions, as embodied in the following resolutions, which were adopted by unanimous vote, a committee being appointed to present them to Congress and to the President:

"After twenty years of Federal legislation as interpreted by the courts, directed against the evils of trusts and combinations, and against railroad rebates, beginning with the interstate commerce act of 1887 and the anti-trust act of 1890, a general and just conviction exists that the experience gained in enforcing these federal acts and others succeeding them demonstrates the necessity of legislation which shall render more secure the benefits already gained and better meet the changed conditions which have arisen during a long period of active progress, both in the enforcement of statute law and in the removal of grave abuses in the management of railroads and corporations. These changes now demanded are:

"First—Immediate legislation is required, following the recommendation of President Roosevelt and the Interstate Commerce Commission, permitting agreements between railroad corporations on reasonable freight and passenger rates, subject in all respects to the approval, supervision, and action of the Interstate Commerce Commission.

"Second—The enforcement of the Sherman act and the proceedings under it during the administrations of Presidents Harrison, Cleveland, McKinley, and Roosevelt have accomplished great national results in awakening the moral sense of the American people and in asserting the supremacy and majesty of the law, thus effectually refuting the impression that great wealth and large corporations were too powerful for the impartial execution of law. This great advance has rendered more secure all property rights, resting, as they must, under a popular government, on universal respect for and obedience to law. But now that this work is accomplished, it has revealed the necessity for legislation which shall maintain all that the Sherman act was intended to secure and safeguard interests it was never expected to affect.

"As the next step in executing the determination of the American people to secure in all industrial and commercial relations justice and equality of opportunity for all, with full sympathy and loyal support for every effort to enforce the laws in the past, we urge upon Congress without delay to pass legislation providing for a non-partisan commission, in which the interests of capital, of labor, and of the general public shall be represented. This commission, like a similar commission, which proved most successful in Germany in 1870, shall consider the entire subject of business and industrial combinations and report such proposals, as to the formation, capitalization, management and regulation of corporations (so far as the same may be subject to federal jurisdiction) as shall preserve individual initiative competition, and the free exercise of a free contract in all business and industrial relations. Any proposed legislation should also include modification of the prohibition now existing upon combinations on the following subjects:

"1. National and local organizations of labor and their trade agreements with employers relating to wages, hours of labor, and conditions of employment.

"2. Associations made up of farmers, intended to secure a stable and equitable market for the products of the soil free from fluctuations due to speculation.

"3. Business and industrial agreements of combinations whose objects are in the public interest as distinguished from objects determined to be contrary to the public interest.

"4. Such commission should make a thorough inquiry into the advisability of inaugurating a system of federal license or incorporation as a condition for the entrance of certain classes of corporations upon interstate commerce and also into the relation to the public interest of the purchase by one

corporation of the franchises or corporate stock of another.

"On no one of these subjects must what has been gained be sacrificed until something better appears for enactment. On each, this conference recognizes differences between good men. On all, it asks a national non-partisan commission to be appointed next winter to consider the question and report at the second session of the approaching Congress for such action as the national legislature, in the light of this full investigation, may enact.

"Third—The examination, inspection and supervision of great producing and manufacturing corporations, already begun by the Department of Commerce and Labor and accepted by these corporations, should be enlarged by legislation requiring, through the appropriate bureaus of the Department of Commerce and Labor, complete publicity in the capitalization, accounts, operations, transportation charges paid, and selling prices of all such producing and manufacturing corporations whose operations are large enough to have a monopolistic influence. This should be determined and decided by some rule and classification to be devised by the commission already proposed.

"Fourth—The conflicts between State and Federal authorities raised in many States over railroad rates being now under adjudication and under way to a final and ultimate decision by the Federal Supreme Court, this conference deems the expression of an opinion on these issues unfitting, and confidently leaves this great issue to a tribunal which for 118 years has successfully preserved the balance between an indissoluble union and indestructible State, defining the supreme and national powers of the one and protecting the sovereign and individual powers of the other."

***Proceedings of the National Conference
on Trusts and Combinations,***

Chicago, October 22-25, 1907
(New York: National Civic Federation, 1908).

COMBINATIONS: A. D. 1907-1909.

Thievery of the Sugar Trust.

In the fall of 1907 disclosures were made to the Government which led to an investigation of the methods whereby imports of raw sugar for the American Sugar Refining Company, known commonly as the Sugar Trust, were weighed for the payment of Customs duties, at the Company's docks in Williamsburgh and Jersey City. The result of the investigation was to prove that this enormously wealthy corporation, not satisfied with extortions of profit from the public by its monopoly of the vast sugar trade of the country, had stooped to practices of systematic theft from the Government, by devices that would almost shame the professional players of a thimble rigging game. Several ingenious inventions of trickery with the weighing scales had been employed at the sugar docks prior to 1904, but the crowning one appears to have been brought to use in that year. "This," said the New York

Evening Post of

April 29, 1909, in a full rehearsal of the story of the Sugar Trust larcenies, "consisted of a thin steel corset spring, which was inserted through a hole drilled in the uprights or stanchions supporting the scales. If inserted at a time when there was a load on the platform, its pressure against the walking beam of the scale resulted in creating a false balance, and in making the load appear considerably lighter than it really was. This little device proved to be so satisfactory for the purposes for which it was designed that it was fitted to all the seventeen government scales at the Havemeyer & Elder refinery. Holes were drilled in the stanchions of each of the scales—hence the ‘case of the seventeen holes’ to which Mr. Stimson called attention. So successful was the operation of this mechanism that it was used constantly down to the very day, November 20, 1907, when a United States Treasury agent found it in use.

"The method of use was simple. The scales were placed with the stanchions in a dark corner, next to the wall, and close beside this stanchion sat the company's checker, whose ostensible duty it was to record in a little book the weight of each load as it was read off to him by the government weigher standing at the other end of the scale. The checker's really important duty seems to have been, however, to manipulate the steel spring through the hole in the stanchion, so that on each truck load, the company which employed him was saved the payment of duty on some fourteen pounds of sugar.

"Evidence was adduced at the subsequent trial to show that the company considered this special service on the part of its checkers worthy of additional compensation. For although there were seventeen scales, all of which could be used for this purpose, practically all the weighing was done on six, and the six reliable checkers who, year in and year out, operated the little steel springs, all received extra pay in their weekly

pay envelopes for this service."

{130}

Consequent on the discovery of these facts, "several indictments were found against the Sugar Trust's employees, and with that discovery as a basis the government began to work up its case. ... When the government came to work up its case and to fix approximately the amount out of which it had been defrauded, it was found possible to present a piece of evidence which so thoroughly clinched the case that defence, when it came to be made, was so weak as to be negligible. This evidence consisted of a tabulation comparing the weights of sugar on which duty was paid and the weights for which the company paid the planters between the time the first cargo of sugar of December, 1901, arrived at the refinery and the discovery of the fraud in November, 1907.

"It took a score or more of accountants working steadily for six months to complete the tabulation, but when it was finished the astonishing corroborative story it told made it well worth all the time and trouble expended. Never was there a better example of the deadly parallel. For every entry the weights on which duties were levied was set alongside of the weights for which the company paid the planters."

The first result of the proceedings of the Government against the thievish Trust was a pecuniary settlement with it, concerning which the following official statement was given out at Washington, by Attorney-General Wickersham, on the 29th of April, 1909:

"The Attorney-General, with the concurrence of the Secretary of the Treasury, has just approved a settlement between the American Sugar Refining Company and the United States Government of all the claims which the latter has against it arising out of the fraudulent weighing on the docks of its

refineries at Brooklyn and Jersey City. In making this settlement the sugar company pays in full the recent judgment for the penalty in the amount of \$134,411.03, which was awarded against it by the jury in the case tried in the federal court last March, with interest, and agrees to take no appeal from the judgment.

"In addition to this, it pays into the United States treasury \$2,000,000 more, representing the duties which have been unpaid during the last twelve years, owing to the fraudulent practices, \$1,239,088.97 of this amount has already been paid in under protest to Collector Loeb on his reliquidation, as a result of the trial above mentioned, of the duties upon the cargoes entered at the Havemeyer & Elder refineries between the years 1901 and 1907, when the frauds were discovered.

"The sugar company abandons its protests on these payments and gives up its right to appeal from Mr. Loeb's reliquidation and in addition to this pays into the United States treasury the above judgment and over \$760,000 more to cover the duties unpaid at the Havemeyer & Elder docks prior to 1901 and at the Jersey City refinery between 1896 and 1906.

"This settlement with the sugar company in nowise affects the criminal prosecution of the individuals who are responsible for the perpetration of these frauds, and such prosecutions will be pressed to a finish by the government."

[Soon after this settlement with the Government by the Sugar Trust for shortage in payment of duties, the firm of Arbuckle Brothers made a similar settlement, paying \$695,573.19.]

A few days after the above announcement of a pecuniary settlement with the American Sugar Refining Company, the Grand Jury of the Circuit Court in the New York District presented indictments against Oliver Spitzer, who was superintendent on the company's docks, Thomas Kehoe, Eugene M. Voelker, Edward

A. Boyle, J. R. Coyle, J. M. Halligan, Jr., and Patrick J. Hennessy.

In November, further indictments were found against these employees of the company, and James F. Bendernagel, general superintendent of the Williamsburgh refinery for many years past, was arrested on an indictment found by the same grand jury. The trial of the accused, in the United States District Court, was opened on the 30th of November.

On the 17th of January, 1910, Charles R. Heike, secretary and treasurer of the American Sugar Refining Company, was arraigned before Judge Hough in the criminal branch of the United States Circuit Court, charged with making false entries and conspiring to defraud the government.

COMBINATIONS: A. D. 1907-1909.

Suit of the Government against the Tobacco Trust.
Decree of Circuit Court restraining the combined companies from interstate and foreign trade.

On the 10th of July, 1907, the Government began suit at New York against the so-called Tobacco Trust. The defendants in the case included 65 corporations and 27 individuals, the principals, however, being six companies, namely, the American Tobacco Company, the British-American Tobacco Company, the Imperial Tobacco Company, the American Snuff Company, the American Cigar Company, and the United American Cigarette Company. Of these the parent organization, dominating all the others, is the American Tobacco Company, which began the finally gigantic combination in a small way in 1890. The object sought in the Government's suit was an injunction to restrain the combination as such from engaging in interstate and foreign trade, or for the appointment of receivers to take the management of the business concerned.

The case was argued before the Second Circuit Court of the

United States in May, 1908, and the decision of the Court was announced on the 7th of November following, Judges Lacombe, Noyes, and Coxe agreeing and Judge Ward dissenting. The Court found that an injunction should issue against some, but not all, of the principal defendants, to prevent the continuance of their violation of the Sherman Anti-Trust Law. It acquitted the Trust, however, of the charge of dishonest and oppressive practices, and it denied the application for receiverships. The final decree of the Court was filed on the 15th of December, 1908.

Appeals to the Supreme Court of the United States were taken, both by the Government and by the defendants, and the case was pending in that Court at the close of the year 1909. Mean time the decree has been in suspense.

{131}

COMBINATIONS: A. D. 1907-1909.

Suit to dissolve the alleged Anthracite Coal Combination.

The following statements were made in an Associated Press despatch from Philadelphia, March 8, 1909:

"Testimony of the Government in its suit against the anthracite coal-carrying railroads and several coal companies, to dissolve a so-called Trust agreement, alleged to be existing among them, has been filed in the Circuit Court of the United States for the Eastern District of Pennsylvania.

"Suit was begun here on June 12, 1907, and in the course of three months all the defendants made answer, denying the allegations of the Government. Subsequently, the court appointed an examiner to take testimony, and a great part of last year was taken up in hearing witnesses, sessions being held mainly in Philadelphia and New York.

"The Government closed its case in New York several weeks ago, having taken more than its allotted time, and the next move will be for the Government to file a motion apportioning a certain amount of time for the defendant companies to present their witnesses for examination. Much of the testimony thus far has been documentary, and it is believed this will be the case with the defendants. After all the testimony is filed with the court for review, arguments will be had on the case.

"It is impossible at this time to indicate when the case will be ended, but it seems probable that a year or more will have elapsed before it is legally decided whether a hard coal monopoly, as alleged, exists in Pennsylvania."

See, also, proceedings under the "Commodities Clause" of the Hepburn Act, and decision of United States Supreme Court, in this Volume, under RAILWAYS: UNITED STATES: A. D. 1906-1909.

COMBINATIONS: A. D. 1908.

Declarations in Party Platforms on Trusts.

See (in this Volume)

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

COMBINATIONS: A. D. 1908-1909.

Amending the Sherman Anti-Trust Law.

Action of the National Civic Federation.

The resolutions adopted at the great National Conference of 1907 on the Trust Question, as recited above, were duly presented to Congress at its next session, and to the President, with results which were stated at the annual meeting of the National Civic Federation in December, 1908, by its President, the Honorable Seth Low, as follows:

"When these resolutions were presented to the two Houses, the

Conference Committee was asked to submit a definite Bill in legislative form to carry out its proposals. The Conference itself had given no such authority to any Committee; but, in view of the situation as it had developed, the Executive Committee of the Federation took the matter up. The result of its action was the preparation of a Bill, which was submitted in due time to Congress, and which became the subject of numerous hearings before the Judiciary Committees both of the House and of the Senate, but especially of the House. The Bill of last spring was based upon the belief that at that time, and before the approaching Presidential election, it would be impossible to change the substantive law as embodied in the Sherman Anti-Trust Act. This being taken for granted, it became impossible to do more than propose a method by which, without changing the law, certain restraints of trade, if not disapproved in advance by some government authority, might be assured freedom from prosecution. The hearings before the Congressional Committees made it evident that no relief from the embarrassments caused by the Sherman Anti-Trust Law can be looked for along this line of procedure. Perhaps it ought also to be said that none ought to be looked for, because the situation really calls for a change in the substantive provisions of the law. Let no one imagine, however, that it is an easy thing to say what such changes in the law ought to be. Your Committee last spring began its work in the hope that it would be able to submit a law which would command very large support, not only from employers but also from organized labor. After working upon the subject for many weeks, the Bill which it actually presented commanded no large measure of support from either. The mercantile classes favor amendments to the law which, instead of forbidding all restraints of trade, will forbid only unreasonable restraints of trade; and which will provide amnesty for the past,

- (1) on the theoretical ground that what has been done has often been done without any realization that it was contrary to the law; and
- (2) on the practical ground that to attempt to rip up what has

already been done will destroy the industry of the country. The representatives of organized labor, on the other hand, ask to be omitted altogether from the provisions of the Sherman Act. It is evident to your Committee that the changes desired by the mercantile classes are going to meet with very serious objection, unless they are combined with some positive legislation which will provide some effective method of assuring to the country, in the future, the power to protect itself in advance from new combinations in the industrial sphere, such as have been made in the past, and which originally created the sentiment which placed the Sherman Anti-Trust Law upon the statute books.

"In other words, precisely as a city may desire to limit the height of buildings, for the future, without taking down those that are already erected, so many persons believe that the right to make commercial combinations, in the future, should be under some sort of governmental control, even though those already formed be left unmolested; and such persons, also, believe that there is the same inherent right in the body politic to do the one as the other. On the other hand, the demand of organized labor to be exempted altogether from the operations of this Act has been objected to in the past, and is likely to be objected to in the future, as class legislation of a kind that has no place on American soil, because organized labor is believed to be capable of exercising restraint of trade no less than commercial corporations.

"These being the terms of the problem, it is apparent, on the face of things, that the effort to amend the Sherman Anti-Trust Law in any effective way is beset by difficulties at every turn. ... The whole subject is made infinitely difficult by the Constitutional limitations upon the power of Congress, which have led the United States Supreme Court to decide, in effect, that Congress can regulate inter-State commerce, but cannot regulate the corporation that does it;

because the corporation that does inter-State commerce is a creature of the State and not of the United States. The separate States, on the other hand, can regulate the corporations that do inter State commerce, because they create them; but the States cannot regulate the inter-state commerce that is done, because under the United States Constitution, inter-State commerce is under National control. It cannot be too clearly apprehended that the effect of this situation is, that neither sovereignty—neither the National sovereignty nor the State sovereignty—can regulate both the agent that does inter-State commerce and the inter-State commerce that is done."

{132}

In the *National Civic Federation Review* of March, 1909, it was announced that "the Executive Council of the National Civic Federation has appointed a committee to draft proposed amendments to the Sherman Anti-Trust act. By request of the lawyers upon the committee Seth Low will serve as chairman. The other members are Frederick P. Fish, of Boston; Frederick N. Judson, of St. Louis; Reuben D. Silliman, of New York, and Henry W. Taft, of New York.

"No attempt will be made to submit anything to the present session of Congress. It is proposed to draft a tentative bill as soon as a careful study of the problems will permit. This will then be submitted for examination and suggestion to various representative bodies in all parts of the country, and with the aid of the comments thus received the final draft of the bill to be submitted will be prepared."

COMBINATIONS: A. D. 1909.

Report of the Commissioner of Corporations on the Tobacco Combination, or so-called Trust.

Parts of an elaborate report on the organization of the

Tobacco Combination were published in February, 1909, by the Commissioner of Corporations, Herbert Knox Smith. It showed the combination to be composed of "the American Tobacco Company and its three great subsidiary combinations, the American Snuff Company, the American Cigar Company, and the British-American Company, besides eighty two other subsidiary concerns doing business in the United States, Porto Rico, and Cuba. The combination represents a total net capitalization of over \$316,000,000. A very small group of ten stockholders controls 60 per cent. of the outstanding voting stock of the American Tobacco Company, through which company the entire combination is controlled."

A list of the subsidiary companies controlled, "including over twenty hitherto secretly controlled, so-called 'bogus independent concerns,'" is given in the report. It is shown also that the combination is practically the only important exporter of tobacco manufactures from this country. In 1891 the combination controlled 89 per cent. of the business of cigarette manufactures, and this proportion practically is maintained. In cigars its output increased from 4 per cent. of the business in 1897 to 14.7 per cent, in 1906; while in manufactured tobacco (chewing, smoking, fine-cut, and snuff) "the combination's output increased from 7 per cent. of the total in 1891 to 77 per cent. in 1906. Finally, in 1906, the combination controlled of these separate products, respectively, plug, 82 per cent.; smoking, 71 per cent.; fine-cut, 81 per cent., and snuff, 96 per cent." In the year 1906 the combination used in the manufacture of its various products nearly 300,000,000 pounds of leaf tobacco. The report adds:

"An idea of the absorption of competing plants and of the changes through combination within the last decade may be had from the fact that in 1897 the combination had ten plants, each producing over 50,000 pounds of manufactured tobacco or snuff per year, while there were 243 independent plants of the

same class. In 1906, on the other hand, the combination had 45 plants of this class, and independent manufacturers 140. Especially conspicuous has been the absorption of the large plants. In 1897 the combination had eight plants, each producing over 1,000,000 pounds of these products per year, while its competitors had forty-six such plants. In 1906 the combination had thirty-four plants of this size, and independent concerns only seventeen."

COMBINATIONS: A. D. 1909.

Merger of Telephone and Telegraph Corporations.

Announcement of one of the most important financial mergers of recent years was made November 16, 1909, when the American Telephone and Telegraph Company disclosed its acquirement of control of the Western Union Telegraph Company. "The American Telephone and Telegraph Company has obtained the control of a substantial minority interest in the shares of the Western Union Telegraph Company," was the wording of the official statement, but it became known that sufficient voting rights of other stock had been obtained to give the telephone interests control of the telegraph company.

According to a statement issued on May 1, 1909, the total capital and outstanding interest-bearing obligations of the American Telephone and Telegraph Company and allied systems was \$592,475,400. This amount included capital stock aggregating \$361,636,800, subdivided as follows: American Telephone and Telegraph Company, \$208,393,500; associated operating companies in the United States and Canada, about thirty-five in number, \$142,674,400; associated holding and manufacturing companies, \$10,668,900. "The Western Union has a capitalization of \$125,000,000 in stock and \$40,000,000 in bonds.

COMBINATIONS: A. D. 1909.

Threatened combination to control the Water Power of the

country.

Speaking at the National Irrigation Congress, convened at Spokane, Washington, in August, 1909, the National Forester, Gifford Pinchot, declared that, notwithstanding the contradictions issued by the parties in interest, a gigantic combination was forming to seize the sources of the country's water power, and be in a position later to dominate all industry.

"There could be no better illustration," he said, "of the eager, rapid, unwearied absorption by capital of the rights which belong to all the people than the Water Power Trust, not yet formed, but in rapid progress of formation. This statement is true, but not unchallenged. We are met at every turn by the indignant denial of the water power interests. They tell us that there is no community of interest among them, and yet they appear year after year at these Congresses by their paid attorneys, asking for your influence to help them remove the few remaining obstacles to their perpetual and complete absorption of the remaining water powers. They tell us it has no significance that the General Electric interests are acquiring great groups of water powers in various parts of the United States, and dominating the power market in the region of each group. And whoever dominates power, dominates all industry. ... The time for us to agitate this question is now, before the separate circles of centralized control spread into the uniform, unbroken, nation-wide covering of a single gigantic Trust. There will be little chance for mere agitation after that. No man at all familiar with the situation can doubt that the time for effective protest is very short."

{133}

The same warning has been given by others who are in a position to speak with knowledge, and heed has been given to them by the Government. The annual report of the Secretary of

the Interior, the Honorable Richard A. Ballinger, made public November 28, 1909, contained the following important announcement: "In anticipation of new legislation by Congress to prevent the acquisition of power sites on the public domain by private persons or corporations with the view of monopolizing or adversely controlling them against the public interest, there have been temporarily withdrawn from all forms of entry approximately 603,355 acres, covering all locations known to possess power possibilities on unappropriated lands outside of national forests. Without such withdrawals these sites would be enterable under existing laws, and their patenting would leave the general government powerless to impose any limitations as to their use.

"If the Federal government desires to exercise control or supervision over water-power development on the public domain, it can only do so by limitations imposed upon the disposal of power and reservoir sites upon the public lands, the waters of the streams being subject to State jurisdiction in their appropriation and beneficial use. I would, therefore, advise that the Congress be asked to enact a measure that will authorize the classification of all lands capable of being used for water-power development, and to direct their disposal, through this department. ...

"Unreasonable or narrow restrictions beyond the necessity of public protection against monopoly, or extortion in charges, will, of course, defeat development and serve no useful purpose. The statute should, therefore, while giving full protection against the abuses of the privileges extended, so far as consistent, encourage investment in these projects; and it must always be borne in mind that excessive charges for the franchise will fall upon the consumer. Legislation of this character proceeds upon the theory that Congress can impose such contractual terms and conditions as it sees fit in the sale or use permitted of government lands so long as such limitations do not conflict with the powers properly exercised

by the State wherein they may be situated."

COMBINATIONS: A. D. 1909.

The Sugar Trust settles a conspiracy charge.

While the American Sugar Refining Company, in the spring of 1909, was being forced to make good to the Government its long cheating of the Custom House, it was being compelled, at the same time, to indemnify a competitor in business, whom it had ruined by means which the Sherman Anti-Trust Law forbade. Its victim was the Pennsylvania Sugar Refining Company, whose refinery had been established by Mr. Adolph Segal, of Philadelphia, in 1903. Segal became financially embarrassed, and was lured into taking a loan of \$1,250,000, from a person who acted secretly in the transaction for the American Sugar Refining Company. The loan was made on terms which gave the lender control of a majority of the stock of the Pennsylvania Sugar Refining Company, and Mr. Segal found, when too late, that the real lender was the Sugar Trust. It used its power to shutdown the plant, which was said to be the most perfect of its kind, and the Pennsylvania Company was wrecked. It brought a suit for damages to the amount of \$30,000,000, inflicted upon it in contravention of the Anti-Trust Law. Before the trial ended, the defendants found so much reason to fear its outcome that negotiations were opened which resulted (June 8, 1909) in a settlement of the claim outside of court. The settlement was said to involve a cash payment by the American Company to the Pennsylvania Company of \$750,000, the cancellation of the \$1,250,000 loan made by the trust to Adolph Segal, of Philadelphia, and the return of the securities given by Segal as collateral for the loan.

Subsequently the Government procured indictments of certain of the officials of the American Sugar Refining Company for their participation in the conspiracy; but the prosecution was blocked in October by a decision from Judge Holt, of the United States Circuit Court, that the acts charged were

outlawed by the statute of limitations. Later, in November, it was reported that the Government was preparing an appeal to the Supreme Court.

COMBINATIONS: A. D. 1909.

Dissolution of a Paper-making Combination.

By a decree of the United States Circuit Court, Judge Hough, at New York, in May, 1909, the Fiber and Manila Association, a combination of 25 paper manufacturers, located in many parts of the country, East and West, was adjudged to be an illegal combination in restraint of trade, and perpetually enjoined from further operations in such combination. The members were enjoined further from fixing prices or the qualities that shall be manufactured or to maintain any pool or fund made up of contributions from its members. Counsel for the Association announced that no appeal would be made.

COMBINATIONS: A. D. 1909.

Chartering of the United Dry Goods Companies.

"Details of the greatest dry goods combination ever attempted in this country were available to-day for the first time since the United Dry Goods Companies took out a Delaware charter last Friday [April 21, 1909], The concern will control many of the largest dry goods stores in this city and at important commercial centres of the South and West, acting first as a holding company and later possibly as an operating concern, with headquarters here. John Claflin will be the head of the combination. The present managers of the various absorbed stores will be continued. J. P. Morgan & Co. are financing the deal, and public announcement will be made immediately.

"The United Dry Goods Companies will have a capital of \$51,000,000. Of this only \$20,000,000 will be immediately issued in the form of \$10,000,000 7 per cent. cumulative preferred stock and \$10,000,000 common stock. The preferred

stock has preference as to both assets and dividends. The new combination will purchase \$8,650,000 of the outstanding \$17,250,000 capital stock of the Associated Merchants' Company. ...

"John Claflin said this afternoon that the new company would not buy any mills, as it was not the purpose of the combination to control the sources of production. All the stores—there are more than forty, which the United Companies and its allies will own in whole or in part—will be free to purchase from whatever interests they wish, without being restricted to any one market or to the product of any special mills. The general business will be directed from the city, but resident directors at different centres will have full charge of the detail work."

***New York Evening Post,
May, 25-26, 1909.***

{134}

COMBINATIONS: A. D. 1909.

The illegality of a Trust invalidates a debt to it.

In a suit brought by the Continental Wall Paper Company to recover a debt, payment of which was resisted on the ground that the Company was an illegal combination in restraint of trade, the Supreme Court of the United States, on the 1st of February, 1909, affirmed a judgment of the Circuit Court of Appeals which had dismissed the suit. The case was so decided by a bare majority of one. The opinion of the majority, delivered by Justice Harlan, held that a judgment in favor of the Company would give effect to agreements constituting the illegal combination. "Upon the whole case," said Justice Harlan, "and without further citation of authority, we adjudge upon the admitted facts that the combination represented by the plaintiff in this case was illegal under the anti-trust

act of 1890; is to be taken as one intended, and which would have the effect, directly to restrain and monopolize trade among the several states and with foreign states; and that the plaintiff cannot have a judgment for the amount of the account sued on because such a judgment would, in effect, be in aid of the execution of agreements constituting that illegal combination. We consequently hold that the circuit court of appeals properly sustained the third defense in the case and rightly dismissed the suit."

In the dissenting opinion by Justice Holmes and others it was set forth that "whenever a party knows that he is buying from an illegal trust, and still more when he buys at a price that he thinks unreasonable, but is compelled to pay in order to get the goods he needs, he knows that he is doing an act in furtherance of the unlawful purpose of the trust, which always is to get the most it can for its wares. But that knowledge makes no difference, because the policy of not furthering the purposes of the trust is less important than the policy of preventing people from getting other people's property for nothing when they purport to be buying it."

COMBINATIONS: A. D. 1909-1910.
Morgan & Co. Banking Combination.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES.

COMBINATIONS: A. D. 1910.
Special Message of President Taft
on Legislation touching "Trusts."

An important special Message, recommendatory of legislation on the two subjects of interstate commerce and the combinations called "Trusts," was addressed to Congress by President Taft on the 7th of January, 1910. It had been expected that the Executive would advise amendments to the Sherman Anti-Trust

Law, so-called, but he did not. On the contrary he favored the policy of leaving that law untouched, on the ground that its defects have been cured already to a great extent by judicial decisions, and that it is safer and better for the business interests of the country to trust the law to the gradual molding which the courts are giving it, than to undertake amendments which would start anew series of judicial interpretations. But the President's conclusions on this point were supplemented by the advocacy of an enactment to provide for the federal chartering of corporations engaged in interstate commerce, as a means of substituting continuous regulation of such organizations for the spasmodic and disturbing investigations which the Government is now compelled frequently to institute.

In part, the President's discussion of these questions is as follows:—

"The statute has been on the statute book now for two decades, and the Supreme Court in more than a dozen opinions has construed it in application to various phases of business combinations and in reference to various subjects-matter. It has applied it to the union under one control of two competing interstate railroads, to joint traffic arrangements between several interstate railroads, to private manufacturers engaged in a plain attempt to control prices and suppress competition in a part of the country, including a dozen States, and to many other combinations affecting interstate trade. The value of a statute which is rendered more and more certain in its meaning by a series of decisions of the Supreme Court furnishes a strong reason for leaving the act as it is, to accomplish its useful purpose, even though if it were being newly enacted useful suggestions as to change of phrase might be made.

"It is the duty and the purpose of the Executive to direct an investigation by the Department of Justice, through the grand

jury or otherwise, into the history, organization, and purposes of all the industrial companies with respect to which there is any reasonable ground for suspicion that they have been organized for a purpose, and are conducting business on a plan which is in violation of the Anti-Trust law. The work is a heavy one, but is not beyond the power of the Department of Justice, if sufficient funds are furnished, to carry on the investigations and to pay the counsel engaged in the work. But such an investigation and possible prosecution of corporations whose prosperity or destruction affects the comfort not only of stockholders, but of millions of wage-earners, employees, and associated tradesmen, must necessarily tend to disturb the confidence of the business community, to dry up the now flowing sources of capital from its places of hoarding, and produce a halt in our present prosperity that will cause suffering and strained circumstances among the innocent many for the faults of the guilty few. The question which I wish in this message to bring clearly to the consideration and discussion of Congress is whether in order to avoid such a possible business danger something cannot be done by which these business combinations may be offered a means, without great financial disturbance, of changing the character, organization, and extent of their business into one within the lines of the law under Federal control and supervision, securing compliance with the anti-trust statute.

"Generally, in the industrial combinations called 'Trusts,' the principal business is the sale of goods in many States and in foreign markets; in other words, the interstate and foreign business far exceeds the business done in any one State. This fact will justify the Federal government in granting a Federal charter to such a combination to make and sell in interstate and foreign commerce the products of useful manufacture under such limitations as will secure a compliance with the Anti-Trust law. It is possible so to frame a statute that while it offers protection to a Federal company against harmful, vexatious, and unnecessary invasion by the States, it

shall subject it to reasonable taxation and control by the States, with respect to its purely local business.

{135}

"Many people conducting great businesses have cherished a hope and a belief that in some way or other a line may be drawn between 'good Trusts' and 'bad Trusts,' and that it is possible, by amendment to the Anti-Trust law, to make a distinction under which good combinations may be permitted to organize, suppress competition, control prices, and do it all legally, if only they do not abuse the power by taking too great profit out of the business. ... Now, the public, and especially the business public, ought to rid themselves of the idea that such a distinction is practicable or can be introduced into the statute. Certainly under the present Anti-Trust law no such distinction exists. It has been proposed, however, that the word 'reasonable' should be made a part of the statute, and then that it should be left to the court to say what is a reasonable restraint of trade, what is a reasonable suppression of competition, what is a reasonable monopoly. I venture to think that this is to put into the hands of the court a power impossible to exercise on any consistent principle which will insure the uniformity of decision essential to just judgment. It is to thrust upon the courts a burden that they have no precedents to enable them to carry, and to give them a power approaching the arbitrary, the abuse of which might involve our whole judicial system in disaster.

"In considering violations of the Anti-Trust law, we ought, of course, not to forget that that law makes unlawful, methods of carrying on business which before its passage were regarded as evidence of business sagacity and success, and that they were denounced in this act, not because of their intrinsic immorality, but because of the dangerous results toward which they tended, the concentration of industrial power in the

hands of the few, leading to oppression and injustice. In dealing, therefore, with many of the men who have used the methods condemned by the statute for the purpose of maintaining a profitable business, we may well facilitate a change by them in the method of doing business. ...

"To the suggestion that this proposal of Federal incorporation for industrial combinations is intended to furnish them a refuge in which to continue industrial abuses under Federal protection, it should be said that the measure contemplated does not repeal the Sherman Anti-Trust law, and is not to be framed so as to permit the doing of the wrongs which it is the purpose of that law to prevent, but only to foster a continuance and advance of the highest industrial efficiency without permitting industrial abuses. ...

"A Federal compulsory license law, urged as a substitute for a Federal incorporation law, is unnecessary except to reach that kind of corporation which, by virtue of the considerations already advanced, will take advantage voluntarily of an incorporation law, while the other State corporations doing an interstate business do not need the supervision or the regulation of a Federal license and would only be unnecessarily burdened thereby.

"The attorney-general, at my suggestion, has drafted a Federal incorporation bill embodying the views I have attempted to set forth, and it will be at the disposition of the appropriate committees of Congress."

COMBINATIONS: A. D. 1910.

Renewed investigation of the Beef Trust.

A renewed investigation of the business methods of the great meat-packing concerns at Chicago, by the grand jury of the United States District Court, Judge K. M. Landis, was begun on the 24th of January, 1910. It is understood to have special

reference to the causes of the rising prices of meats. The firms against which the Government is thus preparing to proceed are: Swift & Co., Armour & Co., and Morris & Co., who, it is alleged, control the National Packing Company, for their common benefit.

-----COMBINATIONS: End-----

COMMERCE AND LABOR, The United States Department of.

See (in this Volume)
UNITED STATES: A. D. 1903 (FEBRUARY).

COMMERCIAL UNIVERSITIES, in Germany:
Their recent rise.

See (in this Volume)
EDUCATION: GERMANY: A. D. 1898-1904.

"COMMISSION PLAN," of City Government.

See (in this Volume)
MUNICIPAL GOVERNMENT.

COMMITTEE OF ONE HUNDRED.

See (in this Volume)
PUBLIC HEALTH.

COMMITTEE OF UNION AND PROGRESS.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

COMMODITIES CLAUSE, of the Hepburn Act:
Supreme Court decision on.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1906-1909.

COMMUNAL SYSTEM, Russian:
Its modification.

See (in this Volume)
RUSSIA: A. D. 1906 AND 1909 (APRIL).

CONCENTRATION CAMPS.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

CONCILIATION BOARDS, Canadian.

See (in this Volume)
LABOR ORGANIZATION: CANADA: A. D. 1907-1908.

CONCILIATION COMMITTEE, of National Civic Federation.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902.

CONCORDAT OF 1802, The.

See (in this Volume)
FRANCE: A. D. 1905-1906.

CONFÉDÉRATION GÉNÉRALE DU TRAVAIL.

See (in this Volume)
LABOR ORGANIZATION: FRANCE: A. D. 1884-1909.

CONFERENCE OF STATE GOVERNORS.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

CONFERENCES FOR EDUCATION IN THE SOUTH, Annual.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1898-1909.

CONGER, Edwin H.: U. S. Minister to China.

See (in this Volume)

CHINA: A. D. 1903 (MAY-OCTOBER).

CONGESTED ESTATES.

See (in this Volume)

IRELAND: A. D. 1909.

{136}

-----CONGO STATE: Start-----

CONGO STATE:

How the natives have been enslaved and oppressed.

The "Domaine Privé."

"The Berlin Conference laid it down that no import dues should be established in the mouth of the Congo for twenty years. But in 1890 King Leopold, alleging the heavy expenses to which he had been put by the campaign against the Arabs in the Upper Congo, applied for permission to levy import duties. It was the first disillusionment; and the British Chambers of Commerce began to wonder whether their opposition to the Anglo-Portuguese Convention had not been mistaken. The King's request was granted (the Powers merely reserving to themselves the right to revert to the original arrangement in fifteen years), but not without the bitter opposition of the Dutch, who had very important commercial interests in the Congo,

backed by the British Chambers of Commerce and all the traders in the Congo, irrespective of nationality. A representative gathering was held in London on November 4th, 1900, presided over by Sir Albert Rollit, to protest against the imposition of import duties and to denounce the hypocrisy which attributed to philanthropic motives the desire on the part of the Congo State so to impose upon them. ...

"They were able to show that ... King Leopold, notwithstanding his formal assurances to the commercial world that the Congo State would never directly or indirectly itself trade within its dominions, was buying, or rather stealing, ivory from the natives in the Upper Congo and retaining the proceeds of the sale on the European market. They proved that, profiting by the silence of the Berlin Treaty on the subject of export duties, the Congo State had already imposed taxes amounting to 17½ per cent. on ivory, 13 per cent, on rubber and 5 per cent. on palm kernels, palm-oil and ground-nuts, the total taxation amounting to no less than 33 per cent. of the value of the whole of the trade. Finally they had no difficulty in demonstrating that, with all his professed wish to stamp out the slave-raiding carried on by the half-caste Arabs in the Upper Congo, His Majesty was himself tacitly encouraging the slave trade by receiving tribute from conquered Chiefs in the shape of slaves, who were promptly enrolled as soldiers in the State army. ...

"Five months after the termination of the Berlin Conference King Leopold issued a decree (July, 1885) whereby the State asserted rights of proprietorship over all ***vacant lands*** throughout the Congo territory. It was intended that the term vacant lands should apply in the broadest sense to lands not ***actually occupied*** by the natives at the time the decree was issued. By successive decrees, promulgated in 1886, 1887 and 1888, the King reduced the rights of the natives in their land to the narrowest limits, with the result that the whole of the odd 1,000,000 square miles assigned to the Congo State,

except such infinitesimal proportions thereof as were covered by native villages or native farms, became '**terres domaniales.**' On October 17th, 1889, the King also issued a decree ordering merchants to limit their commercial operations in rubber to bartering with the natives. This decree was interesting merely as a forewarning of what came later, because at that time the rubber trade was very small. In July, 1890, the same year as the Brussels Conference, the Congo State went a step further. A decree issued in that month confirmed all that was advanced in November of the same year by the speakers at the London Conference held to protest against the imposition of import duties by the State. By its terms King Leopold asserted that the State was entitled to trade on its own account in ivory—the first open violation of his pledges. Moreover the decree imposed sundry extra taxes upon all ivory bought by merchants from the natives, which, since the State had become itself a trading concern, constituted an equally direct violation of the Berlin Act, by establishing differential treatment in matters of trade. Such were the plans King Leopold made, preparatory to obtaining from the Powers the power to impose import duties. Everything was ready for the great **coup**, which should also inaugurate the Fifth Stage of His Majesty's African policy.

"The Brussels Conference met. The Powers with inconceivable fatuity allowed themselves to be completely hoodwinked, and within a year the greatest injury perpetrated upon the unfortunate natives of Africa since the Portuguese in the XVth century conceived the idea of expatriating them for labour purposes had been committed, and committed too by a Monarch who had not ceased for fifteen years to pose as their self-appointed regenerator. On September 21st, 1891, King Leopold drafted, in secret, a decree which he caused to be forwarded to the Commissioners of the State in the Uban-ghi-Welle and Aruwimi-Welle districts, and to the Chiefs of the military expeditions operating in the Upper Ubanghi district. This decree never having been published in the

official Bulletin of the State, its exact terms can only be a matter of conjecture, but we know that it instructed the officials to whom it was addressed 'to take urgent and necessary measures to preserve the fruits of the domain to the State, especially ivory and rubber.' By 'fruits of the domain' King Leopold meant the products of the soil throughout the 'vacant lands' which he had attributed to himself, as already explained, by the decree of 1885. The King's instructions were immediately followed, and three circulars, dated respectively Bangala, 15th December, 1891, Basankusu, 8th May, 1892, and Yokoma, 14th February, 1892, were issued by the officials in question. Circular Number 1 forbade the natives to hunt elephants unless they brought the tusks to the State's officers. Circular Number 2 forbade the natives to collect rubber unless they brought it to the State's officers. Circular Number 3 forbade the natives to collect either ivory or rubber unless they brought the articles to the State's officers, and added that 'merchants purchasing such articles from the natives, whose right to collect them the State only recognised provided that they were brought to it, would be looked upon as receivers of stolen goods and denounced to the judicial authorities.' Thus did the Sovereign of the Congo State avail himself of the additional prestige conferred upon him by the Brussels Conference. ...

{137}

"In theory, then, the decrees of September, 1891, and October, 1892, made of the native throughout the *Domaine Privé* a serf. In theory a serf he remained, for a little while. But as the grip of Africa's regenerator tightened upon the *Domaine Privé*, as the drilled and officered cannibal army, armed with repeating rifles, gradually grew and grew until it was larger than the native forces kept up by any of the great Powers of Europe on African soil, as the radius of the rubber taxes was extended, as portions of the country began to be farmed out to so-called 'Companies' whose agents were also

officials of the King, the native of the *Domaine Privé* became a serf not in theory only but in fact, ground down, exploited, forced to collect rubber at the bayonet's point, compelled to pay onerous tribute to men whose salaries depend upon the produce returns from their respective stations—the punishment for disobedience, slothfulness or inability to comply with demands ever growing in extortion, being anything from mutilation to death, accompanied by the destruction of villages and crops."

*E. D. Morel,
The Belgian Curse in Africa
(Contemporary Review, March, 1902).*

CONGO STATE: A. D. 1903-1905.

The alleged oppressiveness, barbarity, and rapacity of its administration under King Leopold.

Observations of Lord Cromer on the Nile border.

Reports of a British Consular Officer, and of King Leopold's Belgian Commission.

Action of the British Government.

Serious accusations of oppression and barbarity in the exploiting of the natural wealth of the so-called Independent Congo State, under the administration of its royal proprietor, King Leopold, of Belgium, were beginning to be made a dozen years ago, as will be seen by reference to the subject in Volume VI. of this work. The King and the companies which operated in the region under his grants were reputed to be taking enormous profits from it. Of one of those concessionaire companies, sometimes referred to as the A. B. I. R. Co. and sometimes as "the Abir," it was stated in 1901 that its £40,000 of shares could have been sold for £2,160,000, and that half of its profits went to Leopold. But, as was said later by a member of the British Parliament, who wrote on the subject in one of the reviews, "meanwhile Europe was becoming aware of the price that was being paid in Africa

for these profits in Belgium. Travellers, missionaries of various nationalities, administrators in the neighbouring territories belonging to England and France, sent home graphic reports of the cruel oppression that was being practised on the helpless population. In England especially, through the efforts of Sir Charles Dilke, of Mr. Fox-Bourne, the secretary of the Aborigines Protection Society, of Mr. E. D. Morel and of other disinterested men, public opinion was informed of the truth. In May, 1903, a resolution, which I had the honor of moving in the House of Commons, calling upon the Government to take action with a view to the abatement of the evils prevalent in the Congo Free State, was accepted by Mr. Balfour and unanimously passed. A diplomatic correspondence ensued between the two governments. The British Consul in the Lower Congo, Mr. Roger Casement, was sent on a tour of inquiry into the interior, and his lengthy and detailed report fully confirmed—in some respect extending—the indictment that had been drawn. A Congo Reform Association was founded, and immediately secured influential support. ... At last King Leopold, pressed by the despatches of the British Government and bowing to the storm of public opinion, yielded so far as to authorise further inquiry into the charges that had been made. The investigation by an International Commission, which had been proposed, he rejected. He nominated three Commissioners of his selection, one a legal officer in the service of the Belgian Government, one a judge in the service of the Congo State, and the third a Swiss jurist of repute. In October, 1904, the Commission reached the Congo. It stayed for five months and made an extended journey into the interior. After an unexplained delay of eight months its report was published on the 6th of November of this year [1905]. ...

"Had the report embodied an acquittal of the Congo State it would not, under the circumstances, have been surprising. The Commissioners, however, have to a great degree risen superior to their natural prepossessions. ... It is most regrettable ... that they present no minutes of the evidence taken before

them—a circumstance which deprives the report of actuality and force, and prevents outside observers from drawing their own conclusions from the facts which had been ascertained. But the inquiry was painstaking. The case was fairly tried. The judgment is an honest judgment.

"Being honest, it is necessarily a condemnation. The Belgian defenders of the Congo Government, who were led by a conception of patriotic duty as profoundly false as that of the anti-Dreyfusards in France to deny everything and to meet the critics merely with unceasing torrents of abuse, now have their answer. A tribunal, not of our choosing, selected by the defendant in their cause, has shown that those who denounced Congo misrule were in the right, that the atrocities were not imaginary, that a cruel oppression of the natives has been proceeding unchecked for years."

***Herbert Samuel,
The Congo State
(Contemporary Review, December, 1905).***

Before this report appeared many witnesses had testified for and against the impeached Government and its commercial monopoly of the Congo State. Atrocities of slaughter, mutilation and flogging, committed by the soldiery, the sentries and other extortioners of a labor tax from the helpless natives, were asserted and denied. It is best, perhaps, to drop these blackest counts from the Congo indictment, because of the controversy over them; and enough remains in the Report of the King's own Commission of Inquiry, and in general conditions which are flagrantly in evidence, to convict King Leopold and his agents of soulless rapacity, in their treatment of the vast African country that was entrusted to him by the Conference of Powers assembled at Berlin in 1884-1885.

There is great weight of meaning, for example, in a few words

that were written, in January, 1903, by Lord Cromer, while returning from a long trip up the Nile, in which his steamer passed along about eighty miles of Congolese shore. Before reaching that border of Leopold's domain he had traversed 1100 miles of the country lately wrested by the British from dervishes and slave dealers, where, he remarks, "it might well have been expected that much time would be required to inspire confidence in the intentions of the new Government." But, "except in the uninhabitable 'Sudd' region," he wrote, "numerous villages are dotted along the banks of the river.

{138}

The people, far from flying at the approach of white men, as was formerly the case, run along the banks, making signs for the steamer to stop. It is clear that the Baris, Shilluks, and Dinkas place the utmost trust and confidence in the British officers with whom they are brought in contact. ...

"The contrast when once Congolese territory is entered is remarkable. From the frontier to Gondokoro is about 80 miles. The proper left, or western, bank of the river is Belgian. The opposite bank is either under the Soudanese or the Uganda Government. There are numerous islands, and as all these are under British rule—for the thalweg which, under Treaty, is the Belgian frontier, skirts the western bank of the river—I cannot say that I had an opportunity of seeing a full 80 miles of Belgian territory. At the same time, I saw a good deal, and I noticed that, whereas there were numerous villages and huts on the eastern bank and on the islands, on the Belgian side not a sign of a village existed. Indeed, I do not think that any one of our party saw a single human being in Belgian territory, except the Belgian officers and men and the wives and children of the latter. Moreover not a single native was to be seen either at Kiro or Lado. I asked the Swedish officer at Kiro whether he saw much of the natives. He replied in the negative, adding that the nearest Bari village was situated at some distance in the interior. The Italian officer at Lado, in reply to the same question, stated that the nearest native

village was seven hours distant. The reason of all this is obvious enough. The Belgians are disliked. The people fly from them, and it is no wonder they should do so, for I am informed that the soldiers are allowed full liberty to plunder, and that payments are rarely made for supplies. The British officers wander, practically alone, over most parts of the country, either on tours of inspection or on shooting expeditions. I understand that no Belgian officer can move outside the settlements without a strong guard."

This is in line with some parts of the experience of Mr. Casement, the British Consular Officer referred to in the article quoted above, who travelled for about ten weeks on the Upper Congo in 1903, and whose report of what he saw includes such accounts as the following, of conditions around Lake Matumba:

"Each village I visited around the lake, save that of Q. and one other, had been abandoned by its inhabitants. To some of these villages the people have only just returned; to others they are only now returning. In one I found the bare and burnt poles of what had been dwellings left standing, and at another—that of R—the people had fled at the approach of my steamer, and despite the loud cries of my native guides on board, nothing could induce them to return, and it was impossible to hold any intercourse with them. At the three succeeding villages I visited beyond R., in traversing the lake towards the south, the inhabitants all fled at the approach of the steamer, and it was only when they found whose the vessel was that they could be induced to return."

An incident related by Mr. Casement is this:

"Steaming up a small tributary of the Lulonga, I arrived, unpreceded by any rumour of my coming, at the village of A. In an open shed I found two sentries of the La Lulanga Company guarding fifteen native women, five of whom had infants at the

breast, and three of whom were about to become mothers. The chief of these sentries, a man called S—who was bearing a double-barrelled shot-gun, for which he had a belt of cartridges—at once volunteered an explanation of the reason for these women's detention. Four of them, he said, were hostages who were being held to insure the peaceful settlement of a dispute between two neighbouring towns, which had already cost the life of a man. ... The remaining eleven women, whom he indicated, he said he had caught and was detaining as prisoners to compel their husbands to bring in the right amount of india-rubber required of them on next market day. When I asked if it was a woman's work to collect india-rubber, he said, 'No; that, of course, it was man's work.' 'Then why do you catch the women and not the men?' I asked. 'Don't you see,' was the answer, 'if I caught and kept the men, who would work the rubber? But if I catch their wives, the husbands are anxious to have them home again, and so the rubber is brought in quickly and quite up to the mark.' When I asked what would become of these women if their husbands failed to bring in the right quantity of rubber on the next market day, he said at once that then they would be kept there until their husbands had redeemed them."

***Parliamentary Papers, Africa,
Number 1 (1904), Cd. 1933.***

But the facts which condemn the Congo administration most conclusively are found in the report of the Commission of Inquiry appointed by King Leopold himself,—especially in what it represents of the heartless oppression of the labor tax, or labor imposed on the natives, in their compulsory carrying of goods or collection of rubber, food and wood, for the State and for the companies that operate under the King's grants. As to the labor tax exacted in food, for example, the Commission expresses itself as follows:

"The decree fixes at forty hours per month the work which each

native owes to the State. This time, considered as a maximum, is certainly not excessive, especially if one takes account of the fact that the work ought to be remunerated; but as in the immense majority of cases ... it is not precisely the work which is demanded of the native, but rather a quantity of products equivalent to forty hours of work, the criterion of time disappears in reality and is replaced by an equivalent established by the Commissioner of the district after diverse methods. ...

"**Chikwangué** (kwanga) is nothing but manioc bread. ... The preparation of this food requires many operations: the clearing of the forest, the planting of manioc, the digging up of the root and its transformation into **chikwangué**, which comprises the operations of separating the fibers and stripping the bark, pulverizing, washing, making it into bundles, and cooking it. All these operations, except clearing the land, fall to the women. The **chikwangués** so prepared are carried by the natives to the neighboring post and served for the food supply of the personnel of the State—soldiers and laborers. ... As the **chikwangué** keeps only a few days, the native, even by redoubling his activity, cannot succeed in freeing himself from his obligations for any length of time.

{139}

The requirement, even if it does not take all his time, oppresses him continually by the weight of its recurrent demands, which deprive the tax of its true character and transform it into an incessant **corvée**. ... Doubtless the adage, 'time is money,' cannot be applied to the natives of the Congo; it is none the less inadmissible that a taxpayer should be obliged to travel over ninety-three miles to carry to the place of collection a tax which represents about the value of twenty-nine cents. ...

"Natives inhabiting the environs of Lulonga were forced to journey in canoes to Nouvelle-Anvers, which represents a

distance of forty to fifty miles, every two weeks, to carry their fish; and taxpayers have been seen to submit to imprisonment for delays which were perhaps not chargeable to them, if we take into account the considerable distances to be covered periodically to satisfy the requirements of the tax."

As applied to the collection of rubber, the so-called labor tax was found by the commission to consume so much of the time of the natives subjected to it that it practically made slaves of them, and nothing less.

When the abused native is pretendedly paid for his labor or its product, it is by some trifle in metal or flimsy woven stuff, which costs the State and its tributary companies next to nothing and is next to worthless to the recipient.

And not only does the State exercise over the unfortunate subjects that were delivered to it an authority of Government which appears to be little else than a power of extortion, but it has taken all their lands from them, substantially, and left them next to nothing on which to perform any labor for themselves. It has decreed to itself the ownership of all land not included in the native villages or not under cultivation. Concerning which decree the Commission remarks:

"As the greater part of the land in the Congo has never been under cultivation, this interpretation gives to the State a proprietary right, absolute and exclusive, to almost all the land, and as a consequence it can grant to itself all the product of the soil and prosecute as robbers those who gather the smallest fruit and as accomplices those who buy the same. ... It thus happens sometimes that not only have the natives been prohibited from moving their villages, but they have been refused permission to go, even for a time, to a neighboring village without a special permit."

In the summer of 1903 the British Government was moved to

address a formal communication to all the Powers which had been parties to the Act of the Berlin Conference of 1884-1885, whereby the Congo State was created and entrusted to King Leopold, asking them to consider whether the system of government and of trade monopoly established in that State was in conformity with the provisions of the Act. The British Foreign Secretary, Lord Lansdowne, in his despatch (August 8, 1903), rehearsed at length the charges that were brought against the Congo administration, concerning its extortion of labor from the natives by a method "but little different from that formerly employed to obtain slaves," saying: "His Majesty's Government do not know precisely to what extent these accusations may be true; but they have been so repeatedly made, and have received such wide credence, that it is no longer possible to ignore them, and the question has now arisen, whether the Congo State can be considered to have fulfilled the special pledges, given under the Berlin Act, to watch over the preservation of the native tribes, and to care for their moral and material advancement."

At the same time, the dispatch called the attention of the Powers to the question of rights of trade in the Congo, saying: "Article I of the Berlin Act provides that the trade of all nations shall enjoy complete freedom in the basin of the Congo; and Article V provides that no Power which exercises sovereign rights in the basin shall be allowed to grant therein a monopoly or favour of any kind in matters of trade. In the opinion of His Majesty's Government, the system of trade now existing in the Independent State of the Congo is not in harmony with these provisions. ... In these circumstances, His Majesty's Government consider that the time has come when the Powers parties to the Berlin Act should consider whether the system of trade now prevailing in the Independent State is in harmony with the provisions of the Act; and, in particular, whether the system of making grants of vast areas of territory is permissible under the Act if the effect of such grants is in practice to create a monopoly of

trade."

***Parliamentary Papers, Africa,
Number 14 (1903), Cd. 1809.***

CONGO STATE: A. D. 1904.

Feeling in Belgium concerning the charges of oppression and inhumanity to the natives.

See (in this Volume)

BELGIUM: A. D. 1904.

CONGO STATE: A. D. 1906-1909.

Reform Decrees and their small effect.

Continued reports of rapacious exploitation.

Concession secured by American capitalists.

Annexation of the State by Belgium.

Recognition of the annexation withheld by

Great Britain and the United States.

Apparently the endeavor of the British Government to set in motion some action of the Powers which had been parties to the creation of the Congo State, for the purpose of ascertaining whether the provisions of the Berlin Act were being complied with in the administration of that great trust, had no practical result. During the next two years the Congo Government was persistent in denying and attempting to refute some parts of the reports sent home by British consular officers in the Congo; but after the publication of the report of its own investigating Commission, in 1905, there seems to have been more reticence observed. In June, 1906, a series of new decrees, supposed to embody the recommendations of the Reforms Commission, was sanctioned by the King. But the Consuls who reported to London from the Congo country do not seem to have found the wretched natives much relieved by these decrees. Vice-Consul Armstrong, writing from Boma December, 1907, after a prolonged journey through rubber-collecting

regions, declared his conviction that "the people worked from twenty to twenty-five days a month" to satisfy their labor tax. He added:

"The improvement that has been made by the application of the Reform Decrees of June 1906 is solely in the withdrawal of armed sentries, a reform which the serious decimation of the population by the sentries demanded. ... I saw nothing which led me to view the occupation of this country in the light of an Administration.

{140}

The undertakings of the Government are solely commercial, with a sufficient administrative power to insure the safety of its personnel and the success of its enterprise. ... The following is an estimate of the profits of the State on their rubber tax. I take the village of N'gongo as being a large one, and one of the few villages that supply the amount actually assessed:—

Amount assessed yearly. 1,440 kilograms of rubber.

£ s. d.

1,440 kilograms of rubber at 10 fr.

576 0 0

Amount paid to natives at 50 c. per kilogram

28 16 0

"I calculate the rubber at 10 fr. per kilogram, the value placed upon it by the State in the Commercial Report issued this year. The market value in Antwerp is from 12 fr. to 13 fr. per kilogram. From this amount of 576£. must be deducted the cost of transport, which cannot be more than 2 fr. per kilogram rendered at Antwerp, so that the net profits derived from this one village would be a little more than 456£. per

annum. One hundred and twenty natives, together with their wives and children, which would bring the population of the town to about 400 souls, share this amount of 28£ 16s., and as this is paid in cloth at 7½d. per yard and salt at 1s. 7½d. per kilogram, it is evident that they cannot receive very much each, and that they complain of their remuneration."

These were not the only official witnesses now testifying to the barbarities of commercial exploitation that were perpetrated in the Congo country under pretences of administering the Government of a State. Reports to the same effect were coming to the Government of the United States from its Consuls in the Congo. Consul-General C. R. Slocum wrote on the 1st of December, 1906, to the Department of State at Washington:

"I have the honour to report that I find the Congo Free State, under the present regime, to be nothing but a vast commercial enterprise for the exploitation of the products of the country, particularly that of ivory and rubber. Admitted by Belgian officials and other foreigners here, the State, as I find it, is not open to trade in the intended sense of article 5 of the Berlin Act under which the State was formed."

A year later, the succeeding Consul-General of the United States in the Congo State, Mr. James A. Smith, made a similar report:

"In excluding the native," he wrote, "from any proprietary right in the only commodities he possessed which would serve as a trade medium—that is, the products of the soil—and in claiming for itself and granting to a few concessionary companies in which it holds an interest exclusive ownership of these products, the Administration, in its commercial capacity, has effectively shut the door to free trade and created a vast monopoly in all articles the freedom of buying and selling which alone could form a proper basis for

legitimate trade transactions between the native and independent purchasers. Competition, by which alone can a healthy condition of trade be maintained, has been entirely eliminated. The Government is but one tremendous commercial organization; its administrative machinery is worked to bar out all outside trade and to absolutely control for its own benefit and the concessionary companies the natural resources of the country."

In the same report Mr. Smith gave details of an experiment he had made, in conjunction with the ***chef de secteur*** at Yambata, to test the truth of the assertions made by the natives as to the length of time necessary to gather the rubber which they are compelled to furnish. The place for the experiment was selected by the ***chef de secteur***, and he chose the five natives who were employed in the experiment, and who were promised rewards as an incentive to do their best. The men worked for four hours, and although Mr. Smith vouches for the fact that they did not lose a minute, they only succeeded in gathering 650 grammes. From this, as Mr. Smith argues, the amount of time they would have to spend in collecting the rubber tax works out at 93 hours a month, or, counting eight hours a day, at 140 days a year. This did not include the time spent in travelling to and from the rubber-bearing districts.

Before this time, American interest in the Congo State had become more than humanitarian, and more than a commercial interest in the general opportunities of trade; for heavy American capitalists had secured concessions from King Leopold in a large territory for the development of railways, rubber production and mines. The fact was announced in the fall of 1906, and the names of John D. Rockefeller, Jr., Thomas F. Ryan, Harry Payne Whitney, Edward B. Aldrich and the Messrs. Guggenheim were mentioned as prominent in the group to which the grant was made.

Under the Convention of 1890 between King Leopold and the Congo State, as one party, and the Kingdom of Belgium as the other, it became the right of the latter, on the expiration of ten years, in 1900, to annex the Congo State to itself.

See, in Volume VI. of this work,
CONGO STATE: A. D. 1900.

The right was not then exercised; but the question of taking over the sovereignty of that great African domain came under warm discussion in Belgium before many years, and, finally, in 1908, it reached the point of a keen negotiation of terms with the King, attended by lively conflicts in the Belgian Chambers. While the question was thus pending in Belgium, the British Government took occasion to express its views to the Belgian Government, as to the obligations which such an annexation would involve. This was done on the 27th of March, 1908, in a despatch from the Foreign Minister, Sir Edward Grey, communicating an extended "Memorandum respecting Taxation and Currency in the Congo Free State." The language of the despatch, in part, was as follows:

"His Majesty's Government fully recognize that the choice of the means by which the administration of the Congo may be brought into line by the Berlin Act rests exclusively with Belgium. Nevertheless, while disclaiming all idea of interference, His Majesty's Government feel that in fairness they should leave the Belgian Government in no doubt that in their opinion the existing administration of the Congo State has not fulfilled the objects for which the State was originally recognized, or the conditions of Treaties, and that changes are therefore required, which should effect the following objects:

1. Relief of the natives from excessive taxation.
2. The grant to the natives of sufficient land to ensure their ability to obtain not only the food they require, but also sufficient produce of the soil to enable them to buy and sell

as in other European Colonies.

3. The possibility for traders whatever their nationality may be to acquire plots of land of reasonable dimensions in any part of the Congo for the erection of factories so as to enable them to establish direct trade relations with the natives. ...

{141}

"Taking the three points enumerated above in order, it appears to His Majesty's Government that—

"1. As regards the question of taxation in labour, the abuses to which the system has given rise have only been rendered possible by the absence of a proper standard of value. They believe, therefore, that the only sure and efficacious means of precluding the existence of such abuses in the future is the introduction of currency throughout the State at the earliest possible date. Both the Reports of the Commission of Inquiry and the experience of His Majesty's Consular officers agree in the conclusion that the native has learnt the use of money, and that currency would be welcomed by all classes, native and European alike.

"2. The natives in the concessionary areas should not be compelled, by either direct or indirect means, to render their labour to the Companies without remuneration. The introduction of currency should contribute greatly to the protection of the native against the illicit and excessive exactions on the part of private individuals. Such protection, however, cannot be adequately secured unless the latter be compelled to pay the native in specie at a fair rate to be fixed by law.

"3. They would urge that a large increase should be made in the land allotted to the natives."

The exceptional failure of the Congo State, among African

colonies, to introduce the use of currency in transactions with the natives, and the connection of this failure with the state of things existing there, is discussed at length in the Memorandum, with a practical summing up in these sentences:

"The Secretaries-General said the native in the Congo had no specie. True, but why has he no specie? Because, as already explained, during the twenty-three years that the Congo State has been in existence no serious attempt, in spite of all assertions to the contrary, has ever been made by the State to introduce currency on a sufficiently large scale. In every other European Colony in Africa has the native come to learn the practical value of a medium of exchange. What are the reasons that the Congo State should stand in an exceptional position in this respect? They are unfortunately obvious enough. The truth is that it is precisely owing to the absence of a proper standard of value that the Congo Government and the Concessionary Companies have been able to abuse the system of taxation in labour, and realize enormous profits out of the incessant labour wrung from the population in the guise of taxation."

This communication from Great Britain to the Belgian Government was followed soon (in April) by memoranda from the Government of the United States, setting forth the hopes and expectations of administrative reform with which it contemplated the proposed annexation of the Congo State.

A few months later the treaty of annexation was agreed upon, and the annexation consummated by an Act of the Belgian Parliament, promulgated on the 20th of October, 1908. To an announcement of the fact by the Belgian Minister at Washington, Secretary Root replied at considerable length, in a communication which bears the date of June 11, 1909: "The Government of the United States," said the Secretary, "has observed with much interest the progress of the negotiations looking to such a transfer, in the expectation that under the

control of Belgium the condition of the natives might be beneficially improved and the engagements of the treaties to which the United States is a party, as well as the high aims set forth in the American memoranda of April 7 and 16, 1908, and declared in the Belgium replies thereto, might be fully realized.

"The United States would also be gratified by the assurance that the Belgian Government will consider itself specifically bound to discharge the obligations assumed by the Independent State of the Congo in the Brussels Convention of July 2, 1890, an assurance which the expressions already made by the Government of Belgium in regard to its own course as a party to that convention leave no doubt is in entire accordance with the sentiments of that Government. Among the particular clauses of the Brussels Convention which seem to the United States to be specially relevant to existing conditions in the Congo region are the clauses of Article II., which include among the objects of the convention:

"'To diminish intestine wars between tribes by means of arbitration; to initiate them in agricultural labour and in the industrial arts so as to increase their welfare; to raise them to civilization and bring about the extinction of barbarous customs. ...

"'To give aid and protection to commercial enterprises; to watch over their legality by especially controlling contracts for service with natives; and to prepare the way for the foundation of permanent centres of cultivation and of commercial settlements.'

"The United States has been forced to the conclusion that in several respects the system inaugurated by the Independent State of the Congo has, in its practical operation, worked out results inconsistent with these conventional obligations and calling for very substantial and even radical changes in order

to attain conformity therewith." Moreover, it renders nugatory the provisions of the successive declarations and conventions, cited by the Secretary, which have given such rights in the Congo State to citizens of the United States and others as must be maintained.

"It should always be remembered," wrote Mr. Root, "that the basis of the sovereignty of the Independent State of the Congo over all its territory was in the treaties made by the native Sovereigns who ceded the territory for the use and benefit of free States established and being established there under the care and supervision of the International Association, so that the very nature of the title forbids the destruction of the tribal rights upon which it rests without securing to the natives an enjoyment of their land which shall be a full and adequate equivalent for the tribal rights destroyed."

Referring to a statement made in the Belgian reply given to his memorandum of April 16, which he quotes as in these words:—

{142}

"When it annexes the possessions of the Independent State Belgium will inherit its obligations as well as its rights; it will be able to fulfil all the engagements made with the United States by the declarations of April 22, 1884"—Mr. Root closes his letter with these remarks:

"It would be gratifying to the United States to know that the last clause of the statement just quoted is not intended to confine the rights of the United States in the Independent State to the declarations of the Commercial Association which preceded the creation of the Congo State as a sovereign power, but includes the conventional rights conferred upon the United States by the treaty concluded with the Independent State immediately after its recognition.

"In the absence of a fuller understanding on all these points, I confine myself for the present to acknowledging your note of November 4 last and taking note of the announcement therein made."

Thus no recognition was given to the Belgian annexation. Recognition was held in abeyance, awaiting further information and evidence of reform in the administration of the Congo State. And this is the attitude assumed by the British Government, which waited long and with growing impatience for assurances from Belgium, with proceedings that would give sign of making them good. On the 24th of February, 1909, the subject came up in Parliament, with assertions that "oppression of the natives was still going on just as before the annexation," and that "Great Britain had waited for months while the cruelties against which she had protested still continued." In the debate, Sir Charles Dilke referred to the harmony of action in the matter by the United States and Great Britain, and expressed his conviction that "the cooperation of two such powerful Governments in the cause of humanity would be irresistible." Sir Edward Grey, speaking for the Ministry, said:

"I am glad that in the course of the debate it has been emphasized that this attitude is not ours alone, but that the United States has spoken with equal emphasis and taken up the same position. I am sorry that no other Power has taken up the same position so strongly; but as there is only one Power which has declared itself so definitely on the question as ourselves, I should like to say that I am glad it is the United States."

Alluding to a remark made by one of the speakers in the debate, that the Government might have prevented the annexation of the State by Belgium, Sir Edward said:

"I do not think we should have prevented the annexation, but in any case I should not have tried to prevent the annexation. And for this reason among others—that if Belgium was not going to take the Congo State in hand and put it right, who was? I have never been able to answer that question. Certainly not ourselves, because we have always denied the intention of assuming any responsibility over an enormous tract of land where we have sufficient responsibility already."

The Foreign Secretary concluded his speech by saying:

"If Belgium makes the administration of the Congo humane and brings it into accord, in practice and spirit, with the administration which exists in our own and neighbouring African colonies, no country will more cordially welcome that state of things than this or more warmly congratulate Belgium. But we cannot commit ourselves to countersign, so to say, by recognition a second time, the system of administration which has existed under the old regime."

Again, in May, the question came up in Parliament, with impatient criticism of the Government for not taking peremptory measures to compel a reformation of Belgian rule in the Congo State, one speaker suggesting a "peaceful blockade" of the mouth of the Congo. Sir Edward Grey replied:

"If this question were rashly managed it might make a European question compared to which those which we have had to deal with in the last few months might be child's play. Take, for instance, the question of peaceful blockade. It is no good talking of peaceful blockade. Blockade is blockade. It is the use of force. If you are to have blockade you must be prepared to go to war, and a blockade of the mouth of the Congo means blockading a river which is not the property of the Congo or Belgian Government. They have one bank of the river. It is a river which by international treaty must be opened to navigation, and if you are to blockade to any effect you must

be prepared to stop every ship going in or out of the Congo, whether under the French, Belgian, German, or whatever flag it is. Surely if you are going to pledge yourself to take steps of that kind, and to accept the responsibility for them, it is not too much to say that you must be prepared to raise a European question which would be of the gravest kind. I do not say there are not circumstances which might justify a question of that kind, but do not let the House think that by smooth words, such as by applying the adjective 'peaceful' to blockade, you are going to minimize what will be the ultimate consequences of the step you are taking."

CONGO STATE: A. D. 1909 (October).

Programme of reforms promised by the Belgian Government.

The programme of long promised reforms to be instituted by the Belgian Government in its administration of the now annexed Congo State was announced in the Belgian Chamber on the 28th of October, 1909, by the Minister for the Colonies, M. Renkin.

"He repeated his solemn assurance that the charges of cruelty or oppression made against the Belgian Colonial Administration were false. He had questioned missionaries, officials, chiefs, and other natives during his visit, and heard nothing to justify the accusation. Individual breaches of the law might possibly have occurred, but every abuse brought to the notice of the authorities was immediately made the object of inquiry.

"It was useless, he said, to refer to the past; the situation had been radically altered by the annexation. As regards the land system, the assignment of vacant lands to the State was juridically unassailable, but they must also have regard to the development of the natives. The natives would therefore be granted the right to take the produce of the soil in the Domain. This would be accomplished in three stages. On July 1, 1910, the Lower Congo, Stanley Pool, Ubangi, Bangala, Kwango, Kasai, Katanga, the southern portion of the Eastern Province, Aruwimi, and the banks of the river as far as Stanleyville

would be opened to freedom of trade. On July 1, 1911, the Domain of the Crown, and on July 1, 1912, the Welle district would also be thrown open. Furthermore, the Government would levy taxes in money, and the system of the provisioning of the agents would be abolished."

{143}

M. Renkin said furthermore that in regard to the territories held by *concessionnaires* in the Congo the Government would make an investigation with a view to ascertaining whether it would not be advisable to make fresh arrangements in agreement with the persons interested.

Writing from Brussels a month later, an English correspondent represents the Belgian Reformers, who had most bitterly denounced the atrocities of the Leopold regime in the Congo State, as believing that M. Renkin's scheme is on the whole a reasonable and satisfactory scheme, and above all a practical scheme, that the Belgian Government are sincerely determined to carry it through, and that, even if there were any sufficient reason for doubting their sincerity, the Belgian nation is in earnest and has the means of enforcing the execution of the reforms by the exercise of the Parliamentary control with which it is now for the first time invested over the affairs of the Congo as a consequence of annexation.

On the other hand, English opinion, which had been roused to much heat on the Congo question, is far from satisfied with the Belgian proposals, and criticises them with a sharpness which the Belgians resent.

-----CONGO STATE: End-----

-----CONSERVATION OF NATURAL RESOURCES: Start-----

CONSERVATION OF NATURAL RESOURCES: Australia: Undertakings of Irrigation and Forestry.

During a brief visit to the United States in 1902, Sir Edmund Barton, then Premier of the Commonwealth of Australia, contributed to ***The Independent*** an article on "Australia and her Problems," in which he wrote:

"Another great problem with which we are struggling is that of irrigation, and a joint irrigation scheme is afoot for using the waters of the Murray, our greatest river, to fertilize lands in New South Wales and Victoria. The Murray forms the boundary of those two States and afterward flows through South Australia. It is to the interest of New South Wales and Victoria to use the waters of the Murray for irrigation purposes, and it is to the interest of South Australia to use the Murray for navigation. We hope to harmonize those interests and are working to that end.

"Just before I left Australia I attended a conference, held on the border, between representatives of the various States as a result of which each has appointed a hydraulic engineer to a joint commission on irrigation. These will make an investigation and report their opinion in regard to the best practicable system for conserving, storing and distributing the Murray's waters without interfering with its navigation. We have good reason to believe that by means of a system of locks and weirs it is quite possible to irrigate a very large extent of dry country by means of the Murray without injuring its navigability. Later we will take up the problem of using the waters of the Darling in a similar way. It is a very long river, which during the rainy season sends an immense Volume of water into the Murray.

"Another of our problems is in regard to forestry. We have planted some trees but not nearly enough of them, and cannot yet tell anything about results. Along with this tree

planting, also, denudation of our timber has been going on, for Australian hard woods, being impervious to water, are now used all over the world for street paving purposes. Great harm has been done, and the waste is still going on, for our national Government cannot interfere in the matter, and the land owners are in many instances reckless. The remedy must come from the common sense of the people."

Since the above was written, progress has been made in carrying out the projects of irrigation, as was stated in a speech by Lord Northcote after his return to England, in the autumn of 1909, from five years of service as Governor-General of Australia. "Both in New South Wales and Victoria," he said, "very large irrigation works are in progress, and will be completed in a very short time, adding enormously to the acreage of land fit for cultivation."

CONSERVATION OF NATURAL RESOURCES: Canada:
The Dominion Forest Reserves Act.
Irrigation in the Northwest.

A Dominion Act of 1906, thus short-titled, provides as follows:

"All Dominion lands within the respective boundaries of the reserves mentioned in the schedule to this Act are hereby withdrawn from sale, settlement and occupancy under the provisions of the Dominion Lands Act, or of any other Act, or of any regulations made under the said Act or any such Act, with respect to mines or mining or timber or timber licenses or leases or any other matter whatsoever; and after the passing of this Act no Dominion lands within the boundaries of the said reserves shall be sold, leased or otherwise disposed of, or be located or settled upon, and no person shall use or occupy any part of such lands, except under the provisions of this Act or of regulations made thereunder."

The schedule referred to lists 21 Forest Reserves in British Columbia, Manitoba, Saskatchewan, and Alberta. They are placed under the management of the Superintendent of Forestry, for the maintenance and protection of the growing timber, the animals and birds in them, the fish in their waters and their water supply, the Governor in Council to make the needed regulations.

In a paper read before the Royal Colonial Institute at London, England, in January, 1910, Mr. C. W. Peterson, Manager of the Canadian Pacific Irrigation Colonization Company, gave the following account of what is being done in the Arid Belt, so called, near Calgary, in the Canadian Northwest:

"The irrigated land in Alberta and Saskatchewan nearly equalled half of the total irrigated area of the United States. In the year 1894 the Dominion Government withdrew from sale and homestead entry a tract of land containing some millions of acres located east of the city of Calgary, along the main line of the Canadian Pacific Railway. The object of that reservation was to provide for the construction, ultimately, of an irrigation scheme to cover the fertile Bow River Valley. The Canadian Pacific Railway Company undertook to construct the gigantic irrigation system in question, and selected as part of its land grant a block comprising three million acres of the best agricultural lands. It had now been opened for colonization, and this project—the greatest of the kind on the American continent—was being pushed to its completion. The tract had an average width of forty miles from north to south, and extended eastwards from Calgary 150 miles."

{144}

CONSERVATION OF NATURAL RESOURCES: Egypt: A. D. 1909.
Completion of the Esneh Barrage.

An important addition to the irrigation works in Egypt,

supplementing the great dam at Assouan and the Assiout barrage, was completed in February, 1909, when the Esneh barrage was formally opened, on the 9th of that month. Esneh is a town of some 25,000 inhabitants, situated in Upper Egypt, on the west bank of the Nile, and the work now completed will, even in the lowest of floods, ensure a plentiful supply of water to a great tract of land in the Nile valley from Esneh northwards. In deciding to undertake the construction of this latest barrage, at a point about 100 miles north of the Assouan reservoir, the Government were influenced by the great success of the Assiout barrage, but that work differs from the new barrage in being designed as a low-water summer regulator, whereas the function of the Esneh barrage is to hold up the water in low floods.

CONSERVATION OF NATURAL RESOURCES: Germany:

The work begun a century ago, and its result.

"Germany, a century ago, faced just such a situation as now confronts us [the United States]. Then there began the work which we must now undertake. New forests were planted, wherever the land was unsuitable for other purposes. This planting was done year after year, so that each year a new tract would come to maturity. Forest wardens watched for fires, and laws forbade careless hunters setting fires in the woods. Timbermen were forced to gather and burn what twigs from the slashings could not be used in the still or burned for charcoal, and broad lanes were left through the forests as stops for fires. In this way there arose those magnificent German forests which now return the empire an average net annual profit of two dollars and a half for each acre, on land which is otherwise unusable; and, besides, give their services free for the storage of water and for the retention of the soil.

"In our own land something of this sort has already been done. New York has nearly two million acres of land in forest

reserves which are being carefully tended. Pennsylvania has half as much. Minnesota is already securing considerable profit from the management of its white pine reserves and is seeding down large areas; and the other lake states are also moving, but all this is being done slowly, and lacks much of the energy and cooperation which should accompany it."

***J. L. Mathews,
The Conservation of our National Resources
(Atlantic Monthly, May, 1908).***

CONSERVATION OF NATURAL RESOURCES: Great Britain:
Outline of undertakings by the Government in 1909.
Development and Road Improvement Act.

In his Budget speech to the House of Commons April 29, 1909, the Chancellor of the Exchequer, Mr. David Lloyd-George, gave a broad indication of undertakings contemplated by the Government, in forestry work (afforestation, or reafforestation) and on other lines directed toward a more effective preservation and development of the natural resources of the country. In the afforestation of the waste lands of the country, he said, "We are far behind every other civilized country in the world. I have figures which are very interesting on this point. In Germany, for instance, out of a total area of 133 million acres, 34 millions, or nearly 26 per cent., are wooded; in France, out of 130 million acres, 17 per cent.; even in a small and densely-populated country such as Belgium, 1,260,000 acres are wooded, or 17 per cent. In the United Kingdom, on the other hand, out of 77 million acres, only 3 millions, or 4 per cent., are under wood. Sir Herbert Maxwell, who has made a study of this question for a good many years, and whose moderation of statement is beyond challenge, estimates that, in 1906, 'eight millions were paid annually in salaries for the administration, formation, and preservation of German forests, representing the maintenance of about 200,000 families, or about 1,000,000 souls; and that in

working up the raw material yielded by the forests wages were earned annually to the amount of 30 millions sterling, maintaining about 600,000 families, or 3,000,000 souls.' The Committee will there perceive what an important element this is in the labour and employment of a country. Any one who will take the trouble to search out the census returns will find that the number of people directly employed in forest work in this country is only 16,000. And yet the soil and the climate of this country are just as well adapted for the growth of marketable trees as that of the States of Germany. Recently we have been favoured with a striking report of a Royal Commission, very ably presided over by my honourable friend the member for Cardiff. A perusal of the names attached to that report will secure for it respectful and favourable consideration. It outlines a very comprehensive and far-reaching scheme for planting the wastes of this country. The systematic operation which the Commission recommend is a gigantic one, and, before the Government can commit themselves to it in all its details, it will require very careful consideration by a body of experts skilled in forestry. I am informed by men whom I have consulted, and whose opinion on this subject I highly value, that there is a good deal of preliminary work which ought to be undertaken in this country before the Government could safely begin planting on the large scale indicated in that report. ... I am also told that we cannot command the services in this country of a sufficient number of skilled foresters to direct planting. ...

"I doubt whether there is a great industrial country in the world which spends less money directly on work connected with the development of its resources than we do. Take the case of agriculture alone. Examine the Budgets of foreign countries—I have done it with great advantage in other directions—examine them from this particular point of view, and honourable members, I think, will be rather ashamed at the contrast between the wise and lavish generosity of countries much poorer than ours and the short-sighted and niggardly parsimony

with which we dole out small sums of money for the encouragement of agriculture in our country. ...

"I will tell the House what we propose. There is a certain amount of money, not very much, spent in this country in a spasmodic kind of way on what I will call the work of national development—in light railways, in harbours, in indirect but very meagre assistance to agriculture.

{145}

I propose to gather all these grants together into one grant that I propose to call a development grant, and this year to add a sum of £200,000 to that grant for these purposes. ... The grant will be utilized in the promotion of schemes which have for their purpose the development of the resources of the country, and will include such objects as the institution of schools of forestry, the purchase and preparation of land for afforestation, the setting up of a number of experimental forests on a large scale, expenditure upon scientific research in the interests of agriculture, experimental farms, the improvement of stock—in respect of which I have had a good many representations from the agricultural community—the equipment of agencies for disseminating agricultural instruction, the encouragement and promotion of co-operation, the improvement of rural transport so as to make markets more accessible, the facilitation of all well-considered schemes and measures for attracting labour back to the land by small holdings or reclamation of wastes."

In realization of this programme an important "Development and Road Improvement Funds Act" was introduced by Mr. Lloyd-George in August, and passed, after considerable amendment of its administrative details in Committee of the Commons and in the House of Lords. It is divided into two parts, the first dealing with development, or the aiding and encouraging of agriculture and other rural industries, inclusive of forestry, reclamation and drainage of land, improvement of rural transport, construction and improvement of inland navigation

and harbors, and the development and improvement of fisheries. The Act enables the Treasury to make free grants and loans, from a Development Fund fed by an annual Parliamentary vote and by a charge on the Consolidated Fund. An independent Development Commission is to be appointed by the Treasury, consisting of five members appointed for ten years, whose recommendation for the rejection of applications shall be final, though not that for their acceptance. The second part of the Act sets up a Road Board to carry out schemes of road improvement, either under its own direct control or through the existing highway authorities.

CONSERVATION OF NATURAL RESOURCES: North America: International Conference of Delegates from Canada, Mexico, and the United States.

The movement instituted in the United States for a better conservation of the natural resources of the country was broadened, early in 1909, into a continental and international movement, by an invitation from President Roosevelt to the Governments of Canada and Mexico to send delegates to a general conference on the subject at Washington, for the purpose of arranging some cooperative and harmonious plans of action in the three countries. The invitation was cordially accepted in both of the neighboring countries, and the delegates sent were met, on the 18th of February, by many of the leaders of the conservation movement in the United States, including the National Conservation Commission. After being received and addressed by the President at the White House, a two days session of the Conference was held in the diplomatic room of the State Department, with good results.

CONSERVATION OF NATURAL RESOURCES: Turkey: A. D. 1909. Reclamation projects in the Tigris-Euphrates Delta.

See (in this Volume)
TURKEY: A. D. 1909 (OCTOBER).

CONSERVATION OF NATURAL RESOURCES: United States:

The Great Movement for an Arresting of Waste.

An organized National care-taking of Forests, Waters, Lands, and Minerals.

Forest Service, Irrigation, Development of Waterways.

It is more than possible that the administration of Government in the United States under President Roosevelt will be distinguished, in the judgment of coming generations, most highly by the impulse and the organization it gave to measures for conserving the natural resources of the country, in woods, water sources, mineral deposits and fertile or fertilizable soils,—rescuing them from a hitherto unrestrained recklessness of waste. The key-note of a new determination in governmental policy, pointed to this end, was sounded by the President in his first Message to Congress, on the 3d of December, 1901, when he opened the subject largely and earnestly, saying, among other things, this:

"The preservation of our forests is an imperative business necessity. We have come to see clearly that whatever destroys the forest, except to make way for agriculture, threatens our well-being. At present the protection of the forest reserves rests with the General Land Office, the mapping and description of their timber with the United States Geological Survey, and the preparation of plans for their conservative use with the Bureau of Forestry, which is also charged with the general advancement of practical forestry in the United States. These various functions should be united in the Bureau of Forestry, to which they properly belong. The present diffusion of responsibility is bad from every standpoint. It prevents that effective cooperation between the Government and the men who utilize the resources of the reserves, without which the interests of both must suffer. The scientific bureaus generally should be put under the Department of Agriculture. The President should have by law the power of

transferring lands for use as forest reserves to the Department of Agriculture. He already has such power in the case of lands needed by the Departments of War and the Navy. ...

"The wise administration of the forest reserves will be not less helpful to the interests which depend on water than to those which depend on wood and grass. The water supply itself depends upon the forest. In the arid region it is water, not land, which measures production. The western half of the United States would sustain a population greater than that of our whole country to-day if the waters that now run to waste were saved and used for irrigation. The forest and water problems are perhaps the most vital internal questions of the United States. ...

"The forests alone cannot, however, fully regulate and conserve the waters of the arid region. Great storage works are necessary to equalize the flow of streams and to save the flood waters. Their construction has been conclusively shown to be an undertaking too vast for private effort. Nor can it be best accomplished by the individual States acting alone. Far-reaching interstate problems are involved; and the resources of single States would often be inadequate. It is properly a national function. at least in some of its features. ...

{146}

"The reclamation of the unsettled arid public lands presents a different problem. Here it is not enough to regulate the flow of streams. The object of the Government is to dispose of the land to settlers who will build homes upon it. To accomplish this object water must be brought within their reach. ...
Whatever the Nation does for the extension of irrigation should harmonize with, and tend to improve, the condition of those now living on irrigated land. We are not at the starting-point of this development. Over two hundred millions

of private capital have already been expended in the construction of irrigation works, and many million acres of arid land reclaimed. A high degree of enterprise and ability has been shown in the work itself; but as much cannot be said in reference to the laws relating thereto. The security and value of the homes created depend largely on the stability of titles to water; but the majority of these rest on the uncertain foundation of court decisions rendered in ordinary suits at law. With a few creditable exceptions, the arid States have failed to provide for the certain and just division of streams in times of scarcity. Lax and uncertain laws have made it possible to establish rights to water in excess of actual uses or necessities, and many streams have already passed into private ownership, or a control equivalent to ownership."

***President's Message to Congress,
December 3, 1901.***

CONSERVATION OF NATURAL RESOURCES:

The Nationalizing of Irrigation Works.

The highest quality of statesmanship is represented by such recommendations as these. So far as concerned the proposed nationalization of irrigation works, to reclaim the arid lands of the West, they bore fruit within a year, in the passage by Congress of the Reclamation Act of June 17, 1902. It devoted most of the proceeds of the sale of public lands, in Arizona, California, Colorado, Idaho, Kansas, Montana, Nevada, New Mexico, North and South Dakota, Oklahoma, Utah, Washington, and Wyoming, to a special Reclamation Fund in the Treasury, for the creation and maintenance of irrigation works. This was a measure for which the late Major John W. Powell, Director of the United States Geological Survey, had labored incessantly for many years. In his book on "The Lands of the Arid Regions" he was the first to show the possibility of redemption for most of the wide spaces of land then supposed to be hopeless

desert, and he pleaded with Congress, session after session, for some national undertaking to store and distribute the waters from the mountains that would give life to their soil. In 1888 he succeeded so far as to win authority and means for investigating the water supply for the region, and from that time he had kept an efficient small corps of engineers at work in the survey and measurement of streams, accumulating information that was ready for immediate use when actual constructive work was taken in hand. At once, on the passage of the Reclamation Act, the Director of the Geological Survey, acting under the Secretary of the Interior, began the execution of plans already well matured, for irrigation in Arizona and Nevada; and was able three years later to report similar undertakings in progress within three of the ten Territories and thirteen States.

In May, 1908, the following statement of the reclamation work then in progress appeared in ***The Outlook***: "The work as a whole rivals the Panama Canal in the labor and expense involved. The employment of 16,000 men and the expenditure of \$1,250,000 every month are but incidents in the service. Already the canals completed reach a total of 1,815 miles—as far as from New York to Denver. Homes have been made for ten thousand families where before was desert. In the past five years \$33,000,000 has been spent, and the enterprises already planned will add more than a hundred millions to this sum. Nor is this money spent in one locality. In New Mexico one of the largest dams in the world is being constructed. In California and Nevada great reservoirs and irrigation plants are being built. In western Kansas the beet-sugar raisers are to have a \$250,000 plant for pumping the 'underflow,' or the sheet water found a few feet beneath the top-soil, of the Arkansas River Valley to the surface, that ditches may be filled and crops made certain. On seven great projects, involving the expenditure of \$51,000,000 and the reclamation of over a million acres, the benefit is directly to the Northwest. These projects lie in North and South Dakota, Montana, and

Washington. In these States lands that have been considered as worthless except for the coarsest kind of grazing are being transformed into productive farms. In South Dakota the largest earth dam in the world is being constructed, that ninety thousand acres of land may be made fertile; while just east of the Yellowstone Park is being built a solid wall of masonry 310 feet high to hold back the waters of the Shoshone River until a reservoir of ten square miles, capable of irrigating a hundred thousand acres, is formed. The production of these irrigated lands is marvelous."

The latest official statistics that are available represent the total of acres irrigated at the end of the year 1907 as being 11,000,000, in 167,200 farms, at an average cost (of constructive work) of \$13.46 per acre.

CONSERVATION OF NATURAL RESOURCES:

A National Forest Policy.

Less promptitude of action followed the President's urging of measures for forest preservation, and his warnings to Congress and the country, against the consequences of this inaction, were repeated from year to year. His Message of December, 1904, carried a specially urgent plea for legislation to unify the national forest work.

"I have repeatedly," he said, "called attention to the confusion which exists in Government forest matters because the work is scattered among three independent organizations. The United States is the only one of the great nations in which the forest work of the Government is not concentrated under one department, in consonance with the plainest dictates of good administration and common sense. The present arrangement is bad from every point of view. Merely to mention it is to prove that it should be terminated at once. As I have repeatedly recommended, all the forest work of the Government should be concentrated in the Department of Agriculture, where

the larger part of that work is already done, where practically all of the trained foresters of the Government are employed, where chiefly in Washington there is comprehensive first-hand knowledge of the problems of the reserves acquired on the ground, where all problems relating to growth from the soil are already gathered, and where all the sciences auxiliary to forestry are at hand for prompt and effective coöperation."

{147}

During its following session Congress took the desired action, and the whole forest service was transferred to the Department of Agriculture in February, 1905.

Early in June of that year the efforts of the President to waken attention to the seriousness of the forest destruction in the country were greatly helped by a notable convention at Washington of about twelve hundred men, having both interest and knowledge in the matter, who came together to discuss the problems involved. They were mostly practical foresters, intelligent lumbermen, railway men, ranch-owners, engineers and miners, and their urgency of a systematic conservative treatment of the surviving forest wealth of the country carried great weight. The convention was under the direction of the Secretary of Agriculture, and was addressed by the President.

During a journey through parts of the Southern States, in October, 1905, the President took occasion, in some of his speeches, to urge that a large part, at least, of the rapidly disappearing forests on the Atlantic side of the country should be nationalized, for preservation in the manner of the forest reserves of the Far West. In his Message of 1906 he submitted this to Congress, as a specific recommendation, saying that the forests of the White Mountains and the Southern Appalachian regions need to be preserved, and "cannot

be unless the people of the States in which they lie, through their representatives in the Congress, secure vigorous action by the National Government." This proposal encountered strong opposition from selfish interests, and Congress was prevailed upon with difficulty to authorize a survey of the forests of the White Mountains and the Southern Appalachians, which resulted in a recommendation by the Secretary of Agriculture that 600,000 acres in the former region and 5,000,000 in the latter be purchased for a National Reserve. A bill responsive to this recommendation was passed by the Senate, but rejected by the House, which appointed a commission, instead, to make further investigations in the matter. Meantime, in the White Mountains alone, busy slaughterers of the forests were said to be stripping three hundred acres per day.

On the eve of the adjournment of Congress in March, 1907, the President issued a proclamation adding some seventeen millions of acres of forest lands to the National Forest Reserves already established. This was just before he signed an Act of Congress which abridged his authority to create reserves in Colorado, Wyoming, Montana, Idaho, Oregon, and Washington. It was a characteristic proceeding, for which the President had ample power under a statute of 1891, and it simply held the forests designated in safety from destruction until the question of their treatment was more carefully considered. The next Congress, or the next President, could give them up to private ownership, in whole or in part, if the one or the other found reason for doing so. Meantime they were sheltered from the axeman, while undergoing study. As a matter of fact, Mr. Roosevelt's successor, President Taft, did conclude that some of the lands reserved should be released for sale, and so ordered soon after he entered the executive office.

CONSERVATION OF NATURAL RESOURCES:

The Inland Waterways Commission.

In his annual Message of December, 1907, the President

enlarged the range of considerations that connect themselves with the question of economic forestry, by directing attention to the importance of the waterways of the country and their claim to a more systematic development. "For the last few years," he said, "through several agencies, the Government has been endeavoring to get our people to look ahead, and to substitute a planned and orderly development of our resources in place of a haphazard striving for immediate profit. Our great river systems should be developed as National water highways; the Mississippi, with its tributaries, standing first in importance, and the Columbia second, although there are many others of importance on the Pacific, the Atlantic and the Gulf slopes. The National Government should undertake this work, and I hope a beginning will be made in the present Congress; and the greatest of all our rivers, the Mississippi, should receive especial attention. From the Great Lakes to the mouth of the Mississippi there should be a deep waterway, with deep waterways leading from it to the East and the West. Such a waterway would practically mean the extension of our coast line into the very heart of our country. It would be of incalculable benefit to our people. If begun at once it can be carried through in time appreciably to relieve the congestion of our great freight-carrying lines of railroads. ...

"The inland waterways which lie just back of the whole eastern and southern coasts should likewise be developed. Moreover, the development of our waterways involves many other important water problems, all of which should be considered as part of the same general scheme. The Government dams should be used to produce hundreds of thousands of horsepower as an incident to improving navigation; for the annual value of the unused water-power of the United States perhaps exceeds the annual value of the products of all our mines. As an incident to creating the deep waterway down the Mississippi, the Government should build along its whole lower length levees which taken together with the control of the headwaters, will at once and forever put a complete stop to all threat of

floods in the immensely fertile Delta region. The territory lying adjacent to the Mississippi along its lower course will thereby become one of the most prosperous and populous, as it already is one of the most fertile, farming regions in all the world. I have appointed an Inland Waterways Commission to study and outline a comprehensive scheme of development along all the lines indicated. Later I shall lay its report before the Congress."

The Inland Waterways Commission thus appointed by the President in March, 1907, gave its attention first to the project of a "Lakes-to-the-Gulf Deep Water Way," which had been commanding wide interest in the Mississippi Valley for some years. What the project, in its full magnitude, contemplated, was stated as follows in the resolutions of a great convention, of 4000 delegates, from 44 States, assembled at Chicago in October, 1908:

"Any plan for the inland waterway development so imperatively necessary to the material welfare of the valley should comprise a main trunk line in the form of a strait connecting Lake Michigan with the Gulf of Mexico by way of the Illinois and Mississippi rivers.

{148}

The development of this trunk line should begin at once. The improvement of the branches of this main line, such as the upper Mississippi, with its tributaries; the Ohio, with its leading tributaries, including the Tennessee and Cumberland; the Missouri, the Arkansas, the Red, the White, and other rivers, and the interstate inland waterway of Louisiana and Texas, should proceed simultaneously with the development of the principal line.

"The deep waterway is practically complete from Chicago to Joliet through the courage and enterprise of the single city of Chicago, which has by the expenditure of \$55,000,000 created a deep waterway across the main divide between the

waters of Lake Michigan and those of the Mississippi. A special board of survey, composed of United States engineers, reported to Congress in 1905 that the continuation of the deep waterway from Joliet to St. Louis was feasible and would cost only \$31,000,000. The State of Illinois, assuming that the Federal Government will take the responsibility of completing the waterway to the Gulf, is about to cooperate to the extent of \$20,000,000."

The waterway here mentioned as being "practically complete from Chicago to Joliet" is that known as the Chicago Drainage Canal. The \$20,000,000 with which the State of Illinois would cooperate in carrying out the whole project was voted by that State in November, 1908, for building an extension of the Drainage Canal from Joliet to Utica, Illinois, sixty-one miles, for a development of water power. The depth of these channels is and is to be twenty-four feet, and the project of the Lakes-to-the-Gulf Deep Waterway contemplated that depth throughout. The Board of Engineers to which the project was referred reported, however, in June, 1909, against the desirability of a waterway of such depth. Its cost from St. Louis to the Gulf is estimated to be \$128,000,000 for construction, and \$6,000,000 yearly for maintenance. In the judgment of the board, the present demands of commerce between St. Louis and the Gulf will be adequately met by an eight-foot channel from St. Louis to the mouth of the Ohio and a channel of not less than nine feet in depth below the mouth of the Ohio. The board's belief is that an eight-foot channel from Chicago to St. Louis corresponding with the eight-foot project from St. Louis to Cairo is the least that would adequately meet the demands of commerce. It adds that such a waterway would be desirable, provided its cost is reasonable. Present and prospective demands of commerce between Chicago and the Gulf would be adequately served, the board reports, by a through nine-foot channel to the Gulf.

In the States bordering on the Atlantic a "Deeper Waterways

Association" is pressing long-mooted plans for uniting the bays, sounds, and navigable rivers along the Atlantic coast by canals, thus affording safe deep-water communication from Boston on the east to Florida at the far south.

CONSERVATION OF NATURAL RESOURCES:

Conference of Governors at Washington.

In all his endeavors to establish a national policy directed, systematically and scientifically, to the arresting of waste in the use and treatment of the natural resources of the country, President Roosevelt was assisted very greatly by the knowledge and the energetic public spirit of the chief of the National Forest Service, Mr. Gifford Pinchot. It is understood to have been on the initiative of Mr. Pinchot that the crowning expedient for stirring and determining public feeling on the subject was planned, early in the winter of 1908, when the President invited the Governors of all the States and Territories to a Conference in Washington, for considering the whole question of an economic conservation of natural resources and concerting measures to that end. It was said, indeed, by the President, in addressing the meeting of Governors, that if it had not been for Mr. Pinchot "this convention neither would nor could have been called." The invitation went to others than Governors,—to men of national prominence in public life, in scientific pursuits, in business experience, and to heads of great associations. The resulting assembly at the White House, on the 13th, 14th, and 15th of May, 1908, marked an epoch in American history. There were Governors from forty of the forty-six States of the Union, with the President and members of his Cabinet, the Justices of the Supreme Court, many Senators and Representatives from the Congress, and a distinguished gathering of such citizens as William Jennings Bryan, Seth Low, James J. Hill, Andrew Carnegie, John Mitchell and Samuel Gompers. All sides of the national thriftlessness that needed correction were discussed by men who could best describe the evils produced and best

indicate the methods of remedy. Before adjourning their meeting the Governors present adopted with unanimity a declaration in which they say:

"We agree that our country's future is involved in this: that the great natural resources supply the material basis upon which our civilization must continue to depend, and upon which the perpetuity of the nation itself rests. We agree, in the light of the facts brought to our knowledge and from the information received from sources which we cannot doubt, that this material basis is threatened with exhaustion. ...

"We declare our firm conviction that this conservation of our natural resources is a subject of transcendent importance which should engage unremittingly the attention of the nation, the States, and the people in earnest cooperation. These natural resources include the land on which we live and which yields our food; the living waters which fertilize the soil, supply power, and form great avenues of commerce; the forests which yield the materials for our homes, prevent erosion of the soil, and conserve the navigation and other uses of the streams; and the minerals which form the basis of our industrial life, and supply us with heat, light, and power. ...

"We commend the wise forethought of the President in sounding the note of warning as to the waste and exhaustion of the natural resources of the country, and signify our high appreciation of his action in calling this Conference to consider the same and to seek remedies therefor through cooperation of the nation and the States. ...

"We agree in the wisdom of future conferences between the President, Members of Congress, and the governors of States on the conservation of our natural resources with a view of continued coöperation and action on the lines suggested; and to this end we advise that from time to time, as in his judgment may seem wise, the President call the governors of

States and Members of Congress and others into conference.

{149}

"We agree that further action is advisable to ascertain the present condition of our natural resources and to promote the conservation of the same; and to that end we recommend the appointment by each State of a commission on the conservation of natural resources, to coöperate with each other and with any similar commission of the Federal Government."

CONSERVATION OF NATURAL RESOURCES:

The National Conservation Commission and its Report.

The President acted with promptitude on the suggestion of a National Commission on the Conservation of Natural Resources, to coöperate with kindred State Commissions. Within a month he announced the appointment of such a Commission, composed of nearly fifty men of special qualification for the inquiries to be pursued, the recommendations to be made, and the action to be taken. All sections of the country are represented on the Commission, including such authorities on waters as Professor Swain, of the Massachusetts Institute of Technology; on forests, as Professor Graves, of the Yale Forestry School, and Mr. Charles Lathrop Pack, of New Jersey; on lands, as Ex-Governor Pardee, of California, and Mr. James J. Hill, the eminent railway president; on minerals, as Messrs. Andrew Carnegie, of New York, John Hays Hammond, of Massachusetts, and John Mitchell, of Illinois.

The Commission is divided into four sections, one to consider forests, another waters, a third minerals, and the fourth lands. Over these divisions is an executive committee, of which Mr. Gifford Pinchot is chairman. In each section there are representatives from the Senate and House of Representatives, and officials of Government from the Department which has to do with the subject referred to it.

State action on the lines commended by the Conference of Governors had already been instituted in a number of States, and in many others it was promptly set on foot; so that the desired coöperative organization of effort was soon well under way, and contributing to the first undertaking planned by the Executive Committee of the National Commission, which was the making of an inventory of the natural resources of the United States. So effective was the work done in the summer and fall of 1908 that a Second Conference of State Governors, jointly with the State and National Commissions, was found desirable, for consideration of the mass of facts collected as a basis for definite plans. The Second Conference, like the First, was in Washington, and it was opened on the 8th of December, under the chairmanship of the then President-elect of the United States, the Honorable William H. Taft. The draft of a report prepared to be made by the National Conservation Commission to the President of the United States was submitted confidentially to this Conference, and was sent to Congress a little later with its approval, as well as with that of the President. The Conference adopted, furthermore, two important resolutions, as follows:

"Resolved, That a joint committee be appointed by the chairman, to consist of six members of state conservation commissions and three members of the National Conservation Commission, whose duty it shall be to prepare and present to the state and national commissions, and through them to the governors and the President, a plan for united action by all organizations concerned with the conservation of natural resources. (On motion of Governor Noel, of Mississippi, the chairman and secretary of the conference were added to and constituted a part of this committee.) "

"We also especially urge on the Congress of the United States the high desirability of maintaining a National Commission on the Conservation of the Resources of the Country, empowered to

coöperate with State Commissions, to the end that every sovereign commonwealth and every section of the country may attain the high degree of prosperity and the sureness of perpetuity naturally arising in the abundant resources and the vigor, intelligence and patriotism of our people."

In subsequently communicating to Congress, on the 22d of January, 1909, the report of the National Conservation Commission, the President said:

"With the statements and conclusions of this report I heartily concur, and I commend it to the thoughtful consideration both of the Congress and of our people generally. It is one of the most fundamentally important documents ever laid before the American people. It contains the first inventory of its natural resources ever made by any nation."

The report of the Commission was prefaced by a brief explanatory statement from the Chairman of its Executive Committee, partly as follows:

"The executive committee designated in your letter creating the commission organized on June 19 and outlined a plan for making an inventory of the natural resources of the United States. On July 1 work was undertaken, accordingly, with the coöperation of the bureaus of the federal departments, authorities of the different States, and representative bodies of the national industries. The results of this coöperative work are herewith submitted as appendices of the commission's report. ... In its coöperation 'with other bodies created for similar purposes by States,' the National Conservation Commission has had most valuable assistance. Within the first month after the creation of the commission, the governors of 5 States had appointed conservation commissions, and an equal number of organizations of national scope had named conservation committees. At the time of the recent joint conservation conference 33 States and Territories had formed

conservation commissions. The number has now increased to 36, with indications that nearly all of the remaining States will soon take similar action. The number of national organizations which have appointed conservation committees is 41."

CONSERVATION OF NATURAL RESOURCES: An Inventory of Natural Resources.

From the report itself it is only possible, in this place, to glean a few of its most impressive and significant disclosures of fact. For example:

CONCERNING FORESTS.

"Forests privately owned cover three-fourths of the total forest area and contain four-fifths of the standing timber. The timber privately owned is not only four times that publicly owned, but is generally more valuable. Forestry is now practiced on 70 per cent. of the forests publicly owned, and on less than 1 per cent. of the forests privately owned, or on only 18 per cent. of the total area of forests.

"The yearly growth of wood in our forests does not average more than 12 cubic feet per acre. This gives a total yearly growth of less than 7,000,000,000 cubic feet.

{150}

"We have 200,000,000 acres of mature forests, in which yearly growth is balanced by decay; 250,000,000 acres partly cut over or burned over, but restocking naturally with enough young growth to produce a merchantable crop, and 100,000,000 acres cut over and burned over, upon which young growth is lacking or too scanty to make merchantable timber.

"We take from our forests yearly, including waste in logging and in manufacture, 23,000,000,000 cubic feet of wood. We use

each year 100,000,000 cords of firewood; 40,000,000,000 feet of lumber; more than 1,000,000,000 posts, poles, and fence rails; 118,000,000 hewn ties; 1,500,000,000 staves; over 133,000,000 sets of heading; nearly 500,000,000 barrel hoops; 3,000,000 cords of native pulp wood; 165,000,000 cubic feet of round mine timbers, and 1,250,000 cords of wood for distillation.

"Since 1870 forest fires have destroyed a yearly average of 50 lives and \$50,000,000 worth of timber. Not less than 50,000,000 acres of forest is burned over yearly. The young growth destroyed by fire is worth far more than the merchantable timber burned.

"One-fourth of the standing timber is lost in logging. The boxing of long-leaf pine for turpentine has destroyed one-fifth of the forests worked. The loss in the mill is from one-third to two-thirds of the timber sawed. The loss of mill product in seasoning and fitting for use is from one-seventh to one fourth. Of each 1000 feet, which stood in the forest, an average of only 320 feet of lumber is used.

"We take from our forests each year, not counting the loss by fire, three and a half times their yearly growth. We take 40 cubic feet per acre for each 12 cubic feet grown; we take 260 cubic feet per capita, while Germany uses 37 and France 25 cubic feet.

"We tax our forests under the general property tax, a method abandoned long ago by every other great nation. Present tax laws prevent reforestation of cut-over land and the perpetuation of existing forests by use.

"Great damage is done to standing timber by injurious forest insects. Much of this damage can be prevented at small expense.

"To protect our farms from wind and to reforest land best suited for forest growth will require tree planting on an area larger than Pennsylvania, Ohio, and West Virginia combined. Lands so far successfully planted make a total area smaller than Rhode Island; and year by year, through careless cutting and fires, we lower the capacity of existing forests to produce their like again, or else totally destroy them. ...

"By reasonable thrift we can produce a constant timber supply beyond our present need, and with it conserve the usefulness of our streams for irrigation, water supply, navigation and power. Under right management, our forests will yield over four times as much as now. We can reduce waste in the woods and in the mill at least one third, with present as well as future profit. ... We can practically stop forest fires at a cost yearly of one fifth of the value of the merchantable timber burned.

"We shall suffer for timber to meet our needs until our forests have had time to grow again. But if we act vigorously and at once, we shall escape permanent timber scarcity." The report adds much of interest on this subject.

CONSERVATION OF NATURAL RESOURCES: CONCERNING WATERS.

"Our mean annual rainfall is about 30 inches; the quantity about 215,000,000,000,000 cubic feet per year, equivalent to ten Mississippi rivers. Of the total rainfall over half is evaporated; about a third flows into the sea, the remaining sixth is either consumed or absorbed. These portions are sometimes called, respectively, the fly-off, the run-off and the cut-off. They are partly interchangeable. About a third of the run-off, or a tenth of the entire rainfall, passes through the Mississippi. The run-off is increasing with deforestation and cultivation.

"Of the 70,000,000,000,000 cubic feet annually flowing into the sea, less than 1 per cent. is restrained and utilized for municipal and community supply; less than 2 per cent. (or some 10 per cent. of that in the arid and semi-arid regions) is used for irrigation; perhaps 5 per cent, is used for navigation, and less than 5 per cent, for power. ...

"For irrigation it is estimated that there are \$200,000,000 invested in dams, ditches, reservoirs, and other works for the partial control of the waters; and that 1,500,000,000,000 cubic feet are annually diverted to irrigable lands, aggregating some 20,000 square miles. Except in some cases through forestry, few catchment areas are controlled, and few reservoirs are large enough to hold the storm waters. The waste in the public and private projects exceeds 60 per cent. while no more than 25 per cent. of the water actually available for irrigation of the arid lands is restrained and diverted.

"There are in continental United States 282 streams navigated for an aggregate of 26,115 miles, and as much more navigable if improved. There are 45 canals, aggregating 2,189 miles, besides numerous abandoned canals. Except through forestry in recent years, together with a few reservoirs and canal locks and movable dams, there has been little effort to control headwaters or catchment areas in the interests of navigation, and none of our rivers are navigated to more than a small fraction even of their effective low-water capacity.

"The water power now in use is 5,250,000 horse power; the amount running over government dams and not used is about 1,400,000 horse-power; the amount reasonably available equals or exceeds the entire mechanical power now in use, or enough to operate every mill, drive every spindle, propel every train and boat, and light every city, town, and village in the country. ... Nearly all the freshet and flood water runs to waste, and the low waters which limit the efficiency of power

plants are increasing in frequency and duration with the increasing flood run-off. ... The direct yearly damage by floods since 1900 has increased steadily from \$45,000,000 to over \$238,000,000. ...

"A large part of that half of the annual rainfall not evaporated lodges temporarily in the soil and earth. It is estimated that the ground water to the depth of 100 feet averages $16 \frac{2}{3}$ percent, of the earth-Volume, or over 1,400,000,000,000,000 cubic feet, equivalent to seven years' rainfall or twenty years' run-off. This subsurface reservoir is the essential basis of agriculture and other industries and is the chief natural resource of the country. It sustains forests and all other crops and supplies the perennial springs and streams and wells used by four-fifths of our population and nearly all our domestic animals. Its quantity is diminished by the increased run-off due to deforestation and injudicious farming."

{151}

CONSERVATION OF NATURAL RESOURCES: CONCERNING LANDS.

"The total land area of continental United States is 1,900,000,000 acres. Of this but little more than two-fifths is in farms, and less than one-half of the farm area is improved and made a source of crop production. We have nearly 6,000,000 farms; they average 146 acres each. The value of the farms is nearly one-fourth the wealth of the United States. There are more than 300,000,000 acres of public grazing land. The number of persons engaged in agricultural pursuits is more than 10,000,000. ...

"There has been a slight increase in the average yield of our great staple farm products, but neither the increase in acreage nor the yield per acre has kept pace with our increase

in population. Within a century we shall probably have to feed three times as many people as now; and the main bulk of our food supply must be grown on our own soil.

"The area of cultivated land may possibly be doubled. In addition to the land awaiting the plow, 75,000,000 acres of swamp land can be reclaimed, 40,000,000 acres of desert land irrigated, and millions of acres of brush and wooded land cleared. Our population will increase continuously, but there is a definite limit to the increase of our cultivated acreage. Hence we must greatly increase the yield per acre. The average yield of wheat in the United States is less than 14 bushels per acre, in Germany 28 bushels, and in England 32 bushels. We get 30 bushels of oats per acre, England nearly 45, and Germany more than 47. Our soils are fertile, but our mode of farming neither conserves the soil nor secures full crop returns. The greatest unnecessary loss of our soil is preventable erosion. Second only to this is the waste, nonuse, and misuse of fertilizer derived from animals and men."

CONSERVATION OF NATURAL RESOURCES: CONCERNING MINERALS.

"The available and easily accessible supplies of coal in the United States aggregate approximately 1,400,000,000,000 tons. At the present increasing rate of production this supply will be so depleted as to approach exhaustion before the middle of the next century.

"The known supply of high-grade iron ores in the United States approximates 3,840,000,000 tons, which at the present increasing rate of consumption can not be expected to last beyond the middle of the present century. In addition to this, there are assumed to be 59,000,000,000 tons of lower grade iron ores which are not available for use under existing conditions.

"The supply of stone, clay, cement, lime, sand, and salt is ample, while the stock of the precious metals and of copper, lead, zinc, sulphur, asphalt, graphite, quicksilver, mica, and the rare metals can not well be estimated, but is clearly exhaustible within one to three centuries unless unexpected deposits be found.

"The known supply of petroleum is estimated at 15,000,000,000 to 20,000,000,000 barrels, distributed through six separate fields having an aggregate area of 8,900 square miles. The production is rapidly increasing, while the wastes and the loss through misuse are enormous. The supply can not be expected to last beyond the middle of the present century.

"The known natural-gas fields aggregate an area of 9,000 square miles, distributed through 22 States. Of the total yield from these fields during 1907, 400,000,000,000 cubic feet, valued at \$62,000,000, were utilized, while an equal quantity was allowed to escape into the air. The daily waste of natural gas—the most perfect known fuel—is over 1,000,000,000 cubic feet, or enough to supply every city in the United States of over 100,000 population.

"Phosphate rock, used for fertilizer, represents the slow accumulation of organic matter during past ages. In most countries it is scrupulously preserved; in this country it is extensively exported, and largely for this reason its production is increasing rapidly. The original supply can not long withstand the increasing demand. ...

"The National Government should exercise such control of the mineral fuels and phosphate rocks now in its possession as to check waste and prolong our supply."

CONSERVATION OF NATURAL RESOURCES: CONCERNING LIFE AND HEALTH

"Since the greatest of our national assets is the health and vigor of the American people, our efficiency must depend on national vitality even more than on the resources of the minerals, lands, forests, and waters. ...

"Our annual mortality from tuberculosis is about 150,000. Stopping three-fourths of the loss of life from this cause, and from typhoid and other prevalent and preventable diseases, would increase our average length of life over fifteen years. There are constantly about 3,000,000 persons seriously ill in the United States, of whom 500,000 are consumptives. More than half this illness is preventable. ...

"The National Government has now several agencies exercising health functions which only need to be concentrated to become coordinated parts of a greater health service worthy of the nation."

CONSERVATION OF NATURAL RESOURCES: FINAL WORDS.

"The inventory of our natural resources made by your commission, with the vigorous aid of all federal agencies concerned, of many States, and of a great number of associated and individual cooperators, furnishes a safe basis for general conclusions as to what we have, what we use and waste, and what may be the possible saving. But for none of the great resources of the farm, the mine, the forest, and the stream do we yet possess knowledge definite or wide enough to insure methods of use which will best conserve them. ... The pressing need is for a general plan under which citizens, States and Nation may unite in an effort to achieve this great end. The lack of cooperation between the States and the Nation, and between the agencies of the National Government, is a potent cause of the neglect of conservation among the people. An organization through which all agencies, state, national, municipal, associate, and individual, may unite in a common

effort to conserve the foundations of our prosperity is indispensable to the welfare and progress of the nation. To that end the immediate creation of a national agency is essential."

{152}

CONSERVATION OF NATURAL RESOURCES:

Beginnings of a General Organization of all Conservation Agencies.

The Joint Committee which the Chairman of the Second Conference of Governors was instructed to appoint, for the preparation of "a plan for united action by all organizations concerned with the conservation of natural resources," met at Washington on the 5th of March, 1909, for its first consultation. The Committee, of eleven members, consists of six chairmen of State Conservation Commissions, and five who are members of the National Conservation Commission. In preparation for the meeting the various conservation bodies which have been actively at work for several months are sending in suggestions based on their own experience.

Action for the preservation and increase of forests has been stimulated in many if not all of the States of the Union by the national agitation of the subject in these late years. Nowhere has the influence been more effective than in New York, which has not only greatly enlarged its control and improved its care and treatment of the extensive forest tracts in the Adirondack region, but has done even more important reforestation work in other parts of its territory. "James S. Whipple, forest, fish and game commissioner, has not only planted more trees in this State than have been planted in any other State, or even by the national government, but this year he has made another great advance in the reforestation movement. The commission has sold to private land owners at cost 1,034,050 pine and spruce trees for reforestation land within

the State."

New York Evening Post,
April 24, 1909.

These trees went to every county of the State, in numbers ranging from 50 to 200,000.

CONSERVATION OF NATURAL RESOURCES:

Threatened Monopoly of Water Power.

See (in this Volume)

Combinations, Industrial, &c.: UNITED STATES: A. D. 1909.

CONSERVATION OF NATURAL RESOURCES:

Withdrawal of Water Power Sites from Land Office Entry.

What is said to be the largest number of acres of land withdrawn for temporary water power sites in the history of the Interior Department was made August 13, 1909, when Acting Secretary Wilson withdrew 87,360 acres along the Colorado River, in Utah. The land in question was withdrawn to prevent "monopolies," and with a view to procure legislation from Congress to preserve them to the Government.

CONSERVATION OF NATURAL RESOURCES:

The National Conservation Association.

"Great significance," said a Press despatch from Washington, September 16, 1906, "is attached here to-day to the announcement from Chicago of the formation of the National Conservation Association, with Charles W. Eliot, ex-president of Harvard University, as president. Friends of conservation interpret the launching of the new organization to mean that a national organization of the widest possible membership and the greatest possible scope is to supplant the American Forestry Association in administration favor as the

educational branch of the conservation movement."

Not long after its formation the Association issued an earnest appeal to the country to bring the pressure of its opinion on Congress for needed legislation. The special subject of this appeal was the vast coal field in Alaska, which can only be saved from monopoly by speedy amendment of existing laws. "We, therefore," said the Association, "appeal to the American people to bring the urgent needs of the situation to the attention of their representatives in Congress, in order that comprehensive legislation upon this vital matter may be enacted at the next session of Congress. To this end, every individual citizen is urged to do his part, and to act at once."

On the request of Dr. Eliot, Mr. Gifford Pinchot, after the withdrawal of the latter from the office of Chief Forester of the United States, was made President of the Association, in January, 1910, but Dr. Eliot was named Honorary President.

CONSERVATION OF NATURAL RESOURCES:

Legislation recommended by President Taft.

Earnestly upholding the Conservation policy instituted by his predecessor, President Taft, in a Special Message to Congress, January 14, 1910, recommended several measures of legislation, for which suggested bills had been drafted by the Secretary of the Interior.

"One of the most pressing needs," said the Message, "in the matter of public-land reform is that lands should be classified according to their principal value or use. ...

"It is now proposed to dispose of agricultural lands as such, and at the same time to reserve for other disposition the treasure of coal, oil, asphaltum, natural gas, and phosphate contained therein. This may be best accomplished by separating

the right to mine from the title to the surface, giving the necessary use of so much of the latter as may be required for the extraction of the deposits. The surface might be disposed of as agricultural land under the general agricultural statutes, while the coal or other mineral could be disposed of by lease on a royalty basis."

The importance of an enlargement of the undertakings of the Government in the line of irrigation works, for reclaiming arid lands, is urged by the President with great force, and he recommends "that authority be given to issue not exceeding \$30,000,000 of bonds from time to time, as the secretary of the interior shall find it necessary, the proceeds to be applied to the completion of the projects already begun and their proper extension, and the bonds running ten years or more to be taken up by the proceeds of returns to the reclamation fund, which returns, as the years go on, will increase rapidly in amount."

The Message gives approval to a Bill which passed the lower House of the late Congress, directing that "the national government appropriate a certain amount each year out of the receipts from the forestry business of the government to institute reforestation at the sources of certain navigable streams to be selected by the Geological Survey with a view to determining the practicability of thus improving and protecting the streams for Federal purposes."

Finally, on the subject of waterway improvement, the Message recommends the project of dams in the Ohio River from Pittsburg to Cairo, and in the Upper Mississippi from St. Paul to St. Louis.

CONSERVATION OF NATURAL RESOURCES: A. D. 1910.
Removal from office of Chief Forester Pinchot.
Investigation of charges against Secretary Ballinger.

Unfortunate differences between the Secretary of the Interior, Mr. Ballinger, and the head of the Bureau of Forestry, Mr. Pinchot, led to the removal of the latter from office early in January, 1910. As a further result, formal charges of unfaithfulness to public interests, in conducting national measures of conservation, were brought against Secretary Ballinger, and are undergoing investigation by a Congressional Committee at the time of the passing of this matter to the printers (March, 1910).

-----CONSERVATION OF NATURAL RESOURCES: End-----

{153}

CONSERVATIVE-UNIONIST PARTY:

Surrender of the Government in Great Britain.

Defeat in the Elections.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

CONSPIRACY LAW, British, as affecting Trades Unions.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND A. D. 1906 (MARCH).

CONSTABULARY, The Philippine.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1901-1902.

CONSTANTINOPLE: A. D. 1901.

Loss of political importance.

See (in this Volume)

RUSSIA: THE ASIATIC FUTURE.

CONSTANTINOPLE: A. D. 1908-1909.
The Turkish Revolution.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

CONSTITUTION OF AUSTRALIA:
Proposed Amendments.

See (in this Volume)
AUSTRALIA: A. D. 1909 and 1910.

CONSTITUTION OF BRITISH INDIAN GOVERNMENT:
The Indian Councils Act.

See (in this Volume)
INDIA: A. D. 1908-1909.

CONSTITUTION FOR CHINA:
Nine years of approach to it.
Promised for 1907.

See (in this Volume)
CHINA: A. D. 1905-1908, 1908 (December),
and 1909 (OCTOBER-NOVEMBER).

CONSTITUTION OF ENGLAND:
Resolution of the Commons contemplating a change affecting
the Legislative Power of the House of Lords.

See (in this Volume)
ENGLAND: A. D. 1906 (APRIL-DECEMBER), and 1910.

CONSTITUTION OF GEORGIA:
Suffrage Amendment.

See (in this Volume)

GEORGIA: A. D. 1908.

CONSTITUTION OF MONTENEGRO.

See (in this Volume)
BALKAN AND DANUBIAN STATES.

CONSTITUTION OF OKLAHOMA.

Some of the more radical features of the Constitution under which Oklahoma was admitted to the American Union are summarized in the following:

"Legislative authority is vested in a legislature, but the people reserve to themselves the power to propose laws and amendments to the constitution and to enact or reject the same at the polls independent of the legislature, and also reserve power at their own option to approve or reject at the polls any act of the legislature.

"Eight per cent of the legal voters have the right to propose any legislative measure and 15 percent of the legal voters have the right to propose amendments to the constitution by petition. A referendum may be ordered, except as to laws necessary for the immediate preservation of the public peace, health or safety, either by petition signed by 5 per cent of the legal voters or by the legislature as other bills are enacted. The veto power of the governor does not extend to measures voted on by the people. The powers of the initiative and referendum are also reserved to the legal voters of every county and district as to local legislation or action.

"Every railroad, car or express company is required to receive and transport without delay or discrimination each other's cars, loaded or empty, and passengers under such regulations as shall be prescribed by law or any commission created for that purpose. All oil-pipe companies are made subject to the

reasonable control and regulation of the corporation commission, to which telephone and telegraph lines are also subject in the same manner. No public-service corporation may consolidate with any other like corporation having under its control a parallel or competing line except by enactment of the legislature upon the recommendation of the corporation commission. The legislature, however, shall never enact any law permitting any public-service corporation to consolidate with any other public-service corporation organized under the laws of any other state or of the United States owning or controlling a parallel or competing line in the state. The giving of passes by railroad or transportation companies is forbidden except in the case of employés and other specified persons.

"A corporation commission is created, to be composed of three persons, elected by the people for terms of six years. The commission shall have power to supervise and control all transportation and transmission companies in the state in all matters relating to the performance of their public duties and their charges therefor and of correcting abuses and preventing unjust discrimination and extortion by such companies; and to that end the commission shall from time to time prescribe and enforce such rates, charges, classification of charges and rules and regulations and shall require the companies to establish and maintain until amended all such public service, facilities and conveniences as may be reasonable and just.

"Railroads, other than street or electric roads, are forbidden to charge more than 2 cents a mile for the transportation of passengers. The corporation commission may, however exempt those roads which submit proof that they cannot earn a just compensation for the services rendered by them to the public if not permitted to charge more than 2 cents a mile.

"No corporation may issue stock except for money, labor done or property actually received to the amount of the par value

thereof and all fictitious increase of stock or indebtedness shall be void.

"No corporation doing business in the state may be permitted to influence elections or official duty by contributions of money or anything of value.

"Every license issued or charter granted to a mining or public service corporation, foreign or domestic, must contain a stipulation that such corporation will submit any difference it may have with employés in reference to labor to arbitration.

"The selling by firms or corporations of commodities at a lower rate in one locality than in another for the purpose of creating a monopoly or for destroying competition is prohibited.

"Municipal corporations may not be created by special but by general laws, and every corporation now existing shall continue with its present rights and powers until otherwise provided by law. The powers of the initiative and referendum are reserved to the people of every municipal corporation. No municipal corporation may ever grant, extend or renew a franchise without the approval of a majority of the qualified electors residing within its limits, and no franchise may be granted, extended or renewed for more than twenty-five years.

Women are qualified to vote at school-district elections only.

{154}

-----CONSTITUTION OF PERSIA: Start-----

A Constitution for Persia was signed by the Shah, Muzaffer-ed-Deen, December 30, 1906, of which the following is, in part, the text:

In the name of God the all Merciful! Whereas by our Firman of the 5th August, 1906, we commanded the constitution of a National Assembly [Medjliss] for the progress and welfare of the State and nation, the strengthening of the foundations of the kingdom, and the carrying out of the laws of Islam; and whereas, in accordance with the clause by which it is provided that, as each individual member of the State has a right to take part in the superintendence and decision of public affairs, we therefore have permitted the election and appointment of Deputies on behalf of the nation; and whereas the National Assembly has been opened through our gracious benevolence, we have decreed the following Articles of constitutional Regulations for the National Assembly, including the duties and business of the Assembly and its limitations and relations toward Government Departments:

THE INSTITUTION OF THE ASSEMBLY.

[Articles 1-14 declare the National Assembly to be "composed of members elected at Tehran and in the provinces"; their place of meeting to be at Tehran; their number 160, but may if necessary be increased to 200; their term of service two years: they are "representative of the whole Persian nation"; the Tehran deputies to have "the option of instituting the Assembly and starting discussion and debates," and "their decisions by majority during the absence of the provincial deputies will be valid and are to be carried out." The Assembly itself is given the right to fix the time of its recess and its sitting; its members cannot be proceeded against by any person; its proceedings must be public and open to newspaper reporting, but false reporting shall be punished.]

THE DUTIES OF THE ASSEMBLY, ITS LIMITATIONS AND RIGHTS.

Article 15.

The National Assembly has the right to discuss truthfully and sincerely all matters it considers to be desirable in the interests of the State and nation to investigate; and, subject to the approval of a majority, to submit them, in the enjoyment of the utmost safety and confidence, with the approval of the Senate, to His Imperial Majesty the Shah, through the first person of the Government, for His Majesty's signature, and to be then put into execution.

Article 16.

In general, all laws necessary for the strengthening of the Government and kingdom, and the regulation of State affairs, and for the Constitution of Ministries, must receive the sanction of the National Assembly.

Article 17.

The necessary Bills for making new laws, or for the alteration, amplification, or cancellation of existing laws, will, when desirable, be prepared by the National Assembly to be submitted to His Imperial Majesty the Shah for signature with the approval of the Senate, and to be then put into execution.

Article 18.

The regulation of financial matters, the modification of the Budget, the alteration of the arrangement of taxation, the refusal or acceptance of impositions, as well as the inspections which will be undertaken by the Government, will be done with the approval of the Assembly.

Article 19.

The Assembly will have the right, for the purpose of reforming financial matters and facilitating the relations of the Governors and the apportioning of the provinces of Persia, and the reappointment of Governors, after the Senate has given its approval, to demand from the Government authorities that the decision arrived at should be carried out.

Article 20.

The Budget of each Ministry must be finished for the succeeding year in the last half of each year, and must be ready fifteen days before the 20th March.

Article 21.

Should it be necessary with regard to the constitutional laws of the Ministries to make a new law, or to alter or cancel existing laws, it will be done with the consent of the National Assembly, whether its necessity be first pointed out by the Assembly or by the responsible Minister.

Article 22.

Whenever a part of the revenue or property of the Government or State is to be sold, or a change of frontier or border becomes necessary, it will be done with the approval of the National Assembly.

Article 23.

Without the approval of the National Assembly no concession whatever for the formation of Companies or Associations shall be granted by the Government.

Article 24.

Treaties, Conventions, the granting of concessions, monopolies, either commercial, industrial, or agricultural, whether the other party be a native or a foreigner, can only be done with the approval of the National Assembly. Treaties which it may be in the interests of the Government or nation to keep secret are excepted.

Article 25.

All Government loans of any nature whatsoever, whether internal or foreign, will be made with the knowledge and approval of the National Assembly.

Article 26.

The construction of railways or roads, whether the cost be defrayed by the Government, by Associations or Companies, whether native or foreign, can only be undertaken with the approval of the National Assembly.

Article 27.

Should the Assembly find in any place a fault, in the laws or an irregularity in their fulfilment, it will draw the attention of the responsible Minister to the same, and he will have to give the necessary explanations.

Article 28.

Should a Minister, in contravention of one of the laws which have received the Imperial sanction, by misrepresentations obtain the issue of a written or verbal order from His Imperial Majesty the Shah, and excuse himself thereby for his delay and negligence, he will by law be responsible to His Imperial Majesty the Shah.

{155}

Article 29.

Whichever Minister who in a matter or matters should not be able to answer for his actions in accordance with the laws approved by His Imperial Majesty, and if it should be apparent that he has broken the law and transgressed the stipulated limitations, the Assembly will petition His Imperial Majesty for his dismissal, and when his fault has been determined by the Courts of Justice he will not again be allowed to serve the Government.

Article 30.

The National Assembly has the right whenever it considers it desirable to make petitions direct to His Imperial Majesty by the means of a body composed of the President and six Members elected by the six classes. The time for the audience must be

arranged for through the Minister of Court.

Article 81.

The Ministers have the right to be present at the sittings of the National Assembly, and to sit in the place set apart for them, and to hear the debates of the Assembly; and should they think it necessary, they may ask the President for permission to speak and give the necessary explanations for the discussion and investigation of affairs.

Article 32.

Any individual member of the public may make a statement of his case, or complaints or criticisms, to the office of the Assembly, and, if the matter concerns the Assembly itself, a satisfying answer will be given to him; but should the matter concern one of the Ministries, it will be sent to that Ministry for investigation, and in order that a satisfying answer be given.

Article 33.

New laws which are necessary will be prepared at the responsible Ministries, and will be given to the National Assembly by the responsible Minister or by the Sadr Azam, and after receiving the approval of the Assembly will receive His Imperial Majesty's sign-manual and be put into execution.

Article 34.

The President of the Assembly can, if necessary, of his own initiative or by the desire of ten Members of the Assembly or of a Minister, form a Secret Committee, without the presence of newspaper reporters or spectators, composed of a number of persons chosen from among the Members of the Assembly, at which the other Members of the Assembly will not have the right to attend. The result of the deliberations of the Secret Committee can, however, only be put into execution when the Secret Committee in the presence of three quarters of the persons elected accept the point at issue by a majority of

votes, and if the matter be not passed by the Secret Committee, it will not be stated in the Assembly and will remain secret.

Article 35.

Should the Secret Committee be instituted by the President of the Assembly, he has the right to inform the public of any part of it he thinks fit; but if the Secret Committee is instituted by a Minister, the publication of the debate can only be subject to that Minister's permission.

[Articles 36-42 are regulative of the transaction of business between the Assembly and the Ministries of the Government in matters of debate, inquiry, action on bills, etc.]

THE INSTITUTION OF THE SENATE.

Article 43.

Another Assembly, called the Senate, will be constituted, composed of sixty Members, whose sittings will coincide, after its constitution, with those of the National Assembly.

Article 44.

The Regulations of the Senate must receive the approval of the National Assembly.

Article 45.

The Members of the Assembly will be chosen from among the enlightened, intelligent, orthodox, and respectable persons of the State, thirty persons on behalf of His Imperial Majesty, of whom fifteen from among the inhabitants of Tehran and fifteen from the inhabitants of the provinces, and thirty persons on behalf of the nation, of whom fifteen persons elected by the people of Tehran and fifteen persons elected by the people of the provinces.

Article 46.

After the constitution of the Senate all affairs must receive the approval of both Assemblies. If those affairs are initiated by the Senate or by the body of Ministers, they must first be determined in the Senate and passed by a majority, and then be sent to the National Assembly for approval; but affairs initiated in the National Assembly will, on the contrary, pass from that Assembly to the Senate, with the exception of financial matters, which will be the prerogative of the National Assembly, and the Senate will be informed of the arrangements made by the Assembly regarding these affairs in order that the Senate should make its observations on the same to the National Assembly, which is, however, at liberty, after the necessary investigations, either to accept or to refuse the proposals of the Senate.

Article 47.

So long as the Senate is not constituted affairs will require only the approval of the National Assembly and the sign-manual of His Imperial Majesty to be put into execution.

[Article 48 provides for the constituting of a "third assembly," composed of an equal number of members from the National Assembly and the Senate, to deal with cases in which those two bodies are in disagreement, and for the ultimate dissolution of the National Assembly, preparatory to the election of a new one, in case no settlement of the disagreement is reached.

Article 49 allows the new Tehran deputies then elected to begin their labors, outside of the points at issue, as soon as they are ready.]

The conclusion of the Constitution is as follows:

Article 50.

During each term of election—that is to say, during two

years—a general election will not be called more than once.

Article 51.

It is decreed that the Sovereign who succeeds us should protect these limitations and Articles, which aim at the strengthening of the State and of the foundations of the kingdom, and the protection of justice and contentment of the nation, which we have decreed and put into execution, and which they must look upon as their duty to fulfil.

In the month of Zilkade the Unclean, 1324.

O God the Almighty!

The Constitutional Laws of the National Assembly and the Senate, containing fifty one Articles, are correct.

14th of the month of Zilkade, 1324
(30th December, 1906).

In the handwriting of Muzaffer-ed-Deen Shah;

It is correct.

(Sealed) Valiahd (Mohammed Ali Shah).

(Sealed) Mushir-ed-Dowleh (the Grand Vizier).

{156}

CONSTITUTION OF PERSIA:

The Constitutional Law, as passed by the National Assembly and signed by the Shah on October 8, 1907.

One hundred and seven articles "to complete the fundamental laws of the Constitution of Persia" were "added to the Constitutional law "by the signature of the Shah on the 30th of December, 1906. The first two are as follows:

Article 1.

The official religion of Persia is the branch of the Twelve Imams of the Shia Sect of Islam. The Sovereign of Persia must be of, and contribute to the spread of, this religion.

Article 2.

The National Assembly has been founded by the help of the Twelfth Imam, the bounty of His Islamic Majesty, the watchfulness of the Mujteheds and the common people. The laws passed by it must never to all ages be contrary to the sacred precepts of Islam, and the laws laid down by the Prophet. It is obvious that the decision as to whether the laws passed by the Assembly are in opposition to the precepts of Islam rests with the Ulema. It is therefore officially decreed that for all ages a Committee composed of five persons, who shall be Mujteheds and religious doctors, and who also must be acquainted with the requirements of the times, shall be elected in the following manner: The Ulema and doctors of Islam who are recognized by the Shias as the centre of imitation shall make known to the National Assembly the names of twenty of the Ulema possessing the above-mentioned qualities. The National Assembly shall, by agreement on casting of lots, elect five of them or more, according to the requirements of the age, and admit them as members. This Committee shall discuss and thoroughly investigate the Bills brought in by the National Assembly, and reject every one of these Bills which is contrary to the sacred precepts of Islam, in order that it may not become law. The decision of this Committee is final. This Article will not be liable to change until the advent of the Twelfth Imam.

[Articles 3-7 relate to boundaries of the Kingdom, its capital, its flag, protection of the lives and property of foreigners, and the integrity of the Constitution.

Articles 8-25 are in the nature of a "bill of rights," affirming equality of rights to all; immunity from arbitrary

arrest, punishment, exile or sequestration of property; freedom of "the study of teaching of arts, letters and sciences" "except in so far as they are forbidden by the Sheri"; freedom of publication for all "except heretical works"; freedom of "societies and associations which do not provoke religious or civil strife"; inviolability of postal and telegraphic communications, except under authority of law. All primary and secondary schools are placed under the direction and surveillance of the Ministry of Education.

Articles 26-29 define, as follows:

THE POWERS OF THE REALM.

Article 26.

The powers of the realm spring from the people. The Constitutional Law defines the method of using those powers.

Article 27.

The powers of the realm are divided into three parts:—

Firstly, legislative power, whose province it is to make and amend laws. This power emanates from His Imperial Majesty the Shah, the National Assembly, and the Senate. Each one of these three sources possesses the right of originating laws; but their passing is conditional to their not being contrary to the laws of the Sheri, and to the approval of the two Assemblies, and to their receiving the Imperial signature. But the making and approval of laws relating to the revenue and expenditure of the realm belong to the National Assembly alone. The interpretation and commentary of laws is the peculiar duty of the National Assembly.

Secondly, the judicial power, which consists in the distinguishing of rights. This power belongs to the Sheri Tribunals in matters appertaining to the Sheri, and to the Courts of Justice in matters appertaining to the civil law

("urf").

Thirdly, the executive power, which rests with the Sovereign. That is to say, the Laws and Decrees will be executed by the Ministers and Government officials in the name of His Imperial Majesty in the manner defined by law.

Article 28.

The three above-mentioned powers shall always be differentiated and separated from one another.

Article 29.

The particular revenues of each province, department, and commune shall be regulated by the Provincial and Departmental Assemblies in accordance with their own particular laws.

[Articles 30-34 define the status of the members of the National Assembly.]

RIGHTS AND POWERS OF THE CROWN.

[Articles 35-57 set forth the rights and powers of the Crown. The sovereignty of Persia is declared to be "a trust which, by the grace of God, has been conferred on the person of the Sovereign by the people." The succession is vested in Muhammed Ali Shah Kajar and his descendants; the Crown Prince to be "the eldest son of the Sovereign whose mother is a Persian and a princess." Provision is made for the election by a joint committee of the Senate and the National Assembly on the succession of a minor, who cannot govern personally till his age is eighteen. The powers of the sovereign are thus defined:]

Article 43.

The Sovereign cannot, without the approval and sanction of the National Assembly and the Senate, interfere in the affairs of another country.

Article 44.

The Sovereign is absolved from all responsibility. The Ministers of State are responsible in all matters.

Article 45.

All the Decrees and Rescripts of the Sovereign shall only be put into execution when they have been signed by the responsible Minister, who is responsible for the accuracy of the contents of that Firman or Rescript.

Article 46.

The dismissal and appointment of Ministers are by order of the Sovereign.

Article 47.

The conferring of commissions in the army and orders and honorary distinctions, with due observance of law, is vested in the person of the Sovereign.

Article 48.

The Sovereign has the right, with the approval of the responsible Minister, to choose the important officials of the Government Departments, either at home or abroad, except in cases excepted by law. But the appointment of the other officials does not concern the Sovereign, except in cases defined by law.

Article 49.

The issuing of Firmans for the execution of laws is one of the rights of the Sovereign, but he may not delay or suspend the execution of those laws.

Article 50.

The supreme command of the military and naval forces is vested in the person of the Sovereign.

Article 51.

The declaration of war and the conclusion of peace rest with the Sovereign.

{157}

Article 52.

Treaties which, in accordance with Article 24 of the Constitutional Law of the 14th Zilaadeh, 1325 (30th December, 1906), must be kept secret, must, on the removal of this necessity, and provided that the interests and security of the country demand it, be communicated by the Sovereign to the National Assembly and the Senate, with the necessary explanations.

Article 58.

The secret clauses of any Treaty cannot annul the public clauses of that Treaty.

Article 54.

The Sovereign can summon the National Assembly and the Senate to an extraordinary Session.

Article 55.

Coins shall be struck, according to law, in the name of the Sovereign.

Article 56.

The expenses of the Imperial household must be defined by law.

Article 57.

The powers and prerogatives of the Sovereign are only such as have been defined by the existing constitutional laws.

[Articles 58-70 relate to the Ministers, who must be Mussulmans and native Persian subjects, princes of the first rank not eligible. They are severally and jointly responsible

to both Assemblies. Commands of the sovereign cannot divest them of responsibility, which is to be defined by law. The Assembly or the Senate can accuse and prosecute them for offenses before the High Court of Appeal.]

JUDICIAL TRIBUNALS.

[The Judicial Tribunals of the Kingdom are the subject of Articles 71-89. "The Supreme Court of Justice and the subsidiary Courts" are declared to be "the official centres to which all suits must be referred, and judgment in matters appertaining to the Sheri rests with the fully qualified Mujteheds." Suits relating to political rights concern the Courts of Justice, excepting those which are excepted by law. No Court of Law can be instituted except by law. One Court of Appeal for the whole Kingdom is to be instituted at the Capital. The sittings of all tribunals shall be public, except in cases when the tribunal judges that this would be prejudicial to order or decency. "The Presidents and the members of the Courts of Justice will be chosen in the manner decreed by the law of the Ministry of Justice, and will be appointed by virtue of a royal Firman." No judge may be suspended, temporarily, or permanently, without a trial or proof of offence. Military tribunals will be instituted according to a special law.]

MISCELLANEOUS.

[Provincial Assemblies of elected representatives are provided for in Articles 90-93.

Articles 94-103 have relation to finances. They declare that no taxes may be levied or exemptions from them allowed except by law; that no favor to individuals shall be shown in taxation; that nothing shall, on any pretext, be demanded from the people, otherwise than by law; and provision is made for the creation of a State Accounts Department, to be chosen by

the National Assembly.

The last four articles relate to the Army, which is required to be in all particulars under regulation of law. "The army vote must pass the National Assembly every year."]

-----CONSTITUTION OF PERSIA: End-----

CONSTITUTION OF RUSSIA, The so-called.

See (in this Volume)
RUSSIA, A. D. 1904-1905.

-----CONSTITUTION OF SOUTH AFRICA: Start-----

Omitting the preamble, which sets forth the desirability and expediency, "for the welfare and future progress of South Africa, that the several British Colonies therein shall be united under one Government in a legislative union under the Crown of Great Britain and Ireland," the provisions of the enactment for that purpose by the Parliament of the United Kingdom, approved September 20, 1909, are as follows:

I.—PRELIMINARY.

1. This Act may be cited as the South Africa Act, 1909.
2. In this Act, unless it is otherwise expressed or implied, the words "the Union" shall be taken to mean the Union of South Africa as constituted under this Act, and the words "Houses of Parliament," "House of Parliament," or "Parliament," shall be taken to mean the Parliament of the Union.
3. The provisions of this Act referring to the King shall extend to His Majesty's heirs and successors in the sovereignty of the United Kingdom of Great Britain and

Ireland.

II.—THE UNION.

4. It shall be lawful for the King, with the advice of the Privy Council, to declare by proclamation that, on and after a day therein appointed, not being later than one year after the passing of this Act, the Colonies of the Cape of Good Hope, Natal, the Transvaal, and the Orange River Colony, hereinafter called the Colonies shall be united in a Legislative Union under one Government under the name of the Union of South Africa. On and after the day appointed by such proclamation the Government and Parliament of the Union shall have full power and authority within the limits of the Colonies, but the King may at any time after the proclamation appoint a governor-general for the Union.

5. The provisions of this Act shall, unless it is otherwise expressed or implied, take effect on and after the day so appointed.

6. The colonies mentioned in section four shall become original provinces of the Union under the names of Cape of Good Hope, Natal, Transvaal, and Orange Free State, as the case maybe. The original provinces shall have the same limits as the respective colonies at the establishment of the Union.

7. Upon any colony entering the Union, the Colonial Boundaries Act, 1895, and every other Act applying to any of the Colonies as being self-governing colonies or colonies with responsible government, shall cease to apply to that colony, but as from the date when this Act takes effect every such Act of Parliament shall apply to the Union.

III.—EXECUTIVE GOVERNMENT.

8. The Executive Government of the Union is vested in the

King, and shall be administered by His Majesty in person or by a governor-general as His representative.

{158}

9. The Governor-General shall be appointed by the King, and shall have and may exercise in the Union during the King's pleasure, but subject to this Act, such powers and functions of the King as His Majesty may be pleased to assign to him.

10. There shall be payable to the King out of the Consolidated Revenue Fund of the Union for the salary of the Governor-General an annual sum of ten thousand pounds. The salary of the Governor-General shall not be altered during his continuance in office.

11. The provisions of this Act relating to the Governor-General extend and apply to the Governor-General for the time being or such person as the King may appoint to administer the government of the Union. The King may authorise the Governor-General to appoint any person to be his deputy within the Union during his temporary absence, and in that capacity to exercise for and on behalf of the Governor-General during such absence all such powers and authorities vested in the Governor-General as the Governor-General may assign to him, subject to any limitations expressed or directions given by the King; but the appointment of such deputy shall not affect the exercise by the Governor-General himself of any power or function.

12. There shall be an Executive Council to advise the Governor-General in the government of the Union, and the members of the council shall be chosen and summoned by the Governor-General and sworn as executive councillors, and shall hold office during his pleasure.

13. The provisions of this Act referring to the

Governor-General in Council shall be construed as referring to the Governor-General acting with the advice of the Executive Council.

14. The Governor-General may appoint officers not exceeding ten in number to administer such departments of State of the Union as the Governor-General in Council may establish; such officers shall hold office during the pleasure of the Governor-General. They shall be members of the Executive Council and shall be the King's ministers of State for the Union. After the first general election of members of the House of Assembly, as hereinafter provided, no minister shall hold office for a longer period than three months unless he is or becomes a member of either House of Parliament.

15. The appointment and removal of all officers of the public service of the Union shall be vested in the Governor-General in Council, unless the appointment is delegated by the Governor-General in Council or by this Act or by a law of Parliament to some other authority.

16. All powers, authorities, and functions which at the establishment of the Union are in any of the Colonies vested in the Governor or in the Governor in Council, or in any authority of the Colony, shall, as far as the same continue in existence and are capable of being exercised after the establishment of the Union, be vested in the Governor-General or in the Governor-General in Council, or in the authority exercising similar powers under the Union, as the case may be, except such powers and functions as are by this Act or may by a law of Parliament be vested in some other authority.

17. The command in chief of the naval and military forces within the Union is vested in the King or in the Governor-General as His representative.

18. Save as in section twenty-three excepted, Pretoria shall

be the seat of Government of the Union.

IV.—PARLIAMENT.

19. The legislative power of the Union shall be vested in the Parliament of the Union, herein called Parliament, which shall consist of the King, a Senate, and a House of Assembly.

20. The Governor-General may appoint such times for holding the sessions of Parliament as he thinks fit, and may also from time to time, by proclamation or otherwise, prorogue Parliament, and may in like manner dissolve the Senate and the House of Assembly simultaneously, or the House of Assembly alone: provided that the Senate shall not be dissolved within a period of ten years after the establishment of the Union, and provided further that the dissolution of the Senate shall not affect any senators nominated by the Governor-General in Council.

21. Parliament shall be summoned to meet not later than six months after the establishment of the Union.

22. There shall be a session of Parliament once at least in every year, so that a period of twelve months shall not intervene between the last sitting of Parliament in one session and its first sitting in the next session.

23. Cape Town shall be the seat of the Legislature of the Union.

SENATE.

24. For ten years after the establishment of the Union the constitution of the Senate shall, in respect of the original provinces, be as follows:

(i) Eight senators shall be nominated by the Governor-General

in Council, and for each original province eight senators shall be elected in the manner hereinafter provided:

(ii) The senators to be nominated by the Governor-General in Council shall hold their seats for ten years. One-half of their number shall be selected on the ground mainly of their thorough acquaintance, by reason of their official experience or otherwise, with the reasonable wants and wishes of the coloured races in South Africa. If the seat of a senator so nominated shall become vacant, the Governor-General in Council shall nominate another person to be a senator, who shall hold his seat for ten years:

(iii) After the passing of this Act, and before the day appointed for the establishment of the Union, the Governor of each of the Colonies shall summon a special sitting of both Houses of the Legislature, and the two Houses sitting together as one body and presided over by the Speaker of the Legislative Assembly shall elect eight persons to be senators for the province. Such senators shall hold their seats for ten years. If the seat of a senator so elected shall become vacant, the provincial council of the province for which such senator has been elected shall choose a person to hold the seat until the completion of the period for which the person in whose stead he is elected would have held his seat.

{159}

25. Parliament may provide for the manner in which the Senate shall be constituted after the expiration of ten years, and unless and until such provision shall have been made—

(i) the provisions of the last preceding section with regard to nominated senators shall continue to have effect;

(ii) eight senators for each province shall be elected by the members of the provincial council of such province together

with the members of the House of Assembly elected for such province. Such senators shall hold their seats for ten years unless the Senate be sooner dissolved. If the seat of an elected senator shall become vacant, the members of the provincial council of the province, together with the members of the House of Assembly elected for such province, shall choose a person to hold the seat until the completion of the period for which the person in whose stead he is elected would have held his seat. The Governor-General in Council shall make regulations for the joint election of senators prescribed in this section.

26. The qualifications of a senator shall be as follows:

—He must—

- (a) be not less than thirty years of age;
- (b) be qualified to be registered as a voter for the election of members of the House of Assembly in one of the provinces;
- (c) have resided for five years within the limits of the Union as existing at the time when he is elected or nominated, as the case may be;
- (d) be a British subject of European descent;
- (e) in the case of an elected senator, be the registered owner of immovable property within the Union of the value of not less than five hundred pounds over and above any special mortgages thereon. For the purposes of this section, residence in, and property situated within, a colony before its incorporation in the Union shall be treated as residence in and property situated within the Union.

27. The Senate shall, before proceeding to the dispatch of any other business, choose a senator to be the President of the Senate, and as often as the office of President becomes vacant the Senate shall again choose a senator to be the President. The President shall cease to hold office if he ceases to be a senator. He may be removed from office by a vote of the Senate, or he may resign his office by writing under his hand addressed to the Governor-General.

28. Prior to or during any absence of the President the Senate may choose a senator to perform his duties in his absence.

29. A senator may, by writing under his hand addressed to the Governor-General, resign his seat, which thereupon shall become vacant. The Governor-General shall as soon as practicable cause steps to be taken to have the vacancy filled.

30. The presence of at least twelve senators shall be necessary to constitute a meeting of the Senate for the exercise of its powers.

31. All questions in the Senate shall be determined by a majority of votes of senators present other than the President or the presiding senator, who shall, however, have and exercise a casting vote in the case of an equality of votes.

HOUSE OF ASSEMBLY.

32. The House of Assembly shall be composed of members directly chosen by the voters of the Union in electoral divisions delimited as hereinafter provided.

33. The number of members to be elected in the original provinces at the first election and until the number is altered in accordance with the provisions of this Act shall be as follows: Cape of Good Hope, fifty-one; Natal, seventeen; Transvaal, thirty-six; Orange Free State, seventeen. These numbers may be increased as provided in the next succeeding section, but shall not, in the case of any original province, be diminished until the total number of members of the House of Assembly in respect of the provinces herein provided for reaches one hundred and fifty, or until a period of ten years has elapsed after the establishment of the Union, whichever is the longer period.

34. The number of members to be elected in each province, as provided in section thirty-three, shall be increased from time to time as may be necessary in accordance with the following provisions:

(i) The quota of the Union shall be obtained by dividing the total number of European male adults in the Union, as ascertained at the census of nineteen hundred and four, by the total number of members of the House of Assembly as constituted at the establishment of the Union:

(ii) In nineteen hundred and eleven, and every five years thereafter, a census of the European population of the Union shall be taken for the purposes of this Act:

(iii) After any such census the number of European male adults in each province shall be compared with the number of European male adults as ascertained at the census of nineteen hundred and four, and, in the case of any province where an increase is shown, as compared with the census of nineteen hundred and four, equal to the quota of the Union or any multiple thereof, the number of members allotted to such province in the last preceding section shall be increased by an additional member or an additional number of members equal to such multiple, as the case may be:

(iv) Notwithstanding anything herein contained, no additional member shall be allotted to any province until the total number of European male adults in such province exceeds the quota of the Union multiplied by the number of members allotted to such province for the time being, and thereupon additional members shall be allotted to such province in respect only of such excess:

(v) As soon as the number of members of the House of Assembly to be elected in the original provinces in accordance with the

preceding subsections reaches the total of one hundred and fifty, such total shall not be further increased unless and until Parliament otherwise provides; and subject to the provisions of the last preceding section the distribution of members among the provinces shall be such that the proportion between the number of members to be elected at any time in each province and the number of European male adults in such province, as ascertained at the last preceding census, shall as far as possible be identical throughout the Union:

(vi) "Male adults" in this Act shall be taken to mean males of twenty-one years of age or upwards not being members of His Majesty's regular forces on full pay:

(vii) For the purposes of this Act the number of European male adults, as ascertained at the census of nineteen hundred and four, shall be taken to be—

For the Cape of Good Hope,	167,546;
for Natal,	34,784;
for the Transvaal,	106,493;
For the Orange Free State,	41,014.

{160}

35.

(1) Parliament may by law prescribe the qualifications which shall be necessary to entitle persons to vote at the election of members of the House of Assembly, but no such law shall disqualify any person in the province of the Cape of Good Hope who, under the laws existing in the Colony of the Cape of Good Hope at the establishment of the Union, is or may become capable of being registered as a voter from being so registered in the province of the Cape of Good Hope by reason of his race or colour only, unless the Bill be passed by both Houses of Parliament sitting together, and at the third

reading be agreed to by not less than two-thirds of the total number of members of both Houses. A Bill so passed at such joint sitting shall be taken to have been duly passed by both Houses of Parliament.

(2) No person who at the passing of any such law is registered as a voter in any province shall be removed from the register by reason only of any disqualification based on race or colour.

36. Subject to the provisions of the last preceding section, the qualifications of parliamentary voters, as existing in the several Colonies at the establishment of the Union, shall be the qualifications necessary to entitle persons in the corresponding provinces to vote for the election of members of the House of Assembly: Provided that no member of His Majesty's regular forces on full pay shall be entitled to be registered as a voter.

[Section 37 of the Act applies to the elections of members of the House of Assembly all existing election laws in the respective provinces relating to the elections for their more numerous Houses of Parliament, excepting that it requires all polls to be taken on one and the same day throughout the Union.

Sections 38 to 43 inclusive provide for the creation of a joint commission to determine the first division of the provinces into equalized electoral divisions, and for subsequent commissions of three judges of the Supreme Court of South Africa for re-divisions, as they may become necessary.]

44. The qualifications of a member of the House of Assembly shall be as follows:—He must—

- (a) be qualified to be registered as a voter for the election of members of the House of Assembly in one of the provinces;
- (b) have resided for five years within the limits of the

Union as existing at the time when he is elected;
(c) be a British subject of European descent.

For the purposes of this section, residence in a colony before its incorporation in the Union shall be treated as residence in the Union.

45. Every House of Assembly shall continue for five years from the first meeting thereof, and no longer, but may be sooner dissolved by the Governor-General.

46. The House of Assembly shall, before proceeding to the despatch of any other business, choose a member to be the Speaker of the House, and, as often as the office of Speaker becomes vacant, the House shall again choose a member to be the Speaker. The Speaker shall cease to hold his office if he ceases to be a member. He may be removed from office by a vote of the House, or he may resign his office or his seat by writing under his hand addressed to the Governor-General.

47. Prior to or during the absence of the Speaker, the House of Assembly may choose a member to perform his duties in his absence.

48. A member may, by writing under his hand addressed to the Speaker, or, if there is no Speaker, or if the Speaker is absent from the Union, to the Governor-General, resign his seat, which shall thereupon become vacant.

49. The presence of at least thirty members of the House of Assembly shall be necessary to constitute a meeting of the House for the exercise of its powers.

50. All questions in the House of Assembly shall be determined by a majority of votes of members present other than the Speaker or the presiding member, who shall, however, have and exercise a casting vote in the case of an equality of votes.

BOTH HOUSES OF PARLIAMENT.

[Section 51 prescribes the oath or affirmation of allegiance to the British Sovereign which each senator and member of the House of Assembly must subscribe to before taking his seat.]

52. A member of either House of Parliament shall be incapable of being chosen or of sitting as a member of the other House: Provided that every minister of State who is a member of either House of Parliament shall have the right to sit and speak in the Senate and the House of Assembly, but shall vote only in the House of which he is a member.

53. No person shall be capable of being chosen or of sitting as a senator or as a member of the House of Assembly who—

(a) has been at any time convicted of any crime or offence for which he shall have been sentenced to imprisonment without the option of a fine for a term of not less than twelve months, unless he shall have received a grant of amnesty or a free pardon, or unless such imprisonment shall have expired at least five years before the date of his election; or

(b) is an unrehabilitated insolvent; or

(c) is of unsound mind, and has been so declared by a competent court; or

(d) holds any office of profit under the Crown within the Union:

Provided that the following persons shall not be deemed to hold an office of profit under the Crown for the purposes of this subsection:

(1) a minister of State for the Union;

(2) a person in receipt of a pension from the Crown;

(3) an officer or member of His Majesty's naval or military forces on retired or half pay, or an officer or member of the naval or military forces of the Union whose services are not wholly employed by the Union.

54. If a senator or member of the House of Assembly—

(a) becomes subject to any of the disabilities mentioned in the last preceding section; or

(b) ceases to be qualified as required by law; or

(c) fails for a whole ordinary session to attend without the special leave of the Senate or the House of Assembly, as the case may be; his seat shall thereupon become vacant.

[Section 55 imposes a penalty of £100 for each day on which any disqualified person may knowingly sit in Parliament.]

56. Each senator and each member of the House of Assembly shall, under such rules as shall be framed by Parliament, receive an allowance of four hundred pounds a year, to be reckoned from the date on which he takes his seat: Provided that for every day of the session on which he is absent there shall be deducted from such allowance the sum of three pounds: Provided further that no such allowance shall be paid to a Minister receiving a salary under the Crown or to the President of the Senate or the Speaker of the House of Assembly. A day of the session shall mean in respect of a member any day during a session on which the House of which he is a member or any committee of which he is a member meets.

[Sections 57-58 relate to the privileges of each House of Parliament and its right to make rules and orders of procedure for the conduct of its business.]

POWERS OF PARLIAMENT.

59. Parliament shall have full power to make laws for the peace, order, and good government of the Union.

60.—

(1) Bills appropriating revenue or moneys or imposing taxation shall originate only in the House of Assembly. But a Bill shall not be taken to appropriate revenue or moneys or to impose taxation by reason only of its containing provisions for the imposition or appropriation of fines or other pecuniary penalties.

(2) The Senate may not amend any Bills so far as they impose taxation or appropriate revenue or moneys for the services of the Government.

(3) The Senate may not amend any Bill so as to increase any proposed charges or burden on the people.

61. Any Bill which appropriates revenue or moneys for the ordinary annual services of the Government shall deal only with such appropriation.

62. The House of Assembly shall not originate or pass any vote, resolution, address, or Bill for the appropriation of any part of the public revenue or of any tax or impost to any purpose unless such appropriation has been recommended by message from the Governor-General during the Session in which such vote, resolution, address, or Bill is proposed.

63. If the House of Assembly passes any Bill and the Senate rejects or fails to pass it or passes it with amendments to

which the House of Assembly will not agree, and if the House of Assembly in the next session again passes the Bill with or without any amendments which have been made or agreed to by the Senate and the Senate rejects or fails to pass it or passes it with amendments to which the House of Assembly will not agree, the Governor-General may during that session convene a joint sitting of the members of the Senate and House of Assembly. The members present at any such joint sitting may deliberate and shall vote together upon the Bill as last proposed by the House of Assembly and upon amendments, if any, which have been made therein by one House of Parliament and not agreed to by the other; and any such amendments which are affirmed by a majority of the total number of members of the Senate and House of Assembly present at such sitting shall be taken to have been carried, and if the Bill with the amendments, if any, is affirmed by a majority of the members of the Senate and House of Assembly present at such sitting, it shall be taken to have been duly passed by both Houses of Parliament: Provided that, if the Senate shall reject or fail to pass any Bill dealing with the appropriation of revenue or moneys for the public service, such joint sitting may be convened during the same session in which the Senate so rejects or fails to pass such Bill.

64. When a Bill is presented to the Governor-General for the King's Assent, he shall declare according to his discretion, but subject to the provisions of this Act, and to such instructions as may from time to time be given in that behalf by the King, that he assents in the King's name, or that he withholds assent, or that he reserves the Bill for the signification of the King's pleasure. All Bills repealing or amending this section or any of the provisions of Chapter IV. under the heading "House of Assembly," and all Bills abolishing provincial councils or abridging the powers conferred on provincial councils under section eighty-five, otherwise than in accordance with the provisions of that section, shall be so reserved. The Governor-General may return

to the House in which it originated any Bill so presented to him, and may transmit therewith any amendments which he may recommend, and the House may deal with the recommendation.

65. The King may disallow any law within one year after it has been assented to by the Governor General, and such disallowance, on being made known by the Governor-General by speech or message to each of the Houses of Parliament or by proclamation, shall annul the law from the day when the disallowance is so made known.

66. A Bill reserved for the King's pleasure shall not have any force unless and until, within one year from the day on which it was presented to the Governor-General for the King's Assent, the Governor-General makes known by speech or message to each of the Houses of Parliament or by proclamation that it has received the King's Assent.

67. As soon as may be after any law shall have been assented to in the King's name by the Governor-General, or having been reserved for the King's pleasure shall have received his assent, the Clerk of the House of Assembly shall cause two fair copies of such law, one being in the English and the other in the Dutch language (one of which copies shall be signed by the Governor-General), to be enrolled of record in the office of the Registrar of the Appellate Division of the Supreme Court of South Africa; and such copies shall be conclusive evidence as to the provisions of every such law, and in case of conflict between the two copies thus deposited that signed by the Governor-General shall prevail.

V.—THE PROVINCES.

ADMINISTRATORS.

68.—

(1) In each province there shall be a chief executive officer

appointed by the Governor-General in Council, who shall be styled the administrator of the province, and in whose name all executive acts relating to provincial affairs therein shall be done.

(2) In the appointment of the administrator of any province, the Governor-General in Council shall, as far as practicable, give preference to persons resident in such province.

(3) Such administrator shall hold office for a term of five years and shall not be removed before the expiration thereof except by the Governor-General in Council for cause assigned, which shall be communicated by message to both Houses of Parliament within one week after the removal, if Parliament be then sitting, or, if Parliament be not sitting, then within one week after the commencement of the next ensuing session.

(4) The Governor-General in Council may from time to time appoint a deputy administrator to execute the office and functions of the administrator during his absence, illness, or other inability.

69. The salaries of the administrators shall be fixed and provided by Parliament, and shall not be reduced during their respective terms of office.

{162}

PROVINCIAL COUNCILS.

70.—

(1) There shall be a provincial council in each province consisting of the same number of members as are elected in the province for the House of Assembly: Provided that, in any province whose representatives in the House of Assembly shall be less than twenty-five in number, the provincial council shall consist of twenty-five members.

(2) Any person qualified to vote for the election of members of the provincial council shall be qualified to be a member of such council.

[Sections 71-77 are regulative of the elections, the terms (three years), and the sittings of the Provincial Councils.

Sections 78-84 are creative of Executive Committees, for which each Provincial Council shall elect "from among its members, or otherwise," four persons, to be joined with the administrator of the Province, the latter being chairman of the Executive Committee thus constituted. This Committee, "on behalf of the Provincial Council," being appointed to "carry on the administration of provincial affairs," and, "subject to the provisions of this Act," to be invested with "all powers, authorities, and functions which at the establishment of the Union are vested in or exercised by the Governor in Council, or any minister of the Colony."]

POWERS OF PROVINCIAL COUNCILS.

85. Subject to the provisions of this Act and the assent of the Governor-General in Council as hereinafter provided, the provincial council may make ordinances in relation to matters coming within the following classes of subjects (that is to say):—

(i) Direct taxation within the province in order to raise a revenue for provincial purposes:

(ii) The borrowing of money on the sole credit of the province with the consent of the Governor-General in Council and in accordance with regulations to be framed by Parliament:

(iii) Education, other than higher education, for a period of five years and thereafter until Parliament otherwise provides:

(iv) Agriculture to the extent and subject to the conditions to be defined by Parliament:

(v) The establishment, maintenance, and management of hospitals and charitable institutions:

(vi) Municipal institutions, divisional councils, and other local institutions of a similar nature:

(vii) Local works and undertakings within the province, other than railways and harbours and other than such works as extend beyond the borders of the province, and subject to the power of Parliament to declare any work a national work and to provide for its construction by arrangement with the provincial council or otherwise:

(viii) Roads, outspans, ponts, and bridges, other than bridges connecting two provinces:

(ix) Markets and pounds:

(x) Fish and game preservation:

(xi) The imposition of punishment by fine, penalty, or imprisonment for enforcing any law or any ordinance of the province made in relation to any matter coming within any of the classes of subjects enumerated in this section:

(xii) Generally all matters which, in the opinion of the Governor-General in Council, are of a merely local or private nature in the province:

(xiii) All other subjects in respect of which Parliament shall by any law delegate the power of making ordinances to the provincial council.

[Sections 86-93 are regulative of the exercise of the powers thus conferred.]

94. The seats of provincial government shall be—
For the Cape of Good Hope, Cape Town;
for Natal, Pietermaritzburg;
for the Transvaal, Pretoria;
for the Orange Free State, Bloemfontein.

VI.—THE SUPREME COURT OF SOUTH AFRICA.

95. There shall be a Supreme Court of South Africa consisting of a Chief Justice of South Africa, the ordinary judges of appeal, and the other judges of the several divisions of the Supreme Court of South Africa in the provinces.

96. There shall be an Appellate Division of the Supreme Court of South Africa, consisting of the Chief Justice of South Africa, two ordinary judges of appeal, and two additional judges of appeal. Such additional judges of appeal shall be assigned by the Governor-General in Council to the Appellate Division from any of the provincial or local divisions of the Supreme Court of South Africa, but shall continue to perform their duties as judges of their respective divisions when their attendance is not required in the Appellate Division.

97. The Governor-General in Council may, during the absence, illness, or other incapacity of the Chief Justice of South Africa, or of any ordinary or additional judge of appeal, appoint another judge of the Supreme Court of South Africa to act temporarily as such chief justice, ordinary judge of appeal, or additional judge of appeal, as the case may be.

98.—

(1) The several supreme courts of the Cape of Good Hope, Natal, and the Transvaal, and the High Court of the Orange River Colony shall, on the establishment of the Union, become

provincial divisions of the Supreme Court of South Africa within their respective provinces, and shall each be presided over by a judge-president.

[Further prescriptions on the same subject are contained in this and the next section of the Act.]

100. The Chief Justice of South Africa, the ordinary judges of appeal, and all other judges of the Supreme Court of South Africa to be appointed after the establishment of the Union shall be appointed by the Governor-General in Council, and shall receive such remuneration as Parliament shall prescribe, and their remuneration shall not be diminished during their continuance in office.

101. The Chief Justice of South Africa and other judges of the Supreme Court of South Africa shall not be removed from office except by the Governor-General in Council on an address from both Houses of Parliament in the same session praying for such removal on the ground of misbehaviour or incapacity.

102. Upon any vacancy occurring in any division of the Supreme Court of South Africa, other than the Appellate Division, the Governor-General in Council may, in case he shall consider that the number of judges of such court may with advantage to the public interest be reduced, postpone filling the vacancy until Parliament shall have determined whether such reduction shall take place.

[Rules concerning the cases, civil and criminal, which may be appealed from inferior courts to the Appellate Division, and not to the Supreme Court, are laid down in sections 103-105.]

{163}

106. There shall be no appeal from the Supreme Court of South Africa or from any division thereof to the King in Council,

but nothing herein contained shall be construed to impair any right which the King in Council may be pleased to exercise to grant special leave to appeal from the Appellate Division to the King in Council. Parliament may make laws limiting the matters in respect of which such special leave may be asked, but Bills containing any such limitation shall be reserved by the Governor-General for the signification of His Majesty's pleasure: Provided that nothing in this section shall affect any right of appeal to His Majesty in Council from any judgment given by the Appellate Division of the Supreme Court under or in virtue of the Colonial Courts of Admiralty Act, 1890.

107. The Chief Justice of South Africa and the ordinary judges of appeal may, subject to the approval of the Governor-General in Council, make rules for the conduct of the proceedings of the Appellate Division and prescribing the time and manner of making appeals thereto. Until such rules shall have been promulgated, the rules in force in the Supreme Court of the Cape of Good Hope at the establishment of the Union shall *mutatis mutandis* apply.

[Other details concerning the rules and the sessions of the several provincial and local divisions of the Supreme Court, the execution of their writs and other processes, etc., are set forth in sections 108-116.]

VII.—FINANCE AND RAILWAYS.

117. All revenues, from whatever source arising, over which the several Colonies have at the establishment of the Union power of appropriation, shall vest in the Governor-General in Council. There shall be formed a Railway and Harbour Fund, into which shall be paid all revenues raised or received by the Governor-General in Council from the administration of the railways, ports, and harbours, and such fund shall be appropriated by Parliament to the purposes of the railways,

ports, and harbours in the manner prescribed by this Act. There shall also be formed a Consolidated Revenue Fund, into which shall be paid all other revenues raised or received by the Governor-General in Council, and such fund shall be appropriated by Parliament for the purposes of the Union in the manner prescribed by this Act, and subject to the charges imposed thereby.

[Sections 118-123 provide for a commission "to institute an inquiry into the financial relations which should exist between the Union and the provinces"; prescribe the division to be made meantime of the Consolidated Revenue Fund; make the interest of the public debts a first charge on that fund; transfer to the Union all stocks, moneys, and securities, all crown lands, public works, etc., and all rights in mines and minerals that belonged to each of the colonies at the establishment of the Union.]

124. The Union shall assume all debts and liabilities of the Colonies existing at its establishment, subject, notwithstanding any other provision contained in this Act, to the conditions imposed by any law under which such debts or liabilities were raised or incurred, and without prejudice to any rights of security or priority in respect of the payment of principal, interest, sinking fund, and other charges conferred on the creditors of any of the Colonies, and may, subject to such conditions and rights, convert, renew, or consolidate such debts.

125. All ports, harbours, and railways belonging to the several Colonies at the establishment of the Union shall from the date thereof vest in the Governor-General in Council. No railway for the conveyance of public traffic, and no port, harbour, or similar work, shall be constructed without the sanction of Parliament.

126. Subject to the authority of the Governor-General in

Council, the control and management of the railways, ports, and harbours of the Union shall be exercised through a board consisting of not more than three commissioners, who shall be appointed by the Governor-General in Council, and a minister of State, who shall be chairman. ...

[Of the remaining sections of the Act (127-152) the following are the more important or the more significant.]

133. In order to compensate Pietermaritzburg and Bloemfontein for any loss sustained by them in the form of diminution of prosperity or decreased rateable value by reason of their ceasing to be the seats of government of their respective colonies, there shall be paid from the Consolidated Revenue Fund for a period not exceeding twenty-five years to the municipal councils of such towns a grant of two per centum per annum on their municipal debts, as existing on the thirty-first day of January nineteen hundred and nine, and as ascertained by the Controller and Auditor-General. The Commission appointed under section one hundred and eighteen shall, after due inquiry, report to the Governor-General in Council what compensation should be paid to the municipal councils of Cape Town and Pretoria for the losses, if any, similarly sustained by them. Such compensation shall be paid out of the Consolidated Revenue Fund for a period not exceeding twenty-five years, and shall not exceed one per centum per annum on the respective municipal debts of such towns as existing on the thirty-first January nineteen hundred and nine, and as ascertained by the Controller and Auditor-General.

134. The election of senators and of members of the executive committees of the provincial councils as provided in this Act shall, whenever such election is contested, be according to the principle of proportional representation, each voter having one transferable vote. The Governor-General in Council, or, in the case of the first election of the Senate, the

Governor in Council of each of the Colonies, shall frame regulations prescribing the method of voting and of transferring and counting votes and the duties of returning officers in connection therewith, and such regulations or any amendments thereof after being duly promulgated shall have full force and effect unless and until Parliament shall otherwise provide.

136. There shall be free trade throughout the Union, but until Parliament otherwise provides the duties of custom and of excise leviable under the laws existing in any of the Colonies at the establishment of the Union shall remain in force.

137. Both the English and Dutch languages shall be official languages of the Union, and shall be treated on a footing of equality, and possess and enjoy equal freedom, rights, and privileges; all records, journals, and proceedings of Parliament shall be kept in both languages, and all Bills, Acts, and notices of general public importance or interest issued by the Government of the Union shall be in both languages.

{164}

138. All persons who have been naturalised in any of the Colonies shall be deemed to be naturalised throughout the Union.

140. Subject to the provisions of the next succeeding section, all officers of the public service of the Colonies shall at the establishment of the Union become officers of the Union.

141.

(1) As soon as possible after the establishment of the Union, the Governor-General in Council shall appoint a public service commission to make recommendations for such reorganisation and readjustment of the departments of the public service as may

be necessary. The commission shall also make recommendations in regard to the assignment of officers to the several provinces. ...

142. After the establishment of the Union the Governor-General in Council shall appoint a permanent public service commission with such powers and duties relating to the appointment, discipline, retirement, and superannuation of public officers as Parliament shall determine.

143. Any officer of the public service of any of the Colonies at the establishment of the Union who is not retained in the service of the Union or assigned to that of a province shall be entitled to receive such pension, gratuity, or other compensation as he would have received in like circumstances if the Union had not been established.

147. The control and administration of native affairs and of matters specially or differentially affecting Asiatics throughout the Union shall vest in the Governor-General in Council, who shall exercise all special powers in regard to native administration hitherto vested in the Governors of the Colonies or exercised by them as supreme chiefs, and any lands vested in the Governor or Governor and Executive Council of any colony for the purpose of reserves for native locations shall vest in the Governor-General in Council, who shall exercise all special powers in relation to such reserves as may hitherto have been exercisable by any such Governor or Governor and Executive Council, and no lands set aside for the occupation of natives which cannot at the establishment of the Union be alienated except by an Act of the Colonial Legislature shall be alienated or in any way diverted from the purposes for which they are set apart except under the authority of an Act of Parliament.

148.—

(1) All rights and obligations under any conventions or

agreements which are binding on any of the Colonies shall devolve upon the Union at its establishment.

(2) The provisions of the railway agreement between the Governments of the Transvaal, the Cape of Good Hope, and Natal, dated the second of February, nineteen hundred and nine, shall, as far as practicable, be given effect to by the Government of the Union.

IX.—NEW PROVINCES AND TERRITORIES.

149. Parliament may alter the boundaries of any province, divide a province into two or more provinces, or form a new province out of provinces within the Union, on the petition of the provincial council of every province whose boundaries are affected thereby.

150. The King, with the advice of the Privy Council, may on addresses from the Houses of Parliament of the Union admit into the Union the territories administered by the British South Africa Company on such terms and conditions as to representation and otherwise in each case as are expressed in the addresses and approved by the King, and the provisions of any Order in Council in that behalf shall have effect as if they had been enacted by the Parliament of the United Kingdom of Great Britain and Ireland.

151. The King, with the advice of the Privy Council, may, on addresses from the Houses of Parliament of the Union, transfer to the Union the government of any territories, other than the territories administered by the British South Africa Company, belonging to or under the protection of His Majesty, and inhabited wholly or in part by natives, and upon such transfer the Governor-General in Council may undertake the government of such territory upon the terms and conditions embodied in the Schedule to this Act.

X.—AMENDMENT OF ACT.

152. Parliament may by law repeal or alter any of the provisions of this Act: Provided that no provision thereof, for the operation of which a definite period of time is prescribed, shall during such period be repealed or altered: And provided further that no repeal or alteration of the provisions contained in this section, or in sections thirty-three and thirty-four (until the number of members of the House of Assembly has reached the limit therein prescribed, or until a period of ten years has elapsed after the establishment of the Union, whichever is the longer period), or in sections thirty-five and one hundred and thirty-seven, shall be valid unless the Bill embodying such repeal or alteration shall be passed by both Houses of Parliament sitting together, and at the third reading be agreed to by not less than two-thirds of the total number of members of both Houses. A Bill so passed at such joint sitting shall be taken to have been duly passed by both Houses of Parliament.

SCHEDULE.

1. After the transfer of the government of any territory belonging to or under the protection of His Majesty, the Governor-General in Council shall be the legislative authority, and may by proclamation make laws for the peace, order, and good government of such territory: Provided that all such laws shall be laid before both Houses of Parliament within seven days after the issue of the proclamation or, if Parliament be not then sitting, within seven days after the beginning of the next session, and shall be effectual unless and until both Houses of Parliament shall by resolutions passed in the same session request the Governor-General in Council to repeal the same, in which case they shall be repealed by proclamation.

2. The Prime Minister shall be charged with the administration of any territory thus transferred, and he shall be advised in the general conduct of such administration by a commission consisting of not fewer than three members with a secretary, to be appointed by the Governor-General in Council, who shall take the instructions of the Prime Minister in conducting all correspondence relating to the territories, and shall also under the like control have custody of all official papers relating to the territories.

{165}

3. The members of the commission shall be appointed by the Governor-General in Council, and shall be entitled to hold office for a period of ten years, but such period may be extended to successive further terms of five years. ...

14. It shall not be lawful to alienate any land in Basutoland or any land forming part of the native reserves in the Bechuanaland protectorate and Swaziland from the native tribes inhabiting those territories.

15. The sale of intoxicating liquor to natives shall be prohibited in the territories, and no provision giving facilities for introducing, obtaining, or possessing such liquor in any part of the territories less stringent than those existing at the time of transfer shall be allowed.

16. The custom, where it exists, of holding pitsos or other recognised forms of native assembly shall be maintained in the territories.

17. No differential duties or imposts on the produce of the territories shall be levied. The laws of the Union relating to customs and excise shall be made to apply to the territories.

18. There shall be free intercourse for the inhabitants of the

territories with the rest of South Africa subject to the laws, including the pass laws, of the Union.

19. Subject to the provisions of this Schedule, all revenues derived from any territory shall be expended for and on behalf of such territory. ...

-----CONSTITUTION OF SOUTH AFRICA: End-----

-----CONSTITUTION OF TURKEY: Start-----

CONSTITUTION OF TURKEY.

The following is a synopsis of the Constitution promulgated December 23, 1876, the first year of the reign of Abd-ul Hamid, then soon withdrawn, and practically forgotten for thirty-two years, but brought to light by the revolution of 1908 and promulgated anew, on the 24th of July in that memorable year;

See, in this Volume,
TURKEY: A. D. 1908 (JULY-DECEMBER):

THE INDIVISIBILITY OF THE OTTOMAN EMPIRE.

The Sultan, the supreme Caliph of the Mussulmans and sovereign of all Ottoman subjects, is irresponsible and inviolable. His prerogatives are those of the constitutional sovereigns of the West. The subjects of the empire are called, without distinction, Ottomans. Individual liberty is inviolable, and is guaranteed by the laws.

Islamism is the religion of the state, but the free exercise of all recognized creeds is guaranteed, and the religious privileges of the communities are maintained. No provision investing the institutions of the state with a theocratic character exists in the constitution.

The constitution establishes liberty of the press, the right of petition to both chambers for all Ottomans, liberty of education, and the equality of all Ottomans before the law. They all enjoy the same rights, and have the same duties toward the country. Ottoman subjects, without distinction of religion, are admitted to the service of the state. Taxation will be equally distributed; property is guaranteed, and the domicile is declared inviolable. No person can be taken from the jurisdiction of his natural judges.

The Council of Ministers will deliberate under the presidency of the Grand-Vizier. Each minister is responsible for the conduct of the affairs of his department. The Chamber of Deputies may demand the impeachment of the ministers, and a high court is instituted to try them. In the event of the Chamber adopting a vote hostile to the ministry on any important question, the Sultan will change the ministers or dissolve the Chamber. The ministers are entitled to be present at the sittings of both Chambers, and to take part in the debates. Interpellations may be addressed to the ministers. Public functionaries will be appointed in conformity with the conditions fixed by law, and cannot be dismissed without legal and sufficient cause. They are not discharged from responsibility by any orders contrary to law which they may receive from a superior.

The General Assembly of the Ottomans is composed of two Chambers, the Senate and the Chamber of Deputies, who will meet on the 1st of November in each year, the session lasting four months. A message from the Sultan will be sent to both Chambers at the opening of each session. The members of both Chambers are free with regard to their vote and in the expression of their opinions. Electors are prohibited from imposing binding engagements upon their representatives. The initiative in proposing laws belongs in the first place to the ministry, and next to the Chambers, in the form of

propositions. Laws must be first submitted to the Chamber of Deputies, then to the Senate, and finally to the imperial sanction. The Senate is composed of members nominated by the Sultan and chosen from among the most eminent personages in the country. The Senate votes the laws already passed by the Chamber of Deputies, and returns to the latter, or rejects, any provisions contrary to the constitution or to the integrity or safety of the state. In the event of a dissolution of the Chamber of Deputies, the general election shall be held and the new Chamber meet within six months from the date of dissolution. The sittings of the Chamber of Deputies are public. The deputies may not be arrested or prosecuted during the session without authority from the Chamber. The Chamber votes the laws article by article, and the budget by chapters. There is to be one deputy for every fifty thousand inhabitants, and the elections will be made by secret ballot. A special law will determine the mode of election. The mandate of a deputy will render him ineligible for any public office, except for a ministry. Each legislature will continue for a period of four years. The deputies will receive 4,600 francs for every session, which will last from November to March. The senators are appointed for life by the Sultan, and will receive 2,300 francs monthly. Judges are irremovable.

The sittings of the tribunals are public. The advocates appearing for defendants are free. Sentences may be published. No interference can be permitted in the administration of justice. The jurisdiction of the tribunals will be exactly defined. Any exceptional tribunals or commissions are prohibited. The office of Public Prosecutor is created. The High Court, which will try ministers, members of the Court of Cassation, and other persons charged with the crime of *lese Majeste*, or of conspiracy against the state, will be composed of the most eminent judicial and administrative functionaries.

No tax can be established or levied except by virtue of a law. The budget will be voted at the commencement of each session, and for a period of one year only. The final settlement of the budget for the preceding year will be submitted to the Chamber of Deputies in the form of a bill. The Court of Accounts will send every year to the Chamber of Deputies a report upon the state of public accounts, and will present to the Sultan, quarterly, a statement showing the financial condition of the country. The members of the Court of Accounts are irremovable. No dismissal can take place except in consequence of a resolution adopted by the Chamber of Deputies.

{166}

The provincial administration is based upon the broadest system of decentralization. The Councils-General, which are elective, will deliberate upon and control the affairs of the province. Every canton will have a council, elected by each of the different communities, for the management of its own affairs. The communes will be administered by elective municipal councils. Primary education is obligatory.

The interpretation of the laws belongs, according to their nature, to the Court of Cassation, the Council of State, and the Senate.

The constitution can only be modified on the initiative of the ministry, or of either of the two Chambers, and by a vote of both Chambers, passed by a majority of two-thirds. Such modification must also be sanctioned by the Sultan.

***Appletons' Annual Cyclopaedia, 1876,
pages 773-774.***

See amendments, in this Volume, under
TURKEY: A. D. 1909 (APRIL-DECEMBER).

-----CONSTITUTION OF TURKEY: End-----

CONSTITUTION OF THE UNITED STATES:

Proposed Income Tax Amendment.

See (in this Volume)

UNITED STATES: A. D. 1909 (JULY).

CONSTITUTION OF VENEZUELA, New.

See (in this Volume)

VENEZUELA: A. D. 1904.

CONSTITUTION, A World:

The Making of it in Process.

See (in this Volume)

WORLD MOVEMENTS.

CONSTITUTION ISLAND.

"In the Hudson River opposite West Point lies Constitution Island. It is a wood-covered tract of nearly three hundred acres, and for many years it has been coveted by the authorities of the Military Academy and the War Department. Its owner, Miss Anna Bartlett Warner, was always willing to sell to the Government, but Congress could never be induced to make the necessary appropriation for its purchase. Now Mrs. Russell Sage has joined with Miss Warner in making a gift of the island to the Nation, to be used as a part of the military reservation at West Point."

The Outlook,
September 19, 1908.

CONSTITUTION-MAKING, and Unmaking, in Servia.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA.

CONSTITUTIONAL DEMOCRATS.

See (in this Volume)
RUSSIA: A. D. 1905-1907, and 1906 and 1907.

CONSULAR SERVICE, The Reform of the American.

See (in this Volume)
CIVIL SERVICE REFORM: UNITED STATES: A. D. 1906-1909.

CONSUMPTION.

See (in this Volume)
PUBLIC HEALTH: TUBERCULOSIS.

CONVICT LEASE SYSTEM:
Its abolition in Georgia.

See (in this Volume)
CRIME AND CRIMINOLOGY.

COOK, Frederick A.:
Claimant of North Pole discovery.

See (in this Volume)
POLAR EXPLORATION.

COOLEY, Dr. Harris R.:
Director of Charities and Corrections, Cleveland, Ohio.

See (in this Volume)
CRIME AND CRIMINOLOGY.

COÖPERATION, Industrial and Commercial.

See (in this Volume)
LABOR REMUNERATION.

COPENHAGEN: A. D. 1906.
Conference of the International Woman Suffrage Alliance.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

COPYRIGHT:
The new Law in the United States.

"To the general surprise, the new copyright bill slipped through both houses of Congress yesterday [March 3, 1909]. It consists of one complete and consistent copyright statute, in sixty four sections. The term of copyright is lengthened. The bill leaves the present first term of twenty-eight years unchanged, but provides for a renewal term of twenty-eight years instead of fourteen, thus making possible a period of protection of fifty-six years from the publication of the work. The bill also provides for the extension of subsisting copyrights upon the same basis.

"Copyright may now be secured for all the 'writings' of an author, using the constitutional expression. In enumerating and classifying works protected by copyright, the bill is more explicit than the present statutes, and adds the following new designations: 'Lectures, sermons, and addresses, prepared for oral delivery'; 'dramatico-musical compositions'; 'plastic works of a scientific or technical character'; 'reproductions of a work of art,' and 'prints and pictorial illustrations,' in lieu of 'engravings,' 'cuts,' and 'chromos,' and 'works of art' instead of the present specific designations, 'painting,' 'drawings,' 'statue,' and 'statuary.' Express provision is made that compilations, abridgments, adaptations, arrangements, dramatizations, or translations and works

republished with new matter shall be considered new works subject to copyright.

"As regards a musical work, the bill provides, as does the present law, that the author shall have the sole right to perform the work publicly for profit, but adds the sole right 'to make any arrangement or setting of it or of the melody of it in any system of notation or any form of record from which it may be read or reproduced.' The composer's control of the reproduction of his music by mechanical instruments is qualified as follows:

(a) to cover only music published and copyrighted after the act goes into effect;

(b) not to include music by a foreign author or composer unless the foreign state or nation of which he is a subject grants to citizens of the United States similar rights;

(c) whenever the owner of a musical copyright has used or permitted or acquiesced in the use of his work upon parts of instruments serving to reproduce mechanically the musical work, any other person may make similar use of the work upon the payment of a royalty of two cents on each part manufactured, notice to be filed in the copyright office of such use or license to use by the copyright proprietor.

"American manufacture is required in the case of a book, not only as regards type-setting in the United States, but 'if the text be produced by lithographic or photo-engraving process, then by a process wholly performed within the limits of the United States.' The provision is also extended to illustrations within a book, and to separate lithographs and photo engravings, 'except where in either case the subjects represented are located in a foreign country.' The printing and binding of the book must also be performed within the United States.

{167}

Photographs are released from the present requirement that they 'shall be printed from negatives made within the United States or from transfers made therefrom.' The 'original text of a book of foreign origin in a language or languages other than English' is also excepted from the requirements of type-setting in the United States. A new ***ad interim*** protection is given books printed abroad in the English language. If one complete copy of such book is deposited in the copyright office not later than thirty days after publication abroad, copyright is granted for a period of thirty days from the date of receipt of the copy. If an authorized edition of the book is produced from type set in the United States during this second thirty days, the full term of copyright is secured.

"The much discussed provisions prohibiting the importation of copyrighted books are considerably modified. The importation of piratical copies of any work copyrighted is prohibited, and the importation of any books, '***although authorized by the author or proprietor,***' which have not been produced in accordance with the manufacturing provisions, is prohibited. The Act of 1891 permits importation of books in 'the case of persons purchasing for use and not for sale, who import, subject to the duty thereon, not more than ***two*** copies of such book at any one time.' The new law permits importation, 'not more than ***one*** copy at one time, for individual use, and not for sale,' and adds the proviso that 'such privilege of importation shall not extend to a foreign reprint of a book by an American author copyrighted in the United States.' The Act of 1891 allows importation in good faith for the use of societies ***incorporated*** or established for educational, philosophical, literary, or religious purposes, or for the encouragement of the fine arts, or for any college, academy, school, or seminary of learning. The new law confines the privilege to incorporated societies or institutions, but adds scientific societies and 'any State,

school, college, university, or free public library'; but while the Act of 1891 permits '**two** copies in any one invoice' to be so imported, the new law provides for 'not more than **one** copy of any such book in one invoice' when 'for use and not for sale.'

"In the case of infringement, an injunction may issue, as now, and damages be recovered as well as all the profits due to the infringement."

New York Evening Post,
March 4, 1909.

COPYRIGHT:
Pan-American Convention.

See (in this Volume)
AMERICAN REPUBLICS.

CORINTO, Treaty of.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1902: CENTRAL AMERICA.

CORPORATE WRONGDOING:
Summary of recent Governmental Action against it in the United States.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

CORPORATION TAX, United States.

See (in this Volume)
TARIFFS: UNITED STATES.

CORPORATIONS:

Forbidden to contribute to Political Elections.

See (in this Volume)

UNITED STATES: A. D. 1907 (JANUARY).

CORPORATIONS AND THE PUBLIC.

See (in this Volume)

Combinations, Industrial, &c., and Railways.

CORPORATIONS, The Bureau of.

Its establishment in the Federal Administration
of the United States.

See (in this Volume)

UNITED STATES: A. D. 1903 (FEBRUARY).

CORRAL, Ramon:

Vice-President of Mexico.

See (in this Volume)

MEXICO A. D. 1904-1905.

CORREGAN, Charles Hunter:

Nominated for President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

CORTELYOU, George B.:

Secretary of Commerce and Labor and Secretary of the Treasury.

See (in this Volume)

UNITED STATES: A D. 1901-1905, and 1905-1909.

COST OF LIVING.

See (in this Volume)
LABOR REMUNERATION: WAGES, &c.

COSTA RICA.

See (in this Volume)
CENTRAL AMERICA.

COUNTRY LIFE COMMISSION, Report of the.

See (in this Volume)
UNITED STATES: A. D. 1908-1909 (AUGUST-FEBRUARY).

COURTS, Industrial, German.

See (in this Volume)
LABOR ORGANIZATION: GERMANY: A. D. 1905-1906.

COURTS OF LAW.

See (in this Volume)
LAW AND ITS COURTS.

COWPER-TEMPLEISM.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1906.

CREEK NATION, Alleged frauds on the.

See (in this Volume)
INDIANS, AMERICAN.

CREMER, William Randal:
Originator of the Inter-parliamentary Union.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1904-1909;
also NOBEL PRIZES.

CRETE: A. D. 1905-1906.

Insurgent demand of Union with Greece.
Investigation of discontent by the Protecting Powers.
Resignation of the High Commissionership by Prince George.
Appointment of Zaimis.

A determined revolutionary movement to secure union with Greece was set on foot in March, 1905. Remonstrance against it by Prince George was unavailing, and the National Assembly, newly elected on the 2d of April, gave support to the insurgents, proclaiming the desired union of Crete with "her mother Greece," and ordering the Greek flag to be raised over the public buildings of the island. The government of Greece, while declaring its sympathy with the feeling which the movement expressed, could not give countenance to it, and urged the insurgents to lay down their arms. The latter, however, continued to hold the interior of the island and to make attacks on the Mohammedan population, until the approach of winter, when, on the 19th of November, they gave up their arms. The four protecting Powers then appointed a commission to investigate the grounds of discontent in the island, and its report made in the following spring justified a good deal of the Cretan complaint of arbitrary rule. In May a new Assembly was elected, in which the Government won 78 seats, the Opposition 36, and the Moslems were represented by 16. In July a resolution in favor of annexation to Greece was voted by acclamation in the Assembly, and its sittings were suspended to await the decision of the Powers. The latter announced a little later the intention to organize a gendarmerie to take the place of foreign troops in the island; and also to extend the operations of the Greek Finance Commission to Crete. Prince George now expressed his unwillingness to continue in the office of High Commissioner,

and, on the request of the Powers, the King of Greece nominated M. Zaimis to succeed him. The nomination was accepted, and Prince George withdrew from the island, after issuing a farewell proclamation, September 25th. M. Zaimis arrived and assumed office on the 14th of October, being warmly received. He was understood to have the powers of a Greek Viceroy, with a mission to prepare the island for annexation to Greece.

{168}

"I should not like," said a writer in the summer of 1905, "to speak too positively of Prince George's mistakes; but I have met no European who has lived in the island who had a good word to say for his administration. On the one hand, he played the despot. The local independent newspapers were destroyed, and the right of public meeting withdrawn. Worst of all, the mayors and prefects, who had originally been elected by the inhabitants of their districts, were degraded to the position of mere officials nominated by the Prince. At the same time, he aspired to be a sort of party leader. Quite early in his term of office he contrived to alienate the best men among the leaders who had conducted the insurrection with so much patience and wisdom. The President of the Provisional Government, Dr. Sphakianakis, an extremely able and, what is rarer, a wise and disinterested man, went into retirement when the Prince arrived. ...

"By the summer of last year, [1904] when the Prince cast Professor Jannaris, a philologist of European reputation, into Canea gaol, the rift between himself and his people had become desperate. ... It was now quite clear that no solution remained save union with Greece. To Prince George it provided an honorable and graceful path of retreat. He could retire and bring with him in his withdrawal a great gift to the Greek nation, and confer, at the same time, contentment on Crete. ... Prince George, accordingly, devoted the closing months of 1904

to a tour among the European courts. The Powers had never intended to make him the permanent sovereign of Crete. His mandate was only for three years, and it had already been prolonged for a second term. He urged that the time had at length arrived for a definite solution, which could only be a union with Greece. But either his pleading was half-hearted or the Powers were deaf. His term was once more extended, and he was weak enough, or vain enough, to accept the dangerous mission. He returned to Crete and reported his failure.

"What followed is recent history. For a month or two the Cretans were passive, and then suddenly they rose in arms. A sort of provisional government was established at Therisso, a stronghold in the mountains, near enough to Canea to threaten the Prince's administration, far enough from the sea to be out of range of the European war-ships. Dr. Sphakianakis and MM. Venizelos and Fournis are at its head, and it soon received the allegiance of the whole interior. Simultaneously, under very strained conditions, a general election was held; and, though the members were probably drawn for the most part from the Prince's party, the Chamber adopted the programme of the insurgents and solemnly proclaimed the annexation of the island to Greece. The Prince threatened, but he had no force behind him; and he too could only reiterate his prayer that Europe should assent to union. It is a whimsical display of unanimity. In other lands, subjects rebel to emphasize some difference of opinion with their rulers. The Cretans have taken up arms to prove how violently they all agree."

***H. N. Brailsford,
The Future of Crete
(North American Review, August, 1905).***

CRETE: A. D. 1907-1909.

How and why the Cretans have been restrained by the Four Protecting Powers.

In February, 1907, the Cretans framed and adopted a new Constitution, providing for an Assembly of sixty-four Deputies, elected every two years, and continuing the executive office of High Commissioner, with a Council of three. They were fully exercising all the rights of independent self-government, under the protection of the four Powers which still maintained the old "Concert," namely, Great Britain, France, Russia, and Italy. The Turkish Government touched them in no other way than through the theoretical, intangible suzerainty which the Sultan claimed. But that claim, acknowledged by their potent protectors, barred them from annexation to the kingdom of their fellow Greeks, which was their heart's desire. If Turkey had continued in the condition to which it had sunk when the Powers set them free from all but a fiction of feudal law (see in Volume VI. of this work, TURKEY: A. D. 1897-1899) there seems little doubt that they would have won their wish in no long time, with the help of those Powers; but the great change in Turkish conditions which came about in 1908 was not favorable to Cretan hopes.

To the Cretans, in October, 1908, the Turkish Revolution appeared to have brought them the best of opportunities for breaking the irksome thread of an unexercised Ottoman sovereignty. Bulgaria snapped the thread; why should not they? But Bulgaria had no responsible guardians to look after her conduct; while Crete was, unfortunately at this juncture, the ward of an international trust company, whose responsibilities for her were made immeasurably more serious by the very circumstances which invited her to an escapade. The revolutionary undertaking of the Young Turks, to reform their own nation, claimed the sympathy and good will of every right-feeling government in the world. Great Britain, France, and Italy, at least, could not afford to lay, or consent to the laying, of a straw of difficulty in its way. A declaration of Cretan independence and annexation to Greece, countenanced by the Powers, would have raised excitements in Turkey more

than likely to wreck the reform movement in a catastrophe of war, which might involve much larger fields than those that lie between Turkey and Greece. The action of Bulgaria and that of Austria in annexing Bosnia and Herzegovina had put a dangerous strain on the situation; but neither of these had tried Turkish feeling as it would have been tried if Crete and Greece had been suffered to follow their example by the four protecting Powers.

The attempt was made in Crete on the 12th of October, 1908, when the Assembly voted union with Greece, and elected a committee of six members to conduct the Government in the name of the King of Greece, under Greek laws. The four Powers intervened in a soothing way, agreeing to treat with the Turkish Government on the subject, provided that order in the island should be maintained and protection afforded to the Mohammedan population. In the previous May they had decided to withdraw the forces they were jointly keeping in Crete, and had announced that their evacuation of the island should be completed by the end of July, 1909.

{169}

When the time thus appointed drew near there was some anxiety as to what might follow the withdrawal of troops; but the Powers adhered to their agreement. Meantime the Turkish Government was giving plain expression to its determination to "maintain Ottoman rights in Crete." Early in July, 1909, the intentions of the four Powers were made known by an announcement to the French Chamber of Deputies from the Foreign Minister of that Government. The international contingents of troops, he stated, would be recalled by the contemplated date of July 27; but four war ships (stationnaires) would be sent, one by each Power, "to guard the Ottoman flag and the flags of the four Powers, as well as to ensure, in case of trouble, the protection of the population. A declaration would be addressed to the people of Crete promising, in particular, that the Powers will continue to occupy themselves with the Cretan question in a benevolent

spirit, but adding that it is their duty to see that order is maintained and the safety of the Mussulmans in Crete assured; that with this object they reserve the right of adopting such measures as may be expedient for the restoration of tranquillity, in case disturbances should break out which the local authorities were unable to quell. The declaration addressed to the Cretans to be communicated to the Porte and a declaration to be made at Constantinople, in order to give an exact account of the spirit in which the foregoing measures have been adopted."

This decision was communicated formally to the Greek and Turkish governments a little later. The latter, in reply, thanked the four Powers for their promise to safeguard Ottoman interests in the island, but declared that it could not tolerate "any extension of the privileges of the Cretans beyond those guaranteed by their autonomy, least of all any such extension as might give rise to the supposition that Crete was in any way politically connected or dependent on the Hellenic kingdom."

The attitude of the four Powers in their action was stated very distinctly to the British House of Commons on the 22d of July, by Sir Edward Grey, Secretary for Foreign Affairs, as follows:

"The *status quo* maintained in Crete is that Crete remains in trust to the four Powers who hold the island in trust, and continue to maintain the obligations of preserving the supreme rights of Turkey. That is the *status quo*, and to put any other interpretation upon it and say that it means this or that, or that it amounts to virtual annexation, is misleading and is not true. That is not intended. The question of Crete has been exceedingly difficult, partly for the very reasons which I have already named, that it was raised at a time when the Turkish Government itself was passing through a stage exceedingly difficult, but exceedingly

hopeful. What we have desired to do with regard to Crete is to secure that nothing shall happen which will be damaging to the prestige of the new *régime* in Turkey, and by being damaging to that prestige make the prospects of reform and of the increasing welfare of Turkey less hopeful."

The last of the international contingents left Crete on the 26th of July; whereupon the Cretans ran up the Greek flag on the fortress evacuated. Some days passed before the naval *stationnaires* of the four Powers arrived on the scene, and Turkey opened a somewhat sharp correspondence with Greece. The Powers intervened, assuming responsibility for conditions in Crete, and asking that communications on the subject be addressed to them. At the same time, the Cretans were admonished to take down the Greek flag. As they did not do so, sailors from the war ships were landed on the 18th of August, who lowered the flag and cut the flag-staff down. Sixty were left on guard to prevent further demonstrations of a provocative kind. To the time of this writing (February 1, 1910) nothing has occurred since to disturb the quiet in Crete. In November, however, the Turkish Government addressed to the four Powers a request for a definite settlement of the status of Crete. The reply, given on the 9th of December, was as follows:

"The protecting Powers do not deem the moment opportune for diplomatic negotiations tending to establish a definite *régime* in the island. The circumstances have not changed since the date of evacuation of the island by the international troops. Though infractions of the *status quo* had been committed, they were at once suppressed, and if more serious infractions occurred the Powers would meet them in accordance with the standpoint expressed in their Notes of July last with regard to the supreme rights of the Sultan. In present conditions negotiations on the Cretan question might excite public opinion in Turkey and elsewhere, and lead to dangerous complications."

-----CRIME AND CRIMINOLOGY: Start-----

CRIME AND CRIMINOLOGY: THEIR PROBLEMS.

"Black Hand," The:

Sicilian Blackmail Terrorism brought to the United States.

"Toward the end of the last century the Sicilian gangs which made their living by blackmail became aware that not a few Italians who had left their home country as peasants had acquired wealth across the Atlantic. Even the ordinary workman, they learnt, who could gain only 40 cents a day in Sicily, could make about four times that wage in New York. Accordingly they hastened to exploit by their familiar methods the rich field of the Italian colony in that city. It was not long before the American police found themselves faced by an elaborate machinery of crime far more ingenious and complicated than anything with which they had previously had to deal. The Black Hand, as the society called itself, proceeded normally to extort what it wanted by frank demands and threats, and it did not hesitate at kidnapping, outrage, and murder when these means seemed necessary to its ends."

*New York Correspondent London Times,
March 16, 1909.*

CRIME AND CRIMINOLOGY:

Cleveland's Farm Colony.

"A City in the Life Saving Business" is the title given by Mr. Frederick C. Howe to an article in *The Outlook* of January 18, 1908, descriptive of the Farm Colony which the City of Cleveland, Ohio, has substituted for the old time "work-house" or "penitentiary" for the detention and treatment of its vagabonds and petty offenders.

{170}

The change has been wrought within the past seven years by the

City Director of Charities and Corrections, Dr. Harris R. Cooley. The following facts of it are summarized from Mr. Howe's article:

The colony occupies the larger part of a 1900 acre farm, on which some other institutions, such as a city infirmary, are to be placed; but the ex-workhouse-prisoners are, so far, the interesting occupants of the farm. They are prisoners with no prison. They wear no convict garb, drag no ball and chain, are surrounded by no wall or stockade, are watched by no armed guards. They are working a quarry, making roads and sewers, gathering stone, doing all descriptions of farm work, as free in their movements as farm laborers who work for hire. And out of hundreds on whom this treatment has been tried for nearly seven years "only a handful," it is said, "have ever taken advantage of their liberty. And it was the other prisoners who were most incensed at their escape."

These unimprisoned prisoners are put on honor; they are treated as men to whom society would like to do good. It gives them a few weeks or months of healthful, honestly laborious life, in the midst of wholesome and beautiful surroundings (for the farm is nobly situated); and when they are dismissed from it they do not go dispirited and weakened and marked with a prison brand, as they would go from a workhouse, but strengthened in body, helped to self-respect, and encouraged to a change of life by the experience they have had. It is not punishment they have received, but a revelation, in most cases, of a better side of life than they had known. And this treatment is proving its success.

There are classes for instruction, on various lines, at the farm, and some come back, for evening study, after their release. Two years ago one of the released colonists began the formation of a Brotherhood among those who came out, to assist their fellows and take care of them till they got a new footing in the world; and no less than 427 had received that

helping hand of fellowship when Mr. Howe wrote his account. The Brotherhood was then occupying a rented house, on the furnishing of which it had expended over \$2000, made up within its own ranks.

Besides its Farm Colony, Cleveland has established another, somewhat similar, farm for boys. This, called Boyville, is 285 acres in extent, and the young delinquents sent to it live in cottages, named Washington Cottage, Lincoln Cottage, etc., each with a motherly woman in charge. They are kept in attendance at a school pursuing the same studies as in the city schools; their big playground affords them all kinds of healthful sports. They have horses, cattle, goats and dogs to take care of, and they are drilled in a fire company which is expected to protect the property of Boyville.

CRIME AND CRIMINOLOGY:

The Convict Lease System:
Its abolition in Georgia.

During the Civil War the Penitentiary buildings of the State of Georgia, at Milledgeville, were destroyed, and for many years subsequently the prevailing conditions were not favorable to their replacement. There grew up, in consequence, an evil practice of working convicts in chain-gangs, leading finally to the leasing of such gangs to contractors. A frightful brutalizing of all concerned in the operation of the vicious system—convicts, overseers, and lessees alike—is said to have been the result, as it could hardly fail to be. Within late years public attention, in Georgia and outside of the State, was increasingly drawn to the treatment and condition of the chain-gangs, by shocking stories of barbarity and depravity; yet the evil was hard to reform, because of the profit which the State derived from the hire of its criminals. Years of agitation and exertion by right-minded people in Georgia were required to overcome the sordid influence of this fact, and it was not until September, 1908, that the

Legislature, called in special session by Governor Hoke Smith to deal with the question, passed an Act which brought the lease system to an end on the 31st of March, 1909. Provision was made at this important session for an establishment of State farms on which convicts can be employed; for introducing a parole system into the penological policy of the State, and for the institution of juvenile courts. The legislative session was a memorable one.

CRIME AND CRIMINOLOGY:

English Court of Criminal Appeal.

See (in this Volume)

LAW AND ITS COURTS: ENGLAND.

CRIME AND CRIMINOLOGY:

The English Prevention of Corruption Act.

The object of the English Prevention of Corruption Act, passed in 1906, is to check the practice of giving and taking secret commissions, which, as the late Lord Russell of Killowen caused the country to realize, was widely prevalent in commercial and professional circles, as well as in the humbler sphere of the "servants' hall." Before the passing of the Act, of course, it was illegal to give and receive secret commissions. After the Act came into force, it became criminal. The provisions of the measure make it a misdemeanour, punishable, on summary conviction or on indictment, with fine or imprisonment—

(1) For any agent corruptly to receive any gift or consideration for doing or not doing any act, or showing or not showing favour or disfavour, in relation to his principal's affairs;

(2) For any person corruptly to offer such gift or consideration to any agent;

(3) For any person to give to an agent, or for any agent to use, any false or defective receipt or other business document with intent to deceive the principal.

Two years after the Act came into force its effects were discussed by a writer in the London *Times*, who said: 'The circumstances that the fiat of the Attorney-General must be obtained before any prosecution can be instituted under the Act, and that, until recently, there was no organization qualified to take active steps to prevent the Act from becoming a dead letter, account for the comparatively small number of cases in which proceedings have been taken under the Act during the past two years. Fifteen prosecutions have been authorized by the Attorney-General. In 12 cases there have been convictions, one case has been abandoned, and two are still pending. These figures show, at any rate, that prosecutions are not lightly instituted, and that the charges which have been preferred against offenders have been, as a rule, well founded.

{171}

"It is undoubtedly true, in this matter as in others, that 'everybody's business is nobody's.' Soon after the passing of the Act it was realized that, if it was to prove effective 'for the better prevention of corruption,' some organization must be formed to give effect to the measure—to furnish information in respect to its provisions, to investigate complaints, and, if necessary, to institute prosecutions. A society was formed, therefore, with the title of 'The Secret Commissions and Bribery Prevention League,' to work on lines similar to those of the societies which strengthen the arm of the law so effectively in respect of cruelty to children and cruelty to animals. ... The committee has investigated a large number of cases which have been brought to their knowledge, they have given advice freely to members and others interested

in the working of the Act, they have issued thousands of circulars and letters, as well as occasional 'news sheets,' they have made representations to the War Office and other public bodies as opportunities occurred, and have summoned various trade conferences for the consideration of points of importance arising out of the Act. The value of the League's work is emphasized by the fact that the members include many important limited liability companies and trade associations, and that the League is becoming in a special sense representative of the commercial community as a whole."

CRIME AND CRIMINOLOGY:

Indeterminate Sentence and
the Parole System of New York State.

The first provision in New York for indeterminate sentences was by Section 74, Chapter 382 of the Laws of 1889, as follows: "Whenever any male person over sixteen years of age, shall be convicted of a felony which is punishable by imprisonment in a State prison, for a term to be fixed within certain limits by the court pronouncing sentence, the court authorized to pronounce judgment upon such offender, instead of pronouncing upon such offender a definite sentence of imprisonment in a State prison for a fixed term, may pronounce upon such offender an indeterminate sentence of imprisonment in a State prison for a term with minimum and maximum limits only specified, without fixing a definite term of sentence within such limits named in the sentence, but the maximum limit so specified in the sentence shall not exceed the longest period for which such offender might have been sentenced, and the minimum limit in said sentence specified shall not be less than the shortest term for which such offender might have been sentenced. The maximum term specified in such indeterminate sentence shall be limited in the same manner as a definite sentence in compliance with the provisions of section six hundred and ninety-seven of the Penal Code."

A Parole Board was constituted under this Act, composed of the Superintendent of Prisons and the chief officers of the four State Prisons.

"It will be noted that this law permitted the indeterminate but did not abolish the definite sentence. Its provisions applied to all classes of male felons over sixteen years of age. No distinction was made between the first offenders and the professional and persistent criminals. The court in its discretion could impose either form of sentence on any convicted male felon provided he was more than sixteen years old. How general the preference of the judges was for the definite sentence is shown by the fact that during the twelve years that this law was in force approximately 13,000 prisoners were received at the prisons, only 115 of whom had indeterminate terms. ...

"As there were but 60 men paroled during the life of this statute (1889 to 1901), there was naturally but slight progress made during that period toward organizing, systematizing and perfecting the parole system; but some experience was gained and data secured that has since been useful. ...

"The Legislature of 1901 passed two important and effective laws relative to the parole of prisoners which became operative September 1, 1901. The first amended Section 74 of Chapter 382, Laws of 1889, to read as follows:—

‘Every person now confined in a state prison, or in the Eastern New York Reformatory, under sentence for a definite term for a felony, the maximum penalty for which is imprisonment for five years or less, exclusive of fines, who has never before been convicted of a crime punishable by imprisonment in a state prison shall be subject to the jurisdiction of the board of commissioners of paroled

prisoners and may be paroled in the same manner and subject to the same conditions and penalties as prisoners confined under indeterminate sentences. The minimum and maximum terms of the sentences of said prisoners are hereby fixed and determined to be as follows: The definite term for which each person is sentenced shall be the maximum limit of his term, and one-third of the definite term of his sentence shall be the minimum limit of his term."

***(As amended by chapter 260, L. 1901,
and by chapter 508, L. 1902.)***

"By this Act the members of the State Commission of Prisons were constituted a Board of Commissioners for Paroled Prisoners and they were to meet at each of the prisons four times a year. The Superintendent of State Prisons was authorized to appoint a parole officer for each prison.

"The other law amended the Penal Code by adding a new section. § 687 a.—A person never before convicted of a crime punishable by imprisonment in a state prison, who is convicted in any court in this state of a felony, the maximum penalty for which, exclusive of fines, is imprisonment for five years or less, and sentenced to a state prison, shall be sentenced thereto under an indeterminate sentence, the minimum of which shall not be less than one year; or in case a minimum is fixed by law, not less than such minimum, and the maximum of which shall not be more than the longest period fixed by law for which the crime is punishable of which the offender is convicted. The maximum limit of such sentence shall be so fixed as to comply with the provisions of section 697 of the Penal Code."

"This Act was amended in 1902 to provide also that any first offender convicted of a felony other than murder first and second degrees, the maximum penalty for which exceeded five years, might be sentenced to an indeterminate term. Few

prisoners, however, were so sentenced for crimes that carried a penalty of more than five years.

"The passage of these Acts put the parole system in active operation in 1901. Many prisoners then in the prisons whose terms thus became indeterminate were immediately eligible for parole. Others became eligible from month to month. ... In the first year under this law the Board considered the applications of 583 prisoners and granted parole to 272.

{172}

"The scope of the parole system was materially enlarged and the work of the Board vastly increased by the legislation of 1907. Chapter 737, Laws of 1907, provides, that all first offenders convicted of felonies other than murder first and second degrees and sentenced to a state prison **must** be sentenced to indeterminate terms. As a result of this law the class of prisoners subject to the jurisdiction of the Board will gradually increase to more than double the present number. ...

"Chapter 738, Laws of 1907, changed the penalty for murder second degree from life imprisonment to an indeterminate term having a minimum of 20 years and a maximum of life. Also, by this Act the sentences of all prisoners then in the prisons serving life sentences for murder second degree were made indeterminate terms with limits as above given [and 12, out of 17, were soon released on parole],

"Chapter 645, Laws of 1907, provides, that a person convicted for the fourth time for felony shall be sentenced to an indeterminate term, the maximum of which shall be life.

"It is the intent of this law that the man who has demonstrated the fact that he is a persistent criminal shall be kept under supervision during life. That the counties shall

be saved the expense of repeatedly trying him and, more important still, that the baneful effects of his association with, and influence over, prisoners in the jails, shall be avoided. If at any time after he has served his minimum term there is a reasonable probability that he will remain at liberty without violating the law, the Board may parole him."

The Act of 1907, which became effective June 10, in that year, provides that "the board of parole for state prisons shall be composed of the superintendent of state prisons and two citizens appointed by the governor and confirmed by the senate; and that said board shall meet at each of the prisons every month. It shall also make examination and report to the governor with its recommendations on all applications for pardon referred to them by the governor."

Report of the Board of Parole for State Prisons, 1907.

To serve with the Superintendent of Prisons as the Board of Parole the Governor of New York appointed the Honorable George A. Lewis and the Honorable Albion V. Wadhams, for five years.

In the annual report of the Superintendent of Prisons for 1908 he discusses the working of the law, in part as follows:

"The results attained with State prison convicts under the indeterminate sentence law have been satisfactory so far as the term limits fixed by the courts have permitted the proper application of the parole features of the law. In many cases, however, the terms of the sentences have been so inconsistent with the evident purpose and intent of the law as to render its parole provisions wholly, or to a good degree, inoperative.

"In several sentences imposed by the courts, the maximum and minimum terms have been identical as 'Not less than three years or more than three years.' As will be seen, this is

really a definite sentence and no parole period is provided for. In a very great number of cases, the margin between the minimum and maximum terms is but one, two or three months. While prisoners so sentenced may be paroled, the period of their probation is so limited that there is little opportunity to influence and train the man. ...

"The Superintendent is satisfied that the indeterminate has many advantages over the definite sentence, but its full benefit cannot be had under the law as it now stands and is applied. It should be amended so as to provide for longer parole periods and for minimum sentences never exceeding the maximum penalty for the crime of which the prisoner is convicted less the commutation allowed on definite sentences."

In May, 1909, Governor Hughes signed a retro-active law which extends to all convicts now in prison, who, being first offenders, have been sentenced for crimes committed prior to September 1st, 1907.

CRIME AND CRIMINOLOGY:

Pan-American Extradition Convention.

See (in this Volume)

AMERICAN REPUBLICS.

CRIME AND CRIMINOLOGY:

Preventive Detention in Great Britain.

The Borstal System of Discipline and Training for Young Offenders.

An Act entitled The Prevention of Crime Act, passed by the British Parliament in December, 1908, came into force on the 1st of August, 1909. It is described in the preamble as an "Act to make better provision for the prevention of crime, and for that purpose to provide for the reformation of young offenders, and the prolonged detention of habitual criminals,

and for other purposes incidental thereto." "The principle of 'preventive detention' is accepted and embodied in the Act, such detention to continue until the offender gives sufficient assurance that he will take to an honest life, or until by age or infirmity he becomes physically incapable of resuming a life of crime. In no case is life imprisonment contemplated, but when a man is convicted on indictment of a crime and is sentenced to penal servitude, if the jury find that he is an habitual criminal the Court may pass a further sentence. They must first be satisfied, however, that by reason of his criminal antecedents and his mode of life it is expedient for the protection of the public that he should be kept in detention for an extended period. The jury will have to be satisfied, first that the man just convicted of an offence has been convicted of at least three serious crimes, and, secondly, that when convicted he was leading an habitually dishonest life. The charge of being an habitual criminal cannot be made except by the consent of the Director of Public Prosecutions. The accused man will have an unqualified right of appeal. After serving his term of penal servitude he will be committed to a place of detention which will be a prison specially adapted for the purposes of the Act. The prison discipline will be less rigorous than that now prevailing, alike as regards hours, talking, recreation, occupations, and food.

"The Act provides that the Secretary of State [the Home Secretary] shall once at least in every three years during which the person is detained in custody under a sentence of preventive detention, take into consideration the condition, history, and circumstances of that person with a view to determining whether he shall be placed out on license, and if so, on what conditions. Directors of convict prisons are to report periodically to the Secretary of State upon the conduct and industry of persons undergoing preventive detention, and their prospects and probable behaviour on release.

For this purpose they are to be assisted by a committee at each prison, consisting of such members of the board of visitors and such other persons of either sex as the Secretary of State may from time to time appoint. Every such committee is to hold meetings at intervals of not more than six months, as may be prescribed, for the purpose of personally interviewing persons undergoing preventive detention in the prison and preparing reports for the assistance of the directors."

The part of the Act which relates to the reformation of young offenders provides for the establishment and regulation of what are named "Borstal institutions." "These are places in which young offenders may be given during their detention such industrial training and other instruction and be subjected to such disciplinary and moral influences as will conduce to their reformation and the prevention of crime. The Act will apply to persons of not less than 16 or more than 21 years of age who may be convicted on indictment of an offence for which they are liable to be sentenced to penal servitude or imprisonment. In such cases ... it will be lawful for the Court, instead of passing a sentence of penal servitude or imprisonment, to pass one of detention under penal discipline in a Borstal institution. Such detention will not be less than for one year or more than three years. Power is given to detain in Borstal institutions youthful offenders sentenced to detention in reformatory schools.

... Powers are also given to the Secretary of State to transfer persons in certain cases from prison to Borstal institutions.

"Subject to regulations by the Secretary of State, the Prison Commissioners may, after six months, or in the case of a female three months, from the commencement of the term of detention, if satisfied that there is reasonable probability that the offender will abstain from crime and lead a useful and industrious life, by license permit him to be discharged

from the Borstal institution, on condition that he be placed under the supervision or authority of any society or person named in the license who may be willing to take charge of the case. Every person sentenced to detention in a Borstal institution shall, on the expiration of the term of his sentence, remain for a further period of six months under the supervision of the Prison Commissioners."

The introduction of this system has been brought about by the efforts of an organization which bears the name of the Borstal Association, concerning whose experimental undertakings the London

Times said, lately, in an editorial article:

"Those who have hitherto been sceptical as to effective treatment of the criminal classes would do well to consult the report for 1909 of the Borstal Association. They can scarcely fail to admit that new and powerful agencies for good are at work. The experiment, which has been more successful than its authors anticipated, began in a small way at Bedford Prison, and has been gradually extended. At first it was applied to selected offenders in the metropolitan prisons between the ages of sixteen and twenty-one who had been committed for six months. It was soon discovered that little good could be done with criminals under successive short sentences. This has been rectified. ... Speaking lately of the Borstal methods, the Bishop of Wakefield said truly that the problem is how to combine in the treatment of young criminals 'tenderness and strength,' to 'draw the line between sternness and sympathy.' In the past the tendency was to be punctiliously severe. ... To-day the tendency, the danger, is to forget that the prison is not a place of recreation; to dwell too much on the hardships of its inmates; to plead a little too much for their comforts; to ask and expect too much; to be unduly critical of prison authorities. The advocates of the Borstal system claim to have avoided these mistakes. 'It is not,' they say, 'a namby-pamby system; only those who accept its strong incentive and reformative methods find it tolerable; those who do not, entreat for removal to other prisons where less development and improvement of their latent capacities are demanded.' It seeks to inure to hard work the lads subject to its discipline; it would make them strong and fit to handle tools intelligently; it would turn them into healthy and well set-up men. The fact that they may quit Borstal with some proficiency in a trade counts for much."

CRIME AND CRIMINOLOGY:

Probation System, as established by recent legislation

in New York.

"Probation, as authorized by the laws of New York State, is a system of discipline and correction, or, in some cases, of moral guardianship, applied by courts to suitable offenders, after conviction, for the purpose of improving their conduct and circumstances without committing them to institutions. The defendants are released conditionally on their good behavior, under suspended sentence, and under the friendly but authoritative supervision of a representative of the court, known as a probation officer. The probation law contemplates that in placing a defendant on probation certain terms and conditions shall be imposed, and it provides that if the probationer violate these conditions, his probation officer may return him to court for the execution of sentence. Besides usually requiring each probationer to report to him from time to time, the probation officer is expected to visit the probationer at frequent intervals and to do whatever seems essential to improve his surroundings and habits. The probation officer should report regularly to the court concerning the progress of each probationer. When so directed by the court, the probation officer also investigates cases, particularly with reference to the history, circumstances and character of the defendants, in order to lay before the court facts which may be important in determining whether they should be placed on probation.

"It is desirable to keep the distinction between probation and parole clearly in mind. Under the New York laws the word probation refers to the supervision of defendants who, after conviction, are released under suspended sentence. The suspension of sentence alone does not constitute probation; there must also be oversight by a probation officer. The word parole, on the other hand, is applied to two entirely different systems. In some courts before convictions are found, cases are adjourned from time to time and the defendants conditionally released; and this is called parole.

There is no authority to apply the term probation to this practice, because under the New York State laws a person cannot be placed on probation until after conviction. Parole is the appropriate word to use also in connection with the conditional release of inmates from penal or reformatory institutions before the expiration of their term of commitment. ...

{174}

"Twenty-seven hundred and fifty-four boys and girls, and 7,680 adults, making a total of 10,434 persons, were reported by probation officers as on probation during 1908. Of these 8,762 were placed on probation during the year. On December 31, 1908, there were 2,378 persons remaining on probation. The corresponding number for December 31, 1907, was 1,672. Three hundred and twenty probation officers supervised probationers during the year, which is more than double the number of active probation officers reported in the last report of this Commission. During 1908 the probation system was used in the courts of 26 cities as against 16 cities reported in 1907, in 8 town and village courts in 1908 as against 1 village court in 1907, in 23 county courts as against 11 in 1907, and, as far as the reports of probation officers indicate, in the Supreme Court in 6 counties as against none in 1907."

***Second Report of New York State Probation Commission,
March 15, 1909.***

As amended in May, 1909, "the law creates the position of county probation officer, and makes the services of such an officer available not only in the county court, but also in the Supreme Court and the courts of all towns, villages and third-class cities within the county."

CRIME AND CRIMINOLOGY:

The English "Probation of Offenders Act."

This Act, which became law in August, 1907, provides that, "where any person is charged before a court of summary jurisdiction with an offence punishable by such court, and the court thinks that the charge is proved, but is of opinion that, having regard to the character, antecedents, age, health, or mental condition of the person charged, or to the trivial nature of the offence, or to the extenuating circumstances under which the offence was committed, it is inexpedient to inflict any punishment or any other than a nominal punishment, or that it is expedient to release the offender on probation, the court may, without proceeding to conviction, make an order either—

(i) dismissing the information or charge; or

(ii) discharging the offender conditionally on his entering into a recognizance, with or without sureties, to be of good behaviour and to appear for conviction and sentence when called on at any time during such period, not exceeding three years, as may be specified in the order."

Similarly after conviction of the offender, when a court deems punishment inexpedient, it may, "in lieu of imposing a sentence of imprisonment, make an order discharging the offender conditionally on his entering into a recognizance, with or without sureties, to be of good behaviour and to appear for sentence when called on at any time during such period, not exceeding three years, as may be specified in the order;" and it may, in addition, order the offender to pay damages for injury or compensation for loss that is consequent on his offence.

The Act provides further that a recognizance ordered in such a case may contain a condition that the offender shall be under the supervision of such person as shall be named, during the specified period of probation; that certain persons of either

sex may be appointed as probation officers,—some such, when circumstances permit, to be specially "children's probation officers,"—and that salaries in the discretion of the courts may be paid to these officers.

See (in this Volume), also,
Children, under the Law: As Offenders,
and Law and its Courts.

-----CRIME AND CRIMINOLOGY: End-----

CRISES, Financial, of 1903 and 1907.

See (in this Volume)
FINANCE AND TRADE: A. D. 1901-1909.

CROCKER, George:
Bequest for Cancer Research.

See (in this Volume)
PUBLIC HEALTH: CANCER RESEARCH.

CROMER, Sir Evelyn Baring, Viscount:
Crowned King by the Sudanese.

See (in this Volume)
SUDAN, THE.

CROMER, Sir Evelyn Baring, Viscount:
What he saw on the Nile border of the Congo State.

See (in this Volume)
CONGO STATE: A. D. 1903-1905.

CROMER, Sir Evelyn Baring, Viscount:
Statement of conditions in Egypt.

See (in this Volume)
EGYPT: A. D. 1907 (JANUARY).

-----CUBA: Start-----

CUBA:
Gains to Spain from its loss.

See (in this Volume)
SPAIN: A. D. 1898-1906.

CUBA: A. D. 1901-1902.

Organization of Free Government under a Republican Constitution.
Transfer of Executive Authority from the
provisional Military Governor to the President-elect.
Official correspondence of the occasion.

Events in and relating to Cuba, after the surrender of the island by Spain and the organization of a provisional military government by the United States are narrated in Volume VI. of this work, down to the adoption by the Congress of the United States of the stipulations known as "The Platt Amendment" (see pages 189-190 in Volume VI), which the constitutional government for Cuba then in process of formation was asked to agree to, in order to define the future relation of the proposed new republic with the United States. This enactment was approved by the President on the 2d of March, 1901, and communicated, through the provisional Military Governor of the island, General Leonard Wood, to the Cuban Constitutional Convention. Doubt as to possible interpretations of the third clause of the Platt Amendment having then arisen in the Convention, the following despatch went from Washington to the Military Governor April 3d:

"You are authorized to state officially that in view of the President the intervention described in the third clause of the Platt amendment is not synonymous with intermeddling or

interference with the affairs of the Cuban Government, but the formal action of the United States, based upon just and substantial grounds, for the preservation of Cuban independence and the maintenance of a government adequate for the protection of life, property, and individual liberty, and adequate for discharging the obligations with respect to Cuba imposed by the treaty of Paris on the United States."

Elihu Root, Secretary of War.

On the 12th of June, 1901, the convention adopted an ordinance making provisions identical with those of the Platt Amendment, a part of the constitution of Cuba.

{175}

"On October 1, 1901, the convention performed its remaining duty by adopting an electoral law providing for a general election throughout the island, to be held on the 31st day of December, 1901, to choose governors of provinces, provincial councilors, members of the house of representatives, and presidential and senatorial electors. The law also provided that on the 24th day of February, 1902, the several bodies of electors thus chosen should meet and elect a president, vice-president and senators. The elections were to be held under the direct supervision of a central board of scrutiny, composed of the president of the convention and four other members selected for that purpose. The law was promulgated by a general order of the military governor on the 14th of October, 1901.

"The constitution thus adopted and perfected was treated by the United States as an acceptable basis for the formation of the new government to which, when organized and installed, the control of the island was to be transferred.

"In conformity to the Cuban constitution and electoral law,

elections were held by the Cuban people on the 31st of December, 1901, and by the electoral college on the 24th of February, 1902, when a president [T. Estrada Palma], vice-president, senate, and house of representatives were chosen.

"The situation at this important juncture in the affairs of Cuba is described by Secretary Root in his annual report for 1902 as follows:

"The whole governmental situation in Cuba was quite unprecedented, with its curious device of a suspended sovereignty given up by Spain, but not in terms vested in anybody else, and if vested remaining dormant, while a practical working government of military occupation in time of peace, deriving its authority from the sovereignty of another country, claimed temporary allegiance, made and enforced laws, and developed a political organization of the Cuban people to take and exercise the suspended or dormant sovereignty. It was important that in inaugurating the new government there should be no break in the continuity of legal obligation, of rights of property and contract, of jurisdiction, or of administrative action. It would not do to wait for the new government to pass laws or to create offices and appoint administrative officers and vest them with powers, for the instant that the new government was created the intervening government ceased, and the period of waiting would be a period of anarchy.

"It was necessary, therefore, to take such steps that the new Government should be created as a going concern, every officer of which should be able to go on with his part of the business of governing under the new sovereignty without waiting for any new authority. That everything necessary to this end should be done, and that it should be done according to a consistent and maintainable legal theory, caused the Department a good deal of solicitude. It is gratifying to report that it was done,

and that the Government which, until noon of May 20, was proceeding under the authority of the President of the United States, went on in the afternoon of that day and has ever since continued under the sovereignty which had been abandoned by Spain in April, 1899, without any more break or confusion than accompanies the inauguration of a new President in the United States. This could not have been done without the most perfect good understanding, mutual confidence, and sympathetic cooperation on the part of our officers who were about to retire, and the newly elected officers of Cuba, who were about to take the reins of Government.'"

One of the most interesting pages in history is that which records the peaceful withdrawal of the flag and forces of the United States from Cuba, and the inauguration of the Government of the Republic of Cuba. The story cannot be told in more interesting form or manner than as it is presented in the orders of Secretary Root and the exchange of letters between the President of the United States, the Secretary of War, and the President of the Republic of Cuba. These documents in part are as follows:

"Washington, D. C., March 24, 1902.

"Brig. Gen. Leonard Wood,

Military Governor of Cuba.

"Sir: You are authorized to provide for the inauguration, on the 20th of May next, of the government elected by the people of Cuba; and, upon the establishment of said government, to leave the government and control of the island of Cuba to its people pursuant to the provisions of the act of Congress entitled 'An act making appropriation for the Army for the fiscal year ending June 30, 1902,' approved March 2, 1901.

"Upon the transfer of government and control to the President and Congress so elected, you will advise them that such transfer is upon the express understanding and condition that

the new government does thereupon, and by the acceptance thereof, pursuant to the provisions of the appendix to the constitution of Cuba, adopted by the constitutional convention on the 12th of June, 1901, assume and undertake all and several the obligations assumed by the United States with respect to Cuba by the treaty between the United States of America and Her Majesty the Queen Regent of Spain, signed at Paris on the 10th day of December, 1898.

"It is the purpose of the United States Government, forthwith upon the inauguration of the new government of Cuba, to terminate the occupancy of the island by the United States, and to withdraw from that island the military forces now in occupancy thereof: but for the preservation and care of the coast defenses of the island, and to avoid leaving the island entirely defenseless against external attack, you may leave in the coast fortifications such small number of artillerymen as may be necessary, for such reasonable time as may be required to enable the new Government to organize and substitute therefor an adequate military force of its own: by which time it is anticipated that the naval stations referred to in the statute and in the appendix to the constitution above cited, will have been agreed upon, and the said artillerymen may be transferred thereto.

"You will convene the Congress elected by the people of Cuba in joint session at such reasonable time before the 20th of May as shall be necessary therefor, for the purpose of performing the duties of counting and rectifying the electoral vote for President and Vice-President under the fifty-eighth article of the Cuban constitution.

{176}

At the same time you will publish and certify to the people of Cuba the instrument adopted as the constitution of Cuba by the constitutional convention on the 21st day of February, 1901, together with the appendix added thereto and forming a part thereof adopted by the said convention on the 12th day of

June, 1901. It is the understanding of the Government of the United States that the government of the island will pass to the new President and Congress of Cuba as a going concern; all the laws promulgated by the government of occupation continuing in force and effect, and all the judicial and subordinate executive and administrative officers continuing in the lawful discharge of their present functions until changed by the constitutional officers of the new government. At the same moment the responsibility of the United States for the collection and expenditure of revenues and for the proper performance of duty by the officers and employees of the insular government will end, and the responsibility of the new government of Cuba therefor will commence.

"In order to avoid any embarrassment to the new President, which might arise from his assuming executive responsibility with subordinates whom he does not know, or in whom he has not confidence, and to avoid any occasion for sweeping changes in the civil-service personnel immediately after the inauguration of the new Government, approval is given to the course which you have already proposed of consulting the President-elect, and substituting, before the 20th of May, wherever he shall so desire, for the persons now holding official positions, such persons as he may designate. This method will make it necessary that the new President and yourself should appoint representatives to count and certify the cash and cash balances and the securities for deposits transferred to the new government. The consent of the owner of the securities for deposits to the transfer thereof you will of course obtain.

"The vouchers and accounts in the office of the Auditor and elsewhere, relating to the receipt and disbursement of moneys during the government of occupation, must necessarily remain within the control, and available for the use, of this Department. Access to these papers will, however, undoubtedly be important to the officers of the new government in the conduct of their business subsequent to the 20th of May. You

will accordingly appoint an agent to take possession of these papers and retain them at such place in the island of Cuba as may be agreed upon with the new government until they can be removed to the United States without detriment to the current business of the new government.

"I desire that you communicate the contents of this letter to Mr. Palma, the President-elect, and ascertain whether the course above described accords with his views and wishes. Very respectfully,

ELIHU ROOT, *Secretary of War*."

On the 20th of May, 1902, the transfer of executive authority from the American Military Governor, General Wood, to President elect Palma was made in due form, and the following correspondence passed between President Palma, General Wood, President Roosevelt, and Secretary Root:

"HABANA, May 20, 1902.

"Honorable General Leonard Wood.

"Sir: As President of the Republic of Cuba, I hereby receive the Government of the Island of Cuba which you transfer to me in compliance with orders communicated to you by the President of the United States, and take note that by this act the military occupation of Cuba ceases.

"Upon accepting this transfer I declare that the Government of the Republic assumes, as provided for in the constitution, each and every one of the obligations concerning Cuba imposed upon the United States by virtue of the treaty entered into on the 10th of December, 1898, between the United States and Her Majesty the Queen Regent of Spain.

"I understand that, as far as possible, all pecuniary responsibilities contracted by the military government up to this date have been paid; that \$100,000, or such portion

thereof as maybe necessary, have been set aside to cover the expenses that may be occasioned by the liquidation and finishing up of the obligations contracted by said government, and that there has been transferred to the Government of the Republic the sum of \$689,191.02, which constitutes the cash balance existing to-day in favor of the State. ...

"I take this solemn occasion, which marks the fulfillment of the honored promise of the Government and people of the United States in regard to the island of Cuba, and in which our country is made a ruling nation, to express to you, the worthy representative of that grand people, the immense gratitude which the people of Cuba feel toward the American nation, toward its illustrious President, Theodore Roosevelt, and toward you for the efforts you have put forth for the successful accomplishment of such a precious ideal.

T. ESTRADA PALMA."

"Habana, May 20, 1902.

"Theodore Roosevelt, *President, Washington.*

"The government of the island having been just transferred, I, as Chief Magistrate of the Republic, faithfully interpreting the sentiments of the whole people of Cuba, have the honor to send you and the American people testimony of our profound gratitude and the assurance of an enduring friendship, with wishes and prayers to the Almighty for the welfare and prosperity of the United States.

T. ESTRADA PALMA."

"Washington, May 20, 1902.

"President of the Republic of Cuba:

"Believe in my heartfelt congratulations upon the inauguration of the Republic which the people of Cuba and the people of the United States have fought and labored together to establish. With confidence in your unselfish patriotism and courage and in the substantial civic virtues of your people, I bid you godspeed, and on this happy day wish for Cuba for all time liberty and order, peace and prosperity.

ELIHU ROOT, *Secretary of War*."

"Habana, May 21, 1902.

"ELIHU ROOT, *Secretary of War*, Washington.

"I am deeply moved by your heartfelt message of congratulation on the inauguration of the Republic of Cuba, to the birth of which the people and the Government of the United States have contributed with their blood and treasure. Rest assured that the Cuban people can never forget the debt of gratitude they owe to the great Republic, with which we will always cultivate the closest relations of friendship and for the prosperity of which we pray to the Almighty.

T. ESTRADA PALMA."

{177}

On the 10th of June, General Wood, at Washington, made the following report to the Adjutant-General of the United States Army:

"Sir: I have the honor to inform you that the Republic of Cuba was established at 12 o'clock noon, May 20, 1902. The transfer was made upon the lines indicated in the instructions of the honorable the Secretary of War, and the autograph letter of the President read to President Palma and presented to him. President Palma responded, expressing his sincere appreciation of the work done by the United States in Cuba, and the lasting gratitude of himself and the people of Cuba.

"The transfer was made in the main reception hall of the palace of the military governor. There were present the President-elect and his cabinet, the military governor and the officers of his staff, civil and military, the Cuban Congress, the judiciary, officers of the British and Italian navies, the captain and staff of the U. S. S. *Brooklyn*, and the consular representatives of foreign countries. ...

"I left the palace at twenty-five minutes past 12 o'clock, accompanied by the officers of my personal and departmental staff. We were accompanied to the capitania del puerto by President Palma with his cabinet, the Cuban Congress, and all others who had been present at the ceremonies. President Palma bade us farewell at the wharf after again expressing his most sincere and lasting good will and appreciation.

"Accompanied by my personal staff, I immediately embarked upon the U. S. S. *Brooklyn*. The officers of the department staff embarked on the S . S. *Moro Castle*, which sailed at a quarter past 3. The U. S. S. *Brooklyn* sailed at about 3.45.

LEONARD WOOD, *Brigadier General United States Army*."

The above account of the "Establishment of Free Government in Cuba "is taken wholly from a narrative thus entitled, compiled by the Bureau of Insular Affairs, United States War Department, and published as Document Number 312, in Volume 7 of Senate Documents, 58th Congress, 2d Session.

CUBA: A. D. 1902.

Tomas Estrada Palma, the First President of the Cuban Republic.

"There was such manifest propriety in the selection of General Estrada Palma to be the first president of the Cuban Republic

that the attempt to bring forward another candidate was unavailing. There was no excitement at the popular election, and the voting was light, because the result was a foregone conclusion. The two most important men in the last struggle for Cuban freedom were General Maximo Gomez and General Estrada Palma. Gomez commanded the armies in the field, and employed methods which, as we have repeatedly said, entitle him to rank as one of the greatest of all modern commanders. Palma was the agent of the Cuban patriots in the United States, and he, more than any other man, is to be credited with having kept alive the military movement in Cuba by means of material aid and assistance sent from the outside. Most important of all, he addressed himself with success to bringing about that awakening of public opinion in the United States which finally took the form of an irresistible moral crusade on behalf of Cuban freedom. If these two men had died, or were otherwise ineligible, Cuba would not, indeed, have been left without trained and patriotic sons who could have filled the presidential office with ability and success. But since Gomez and Palma were both alive, and available in every sense, they were the two men to whom Cuba might naturally turn, rather than to any others, as candidates for the presidency. The military hero is always the man to be first considered, and Gomez for a time was the candidate whose name was upon all lips. But he declared that he had no ambition for political office, and in due time it appeared that Gomez was shaping things in Cuba for the nomination of Palma. ...

"Tomas Estrada Palma is sixty-six years of age. His father was a wealthy planter in the easternmost province of Cuba, and the son was well educated in Cuba and in Spain, and became a lawyer, with a view not so much to the practice of his profession as to the better management of the affairs of a large estate. His patriotic sympathies led him to active service in the ten years' struggle for independence which began in 1868 and ended in 1878, and early in that period he became a general in the insurgent army. Toward the end of the

war, he became the president of the provisional government, a position which at least indicated the confidence in which he was held by the Cuban people. He was made a prisoner, taken to Spain, at the risk of his life refused to swear allegiance, witnessed, in consequence, the confiscation of his estates, and some time after the final termination of the struggle regained his personal liberty, at the loss, however, of his Cuban property and home. When he goes to Cuba, two or three months hence, to assume the duties and high honors of the presidency, it will be after an absence of twenty four years. After his release, at the end of the Ten Years War, Palma traveled in Spanish-American countries, and settled in Honduras, where he married the daughter of the president of that republic and became postmaster-general. Subsequently he came with his wife and one little child to New York, and saw an opportunity to establish a school for young people from the Spanish-American countries. His institute was located in the little town of Central Valley, in Orange County, New York, some forty miles from the metropolis. He has now lived in Central Valley for eighteen years, and his six children, five of whom were born there, have known no other home."

American Review of Reviews,
February, 1902.

CUBA: A. D. 1903.

Lease of Coaling and Naval Stations to the United States.

Reciprocity with the United States.

Cession of the Isle of Pines.

In consonance with Article VII. of the so-called "Platt Amendment," which became an Appendix to the Constitution of the Republic of Cuba, an Agreement between the United States and Cuba for the lease to the former, in Guantanamo and Bahia Honda, of lands for coaling and naval stations, was signed in February, 1903. The consequent lease was signed and ratifications exchanged in the following July and October.

{178}

According to the terms of the Agreement "while, on the one hand, the United States recognizes the continuance of the ultimate sovereignty of the Republic of Cuba over the above described areas of land and water, on the other hand the Republic of Cuba consents that during the period of the occupation by the United States of said areas under the terms of this agreement the United States shall exercise complete jurisdiction and control over and within said areas with the right to acquire (under conditions to be hereafter agreed upon by the two Governments) for the public purposes of the United States any land or other property therein by purchase or by exercise of eminent domain with full compensation to the owners thereof." The yearly rental to be paid for the use of the lands defined in the Agreement is \$2000.

An arrangement of reciprocity between Cuba and the United States, conceding to Cuban sugar a rebate of 20 per cent. from the Dingley tariff rate, and giving 20 to 40 per cent. of reduction in Cuba on American goods, was ratified by the United States Senate in December.

A treaty ceding all claims of the United States to the Isle of Pines was signed in December, and awaited ratification by the Senate when the year closed.

CUBA: A. D. 1906.

Participation in Third International Conference of American Republics.

See (in this Volume)
American Republics.

CUBA: A. D. 1906 (August-October).

Outbreak of insurrection.

Appeal of President Palma for American intervention.

The Republic practically without a Government.

Secretary Taft, sent to the Island, establishes a Provisional Government.
Governor Magoon.

The first report to the Government of the United States of an outbreak of insurrection in Cuba was sent from the American Legation at Havana on the 21st of August, 1906. Between 1000 and 1500 men were then said to be in arms in Pinar del Rio, under Colonel Pino Guerra, "a Liberal member of the present Congress and a veteran of the War of Independence." The insurgents represented the political party called Liberal, hostile to the party called Moderate which controlled the Government and enjoyed the favor of President Palma. They complained of unfairness in late elections and demanded a new electoral law with a new election to be held under it. The Government had no effective armed forces to use against them, and some effort by business men of Havana and by "veterans" to mediate between the parties and pacify the revolutionists were without avail. Events, therefore, moved rapidly to the producing of a situation in which President Palma, on the 12th of September, asked for American intervention, and begged "that President Roosevelt send to Havana with rapidity 2000 or 3000 men, to avoid any catastrophe in the capital." Two days later the request was repeated with more urgency, the Consul-General at Havana stating in a telegram to the State Department at Washington:

"President Palma has resolved not to continue at the head of the Government, and is ready to present his resignation, even though the present disturbances should cease at once. The vice-president has resolved not to accept the office. Cabinet ministers have declared that they will previously resign. Under these conditions it is impossible that Congress will meet, for the lack of a proper person to convoke same to designate a new president. The consequences will be absence of legal power, and therefore the prevailing state of anarchy will continue unless the United States Government will adopt

the measures necessary to avoid this danger."

The action then taken by President Roosevelt was recounted by him in his next annual Message to Congress, as follows:

"It was evident that chaos was impending, and there was every probability that if steps were not immediately taken by this Government to try to restore order, the representatives of various European nations in the island would apply to their respective governments for armed intervention in order to protect the lives and property of their citizens. Thanks to the preparedness of our Navy, I was able immediately to send enough ships to Cuba to prevent the situation from becoming hopeless; and I furthermore dispatched to Cuba the Secretary of War and the Assistant Secretary of State, in order that they might grapple with the situation on the ground. All efforts to secure an agreement between the contending factions, by which they should themselves come to an amicable understanding and settle upon some *modus vivendi*—some provisional government of their own—failed. Finally the President of the Republic resigned. The quorum of Congress assembled failed by deliberate purpose of its members, so that there was no power to act on his resignation, and the Government came to a halt. In accordance with the so-called Platt amendment, which was embodied in the constitution of Cuba, I thereupon proclaimed a provisional government for the island, the Secretary of War acting as provisional governor until he could be replaced by Mr. Magoon, the late minister to Panama and governor of the Canal Zone on the Isthmus; troops were sent to support them and to relieve the Navy, the expedition being handled with most satisfactory speed and efficiency. The insurgent chiefs immediately agreed that their troops should lay down their arms and disband; and the agreement was carried out."

From an "Epitome of events attendant upon the establishment of the Provisional Government of Cuba," published in Part 1 of

"Papers relating to the Foreign Relations of the United States," for 1906, the following is taken:

"On Saturday, September 29, 1906, a provisional government exercising Cuban sovereignty under the authority of the President of the United States was established, and a proclamation was issued to the Cuban people setting forth the causes for this action and defining the position of the United States toward Cuba.

"Since the American commissioners understand that the Republic of Cuba is continuous and that they are only the ad interim executives, the various departments continue to function as before with the assistant secretaries as acting heads, the only officials discharged being those taken on to meet the exigencies of the revolution.

"At the time the commissioners assumed control there were many political prisoners in the jails throughout the island. These, of whom several were prominent liberals who had several times been consulted by the commissioners while on parole, were immediately set at liberty.

"The disbanding and disarming of the rebel forces and, incidentally, the government militia, enlisted specially for the revolution, has been the chief concern of the provisional government from its establishment until now. It was carried out by a commission of American and Cuban military officers, of which General Frederick Funston was head, and has been practically completed.

{179}

"On the 10th instant [October] Provisional Governor Taft issued a general amnesty proclamation to the people of Cuba, thus indicating that quiet and peace have been restored. Save for sporadic local disturbances, the entire country is

tranquil.

"On Tuesday, the 9th instant, Governor Magoon, who has succeeded Mr. Taft as provisional governor, and General Bell, who is to take command of the military forces of the United States in the island, reached Habana, and on Saturday, the 13th, Governor Taft issued a proclamation transferring the provisional governorship to Governor Magoon."

In his proclamation of September 29th, on taking possession of the Government, Secretary Taft used these clear and distinct words:

"The provisional government hereby established will be maintained only long enough to restore order, peace, and public confidence, by direction of and in the name of the President of the United States, and then to hold such elections as may be necessary to determine on those persons upon whom the permanent government of the republic should be devolved.

"In so far as is consistent with the nature of a provisional government established under the authority of the United States this will be a Cuban Government, conforming with the constitution of Cuba. The Cuban flag will be hoisted as usual over the government buildings of the island, all the executive departments and provincial and municipal governments, including that of the City of Havana, will continue to be administered as under the Cuban Republic; the courts will continue to administer justice, and all the laws not in their nature inapplicable by reason of the temporary and emergent character of the government will be in force."

CUBA: A. D. 1906-1909.

Under the Provisional American Government.

Election of a new Congress and a new President.

Restoration of the Republic.

In his Message to Congress, December, 1907, President Roosevelt described the conditions that had prevailed in the island for two years under the provisional government, instituted by Secretary Taft and over which Governor Magoon had presided, in a few words, as follows:

"Absolute quiet and prosperity have returned to the island because of this action. We are now taking steps to provide for elections in the island and our expectation is within the coming year to be able to turn the island over again to a government chosen by the people thereof. Cuba is at our doors. It is not possible that this Nation should permit Cuba again to sink into the condition from which we rescued it. All that we ask of the Cuban people is that they be prosperous, that they govern themselves so as to bring content, order and progress to their island, the Queen of the Antilles; and our only interference has been and will be to help them achieve these results."

Provincial elections held in the following August went generally in favor of the Conservative party, and that party was accordingly expected to win the presidential election, appointed to occur in November, 1908; but such was not the result. Three parties were in the field, Conservatives, Miguelistas, and Zayistas. The Miguelistas were political followers of General José Miguel Gomez, whose middle name they took for their party designation; the Zayistas were partisans of Dr. Alfredo Zayas; the Conservatives were reputed to be substantially identical with the party known as Moderates in the politics of the First Republic. Their leader was General Menocal. The Liberals of former contests were now divided between Miguelistas and Zayistas. They were reunited in the national election of November, and swept the Moderates into the background, electing both their leaders, Gomez and Zayas, the one to be President, the other to be Vice-President, of the reconstituted Republic: electing, at the same time, an

effective majority in the Congress for their support.

January 28, 1909, was the day fixed for dissolving the provisional government and reinvesting the Cubans with political independence; but the Congress was organized and held its initial session on the 13th. The President and Vice-President elect were inaugurated with simple ceremonies on the 28th. President Roosevelt, on that day, sent a message to the President and the Congress in these words: CUBA:

"Governor Magoon will, by my direction, turn over to you on the 28th of this month the control and government of the island of Cuba, and he will thereupon declare the provisional administration of the affairs of the island by the United States to be at an end. Upon the occasion of this final act, I desire to reiterate to you the sincere friendship and good wishes of the United States and our most earnest hopes for the stability and success of your government. Our fondest hope is that you may enjoy the blessing of peace, prosperity, justice, and orderly liberty, and that the friendship which has existed between the republic of the United States and the republic of Cuba, may continue for all time to come."

Governor Magoon, in his brief address, surrendering the reins of government to President Gomez, said, in part:

"It is the understanding of the United States, and it now declares that all the executive and legislative decrees and rulings of the provisional government now in force shall continue in force and effect until such time as the same shall be legally revoked by Cuba.

"All money obligations of the provisional government down to this date have been paid as far as practicable. Such claims and obligations, however, as may remain unpaid are to be regarded as claims and obligations of Cuba, and the United States understands that these claims and obligations will be

so treated."

President Gomez replied:

"We receive from you the government of Cuba which you turn over to us in compliance with the instructions of the President of the United States. All acquired rights shall be respected in harmony with the principles of international law, the principles of our constitution and the provisions of the appendix of the constitution. The constitution shall be upheld in all its integrity because our chief concern will be to preserve it inviolate.

{180}

"We are indebted to your nation for its generous aid in the maintenance of our institutions and the cordial relations existing will never grow less through any act of ours. Once again we are masters of our fate and there is not a Cuban heart but swears to maintain for all time the newly-acquired integrity of the nation, and who does not at the same time feel the profoundest gratitude towards those who, after governing them, have faithfully performed their agreement and now leave us in the full enjoyment of our sovereignty."

According to newspaper reports, however, the popular feeling was somewhat different from the sentiment expressed by President Gomez, if the coldness with which the Cuban crowd of that day watched the departure of Governor Magoon and his associates could be taken for a sign. They sailed for home immediately, on the new battleship Maine. About 3000 American troops remained on the island, under command of Major-General Thomas L. Barry, until the 1st of April following. On the departure of these, President Gomez said to General Barry:

"It is pleasing to me to acknowledge the great aptitudes and qualities of the Army of Pacification under your command,

which has brought to a happy conclusion its honorable mission of watching over our country in the difficult days, now happily past, and in maintaining and reaffirming the most friendly relations with our people, in whose name I assure you your efforts have been crowned with the most flattering success. I pray you, general, to express to your valiant soldiers the extreme gratitude and admiration which the government and the people of Cuba have for them."

Of President Gomez the following account was given at the time of his inauguration by the New York *Evening Post*:

"Major-General Jose Miguel Gomez, the first President of the new Cuban Republic, is fifty-three years of age, and a native of Santa Clara province, where he has always enjoyed extraordinary popularity and influence. He participated in two Cuban revolutions against Spain, in the first of which he reached the rank of major and in the second that of major-general. He was selected as Governor of Santa Clara province by the government of intervention, and when his term expired he was elected Governor.

"In May, 1905, the general was nominated for the Presidency by the National Liberal Convention, but resigned his candidacy four months later, giving as the reason for this action that it was impossible to continue the campaign within the bounds of the law, and laying part of the blame on the United States, owing to the Platt amendment. An uprising in Cuba followed, which ended with the deposition of President Palma and the intervention of the United States.

"In August, 1906, General Gomez was arrested, charged with conspiring against the Administration of the late President Palma, but he denied the allegation, and was released from custody after a month's imprisonment. In December of the same year Governor Magoon appointed him secretary of a commission to revise the laws of Cuba. These included the drafting of an

electoral law, new provincial and municipal laws, a law defining the organization and functions of the judiciary, a civil service law, and also laws on such other subjects as may be referred to it by the provisional Governor."

CUBA: A. D. 1907.

Population.

Remarkable increase in eight years.

"The population of Cuba on September 30, 1907, was 2,048,980; at the census next preceding, taken under the American administration in 1899, at the close of the Spanish-American War, the population was 1,572,797. The rate of increase in these eight years is not less than 30 per cent. or at the rate of 39 per cent per decade. This is a very rapid rate of increase—greater than that of any other country with which I am acquainted. This increase has not been brought about by immigration, for in the eight years the net immigration (that is, the excess of arrivals over departures) numbered only 75,000, and the element of foreign birth increased from 11 per cent to 11.2 per cent only, but it has been brought about almost entirely by the excess of births over deaths. ... One peculiar phenomenon of this increase is that the rural population has gained much more rapidly than has the urban—a condition which rarely exists, as in nearly every country in the world the drift of population is toward the cities. The urban population, including all places of 1,000 inhabitants and over, was 43.9 per cent of the total population. In 1899 it was 47.1 per cent. If the urban population be limited to towns of 8,000 inhabitants, the proportion was 30.3 per cent. The chief cities are Habana, with 297,159 inhabitants, or about one-seventh of the population of Cuba; Santiago de Cuba, 45,470; Matanzas, 36,009; Cienfuegos, 30,100; and Camaguey, 29,616. The number of inhabitants per square mile in the island as a whole was 46.5, or about the same as in Missouri, Virginia, or South Carolina. The foreign-born population formed 11.2 per cent of the total. Of this element four-fifths

were born in Spain and less than three per cent in the United States; Chinese and Africans were more numerous than United States people. ...

"As to color, about seven-tenths of the population were white, the remaining three-tenths being colored, including negroes, mixed, and a few thousand Chinese. As in the United States, the colored element is increasing less rapidly than is the white population."

***Henry Gannett,
National Geographic Magazine,
February, 1909.***

As reported from Washington, nearly 57 per cent, of the population of Cuba, at least ten years of age, can read, the percentage in the large cities being 82.6 and in the rest of the island 47.9 according to figures obtained in the census recently taken. This census shows that in 1907 almost one-third of the children were attending school, as compared with less than one-sixth in 1899.

See also (in this Volume)
EDUCATION: CUBA.

CUBA: A. D. 1907 (April).

Decision of Supreme Court of the United States respecting the Isle of Pines.

A decision by the Supreme Court of the United States, rendered on the 8th of April, 1907, determined that the Isle of Pines is foreign territory, in the view of the United States customs laws, and, inferentially, that the United States has practically no title to the island.

CUBA: A. D. 1909 (June).

Ill conditions along with material prosperity.

"What may prove to be the largest sugar crop in Cuba's history—certainly it is the most profitable she has harvested in many along year—is almost in. It is estimated at a million and a half tons. It has obtained the very satisfactory average price of 4 5/8 reales, reckoning from January 1 to date. ... Ordinarily, this condition of affairs as regards her biggest crop would be equivalent to the best of times for Cuba, especially since last year also was a good year for sugar men, and this year the tobacco crop, too, is fair in quantity and quality and going at satisfactory prices. But, so extraordinary is the present situation, times were never harder in all the history of this island than they are to-day, material evidences of prosperity to the contrary notwithstanding.

{181}

"Yet values have not dropped. This is no panic. It is merely a standing still—a waiting for something to happen. Just what it is that is due to occur nobody will say. Asked what he is afraid of, the Spaniard, who is the business man of Cuba, shrugs his shoulders and shifts his eyes; pressed for a reply, he answers enigmatically: 'There is no confidence.' The feeling grows that the present government will be forced into the hands of a receiver, like any other bankrupt concern, before even its liveliest opponents can organize to end it more heroically. ...

"In 1906, when Cuba's customs receipts, which are almost her sole source of revenue, were at their maximum, her budget stood at \$17,915,013.25. In 1909, weakened as she is, she is burdened with a budget of \$33,825,448.53—President Gomez's estimate of expenditure necessary in the first fiscal year of his Administration! In other words, while collections have fallen off, the governmental expenditures they must cover have increased 100 per cent."

***Havana Correspondent,
New York Evening Post,
June 19, 1909.***

"The Senate and House abruptly adjourned this evening. This was the final day of the regular session of Congress, but no definite action was taken on the question of the approval of the budget. ... The House yesterday approved the budget in its entirety, and it was expected that the Senate would approve it to-day. The latter body, however, after devoting much time to a bill legalizing cockfighting, which was passed, made sundry minor modifications in the budget, sending it again to the House, in the apparent expectation that the modifications would be accepted by the House, which, in the meantime, had adjourned. The adjournment of the House was not known until after the Senate had also adjourned."

***Havana Telegram to Associated Press,
June 30, 1909.***

"Owing to the failure of the Cuban Senate to pass the budget, President Gomez, early this morning, issued a decree making effective Governor Magoon's budget of 1908-1909 amounting to \$24,285,000. The deficiency to cover the cost of the army and other increased expenses of the republic, amounting to nearly \$10,000,000, will be supplied by Presidential decree. This will practically repeat the conditions of the last year of the Palma regime, when, in default of a budget, the decrees to this same end issued by President Palma were declared to violate the Constitution, and precipitated the revolution of August, 1906."

***Havana Telegram,
July, 1.***

-----CUBA: End-----

CUNARD COMPANY:

Agreements with the British Government.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: INTERNATIONAL.

"CURB MARKET," The, of New York:

Report on its operations.

See (in this Volume)

FINANCE AND TRADE: UNITED STATES. A. D. 1909.

CURIA, New Apostolic Constitution of the Roman.

See (in this Volume)

PAPACY: A. D. 1908.

CURIE, Marie Sklodovska.

See (in this Volume)

NOBEL PRIZES.

CURIE, Pierre.

See (in this Volume)

NOBEL PRIZES.

CURIE, Professor and Madame:

Their discovery of Radium.

See (in this Volume)

SCIENCE, RECENT: RADIUM; also, PHYSICAL.

CURRENCY.

See (in this Volume)

FINANCE AND TRADE.

CURRY, J. L. M.:

Originator of the Annual Conferences for Education in the South.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1898-1909.

CURTIS, Glenn H.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: AERONAUTICS.

CURZON, George N., Lord:

Partition of Bengal.

See (in this Volume)

INDIA: A. D. 1905-1909.

CURZON, George N., Lord:

Resignation of Viceroyalty of India.

See INDIA: A. D. 1905 (AUGUST).

CURZON-WYLLIE, Sir, Assassination of.

See (in this Volume)

INDIA: A. D. 1909 (JULY).

CUSTOMS ADMINISTRATION:

Proposals of the Conference of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

CUSTOMS COURT OF APPEALS, UNITED STATES:

See (in this Volume)
TARIFFS: UNITED STATES.

CUSTOMS SERVICE, United States:
Corruptions disclosed.

See (in this Volume)
UNITED STATES: A. D. 1909 (OCTOBER-NOVEMBER).

CUSTOMS UNION, Serbo-Bulgarian.

See (in this Volume)
BALKAN STATES: BULGARIA AND SERVIA: A. D. 1905.

CZECHS:
Struggle with Austrian Germans over the language question.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1902-1903, and 1904.

CZOLGOSZ, Leon:
Assassin of President McKinley.

See (in this Volume)
BUFFALO: A. D. 1901.

D.

DAIDO CLUB.

See (in this Volume)
Japan: A. D. 1909.

DALGETY:
Rejected Site for Australian Capital.

See (in this Volume)
AUSTRALIA: A. D. 1905-1906.

DALNY:
Russian Evacuation.

See (in this Volume)
JAPAN: A. D 1904 (FEBRUARY-JULY), and
1904-1905 (MAY-JANUARY).

When Dalny, by the Treaty of Portsmouth, became the property
of Japan its name was changed to Tairen.

DAMASCUS:
Railway to Mecca.

See (in this Volume)
RAILWAYS: TURKEY, ASIATIC: A. D. 1908.

DARWIN, Charles:
Centenary Commemoration of.

See (in this Volume)
SCIENCE AND INVENTION: ANNIVERSARY CELEBRATIONS.

DARWINISM, Bearing of Mendel's Law on.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: BIOLOGICAL.

DAVENPORT, Dr. Charles B.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: CARNEGIE INSTITUTION.

{182}

DAVIS, General George B.:

Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

DAVIS, Henry G.:

Delegate to Second International Conference of
American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

DAVIS, Jefferson:

Unveiling of Monument to.

See (in this Volume)

RICHMOND, VIRGINIA.

DAYANAND SARASWATI.

See (in this Volume)

ARYA SAMAJ.

DAYLIGHT SAVING MOVEMENT.

What is known as the Daylight Saving Movement, which has acquired much strength in England and has gained some favor in the United States and elsewhere, is said to have been first mooted by a builder in London, Mr. Willet, who suggested the possibility of securing a most important general advantage to the whole community by establishing a legal difference between summer and winter in the numbering of the hours. The proposition is to retain the standard clock time for all the year except between a given date in April and a given date in September, within which period the clocks shall be set forward one hour, making six o'clock in the morning, for example,

become seven.

At first the proposition excited little but laughter; but the more it has been considered the more advocacy it has won. A bill to realize it has been twice before Parliament, failing to be passed, but gaining votes. The main difficulty is to make people see why there should be legislation on the subject; why those who wish to begin the labors of the day an hour earlier in the summer than in the winter may not do so without any meddling of law with the clocks. The reasons why were set forth very clearly in one of the debates of Parliament on the subject. Said one speaker: "The Bill was intended to benefit town dwellers. Two-thirds, if not three-fourths, of the population dwelt in towns, and it was these who suffered from failure to take advantage of the summer daylight. It had been asked why it was necessary, in order to induce town populations to follow the example of agriculturists, to proceed by way of legislation. The answer was simple. There were 140 statutes in which various phases of town life were regulated by the clock, and if they desired those who lived in towns to take advantage of the summer daylight by beginning work earlier in the morning, it was surely easier to accomplish that end by passing a general Act of this kind than by bringing in Bills to amend each of the statutes in which particular hours were specified."

As another (Mr. Winston Churchill) explained: "It was quite impossible for an individual to make alterations in the hours at which he discharged particular duties, while every one else remained unchanged, without subjecting himself to a great deal of inconvenience, and the fact that particular firms had already adopted this early rising system, in spite of the enormous inconvenience which attended all alterations from the regular habits of the community as a whole, was not, as the honourable member for Rye suggested, an argument against the necessity of the Bill. It was, in his judgment, very good evidence of the real, natural pressure that there was behind a

measure of this character. If all the world were to change clock time together, no one would be conscious that that change had occurred, except at the moment of change. But where a change of clock time came into contact with unchanged times, as in the case of the American markets or of the Continental mails and trains, there, undoubtedly, they would get friction and discordance. He was, however, not at all sure that that friction and discordance bore any sensible proportion to the interests which might be beneficially affected or that that friction and discordance could not be adjusted without any very serious inconvenience. But whether that was so or not, he was quite clear that any such change as this must be made by legislation, or it could not be made at all."

DEAKIN, Alfred:

Premier of Australia.

See (in this Volume)

AUSTRALIA: A. D. 1903-1904, and after.

DEAKIN, Alfred:

At the Imperial Conference of 1907.

See (in this Volume)

BRITISH EMPIRE: A. D. 1907.

DEAKIN, Alfred:

Defeat and resignation in 1908.

Recovery of the Premiership in 1909.

See (in this Volume)

AUSTRALIA: A. D. 1908, and 1909 (MAY-JUNE).

DEATH DUTY, or Inheritance Tax.

Defeated proposal in Germany.

See (in this Volume)

GERMANY: A. D. 1908-1909.

DEATH DUTIES:

Treaty between Great Britain and France, to prevent frauds in connection with Succession or Death Duties.

The following Treaty between the Governments of Great Britain and France was signed November 15, 1907, and ratified December 9:

"The Government of His Britannic Majesty and the Government of the French Republic, being desirous of preventing as far as possible frauds in connection with succession duties, have authorized the Undersigned to conclude the following Agreement:—

"ARTICLE 1.

The Government of His Britannic Majesty undertake, in the case of the decease of all persons domiciled in France, to furnish an extract from the affidavit, containing the full name, domicile, date and place of death of the deceased; all information relating to his successors, and the details respecting that portion of the estate which is moveable. This extract shall be furnished, however, only in cases where the value of the moveable estate shall amount to a sum of not less than £100.

"ARTICLE 2.

The Government of the French Republic undertake, in the case of the decease of all persons domiciled in the United Kingdom of Great Britain and Ireland, to furnish an extract from the **déclaration de mutation** through death, containing the particulars enumerated in Article 1. This extract shall be furnished, however, only in cases where the value of the moveable estate declared shall amount to a sum of not less than 2,520 fr.

"ARTICLE 3.

The extracts from affidavits or *déclarations de mutation* shall be certified by the officers intrusted with the duty of receiving or registering these affidavits or declarations.

"In the event, however, of either of the two Governments deeming it necessary, the certifying and authentication of the signatures, as required according to the procedure customary in that country, shall, upon request and without fee, be affixed to these extracts.

"ARTICLE 4.

The extracts from affidavits or declarations received or registered during each quarter shall be forwarded directly, within a period of six weeks from the last day of the quarter, by the Board of Inland Revenue to the Direction Générale de l'Enregistrement, and reciprocally.

"All correspondence respecting the said extracts shall also be conducted directly between those two Central Administrations."

{183}

DEATH STATISTICS:

Fatal Accidents to Workmen in the United States.

See (in this Volume)
LABOR PROTECTION.

DEBTS, Public:

Compulsory collection.

See (in this Volume)
DRAGO DOCTRINE.

DEBS, Eugene V.:

Nomination for President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),
and 1908 (APRIL-NOVEMBER).

DEEP WATERWAYS, Movement for.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

DE LAVAL, Gustave Patrick.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: TURBINE ENGINE.

DELAGRANGE, M.

See (in this Volume)

Science and Invention, Recent: Aeronautics.

DELBRUCK, Herr.

See (in this Volume)

GERMANY: A. D. 1908-1909.

DELCASSÉ, THÉOPHILE:

French Minister of Foreign Affairs.

See (in this Volume)

FRANCE: A. D. 1902 (APRIL-OCTOBER).

DELCASSÉ, THÉOPHILE:

Resignation forced by the German Government.

See (in this Volume)

EUROPE: A. D. 1905-1906.

DELCASSÉ, THÉOPHILE:

Controversy with M. Clemenceau in the Chamber of Deputies
which threw the latter out of office.

See (in this Volume)

FRANCE: A. D. 1909 (JULY).

DELHI: A. D. 1903.

Great Durbar.

See (in this Volume).

INDIA: A. D. 1903 (JANUARY).

DELYANNIS, Theodoros:

Assassination.

See (in this Volume)

GREECE: A. D. 1905.

DEMOCRACY, Political:

Involved in the South African Labor Question.

See (in this Volume)

SOUTH AFRICA: A. D. 1903-1904.

DEMOCRACY, Political:

Triumphant in Denmark.

See (in this Volume)

DENMARK: A. D. 1901.

DEMOCRATAS, The. See (in this Volume)

DEMOCRISTIANA.

See (in this Volume)

LABOR ORGANIZATION: ITALY.

-----DENMARK: Start-----

DENMARK: A. D. 1909.

Democracy in Power after a thirty-years' struggle with Landlordism.

Landlordism in Denmark, entrenched in the upper house of the Parliament, was dislodged from the control of Government by the Democratic party, in the elections of April, 1901, after a struggle of thirty years. A Danish correspondent of ***The American Review of Reviews*** gave a spirited account of the victory to that magazine in the following October, from which the following is taken:

"At the elections of April, 1901, out of 114 members in the lower house only 5 were won by the Conservatives, with small majorities, and even the strong Conservative majority in the upper house was reduced to one vote through the rebellion of the Conservatives. The Danes are now a thoroughly radical and democratic people, with a more perfect system of self-government in politics and business than perhaps any other nation. The population has increased so much that it is now as large as the whole population of the kingdom and duchies before 1864. After England, it is also the richest country in the world per head of the population, and the excellence of its educational system is matter of common knowledge. Denmark, therefore, enters the new century steaming full speed ahead, and with the best hopes for the future.

"The victory of April 3 last was as complete over the Moderates as over the Government. Before the poll the Moderates were twenty-two strong, but Mr. Bojesen, the evil genius of the democracy, withdrew his candidature and retired into private life, while several of his supposed adherents declared during the campaign that, if reelected, they would

join the Radicals. Mr. Bojesen's constituency, which he had represented since 1869, was taken by the Radicals, and the Moderates, now reduced to twelve or thirteen—of whom about half will join the Radicals if allowed—have lost all their former importance. The premier and minister of justice is M. Deuntzer, professor of law at the university, an old Radical who in 1885 publicly opposed the government. The minister of agriculture is Mons. Ole Hansen. He is a common farmer from a village in Seeland, owner of a farm of about one hundred acres; M. P. since 1890. ... The law officer of the crown is Mons. Alberti, who is a leader of many cooperative undertakings of the peasantry; M. P. since 1892.

"Mr. Jens Christian Christensen is the most important member of the new cabinet. He was born in West Jutland, in 1856, the son of a farmer, and earned his living when a boy as a shepherd. He passed the examination for village schoolmaster in Jutland, and taught till recently in the little village of Stadil, in West Jutland. In 1890 he was returned for Parliament, and in 1895 became leader of the opposition. Of late years, the Conservative Government being so utterly weak, he practically ruled the country in his capacity of president of the finance committee of the Folkething. A few months ago he resigned his post as schoolmaster, succeeded in being elected a 'revisor of the state,' and is now minister of religion and education. After Mr. Christensen, Mr. Harup is considered the greatest triumph for the Democrats. Born in 1841, the son of a schoolmaster in an Iceland village, he became a law student, taking his degree in 1867 at the university. ... He is one of the most brilliant and best known of Danish journalists—the most brilliant, according to George Brandes."

DENMARK: A. D. 1902.

Proposed sale of Danish West Indies to the United States.

Negotiations for the sale of the Danish islands in the West

Indies to the United States were brought to a point of agreement between the two governments which the Danish Ministry submitted to the two chambers of the Rigsdag. The Folkething—the popular branch of the parliament—assented to the sale, while the other chamber, the Landsting, rejected the proposed terms. The Rigsdag was then, in May, 1902, prorogued, and assembled again in the following October. Meantime an election of one half of the membership of the Landsting had taken place, and the Conservatives had lost ground in it; notwithstanding which fact the proposition was defeated in that body again, and the projected sale came to naught.

{184}

DENMARK: A. D. 1905-1909.

The Fortification and Naval-Defense Question
in Danish Politics.

"That Germany within recent times has paid considerably more than passing attention to the defense plans of Denmark has not escaped the Danes, whose military astuteness is proverbial. At the instigation of the Kaiser himself, Lieutenant Colonel R. von Bieberstein inspected the quite openly exposed fortifications of Copenhagen, and what he has written regarding the vulnerability, or otherwise, of the Danish capital has been taken to heart in Denmark's military circles. Beyond a doubt, Denmark to-day is much more favorably situated than when Prussia despoiled the country of Schleswig-Holstein, and while little apprehension exists on the score of Germany again attacking her northern neighbor, should a war break out between England and the German Empire it might prove impossible for either belligerent to keep Danish territory inviolate. Denmark's neutrality would be thrown to the winds where the fate of empires would be at stake. Still, in her defense of such neutrality, Denmark would gain time sufficient to make any trespasser pause before advancing. Meanwhile, the

Scandinavian allies of the Danes would be enabled to assert themselves effectively.

"Following the recent Danish cabinet crisis, when the portfolios of war and navy were given into the hands of a civilian, J. C. Christensen, the former minister for instruction of the Deuntzer **Régime**, a special defense commission has had under consideration ways and means best suited for the protection of the country. ... The Danish Defense Commission is far from being unanimous as to what is the best plan making for a complete protection of the capital. The majority of the members are for the abandoning of the land defenses and the strengthening of Seeland's coast line by adding more forts and introducing a mining system covering all the adjacent waters. The minority of the commission, however, and the leading military experts of the country are for the retention of the present land fortifications, in order that the capital may be securely protected against an enemy invading Seeland from the north or the west. The very circumstance that Seeland's coast line in its entirety does not lend itself to a complete protection through either forts, mines, or torpedo equipment speaks favorably for the claim of the Danish military experts in their assertion that, apart from what is done toward protecting Copenhagen from the sea, the land fortifications must be retained. Nearly one hundred million kroner have been expended on the land defenses, which sum it would be extremely difficult to raise a second time were it a question of abandoning the forts for the present and removing the guns, and in after years restoring them to serviceable condition."

***Julius Moritzen,
Denmark, the Buffer State of the North
(American Review of Reviews, September, 1905).***

Since the above was written the question of defense, between land fortification and naval development, has not only been

the burning one in Danish politics, but has excited much interest in Europe at large. Politically, the controversy was curiously altered in February, 1909, by a sudden change of front on the part of the Premier, M. Neergaard, of which the Copenhagen correspondent of the London Times gave the following account:

"The Premier, who represents the majority in the House, declared that he had changed his opinion and now shared the views of the small group of the Right on a question which is the most urgent of the day—namely, that of national defence, or, to speak precisely, how Denmark can be placed in a position effectively to maintain her neutrality if threatened by any Power. He adopted the opinion that Copenhagen must be fortified on the land side as well as on that of the sea, and that Denmark, in view of her difficult strategical situation, should avoid showing any favour to Russia, Germany, or Great Britain. The surprise which the Premier's speech caused in all political circles was unbounded. M. Neergaard had kept the secret of his scheme so well that only a few persons knew that the Premier might enter into negotiations with the Right, which has its main support in the Upper House. That he would go so far as to adopt the Conservative view was wholly unexpected.

"The Defence Committee, which had been sitting for seven years, issued a report which contained no very clear recommendations. But M. Neergaard, who is, by the way, himself no soldier, working in conjunction with the Danish general staff upon the material which the committee had collected, drew up a scheme of Danish defence, based upon practical views and considerations of international law, but almost the direct contrary of the proposals which his own party, the Left, had adopted only one year ago. And this position was taken up so definitely that at the general election in May the people will have to decide definitely for or against the Premier. It is evident that M. Neergaard himself must be aware that his

action will split up his party, the allied Centre groups in the Folkething, that some members will go over to the Right, and that others will approach the Radicals and Socialists. The comments of the Government Press already clearly show this.

"For land and sea fortifications, the construction of 20 torpedo-boats and six submarines, improvements in the system of mines, &c., the sum of 42,200,000 kr. (£2,344,444) is demanded immediately, while an annual increase in the military budgets of about 3,327,000 kr. (£184,833) is also proposed. This is a large amount of money for a small country with but 2,600,000 inhabitants; but, as is well known, the country is in a strong financial position—exceptionally strong, in the opinion of some observers."

In May, as the elections approached, the same correspondent wrote: "All parties unite in the view that Denmark must adhere to a policy of the strictest neutrality. But while the Conservatives urge that this policy must be observed by a system of fortifications, strong enough to show that Denmark is ready to defend her neutrality if she is threatened, the Socialists preach the gospel of disarmament as a step towards eternal peace, and urge furthermore that Denmark is too weak and small to organize any real defence, and must therefore rely upon the generosity of her stronger neighbours.

"In addition to the two main parties there are a number of political groups which are destined to play an important part in the elections and may in fact decide their issue. These groups consist of the Moderate Left, the Reform Left, and the Radical Left. The Moderate Left, the party of the present Premier, Mr. N. Neergaard, has, however, already adopted the policy of the Conservatives and needs little more than mention. The Reform Left, the party of the former Premier, Mr. F. C. Christensen, numbered until a few months ago 56, or nearly one half of the Folkething, which has 114 members. Now it has been split up on the defence question. Of its members 14 agree

with Mr. Neergaard and the Conservatives, and 33 are reorganized under the leadership of Mr. Christensen, who wants Copenhagen fortified, but not on the lines of the Neergaard scheme with its new land fortifications."

{185}

The elections were held on the 25th of May and the following was reported next morning to the press:

"The election campaign has been heated. The returns up to the present show that the ministerials have elected 38 adherents, M. Christensen's party 34, the parties of the Socialists and the Radicals, which opposed fortifications, 39, and that eleven are doubtful. The ministers of finance, justice and commerce have been unseated. Premier Neergaard and the other ministers have been re-elected."

An extraordinary session of the new Parliament was summoned by the King on the 9th of September. Premier Neergaard lacked a majority in the Folkething, and failed to arrange an agreement with ex-Premier Christensen on the defence question. He and his Ministry resigned office, accordingly, in a few weeks, and a new Cabinet was formed under Count Holstein-Ledreborg, in which M. Christensen was included as Minister of Defence. The appointment of the latter was offensive to a large part of the public, which held him responsible for gross frauds in the public service, committed by a former Minister of Justice, M. Alberti. An immense popular demonstration against the obnoxious Minister of Defence was carried out at Copenhagen on August 29th; but he stayed in office some weeks longer, until a scheme of defence had been agreed upon between ex-Premier Neergaard and himself, and carried through Parliament, September 24th. The scheme provides for strong sea fortifications for Copenhagen, while the land defences of the eighties will be maintained and somewhat strengthened by two new forts, which are, however, officially characterized as sea

forts.

Three weeks after the passage of the Defence Act M. Christensen resigned, and was followed out of office by the whole Holstein-Ledreborg Ministry before the end of October. For the first time in Denmark a Radical Ministry was then formed, under M. Zahle.

DENMARK: A. D. 1906.

Death of King Christian IX.

Succession of Frederick VIII.

Gains by Social Democrats in the elections of the spring.

Visit from the Icelandic Parliament.

On the 29th of January, 1906, King Christian IX. died, at the age of eighty-eight. He was succeeded by his son, Frederick VIII., who is said to have inherited his father's character and ability in a marked degree. He had already reached the age of sixty-three when he came to the throne. When his accession was proclaimed he spoke from the balcony of the palace at Copenhagen to the multitude of people assembled in these words:

"Our old King, my dearly beloved father, has closed his eyes. He fell asleep peacefully and calmly, having faithfully discharged his royal duties to the last. In taking over the heavy heritage placed on my shoulders, I cherish the confident hope, and offer a sincere prayer, that the Almighty may grant me strength and happiness to carry on the government in the spirit of my dearly beloved father, and that I may have the good fortune to reach an understanding with the people and their chosen representatives on all that tends to the good of the people and the happiness of our beloved fatherland. Let us join in the cry, 'Long live the fatherland!'"

At a general election for the Folkething, the lower house of the Danish Rigsdag, in May, the Social Democrats made heavy

gains, raising their representation in the chamber from sixteen to twenty-four. The Government party, known as the Left Reform party, lost three seats, the Moderate Left lost three, and the Radical Left lost four. The Conservatives gained two seats. Later, when half of the elective part of the upper house was chosen, the Social Democrats made gains there, too, of three seats, and the Government lost five.

In September, on the invitation of King Frederick, the members of the Icelandic Parliament visited Denmark, and their entertainment was an interesting event.

See (in this Volume)
ICELAND.

DENMARK: A. D. 1908.
Municipal Suffrage extended to Women.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

DENMARK: A. D. 1908.
North Sea and Baltic agreements.

See (in this Volume)
EUROPE: A. D. 1908.

DENMARK: A. D. 1908 (April).
Treaty with England, France, Germany, the Netherlands, and Sweden, for maintenance of the Status Quo on the North Sea.

See (in this Volume)
EUROPE: A. D. 1907-1908

DENMARK: A. D. 1909 (June).
Murder of General Beckman.

In June, 1909, during a visit of the Tsar of Russia to the Danish Court, at Copenhagen, a Swedish anarchist, Adolf Vang, who had planned an attempt at the murder of the Russian sovereign, and was enraged on being baffled by the police, fired at two officers whom he met, provoked by nothing but their uniforms, and slew one, General Beckman.

-----DENMARK: End-----

DENVER, Colorado:

The Juvenile Court of Judge Lindsey.

See (in this Volume)

CHILDREN, UNDER THE LAW: AS OFFENDERS.

DEPEW, Chauncey M.:

United States Senator from New York.

Annual retainers from the Equitable Life Assurance Society.

See (in this Volume)

INSURANCE, LIFE.

DES MOINES CHARTER, The.

See (in this Volume)

MUNICIPAL GOVERNMENT: GALVESTON.

DEUNTZER, M.:

Premier of Denmark.

See (in this Volume)

DENMARK: A. D. 1901.

DE VRIES, Dr. Hugo:

His biological discoveries.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: CARNEGIE INSTITUTION.

DEVELOPMENT AND ROAD IMPROVEMENT FUNDS ACT.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: GREAT BRITAIN.

DIAMOND FIELDS:

In German Southwest Africa.

See (in this Volume)

AFRICA: GERMAN COLONIES.

DIAZ, Porfirio:

The President of Mexico enters his seventh term.

See (in this Volume)

MEXICO: A. D. 1904-1905.

DIAZ, Porfirio:

Meeting with President Taft.

See (in this Volume)

UNITED STATES: A. D. 1909 (SEPTEMBER-OCTOBER).

DICKINSON, James M.:

Secretary of War.

See (in this Volume)

UNITED STATES: A. D. 1909 (MARCH).

DIRECT PRIMARY.

See (in this Volume)

ELECTIVE FRANCHISE: UNITED STATES.

DISTRICT OF COLUMBIA: A. D. 1908.

Enactment against Race-track Gambling.

See (in this Volume)
GAMBLING.

{186}

DOGGER BANK INCIDENT, of the voyage of the Russian Baltic Fleet.

See (in this Volume)
JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

DOMINICAN REPUBLIC.

See (in this Volume)
San Domingo.

DOMINICANS:

Forbidden to teach in France.

See (in this Volume)
FRANCE: A. D. 1903.

DORE, Père Le.

See (in this Volume)
FRANCE: A. D. 1905-1906.

DOUGLAS, A. Akers:

Home Secretary in the British Government.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

DOUGLAS, Dr.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: OPSONINS.

DOWAGER-EMPRESS, of China:
Her death.

See (in this Volume)
CHINA: A. D. 1908 (NOVEMBER).

DRAGA, Queen:
Assassination.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA.

DRAGO DOCTRINE, The.

So named from Dr. Luis Drago, Argentine Minister of Foreign Relations, who rallied the South American Republics to the support of it at the Rio de Janeiro Pan-American Conference and at the Second Peace Conference at The Hague.

See (in this Volume)
AMERICAN REPUBLICS: THIRD INTERNATIONAL
CONFERENCE; and
WAR, THE REVOLT AGAINST: A. D. 1907 (SECOND
CONVENTION).

DREADNOUGHTS.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

DREIBUND.

See TRIPLE ALLIANCE.

DREYFUS, Alfred:

Justice and reparation of the great wrong done him.
His reinstatement in the Army.
His decoration as a Chevalier of the Legion of Honor.

See (in this Volume)
FRANCE: A. D. 1906.

DRUDE, General:
Operations in Morocco.

See (in this Volume)
MOROCCO: A. D. 1907-1909.

DRY FARMING.

See (in this Volume)
SCIENCE AND INVENTION: AGRICULTURE.

DRYGALSKI, Dr.:
Commanding Antarctic Expedition.

See (in this Volume)
POLAR EXPLORATION.

DU BOIS, PROFESSOR W. E. BURGHARDT.

See (in this Volume)
RACE PROBLEMS: UNITED STATES.

DUCOMMUN, ELIE.

See (in this Volume)
NOBEL PRIZES.

DUFF, Grant:
British Minister to Persia:

See (in this Volume)
Persia: A. D. 1905-1907.

DUMA, Russia:
The First and Second.
Their dissolution.
Election of the Third.

See (in this Volume)
RUSSIA: A. D. 1906 and 1907.

DUNANT, Henri.

See (in this Volume)
NOBEL PRIZES

DURBAR AT DELHI.

See (in this Volume)
INDIA: A. D. 1903 (JANUARY).

DURHAM, Israel W.:
Political "Boss" of Philadelphia.

See (in this Volume)
MUNICIPAL GOVERNMENT.

DWIGHT, James H. and William B.:
Founders of Robert College.

See (in this Volume)
EDUCATION: TURKEY.

E.

EAGLE'S NEST FORT, CAPTURE OF.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

-----EARTHQUAKES: Start-----

EARTHQUAKES: CALIFORNIA: A. D. 1906.

Consequent destructive fire at San Francisco and great distress.

See (in this Volume)

SAN FRANCISCO: A. D. 1906.

EARTHQUAKES: CHILE: A. D. 1906.

Destructiveness of life and property at Valparaiso.

One of the most destructive of the many appalling earthquake shocks of the past decade was experienced in Chile on the 16th of August, 1906. It was widely felt, even to the distant Hawaiian Islands; but its most deadly effects were concentrated on the unfortunate city of Valparaiso. The wreck of buildings in the city was followed, as in San Francisco, by fires, which the disabled inhabitants were almost powerless to combat. The total loss of life, there and elsewhere, was estimated finally, when all was known that could be known, at 2000. The homeless for a time were substantially the whole population of the city. Relief was sent to the afflicted city and country from all parts of the world.

The prediction of another earthquake on the Pacific coast of America within some short time had been made by Dr. Becker, of the United States Geological Survey, in a letter to the New York ***Tribune*** written the day after the shock at San Francisco. Such a severe upheaval at one point on the earthquake belt which follows the rim of the Pacific from Singapore, through Japan, the Aleutian Islands, the coast of Alaska, California, and South America to Valparaiso, was sure, he said, to be followed by sympathetic movements at other

points on the circuit.

EARTHQUAKES: Formosa: A. D. 1906.

Over 6000 persons are reported to have been killed or injured by an earthquake that occurred in the island of Formosa in March, 1906.

EARTHQUAKES: France: A. D. 1909 (June).

Serious convulsion along the Mediterranean coast.

A shock which ran through Southern France on the night of June 11 was most severe in the Bouches-du Rhone, but extended over a very wide area, including the whole Mediterranean coast of France, and was also felt in Spain and Portugal. Official reports stated that 55 lives were known to have been lost. A great amount of damage had been done, especially in the villages; in the towns the buildings for the most part withstood the shock, though it was sufficiently violent to cause panic among the population in Marseilles, Toulon, and other places.

{187}

EARTHQUAKES: Greece: A. D. 1909 (July).

Destruction in Ellis.

An earthquake which occurred, on the 15th of July, in the province of Ellis, the seat of the most famous of the ancient Olympic games, was reported to have killed or injured over 300 persons. Despatches from Athens to Loudon made the following statements:

"At the village of Havari 400 houses have been completely destroyed. Some 30 persons are known to have perished there, while many others have been injured. The neighbouring villages have also suffered severely. All the houses of Amaliada have

been rendered uninhabitable. Volcanic eruptions have occurred in the village of Ponhioti. Shocks of earthquake have also been felt at Patras, Pyrgos, Kalamas, Tripoli, and Missolonghi. People have been killed and injured in about ten villages. Assistance has been sent to the affected districts."

EARTHQUAKES: India: A. D. 1905.

In the Punjab and the United Provinces.

One of the most terrific of earthquakes occurred in Northern India on the 4th of April, 1905. Its most violent and destructive effects were in the Kangra District of the Punjab, and its neighborhood; but the area of shock extended over several thousand square miles. The finally ascertained and estimated loss of human life was no less in number than 373,000. The villages destroyed numbered 409. As for the destruction of property, including houses, bridges, irrigation works, cattle, and crops, it was beyond computation. In the central region of the earthquake every habitation and human structure of any description went instantly down. The shocks, as described, were first from north to south, then immediately reversed, and followed by a horrible sinking of the earth.

The Empress, a monthly periodical published at Calcutta, gave the following, among other personal experiences of the disaster. The narrator was a manager of large tea estates near Palampour:

"On the morning of the 4th April, at about 6 A. M., we were disturbed in our sleep by a slight earthquake, quickly followed by a severe one, and lastly by the worst shock of all, which appeared to come from the northeast and having a sudden circular action traveling toward the west. The first one I took no notice of, thinking it was one of the many slight shocks off and on experienced up here. When the second shock came, I sat up in bed and called out to my wife to come to the window. I had hardly done so when I saw the highest wall of our bedroom fall in like a torrent on my poor sleeping

child; then all became dark with fearful dust from the falling walls. I felt suffocated, and pushed my hand through the panes of glass in the window into which I had crept; had I not done so I should have been killed by the wall that fell in on the head of my bed. I shall never forget those few moments that appeared like years,—the noise of the falling masonry, smashing of beams, planks, and slates. I had fully made up my mind that we should all perish. When the shock was over I opened the window and dropped into the lower veranda, rushed out, and cried out for help. No one could be seen,—all had fled to the villages to help their friends and relations. A fearful sight presented itself to my eyes. All our houses (with the exception of the mali's hut) were leveled to the ground, including a magnificent factory built of cut stone which my poor old father had lately built. All was still as death save for the wailing of a man who afterward turned out to be my head clerk. After a few minutes had elapsed I succeeded in getting a few of my household servants together and dug with bare fingers among limestone and plaster for my only child. We had to make a coffin out of planks taken from the débris, bury her without ceremony in a quiet sequestered spot on the tea estate. To look around the valley, nothing but desolation meets the eye. The once pretty little villages, with their bluish-white walls and slated roofs, mixed here and there with thatched buildings, all leveled to the ground. We have been ruined; lost tens of thousands of rupees. As for our loss in machinery, it is unknown, being all buried beneath the ruins. And this is not all. We are afraid we shall lose thousands yet, owing to our terror-stricken workmen and coolies, who believe that this picturesque valley is to be totally destroyed. They have made little thatch sheds for their families and cattle, and pass the day in sorrow and fear, refusing to return to work or even work at their own fields. A great many families have been wiped out."

The same magazine tells of the destruction of the very ancient temple of Bhowan—one of the oldest in the world—burying 2000

worshippers in its ruins:

"On the night of the 3d April, about two thousand pilgrims arrived in the small town of Bhowan, which is about three miles from Kangra town, to worship at the temple. On the morning of the 4th, at 6 o'clock, a rumbling noise was heard, and before the people could realize what it was, they felt the terrible shock, and within four seconds the whole town was destroyed. The shock lasted three minutes, but all the damage was done in the first few seconds. About two thousand people were buried beneath the ruins of the temple, and under the adjacent buildings. The Guru, or High Priest of the Temple, was dug out of the ruins and buried near the site of the Toshakhana, adjoining the temple."

EARTHQUAKES: Italy: A. D. 1905.
In Calabria.

A terrible earthquake, accompanied by storms and volcanic disturbances, occurred in Calabria on September 8th. "Hundreds of dead were swallowed up, and ruin was spread far and wide in a country already sorely tried by an unfortunate system of land ownership. The public authorities, the provinces and towns of Italy, strained every nerve to soften the misery of the Calabrian population, and the King eagerly hastened to the scene of the disaster. The public mind, however, was embittered by reports that the rich Calabrian landowners had shown great want of consideration for their unhappy tenants, and that the work of restoration was greatly hindered by absurd disputes between civil and military authorities."

Annual Register, 1905, page 278.

EARTHQUAKES: A. D. 1908 (December).
In Calabria and Sicily.
Destruction of Messina and Reggio.
The most appalling in history.

Of all catastrophes of earthquake recorded in history, the one which has seemed most appalling to the European and American world was that which destroyed the cities of Messina and Reggio and many smaller towns in northeastern Sicily and southern Italy, on both sides of the Straits of Messina, on the early morning of Monday, December 28, 1908. The time favored an exceptionally great harvest of death. From Christmas until Twelfth Night is a period of feasting among the Southern Italians, when the members of scattered families come together as fully as they are able to do.

{188}

The doomed cities, accordingly, contained on the fatal day a large number of guests, and were emptied, at the same time, of large numbers of their residents; but the merry-making of the previous days had induced later slumbers, generally, on that dread Monday morning, and few had risen from their beds when the shock came which buried them in the ruins of their dwellings. It shook Messina at twenty minutes past five o'clock, long before day had begun to dawn. The late F. Marion Crawford, who wrote, three months after the occurrence, for *The Outlook*, a carefully prepared account of it, derived from personal inquiries and investigations on the spot, describes the overwhelming moment thus:

"A southwest wind was blowing and the sky was black when the fatal moment came, but it was not yet raining. Those who were awake and survived remember hearing the horrible subterranean thunder that preceded the shock and might have been a warning to many in waking hours; it seemed to begin far away and to approach very quickly, swelling to a terrific roar just before the crash. Another instant and the solid earth rose and fell in long waves, twice, three times, four times perhaps, and the houses and churches swayed from side to side, in the darkness; for the young moon had set before midnight, and it lacked more than an hour of dawn. The whole city and the towns on the opposite side of the Straits fell at once with a crash that no

language can describe; then followed the long-resounding rumble of avalanches of masonry; and when those awful moments were over, nearly two hundred thousand human beings were dead, on both sides of the Straits.

"Almost at the same moment another sound was heard, almost more terrible than the first—the sound of a moving mountain of water; for the sea had risen bodily in a monstrous wave and was sweeping over the harbor, carrying away hundreds of tons of masonry from the outer pier, tearing ships and iron steamers from their moorings like mere skiffs and hurling them against the ruins of the great Palazzata that was built along the semicircular quay, only to sweep them back, keel upwards and full of dead and dying men, as the hill of water sank down and ebbed away. When it had quite subsided, the inner portion of the harbor was half full of sand and mud and stranded wrecks.

"Those who say that they ‘saw’ these things are either untruthful, or else, in vivid recollection of sensation, but without the true memory of events, they confuse what they heard and felt with what they might have felt and seen; for though some of the gaslights in the streets continued to burn for a few minutes, the darkness was almost total."

The American Vice-consul at Messina, Mr. Stuart K. Lupton, who escaped unhurt from the ruins of the hotel in which he lodged, carrying his clothing in his hands, and hastened in the darkness to give aid, if possible, to his chief, Dr. Cheney, made a report of his experiences to the Department at Washington, from which the following is taken:

"I had not proceeded more than fifty yards when I found myself walking in water up to my knees in a place which should have been eight feet above the water level. Next I came to a pile of rubbish some fifteen or twenty feet high over which I clambered on my hands and knees. By this time I began to see

that the affair was much more serious than I had at first believed, but I was still in inky darkness, so I could not form any ideas as to the extent of the disaster. After three-quarters of an hour I arrived where I supposed the consulate to be and waited for daylight, which came in a few minutes. I looked for the consulate, but could see nothing that reminded me of it. Half the water front appeared to be down. Here and there the walls were standing, while the interior had collapsed. A few fires were breaking out, but owing to the solid construction of the town they made little progress.

"At the place I supposed the consulate to be there was nothing but a heap of ruins, iron beams, splintered wood, bricks, and stones in hapless confusion. I was not sure of the spot and climbed over the ruins to see if I could find anything familiar. Finally I came across a battered teapot, which I recognized as the property of Mrs. Cheney, and remembering the spot where it had stood, was able to get my bearings. I climbed directly over the spot where their room had been, and called, in the hope that if they were still alive, they would answer. I heard nothing, however, and further search revealed a piano covered to a depth of about ten feet in rubbish. I knew that the Cheneyes had no piano, so it must have come down from one of the upper stories. As the shock was so strong that no one could stand, and the consulate went down almost immediately, it was absolutely an impossibility for Dr. Cheney to have opened four doors and gone down a long flight of steps which had three sections. Nothing belonging to the office could be seen except the teapot. ...

"People were beginning to appear by this time, some half-clothed, others entirely naked. I gave part of my clothes away, but found I could do nothing, there were so many. People were calling from upper windows, asking that some one should aid them, but ladders and ropes were necessary, and they had to be left. Some men were trying to lower an old lady from the

fourth floor, but as soon as the weight came upon the cord, it broke, precipitating the poor soul to the pavement below. Another upper window was choked with rubbish, out of which stuck a man's arm. He was unable to call out, but rattled against the railing with a stick, trying to attract attention. Without men and tools it was impossible to do anything, so I kept on, trying to shut my ears.

"Almost all the natives were hysterical, shrieking and moaning. Some were held by their friends, as they seemed to be absolute maniacs. ... Light shocks were felt every few minutes, adding to the alarm of the people. About eleven o'clock I went on board the steamer Chesapeake, belonging to the Anglo-American Oil Company, and managed to get a cup of tea and a sandwich. Captain Mort was very kind, and told me to send people in need on board, and he would do anything he could for them. I went again to the shore to see what could be done, and by that night over seventy, principally women and children, were on board. About three o'clock rain began to fall, adding to the misery of the people. Scores and hundreds of them were to be seen sitting in all the squares or wider streets, and looking as if they had abandoned all hope."

{189}

From all directions, by all communities and governments, relief to the stricken cities, for the rescue, feeding and shelter or removal of the survivors, was hastened with the greatest possible speed. War ships from many navies, Italian, French, Russian, British and German, were quickly at the scene, their sailors and marines performing heroic work in discovering and saving many still living people, who had been entombed under mountains of ruin for many days. Even after such burial for thirteen and fourteen days some victims were found alive. The rescuing forces were soon in excess of the need, and a want of systematic organization and direction among them became a subject of complaint. But the outflow of

sympathy and eager generosity of helpful desire in all the world was the noblest, without doubt, that has ever been called forth.

By good fortune, when news of the disaster came, a supply ship of the United States Navy was being laden at New York with a million and a half of rations, destined for the fleet of American battle-ships then voyaging round the world. The supply-ship was to meet the fleet at Gibraltar; but orders were given immediately for dispatching it to Messina, with an added shipment of tents, clothing, blankets and medical supplies. Furthermore, from the fleet itself, which was about to enter the Suez Canal, a store ship was hastened forward to Messina for such offerings as it could make. The American Congress, reassembled on the 4th of January after the Christmas recess, by action of both Houses that day, appropriated \$800,000 for further relief of the Italian need, and a large part of this sum was expended according to the following statement made public by the Secretary of the Navy, January 16:

"The Navy Department has arranged for the expenditure of approximately \$500,000 in the purchase of building materials, including all articles necessary for the construction of substantial frame houses for the Italian sufferers, and the shipments will begin by the sailing of two steamers probably on Monday. This lumber is being delivered to-day in New York, and the sailing of the vessels will proceed as fast as they can be loaded. Each ship will carry all the materials for the construction of about 500 houses, and it will require not less than six steamers for the entire amount purchased. If possible, the department intends to send with each vessel several civilian house carpenters, with plans, to assist in the erection of these houses."

With this material a suburb of 1500 detached frame houses, of two or four rooms, were built at Messina; 500 were constructed

at Reggio, and the remainder at other towns and villages.

The Italian Parliament appropriated 30,000,000 lire (\$5,000,000) for immediate relief and for the reconstruction of the ruined cities. The plans formed by the Italian Government included measures to provide for the temporary protection of the orphaned young, the deserted, and the insane; to prosecute the recovery of personal property: to draw up official lists of the dead; to rewrite the civil registers and the records of property transfers; to reestablish, provisionally, administrative and judicial districts within the provinces of Messina and Reggio. New building regulations were to be enacted by a royal commission in conjunction with the Ministry of Public Works. To encourage the reconstruction of the ruined places, all new buildings were exempted from taxation for a period of fifteen years. Loans from state and private financial institutions to be made at a rate of interest not exceeding 4 per cent., to be repaid within thirty years in semi-annual instalments, the Government to contribute half of these periodical payments.

To the effective help and relief rendered by her Mediterranean squadron, Great Britain added large contributions of money, mainly collected as a "Mansion House Fund" by the Lord Mayor of London. There, and everywhere, the Red Cross Societies were instant in the field and untiring, receiving and expending immense funds and sending large corps of trained workers to the scene of distress. No summary has yet been made of the whole outpour of gifts and service to the suffering people, and it is impossible even to indicate what a world-feeling it expressed; but its like was never known before.

Estimates of the total destruction of life by the earthquake are still uncertain. Mr. Crawford, when he wrote, thought it doubtful whether as many as fifteen per cent. of the population of Messina were then alive, scattered in groups throughout Italy. That would mean that only about 20,000 out

of 150,000 in the one city escaped. Of the loss of life on the other side of the Straits he said: "The proportion of those saved on the Calabrian side is certainly larger—principally, I think, because the houses in Reggio, Villa San Giovanni, Palmi, and the other towns destroyed were much lower than those in the city. Moreover, as will be seen before long, many persons died of hunger and thirst in Messina, where the whole water supply was cut off by the ruin of the first shock, and bread was not obtainable at any price for many days; but on the Calabrian side the survivors camped out in the orange groves, and the fruit, which is almost ripe at Christmas in that latitude, stayed their hunger and assuaged their thirst."

Generally, the total of deaths from the earthquake, in Sicily and Calabria, seems now to be estimated at 200,000.

A report from Rome, issued on the 3d of August, 1909, by the Central Relief Committee, of which the Duke of Aosta is president, announced that the receipts of the Committee to that time had been 25,100,000 lire (£1,004,000, or \$5,020,000). The fund for the orphans had all been handed over to the Queen Helena Home.

For the building of shelters the sum of 4,000,000 lire had been paid over to the Minister of Public Works for the construction of 3,000 shelters. The number of persons assisted had been 14,000, but it would eventually reach 20,000.

EARTHQUAKES: A. D. 1909 (July 1).

A second shock at Messina and Reggio.

During six months following the great catastrophe, Messina had been so far rebuilt and reoccupied as to have acquired a population of somewhat more than 25,000. To them, on the evening of June 30 and the morning of July 1, came once more the dread quaking of their unstable portion of the earth. The shocks as described in despatches to the Press "were similar

to the fatal disturbances of December, and were accompanied by the same roaring noises. The people fled with cries of terror. They hurried to the open places of the city and the surrounding country, praying to the saints that their lives be spared. ...

{190}

So far as is known, however, only a few people were hurt, and this undoubtedly is due to the fact that the city was only partially rebuilt. Had the walls of all the houses been standing the loss of life would have been heavy. One woman was killed by a falling wall, and a child was seriously injured." Reggio, as before, shared the experience, but there is said to have been no loss of life.

Late in the year it was reported to a London newspaper that "at Reggio a very fair advance, has been made, and the city is already acquiring some air of its former busy prosperity; but in Messina and its neighborhood, little or nothing has been done in the way of permanent work, while the temporary accommodations for the survivors still leave much to be desired."

EARTHQUAKES: Jamaica: A. D. 1907.

The destruction of Kingston by earthquake and fire.

'On Monday afternoon, the 14th January, 1907, at about 3.30 P. M., the city of Kingston and its suburbs was almost entirely destroyed by heavy earthquake shocks. There was little or no wind at the time; what little there was was from the east, and the atmospherical conditions were quite normal. The shocks apparently approached from the south at first and then from the west. They are variously estimated to have lasted from ten to thirty seconds, the latter estimate being the general opinion. On the other hand, several Englishmen who were in the open at the time and in no immediate danger from falling houses, &c., consider 20 seconds the outside limit of time taken by the shocks. During this period an enormous amount of

damage was done to life and property. Large numbers of buildings at once collapsed. As is, unfortunately, usual in such cases, fires broke out in several places in the commercial portion of the town. ...

"Unfortunately, the Central Fire Station was destroyed by earthquake, so the fire engine was not available. The means at hand were thus very inadequate for fighting the flames, although they were supplemented greatly by fire-extinguishing appliances from the various ships alongside the wharves, and those belonging to the wharves themselves. The fire, however, spread with terrible rapidity, and all efforts were directed towards isolating the burning area. During this time the light wind blowing was about north-east, but it later in the afternoon went round to the north and north-west, thus lending tremendous assistance to the people in their efforts to extinguish the fire. Many injured persons, buried in the falling debris, were burnt to death. Meanwhile, vast numbers of the inhabitants were flying northwards to the racecourse and open spaces outside the town, where they spent the night—small earthquake shocks being felt at frequent intervals during that time. It may be said that the whole of Kingston and its suburbs are either destroyed or in ruins. A few of the substantially built houses are still standing, but so shaken and injured by the shocks that it will be impossible to repair them. ...

"It is extremely difficult to estimate the total loss of life in the earthquake and fire. The Government have called on the inhabitants to register the names of their killed and missing, but up to this date [January 29] there has been little response. On the 25th January, some eleven days after the catastrophe, the numbers recorded at the Registrar's Office were only 121, although at least four times that number are known to have been buried or cremated. The careful opinion of prominent officials in Kingston is that the loss of life will be about 1000. Of the injured the daily number of in-patients

at the hospital is about 300, mostly cases of concussions and legs amputated. ...

"The large numbers of women, children, and old or disabled men encamped in the Public Gardens and racecourse, &c., were supplied with food rations daily, under the supervision of the Relief Committee. Over 3,000 people daily have been receiving this relief. At no time does there appear to have been a scarcity of food or water. A tremendous strain at once came on the staff of the hospital, the place being besieged with the injured and their relatives. Large numbers of medical men from the out districts at once proceeded to Kingston and assisted in attending to the wounded. With the aid of their ready assistance, and that of many volunteer nurses from the civil population, the hospital staff were enabled to cope with the situation, and at the present time work is proceeding there with great smoothness and regularity. The American ships 'Indiana,' 'Missouri,' and 'Whipple,' also, on arrival, landed their surgeons, who at once established a hospital on shore and rendered great assistance. ...

"Directly after the earthquake, and while the fire was in progress, the greater portion of the black and coloured population were stupefied with terror and amazement, and lent little or no aid to the white members of the community and the troops and firemen in their rescue work. Vast numbers of them fled from the city. Some became frenzied and ran here and there declaring the end of the world had arrived, impeding the work and terrifying the workers. Others formed groups and commenced praying. At the Penitentiary, the prisoners, who remained seated in their ranks on the parade ground all night, spent the time in singing hymns without ceasing. As soon as the first panic had subsided, the black population became quite apathetic, and it was with great difficulty that the Government were able to get able-bodied men to take part in the work of demolition and clearing the streets. This, in spite of the fact that the wages offered were 25 per cent.

more than the usual rate. ...

"Considering the magnitude and widespread nature of the disaster, the loss of life might easily have been on a much larger scale. The earthquake came at a time of day when the labouring part of the population were at work away from their houses, and the streets in the busy commercial quarter presented the comparatively deserted appearance so usual in the afternoons in tropical places. As the streets in this quarter were very narrow and the buildings on each side of them lofty and of solid construction the loss of life must have been largely increased had the earthquake happened during the busy portion of the day. ...

"Owing to the dry weather now prevailing here, the homeless population, roughly encamped on the open spaces, are suffering little or no hardship. It is to be hoped they may be permanently sheltered before the wet season commences."

***Report by Major Chown, R. M. L. I., of
H. M. S. "Indefatigable"
dated Kingston, January 29, 1907.***

{191}

Relief to the stricken island came so swiftly and profusely from all parts of America, Europe, and almost every part of the world, that Governor Swettenham was able to telegraph on the 23d of January: "Money and provisions more than ample for relief. Except for rebuilding no funds needed." Three ships of the United States Navy, despatched by Admiral Evans from a Cuban port on the instant of receiving news of the disaster, reached Jamaica on the 17th and gave assistance in clearing the ruins, besides rendering hospital service and furnishing food and medical supplies. For the general lifting of the community from its prostration, the British Government, in May, by vote of Parliament, made a free grant to it of

£150,000, and a loan to the Colonial Government of £800,000 more.

***Correspondence relating to the Earthquake at Kingston,
Jamaica (Parliamentary Papers, Cd. 3560).***

EARTHQUAKES: Persia: A. D. 1909 (JANUARY).

Destructive shock in Luristan.

Seismographs in many parts of the world gave token of a violent earthquake on the 23d of January, 1909; but three weeks passed before the locality of the shock was learned. It proved to have been centered in Western Persia, in the mountainous province of Luristan, and to have been heavily destructive of life. Its greatest severity was reported to have been in a region at two days journey from Burujurd. Many villages were wholly or partly destroyed, several having been completely engulfed, and the loss of life is estimated to have been between 5000 and 6000 people.

EARTHQUAKES: Portugal: A. D. 1909 (April).

Lisbon and its neighborhood upheaved.

Lisbon and the country surrounding it were shaken violently on the evening of Friday, April 23d, 1909. There were no fatalities in the city, but the outlying districts suffered severely, especially the towns of Benavente, Samora, and Santo Estevan. Reports three days after the disaster announced 46 killed and 38 injured at Benavente and Samora. Both villages were completely destroyed, and their 6000 inhabitants, starving and homeless, were encamped in the fields

EARTHQUAKES: Sumatra: A. D. 1909 (June).

Shocks and sea-wave in Upper Padang district.

News was received at The Hague in June, 1909, of severe shocks of earthquake, on the 3d of that month, at Korinchi, Upper

Padang, Sumatra. The shocks were accompanied by an enormous sea-wave. Two hundred and thirty people were killed and many injured. Much damage was done.

-----EARTHQUAKES: End-----

ECHEGARAY, Jose.

See (in this Volume)
NOBEL PRIZES.

ECONOMIC FORESTRY.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

ECUADOR: A. D. 1901-1906.
From revolution to revolution.

General Eloy Alfaro, who was made President by the revolution of 1895 (see in Volume VI.), was succeeded peacefully in 1901 by General Leonidas Plaza, and the latter, in turn, by Lugardo Garcia; but in 1906 the revolutionary method was revived in favor of General Alfaro, and he ousted Senor Garcia from the presidential chair.

ECUADOR: A. D. 1901-1906.
Participation in Second and Third International Conferences of American Republics, at Rio de Janeiro.

See (in this Volume)
AMERICAN REPUBLICS.

ECUADOR: A. D. 1905.
Arbitration of boundary question with Peru.

See (in this Volume)

PERU: A. D. 1905.

EDMONTON:

Capital of the Province of Alberta.

See (in this Volume)

CANADA: A. D. 1905.

-----EDUCATION: Start-----

EDUCATION: AUSTRALIA: A. D. 1907.

Latest Statistics of State Schools.

Statistics published in July, 1909, by the Commonwealth Government show that over £2,500,000 was spent on education by the Australian States in 1907 in 7500 State schools. The total daily average attendance at the schools for the year was 444,000. The disbursements of the States on University education amounted to £113,000.

EDUCATION: CANADA: A. D. 1905.

The question of State Support to Sectarian Schools revived on the creation of two new Provinces.

See (in this Volume)

CANADA: A. D. 1905.

EDUCATION: CANADA: A. D. 1907.

The founding and endowment of Macdonald College.

On the 16th of October, 1907, there was opened a new college of fine character and great importance, on a noble site, overlooking the Ottawa river, at Sainte de Bellevue, twenty miles west of Montreal. It bears the name of its founder. Sir William Macdonald, from whom it received an endowment of \$4,000,000. This Macdonald College is divided into three schools: The School for Teachers, the School of Agriculture,

the School of Household Science. Its main purposes are announced to be:

(1) "The carrying on of research work and investigation and the dissemination of knowledge, with particular regard to the interests and needs of the population in rural districts"; and

(2) the providing of "suitable and effective training for teachers, especially for those whose work will directly affect the education in schools in rural districts." It thus appropriates to itself a field of education for the betterment of farm life and work, the important need of which, looking to everything in national character and prosperity, is only beginning to be understood.

EDUCATION: CHINA: A. D. 1887-1907.

Christian Mission Schools.

"In the historical Volume presented in 1907 at the Shanghai Conference Dr. Arthur H. Smith makes the following interesting comparison of the statistics presented at the three Protestant Missionary Conferences held in China in 1887, 1890, and 1907:

See, in this Volume,
MISSIONS, CHRISTIAN.

	1876.	1889.
1907.		
Number of societies.	29	41
82		
Foreign teachers.	473	1,296
3,833		

Stations and substations. 602
5,734

Pupils in schools. 4,909 16,836
57,683

"The above statistics, although incomplete, do serve as an indication of the vigorous growth of Protestant missionary educational activity in China. In this work the various missionary foundations made their most notable advance in interdenominational cooperation. In many instances several denominations have combined in union schools or colleges. ... One of the chief agencies in reaching this unity and effective cooperation has been the Educational Association of China, founded as early as 1887. ...

{192}

"No survey of missionary education in China would be complete without mention of the widespread, well-organized Roman Catholic activities. Of the eleven different Catholic orders having representatives in China, the Jesuits are carrying on the largest educational work. In 1907, in their five colleges and seventy-two schools, a total of 25,335 students were enrolled. All the Catholic orders together supervise the instruction of over 75,000 Chinese students; this total, it will be seen, being somewhat higher than that of Protestant missions."

***George Marvin,
The American Spirit in Chinese Education
(The Outlook, November, 1908).***

EDUCATION: A. D. 1901-1902.

Edicts of Reform.

Modernizing of Examinations for Literary Degrees

and for Military Degrees.
New Universities, Colleges, and Schools.
Students sent abroad.

"An Edict on Reform in Education, published by the Chinese Government on the 29th of August, 1901, commanded the abolition of essays or homilies on the Chinese classics in examinations for literary degrees, and substituted for them essays and articles on modern matters, Western laws, and political economy. The same procedure was also to be observed in the future in the examination of candidates for office. By the same Edict it was ordered that as the methods in use for gaining military degrees—namely, trials of strength with stone weights, agility with the great sword, and marksmanship with the bow and arrow on foot and on horseback—were not of the slightest value in turning out men for the army, where knowledge of strategy and military science were the *sine qua non* for military officers, these trials of strength, etc., should be thenceforth abolished forever.

"Another Edict for the establishment of new universities, colleges, and schools in China was published on the 12th of September, 1901. It commanded all existing colleges in the empire to be turned into schools and colleges of Western learning. Each provincial capital was to have a University like the Peking University, whilst the colleges in the prefectures and districts of the various provinces were to be schools and colleges of the second and third classes.

"Another Edict, for sending students to be educated abroad, was published on the 17th of September, 1901. It commanded the Viceroy and Governors of other provinces of the Empire to follow the example of the Viceroy Liu Kun-yi of Liangkang, Chang Chihtung of Hukuang, and Kuei Chun (Manchu) of Szechuen, in sending young men of scholastic promise and ability abroad to study any branch of Western science or art best suited to their abilities and tastes, so that they might in time return

to China and place the fruits of their knowledge at the service of the empire.

"Those who are acquainted with China know very well that many of the Edicts of the Government do not amount to much more than waste paper. In this case, however, it has not been so. The Imperial College in Shansi has been opened, with some 300 students, in the hope that it will develop into one of the provincial universities. It is divided into a Chinese and a Foreign Department. ... The Edicts have not been a dead letter in the other provinces either, though there has been enormous difficulty in getting a sufficient number of professors to teach or of text-books to use. Some Chinamen who under the old system of education would not have got more than £30 per annum now get £240, and there are not enough of them. At the lowest estimate text-books and books of general knowledge of the West to the value of £25,000 must have been sold during this year alone. Books to the value of £6,000 were sold by the Society for the Diffusion of Christian Knowledge.

"I subjoin a list of the new colleges opened in ten different provinces in 1901-1902:

Provinces.	Funds provided.
Chekiang cash per annum 50,000, or over £6,000).	50,000 strings of (about Tael
Honan. annum.	30,000 Taels per
Kweichow. annum.	20,000 Taels per

Fookien. Dollars per annum.	50,000 Mex. (about £5,000).
Kiangsi. Dollars per annum.	over 60,000 Mex.
Kwangtung. annum.	100,000 Tael per
Soochow thousands of Tael.	several tens of
Nanking	—
Shantung annum.	50,000 Tael per
Shansi annum.	50,000 Tael per
Chihli	—
Prefectural Colleges in Soochow.	Tael 10,000.
Prefectural Colleges in Shantung under R. C. Bishop Anzer.	Tael 2,000

"This comes to about half a million of Tael annually for the

whole Empire for modern education. Such is the new departure, which dates from 1901-1902."

***Timothy Richard,
The New Education in China
(Contemporary Review, January, 1903).***

EDUCATION: A. D. 1906.
Chinese Students in Japan.

The following is from a communication to the State Department at Washington from the American Legation at Tokyo, under date of January 3, 1906:

"During the past year Chinese students have come to this country in continually increasing numbers. Last summer the number was estimated at 5000, of whom 2000 had been sent at the expense of the Chinese Government. In November the number is said to have reached 8000. In addition to the supervision of the Chinese legation the students are looked after by eight superintendents sent to reside here by their Government.

"Until recently the Japanese authorities seem to have done nothing in this matter, but the magnitude of the number of Chinese students finally made a certain degree of supervision on their part seem wise. Accordingly, regulations for controlling schools open to the Chinese were promulgated by the minister for education on November 2, to go into effect from the 1st instant. ... The publication of these regulations was greeted by a storm of protest. Bodies of Chinese students passed indignant resolutions, saying that their liberty was being assailed and seemed to find in the new rules an indignity to their nationality. The restriction in choosing schools and lodgings and the need of a letter of recommendation annoyed them most. The agitation was so great that over a thousand students returned to China; and no more have been coming since the trouble."

{193}

EDUCATION: A. D. 1908.

The administration of the Department of Education in the Chinese Government.

Under the date of November 9, 1908, the Peking correspondent of the London ***Times*** wrote of the administration of the governmental Department of Education as follows:

"The Ministry of Education is under the presidency of a learned scholar of the old type, Chang Chih-tung. The old system of examination has entirely been abolished. Education is improving, but there is little attempt at uniformity. There is no lack of desire to learn, but the teaching outside of the mission schools or of colleges under foreign control is quite unsatisfactory. No attempt is made to obtain the services of the best man. Japan engaged the best foreign teachers that money could find, with the result that the standard of education is there very high. But China seems to think any teacher good enough so long as he is a shade better educated than the pupil he has to teach."

On the other hand, Professor Thomas C. Chamberlin, of the University of Chicago, who spent four months of the past year in China, investigating educational conditions, has reported that "the old education has practically passed away, and the government is making strenuous, and on the whole remarkably successful, efforts to build up a system of education modelled on that of Europe and America. In all the larger cities of China buildings have been erected, teachers and pupils gathered, and schools of the modern type organized. In not a few cases, as, for example, at Foochow and in the far west at Chentu, the old examination halls have been torn down to make place for schools modelled on those of the west."

EDUCATION: A. D. 1908.

Chinese Students in America.

"The disposition on the part of the Chinese Government to send picked students to America for their education, although interrupted formally years after the first set of twenty came in 1872, has since 1890 shown a comparatively steady growth. During the past year 155 Chinese students were maintained at various educational institutions in this country on foundations provided either by the Imperial or the Provincial Governments. Out of this number seventy-one are under the charge of the Imperial Chinese Legation at Washington; twenty-seven are under the direction of Chang-Chuan, Commissioner of Education for the Viceroyalties of Hupuh and Kiang-man; fifty-seven others have been during the past year under the direction of Dr. Tenny, at present Chinese Secretary of our Legation at Peking. These last, although coming from various parts of the Empire, all received their elementary education at the Peyang College in Tientsin, of which Dr. Tenny was formerly principal. At the request of Yuan-Shih-Kai, then Viceroy of Chihli, of which province Tientsin is the chief city, Dr. Tenny in 1906 assumed charge at Cambridge of the Peiyang candidates sent to America, including those now at Harvard and the various other colleges where, at his suggestion, they were quartered. Since Dr. Tenny's return in July last to Peking, his position has been filled by the appointment of Mr. H. F. Merrill, for many years Commissioner of Customs at Tientsin. ...

"Quite apart from this official recognition of the advantages of an American education, many Chinese families send their sons at their own expense to schools and colleges in this country. It has been impossible to procure exact statistics of the number of these privately supported students, but, according to the best advices obtainable at the Chinese Legation, there are about two hundred. ...

"More important than anything that has yet taken place in this movement of Chinese education in America is the recent determination on the part of the Imperial Government to devote a sum equal to that placed at their disposal by the remission of the Boxer indemnity to the founding of an Educational Mission in this country. ... According to the terms of the agreement contained in the note of Prince Ch'ing to Mr. Rockhill last July, by the end of the fourth year from the inauguration of the scheme four hundred students, sent by the Imperial Government, will be added to the large and growing number of their young fellow-countrymen already coming to America."

***George Marvin,
The American Spirit in Chinese Education
(The Outlook, November, 1908).***

An English correspondent, writing from Peking, September 24, 1909, reported: "This week 47 students selected by examination for proficiency in English and Chinese are leaving Peking for the United States to enter upon studies paid for by funds from the unexpended balance of the Boxer indemnity. They have been selected from nearly 500 candidates who competed for this great reward from many provinces of the Empire. An excellent body of young men, they ought to do credit to their country."

See (in this Volume)
CHINA: A. D. 1901-1908.

EDUCATION: A. D. 1909.
Progress in Technical Education.

The following statements were in a Press despatch from Tien-tsin, July, 1909:

"Technical education in China shows unmistakable signs of extension. A very few years ago nothing existed which was

worthy of the name, while now it is not too much to say that in the course of a few years the engineering schools of China will be second only to the best in Europe and America.

Engineering courses are now being given at the following institutions:

Imperial Polytechnic Institute, Shanghai;

Imperial University of Shansi, Tai-yuan-fu;

Tangshan Engineering and Mining College, Tangshan; and

Imperial Pei Yang University, Tien-tsin."

EDUCATION: A. D. 1909.

Formation in Great Britain and America of the China
Emergency Appeal Committee.

"Speaking at the Mansion House meeting [London] of the China Emergency Committee held under the presidency of the Lord Mayor on March 16, 1909, Sir Robert Hart, whose long work as Inspector-General of the Imperial Chinese Customs has given him the profoundest knowledge of China and its people, said: 'We are alarmed lest Western knowledge and Western science may give the Chinese people strength without principle, and may even bring in a crude materialism without that higher teaching and higher guidance which are necessary for the best welfare of any people.'

"It is the realization of that danger, but even more a realization of the needs of China, which have led to the formation of the China Emergency Appeal Committee. ... It is the object of this Committee to utilize to the full the unexampled present opportunity of establishing in China institutions through which the Chinese people may be trained to educate themselves in the Western knowledge and civilization which they have set themselves to acquire.

{194}

"There is, first, China's crying need of medical education—of

schools and hospitals in which Chinese students will be taught and practise medicine and surgery. ... Not less needed is the establishment of colleges and centres for the training of Chinese teachers for the primary and secondary schools which are being established everywhere throughout this Empire of 400,000,000 inhabitants. The China Emergency Committee appeals for £40,000 to build and equip these training colleges. Thirdly, there is a demand throughout China for translations of European books. The demand far exceeds the supply, though it is only through literature that the Chinese gentleman will acquaint himself with Western thought and learning. The books sell in vast numbers, but the work of translation involves heavy preliminary expenses. ... These are the three objects for the attainment of which the China Emergency Committee has been established."

London Times,
July 17, 1909.

On the initiative of the English Committee, of which Sir Robert Hart is chairman, a proposal to move similarly in America came before a recent conference of foreign mission boards of the United States and Canada. A committee, Rev. Dr. Arthur J. Brown, chairman, to whom the proposition was referred, reported favorably. The conference approved the report, and provided that a permanent committee be appointed, to consist of those serving with Dr. Brown, together with twelve laymen, to be chosen by the committee. This new committee is "to promote a larger interest in Christian education in China." It will assist the boards and other Christian agencies and cooperate with the general education committee appointed by the Shanghai conference and with the China Educational Association.

EDUCATION: Cuba: A. D. 1899-1907.

Organization of Schools during the American Occupation.
Census-showing of results in 1907.

"During the American occupation of Cuba especial attention was given to the establishment of common schools and other educational institutions. The enrollment of the public schools of Cuba immediately before the last war shows 36,306 scholars, but an examination of the reports containing these figures indicates that probably less than half the names enrolled represented actual attendance. There were practically no separate school buildings, but the scholars were collected in the residences of the teachers. There were few books and practically no maps, blackboards, desks, or other school apparatus.

"The instruction consisted solely in learning by rote, the catechism being the principal textbook, and the girls occupying their time chiefly in embroidery. The teachers were allowed to eke out their unpaid salaries by accepting fees from the pupils. ... At the end of the first six months of American occupation the public school enrollment of the island numbered 143,120. The schools were subjected to a constant and effective inspection and the attendance was practically identical with the enrollment. ...

"All over the island the old Spanish barracks and the barracks occupied by the American troops which had been withdrawn were turned into schoolrooms after thorough renovation. The pressure for education was earnest and universal. The appropriations from the insular treasury for that purpose during the first year of American occupation amounted to four and a half millions.

"At the close of American occupation there were 121 boards of education elected by the people (the system was kept out of politics); the work of changing the old barracks throughout the island into schoolhouses had been completed; a thoroughly modern school building costing \$50,000 had been erected at Santiago; one school building in Habana had 33 rooms, with a

modern kindergarten, manual-training branch, two gymnasiums, and baths; large schools had been established by changes in government buildings at Guineas, Pinar del Rio, Matanzas, Ciego de Avila, and Colon; over 3600 teachers were subjected to examination, and approximately 6000 persons applied for and received examination as teachers. For six weeks during the summer vacation of 1901, 4000 teachers were collected in teachers' institutes."

***Establishment of Free Government in Cuba
(58th Congress, 2d Session, Senate Document number 312).***

"The public-school system organized under the first intervention in Cuba, is producing excellent results. Of the population 10 years of age and over, 56.6 per cent could read, showing a decided gain in that respect since 1899. Of the native whites, 58.6 per cent could read, and of the colored 45 per cent were similarly educated."

***National Geographic Magazine,
February, 1909, p. 202.***

EDUCATION: Egypt: A. D. 1901-1905.

Recent Development of Public Primary Schools.
Schools for Girls.

"Before the English occupation great masses of Egyptians remained ignorant. Over 91 per cent. of the males and almost 99½ per cent. of the females could neither read nor write. Until within the last five years public primary education for the poorer classes, aside from the mere learning of the Koran, was almost unknown. At the present time public schools are being established everywhere, and grants in aid of these schools are paid in proportion to the attendance and the records made by the pupils. Likewise, certain positions in the civil service can be filled only by those who hold certificates from schools of certain grades. As a consequence

there has been a great awakening of interest. Most of the teachers of these public schools are Mohammedan, and the schools are non-Christian in their instruction. The Koran is still used as a text-book for many purposes, but the education is practical in its general nature. The children are taught, besides reading and writing, the elements of the sciences, and they choose either French or English as the foreign language which they will learn, and that in which they will receive instruction in the more advanced studies where Arabic text-books cannot readily be provided. It is a noteworthy fact that while, in the earlier days, French was the language more frequently chosen, nearly all the pupils are now selecting English. There are also provisions for training in law, medicine, agriculture, engineering, etc. The law school is the most popular, while the agricultural college—although the basis of Egyptian wealth and prosperity is and must always be agriculture—suffers from lack of pupils. Female education has not been neglected, and we may expect in the near future that instead of 99½ per cent. of the women being unable to write, a very large per cent. of the mothers of the country will be able to give their children the rudiments of education at home."

***Professor J. W. Jenks,
The Egypt of To-day
(International Quarterly Review, October, 1902).***

{195}

"A revolution is a growth, not a cataclysm: the seeds of the Egyptian Revolution were sown in the autumn of 1901 when Miss Amina Hafiz Maghrabi was admitted to the Stockwell Road Training College for Teachers. Miss Amina is the daughter of one of the Officials in the Ministry of Public Instruction at Cairo, and after passing a preliminary examination was sent to England to be educated at the expense of the Egyptian Government. ... Miss Amina spent nearly three years at

Stockwell; then she returned to her own people; now she is a teacher at the Abbas Public Girls' School at Cairo, and the right hand of Miss Spears, the Principal; this seed is bearing fruit. No Revolution can be a success unless the women take it up, and it is the women who are going to turn Egypt upside down; it is the Mussulman women who have already begun to do so. ...

"The really astonishing work that has been going on for nearly two years is the education for the teaching profession of girls of the better class aged from about fourteen to twenty. There are two or three schools where these girls are received as boarders, and carefully tended by European mistresses; the amazing thing is that they throw aside their veils and consent to be taught by men. ... In all the State schools of Egypt the Koran is taught. In one corner of the garden is a small room built to serve as a mosque; attendance is voluntary, but three times a day each girl retires there for private prayer.

"These schools have been recently founded to provide female teachers; they have not been in existence long enough for any girls to have completed the two-years' course; it may be they will fail in their primary object; it is possible that the girls who have been educated will none of them persevere in the teaching profession; nevertheless, as Egyptian wives and mothers, they must become the leaders of the revolution."

***Edmund Verney,
A Revolution in Egypt
(Contemporary Review, July, 1905).***

EDUCATION: A. D. 1908.
Gordon Memorial College at Khartoum.

From the eighth annual report of the Director of Education in the Sudan it appears that the Gordon Memorial College, founded at Khartoum in 1899 (see, in Volume VI. of this work, EGYPT:

A. D. 1898-1899), is now composed of the following educational units:

"The primary school, which has been attended by 190 pupils, the training college—vernacular and English—by 178, of which 150 belong to the vernacular side, and the upper school for the training of engineers and surveyors by 28 students. One hundred and seventy-two are on the roll of the instructional workshops. There is, he remarks, no doubt whatever about the popularity of the military school among the inhabitants of the country, both Arab and Sudanese. Some 20 young men have now received commission in the famous black battalions, or in the new Arab levies now being raised. They have almost all been well reported on. He understood that the responsible Army authorities propose to increase this school substantially, and to render it capable of holding twice the present number of cadets." The College is reported to have "felt the strain of existing financial difficulties very keenly, and the rate of progress has hardly been maintained this year."—1908.

EDUCATION: England: A. D. 1902.

The Education Act, in the interest of the Voluntary or Church Schools.

Text of its provisions most obnoxious to the Nonconformists.
"Passive resistance" among them to the law.

The Education Act of 1870 created in England for the first time a system of officially regulated and publicly supported elementary schools.

See in Volume I. of this work,

EDUCATION: MODERN: ENGLAND: A. D. 1699-1870.

Those schools divided the work of elementary education with schools of another, older system, founded, maintained, and managed by the churches of the country,—mainly by the predominant Established Church of England. The public

elementary schools, supported out of local rates and governed by locally-elected school boards were called Board Schools; the others were called Voluntary Schools. The latter received some public money from an annual Parliamentary grant, but nothing from the local taxation which supported the former. In the Voluntary Schools under church control religious teaching was prescribed and given systematically; in the Board Schools it was not. Those who held religious teaching, of their own denominational orthodoxy, to be a vital part of education, were ardent partisans of the Voluntary Schools. Those who approved the exclusion of theological differences from the teaching of the Board Schools were equally ardent champions of those. As a rule, the adherents of the Established Church and of the Roman Catholic Church were opponents of the public system, while the Dissenters or Nonconformists of all sects gave it strenuous support. Thus the two systems were mischievously antagonized, and almost from the beginning of the operation of the Act of 1870 it had been manifest that one or the other must ultimately give way to its rival.

In 1902 the Conservative party, in which the Established Church of England is most largely represented, found itself strong enough in Parliament to undertake the nationalizing of the Voluntary Schools in England and Wales, incorporating them with their rivals in one reconstructed national system, but securing their domination in it, along with equal sharing from the public purse. A Bill for the purpose was proposed to the House of Commons on the 24th of March by Mr. Balfour, then the Administration leader in the House. In his speech on a motion for leave to bring it in he spoke of the need of a single authority for education, primary, secondary, and technical; of the disadvantages of the two organizations of elementary schools, and of the absurdity of supposing that the great number of Voluntary Schools and Endowed Schools could be swept away and replaced at enormous public cost. The proposed Bill, based on these views, would extinguish the local School Boards and make the County Council in counties and the Borough

Council in county boroughs the one local education authority. As introduced subsequently and enacted, after heated and long debate, the Bill accomplished its leading objects, so far as concerned elementary education, by provisions of which the following is the text:

{196}

"Part III. Elementary Education.

5.

The local education authority shall throughout their area have the powers and duties of a school board and school attendance committee under the Elementary Education Acts, 1870 to 1900, and any other Acts, including local Acts, and shall also be responsible for and have the control of all secular instruction in public elementary schools not provided by them, and school boards and school attendance committees shall be abolished.

"6.

(1) All public elementary schools provided by the local education authority shall, where the local education authority are the council of a county, have a body of managers consisting of a number of managers not exceeding four appointed by that council, together with a number not exceeding two appointed by the minor local authority. Where the local education authority are the council of a borough or urban district they may, if they think fit, appoint for any school provided by them a body of managers consisting of such number of managers as they may determine.

"(2) All public elementary schools not provided by the local education authority shall, in place of the existing managers, have a body of managers consisting of a number of foundation managers not exceeding four appointed as provided by this Act, together with a number of managers not exceeding two

appointed—

(a) where the local education authority are the council of a county, one by that council and one by the minor local authority; and

(b) where the local education authority are the council of a borough or urban district, both by that authority.

"(3)

Notwithstanding anything in this section—

(a) Schools may be grouped under one body of managers in manner provided by this Act; and

(b) Where the local education authority consider that the circumstances of any school require a larger body of managers than that provided under this section, that authority may increase the total number of managers, so, however, that the number of each class of managers is proportionately increased.

"7.—

(1) The local education authority shall maintain and keep efficient all public elementary schools within their area which are necessary, and have the control of all expenditure required for that purpose, other than expenditure for which, under this Act, provision is to be made by the managers; but, in the case of a school not provided by them, only so long as the following conditions and provisions are complied with:—

(a) The managers of the school shall carry out any directions of the local education authority as to the secular instruction to be given in the school, including any directions with respect to the number and educational qualifications of the teachers to be employed for such instruction, and for the dismissal of any teacher on

educational grounds, and if the managers fail to carry out any such direction the local education authority shall, in addition to their other powers, have the power themselves to carry out the direction in question as if they were the managers; but no direction given under this provision shall be such as to interfere with reasonable facilities for religious instruction during school hours:

"(b) The local education authority shall have power to inspect the school;

"(c) The consent of the local education authority shall be required to the appointment of teachers, but that consent shall not be withheld except on educational grounds; and the consent of the authority shall also be required to the dismissal of a teacher unless the dismissal be on grounds connected with the giving of religious instruction in the school. ... [Here follow provisions relative to schoolhouses and teachers' dwellings.]

"(3) If any question arises under this section between the local education authority and the managers of a school not provided by the authority, that question shall be determined by the Board of Education.

"(4) One of the conditions required to be fulfilled by an elementary school in order to obtain a parliamentary grant shall be that it is maintained under and complies with the provisions of this section.

"(5) In public elementary schools maintained but not provided by the local educational authority, assistant teachers and pupil teachers may be appointed, if it is thought fit, without reference to religious creed and denomination, and, in any case in which there are more candidates for the post of pupil teacher than there are places to be filled, the appointment shall be made by the local education authority,

and they shall determine the respective qualifications of the candidates by examination or otherwise.

"(6) Religious instruction given in a public elementary school not provided by the local education authority shall, as regards its character, be in accordance with the provisions (if any) of the trust deed relating thereto, and shall be under the control of the managers: Provided that nothing in this subsection shall affect any provision in a trust deed for reference to the bishop or superior ecclesiastical or other denominational authority so far as such provision gives to the bishop or authority the power of deciding whether the character of the religious instruction is or is not in accordance with the provisions of the trust deed.

"(7) The managers of a school maintained but not provided by the local education authority shall have all powers of management required for the purpose of carrying out this Act, and shall (subject to the powers of the local education authority under this section) have the exclusive power of appointing and dismissing teachers.

"8.—

(1) Where the local education authority or any other persons propose to provide a new public elementary school, they shall give public notice of their intention to do so, and the managers of any existing school, or the local education authority (where they are not themselves the persons proposing to provide the school), or any ten rate payers in the area for which it is proposed to provide the school, may, within three months after the notice is given, appeal to the Board of Education on the ground that the proposed school is not required, or that a school provided by the local education authority, or not so provided, as the case may be, is better suited to meet the wants of the district than the school proposed to be provided, and any school built in contravention of the decision of the Board of Education on such appeal shall

be treated as unnecessary.

{197}

"(2) If, in the opinion of the Board of Education, any enlargement of a public elementary school is such as to amount to the provision of a new school, that enlargement shall be so treated for the purposes of this section.

"(3) Any transfer of a public elementary school to or from a local education authority shall for the purposes of this section be treated as the provision of a new school.

"9. The Board of Education shall, without unnecessary delay, determine, in case of dispute, whether a school is necessary or not, and, in so determining, and also in deciding on any appeal as to the provision of a new school, shall have regard to the interest of secular instruction, to the wishes of parents as to the education of their children, and to the economy of the rates; but a school for the time being recognized as a public elementary school shall not be considered unnecessary in which the number of scholars in average attendance, as computed by the Board of Education, is not less than thirty."

The main contentions were raised by these sections of the Bill, and as soon as their bearing and effect were discerned the Nonconformist opposition was rallied in strong force. "The main ground of objection taken," says the Annual Register, "was that, while throwing the whole charge of the maintenance of denominational schools (apart from that of the fabrics) on public funds, it failed to secure to the local public any real control over the management of the schools so maintained, and amounted in effect to a new endowment of the Church of England; also that it perpetuated and enhanced the injustice of the pressure of the system of religious tests in the profession of elementary teaching, which would now, it was

said, if the Bill should pass, be the permanent monopoly of Anglicans in the schools educating more than half of the children of the working classes. Denunciatory resolutions based generally on grounds of this character, were passed by the National Free Church Council, the London Congregational Union (April 8), the General Committee of the Protestant Dissenting Deputies, and other bodies; and at an early date a disposition, to which both encouragement and expression were vigorously administered by the *British Weekly*, was somewhat extensively shown to urge that it would be the duty of Nonconformists to refuse to pay the education rate if the Bill should become law. Dr. Parker, of the City Temple, in a letter to the *Times* (April 5), avowed himself earnestly in favour of this policy, which was also defended by the Rev. H. Price Hughs. It was opposed by the Rev. John Watson, of Liverpool (known in the literary world as 'Ian Maclaren'), but the voices of restraint among the Nonconformist opposition were less audible than those of indignant reproach and menace."

Annual Register,
1902, p. 107.

The following from an article by Rev. J. Guinness Rogers shows the attitude and feeling of the Nonconformist opposition:

"Hitherto a certain proportion of the cost of these schools has been borne by Churchmen themselves, and Nonconformists have been content to regard that as fairly providing for the sectarian teaching that was given. They did not regard the arrangement as wise or salutary. But they acquiesced considering that they had no responsibility whatever for the denominational teaching that was given. The new Act altered all the conditions. The State now assumes all the responsibility for the support of these schools. The last vestige of voluntary support is swept away, and they become in every sense part of the National School system. The burden of

their support is thrown upon the public funds. Only in the matter of control and of their religious teaching do they retain anything of their private character. ... They are to be supported out of the public funds. But they constitute a privileged class of schools under private managers, and their chief teachers have to belong to a particular Church and to give instruction in its principles and doctrines. It is this which has stirred the indignation of Nonconformists. They conscientiously object to pay for the support of schools staffed by Anglican teachers and employed in the dissemination of Anglican doctrines. ...

"For thirty years the Free Churches of England have quietly submitted to an arrangement which practically left thousands of the schools under the absolute sway of the clergy. There were thus vast districts of the country, and those the districts least open to the free play of public opinion, in which Nonconformist children were forced into the ranks of the pupils, while Non-conformist teachers were just as resolutely kept out of these favoured preserves of sectarianism. But even this did not satisfy the clergy and their friends. During almost the whole of the period in question there have been continual attempts to secure better terms for those already so highly privileged. At length came the period for decided action. ... The whole character of our educational apparatus has been changed, and changed in a manner as unfavourable to constitutional liberty as to religious equality. School boards were institutions in which Nonconformists had taken a deep interest and in which in many of the large towns they had achieved conspicuous success. They have been ruthlessly swept away, and henceforth the work of education in our large towns and cities is entrusted to committees chosen by County Councils; Mr. Balfour showing here the same dislike of popular control as characterises his administration in the House of Commons. Can it be thought wonderful that Nonconformists have been goaded into resistance by a policy so high-handed and so determined? We have heard enough of the intolerable strain put

upon the supporters of the voluntary schools. The strain of clerical intolerance and Tory partiality has become still more intolerable."

***J. Guinness Rogers,
The Nonconformist Uprising
(Nineteenth Century, October, 1903).***

A weightier and more statesman like objection to the Act was set forth by the Right Honourable James Bryce in the following:

"Of all the causes which have kept education in England, secondary as well as elementary, below the level it has reached in such countries as Switzerland and Scotland and New England, the most deep seated is the want of popular interest and popular sympathy. The people have not felt the schools to be their own, have not been associated with the management, have not realised how largely the welfare and prosperity of the nation depend on the instruction which each generation receives. Since 1870 something has been done to stimulate popular interest by the creation of School Boards (whose admirable work in the large towns is admitted even by the Ministry which proposes to destroy them), by the introduction of a large representative element upon the governing bodies of endowed secondary schools, and by entrusting County and Borough Councils with power to spend money upon technical instruction.

{198}

What can be plainer than that a wise statesmanship ought to follow in the same path endeavouring to create everywhere local educational authorities chosen by the people and responsible to the people, keeping these local authorities up to the mark by making a share in the imperial grant conditional upon full efficiency, but teaching them to look upon the schools as their own, and to feel that it is their own interest as parents and citizens to make their schools

worthy of an advancing nation? No such idea has been present to those who framed this Bill. It reduces, instead of increasing, the element of popular interest and popular control.

"School Boards are to be swept away, and with them those elected women members who have been so valuable and influential an element. The substituted County and Borough Councils are, no doubt, elective bodies. But they have so many functions already besides those educational functions which are now to be thrown on them that the latter will play a small part, and their discharge of those functions cannot be effectively reviewed by the people at an election. Moreover, every Council is directed to act through an Education Committee largely, or possibly entirely, consisting of persons outside their own bodies. It is certainly desirable to secure an element of special knowledge. But the policy of these committees—and policy (except as regards finance) is to rest with them—will never be subject to any review by the electors, to whom the committees are nowise responsible. The fault is still worse when we come to the local managers. Where there exist only denominational schools, there will be no popular control at all, for the permissive appointment by the Education Committee of not more than one-third of the local managers is a merely nominal concession, quite illusory for the purpose of securing any local power, any local interest, any local sympathy. In most cases this permissive right of appointment will probably be used to add to the denominational managers some person or persons recommended by them, or one of them, to the Education Committee, which sits in the distant county town and may know nothing about the locality.

"It is not from any superstitious faith in popular election or in what are called 'democratic principles' that I deplore these provisions of the Bill. It is because they tend to withdraw from education one of its most valuable propulsive forces. Let us hear the Schools Inquiry Commissioners of 1868, among whom were the present Archbishop of Canterbury, the late

Bishop of Winchester, and another eminent ecclesiastic.

"‘No skill in organisation, no careful adaptation of the means in hand to the best ends, can do as much for education as the earnest co-operation of the people. The American schools appear to have no great excellence of method. But the schools are in the hands of the people, and from this fact they derive a force which seems to make up for all their deficiencies. ... In Zurich the schools are absolutely in the hands of the people, and the complete success of the system must be largely ascribed to this cause. ... It is impossible to doubt that in England also inferior management, if it were backed up by very hearty sympathy from the mass of the people, would often succeed better than much greater skill without such support.’

"These words were spoken of secondary education. They apply with even greater force to elementary. The experience of thirty-four years confirms them. But there is nothing in this Bill to give effect to their principle."

***James Bryce,
A Few Words on the Few Education Bill
(Nineteenth Century, May, 1902).***

The Education Bill passed its third reading in the House of Commons on the 3d of December, by a vote of 246 against 123, being a majority of exactly two-thirds. In the House of Lords it received brief discussion and a few amendments, which the Commons accepted, and it was sent quickly to the King, receiving the royal assent December 18. And now there came into action the stubborn revolt which took the name of "passive resistance,"—the refusal, that is, of a considerable body of people to pay the rates levied for school purposes under a law which they held to be unjust. Their attitude, and the consequences they suffered, in imprisonment and the seizure and sale of their property, are described in the following passages from an article by one of the leaders of

the movement:

"It is difficult to believe that, at the beginning of the twentieth century, Englishmen of high character and indisputable loyalty are being sent to prison for exactly the same reasons as those which were urged for committing John Bunyan to Bedford Gaol; for exposing Richard Baxter to the browbeating of Judge Jeffreys and a sentence of eighteen months incarceration; and for sending George Fox to the noisome dungeons of Carlisle and Derby, Lancaster and London. Americans cannot credit it. The colonists of Canada and Australia say, 'Can these things be?'; and even Englishmen would never accept the humiliating conclusion, if they were not confronted by the undeniable fact. The fact is that nearly one hundred freemen of England, respectable and God-fearing citizens, have been sentenced to different periods of imprisonment since November, 1903. ...

"Imprisonment is only one phase of this advancing cause; another is that of the public sale of the furniture, pictures and books of those who refuse to submit. The first sale was at Wirksworth, in Derbyshire, on June 26th, 1903; and it has been followed by about 1,600 more in different towns and villages, all over England. ... In one extremely flagrant instance, one hundred pounds' worth of goods were taken for the sum of fifteen shillings, and in many cases fidelity to conscience has meant loss of trade and of position, ... No less than 40,000 summonses have been sent forth by the overseers to compel recalcitrant rate-payers to appear before the magistrates and 'show cause' why they will not pay. ...

"Now, it is for that process we cannot and will not pay any rate whatever. We object to many of the provisions of the Education Acts. They are anti-democratic, unfair, unjust; they are destructive of educational efficiency and social peace; but the one thing that has created the Passive Resistance movement is not the destruction of the School Board, not the

loss of popular control, but this intrusion into the realm of conscience by the State.

{199}

That is the prime factor in this situation. To that 'we will not submit,' declared Mr. Fairbairn to Mr. Balfour when the Bill was before the House. In short, we say with Bunyan to our persecutors, 'Where I cannot obey actively, there I am willing to lie down, and to suffer what they shall do unto me.'"

***John Clifford,
Passive Resistance in England and Wales
(North American Review, March, 1905).***

In Wales, where the Nonconformists are very strong, the resistance became more than passive. The County Councils refused generally to put the Act into operation, and Parliament, in August, 1904, passed what was described as the "Welsh Coercion Act," to compel their obedience to it. This Act authorized the central Board of Education, in the case of a county proclaimed in default to provide for Church schools and to deduct such appropriation from the Government grant for educational uses to the county. As the deficit thus caused in the sum available for the National schools would have to be made up by the county, the recalcitrant county would thus indirectly be saddled with the maintenance of the Church schools. But Welsh resistance was not so easily overcome; for a new plan was devised, according to which every proceeding under the Coercion Act would be met by the resignation of county education committees and managers of the National schools. This would paralyze the central Board, which has no power to fill the places thus vacated.

EDUCATION: A. D. 1904.

Church Attendance in School Hours.

A circular issued by the Board of Education, in July, relative to the taking of children from Church schools, during school

hours, to attend Church services on Saints' days, caused great dissatisfaction and complaint in Church circles. The practice had been permitted hitherto; but the Board ruled that school time-tables making provision for this must have the sanction of the local school authorities, which in many cases were opposed to the practice. A "Church Schools Emergency League" was now organized to contest the action of the Board.

EDUCATION: A. D. 1905.

Underfed School Children.

An order issued by the Local Government Board, in April, directed that, in the case of school children under sixteen, found to be underfed, who were not blind, deaf or dumb, and who were living with a father not in receipt of relief, there must be application for relief made to the guardians of the poor by a teacher empowered by the managers, or by an officer authorized by the education authorities. The guardians must then investigate the case and decide whether relief should be given as a loan or in the ordinary mode, and notify the father accordingly; thus giving the parent the opportunity to make the needed provision himself. If he did not do so, the guardians were empowered to recover from him the cost of the necessary relief by county court process.

The report of the Board of Education for the year 1907-1908, published in March, 1909, states with reference to the feeding of necessitous school children that: "From December 21, 1906, when the Education (Provision of Meals) Act, 1906, came into operation, to July 31, 1908, 51 local education authorities have been authorized to spend money from the rates in providing food for school children. Of the 20 authorities referred to in last year's report as having taken power to spend money for this purpose 14 have obtained sanction to spend money in a second year."

EDUCATION: A. D. 1906.

Education Bill passed by the House of Commons and killed by amendments in the House of Lords.

The defeat of the Conservatives and Unionists in the Parliamentary elections of January, 1906, was ascribed very largely to popular dissatisfaction with the Education Act of 1902. Hence, on the resignation of the Balfour Ministry and the call of the Liberals, under Sir Henry Campbell-Bannerman, to the administration of the Government, the new masters of legislative authority were held to have received a mandate from the people to amend the objectionable law. On the 9th of April a Bill to that end was brought forward by Augustine Birrell, President of the Board of Education and again the old disputes over denominational religious teaching in schools supported by the public at large were re-enlivened and re-heated, in Parliament and out. In December it passed the House of Commons by a majority of 192, and went to the Lords. A succinct and clear statement of the intent of the Bill, as framed by the Government, was given in an article contributed to ***The Outlook*** of August 4, 1906, by Dr. Clifford Webster Barnes, Special Commissioner of the Religious Education Association to investigate moral and religious instruction in European schools. In the framing of the Bill it had been assumed that the overwhelming majority which swept the new Government into power had determined that the following principles should be enacted into law:

1. Unification of the public school system.
2. Complete local control where public funds are received.
3. Abolition of religious tests for teachers.

"The new bill by its first clause," wrote Dr. Barnes, "has virtually met these three requirements. It makes it impossible for the State, hereafter, to recognize or provide for any school unless it comes under the absolute control of the local authority; and as church boards are thus supplanted, religious tests for teachers need no longer be feared. In later clauses, also, special safeguards are arranged to protect the teachers

from this sort of test. If the bill, after providing the necessary machinery with which to carry out its first clause, went no further, the extreme Nonconformist would undoubtedly have given it most hearty support, and the wrath of the Church party might possibly have been no greater. But love for fair play has prevailed in the Cabinet, and the Liberal Government has proved its right to the title by introducing, in clauses 2, 3, and 4, special provisions for leasing the denominational schools and for permitting their owners to give the religious instruction distinctive of the church to which they belong. ...

"The bill, therefore, makes the following concessions:

"1. For the purpose of continuing any existing voluntary school it permits the local authority, on some arrangement being made with the owners, to take over such school, provided it is structurally fit. The State will then pay the entire cost of maintenance, keep the property in good repair, and use it only between the hours of 9 a. m. and 4 p. m., from Monday to Friday inclusive. At all other times the owners are privileged to do with it as they see fit. On two mornings of the week, between 9 and 9.45, the religious teaching peculiar to the denomination owning the property may be given, but children whose parents do not wish such teaching are to be excused during that time.

{200}

"2. In urban areas where there is a population of five thousand or over, a Church school may remain as denominational as at present, the distinctive dogmas of the Church being taught as much as may be desired, provided the parents of four-fifths of the children vote in favor of this arrangement, and provided, also, that there are accommodations in some neighboring school for those whose parents prefer undenominational instruction. In every case that portion of the religious teaching which is distinctively denominational

must be paid for by the church giving it. Statistics show that by this concession one hundred per cent. of the Jewish schools will be able to preserve their denominational character, seventy-five per cent. of the Catholic schools, fifty per cent. of the Wesleyan, and twenty-five per cent. of the Church of England. By the previous concession, of course, all the remaining schools of the various denominations will be able to give their distinctive theological teaching on two mornings of each week.

"But this denominational instruction is not the only religious education which the schools will provide. By the bill of 1870 local authorities were permitted to introduce a kind of simple Bible teaching which has been nicknamed, from the author of the act, 'Cowper-Templeism.' It consists of Bible lessons covering the Old and New Testaments arranged according to some well-planned syllabus, the majority of these being modeled after that of the London County Council. The exercise opens with prayer and a hymn, after which the children tell the Bible story of the day and are assisted by the teacher to draw from it some suitable moral lesson, but no creed or religious formulary distinctive of any denomination can be used. This teaching must be given in the first hour of the morning, between 9 and 9.45, and any child may be excused from attendance upon the request of its parent. It is a significant fact that the Nonconformists of 1870 were unanimously opposed to the Cowper-Temple clause, and that it was put through only by the strong and united effort of the bishops. Now it is the Nonconformists who, to a man, favor this kind of instruction, while some at least of the bishops, in their eagerness to preserve denominationalism, go so far as to say 'this teaching undermines the foundations of Christianity.'"

In the House of Lords the Bill came under the Church influences which had dictated the Act of 1902, and it was slashed with amendments which would totally reverse its operation on all the controverted points. That procedure

killed the measure, of course; and so the burning school question remains unsettled, while England gives much thought to another question,—What to do with the House of Lords?

See (in this Volume)

ENGLAND: A. D. 1906 (APRIL-DECEMBER).

EDUCATION: A. D. 1907 (November).

Failure to compromise the Religious Sectarian Differences concerning Public Education.

Attempts to negotiate a compromise with the religious bodies whose antagonism wrecked the Education Bill of 1906 went so far as to induce the Government, in November, 1907, to introduce a Bill embodying the points on which agreement had been reached. The outcome was stated in the report of the Board of Education for 1907-1908, as follows:

"It became apparent after some progress had been made in Committee that denominational assent could only be obtained by still further concessions, including a substantial increase in the grant to contracting-out schools. Your Majesty's Government have always maintained that the number of schools availing themselves of the privilege of contracting-out, must be strictly limited, that the grant provided by the Bill was sufficient to afford a limited number of schools a reasonable chance of existence, and that to increase the grant beyond this sum would enable the great majority of schools to take advantage of the privilege, and would involve the establishment of a system of contracting-out as the rule instead of the exception. In view of the impossibility of obtaining agreement without such amendments as were, in the opinion of your Majesty's Government, inadmissible, it was found necessary to withdraw the Bill."

EDUCATION: A. D. 1908.

Provisions of the Children Act relating to Industrial and

Reformatory Schools.

See (in this Volume)
CHILDREN, UNDER THE LAW.

EDUCATION: A. D. 1908-1909.
Oxford Teaching for Working People.

In 1908 the Convocation of the University of Oxford passed a statute which gave the University Extension Delegacy power to form a committee consisting of working-class representatives in equal numbers with members of the Delegacy, with the object of enabling Oxford to take its proper share in the work of providing higher education for the manual working classes. In January, 1909, the committee organized eight tutorial classes, at Chesterfield, Glossop, Littleborough, Longton, Oldham, Rochdale, Swindon and Wrexham. At the end of the first twelve weeks of the work results were reported, as follows: "The number of students enrolled was about 234, among whom were 20 women; and all of these pledged themselves to study continuously under the supervision of the tutors provided by Oxford for a period of three years. The subjects studied were industrial history and economics. ... The members with few exceptions are men and women engaged in manual labour during the day. Out of 169 students 48 were engineers, 35 were engaged in the textile industries, 17 belonged to the building trades, 12 were labourers, ten were potters, seven were in the clothing trades, five were miners, and four were printers. Sixty per cent. of the 234 students were under the age of 34. Many of them were members' of working-class organizations. ... Few students abandoned the classes after beginning to attend them, except for reasons such as illness, overtime or unemployment. The average attendances are about 90 per cent. of the maximum, possible. The paper work in some cases would probably compare with the work done by first-class students in the final honours schools at Oxford. ... The committee consider that any movement to shorten the hours of labour would

enormously increase the opportunities for higher education among work people."

{201}

EDUCATION: A. D. 1909.

Official Reports and Statements of the extent and operation of the English agencies of Public Education.

On the 2d of March, the President of the Board of Education, Mr. Runciman, received a deputation of the Parliamentary Committee of the Trade Union Congress, who presented a resolution passed at the Congress stating that no solution of the educational problem would be satisfactory that did not give free education from the elementary school to the University, and demanding the immediate abolition of fees in secondary schools and technical colleges. One of the speakers of the deputation complained that secondary school fees were mounting so high that working people could not afford to pay them, and that in some cases the rule as to the reservation of 25 per cent. of free places in secondary schools had not been observed. Mr. Runciman, in reply, said that the difficulties which had been raised centered around local finance. The Board of Education had not been idle during the last three years in assisting local authorities, especially for secondary education. In the year 1906-1907 the grant for this purpose amounted to £480,000; £691,000 was granted in 1907-1908; and in the estimate for 1908-1909 £802,000 was put aside for secondary education; and as far as he could see at present the amount to be granted for secondary education purposes next year would be even larger. ... Of the total number of secondary schools which were now required to comply with the free places regulation, 368, or more than half, provided in 1907-1908 more than the stipulated 25 per cent., and the great majority of the whole of them provided the 25 per cent. There were, it was true, a number of cases where a smaller number of free places had been granted, but that fact was due purely to local considerations.

... He should do all he could to prevent secondary schools from becoming class schools, but it was not every child who was suitable to enter a secondary school, and they must have a fairly good standard examination for the child who wished to enter. He would very much deplore indeed if the cost of secondary education were to make it prohibitive, or so to restrict to allow it to be open only to the children of well-to-do-parents. He hoped, before the new regulations were published, to clear away some of the obstacles in the direction of throwing open a larger number of free places to scholars and towards making the secondary schools as much schools for the clever poor children as for the clever rich children.

[Transcriber's note: The text between "must have a ..." and "... were published" is covered with an opaque ink stain. Some words are guesses.]

A few days later in March the report of the general Board of Education for the school year 1907-1908 was issued, bringing statistical information of the English schools down to the 31st of July in the latter year. During the year then ended, the number of new public elementary schools sanctioned under the Education Act, 1902, was, in England, 215, giving accommodation for 80,351 children, and in Wales 64, accommodating 13,942 students. Enlargements, numbering 94 and 21 respectively, provided accommodation for 17,697 children in England and 3,407 in Wales. During the year ending July 31, 1907, the number of ordinary public elementary schools in England and Wales increased by 44, the council schools increasing by 223, while the number of voluntary schools decreased by 179. One hundred voluntary schools were transferred to local education authorities. During the next 12 months the number of schools grew by 47, the number of council schools having increased by 205, and the number of voluntary schools having decreased by 158.

As regards higher elementary schools, 35 schools of the new type existed on August 1, 1907, by which date there were left 26 such schools of the old type. The changes during the succeeding year brought the total number of higher elementary schools of the new type to 38, and the number of such schools of the old type to 21 by August 1, 1908. The number of scholars on the registers of elementary schools decreased during 1906-1907 by 22,584, due mainly to a continued diminution in the number of scholars under five years of age. During 1907-1908 the number of scholars on the registers increased by 12,166, a further decrease in the number of scholars under five being more than balanced by a large increase in the number of scholars between the ages of five and twelve.

The report records a growth of secondary schools receiving grants from the Board, both in the numbers of such schools and of the pupils attending them, and also in their effectiveness. The Board adds:

"There are still areas where the amount of public secondary school provision is wholly inadequate, or where its quality falls much short of any standard that can be regarded as even provisionally satisfactory. But there is no area in which the Board have to note actual retrogression."

As regards evening schools, the report says:

"The total number of students enrolled in these schools during 1906-1907 diminished from 749,491 to 736,512; but there was a considerable increase in the number of efficient students."

Statistics of the elementary schools of London for the year 1907-1908, published in March, 1909, in the annual report of the education officer of the London County Council, showed that the average number of children on the rolls of schools maintained by the Council during the year was 731,706. Of this number, 566,086 were on the rolls of London County Council

schools and 165,620 on the rolls of non-provided schools. The average number of children in attendance during the year was 650,861, of whom 505,698 were at London County Council schools and 145,163 at non-provided schools. The total number of teachers engaged on March 31, 1908, was 17,562, of whom 13,030 were in London County Council schools and 4,532 in non-provided schools. The salaries of these teachers amounted to £1,820,816 and £443,468 respectively. On March 31, 1908, the average salaries of head teachers and certificated assistants (excluding teachers "on supply") were—for masters in London County Council schools, £174 13s. 4d., and for mistresses, £125 11s.; for masters in non-provided schools, £144 1s. 7d., and for mistresses, £104 6s. 3d.

With reference to the size of classes the report states that the number of pupils per class teacher was, in the case of London County Council schools, 44.8, and in the case of non-provided schools 37.5. Ten years ago the number was 55.2.

The gross expenditure on elementary schools was, approximately, £4,000,000. The cost of London County Council schools was about £3,400,000, and of non-provided schools £600,000. About £1,257,000 of Government grant was earned and of this £971,000 was in respect of London County Council schools and £286,000 in respect of non-provided schools.

{202}

Under the Education (Administrative Provisions) Act, 1907, the London County Council is empowered to provide vacation schools or classes during the holidays, or assist voluntary agencies formed for this purpose. Hitherto the council has given assistance to voluntary agencies, but in 1909 it was proposed by the Children's Care (Central) Sub-Committee of the Education Committee of the council that the council should itself organize vacation schools.

Debate in the House of Commons on the Education Estimates was opened by the President of the Board of Education, Mr. Runciman, on the 14th of July. In the course of his speech he made the following statements:

"The Board of Education is now one of the greatest of the spending departments, and a rough estimate of the amount of public money spent on public education in this country shows that we have cognizance of an expenditure of something like £28,000,000 on elementary, secondary, and higher education, and over and above that of a sum of probably £8,000,000 to £10,000,000 spent by other authorities and other persons. These estimates affect no fewer than 3,000,000 parents and about 6,000,000 children. The improvement which has been made in the elementary education system during the last five years has been mainly machinery improvement rather than improvement in the curriculum.

"The secondary and technical branches of the work which were formerly under the control of South Kensington are now treated as two different departments. In the old days technical education was too technicalized and too little in touch with the practical affairs, necessities, and actual circumstances of life. It has been the object of the Board of Education therefore to generalize secondary education, and so far as it comes under the control of the Board to make technical education more practical with a closer bearing on the duties likely to be required from the young men and women who pass through these classes. The improvement has been led, as might have been expected, in the North of England, where classes have been definitely graded. ...

"The secondary schools of England and Wales have shown a most marked improvement, both in numbers and character, during the last few years. Progress has been noted in several directions. First of all, the number of schools aided by grants and the number of pupils attending those schools have gone up year by

year since 1902. The 272 secondary schools of that year have increased to 800, and even since 1905-1906 the increase has been at the same rate. I think in 1905-1906 there were only about 600 secondary schools in this country; now there are over 800. About 60 new secondary schools are being added every school year, and the number of pupils is increasing to an even greater extent. The increase during the years 1902-1905 was about 6,000 per annum, and the increase now has risen to over 10,000 per annum, so that the total number of pupils in secondary schools is now 134,000, or very nearly 135,000. The grants which have been made to secondary schools have, of course, increased very considerably. It is impossible to expect local authorities to spend much of their money on the expenses of secondary schools unless they receive a large measure of State aid. The grants have gone up during the seven years from 1902 to the present time from £129,000 per annum to over half a million; and this great increase in pupils, in the amount of money spent on the schools, and in the number of schools in the country, has been marked at the same time by a raising of the standard of the teachers employed in those schools, by an increase in the length of the school life of the pupils who attend those schools, and by an incalculable improvement in the curriculum and the efficiency of those schools. I think we may look back with satisfaction on the increase of the secondary schools over which we have control."

At the annual conference of the National Union of Teachers, held at Morecambe, in April, 1909, with about 2000 in attendance, the address of the incoming President contained some interesting statements relative to the national teaching staff.

"The character of the teaching staff in the elementary schools of England and Wales," he remarked, "as shown by the latest available return of the Board of Education, was: Of certificated teachers, 89,078, or 49 percent.; of uncertificated teachers, 40,569, or 22 per cent.; of

supplementary teachers, 21,984, or 12 per cent.; and of pupil teachers, 27,227, or 15 per cent. The 22,000 so-called supplementary teachers, possessing scarcely any educational equipment, were utterly unfitted in most cases for the important duties they were called upon to perform. Their sole passports to the teaching profession were that they must be at least one year over 17 and had been successfully vaccinated; yet they were answerable for the education of nearly 600,000 children. The Board of Education proposed that in future each member of this class of teacher should count on the staff for 20 instead of 30 children, while other regulations provided for the limitation of the numbers to be employed in the schools, and for the withdrawal by the board of the recognition of a supplementary teacher at any time if not efficient. This was indeed a step in the right direction, and showed that Mr. Runciman was really solicitous that there should be an improvement in the quality of the teachers at work in the schools. There were also many young persons termed student teachers whose academic training was unexceptionable. They were really apprentices, but the Board of Education had regarded each of these young people, who might never have been in an elementary school before, or done a day's teaching anywhere, and who were away one day out of every five, as an efficient teacher equal to educating 45 children on every occasion on which the school was opened. ... There were some 500 well-equipped college-trained certificated teachers waiting to fill the gap which would be caused by the new regulations of the Board of Education, and an additional 4,000 would be seeking employment in August."

{203}

EDUCATION: A. D. 1909 (MAY).

Revival of Passive Resistance to the Act of 1902.

The defeat of the Education Bill of 1906 awakened the spirit of "passive resistance" afresh; but it was not until May, 1909, that

a reorganization of the movement was undertaken. As the result of a conference then held in London, under the presidency of Dr. Clifford, resolutions were adopted for the "organizing of the whole passive resistance forces of the country into a new league," to act on the following lines:

"(1) Suffering imprisonment where the resister has no distrainable goods;

(2) suffering the distraint of goods without repurchase;

(3) suffering distraint of goods and afterwards buying them back;

(4) protesting before the magistrates and then paying, on order, the rate."

It was also resolved to urge upon the Government "the absolute necessity of encouraging from national funds the building at the earliest practicable moment of council schools in those areas in which there are no undenominational schools, and also the provision of unsectarian colleges in all parts of the country where these are needed."

To a delegation from the League which waited, subsequently, on the Head of the Board of Education, Mr. Runciman, the latter said, with reference to the Act of 1902, that it "could not be got rid of by administration. It would be a mischievous precedent for any Minister to attempt to undo what Parliament had done. He was, however, prepared to administer the Act fairly and justly, and he was not going to show any favour to any particular class of school. Dealing with the question of the improvements in the conditions governing the existence of training colleges, he said that during the past 12 months the accommodation in training colleges for Nonconformist teachers, or those who were not prepared to be bound by any denominational creed, had greatly increased. Since 1905 there

had been a gradual increase, until there now existed 3,800 more places for that class of teacher than existed when the Government came into power."

EDUCATION: A. D. 1909.

Educational demands of the Trade Unions.

The British Trade Union Congress, at Ipswich, in September, 1909, adopted a resolution urging workers to continue their efforts to secure Parliamentary and municipal recognition of the trade union education policy, which demanded:

"(1) The State maintenance of school children;

(2) scientific physical education, with individual medical inspection and records of the physical development of all children attending State schools, and skilled medical attendance and treatment for any requiring it; and in order to secure this:

(a) the development of the Medical Department at the Board of Education, the head of which should be directly responsible to the Board of Education, to whom he shall report annually;

(b) the payment of an adequate grant from the Imperial Exchequer for purposes of medical inspection and for the establishment under every education authority of properly equipped centres for medical treatment;

(c) the establishment under every education authority of scientifically organized open air recovery schools, the cost to be borne by the community as a whole and not in any part by charitable contributions;

(3) the complete dissociation of these reforms from Poor Law administration;

(4) that secondary and technical education be an integral part of every child's education and be secured by such a reform and extension of the scholarship system as would place a maintenance scholarship within the reach of every child, and thus make it possible for all children to be full time day pupils up to the age of 16;

(5) that the best intellectual and technical training be provided for the teachers of the children, that each educational district be required to train the number of pupil teachers demanded by local needs and to establish training colleges, preferably in connexion with Universities or University colleges;

(6) that the provision of educational buildings and facilities be obligatory upon the local authority, who should always maintain administrative control of the buildings and the facilities so provided;

(7) that the cost of education be met by grants from the Imperial Exchequer and by the restoration of misappropriated educational endowments; and further, having regard to the increasing cost of popular education, and also to the increasing value and notoriously undemocratic administration of the University and public school endowments, the Congress called upon the Parliamentary Committee to press the Government to appoint a Royal Commission to inquire into and report upon the educational endowments of the country."

EDUCATION: FRANCE: A. D. 1903.

Execution of the Associations Law.

Closing of the schools of the Religious Orders.

State Monopoly of Education established.

See (in this Volume)

FRANCE: A. D. 1901 (APRIL-OCTOBER), and 1903.

EDUCATION: FRANCE: A. D. 1907.

Enlistment of teachers in the Syndicalist
(Labor Union) Movement.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1907.

EDUCATION: France: A. D. 1909.

A late awakening to the need of better technical and
industrial training.

France has been slow in understanding the modern necessity of systematic industrial training and technical education, in order to keep her workmen abreast of the more alert and enterprising peoples in efficiency and skill. She has trusted too long, it seems, to the old customs of apprenticeship, and apprenticeship has decayed in her workshop practice, as it has decayed everywhere else. The situation, as brought recently to notice, was described as follows in a Paris letter to the London *Times*, in May, 1909:

"Legislative enactments of recent date, limiting the hours of labour for young people and placing under strict regulations those workshops where children and adults are employed together, have led to so much discontent among employers who take apprentices that the majority of the masters, especially those who obtain no immediate profit from the work of the apprentices, have abandoned the practice of endeavouring to train young people likely to be of use to them in the future. The consequences are that the level of professional skill and competence is becoming lowered among the rising generation of workmen, and all are now agreed that the discovery of some remedy is a matter of extreme urgency. It seems to be admitted that in a very few years this evil may become one of fatal importance in the case more especially of the art industries and of those involving mechanical skill.

"The report of the Parliamentary Commission appointed to make inquiry into this question has just been published, together with the draft of the proposed legislation on this subject, while the resolutions adopted at a Congress of Commerce and National Industries, which has just taken place at Paris, are entirely in accord with the views and suggestions of the above Commission.

"The remedies unanimously demanded are as follows:

1. That it be made compulsory for all young persons of both sexes, under 18 years of age, who may be employed either in commerce or industry, to attend courses of technical instruction (*cours de perfectionnement*).
2. These courses are to take place in the daytime, upon days and at hours determined for each locality by committees composed of representatives of the municipal authorities, the associations of manufacturers, and of the workpeople. The selection of the dates and hours in question is to be made in such a way as to accord best with the respective interests of the manufacturers and the educational requirements. Employers will be bound to enable their workpeople to set apart sufficient time to attend the classes.
3. The course of instruction is to be adapted in each district to the requirements of the local trades."

{204}

EDUCATION: FRANCE: A. D. 1909.

Clerical attack on the Secular or Neutral Schools.

Antagonism between the Roman Catholic Church and the Government was newly accentuated in October, 1909, by a clerical attack on the so-called "neutral" schools,—that is,

the secular or lay schools, publicly maintained and administered. This was opened by a pastoral letter, signed by French cardinals, archbishops, and bishops, in which those faithful to the Church were warned against sending their children to these schools, whose religious neutrality was said to be in reality a bitter opposition to religion and church. The Catholic schools, it was urged, must be kept up if the Church is to be kept up. "In proportion as the schools from which religious instruction is banished keep on filling up, our churches will grow empty." The pastoral letter put the ban on more than a dozen text-books on French history and civics whose views it found pernicious. "If, therefore," the letter concluded, "parents perceive that the souls of their children are imperilled in the so-called neutral schools, they must not hesitate, under pain of forfeiting the sacraments of the church."

This roused anti-clerical extremists to demand the establishing of a State monopoly of education, making the lay school compulsory and suppressing all private schools in which religion is taught. But the sounder republicans, in public life and in journalism, gave no countenance to this. The *Petite République* reminded its advocates that there are at present 1,122,375 children who attend private schools, and that to establish Government schools for them would cost some \$75,000,000; or, if secondary schools be included, \$88,000,000. In addition an annual expenditure of \$15,000,000 would be necessitated for upkeep and salaries. The Temps, taking higher grounds of principle, condemned the scheme as one that would essentially parallel the Revocation of the Edict of Nantes. France, it declared, is a free country; every creed has the perfect right to provide for its adherents the kind of religious education which it thinks proper. At the same time the *Temps* pointed out that the opponents of the lay schools are not merely attacking abuses that may have crept into them, but mean to strike at the principle of religious neutrality. It admitted the existence of wrongs that

need righting, saying it cannot be denied that some of the school books are disfigured by partiality on various points affecting history, patriotism, and religion, and that this is contrary both to the letter and to the spirit of the law. This evil must, the *Temps* urges, be eradicated. But the *école laïque*, says the *Temps*, cannot be destroyed without destroying the Republic.

This, too, was the fundamental proposition of Premier Briand, in a speech of admirable tone which he made, October 30th, at a great banquet in Paris which inaugurated the new buildings of *La Ligue de l'Enseignement*. The neutral school, he declared, was the corner stone of the Republic. As reported in *The Times* of London, he went on to say:

"It was natural that the adversaries of the Republic should attack the school—the mould in which the Republican spirit and the character of Frenchmen and Frenchwomen was formed. Certain people were pleading the dictates of conscience as the explanation of the campaign which they had just started. Why had they not attacked the school before? He would remind them that the *école laïque* existed before the recent separation of Church and State; it had existed under the Concordat. Why did not the conscience of its opponents seek any expression till now? ... The Government was determined to give the country the means of defending the 'neutral' school, and measures to that end had been prepared by the Ministry. But the most effective defence was that which would be conducted by private initiative like that of the Ligue de l'Enseignement and by the male and female teachers themselves. The teaching in the schools, M. Briand continued, 'ought not to be directed against any one; in order to secure the confidence of the parents it ought not to be of a polemical character; in order to be effective it must not let the passions of the street invade the schoolroom.' Let them leave violent language to their opponents and not play the game of their opponents by indulging in violent methods."

This seems to have been the spirit in which the matter was brought officially before the Chamber of Deputies, by M. Steeg, the reporter on the Budget of Public Instruction. The following is from a summary of his remarks on this subject:

"He says that it would be difficult to come to terms with the Bishops of the disestablished Roman Catholic Church, who will never, he thinks, agree to recognize with good will the neutral school. He remarks, however, that no pretext must be furnished to the Bishops for their attacks upon the school, and that they must not be enabled to appeal against the Republican Government to the idea of 'neutrality' itself. As to the associations of parents, which are now being formed in accordance with the Episcopal views, M. Steeg recognizes that they are quite lawful. He only fears that they may sometimes transgress by reason of excessive zeal; but he declares that the best way of avoiding their interference is to make the management of the schools irreproachable. The objections raised against some of the school-books are, he thinks, obviously exaggerated. But he considers that scrupulous care ought to be exercised in resisting all temptation to borrow for the purposes of the neutral school the weapons of sectarian propagandism. ... He continues; 'We should not desire that the book placed in the hands of a school child should in any sense whatever contain a single proposition that is perilous or open to suspicion. Let there be no veiled proselytism supported by ingenious distortions of fact or interpretations with an object.'"

{205}

The *Temps* remarks; "M. Steeg's language does him credit, and it is a pleasure to see a politician of the Extreme Left recognizing, with a strong sense of philosophic truth, that respect for the past is perfectly compatible with justice to the present and preparation for the future."

EDUCATION: FRANCE: A. D. 1909.

Appointment of the Abbé Loisy, Professor of Religions
in the College de France.

See (in this Volume)

FRANCE: A. D. 1909 (MARCH).

EDUCATION: Germany: Technical Education.

Causes of its great development and
wonderful industrial results.

Its influence on International Trade.

"How much Germany owes to her system it would be almost impossible to estimate. Certainly no other country has turned the education of children and young people to such enormous advantage. A good and efficient education has been made not only accessible but also compulsory in every corner of the country, and one of the most priceless features of this education has been and is the inculcation of real, personal interest in the national welfare. Further, the fullest possible use has been made of scientific investigations, and all sciences have been drawn into the service of the nation. The result of this has been truly amazing; in fact, wholly undreamt of. There can no longer be any doubt that Germany's industrial advance is mainly due to the extent and thoroughness with which technical education is being conducted. Briefly stated, the secret of the pronounced success of the technical colleges in the Fatherland lies in the fact that they have kept pace with the ever-increasing scope of all branches of science in general, and, to the same extent, with the ever-increasing demands of the present day industrial enterprises upon scientific investigation and research."

Louis Elkind,
Germany's Commercial Relations

(Fortnightly Review, July, 1906).

What seems to be the most satisfying explanation that has been given of causes or reasons lying behind the extraordinary development of scientific training on practical lines in Germany, resulting in so wonderful a speed of industrial progress within the passing generation, was cited from a German scientist by President Pritchett, of the Massachusetts Institute of Technology, in an article contributed to the ***Review of Reviews***, February, 1906.

"About a year ago, I heard a famous chemist in Germany explain the present industrial supremacy of his country in words something like these: 'Forty years ago,' said he, 'the scientific men of the various German states devoted their study almost wholly to theoretical subjects. They were humorously described as given up to investigations of the dative case and similar impractical problems. In a measure this was true. The investigators of that day had a wholesome contempt for anything which promised direct utilitarian results. But the development of the spirit of research throughout the German universities trained a great army of men to be expert investigators, and when a united Germany arose to crown the labors of William I. and of Bismarck, with it came a great national spirit in which the men of science shared. They realized that to them were committed the great industrial problems which must be solved in order to make the nation strong, and scientific research, which up till then had been mainly theoretical, was turned to the immediate solution of the industrial problems of the nation. No longer the dative case alone, but the development of the chemical, electrical, and mineral resources of the country formed the avenues of scientific activity, and scientific research, which had till then been looked upon as theoretical accomplishment, became the greatest financial asset of the Fatherland.'

"There is truth in this statement. The research habit, long

cultivated in German universities, had nourished a body of men trained to research, men who had acquired the research habit and the spirit of investigation. When, therefore, the problems of industrial development began to appeal strongly to the national spirit, the country had a trained body of men to call upon who threw themselves heartily and enthusiastically into these practical industrial problems."

A correspondent of the London *Times*, writing in May, 1909, draws attention to an influence on international trade exerted by the German technical schools which is generally overlooked: "In the German technical high schools," he writes, "an appreciable proportion of the students are foreigners from various countries in Europe. Among these foreign students the Russians and Poles hold the first place in Germany as regards numbers, there being about 2,000. There are also an appreciable number of Scandinavians and Dutchmen, with a few Belgians, Spaniards, Italians, South Americans, and Slavs from Austria and the Balkan States. There are very few Englishmen, Frenchmen, or Americans. ... At present quite a large proportion of the engineers and manufacturers in the neutral countries on the Continent have been educated in Germany or Switzerland, and as a result there is a great bias in favour of German machinery and productions. ... As the outcome of this feeling it is a difficult matter for British manufacturers of machinery to obtain a hearing when tenders are being considered on the Continent, as the prejudice in favour of German or Swiss machinery is strong."

EDUCATION: Germany: A. D. 1898-1904.

Rise of Commercial Universities.

A report on Commercial Instruction in Germany by Dr. Frederic Rose, British Consul at Stuttgart, presented to Parliament in September, 1904 (Cd. 2237), gives the following account of the rise of the Commercial Universities which have been developed in Germany since 1898, carrying the process of training young

men for business life to a higher point than had been aimed at in the older commercial schools:

"The commercial universities for higher commercial instruction (Handelshochschulen) have been founded within the last six years [1898-1904] and mark a further step in the development of commercial instruction in Germany. Their aim is to afford persons engaged in business and industry on a large scale (Grosskaufleute and Grossindustrielle), masters at commercial schools, administration officials, bank officials, Consular officials, secretaries to Chambers of Commerce, and so forth, a deeper and broader measure of instruction in commercial and national economical matters than that provided by the various commercial schools. The special province of the commercial universities lies less in the mere acquisition of commercial-technical knowledge and attainments for immediate practical detailed application, than in the attempt to provide a general mental schooling for the higher branches of the commercial profession.

{206}

They are intended to awaken and develop the mental faculties of a merchant, to enable him to grasp the inner working and meaning of national and international economy, and to understand and judge its causes and results, its temporary and permanent phenomena; as far as commercial officials are concerned they are intended to impart general knowledge and understanding of the economic conditions of commerce and industry with their manifold aims and requirements.

"This measure of university education (Akademische Bildung) is also intended to raise the social position of the mercantile profession, and to increase its political importance and influence in public life. Generally speaking the instruction is arranged to include the following subjects:—Political economy, commercial history and geography, commercial law in all its aspects, the organisation and management of commercial undertakings and their technical details, industrial law,

financial science, bank, exchange, monetary, and credit operations, State and administrative law, and so forth."

At the writing of Dr. Rose's report there were four of these commercial universities. The oldest, at Leipsic and Aix, were founded in 1898, the former in connection with the Leipsic University, the latter connected with the Aix Technical University. The other two, at Frankfort-on-the-Main and at Cologne, were opened in 1901. The Frankfort University, which bears also the name of "Academy of Social and Commercial Science," and the Cologne University, are both independently organized. "The initiative for the foundation of the commercial universities," says Dr. Rose, "has been taken by Chambers of Commerce and municipalities, and not by the governments of the German States. The latter, however, are now becoming aware of the importance of the movement. For the present their action is limited to the supervision exercised by the Ministers of Education and Industry and Commerce. ...

"The foundation of the commercial universities has brought forward many opponents, who not only deny their utility but consider them actually harmful, because the persons they instruct become too old before they engage in practical business work. ... The extreme opponents go further and deny that a commercial university is able to train practical business men, and assert that this can only be done by close and continual contact with actual business life, and that the acquisition of too much theoretical knowledge injures the practical faculties. ...

"The whole opposition to the commercial universities seems to be based upon a narrow-minded and vague idea of the part they are destined to play in the future. ... Unless industrial and commercial life in the future is to degenerate wholly into one fierce and relentless struggle for one-sided aggrandisement, to the detriment of other members of the social body, ample opportunities for the thorough comprehension of the social and

economic conditions of the present day must be provided."

EDUCATION: Germany: A. D. 1906.

The Language Question In the Polish Provinces.

"Strike" of school children.

See (in this Volume)

GERMANY: A. D. 1906-1907.

EDUCATION: INDIA:

A recent report of its schools and colleges.

See (in this Volume)

INDIA: A. D. 1907-1909.

EDUCATION: INDIA: A. D. 1908.

American Mission Schools.

"Increasing interest is now being concentrated on Burma and India, where an illiterate population seems to need far more education than has yet been provided by Great Britain. In Burma the Baptists play the leading role, educating no less than twenty-four thousand pupils. In India, however, the Methodists lead, with a record of over thirty-seven thousand pupils. They have two colleges at Lucknow. The Baptists have a college at Ongole, and have about fifteen thousand pupils in their schools. The Congregationalists have a college at Madura, and have also about fifteen thousand pupils in India, added to their total of ten thousand in Ceylon. The Presbyterians have a college at Lahore and one at Allahabad, and are educating about ten thousand pupils in the Empire."

American Schools Abroad
(The Outlook, May 2, 1908).

EDUCATION: International Interchanges:

Of Professors.

Of Students.

Of Teachers' visits.

A fund provided by Mr. James Hazen Hyde, of New York, enabled Harvard University, in 1904, to accept an invitation from the Sorbonne, at Paris, to send one of its professors to give a course of lectures at that ancient institution of learning, on subjects relating to the United States. Professor Barrett Wendell was chosen for the pleasant mission, and has been followed by others in succeeding years, who have given courses in various French universities, while the compliment has been returned, in lecturing visits from a number of the most distinguished men of letters and learning in France.

This opened what seems to have become an established and widening system of lecturing interchanges between American and European Universities, tending greatly to promote better acquaintance between nations and better understanding of each other. At about the time, or soon after, the mission of Professor Wendell to Paris, arrangements were made for a similar interchange between Harvard and the University of Berlin. In a communication to ***The Outlook*** of February 18, 1905, Professor Kuno Francke, Curator of the Germanic Museum at Harvard University, gave an account of the circumstances which led to this latter. In March, 1901, as he relates, there were conferences in Berlin with Dr. Althoff, Commissioner-General of the Prussian Universities, and with other Prussian officials of eminence, having for their object the promotion of the Germanic Museum. "The upshot of these conferences," said the Professor, "was the draft of a provisional agreement between the Prussian Government and Harvard University, according to which for a period of five successive years an exchange of professors between Harvard and Berlin University was to be instituted, in such a manner that every year one member of each of the two institutions would enter for at least three months the regular teaching staff of the other institution, it being understood that in each case

the visiting member represent subjects or methods distinctly peculiar to his country.

{207}

This scheme, which met with the hearty support of President Eliot, was discussed and approved a year later by the Harvard Faculty, and reached its consummation a few months ago, [1904] when, through the intercession of Professor Harnack, an official proposition embodying it was made by the Prussian Government to the Harvard Corporation, and adopted by the same. It is most fortunate that the German Emperor, with his quick grasp of international relations and his deep sympathy for the American people, has now given to this whole subject a much wider scope by proposing to extend the exchange of professors to other universities in America and Germany; for it seems as though such a measure could not fail to open the way toward a veritable fraternization of the moral, intellectual, and industrial leaders of both nations."

In the latter part of 1905, a Theodore Roosevelt Professorship of American History and Institutions, in the University of Berlin, was endowed with the sum of \$50,000 by Mr. James Speyer, of New York, the endowment being placed in the hands of the trustees of Columbia University. The plan of this professorship had been arranged with the German Emperor by President Butler, of Columbia, at an interview in the previous summer. Nominations to it would be made by the trustees of Columbia University, subject to confirmation by the Prussian Ministry of Education and to the Emperor's sanction; each incumbent to hold the office for one year, and the incumbents to be so chosen that in successive years the field of American history, constitutional and administrative law, economic and sociological problems and movements, education, contributions to science, technology, the arts and literature, be presented with some fullness; the professorship to be filled by members of any American institution of learning, or by scholars not connected with academic institutions. The scheme involved also the establishment at Columbia University of a similar

professorship of German history and institutions, the lectures in New York to be delivered in English. The first incumbent of the new professorship in Berlin was Dr. Burgess, Professor of Political Science in Columbia University, who began his work in Berlin in the winter of 1906-1907, and took as his subject American constitutional history.

A movement looking to the establishment of similar interchanges between American and Scandinavian Universities was inaugurated in 1908 by the "Scandinavian American Solidarity," a society organized in the United States that year, with Dr. Nicholas Murray Butler, of Columbia University, for its President, and Professor Carl Lorentzen, of New York University, for its Secretary. The Danes resident in New York City and Chicago arranged that President Butler of Columbia and President MacCracken of New York University should each give lectures at the University of Copenhagen that year, and raised the necessary funds. The lectures were given at Christiania, as well as at Copenhagen, and appear to have aroused a widespread interest. Norwegian and Swedish Universities and the University of Helsingfors, in Finland, have signified a wish to participate in the interchange, and it is more than likely to become permanently arranged.

An educational interchange of a different character, but equally important, was instituted in 1906 by Mr. Alfred Mosely, an English gentleman of great wealth, who invited five hundred English, Scotch, and Irish teachers to visit and inspect American schools at his expense. Between November, 1906 and March, 1907, they came in parties of twenty-five, some remaining one month in the country, some two, and some even more, visiting many parts of it and all descriptions of its schools. They were selected by an advisory committee in London, which aimed to have them fully representative of the men and women who are engaged in the work of the British and Irish schools.

A return visit of some hundreds of American teachers to Great Britain and Ireland, in similar parties, under the auspices of the National Civic Federation, was made in the fall of 1908. The schools of both countries gained, beyond question, from what each had to offer of suggestion to the other.

The organization of a "new educational movement to provide for the interchange of University students among the English-speaking peoples" was announced in England in June, 1909. "The object," it was stated, "is to provide opportunities for as many as possible of the educated youth of the United Kingdom, Canada, and the United States (who, it is reasonable to suppose, will become leaders in thought, action, civic and national government in the future), to obtain some real insight into the life, customs, and progress of other nations at a time when their own opinions are forming, with a **minimum** of inconvenience to their academic work and the least possible expense."

A great number of the most distinguished men of the time in British public and professional life were listed among the officers and committee-members of the organization, with Lord Strathcona as President for the United Kingdom. As set forth in the prospectus of the society, "the additional objects of the movement are to increase the value and efficiency of, as well as to extend, present University training by the provision of certain Travelling Scholarships for practical observation in other countries under suitable guidance. These scholarships will enable those students to benefit who might otherwise be unable to do so through financial restrictions. It also enables the administration to exercise greater power of direction in the form the travel is to take. In addition to academic qualifications, the selected candidate should be what is popularly known as an 'all round' man; the selection to be along the lines of the Rhodes Scholarships. ...

"To afford technical and industrial students facilities to

examine into questions of particular interest to them in manufactures, &c., by observation in other countries and by providing them with introductions to leaders in industrial activity.

"To promote interest in travel as an educational factor among the authorities of Universities, with a view to the possibility of some kind of such training being included in the regular curricula.

"To promote interest in other Universities, their aims and student life, the compulsory physical training, and methods of working their ways through college, for example, being valuable points for investigation.

"To promote international interchange for academic work among English-speaking Universities. ...

{208}

"It is proposed to establish two students' travelling bureaux, one in New York and one in London; an American secretary (resident in New York) and a British secretary (resident in London), both of whom shall be college men appointed to afford every facility to any graduate or undergraduate of any University who wishes to visit the United States, Canada, or the United Kingdom for the purpose of obtaining an insight into the student, national, and industrial life of those countries."

Further announcements of the plans of the organization were made in November, including the following:

"It should be pointed out that, although the scholarships proper will be reserved for undergraduates of the Universities who are already midway through their course, the provision of scholarships by no means defines the scope of the movement.

The bureau will afford facilities to all *bona fide* students—whether dons, scholars, or commoners—who wish to gain a practical insight into the work and life of other portions of the world.

"The travelling students will have the advantage of reduced rates of travel; of the special information which the bureau will be able to afford; and of the privilege of being brought as far as possible into contact with the actualities of those countries to which they go, whether persons, places, or institutions. ...

"The method of election to the scholarships, which it is purposed shall number not less than 28 for each year of the experimental triennium—14 in the United Kingdom, ten in the United States, and four in Canada—will be along the lines of the Rhodes scholarships. The candidate, it is stated, shall, as far as possible, be what is popularly known as an all-round man, who plays a part in his college life and whose character makes him popular."

EDUCATION: Ireland: A. D. 1909.

Organization of the two new Irish Universities.

On the 1st day of October, 1909, the two Universities created by the Irish Universities Act of 1908 came into existence.

"That day also was fixed for the dissolution of the Royal University of Ireland, the duties of which are now to be distributed between the new National University in Dublin and Queen's University, Belfast. Circumstances, however, have given the Royal University a short reprieve. It cannot be dissolved until the autumn degrees of the present year have been conferred. These degrees will be given as the result of examinations which are now in progress, and it is probable that the University's last public function will be a conferring of degrees on the last Friday in October. It will cease to exist in the first or second week of November. ...

"The National University itself consists of a Senate and officers with large powers but with no local habitation. The University has its concrete embodiment in the new University Colleges, formerly Queen's Colleges, at Cork and Galway. University College, Dublin, is so far only concrete in the sense that its governing body has been called into existence. At the present time it has no teaching and no college buildings. The former of these wants will be supplied almost immediately. The University Commissioners will meet early next month to appoint a teaching staff, and the college will be available for students at the beginning of November. As regards staffs, the Dublin College is differently situated from those at Cork and Galway. For the latter colleges teaching staffs exist ready made in the staffs of the old Queen's Colleges, which are to be taken over in accordance with the provisions of the Act. ...

"Nothing has yet been done in connexion with the buildings of the new college in Dublin, though various sites have been suggested, including that of the Royal Hospital at Kilmainham. ... The cases of Queen's University, Belfast, and of the University Colleges at Cork and Galway present no difficulties. These institutions will have teaching staffs within a couple of weeks, and all their buildings and classrooms are in going order.

"The agitation of the Gaelic League in favour of the compulsory teaching of Irish in the National University is vigorously maintained. It is most improbable that the Senate will yield to this agitation; and the result of their firmness will be, if the league fulfils its threats, a rather serious boycott of the University."

***Dublin Correspondent London Times,
September 30, 1909.***

An Associated Press despatch from Dublin, October 24, announced that "among the appointments to the new National University of Ireland are Dr. Douglas Hyde, president of the Gaelic League, as professor of modern Gaelic. Dr. Henebry, formerly of Washington, D. C., has been appointed to the professorship of the Irish language in the University College, Cork."

EDUCATION: KOREA:

American Mission Schools.

"In Korea the Presbyterians have the strongest representation of any religious denomination, with over three hundred schools; and, what is still more striking, practically every one of these schools is self-supporting. The Methodists follow with over a hundred schools and over forty-two hundred pupils."

The Outlook,
May 2, 1908.

EDUCATION: NETHERLANDS: A. D. 1905.

New Education Law, an issue in the elections.

See (in this Volume)
NETHERLANDS: A. D. 1905-1909.

EDUCATION: PORTO RICO: A. D. 1906.

Schools as seen by President Roosevelt.

See (in this Volume)
PORTO RICO: A. D. 1906.

EDUCATION: PRUSSIA: A. D. 1904.

Denominational Education restored.

A resolution adopted by the Prussian Chamber of Deputies, in

May, 1904, restored the denominational school system which the "May Laws" of the Kulturkampf, in 1873 and after had abolished.

See (in Volume II. of this work)
GERMANY: A. D. 1873-1887.

Under those laws the schools were common to children of all religious beliefs; under the new system they became either Protestant or Roman Catholic according to the faith of the majority of their pupils.

EDUCATION: RHODES SCHOLARSHIPS:

The Will of Cecil John Rhodes, providing Scholarships at Oxford for students from the British Colonies and the United States.

The late Cecil John Rhodes, who played an eminent part in the development of South Africa and in the extension of the British dominion in that portion of the world, died on the 26th of March, 1902, leaving a will which contained the following directions for the use to be made of one large part of the great fortune he had acquired:

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1904)

"Whereas I consider that the education of young colonists at one of the universities in the United Kingdom is of great advantage to them for giving breadth to their views, for their instruction in life and manners, and for instilling into their minds the advantage to the colonies as well as to the United Kingdom of the retention of the unity of the Empire; and

{209}

"Whereas in the case of young colonists studying at a

university in the United Kingdom I attach very great importance to the university having a residential system, such as is in force at the universities of Oxford and Cambridge; for without it those students are at the most critical period of their lives left without any supervision; and

"Whereas there are at the present time fifty or more students from South Africa studying at the University of Edinburgh, many of whom are attracted there by its excellent medical school, and I should like to establish some of the scholarships hereinafter mentioned in that university but owing to its not having such a residential system as aforesaid I feel obliged to refrain from doing so; and

"Whereas my own university, the University of Oxford, has such a system, and I suggest that it should try and extend its scope so as if possible to make its medical school at least as good as that at the University of Edinburgh; and

"Whereas I also desire to encourage and foster an appreciation of the advantages which I implicitly believe will result from the union of the English-speaking people throughout the world and to encourage in the students from the United States of North America who will benefit from the American scholarships to be established for the reason above given at the University of Oxford under this my will an attachment to the country from which they have sprung, but without, I hope, withdrawing them or their sympathies from the land of their adoption or birth.

"Now, therefore, I direct my trustees as soon as may be after my death and either simultaneously or gradually as they shall find convenient, and if gradually, then in such order as they shall think fit, to establish for male students the scholarships hereinafter directed to be established, each of which shall be of the yearly value of £300 and be tenable at any college in the University of Oxford for three consecutive academical years.

"I direct my trustees to establish certain scholarships and these scholarships I sometimes hereinafter refer to as 'the colonial scholarships.'

"The appropriation of the colonial scholarships and the numbers to be annually filled up shall be in accordance with the following table;

[Transcribers note: "Do." probably means "ditto".
<https://www.acronymfinder.com/DO.html>]

Total from number scholarships to appropriated. be filled up in	To be tenable by students of or Number of
each year.	

9	Rhodesia
3 and no more	

3	The South African College School
in	
	the colony of the Cape of Good
Hope	1 and no more

3	The Stellenbosch College School,
Do.	
	in the same colony

- 3
Do. The Diocesan College School of
Rondebosch, in the same colony
- 3
Do. St. Andrews College School,
Grahamstown
- 3
Do. The colony of Natal,
in the same colony
- 3
Do. The colony of New South Wales
- 3
Do. The colony of Victoria
- 3
Do. The colony of South Australia
- 3
Do. The colony of Queensland
- 3
Do. The colony of Western Australia
- 3
Do. The colony of Tasmania
- 3 The colony of New Zealand

Do .

3 The Province of Ontario,
Do . in the Dominion of Canada

3 The Province of Quebec,
Do . in the Dominion of Canada

3 The colony or island of
Do . Newfoundland and its dependencies

3 The colony or islands of the
Bermudas Do .

3 The colony or island of Jamaica
Do .

"I further direct my trustees to establish additional
scholarships sufficient in number for the appropriation in the
next following clause hereof directed, and those scholarships
I sometimes hereinafter refer to as 'the American
scholarships.'

"I appropriate two of the American scholarships to each of the
present States and Territories of the United States of North
America, provided that if any of the said Territories shall in
my lifetime be admitted as a State the scholarships
appropriated to such Territory shall be appropriated to such
State, and that my trustees may in their uncontrolled
discretion withhold for such time as they shall think fit the
appropriation of scholarships to any Territory.

"I direct that of the two scholarships appropriated to a State or Territory not more than one shall be filled up in any year, so that at no time shall more than two scholarships be held for the same State or Territory.

"The scholarships shall be paid only out of income, and in event at any time of income being insufficient for payment in full of all the scholarships for the time being payable I direct that (without prejudice to the vested interests of holders for the time being of scholarships) the following order of priority shall regulate the payment of the scholarships:

"(I) First, the scholarships of students of or from Rhodesia shall be paid;

"(II) Secondly, the scholarships of students from the said South African Stellenbosch Rondebosch and St. Andrews schools shall be paid;

"(III) Thirdly, the remainder of the colonial scholarships shall be paid, and if there shall not be sufficient income for the purpose such scholarships shall abate proportionately; and

"(IV) Fourthly, the American scholarships shall be paid, and if there shall not be sufficient income for the purpose such scholarships shall abate proportionately.

{210}

"My desire being that the students who shall be elected to the scholarships shall not be merely bookworms, I direct that in the election of a student to a scholarship regard shall be had to

(I) his literary and scholastic attainments;

(II) his fondness of and success in manly outdoor sports, such as cricket, football, and the like;

(III) his qualities of manhood, truth, courage, devotion to duty, sympathy for the protection of the weak, kindliness, unselfishness, and fellowship, and

(IV) his exhibition during school days of moral force of character and of instincts to lead and to take an interest in his schoolmates, for those latter attributes will be likely in after life to guide him to esteem the performance of public duties as his highest aim. As mere suggestions for the guidance of those who will have the choice of students for the scholarships, I record that

(I) my ideal qualified student would combine these four qualifications in the proportions of three-tenths for the first, two-tenths for the second, three-tenths for the third, and two-tenths for the fourth qualification, so that according to my ideas if the maximum number of marks for any scholarship were 200 they would be apportioned as follows: Sixty to each of the first and third qualifications, and 40 to each of the second and fourth qualifications.

(II) The marks for the several qualifications would be awarded independently, as follows (that is to say): The marks for the first qualification by examination, for the second and third qualifications, respectively, by ballot by the fellow-students of the candidates, and for the fourth qualification by the head master of the candidate's school, and

(III) the results of the awards (that is to say the marks obtained by each candidate for each qualification) would be sent as soon as possible for consideration to the trustees or to some person or persons appointed to receive the same, and the person or persons so appointed would ascertain by

averaging the marks in blocks of 20 marks each of all candidates the best ideal qualified students.

"No student shall be qualified or disqualified for election to a scholarship on account of his race or religious opinions.

"Except in the cases of the four schools hereinbefore mentioned, the election to scholarships shall be by the trustees after such (if any) consultation as they shall think fit with the minister having the control of education in such colony, province, State, or Territory.

" A qualified student who has been elected as aforesaid shall within six calendar months after his election, or as soon thereafter as he can be admitted into residence or within such extended time as my trustees shall allow, commence residence as an undergraduate at some college in the University of Oxford.

"The scholarships shall be payable to him from the time when he shall commence such residence.

"28. I desire that the scholars holding the scholarships shall be distributed among the colleges of the University of Oxford and not resort in undue numbers to one or more colleges only.

"29. Notwithstanding anything hereinbefore contained, my trustees may in their uncontrolled discretion suspend for such time as they shall think fit or remove any scholar from his scholarship.

"30. My trustees may from time to time make, vary, and repeal regulations either general or affecting specified scholarship only with regard to all or any of the following matters, that is to say:

"(I) The election, whether after examination or otherwise, of

qualified students to the scholarships, or any of them, and the method, whether by examination or otherwise, in which their qualifications are to be ascertained;

"(II) The tenure of the scholarships by scholars;

"(III) The suspension and removal of scholars from their scholarships;

"(IV) The method and times of payment of the scholarships;

"(V) The method of giving effect to my wish expressed in clause 28 hereof; and

"(VI) Any and every other matter with regard to the scholarships, or any of them, with regard to which they shall consider regulations necessary or desirable.

"31. My trustees may from time to time authorize regulations with regard to the election, whether after examination or otherwise, of qualified students for scholarships and to the method, whether by examination or otherwise, in which their qualifications are to be ascertained to be made:

"(I) By a school in respect of the scholarships tenable by its students; and

"(II) By the minister aforesaid of a colony, province, State, or Territory in respect of the scholarships tenable by students from such colony, province, State or Territory.

"32. Regulations made under the last preceding clause hereof, if and when approved of, and not before, by my trustees, shall be equivalent in all respects to regulations made by my trustees.

"No regulations made under clause 30 or made and approved of

under clauses 31 and 32 hereof shall be inconsistent with any of the provisions herein contained.

"In order that the scholars past and present may have opportunities of meeting and discussing their experiences and prospects, I desire that my trustees shall annually give a dinner to the past and present scholars able and willing to attend, at which I hope my trustees, or some of them, will be able to be present, and to which they will, I hope, from time to time invite as guests persons who have shown sympathy with the views expressed by me in this, my will."

The trustees are the
Earl of Rosebery,
Earl Grey,
Lord Milner,
Mr. Alfred Beit,
Dr. Leander Starr Jameson,
Mr. Lewis Loyd Mitchell, and
Mr. Bouchier Francis Hawksley.

EDUCATION: RUSSIA: A. D. 1909.

Great Educational Projects before the Duma.
Primary school-houses by the hundred thousand,
and Compulsory Education.
Increased opening to Jews.

A telegram from St. Petersburg, February 16, 1909, announced that the Ministry of Education had introduced that day a bill before the Duma providing for a building fund for the erection of 148,179 new primary schools throughout the empire within ten years. These schools are to be built and maintained by the provincial authorities on government subsidy. The same despatch reported that a statute providing for general compulsory education would soon be discussed in the Duma.

On the 5th of October it was announced that the Tsar had sanctioned a resolution of the Council of Ministers permitting the admission of an increased percentage of Jews into the secondary schools of the Crown. In the capitals 5 per cent. of the total number of scholars may be Jews, in other parts of the Empire 10 per cent., and in the special Jewish settlements 15 percent.

EDUCATION: SCOTLAND: A. D. 1901.

Mr. Carnegie's great gift to the Universities and their students.

The first of Mr. Andrew Carnegie's great gifts to other institutions of education than the public libraries, which he has assisted in such numbers, was conferred on the universities of Scotland, his native country, in 1901. It was a gift of \$10,000,000 (£2,000,000), placed in the hands of trustees for two purposes, namely, to improve and expand the teaching power of the universities, on one hand, and to put their teaching, on the other hand, more within the reach of all the young in Scotland who craved it. It was said to have been the original wish of Mr. Carnegie to make the tuition of the universities free; but he found that it would be wiser to strengthen them for their work, leave it subject to proper fees, and provide for an allowance of pecuniary assistance to students, in the discretion of the trustees. The application of the gift was so arranged, one-half of the net annual income from the great fund being appropriated to buildings, equipments, endowments of professorships and lectureships, and the like uses for the betterment of the university work.

There were fears at first that the effect of so much easing of the attainment of a university education might be injurious to the spirit and character of the students who accepted the helping hand; but seven years of experience, under the working of the gift, do not seem to have justified the fear. In those

seven years over 8000 of the Scottish young people had the benefit of Mr. Carnegie's help to a college training, and the trustees of the Fund, in their annual report of 1909, pronounced the result good. "In the opinion of such men as Lord Rosebery, Lord Elgin, Lord Balfour of Burleigh, Mr. Balfour, and Mr. Haldane, who are all helping to administer Mr. Carnegie's charity," says a London correspondent of the New York *Evening Post*, "Scotland has much to thank him for."

EDUCATION: TURKEY AND THE NEAR EAST: American Mission Schools.

"At present [1909] there are about twenty-five thousand native students in American schools in this country. America can boast to-day that she has, in Turkey, nine colleges, five theological seminaries, fifty-seven boarding and high schools, and 348 public schools. And, if we accumulate the work of seventy-five years, it is a simple matter to understand how many thousands have been educated in American ways and with the American spirit.

"Missionaries came to this country to spread Protestant Christianity among the Moslems. They failed in that. The Mohammedan government was against them. They tried to make Christian Greeks, Christian Armenians, Protestants. This did not result in a marked success, but their schools, which they opened as a medium of spreading religion, were eagerly sought by young men and young girls of every race. Armenians form the majority in this country of those who have received an American education. Bulgarians and Greeks come next.

"Many I have met who have been thoroughly educated in missionary institutions. Generally they are not Protestants, neither much religiously inclined. But they are moral, independent, and broad-minded.

"The Turkish mission, as it is written about in America, is not, in fact, areal Turkish mission; not a Moslem has been Christianized; not a single Turk is a member of mission communities; yet native Christians have been widely helped by the opportunity offered for education and the growth of a spirit of civilization and humanity.

"Year after year young men graduated from American institutions in Turkey to go forward among their compatriots as teachers, journalists, and public officers. The building up of brave little Bulgaria is the work of graduates of Robert College of Constantinople. Stamboulloff, who made Bulgaria what it is to-day, was an alumnus of the same institution. Among the Armenian revolutionary leaders, who worked hand-in-hand with the Young Turks to bring about a political change in Turkey, boys of Robert College and young men educated in American universities are prominent. I know young girls, graduates of the American College at Scutari, who took active part in revolutionary work during the despotic days of the old regime; and even joined in the conspiracy which led to the throwing of a bomb at the Sultan during the Selamlık ceremony a few years ago. ... There are a number of Turkish girls to-day at the college in Scutari, and it is a pleasure to any one to see Turkish women discussing in fluent English politics, economics, and history."

***Special Correspondence of the New York Evening Post,
Constantinople, March 20, 1909.***

At Beirut is the Syrian Protestant College, under Presbyterian control, one of the most enlightened institutions abroad. Euphrates College at Harput in Asia Minor, with a thousand students, is a Congregational institution. At Tarsus, the Apostle Paul's home, is, appropriately enough, St. Paul's Institute. Throughout Turkey the Congregationalists have over four hundred schools, with over twenty-one thousand pupils. In Syria the Presbyterians maintain about a hundred schools. The

Presbyterians (North) have no work in Egypt, but the United Presbyterians are educating there no less than fifteen thousand pupils, a total the more surprising when we recall that the Government schools in Egypt have only eighteen thousand pupils. More than four thousand have received instruction at Assiut College, the center of the United Presbyterian work. ... As in Persia, the Presbyterians are the strongest denominational force. Besides Urumia College, they have about a hundred and twenty-five schools throughout the country."

American Schools Abroad
(The Outlook, May 2, 1908).

EDUCATION: THE INFLUENCE OF ROBERT COLLEGE.

"Two years ago one of the subjects given out for a thesis in the Russian Theological Seminary at Kiev was, 'The Influence of Robert College in the Development of Bulgaria.' Russia has found the influence of that College there a factor which she has had to take into serious account; indeed, it has been said by Russian as well as by high Turkish officials that Robert College really created Bulgaria. Its influence has also been abundantly recognized throughout Europe and America. In Bulgaria itself the first National Assembly, which met to adopt a constitution and to choose a Prince, passed a resolution expressing the gratitude of the new-born nation to the College. Prince Alexander conferred a high decoration on the President of the College to express his personal appreciation, and last summer Prince Ferdinand did the same.

{212}

Robert College has not only been the backbone of Bulgaria; it has been the greatest civilizing power in the Turkish Empire. Sir William White, who knew that Empire better than has any recent British ambassador, once remarked that the College had accomplished more for the good of the Turks than had all the representatives of the British Government; and Professor

Ramsey, of St. Andrews, who has spent many years in exploring Asia Minor, says:

"‘I have come in contact with men educated in Robert College in widely separate parts of the country, men of diverse nationalities and different forms of religion—Greek, Armenian, and Protestant—and have everywhere been struck with the marvelous way in which a certain uniform type, direct, simple, honest, and lofty in tone, has been impressed upon them. Some had more of it, some less. But all had it to a certain degree, and it is diametrically opposite to the type produced by growth under the ordinary conditions of Turkish life.’

"The College is not organized for the purpose of missionary propaganda. It is not denominational. It is Christian in the broad sense in which Princeton, Yale and Harvard are Christian Colleges. In its faculty it has a Mohammedan Professor of Turkish language and literature, and an orthodox Greek Professor of Greek language and literature. ... It draws students not only from Turkey, but also from Greece, Bulgaria, Rumania and Russia, and has already educated nearly twenty-six hundred. If the demands upon the College continue to increase in the future as in the past, its endowment will have to be doubled. Occupying one of the most beautiful sites on the Bosphorus, the College has at present five buildings, besides six houses for professors, a teaching staff of twelve professors and twenty-five other instructors."

The Outlook, January 21, 1905.

Robert College was founded at Constantinople in 1863 by James H. and William B. Dwight, sons of an American missionary to Turkey, the Reverend Harrison G. O. Dwight. It was named after Christopher R. Robert, of New York, its main supporter, whose gifts to it first and last amounted to \$450,000. Its first President was the Reverend Dr. Cyrus Hamlin, who presided over it until 1877, when he resigned, and was succeeded by the

Reverend Dr. George Washburn.

In November, 1909, it received a bequest of \$1,500,000, from the late John Stewart Kennedy, of New York, and its work will be greatly expanded.

EDUCATION: TURKEY: A. D. 1909.
Constitutional Amendment.

See (in this Volume)
TURKEY: A. D. 1909 (MAY-DECEMBER).

EDUCATION: UNITED STATES:
The Trade Unions as a factor in the Assimilation and Education of the foreign-born.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES.

EDUCATION: A. D. 1898-1909.
The Annual Conferences for Education in the South.

Since 1898 a series of annual Conferences for Education in the South, inspired, organized, and sustained especially by the joint efforts of J. L. M. Curry and Robert C. Ogden, have been held in various Southern cities, with notable effect. At the twelfth of these conferences, in April, 1909, at Atlanta, Mr. Ogden, presiding, said in his address:

"This conference holds its place as a part of an educational renaissance. Its work can perhaps be definitely defined only at a single point. It exists primarily to impress upon the mind of the citizen, the people, the responsibility of the individual for educational conditions, to support the claim that every child in America, native or foreign born, is entitled to a good English education, that it is the duty of the State as representing the people to provide such

education, that in the words of the man that recruited me and pledged my service, such as it is, to this work, J. L. M. Curry, president of this conference in its second year, 'Ignorance Cures Nothing.' ...

"Aside from the first mentioned special influence this conference makes no direct claim save that it has by various agencies assisted in the promotion and development of many progressive educational ideas, and through the Southern Educational Board, to which it is both mother and child, has supplied methods and incidental support that have caused many latent forces to germinate, flourish, and bring forth abundant fruit that otherwise never could have existed. We simply have planted seed that eventually produced large harvests.

"I am told, and I think the statement is accurate, that during the last seven years the public appropriations for education in the States under the influence of the Southern Education Board have increased \$16,000,000 per annum. These figures are difficult of verification, but probably are greater than I have stated. We have had something to do with this result, how much may not be a subject for definite calculation. ...

"The twelve years that measure the life of the conference for education in the South have been years of great originality in the development of American education."

EDUCATION: A. D. 1901.

The Washington Memorial Institution.

"In almost every Government department and bureau at Washington, prolonged scientific investigations are continually carried on, in order that governmental action itself may be more intelligent and more efficient, and the general welfare of the people promoted. ... While the Congress carries on this work for governmental purposes only, it indicated as long ago as 1892, in a joint resolution approved

April 12 of that year, that the Government's large collections illustrative of the various arts and sciences, and its facilities for scientific and literary research, were to be held accessible to the investigators and students of any institution of higher education then existing or thereafter established in the District of Columbia. By an almost unnoticed but most important provision incorporated in the general deficiency bill passed at the second session of the Fifty-sixth Congress, and approved March 3, 1901, the privileges given by the joint resolution of April 12, 1892, to investigators and students of institutions in the District of Columbia were extended to 'scientific investigators and to duly qualified individuals, students, and graduates of institutions of learning in the several States and Territories, as well as in the District of Columbia, under such rules and restrictions as the heads of the departments and bureaus mentioned may prescribe.

... The new opportunities created a new need, and that need is to be met by the Washington Memorial Institution, incorporated on May 17, 1901, and formally organized on June 3.

{213}

"The Washington Memorial Institution is the direct outcome of the activities of the Washington Academy of Sciences and of the George Washington Memorial Association, the latter body being an organization of women 'to aid in securing in the city of Washington, D. C., the increase of opportunities for higher education, as recommended by George Washington, the first President of the United States, in his various messages to Congress.' ... The plan has been worked out in consultation with representatives of the universities and other scientific bodies, and with their hearty cooperation and approval. It has the merits of simplicity and of not duplicating any existing form of educational effort." The Institution "will ascertain, year by year, just what the opportunities for students are at

Washington, and will publish them to the world; it will receive and enroll students who offer themselves, and direct them to the places which await them; it will record their work and its results, and, when requested, will certify these to any institution of learning. It will keep in touch with the universities, scientific schools, and colleges on the one hand, and with the departments and bureaus of the Government on the other. In this way it will, it may be hoped, promote the interests and the ideals of both."

***Nicholas Murray Butler,
The Washington Memorial Institution
(American Review of Reviews, July, 1901).***

EDUCATION: A. D. 1901-1909.
Changes at the Universities.

In October, 1901, on accepting a nomination to the mayoralty of New York City, President Seth Low, of Columbia University, resigned from that post, and Professor Nicholas Murray Butler became acting President until the following January, when he was elected to the Presidency by the unanimous vote of the trustees.

For the first time in its history, the University of Virginia—Jefferson's creation—received a President in April, 1905, when Dr. Edwin Anderson Alderman was inducted in office as its administrative head. The significance of the occurrence was expressed at the time by Professor William P. Trent, when he said: "The University of Virginia, so long, under its chairmen of the faculty, faithful to its founder's prejudices against the concentration of executive power in the hands of an individual, has been forced by pressure from within and from without to align itself with its sister universities in this essential feature of educational government, and in this fact many will see another step in the slow but certain nationalizing of the South, as well as an indication that in

the future the University of Virginia will be widely known as a national institution of high standing."

In the summer of 1902, President Francis L. Patton, who had been the successor of President McCosh at Princeton University, retired and was succeeded by Professor Woodrow Wilson, previously occupant of the chair of Jurisprudence and Politics since 1890.

The President who had organized the University of Chicago at its foundation, in 1891, and directed its successful development through fifteen years of a remarkable success, William Rainey Harper, died on the 10th of January, 1906, and was succeeded by Professor Harry Pratt Judson, previously at the head of the department of Political Science and Dean of the faculties of Arts, Literature, and Science.

President Henry Hopkins of Williams College retired in 1907 and was succeeded by Harry A. Garfield, eldest son of the former President of the United States, and lately Professor of Politics at Princeton University.

In October, 1908, President Charles W. Eliot of Harvard University made known his wish to retire in the following May from the office which he had filled with so much distinction for forty years. His resignation was accepted with profound regret, and he vacated the Presidency of the great University on the 19th of May, 1909. His successor, Professor Abbott Lawrence Lowell, taken from the chair of the Science of Government, in the Harvard faculty, had been elected in the preceding January. President Lowell was inaugurated with much ceremony on the 6th of October.

Dr. Richard C. Maclaurin was called from the department of physics in Columbia University, New York, to the presidency of the Massachusetts Institute of Technology, in November, 1908.

President Cyrus Northrup, of the University of Minnesota, announced in 1908 his resignation to take effect the following year.

A change in the Presidency of Dartmouth College took place in June, 1909, Dr. W. J. Tucker resigning because of ill health, and Professor Ernest Fox Nichols, formerly head of the department of physics at Dartmouth, and latterly occupying a chair at Columbia University, being elected to his place.

Having passed his eightieth year of life and the thirty-eighth of his administration of the University of Michigan, President James Burrill Angell was reluctantly permitted to retire from active service to the University at the close of the academic year in 1909. The acceptance of his resignation by the Regents of the University was accompanied, however, by the tender to him of the office of Chancellor, the duties to be such as "he may be willing and able to perform; the salary for such office to be \$4000 per year, with house rent, light and fuel, so long as he sees fit to occupy his present residence." Dean H. B. Hutchins, of the law department was made acting President.

EDUCATION: A. D. 1902.

Founding of the Carnegie Institution of Washington,
for Original Research.

See (in this Volume)

SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

EDUCATION: A. D. 1902-1909.

The General Education Board.

Its stupendous endowment by Mr. Rockefeller.

Its plans and operations.

The General Education Board, destined to become so great an educational power in the United States, had its birth on the 27th of February, 1902, at a meeting in New York to which Mr.

John D. Rockefeller had invited the following named gentlemen:

William H. Baldwin, Jr.,
Wallace Buttrick,
Hon. J. L. M. Curry,
Frederick T. Gates,
Daniel C. Gilman,
Morris K. Jessup,
Robert C. Ogden,
Walter H. Page,
George Foster Peabody,
John D. Rockefeller, Jr., and
Albert Shaw;
with Edward M. Shepard as counsel.

A conception of the general plan and purpose of the Board had been, it is said, in Mr. Rockefeller's thought for some time past, and his guests gave hearty approval to the project in which he asked them to join him. Then and there they became organized temporarily under the name still borne, Mr. Rockefeller pledging \$1,000,000 to the support of their work, which should specially be directed at the outset to the study and improvement of educational conditions in the Southern States.

{214}

Offices of the Board were opened in New York April 1, 1902. It was incorporated by Act of Congress on the 12th of January, 1903, at which time a considerable number of new members was added to the Board, chosen from the heads of important universities and colleges, North and South. The Board was now in active cooperation with the United States Department of Agriculture, whose work of scientific and systematic instruction in agriculture, by demonstration farms and otherwise, it found to be dealing with the most pressing of Southern needs. It found another field of useful cooperation, with Southern universities and colleges, in promotion of the founding and maintaining of high schools. Its main operations

were on these lines until the summer of 1905, when, on the 30th of June, Mr. Rockefeller expanded its forces immensely by adding \$10,000,000 to his original gift of \$1,000,000.

In ***The Independent*** of August 6, 1908, Mr. Wallace Buttrick, secretary of the Board, described the enlargement of undertakings which followed this increase of endowment, saying:

"The income of this large foundation for higher education enabled the board to extend its work throughout the whole country, as contemplated in its charter. Studies had already been made of the colleges in the Southern States, and such studies were at once made of the colleges in other parts of the United States. After such comprehensive study and the careful consideration of how best to aid in the development of an adequate system of colleges in all of the States of the Union, the board adopted the following principles as defining its general policy: To co-operate sympathetically and helpfully with the religious denominations; to choose the centers of wealth and population as the permanent pivots of an educational system; to mass its funds on endowments, securing in this work the largest possible local co-operation."

Less than two years later, on the 7th of February, 1907, Mr. Rockefeller nearly trebled his previous endowment by an enormous addition to the fund in the possession of the Board, announced in the following letter from his son, Mr. John D. Rockefeller, Jr.:

"My father authorizes me to say that on or before April 1st, 1907, he will give to the General Education Board income-bearing securities the present market value of which is about thirty-two million dollars (\$32,000,000), one-third to be added to the permanent endowment of the board; two-thirds to be applied to such specific objects within the corporate purposes of the board as either he or I may from time to time

direct, any remainder not so designated at the death of the survivor to be added also to the permanent endowment of the board."

Of what was being done by the Board with this stupendous fund Mr. Buttrick gave details in The Independent as follows:

"Conditional appropriations have been made to forty colleges, in the States of Maine, Massachusetts, Connecticut, New York, New Jersey, Pennsylvania, Virginia, North Carolina, South Carolina, Georgia, Alabama, Mississippi, Louisiana, Tennessee, Kentucky, Ohio, Indiana, Michigan, Illinois, Wisconsin, Minnesota, Iowa, Missouri, Kansas and Colorado.

"Twenty-five of these colleges have secured subscriptions for the supplemental sums required and but one has failed. The remaining fifteen colleges report satisfactory progress. The total amount thus appropriated by the board is \$2,437,500; the supplemental sums, when completed, will aggregate \$10,397,000.

"From the original \$1,000,000 gift to the board by Mr. Rockefeller appropriations have been made to schools in the South amounting to about \$700,000, one-half of which has gone to schools for the colored people. The high school propaganda and the agricultural demonstration work have also been supported from this fund.

"From the foregoing it will be seen that, in the Northern States, the board devotes itself exclusively to the promotion of higher education, having always in view the desirability of aiding such institutions as, taken together, will constitute an adequate system of higher education for each of the several States, thus seeking to correct and prevent duplication and waste and securing the highest efficiency.

"In the Southern States its work for colleges is similar to that done in the North, and, in addition, it seeks to promote

public high schools through the State universities and the State Department of Education, to promote elementary education (or common schools) by increasing the productive efficiency of rural life, and to aid in developing schools for the training of leaders among the colored people."

But Mr. Rockefeller was not yet at the end of his gifts to this great Foundation. On the 9th of July, 1909, the following announcement was published:

"John D. Rockefeller has raised the total of his contributions to the Rockefeller foundation of the general education board to \$53,000,000 by a gift of \$10,000,000 which will be passed to the credit of the board between now and August 1. He has gone farther than that and has intrusted to the membership of the board—as it may be constituted at some future day—the responsibility of distributing the principal of the fund among the educational institutions of the land if it shall be deemed advisable.

"Under the regulations at present obtaining, this power of final disposition would extend only to \$33,000,000, inasmuch as the board holds the other \$20,000,000 in trust with the power to dispose of the income, while Mr. Rockefeller and his son, John D. Rockefeller, Jr., retain the right to dispose of the principal during their lives. It was said to-day that it always has been Mr. Rockefeller's intention to make such a provision for the final disposition.

"In making the announcement to-day, Chairman Gates said that this large addition to the permanent funds of the board was contributed because the income of the present funds immediately available for appropriation had been exhausted and it was found necessary to have an additional income in order to meet the needs of 'present great importance.'

"He said the board made it a rule never to exceed the

immediately available income—which might amount to \$80,000 or \$90,000 a month—in its awards to the colleges and universities, that something like 300 applications had been received by the board beyond the number which it already had acted upon, which was large.

{215}

"Mr. Gates said that at the same meeting last Wednesday another communication had been received from Mr. Rockefeller, authorizing and empowering the board and its successors 'whenever, in their discretion, it should seem wise to distribute the principal of funds contributed by him to the board upon the affirmative vote of two-thirds of all those who shall at the time be members of the board.'"

EDUCATION: A. D. 1905-1908.

The Carnegie Foundation for the Advancement of Teaching.

After the founding of the Carnegie Institution, of Washington, Mr. Carnegie's next great gift to Education, made in 1905, was in the sum of \$10,000, 000, placed in the hands of trustees as a fund the income of which may be applied "to provide retiring pensions, without respect to race, sex, creed, or color, for the teachers of universities, colleges, and technical schools in the United States, the Dominion of Canada, and Newfoundland," and "to provide for the care and maintenance of the widows and families of the said teachers." The board of trustees chosen by Mr. Carnegie for the administration of the fund is made up of eminent educators from different parts of America, with Dr. Henry S. Pritchett called from the Presidency of the Massachusetts Institute of Technology to become its executive head. The board was organized in November, 1905, and in the following April it adopted a plan of administration which had been formulated meantime by a committee from its membership. It had then, by an Act of Congress, approved by the President, March 10, 1906, been

incorporated under the title of "The Carnegie Foundation for the Advancement of Teaching." Besides using the words quoted above, in description of the authorized purpose of the Foundation, the Act of Incorporation adds furthermore that it is "in general, to do and perform all things necessary to encourage, uphold, and dignify the profession of the teacher and the cause of higher education." It is a further provision of the Act that "retiring pensions shall be paid to such teachers only as are or have been connected with institutions not under control of a sect, or which do not require their trustees, their officers, faculties, or students (or a majority thereof), to belong to any specified sect, and which do not impose any theological test as a condition of entrance therein or of connection therewith."

As explained by President Pritchett in an article published soon after the organization of their board, the Trustees had three fundamental questions to determine: "First, What is a college? second, What constitutes denominational control? and, third, Should a private agency step in between the State and one of its institutions and establish a system of retiring allowances for university professors who are officers of the State?" "The term college is used to designate, in the United States, Canada, and Newfoundland, institutions varying so widely in entrance requirements, standards of instruction, and facilities for work that the term is no description of the character of the institution. Of the seven hundred and more institutions calling themselves colleges or universities, many are such in name only." To rule their present action the Trustees adopted the definition that is "now in use under the revised ordinances of the State of New York, and which reads as follows: 'An institution to be ranked as a college must have at least six professors giving their entire time to college and university work, a course of four full years in liberal arts and sciences, and should require for admission not less than the usual four years of academic or high school preparation, or its equivalent, in addition to the

pre-academic or grammar school studies.' The trustees will also require that an institution, to be ranked as a college and to be dealt with as a college officially, must have a productive endowment of not less than \$200,000."

As for the institutions to be excluded from the benefits of the retiring pension fund because of a sectarian connection the Trustees were confronted with a still more difficult question, since "a large majority of all the colleges of the country have a connection more or less strong with denominations." In the circumstances, no hard and fast rule of exclusion could be formulated; but, said President Pritchett, "it is evident that in many cases colleges must choose between the advantages of this gift and the benefits of a denominational connection."

So far as concerned State institutions, it was the original conclusion of the Board that "the States may fairly be expected to provide a retiring pension system for their own professors, and it is certainly questionable whether such wholesale action on the part of a private agency in the endowment of State institutions might not do them an injury rather than a kindness." Trustees and officers of the State Universities appealed from this view, and submitted to the Trustees cogent reasons why these institutions should participate in the distribution of the Fund. The Trustees replied that the Fund was not large enough for such an extension of its use. That objection, however, was soon removed by Mr. Carnegie, who made it known, in April, 1908, that he would have pleasure in adding \$5,000,000 to his original gift in order to furnish retiring allowances for all State Universities that may apply for them. The Carnegie Foundation is now being administered accordingly.

Retiring allowances are determined by the following rules of the Board:

"I. In reckoning the amount of the retiring allowance, the average salary for the last five years of active service shall be considered the active pay.

" II. Any person sixty-five years of age, and who has had not less than fifteen years of service as a professor, and who is at the same time a professor in an accepted institution, shall be entitled to an annual retiring allowance computed as follows:

(a) For an active pay of sixteen hundred dollars or less, an allowance of one thousand dollars, provided no retiring allowance shall exceed ninety per cent. of the active pay.

(b) For an active pay greater than sixteen hundred dollars the retiring allowance shall equal one thousand dollars, increased by fifty dollars for each one hundred dollars of active pay in excess of sixteen hundred dollars,

(c) No retiring allowance shall exceed three thousand dollars.

"III. Any person who has had a service of twenty-five years as a professor, and who is at the time a professor in an accepted institution, shall be entitled to a retiring allowance, computed as follows:

(a) For an active pay of sixteen hundred dollars or less, a retiring allowance of eight hundred dollars, provided that no retiring allowance shall exceed eighty per cent. of the active pay.

{216}

(b) For an active pay greater than sixteen hundred dollars the retiring allowance shall equal eight hundred

dollars, increased by forty dollars for each one hundred dollars of active pay in excess of sixteen hundred dollars,

(c) For each additional year of service above twenty-five, the retiring allowance shall be increased by one per cent. of the active pay.

(d) No retiring allowance shall exceed three thousand dollars.

"IV. Any person who has been for ten years the wife of a professor in actual service may receive during her widowhood one-half of the allowance to which her husband would have been entitled."

EDUCATION: A. D. 1906.

Change in the Headship of the Bureau of Education.

Dr. William Torrey Harris, after seventeen years of distinguished service as United States Commissioner of Education, accepted the first designation of a retirement pension that was made by the trustees of the Carnegie Foundation. Professor Elmer Ellsworth Brown, professor of the Theory and Practice of Teaching in the University of California, was appointed by the President to succeed him.

EDUCATION: A. D. 1906.

Celebration of the twenty-fifth anniversary of the founding of Tuskegee Institute.

The twenty-fifth anniversary of the founding of Tuskegee Normal and Industrial Institute, at Tuskegee, Alabama, by Booker T. Washington, was celebrated in April, 1906, and made the occasion of a notable gathering at Tuskegee of strong friends of the institution and its founder from all parts of the country. In

The North American Review of that month

Mr. Washington gave an interesting account of the rise of the Institute from insignificant beginnings, of the aims pursued in it and of the extent of their realization. It had sought to promote among the negroes of the South an education which, as he expressed it, "not only did not educate them out of sympathy with the masses of their people, but made them actively and practically interested in constructive methods and work among their people." Its students "are expected to be able to show the farmers how to buy land, to assist them by advice in getting out of debt, and to encourage them to cease mortgaging their crops and to take active interest in the economic development of their community."

This wise leader and true statesman of his race has devoted his life to the solving of the race-problem in the South on the principle stated by him in these words: "There is nothing for the negro to do but to remain where he is and struggle on and up. The whole philosophy of the negro question can be written in three words,—patience, persistence, virtue. The really helpful thing about the situation is that on the whole the negro has done, under the circumstances, the best he could."

Of the planting and growth of Tuskegee Institute he wrote: 'Starting in a shanty and a hen-house, with almost no property beyond a hoe and a blind mule, the school has grown up gradually, much as a town grows. We needed food for our tables; farming, therefore, was our first industry, started to meet this need. With the need for shelter for our students, courses in house-building and carpentry were added. Out of these, brick-making and brick masonry naturally grew. The increasing demand for buildings made further specialization in the industries necessary. Soon we found ourselves teaching tinsmithing, plastering, and painting. Classes in cooking were added, because we needed competent persons to prepare the

food. Courses in laundering, sewing, dining-room work, and nurse-training have been added to meet the actual needs of the school community. This process of specialization has continued as the school increased in numbers, and as the more varied wants of a larger community created a demand, and instruction is now given in thirty-seven industries."

At the end of its first twenty-five years of existence, the Institute has 1500 students; 156 officers, teachers, and employees; 86 buildings; and various ramifications for extensive work.

EDUCATION: A. D. 1906.

Segregation of Oriental children in the San Francisco schools.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

EDUCATION: A. D. 1907.

Large gift for Rudimentary Schools for Southern Negroes.

A fund of \$1,000,000 was created in the spring of 1907, by gift from Miss Anna T. Jeanes, to be devoted to rudimentary schools for Southern negroes. The fund is to be administered by Principals Frissell, of Hampton, and Booker T. Washington, of Tuskegee.

EDUCATION: A. D. 1907.

Re-dedication of the enlarged Carnegie Institute, at Pittsburg.

An account of the founding of the richly housed and equipped Carnegie Library at Pittsburg, opened in 1895, is given in Volume VI. of this work (see Libraries). To that fundamental institution Mr. Carnegie began soon to add auxiliaries, in technical schools, lecture hall, music hall, art galleries, and museum of science, until a great Institute, on which no less than \$18,000,000 had been expended and bestowed by the

founder was complete. A rededication of this splendid Carnegie Institute, in 1907, was made an impressive event by the presence of a remarkable number of distinguished guests, invited from Great Britain, Germany, France, Holland, Belgium, and the United States. The interesting exercises of the occasion were opened on the 10th of April and continued through three days.

EDUCATION: A. D. 1909.

Wanted, in Massachusetts:

The right leader for an Educational Revolution.

The State Board of Education in Massachusetts is said to have arrived, as a body, at the conviction, which has been taking possession of many minds in late years, that in the whole educational work of the present day, from primary school to university, "there is much time wasted in learning things of little help in after life, and failure to get the essential character-building"; that conditions are changed so greatly from what they were when the last great educational revolution was led in Massachusetts by Horace Mann, and others, that a new revolution is the imperative need of the day. Hence the State Board of Education is reported to be searching anxiously for a man to fill the lately created office of State Commissioner of Education, who is equal to a revolutionary undertaking. "He must be," says a recent Boston letter, "a broad man, of the right sort to realize the unusual opportunity open to-day." "There is no limit to the salary which the board may offer." "There has been no politics in the board, and there shall be none.

{217}

All that the Commissioner wants in the way of coöperation to carry out his views he will have." "The board feels that this is a crisis. If the right man can be found, the State's system will take a step forward toward a better practice, which shall remove the present dissatisfaction and the feeling that the public schools are not fitting children to be good producers

or citizens." This opening seems a great one for the right man, if he can be found.

EDUCATION: A. D. 1909.

Election of a woman to the Superintendency of the Chicago schools.

Mrs. Ella Flagg Young, elected Superintendent of the public schools of Chicago by the City's Board of Education, in July, 1909, is the first of her sex to occupy so important an administrative position. Her election is said to have been due entirely to her manifest superiority in qualification over other suggested candidates. The school system she will administer is second only in magnitude to that of the City of New York.

EDUCATION: A. D. 1910.

Gift to Yale University by Mrs. Sage.

The following is announced from New Haven on the 10th of January, 1910:

"The recent gift of \$650,000 by Mrs. Russell Sage of New York city for the purchase of the Hillhouse property and its transfer free of encumbrance to Yale University releases a corresponding amount without restriction for the use of the university corporation. Important meetings will be held this week, one by the board of Sheffield Scientific School trustees and the other a special meeting of the Yale Corporation to act upon the disposition of the funds released by the Sage gift. It is generally understood that the plan proposed is the erection upon the Hillhouse property of a large biological laboratory, and perhaps the appointment in connection with it of a university professor in biology upon a new foundation."

-----EDUCATION: End-----

EDWARD VII., King of Great Britain, &c.:
Proclamation of additional titles.

See (in this Volume)
ENGLAND: A. D. 1901 (NOVEMBER).

EDWARD VII., King of Great Britain, &c.:
His illness and deferred Coronation.

See (in this Volume)
ENGLAND: A. D. 1902 (JUNE-AUGUST).

EDWARD VII., King of Great Britain, &c.:
His agency in bringing about the Entente Cordiale between
Great Britain and France.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

EDWARD VII., King of Great Britain, &c.:
His influence as a diplomatist.

See (in this Volume)
ENGLAND: A. D. 1908.

EDWARD VII., King of Great Britain, &c.:
His Death after a brief illness.
Succession of his son, George V.

See (in this Volume)
ENGLAND: A. D. 1910 (MAY).

EGYPT: A. D. 1901-1905.
The founding of schools for girls.
Training of native teachers.

See (in this Volume)

EDUCATION: EGYPT.

EGYPT: A. D. 1902 (DECEMBER).

Completion of the Assuan Dam.

The great Assuan Dam, to control the waters of the Nile, was opened with formal ceremony on the 10th of December, 1902, in the presence of the Duke and Duchess of Connaught, the Khedive, Lord and Lady Cromer, and other distinguished personages. Earlier in the year the value of this important work of engineering had been enhanced by a treaty with the Emperor of Abyssinia or Ethiopia, which forbids constructions on the upper waters of the Nile, within the Abyssinian territory, which would arrest the flow of their waters.

See (in this Volume)

ABYSSINIA: A. D. 1902.

EGYPT: A. D. 1904.

Declarations of England and France concerning Egypt in the Agreements of the Entente of 1904.

Explanatory despatch.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

EGYPT: A. D. 1905-1906.

Pan-Islamic preaching.

Pro-Turkish movement.

Turkish encroachments on the Sinai frontier.

The Tabah incident.

British fleet at Phalerum.

British garrisons reinforced.

"Whether ordered by the Sultan or the result of an instinctive religious wave, anew and definite crusade began to affect Egypt in the summer of 1905. Preachers appeared mysteriously

in Cairo and spread rapidly through the country, giving a new and stricter interpretation to texts from the Koran, and preaching in strong terms the wickedness of obeying the infidel. These preachers mixed with the people in their houses and cafes, and in the infinite leisure of a prosperous Oriental country doubtless found no lack of occasion for instilling their new doctrines. Then the Arabic native Press began to preach the same lesson, applying it specially to the Macedonian crisis and the piteous plight of the harassed Sultan. A new spirit came suddenly into political controversy. Any native defender of British rule was marked as a 'bad Moslem,' or 'a traitor to Egypt.' Argument was impossible; for any doubt of the Sultan was simply impiety. So the work went on bravely through the summer and autumn of 1905, while the British authorities looked on in surprise and perplexity. Lonely residents up country began to notice a change in the tone of the people. They felt the under-swell of a new and mysterious movement of religious feeling. Europeans who understood Arabic heard insolent remarks in the cafes as they passed by, and doctors in charge of invalids in lonely hotels noticed with alarm the sullen looks of their Arab servants, and their keen excitement over the Sultan's struggle. A spirit of nervous apprehension began to spread abroad among Europeans.

"Then in January, 1906, the Sultan suddenly showed his hand; and the smouldering fire burst out into the flame of the famous Tabah incident. The events that followed became conspicuous to the whole world—the seizure by Turkish troops of villages on the Egyptian side of the Sinai frontier, the threat to fire on an Egyptian cruiser, the defiant resistance to the English successor, the peremptory order to Egypt to evacuate Faroun Island, and, finally, the claim of Mouktar Pasha to a frontier-line west of Suez. The behaviour of Turkey seemed to bear out Rudyard Kipling's description of the ethical atmosphere that lies east of that port. Even where 'there ain't no ten commandments,' indeed, the little villages

that sparkle like a grain of salt in the empty desert of the wanderings of Israel might be thought tempting to no man. But the line of the frontier had been drawn east of Tabah by the treaty which established Mehemet Ali in the Khedivate in 1840 [see in Volume I. of this work, Egypt: A. D. 1840-1869], and the claim to this limit had been prudently re-asserted by Lord Cromer in 1892, when the present Khedive ascended the throne. Any tampering with these written arrangements, even to the extent of a single village, would have been the end of our authority in Egypt. There was, therefore, no room for compromise. If Sir Edward Grey had hesitated to force a surrender from Turkey in May by the only possible method of moving the fleet to Phalerum [and demanding the immediate evacuation of Tabah], we might just as well have left the Nile.

{218}

"For the real significance of these events lay in what was going on in the mosques and newspapers of Egypt itself. As the crisis grew, these voices grew more and more daring. The preachers were as tempestuous as those who fulminated at St. Paul's Cross in our own Reformation times. Every move of the Sultan in those tortuous negotiations was accompanied by an obligato of sympathy from the Pan-Islamic Press. The native journals in Egypt are small sheets, cheaply produced. During the last eighteen months they multiplied exceedingly, fed by mysterious channels. The new journals preached the new doctrine—the doctrine of Pan-Islamism. ...

"A Turkish raid on the Suez Canal or Nekl might have caused an outburst of fanaticism in Egypt and seriously divided and embarrassed the Army of Occupation. It was impossible to be sure that the Egyptian army of 16,000 men, though officered by Englishmen, could be trusted to fight against the Turks. Hence the reinforcement of the British garrison, reduced to some 2000 men, by an addition of some 3000. These began to arrive

in May, and the agitation calmed quickly after their arrival. They are now to stay on at the expense of Egypt. Thus the first effect of the Sultan's interference has been a deplorable setback from Lord Cromer's ideal of governing Egypt by means of British-officered native policemen."

***Harold Spender,
England, Egypt and Turkey
(Contemporary Review, October, 1906).***

EGYPT: A. D. 1907 (January).

State of the country.

General satisfaction of the people.

The disaffected a minority.

Transformation effected by English rule.

Testimony of a French writer.

Those who know the real situation in Egypt can easily understand how almost the whole population, with the exception of an insignificant minority, are satisfied and desire no change. It is enough to compare the present state of the country—even rapidly and superficially—with that existing in 1882, to perceive the perfect satisfaction of all classes and the greatness of the work achieved by England; and the more profoundly this question is studied, the greater the admiration that must be accorded to Lord Cromer and to all those who during the past twenty-five years have worked under his orders at the regeneration of Egypt. The situation of that country in 1882 may be briefly summed up in the following manner:

"The Government was then in the hands of a band of rebels at the head of whom was the cowardly and worthless colonel, Arabi. The exchequer was empty; Egypt owed (almost entirely to Europe) nearly five millions sterling. The revenue was insufficient to pay the interest on her debts, or even to meet the expenses of government. The public works were all in such

a state of neglect and disuse as to be no longer of any service. Commerce was paralysed and industry at the last gasp. The fellaheen, to whose labour Egypt owes her agricultural wealth, had stopped working, for, left at the mercy of the Pashas, who extorted from them everything possible down to the last farthing, they died of hunger, whether they worked or not. If we add that their leaders told the unfortunate people that their suffering all these privations was solely the fault of the Christian devils who were exacting mountains of gold from Egypt, it is easy to see that fanaticism and poverty combined were helping to make the situation a critical one for Europeans. It was into this fiery furnace that England entered and France refused to follow her. ...

"This is now a tale of the past, and on the curtain being raised we behold a transformation so marvellous, so grand, that it is almost incredible. We find Egypt rich and prosperous; a great portion of her debt paid, an admirably adjusted budget; her revenues increasing enormously, regularly every year—and that in the face of large and important public works, works which daily augment the wealth of the country. Agriculture is advancing by leaps and bounds, while commerce and industry develop and increase with a rapidity unparalleled in the history of the world. A well-organised network of railroads, steam navigation, telegraphs, telephones, and excellently maintained canals, spreads over the country. Schools of every kind have been opened—primary, secondary, and higher schools, technical, commercial, and medical schools. The fellah works quietly and happily on his land, and the townsman is growing rich, while business prospers increasingly from one end of the country to the other. From the mouths of the Nile, from Alexandria to the great lakes of Central Africa, all across Egypt, Nubia, and the Soudan, peace and quiet reign everywhere. And—strange as it may seem—all these results have been obtained, not by increasing the taxes, but, on the contrary, by reducing and even in some cases abolishing them altogether.

"In less than twenty-five years England has accomplished all this and much more still. She has effected the marvellous achievement of remaining in Egypt with the unanimous consent of the Powers of Europe, to the great satisfaction of the Egyptians themselves and the foreigners dwelling in Egypt, and finally of living there as a friend, almost as an ally of France! ...

"The honesty of the Government in all its branches, the impartiality with which all abuses have been punished, and finally the honourable example which during five-and-twenty years the English have set before the Egyptians, have certainly borne good fruit. To be 'honest' is no longer an empty expression on the banks of the Nile, and the entire population understands to-day what that word signifies. I think of how absolutely unknown it was in 1882! To sum up, Egypt and the Egyptians have now become **clean**, both physically and morally. We may say that England has cleansed and disinfected them, externally and internally."

A. B. de Guerville,
The Situation in Egypt
(*Fortnightly Review*, February, 1907).

In his work on "Modern Egypt," published since his retirement from the British administration in Egypt, Lord Cromer speaks as follows of the change which has come over Egypt since the British occupation took place. Though an interested witness, Lord Cromer is one well trusted by the general opinion of the world: "A new spirit," he wrote, "has been instilled into the population of Egypt. Even the peasant has learnt to scan his rights. Even the Pasha has learnt that others besides himself have rights which must be respected. The courbash may hang on the walls of the Moudirieh, but the Moudir no longer dares to employ it on the backs of the fellaheen.

For all practical purposes, it may be said that the hateful corvée system has disappeared. Slavery has virtually ceased to exist. The halcyon days of the adventurer and the usurer are past. Fiscal burthens have been greatly relieved. Everywhere law reigns supreme. Justice is no longer bought and sold. Nature, instead of being spurned and neglected, has been wooed to bestow her gifts on mankind. She has responded to the appeal. The waters of the Nile are now utilized in an intelligent manner. Means of locomotion have been improved and extended. The soldier has acquired some pride in the uniform which he wears. He has fought as he never fought before. The sick man can be nursed in a well-managed hospital. The lunatic is no longer treated like a wild beast. The punishment awarded to the worst criminal is no longer barbarous. Lastly, the schoolmaster is abroad, with results which are as yet uncertain, but which cannot fail to be important."

EGYPT: A. D. 1908.

Gordon Memorial College at Khartoum.

See (in this Volume)

EDUCATION: EGYPT.

EGYPT: A. D. 1909.

Completion of the Esneh Barrage.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: EGYPT.

EGYPT: A. D. 1909 (May).

The Nationalist agitation, excited by the Turkish Revolution.

A correspondent of the New York *Evening Post*, writing from London of the agitation for national independence in Egypt, under date of May 8, 1909, remarks that it has been affected in two ways by the recent revolutionary movements in the East. They have "weakened as well as strengthened the

cause. For a number of half-educated native thinkers to see Turkey with a Parliament is to make them feel they should have one, too. The British agent points out that the youth of Egypt, upon whom must rest all hopes of eventual autonomy, are becoming demoralized by such propaganda. They have been clamoring on every occasion for a Constitution." They have been incited by a virulent press. "When, a few months ago, Mr. Haldane announced that the British army of occupation was to be increased to the same strength as the force in South Africa, disgusting diatribes were indulged in against the British army. Officers were described as monsters of low breeding, ill manners, cowardice, and multifarious vice. As a result of this kind of thing, and also through the pressure of the moderate native press, the old Press law of 1881 was revived—a law providing that after three warnings a paper may be suspended by the Council of Ministers by an administrative order, and not through the courts of law.

"Since then the Nationalists have arranged frequent demonstrations, some of them resulting in encounters with the police, which have been magnified by part of the English press into serious riots. Serious riots are not got up by schoolboys, who, according to the best information, seem to have been entirely responsible for the physical part of these demonstrations in Cairo and elsewhere. They have now been strictly forbidden to take part in any public political discussion."

EGYPT: A. D. 1909 (September).
Young Egypt Congress.

The party of Young Egyptians, so called, held a Congress at Geneva in September—the second of such assemblies—which was attended by several sympathetic members of the British Parliament, Mr. Keir Hardie and others, representing the Labor and Irish parties. A telegram was sent from the Congress to the House of Commons in England, stating that the

representatives of the intellectual elements of organized Egyptian political parties gathered in congress at Geneva on the occasion of the anniversary of the entry of the English troops into Cairo saluted very respectfully the representatives of Great Britain, recalled the reiterated promise of the British Government to evacuate Egyptian territory, and inasmuch as the reasons given by Mr. Gladstone for the occupation no longer existed, asked the House for the honour of the English nation to secure the withdrawal of the troops from Egyptian territory. A similar telegram was despatched to the Grand Vizier, Hilmi Pasha, asking him to use his influence with England to secure the withdrawal of the troops.

This was sent on the 14th of September, the 27th anniversary of the British occupation of Egypt, and on the same day the Prime Minister of Great Britain, Mr. Asquith, received the following telegram from Cairo:

"A meeting of 6,000 Egyptians assembled here to-day desires to convey to your high personage the unanimous and energetic protest of the Egyptian people against the occupation, and from to-day demands the evacuation, relying upon the engagements and solemn oaths of the Queen's Governments. Moreover, to gain our friendship is more preferable for English honour than to lose our hearts and support."

The protest was also sent to the Grand Vizier in Constantinople and to the Young Egypt Congress in Geneva.

EHRlich, Paul.

See (in this Volume)
NOBEL PRIZES.

EHR-LUNG-SHAN FORT, Capture of.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

EIGHT HOUR LABOR DAY.

See(in this Volume)

LABOR PROTECTION: HOURS OF LABOR.

ELECTIONS, Political:

Contributions from Corporations prohibited.

See (in this Volume)

UNITED STATES: A. D. 1907 (JANUARY).

-----ELECTIVE FRANCHISE: Start-----

ELECTIVE FRANCHISE: AUSTRIA-HUNGARY: A. D. 1906.

Universal Suffrage adopted in Austria.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1905-1906, and 1907.

ELECTIVE FRANCHISE: Belgium: A. D. 1902.

Opposition to the Plural Suffrage defeated.

See (in this Volume)

BELGIUM: A. D. 1902, and 1904.

See in Volume I. of this work,

CONSTITUTION OF BELGIUM.

See in Volume VI. of this work,

BELGIUM: A. D. 1894-1895.

ELECTIVE FRANCHISE: China: A. D. 1908.

The Constitutional Promise.

See (in this Volume)
CHINA: A. D. 1905-1908.

{220}

ELECTIVE FRANCHISE: England: A. D. 1909.
Second reading of the Representation of the People Bill,
extending the Suffrage to Women and others.

See (in this Volume)
ENGLAND: A. D. 1909 (MARCH).

ELECTIVE FRANCHISE: Germany: A. D. 1906.
Extensions of popular rights in some parts of the Empire.
A comedy of election reform in Prussia.

"The agitation for the extension of popular rights is vigorous in many parts of the Empire. The Kingdom of Würtemberg has just reformed its antique constitution by eliminating from the Lower House the privileged members, 'knights' and clergymen, and substituting members elected by popular vote. Baden has introduced universal suffrage, and Bavaria has changed from indirect to direct voting. In the Kingdom of Saxony, which a decade ago remodeled its election law in a plutocratic direction, the government is now trying to retrace its steps. The Oldenburg government has committed itself to universal suffrage; and in Saxe-Weimar the Liberal parties and the Socialists have formed a compact to establish it. In the midst of this democratic movement Prussia has just carried through a slight revision of its election laws. ...

"The government [Prussian] came forward last spring with a scheme of election reform which is nothing short of comical in its bureaucratic narrowness. Several huge city districts were divided, and ten new seats in the Chamber created,—not, however as a recognition of the rights of the urban population, but in order to facilitate the mere formalities of

balloting. The number of electors in such districts had outgrown the capacity of any hall to hold them."

W. C. Dreher,
The Year in Germany
(Atlantic Monthly, November, 1906).

ELECTIVE FRANCHISE: India:
Slight exercise of local self-government.

See (in this Volume)
INDIA: A. D. 1907-1909.

ELECTIVE FRANCHISE: India:
Introduction of popular representation in
the Legislative Councils.

See INDIA: A. D. 1908-1909.

ELECTIVE FRANCHISE: Persia:
Under the recent Constitution.

See (in this Volume)
CONSTITUTION OF PERSIA.

ELECTIVE FRANCHISE: Philippine Islands.
Provisions of election law.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

ELECTIVE FRANCHISE: Porto Rico:
Change of qualifications for the suffrage.

See (in this Volume)
PORTO RICO: A. D. 1901-1905.

ELECTIVE FRANCHISE: Proportional Representation: England:
The subject under discussion.

The practicability and desirability of proportional representation has been under investigation in the United Kingdom, during 1909, by a Royal Commission, which has had frequent sessions for hearings at Whitehall. At a hearing in October Lord Hugh Cecil, who represents Oxford in the House of Commons, argued with great force in favor of proportional representation, as a means of moderating the constraint exercised over independent opinion by party ties. He said that the present system was not satisfactory. It greatly hindered free discussion in the House of Commons, and tended to exaggerate there the intensity of feeling and the rigidity of the party system. Majorities were generally large, and often it was merely a trial of endurance. The empty condition of the House on many occasions proved that discussion never influenced divisions, and there was an elimination of independent opinion. Decisions were on party issues, except when new subjects such as the fiscal question, were brought forward. With smaller majorities independent opinion—specific rather than general—would have more opportunity, and that would be a gain. There was a growing tendency to lift foreign politics and, to a lesser degree, Colonial politics beyond party, and to a large extent the Government could count on the support of moderate opponents when foreign and Colonial matters were considered. He did not think the effect of proportional representation would be to form any more groups than they had at present, but his desire was that there should be members who were not absolute party men, and independent members would have more chance of getting returned. He considered that desirable, and did not apprehend the return of faddists. Even now faddists were easily elected to Parliament, where for the most part they were disregarded. He did not agree that practically all sections of the community were represented under the existing system. A very large and important section between the two parties was never

represented, having always to choose between one or the other extreme.

ELECTIVE FRANCHISE: South Africa:

The Principle in Practice.

The principle of proportional representation was brought into practice in the municipal elections of the Transvaal in October, 1909. The Constitution of the South Africa Union, which goes into effect in the spring of 1910, applies it, also, to the election of senators in the Union Parliament.

"The proportional method chosen is, in each case, that of the single transferable vote, and the Johannesburg elections will furnish an example of the use of this system on a larger scale than any hitherto attempted, whilst the senatorial elections will furnish examples of its application to very small electorates. The duty of the voter, both in the senatorial and in the municipal elections, will be the same. He must place the figure 1 against the candidate for whom he desires to vote, and, in addition, he may and should place the figures 2, 3, 4, 5, 6, 7, and so on against the names of the other candidates in the order of his preference. The numbering of additional preferences, if not so vital as that of marking the first choice, is of extreme importance, and the elector should continue to indicate preferences until he has exhausted his powers of choice. The object, in marking preferences, is to prevent the waste of voting power. For, if the elector's first choice has obtained more votes than are necessary to secure his election, or if his first choice has obtained so few votes as to be hopelessly out of the running, the returning officer will carry forward these votes in accordance with the wishes expressed by the electors, as indicated by the preferences marked. ... The vote is always credited to the first choice and is not transferred save in the contingencies named. If, however, no effective use can be made of the vote in the return of the elector's first choice the returning officer, in the absence of any instructions from the voter, will be unable

to carry the vote forward, and the vote will therefore have no influence in determining the result of the election. Electors should therefore exercise to the full their privilege of marking preferences."

***The State
(South African National Magazine),
October, 1909.***

{221}

ELECTIVE FRANCHISE: Prussia: A. D. 1909.
Rejection of proposed Reforms.

The result of new proposals for reforming the intolerable class-system of voting in Prussia (see CONSTITUTION OF PRUSSIA in Volume VI. of this work), proposals of more sincerity than those of 1906, described above,—was thus reported in a Press despatch from Berlin, January 26, 1909:

"The debate upon the motions regarding reform of the Prussian franchise was concluded in the Lower House of the Diet to-day. After two more speeches had been delivered the Conservatives moved and carried the closure, and the various reform proposals were put to the vote. All the motions were rejected. Against most of the proposals so large a hostile majority was shown when the Deputies were invited to rise from their seats that no counting of votes was necessary. A motion in favour of the substitution of direct for indirect election was rejected, upon a division, by 168 votes against 165—a majority of three. Upon this question, and also upon the main question—the introduction of a universal and equal franchise with secrecy of the ballot—most of the Centre Party Deputies voted with the Left, and the majority consisted almost entirely of Conservatives and Free Conservatives, who under the existing system, possess an absolute majority in the Diet."

ELECTIVE FRANCHISE: Prussia: A. D. 1910.

A bill brought forward by the Government in February, 1910, professing to reform the elective franchise, gave less than no satisfaction to the mass of the people, who resented it as an insult to their rights. The measure was reported to make no change in the three-class system of voting, which ensures to wealth its political domination, and it refused the secret ballot. It conceded nothing of reform except a direct instead of an indirect election of representatives, and provoked formidable demonstrations of popular indignation in Berlin and other cities.

ELECTIVE FRANCHISE: Russia: A. D. 1906.

The Franchise as exercised in the election of the Dumas.

See (in this Volume)

RUSSIA: A. D. 1906 and 1907.

ELECTIVE FRANCHISE: Sweden: A. D. 1909.

Franchise Reform Law.

See (in this Volume)

SWEDEN: A. D. 1909.

ELECTIVE FRANCHISE: Turkey: A. D. 1908.

Under the Constitution regained by Revolution.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER).

ELECTIVE FRANCHISE: United States:

Direct primary nomination of candidates.

After a long and unsatisfactory experience in the United States of the nomination of candidates for public office by conventions of delegates, the people have been rapidly

discarding that system within the last few years, replacing it by the institution of primary elections, at which candidates for the subsequent ***election*** are ***selected*** by direct vote. The old delegate system tended irresistibly to give the picking of candidates (between whom the people had finally a narrow choice) to little handfuls of men who make manipulative party management their main business in life, with objects of self profit, either in money or political power. Effective revolt against this evil-working system began in the Western States and is now strong in the East. The following summary statement of what it had accomplished, up to the spring of 1909, is from a pamphlet then published by the Citizens Union of New York City, in support of a "Direct Primary Bill" which was pending at the time in the Legislature of the State of New York:

"The direct primary is now the most usual system of making nominations in the United States, and in no case has a state, a county, or a town turned back from direct nominations to the convention system. It is no longer an experiment, having been tried out under varying conditions in so many states that it is possible to be guided by experience in avoiding the dangers of an imperfect direct primary law.

"Fourteen states [Illinois, Iowa, Kansas, Louisiana, Mississippi, Missouri, Nebraska, North Dakota, Oklahoma, Oregon, South Dakota, Texas, Washington, and Wisconsin], with a total population of 25,323,039, have ***mandatory*** laws ***requiring*** the use of this plan in selecting candidates of the principal parties for practically all offices. Three other states [Minnesota, Ohio, Pennsylvania] have mandatory laws covering practically all except the state offices. Five other states [Indiana, Massachusetts, Michigan, New Jersey, Tennessee] have ***mandatory*** laws covering certain localities or offices. Five states [Alabama, Florida, Kentucky, Michigan, Tennessee], including two of the above, have optional laws covering practically all officers, the

provisions of which laws have been largely taken advantage of. There are direct nominations laws of a weaker sort, some of them of little or no value, in many other states. Party rules have established direct nominations for at least the majority party in nearly all of the Southern states not mentioned above.

"About one-half of the states, including those in which the system has been established by party rules, use direct nominations for practically all elective offices. The states in which the system is established by mandatory law for practically all elective offices have about thirty per cent. of the population of the United States.

"Of the thirty-one United States senators elected last fall, seventeen were nominated by direct primaries. Fifteen out of thirty-two governors of states were so nominated. There is a strong movement for direct primaries in states which do not at present use this system to any considerable extent, namely: Vermont, Connecticut, New Hampshire, New York, California, Colorado, Idaho and Utah. In New Hampshire, both Republican and Democratic parties declared for it in their party platforms last fall, and the Republican Governor has recommended it to the Republican Legislature. In California, two direct nominations laws have been passed, but declared unconstitutional. Last fall, an amendment to the constitution of that state permitting the legislature to enact a direct nominations law was passed by a vote of the people.

"A brief outline of how direct nominations originated and how the system has been extended until it has been substituted for the convention system by a majority of the American people furnishes a strong argument in its favor. It is an American system, and a product of the struggle of the American people for the control of their government.

"Direct primaries originated in Crawford County, Pennsylvania,

where the so-called Crawford County System was established by action of a Republican County Committee in 1860 and has been in force ever since. On two occasions, the question of whether it should be retained was put before the Republican voters and overwhelmingly decided in the affirmative, the last of these votes being taken after the system had been in force for nineteen years. Its popularity led to its adoption throughout the entire Congressional district for all nominations.

{222}

"The Minnesota direct primary law for the city of Minneapolis, Hennepin County, was enacted in 1899. After it had been tried in the city for two years, public sentiment, because of the excellent results achieved under the new law in Minneapolis, insisted upon its being extended, and other localities were brought within its provisions. Minnesota at present has a mandatory state-wide law applying to practically all except state offices. The newspapers of Minneapolis all declared for it, and no man of prominence in the state took a stand against it after it had been tried in the city.

"Michigan adopted direct primaries in 1903 for use in Grand Rapids, Kent County. The result was the defeat for re-nomination of the Mayor under whose administration the so-called water scandal had developed. Two years later, candidates in Kent County were requested to go on record as to whether they favored a general direct primary law for the state. All who recorded their positions declared for such a law, and it was commonly reported in the newspapers that opposition to direct primaries would mean defeat for any candidate who took so unpopular a stand.

"Thereafter direct nominations spread rapidly through the middle western states. Mandatory laws were substituted for optional laws, and state-wide laws for laws applying to certain localities or offices."

The movement for direct primary voting, to supersede delegated conventions in the nomination of candidates for office, was inspired and invigorated powerfully in New York by Governor Hughes (see, in this Volume, NEW YORK STATE: A. D. 1906-1910), soon after his second term in the executive administration began. He saw that nothing else could emancipate the political parties of the State from their "boss"-ridden servitude, and make them real organs of expression for the mind and will of the people. The whole force of his great influence then went to the help of the advocates of this reform, and it produced a public wakening on the subject which years of ordinary agitation might have failed to bring about. He brought, moreover, to the movement an inborn statesmanship of judgment and an intellectual training which gave it the wisest direction it had yet received. The Bill which he assisted to frame, embodying his official recommendations, was designed more carefully than the legislation in other States had been, not only to avoid any weakening of the organization of political parties, but to give them the strength of a leadership conferred truly and freely by its followers. The measure was opposed desperately by the existing "organization" of the party in power, and that combination was represented in the Legislature so much more effectively than the people were that it compassed the defeat of the Bill, in the session of 1909.

Four times the people of Illinois have extorted acts from their Legislature providing for direct nominations, and thrice the enactments, badly framed, have been pronounced unconstitutional by the Supreme Court of the State. The fourth of these pieces of legislation, produced in February, 1910, is not yet tested.

ELECTIVE FRANCHISE:

Disfranchising Amendment to the Maryland Constitution defeated.

A disfranchising amendment to the Constitution of Maryland, designed not only to exclude many colored people from the suffrage, but to give the now dominant political party a complete mastery of the ballot box, was rejected by the people when submitted to them at the election of November, 1909.

ELECTIVE FRANCHISE:

Short Ballot Reform.

A movement that will gain force if the grave reasons for it can be duly impressed on the popular mind has been assuming organized form of late. The prime mover in it is Mr. Richard S. Childs, of New York, who began missionary work for it in a convincing magazine article on "The Doctrine of the Short Ballot," published in 1908. Printed afterwards in a small pamphlet, this impressive argument has had wide circulation and has drawn many men of influence into league with the author for urging the subject on public attention. The aim is to reduce elective offices in State, county and town to such a limited number that the average voter can acquaint himself with the comparative merits of candidates and make a fairly intelligent choice, which he cannot do when the number is large. "We must shorten the ballot," wrote Mr. Childs, "to a point where the average man will vote intelligently without giving to politics more attention than he does at present." "Voting a straight ticket is not a matter of party loyalty so much as of not knowing what else to do, and split tickets will become common as soon as the list is reduced to a point where each candidate becomes in the mind of the voter a definite personality instead of a mere name on a long list. To make public office conspicuous can only be accomplished by making it stand out in solitude before the gaze of the voter. Let all the encumbrances in the shape of minor offices disappear from the ballot and be made appointive. Or at the very least prevent the few offices from overshadowing the many. Make all the candidates conspicuous by letting no one be more conspicuous than another."

A digest of the "short ballot" doctrine is offered in the following propositions:

"To the average American voter most of the long ballot is a mere list of names. He registers a genuine personal opinion only on certain conspicuous offices—the rest he necessarily delegates by default to organizations of ‘political specialists.’

"These political organizations, if victorious, sink into the control of their worst members, since these members having most to gain and being least scrupulous can generally win within the organization. Then these men run public administrations as badly as they dare.

"But we get good men for any conspicuous office where there is adequate public scrutiny of the candidate, and even Tammany offers us satisfactory public servants in such places.

"**Therefore**, if we make most offices appointive so as to **shorten the ballot**, till the voter can master his whole task, and every elected officer becomes conspicuous before his constituents, political machines will become impotent and merit will become the most important asset for a candidate.

"The result will be uniform clean government as in England, Canada, etc., where they have 'The Short Ballot' already."

{223}

ELECTIVE FRANCHISE:

Suffrage Amendment to the Georgia Constitution adopted by popular vote.

A suffrage amendment to the Constitution of the State of Georgia, adopted by an overwhelming popular vote in October,

1908, provides that, in order to register and vote according to the provisions of this amendment, a man must, besides meeting certain requirements as to residence and the payment of his taxes, have one of the following qualifications: Either

(1) he must have served in the land or naval forces of the United States or the Confederate States or the State of Georgia in time of war, or be lawfully descended from one who has done so; **or**

(2) he must be a person of good character, satisfying the registrars of election that he understands the duties and obligations of citizenship; **or**

(3) he must correctly read in the English language any paragraph of the United States Constitution or the State Constitution, and, unless physically incapacitated from doing so, correctly write the same when read to him; **or**

(4) he must be the owner of at least forty acres of land in the State in which he resides, or the owner of five hundred dollars' worth of property in the State assessed for taxation.

ELECTIVE FRANCHISE: Woman Suffrage:

At Large: Present extent of the movement.

"We rejoice in the immense progress made by women in the last 60 years. In 1848 women had votes nowhere in the world except the school vote in Kentucky by widows with children of school age, and a very limited franchise in some parts of Europe. Today women vote for all elected officers in Finland, Norway, Federated Australia, New Zealand, Wyoming, Colorado, Utah and Idaho: they have municipal suffrage in England, Scotland, Ireland and Wales, in Canada, Kansas, Sweden, Denmark and Iceland; tax suffrage in Louisiana, Montana, Iowa and New York, and school suffrage in one-half the States of the Union. When that first convention met, only one College in the United

States admitted women; now hundreds of colleges do so. Then there was not a single woman physician, or ordained minister, or lawyer; now there are 7000 women physicians and surgeons, 3000 ordained ministers, and one thousand lawyers. Then only a few poorly paid employments were open to women; now women are in more than 300 occupations, and comprise 80 per cent. of our teachers. Then there were scarcely any organizations of women; now such organizations are numbered by thousands. Then the few women who dared to speak in public, even on philanthropic questions, were overwhelmingly condemned by public opinion; now the women most opposed to equal suffrage travel about the country making public speeches to prove that a woman's only place is at home. Then a married woman in most of our States could not control her own person, property or earnings; now in most of the States these laws have been largely amended, and it is only in regard to the ballot that the fiction of women's perpetual minority is still kept up. Most of the demands made by the convention of 1848, which then seemed so revolutionary, have been already granted, and are now looked upon as matters of course. ... We rejoice in the increasingly rapid progress of the woman suffrage cause. Every year shows some gain. Since our last annual meeting Parliamentary suffrage has been extended to the women of Norway; municipal suffrage to the women of Denmark; Sweden has made women eligible to municipal office; Russia has given women of property a proxy vote for members of the Douma; and Great Britain, with only 15 dissenting votes, has made women eligible as Mayors, Aldermen and County and Town Councillors. We congratulate the women of Great Britain upon their gallant fight for the franchise."

***Resolutions of the 40th Annual Convention of the
National American Woman Suffrage Association,
at Buffalo, New York, October, 1908.***

In Europe "there is the curious anomaly that in its two so-called republics the cause of woman suffrage is more backward than in almost any of the other countries. In

Switzerland every man over twenty may vote. A National Woman Suffrage Association has lately been organized which is supported by many public men. ...

"In France, all men twenty-one years old have the franchise. The National Council of Women, composed of 55 associations with about 70,000 members, has recently joined forces with the National Suffrage Union, thus assuring strong and systematic effort for the enfranchisement of women. In 1906, a Committee for the Defence of the Rights of Women was formed in the Chamber of Deputies, to secure the social, civil and political rights of women."

Ida H. Harper
North American Review,
September. 1907.

ELECTIVE FRANCHISE: Australia.

The Constitution of the Commonwealth of Australia, in its 41st clause provides as follows:

See (in Volume VI. of this work)
CONSTITUTION OF AUSTRALIA.

"No adult person who has or acquires the right to vote at elections for the more numerous House of the Parliament of a State, shall, while the right continues, be prevented by any law of the Commonwealth from voting at elections for either House of the Commonwealth."

Inasmuch as two of the Australian States, South Australia and Western Australia, had already extended the suffrage to women when this federal constitution was adopted, they gained at once, by its terms, the right of voting at federal elections in those States. An account of their first appearance in Australian Federal politics was given subsequently by one of

the women who participated,—in part as follows:

"The political incentive is now the possession of the women of Australia, and its influence was a potent factor in the recent Federal elections. The women of South Australia and West Australia have had the suffrage for some years, so that they are accustomed to voting, but to the women of the other States the whole business was new; nevertheless, they voted in as large numbers proportionally as the men in a majority of the constituencies, while in some they cast a heavier vote than the men. The total vote was only 52 per cent. of the voting strength, the low percentage being due to the fact that the people as a body have not yet grasped the Federal idea. Federation has not completely scotched provincialism in politics, though it is fast doing so, if for no other reason than the enormous cost of government in this country. The people are beginning to realize that we are paying the political piper heavily—fourteen Houses of Parliament and seven viceroalties for four millions of people! It is too big an order, and common sense, as well as the state of our finances, demands that we should simplify our legislative machinery. It is right here, as the Americans say, that the women's influence will tell.

{224}

During the election campaign, it was most evident that a very large section of the women favoured those candidates who urged economy in public expenditure. Individual women, with no idea of the value of money, may be extravagant, but most women are compelled by circumstances to be economical, and have a horror of wasteful expenditure. Therefore the growing demand for less expensive legislative machinery will find devoted adherents amongst the women voters. ...

"The elections had an added interest in the appearance of four women candidates in the field—Mrs. Martell, Mrs. Moore (New South Wales), myself (Victoria), standing for the Senate; and Miss Selina Anderson (New South Wales) for the House of

Representatives. All were defeated, but the defeat was not unexpected, as we were well aware that it would be altogether phenomenal if women were to succeed in their first attempt to enter a National Parliament. ...

"There were eighteen candidates in the field, and, while unsuccessful, my record of 51,497 votes, when 85,387 were sufficient to secure election, is most gratifying. I polled more heavily than one candidate who has been Premier of Victoria, and than another who had been for twenty-six years a member of the State legislature, defeating the one by 24,327, the other by 32,436 votes—51,000 odd votes, in spite of the opposition of the powerful daily papers, and the prejudice that a pioneer always has to encounter, is nothing less than a triumph for the cause that I represent, the cause of women and children."

***Vida Goldstein,
The Political Woman in Australia
(Nineteenth Century, July, 1904).***

"The argument that women will not vote is completely disproved by Australian experience. They not only vote, but they vote in continually increasing numbers as time goes on, and they become educated up to a sense of their political responsibilities and all that these imply. Not all the states discriminate in their returns between men and women voters, but those that do show something like the following: In South Australia, at the last general election, 59 per cent. of the men on the rolls voted, and 42 per cent. of the women; in Western Australia, 49 per cent. of the men and 47 per cent. of the women voted; at the last Federal election, 56 per cent. of the men voted, and 40 per cent. of the women. None of the Australian states has yet reached the extraordinary record of New Zealand, where, in 1902, nearly 75 per cent. of the women electors recorded their votes, as against 76 per cent. of their brothers.

"It is unnecessary to add that the conservative woman votes. Her husband or father and their newspaper take good care that the duty of doing so is well impressed upon her, even though abstractly they may all three disapprove of woman in politics, and have striven to avert her appearing in that arena as long as they possibly could. ...

"Among the measures that can be traced to woman suffrage within the last ten years are prematernity acts, acts raising the age of consent, family maintenance acts, and many acts improving children's conditions by extending juvenile courts, limiting hours of work, providing better inspection, forbidding sale to children of drink, drugs and doubtful literature."

Alice Henry,
The Australian Woman and the Ballot
(*North American Review*, December 21, 1906).

Writing in the New York *Evening Post* of February 10, 1909, Mrs. Ida Husted Harper makes the following statements: "The recent announcement that the upper house of Parliament in Victoria, Australia, had passed a woman suffrage bill by a vote of 23 to 5, marked the gaining of complete suffrage for women in all of Australasia. Since 1902 women have had a vote in Australia for members of the national Parliament, and for a number of years the vote for State officials in all the States except Victoria. There the lower house, or Assembly, has fifteen times passed a bill giving this vote to women only to have it rejected by the upper house, or Council. The Assembly is elected by popular vote; the Council is not. ... With their municipal and national franchise the women were able to make things decidedly uncomfortable for the opponents, in which they were encouraged and aided by the labor unions. At last the council surrendered unconditionally, and the vote of twenty-three to five showed that most of them tried to get

into the band wagon. The five who voted 'no' were probably 'in for life,' and not afraid of the consequences. ... Australia has thoroughly tested woman suffrage, first in municipal affairs, and then in those of State and nation. There is not one objection made against it which is not refuted by the actual experience of that country. All the talk about who will take care of the baby and what will become of the home, its men would brush aside as so much chaff."

ELECTIVE FRANCHISE: Denmark:

Its first exercise in Municipal Elections.

Danish municipal elections in March, 1909, were conducted under a new law which gives every woman who either pays direct taxes or whose husband does so the right to vote. The law also provides for a system of proportional representation. "There was naturally much discussion beforehand," wrote a newspaper correspondent from Copenhagen, "as to what would be the result of this first experiment in woman suffrage in Denmark. The Conservatives, indeed, protested for a long time before they yielded to its claims. As far as can now be ascertained the relative strength of the parties in the councils will be practically unchanged, that is to say, the Conservatives will still have a slight majority. This is at all events the case in and around Copenhagen, where the women took a very active part in the voting, nearly 75 per cent. of those who were entitled to vote having done so."

ELECTIVE FRANCHISE: England:

Qualification for County and Borough Councils.

The following are the provisions of an Act of Parliament approved in August, 1907:

"A woman shall not be disqualified by sex or marriage for being elected or being a councillor or alderman of the council of any county or borough (including a metropolitan borough):

Provided that a woman if elected as chairman of a county council or mayor of a borough shall not by virtue of holding or having held that office be a justice of the peace."

{225}

ELECTIVE FRANCHISE:

The Campaign of the Militant Suffragists or "Suffragettes."

The cause of the women who desire and demand equal political rights with men seemed to be advancing fast toward complete victory in Great Britain, in 1906-1907, when the impatient among them began resorting to militant methods of agitation. It is probably safe to say that no other movement by any part of any people in any country, for obtaining an extension of political rights, had ever been carried by rational discussion and appeal to a point of more encouragement than the woman suffrage movement in the United Kingdom had then attained. For everything elective in local government the vote had been won for women, and the opening of county and borough offices to them was on the eve of being written into law. Representation in Parliament, only, had not been secured, but the disposition to concede it was growing from day to day. It was at this stage of promising progress in the movement that an impatient section of its promoters became persuaded that some disturbance of the public peace and some troubling of the Government would hasten the final triumph of their cause. Why they were led to that conclusion was explained to an American audience in New York by their leader, Mrs. Pankhurst, in October, 1909, as follows:

"The Liberals failed to put woman suffrage in their Newcastle programme. We waited on Sir Henry Campbell-Bannerman, leader of that party, and who would be prime minister, but he said he was too busy seeing voters to attend to women. The other parties acted in the same way, so we were forced to other action. A. J. Balfour, the Tory leader, upon whom we called,

declared that he was in favor of equal suffrage, but was honest enough to add that no statesman would propose a bill to give it unless it were made a practical question of politics.

"You have heard much of our methods. You have condemned them, but whether they were right or wrong, objectionable or not, they have certainly accomplished our object of bringing the question before the British public as a practical political question. ... My grandmother was a Chartist, and so I determined to follow in her footsteps.

"It was at Manchester, almost on the site of the Peterloo franchise riots, when the yeomen, with their bayonets, cut down the men seeking votes, that our agitation began. Sir Edward Grey was closing the great Liberal revival in Lancashire by a great meeting. Women were admitted to meetings in England in those days; it is not so now. We decided to be there with a banner on which we would inscribe the motto 'Will the Liberal government give working women the vote?' Annie Kenny, an officer of the Cotton Workers' Trade Union, was chosen to put the question to Sir Edward Grey. She accepted on condition that my daughter, Christobel Pankhurst, would accompany her and hold her hand. We tried to get them seats in the front of the balcony, where they could unfurl the banner. We failed in this, so we got seats in the area, and had to change the banner. The new one was made on my dining-room table with a piece of calico and some black paint and contained the now world-wide motto: 'Votes for Women.'

"Sir Edward Grey delivered a great speech, but there was nothing in it about giving women votes. Several questions were put to him, and he answered as all public speakers should, and as they always do in England. When he was done, more questions were in order. Annie Kenny rose and unfurled her banner, holding it up in a hand from which she had lost a finger while at work in the mills at an age when girls should not be allowed to work—especially when they are intended for

motherhood. Holding her companion's hand, she put her question: 'Will the Liberal government give working women votes?' Instantly the stewards pounced upon her; hands were pressed over her mouth, and she was forced to sit down. She was told to write her question, and it would be answered. A vote of thanks was proposed, and Sir Edward Grey answered.

"When he failed to answer her question, Annie Kenny rose and insisted on an answer. She was pounced upon; six men dragged her hat off and pulled her to the door, but her last words as she was thrown out were: 'Sir Edward Grey, answer my question.' My daughter took up the task, and repeated the question. She, too, was set upon and dragged past the stage, upon which sat men who had known her from childhood, who had voted for her father; but so strong is party spirit that they allowed her to be thrown out without protest.

"They held a meeting outside and were arrested for obstructing the police. They were fined, and went to jail. But we had gained what we wanted. The press, which had ignored us, heralded our cause. We were giving them good copy."

In the early period of the campaign of public disturbance which the militant suffragists had thus planned, their operations were directed mainly to the interruption of speakers at political meetings, not only by questions, but by bell-ringing and the like, provoking forcible ejection, arrest and fine, or commitment to jail. Presently some resorted to the device of chaining themselves to seats, prolonging the disturbance and heightening its sensational character. The crowning sensation of this description was achieved on the 8th of November, 1908, when two daring suffragettes who had gained admission to the women's gallery in the House of Commons chained themselves to the metal lattice work in front of it and opened a fire of questions and demands on the dismayed law makers below. In the previous month the House had been besieged by a great mob of women who attempted to force their

way into its well-guarded chambers, under Mrs. Pankhurst's lead. She and others of the leaders, arrested on this occasion, refused to give bonds to keep the peace, and were sentenced to imprisonment for three months.

From this time on, the devices of public disturbance and of annoyance to Parliament and Ministers became more and more ingeniously sensational. One performance, on the 27th of April, 1909, was thus described by a London newspaper of the morning after:

"St. Stephen's Hall is built upon the site of the old Parliament, its dimensions in length and width are the same, its memories embalm the great Parliamentary tradition, it is the place where the liberties of the people have been won. This is the place which was chosen yesterday by woman suffragists for a degrading exhibition of disorder. On either side of the hall are two rows of wonderful statues, like white ghosts of the old Parliament. To the legs of four of these statues as many women yesterday afternoon fastened themselves, after their practice, with chains, and remained there, a centre of disturbance, until an end was put to their mimic slavery by the police. The statues were those of Selden, Walpole, Somers, and Falkland; and it is matter for great regret that Falkland's statue, in its pathetic grace the most charming of them all, has been wantonly injured by this rough usage."

{226}

On the 24th of June the lobby of the House of Commons became the scene of another performance in the same spirit by a single dauntless actor,—thus related: "Miss Wallace Dunlop, who was intercepted the other day in an attempt to deface with indelible ink the walls of the lobby of the House of Commons with an appeal on behalf of 'Votes for Women,' succeeded yesterday in accomplishing her object. Disguised as an elderly

lady and carrying a brown handbag, she eluded the vigilance of the police till well within the lobby of the House. Drawing from her handbag a small wooden stencil, or board, with felt attached and saturated with indelible purple ink, she succeeded in placing it against the wall of the lobby at a conspicuous spot. The ink was at once absorbed into the surface of the wall. The words written were:--'Women's Deputation, June 29th. Bill of Rights. It is the right of the subjects to petition the King, and all commitments and prosecutions for such petitioning are illegal.' Miss Wallace Dunlop was taken to Cannon-row Police-station, and after being detained two hours was charged with doing wilful damage. She will be brought before the magistrates at Bow Street this morning."

Miss Dunlop received a sentence of imprisonment, and inaugurated in prison a more heroic protest against and defiance of the tyranny of which she believed herself to be a victim. It is described in the following manifesto, published by the National Women's Social and Political Union (the principal organization of the militant suffragists) on the 14th of July:

"The women who have been sent to prison in connexion with woman suffrage disturbances have, from the beginning, demanded treatment as political prisoners, and have appealed to the Home Secretary to accord them the rights and privileges to which political prisoners are entitled in every part of the world. As this appeal has been disregarded, women have now decided to take the law into their own hands, and, by carrying on a revolt in prison, to force the hands of the authorities to concede them what they have refused to give as a matter of justice.

"The first action taken in the matter was that of Miss Wallace Dunlop, sent to prison on Friday, July 2, for imprinting an extract from the Bill of Rights upon one of the walls in the

House of Commons. Political treatment being refused to her, and being ordered to wear prison clothes and eat prison food, Miss Wallace Dunlop determined to strike a blow for her rights by refusing absolutely to eat the food offered to her. After 91 hours of starvation—during which time communications were constantly passing between the Governor of the prison and the Home Office—the authorities decided to give in, and Miss Wallace Dunlop was released.

"The 14 members of the Women's Social and Political Union who were sent to prison on Monday, July 12, in connexion with the stone throwing at the Government buildings on June 29, have determined to carry out a further revolt. Before leaving for prison they informed the officers of the union that it was their intention, if denied the rights of political prisoners, to carry out an effective protest in prison. When ordered to take off their own clothes and to put on prison clothes they intended to refuse to do so, and standing all together they would refuse to be put into cells of the second division. If put into their cells by force and undressed, they would refuse in the morning to get up and dress excepting into their own clothes. They also informed members of the union that they would refuse to obey the rule of silence, but would talk to one another whenever they liked and would sing aloud during retention.

"In making this protest the women claim that they are fighting for the preservation of the rights of political prisoners, which were not denied even in the Bastille."

Miss Dunlop's heroic protest, by refusing prison food, was taken up at once and repeated by numbers of her imprisoned sisters; until the prison authorities met it by forcibly administering food, in the manner of treatment applied sometimes to desperate convicts or to the insane; and this, of course, is more than repugnant and distressing to the feeling of everybody. The whole unexampled situation is repugnant and

distressing, however it may be viewed. The cause involved is so pitifully stripped of its dignity, simply for the reason that the sex whose cause it is has nothing in body or mind to qualify it for effectual rioting. A mob of men can invest its mischievous doings with the impressiveness of terror, which crushes laughter and contempt. A mob of such women as the champion suffragists are cannot do so, and the riot they attempt is but a travesty, which challenges jeers, and sadly smirches the after heroism of the self-starved rioters in their prison cells. The difference between a political insurrection of men and the insurgency of Mrs. Pankhurst and her followers is the difference between a menace that alarms and a nuisance that annoys and provokes. With what effect the cause of woman suffrage has been made a public nuisance in England remains to be seen. The advantage to it is dubious, to say the least. On this point Mr. Winston Churchill, President of the Board of Trade, spoke his mind plainly to a deputation of suffragettes who called on him at Dundee on the 18th of last October. He said:

"I saw the beginning of what you call the militant tactics. They broke out in my late constituency, North-West Manchester, and during the four years that have passed I have fought three by-elections, and have made a great many speeches about the country. So, I suppose, I have come very nearly as much in contact with them as any other Cabinet Minister. ... You have come to me in a deputation, and I am bound to give you my candid and truthful opinion that your cause is in a worse position now than it was four years ago. I do not mean by that that anything has been done which will prevent the ultimate success of the movement. I do not think that is so, but I am quite sure that, while these tactics of silly disorder and petty violence continue, there is not the slightest chance of any Government that will be called into power, or of any House of Commons which is likely to be elected, giving you the reform which you seek. That is my honest, unprejudiced view."

The National Union of Women Suffrage Societies, of which Mrs. Henry Fawcett is President, represents a large body of women claimants of the suffrage who distinctly disapprove of and disclaim responsibility for the proceedings of their militant allies. In a statement which this National Union communicated to the Prime Minister on the 2d of October, 1909, they set forth the following facts in evidence of the strength of the popular support given to their claims: Since the beginning of 1908 the National Union had taken part in 31 by-elections in Great Britain. "These have been contested by 69 candidates, of whom 26 were Liberals, 32 Unionists, and 11 Labour, Socialist, or Independent. Of these 69 candidates, only nine declared themselves opponents of woman suffrage. The rest in varying degrees accepted the principle of the enfranchisement of women. A few merely stated that they were not hostile, but the overwhelming majority frankly accepted it, some even pledging themselves to oppose any further extension of the franchise to men so long as it was withheld from women."

ELECTIVE FRANCHISE: Finland:

The great victory of 1906.

"The great victory for woman suffrage in 1906 was won in Finland, where women were enfranchised on exactly the same terms as men, and made eligible to all offices, including seats in Parliament. This gives the vote at once to about 300,000 women. Preceding and during the revolution, in the attempt to throw off the Russian yoke, the women shared with the men the work, the hardships and the dangers; and, when the triumph came, there was not a thought on the part of men of excluding women from any portion of the rewards, the most important of which was the suffrage. But they themselves had long been preparing the ground. The Finnish Women's Association to work for equal rights was founded in 1884 by Baroness Alexandra Gripenberg and never ceased its efforts. In

1892 the Woman's Alliance Union was organized, more democratic and aggressive in its character. ... After the vast national strike in the autumn of 1905, while a body of leading men were drawing up a Declaration of Rights to be presented to the Tsar, Dr. (Miss) Tekla Hulsin, a member of the National Bureau of Statistics, made an eloquent plea in behalf of the women, and they were included in its demand for universal suffrage. ... The Tsar signed it in November, giving his consent to the proposed reforms. Immediately the women set to work, lecturing, organizing, getting up petitions, and finally held another huge mass-meeting in Helsingfors, demanding that the Diet carry out this measure. All of the political parties put it in their platforms. On May 28th, 1906, the Diet with only one dissenting vote passed the bill giving the suffrage to all men and women twenty-four years old. This was signed by the Tsar on July 20th."

Ida H. Harper,
Woman Suffrage Throughout The World
(North American Review, September, 1907).

Dr. Tekla Hulsin, referred to above, now a woman member of the Finnish Diet, speaking at a suffragist meeting in London, in September, 1909, gave the following account of the action of the women members of that body:

"The granting of woman suffrage had caused no change in the strength of the respective political parties. Every citizen in Finland who was entitled to vote was also eligible for membership of the Diet. There had been no rivalry between the men and women candidates; they recognized that they were there for common ends. The women members of the Diet had followed their parties on party questions, but had joined on women's questions for humanitarian ends. They had presented petitions for the raising of the marriageable age from 15 to 17, the exemption of women from their husband's guardianship, the reception of Government employment on the same grounds as men,

and on the subject of the prevention of cruelty to children and animals. These had all been accepted by the Diet."

ELECTIVE FRANCHISE:

International Council of Women.

See (in this Volume)

WOMEN, INTERNATIONAL COUNCIL.

ELECTIVE FRANCHISE:

International Woman Suffrage Alliance.

"Since the Conference held at Copenhagen in August of 1906, which closed with thirteen countries in membership, the Alliance has been growing till its influence is felt as far as South Africa. On the first day of the Conference, held in Amsterdam June 15, 1907, there was presented an application from the Woman Suffrage Associations of Natal and Cape Colony for auxiliaryship in the Alliance. ... The second request for auxiliaryship was presented by Switzerland, which had formed a National committee of seven Cantonal Associations. ... The third new member, and the last one to enter the Alliance, was the National Bulgarian Alliance for Women's Rights. This body is composed of thirty local societies working in different lines, and is somewhat like our Federation of Women's Clubs here, or a National Council of Women. ... The full membership roll of the Alliance now includes Australia, Bulgaria, Canada, Denmark, Finland, Germany, Great Britain, Hungary, Italy, the Netherlands, Norway, Russia, Sweden, United States, South Africa and Switzerland. Perhaps the most important new departure at Amsterdam was the fact that official representatives were sent to that meeting by the Australian Federation, Norway and the State of Utah. Those coming from Australia and Norway were not only delegated by the Government but their expenses were borne by the National Treasury, and they were sent as students of the whole question as represented internationally by the Alliance, and expected to

report upon it to their respective governments. ... Fraternal delegates came to the Alliance from the International Council of Women, and from the National Councils of Belgium, Denmark, France, Germany, Great Britain, the Netherlands, New Zealand, Norway and Sweden; and in addition to these fraternal delegates were sent by seventeen associations from the countries already mentioned and Scotland in addition; making in all twenty-one countries represented either by regular delegates or by fraternal delegates at the Amsterdam conference."

***Proceedings of the 40th Annual Convention of the
National American Woman Suffrage Association, at Buffalo,
New York, October, 1908.***

ELECTIVE FRANCHISE: New Zealand:
Its working in that country.

Sir Joseph George Ward, Prime Minister of New Zealand, returning home from England in August, 1908, passed through the United States, and was questioned in New York about the working of woman suffrage in his country, where women have been voters for the last sixteen years. He declared his conviction that New Zealand had found it to be one of the most far-sighted policies ever put into effect, for the ballot in the hands of women had exercised a great influence for the general good. "A stranger coming to New Zealand," he said, "would not recognize any difference between our institutions and those here, so far as the right of women to vote is concerned. He would see no women politicians, no campaign orators of the other sex, no disturbances such as are so often pictured as one of the attendant ills of woman's suffrage.

{228}

"Under our laws women cannot stand for Parliament, nor hold any other office. They do not mix it up in a campaign. You

never hear of them in this way during an election. They attend public meetings, they are present at all of the public ceremonies, and are unusually well-informed upon all public questions. When they vote they vote intelligently, and any woman over twenty-one years of age and a citizen of the country can vote. Her right to vote does not, as many imagine, cause family dissensions, nor family wrangles such as cartoonists picture. There are no more differences over politics in New Zealand families than there are over domestic problems in the United States. The ballot in the hands of the women, so far as I have observed, means only the healthy influence of the home injected into politics. Our law prohibits the solicitation of votes on election day; the placarding of streets and houses, the use of vehicles to carry voters, the exerting of any influence to obtain a vote. A wife may accompany her husband to the polls, to the door of the booth, but no further. The laws absolutely protect the privacy of the ballot.

"In New Zealand the granting of the privilege of voting to women did not result in the levelling of the wage scale, or the competition between men and women in labor. In comparison with other countries the proportion of wage-earning women in New Zealand is small. She has her place to fill in the home, and there are no truer and more devoted mothers of families in the world. I believe that her influence upon man is all the greater and better by reason of her suffrage. She recognizes the position of man as the head of the household, and he is, generally speaking, always the wage-earner, and I firmly believe that if women could under our laws be elected to office and have a part in the making of laws, they would not seek legislation that would tend to further advance themselves and limit the activity of the men.

"Women's suffrage has surely resulted in the raising of the standard of education in our country. The class of ignorant people is very small, and growing smaller and smaller with

each succeeding generation. ... The country has not been without its political and labor demagogues, but the conservative judgment of the voters has always prevailed in the end. Graft is something unknown in New Zealand."

ELECTIVE FRANCHISE:

The Increasing Vote of Women at local option polls and in general elections.

See (in this Volume)

ALCOHOL PROBLEM: NEW ZEALAND.

-----ELECTIVE FRANCHISE: End-----

ELECTIVE FRANCHISE.

See, (in this Volume)

MUNICIPAL GOVERNMENT.

ELECTRICITY.

See (in this Volume and in Volume VI.)

SCIENCE AND INVENTION, RECENT.

ELECTRO-CHEMISTRY.

See (in this Volume)

SCIENCE AND INVENTION: ELECTRO-CHEMISTRY.

ELECTRONS.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: PHYSICAL.

ELEVATOR COMBINATION, Dissolution of the.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

ELGIN, The Earl of:
Secretary of State for the Colonies (British).

See (in this Volume)
ENGLAND: A. D. 1905-1906.

ELGIN, The Earl of:
Presiding at Imperial Conference.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

ELIOT, Charles W.:
Retirement from Presidency of Harvard University.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

ELKINS, Anti-Rebate Law.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1903 (February).

ELKINS CLAUSE, The.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1906-1909.

EMERGENCY CURRENCY ACT.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1908.

EMERY CLAIM, The.

See (in this Volume)
CENTRAL AMERICA: A. D. 1909: NICARAGUA.

EMIGRATION.

See (in this Volume)
IMMIGRATION; also
RACE PROBLEMS.

EMPIRE DAY.

See (in this Volume)
ENGLAND: A. D. 1903 (MAY).

EMPLOYERS' LIABILITY.

See (in this Volume)
LABOR PROTECTION.

ENCYCLICALS.

See Papacy.

ENDJUMEN FUTUVAT, The:
An anti-parliamentary party.

See (in this Volume)
PERSIA: A. D. 1906-1907.

-----ENGLAND: Start-----

[Footnote: For convenience of use in the many references to this heading throughout the Volume, the name of England is made to stand for The United Kingdom of Great Britain and Ireland,—a stretch of meaning which seems often permissible.]

ENGLAND: A. D. 1870-1905.

Increase of Population compared with other European Countries.

See (in this Volume)

EUROPE: A. D. 1870-1905.

ENGLAND: A. D. 1900.

Comparative Statement of the Consumption of Alcoholic Drink.

See (in this Volume)

ALCOHOL PROBLEM.

ENGLAND: A. D. 1901.

Census of the British Empire compiled.

See (in this Volume)

BRITISH EMPIRE.

{229}

ENGLAND: A. D. 1901.

Census of England and Wales, and of the United Kingdom.

Population.

Relative numbers of males and females.

Agricultural industry.

Extent of various uses of the soil.

The different kinds of areas.

The eleventh Census of the population of England and Wales was taken April 1st, 1901, "ascertaining the required information relating to the persons returned as living at midnight on Sunday, March 31st." The number enumerated in England and Wales, as finally revised at the Census Office, was 35,527,843; showing an increase of 3,525,318, or a decennial rate of increase of 12.17 percent, upon the number returned at the preceding enumeration in April, 1891. Of the persons enumerated in England and Wales in 1901, 15,728,613 were males

and 16,799,230 were females, the latter exceeding the former by 1,070,617. This, however, does not represent the relative numbers of the two sexes that **belong** to the population of the country; "for there are always men temporarily absent abroad as soldiers or seamen or for business purposes"; while, on the other hand, "the enumerated population temporarily includes some soldiers and sailors who were born in Scotland and Ireland, as well as foreign sailors and business representatives." Making reckonings for these, "the population **belonging** to England and Wales at the date of the Census may be estimated at 32,805,040 persons, of whom 16,005,810 were males, and 16,799,230 were females." During the ten years prior to 1901 the recorded male births in England exceeded the female births by 160,987, while the recorded deaths of males exceeded the deaths of females by 155,363. This would have about evened their numbers in the population of 1901; hence the existing excess of females is due, in the main, to the more extensive emigration or temporary absence of males.

Of the population of England and Wales less than 4 per cent. was born outside of those two divisions of the United Kingdom; not quite 1 per cent. was born in Scotland; a little more than 1.3 per cent. was born in Ireland; a trifle more than 1 per cent. in foreign countries, and an insignificant fraction in British colonies and dependencies. England, it will be seen, is troubled very slightly with problems arising from a mixed population.

The Census of Scotland and Ireland, taken simultaneously with that of England and Wales, gave the former a population of 4,472,103, and the latter 4,458,775. Scotland had gained 46,456 since 1891; Ireland had lost in the same period 245,975. In the sixty years since 1841 Ireland had lost more than 3,700,000. The total of population in the United Kingdom, at midnight, March 31, 1901, was found to be 41,458,721; and the females exceeded the males in number by 1,253,905. The

excess was least in Ireland.

Judged by the numbers engaged therein, the Agricultural Industry is still the most important in the United Kingdom; but, since 1881, it had been reduced from 2,362,331 males to 2,109,812 in 1901. The decline was far less in Ireland than in England, Scotland, or Wales. In England and Wales, the whole area of land, amounting to 37,129,162 acres, or 58,014 square miles, is divided by the census report into areas as follows:

Acres.

Corn Crops

5,886,052

Green Crops

2,511,744

Clover and grasses under rotation

3,262,926

Flax, Hops, Small Fruit

120,683

Bare Fallow

336,884

Permanent Pasture or Grass

15,399,025

Mountain and Heath Land used for Grazing

3,556,636

Woods, Plantations, Nursery Grounds,
Houses, Streets, Roads, Railways,
Waste Grounds, &c.

6,055,212

Total Land Area of England and Wales.

37,129,162

The enumeration of "different kinds of
areas," in England and
Wales, as set forth in the Census report,
is interesting in

some particulars—such as these:

54 Ancient Counties;

62 Administrative Counties;

468 Parliamentary Areas;

2 Ecclesiastical Provinces;

35 Ecclesiastical Dioceses;

14,080 Ecclesiastical Parishes;

14,900 Civil Parishes;

67 County Boroughs;

28 Metropolitan Boroughs with their

Wards;

54 County Court Circuits;

500 County Court Districts;

1122 Urban Districts

(including 316 County or Municipal
Boroughs) with the

Wards of those which are so
subdivided;

664 Rural Districts.

***Census of England and Wales, 1901.
General Report.
(Parliamentary Papers, 1904, Cd.
2174.)***

ENGLAND: A. D. 1901 (NOVEMBER).

An addition to the Titles of the King.

The following is part of the proclamation of an addition to the titles of the King which was made on the 4th of November, 1901:

"Whereas an act was passed in the last session of Parliament, entitled 'An act to enable His Most Gracious Majesty to make an addition to the royal style and titles in recognition of His Majesty's dominions beyond the seas,' which act enacts that it shall be lawful for us, with a view to such recognition as aforesaid of our dominions beyond the seas, by our royal proclamation under the great seal of the United Kingdom issued within six months after the passing of the said act, to make such addition to the style and titles at present appertaining to the Imperial Crown of the United Kingdom and its dependencies as to us may seem fit; and

"Whereas our present style and titles are, in the Latin tongue, 'Edwardus VII Dei Gratia Britanniarum Rex, Fidei Defensor, Indiæ Imperator,' and in the English tongue, 'Edward VII, by the Grace of God of the United Kingdom of Great Britain and Ireland King, Defender of the Faith, Emperor of India,' we have thought fit, by and with the advice of our privy council, to appoint and declare, and we do hereby, by and with the said advice, appoint and declare that henceforth, so far as conveniently may be, on all occasions and in all instruments wherein our style and titles are used, the following addition shall be made to the style and titles at

present appertaining to the Imperial Crown of the United Kingdom and its dependencies—that is to say, in the Latin tongue, after the word ‘Britanniarum,’ these words, ‘et terrarum transmarinarum quæ inditione sunt Britannicâ’; and in the English tongue, after the words ‘of the United Kingdom of Great Britain and Ireland,’ these words, ‘and of the British Dominions beyond the Seas.’”

ENGLAND: A. D. 1901-1902.

The last year of the Boer-British War.

Peace preliminaries.

Text of the Treaty concluded.

See (in this Volume)

SOUTH AFRICA: A. D. 1901-1902.

ENGLAND: A. D. 1901-1902 (NOVEMBER-FEBRUARY).

Treaty with the United States to facilitate the construction of a Ship Canal between the Atlantic and Pacific Oceans.

See PANAMA CANAL: A. D. 1901-1902.

ENGLAND: A. D. 1902.

Arbitration and mediation between the Argentine Republic and Chile.

See (in this Volume)

ARGENTINE REPUBLIC.

ENGLAND: A. D. 1902 (JANUARY).

Agreement in the nature of a Defensive Alliance with Japan.

See (in this Volume)

JAPAN: A. D. 1902.

ENGLAND: A. D. 1902 (FEBRUARY).

Wei-hai-wei found valueless.

Fortification abandoned.

The British public was unpleasantly surprised on the 11th of February, 1902, by an official announcement in Parliament that the fortifying of the port of Wei-hai-wei, on the Chinese coast (extorted from China in 1898 as an offset to the cession of Port Arthur to Russia, had been abandoned, for the reason that military and naval opinion agreed in concluding that the place had no strategic value.

See, in Volume VI. of this work,

CHINA: A. D. 1898, MARCH-JULY).

It would not be returned to China, however, having usefulness for experiments in naval gunnery, and as a sanitarium. The announcement drew much sarcasm on the Government.

ENGLAND: A. D. 1902 (February).

Opposed deliverances of Lord Rosebery and

Sir Henry Campbell-Bannerman on Irish Home Rule.

See (in this Volume)

IRELAND: A. D. 1902 (FEBRUARY).

ENGLAND: A. D. 1902 (MARCH-NOVEMBER).

Passage of the Education Act, in the interest of voluntary or church schools.

"Passive Resistance" of Nonconformists.

See (in this Volume)

EDUCATION: ENGLAND: A. D. 1902.

ENGLAND: A. D. 1902 (MAY).

Treaty with Abyssinia.

See ABYSSINIA: A. D. 1902.

ENGLAND: A. D. 1902 (JUNE-AUGUST).

Illness and deferred Coronation of King Edward VII.

While England was preparing, in the last half of June, 1902, for the great ceremony of the Coronation of King Edward VII., appointed to take place on the 26th, disquieting accounts of his Majesty's health began to appear. Some exposure at Aldershot, during military reviews, had brought on a chill, it was said; and though it was made light of in the reports, there was anxiety abroad. The King and Queen came to London from Windsor on the 23d, and all seemed to promise well. That evening he attended a State banquet; but a little before noon the next morning the nation received a dreadful shock from the announcement: "The King is suffering from perityphlitis [more familiarly known as appendicitis]. The condition on Saturday was so satisfactory that it was hoped that, with care, his Majesty would be able to go through the Coronation ceremonies. On Monday evening a recrudescence became manifest, rendering a surgical operation necessary to-day." A serious disappointment as well as a grave anxiety was produced. Preparations for the pageant and the solemnities of the Coronation had been made on a splendid scale. London was crowded with visitors from all parts of the world, and specially decorated as never before. The sudden descent of grief and fear and gloom on the gayeties of the scene was a transformation which London and England can never forget.

Within three hours from the first startling report the success of the operation was made known. The King had borne it well and was in a satisfactory state. From that time on there were none but good reports. On the 5th of July he was declared to be out of danger. On the 15th he was removed to the royal yacht ***Victoria and Albert*** and taken to Cowes. At the end of seven weeks he had recovered so fully as to be able to bear the fatigues and the strain of a trying ceremony, and the

King and Queen were crowned in Westminster Abbey on the 9th of August, with somewhat less of magnificent public show than had been prepared for the 26th of June, but nevertheless with regal pomp.

ENGLAND: A. D. 1902 (June-August).

Conference with the Prime Ministers of the Self-Governing Colonies.

See (in this Volume)
BRITISH EMPIRE.

ENGLAND: A. D. 1902 (July).

Resignation of Lord Salisbury.

Mr. Balfour's succession to the Premiership.

The new Ministry.

Failing health compelled the Marquis of Salisbury to ask, on the 11th of July, for relief from the cares of the office of Prime Minister. His resignation was accepted, and Mr. Arthur J. Balfour, First Lord of the Treasury in Lord Salisbury's Ministry, was invited by the King to the vacant place. Some changes in the Cabinet followed, Sir Michael Hicks-Beach retiring from the Chancellorship of the Exchequer, and being succeeded by Mr. C. T. Ritchie; Mr. A. Akers-Douglas entering the Cabinet as Home Secretary; Mr. G. Wyndham continuing in the office of Chief Secretary for Ireland, but coming into the Cabinet; Mr. Austen Chamberlain, son of the Right Honorable Joseph Chamberlain, also receiving a Cabinet seat as Postmaster-General.

ENGLAND: A. D. 1902 (August).

Passage of Licensing Bill.

See (in this Volume)
ALCOHOL PROBLEM: ENGLAND: A. D. 1902.

ENGLAND: A. D. 1902 (September).

Arrangements of the Government with the Cunard Company and the International Mercantile Marine Company.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: INTERNATIONAL.

ENGLAND: A. D. 1902-1904.

Coercive proceedings against Venezuela concerted with Germany and Italy.

Settlement of Claims secured.

Reference to The Hague.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

ENGLAND: A. D. 1902-1904.

The Mission of Colonel Younghusband to Tibet.

Its advance in force to Lhasa.

The Treaty secured.

See (in this Volume)

TIBET: A. D. 1902-1904.

ENGLAND: A. D. 1903.

Passage of the Land Purchase Act for Ireland.

See (in this Volume)

IRELAND: A. D. 1870-1903.

ENGLAND: A. D. 1903.

Declines to be a party to the building of the Bagdad Railway.

See (in this Volume)

RAILWAYS; TURKEY: A. D. 1899-1909.

ENGLAND: A. D. 1903 (March).

Debate in Parliament on the South African Labor Question.

See (in this Volume)

SOUTH AFRICA: A. D. 1903-1904.

ENGLAND: A. D. 1903 (March).

Passage of the Employment of Children Bill.

See (in this Volume)

LABOR PROTECTION.

ENGLAND: A. D. 1903 (June).

The Celebration of Empire Day.

A Canadian custom of celebrating Queen Victoria's birthday, June 24, as Empire Day, was taken up in Great Britain in 1903, and "the movement," says the London *Times*, "has spread with striking rapidity." The day is made especially interesting in the schools, where the morning of the day is given to addresses on citizenship and the Empire and to the singing of patriotic songs, while the afternoon is a half-holiday.

ENGLAND: A. D. 1903 (May-September).

Mr. Chamberlain's declaration for Preferential Trade with the British Colonies.

The political commotion excited.

Mr. Balfour's puzzling attitude on the questions raised.

It is made clear by the correspondence when Mr. Chamberlain resigns.

The latter's propagandism.

In June, 1902, when, as Secretary of State for the Colonies, Mr. Joseph Chamberlain addressed the Conference of Prime Ministers from the self-governing British Colonies, his mind was manifestly not prepared to accept as a practicable proposition their request that the United Kingdom would grant

"preferential treatment to the products and manufactures of the Colonies."

See (in this Volume)
BRITISH EMPIRE: A. D. 1902)

{231}

"Preferential treatment" meant an Imperial protective-tariff policy, with discrimination of duties in favor of imports from British colonies. As the products of the colonies were mostly food stuffs and raw materials for manufacture, it meant a taxing of the supplies of these to British tables and British industries from every source outside the colonies. It meant an artificial higher pricing in the market of the British Isles for everything in which cost bears hardest on the livelihood and the living of their people. Mr. Chamberlain, in 1902, was waxing ardent in the high mission he had undertaken, of unifying and consolidating the great British Empire, strengthening the ties of family between Mother England and her scattered brood; but he had not yet been persuaded that the mother could afford to expend quite so much as this of her own well-being on premiums for the allegiance of her offspring.

In the course of the next year, however, the Colonial Secretary spent some weeks in South Africa, and seems to have been remarkably intensified in his imperializing aims by what he saw and learned. He came home filled with the conviction that England must, for the sake of a really unified and incorporated Empire, abandon the free opening of her markets, which gave her people the cheapest food and the cheapest materials for labor that the world at large could furnish, and must wall them and gate them, with differing keys to the locks, so that her own colonists might be given the "preferential" admission they claim. If he had arrived at that conviction before going to South Africa he had made no sign of

it; but it was proclaimed soon after his return, in a speech to his constituents at Birmingham, on the 15th of May, which shook England as no sudden development in politics had done for many years. The time had come, he declared, when the country must decide for or against a deliberate policy of Imperial unification, which required it to reciprocate the preferential tariffs which the colonies had adopted or were offering to adopt. Canada had given Great Britain a preference in her tariff, first of 25 per cent., afterwards increased to 33 1/3 per cent., and was ready to go farther if the British Government would reciprocate, in allowing a drawback on the shilling corn duty (a duty which had been levied for a year past, and was about to be removed). At the Colonial Conference of the previous year the representatives of Australia and New Zealand had expressed readiness to act on the same line. A recent conference of the British colonies in South Africa had recommended the Legislatures of those colonies to give the Mother Country a similar preference on all dutiable goods of 25 per cent. Whether this policy of the colonies should be developed in the future or withdrawn depended now on the treatment given to it by the people of Great Britain.

"The people of the Empire," continued Mr. Chamberlain, "have two alternatives before them. They may maintain if they like in all its severity the interpretation—in my mind an entirely artificial and wrong interpretation—which has been placed on the doctrines of Free Trade by a small remnant of the Little Englanders, of the Manchester school, who now profess to be the sole repositories of the doctrines of Mr. Cobden and Mr. Bright. They may maintain that policy in all its severity, though it is repudiated by every other nation and by all your own Colonies. In that case they will be absolutely precluded either from giving any kind of preference or favour to any of their Colonies abroad, or even protecting their Colonies abroad when they offer to favour us. That is the first alternative. The second alternative is that we should insist that we will not be bound by any purely technical definition

of Free Trade, that, while we seek as one chief object free interchange of trade and commerce between ourselves and all the nations of the world, we will, nevertheless, recover our freedom, resume that power of negotiation and, if necessary, retaliation whenever our own interests or our relation between our Colonies and ourselves are threatened by other people.

"I leave the matter," said Mr. Chamberlain, "in your hands. I desire that a discussion on this subject should be opened. The time has not yet come to settle it, but it seems to me that for good or for evil this is an issue much greater in its consequences than any of our local disputes. Make a mistake in legislation. Yet it can be corrected. Make a mistake in your Imperial policy. It is irretrievable. You have an opportunity; you will never have it again."

Naturally this speech, from a Minister of the Crown, as important and influential in the Government and in his party as Mr. Chamberlain, caused an immense political commotion. It had suddenly injected a new issue into the politics of the United Kingdom, involving some reconstruction of the party in possession of power, and a fundamental readjustment of principles in some part of it, more or less, according to the following that Mr. Chamberlain secured. Would he leave the Ministry or the Ministry leave him?—was the question of the hour. It remained unanswered for three months or more, while controversy over the propositions of Mr. Chamberlain raged and the situation became more puzzling every day. Meantime the head of the Government, Mr. Balfour, was acting like a faithful adherent to the English principle of freedom in trade, by advocating a repeal of the incongruous corn duty levied the year before, but speaking, at the same time, like a man of open mind on the question of preferential trade, treating it as one that demanded careful thought. "If foreign countries," he said, "should take the view that our self-governing colonies could be treated as separate nations we must resist their policy by fiscal retaliation. There must

be a weapon to our hands with which to meet those who might attempt to disintegrate the Empire by fiscal means. The question whether we should be justified in raising revenue with the object of drawing the different portions of the Empire more closely together was certainly well worth consideration."

All that he said in these months conveyed the impression that he was in an undetermined, waiting state of mind on the question raised by Mr. Chamberlain, not yet convinced that his colleague should be supported in the new policy proposed, but quite likely to be. That, however, was not the attitude in which he could hold the two coalesced parties, Conservative and Liberal Union, that were behind him in the Government. The issue had instant activity there, dividing both. The Premier could suppress debate on it in Parliament, as he did, but everywhere else in the kingdom the rage of controversy gathered heat, and party lines on the side of the Government were rapidly confused. Two members of the Cabinet resigned, while Mr. Chamberlain kept his place in it until the 9th of September, when he addressed to Mr. Balfour a letter which offered his resignation, for reasons stated as follows:

{232}

"Owing to admitted differences of opinion in the Unionist party the political organisations of the party were paralysed and our opponents have had full possession of the field. ... I recognise that serious prejudice has been created, and that, while the people generally are alive to the danger of unrestricted competition on the part of those foreign countries that close their markets to us while finding in our market an outlet for their surplus production, they have not yet appreciated the importance to our trade of Colonial markets, nor the danger of losing them if we do not meet in some way their natural and patriotic desire for preferential trade.

"The result is that, for the present at any rate, a preferential agreement with our Colonies involving any new duty, however small, on articles of food hitherto untaxed is, even if accompanied by a reduction of taxation on other articles of food of equally universal consumption, unacceptable to the majority in the constituencies. ...

"I suggest that you should limit the present policy of the Government to the assertion of our freedom in the case of all commercial relations with foreign countries, and that you should agree to my tendering my resignation of my present office to his Majesty and devoting myself to the work of explaining and popularising those principles of Imperial union which my experience has convinced me are essential to our future welfare and prosperity."

Mr. Balfour's reply to this, when published, disclosed the fact that he was wholly in agreement with Mr. Chamberlain, and that they were now parting company in order to pursue a common purpose more effectually on different lines. Both saw that England was not to be drawn easily away from its fundamental belief in freedom of trade; that what they had undertaken would require much persuasive labor and considerable time, if accomplished at all; wherefore Mr. Chamberlain accepted an assignment to the missionary field of the imperialist cause, while Mr. Balfour would continue his endeavor to hold a party in waiting for the fruits of the mission, and in possession of the government as long as circumstances might permit. The programme was disclosed frankly in the two letters. In that of Mr. Balfour he said:

"Agreeing as I do with you that the time has come when a change should be made in the fiscal canons by which we have bound ourselves in our commercial dealings with other Governments, it seems paradoxical, indeed, that you should leave the Cabinet at the time that others of my colleagues are

leaving it who disagree on that very point with us both. Yet I can not but admit, however reluctantly, that there is some force in the arguments with which you support that course, based as they are upon your special and personal relation to that portion of the controversy which deals with Colonial preference. You have done more than any man, living or dead, to bring home to the citizens of the Empire the consciousness of Imperial obligation, and the interdependence between the various fragments into which the Empire is geographically divided. I believe you to be right in holding that this interdependence should find expression in our commercial relations as well as in our political and military relations. I believe with you that closer fiscal union between the Mother Country and her Colonies would be good for the trade of both, and that, if much closer union could be established on fitting terms, its advantage to both parties would increase as the years went on and as the Colonies grew in wealth and population.

"If there ever has been any difference between us in connection with this matter it has only been with regard to the practicability of a proposal which would seem to require, on the part of the Colonies, a limitation in the all-round development of a protective policy, and on the part of this country the establishment of a preference in favour of important Colonial products. On the first of these requirements I say nothing, but if the second involves, as it almost certainly does, taxation, however light, upon food stuffs, I am convinced with you that public opinion is not yet ripe for such an arrangement. ...

"I feel, however, deeply concerned that you should regard this conclusion, however well founded, as one which makes it difficult for you, in your very special circumstances, to remain a member of the Government. Yet I do not venture, in a matter so strictly personal, to raise any objection.

"If you think you can best serve the interests of Imperial unity, for which you have done so much, by pressing your views on Colonial preference with the freedom which is possible in an independent position, but is hardly compatible with office, how can I criticise your determination? The loss to the Government is great, but the gain to the cause you have at heart may be greater still. If so, what can I do but acquiesce?"

So Mr. Chamberlain left the Cabinet, with Mr. Balfour's blessing and God-speed, and went out to preach the gospel of commercial imperialism, under the more carefully chosen name of "fiscal reform." His co-laborer, who stayed at the helm of State, was so favored by circumstances as to hold it for somewhat more than another year. But the propagandism made no satisfying progress in that year; it seems doubtful, indeed, if Mr. Chamberlain won as many disciples as he lost from his first following.

ENGLAND: A. D. 1903 (August).
Employment of Children Act.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS WORKERS.

ENGLAND: A. D. 1903 (August).
Communication to the Powers that were parties to the Berlin Act of 1884-1885, asking their attention to the Administration of the Congo State.

See (in this Volume)
CONGO STATE: A. D. 1903-1905.

ENGLAND: A. D. 1903 (October).
Settlement of the Alaska boundary question.

See (in this Volume)

ALASKA: A. D. 1903.

ENGLAND: A. D. 1903-1904.

Canadian measures to establish British sovereignty over land and sea of Hudson Bay region.

See (in this Volume)

CANADA: A. D. 1903-1904.

ENGLAND: A. D. 1904.

Arbitration of boundary dispute between British Guiana and Brazil.

See (in this Volume)

BRAZIL: A. D. 1904.

ENGLAND: A. D. 1904.

Her rivals in the Persian Gulf.

See PERSIA: A. D. 1904.

{233}

ENGLAND: A. D. 1904 (April).

The agreements of the Entente Cordiale with France.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

ENGLAND: A. D. 1904 (April-August).

Agitation over the Licensing Bill, which passed Parliament after much bitter debate.

See (in this Volume)

ALCOHOL PROBLEM: ENGLAND: A. D. 1904.

ENGLAND: A. D. 1904 (July).

The question of Church Attendance in school hours.

See (in this Volume)

EDUCATION: ENGLAND: A. D. 1904.

ENGLAND: A. D. 1904 (October).

The Dogger Bank incident of the voyage of the Russian Baltic Fleet.

See (in this Volume)

JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

ENGLAND: A. D. 1904-1905.

The Esher Army Commission and its Report.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY.

ENGLAND: A. D. 1905.

Reopened controversy with the United States over Newfoundland Fisheries questions.

See (in this Volume)

NEWFOUNDLAND: A. D. 1905-1909.

ENGLAND: A. D. 1905.

Action with other Powers in forcing financial reforms in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

ENGLAND: A. D. 1905.

Unemployed Workmen Act.

See (in this Volume)

POVERTY, PROBLEMS OF: ENGLAND: A. D. 1905.

ENGLAND: A. D. 1905 (March).

Partially Representative Legislative Assembly created in the Transvaal.

See (in this Volume)

SOUTH AFRICA: A. D. 1905-1907.

ENGLAND: A. D. 1905 (April).

Order relating to Underfed School Children.

See (in this Volume)

EDUCATION: ENGLAND: A. D. 1905.

ENGLAND: A. D. 1905 (April).

Treaty with Nicaragua concerning the Mosquito Territory.

See (in this Volume)

CENTRAL AMERICA: NICARAGUA: A. D. 1905.

ENGLAND: A. D. 1905 (June).

Change in the office of Speaker of the House of Commons.

After a service of more than ten years in the speaker's chair of the House of Commons, Mr. W. C. Gully resigned, on account of failing health, and the Deputy Speaker, Mr. J. W. Lowther, was chosen in his place, with no dissent. Subsequently, Mr. Gully was raised to the peerage and received an annual grant of £5000 for life.

ENGLAND: A. D. 1905 (June).

Frauds in the sale of surplus army stores in South Africa.

An exciting scandal, connected with the sale of surplus army stores, in South Africa, after the closing of the Boer War, came to light in June. It was found that stores had been sold to certain contractors at very low prices, and then

repurchased at high figures under new contracts entered into with the same contractors. Several army officers, including two colonels, were implicated in what the investigating committee described mildly as "a cleverly arranged contrivance."

ENGLAND: A. D. 1905 (August).
New Defensive Agreement with Japan.

See (in this Volume)
JAPAN: A. D. 1905 (AUGUST).

ENGLAND: A. D. 1905 (August).
Resignation of the Viceroyalty of India by Lord Curzon.

See (in this Volume)
INDIA: A. D. 1905 (AUGUST).

ENGLAND: A. D. 1905-1906.
Resignation of the Balfour Ministry.
The Liberal Party in power.
Sir Henry Campbell-Bannerman Prime Minister.
His Cabinet.
His attitude toward Ireland.
Strength of the Labor Party in Parliament.
Its representative in the Cabinet.

The Education Act of 1902, the apostasy of Mr. Chamberlain and his Conservative Unionist followers from British Free Trade principles, proclaimed in 1903, and the Licensing Act of 1904, had each, in turn, been productive of bitter disagreements and ruptures which rapidly lowered the strength of the party in power. It had been in control of the Government since 1895, when its opposition to Irish Home Rule was endorsed by a large majority. The next election, in 1900, during the war in South Africa, reinforced its Parliamentary support, and it could count, during the two years following, on more than 400 votes

in the House of Commons, against about 268. After that period its Parliamentary majority in the popular chamber ran down, until, in the later months of 1905, it was no more than 75 or 76. This would have been an ample majority if it had represented an equivalent preponderance of public support, which, manifestly, it did not. For three years the "by-elections,"—that is, the special elections ordered for filling vacancies in the House as they occurred,—had been going steadily against the Government, and nobody doubted that a general election would throw it out. It was challenged again and again to give the country an opportunity to express its feeling in the matter, by a dissolution of Parliament, without waiting for any nearer approach to the end of the term. This it would not do; but, on the 4th of December, 1905, the Premier, Mr. Balfour, surprised the country, and likewise his own Cabinet, it was said, by placing his resignation in the hands of the King.

This proceeding was regarded as an artful manoeuvre in politics, for the embarrassment of the opposition. As explained at the time by a journalist who wrote of it on the side of the latter,—"The Liberals naturally desired that the country should have an opportunity of going to the polls on the clear issue raised by the record of ten years of Tory administration. They regarded Mr. Balfour and his party as being in the dock, and before they took office they wished to have the verdict of the country returned by the votes of the electors. But this, for equally obvious reasons, Mr. Balfour wished to avoid. By resigning now, he compelled his opponents to undertake the task, first of forming a new administration, with all the risks which it involves of personal slight and sectional differences, and, secondly, of facing the risk of any untoward incident arising in the next few weeks which might be used against the new-born government. It also would enable them to obscure to a certain extent the real issue before the country. Instead of simply voting for or against Mr. Balfour and his administration, they would be asked to

express their opinion upon a new ministry, which had not had any opportunity of giving the country a taste of its quality. But as Mr. Balfour could not be compelled to stay in when he had made up his mind to go out, and as it was such a relief to get rid of him on any terms, the Liberals consented to face the disadvantages of taking office before the dissolution."

{234}

Sir Henry Campbell-Bannerman was invited by the King to form a Ministry, and accepted the Commission. The organization of his Cabinet was completed within the week following Mr. Balfour's resignation, and it took office at once. Parliament was dissolved on the 8th of January, 1906, and a new Parliament was summoned to meet on February 13th. Elections began on the 12th of January and were finished for the most part by the 19th. In their total result, they returned 375 Liberals to the House of Commons, 55 Labor representatives, who would act on most questions with the Liberals, and 83 Irish Nationalists, whose attitude towards the new Ministry would depend upon its attitude on Irish questions, and seemed more likely to be friendly than otherwise. Against this array on the side of Sir Henry and his colleagues, of pledged partisans and conditional allies, the Conservative Unionists had secured an Opposition in the House that numbered only 157. The political overturn was one of the most remarkable that the United Kingdom has ever known.

The Cabinet as formed when Sir Henry Campbell-Bannerman took office was made up as follows:

Prime Minister and First Lord of the Treasury,
Sir Henry Campbell-Bannerman.

Lord Chancellor, Sir Robert T. Reid.

Chancellor of the Exchequer,

Herbert H. Asquith.

Secretary of State for Foreign Affairs,
Sir Edward Grey.

Secretary of State for the Colonies,
the Earl of Elgin.

Secretary of State for War,
Richard B. Haldane.

Secretary of State for Home Affairs,
Herbert J. Gladstone.

Secretary of State for India,
John Morley.

First Lord of the Admiralty,
Lord Tweedmouth.

President of the Board of Trade,
David Lloyd-George.

President of the Local Government Board,
John Burns.

Chief Secretary for Scotland,
John Sinclair.

President of the Board of Agriculture,
Earl Carrington.

Postmaster-General,
Sydney C. Buxton.

Chief Secretary for Ireland,
James Bryce.

Lord President of the Council,
the Earl of Crewe.

Lord of the Privy Seal,
the Marquis of Ripon.

President of the Board of Education,
Augustine Birrell.

Chancellor of the Duchy of Lancaster,
Sir Henry H. Fowler.

The following were not members of the cabinet, but formed part
of the administration:

Lord Lieutenant of Ireland,
the Earl of Aberdeen.

Under Secretary for the Colonies,
Winston L. Churchill.

First Commissioner of Works,
Louis Vernon-Harcourt.

Attorney-General,
John Lawson Walton.

Solicitor-General,
William S. Robson.

That Lord Rosebery had no place in the new Liberal administration was due to his wide disagreement with most of the leaders of his party on the question of Home Rule for Ireland. When he succeeded Mr. Gladstone as Prime Minister, in 1894, he quite distinctly discarded that line of Irish policy, and his antagonism to it had undergone no change.

See, in Volume VI. of this work,
ENGLAND: A. D. 1894-1895)

On the other hand, Sir Henry Campbell-Bannerman had remained faithfully sympathetic with Mr. Gladstone's idea of Ireland's due from England, and had reannounced his standing on it in a recent speech. "My opinion," he said, "has long been known to you. It is that the only way of healing the evils of Ireland,—difficulties of her administration, of giving contentment and prosperity to her people, and of making her a strength instead of a weakness to the empire,—is that the Irish people should have the management of their own domestic affairs; and so far from this opinion fading and dwindling as the years pass, it is becoming stronger, and, what is more, I have more confidence in its realization. ... If I were asked for advice by an ardent Nationalist, I would say my desire is to see the effective management of Irish affairs in the hands of a representative Irish party. ... I trust that the opportunity of making a great advance on this question of Irish government will not long be delayed, and when that opportunity comes my firm belief is that a greater measure of agreement than hitherto as to the ultimate solution will be found possible, and that a keener appreciation will be felt of the benefits that will flow to the Irish communities and British people throughout the world, and that Ireland, from being disaffected, impoverished, and discouraged, will take its place as a strong, harmonious, and contented portion of the empire."

That Sir Henry, maintaining this posture on the Irish question of questions, could be the accepted leader of the Liberal party and the Premier of Government, afforded clear evidence that the party, and the country which confided power to that party, were at least more nearly prepared to make the great concession to Ireland than they were to refuse it; but the question entered slightly into the parliamentary canvass,

though the Conservative-Unionists strove hard to make it the dominant issue. The public mind was occupied so fully with the fiscal and educational controversies of the last three years that the motives in its voting came mostly from them. The mandates of the vote were understood to be especially for the amending of recent legislation on those subjects and on the terms of the licensing of the liquor trade. It was equally understood that Irish measures in the Gladstone spirit should be looked for, not hastily undertaken, but in due time.

The fact of most impressive significance in the result of the parliamentary elections was the sudden weight that had been given in the House of Commons to the representation of Labor by laboring men. Since 1903 the Labor Party had emerged in British politics as a force to be taken into serious account.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1900-1906; 1903; and
SOCIALISM: ENGLAND.

Of its 55 members in the new Parliament a considerable number had been elected by a combination of Liberal and Labor votes; but the same combination went as often to the increase of the Liberal representation. One large section of the Labor voters, organized under the name of the Independent Labor Party, stood aloof from such alliances entirely. It had been formed some years before, under the lead of Mr. Keir Hardie, a Scottish miner, with Socialistic beliefs, but opposed to the aims of the Marxian Socialists, and expecting nothing substantially beneficial to the working class from any political party. His mission was to create a Labor Party that would fight its own battles on its own ground. He made no great headway until the Taff Vale decision of 1902 roused the British Trade Unions to fight for their lives. That brought them into the ranks of the Independent Labor Party, and prepared it for the powerful showing it made in the elections of January, 1906, when it polled 303,000 votes, and elected 30 members who are free

lances in the House. The remaining 25 Labor Members act with these on labor questions, but otherwise are to be reckoned as allies of the Liberal Party.

{235}

Foremost among these latter is Mr. John Burns, who represents the Labor Party not only in Parliament but in the Ministry of Government, being the first of his class to be called to a Cabinet seat. A London editor who wrote of him when he took that seat said:

"He has been a working engineer, a strike leader, labor agitator, a London County Councilor for eighteen years, and member of Parliament for fourteen. He is a great leader who never had a party, but whose influence has been felt in every labor movement in England for the last twenty years. The labor and social policy of the London County Council has been largely inspired and directed by him. He has also molded labor legislation in Parliament. Mr. Burns has 'scorned delights and lived laborious days' for the sake of the workers. He is an avowed Socialist. He has never changed his principles, only modified his methods. He is a real Fabian, a skillful opportunist, a tireless worker, and a first-rate organizer. Since he became a Socialist who does things, he has been ostracized by the Socialists who only agitate. Mr. Burns is exercising great influence within the Cabinet, and is one of the men in the confidence and in the secrets of the Prime Minister, who seeks his advice in many matters outside Mr. Burns's department."

The same writer gave the following account of the many important duties and great responsibilities of the office filled by Mr. Burns, as the President of the Local Government Board, which supervises the administration of local government in all England and Wales:

"As President of the Local Government Board, Mr. Burns has multifarious duties committed to his charge. He has to sanction local loans, supervise the finances of local authorities, hold inquiries into proposed new undertakings, exercise the (almost) legislative powers which Parliament has delegated to him by way of provisional orders, and is armed with large powers of initiative, inspection, revision, and veto, so that in some respects he can revolutionize the whole system of local administration. In the domain of Poor Law his authority is paramount. He revises, for example, the rules and regulations which guide the system of relief and the administration of the Poor Law, passes plans for new workhouses, settles the wages of the nurses and porters, and fixes the amount of snuff (if any) which a pauper may receive. Sanitary legislation is also under his supervision, as he acts as Minister of Public Health, and beyond the more strictly local governmental functions belonging to his department there is the social side of his work, such as the administration of the Allotments Acts, the Unemployed Act, inquiring into housing conditions, etc."

ENGLAND: A. D. 1905-1906.

Sudden German hostility to the Anglo-French agreement concerning Morocco.

Demand for an International Conference.

The Conference at Algeciras and the Act signed there.

See (in this Volume)

EUROPE: A. D. 1905-1906.

ENGLAND: A. D. 1905-1906.

Pan-Islamic agitation in Egypt.

Menacing attitude of Turkey.

The Tabah incident.

See (in this Volume)

EGYPT: A. D. 1905-1906.

ENGLAND: A. D. 1905-1909.

Action in Persia during the Constitutional Revolution.

See (in this Volume)
Persia.

ENGLAND: A. D. 1905-1909.

The Aliens Act.

A new policy of restriction on the admission of aliens.
Its working.

See (in this Volume)
IMMIGRATION: ENGLAND: A. D. 1905-1909.

ENGLAND: A. D. 1905-1909.

Progress in cooperative organizations of industry.

See (in this Volume)
LABOR REMUNERATION: COOPERATIVE ORGANIZATION.

ENGLAND: A. D. 1906.

Prevention of Corruption Act.

See (in this Volume)
CRIME AND CRIMINOLOGY.

ENGLAND: A. D. 1906 (March).

Report of Royal Commission on Labor Disputes.

See (in this Volume)
LABOR ORGANIZATION: ENGLAND: A. D. 1906 (MARCH).

ENGLAND: A. D. 1906 (April).

Convention for determining and marking the Alaska Boundary Line.

See (in this Volume)

ALASKA: A. D. 1906.

ENGLAND: A. D. 1906 (April-December).

Fate of the Liberal Education Bill, passed by the Commons and killed by Amendments in the House of Lords.

Resolution of the Commons, contemplating a change of Constitutional Law respecting the Legislative Powers of the House of Lords.

The Education Bill was brought forward by the Government in April and passed by the Commons in December.

See (in this Volume)

EDUCATION: ENGLAND: A. D. 1906

When the bill had been killed by destructive amendments in the House of Lords, the Prime Minister, Sir Henry Campbell-Bannerman, proposed to the House of Commons a resolution, which was adopted, declaring that "the power of the other house to alter or reject bills passed by this house should be so restricted by law as to secure that within the limits of a single Parliament the final decision of the House of Commons shall prevail." In plainer words, this proposed an amendment of what has been, since 1832, an unwritten but understood rule of the British Constitution, namely, that the House of Lords cannot defeat a measure which has been passed by the Commons in successive parliaments, and thus certified, by an intervening election, as being the embodiment of a popular demand. The proposed amendment is to give the force of law to a repeated enactment of the House of Commons, even "within the limits of a single Parliament," and without the intervention of an election.

The Premier has explained that this resolution is adopted only to foreshadow action which the Government intends to take at some convenient future time. So far as indicated by the Premier's resolution, he and his colleagues, if they do

anything affecting the peers in Parliament, will not touch the existing composition of the aristocratic house, but will only shorten the suspense in which it may hold legislation that is persisted in by the popular house. As now exercised, the practical effect of the suspensive veto of the Lords, if not submitted to by the government, is to bring about what is actually a referendum of the question at issue to the people. The proposed constitutional amendment would eliminate the referendum and empower the Commons to override the opposition of the Lords.

{236}

The legislative function of the House of Lords would not differ substantially then from that performed by the President of the United States. Acts of Congress require the approval of the President to make them law. His disapproval sends them back to Congress for reenactment, if two-thirds of both houses persist in them; annulling them if they do not. The function is simply a critical one, and involves no exercise of legislative powers, if the language of our Constitution is correct; for that instrument, in the first section of its first article, says: "all legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and a House of Representatives." Thus the reference of legislation to the President for his approval or disapproval is not recognized as a grant to him of participation in the exercise of legislative powers."

In this view the British House of Lords, when its part in legislation is reduced, like that of the American President, to mere criticism, expressed in approval or a suspensive veto, cannot rightly be regarded as a legislative body, and Parliament can hardly be counted among the bicameral legislatures, as we have counted it hitherto. The House of Commons will hold all the powers of legislation; the House of Lords will be its official critic, commissioned only to make

it think twice in the enactment of some of its laws.

The King has no voice now in the making of British laws, although, when his prerogatives are described, it is still said that "he may refuse the royal assent to any bills." Two hundred years ago it ceased to be prudent for royalty to exercise that prerogative, and Queen Anne, in 1707, asserted it in practice for the last time. The sovereigns of the reigning House of Hanover have never enjoyed the satisfaction of refusing assent to an act of Parliament. Even George III. did not venture it, though he stoutly asserted his right.

ENGLAND: A. D. 1906 (May).

Withdrawal of the last British garrison from Canada.

See (in this Volume)

CANADA: A. D. 1906 (MAY).

ENGLAND: A. D. 1906 (SEPTEMBER).

Army Order instituting the General Staff.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY.

ENGLAND: A. D. 1906 (December).

Broadened self-government extended to the Transvaal and the Orange River Colony.

See (in this Volume)

SOUTH AFRICA: A. D. 1905-1907.

ENGLAND: A. D. 1906 (December).

Passage of the Workmen's Compensation Act.

See (in this Volume)

LABOR PROTECTION.

ENGLAND: A. D. 1907.

Drink in its relation to crime.

See (in this Volume)

ALCOHOL PROBLEM: ENGLAND: A. D. 1907.

ENGLAND: A. D. 1907 (August).

Act legalizing Marriage with a Deceased Wife's Sister.

The following are the main provisions of the Act to legalize marriage with a deceased wife's sister which, after many years of agitation by its advocates and many defeats in Parliament, was passed finally in 1907:

"1. No marriage heretofore or hereafter contracted between a man and his deceased wife's sister, within the realm or without, shall be deemed to have been or shall be void or voidable, as a civil contract, by reason only of such affinity: Provided always that no clergyman in holy orders of the Church of England shall be liable to any suit, penalty, or censure, whether civil or ecclesiastical, for anything done or omitted to be done by him in the performance of the duties of his office to which suit, penalty, or censure he would not have been liable if this Act had not been passed:

"Provided also that when any minister of any church or chapel of the Church of England shall refuse to perform such marriage service between any persons who, but for such refusal, would be entitled to have the same service performed in such church or chapel, such minister may permit any other clergyman in holy orders in the Church of England, entitled to officiate within the diocese in which such church or chapel is situate, to perform such marriage service in such church or chapel.

"Provided also that in case, before the passing of this Act, any such marriage shall have been annulled, or either party thereto (after the marriage and during the life of the other)

shall have lawfully married another, it shall be deemed to have become and to be void upon and after the day upon which it was so annulled, or upon which either party thereto lawfully married another as aforesaid.

"2. No right, title, estate or interest, whether in possession or expectancy, and whether vested or contingent at the time of the passing of this Act, existing in, to, or in respect of, any dignity, title of honour, or property, and no act or thing lawfully done or omitted before the passing of this Act shall be prejudicially affected nor shall any will be deemed to have been revoked by reason of any marriage heretofore contracted as aforesaid being made valid by this Act.

"3.

(1) Nothing in this Act shall remove wives from the class of persons adultery with whom constitutes a right, on the part of wives, to sue for divorce under the Matrimonial Causes Act, 1857.

"(2) Notwithstanding anything contained in this Act or the Matrimonial Causes Act, 1857, it shall not be lawful for a man to marry the sister of his divorced wife, or of his wife by whom he has been divorced, during the lifetime of such wife.

"4. Nothing in this Act shall relieve a clergyman in holy orders of the Church of England from any ecclesiastical censure to which he would have been liable if this Act had not been passed by reason of his having contracted or hereafter contracting a marriage with his deceased wife's sister.

"5. In this Act the word 'sister' shall include a sister of the half-blood."

ENGLAND: A. D. 1907.

Probation of Offenders Act.

See (in this Volume)
CRIME AND CRIMINOLOGY: PROBATION.

ENGLAND: A. D. 1907.

French testimony to the good work of the English in Egypt.

See EGYPT: A. D. 1907 (JANUARY).

ENGLAND: A. D. 1907 (April-May).

Conference of Imperial and Colonial Ministers at London.
Discussing Preferential Trade, Imperial Defence, and other
subjects.
Resolutions adopted.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

ENGLAND: A. D. 1907 (May).

Proposed Councils Bill for Ireland rejected by the Irish
National Party.

See (in this Volume)
IRELAND: A. D. 1907 (May).

ENGLAND: A. D. 1907 (July).

Capture of Kaid Sir Harry MacLean in Morocco for ransom, by
Raisuli.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

ENGLAND: A. D. 1907 (August).

Convention with Russia containing arrangements on the
subject of Persia, Afghanistan, and Tibet.

See EUROPE: A. D. 1907 (AUGUST).

ENGLAND: A. D. 1907 (August).
Establishment of a Court of Criminal Appeal.

See (in this Volume)
LAW, AND ITS COURTS: ENGLAND.

{237}

ENGLAND: A. D. 1907 (August).
Qualification of women for election to County and
Borough Councils.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

ENGLAND: A. D. 1907 (August).
Patents and Designs Act.

See (in this Volume)
PATENTS.

ENGLAND: A. D. 1907 (November).
Abortive Compromise Education Bill.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1907 (November).

ENGLAND: A. D. 1907 (November).
Treaty with France, Germany, Norway, and Russia guaranteeing
the integrity of Norway.

See ENGLAND:
EUROPE: A. D. 1907-1908.

ENGLAND: A. D. 1907 (November).
Treaty with France concerning Death Duties.

See (in this Volume)
DEATH DUTIES.

ENGLAND: A. D. 1907-1908.
Institution of the Territorial Force.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY.

ENGLAND: A. D. 1907-1908.
Proposals in the House of Lords of Reform in its Constitution.

Consequent, no doubt, on the increase of popular hostility to the House of Lords which it had provoked by its dealing with the Education Bill of 1906, and the serious threatenings of an undertaking in the House of Commons to "end or mend" it as a branch of Parliament, the Lords, in 1907, gave thought among themselves to the expediency of a constitutional reformation of their House. In February, a bill was proposed to them by Lord Newton which provided in its first two articles as follows:

"1.

(1) After the termination of the present session of Parliament a writ of summons to attend and to sit and vote in the House of Lords shall not be issued to any temporal peer of the peerage of England entitled by descent to an hereditary seat in the House of Lords (in this Act referred to as an hereditary peer), unless he is a representative or a qualified hereditary peer within the meaning of this Act, nor to any lord spiritual, unless he is a representative lord spiritual within the meaning of this Act."

"2.

For the purposes of this Act the expression 'qualified hereditary peer' means an hereditary peer who possesses any

of the qualifications specified in the First Schedule to this Act."

The schedule referred to was as follows:

"QUALIFICATIONS ENTITLING AN HEREDITARY PEER TO A WRIT

OF SUMMONS:

I. The holding at any time of any of the following Offices:—

1. High judicial office, within the meaning of the Appellate Jurisdiction Acts, 1876 and 1887.
2. The office of First Lord of the Treasury, Secretary of State, Chancellor of the Exchequer, President of the Council, or Head (not being a permanent Civil Servant) of any other Government Department.
3. The office of Lord Lieutenant of Ireland, and Secretary to the Lord Lieutenant.
4. Office of Viceroy of India, or a Governor of the Presidency of Madras or Bombay, or of Lieutenant-Governor of any Province of India.
5. Office of Governor-General of the Dominion of Canada or of the Commonwealth of Australia, or of High Commissioner of South Africa, or of Governor of any Colony.
6. The Office of Parliamentary Under Secretary, Parliamentary Secretary, or permanent Under Secretary, in any Government Department.
7. Office of Lord of the Admiralty or member of the Army Council.
8. Office of Minister plenipotentiary, or any higher

office, in His Majesty's Diplomatic Service.

9. Office of Vice-Admiral, or any higher office, in His Majesty's Naval Forces, or of Lieutenant-General, or any higher office, in His Majesty's Land Forces.

"II. Election to serve in the House of Commons on not less than two occasions before succeeding to the peerage."

In addition to the hereditary peers thus qualified to sit in the House of Lords as proposed to be reformed, the Bill provided for the election by the peers, from their own number, of representatives, to the extent of one-fourth of their whole number; and likewise for the election by the lords spiritual, from their ranks, of representatives in the same proportion of number; such representatives to form part of the House of Lords in Parliament. It authorized, further, the appointment by the King of peers for life, to be "peers of Parliament," these never to exceed one hundred in number.

Debate on the Bill in May resulted in the substitution for it of a resolution, that "a Select Committee be appointed to consider the suggestions which have from time to time been made for increasing the efficiency of the House of Lords in matters affecting legislation, and to report as to the desirability of adopting them, either in their original or in some modified form." The report of the Committee (twenty-five in number, having Lord Rosebery for its elected chairman) was not brought in until near the close of the following year. Its recommendations were considerably on the lines of the Bill described above. It suggested that the reformed House of Lords should be made up of three classes of members, namely, hereditary peers who had held certain high public offices—much the same as those scheduled in Lord Newton's Bill; two hundred representative "Peers of Parliament," elected from the whole body of the peerage, not for life, but for a single Parliament, and ten lords spiritual, to include the two

archbishops and eight bishops to be elected. The self-governing colonies, in the judgment of the Committee, should be represented in the House of Lords, and twenty years of service in the House of Commons should entitle an Irish peer to a seat in it.

The plan submitted by the Committee would reduce the House from 617 members to about 350. No action has been taken on the report.

ENGLAND: A. D. 1907-1908.

The Small Holdings Act.

The first year of its operation.

In 1907 an Act passed Parliament which provided for the acquisition by local authorities of land to be divided into small holdings for sale or lease to buyers or tenants who could not otherwise be placed on it for self-support. The results from the first year's operation of the Act was reported in September, 1909, by the Board of Agriculture and Fisheries, which administers the law. The following are statements from the report of the Board:

"Stated shortly, the result, so far as small holdings are concerned, of the first year's work since the Small Holdings and Allotments Act, 1907, came into operation has been that 23,285 applications have been received by county councils for 373,601 acres, that 13,202 applicants have been approved provisionally as suitable, that the estimated quantity of land required for the suitable applicants is 185,098 acres, that 21,417 acres have been acquired by county councils, of which 11,346 acres have been purchased for £370,965, and 10,071 acres leased for total rents amounting to £11,209, that the land acquired will provide for about 1,500 of the applicants, and that 504 of them were in actual possession of their holdings on December 31, 1908.

"It may seem at first sight that the progress that has been made in satisfying the keen demand for small holdings which the Act has disclosed has been small, but the figures do not give at all an adequate idea of the amount of work that has been actually done. It must be remembered that practically the whole of the first six months of the year were occupied in the preliminary work of constituting committees, issuing forms, receiving and tabulating applications and holding local inquiries, and that until this work was completed little progress could be made in the acquisition of land. ... The rate at which land is being acquired is now increasing rapidly, and we have little doubt that by Michaelmas, 1909, not less than 50,000 acres will have been obtained. In addition to the holdings which have been provided by county councils, the returns we have obtained show that over 700 applicants have been supplied with holdings by landowners direct, mainly through the intervention of the councils.

"In considering the results already accomplished it must also be borne in mind that the problem is to fit particular men to particular land, and not merely to acquire whatever land may be in the market and to offer it in small holdings. The great majority of the applicants desire land in close proximity to their homes, and it is obviously more difficult to acquire a large number of detached plots than to take a whole farm or estate and divide it into a number of small holdings. ...

"A striking feature of the applications made under the Act has been the small extent to which the applicants desire to purchase their holdings. Out of the 23,295 applications received during the year, only 629, or 2.7 per cent., expressed a desire to purchase. ... The Act imposes no direct obligation on councils to provide houses, but we are of opinion that where an applicant desires a holding to which he will devote his whole time and from which he will get his

whole living councils should be prepared to erect a house and the necessary buildings."

ENGLAND: A. D. 1907-1908 (December-March).

Appeals to other Powers for effective measures to rescue Macedonia from its dreadful state.

See (in this Volume)

TURKEY: A. D. 1905-1908.

ENGLAND: A. D. 1907-1909.

Anglo-Russian action in Persia.

See (in this Volume)

PERSIA: A. D. 1907, and after.

ENGLAND: A. D. 1907-1909.

The Campaign of the Militant Woman Suffragists or Suffragettes.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

ENGLAND: A. D. 1907-1909.

The disaffection in India.

Its character, causes, and meaning.

Hindu and Moslem feeling.

The past of British Government and its fruits.

See (in this Volume)

INDIA: A. D. 1907-1909.

ENGLAND: A. D. 1907-1909.

Negotiation by the President of the Board of Trade of a General System of Conciliation and Arbitration Boards for Settlement of Labor Disputes in the Railway Service.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1907-1909.

ENGLAND: A. D. 1908.

Estimate of King Edward VII. as a Diplomatist.

Mr. Isaac N. Ford, the American newspaper correspondent in London, has much well-informed opinion in Europe and America to support him in the following estimate of the diplomatic influence exerted by King Edward, which he expressed in January, 1908:

"At the opening of King Edward's reign Berlin was the center of European diplomacy, as Paris had been when Bismarck entered upon his series of machinations and triumphs. The personal ascendancy of the German Emperor was unchallenged in Europe. ... In the course of seven years conditions have been transformed. London is now the diplomatic capital of Europe. Resentful enemies like France have been reconciled; friendships with America, Austria-Hungary, Italy, and Spain have been strengthened; strained relations with Russia and Germany have been eased; and by the alliance with Japan forces have been readjusted for the maintenance of existing order in the Pacific. A new balance of power has been established in Europe, and the diplomatic resources of the British Empire have been reinvigorated and enlarged. While there have been eminent statesmen in the British Foreign Office—Lord Lansdowne and Sir Edward Grey—these transformations have been mainly King Edward's work. Fifty years hence there may be a true sense of proportion, so that his services as an empire-builder and a peace-maker can be judged aright."

ENGLAND: A. D. 1908.

Invitation of an International Naval Conference preliminary to the establishment of an International Prize Court.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907

(appended to account of Second Peace Conference
at The Hague).

ENGLAND: A. D. 1908.

Municipal and County Offices opened to Women.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

ENGLAND: A. D. 1908.

North Sea and Baltic agreements.

See (in this Volume)

EUROPE: A. D. 1908.

ENGLAND: A. D. 1908.

Passage of the Coal Mines Eight Hours Act.

See (in this Volume)

LABOR PROTECTION: HOURS OF LABOR.

ENGLAND: A. D. 1908.

Rejection of the Liberal Licensing Bill by the House of Lords.

See (in this Volume)

ALCOHOL PROBLEM: ENGLAND: A. D. 1908.

ENGLAND: A. D. 1908 (March).

Communication to the Belgian Government respecting obligations
involved in its proposed annexation of the Congo State.

See (in this Volume)

CONGO STATE: A. D. 1906-1909.

ENGLAND: A. D. 1908 (April).

Resignation and Death of Prime Minister
Sir Henry Campbell-Bannerman.

Succession of Herbert H. Asquith.

Sir Henry Campbell-Bannerman was forced by ill health to resign the premiership on the 5th of April, 1908, and his death occurred on the 22d of the same month. He was succeeded in the headship of the Government by Mr. Herbert H. Asquith, previously Chancellor of the Exchequer, whose place in the latter office was filled by Mr. David Lloyd-George. Mr. Lloyd-George had been President of the Board of Trade, and that office was now filled by Mr. Winston Churchill, while Mr. Reginald McKenna became First Lord of the Admiralty.

ENGLAND: A. D. 1908 (April).

Treaty with Denmark, France, Germany, the Netherlands, and Sweden for maintenance of the Status Quo on the North Sea.

See (in this Volume)

EUROPE: A. D. 1907-1908.

ENGLAND: A. D. 1908 (April).

Treaty with the United States respecting the Demarcation of the International Boundary between the United States and Canada.

See (in this Volume)

CANADA: A. D. 1908 (APRIL).

{239}

ENGLAND: A. D. 1908 (September).

Withdrawal of intervention in Macedonia.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER).

ENGLAND: A. D. 1908 (December).

Passage of "The Children Act."

See (in this Volume)
CHILDREN, UNDER THE LAW: AS DEPENDENTS AND
OFFENDERS.

ENGLAND: A. D. 1908 (December).
The Shipbuilding Agreement between Employers and
Trade Unions to prevent strikes and lockouts.

See (in this Volume)
LABOR ORGANIZATION: ENGLAND: A. D. 1908.

ENGLAND: A. D. 1908-1909.
Attitude on the question of the Austrian annexation of
Bosnia and Herzegovina.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

ENGLAND: A. D. 1908-1909.
Old Age Pensions Act.
Its working.
Its disclosures of poverty.

See (in this Volume)
POVERTY, PROBLEMS OF: PENSIONS, &c.

ENGLAND: A. D. 1908-1909.
Passage of the Indian Councils Bill.
Its provisions for popular representation in the
Legislative Councils of India.

See (in this Volume)
INDIA: A. D. 1908-1909.

ENGLAND: A. D. 1909.
Chief source of Food Supplies.

See (in this Volume)
ARGENTINE REPUBLIC: A. D. 1909.

ENGLAND: A. D. 1909.
Concentration of Wealth.

See (in this Volume)
WEALTH, THE PROBLEMS OF.

ENGLAND: A. D. 1909.
Development and Road Improvement Funds Act.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: GREAT BRITAIN.

ENGLAND: A. D. 1909.
Naval questions.
"Dreadnought" building.
Distrust of Germany.
The Territorial Force, etc.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

ENGLAND: A. D. 1909.
Official reports and statements concerning Public Education.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1909.

ENGLAND: A. D. 1909.
Passage of the Housing and Town-planning Act.

See (in this Volume)
SOCIAL BETTERMENT: ENGLAND: A. D. 1909.

ENGLAND: A. D. 1909.

Principal Socialist organizations.

See (in this Volume)
SOCIALISM.

ENGLAND: A. D. 1909.

Report of Royal Commission on the working of the Poor Laws and Relief Systems, and the existing pauperism of the United Kingdom.

See (in this Volume)
POVERTY.

ENGLAND: A. D. 1909.

Summary of the total prospective military defensive strength of the Empire.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909.

ENGLAND: A. D. 1909 (January).

The Waterways Treaty with the United States, concerning waters along the Canadian boundary.

See (in this Volume)
CANADA: A. D. 1909 (JANUARY).

ENGLAND: A. D. 1909 (February).

The Opening of Parliament.

The session of Parliament was opened by the King with due form and ceremony on February 16. "The Royal procession from Buckingham Palace to Westminster," says a report of the occasion, "took place in the dim grey light of a typical February afternoon, and the pageant lost much of its beauty in consequence. In spite of the cold wind and the absence of the genial sunshine which is such a valuable asset on occasions of

spectacular display, there appeared to be as many people as ever along the route of the procession. These formal openings of Parliament, which have become customary since the beginning of the present reign, are clearly popular with those of the King's subjects who know nothing, except by hearsay, of the impressive scenes which are to be witnessed in the House of Lords. The immense crowds who assembled to watch the King and Queen pass yesterday, waiting patiently for hours in order to enjoy a few minutes' ecstatic sight-seeing, welcomed their Majesties with a cordiality of the meaning of which there could be no doubt. The King and Queen, in their wonderful gold coach, with its sides of glass, must have been gratified with the respect and affection which were manifested from all quarters."

ENGLAND: A. D. 1909 (February).

Debate in Parliament on the annexation of the Congo State by Belgium.

Recognition of the annexation dependent on reforms.

See (in this Volume)

CONGO STATE: A. D. 1906-1909.

ENGLAND: A. D. 1909 (February).

Represented in International Opium Commission at Shanghai.

See (in this Volume)

OPIUM PROBLEM.

ENGLAND: A. D. 1909 (March).

Representation of the People Bill.

Proposed Universal Suffrage, including women.

Its second reading.

On the 20th of March, 1909, the second reading of a bill described as "the Representation of the People Bill" was moved and seconded in the House of Commons. Its provisions were

substantially for universal suffrage, including women. In explaining the measure, the member who moved the second reading—a representative of the Labor party, Mr. Howard—said:

"It was difficult, if not almost impossible, to deal with a reform of the franchise without at the same time dealing with woman suffrage, and it was difficult to deal with woman enfranchisement without at the same time making some alteration in the existing franchise law which should meet the condition of the new elements proposed to be placed on the register. The House must face the situation as a whole and handle the two reforms in one scheme, because by a coordinated Bill there would be a better chance of getting nearer a settlement. In the Bill that he submitted to the House there was no abolition of any old franchise. It proposed to create a residential franchise in order to do away with the hardships which any one with a knowledge of registration knew to exist in connexion with the occupation vote of men. The second clause provided for a restriction of plural voting, and the third clause related to the removal of the sex disqualification."

Before debate began another member presented a monster petition against the political enfranchisement of women, said to contain 243,000 signatures.

The attitude of the Government toward the bill was explained by Mr. Asquith, the Premier. It was well known, he said, that on the issue whether women should be granted the suffrage Ministers were not of one mind. But they were strongly in favour of a wide reform of the existing suffrage. They desired the abolition of plural voting, the disappearance of the artificial distinctions between occupiers and lodgers, the material shortening of the period of qualification, and an effective simplification of the machinery of registration. But any measure to bring about these reforms ought, in his

opinion, if it was to take its place on the Statute-book, to proceed from the responsible Government of the day, and to be carefully remoulded in the light of prolonged Parliamentary discussion. For these reasons he thought it was not necessary that the members of the Government should vote for the second reading of the Bill under consideration.

After some hours of debate the closure was moved and the second reading of the bill was carried by 157 votes against 122.

{240}

ENGLAND: A. D. 1909 (March).

Defeat of the Progressives in the London County Council Election.

See (in this Volume)

LONDON: A. D. 1909 (MARCH).

ENGLAND: A. D. 1909 (March).

Cession by Siam of suzerainty over three States in the Malay Peninsula.

See (in this Volume)

SIAM: A. D. 1909.

ENGLAND: A. D. 1909 (March-July).

The question of " Dreadnought" building, with reference to the accelerated expansion of the German Navy.
Debates in Parliament and excitement in the country.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

ENGLAND: A. D. 1909 (April).

The National Debt of the United Kingdom.

The following official statement of the national debt of the United Kingdom was published in April, 1909:

"On the 1st April, 1908, the aggregate gross liabilities of the State amounted to £762,326,051. On the 1st April, 1909, the corresponding figure was £754,121,309, showing a reduction of £8,204,742.

ENGLAND: A. D. 1909 (April).

Announced Governmental projects of Afforestation, and other measures for Development of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: GREAT BRITAIN.

ENGLAND: A. D. 1909 (April-December).

Mr. Lloyd-George's Budget.

Its features of taxation, denounced as Socialistic.

Seven months of vehement debate.

Adopted by the Commons and rejected by the Lords.

Warnings to the Lords against their action.

Preparation for appeal to the people.

The 29th of April, 1909, when the financial proposals of the Government for meeting the needs of the coming year, called "the Budget," were brought before Parliament, and the 30th of the following November, when, after seven months of arduous and angry debate, and after their adoption by a great majority of the Commons, the Bill embodying them was overwhelmingly rejected by the Lords, will be memorable dates in English history if the consequences of the action of the Peers are what, at this writing, they seem likely to be. Even failing those consequences, the production of the Budget will be in itself an event of no small moment, from what it signifies of the development of democracy in Great Britain.

As a formulated "Finance Bill," the Budget was not submitted to the House of Commons and to the public in print until the 28th of May. It was then entitled "A Bill to grant certain Duties of Customs and Inland Revenue (including Excise), to alter other Duties, and to amend the Law relating to Customs and Inland Revenue (including Excise), and the National Debt, and to make other provisions for the Financial Arrangements of the Year." Until then its provisions were known only from the statement of them made four weeks before by the Chancellor of the Exchequer, Mr. David Lloyd-George, in a speech extended through several hours, which even his opponents were forced to characterize as "a wonderful effort."

The Chancellor's explanation of the Budget rested primarily on the fact that an anticipated deficit of £15,762,000 required to be filled from new sources of revenue. Of the main causes of the deficit he said: "Were I dealing with a shortage due only to a temporary cause like forestalments, I might have resorted to some temporary shift which would have carried me over until next year when the revenue would resume its normal course. But unfortunately I have to reckon not merely with an enormous increase in expenditure this year, but an inevitable expansion of some of the heaviest items in the course of the coming years. What is the increase of expenditure due to? It is very well known that it must be placed to the credit of two items, and practically two items alone. One is the Navy, and the other is old-age pensions. Now I have one observation which I think I am entitled to make about both. ... The increased expenditure under both these heads was substantially incurred with the unanimous assent of all political parties in this House. There was, it is true, a protest entered on behalf of honourable members below the gangway against increased expenditure in the Navy, but as far as the overwhelming majority of members in this House are concerned the increase has received their sanction and approval. I am entitled to say more. The attitude of the Government towards these two branches of increased expenditure has not been one of rushing

a reluctant House of Commons into expense which it disliked, but rather of resisting appeals coming from all quarters of the House for still further increases under both heads. ...

"We are told that we ought not to have touched old-age pensions, at least not at the present moment, when heavy liabilities were in sight in connexion with the defence of the country. I may point out that when we introduced our Old-Age Pensions Bill that emergency had not arisen. But, apart altogether from that, we had no honourable alternative left. We simply honoured a cheque drawn years ago in favour of the aged poor, which bore at its foot the signatures of all the leaders of political parties in this country. They had all promised pensions at election after election, and great political parties have no right to make promises to poor people in return for political support, valuable to them, and all these people had to give, and then time after time return the bill with 'No assets' written across it."

Proceeding next to survey the "inevitable expansion" of future expenditure to which he had referred at the outset, and which could be foreseen in connection with the navy and with social reform, the Chancellor dealt at length on the demands that were pressing from the latter side and would not be postponed. "What the Government have to ask themselves," he said, "is this: Can the whole subject of further social reform be postponed until the increasing demands made upon the National Exchequer by the growth of armaments has ceased? Not merely can it be postponed, but ought it to be postponed? Is there the slightest hope that if we deferred consideration of the matter we are likely within a generation to find any more favourable moment for attending to it? I confess that, as to that, I am rather pessimistic. And we have to ask ourselves this further question—If we put off dealing with these social sores are the evils which arise from them not likely to grow and to fester until finally the loss which the country sustains will be infinitely greater than anything it would

have to bear in paying the cost of an immediate remedy?
{241}

There are hundreds of thousands of men, women, and children in this country now enduring hardships for which the sternest judge would not hold them responsible; hardships entirely due to circumstances over which they have not the slightest command—the fluctuations and changes of trade, or even of fashions, ill-health, and the premature breakdown or death of the bread-winner. ... Last year, while we were discussing the Old-Age Pensions Bill, all parties in this House recognized fully and freely that once we had started on these lines the case for extension was irresistible. The leader of the Opposition, in what I venture to regard as the most notable speeches he has probably delivered during this Parliament, recognized quite boldly that, whichever party was in power, provision would have to be made in some shape or other for those who are out of work through no fault of their own, and those who are incapacitated for work owing to physical causes for which they are not responsible."

The speaker then developed at length the intentions of the Government on these lines of social reform, which will have to include undertakings of some system like the German, of compulsory insurance against sickness, accident and unemployment, and which will have to look to the organization of labor exchanges and to the opening of wider fields for employment, by development of neglected resources of the country, through afforestation, through promotion of agriculture, and the extension and improvement of roads.

And now, at last, he began to unfold his plans for raising the means with which to deal with all these augmented demands on the Government, and started them with a schedule of increased taxes on automobiles. Further details of his scheme are summarized in the following, from *The Times* "Review of Parliament," next morning:

"The right honourable gentleman was listened to with intense attention when he proceeded to announce an increase of the income-tax and of the estate duty. He proposed that for earned incomes under £2,000 the tax should remain at 9d. but that between £2,000 and £3,000 it should be 1s., and that all other incomes now liable to the shilling tax should pay 1s. 2d. Holding that the family man was entitled to more relief than the bachelor, he proposed that on all incomes under £500, in addition to existing abatements, a special abatement should be allowed of £10 for every child under 16 years of age. He hoped to get £160,000 by the partial restoration of the shilling duty and £3,000,000 from the additional 2d. on the higher incomes. There was also to be a super-tax on incomes exceeding £5,000, to be levied on the amount by which such incomes exceeded £3,000. The tax would be at the rate of 6d. in the pound. Exclamations denoting great disapproval arose from the Unionist benches when this was announced. The yield from this super-tax, Mr. Lloyd-George explained, would be in a full year £2,300,000; but this year not more than £500,000. He next came to the Death duties. There would be no change in the case of estates up to £5,000, but between this limit and the limit of two millions graduation would be steepened. The duty on estates between £5,000 and £10,000 would be 4 per cent.; "between £10,000 and £20,000, 5 per cent.; £20,000 to £40,000, 6 per cent.; £40,000 to £70,000, 7 per cent.; £70,000 to £100,000, 8 per cent.; £100,000 to £150,000, 9 per cent.; £150,000 to £200,000, 10 per cent.; £200,000 to £400,000, 11 per cent.; £400,000 to £600,000, 12 per cent.; £600,000 to £800,000, 13 per cent.; £800,000 to £1,000,000, 14 per cent., and above £1,000,000, 15 per cent. This new scale was estimated to yield £2,550,000 this year, £4,200,000 next year, and afterwards £4,400,000. The settled Estate duty he raised from 1 per cent. to 2 per cent. From this source he hoped to get £50,000 this year and £375,000 in 1910-1911. The Legacy and Succession duty was to be raised in some cases from 3 per cent. to 5 per cent., and in all others to 10 per cent. The yield from this next year would be £1,300,000, and would

increase in the course of time to £2,150,000. Property alienated *inter vivos* within five years from death was to be liable to duty. Objects of national and scientific interest would only be chargeable for duty when they were actually sold. There were to be increased duties in bonds to bearer and in stock and share transfers. The estimated yield from the increased Stamp Duties would be this year £650,000.

"It was at this point in his speech that the Chancellor of the Exchequer required rest and that the sitting was suspended. When in half-an-hour's time it was resumed, the right honourable gentleman continued his speech with renewed vigour. He dealt at considerable length with the subject of licenses, dwelling on the value of the monopoly granted to the liquor trade and arguing that the toll exacted by the public was ludicrously inadequate. He explained in detail a number of changes which he proposed to effect, the chief being a uniform charge of 50 per cent., subject to a *minimum* rate in urban areas according to population. For clubs there would be a poundage rate of 3d. on the amount taken for the sale of liquor. The yield from his revision of the liquor licensing law would be £2,600,000.

"Then he turned to land, drawing a marked distinction between the agricultural landowner and the urban landowner, of whom he spoke with some scorn. He proposed to levy a tax on the value accruing to land in the future through the enterprise of the community, taking the land apart from buildings and other improvements. This duty of 20 per cent. on unearned increment would be payable on two occasions—when land was sold and when land passed at death. A preliminary valuation of the land at the price which it might be expected to fetch at the present time would be necessary; and as the tax was to be imposed only on the unearned increment subsequently accruing on that valuation, the yield would probably be only £50,000 in 1909, but in future years it should prove a fruitful source of revenue. It was further proposed to levy an annual duty of one

halfpenny in the pound on the capital value of undeveloped land and undeveloped minerals. Until the proposed valuation of the land of the United Kingdom on a capital basis was completed, it would be impossible to estimate the yield of this duty, but till then the duty would be calculated on the declarations of the owners, and in the current year he expected it to bring in £350,000. A 10 per cent. reversion duty was to be imposed on any benefit accruing to a lessor on the termination of a lease, and from this source a yield of £100,000 was anticipated. The three land taxes were, accordingly, calculated to produce £500,000 in the current year.

{242}

"He next dealt with indirect taxation. He proposed to raise the present duty on spirits by 3s. 9d. per gallon. This would justify an increase in the retail price of whisky of one half-penny per glass, which would recoup the publican for the additional duty and leave him something more to mitigate the pressure of the new duties on licenses. The yield, during the current year, he estimated at £1,600,000. He also proposed to increase the duty on unmanufactured tobacco from 3s. to 3s. 8d. per lb., with equivalent additions to the rates for cigars, cigarettes, and manufactured tobacco, the return from which he estimated at £1,900,000 during the current year and £2,250,000 for a full year.

"The total estimated revenue was £162,590,000 and the total estimated expenditure £162,102,000, leaving a margin of £488,000 for contingencies. In conclusion, the right honourable gentleman—anticipating the charge that he was imposing very heavy taxation for a time of peace—declared it was a war Budget. The Government had declared implacable war against poverty. It was 8 o'clock when the right honourable gentleman finished, amid the cheers of his supporters."

That Mr. Lloyd-George's Budget was a gage of battle and that the fight over it was fierce is known to everybody, for the din of the conflict penetrated to every corner of every land. The key-note of the outcry against it was sounded in *The Times* of next morning, which opened its editorial comment with these words:

"One general impression will be very widely made by the complicated and portentous Budget which Mr. Lloyd-George expounded at enormous length yesterday. That is that the huge deficit of nearly sixteen millions is to be raised almost exclusively at the cost of the wealthy and the fairly well-to-do. They are struck at in all sorts of ways, through the income-tax, the legacy duties, the estate duties, the stamps upon their investments, their land, their royalties, their brewery dividends, and their motor-cars. So when Mr. Lloyd-George exclaims rather theatrically—'Mr. Emmott, this is a war Budget,' his words carry a meaning which he did not intend. He talks of waging war against poverty, but that is never really waged by unjust exactions from those whose custom prevents a worse poverty than any we know; and whose brains and capital count for at least as much as thews and sinews. Unless men exempt from income-tax either smoke or drink, they do not pay a single penny towards making up a deficit mainly due to a pension scheme of which they reap the whole benefit. The doctrine of social ransom has never been carried quite so far."

So it was branded by its opponents as a "Socialist Budget" and its authors as allies of Socialism, throughout the campaign. This denunciation was applied especially to the tax on unearned increments of value in land, as such increments should occur hereafter. On that point of opposition to the Budget Mr. Asquith, the Prime Minister of the Government, speaking at a public meeting in London, had this to say: "The increment duty is a tax of 20 per cent. on the increase in the capital value of certain kinds of land which is shown on the

occasion of its transfer or devolution, and which is not attributable to the efforts or to the expenditure either of the owner or the occupier. That is what the increment duty is. Now what is it not? I spoke a few moments ago of certain classes of land. Let me ask you to observe, first, what are the kinds of landed property which are altogether exempted from the scope of this taxation. In the first place, all agricultural land which has no building value above its agricultural value; next, small properties occupied by their owners; thirdly, property belonging to local authorities; again, property held for public or charitable purposes; and, finally, property belonging to statutory companies, such as railways, which cannot be used for other than statutory purposes. ...

"Now, suppose the case of land which does not fall within any of those exempted categories, how is the duty charged? Here, again, there is a great deal of misapprehension about it, so it is better to state the case as clearly as one can. You start with the site value of the land at the present moment, and by site value—I am not going into technicalities—we mean, roughly speaking, the value of the land divested of the buildings. You do not go back into the past, you take things as they are; you do not rip up the previous history; you do not interfere with existing or past contracts. You give to every man, however he has acquired it, the full and undisturbed enjoyment of the rights, privileges, and property which he at present possesses. Starting with that datum line, you will see that in years to come, when that piece of land is transferred by sale—it may be by lease—or devolves upon death, the site value (you are comparing like with like, mind you) at that date—that is to say, the value after giving the owner and every one who has been interested in the land credit for all expenditure they have made in the way of improvement and development in the interval—comparing site with site, if you find an increment in value there, you say that it is an increment due to the community, to social causes, to causes

over which the owner was no more responsible than you or I, and that it is not unfair in point of justice, and that it is in the highest degree expedient in point of policy that the State should be entitled to claim for itself in relief of the necessities of the same community some part—not any exaggerated or exorbitant part—but some part, of the increment which has so accrued. I may point out that there is no duty chargeable at all. So tender has my friend Mr. Lloyd-George (laughter and cheers) been to the interests concerned—he is a man of a most sympathetic nature—sometimes I am disposed to think he is of almost too impressionable a nature when appeals of this kind are addressed to him—so tender has he been of all these interests that he has agreed that no duty should be chargeable unless the increment value amounts to at least 10 per cent., and where it is over, the first 10 per cent. should escape free. That is the increment duty which Lord Rothschild tells you—I think I am not misquoting him—is rank and undiluted Socialism, and which Lord Lansdowne says is going to shake the very foundations of civilized society. ...

{243}

"The propriety and justice of taxing this kind of increment, in the case of these classes of land, rests upon the most solid ground both of authority and experience. It has been advocated for generations by the most eminent economists. It has been recommended in one shape or another by more than one Royal Commission. It was approved in principle more than once even by the late non-progressive House of Commons. It has been put in practice in various forms for local purposes in not a few Continental municipalities and in many of our own Colonies, and, I believe, always with successful results. And let me add, by way of climax to that catena of authority, that it is at this moment, or at any rate was a few weeks ago, the alternative proposal put forward by the Conservative party in the Reichstag in Germany—an increment duty, not for local but for Imperial purposes, was the alternative proposal to the

Budget of Prince Bülow put forward by the Conservative party in the Reichstag in Germany, and this is rank Socialism!"

Next to the proposed land taxes, the most bitterly opposed feature of the Budget was the increased revenue to be exacted from the licensed monopolists of the liquor trade. Everything, however, in its new taxation was denounced by the Conservatives, who set against it their own project of obtaining increased revenues by returning to the protective tariff which England had abandoned three-quarters of a century ago. The cry for what they preferred to call "tariff reform" had been silenced since the election of 1906, when the electors of the Kingdom rejected Mr. Chamberlain's revived protectionism by an overwhelming vote. Now it was raised again, and fully made the prime article in the Conservative creed, as it had not been before.

It was not until the 4th of November that the Finance Bill was brought to its third reading in the House of Commons, and was passed, by the heavy majority of 379 to 149. From the beginning it was known, of course, that the measure had few friends in the House of Lords, and would go down in defeat there if the Peers ventured to assume the right to negative a money Bill. For many generations they had not disputed the claim of the Commons to exclusive control of revenue legislation; but a theory had now been mooted, that Mr. Lloyd-George's Budget Bill differed from a mere money Bill by carrying Socialistic implications tacked on to it, which the House of Lords was under no obligation to accept. Whether the Lords would or would not be bold enough to act on this theory and throw down the Bill, as they had thrown down so much of the non-financial legislation of the Liberal Government, had been a serious question throughout the debates. Sir Edward Grey said of it, in a speech at Leeds, in August:

"As to the fate of the Budget—Is it going to be destroyed by the House of Lords or is it not? The leaders of the Tory

party—with whom the decision rests—are very cautious in expressing their opinions. Some of the rank and file have said the House of Lords is going to destroy the Budget, or have spoken as if it were so. But the leaders—Mr. Balfour, Lord Lansdowne, and so forth—have been very cautious. They are great partisans in this matter of the open door, or, perhaps I should say, of two open doors. They have studiously kept two doors open, and as far as Lord Lansdowne's utterances go, he has kept the door open for passing the Budget in the House of Lords or rejecting it. He says the House of Lords is bound to decide so that the people should be properly consulted, and that that is the function of the House of Lords, to protect the right of the people to have their say on the subject. A very nice function if only it was performed impartially; but when it is a function which has been in abeyance for the greater part of the last 20 years, and is only to be erected into operation when a Liberal Government comes into office, it is not a function for which we can have much respect. But, nevertheless, it is so in our Constitution at present that the House of Lords is a weapon—a great gun, if you like to call it so—which can be pointed only against Liberal measures—not against Conservative measures—and which is in the hands of the Conservative party. Now there is the Budget going presently to the House of Lords; there is the gun pointing when it arrives there; there is the Conservative finger on the trigger. Are they going to fire the gun or not? They do not know themselves yet. They are debating in their own minds what will happen if they fire the gun. Will they destroy the Budget, or will the recoil be more injurious to themselves? Or, perhaps, will the gun burst altogether if they let it off? We know what their wishes and inclinations are; what we do not know at the present time is how much nerve they have got. But of this I am convinced—whatever the House of Lords may do, when the time comes for an appeal to the country, it will be an appeal on this Budget as a Free Trade Budget, and against the alternative of tariff reform.

Others among the prominent Liberals spoke with more temper of the threatened action of the Lords. Mr. Winston Churchill, for example, at Leicester, in September, said: "The rejection of the Budget by the House of Lords ... would be a violent rupture of constitutional custom and usage extending over 300 years and recognized during all that time by the leaders of every party in the State. It would involve a sharp and sensible breach with the traditions of the past; and what does the House of Lords depend upon if not upon the traditions of the past? It would amount to an attempt at revolution not by the poor, but by the rich; not by the masses, but by the privileged few; not in the name of progress, but in that of reaction; not for the purpose of broadening the framework of the State, but greatly narrowing it. Such an attempt, gentlemen, whatever you may think of it, such an attempt would be historic in its character, and the result of the battle fought upon it, whoever wins, must inevitably be not of an annual, but of a permanent and final character. The result of such an election must mean an alteration of the veto of the House of Lords; if they win they will have asserted their right, not merely to reject legislation of the House of Commons, but to control the finances of the country, and if they lose we will smash to pieces their veto. I say to you that we do not seek the struggle, we have our work to do; but if it is to come, it could never come better than now."

Very soon after the Bill had been passed over to the House of Lords it was known that the Conservative leaders had consented to its death in that body. What may be called the death sentence was pronounced on the 22d of November, when Lord Lansdowne moved the following amendment to a motion for the second reading of the Bill: "That this House is not justified in giving its consent to this Bill until it has been submitted to the judgment of the country."

Speaking to the motion with great seriousness he said: "I have been in this House more than 40 years, I owe everything to its indulgence, and I say from the depth of my heart that it is my desire to do nothing unworthy of your high reputation or your great place in the Constitution of this country. But I believe that the worst and most damaging thing that you could do would be that you should fail those who look to you as the guardians of their greatest constitutional right, the right to be consulted when fundamental political changes are demanded by the Government of the day; and, my lords, depend upon it that by rejecting this Bill you will, on the one hand, insist that that right shall be respected; you will not usurp the function of granting aid and supplies to the Crown; you will not pronounce a final verdict upon this Bill, bad though you may believe it to be; but you will say that it is a Bill to which you have no right to give your indispensable consent until you are assured by the people of the country that they desire it to pass into law."

In the week of debate which followed many speeches of notable force and impressiveness were made on both sides; but, unquestionably, the weightiest, in reasoning and feeling, were those which came from opponents of the Budget who would not join their associates in the step proposed, but warned them of dangers involved, to the existence of their House and to the future of parliamentary government, from constitutional changes which no man could forecalculate. On the latter point, Lord Rosebery begged his fellows of the peerage to "remember this: The menaces which were addressed to this House in old days were addressed by statesmen of a different school and under a different balance of constitutional forces in this country. The menaces addressed to you now come from a wholly different school of opinion, who wish for a single Chamber and who set no value on the controlling and revising forces of a second Chamber—a school of opinion which, if you like it and do not dread the word, is eminently revolutionary in essence, if not in fact. I ask you to bear in mind that fact when you

weigh the consequences of the vote which you are to give to-morrow night. 'Hang the consequences,' said my noble friend Lord Camperdown last night. That is a noble sentiment and a noble utterance. It is a kind of Balaklava charge, and nothing more intrepid could be said by any of us if we had not to weigh the consequences, not to the individual, but to the State; and you should think once, you should think twice, and thrice, before you give a vote which may involve such enormous constitutional consequences."

Lord Balfour, while condemning the Bill, condemned still more the proposition that the House of Lords would do its duty in compelling a referendum to the people on the measure. A question in finance, he said, differs from all others in its unfitness for this treatment in Great Britain. "If you are to establish a system whereby this House or any other authority had the right of establishing a referendum as it is called—a reference to the people in matters of finance—you would spoil and destroy the control of the other House of Parliament over the Government, and you would make, I venture to say, perhaps the most momentous change in the Constitution, as it has grown up, which has been made in the whole history of that Constitution. Take it how you like, if you pass this resolution, if you make it a precedent—I care not with what safeguards you accompany it, whether you say it is only to be done on extreme occasions or by any other safeguard—you have made a change in the practice and in the Constitution which will prevent things going on as they have gone on up to the present time. My lords, if you win, the victory can at most be a temporary one. If you lose you have altered and prejudiced the position, the power, the prestige, the usefulness of this House, which I believe every one of you honours and desires to serve as heartily and as thoroughly as I do myself. If you win you are but beginning a conflict."

Lord James, one of the ablest of the Law Lords, and Lord Cromer, were other opponents of the Budget who earnestly

counselled the Upper House not to interfere with the action of the Commons on this measure of finance. From the side of the few Liberals among the peers came other weighty words of admonition, spoken especially by the calm and thoughtful Lord Morley and by the Lord Chancellor, the presiding officer of their House. "No one," said the latter, "will be so simple as to believe that the only question which the country will consider will be the question whether this Bill ought to pass into law. Other and graver questions will be raised. We have been in office for four years. In 1906 our whole time in the House of Commons was taken up by passing an Education Bill. It came to this House. It was wrecked, and the whole labour of that Session was thrown away. The following year, 1907, was not a year of very great enterprise of a legislative character. In 1908 the whole time of the House of Commons was spent in passing the Licensing Bill, a measure the loss of which I regret more than I regret the loss of any other. It came up to this House. It was not alive when it came here. It had perished by the stiletto in Berkeley-square before it ever saw this House. Now, again in 1909, after a Session of unexampled labour, the House of Commons has presented to your lordships the proof of many, many months of arduous work in a domain entirely their own; and this House is going to destroy the Finance Bill of 1909 and to refuse supplies. It is, in my opinion, impossible that any Liberal Government should ever again bear the heavy burden of office unless it is secured against a repetition of treatment such as our measures have had to undergo for the last four years. If we fail in the coming general election, assuming that his Majesty is pleased to dissolve Parliament, it will only be the beginning of a conflict which can end only in one way. If we succeed, I hope we shall not flinch from that which will have to follow."

The Archbishop of Canterbury and the Spiritual Lords generally refrained from taking sides on what they regarded as a political question; but the Archbishop of York construed his duty differently, and added his voice to the remonstrance

against Lord Landsdowne's motion. Close upon midnight, November 30, the House divided on that motion and it was carried, rejecting the Finance Bill, by a vote of 350 to 75. So big a vote—such a swarming of titled legislators to record it—had not been known within the memory of living men.

{245}

Three days later, on the 3d of December, the Premier, Mr. Asquith, rose in the House of Commons and moved the adoption of the following declaration:

"That the action of the House of Lords in refusing to pass into law the financial provision made by this House for the service of the year is a breach of the Constitution and a usurpation of the rights of the Commons."

Speaking to this motion, he said, in part:

"When, a short time ago, the Finance Bill received its third reading, as it left this House it represented, I believe, in a greater degree than can be said of any measure of our time, the mature, the well-sifted, the deliberate work of an overwhelming majority of the representatives of the people upon a matter which, by the custom of generations and by the course of a practically unbroken authority, is the province of this House, and of this House alone. In the course of a week, or a little more than a week, the whole of this fabric has been thrown to the ground. For the first time in English history the grant of the whole of the Ways and Means for the Supply and the Services of the year, the grant made at the request of the Crown to the Crown by the Commons, has been intercepted and nullified by a body which admittedly has not the power to increase or to diminish one single tax or to propose any substitute or alternative for any one of the taxes. The House of Commons would, in the judgment of his Majesty's Government, be unworthy of its past and of the

traditions of which it is the custodian and the trustee if it allowed another day to pass without making it clear that it does not mean to brook the greatest indignity, and, I will add, the most arrogant usurpation (loud cheers), to which for more than two centuries it has been asked to submit."

After a short debate, the House divided on the motion, and it was adopted by 349 against 134.

On the afternoon of the same day the King prorogued Parliament to the 15th of January, 1910, this being preparatory to the dissolution and appeal to the people which the action of the Lords had made necessary.

See (in this Volume)
ENGLAND: A. D. 1910 (January-March).

ENGLAND: A. D. 1909 (May).

A Majority Vote in the Commons for removing Disabilities from Roman Catholics.

A bill for the removal of remaining disabilities from Roman Catholics passed its second reading in the House of Commons on the 14th of May, by a vote of 133 to 123. Not being a Government measure, the crowded programme of business for the session gave no hope that it could be carried into law; but the vote was an encouragement.

ENGLAND: A. D. 1909 (May).

Resolution of the House of Commons in favor of the Payment of Members and the public payment of election expenses.

The following resolution was introduced in the House of Commons on the 12th of May, 1909, by Mr. Higham, of York:

"That in the opinion of this House the non-payment of members and the liability of candidates for the returning officers'

expenses render it impossible for many constituencies to exercise a free choice in their selection of candidates and election of members of Parliament; and this House is of opinion that any measure of general electoral reform passed before the dissolution of this Parliament, and coming into force upon or after the dissolution, should be accompanied by arrangements for the payment of members elected to serve in Parliament and for the transfer to the Imperial Exchequer of the financial responsibility for the returning officers' expenses incurred in the conduct of such elections."

Mr. Harcourt, for the Government, accepted the motion at once. He pointed out that the expenditure entailed, if members were paid £300 a year, would be £200,000 annually; but this was not a valid argument against the change. For his part, he could not see why politics should be the only profession "run by amateurs." He was, therefore, not frightened by the prospect of an Assembly of professional politicians. The time had gone by when the country could select its legislators solely from the leisured class; public servants deserved to be paid.

Most of the speakers in a debate of three hours favored the resolution, and it was then adopted, by 242 votes against 92. No legislation in accordance with it has yet been undertaken.

ENGLAND: A. D. 1909 (May).

Reorganization of Passive Resistance to the Education Act of 1902.

See (in this Volume)

EDUCATION: ENGLAND; A. D. 1909 (MAY).

ENGLAND: A. D. 1909 (May-October).

Consumption of whiskey diminished by increase of tax.

See (in this Volume)

ALCOHOL PROBLEM: ENGLAND.

ENGLAND: A. D. 1909 (June).
The Imperial Press Conference.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909 (JUNE).

ENGLAND: A. D. 1909 (July).
Assassination of Sir W. Curzon-Wyllie by an Indian Anarchist.

See (in this Volume)
INDIA: A. D. 1909 (JULY).

ENGLAND: A. D. 1909 (July-August).
Imperial Defence Conference.
Its conclusions and agreements.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY AND NAVAL.

ENGLAND: A. D. 1909 (July-December).
Decision against the right of Trade Unions to pay Salaries
to Members of Parliament.

On the 23d of July, 1909, an appeal from an order of the Court of Appeal was argued before five legal members of the House of Lords, on the question whether the payment of members of Parliament chosen to represent the interests of a trade union was a lawful application of the funds of such union. The complainant in the case had sued the Amalgamated Society of Railway Servants, of which he had been a member since 1892, to have it declared that one of the rules of the society, which provides, amongst other things, for Parliamentary representation and the enforced levy of contributions from the plaintiff and other members of the society, towards the payment of salaries, or maintenance allowance, to members of Parliament pledged to observe and fulfil the conditions

imposed by the constitution of the Labour Party therein referred to, is *ultra vires* and void, and that the society may be restrained from enforcing it. And in the alternative that it may be declared that a certain amendment or addition made to the rules in 1906 be declared to be illegal and void. The added rule, thus complained of, was as follows; "All candidates shall sign and accept the conditions of the Labour Party and be subject to their Whip."

{246}

The judgment of the Lords, rendered on the 21st of December, sustained the order from the court below, dismissing the appeal. Their decision rested mainly on considerations relating to the rule quoted above, and stated briefly by one of their bench, Lord James, as follows:

"The effect of this rule and others that exist is that a member of the trade union is compelled to contribute to the support of a member of Parliament, who is compelled 'to answer the Whip of the Labour Party.' I construe this condition as meaning that the member undertakes to forego his own judgment, and to vote in Parliament in accordance with the opinions of some person or persons acting on behalf of the Labour Party. And such vote would have to be given in respect of all matters, including those of a most general character—such as confidence in a Ministry or the policy of a Budget—matters unconnected directly at least with the interests of labour. Therefore I am of opinion that the application of money to the maintenance of a member whose action is so regulated is not within the powers of a trade union. If your Lordships decide on this branch of the case that the respondent is entitled to judgment, it is unnecessary that any opinion should be expressed upon the very broad constitutional question raised for the first time in the Court of Appeal affecting the general support of members."

ENGLAND: A. D. 1909 (August).

The Prevention of Crimes Act brought into force.
The Borstal System.

See (in this Volume)

CRIME AND CRIMINOLOGY, PROBLEMS OF.

ENGLAND: A. D. 1909 (August).

The Trade Boards Bill, to suppress "Sweating."

See (in this Volume)

LABOR REMUNERATION: WAGES REGULATION.

ENGLAND: A. D. 1909 (September).

Imperial Congress of Chambers of Commerce.

See (in this Volume)

BRITISH EMPIRE: A. D. 1909 (SEPTEMBER).

ENGLAND: A. D. 1909 (September).

Marconi Wireless Telegraph Stations taken over
by the Post Office.

See (in this Volume)

SCIENCE AND INVENTION: ELECTRICAL.

ENGLAND: A. D. 1909 (October).

Organization of a Navy War Council.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

ENGLAND: A. D. 1910 (January-March).

Dissolution of Parliament.

An indecisive Election.

No majority in the House of Commons for any single party.

Precarious support for the Liberal Ministry.

Uncertainties of the Situation.

As expected, Parliament was dissolved by royal proclamation early in January, and new elections commanded, the first of which took place on the 15th of that month and the last on the 14th of February. The result was generally disappointing, because wholly indecisive. The new House of Commons was found to be made up of 275 Liberals, 273 Unionists, 71 Nationalists (Irish), 11 Independent Nationalists, and 40 Labor members. Neither of the political parties arrayed on the main issues involved had won a majority. The people had rendered no recognizable verdict on the Budget, or on the tariff question, or on the abolition of the veto power claimed by the House of Lords.

Even with the support of the Labor members the Asquith Ministry was in a minority. The balance was held by the Irish members, and it was only by compromise with them that either Liberals or Unionists could do anything. Had the Ministry been able to choose its own course it might have preferred, perhaps, to push the Budget question to a settlement before attempting to determine the future of the House of Lords; but the leader of the Nationalists, Mr. Redmond, gave prompt notice that they would allow no such second rating of the Lords' veto question to go into the programme of legislation. Probably, therefore, there were negotiations between Liberals and Nationalists before Mr. Asquith announced the intentions of the Government, which he did on the 28th of February,—Parliament having been formally opened on the 15th. Up to the 24th of March, he claimed all the time of the House of Commons for immediate measures which must be adopted before the close of the financial year, to provide immediately necessary means for maintaining the national credit. Then, "when the House reassembled after Easter, on March 29, the Government would present their proposals on the relations between the two Houses. They would be presented, in the first instance, in the form of resolutions affirming the necessity

for excluding the House of Lords altogether from the domain of finance, and inviting the House to declare that, in the sphere of legislation, the power of the veto now possessed by the Lords should be so limited as to secure the predominance of the deliberate and considered will of the Commons within the lifetime of a single Parliament. Further, it would be made plain that these constitutional changes were without prejudice to and contemplated in a subsequent year the substitution in our Second Chamber, of a democratic for an hereditary basis. When these resolutions had been agreed to, they would be submitted to the House of Lords, so as to bring the main issue to a trial at the earliest possible moment."

This programme of procedure appears to have been hastened slightly; for despatches from London on the 21st of March announced that Mr. Asquith had brought forward his resolutions, and that their purport was as follows:

"The first resolution provides for complete control of money bills by the House of Commons, thus unmistakably disposing of the question that was precipitated by the Lords' rejection of the budget; the second precludes the Lords from rejecting any bill that, has been passed by the Commons at three successive sessions, provided the entire time the bill has been before the House is not less than two years; and in the same case the bill becomes a law without the royal assent."

ENGLAND: A. D. 1910 (May).
Death of King Edward VII.
Accession of King George V.

The political situation in England, which had become problematical, was probably changed with suddenness, on the night of May 6, by the death of King Edward, after a brief illness, consequent on chronic bronchial disorders. His son was proclaimed as King George V. Settlement of the pending political questions seems likely to be postponed for some

time.

-----ENGLAND: End-----

ENJUMEN.

See (in this Volume)
ANJUMAN.

ENVER BEY.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

EQUADOR.

See (in this Volume)
ECUADOR.

EQUITABLE LIFE ASSURANCE SOCIETY.

See (in this Volume)
INSURANCE, LIFE.

ERDMAN LAW.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1907 (APRIL).

ERICHSEN, DR. MYLIUS:

Tragically ended survey of Greenland coast.

See (in this Volume)
POLAR EXPLORATION.

{247}

ERICSSON, JOHN:

Unveiling of a monument to his memory at Stockholm,
September 14, 1901.

See (in this Volume)
SWEDEN: A. D. 1901.

ERIE CANAL:

Popular vote for its enlargement to a capacity
for boats of 1000 tons.

See (in this Volume)
NEW YORKE STATE: A. D. 1903.

ERITREA:

Its habitability by whites.

See (in this Volume)
AFRICA.

ESHER ARMY COMMISSION, The.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY.

ESNEH BARRAGE, Opening of the.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

ESPERANTO.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: ESPERANTO.

ESTOURNELLES DE CONSTANT D', BARON.

See (in this Volume)
Nobel Prizes.

ESTRADA, GENERAL JUAN:
Revolutionary leader in Nicaragua.

See (in this Volume)
CENTRAL AMERICA: A. D. 1909.

ESTUPINIAN, DON BALTASER:
Vice-President of Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

ETHER OF SPACE, NEW CONCEPTION OF THE.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: PHYSICAL.

ETHIOPIA.

See (in this Volume)
ABYSSINIA.

EUCKEN, Rudolf.

See (in this Volume)
NOBEL PRIZES.

EUDISTES, THE CONGREGATION OF THE.

See (in this Volume)
FRANCE: A. D. 1905-1906.

EUGENICS.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: EUGENICS.

EULENBURG, PRINCE,

The charges against.

See (in this Volume)

GERMANY: A. D. 1907-1908.

EUPHRATES VALLEY:

Railway building.

See (in this Volume)

RAILWAYS: TURKEY: A. D. 1899-1909.

EUPHRATES VALLEY:

Irrigation projects.

See in this Volume)

TURKEY: A. D. 1909 (OCTOBER).

-----EUROPE: Start-----

EUROPE: A. D. 1850-1907.

Growth and changes in population.

The shifting of numerical weight among nations and peoples.

Some statistical statements of surprising interest were set forth in an article published by Professor Sombart, of Berlin, in 1907. German statisticians have a reputation for accuracy, and we have no ground for questioning the figures submitted by this professor, which show that, notwithstanding the great flow of emigration from Europe within the last 60 years, its population has increased from about 250,000,000 to 400,000,000 since the middle of the nineteenth century. The main growth,

however, has been in Russia, from which the emigration has been slight.

The exhibit of relative increase in the several countries and among the several races of Europe is more interesting and more important than the total growth. This comparison gives a heavy gain of weight to Russia since 1850, a considerable gain to Germany, slight gains to Austria-Hungary, Great Britain and Ireland (wholly on the British side of the United Kingdom), Belgium, and the Netherlands, with comparative losses in all the rest. The drop made by France in the scale of population is distressingly great. Out of every 1,000 inhabitants of Europe in 1850, 137 were in France; but out of the same number of Europeans in 1905 she counted but 94. Russia, in the same period, raised her share of the population of Europe from 215 per 1,000 to 285; Germany from 138 to 145; Austria-Hungary from 114 to 117; Great Britain and Ireland from 104 to 105; Belgium from sixteen to seventeen; the Netherlands from twelve to thirteen. On the other hand, Italy dropped from 95 to 80; Spain and Portugal from 71 to 58; Sweden, Norway, and Denmark from 29 to 25; the Balkan States from 60 to 53; Switzerland from nine to eight.

Carrying the comparisons of relative population back to the beginning of the last century, Professor Sombart finds that Germany, which gained ground in the last half of the period, had lost more in the first half than that gain made good. In 1801 the Germans furnished 160 to each 1,000 of the population of Europe, against their present count of 145. But Great Britain and Ireland gave but 93 to that 1,000 in 1801 against the 105 of the present time. The gains of Russia and the losses of France, Italy, and Spain were alike continuous from the first to the latest date.

As the result of these differences of advance in population, the Slavic peoples have been raised from the lowest to the highest weight in numbers; the Germanic have dropped just

enough in the scale to take second place; while the Latinized folk of Southwestern Europe, or Latins as we call them, have fallen far from the share they had in the peopling of the continent 100 years ago. Of each 1,000 Europeans in 1801 the Slavs numbered 268, the Latins 355, the Germanics 375. In 1850 the count was 310 for the Slav, 321 for the Latin, 369 for the Germanic. The next 55 years brought the Slav to the front, with a great bound, and the figures in the column for 1905 are 375 Slav, 373 Germanic, 251 Latin.

These statistics hold a number of deep meanings; but they are especially eloquent in their showing of the deadly effects of the Napoleonic wars. For France there has been no recovery since those horrible years when the Corsican vampire sucked at her veins; and Spain and Italy are still sicklied from the same cause. But Germany's languishing ended when the long peace of the last 36 years began. Her vitality had never been spent, even in the Thirty Years' War and by the belligerency of Frederick, "called the Great," before Napoleon came to trample upon her, as that of France had been exhausted by her Bourbon and Corsican masters.

{248}

EUROPE: A. D. 1870-1905.

Rate of Increase of Population in other countries
compared with Germany.

"During the last few decades, the population of Germany has been increasing with marvellous and unprecedented rapidity. From 1870 to the present time it has grown from 40,818,000 people to more than 60,000,000 people, and has therefore increased by 50 per cent. During the same period, our own [British] population has increased from 31,817,000 people to 43,000,000 people, or by but 32 per cent. No nation in the world excepting those oversea which yearly receive a huge number of immigrants from abroad multiplies more rapidly than

does the German nation, as may be seen from the following figures:

"Average Yearly Increase of Population
between the Last and the Previous Census.

Germany, of inhabitants.	15,000 people per million
Russia, of inhabitants.	13,600 people per million
Holland, of inhabitants.	12,300 people per million
Switzerland, of inhabitants.	10,400 people per million
Belgium, of inhabitants.	10,100 people per million
Great Britain, of inhabitants.	9,400 people per million
Austria-Hungary, of inhabitants.	9,300 people per million
Spain, of inhabitants.	8,800 people per million
Italy, of inhabitants.	6,900 people per million
France, of inhabitants.	1,700 people per million

"From the foregoing table it appears that not only the population of Germany, but that of all the chiefly Germanic nations, increases very much faster than that of all other nations, Russia excepted. However, Russia cannot fairly be compared with Germany, partly because her population statistics are not reliable, partly because the growth of her

population is to some extent due to conquest. ...

"The proud boast of the Pan-Germans that it is the destiny of the German race to rule the world would appear to be correct, were it not for a singular phenomenon which, so far, has remained almost unobserved. Whilst the 60,000,000 Germans in Germany are increasing with astonishing celerity, the 30,000,000 Germans who live in Austria-Hungary and in other countries are so rapidly losing all German characteristics and even the German language, that it seems possible that, forty or fifty years hence, the number of Germans outside Germany proper will be almost nil. ...

"The 90,000,000 Germans who live in Germany and in Greater Germany are distributed over the globe as follows:

Germany	60, 000, 000
Austria-Hungary	11, 550, 000
Switzerland	2, 320, 000
Russia	2, 000, 000
Various European countries	1, 130, 000

Total in Europe	77, 000, 000
United States and Canada	11, 500, 000
Central and South America	600, 000
Asia, Africa, Australia	400, 000
Grand total	89, 500, 000"

O. Eltzbacher,

Germany and Greater Germany
(Contemporary Review, August, 1905).

Later figures, relative to France, on this subject, were given by the Paris correspondent of the New York Evening Post, writing June 12th, 1909, when he said: "From 1901 to 1905 the birthrate was high enough to increase the population of France 18 for every 10,000 yearly. During the same period the relative increase per 10,000 was 106 in Italy, 113 in Austria, 121 in England, 149 in Germany, and 155 in Holland. ... Coming back to single years, the birth rate of 1906 only increased the French population 7 per 10,000; that is, among every 10,000 inhabitants there were as many births of living children as there were deaths taken altogether, plus seven births more. In 1907 there were five fewer births than deaths per 10,000 inhabitants. And now here comes 1908 jumping back to an excess of twelve births over deaths per 10,000. Such sudden fluctuations can be seized on by no theory; 1907 had its deficit because it had 19,892 more deaths than the average; 1908 recovers lost ground because it had 48,266 fewer deaths than 1907, or 28,374 fewer than the average of the preceding period of five years. Along with this slow but sure decrease in the absolute birth rate of France goes the happier decrease of deaths, owing to greater well-being in general and better popular hygiene in particular.

"Statistics have something better than this to show. The steady increase in marriages, which I noted last year, has gone on. For 1908 it is the heaviest since 1873; the total number was 315,928—which is 1,172 more than in 1907 and 9441 more than in 1906. Divorces, for all France, were 10,573 in 1906 and 11,515 in 1908.

"Why do Frenchmen have few children? Because they deliberately will not to have them. That is the answer which every intelligent observer who passes his life among Frenchmen—as one of themselves, not as an outsider—will give spontaneously;

and it is the answer to which all statistics and all verified social facts lead up."

EUROPE: A. D. 1878-1909.

Thirty-one Years of Peace, broken only by
Thirty-one Days of War.

In the spring of 1897 there were thirty-one days of war between Turkey and Greece. With that exception there have been no hostilities on the European continent since Russia fought the Turks in 1877-1878, a period of thirty-one years. In the preceding thirty years there had been nearly a score of serious insurrections and wars: the widespread revolutionary conflicts of 1848-1849, in France, Italy, Austria, Hungary, Germany, and Denmark; the coup d'état of 1851 in France; the Crimean War of 1854-1856; the war of France and Sardinia with Austria in 1859; Garibaldi's liberation of Sicily and Naples in 1861, and his attempt on Rome the next year; the Greek revolution of 1862; Polish revolts of 1861 and 1863; the Schleswig-Holstein war of 1864; the Austro-Prussian "Seven Weeks War" and the Austro-Italian war, in 1866; Garibaldi's renewed attack on the Papal government at Rome in 1867; revolution in Spain in 1868; the Franco-German War and the insurrection of the Communists at Paris in 1870-1871; the revolts of Bosnia and Herzegovina in 1875 and of Bulgaria in 1876.

There is no mistaking the hopeful significance of so striking a contrast as this; and if we look back through two more similar periods, each of which represents the average term reckoned for a generation, we find the key to a better understanding of its hopefulness. Behind the turbulent thirty years from 1847 to 1877 are thirty years during most of which Europe lay bleeding, panting, exhausted by thirty other years of the French Revolution and the Napoleonic wars; exhausted physically but stirred deeply in brain and heart, and gathering strength for the efforts toward freer and better

institutions of government and more homogeneous organizations of nationality which most of the conflicts between 1847 and 1877 represent.

{249}

It is because those conflicts resulted in far better political conditions, and in much of satisfaction to racial affinities and national aspirations long resisted, that the people of Europe, in these last thirty years, have enjoyed the longest exemption from war on their own soil that their history records.

EUROPE: A. D. 1902-1907.

Renewal and maintenance of the Triple Alliance.
Its value to Italy.

The Triple Alliance or Dreibund of Germany, Austria-Hungary and Italy, formed in 1882 and renewed in 1887 and 1891, was renewed for the third time in 1902, a year before the end of its term, by the Zanardelli Government. "The term of this renewal was for six or 12 years; that is to say, if the treaty were not denounced in 1907, five years after its actual renewal, it should be considered as holding good for the full term of 12 years. The treaty was not denounced by the Giolitti Ministry, with Signor Tittoni Minister of Foreign Affairs, and therefore is in force until 1914, 12 years after its third renewal by Prinetti. Except in the case of a very marked alteration in the friendly relations between the three contracting Powers there can be no question of its renewal or non-renewal at this date. That case has not arrived; the cordial relations between Italy and her allies, in spite of conjectured though unacknowledged differences of opinion, remain ostensibly unaltered, and may still be considered as correctly described in the words used in their speeches in Vienna by the Emperor of Austria and the German Emperor, and in the telegrams which they afterwards exchanged with the King

of Italy.

"Some Italian politicians, however, seem disposed to question the utility of an alliance which does not relieve Italy from the necessity of spending more money on her national defence. What, they ask, is the use of the alliance if we have to make these heavy sacrifices in order to increase our army and navy and put our frontier fortifications in order? The answer is more simple than agreeable. It is precisely the existence of the Triple Alliance that has permitted Italy to leave her Austrian frontier absolutely open to invasion, and to allow both her army and navy to fall below the standard which she had proposed to keep up. The alliance has secured her immunity for her neglect. But she has naturally paid for that combined neglect and immunity by accepting a subordinate role by the side of her allies."

***Rome Correspondence,
London Times, May 15, 1909.***

EUROPE: A. D. 1904 (April).

The Entente Cordiale of England and France.

In his interesting work on "France and the Alliances," founded on a course of lectures delivered at Harvard University in 1908, M. André Tardieu reviews the long antagonism between England and France, which ran through their history, from early in the Fourteenth Century to the last year but one of the Nineteenth, when, in March, 1899, France, by treaty with the British Government, gave up her strong desire to extend her North African dominion eastward to the Nile. Then he asks: "How came it that within five years a sincere understanding was established between the two hereditary enemies?" He answers the question by saying: "Neither in England nor in France is the principle of the understanding to be sought. Rather was it the fear of Germany which determined England—not only her King and Government, but the whole of her people—to

draw near to France." This, without doubt, is substantially the true explanation of the friendly agreements, forming what is known as the Entente Cordiale between England and France, which were signed on the 8th of April, 1904. They involved nothing in the nature of a defensive alliance against Germany, and they had been prepared for by a rapid growth of natural and real good feeling between English and French folk; but it is certain that they received their immediate prompting from the common recognition, in England and France, that Germany had become a rival in political and economic ambitions to both of them, more formidable than either could be to the other. This gave them a common reason for obliterating all their old differences and causes of difference, and exhibiting themselves to the world as friends.

M. Tardieu credits the English King with the initiation of this most important rapprochement. "He it was," says the French writer, "who both conceived and facilitated it, while still many believed that the moment was premature. Edward VII. has been both praised and attacked without stint. Perhaps he deserves neither the 'excess of honor nor yet the excess of abuse.' Among present sovereigns, he has one superiority, that of having gained experience in life before reigning. ... He is not afraid of taking the initiative; and so far his initiative has been a success. The boldest example of it was his visit to Paris in 1903. Putting aside all objections, and being convinced of his success, he arrived in France amidst an atmosphere of uncertainty. When the first platoons of cuirassiers rode down the Champs Elysées, embarrassment and anxiety weighed on the public. The Nationalists had declared their intention of hissing. What would be the result of a hostile manifestation? The King, as far as he was concerned, did not believe in the danger, and he was right. The Parisians accorded him, not an enthusiastic, but, from the first, a respectful, and soon a genial, reception. The road was clear. Two months later, Mr. Loubet paid King Edward a return visit. And, on welcoming his colleague, Mr. Delcassé, to London, Lord

Lansdowne said to him: 'Now we are going to have some conversation.' As a matter of fact, there was conversation both in Paris and in London. ... On the 8th of April, 1904, the agreement was signed, and its immediate publication produced a deep impression in Europe."

Strictly speaking, there were three Agreements, or two Declarations and one formal Convention, signed on the 8th of April, 1904, constituting, together, the Anglo-French **Entente**. The first, a "Declaration respecting Egypt and Morocco," ran as follows:

"Article I.

His Britannic Majesty's Government declare that they have no intention of altering the political status of Egypt. The Government of the French Republic, for their part, declare that they will not obstruct the action of Great Britain in that country by asking that a limit of time be fixed for the British occupation or in any other manner, and that they give their assent to the draft Khedivial Decree annexed to the present Arrangement, containing the guarantees considered necessary for the protection of the interests of the Egyptian bondholders, on the condition that, after its promulgation, it cannot be modified in any way without the consent of the Powers Signatory of the Convention of London of 1885. It is agreed that the post of Director-General of Antiquities in Egypt shall continue, as in the past, to be entrusted to a French **savant**. The French schools in Egypt shall continue to enjoy the same liberty as in the past.

{250}

"Article II.

The Government of the French Republic declare that they have no intention of altering the political status of Morocco. His Britannic Majesty's Government, for their part, recognize that it appertains to France, more particularly as a Power whose

dominions are conterminous for a great distance with those of Morocco, to preserve order in that country, and to provide assistance for the purpose of all administrative, economic, financial, and military reforms which it may require. They declare that they will not obstruct the action taken by France for this purpose, provided that such action shall leave intact the rights which Great Britain, in virtue of Treaties, Conventions, and usage, enjoys in Morocco, including the right of coasting trade between the ports of Morocco, enjoyed by British vessels since 1901.

"Article III.

His Britannic Majesty's Government, for their part, will respect the rights which France, in virtue of Treaties, Conventions, and usage, enjoys in Egypt, including the right of coasting trade between Egyptian ports accorded to French vessels.

"Article IV.

The two Governments, being equally attached to the principle of commercial liberty both in Egypt and Morocco, declare that they will not, in those countries, countenance any inequality either in the imposition of customs duties or other taxes, or of railway transport charges. The trade of both nations with Morocco and with Egypt shall enjoy the same treatment in transit through the French and British possessions in Africa. An Agreement between the two Governments shall settle the conditions of such transit and shall determine the points of entry. This mutual engagement shall be binding for a period of thirty years. Unless this stipulation is expressly denounced at least one year in advance, the period shall be extended for five years at a time. Nevertheless, the Government of the French Republic reserve to themselves in Morocco, and His Britannic Majesty's Government reserve to themselves in Egypt, the right to see that the concessions for roads, railways, ports, &c., are only granted on such conditions as will maintain intact the authority of the State over these great

undertakings of public interest.

"Article V.

His Britannic Majesty's Government declare that they will use their influence in order that the French officials now in the Egyptian service may not be placed under conditions less advantageous than those applying to the British officials in the same service. The Government of the French Republic, for their part, would make no objection to the application of analogous conditions to British officials now in the Moorish service.

"Article VI.

In order to insure the free passage of the Suez Canal, His Britannic Majesty's Government declare that they adhere to the stipulations of the Treaty of the 29th October, 1888, and that they agree to their being put in force. The free passage of the Canal being thus guaranteed, the execution of the last sentence of paragraph 1 as well as of paragraph 2 of Article VIII of that Treaty will remain in abeyance.

"Article VII.

In order to secure the free passage of the Straits of Gibraltar, the two Governments agree not to permit the erection of any fortifications or strategic works on that portion of the coast of Morocco comprised between, but not including, Melilla and the heights which command the right bank of the River Sebou. This condition does not, however, apply to the places at present in the occupation of Spain on the Moorish coast of the Mediterranean.

"Article VIII.

The two Governments, inspired by their feeling of sincere friendship for Spain, take into special consideration the interests which that country derives from her geographical position and from her territorial possessions on the Moorish coast of the Mediterranean. In regard to these interests the

French Government will come to an understanding with the Spanish Government. The agreement which may be come to on the subject between France and Spain shall be communicated to His Britannic Majesty's Government.

"Article IX.

The two Governments agree to afford to one another their diplomatic support, in order to obtain the execution of the clauses of the present Declaration regarding Egypt and Morocco."

The more formally designated Convention relates to questions concerning the Newfoundland fisheries and certain boundaries between French and English possessions in Africa. The articles respecting Newfoundland and the fisheries are as follows:

"Article I.

France renounces the privileges established to her advantage by Article XIII of the Treaty of Utrecht, and confirmed or modified by subsequent provisions.

"Article II.

France retains for her citizens, on a footing of equality with British subjects, the right of fishing in the territorial waters on that portion of the coast of Newfoundland comprised between Cape St. John and Cape Ray, passing by the north; this right shall be exercised during the usual fishing season closing for all persons on the 20th October of each year. The French may therefore fish there for every kind of fish, including bait and also shell fish. They may enter any port or harbour on the said coast and may there obtain supplies or bait and shelter on the same conditions as the inhabitants of Newfoundland, but they will remain subject to the local Regulations in force; they may also fish at the mouths of the rivers, but without going beyond a straight line drawn between the two extremities of the banks, where the river enters the sea. They shall not make use of stake-nets or fixed engines

without permission of the local authorities. On the above-mentioned portion of the coast, British subjects and French citizens shall be subject alike to the laws and Regulations now in force, or which may hereafter be passed for the establishment of a close time in regard to any particular kind of fish, or for the improvement of the fisheries. Notice of any fresh laws or Regulations shall be given to the Government of the French Republic three months before they come into operation. The policing of the fishing on the above-mentioned portion of the coast, and for prevention of illicit liquor traffic and smuggling of spirits, shall form the subject of Regulations drawn up in agreement by the two Governments.

{251}

"Article III.

A pecuniary indemnity shall be awarded by His Britannic Majesty's Government to the French citizens engaged in fishing or the preparation of fish on the 'Treaty Shore,' who are obliged, either to abandon the establishments they possess there, or to give up their occupation, in consequence of the modification introduced by the present Convention into the existing state of affairs. This indemnity cannot be claimed by the parties interested unless they have been engaged in their business prior to the closing of the fishing season of 1903. Claims for indemnity shall be submitted to an Arbitral Tribunal, composed of an officer of each nation, and, in the event of disagreement, of an Umpire appointed in accordance with the procedure laid down by Article XXXII of The Hague Convention. The details regulating the constitution of the Tribunal, and the conditions of the inquiries to be instituted for the purpose of substantiating the claims, shall form the subject of a special Agreement between the two Governments.

"Article IV.

His Britannic Majesty's Government, recognizing that, in

addition to the indemnity referred to in the preceding Article, some territorial compensation is due to France in return for the surrender of her privilege in that part of the Island of Newfoundland referred to in Article II, agree with the Government of the French Republic to the provisions embodied in the following Articles:"

The provisions here referred to, contained in the subsequent articles, modify the former frontier between Senegambia and the English colony of the Gambia, "so as to give to France Yarbutenda and the lands and landing places belonging to that locality"; cede to France "the group known as the Isles de Los, and situated opposite Konakry"; and substitute a new boundary, to the east of the Niger, for that which was fixed between the French and British possessions by the Convention of 1898.

The Declaration which concludes the series of Agreements has to do with matters in Siam, Madagascar, and New Hebrides. As to Siam, the two Governments "declare by mutual agreement that the influence of Great Britain shall be recognized by France in the territories situated to the west of the basin of the River Menam, and that the influence of France shall be recognized by Great Britain in the territories situated to the east of the same region, all the Siamese possessions on the east and southeast of the zone above described and the adjacent islands coming thus henceforth under French influence, and, on the other hand, all Siamese possessions on the west of this zone and of the Gulf of Siam, including the Malay Peninsula and the adjacent islands, coming under English influence. The two Contracting Parties, disclaiming all idea of annexing any Siamese territory, and determined to abstain from any act which might contravene the provisions of existing Treaties, agree that, with this reservation, and so far as either of them is concerned, the two Governments shall each have respectively liberty of action in their spheres of influence as above defined."

The further agreements were, on the part of the British Government, to withdraw a protest it had raised against the customs tariff established in Madagascar, and, on the part of the two Governments, "to draw up in concert an arrangement which, without involving any modification of the political status quo, shall put an end to the difficulties arising from the absence of jurisdiction over the natives of the New Hebrides."

In the British Parliamentary Paper (Cd. 1952, April, 1904) which gave official publication to these Agreements, they are accompanied by an explanatory despatch from the Marquess of Lansdowne, British Foreign Secretary, to Sir E. Monson, Ambassador at Paris, which affirms distinctly that "if any European Power is to have a predominant influence in Morocco, that Power is France." The language of the despatch on this subject is as follows:

"The condition of that country [Morocco] has for a long time been unsatisfactory and fraught with danger. The authority of the Sultan over a large portion of his dominions is that of a titular Chief rather than of a Ruler. Life and property are unsafe, the natural resources of the country are undeveloped, and trade, though increasing, is hampered by the political situation. In these respects the contrast between Morocco and Egypt is marked. In spite of well-meant efforts to assist the Sultan, but little progress has been effected, and at this moment the prospect is probably as little hopeful as it ever has been. Without the intervention of a strong and civilized Power there appears to be no probability of a real improvement in the condition of the country.

"It seems not unnatural that, in these circumstances, France should regard it as falling to her lot to assume the task of attempting the regeneration of the country. Her Algerian possessions adjoin those of the Sultan throughout the length

of a frontier of several hundred miles. She has been compelled from time to time to undertake military operations of considerable difficulty, and at much cost, in order to put an end to the disturbances which continually arise amongst tribes adjoining the Algerian frontier—tribes which, although nominally the subjects of the Sultan, are, in fact, almost entirely beyond his control. The trade of France with Morocco is again—if that across the Algerian frontier be included—of considerable importance, and compares not unfavourably with our own. In these circumstances, France, although in no wise desiring to annex the Sultan's dominions or to subvert his authority, seeks to extend her influence in Morocco, and is ready to submit to sacrifices and to incur responsibilities with the object of putting an end to the condition of anarchy which prevails upon the borders of Algeria. His Majesty's Government are not prepared to assume such responsibilities, or to make such sacrifices, and they have therefore readily admitted that if any European Power is to have a predominant influence in Morocco, that Power is France."

{252}

Of the reciprocal and equally important recognition by France of the paramount influence of Great Britain in Egypt, Lord Lansdowne wrote:

"From the point of view of Great Britain the most important part of the Agreement which has been concluded in respect of Egypt is the recognition by the French Government of the predominant position of Great Britain in that country. They fully admit that the fulfilment of the task upon which we entered in 1883 must not be impeded by any suggestion on their part that our interest in Egypt is of a temporary character, and they undertake that, so far as they are concerned, we shall not be impeded in the performance of that task. This undertaking will enable us to pursue our work in Egypt without, so far as France is concerned, arousing international

susceptibilities. It is true that the other Great Powers of Europe also enjoy, in virtue of existing arrangements, a privileged position in Egypt; but the interests of France—historical, political, and financial—so far outweigh those of the other Powers, with the exception of Great Britain, that so long as we work in harmony with France, there seems no reason to anticipate difficulty at the hands of the other powers."

EUROPE: A. D. 1904-1909.

General Consequences in Europe of the Russo-Japanese War and the Weakening of Russia in Prestige and Actual Power.

"Europe is apparently on the eve of such a new combination of the Great Powers as was caused by the Franco-German War of 1870, and just as after that fateful event Berlin became the centre of the continental political system, so Paris bids fair to play this part in the near future. For France has never been so powerful a factor in politics since the fall of the Empire as to-day. Everyone recognises that her alliance with Russia was the first step from the isolation which followed her military reverses towards her reinstatement in the political hierarchy, and some of the most popular and statesmanlike politicians of the Republic hold that the dissolution of that partnership will be the second. For the good which it achieved, they allege, was largely accidental, while the cost it entailed was proportionately great. ...

"The chief aim of the French statesman who struck up an alliance with the Government of Alexander III. was to neutralise Teutonic aggressiveness, and if possible to recover the lost provinces as well. The latter part of this programme has turned out to be a will-o'-the-wisp, while the first item can now be realised independently of the Russian alliance. Moreover, France, far from being isolated to-day, counts among her friends and natural allies not only the Latin peoples but the smaller States of the Continent, to say nothing of Great

Britain. ...

"The motives which induced Germany, Austria-Hungary and Italy to enter into partnership have lost their force; the Triple Alliance has ceased to exist in aught but the name. Italy was the first of the three States to break away. And her adherence to the league was so obviously opposed to the sentiments of her people and the real interests of the nation, that only the strongest conceivable motive could keep her in the uncongenial society of her former oppressor. That motive had been supplied by Bismarck, who persuaded Crispi that clerical France was at the beck and call of the Vatican, and only awaited a prosperous moment to disunite Italy and restore Rome to the Pope. But to-day Germany herself has become the most trusty and perhaps the most helpful friend of the Holy See, while France has struck a vigorous blow on the line of cleavage between the political and ecclesiastical institutions which constitute the Catholic Church. The ruling body in Parliamentary Germany is the Ultramontane centre, and if any State in Europe could be conceived to be capable of breaking a lance for the temporal power of his Holiness, it would certainly be one of the two Teutonic Empires of Central Europe."

E. J. Dillon,
Foreign Affairs
(Contemporary Review, August, 1904).

The following is from a special correspondent of the New York ***Evening Post***, who wrote from St. Petersburg on the 5th of March, 1909:

"The international position of Russia has weakened greatly during the last five years. Before the Japanese war and the revolution her strength was enormous, and a Japanese officer who visited St. Petersburg in 1903 wrote in a Japanese paper that, judging by the attention which was paid to the Czar by

every court in Europe and by the respect, almost awe even, with which he was regarded, that monarch might almost be styled the king of kings. The war and the revolution made short work, however, of this respect and awe. The Emperor William first took advantage of Russia's weakness by springing the Morocco surprise on Europe; then Baron von Aehrenthal annexed Bosnia and Herzegovina, which he would never, of course, have dared to do six years ago; while recently in the Duma Mr. Iswolsky frankly confessed that Russia can do absolutely nothing; that the war and the revolution have bled her white, and that no assistance or hope of assistance can be given to the Serbs and the Montenegrins."

EUROPE: A. D. 1905.

Joint action of Powers in forcing Financial Reforms in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

EUROPE: A. D. 1905-1906.

Sudden hostility of Germany to the Anglo-French Agreement concerning Morocco.

The Kaiser's speech at Tangier.

Threatening pressure on France.

Demand for International Conference.

Results at Algeiras.

What use the French Government wished to make of the free exercise of influence in Morocco which Great Britain consented to, in the agreements of April 8, 1904, is stated by M. Tardieu in his "France and the Alliances," with more than probable truth, as follows:

"There was no design of conquest, or of protectorate, or of monopoly. Conquest would have cost too dear. A protectorate would have served no purpose in face of the exclusiveness of

the tribes. Monopolization would have been contrary to international treaties. To create police forces with Moroccan natives and Algerian instructors in all the principal towns; to restore finances by means of a more honest collection of taxes, a genuine checking of expenses, and the repression of smuggling; to increase the carrying trade by public works wisely planned and the construction of ports, bridges and roads—all this by contract law; to multiply hospitals, schools, educational and charitable institutions,—such was the tenor of the programme. ... As Mr. Delcassé wrote: ‘Far from diminishing the Sultan’s authority, we were peculiarly anxious to enhance his prestige.’”

{253}

For almost a year after the signing of the Anglo-French agreements of April, 1904, no objection was raised in Europe to the undertaking by France of such regenerative work in Morocco as they contemplated. Italy had assented to it before England did. Spain did the same a few months later. These were the Powers most concerned. The German Ambassador to France had been informed of the tenor of the agreement with England a fortnight before it was signed, and no criticism came from his Government. After the text of it had been published, Chancellor von Bülow said in the Reichstag: "We know of nothing that should lead us to think that this agreement is directed against any Power whatsoever. ... From the point of view of German interests, we have no objection to make against it." During the eleven months that followed this utterance nothing appears to have been done by France in Morocco that changed the situation; but something changed the official attitude of Germany towards what it had found acceptable before, and changed it very suddenly. On the 31st of March, 1905, the German Emperor, on a yachting cruise to the Mediterranean, disembarked at Tangier, and found occasion to address these remarks to a representative of the Sultan:

"To-day, I pay my visit to the Sultan in his character of independent sovereign. I hope that, under the Sultan's sovereignty, a free Morocco will remain open to the pacific competition of all nations without monopoly and without annexation, on a footing of absolute equality. My visit to Tangier is intended to make known the fact that I am resolved to do all that is in my power properly to safeguard the interests of Germany, since I consider the Sultan as being an absolutely free sovereign. It is with him that I mean to come to an understanding respecting the best way of safeguarding such interests. As regards the reforms which the Sultan is intending to make, it seems to me that any action in this direction should be taken with great precaution, respect being had for the religious sentiments of the population in order that there may be no disturbance of public tranquillity."

All Europe read an emphasized threat in these words, and felt instantly that they meant hostile intentions towards France. That they came so quickly after the crushing defeat of Russia at Mukden; that Russia, ally of France in European politics, would need no longer to be counted, for some indefinite future time, as a military Power; that the Dual Alliance, which had been the prop of France in the recovery of her standing among the Powers, was thus suddenly a broken reed, and that circumstances were propitious, therefore, for humiliating her again,—here were facts for a bit of reasoning which suggested itself quickly to a multitude of minds.

Twelve days after the speech of William II. at Tangier Chancellor Bülow addressed a circular to the Ambassadors of Germany at various capitals, directing them to demand an International Conference for the settlement of matters concerning Morocco. A little later the Moorish Sultan, Abd el Aziz, endorsed the demand, in the following missive, addressed to the several legations of foreign governments at Tangier:

"We have been ordered by our master the Sultan (God strengthen

him) to request all the great powers to hold a conference at Tangier, composed by its honorable representatives and those appointed by the Maghzen [the royal council or Cabinet] to discuss the manner for suitable reforms which His Shcreefian Majesty has determined to introduce into his Empire, and the expenses to carry out the same. We therefore beg to inform your excellency of this, so that you may notify your government and request them to permit your excellency to attend said conference for the above-mentioned purpose and let us know of its answer, and remain in peace and with joy. Written at the Holy Court at Fez on the 25th day of Rabe 1st, 1905; corresponding to May 29, 1905.

MOHAMMED BEN ARBY TORRES."

Meantime, Germany was bringing pressure at Paris to force the resignation or removal of M. Delcassé, the Foreign Minister, whose policy was now said to be "A threat to Germany," and the French Government, unprepared for war, submitted to concessions which involved that result. It entered on preliminary pourparlers concerning the demand for an international conference, and allowed Minister Delcassé to resign.

A fair-minded German's view of the proceedings of the German Government in this matter was expressed by Mr. W. C. Dreher in his next annual review of "The Year in Germany" for ***The Atlantic Monthly***. Frankly acknowledging that the Morocco controversy had "left with most other nations a distinctly disagreeable impression of the disturbing tendencies of German policy," and that the Kaiser's famous speech at Tangier had "astonished the German people not less than other nations," he remarks: "For the Germans had learned to acquiesce in the Anglo-French settlement, under which France was to have a free hand for its scheme of *pénétration pacifique* in Morocco. The utterances of the Imperial Chancellor in the Reichstag clearly indicated that the Government accepted with good grace the general terms of that settlement. The people,

too, had been schooled by the inspired press in the theory that Germany's commercial interests in Morocco were so insignificant as not to warrant the inauguration of a large and energetic action to assert them; and this view had been generally accepted by them, barring the noisy little faction of Pan Germans.

"The chief fault of Germany's Morocco policy was, accordingly, that it was sprung upon the German people themselves without warning, without any preparation of their minds for it; hence they imperfectly comprehended it and never had any great interest in it. They did not feel that it was a matter intimately affecting the nation's interests; and while the German Ambassador at Paris was asserting Germany's solidarity with Morocco, the press at home was diligently occupied in convincing the outside world that Germany would never go to war on account of that remote and insignificant state.

"Despite the abruptness and lack of skill in launching its new policy, however, the government's position was logical and, within certain limits, reasonable. France and England had assumed to decide the fate of Morocco between themselves, whereas the Madrid Treaty of 1880, to which Germany was signatory, had explicitly given an international character to the Moroccan question. This was clearly an affront to Germany's dignity and an attempt to isolate her, which ought to have been objected to at once."

W. C. Dreher,
The Year in Germany
(*Atlantic Monthly*, November, 1906).

{254}

On the 28th of September M. Rouvier, the French Premier, and Prince de Radolin, the German Ambassador at Paris, arrived at an agreement concerning the matters to be settled at the

demanded Conference, and it was announced to other governments in the following Memorandum;

The two Governments have agreed to submit to the Sultan the draft of the following programme elaborated in conformity to principles adopted by exchange of notes on July 8:

"First.

1. Organization, by way of international agreement, of the police outside the border region.

"2. Regulations organizing the surveillance and suppression of the smuggling of arms. In the border region the enforcement of these regulations will exclusively concern France and Morocco.

"Second.

Financial reform.

"Financial support given to the Maghzen through the establishment of a state bank with the privilege of issue, taking charge of treasury operations and acting as a medium for the coinage of money, the profits of which would belong to the Maghzen.

"The said state bank would undertake to bring about a sounder monetary condition.

"The credits opened to the Maghzen would be applied to the equipment and salaries of the public forces and to urgent public works, especially the improvement of the harbors and their facilities.

"Third.

Study of better proceeds from imposts and of new sources of revenue.

"Fourth.

Undertaking on the part of the Maghzen that no public service will be disposed of for the benefit of private interests.

"Principle of letting contracts for public works to the lowest bidder, without preference for any nationality."

In due time the further details were arranged, and representatives of thirteen governments, namely, of Austria-Hungary, Belgium, France, Germany, Great Britain, Italy, Morocco, the Netherlands, Portugal, Spain, Russia, Sweden, and the United States, were assembled in Conference on the 15th of January, 1906, not at Tangier, but at the Spanish city of Algeciras, on the coast of the Straits of Gibraltar. The United States were represented by the American Ambassador to the French Republic, Henry White, and by the American Minister to Morocco, S. R. Gummeré. The instructions addressed to them from Washington by the Secretary of State, Mr. Root, were partly in these words:

"The United States is a participant in the discussions of the conference solely by reason of being a treaty power, having conventional engagements with Morocco dating back to 1836, by which this country not only enjoys special privileges, but is entitled to the most-favored-nation treatment for the time being. This government also shares in the right of protection of certain native Moors as defined in the multipartite convention of July 3, 1880. Our interest and right comprise and are limited to an equal share in whatever privileges of residence, trade, and protection are enjoyed by, or may be hereafter conceded by, the Shereefian Government to aliens and their local agencies, and it follows that we have a like concern in the enlargement of those privileges in all appropriate ways. With the special political problems of influence and association affecting the relations of the Moroccan Empire, as a Mediterranean state, to the powers having interests in that great sea and whose concern lies naturally in the conservation and extension of its commerce

for the common benefit of all, the United States have little to do beyond expression of its wish that equality and stability be secured. ...

"It is expected that your attitude in the proceedings of the conference will display the impartial benevolence which the United States feels toward Morocco and the cordial and unbiased friendship we have for all the treaty powers. Fair play is what the United States asks—for Morocco and for all the interested nations—and it confidently expects that outcome. The complete dissociation of the United States from all motives or influences which might tend to thwart a perfect agreement of the powers should, in case of need, lend weight to your impartial counsels in endeavoring to compose any dissidence of aims which may possibly develop in the course of the conference."

Algeciras, the chosen seat of the Conference, had been three times a landing place of the Moors in their invasions of Spain. "The modern town," says one who wrote an account of the Conference, "dating only from 1760, has but one attraction, a magnificent English hotel, built by the owners of the picturesque railway which connects it with the rest of Europe, and of the corresponding steamer service across the bay to Gibraltar, placing it in touch with all the world. But this attraction sufficed, and the Reina Cristina Hotel was engaged for the delegates, while the town-hall was cleared and refitted for their deliberations. ...

"The meetings were held at irregular intervals, about three times a week, being summoned whenever the President was advised that sufficient instructions had been received, or that the drafting committee had some document to present for consideration. Formal sessions were held from ten to twelve in the morning, the Conference meeting in committee from three to five in the afternoon, the drafting and translating committees assembling when and where convenient to their members."

***Budgett Meakin,
The Algeciras Conference
(Fortnightly Review, May, 1906).***

The General Act of the Conference, finished and signed on the 7th of April, 1906, is in 123 Articles, divided into 6 Chapters, as follows:

- I. A Declaration relative to the Organization of the Police;
- II. Regulations concerning the detection and suppression of the Illicit Trade in Arms;
- III. An Act of Concession for a Moorish State Bank;
- IV. A Declaration concerning an Improved Yield of the Taxes, and the creation of New Sources of Revenue;
- V. Regulations respecting the Customs of the Empire and the suppression of Fraud and Smuggling;
- VI. A Declaration relative to the Public Services and Public Works.

The first chapter provides for the organization of a police force, not less than 2000 nor more than 2500 in number, recruited from among Moorish Mussulmans and commanded by Kaids, but having Spanish and French officers and non-commissioned officers for instructors, nominated to the Sultan by their respective Governments, and their services given for five years.

{255}

This police force, moreover, is subject to general inspection by a superior officer of the Swiss army. The regulations of the second chapter are minute and precise for their stated purpose. The Morocco State Bank, provided for in the third, is

made subject to the law of France, and is to "discharge the duties of disbursing Treasurer of the Empire" and "financial agent of the Government." The Directors of the Bank are chosen, of course, by the shareholders; but one article stipulates that "the Shereefian Government shall exercise its high control over the Bank through a Moorish High Commissioner, whom it shall appoint after previous agreement with the board of directors," while another requires that "each of the following institutions, viz., the German Imperial Bank, the Bank of England, the Bank of Spain and the Bank of France, shall, with the approval of its Government, appoint a Censor to the State Bank of Morocco." The prescriptions in the fourth and fifth chapters of the act are not of general significance or interest. In the sixth, relating to "public services and public works," it is set forth that, "should the Shereefian Government consider it necessary to have recourse to foreign capital or to foreign industries for the working of public services or for the execution of public works, roads, railways, ports, telegraphs, or other, the Signatory Powers reserve to themselves the right to see that the control of the State over such large undertakings of public interest remain intact." On the signing of the Act Mr. Henry White, the chief delegate from the United States to the Conference, made the following Declaration on behalf of his Government:

"The Government of the United States of America, having no political interests in Morocco, and having taken part in the present Conference with no other desires or intentions than to assist in assuring to all the nations in Morocco the most complete equality in matters of commerce, treatment, and privileges, and in facilitating the introduction into that Empire of reforms which should bring about a general state of well-being founded on the perfect cordiality of her foreign relations, and on a stable internal administration, declares: that in subscribing to the Regulations and Declarations of the Conference by the act of signing the General Act, subject to ratification according to constitutional procedure, and the

Additional Protocol, and in consenting to their application to American citizens and interests in Morocco, it assumes no obligation or responsibility as to the measures which may be necessary for the enforcement of the said Regulations and Declarations."

EUROPE: A. D. 1907 (AUGUST).

Convention between Great Britain and Russia, containing arrangements on the subject of Persia, Afghanistan, and Tibet.

Parallel with the Agreements—the "*Entente Cordiale*"—of 1904 between England and France, in its purpose and in its importance to Europe, was the Convention between England and Russia in 1907, which harmonized the interests and the policy of the two nations in matters relating to Persia, Afghanistan, and Tibet. In each case the dictating motive looked not so much to a settlement of the particular questions involved, as to a general extinguishment of possible causes of contention which might at some time disturb the peaceful or friendly relations of the peoples concerned. Taken together, the two formally expressed understandings, Anglo-French and Anglo-Russian, added to the Franco-Russian Alliance of 1895 (see, in Volume VI. of this work, FRANCE: A. D. 1895) constituted, not a new Triple Alliance, set over against that of Germany, Austria-Hungary, and Italy, but an amicable conjunction which bore suggestions of alliance, and which introduced a counterweight in European politics that makes undoubtedly for peace.

The Anglo-Russian Convention, signed August 31, 1907, contained three distinct "Arrangements," under a common preamble, as follows:

"His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, and His Majesty the Emperor of All the Russias, animated by the sincere desire to settle by mutual

agreement different questions concerning the interests of their States on the Continent of Asia, have determined to conclude Agreements destined to prevent all cause of misunderstanding between Great Britain and Russia in regard to the questions referred to, and have nominated for this purpose their respective Plenipotentiaries. ... Who, having communicated to each other their full powers, found in good and due form, have agreed on the following:

Arrangement concerning Persia.

"The Governments of Great Britain and Russia having mutually engaged to respect the integrity and independence of Persia, and sincerely desiring the preservation of order throughout that country and its peaceful development, as well as the permanent establishment of equal advantages for the trade and industry of all other nations;

"Considering that each of them has, for geographical and economic reasons, a special interest in the maintenance of peace and order in certain provinces of Persia adjoining, or in the neighbourhood of, the Russian frontier on the one hand, and the frontiers of Afghanistan and Baluchistan on the other hand; and being desirous of avoiding all cause of conflict between their respective interests in the above-mentioned Provinces of Persia;

"Have agreed on the following terms:

"I. Great Britain engages not to seek for herself, and not to support in favour of British subjects, or in favour of the subjects of third Powers, any Concessions of a political or commercial nature—such as Concessions for railways, banks, telegraphs, roads, transport, insurance, &c.—beyond a line starting from Kasr-i-Shirin, passing through Isfahan, Yezd, Kakhk and ending at a point on the Persian frontier at the intersection of the Russian and Afghan frontiers, and not to

oppose, directly or indirectly, demands for similar Concessions in this region which are supported by the Russian Government. It is understood that the above-mentioned places are included in the region in which Great Britain engages not to seek the Concessions referred to.

"II. Russia, on her part, engages not to seek for herself, and not to support in favour of Russian subjects, or in favour of the subjects of third Powers, any Concessions of a political or commercial nature—such as Concessions for railways, banks, telegraphs, roads, transport, insurance, &c.—beyond a line going from the Afghan frontier by way of Gazik, Birjand, Kerman, and ending at Bunder Abbas, and not to oppose, directly or indirectly, demands for similar Concessions in this region which are supported by the British Government. It is understood that the above-mentioned places are included in the region in which Russia engages not to seek the Concessions referred to.

{256}

"III. Russia, on her part, engages not to oppose, without previous arrangement with Great Britain, the grant of any Concessions whatever to British subjects in the regions of Persia situated between the lines mentioned in Articles I and II. Great Britain undertakes a similar engagement as regards the grant of Concessions to Russian subjects in the same regions of Persia. All Concessions existing at present in the regions indicated in Articles I and II are maintained.

"IV. It is understood that the revenues of all the Persian customs, with the exception of those of Farsistan and of the Persian Gulf, revenues guaranteeing the amortization and the interest of the loans concluded by the Government of the Shah with the 'Banque d'Escompte et des Prêts de Perse' up to the date of the signature of the present Arrangement, shall be devoted to the same purpose as in the past. It is equally

understood that the revenues of the Persian customs of Farsistan and of the Persian Gulf, as well as those of the fisheries on the Persian shore of the Caspian Sea and those of the Posts and Telegraphs, shall be devoted, as in the past, to the service of the loans concluded by the Government of the Shah with the Imperial Bank of Persia up to the date of the signature of the present Arrangement.

"V. In the event of irregularities occurring in the amortization or the payment of the interest of the Persian loans concluded with the 'Banque d'Escompte et des Prêts de Perse' and with the Imperial Bank of Persia up to the date of the signature of the present Arrangement, and in the event of the necessity arising for Russia to establish control over the sources of revenue guaranteeing the regular service of the loans concluded with the first-named bank, and situated in the region mentioned in Article II of the present Arrangement, or for Great Britain to establish control over the sources of revenue guaranteeing the regular service of the loans concluded with the second-named bank, and situated in the region mentioned in Article I of the present Arrangement, the British and Russian Governments undertake to enter beforehand into a friendly exchange of ideas with a view to determine, in agreement with each other, the measures of control in question and to avoid all interference which would not be in conformity with the principles governing the present Arrangement.

Convention concerning Afghanistan.

"The High Contracting Parties, in order to ensure perfect security on their respective frontiers in Central Asia and to maintain in these regions a solid and lasting peace, have concluded the following Convention:

"Article I.

His Britannic Majesty's Government declare that they have no intention of changing the political status of Afghanistan. His

Britannic Majesty's Government further engage to exercise their influence in Afghanistan only in a pacific sense, and they will not themselves take, nor encourage Afghanistan to take, any measures threatening Russia. The Russian Government, on their part, declare that they recognize Afghanistan as outside the sphere of Russian influence, and they engage that all their political relations with Afghanistan shall be conducted through the intermediary of His Britannic Majesty's Government; they further engage not to send any Agents into Afghanistan.

"Article II.

The Government of His Britannic Majesty having declared in the Treaty signed at Kabul on the 21st March, 1905, that they recognize the Agreement and the engagements concluded with the late Ameer Abdur Rahman, and that they have no intention of interfering in the internal government of Afghan territory, Great Britain engages neither to annex nor to occupy in contravention of that Treaty any portion of Afghanistan or to interfere in the internal administration of the country, provided that the Ameer fulfils the engagements already contracted by him towards His Britannic Majesty's Government under the above-mentioned Treaty.

"Article III.

The Russian and Afghan authorities, specially designated for the purpose on the frontier or in the frontier provinces, may establish direct relations with each other for the settlement of local questions of a non-political character.

"Article IV.

His Britannic Majesty's Government and the Russian Government affirm their adherence to the principle of equality of commercial opportunity in Afghanistan, and they agree that any facilities which may have been, or shall be hereafter obtained for British and British-Indian trade and traders, shall be equally enjoyed by Russian trade and traders. Should the

progress of trade establish the necessity for Commercial Agents, the two Governments will agree as to what measures shall be taken, due regard, of course, being had to the Ameer's sovereign rights.

"Article V.

The present Arrangements will only come into force when His Britannic Majesty's Government shall have notified to the Russian Government the consent of the Ameer to the terms stipulated above.

Arrangement concerning Thibet.

"The Governments of Great Britain and Russia recognizing the suzerain rights of China in Thibet, and considering the fact that Great Britain, by reason of her geographical position, has a special interest in the maintenance of the status quo in the external relations of Thibet, have made the following Arrangement:—

"Article I.

The two High Contracting Parties engage to respect the territorial integrity of Thibet and to abstain from all interference in its internal administration.

"Article II.

In conformity with the admitted principle of the suzerainty of China over Thibet, Great Britain and Russia engage not to enter into negotiations with Thibet except through the intermediary of the Chinese Government. This engagement does not exclude the direct relations between British Commercial Agents and the Thibetan authorities provided for in Article V of the Convention between Great Britain and Thibet of the 7th September, 1904, and confirmed by the Convention between Great Britain and China of the 27th April, 1906; nor does it modify the engagements entered into by Great Britain and China in Article I of the said Convention of 1906.

{257}

"It is clearly understood that Buddhists, subjects of Great Britain or of Russia, may enter into direct relations on strictly religious matters with the Dalai Lama and the other representatives of Buddhism in Thibet; the Governments of Great Britain and Russia engage, as far as they are concerned, not to allow those relations to infringe the stipulations of the present Arrangement.

"Article III.

The British and Russian Governments respectively engage not to send Representatives to Lhasa.

"Article IV.

The two High Contracting Parties engage neither to seek nor to obtain, whether for themselves or their subjects, any Concessions for railways, roads, telegraphs, and mines, or other rights in Thibet.

"Article V.

The two Governments agree that no part of the revenues of Thibet, whether in kind or in cash, shall be pledged or assigned to Great Britain or Russia or to any of their subjects.

Annex to the Arrangement between Great Britain and Russia concerning Thibet.

"Great Britain reaffirms the Declaration, signed by his Excellency the Viceroy and Governor-General of India and appended to the ratification of the Convention of the 7th September, 1904, to the effect that the occupation of the Chumbi Valley by British forces shall cease after the payment of three annual instalments of the indemnity of 25,000,000 rupees, provided that the trade marts mentioned in Article II

of that Convention have been effectively opened for three years, and that in the meantime the Thibetan authorities have faithfully complied in all respects with the terms of the said Convention of 1904. It is clearly understood that if the occupation of the Chumbi Valley by the British forces has, for any reason, not been terminated at the time anticipated in the above Declaration, the British and Russian Governments will enter upon a friendly exchange of views on this subject."

As an Inclosure with the Convention, Notes were exchanged by the Plenipotentiaries, of which that from Mr. Nicolson was in the following words, M. Iswolsky replying to the same effect.

"ST. PETERSBURG, AUGUST 18 (31), 1907.

"M. LE MINISTRE,

"With reference to the Arrangement regarding Thibet, signed to-day, I have the honour to make the following Declaration to your Excellency:

"His Britannic Majesty's Government think it desirable, so far as they are concerned, not to allow, unless by a previous agreement with the Russian Government, for a period of three years from the date of the present communication, the entry into Thibet of any scientific mission whatever, on condition that a like assurance is given on the part of the Imperial Russian Government.

"His Britannic Majesty's Government propose, moreover, to approach the Chinese Government with a view to induce them to accept a similar obligation for a corresponding period; the Russian Government will as a matter of course take similar action.

"At the expiration of the term of three years above mentioned His Britannic Majesty's Government will, if necessary, consult with the Russian government as to the desirability of any ulterior measures with regard to scientific expeditions to

Thibet.' I avail, &c.
(Signed) A. NICOLSON."

In authorizing Sir A. Nicolson to sign the preceding Convention, Sir Edward Grey, the British Secretary for Foreign Affairs, wrote, on the 29th of August, as follows:

"I have to-day authorized your Excellency by telegraph to sign a Convention with the Russian Government containing Arrangements on the subject of Persia, Afghanistan, and Thibet.

"The Arrangement respecting Persia is limited to the regions of that country touching the respective frontiers of Great Britain and Russia in Asia, and the Persian Gulf is not part of those regions, and is only partly in Persian territory. It has not therefore been considered appropriate to introduce into the Convention a positive declaration respecting special interests possessed by Great Britain in the Gulf, the result of British action in those waters for more than a hundred years.

"His Majesty's Government have reason to believe that this question will not give rise to difficulties between the two Governments, should developments arise which make further discussion affecting British interests in the Gulf necessary. For the Russian Government have in the course of the negotiations leading up to the conclusion of this Arrangement explicitly stated that they do not deny the special interests of Great Britain in the Persian Gulf—a statement of which His Majesty's Government have formally taken note.

"In order to make it quite clear that the present Arrangement is not intended to affect the position in the Gulf, and does not imply any change of policy respecting it on the part of Great Britain, His Majesty's Government think it desirable to draw attention to previous declarations of British policy, and

to reaffirm generally previous statements as to British interests in the Persian Gulf and the importance of maintaining them.

"His Majesty's Government will continue to direct all their efforts to the preservation of the *status quo* in the Gulf and the maintenance of British trade; in doing so, they have no desire to exclude the legitimate trade of any other Power."

***Parliamentary Papers by Command.
Russia. Number 1. 1907 (Cd. 3750).***

EUROPE: A. D. 1907-1908.

Treaties respecting the Independence and Territorial Integrity of Norway, and concerning the Maintenance of the Status Quo in the territories bordering upon the North Sea.

Two Treaties of great importance to the security of peace in Europe, having for object a joint protection by several Powers of existing conditions on the North Sea and the Baltic exit to it, were concluded and signed on the 2d of November, 1907, and the 23d of April, 1908, respectively. The parties to the first of these Treaties were Great Britain, France, Germany, Norway, and Russia, and its purpose was "to secure to Norway, within her present frontiers and with her neutral zone, her independence and territorial integrity, as also the benefits of peace." It was signed at Christiania, where ratifications were deposited on the 6th of February following: The following is the text of the Treaty;

{258}

"Article I.

The Norwegian Government undertake not to cede any portion of the territory of Norway to any Power to hold on a title founded either on occupation, or on any other ground

whatsoever.

"Article II.

The German, French, British, and Russian Governments recognize and undertake to respect the integrity of Norway. If the integrity of Norway is threatened or impaired by any Power whatsoever, the German, French, British, and Russian Governments undertake, on the receipt of a previous communication to this effect from the Norwegian Government, to afford to that Government their support, by such means as may be deemed the most appropriate, with a view to safeguarding the integrity of Norway.

"Article III.

The present Treaty is concluded for a period of ten years from the day of the exchange of ratifications. If the Treaty is not denounced by any of the parties at least two years before the expiration of the said period, it will remain in force, in the same manner as before, for a further period of ten years and so on accordingly.

"In the event of the Treaty being denounced by one of the Powers who have participated with Norway in the conclusion of the present Treaty, such denunciation shall have effect only as far as that Power is concerned.

"Article IV.

The present Treaty shall be ratified and the ratifications shall be exchanged at Christiania as soon as possible."

The second of the two Treaties was in two documents, styled "Declaration and Memorandum between the United Kingdom, Denmark, France, Germany, the Netherlands, and Sweden, concerning the maintenance of the *Status Quo* in the territories bordering upon the North Sea." They were signed at Berlin, where ratifications were deposited on the 2d of July, 1908, and were in the following terms:

"Declaration.

The British, Danish, French, German, Netherland, and Swedish Governments,

"Animated by the desire to strengthen the ties of neighbourly friendship existing between their respective countries, and to contribute thereby to the preservation of universal peace, and recognizing that their policy with respect to the regions bordering on the North Sea is directed to the maintenance of the existing territorial *status quo*,

"Declare that they are firmly resolved to preserve intact, and mutually to respect, the sovereign rights which their countries at present enjoy over their respective territories in those regions.

"Should any events occur which, in the opinion of any of the above-mentioned Governments, threaten the existing territorial *status quo* in the regions bordering upon the North Sea, the Powers Signatory of the present Declaration will communicate with each other in order to concert, by an agreement to be arrived at between them, such measures as they may consider it useful to take in the interest of the maintenance of the *status quo* as regards their possessions.

"The present Declaration shall be ratified with the least possible delay. The ratifications shall be deposited at Berlin as soon as may be, and, at the latest, on the 31st December, 1908. The deposit of each ratification shall be recorded in a Protocol, of which a certified copy shall be forwarded through the diplomatic channel to the Signatory Powers.

"Memorandum.

At the moment of signing the Declaration of this day's date, the Under signed, by order of their respective Governments,

consider it necessary to state—

"1. That the principle of the maintenance of the *status quo*, as laid down by the said Declaration, applies solely to the territorial integrity of all the existing possessions of the High Contracting Parties in the regions bordering upon the North Sea, and that consequently the Declaration can in no case be invoked where the free exercise of the sovereign rights of the High Contracting Parties over their above-mentioned respective possessions is in question;

"2. That, for the purposes of the said Declaration, the North Sea shall be considered to extend eastwards as far as its junction with the waters of the Baltic."

***British Parliamentary Papers by Command,
Treaty Series No. 35, 1907, and 23, 1908
(Cd. 3754 and 4248).***

EUROPE: A. D. 1907-1909.

The Situation in Crete as controlled by the Four Protecting Powers.

See (in this Volume)

CRETE: A. D. 1907-1909.

EUROPE: A. D. 1908-1909 (October-March).

Declaration of Bulgarian Independence.

Austrian Annexation of Bosnia and Herzegovina.

Excitement of Servia.

The menace to European peace.

The question of a Conference.

Attitude of Germany.

Was Russia coerced to assent?

Violation of the Public Law of Europe.

On the 5th of October, 1908, the independence of Bulgaria as a Kingdom was formally proclaimed, the suzerainty of the Sultan of Turkey renounced, and Prince Ferdinand invested with the title of Tzar, or King. This proceeding was consequent on the revolution in Turkey, which had resurrected the suspended Constitution of 1876, broken the despotism of the Sultanate and subjected it to a Parliamentary system of government.

See (in this Volume)

TURKEY: A. D. 1908, JULY-DECEMBER.

Never having accepted the arrangements of 1878, made by the Congress of Berlin, which gave them self-government but kept them tributary and nominally subject to the over lordship of the Sultan, the Bulgarians had but waited for the opportunity

which now seemed to invite this act.

See, in Volume V. of this work,
TURKS: A. D. 1878;
and in Volume I.,
BALKAN AND DANUBIAN STATES: A. D. 1878, and 1878-1886)

An immediate provocation to their declaration of independence was supplied by a thoughtless offence to them given by the new Ministry at Constantinople. To celebrate the triumph of the revolution a state dinner was given, the Sultan presiding, and all the diplomats at the Turkish capital were invited to it excepting the representative of Bulgaria. When he asked for an explanation of this exception he was told that he could not be recognized as an ambassador or envoy, but only as the agent of a subject province. This was enough to set Bulgaria aflame. Her affronted Minister at Constantinople was withdrawn and diplomatic intercourse with the Turkish Government dropped. The breach was accentuated further by the recent occurrence of a strike on the railway, owned by the Turkish Government, which traverses both Turkish and Bulgarian territory. The Bulgarians had taken possession of and were operating the section within their own domain, and when the strike was called off the Government announced its intention to retain that portion of the line, with due compensation to the company which leased it. This proceeding intensified and doubled the ferments produced by the proclamation of independence. Statesmen were disturbed by the violation of the Treaty of Berlin and capitalists by the danger which menaced their Turkish railway securities.

{259}

But this tells of only half the threatening incidents of the time. Simultaneously with the Bulgarian defiance of the Treaty of Berlin and its signatory sponsors, the Government of Austria-Hungary broke away from its obligations, by a formal

announcement that the simple occupation and administration of Bosnia, and Herzegovina, which that treaty had permitted the Dual Empire to undertake, was now to be complete annexation, by no other authority than the Imperial will to have it so.

Many interests and ambitions, many jealousies and distrusts among the Powers, were disturbed and excited by this sudden disordering of the political geography of Southeastern Europe. Pan-Slavic feelings and hopes were profoundly antagonistic to the Austrian absorption of more Slavic populations and lands. Serbia was alarmed to desperation by the aggrandizement of her dangerous great neighbor, and Russia was more than sympathetic with her alarm. What Turkey could or would do in vindication of her treaty rights over Bulgaria, Bosnia, and Herzegovina, was a question of little gravity compared with that which asked what Serbia might attempt in resistance to the Austrian scheme, and what Russia would venture if an Austro-Servian war should break out. The situation very soon became one in which any act of hostility on any side could hardly fail to precipitate a great tempest of war; and thus the peace of Europe was held in a trembling balance for months. The state of affairs was described clearly and with ample knowledge at the time by Mr. Archibald R. Colquhoun, in a paper which he read in London, at a meeting of the Royal Society of Arts. "The more hot-headed Servians," he said, "undoubtedly felt that their whole future was imperilled, and that they might as well risk all on a desperate hazard, in the belief that intervention would come to their assistance should their independence be threatened. The close racial ties between the Bosnians, Servians, and Montenegrins made it impossible to say how far an armed movement might spread if it once broke out. While Turkey and Bulgaria might come to terms, and while Austria might effect an amicable arrangement with Turkey, it was difficult to see how the question of the Southern Slavs was to be finally adjusted unless Austria could placate them in sections, and so perhaps divide them. Concessions of a comparatively unimportant nature might induce Montenegro to

keep quiet, and a liberal policy, with a promise of autonomy in the near future, would discount a good deal of the agitation in Bosnia and Herzegovina. The more far-sighted Bosnians appreciated the fact that their shortest cut to comparative freedom lay through that local autonomy which they could legitimately demand from Austria. ...

"The spectacle of these Southern Slave countries, whose peoples exhibited so many splendid qualities, but yet did not have that instinct for government which characterized some far less gifted races, was rather a melancholy one. In the tangle of mountains, races, and religions which made up the Balkans the people needed peace above every other thing—a breathing space in which to develop themselves and their resources, and to get a truer perspective on their position in Europe. To the Great Powers who controlled the destinies of these small ones peace was no less essential, but it was not quite clear that Austria-Hungary, with the great military power of Germany behind her, realized this or was prepared to 'seek peace and ensue it.' It was this uncertainty which made many await with anxiety the melting of the Balkan snows, which put an end to enforced inactivity in those regions."

Great Britain, France, Russia, and Italy were agreed in desiring a Conference of the Powers which had been parties to the Berlin Treaty of thirty years before, to adjudicate all the questions raised by the acts of Austria and Bulgaria, in contravention of that treaty. Austria was supported by Germany in holding back from such a conference, and nothing definite in that direction was done. Meantime Turkey was brought to negotiations with both of the trespassers on her ancient sovereignty, and within a few months she came to terms with both. The arrangement with Austria, determining an indemnity to be paid for the surrender of Turkish claims to Bosnia and Herzegovina, was quickened by a boycott of Austrian merchandise in Turkey, so extensive as to be felt very seriously in Austrian and Hungarian trade. By the terms of a

protocol, which was signed on the 26th of February, 1909, Austria-Hungary paid £2,500,000 (\$10,800,000) of indemnity to the Ottoman Government; assured religious freedom and political equality to Mussulman Bosniaks who should choose to remain in the province, with liberty of emigration during three years to all who might choose to depart, and promised a commercial treaty on lines which the Turks desired. This cleared the situation as between Austria and Turkey, but intensified the Servian and Montenegrin bitterness of anger and dread, which menaced the peace of the continent for another month.

Meantime the terms of a Turkish adjustment with Bulgaria had been practically settled, on the basis of a helpful suggestion from St. Petersburg. Bulgaria offered \$16,400,000 of indemnity; Turkey claimed \$24,000,000. The bargaining was at a standstill until Russia offered to remit a yearly war-indemnity of \$1,600,000 which Russia owed her under the Berlin Treaty, until the Turkish claim on Bulgaria should be satisfied, while she would collect from Bulgaria in similar instalments until the offer of the latter had been made good. Inasmuch as the Turkish debt to Russia bore no interest, while Bulgaria would pay interest on the deferred payments to Russia, the Muscovite treasury would suffer no loss. The matter was so arranged, and the interests of peace were served by a most ingenious and happy device.

{260}

But peace was made more than insecure for some weeks yet by the irreconcilability of Servia to the Austrian annexation of Bosnia and Herzegovina. Of course that small State could not hope to resist it successfully alone, or with Montenegrin aid; but a desperate venture of war, into which Russia might be dragged, and if Russia, then Germany,—and who could tell what other powers!—and out of the wreckage of which something better for Southeastern Europe than an Austro-Hungarian

domination might be drawn,—this appeal to the lottery of battle seemed a dangerous temptation to the Servian mind. It was extinguished as such in the end by the decision of Russia to drop the project of a Conference of Powers, accept the action of Austria, and recognize, unreservedly, on her own part, the annexation of Bosnia and Herzegovina as an accomplished fact. This was announced on the 15th of March, and with the announcement came excited and exciting reports that Germany had extorted the concession from the Russian Government, by pressures that were humiliating, but which the Empire, in its present circumstances, was powerless to resist. Germany denied having exercised an illegitimate pressure in the matter, but made no concealment of the fact that she stood by Austria-Hungary with approval of what the Imperial Government at Vienna had done. In a speech on the 29th of March Chancellor Bülow was reported as saying:

"In her quarrel with Servia Austria indisputably had right on her side. The annexation was no cynical act of robbery, but the last step on the road of the political work of civilization which had been followed for 30 years with the recognition of the Powers. Any offence against the form of the law had been disposed of by the negotiations with Turkey, and after this agreement between the parties most nearly interested the formal recognition of the other Powers signatory of the Berlin Treaty could not be withheld. The controllers of Russian policy, and especially the Emperor Nicholas, had earned the gratitude of all friends of peace in Europe. Concerning the Conference question, Germany still had no objection in principle to a Conference in which all the Powers took part and of which the programme was established in advance. They had been charged with inactivity, but they had no reason for special activity. They had done what they could and used influence, not without success, between Vienna and Constantinople, and also between Vienna and St. Petersburg. They had, however, carefully observed the limits prescribed by their interests and their loyalty. They had done nothing, and

they would do nothing, which could afford the smallest doubt of their determination to sacrifice no vital interest of Austria-Hungary, and they would have nothing to do with suggestions to Austria which were incompatible with the dignity of the Hapsburg Monarchy. They had experiences of their own to inspire caution with regard to playing the part of the broker, even in the most honourable way. ... To sum up, by loyalty to her ally Germany best secured her own interests and contributed most to the maintenance of the peace of Europe."

On the day of this speech at Berlin the London *Times* expressed, in an editorial article, what was then and what continues to be the prevailing belief and judgment of the best informed political circles throughout Europe, when it said: "The decision of the Russian Government to recognize the annexation of Bosnia and Herzegovina was, of course, an admission of their inability, in present circumstances, to countenance the aspirations of the Southern Slavs. The intense and general indignation which it has excited in Russia is natural, and indeed, in the known state of public feeling, inevitable. We trust, however, that it may be kept within bounds, and that it will not find expression in useless and vehement invective. Those who are tempted to indulge in it without restraint should reflect upon the difficulties which confront the responsible rulers of the State, and should consider whether, as Statesmen answerable for the future, as well as for the immediate present, of the Empire and of the Slav race, those rulers could wisely have rejected the proposal peremptorily made to them by the German Ambassador. The cardinal fact in the situation—the fact upon which Austria-Hungary and Germany have based their calculations and determined their action throughout—is that Russia could not for some time to come engage in a great war without incurring unjustified risks. Nothing, we may be sure, but the overwhelming consciousness of this fact could have induced the Emperor and his advisers to adopt the decision to which they

came a few days ago. They must have been well aware of the painful effect which it was certain to produce, in the first instance, abroad as well as at home. None can have realized more acutely than they that the presentation of the demand was humiliating, and that the circumstances attending it were eminently calculated to make that humiliation bitter. But they held, and rightly held, that it was their duty to accept humiliation rather than to jeopardize the great permanent interests which are committed to their keeping. They might, indeed, have been somewhat less precipitate. They might reasonably have asked for time for consulting the Powers with whom they have acted, and who have consistently supported them, upon the proposals which Germany sprang upon them. The fact that they did not do so is a significant indication that the pressure which Count Pourtalès was instructed to put upon them must have been of the most imperious and dictatorial kind.

"As to the precise form of the intimation conveyed to M. Isvolsky by the German Ambassador no definite information is yet forthcoming, but of its nature there can be no possible doubt. Our Paris Correspondent learns that, immediately after his interview with Count Pourtalès, the Russian Minister summoned a Council, and, after a hasty audience with the Tsar, communicated to the German Ambassador Russia's acquiescence in the demands of his Government. There was no alternative to this course, as we are told from St. Petersburg, unless Russia was prepared to face the consequences of the mobilization of the German Army. The matter, our Correspondent adds, was treated as of 'supreme urgency,' from which it may be inferred that a reply was required without delay. The Council of Ministers knew what 'German mobilization' in the circumstances would mean."

{261}

In appearance, if not in reality, Germany or Germany's Kaiser

had again, as in the Morocco affair of 1905, taken advantage of the weakened circumstances of Russia to play a dictatorial part in European politics. The distrust and apprehension kept alive by such repeated performances of the military big stick at Berlin seem infinitely more dangerous to Europe than any possible explosion of the unstable compounds of race, religion, and lawless politics that are mixed in the Balkan magazine. For the time being, however, the sparks that sputtered alarmingly in the latter, throughout the winter of 1908-1909, were easily extinguished by the sudden dash of cold water upon them from St. Petersburg. Great Britain, France, and Italy, accepting the situation, joined Germany and Russia in persuading the Government at Belgrade to be equally submissive to events. Their persuasions were effective, and a note to the following purpose, which the Powers in question had formulated, was signed by the Servian Ministry and presented to the Government at Vienna on the 31st of March:

"(1.) Servia declares that her rights have not been violated by the annexation by Austria-Hungary of Bosnia and Herzegovina, and accepts the Powers' decision to annul paragraph 25 of the Treaty of Berlin.

(2.) Servia will not protest against the annexation of Bosnia and Herzegovina.

(3.) Servia will maintain peaceful relations with Austria-Hungary.

(4.) Servia will return her military forces to normal conditions, and will discharge the reservists and volunteers; she will not permit the formation of irregular troops or bands."

The arbitrary annexation of Bosnia and Herzegovina was now legitimated; the Treaty of Berlin was revised by violations condoned; a serious precedent had been injected into European

public law. What was said on the subject by the London **Times** on the morning after the delivery of the Servian note is hardly open to the least dispute. "The danger of war," said the Times, "has thus, we may confidently hope, been averted. But the sense of immediate relief with which this deliverance may well be greeted cannot blind us to the cost at which it has been achieved. The first great international compact to which the new German Empire of the Hohenzollerns subscribed within a few months of its proclamation at Versailles was that which embodied the resolutions of the London Conference of 1871. The European Powers, rightly disputing Russia's claim to denounce *motu proprio* the Black Sea Clauses of the Treaty of Paris, maintained that no revision of an international treaty could take place without 'impartial examination' and 'free discussion.' None upheld that principle more stoutly than Austria-Hungary. Russia herself finally accepted it, and it was solemnly placed on record by Lord Granville in his opening speech as President of the London Conference. It was embodied in a Protocol, signed by all the Plenipotentiaries of the Powers, laying down as 'an essential principle of the law of nations that no Power can repudiate treaty engagements or modify treaty provisions, except with the consent of the contracting parties by mutual agreement.' That instrument has, until recently, governed the public law of Europe. In conformity with its provisions, Russia, after her war with Turkey in 1877-1878, was fain to submit the Treaty of San Stefano to the Congress of Berlin; and again in 1885 a Conference was held at Constantinople to settle the question of the union of Eastern Rumelia with Bulgaria which had been effected in violation of the Treaty of Berlin. Five months ago, immediately after the annexation of Bosnia and Herzegovina by Austria-Hungary and the proclamation of Bulgarian independence, Great Britain, France, and Russia were agreed, after M. Isvolsky's conversations with M. Clemenceau and Sir Edward Grey, that the same 'essential principle of the law of nations' was once more at stake and must be upheld. Italy adhered subsequently to that agreement,

which took shape in the suggestion for a conference, and neither Germany nor Austria-Hungary openly rejected it at the time. ...

"The terms of the submission now made by Servia at the instance of the Powers show how far we have travelled away from that 'essential principle of the law of nations' since October last. ... Whether the formal ratification of the breaches of international law which were committed last autumn takes place now at a Conference, or by an exchange of Notes, is a matter of small moment. In substance the Powers have already conveyed their acquiescence in the abrogation of Article XXV. of the Berlin Treaty concerning Bosnia and Herzegovina, without the slightest show even of that 'impartial examination' and 'perfectly free discussion' which the London Conference of 1871 laid down as an essential preliminary to the revision of treaty engagements."

There was an illuminating sequel to this transaction near the end of the year, in the trial of a libel suit, known as the Friedjung case, which uncovered many hidden circumstances of the annexation. One of the arguments by which the annexation of Bosnia-Herzegovina was defended at the time was the necessity of putting an end to an alleged conspiracy of the Southern Slavs against the Austro-Hungarian Monarchy.

See (in this Volume),
AUSTRIA-HUNGARY: A. D. 1908-1909.
"Agram Trials", page 40.)

At the trial it was proved that the "documents" which had been accepted as proving the existence of this conspiracy were forgeries of the clumsiest description.

EUROPE: A. D. 1909.
Changed conditions making for peace.
Three striking examples.

Speaking at Sheffield, England, on the occasion of "the Cutlers' Feast," October 21, Sir Edward Grey, the British Secretary for Foreign Affairs, called to mind, in a few admirable sentences, three illustrations in the past year of wonderfully changed conditions in Europe, making for peace. He said:

"In the world at large to-day—if I may say a few words about the business of my own department—there is no doubt plenty of trouble, as there always is, but if you take the true measure of the situation by comparing it with what it was a short time ago, the outlook is distinctly favourable. I will give you three points which are, I think, subjects of congratulation.

"It is only a year ago to this very month that we were at the beginning of what was called the Balkan crisis. I do not know whether the Budget has driven all recollection of it from your minds, but it did occupy a good deal of attention a year ago and for some months afterwards. For a long time it had been almost an axiom of the diplomacy of Europe that some day or other there would be trouble in the Balkans, and that, when that trouble came, there would be danger of a European war. The trouble came a year ago; it caused anxiety; there was a storm; and for some months some anxiety as to whether one or other of the Great European Powers might not drift from their moorings.

{262}

But the anchors held, and now the swell has subsided, and though there may be trouble again in the future, the fact that the Great Powers of Europe have passed through the Balkan troubles of the last year and yet maintained their peace is a good augury that in future troubles the same may be done.

"Then I will take the question of Persia. A few years ago, had any one foretold exactly what has happened in Persia in the last year—that there would be a revolution, that there would

be great outbreaks of disorder throughout the country, and that the Shah would be deposed—he would certainly have said that it would be a time of considerable anxiety both for Russia and for ourselves. A few years ago the representatives of those two countries were watching each other in Persia with jealousy, suspicion, and distrust. Had what has happened in Persia in the last year happened a few years ago when those were the relations between the two countries, I do not say that there would actually have been war, but there would certainly have been considerable anxiety and considerable scares in the public opinion of both countries as to the effect upon their relations with each other. Now we have passed through the troubles of the last year in Persia, and in no section of the Press of either country, in no section of public opinion of either country, has there been a fear that relations between ourselves and Russia would be impaired by what was happening in Persia.

"The third subject to which I would refer is that of Morocco. Morocco is to-day very full of trouble, and the trouble is a matter of concern and worry to those Powers who have conterminous frontiers in Morocco. That of course is so, but look back over the last few years and survey. The matter which occupied men's minds in regard to Morocco was not the troubles in Morocco itself but the possible effect which events in Morocco might have upon the relations of the European Powers to each other. To-day the trouble continues in Morocco, but during the last year the anxiety that what was happening in Morocco might cause serious difficulties between European Powers themselves has greatly diminished if it has not entirely disappeared. That, again, is a satisfactory retrospect."

EUROPE: A. D. 1909.

Contradictory feeling and action concerning War.

Its causes.

International Barbarism with Inter-personal Civilization.

The two main knots of difficulty in the situation.
Great Britain and Germany.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

EUROPE: A. D. 1909.
Size and cost of its armies.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY.

-----EUROPE: End-----

EVANS, Rear-Admiral Robley D.:
Commanding the American Battleship Fleet.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

EVICTED TENANTS ACT.

See (in this Volume)
IRELAND: A. D. 1907.

EXCLUSION OF ALIENS.

See (in this Volume)
IMMIGRATION AND EMIGRATION, AND RACE PROBLEMS.

EXPATRIATION:
Its Rights.
Principles maintained by the United States.

See (in this Volume)
NATURALIZATION.

EXPLORATION, Polar.

See (in this Volume)
POLAR EXPLORATION.

EXPOSITIONS, Industrial.

See (in this Volume)
BUFFALO; ST. LOUIS; CHARLESTON;
JAMESTOWN; PORTLAND, OREGON; SEATTLE.

EZCURRA, COLONEL:
Deposed President of Paraguay.

See (in this Volume)
PARAGUAY: A. D. 1904.

F.

FABIAN SOCIETY.

See (in this Volume)
SOCIALISM: ENGLAND: A. D. 1909.

FAIRBANKS, Charles W.:
Elected Vice-President of the United States.

See (in this Volume)
UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

FAKUMENN RAILWAY QUESTION, between Japan and China.

See (in this Volume)
CHINA: A. D. 1905-1909.

FALLIÈRES, ARMAND:

President of the French Senate.

See (in this Volume)
FRANCE: A. D. 1903.

FALLIÈRES, ARMAND:
President of the French Republic.

See (in this Volume)
FRANCE: A. D. 1906.

FALL RIVER STRIKE, in the Cotton Mills.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1904-1905.

FAMINES:
In China.

See (in this Volume)
CHINA: A. D. 1906-1907.

FAMINES:
In India: The poverty they signify.

See (in this Volume)
INDIA; A. D. 1905-1908.

FAMINES:
In Russia.

See (in this Volume)
RUSSIA: A. D. 1901-1904.

FARADAY, MICHAEL:
His Prophetic Conception of Radiant Matter.

See (in this Volume)
SCIENCE, RECENT: RADIUM.

FARM COLONY, Cleveland, Ohio.

See (in this Volume)
CRIME AND CRIMINOLOGY, PROBLEMS OF.

FARMAN, Henri.

See (in this Volume)
SCIENCE AND INVENTION: AERONAUTICS.

FARMERS' ORGANIZATIONS.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1909; and
LABOR REMUNERATION: COÖPERATIVE ORGANIZATION.

FEDAKIARANS, The.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

FEDERAL PARTY.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901 and 1907.

FEHIM PASHA, THE FATE OF.

See (in this Volume)
TURKEY: A. D. 1908(JULY-DECEMBER), AND 1909 (JANUARY-MAY).

FEJERVARY MINISTRY.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1905-1906.

FENGHUANGCHENG.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY).

FENSHUILING.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY), AND (JULY-SEPTEMBER).

FERRER, Professor Francisco:
His trial and execution.

See (in this Volume)
Spain: A. D. 1907-1909.

FERTILIZER TRUST:
Dissolution and indictment.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-
1906.

{263}

FETVA, of the Sheik-ul-Islam.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

FIALA ARCTIC EXPLORATION.

See (in this Volume)
POLAR EXPLORATION.

FICHTE'S PROPHECY, of a World Commonwealth.

See (in this Volume)
WORLD MOVEMENTS.

FILIPINO CATHOLIC CHURCH, Independent.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1902.

-----FINANCE AND TRADE: Start-----

FINANCE AND TRADE: A. D. 1901-1909.

A Review of the decade.

The Sequence of Phenomena from the beginning of "the great Trade Boom" to the Collapse of 1907, and after.

The Process of Recovery.

On the 31st of December, 1908, the New York ***Evening Post*** gave an admirably studied and clear, though succinct, review of the sequence of phenomena in financial and commercial affairs that could be traced through "the series of years since the great trade boom began which collapsed in 1907," and thence to the close of 1908. By permission of the proprietors of the ***Evening Post*** a considerable part of that review is quoted here. While it relates more especially to conditions and events in the United States, it affords substantially a summary of the financial history of the world from 1901 to 1908, both inclusive:

"1901.

This was preeminently the 'boom year'—much more legitimately so, as events have proved, than 1905 or 1906, when overstrained capital resources gave an atmosphere of unreality to what seemed altogether real in the days of abundant capital in 1901. It is first to be said of 1901 that a probably

unexampled surplus of ready capital in the United States, and a certainly unprecedented foreign credit balance—due to our amazing surplus of exports over imports—happened to coincide with a period of European trade reaction which released foreign capital from foreign industries and left it free for use in America. Presuming the foregoing influences, the six main causes for the phenomena of 1901 were:

(1) The series of enormous company amalgamations, beginning with the billion-dollar Steel incorporation, and culminating in the purchase of the British steamship lines at wildly extravagant prices; these operations being based on issues of securities in unprecedented quantity;

(2) Formation of ‘underwriting syndicates’ to float these securities, one of those syndicates receiving a bonus of \$50,000,000 for one year’s use of \$25,000,000, and all of them using freely for their purposes the surpluses of life insurance companies and the deposits of trust companies;

(3) Acquisition of control of great railway companies by powerful millionaires, through purchase of stock of these railways in the open market, often at extravagant prices; the purchase-money being obtained through issue of bonds by railways already under control of the purchasers;

(4) Wild speculation by the public;

(5) Sudden fright of Europe at our excesses, withdrawal of its capital, and consequent severe reaction in our markets;

(6) The failure of the corn crop, which in the summer applied a further check to this speculation, but which was itself offset by a wheat crop larger than any harvested in this country before or since, and sold at the highest average price since 1897.

"1902.

This year was one both of reaction and of further expansion; it was both a legitimate sequel to 1901 and a legitimate forerunner of 1903. ...

"Its salient phenomena were these:

- (1) Abundant harvests;
- (2) Overstraining of bank resources by financial 'deals' and Stock Exchange speculation, exhausting the bank surplus in September;
- (3) Enormous increase in imports and decrease in agricultural exports, along with Europe's withdrawal of its capital;
- (4) Rapid advance in cost of raw material and labor;
- (5) Struggle of capitalists to so entrench themselves in control of corporate enterprises that they could not be dislodged.

"1903.

The year which followed was an entirely logical sequel. Its controlling factors were:

- (1) Forced liquidation by individuals and syndicates who were tied up in new securities at a time when the investing public withdrew from the market;
- (2) Inability of great corporations to sell bonds, and their resort to notes at a high interest rate;
- (3) Abundant grain crops, but an inadequate cotton crop, with great speculation, and famine prices;
- (4) Rapid fall in the price of steel and iron;

(5) Severe contraction in profits of industrial combinations, with reduced dividends in some, reorganization of capital in others, and bankruptcy in still others.

"1904.

For obvious reasons, 1904 is an interesting year to compare with 1908. Both were in a sense 'after-panic years,' though the strain of 1903, and the resultant financial and commercial reaction of 1904, were trifles compared with those of the past two years. It will be seen that 1904, which did in fact usher in another great boom in trade, paralleled closely in some respects the history of 1908, but in others diverged very widely from it. Its dominant influences were:

(1) A huge surplus reserve at the New York banks, reaching in August a height only four times exceeded in the country's history, and as a result a 1 per cent. call money market during two-thirds of the year;

(2) The largest gold export movement in the history of the country;

(3) A midsummer recovery on the Stock Exchange, with large investment buying;

(4) A Presidential campaign, which hardly affected business;

(5) Substantial, but not very rapid, trade revivals, without any of the extravagant optimism of 1908;

(6) Famine prices for cotton during half the year, followed by a new crop unparalleled in history, and by a heavy fall in prices;

(7) Virtual disappearance of our export trade in wheat, with the smallest harvest since 1900, the highest prices since

1898, and the smallest shipment to Europe since 1872. The Russian war, which began in February, affected our markets only indirectly.

{264}

" 1905.

This year's history is better understood to-day than it has been before. The testimony of the whole financial and commercial world now is, that the exploiting of capital in trade and speculation, which eventually brought about the recent panic, and the abnormal enhancement of cost of living, which lifted the average price of commodities as much in two years as it had risen in the eight preceding years, began in the middle of 1905. These were the salient incidents of the financial year:

(1) Rapid and vigorous trade revival, with industry and production probably more active than at any previous period, and with profits and dividends enhanced;

(2) Exposure of the use of life insurance funds by promoting and speculating millionaires, an exposure which ended in legislation preventing such use of them in future speculations;

(3) World-wide money stringency, with the New York bank surplus twice exhausted, London's bank position the weakest since 1890, and Berlin's the weakest since 1897;

(4) Excited stock speculation for the rise, in this country and in Germany, which in New York almost wholly disregarded the abnormal strain on money.

"1906.

Neither the \$400,000,000 loss at San Francisco in April, nor the Treasury's efforts to relieve an overstrained New York

money market in September, was a fundamental cause for the events of 1906. They were a true sequel to 1905, and may be summarized as follows:

(1) Enormous Volume of trade, the whole world over, with rapid rise in price of goods, but equally rapid rise in cost of raw material and labor;

(2) Grain harvests, as a whole, never paralleled in Volume, and wheat crop second only to 1901;

(3) Wild speculation by all classes of the community, particularly in land, mining shares, and Stock Exchange securities, but not as a rule in produce, the wealthiest capitalists in the country entering into stock speculation in the late summer, and using most unscrupulously their power over company finance to help along their purposes;

(4) Overstrained bank resources as a result, with five deficits at New York, occurring in spring, autumn, and winter, two of these deficits being the largest since 1893;

(5) Abnormally high money rates all the year, with the highest September rate for call loans ever reached in New York, and the highest rate for time loans and merchants' paper reached at that time of year since 1872;

(6) Sudden decision by Europe that American credit was unlimited, and the consequent placing of foreign capital unrestrictedly at our disposal;

(7) Struggle between London and New York for possession of new gold arriving in London, resulting in our import of \$40,000,000 gold from Europe in the spring, and \$45,000,000 in the autumn, and leading to a rise of the Bank of England rate to 6 per cent. for the first time since the Boer war panic, and to an energetic effort on the Bank's part to stop the

wholesale equipping of the American speculation with London bank money.

"1907.

The panic year's story may be told without further introduction, summing up thus its characteristic events:

(1) Withdrawal by Europe of the capital loaned to us in 1906, leading, early in the year, to \$32,000,000 gold exports to Europe, of which \$25,000,000 went to France:

(2) Partial withdrawal of their capital from Wall Street by interior markets, which were said to have had \$400,000,000 outstanding in New York during 1906;

(3) Distress of the immensely wealthy capitalists who had tied themselves up in the Wall Street speculation of 1906, their forced liquidation on an enormous scale, and consequent demoralized Stock Exchange markets in March and August;

(4) Very abnormal crop weather throughout the spring and over nearly all the world, with a resultant shortage of the whole world's wheat crop, the deficit of supplies below expected requirements being probably the largest since 1890.

"(5) Revelation of unsound banking practices at New York in October; leading to the failure of the Knickerbocker Trust, a formidable run on the banks, adoption of Clearing House certificates in all the larger cities and issue of emergency credit currency in many; to restriction of cash payments to depositors throughout the country, to a premium on currency, to complete demoralization of interior exchange, and to insolvency of several large industrial companies and numerous banks—neither, however, reaching the number which shortly followed the panic of 1893;

(6) Import of \$100,000,000 gold from Europe during November

and December, most of it bought at a premium and some of it engaged with sight sterling at 4.91;

(7) As a result, large inroads on the Bank of England's gold reserve, rise in the bank rate from 4½ to 7 per cent., rapid advance of all continental bank rates, and loan of large sums of gold by the Bank of France to the Bank of England.

"(8) Precarious position of financial Germany throughout the year, important failures at Hamburg, minor financial panics in Holland, Egypt, Italy, and Chili, many of them before our own;

(9) Intervention of our Treasury, which wisely placed all its surplus on deposit with the banks in October, and most unwisely undertook to issue \$150,000,000 bonds and notes in November to provide basis for new bank-note circulation;

(10) Recovery in markets late in November, with slow return of the bank situation to normal, the currency premium at New York lasting longer than in either 1893 or 1873;

(11) Discharge of laborers from employment all over the country, and the beginning of severe trade reaction—all this in spite of the largest annual gold output in the history of the world.

"1908.

Now comes the present remarkable after-panic year, of which the salient phenomena may be thus summed up:

(1) Spasmodic and irregular recovery in trade activity, starting from a very low level, with merchants rushing in suddenly with orders—in February, in July, and in November—when their shelves were almost depleted, these buying impulses ceasing as suddenly as they had begun, leaving trade stagnation again;

(2) Slow increase in consumption of merchandise, here and abroad, the ratio being below 30 per cent. of normal at the beginning of the year, and 60 to 75 per cent. on the average at its close;

(3) Sudden shrinkage of our international commerce, merchandise trade in eleven months falling \$478,000,000 from 1907, a decline of 15 per cent., of which \$326,000,000 was imports and \$152,000,000 exports, experience of European nations being similar;

(4) Enormous increase in the unemployed, leading, at the Atlantic ports, to an emigration 250,000 larger than immigration;

(5) Severe contraction of railway earnings, resulting in twenty-four railway insolvencies, involving the largest capital of any receiverships since those of 1893, and causing many dividend reductions, but followed, after the middle of the year, by such enormous reduction in expenses that, in some cases, autumn net earnings actually increased over 1907;

{265}

"(6) Sudden rush of currency into the banks, as a result, first of removal of restrictions on depositors and next of idle trade, with resultant change from a \$20,000,000 New York bank deficit at the end of 1907 to a surplus of \$40,000,000 at the end of January and of \$66,000,000 on June 27—the latter being second only to the \$111,000,000 maximum of 1894;

(7) As a consequence, abnormally low rates for money, call loans going at 2 per cent. before the end of January, at 1 per cent. in eighteen weeks of the present year, and at less than 1 per cent. in three weeks;

(8) Export of \$73,000,000 gold, the largest (except for 1904)

since 1895, and net export of \$45,000,000, the largest in thirteen years;

"(9) In spite of the above recited facts, a constant spirit of optimism throughout the year, expressing itself, first in the organization of 'Prosperity Leagues' which held conventions and proclaimed that if people would only decide to be prosperous, they would be prosperous, and second by a series of extravagant speculative movements on the Stock Exchange, in the course of which it was declared in February, in July, and in November, that we were not only destined to get back into the boom of 1906, but that we were there already;

(10) A wheat harvest which in midsummer promised to be the second largest on record, but which turned out only of average Volume, the quality and price for this and other cereals, however, being so good as to enhance very greatly the wealth of the agricultural West;

(11) A Presidential election, the result of which the markets and all experienced people foresaw from the beginning, but of which it was alleged, for two weeks in November, that its outcome had totally changed for the better the entire aspect of American business affairs."

1909.

The following, from the New York *Evening Post* of December 31, 1909, continues the review:

The noteworthy characteristics of "the year which ends to-day, ... so far as they can now be discerned, have been as follows:

(1) Rapid industrial recovery, beginning with the steel trade's reduction of prices, leading in September to the largest monthly output of iron and steel in the history of the country, and to heavy demand from consumers, but contrasting singularly with the copper market, where signs of

overproduction were visible throughout the year;

(2) Very rapid increase in cost of necessities of life, affecting chiefly food, clothing, and rent, leading in the autumn to bitter complaint and to numerous strikes for higher wages, notably on the railways;

(3) Along with reviving trade, a speculation of great magnitude on the Stock Exchange, ascribed to the initiative of very powerful finance houses, and converging in a most peculiar way on United States Steel common shares, whose dividend was twice advanced, notwithstanding the fact that quarterly earnings had not recovered to the magnitude of 1906 or 1907, when the dividend had been maintained at the old rate;

(4) Largely as a result of the tying-up of capital in this speculation, severe autumn strain on bank reserves, turning a New York surplus of \$34,000,000 on July 10 into one of only \$1,600,000 on October 2, driving Wall Street to probably unprecedented borrowings from interior banks and from London, which latter market, under the influence of the Bank of England, threw back great amounts of these New York loans during October;

"(5) Call money rates kept down by such expedients, 6 per cent. being the maximum up to the two closing days of December;

(6) a wheat corner in June, in the course of which the New York cash price rose to \$1.51 in June, the highest price since the Leiter corner of 1898, followed by a new wheat crop unsurpassed in magnitude except for 1901, yet with high prices continued in later autumn, despite an abundant crop in Europe also;

(7) A very short crop of cotton, driving the price from 9½

cents a pound, early in the year, to 16 cents in December, the latter being the highest December price since paper inflation days, and less than one cent below the highest price in the corner of 1904;

(8) Import of foreign merchandise wholly unparalleled for magnitude in our history, causing, in June, July, and August, an excess of imports over exports for the first time since 1897, and resulting, in the eleven first months of the year, in a total excess of exports over imports \$340,000,000 less than in 1908, and very much the smallest of any year since 1897;

(9) As a partial consequence, the largest export of gold of any year in the country's history, and the largest net export except for 1894 and the paper money days.

"The prolonged tariff debate in Congress, which high financial authority declared would hold back financial activity, but which gave no evidence of doing so, can hardly be classed as a fundamental influence of the year. Whether Mr. Harriman's death in September, with the resultant realignment of forces in high finance, deserves to be so classed, is a question which can hardly be passed upon as yet."

FINANCE AND TRADE:

America: Proposal of an International American Bank.

See (in this Volume)
AMERICAN REPUBLICS.

FINANCE AND TRADE: Asia; A. D. 1909.

Disturbance of Trade by the Fall in Silver Exchange.

The following is a Press telegram from Ottawa, Canada,
June 23, 1909:

"The serious check to American exports to the Orient resulting from the great fall in the silver exchanges last year is attracting increasing attention on the Pacific Coast. A League which describes itself as the Fair Exchange league has been organized in Ottawa to keep the issues before the Dominion parliament. It advocates the adoption of the Goschen plan of 1891 jointly by the British empire and the United States with open mints in India as before 1893. The new movement has secured a qualified endorsement from J. J. Hill of the Great Northern railway. Mr. Hill says: 'We must await the proposals of the monetary commission at Washington. The silver problem is full of difficulties. I wish it were possible to ignore it. But our consuls in Asia warn us that at the present rate of silver exchange Asia has ceased to import our wheat or flour or lumber; that the Shanghai merchants who eighteen months since bought the sovereign or five gold dollars with five taels, must now pay near eight taels; the result is disaster; he no longer buys.'"

FINANCE AND TRADE: British Empire: A. D. 1909.
Imperial Congress of Chambers of Commerce.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909 (SEPTEMBER).

FINANCE AND TRADE: England: A. D. 1909.
The Budget of Mr. Lloyd-George.

See (in this Volume)
ENGLAND: A. D. 1909 (APRIL-DECEMBER).

{266}

FINANCE AND TRADE: Germany: A. D. 1901-1902.
Industrial Crisis and Period of Depression.

The extraordinary industrial development of Germany between

1895 and 1900 had its usual sequel in a sudden collapse, followed by a period of depression and slow return to productive activity. According to Dr. Braun, writing in the *Yale Review* of May, 1902, "the cause of the crisis lay undoubtedly in extreme overproduction, which had continued for a long time without its significance having been discovered by any one. Enormous quantities of commodities had been accumulated, numberless new industrial undertakings had come into being, or were about to be started, and every one was counting on further development of production by leaps and bounds. But a feeling of uncertainty, which should pass into a crisis, was bound to arise the moment certain unhealthy conditions of German economic life, which had been covered up during the period of prosperity, made their appearance.

"The conditions which did arouse this widespread feeling in German capitalistic circles lay far from the industrial market itself. Great losses suddenly appeared in the field of mortgage investments, whose securities had been accepted by the public as, next to government bonds, the safest form of investment, and the freest from speculation. These developments caused a panic among the investing public. This feeling of panic began, according to my view, at the time when the authorities found themselves forced to arrest two directors of the Pomeranian Mortgage Bank (Pommersche Hypothekenbank), who occupied the highest social position. ... The extraordinary result of the action of the authorities against the leaders of certain mortgage banks is explained only by the facts that at the end of 1900, six and two-third billion marks of mortgage debentures were in circulation, and that within ten years the amount invested in such debentures had increased by three billion marks. The great majority of the small and middle-class capitalists, who wished to invest their money in safe securities, had put it into mortgage debentures of this kind. The greatest confidence had been placed in them, and now, for the first time, the eyes of the public were open to the fact that great losses could also

ensue from such investments. The five principal offending banks had at the end of 1900, 692,670,950 marks of mortgage debentures in circulation. Every one had invested in these, from the smallest capitalist to the German Empress. The public and pretentious piety of the directors of the Prussian Mortgage Stock Bank, who were later placed under arrest, had induced even church-building associations to place their money in these debentures."

"Then came the failure of the Dresdener Kreditanstalt, which, with a capital of 20,000,000 marks, had loaned a single industrial company, the Dresden Electrical Company, 9,000,000 marks; and this failure was followed by that of the famous Leipsic Bank, which had loaned 84,000,000 marks to a concern which had used up its own capital, and was paying fraudulent dividends of 50 per cent. These two failures frightened the public into a general withdrawal of deposits from banks of every class."

FINANCE AND TRADE: Japan: A. D. 1909.
State of the War Debt and its Payment.

See (in this Volume)
JAPAN: A. D. 1909 (JULY-SEPTEMBER).

FINANCE AND TRADE: Mexico: A. D. 1905.
Currency Reform.
Cessation of Free Coinage of Silver.

See (in this Volume)
MEXICO: A. D. 1904-1905.

FINANCE AND TRADE: United States: A. D. 1908.
The Emergency Currency Act.

What is known as the Emergency Currency Act was passed by Congress in May, 1908, and received the approval of the

President on the 30th of that month. It is a temporary measure, for exigencies that may repeat the monetary experience of 1907 before an adequate reform of the banking and currency system of the country is effected, and will expire by limitation on the 30th of June, 1914. It does not disturb the present National bank note currency of the country, based on Government bonds, but provides a means by which an additional Volume, amounting to a total of \$500,000,000, if necessary, may be issued by the National banks in case of a currency stringency.

There are two ways in which emergency circulation may be issued. A bank may make an application through the Currency Association of which it is a member, or, where State and municipal bonds are offered as security, the application may be made directly. A Currency Association may be formed by ten or more banks having an aggregate capital and surplus of at least \$5,000,000. Only one may be formed in any city, and no bank may belong to more than one. It must be formed by banks located in territory as contiguous as convenient.

All applications for emergency currency are to be passed upon by the Secretary of the Treasury after recommendation by the Comptroller of the Currency. The Secretary will also determine whether business conditions in the locality warrant the issuance of such circulation. The distribution of the notes is likewise left to him. Where application is made through an Association, the securities are deposited with it; where a direct application is made, they are deposited with the Treasurer or any Assistant Treasurer of the United States. All the members composing an Association are jointly and severally liable to the United States for the redemption of all emergency circulation taken out by its members.

FINANCE AND TRADE: A. D. 1908.

Banking and Currency Questions in the Party Platforms.

See (in this Volume)

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

FINANCE AND TRADE: A. D. 1909.

The "Wall Street Investigation."

Report on the Operations of the Stock Exchange and other Exchanges of New York City.

In December, 1908, a Special Committee of nine experienced gentlemen, having Mr. Horace White for its chairman, was appointed by Governor Hughes, of the State of New York, to investigate and report "what changes, if any, are advisable in the laws of the State bearing upon speculation in securities and commodities, or relating to the protection of investors, or with regard to the instrumentalities and organizations used in dealings in securities and commodities which are the subject of speculation." On the 7th of the following June the Committee submitted to the Governor an extended report, describing and discussing the organizations, the instrumentalities and the methods employed in the dealings with which their inquiry had to do. The following excerpts from this important report (known commonly as the "report on Wall Street") may suffice, perhaps, to convey the main matters of information afforded by it and the more valuable conclusions at which the Committee arrived:

{267}

"In law, speculation becomes gambling when the trading which it involves does not lead, and is not intended to lead, to the actual passing from hand to hand of the property that is dealt in. ... The rules of all the exchanges forbid gambling as defined by this opinion [of the New York Court of Appeals, case of Hurd vs. Taylor, 181 New York 231; but they make so easy a technical delivery of the property contracted for, that the practical effect of much speculation, in point of form legitimate, is not greatly different from that of gambling.

Contracts to buy may be privately offset by contracts to sell. The offsetting may be done, in a systematic way, by clearing houses, or by 'ring settlements.' Where deliveries are actually made, property may be temporarily borrowed for the purpose. In these ways, speculation which has the legal traits of legitimate dealing may go on almost as freely as mere wagering, and may have most of the pecuniary and immoral effects of gambling on a large scale.

"A real distinction exists between speculation which is carried on by persons of means and experience, and based on an intelligent forecast, and that which is carried on by persons without these qualifications. The former is closely connected with regular business. While not unaccompanied by waste and loss, this speculation accomplishes an amount of good which offsets much of its cost. The latter does but a small amount of good and an almost incalculable amount of evil. In its nature it is in the same class with gambling upon the race-track or at the roulette table, but is practised on a vastly larger scale. Its ramifications extend to all parts of the country. It involves a practical certainty of loss to those who engage in it.

"The problem, wherever speculation is strongly rooted, is to eliminate that which is wasteful and morally destructive, while retaining and allowing free play to that which is beneficial. The difficulty in the solution of the problem lies in the practical impossibility of distinguishing what is virtually gambling from legitimate speculation. The most fruitful policy will be found in measures which will lessen speculation by persons not qualified to engage in it. In carrying out such a policy exchanges can accomplish more than legislatures. ...

"The New York Stock Exchange is a voluntary association, limited to 1,100 members, of whom about 700 are active, some of them residents of other cities. Memberships are sold for

about \$80,000. The Exchange as such does no business, merely providing facilities to members and regulating their conduct. The governing power is in an elected committee of forty members and is plenary in scope. The business transacted on the floor is the purchase and sale of stocks and bonds of corporations and governments. Practically all transactions must be completed by delivery and payment on the following day. The mechanism of the Exchange, provided by its constitution and rules, is the evolution of more than a century. ...

"The Volume of transactions indicates that the Exchange is to-day probably the most important financial institution in the world. In the past decade the average annual sales of shares have been 196,500,000 at prices involving an annual average turnover of nearly \$15,500,000,000; bond transactions averaged about \$800,000,000. This enormous business affects the financial and credit interests of the country in so large a measure that its proper regulation is a matter of transcendent importance. While radical changes in the mechanism, which is now so nicely adjusted that the transactions are carried on with the minimum of friction, might prove disastrous to the whole country, nevertheless measures should be adopted to correct existing abuses.

"It is unquestionable that only a small part of the transactions upon the Exchange is of an investment character; a substantial part may be characterized as virtually gambling. Yet we are unable to see how the State could distinguish by law between proper and improper transactions, since the forms and the mechanisms used are identical. Rigid statutes directed against the latter would seriously interfere with the former. The experience of Germany with similar legislation is illuminating.

See (in this Volume)
GERMANY: A. D. 1908.

But the Exchange, with the plenary power over members and their operations, could provide correctives, as we shall show.

"Purchasing securities on margin is as legitimate a transaction as a purchase of any other property in which part payment is deferred. We therefore see no reason whatsoever for recommending the radical change suggested, that margin trading be prohibited. ... In so far as losses are due to insufficient margins, they would be materially reduced if the customary percentage of margins were increased. The amount of margin which a broker requires from a speculative buyer of stocks depends, in each case, on the credit of the buyer; and the amount of credit which one person may extend to another is a dangerous subject on which to legislate. Upon the other hand, a rule made by the Exchange could safely deal with the prevalent rate of margins required from customers. In preference, therefore, to recommending legislation, we urge upon all brokers to discourage speculation upon small margins and upon the Exchange to use its influence, and, if necessary, its power, to prevent members from soliciting and generally accepting business on a less margin than 20 per cent.

"‘Pyramiding,’ which is the use of paper profits in stock transactions as a margin for further commitments, should be discouraged. The practice tends to produce more extreme fluctuations and more rapid wiping out of margins. If the stock brokers and the banks would make it a rule to value securities for the purpose of margin or collateral, not at the current price of the moment, but at the average price of, say, the previous two or three months (provided that such average price were not higher than the price of the moment), the dangers of pyramiding would be largely prevented.

"We have been strongly urged to advise the prohibition or limitation of short sales, not only on the theory that it is wrong to agree to sell what one does not possess, but that

such sales reduce the market price of the securities involved.
{268}

We do not think that it is wrong to agree to sell something that one does not now possess, but expects to obtain later. Contracts and agreements to sell, and deliver in the future, property which one does not possess at the time of the contract, are common in all kinds of business. The man who has 'sold short' must some day buy in order to return the stock which he has borrowed to make the short sale. Short-sellers endeavor to select times when prices seem high in order to sell, and times when prices seem low in order to buy, their action in both cases serving to lessen advances and diminish declines of price. In other words, short-selling tends to produce steadiness in prices, which is an advantage to the community. No other means of restraining unwarranted marking up and down of prices has been suggested to us. ...

"A subject to which we have devoted much time and thought is that of the manipulation of prices by large interests. This falls into two general classes:

(1.) That which is resorted to for the purpose of making a market for issues of new securities.

(2.) That which is designed to serve merely speculative purposes in the endeavor to make a profit as the result of fluctuations which have been planned in advance.

The first kind of manipulation has certain advantages, and when not accompanied by 'matched orders' is unobjectionable *per se*. ...

"The second kind of manipulation mentioned is undoubtedly open to serious criticism. It has for its object either the creation of high prices for particular stocks, in order to draw in the public as buyers and to unload upon them the holdings of the operators, or to depress the prices and induce

the public to sell. There have been instances of gross and unjustifiable manipulation of securities, as in the case of American Ice stock. While we have been unable to discover any complete remedy short of abolishing the Stock Exchange itself, we are convinced that the Exchange can prevent the worst forms of this evil by exercising its influence and authority over the members to prevent them. When continued manipulation exists it is patent to experienced observers.

"In the foregoing discussion we have confined ourselves to ***bona-fide*** sales. So far as manipulation of either class is based upon fictitious or so-called 'wash sales' it is open to the severest condemnation, and should be prevented by all possible means. These fictitious sales are forbidden by the rules of all the regular exchanges, and are not enforceable at law. They are less frequent than many persons suppose. ... There is, however, another class of transactions called 'matched orders,' which differ materially from those already mentioned, in that they are actual and enforceable contracts. We refer to that class of transactions, engineered by some manipulator, who sends a number of orders simultaneously to different brokers, some to buy and some to sell. These brokers, without knowing that other brokers have countervailing orders from the same principal, execute their orders upon the floor of the Exchange, and the transactions become binding contracts; they cause an appearance of activity in a certain security which is unreal. Since they are legal and binding, we find a difficulty in suggesting a legislative remedy. But where the activities of two or more brokers in a certain securities become so extreme as to indicate manipulation rather than genuine transactions, the officers of the Exchange would be remiss unless they exercised their influence and authority upon such members. ...

"The subject of corners in the stock market has engaged our attention. The Stock Exchange might properly adopt a rule providing that the governors shall have power to decide when a

corner exists and to fix a settlement price, so as to relieve innocent persons from the injury or ruin which may result therefrom. The mere existence of such a rule would tend to prevent corners."

Speaking in a general way, it may be said that the Committee holds the directorate of the Stock Exchange responsible for evils connected with the operations that are centralized by it. "It has almost unlimited power over the conduct of its members," says the report, "and it can subject them to instant discipline for wrongdoing." As a voluntary organization it is more free in the exercise of this power than it would be if incorporated and brought under the authority and supervision of the State and the process of the courts. Hence the Committee refrains from advising the incorporation of the Exchange; but it does so only on the assumption that it "will in the future take full advantage of the powers conferred upon it by its voluntary organization." In the past it has failed to do so.

At the same time, the Committee corrects an erroneous public notion that Wall Street and the Stock Exchange are one and the same thing. "An investigation was made of the transactions on the Exchange for a given day, when the sales were 1,500,000 shares. The returns showed that on that day 52 per cent. of the total transactions on the Exchange apparently originated in New York city, and 48 per cent. in other localities."

The operations of the various other trading exchanges in New York,—the Consolidated Stock Exchange, "the Curb," so called, and the several "commodity exchanges," where dealings in produce, cotton, coffee, etc., are centered,—are discussed in the report, with disapproval of some. The abuses which find their opportunity in the unorganized Curb market,—carried on within a roped-off section of Broad Street,—are set forth with distinctness, and are traced clearly to the tolerance and encouragement afforded to them by the Stock Exchange. "About

85 per cent, of the business of the Curb," says the report, "comes through the offices of members of the New York Stock Exchange, but a provision of the constitution of that Exchange prohibits its members from becoming members of, or dealing on, any other **organized** Stock Exchange in New York.

Accordingly, operators on the curb market have not attempted to form an organization. The attitude of the Stock Exchange is therefore largely responsible for the existence of such abuses as result from the want of organization of the curb market. The brokers dealing on the latter do not wish to lose their best customers, and hence they submit to these irregularities and inconveniences. Some of the members of the Exchange dealing on the curb have apparently been satisfied with the prevailing conditions, and in their own selfish interests have maintained an attitude of indifference toward abuses. We are informed that some of the most flagrant cases of discreditable enterprises finding dealings on the curb were promoted by members of the New York Stock Exchange. The present apparent attitude of the Exchange toward the curb seems to us clearly inconsistent with its moral obligations to the community at large."

{269}

On the much debated question, whether dealing in "futures,"—the selling of agricultural products for future delivery,—should be prohibited or otherwise interfered with, the report of the Committee is strongly in favor of letting it alone. It says, "The subject was exhaustively considered by the Industrial Commission of Congress which in 1901 made an elaborate report (Volume VI.), showing that selling for future delivery, based upon a forecast of future conditions of supply and demand, is an indispensable part of the world's commercial machinery, by which prices are, as far as possible, equalized throughout the year to the advantage of both producer and consumer. The subject is also treated with clearness and impartiality in the Cyclopedia of American Agriculture, in an

article on 'Speculation and Farm Prices'; where it is shown that since the yearly supply of wheat, for example, matures within a comparatively short period of time, somebody must handle and store the great bulk of it during the interval between production and consumption. Otherwise the price will be unduly depressed at the end of one harvest and correspondingly advanced before the beginning of another. Buying for future delivery causes advances in prices; selling short tends to restrain inordinate advances. In each case there must be a buyer and a seller, and the interaction of their trading steadies prices. Speculation thus brings into the market a distinct class of people possessing capital and special training who assume the risks of holding and distributing the proceeds of the crops from one season to another with the minimum of cost to producer and consumer."

FINANCE AND TRADE: A. D. 1909-1910.

The "Central Bank" Question.

In Boston, at the outset of President Taft's tour of the country in the fall of 1909, he made a speech on financial subjects which touched the old question of the need in the country of a Central Bank of Issue, as an instrument for the automatic or natural regulation of its currency, in quantity and distribution. This gave the opening to a revival of discussions which have been seldom heard since Jackson's time. A clear, succinct statement of the banking conditions which have revived this question, with explanations of what it involves, appears in the following, borrowed from a monthly financial letter sent out in November by the National City Bank of Chicago:

"The creation of a Central Bank of Issue as a cure for the defects of our financial system is of such importance that a brief review of the proposition may be of interest to our clients:

"The business of banking is probably as sound in this country as in any other. Our individual banks are, as a rule, prudently, honestly and capably managed. During normal times they deserve and enjoy the confidence of the public which they efficiently serve. Yet only two years ago they practically suspended because the system—that is the relation of one bank to all the others—had collapsed. This occurred while there was more gold in the country than existed in several of the other leading commercial nations combined, and while nearly all of the twenty or more thousand banks in the United States were sound, solvent, and in normal condition. With over \$900,000,000 of gold in the United States Treasury, and several hundred millions more in the country, we imported at great cost about \$100,000,000 chiefly from the coffers of the Bank of England, which itself only held \$105,000,000.

"The loss on investments and to general business by such a panic as that of 1907 is beyond computation. When we consider that we have had several such panics within the memory of living men, and that other and poorer countries possess the means of avoiding such conditions, we naturally ask what is wrong or lacking in our financial system as compared to theirs?

"In times of trouble our reserves scatter. Theirs are massed. Our currency is rigid and cannot be quickly expanded to meet an emergency. Their currency is capable of instantaneous expansion. Our chief gold reserves are in the United States Treasury unavailable as a basis for such expansion. Their reserves are in great central banks—immediately available for currency expansion. Besides, under our national banking system, a bank in a non-reserve city with deposits of, say \$1,000,000, keeps six per cent, or \$60,000 in its own vault, and nine per cent, or \$90,000, to its credit with a reserve city bank. In the reserve city bank, however, the \$90,000 is merely a deposit against which it keeps an actual reserve of about \$20,000. When trouble comes, therefore, and the bank in

the non-reserve city decides to increase its cash reserves from six to eight per cent it calls upon its reserve agent for \$20,000 cash, and when the reserve city bank has forwarded that amount, it has parted with all the actual reserve it has belonging to the non-reserve city bank, and it still has a deposit liability on its books of \$70,000 against which it holds no reserve whatever.

"As it is a very natural and prudent thing for banks in non-reserve cities to increase their cash reserves by at least two per cent when trouble threatens, nearly all try to do so at the same time, and the result is that the threatened trouble becomes a reality. In short, when financial trouble threatens in any other great country the **system** provides relief and the danger is avoided, whereas, unfortunately, with us every step we take increases the trouble and helps it along until it is beyond control.

"Financial stringency existed in all the leading countries in 1907. Suspension of specie-payments and actual panic occurred only in the United States. They stopped abruptly at our borders, and Canada and even Mexico knew nothing of them. Manifestly, we need something! There is little difference of opinion on that score. But when we begin to discuss the remedy we have a wide divergence of views.

"Many favor asset or credit currency similar to that prevailing in Canada. The Canadian System of asset currency is excellent when joined to the branch banking system. But it is felt that it would be almost impossible to apply it to a system containing thousands of individual banks. The difficulty is that of providing adequate redemption facilities, without which the danger of currency inflation could scarcely be avoided. Several schemes to meet this difficulty have been suggested, but the best of them seem rather unwieldy.

"The proposal which seems to be gaining most ground is to establish a great semi-government bank to be added to our present system. To this bank would be transferred at once the government deposits now in national banks, and later a large part of the reserves of the banks in the central reserve, and possibly also the reserve cities. Like everything else, the bank would have to be an evolution. Years would pass before it would work into its proper position and exercise its full powers. Gradually, it is hoped, the United States Treasury could be done away with, and the government taken out of the banking business. Then all government funds would be deposited with the Central Bank. Its branches would take the place of our Sub-Treasuries. It would be a bank of banks, where other banks could re-discount their bills, or borrow on securities, receiving therefor currency to be issued by the Central Bank. This currency would be partly secured by a gold reserve, and partly by the general assets of the bank.

"If the \$900,000,000 gold in the United States Treasury in 1907, held against an equal amount of notes, had been in a Central Bank it would have formed a sufficient basis for the issue of an additional \$900,000,000 of currency, for fifty per cent reserve against currency would be ample. For such additional issue the Central Bank would, of course, receive acceptable banking assets. A far smaller amount, however, than \$900,000,000 would have averted the panic. It seems clear that such an institution would provide the elasticity to our currency which we so much need, not only in times of stress, but every crop-moving season.

"There are many details which would require careful study, but to many competent to judge, the Central Bank idea seems to be the correct solution of the difficulty. The fact that all the other important countries of the world have adopted it ought to give it weight. Even little Switzerland came to it four

years ago, and Japan, after adopting a system copied from ours, has established a Central Bank patterned after the Imperial Bank of Germany.

"Most of the objections raised seem to be largely based on sentiment rather than on argument. It is said to be 'un-American,' or that it would be 'used by Wall Street.' or that 'it would get into politics.' It would seem to us that if the system is the best, it should not be 'un-American' to adopt it, and that an illegitimate use of it by 'Wall Street' could easily be guarded against in its organization. To say that we cannot trust our government to properly use, and not abuse, the powers of a Central Bank is to say that it is inferior to the governments of Europe which have wisely used such powers for generations.

"There seems some danger that the bank would not pay unless it entered into competition with existing banks for regular commercial business; but we must remember that Central Banks are not expected to earn large dividends.

"We predict a long campaign of discussion before the right course appears clear to the American people; but it seems to us that the arguments advanced for a Central Bank are well worthy of the most earnest study."

FINANCE AND TRADE: A. D. 1909-1910.

Powerful Combination of Banking Interests by J. P. Morgan & Co.

Early in December, 1909, the powerful banking house of J. P. Morgan & Co. obtained control of the Guaranty Trust Company and the Equitable Life Assurance Company, which latter controls the Equitable and Mercantile trust companies. In the former case it purchased the holding of the Harriman estate, and in the latter that of Thomas Ryan. At the beginning of the following month, by another deal with Mr. Ryan, the same firm acquired the Morton and the Fifth Avenue trust companies. The

combined assets of the Guaranty, Morton, and Fifth Avenue trust companies were reported to be \$259,000,000. Joined to the vast resources of the Equitable Life Assurance Company and to those previously controlled by the Morgan Company, the financial combination seems overpowering.

FINANCE AND TRADE.

See,(in this Volume),
TARIFFS, AND COMBINATIONS.

-----FINANCE AND TRADE: End-----

FINLAND: A. D. 1901.

The Russianizing of the Finnish Army.
Resistance to the Violation of Constitutional Rights.
Despotic measures of the Tsar.
M. de Plehve's defence.

The shameful overthrow, in 1899, by the present Tsar of Russia, of the ancient constitution of Finland, which had preserved its distinct nationality ever since it came, in 1809, under the Russian crown, is related in Volume VI. of this work. Among the measures then undertaken for Russianizing Finland—reducing it substantially to the status of a Russian province—the most serious was the practical incorporation of the Finnish army with the Russian, the law for accomplishing which had not been fully carried through when the account of events in Volume VI. was closed. It was opposed very strenuously by M. Witte, then rising to influence in the councils of the Tsar, and seemed not unlikely to be put aside. But the worse influences prevailed in the end over the wiser, and the proposed measure became law on the 11th of July, 1901. It placed all Finnish troops under the orders of the Russian commander in Finland, authorized the putting of Finnish conscripts into the Russian regiments stationed in Finland, and subjected Finnish regiments to service, when required,

outside of Finland, from which service they had been constitutionally exempt hitherto.

The resistance to this gross violation of time-honored rights was universal and determined. Conscripts refused to answer the call to military service, subjecting themselves to the penalties for desertion, and practically the whole population stood ready to protect them. Extensive movements of emigration to America and elsewhere were begun. At the same time the Tsar's authority, as the common sovereign of Finland and Russia, was used in many ways as autocratically in his constitutional realm as in that where his absolutism knew no bounds. The powers of the Russian Governor-General of Finland were enlarged; the Finnish archives were removed to St. Petersburg; Cossacks were sent into the abused country with their knouts to quell resistance to the army law; but the resistance went on, taking presently a more passive form. Communes refused to elect the conscription boards which the law prescribed for carrying out the levy of recruits, and heavy fines were imposed on them without effect. In November, 1902, a convention of delegates from all parts of Finland, composed largely of peasants and workmen, resolved to "continue everywhere, unswervingly, and until legal conditions are restored to the country, the passive resistance against all measures conflicting with, or calculated to abolish, our fundamental laws."

{271}

An elaborate defence of these Russianizing measures in Finland was addressed, in August, 1903, by the Russian Minister of the Interior, M. dePlehve, to Mr. W. T. Stead, editor of the *English Review of Reviews*, by way of reply to an "open letter" to himself on the subject, by Mr. Stead, published in the *Review* of that month. Concerning the military law, M. Plehve wrote:

"This law, in its application to the new conscription regulations, has alleviated the condition of the population of Finland. Contrary to the information you have received, the military burden laid on the population of the land has not been increased by 5,000 recruits annually, but has been decreased from 2,000 men to 500 per annum, and latterly to 280. As you will see, there is in reality no opposition between the will of the Emperor of Russia as announced to Finland in 1899 and his generous initiative at The Hague Conference." At the end of a long exposition of the principles of Russian imperial policy, which left it far from clear, the Minister said: "I shall give the following answer to your entreaty to put an end to the present policy of Russia in Finland, which you are pleased to call the policy of General Bobrikoff. First of all, it is incorrect to connect the present course of Russian policy in Finland with the name of the present Governor-General of Finland alone, for, as regards the fundamental purpose of his labors, all the advisers and servants of his Imperial Majesty who have to do with the government of Finland are at one with him in their firm conviction that the measures now applied in Finland are called for by the pressing requirements of our state. With regard to the essence of the question, I repeat that in matters of government temporary phenomena should be distinguished from permanent ones. The incidental expression of Russian policy, necessitated by an open mutiny against the government in Finland, will, undoubtedly, be replaced by the former favor of the sovereign toward his Finnish subjects, as soon as peace is finally restored and the current of social life in that country assumes its normal course. Then, certainly, all repressive measures will be repealed. But the realization of the fundamental aim which the Russian Government has set itself in Finland,—i. e., the confirming in that land of the principle of imperial unity,—must continue, and it would be best of all if this end were attained with the trustful cooperation of local workers under the guidance of the sovereign to whom Divine Providence has committed the

destinies of Russia and Finland."

FINLAND: A. D. 1904.

Assassination of Governor-General Bobrikoff.

On the 15th of June, 1904, Governor-General Bobrikoff, who had been the executor of the Russianizing policy in Finland, and was hated accordingly, was shot by a Finnish member of the Parliamentary opposition.

FINLAND: A. D. 1905.

Successful Revolt against the Russianizing Oppressions.

The Tsar's Concessions.

Restoration of Ancient Liberties.

Taking advantage of the situation in Russia, which tied the hands of the Autocrat (see (in this Volume) RUSSIA: A. D. 1904-1905), the Finns, by a sudden general rising, drove out the Russian officials in their country, took possession of the military posts and Government building, and forced the Governor, Prince John Obolenski, to send to the Tsar their demand for a restoration of their ancient constitutional rights which he had taken away (see, in Volume VI. of this work, FINLAND: A. D. 1898-1901). The helplessness to which their Russian master had been reduced was signified by the prompt amiability of his response, in successive manifestoes, the first of which bore the following command:

"By the grace of God, we, Nicholas II., etc., command the opening at Helsingfors, December 20, of an extraordinary Diet to consider the following questions.

"First.

The proposals for the budget of 1906-1907, provisional taxes, and a loan for railway construction.

"Second.

A bill providing, by a new fundamental law, a parliament for Finland on the basis of universal suffrage, with the establishment of the responsibility of the local authorities to the nation's deputies.

"Third.

Bills granting liberty of the press, of meeting, and of unions."

A subsequent manifesto announced:

"We have ordered the elaboration of bills reforming the fundamental laws for submission to the deputies of the nation, and we order the abrogation of the manifesto of February 15, 1899; the ukase of April 15, 1903, concerning measures for the maintenance of public order and tranquillity; the imperial ukase of November 23, 1903, according exceptional rights to the gendarmerie in the grand duchy; Article 12 of the ukase of July 13, 1902, on Finnish legislation; the ukase of September 21, 1902, on the reform of the Senate and the extension of powers of governors; the ukase of April 8, 1903, on instructions for the governor-general and the assistant governor of Finland; the law of July 25, 1901, on military service; the ukase of August 13, 1902, on the duties of civic officials in Finland; the ukase of August 27, 1902, on the resignation of administrative officials and judicial responsibility for offenses and crimes of officials, and the ukase of July 15, 1900, on meetings.

"We further order the Senate to proceed immediately with the revision of the other regulations enumerated in the petition, and we order the immediate suppression of the censorship.

"The Senate should prepare bills granting liberty of speech, of the press, of meeting, and of union; a national assembly on the basis of universal suffrage, and the responsibility of the local authorities as soon as possible, in order that the Diet

may discuss them.

"We trust that the measures enumerated, being dictated by a desire to benefit Finland, will strengthen the ties uniting the Finnish nation to its sovereign."

An article quoted from a Danish magazine tells in a few words how the bloodless revolution was accomplished:

"The weapon used for the purpose of paralyzing the government was the general strike. It may be questioned to which class belongs the chief part of honor in this struggle. A marvelous unity characterized the whole movement. While post, telegraph, and railroad traffic was stopped the entire light supply was cut off. The strike extended even into the private kitchen, and this was one of the reasons which hastened the departure of the Russian officials. In the meantime the question was not only should Russian guns be directed on Helsingfors, but also should personal safety be maintained. That so few transgressions of the law occurred with the whole police force on strike is a splendid testimony for the Finnish people. The revolution in Finland stands hence as an unparalleled example of a popular upheaval."

{272}

FINLAND: A. D. 1906.

Political Enfranchisement of Women.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

FINLAND: A. D. 1908-1909.

Russian Measures for the Destruction of the
Constitutional Autonomy of Finland.

The reactionary determinations of the Russian Government,

since it mastered the revolutionary movements of 1905-1906, are revealed in nothing else more plainly than in its steady pursuance of measures to extinguish the degree of autonomy which belongs to Finland, under the constitution that was confirmed to its people by the Tsar Alexander I., after he had taken their country from the Swedish crown.

See, in Volume IV. of this work,
SCANDINAVIAN STATES: A. D. 1807-1810.

One of the most arbitrary of the early measures in this direction was the assumption by the Tsar, in June, 1908, of a right to confer on the Russian Council of Ministers certain powers of control over Finnish legislation. The protests of the Diet and Senate of Finland against this and other attacks on their constitutional rights led to a dissolution of the Diet, and the election of a new representative body, early in May, 1909. The election produced substantially the same popular representation in the new Diet that had characterized its predecessor, and its attitude toward the autocratic invasion of Finnish rights was the same. The Socialists received 79,447 votes. The party of the Old Finns which inclines to submissiveness polled a total of 52,396. The Constitutional parties, the Young Finns and the Swedes, received respectively 28,711 and 15,885 votes, while the Agrarian-Socialists got 13,648 and the Christian Workmen 6172. The Old Finns stand alone against the other parties.

Meantime, the Tsar, in sanctioning an Act of the previous Diet, after its dissolution, had done it in terms that were deemed contrary to the Constitution of Finland, and the Senate, which is composed of members appointed by the Tsar, petitioned him for a modification of them. His reply was a rebuke and a command that they promulgate the law, and thus accept his misconstruction of the Constitution. Thereupon the Vice-President of the Senate and four of its members resigned. The remaining five, pliant to the imperial will, voted with

the presiding Governor-General for the promulgation of the law.

In the course of the next few months other demands were made on the Finns which even the imperial appointees of the Senate could not yield to. In October, an Imperial rescript decreed that military service legislation for Finland should be withdrawn from the competence of the Finnish Diet and transferred to the Imperial Legislature; and that until such legislation is enacted Finland should pay into the Russian exchequer an annual contribution of 10,000,000 marks (\$2,000,000), to be increased gradually to 20,000,000 marks. This left the Finnish Diet no voice in the appropriation. The five members who had remained in the Senate when their four colleagues resigned now intimated their intention to withdraw. On the 14th of October the four vacant seats were filled by an appointment of naval and military officers who were said to be "technically Finnish citizens," but all of whom, save one, had spent their lives in Russia. A month later, November 17, a Press despatch from Helsingfors made the following announcement: "At an all-night session which ended to-day the Finnish Diet rejected the government bill providing for Finland's contribution to the Russian military appropriation. A resolution was adopted requesting the Emperor to reintroduce the measure in a constitutional form. The dissolution of the Diet is expected. The Emperor has accepted the resignations of the Finnish Senators who refused to remain in office if the Russian demand for a big military appropriation by Finland was pressed." The expectation of another dissolution of the Diet by the Tsar, as the consequence of this action, was realized the next day.

Some months prior to this time a joint committee of Russians and Finns had been appointed to formulate rules or principles that should apply with authority in future to legislation for Finland. Agreement between the two constituents of this Russo-Finnish committee appears to have been impossible from

the beginning. They were hopelessly opposed in their views of the relation existing between the constitutional Grand Duchy of Finland and the autocratic Empire of Russia, by virtue of their having a common sovereign. Toward the end of November their failure to come to any agreement was made known; and on the 22d of December a despatch from St. Petersburg announced that "the conclusion of the labours of the Russo-Finnish Commission, resulting in a perfunctory majority vote of the Russian members in favour of the reduction of the Finnish Constitution to a provincial autonomy, is deplored by most of the newspapers. The Finnish members apprehend a military dictatorship."

The St. Petersburg correspondent of ***The Times*** had previously stated what the prescription of the Russian majority of the Committee would be. They maintain, he wrote, that "there never was a Constitution granted to Finland binding on Russia as the Sovereign Power, and that, therefore, a new order of procedure can be established independently of the Finnish authorities by an Act of legislation passed by the Russian Legislature alone. They have drawn up a list of matters to come under the new procedure. According to this list all legislation on such matters as the Russian language in Finland, the principles of Finnish administration, police, administration of justice, public education, formation of business companies and of associations, public meetings, Press, importation of foreign literature, Customs tariffs, literary and artistic copyright, monetary system, means of communication, including pilot and lighthouse service, and many other subjects, shall be enacted by the Imperial legislative organs. The Finnish Diet shall be entirely ignored in such matters, while there is a provision for some cases that the opinion of the Finnish Senate shall be taken.

"It is difficult to understand what legislative matters are to be left for the Finnish Diet to deal with; but it seems that the Russian members are not sure that they have covered the

whole ground, for their project contains a clause to the effect that additions to their list may be made by means of Imperial legislation.

{273}

"It is proposed that Finland shall be represented in the Russian Duma by five members, one of whom shall be elected by Russian residents in Finland who are not Finnish citizens, whilst the Finnish Diet shall send one member to the Council of Empire."

The first movement, probably, on these new lines of imperial government for Finland, was that reported in a Reuter message from St. Petersburg, December 24, as follows:

"The Cabinet has approved new regulations whereby all documents issued by the Chancellery of the Governor-General of Finland shall be worded in Russian without a Finnish or Swedish translation."

FINLAND: A. D. 1910.

Fresh Elections to the Finnish Diet.

The Russian Duma assuming authority over Finland.

A new Diet, chosen at elections held early in February, 1910, is composed as follows:

Old Finns, 42;

Young Finns, 28;

Swedish People's party, 26;

Social Democrats, 86;

Agrarians, 17;

Christian Labor party, 1.

Fifteen women were elected, nine of them by the Social Democrats.

Just as this matter goes into type, a despatch from St. Petersburg, March 30, 1910, announces the introduction of a bill in the Russian Duma assuming authority in that body over Finland.

FINSEN, Niels Ryberg.

See (in this Volume)
NOBEL PRIZES.

FIRE, Great calamities of.

See (in this Volume)
BALTIMORE;
CHICAGO;
NEW YORK CITY;
SAN FRANCISCO;
OSAKA.

FISCAL REFORM, Mr. Joseph Chamberlain's programme of.

See (in this Volume)
England: A. D. 1903 (May-September).

FISCHER, Emil.

See (in this Volume)
NOBEL PRIZES.

FISHER, Andrew:
Prime Minister of Australia.

See (in this Volume)
AUSTRALIA; A. D. 1908, and 1909 (MAY-JUNE).

FISHERIES:
Newfoundland.

See (in this Volume)
NEWFOUNDLAND.

FISHES, FOOD:

Convention for their Preservation and Propagation in the
Waters contiguous to the United States and Canada.

See (in this Volume)
FOOD FISHES.

FIVE CIVILIZED TRIBES:

End of their Autonomy.

See (in this Volume)
INDIANS, AMERICAN.

FLOODS.

See (in this Volume)
CHINA; A. D. 1906-1907, and
FRANCE: A. D. 1910.

FOLK, Joseph Wingate:

Prosecutor of Municipal Thievery and Corruption in St. Louis.
Governor of Missouri.

See (in this Volume)
MUNICIPAL GOVERNMENT.

FOOD FISHES:

Convention respecting their Protection, Preservation, and
Propagation in the Waters contiguous to the United States
and Canada.

The following are the articles of a Convention negotiated at
Washington and signed by Ambassador James Bryce, for the

Government of Great Britain, and by Secretary Elihu Root, for that of the United States, on the 11th of April, 1908.

Ratifications of the Convention were exchanged on the 4th of June:

"ARTICLE 1.

The times, seasons, and methods of fishing in the waters contiguous to the United States and Canada as specified in Article 4 of this Convention, and the nets, engines, gear, apparatus, and appliances which may be used therein, shall be fixed and determined by uniform and common international regulations, restrictions, and provisions; and to that end the High Contracting Parties agree to appoint, within three months after this Convention is proclaimed, a Commission to be known as the International Fisheries Commission, consisting of one person named by each Government.

"ARTICLE 2.

It shall be the duty of this International Fisheries Commission, within six months after being named, to prepare a system of uniform and common International Regulations for the protection and preservation of the food fishes in each of the waters prescribed in Article 4 of this Convention, which Regulations shall embrace close seasons, limitations as to the character, size, and manner of use of nets, engines, gear, apparatus, and other appliances; a uniform system of registry by each Government in waters where required for the more convenient regulation of commercial fishing by its own citizens or subjects within its own territorial waters or any part of such waters; an arrangement for concurrent measures for the propagation of fish; and such other provisions and measures as the Commission shall deem necessary.

"ARTICLE 3.

The two Governments engage to put into operation and to enforce by legislation and executive action, with as little delay as possible, the Regulations, restrictions, and

provisions with appropriate penalties for all breaches thereof; and the date when they shall be put into operation shall be fixed by the concurrent proclamations of the President of the United States and the Governor-General of the Dominion of Canada in Council.

"And it is further agreed that jurisdiction shall be exercised by either Government, as well over citizens or subjects of either party apprehended for violation of the Regulations in any of its own waters to which said Regulations apply, as over its own citizens or subjects found within its own jurisdiction who shall have violated said Regulations within the waters of the other party.

"ARTICLE 4.

It is agreed that the waters within which the aforementioned Regulations are to be applied shall be as follows:

- (1) The territorial waters of Passamaquoddy Bay;
- (2) the St. John and St. Croix Rivers;
- (3) Lake Memphremagog;
- (4) Lake Champlain;
- (5) the St. Lawrence River, where the said River constitutes the International Boundary;
- (6) Lake Ontario;
- (7) the Niagara River;
- (8) Lake Erie;
- (9) the waters connecting Lake Erie and Lake Huron, including Lake St. Clair;
- (10) Lake Huron, excluding Georgian Bay but including North Channel;
- (11) St. Mary's River and Lake Superior;
- (12) Rainy River and Rainy Lake;
- (13) Lake of the Woods;
- (14) the Strait of San Juan de Fuca, those parts of Washington Sound, the Gulf of Georgia and Puget Sound lying between the parallels of 48° 10' and 49° 20';
- (15) and such other contiguous waters as may be

recommended by the International Fisheries Commission and approved by the two Governments.

It is agreed on the part of Great Britain that the Canadian Government will protect by adequate regulations the food fishes frequenting the Fraser River.

"The two Governments engage to have prepared as soon as practicable charts of the waters described in this Article, with the International Boundary Line indicated thereon; and to establish such additional boundary monuments, buoys, and marks as may be recommended by the Commission.

{274}

"ARTICLE 5.

The International Fisheries Commission shall continue in existence so long as this Convention shall be in force, and each Government shall have the power to fill, and shall fill from time to time, any vacancy which may occur in its representation on the Commission. Each Government shall pay its own Commissioner, and any joint expenses shall be paid by the two Governments in equal moieties.

"ARTICLE 6.

The Regulations, restrictions, and provisions provided for in this Convention shall remain in force for a period of four years from the date of their executive promulgation, and thereafter until one year from the date when either the Government of Great Britain or of the United States shall give notice to the other of its desire for their revision; and immediately upon such notice being given the Commission shall proceed to make a revision thereof, which Revised Regulations, if adopted and promulgated by the President of the United States and the Governor-General of Canada in Council, shall remain in force for another period of four years and thereafter until one year from the date when a further notice

of revision is given as above provided in this Article. It shall, however, be in the power of the two Governments, by joint or concurrent action upon the recommendation of the Commission, to make modifications at any time in the Regulations.

"ARTICLE 7.

The present Convention shall be duly ratified by His Britannic Majesty and by the President of the United States, by and with the advice and consent of the Senate thereof, and the ratifications shall be exchanged in Washington as soon as practicable."

FOOD LAWS.

See (in this Volume)
PUBLIC HEALTH: PURE FOOD LAWS.

FORESTS, Conservation of.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

FORMOSA:

Earthquake in.

See (in this Volume)
EARTHQUAKES: FORMOSA: A. D. 1906.

FORMOSA:

Japanese Dealing with the Opium Problem.

See (in this Volume)
OPIUM PROBLEM.

FORTIS MINISTRY.

See (in this Volume)
ITALY: A. D. 1905-1906.

FOSTER, John W.:
On the American Violation of Treaties with China.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

FOSTER, Volney W.:
Delegate to Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

FOUNDATION FOR THE PROMOTION OF INDUSTRIAL PEACE.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1907.

-----FRANCE: Start-----

FRANCE: A. D. 1870-1905.
Increase of Population compared with other European Countries.

See (in this Volume)
EUROPE: A. D. 1870-1905.

FRANCE: A. D. 1896-1906.
Encroachments of the French Algerian Boundary on Morocco.

See Morocco: A. D. 1896-1906.

FRANCE: A. D. 1900.
Comparative Statement of the Consumption of Alcoholic Drink.
Its Increase.

See (in this Volume)
ALCOHOL PROBLEM.

FRANCE: A. D. 1902.

Purchase of Franchises and Property of the French Panama
Canal Company by the United States.

See (in this Volume)
PANAMA CANAL.

FRANCE: A. D. 1902.

Favored footing in Abyssinia.
Railway Projects.

See (in this Volume)
ABYSSINIA: A. D. 1902.

FRANCE: A. D. 1902.

French Central Africa.
Explorations.
A Land-locked Empire.

See (in this Volume)
AFRICA: FRENCH CENTRAL.

FRANCE: A. D. 1902 (April-October).

Elections to the Chamber of Deputies.
Resignation of Waldeck-Rousseau.
Formation of a Radical Ministry under M. Combes.
Enforcement of the Law of Associations.
Closing of unauthorized schools.

The first ballot in elections to the Chamber of Deputies was
cast on the 27th of April, producing 413 conclusive elections
and leaving 178 to be decided by a second vote. The new
Chamber met on the 1st of June, and elected for its president,

M. Leon Bourgeois, by a vote of 303 against 267. On the following day M. Waldeck-Rousseau, who had been at the head of the Ministry for three years—an exceptional term of premiership in France—resigned, on the plea that his task was done. A new Radical Cabinet was then formed by M. Émile Combes, which announced a moderate programme on the 10th, and received the declared support of 312 members, against 116 in opposition and 149 who took neutral ground. Of the previous Cabinet, M. Delcassé retained the portfolio of Foreign Affairs and General Andre that of War. The session was short and little was done.

In the following months great excitement and much disorder in parts of the country, especially in Brittany, was caused by proceedings taken to enforce the law concerning Associations, passed in the previous year.

See in Volume VI.

FRANCE: A. D. 1901.

Some religious orders—teaching orders and others—had refused or neglected to register themselves and obtain authorization, as required by the law, and these were now to be closed. In many cases there was resistance to the closing of the unauthorized schools. In a few cases there was a refusal by military officers to obey commands for the assistance of their soldiery in enforcing the law. Magistrates, too, opposed the government, and a majority of the councils in the departments of France withheld their support. Nevertheless the government proceeded firmly in the matter and the provisions of the law were carried out. When the Chambers were reconvened in October the burning subject came up for fierce discussion, and the attitude and acts of the Combes Ministry were approved in the Chamber of Deputies by 329 against 233.

FRANCE: A. D. 1902 (May).

Courtesies at the unveiling of a Monument to

Marshal de Rochambeau, at Washington.

See (in this Volume)

UNITED STATES: A. D. 1902 (MAY).

FRANCE: A. D. 1902 (October).

Strikes in the Coal Mines and on the Docks at Marseilles.

See (in this Volume)

Labor Organization:

FRANCE: A. D. 1902.

FRANCE: A. D. 1902 (October).

Treaty with Siam.

Acquisition of more territory.

See (in this Volume)

SIAM: A. D. 1902.

{275}

FRANCE: A. D. 1903.

Elections to the Senate.

Execution of the Associations Law.

Closing of Schools and Houses of the Religious Orders.

Resistance and Rioting encouraged by Magistrates.

State Monopoly of Education established.

Building new Schoolhouses.

Elections for a section of the Senate, occurring early in January, 1903, went favorably for the Government. M. Fallières was reëlected President of that body, while M. Bourgeois was seated again in the presiding chair of the lower Chamber. The Combes Ministry was strengthened in its hold of power by the continued agitation that attended the execution of the Associations Law as applied to the religious orders and brotherhoods.

See in Volume VI. of this work,
FRANCE: A. D. 1901.

Its support was a shifting one, made up sometimes by one combination of the many party divisions in the Chambers and sometimes by another; but it did not fail throughout the year to find somewhere a majority that would not allow a political crisis to be brought on. Everywhere the closing of the schools and houses of the unauthorized associations was resisted with increasing determination, and the proceeding became too much retarded to satisfy the supporters of the law. Objection was raised to the separate dealing with questions of authorization for this and that order or congregation, and the Government was called upon to name at once to the Chambers the whole list of institutions which it would have authorizations refused to. In March this demand was acceded to, so far as concerned the male congregations, and a great debate, of a fortnight's duration, in the Chamber of Deputies, resulted in the refusal of authorization to all the teaching, preaching, and contemplative orders, of Redemptorists, Capuchins, Benedictines, Dominicans, and Passionists. A few months later the same entire refusal of authorization to the teaching orders of women was voted, but by a diminished majority.

The Clericals, on their side, were as energetic as the parties of the Government, and were supported very generally by the magistracy of the country at large, which dealt so leniently with the resistance and rioting provoked by the enforcement of the law that the Government was left practically dependent on the army and the police. The army, too, was a doubtful instrument of authority in many cases, numerous officers of all grades resigning to escape the repugnant mandate of law. The most threatening situation arose in Brittany, consequent on the inauguration of a monument to Renan, which the Catholics regarded as an insult to the Church.

One final step in the secularizing of education in France was taken late in the year, by the passing of a bill which practically established a State monopoly of education, by repealing a law of 1850 that abolished such monopoly. By the new law all members of any religious order, authorized or unauthorized, were forbidden to engage in teaching.

The extent to which the schools of the religious congregations were being closed involved a great expenditure for building new schoolhouses, and the Government had difficulty in passing an Act which laid the cost of this provision on the communes, instead of accepting it for the state at large. It carried the Act, however, notwithstanding the opposition of M. Waldeck-Rousseau.

FRANCE: A. D. 1904.

Rivalry with England in the Persian Gulf.

See (in this Volume)

PERSIA: A. D. 1904.

FRANCE: A. D. 1904 (April).

The Agreements of the Entente Cordiale with England.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

FRANCE: A. D. 1904 (June-July).

Groundless charges against the Premier.

A great public scandal was raised in June by charges against the Premier, M. Combes, that he had tried to force the Chartreux monks to buy the right of remaining in France. Investigation showed that bold swindlers had attempted to obtain money from the monks on the pretence of being able to buy such permission for them. As the result of the investigation the President of the Council and his colleagues

were vindicated by an almost unanimous vote of the Chamber of Deputies.

FRANCE: A. D. 1904-1909.

General Consequences in Europe of the Weakening of Russia in the Russo-Japanese War.

See (in this Volume)

EUROPE: A. D. 1904-1909.

FRANCE: A. D. 1905.

Action with other Powers in forcing Financial Reforms in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

FRANCE: A. D. 1905-1906.

The Separation of Church and State.

Preceding Contentions.

Measures and Proceedings of the Separation,
as recounted by writers of each Party.

The separation of Church and State in France involved the nullification of the Concordat, negotiated by Napoleon I. with Pope Pius VII. in 1802, and of what are known as the Organic Statutes, promulgated by the French Government at the same time.

See (in Volume IV. of this work)

PAPACY: A. D. 1808-1814.

The former was in the nature of a treaty; the latter was not. The French Government claimed rights under both; the Roman Church acknowledged no force in the Statutes that could be binding on itself. This difference, which entered into much of the controversy preceding the measures taken by the Government

to separate the State from the Church, is explained in the first quotation below,—following which, two accounts are given of some among those controversies, and of the proceedings connected with the adoption and execution of the Act of Separation,—one account written from the view-point of the Government and the other from that of the Church:

"The Concordat consists of a preamble and seventeen statutes. It is a reciprocal contract between the temporal and spiritual powers, and is therefore at the same time State law and Church law. The preamble states that the Catholic, Apostolic, and Roman religion is that of the great majority of the French people; it does not say that it is 'the religion of France,' as the Holy See would have wished, and consequently it does not restore to the Catholic religion its former character of being a State religion. After establishing a new distribution of the French dioceses, it directs that the bishops shall be 'nominated' by the Government and 'installed' by the Pope. The alienation of ecclesiastical property, effected by the Revolution, is definitely sanctioned. In return the Government undertakes, as had already been done by the Constituent Assembly, to secure 'a reasonable allowance to the bishops and curés, whose dioceses and parishes will be included in the new arrangement,' and to take 'measures to allow French Catholics to make foundations in favour of churches if they wish.'

{276}

"As regards the Organic Statutes, promulgated at the same time as the Concordat, 18th April, 1802, they proclaim that no bull, pastoral letter, or writing of any kind from the Holy See shall be published in France without the authority of the Government; no council, general or special, shall be held without this authority. There must be no other delegate from Rome in France besides the Nuncio, the official representative of the Sovereign Pontiff. Any infraction on the part of the clergy of the provisions either of the Concordat or of French

law is referred to the Council of State, who must decide if there has been any abuse. The Organic Statutes were equally concerned with questions relating to discipline, doctrine, and even dogma—which are purely spiritual questions. They therefore not only upheld the Declaration of 1682 as a declaration of the principles of the Gallican Church, but also expected all the professors to teach it in the seminaries. According to the Concordat, bishops had a right to appoint curés; the Organic Statutes obliged them to obtain the approval of the Government for their appointments.

"Although the Organic Statutes are, with the Concordat, part of one and the same State law, they must not be considered to be entirely on the same footing. The Concordat concluded between the two powers binds them together; the Organic Statutes, an exclusive product of the French Government, never received the sanction of the Papal authority. They were, on the contrary, a source of further quarrels with the Roman Court. Even in our days, they frequently lead to conflict, the representatives of the Church having refused, on various occasions, to recognise the validity of decisions made in virtue of these Statutes by the French Government."

***Jules Legrand,
Church and State in France
(Contemporary Review, May, 1901).***

FRANCE:

Measures and Proceedings of the Separation as recounted by its Advocates.

"The action of the Republic in suppressing the religious orders had produced strained relations between it and the Vatican. This was intensified by the 'nominavit nobis' controversy. In the Bulls instituting some bishops whom the President had nominated, and which had to have the sanction of the Government before they could be published and be valid in

France, the Vatican had inserted the word 'nobis,' implying that the President had merely nominated the bishop to the Pope for appointment and that the appointment was really in the hands of the Pope. The French Government, under the guidance of M. Combes, the Premier and Minister of Public Worship, insisted that this word must be removed before the bull was sanctioned, and as both sides refused to yield no bishop was instituted. Relations were still further strained by the visit of the President to the King of Italy. ... To visit the King was to insult the Pope by disregarding the protest made by him against the occupation of Rome. President Loubet was the first Roman Catholic ruler who ventured to disregard the feelings and protests of the Pope. From the 24th to the 28th April, 1904, M. Loubet was the guest of King Victor Emmanuel, and gave no intimation to the Pope of his intention to visit Rome, and did not include a visit to the Vatican in his programme. On the 28th of April, Cardinal Merry del Val sent to the representatives of the Curia at the Courts of all the Roman Catholic powers in the world, to be communicated to the Governments to which they were commissioned, a protest against the action of the French Government. ... The French Government replied by recalling its ambassador from the Vatican and breaking off diplomatic relations with the Pope.

"In the summer of the same year the friction between the French Government and the Vatican was increased by the cases of the bishops of Laval and Dijon. Bishop Geay of Laval, in his opening discourse in his cathedral, had proclaimed his adherence to the Republic and his desire to be the shepherd of all his flock. He denounced Orleanism and refused to support reactionaries at the elections. ... He was summoned to appear at Rome. He submitted the summons to the Government, as he was required by the Organic Articles to do, and he was refused permission to leave his diocese. Subsequently, under threats of excommunication, he went, and was immediately informed by the Minister of Public Worship that his salary was stopped from the day he left his diocese without permission. A similar

summons to Mgr. Le Nordez, Bishop of Dijon, led to similar results. ...

"In the month of October, 1904, M. Combes, replying to several interpellations addressed to the Government, reviewed the history of the relations of the Vatican to the Republic since its foundation in 1870, and showed that there had been a continuous disregard of the Concordat and of the Organic Articles by the Vatican, and that clericalism had been the most inveterate enemy of the Republic. He showed that no stipulations could safeguard the rights of the State, which were denied by the doctrines of the Catholic Church. The confidence of the Chamber was expressed by a vote of 548 to 88. In November he introduced a Bill for the separation of Church and State, which was referred to a Commission, by which it was adopted on the 2nd December. In the middle of January, 1905, M. Combes, owing to resentment at certain incidents in connection with the administration of the army, carried a vote of confidence by a majority of only ten votes and resigned. Before the end of the month a new Cabinet under the presidency of M. Rouvier, retaining several members of M. Combes' administration, was formed, which asserted its determination to carry out the policy of its predecessor in its relations with the Vatican. The Chamber of Deputies referred to a new Commission all the Bills dealing with the question of Church and State which had been presented to it, including that of M. Combes. Instead of adopting any one of them, the Commission decided to draft its own Bill, and shortly afterwards presented to the Chamber a Bill which engaged the close attention of the deputies for several months in the spring and summer of the year 1905. It passed through the Chamber on the 3rd of July, and was sent to the Senate the following day. ... The Senate made no alterations in the Bill, and it became law on the 6th of December, 1905."

John A. Bain,
The New Reformation, chapter 17

(T. and T. Clark, Edinburgh, 1900).

{277}

"The law of the 9th of December, 1905, which put an end to the regime of the Concordat and substituted that of separation between Church and State, had been promulgated on the 11th of December, 1905. It was to come into effect a year after its promulgation. The Protestants and the Israelites had accepted it even before it was passed; but they represented an infinitesimal minority, and it was not that minority that the legislators had had in view when they framed the law of separation. The one question in the matter was that of the attitude that would be taken by the Catholics,—the counsels that would come to them from Rome.

"In the French Episcopate there were two opposing currents of opinion, one for acceptance of the law, under certain reserves, the other for resistance. In the latter part of November, 1905, some bishops met in Paris and agreed that energetic efforts must be made to prevent action at Rome on misinformation as to the situation of the Church in France and the state of mind prevailing in it. Monseigneur Fulbert Petit, Archbishop of Besançon, was their chosen envoy, and in the following January he repaired to Rome. There he met other bishops who had come to give counsels to the Pope that were not pacific; and he met, also, the Père Le Doré, former superior of the dissolved congregation of the Eudistes, well known for his uncompromising opinions and his aggressive temper, but who had been commissioned to convey to Rome the proceedings of the meeting of French cardinals at Paris, on the 28th of December, which showed a majority in favor of the acceptance of the law. At the same time, an important meeting of bishops was held at Albi, under the presidency of Monsignor Mignot, the majority at which meeting, notably the Archbishop who received them and the Archbishop of Toulouse, Monsignor Germain, made no secret of their desire to adjust themselves

to the law, according to the expression of Cardinal Lecot.

"But nothing said or done drew the Pope from the silence which he kept. Then it was rumored that the head of the Church would reserve his decision until a general assembly of the French episcopate, which the French cardinals had advised, could be held, to propose a solution of the question. This, however, was contradicted positively by the party which urged resistance to the law.

"Such was the situation when the Government, obliged to act,—since the period of delay fixed by the law was only a year,—came to the first proceedings which the Act prescribed. Article 43 of the law provided for administrative rules, of which the part relating to inventories appeared logically the first, that being the operation which needed consideration before all others. The second part of the regulations had to do with the life pensions and temporary provisions accorded to the ministers of religion. The regulation concerning pensions and provisions was published in the *Journal Official* of January 20, 1906. [Article 11 of the Act assigned to priests or ministers of more than sixty years of age, who had been not less than thirty years in an ecclesiastical service salaried by the state, a yearly life pension of three-fourths of their former stipend. To those under sixty years of age and above forty-five, whose service had been for less than thirty years but not less than twenty, it assigned one-half of their previous compensation.] ...

"The first executive act imposed on the Government was the inventorying of the property, movable and fixed, belonging to the State, to the departments or to the communes, of which the establishments of public worship had had the use. Article 3 of the law required this to be proceeded with immediately after its promulgation. This article had been voted in the Chamber and in the Senate by very large majorities, and, so to speak, without discussion, so rational and judicial it seemed to be.

In fact, as the existence of the public establishments of worship came to an end with the regime of the Concordat, the succession to them was left open, and an inventory, descriptive and estimative, of their property, was a necessary measure preliminary to any devolution of such property, dependent on that succession. ... Being one of those conservative measures which attack no right and leave a continuous state of things, there was no expectation of much feeling about it among Catholics. ... Apparently, the consistent attitude on the part of Catholics, provisionally, at least, and until the Pope had spoken, would be one of calm, of prudence, of expectancy. Such was the purport of the instructions given by the bishops, even by the most combative. These latter, while condemning the law with vehemence, did not counsel a recourse to force against the agents appointed to make the inventory. They required but one thing of their priests and of the administrators of parish property, which was that they should not coöperate in the work, and that they should make declaration that their non-resistance did not imply acceptance of the law.

"On the 29th of December, 1905, a first decree for regulating the procedure was issued by the Council of State. This was followed by a circular from the Minister of Finance which, it must be confessed, roused a justifiable feeling among the Catholics. From one phrase in that circular it could be understood that the officials making the inventory were authorized to demand the opening of the tabernacles. M. Groussau questioned the Minister on the subject, and M. Merlou cleared away all misunderstanding by replying that officials were to accept the declaration of the curé of a church as to the contents of its tabernacle; and that they had been instructed to avoid everything that could give pain to pious minds. The Abbé Gayraud recognized that these decisions of the Government were in conformity with the instructions of the Cardinal Archbishop of Paris, and the interpellation was withdrawn.

"The inventories were begun at once after this decision of the question of the tabernacles. At first there was no disorder. The bishops, notably those of Toulouse, of Rouen, of Albi, of Besançon, of Arras and Chartres, and their curés, from their example, confined themselves to the reading of a protestation to the receiver of the registration, after which the receiver was left free to fulfil his mission. But soon, in some dioceses, particularly in Paris, in the West, and in one part of the Center, the inventorying was made the pretext for demonstrations more political than religious, organized by enthusiasts or by political cliques. Generally the clergy were passively present at these demonstrations. ...

{278}

These tumultuous manifestations, at the head of which the most conspicuous personalities of the reactionary opposition were often seen, ended by degenerating into veritable riots, necessitating the intervention of troops, and leading finally to bloody conflicts."

René Wallier,
Le Vingtième Siècle Politique, Année 1906,
pages 123-132.

It was not until the 17th of February that the silence of the Pope on the matters that were agitating France and the Papal Church was broken. Then the "Encyclical Vehementer," so named, according to custom, from its first word, was published.

FRANCE:

Measures and proceedings of the separation as recounted by opponents.

"In the first period of his premiership M. Combes was not prepared either to denounce the Concordat or to separate the churches from the State, simply because he found public opinion not yet ripe for either measure. Later he thought he

saw in adopting this course a means of prolonging his official existence, a matter of considerable importance to a country doctor like himself without large private resources. Having slaughtered nearly all religious congregations or prepared their ultimate extinction, Combes appeared to seek no further occupation for himself and to fortify his position by attacking the Church itself, whose secular clergy he had so recently praised and sought to protect from unfair and 'unjust concurrence or competition with the regulars!' Like Waldeck-Rousseau, Combes saw here an opportunity to 'save' the Republic from 'clerical reaction.' Throughout its whole discreditable history this third Republic of France has only been kept alive by being periodically 'saved' by some clever politician from 'perils' conjured up to terrorize the peasantry, who still recall the misery of their ancestors in the old *régime* and the misfortunes of France in the downfall of the first and second Empires. ... The Pope protested, in March, 1904, against the bad faith and infamous aggressions of the French Government in the matter of religious education and those imparting it, and M. Delcassé, through the French Ambassador at the Vatican, protested against the Papal protest. In the following month M. Loubet, as President of the French Republic, visited the King of Italy at Rome, at the same time politely, but significantly, ignoring the existence of the Pope and the Vatican, at which court France then had accredited an Ambassador! Then followed the protest of the Vatican, addressed directly to the French Government, and the protest simultaneously sent to all the powers where Papal Nuncios are in residence. ...

"In March, 1904, had arisen the trouble in the Diocese of Dijon, France, which culminated in students of the diocesan seminary refusing to receive ordination from the hands of the Bishop, Monsignor Le Nordez. The Bishop of Dijon was, unfortunately, not the only one of the French episcopate claiming to be a 'victim of hatred, deceit and calumny.' Almost from the commencement of his episcopate Monsignor Geay,

Bishop of Laval, was attacked by accusations filed at Rome, charges which were examined into during the Pontificate of Leo XIII., and which led the Holy Office to advise the Bishop to resign his see. It was then (in 1900) thought at Rome that in the local conditions actually then existing it was impossible for Monsignor Geay to govern the diocese with the necessary authority and efficacy. Monsignor Geay agreed to resign, provided he received another bishopric in France. This condition appeared unacceptable to the Vatican, but no further action was taken in this case until May 17, 1904, when by order of Pius X. the request for the Bishop's resignation was renewed, and in case it was not forthcoming within a specified time an ecclesiastical trial was intimated as inevitable. Notwithstanding the secret and private character of this last letter emanating from the Holy Office, Monsignor Geay communicated its contents to the French Government. Combes and Delcassé, jealous of the prerogatives of the French State and presumably caring little for the honor of the French episcopate, notified Cardinal Merry del Val (by the acting Charge d' Affaires) 'that if the letter of May 17 is not annulled the government will be led to take the measures that a like derogation of the compact which binds France and the Holy See admits of.' The Papal Nuncio at Paris explained to M. Delcassé that this was not a threat of deposition of the Bishop without a decision of the French Government, but an invitation to the Bishop to meet the charges by a voluntary resignation.

"As regards Monsignor Le Nordez and Monsignor Geay, respectively Bishops of Dijon and Laval, their long hesitation between the wishes of the French Government and the will of the Holy See ended by the departure of both of them for Rome. The government then promptly suppressed their salaries and after they had (under virtual pressure) placed their 'voluntary resignation' in the hands of the Holy Father, an allowance from the funds of the Vatican was made to each of them. They have since lived in France in a retirement, varied

at first by interviews of Monsignor Geay with reporters that have since happily ceased. The severance of diplomatic relations with the Vatican was completed by a note from M. Delcassé to the Papal Nuncio at Paris stating that in consequence of the rupture of diplomatic relations between France and the Vatican 'the mission of the Nuncio would henceforth be deprived of scope.' In the parliamentary session of November 26, 1904, the credit for the Embassy at the Vatican was stricken from the budget. ...

"After the downfall of Combes, through the odium attaching to his spy system, the Minister of the Interior and of Public Worship presented to the Chamber of Deputies on behalf of the Rouvier Ministry a project of law to establish the separation. If for Combes separation had signified little else than spoliation, aggravated by oppression, the Rouvier plan sought to render spoliation less unjust, less intolerant. The ministerial project having been somewhat altered by the commission, conferences were held and a final agreement having been obtained, the proposed law was reported to the Chamber of Deputies in March, 1905. It is unnecessary to follow the parliamentary evolution of this immature project, forced as an issue by two successive Premiers who had far less solicitude for the permanent interests of their country than to assure their own continuance in power. M. Briand, speaking for the commission, took great trouble to throw upon the Pope the responsibility of a law which he at the same time declared to be perfectly good, beneficent for the Republic and honorable for its authors! Alas! for separatists, in an unguarded moment Combes betrayed the utter falsity and ridiculous insincerity of this pompous and solemn pretence of the anti-religious majority, that the Pope forced the separation upon France. In the parliamentary session of January 14, 1905, Combes declared: 'When I assumed power I judged that public opinion was insufficiently prepared for this reform. I have judged it to be necessary to lead it to that.'

"When the law of separation, as finally adopted in the Chamber of Deputies, was referred to the Senate, the Senatorial commission, under ministerial pressure, adopted the law as passed in the Chamber, without change of a single word. Although the law was the most important of any passed in France for a hundred years, and though it is fraught with grave influences upon the destinies of the country, this hastily matured, ill-framed measure, with all its unjust and vexatious provisions, was swallowed whole by a commission of cowardly, truckling Senatorial politicians, who disregarded their plain duty at the dictation of Radicals and Socialists on the outside. Separationists both in and out of Parliament were eager to see the law become operative before the universal suffrage of France could have an opportunity of passing judgment upon the principle of the separation in the parliamentary elections of May, 1906. ...

"In the Papal Consistory of December 11, 1905, the Pope pronounced an allocution protesting against the law of separation in mild and temperate language, announcing his intention of again treating upon the same subject 'more solemnly and more deliberately at an opportune time.' The Holy Father evidently waited for the regulations of public administration that would indicate in what manner the Government of France intended to administer and enforce the law. ...

"Immediately after the adoption of the law of separation the government appointed a special commission to elaborate rules of public administration by which the law was to be interpreted and applied. This commission being stuffed with the anti-religious element, its work was worthy of its authors. ... The first details of the regulations officially promulgated governed the taking of inventories of all movable and real property of churches, chapels and ecclesiastical

buildings, including rectories, chapter houses, homes of retreat for aged and infirm priests (even pension endowments), etc., ostensibly to facilitate the transfer of these properties to such associations for the maintenance of public worship as might be formed under the provisions of the law of separation. These inventories were imposed upon all religious bodies—Catholic, Protestant and Jewish—and the law was made applicable to Algiers, where there is a large Mahomedan population. Viewed in the abstract, the taking of inventories was a formality necessary to an application of principles inscribed in the law. As estimates of value such inventories are worthless, because compiled by agents of the administration of Public Domains or treasury agents, unaided by experts in art, architecture and archival paleography. The Director General of the Register prescribed to agents taking these inventories a request for the opening of tabernacles in churches and chapels to facilitate completeness and accuracy. This order aroused a storm of indignation throughout France and the government realized that a stupid blunder had been made, and it was announced that agents would content themselves with gathering and incorporating into their report declarations of the priests upon the nature and value of sacred vessels contained in the tabernacles.

"The taking of inventories of churches and their contents commenced simultaneously in many parts of France in the latter part of January, 1906. Instead of the simple formality hastily accomplished without general observation, of which separatists had dreamed, this proceeding was characterized in various places by scenes of the wildest disorder. When officials of the Registry presented themselves for the taking of the inventories, the clergy, surrounded or attended by trustees of the building, read formal protests against what most of them styled 'the first step in an act of spoliation.' ... If these protests had not been accompanied by physical violence, the country might have been spared the shocking scenes that took place in Paris and the provinces. In many churches free fights

took place between militant Catholic laymen, opposed to an inventory, and police, firemen and troops, who burst open the doors of churches or broke them down with fire axes in order to make an inventory possible. While at the doors chairs and fragments of broken confessionals were flying through the air, pious women within sang:

‘We will pray God that the Church may be able to teach the truth, to combat error which causes division, to preach to all charity!’”

***F. W. Parsons,
Separation of Church and State in France
(American Catholic Quarterly Review, July, 1906).***

FRANCE: A. D. 1905-1906.

The Morocco Question.

Sudden hostility of Germany to the Anglo-French Agreement.

Demand for an International Conference.

The Conference at Algeciras.

The resulting Act.

See (in this Volume)

EUROPE: A. D. 1905-1906.

FRANCE: A. D. 1905-1906.

Claims against Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1905-1906, and 1907-1909.

FRANCE: A. D. 1906.

President Fallières succeeds Loubet.

Fall of the Rouvier Ministry.

Rise of M. Clemenceau.

The Elections of May.

Conformity to the Separation Law prohibited by the Pope.

Sequestration of Church Property.
The Socialists and the Bourgeois.
Justice at last to Dreyfus.
Honors to Picquart.

The presidential term of M. Loubet, who had been elected on the 19th of February, 1899, would expire on the 18th of February, 1906. M. Loubet declined a reelection, and M. Fallières, the chosen candidate of the various groups of Republicans, was elected President of the French Republic at a joint session of the two chambers of the National Assembly, on the 17th of January, by 449 votes of a total 848. The new President was inducted into office on the 18th of February, and, according to usage, was offered the resignations of the existing Ministry, under M. Rouvier, which, however, he did not accept. M. Rouvier and his colleagues continued in office until the 7th of March, when a vote in the Chamber of Deputies which expressed want of confidence compelled a resignation that could not be declined.

{280}

The new Ministry then formed, and announced on the 14th, was nominally presided over by M. Sarrien, President of the Council and Minister of Justice, but its real chief was known to be M. Clemenceau, Minister of the Interior. Other important members of this Cabinet were M. Bourgeois, Minister of Foreign Affairs, and M. Aristide Briand, Minister of Public Instruction and of Worship. Sarrien and Bourgeois were classed politically as Radicals, Briand as a Socialist, and Clemenceau as a Socialist-Radical. The Ministerial declaration read in both chambers on the 14th was criticised as colorless, and as indicating an incongruity of political material in the make-up of the administration. On the burning question of the execution of the law for the separation of Church and State its language was:

"The law on the separation of Church and State has met, in the execution of the provisions relating to the inventories, a resistance as unexpected as it is unjustified. There is no one among us who wishes to assail in any manner whatever the freedom of religious belief and worship. The law will be applied in the same liberal spirit in which it was adopted by the Parliament. ... But it is our duty to insure the execution of all laws throughout the land. Under a republican government the law is the highest expression of national sovereignty; it must everywhere be respected and everywhere obeyed. The Government intends to apply with all necessary circumspection, but with inflexible firmness, the new legislation which certain parties of opposition strive vainly to misrepresent."

On the 14th of April the Chamber of Deputies was adjourned *sine die*, and fresh elections to it were to be held in May. "The seventh legislature held under the Constitution of 1875 came to an end amid a domestic confusion unparalleled in France since 1871. In the Nord and the Pas de Calais there were miners' strikes, at Clermont-Ferrand strikes in the building trade; at Lorient and Toulon there was a general strike, and there were strikes also at Alais and Bordeaux. At Paris the compositors, the excavators and the railway men on the Metropolitan had left work, and the postmen also had joined the movement, though they were servants of the State. M. Clemenceau paid two visits to Lens to treat with the strikers; following his example and by his orders the magistrates, officers and soldiers exhibited admirable coolness as well as energy in controlling the excited crowds without resorting to force. ... Attempts were made to form what were virtually revolutionary governments, and these announced openly that on May 1, capitalism would be assailed, a general strike proclaimed in Paris, and the Government swept away if it showed signs of attempting to interfere. These threats set up an unprecedented panic, which was intensified by the measures taken by the Government to get rid of it. Troops guarded the Metropolitan Railway workshops, the printing

establishments, the bakeries. All the cavalry and infantry available were concentrated at Paris, and schools and empty houses taken up for their accommodation."

Annual Register, 1906,
page 270.

In the midst of these distractions the political canvass for a new representation of the Republic in its legislature was carried on, and the elections were but slightly disturbed. They went so sweepingly in favor of the Government that only 176 seats in the Chamber, out of 589, were carried by the opposition. The victory of the Government was more complete and decisive than the most sanguine had expected. Said a writer in *The Fortnightly Review*:

"It is the end of the long struggle between the Republic and its internal enemies, those Emigres de l'intérieur as M. Paul Sabatier has happily called them. The political power of the Church is broken forever; the parties of reaction are finally crushed, and their future will be that of the Jacobites after Culloden. ... It may perhaps be useful to record the relative strength of parties in the new Chamber as compared with the old. Precise accuracy is difficult, owing to the uncertainty as to the exact group to which a few of the deputies should be attributed, but the following figures are as near exactitude as possible:—

New

Chamber. Old Chamber.

Ministerialists: (The **Bloc**):--
Republicans of the Left
(Alliance Démocratique
and Gauche Démocratique)

	Radicals	
117		98

	Radical-Socialists	
132		119

	Independent Socialists	
20		14

	Total	
359		314

	Unified Socialists	
54		41

	Opposition:—	
	Republicans of the Centre	
	(Union Républicaine and Progressists)	
68		97

	Nationalists	
30		53

	Conservatives and Clericals	
78		84

	Total	
176		234

"But the mere figures do not bring out the full significance of the election. Even more important than the fact that only

108 Clerical and Nationalist deputies were returned is the fact that these 108 represent, with very few exceptions, the most ignorant and backward districts in France. Immediately after the election the *Matin* published an electoral map of France, in which the districts represented by Opposition deputies were left white. It is an instructive document. The whole of central France is a solid mass of black, in the north and south the white spots are few and scattered, in the east black very greatly predominates; only in the west is there any conspicuous show of white."

***Robert Dell,
France, England, and Mr. Bodley
(Fortnightly Review, September, 1906).***

Manifestly the majority in France approved the severance of religious institutions from the political organization of the State. In recognition of the fact, the General Assembly of French Bishops, sitting soon afterwards at Paris, petitioned the Pope, by the vote of a large majority, to permit the forming of Public Worship Associations under the Separation Law. The papal reply, given late in the summer, was a new Encyclical, formally forbidding French Catholics to form such Associations for taking the offered use of the church buildings and property, as provided for continued exercises of religion by the law. A little later the prohibition was carried farther, and French Catholics were forbidden to conform to the Associations Law of 1891, as well as to the Separation Law.

{281}

There seems to have been a disposition in the Government to extend, from one year to two, the period allowed for conformity to the latter enactment; but this attitude on the part of the head of the Church dispelled it. Accordingly, on the 11th of December, 1906, when the term fixed by the law expired, sequestration of the property of the vestries was pronounced, and buildings occupied in connection with the

churches by bishops, rectors, seminaries, etc., were ordered to be vacated with no further delay.

Before matters reached this stage M. Sarrien had resigned, on account of ill health, and the premiership had passed to Clemenceau. The Cabinet underwent a degree of reconstruction soon afterwards, and the upright, courageous Picquart, formerly Colonel, now Brigadier-General, who had stood so long almost alone in army circles as a champion of justice to the foully wronged Dreyfus, had been given the portfolio of War.

See, in Volume VI. of this work,
FRANCE: A. D. 1897-1899)

To Dreyfus himself the Republic had made all the reparation that it could. On the 12th of July in this year its highest court had pronounced a decision which branded with falsity and forgery every document and the whole testimony on which he had been convicted, and declared that "the accusation against Dreyfus was completely unjustified." Thereupon he was reinstated in the army with the rank of major, and not many days later, on the spot where the ceremony of his degradation had been performed, in 1894, he received the insignia of a Chevalier of the Legion of Honor.

In the May elections for the Chamber of Deputies the Socialists had been heavily reinforced, and their most strenuous leader, M. Jaurès, was inspired to say in his journal, *L'Humanité*:

"There is no more time to be lost. This time we must give the finishing blow to the Reaction, to all parties of the past, to Clericalism and Cæsarism. After clearing the battleground of all its litter, the Proletariat must be able to say to the face of the Republican Democracy, the Radical Democracy which at last is master of public power: 'What are you going to do for workmen? What reforms, what guarantees, are you going to

give them? How are you going to help French society out of the deep crisis in which it struggles? How, by what organization of Property and Labor, will you put an end to the exploiting of men, to the war of classes let loose by the Capitalist form of property?" Quoting these words, soon afterwards, a writer in *The Atlantic Monthly* remarked:

"Such words are not the mere rhetoric of a Parliamentary dictator who has just suffered a year's eclipse in the retrograde combinations given to the Radical majority by Prime Minister Rouvier. Almost physiologically, certainly socially, the millions of French workmen stand over against property-holders in a way to which there is nothing comparable in the Northern and Western United States, with all their labor difficulties. They form a separate class in society, because French property-holders form an exclusive caste. It was the middle classes, the property-holding bourgeois and the peasant proprietors bound up with them, who profited by the great Revolution against the privileged classes of that day,—royalty, clergy, and nobles. During the century which has elapsed the triumphant bourgeois have steadily persisted in throwing around themselves a practically impenetrable wall of legal and social privilege in their turn. And now there is a spontaneous upheaval of the excluded, unprivileged, inferior class."

***Stoddard Dewey,
The Year in France
(Atlantic Monthly, August, 1906).***

Mainly, it appears, from the prompting and the influence of the Socialist and Labor organizations, France obtained, in 1906, a law making Sunday a day of rest from most descriptions of industry and commerce, exceptions being made to allow travel and transportation companies, lighting and water works, newspaper offices, and some other performers of public services, to continue their operations, while hotels,

restaurants, wine shops, drug stores, and the like, were exempted from closing their doors.

See (in this Volume)
SUNDAY OBSERVANCE.

FRANCE: A. D. 1906.
Woman Suffrage Movement.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

FRANCE: A. D. 1906.
The Thrift and consequent loanable Wealth of the country.
The power that it makes for peace.

"In the world at large, however, France has also come to a consciousness of her real power. An English financier had already said that if the French people continue to live on the principle, 'where you have four sous spend only two,' they will end by having in their possession all the coined gold in the world. The great portion of it which they already possess, and the distress caused to German finance and industry by the patriotic refusal of the united French banks to allow their gold to be drawn until peace was secure, had a great and probably decisive influence in the happy termination of this entangled affair of Morocco. The floating of the latest Russian loan has since come to show yet further the riches of France, to which tourists alone, it is estimated, add two billion francs in gold each year. This money power and money need should tend to the keeping of European peace more than all the theories of the pacifists who clamor for a disarmament impossible to obtain."

***Stoddard Dewey,
The Year in France
(Atlantic Monthly, August, 1906).***

FRANCE: A. D. 1906.

Deposition of the insane King of Anam.

See (in this Volume)
ANAM.

FRANCE: A. D. 1906 (February).

The Papal Encyclical "Vehementer Nos."

See PAPACY: A. D. 1906 (February).

FRANCE: A. D. 1906-1907.

The Separation of Church and State.

Further measures and proceedings, as related from opposite
standpoints.

From the Separationist Standpoint:

"The practical question, what course the French Catholics were to adopt when the law should go into effect, was first answered by the pope in his encyclical *Gravissimo*, published August 10, 1906, eight months after the promulgation of the law. The gist of the document is in two sentences: 'After having condemned as was our duty this iniquitous law, we examined with the greatest care whether the articles of the aforesaid law would leave at least some means of organizing religious life in France so as to rescue the sacred principles upon which rests the Holy Church.' Having consulted the bishops, and addressed 'fervent prayers to the Father of Light,' the pope came to the following conclusion:

'As for the associations of worship, as the law organizes them, we decree that they can absolutely not be formed without violating the sacred rights which are the very life of the church.'

"Is there any other form of association which might be both legal and canonical? Pius X did not see any. Therefore, as long as the law remained as it was, the Holy Father forbade the French Catholics to try any form of association which did not promise, in an 'unmistakable and legal manner, that the divine constitution of the church, the immutable rights of the Roman pontiff and the bishops, as well as their authority over the property necessary to the church, especially over the sacred edifices, will be forever insured in those associations.' ...

"For this decision there were, from the ecclesiastical point of view, three grounds. One was the failure of the law of 1905 to recognize, in so many words, the authority of the ecclesiastical hierarchy. Another was the abrupt fashion in which the French government broke off its diplomatic relations with the Vatican. The fact that the government consistently ignored the pope during the drafting of the bill was a third.
...

"Under what regime the churches were to live was at first somewhat uncertain; but M. Briand speedily discovered in existing legislation all that was needed to insure the continuance of religious worship. He was willing to admit that the church was not obliged to avail herself of the privileges that the new law provided for her. Law imposes duties on citizens, but it does not force them to make use of rights or privileges. Everything that is not forbidden is lawful. ... The minister stated that the priests could make use of the churches after having filed such an application or declaration as is required for ordinary meetings by the law of 1881. These declarations would be valid for a whole year instead of for one meeting. But under this regime the priests would be simply temporary occupants of the buildings of worship without any legal title.

"This compromise proved no more satisfactory to the Vatican than the law of 1905. ...

"The pope refused to sanction this arrangement. He objected to the scheme of yearly declaration. In the first place he complained that this broad interpretation of the law on public meetings was merely a personal fancy of M. Briand which might not bind his successors. In the second place, the dignity of the priests did not allow them to accept the humiliating position of simple occupants of the churches. ...

"The government, however, could not leave several million Catholics in a position in which opportunity to perform their religious duties depended upon uncertain texts and the circulars of a temporary minister of worship. It therefore set out to draft a bill that would be acceptable to the church without any recourse to the discarded associations of worship. The new bill was submitted to Parliament December 15, 1906; was accepted by the Chamber December 21 and by the Senate December 29, and was promulgated January 2, 1907. ...

"Most of the privileges granted in the law of 1905 are withdrawn; and the law of associations of 1901, combined with the law of public meetings of 1881, forms the basis of the new regime. ...

"Of all the catastrophes prophesied or feared by foes or friends none has occurred. The new regime so violently attacked in and out of France is being gradually acclimated."

***Othon Guerlac,
The Separation of Church and State in France
Political Science Quarterly, June, 1908.***

FRANCE: A. D. 1906-1907.

The Separation of Church and State.

Further measures and proceedings, as related from opposite standpoints.

From the Standpoint of the Church:

"The third meeting of the French episcopate, held at the Château de la Muette, Paris, January 15-19, resulted in a declaration (approved by the Holy See) of their unanimous consent to essay the organization of public worship in churches to be placed at the Bishops' disposal free; an essential condition being a legal contract (authorized by Government) between themselves or their clergy and the Prefects or Mayors to whom such churches (sequestered in December) have been handed or will be handed over; the contract to be for a term of eighteen years, during which term (being fixed by the common law of municipal leases of communal properties) neither Mayors nor Prefects shall in any way interfere either in parochial administration or in regard to the conditions of occupancy of the edifices, which must be, as regards police, under control of the priest in charge, the mayor intervening only on grave occasions when his official duties require him according to law to re-establish disturbed order.

"This document, published on January 29, was immediately, with a form of contract, sent by each Bishop to the Parish priests in his diocese with a request to be informed immediately whether the proposed contract would be entered into by their respective mayors, and instructing them if possible to get it signed at once and return it to the Bishop. Of course, from every parish where Catholics are strong and zealous the signed contracts were quickly obtainable or obtained. But so soon as the Minister of Worship learned these proceedings, he circularized the Prefects of France on February 1:

"'You will shortly receive instructions concerning the application of the Article in the Law of January 2, 1907,

providing that free use of Communal buildings intended for worship, and of their fittings, may, subject to the requirements of Article 13 in the Law of 9 December, 1905, be accorded by an administration act of the mayors to the ministers of worship specified in declarations of worship-meetings. It is extremely urgent, to prevent mayors being entrapped into giving their signatures, that you should telegraphically warn them, they are not entitled to enter into a contract of this kind without preliminary deliberation by their municipal council, and that they should, pending the vote of that body, confine themselves, if asked for it, to giving an acknowledgment of receipt of any request for use of edifices they may have received. You will also assure them they shall at a very early date receive instructions defining the conditions to be observed to render such contracts valid, and will direct them to do nothing until those instructions reach them.'

"It is due to M. Briand to acknowledge: first, that he lost no time whatever in fulfilling this promise; second, that his new circular on the application of the law of January 2, 1907, which bears date Paris, February 3rd, and was published the following evening, lays down regulations concerning the leases of Churches and Communal Chapels which on the face of these are fair, reasonable, and likely to be universally acceptable.

{283}

The main conditions are, approval of the agreements by the municipal councils, failing which mayors cannot enter into them; maximum term to be eighteen years; the lessee (whether a curé, or a worship association) to keep the buildings in proper repair; leases for longer periods than eighteen years to be sanctioned by the prefect; that the curé acts by permission of his ecclesiastical superior may be stated in the lease, but such superior is not to be entitled in any way, once the document is signed, to interfere, or exercise authority. ...

"In Paris the appearance of the circular was hailed with satisfaction by Catholics and reasonable men. ... Cardinal Richard deems it proper and useful to direct his priests to make the declaration, after the contract is duly signed, and when His Eminence shall authorize them to make it. ...

"His Eminence lost no time in submitting to the Protestant prefect of the Seine, M. de Selves, a draft lease of the Paris Cathedral (Notre Dame) and the historical St. Denis Basilica. It was understood that, if settled and signed, this contract should serve as the model to be followed in the remaining eighty-five French dioceses. The Cardinal Secretary of State at the Vatican authorized these negotiations, against his personal judgment, without any illusions as to the result, simply to satisfy the French episcopate and a minority in the Sacred College. ...

"After negotiations extending over three weeks, the Prefect informed the Cardinal (in writing, on February 23) that His Eminence's proposals were unacceptable, but the government invited amended ones based on ministerial declarations made in the Chamber during a stormy debate on February 19, when M. Briand found himself forced to confess the churches were left open in view of the truth that a parliamentary majority had 'no right to hinder millions of Catholic compatriots from practising their religion.' The Cardinal Archbishop replied immediately that the text of the draft submitted embodied the extreme limits of possible concessions."

J. F. Boyd,

The French Ecclesiastical Revolution

(American Catholic Quarterly Review, January-April, 1907).

FRANCE: A. D. 1907.

Effects of the Separation Law.

The Catholics of France lose all Legal Organization.

"The Church Separation Law has failed to do the particular work for which it was voted by the preceding Parliament. Catholic citizens have chosen to undergo its penalties, with new pains and reprisals voted by the present Parliament, rather than accept that civil reorganization of their religion which it imposed on them. The result has been to deprive French Catholics, not only of the church property which had been restored to them after the confiscations of the Revolution, but also of all church property of whatever kind, even such as had since been gathered together by their private and voluntary contributions. It is impossible to foresee how they are legally to constitute new church property for themselves. By the automatic working of separation, Catholics, so far as any corporative action might be intended, are left quite outside their country's laws.

"The Associations Law had previously suppressed their religious orders and congregations, that is, all those teaching and other communities which combined individual initiatives into a working power for their religion. In virtue of that law, their convents and colleges and the other properties of such religious associations have 'reverted' to the State, which is gradually liquidating them for its own purposes.

"No example of temporal sacrifices for religion's sake on such a scale has been seen since Catholics in the France of the Revolution chose to lose all, in many cases life itself, rather than accept the schismatical civil constitution of their clergy, which was accompanied by a like nationalizing of all their church property."

***Stoddard Dewey,
The Year in France
(Atlantic Monthly, August, 1907).***

FRANCE: A. D. 1907.

Rapid Development of the Syndicalist Labor Union Movement.
The Confederation Generate du Travail.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1907.

FRANCE: A. D. 1907.

Popular Vote on the Greatest Frenchman of the
Nineteenth Century, awarding the distinction to Louis Pasteur.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907-1908.

FRANCE: A. D. 1907 (May-July).

The revolt of the Wine-growers of the Midi.

From various causes, the wine-growers of Southern France have suffered from an increasing decline in the market for their products. They attributed this wholly to the extensive manufacture of adulterated and counterfeited wines, though it came partly, without doubt, from the increasing use of beers and spirituous liquors among the French. The struggling cultivators of the grape, who could hardly obtain a living from their vineyards, accused the government of neglect to make and enforce effective laws for the suppression of the adulterating frauds. They demanded new measures for the suppression of all vinous beverages that were not the pure product of the grape. In the spring of 1907 their attitude became seriously threatening; for a leader named Marcelin Albert, having an eloquent tongue, a bold spirit, and a capacity for command, had risen among them. Alarming demonstrations of popular excitement occurred in the cities of Perpignan, Montpellier, Narbonne, and others.

Then, in May, the discontented people gave formal notice that they would refuse to pay taxes if all adulterate wine-making was not summarily stopped by the 10th of June. At the

appointed time the threat was even more than made good, for most of the municipal officers in the four departments of Gard, Aude, Hérault, and the Pyrenees Orientales resigned and the machinery of local government was dissolved. The troublesome situation thus created was handled ably by Premier Clemenceau. On one hand he secured new legislation from Parliament against wine adulteration, while promptly ordering troops to the region of revolt on the other. Marcelin Albert and another leader, Dr. Ferroul, Mayor of Narbonne, were arrested, and order was soon restored, though a few collisions with turbulent crowds were attended with some loss of life.

The new laws enacted for the occasion were intended in part to secure an annual record of the vineyard product of the country that would enable the Government to keep knowledge of it from the vine to the wine cask, and make fraudulent tampering with it more difficult, at least.

{284}

FRANCE: A. D. 1907 (September).

Convention with Great Britain concerning Commercial Relations with Canada.

See (in this Volume)

CANADA: A. D. 1907-1909.

FRANCE: A. D. 1907 (November).

Treaty with Great Britain, Germany, Norway, and Russia, guaranteeing the integrity of Norway.

See (in this Volume)

EUROPE: A. D. 1907-1908.

FRANCE: A. D. 1907 (November).

Treaty with England concerning Death Duties.

See (in this Volume)
DEATH DUTIES.

FRANCE: A. D. 1907-1909.

Operation in Morocco.
Bombardment of Casablanca.
Fresh irritation of Germany.
Arbitration of the Casablanca incident.
Dethronement of Sultan Abd el Aziz by his brother, Mulai Hafid.
Franco-German Agreement.

See (in this Volume)
Morocco: A. D. 1907-1909.

FRANCE: A. D. 1908.

North Sea and Baltic Agreements.

See (in this Volume)
EUROPE: A. D. 1908.

FRANCE: A. D. 1908.

The Situation of the Catholic Church since the Separation
of Church and State.
A Church Organization impossible.

"To question whether the Catholics in France, who have alone done more than the Catholics in any other nation for foreign missions and for the propagation of the faith, will succeed in maintaining the Church in their own country by private contributions, will perhaps arouse astonishment. Nevertheless it may be questioned. We do not doubt the generosity of our people, but that which does give us concern is the impossibility of organizing any revenue which can be permanent. ... The Church would be able to surmount the difficulty if she had endowments, revenues, or property, as in other countries. But that of course demands some regular organization, some corporation or some body recognized by the

laws of the country and capable of acquiring, possessing, and exercising ordinary property rights. We cannot state too emphatically that such an organization for the Church is not possible to-day in France. On one side the only body authorized by the law to look after the material side of the religious interests is the ***association cultuelle***, or local committee of public worship, as defined and regulated by the Law of Separation. On the other side, this ***association cultuelle*** has been declared by the Pope incompatible with the hierarchical constitution of the Church of Rome, and the bishops, the priests, and the Catholic laity, in obedience to their Supreme Head, have abstained and will continue to abstain from forming any such organization. Not only, then, have there been no Catholic ***associations cultuelles*** to receive from the state the portion of the former religious property (the half perhaps) which we might have kept; but there will be none in the future to receive a gift of any kind. In the eyes of the law there is no diocese, no parish, no corporation representing diocese or parish. The bishop and the pastor are only individual citizens, Messrs. So-and-So. They cannot hold property except as individuals, and what they might receive for religious purposes cannot be handed down to their successors,—it must revert only to their legal heirs. In brief, no permanent body whatever can provide for the maintenance of public worship.

"This is the situation with its almost insurmountable difficulties. In all probability it will be a long time before we escape from it."

***Felix Klein,
The Present Difficulties of the Church in France
(Fortnightly Review, April, 1908).***

FRANCE: A. D. 1908 (April).

Treaty with England, Denmark, Germany, the Netherlands, and Sweden, for maintenance of the Status Quo on the North Sea.

See (in this Volume)
EUROPE: A. D. 1907-1908.

FRANCE: A. D. 1908 (June).
Treaty with Japan, adjusting interests of each country
in the East.

See (in this Volume)
JAPAN: A. D. 1907 (JUNE).

FRANCE: A. D. 1908 (June).
Purchase of the Western Railway.

See (in this Volume)
RAILWAYS: FRANCE.

FRANCE: A. D. 1908-1909.
Operations in and around Morocco.
French Mauritanie.
Pushing French lines toward the West.

See (in this Volume)
MOROCCO: A. D. 1909.

FRANCE: A. D. 1908-1909.
Attitude on the question of the Austrian Annexation of
Bosnia and Herzegovina.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

FRANCE: A. D. 1909.
Socialism and the Socialist Parties.
The classes appealed to.
The leaders and the followers.

See (in this Volume)
SOCIALISM: FRANCE.

FRANCE: A. D. 1909.

A late awakening to the need of better Technical
and Industrial Training.

See (in this Volume)
EDUCATION: FRANCE: A. D. 1909.

FRANCE: A. D. 1909.

Coöperative Organization in Agriculture.

See (in this Volume)
LABOR REMUNERATION: COOPERATIVE ORGANIZATION.

FRANCE: A. D. 1909 (January).

Elections to one-third of the French Senate.
Success of the Socialist-Radicals.
Endorsement of the Clemenceau Ministry.

Elections to the one-third of the French Senate which goes out every third year were held on Sunday, the 3d of January, and resulted heavily in favor of the party which calls itself Socialist-Radical, holding a middle ground between the extreme Socialists and the Moderate Republicans. M. Clemenceau, the Premier, is of this party, and his administration had given it great strength. He was one of the Senators whose term had expired, and his constituents of the Var re-elected him by a majority of 390, 46 more than they had formerly given him. Of the 103 Senators chosen at this election the Socialist-Radicals and Radicals (who work together) won 60, giving them secure control of the Senate, where the Moderate Republicans had been holding the balance of power. The latter lost eighteen seats, while the Conservatives or Reactionists of the Right added 1 to the 4 they had previously held. The strength in France of a politically and practically restrained

sympathy with the economic ideas of Socialism was proved signally in this election.

FRANCE: A. D. 1909 (January).

Amended Convention with Great Britain concerning Commercial Relations with Canada.

See (in this Volume)

CANADA: A. D. 1907-1909.

FRANCE: A. D. 1909 (March).

Appointment of Abbé Loisy to the Professorship of the History of Religions in the College of France.

Early in March, 1909, the Abbé Loisy, most conspicuous of the "Modernists" who had been condemned and denounced by the Pope, was appointed by the Minister of Public Instruction to be Professor of the History of Religions in the College de France, filling the chair vacated by the death of M. Réville. The appointment had been recommended by the authorities of the College, which is reputed to be an institution entirely devoted to "disinterested scientific research." Nevertheless, the choice was looked upon at once as being prompted by a motive of offensive antagonism to the Papacy.

{285}

The Abbé has had distinction for years among the masters of the higher criticism, and five of his books were placed on the "Index" by the church in 1903. The propositions characterized as "Modernism" and condemned by the Pope in 1907 were largely drawn from his writings. The Abbé replied to the condemnation, and was excommunicated.

FRANCE: A. D. 1909 (March-May).

Serious strike of Government employés in the Telegraph and Postal Service.

Overcome by the firmness of the Government.

Disciplinary proceedings.

Court decision against Trade Unions among
employés of the State.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1909 (MARCH-MAY).

FRANCE: A. D. 1909 (March-June).

Report of Parliamentary Commission on the Naval Administration.
Alarming conditions.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

FRANCE: A. D. 1909 (April).

Reported reanimation of Clerical Anti-Republicanism.

"I learn on excellent authority," said an English correspondent of the Press, writing from Paris in April, "that the leaders of anti-clericalism in the French political world are becoming somewhat concerned as to the rapid recrudescence of the political religious orders, which, although suppressed, are somehow managing to reestablish themselves in France. As was recently pointed out by M. André Mater, in a Volume, 'La Politique Religieuse de la République Française,' published under the auspices of the 'Committee for the defence abroad of the religious policy of France,' the French monks, and not the French Bishops and priests, were almost entirely responsible for the Vatican's refusal to accept the three Separation Laws which M. Briand, the then Minister of Public Worship, framed in a conciliatory spirit towards the Roman Catholic Church, and often with the assistance of the French Bishops themselves. The French Government will certainly not allow the religious orders to revive the old campaign of anti-Republicanism, which has, in the opinion of many French Roman Catholics, done so much to compromise the interests of Roman Catholicism in this country."

FRANCE: A. D. 1909 (June).

Earthquake on the Mediterranean coast.

See (in this Volume)

EARTHQUAKES: FRANCE.

FRANCE: A. D. 1909 (June-July).

Revised Naval Programme.

Changes in the Department of the Marine.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

FRANCE: A. D. 1909 (July).

Discussion of the Navy Report in the Chamber of Deputies.

M. Clemenceau's outbreak of passion.

His flings at M. Delcassé resented by the Chamber.

He is driven from office by its vote.

His Successor, M. Briand, and the New Cabinet.

A Socialist Statesman at the head of the Government.

When the report of the Parliamentary Commission on the Navy and the Naval Administration came up for discussion in the Chamber of Deputies, in July, it brought about the overthrow of Prime Minister Clemenceau and his Cabinet in a singular way.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

The report itself had not been seriously threatening to the stability of the Ministry. Responsibility for the weaknesses found in the Naval administration belonged evidently, in large measure, to the predecessors of M. Clemenceau and his colleagues, and they were united in maintaining that M. Picard, who held the Marine portfolio, had done all that could be done since he came to office towards reforming his

department. M. Picard himself spoke with an aggressive boldness of self-justification in the debate. His speech, made on the 20th of July, called out M. Delcassé, president of the investigating Commission, who mounted the tribune and delivered an attack on the Government, fierce with the animosities of a long antagonism between M. Clemenceau and himself. This angered the Premier to a degree, apparently, which overpowered his usually clear judgment, and he retorted in a speech which taunted M. Delcassé with references to that Morocco affair in which he and France were subjected to mortifications at the hands of Germany.

See (in this Volume)
EUROPE: A. D. 1905-1906).

It is a matter on which sore feeling exists naturally in France, and concerning which the sympathy of the nation is with M. Delcassé. Hence the Chamber resented Clemenceau's allusions to it, and Delcassé was cheered when he made a passionate but dignified reply. The Premier would have needed to be blind if he did not see that his own party was against him in the tone he had given to the controversy; and yet he proceeded to a repetition of the taunt he had flung at his opponent before. What followed was thus described to the readers of the London *Times* the next morning, by its Paris correspondent:

"M. Clemenceau rose in face of a hostile Chamber, which had been profoundly impressed by M. Delcassé, although on entering the Palais Bourbon before the debate this afternoon not a single member of the House had contemplated the possibility of a division which would entail the fall of the Ministry and expose all parties to the necessity of readjustments of electoral arrangements under a new and untried Cabinet within less than a year of the general election. M. Clemenceau said:—

"‘M. Delcassé has taken a great deal of trouble not to reply

to the only question which I put to him—namely, you were Minister and you followed a policy which was bound to carry us to one of the greatest humiliations.’

"It seemed, as one gazed down upon the House, that the entire Chamber leapt as one man in indignant repudiation of this sentence, which, moreover, had been truncated by this spontaneous and concerted interruption. When the noise of the slamming desks had died down, M. Clemenceau was heard to say:

"‘Oh, a truce to false indignation, I beg of you. You led us, M. Delcassé, within a hair’s breadth of war and you did nothing to prepare for any such policy by taking military precautions. Everybody is aware that the Ministers of War and of Marine were questioned, and that they declared that we were not ready. (Loud protests.) I have not humiliated France, M. Delcassé humiliated her.’

"As M. Clemenceau returned to his place, there could be no doubt as to the temper of the House. A division was immediately announced on an order of the day of confidence, proposed by M. Jourde and accepted by the Government.

{286}

"The vote took place on priority in favour of this order of the day amid the liveliest agitation. By 212 votes to 176 priority was rejected. As soon as the President had read out the figures, M. Clemenceau and the Ministers rose, and leaving the Government Bench filed out into the lobbies. Loud cheers from the Right and the Extreme Left followed them to the door. It was the fall of the Ministry which has enjoyed the longest lease of life of any under the Third Republic.

"After holding a consultation at the Palais Bourbon, the Prime Minister and his colleagues immediately proceeded to the Elysee in order formally to tender their resignation.

President Fallières, who was at dinner and who had not heard the result of the vote in the Chamber, was taken by surprise and expressed regret at the departure of M. Clemenceau, with whom he had collaborated so long. The short interview, which lasted only ten minutes, concluded with a formal request on the part of the President that M. Clemenceau and his colleagues would continue to discharge the duties of their respective Departments until the appointment of their successors."

Though his colleagues went out of office with him, it was M. Clemenceau, alone, who could be said to have "fallen." Even that characterization of the occurrence was criticised by one of his opponents, who said: "M. Clemenceau did not fall; he plunged out of office." "The Chamber had no intention of upsetting the Government," said one of the Republican journals of Paris, "and an hour earlier, in fact, had loudly cheered the Minister of Marine, M. Picard." In these circumstances it was certain that the change of Ministry would make little change in the character or policy of the Government. It did, in fact, make no extensive change in even the personnel of the Ministry; for six members of the Cabinet of M. Clemenceau reappeared in its successor, and these included the new Premier, M. Aristide Briand.

The choice of M. Briand for leadership in the Government appears to have been made by a common consensus of opinion that he was the one man pointed to by all the circumstances of the case. As Minister of Public Worship he had shown a temperateness of disposition and a political capacity, in steering the country through the stormy achievement of the separation of the State from the Church, which won high admiration and esteem both at home and abroad. He had been known as distinctly a Socialist, according to the full meaning of the term in France, and had come into public life with the prejudices raised against that brand of radicalism to contend with. But he had given good proof that he could be practically

a statesman as well as theoretically a Socialist, and France appeared to be fully willing to see the helm of Government put into his hands. He is the first fully professed Socialist to attain that position in a great State. In making up his Cabinet he called into it two others of his own Socialist sect, namely, M. Millerand, to be Minister of Public Works, Posts, and Telegraphs, and M. Viviani to be Minister of Labor, as he had been before. For himself he retained the Ministry of Public Worship, and, with it, the Ministry of the Interior. Of other important departments of the Government, that of Foreign Affairs was reassumed by M. Pichon and that of Public Instruction by M. Domergue. General Brun became Minister of War and Admiral Boué de Lapcyrère, Minister of Marine. The Cabinet appears to have been generally recognized as one of exceptional strength.

On the 27th of July the new Premier spoke as such to the Chamber of Deputies for the first time, and did so, it was manifest, with impressive effect. "If I deemed my person to be an element of discord in the Republican party," he said, "I should ask you not to follow me. I could not suppose that serious men would come to ask me to sort out, as it were, from my old ideas those which experience has confirmed within me and those which it has made me discard. If I had been base enough to do that, my interpellators would be right if they refused me their confidence. I come before you just as I am, a man whom you all know. I have been working with you of the majority for the last seven years. You know that I am not afraid of ideas, and that my way of thinking is daring. The Republic seems to me to be the germ of all progress, but I admit only such ideas as are feasible. ***Je suis un homme de réalisation.*** Those who have watched me know that full well. If there be among you any who are still ignorant of these facts, let them vote against me. I have as yet no mandate from you. Tonight I may have one, but at present there is still time for you to refuse to invest me with one."

At the close of the Premier's address a motion of confidence was made, and carried by 306 votes against 46.

FRANCE: A. D. 1909 (July).

French Deputies to lose pay when not in attendance at the Chamber.

Voting by proxy is permitted in the French Chamber of Deputies, and this encourages absenteeism. To correct that result a remarkable rule was adopted by the Chamber at its session of July 17. "The Socialist Deputy for the Cher, M. Berton, aided by the Socialist Radical M. Dumont, induced the House to adopt, by 441 votes to 77, a measure in virtue of which 'any Deputy who shall not have signed during six consecutive sittings a certificate of attendance shall be regarded as being absent without permission' and deprived of his pay. M. Pelletan, ex-Minister of Marine, who is, with men like M. Brisson, President of the Chamber, the type of the old Parliamentary hand of the Republican *régime*, protested in vain against a conception of Parliamentary work which, as he said, humiliated the representatives of France to the position of schoolboys who have to be ruled with a rod of iron lest they play truant. M. Brisson himself pointed out that the proposal of the Socialist Deputies was seriously wanting in respect for the national sovereignty, and he reminded his colleagues that mere attendance in the Chamber was by no means the only, nor necessarily the most effective, way of doing one's duty as Deputy.

FRANCE: A. D. 1909 (July).

The Pensioning of State Railway Employés.
The Pending Workman's Pension Bill.

See (in this Volume)

POVERTY: ITS PROBLEMS: FRANCE.

FRANCE: A. D. 1909 (October).

Abrogation of Commercial Agreements with the United States.

See (in this Volume)
TARIFFS: UNITED STATES.

FRANCE: A. D. 1909 (October).
Clerical attack on the Secular or Neutral Schools.

See (in this Volume)
EDUCATION: FRANCE: A. D. 1909.

{287}

FRANCE: A. D. 1909 (November).
Contemplated Reform in Criminal Court Procedure.

See (in this Volume)
LAW AND ITS COURTS: FRANCE.

FRANCE: A. D. 1910.
Destructive Floods in France, most seriously
in and around Paris.

Many parts of France suffered heavily from extraordinary floods in the later half of January and the early days of February, 1910; but Paris had the worst of the calamity to bear. In its long history the city has been cruelly dealt with many times by the waters of the Seine, which its quays and bridges constrict and obstruct; but this latest experience proved nearly the climax. It was comparable, at least, with a historic flood that dates back to 1615. Large districts were uninhabitable for days; half the streets and squares of the city were under water: foundations of many of the grandest buildings were being sapped, while sewers, subways, and pavements were extensively destroyed. It was not until the beginning of February that any subsidence of the waters occurred, and far into the month before much restoration of

conditions could be taken in hand. The suffering meantime was very great and the pecuniary damage immense.

-----FRANCE: End-----

FRANCO, JOÃO:

His drastic Government of Portugal.

See (in this Volume)

PORTUGAL: A. D. 1906-1909.

FREDERICK VIII.:

Succession to the Crown of Denmark.

See (in this Volume)

DENMARK: A. D. 1906.

FREE CHURCH, of Scotland.

See (in this Volume)

SCOTLAND: A. D. 1904-1905.

FREE ZONE, Mexican:

Its abolition.

For an account of the Free Zone:

See Volume VI. of this work,

MEXICAN FREE ZONE.

It went out of existence in 1905.

See (in this Volume)

MEXICO: A. D. 1904-1905.

FRIEDJUNG CASE, The.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

FRIARS' LANDS, Governmental purchase of the.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1902-1903.

FRY, Sir Edward.

See (in this Volume)
LABOR ORGANIZATION: England: A. D. 1907-1909.

FULLER, Sir Bampfylde, Resignation of.

See (in this Volume)
INDIA: A. D. 1905-1909.

FULTON CELEBRATION.

See (in this Volume)
NEW YORK STATE: A. D. 1909.

FURNESS, Sir Christopher:
His plan of Profit-sharing with Workmen.

See (in this Volume)
LABOR REMUNERATION: PROFIT-SHARING.

G.

GAELIC LEAGUE.

See (in this Volume)
IRELAND: A. D. 1893-1907.

GAGE, Lyman J.

See (in this Volume)
UNITED STATES: A. D. 1905.

GALSTER, Vice-Admiral:
Argument for Submarines against "Dreadnoughts."

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907-1909.

GALVESTON PLAN OF MUNICIPAL GOVERNMENT.
DES MOINES PLAN OF MUNICIPAL GOVERNMENT.

See (in this Volume)
MUNICIPAL GOVERNMENT: GALVESTON.

GAMBLING:
Its suppression in Siam.

See (in this Volume)
SIAM: A. D. 1905.

GAMBLING: Race-track:
Legislation for its Suppression in the State of New York.

See (in this Volume)
NEW YORK STATE: A. D. 1908.

GAMBLING:
Legislation for its Suppression in Louisiana and
the District of Columbia.

In June, 1908, Louisiana followed the example of New York in passing an Act for the suppression of race-track gambling. There, as in New York, only exactly enough votes to pass the bill were secured; one Senator was present for the final vote

in spite of illness which subjected him to the most serious inconvenience, and one Senator had to be sought by messenger with a motor-car and brought by an all-night ride ninety miles through the Louisiana marshes. Within a few months past the gamblers of the race track had been similarly placed under the ban of the law in the District of Columbia.

GAMBLING:

Its Suppression in Japan.

The following was reported from Tokio, March 27, 1909:

"A tremendous effort has been made by the race-track element in Japan to induce the government to retract and permit betting upon the tracks, but Marquis Katsura, the premier, has stood firm, and, for another year, at least, the race tracks of the Empire will be without their favorite Pari Mutuel or any other form of betting. This means in Japan practically an end of horse-racing, and necessarily a heavy loss to the stockholders in the various race tracks. The development of racing in Japan was extremely rapid. From a single course established at Yokohama by foreigners, at least half a dozen tracks were in full swing when gambling was prohibited. So flagrant were the cases of fraud and so numerous the examples of ruin brought about by reckless betting that the government suddenly put its foot down upon the whole thing."

GAMBLING:

Stock, and other Speculative Dealing.

See (in this Volume)

FINANCE AND TRADE: UNITED STATES: A. D. 1909.

GAPON, Father George.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

GARCIA, Lugardo:
Deposed President of Ecuador.

See (in this Volume)
ECUADOR.

GARFIELD, HARRY A.: President of Williams College.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

GARFIELD, JAMES R.:
Commissioner of Corporations and Secretary of the Interior.

See (in this Volume)
UNITED STATES: A. D. 1905-1909.

GARFIELD, JAMES R.:
Investigation of the "Beef Trust," so-called.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-1906.

GARFIELD, JAMES R.:
Investigation of the Standard Oil Company, and Report.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1904-1909.

GASOLINE ENGINE.

See (in this Volume)
SCIENCE AND INVENTION.

GATUN DAM.

See (in this Volume)
PANAMA CANAL: A. D. 1905-1909.

GAUNA, JUAN:
Revolutionary President of Paraguay.

See (in this Volume)
PARAGUAY: A. D. 1904.

GAUTSCH, BARON.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1905-1906.

{288}

GAYNOR, WILLIAM J.

See (in this Volume)
NEW YORK CITY: A. D. 1909.

GEAY, Bishop.

See (in this Volume)
FRANCE: A. D. 1905-1906.

GENERAL EDUCATION BOARD.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1902-1909.

"GENERAL SLOCUM," Burning of the.

See (in this Volume)
NEW YORK CITY: A. D. 1904.

GEORGE, David Lloyd.

See (in this Volume)
LLOYD-GEORGE, DAVID.

GEORGE V., KING OF GREAT BRITAIN:
His accession to the Throne.

See (in this Volume)
ENGLAND: A. D. 1910 (MAY).

GEORGE JUNIOR REPUBLIC.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

GEORGEI POBIEDONOSETS, MUTINY ON THE.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

GEORGIA: A. D. 1908.
Abolition of the Convict Lease System.

See (in this Volume)
CRIME AND CRIMINOLOGY.

GEORGIA: A. D. 1908.
Suffrage Amendment to the Constitution.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES.

GEORGIA: A. D. 1909.
Railroad Strike.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1909.

GEORGIAN BAY CANAL.

See (in this Volume)
CANADA: A. D. 1909.

GERMAN EAST AFRICA:
Its parts suitable for European Settlement.

See (in this Volume)
AFRICA.

GERMAN SOUTHWEST AFRICA.

See (in this Volume)
AFRICA: GERMAN COLONIES.

-----GERMANY: Start-----

GERMANY:
Industrial Combinations, called Cartels.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: IN GERMANY.

GERMANY:
Matters relating to the Use of Alcoholic Liquors.

See (in this Volume)
ALCOHOL PROBLEM.

GERMANY:
State and Municipal Dealings with the
Problems of Poverty and Unemployment.

See (in this Volume)
POVERTY.

GERMANY: A. D. 1870-1905.
Increase of Population compared with other European Countries.

See (in this Volume)
EUROPE: A. D. 1870-1905.

GERMANY: A. D. 1898-1904.
Rise of Commercial Universities.

See (in this Volume)
EDUCATION: GERMANY: A. D. 1898-1904.

GERMANY: A. D. 1900.
Comparative Statement of the Consumption of Alcoholic Drink.

See (in this Volume)
ALCOHOL PROBLEM.

GERMANY: A. D. 1901 (December).
Claims and Complaints against Venezuela communicated to the
United States.
The Reply.
Interpretation of the Monroe Doctrine.

See (in this Volume)
VENEZUELA A. D. 1901.

GERMANY: A. D. 1901-1902.
Industrial Crisis and succeeding Depression.

See (in this Volume)
FINANCE AND TRADE: GERMANY.

GERMANY: A. D. 1902 (March-May).

Measures for Germanizing the Polish Provinces of Prussia.

For many years past the Prussian Government had been exerting itself to dilute the Polish population of its Polish provinces, by settling German colonists in them and by buying land from Polish owners. It now assumed a more aggressive attitude of hostility toward that portion of its subjects, as appeared from the temper of a speech by Count Bülow in the Prussian legislature, in January of this year, on what he characterized as "the most important concern of Prussian politics at the present time." German property, he said "was steadily passing into Polish hands," and "Polish lawyers, Polish doctors, Polish contractors, were united in the attempt to thrust the German element into the background." In support of the Count's position it was averred by others in the debate that not only was Eastern Prussia being made Polish by the rise of a vigorous Polish middle class, but that the Poles already formed 10 per cent of the whole population of Prussia, and were spreading in other parts of the Empire, holding themselves generally apart from their German neighbors and cultivating a national patriotism of their own.

In March the Prussian Government issued orders forbidding the admission of immigrants from Russian Poland into Prussia unless they brought not less than 400 marks of money in hand. Two months later a bill was brought forward appropriating 250,000,000 marks for the purchasing of land in the Polish provinces and for settling German colonists upon it. In connection with this measure it was reported that, since the buying of land for these purposes began, in Posen, the Poles had acquired more from Germans than Germans had acquired from Poles, to the extent of 76,611 acres. Hence more money must be put into the game if it was to be played with effect. The money was voted, though opposition to the policy which makes enemies of the Poles, instead of Germanizing them by friendly treatment, made a show of much strength.

"It was in 1886 that the Iron Chancellor started the fight against the Poles by the expulsion of more than 50,000 Polish labourers, natives of Austria and Russia. This measure not only hit the poor people who were driven away, it also and principally was directed against the Polish owners of large landed estates in the Eastern provinces, who thereafter experienced great difficulty in obtaining the necessary number of farm-hands. This artificial scarcity of labour, together with the great decrease in price of agricultural products which had just taken place, entirely ruined many owners of large estates, and there were therefore a great number who wanted to sell. Bismarck then appointed a Committee of Colonisation to buy Polish estates and parcel them out to German peasant farmers. The necessary funds were provided for by a sum of 100,000,000 marks (equal to £5,000,000) which was placed at the disposal of the Committee.

"At the first moment the Poles were paralysed. What were they to do to ward off such an attack aimed at the poorest among them? But they kept up a good heart and did the only reasonable thing: some wealthy Polish noble men furnished a sum of 3,000,000 marks (equal to £150,000) whereby to fight the mighty Prussian Government, with its Committee of Colonisation and well-nigh inexhaustible financial resources. With this capital of 3,000,000 marks a Polish land bank was started for the purpose of buying estates and reselling them in small holdings to Polish colonists. ...

{289}

"It maybe guessed from what is already stated that the Poles have not only been able to maintain their former hold on the land, but actually as peaceable conquerors are marching triumphantly westwards. This is also the case, but we need not restrict ourselves to a guess, the '*Statisches Jahrbueh für den Preussischen Staat*' for 1903 containing ample corroboration of it. According to this official handbook there

were parcelled out in the years 1896 to 1901, in the Provinces of Posen and West Prussia, 7,828 estates by German activity, containing 617,200 hectares, and 9,079 estates by Polish activity, containing 213,700 hectares. Although the Germans have parcelled out a very considerably larger area, the Poles have bought and parcelled out a far greater number of properties. The advantage thus obtained is put into an even stronger light when we learn that during the same period by this parcelling out there have been created only 15,941 German farms, with an area of 155,200 hectares, as against 22,289 Polish farms, with an area of 95,800 hectares, for these figures show that during these six years more than 6,000 Polish homes have been established over and above the number of German homes planted on old Polish soil. Moreover the advantage thus gained by the Poles has been increased during the last two years."

***Erik Givskov,
Germany and her Subjected Races,
Contemporary Review, June, 1905.***

GERMANY: A. D. 1902.

The Imperial Pension Fund for Veterans.

A statement of the condition of the imperial pension fund for the veterans of the wars of 1864, 1866, and 1870 showed that this fund, which was established by setting apart \$138,000,000 out of the war indemnity paid by France, had not for years past been able to meet the claims made upon it out of the income it produced. Recourse was had to appropriations of capital, and the fund would consequently be exhausted in course of time, probably not earlier than 1908 and not later than 1910. All the expenses now covered by the fund would then have to be incorporated in the ordinary estimates for the Empire. The Prussian Minister for War had estimated that about 600,000 veterans of the former wars were still surviving. Allowing 10,000 for those who had died since this estimate was

made, and allowing both for the 45,000 who already received a pension and the 12,000 who depended upon the special fund at the disposition of the Emperor, there remained over half a million veterans who as yet received no support from the fund.

GERMANY: A. D. 1902.

New Tariff Law and changed Commercial Policy.
Attitude toward the United States.

See (in this Volume)
TARIFFS, CUSTOMS: GERMANY.

GERMANY: A. D. 1902 (March-September).
Discussion of Alcoholic Drinking.

See (in this Volume)
ALCOHOL PROBLEM: GERMANY.

GERMANY: A. D. 1902 (June).
Renewal of the Triple Alliance.

See (in this Volume)
TRIPLE ALLIANCE.

GERMANY: A. D. 1902 (August).
Curtailement of visits to their native country of
Expatriated Germans.
Principles asserted by the United States.

See (in this Volume)
NATURALIZATION.

GERMANY: A. D. 1902-1903.
Concessions for building the Bagdad Railway.

See (in this Volume)
RAILWAYS: TURKEY: A. D. 1899-1909.

GERMANY: A. D. 1902-1904.

Coercive proceedings against Venezuela concerted with Great Britain and Italy.

Settlement of Claims secured.

Reference to The Hague.

Recognition given to the American Monroe Doctrine.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

GERMANY: A. D. 1903.

Elections for the Reichstag.

Large gains by the Socialists.

Their disability in Prussia.

Strong combination supporting the Imperial Government.

Brutality in the Army.

Prosecutions for Lèse Majesté.

State of Colonies.

General elections for the Reichstag, on the 16th of June, 1903, took notable significance from the fact that the representation of the Social Democrats was increased from 58 to 81, and that these figures gave no full measure of their actual gain in strength, since their votes in the election rose in number from 2,107,000 in 1898 to 3,010,771. Had the distribution of seats in the imperial legislature been fair to the towns, instead of favoring the agricultural interests, the Socialists would have gained more. In Berlin they won every seat but one. Nevertheless, in the elections for the lower house of the Prussian Landtag, which took place in November, they could not carry a single seat in the kingdom, owing to the ingenious disfranchisement of the common people which the Prussian constitution accomplishes by its classification of votes. Socialist gains in the Reichstag were made at the expense of the Radicals, from whom it drew votes which expressed, not so much conversion to Socialism as bitterness

of opposition to the government. Socialist and Radical representatives together numbered only 111, against 224 in the combination of Conservatives, Clericals, and National Liberals, which gave the Ministry a more than ample support.

"The Social Democrats in Germany are increasing in power at once steadily and rapidly; for, as Herr Bebel declares, every speech the Emperor makes secures for them thousands of adherents, adherents of whom quite a fair percentage now belong to the Intelligentsia—are lawyers, professors, journalists, artists, etc. Already the party numbers nearly seven million members; it owns seventy-five journals, of which some thirty are issued daily; and the Berlin branch alone has under its control a revenue of £20,000 a year. At the General Election in 1874, their candidates received 351,671 votes; in 1884, although the Exceptional Laws were then in force, they received 549,990 votes; and in 1893, 1,786,738. Thus, already at that time they were numerically the strongest party in the Empire, as the Ultramontanes received only 1,468,000 votes; and the Conservatives, 1,038,300. At the 1898 General Election no fewer than 2,120,000 votes were recorded for the Socialists; and, at the last Election, that held only the other day, some 3,000,000. Thanks to the Emperor's speeches, thanks, too, to the new Tariff, Herr Bebel and his friends practically swept everything before them in the first ballot, and captured seats everywhere—five out of the six in Berlin, and, what is much more notable, eighteen out of the twenty-three seats in Saxony, the most ultra-Conservative and clerical of all the States. Were every constituency of equal size in Germany, and thus every vote of equal value, the Socialist Party would already to-day be the dominant party in the Reichstag."

***Edith Sellers,
August Bebel
(Fortnightly Review, July, 1903).***

{290}

Throughout the year 1903 much excitement of feeling was caused by the many complaints that were brought against officers of the army for brutal and insolent treatment of soldiers. No less than 180 convictions are said to have been obtained in the course of the single year, for cruelty in the use of the power which military rank confers. Several soldiers were found to have committed suicide to escape from the suffering and humiliation of their life in the service. Another excitement of angry discussion came often from the many prosecutions for *lèse-majesté* that were instituted at this time. In both matters, a potent corrective was applied, without doubt, by the public feeling stirred up.

An official report at the end of the year 1903 showed the total number of Germans in the German colonial possessions in Africa and the South Seas was only 5,125, more than a fourth of the number being officials or in the military force. Since 1884 Germany had expended on its colonies about \$75,000,000.

GERMANY: A. D. 1903.

Adoption of a new Child Labor Law.

See (in this Volume)

CHILDREN, UNDER THE LAW: AS WORKERS.

GERMANY: A. D. 1903 (October).

Opposition to Socialism among Workmen.

See (in this Volume)

SOCIALISM: GERMANY.

GERMANY: A. D. 1904.

Arrangement of Professorial Interchanges between German and American Universities.

See (in this Volume)
EDUCATION: INTERNATIONAL INTERCHANGES.

GERMANY: A. D. 1904.
Rivalry with England in the Persian Gulf.

See (in this Volume)
PERSIA: A. D. 1904.

GERMANY: A. D. 1904-1905.
Wars with Natives in German African Colonies.

See (in this Volume)
AFRICA: A. D. 1904-1905, and 1905.

GERMANY: A. D. 1904-1905.
Startling Increase of Labor Conflicts,
compared with previous five years.

See (in this Volume)
LABOR ORGANIZATION: GERMANY.

GERMANY: A. D. 1905.
The Emperor's Statement of his Peace Policy based
on Preparation for War.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

GERMANY: A. D. 1905.
Effect of the Russo-Japanese War on the Triple Alliance.

See (in this Volume)
EUROPE: A. D. 1904-1909.

GERMANY: A. D. 1905.
Action with other Powers in forcing Financial Reforms

in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

GERMANY: A. D. 1905-1906.

Raising the Morocco Question.

The Kaiser's Speech at Tangier.

Demand for an International Conference.

The Conference at Algeciras.

See (in this Volume)

EUROPE: A. D. 1905-1906.

GERMANY: A. D. 1905-1909.

The Spirit of the Struggle between Workmen and Capitalists.

See (in this Volume)

LABOR ORGANIZATION: GERMANY: A. D. 1905-1909.

GERMANY: A. D. 1906.

Extensions of Popular Rights in Württemberg, Baden, Bavaria,
Saxony, Saxe Weimar, and Oldenburg.

A Comedy of Election Reform in Prussia.

See (in this Volume)

ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

GERMANY: A. D. 1906.

Enormous Results derived from Technical Education.

See (in this Volume)

EDUCATION: GERMANY.

GERMANY: A. D. 1906.

German Settlements in Brazil.

See (in this Volume)
BRAZIL: A. D. 1906.

GERMANY: A. D. 1906-1907.

Popular Demand for better Representation in Prussia
and elsewhere.

School "Strike" in Polish Provinces.

Dissatisfaction with Colonial Policy.

Refusal in the Reichstag of Increased Appropriations.

Dissolution by the Emperor.

Result of the Elections.

Popular Vote heavily against the Government.

Incongruous Coalition or "Bloc" secured by the Chancellor.

The democratic demand in Prussia and in some other German States, for a better representation in the legislatures than is afforded by their odious schemes of class election, became turbulent in the early part of 1906, and was met by strong military preparations for resistance by the Government. Notable demonstrations of popular feeling occurred in several cities, but with proceedings of violence only at Hamburg. Nothing was yielded to the demand; it was simply defied.

The hard Prussian determination to crush out Polish sentiment in the Prussian provinces of the kingdom was relentlessly pursued. Polish children in the schools were required to receive religious instruction in the German language, and punished if they refused to answer questions in that tongue. This provoked a "strike" which took over 100,000 pupils out of the schools. In dealing with it, the Government both fined and imprisoned parents, and even sent children to a reformatory, on the ground that their parents were incapable of giving them proper care.

The affairs of the German colonies in Africa became the subject of most heated and important discussion in the Reichstag during the last months of 1906. Both in German

Southwest Africa and in German East Africa the obstinate revolts of native tribes were unsubdued, and the wars in the former were still requiring nearly 15,000 troops. The total German losses in Southwest Africa since the beginning of the outbreak of Hereros, Hottentots, and Witbois, were reported to have been 1750 killed, 900 wounded, 2000 disabled by disease. Popular feeling seemed to be turning very strongly against the whole colonial policy of the Empire. The economic promises of the undertaking were not looked upon as satisfactory. Statistical reports of the German capital invested in all German colonies excepting Kiao-chau, in China, showed a total of 370,000,000 marks (\$92,500,000) of which 250,000,000 marks were classed as remunerative, 100,000,000 as "underdevelopment," 12,000,000 as unremunerative, and 8,000,000 as missionary property. The capital value of the total productions of German colonies was estimated at 616,000,000 marks (\$154,000,000), half of which came from the Kameruns and Togo; but the revenue was only balancing the cost of administration. Ugly stories, moreover, of barbarity in the treatment of the natives, of official misconduct in other forms, and of private monopolies permitted, were told. On the whole, the colonial situation had created a temper in the Reichstag which was not friendly to the demand of the Government for increased appropriations to that department of administration. Even the Centrum or Clerical party, on which the Ministry counted for the reinforcing of the Conservatives of "the Right," refused the grant, and joined the Liberals, the Socialists, the Polish deputies, and other discontented groups in voting it down. As soon as the vote was announced, Chancellor Bülow arose and read a decree dissolving the House, which the Emperor had signed, in expectation of the defeat, that morning, December 13.

{291}

It is a provision of the Constitution of the German Empire that "in the case of a dissolution of the Reichstag, new

elections shall take place within a period of sixty days".

See (in Volume I.)

CONSTITUTION OF GERMANY.

The elections were appointed accordingly for the 25th of January, 1907. The preparatory canvass, compressed within six weeks, was one of extraordinary vigor, especially on the side of the Government, even the Emperor, as well as the Chancellor, making personal appeals. The efforts of the latter were directed especially against the party of the Center, from its past dependence on which for support the Government was most anxious to escape. These efforts were so little effective, however, that the Centrists gained two seats in the election, carrying 110. The heaviest losers were the Socialists, who, though they gained a quarter of a million of electoral votes, yet secured 36 fewer representatives in the Reichstag than they had before, electing only 43.

Regarded as a *plebiscite*, the election went heavily against the government. That is to say, if the elected Reichstag had been truly representative of the popular vote, the Government could have made no combination of parties in it that would have given it support. As it was, the voters were so unequally represented that Chancellor Bülow was able, by dexterous compromises, to make up a precarious coalition, or "bloc," of Conservatives with National Liberals, and even Radicals, against Socialists, Clericals or Centrists, Poles, etc., which carried his administration through nearly three subsequent years.

Somewhat detailed, the election resulted as follows: The parties which gave subsequent support to the Government for a time secured 215 seats in the Reichstag, gaining 33, thus distributed:

Conservatives	108 (gain 13);
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National Liberals	56 (gain 5);
Radicals	51 (gain 15).

The parties in opposition won 182 seats,—a net loss among them of 33,—thus:

Center	110 (gain 2);
Socialists	43 (loss 36);
Poles, Alsatians, etc.	29 (gain 1).

The popular vote in the election was divided among these parties as follows:

In the parties of the "bloc"—

Conservatives (including Agrarians, Anti-Semites, etc.)	2,235,000
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National Liberals	1,655,000
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Radicals	1,226,000
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Total for Government	5,116,000
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In the Opposition—

Socialists	3,259,000
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Center
2,262,000

Poles, etc.
626,000

Total against the Government.
6,147,000

To show what the Socialist vote really indicated, the following statement of the vote cast and the seats won by that party in successive elections of the past twenty years is interesting.

	Vote.	Seats won.	Seats that equal apportionment would have given.
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1887	763,000	11	40
1890	1,427,000	35	80
1893	1,787,000	44	92
1898	2,107,000	56	108
1903	3,011,000	79	125
1907	3,259,000	43	116

It is evident that the surface-show of results in the election cannot be taken for a true indication of the prevalent state of mind in the Empire. The Centrists or Clericals, for example, elected more than twice as many deputies as the Socialists, by nearly 1,000,000 votes less. The Socialists polled about 250,000 votes more than in 1903, and yet lost 36

seats. The inequity in the apportionment of representatives which produced this travesty of representation had some beginning, no doubt, in the organization of the imperial system, thirty-six years before; but it had been aggravated by the enormously disproportionate growth of cities ever since. That one constituency in Berlin, with a present population of nearly 700,000, had the same representation as a town of 60,000 people, is doubtless an extreme instance of the inequalities that had come about, but the distortion was universal, and altogether in favor of the country landowning class. The Socialists polled some 250,000 more votes than in 1903, and this was reckoned as an increase substantially commensurate with the general growth of population in four years. Hence socialism may be said to have neither gained nor lost footing in the empire; but hitherto it had been showing rapid gains.

"The Centrum is one of the queerest, most paradoxical parties to be found in any country. It is usually called ultramontane by its enemies because it has its *raison d'être* in safeguarding the interests of the Catholic Church; yet it has not scrupled at times to disregard the wishes of the Vatican in respect to German internal affairs; and the Vatican, on its part, carefully avoids identifying its interests with those of the Centrum, since it is sure of getting better results through direct diplomatic action at Berlin. 'The Centrum is an incalculable party,' said Prince Bülow last winter in a campaign letter; 'it represents aristocratic and democratic, reactionary and liberal, ultramontane and national policies.' The party lives upon a reminiscence, its defeat of Bismarck in the *Kulturkampf*; but since that time it has been without any sound reason for its existence. ...

See, in Volume II. of this work,
GERMANY: A. D. 1873-1887.

"The government's attempt to break the power of the Centrum

had already been tried by Bismarck in 1887 and again by Caprivi in 1893, and it had failed. Bülow's step was accordingly a display of courage which the country had not been accustomed to expect from him. His breach with the Centrum, however, proved a most popular issue with the non-Catholic electorate; a thrill of exultation was its first response to the dissolution, and this feeling persisted throughout the campaign. Many of the most intelligent voters had hitherto stood aloof from politics owing precisely to the predominance of the Centrum; but they now greeted with enthusiasm the opportunity to extricate the government from its yoke. University professors, artists, and literary men organized an 'Action Committee' which plied these stay-at-home *Intellektuellen* with campaign literature."

W. C. Dreher,
The Year in Germany
(Atlantic Monthly, December, 1907).

{292}

As stated and illustrated above, the election gave the Government no majority of natural supporters. For the carrying of its measures it was left dependent on a coalition of Liberal with Conservative votes. The alliance was an incongruous one, produced by nothing but a common opposition to Socialists and Clericals, and it brought the Liberals into an utterly false position. Within the first year there were signs of a Liberal revolt from it: whereupon the chancellor made known that he would resign if the supporting coalition or "bloc" was not maintained. To avoid such a governmental crisis the Liberals were said to have given promises of continued support.

The attitude thus assumed by the German chancellor toward the Reichstag is practically that of an English prime minister toward the House of Commons, and it creates a precedent which

must make it very difficult, if not impossible, for imperial ministers to recover the defiantly independent posture of former times. Without verbal amendment, perhaps, but incidentally and informally, by force of circumstances, the absolutist features of the German constitution are manifestly dropping away.

GERMANY: A. D. 1907.

Statistics of Population.

Birth Rate and Death Rate.

"The official report upon public health in Prussia for the year 1907 has just been published [May, 1909], and includes the latest available statistics regarding the movement of the population of Germany. The figures confirm the view, which is not always admitted, that a satisfactory decrease in the death-rate is still accompanied by a persistently unsatisfactory decrease in the birth-rate.

"Prussia may be regarded, roughly, as comprising two-thirds of the German Empire. The population of the empire on December 1, 1905, was 60,641,278, and the population of Prussia was 37,293,324. On January 1, 1907, the population of Prussia was 37,908,104. During the year 1907 the excess of births over deaths was 578,687, as compared with 595,942 in 1906, 514,941 in 1905, 562,387 in 1904, and 527,263 in 1903. Although the Prussian figures are not always a sufficient index, it may be estimated that the excess of births over deaths in the whole empire during 1907 did not exceed 900,000. The comparatively satisfactory total increase of population is due to a decline in the death-rate to 17.96 per 1,000 of the population—the lowest rate ever recorded. In Silesia, in Hohenzollern, and in both West and East Prussia the rate exceeds 20 per 1,000. In the city of Berlin, on the other hand, the rate is 15.62, and in Berlin (outside the city) only 14.79. For the most part a high death-rate is set off by a high birth-rate. In Westphalia and the Rhine Province alone is a high birth-rate accompanied

by a death-rate below the average. As regards ages at which death occurred, the statistics show a considerable decrease in infant mortality, although deaths under the age of one year were 31.14 per cent., or nearly one-third, of the whole number of deaths. While the death-rate was in 1907 the lowest ever recorded in Prussia, the birth-rate was the most unsatisfactory. The total number of births was less by 10,621 in 1907 than in 1906, and was actually less by 1,058 than in the year 1901. The birth-rate per 1,000 inhabitants declined to 33.23, as compared with 34.00 in 1906, 33.77 in 1905, and 35.04 in 1904."

***Berlin Correspondence London Times,
May 27, 1909.***

The same correspondent reported, June 19, a further publication of statistics, which prove the Prussian returns, previously given, "to have been a fairly accurate index to the movement of population in the whole Empire. There is a marked decline in the birth-rate, which fell to 33.2 per 1,000 inhabitants, as compared with 34.08 in 1906. The death-rate fell to 18.98, as compared with 19.20 in 1906. The excess of births over deaths was 882,624, as compared with 910,275 in 1906. The excess, however, of births over deaths (natural increase of population) was greater in 1907 than in any previous year except 1906 and 1902 (902,243). The decline in the birth-rate, which stood at 41.64 in 1877, 38.33 in 1887, and 37.17 in 1897, as compared with 33.2 in 1907, as now attributable to a falling off in the number of births in every part of the Empire except Westphalia, and in Westphalia the number of births is not quite keeping pace with the total growth of population. The decrease in the number of births in the whole Empire in 1907 was 23,766, or 1.1 per cent. In Saxony the decrease was 3 per cent., and East Prussia, West Prussia, and Pomerania show about the same percentage. As regards the death-rate, which stood at 28.05 in 1877, 25.62 in 1887, and 22.52 in 1897, as compared with 18.98 in 1907, there

is a steady decline in the infant mortality rate in all parts of the Empire, but especially in large towns."

GERMANY: A. D. 1907.

Rapid Decrease of Agricultural Population.

"The results of a census of occupations, taken in December of 1907, has just been published and shows a remarkably rapid shifting of the population of Prussia from agriculture to industry and trade. The number of persons engaged in industry and trade was increased by 1,500,000 from 1895 to 1907, while the number engaged in agriculture was decreased by 500,000. This means that the non-farming population rose from 50 to 66 per cent. in twelve years."

***Press Report from Berlin,
February, 1909.***

GERMANY: A. D. 1907.

Financial Situation.

See (in this Volume)

FINANCE AND TRADE: A. D. 1901-1909.

GERMANY: A. D. 1907 (November).

Treaty with Great Britain, France, Norway, and Russia, guaranteeing the Integrity of Norway.

See (in this Volume)

EUROPE: A. D. 1907-1908.

GERMANY: A. D. 1907-1908.

The Scandals connected with the Trials of Editor Harden.

Maximilian Harden, editor of the ***Zukunft***, made attacks on the character of Prince Eulenburg and Count Kuno von Moltke, in 1907, on account of which the latter brought a

libel suit against him. "The charges not only affected the character of the persons accused, but affirmed that they had constituted a kind of kitchen cabinet, or 'Camarilla,' and had again and again given the Emperor misleading information and had exerted a very unfortunate influence over him. The case aroused intense interest throughout Germany, and indeed throughout Europe; and in spite of the unspeakable nature of the charges, the testimony was widely reprinted, and much more frankly, it may be said in passing, than would have been possible for the yellowest journalism in this country. Harden was acquitted, and the plaintiff was sentenced to pay the cost of the suit.

{293}

Taking into account the exalted political position of the accused, and the great respect in which the Imperial court is held in Germany, this action of a German judge was regarded as sustaining the high character of the German courts for independence. A criminal suit was then brought by the public prosecutor, at the instigation of Count von Moltke and his associates, on the charge that Harden had committed an offense against public morals. On this trial the same witnesses appeared as on the former trial, but a great change had taken place in their memory of the transactions to which they had testified on the first trial. They either contradicted or repudiated their former statements to such a degree that their evidence was discredited and Harden's defense was broken down. Harden was found guilty and sentenced to four months' imprisonment. What changed the attitude of the witnesses is a matter of guesswork. It has been charged that their change of front was due to very powerful influences brought to bear upon them."

The Outlook,
January 18, 1908.

An appeal was taken by Harden to a higher court. Official investigations which followed the trials resulted in the

court-martialing of Count Lynar and General Hohenau, the former of whom was sentenced to fifteen months' imprisonment, while the latter was acquitted. In May, 1908, Prince Eulenburg was arrested on charges of immorality, but appears to have been so shattered in health that he could not be brought to trial. Substantially, Editor Harden has been vindicated.

GERMANY: A. D. 1907-1909.

Opposition to the "Navy Fever."

Views of Herr von Holstein and Admiral Galster.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907-1909.

GERMANY: A. D. 1908.

Maintenance of the "Bloc."

Two good measures of legislation.

Revision of the Bourse Law and the law regulating meetings and association.

More vigorous Germanizing of Polish Prussia.

"Although many members of the Bloc thought its enemies justified in predicting that it would speedily break down, the combination did hold together during the past session. It did more; it passed at least two good laws. It revised the Bourse Law in a manner fairly satisfactory to the financial community, so that swindling speculators will henceforth find it less easy to get the sanction of the courts for repudiating debts incurred in stock operations. Another law regulates for the first time on a national basis the right of assembly and association, which had hitherto been in the hands of the individual states. It is interesting to note that this is another important step in the centralizing tendency in Germany. ...

"The measure foreshadowed in my last article for the forcible acquisition of Polish estates was duly laid before the Diet.

The discussion of the bill brought out intense antagonisms, and the line of cleavage between the parties was not along Bloc lines. The Radicals joined with the 'Centrum' in opposing the dispossession of the Poles. As finally passed, the bill gives the Government the right to acquire, under the law of eminent domain, a maximum of 174,000 acres in the provinces of Posen and West Prussia, and to borrow \$65,000,000 for this purpose and for further prosecuting settlement work. The final reading of the bill in the House of Lords stirred that usually somnolent body to a remarkable degree. The vote there showed how deeply, and on what uncommon lines, this radical measure had divided the minds of the people. While most of the titled lords of the land, including many intimate friends of the Kaiser, voted against dispossession, the university professors and mayors of liberal municipalities voted mostly for it."

W. C. Dreher,
The Year in Germany
(*Atlantic*, January, 1909).

In his advocacy of this measure Prince Bülow proclaimed the reasons for it without reserve. "Can we " he asked, "do without the two Polish provinces, one of which begins within 75 miles of Berlin? That is the crucial point of the situation; there is no doubt about it. Our eastern provinces constitute the point of least resistance in the public body. We dare not wait until the grave disease, with its probable irreparable consequences, sets in." An English view of the measure is presented in the following:

"Prince Bülow is only developing the policy of Bismarck, who perceived, as Frederick the Great did before him, that the possession of Posen was vital to the Prussian State, and who held that the surest way to secure that province was to plant German settlers on Polish land. The strategical importance of Posen has been a cardinal article in the political and military creed of all Prussian statesmen and soldiers for

generations. Posen is of far more importance to Prussia than is Ireland to Great Britain, and the true motives which have induced Prussian statesmen to make the agrarian proposals embodied in Prince Bülow's Bill are to be found not in their comparatively trifling difficulties with Liberals, Radicals, and Revolutionists at home, but in the foreign policy of the Court of Berlin. ...

"That portion of Poland which was given to Prussia by the Congress of Vienna has been administered by that Power in accordance with the spirit of Frederick the Great. The object of Frederick was to develop the intellectual and material resources of his Polish possessions, making them an integral part of the Prussian monarchy, and gradually eliminating all recollections on the part of the Poles of their having once been an independent nation. This policy to be successful should be carried out by officials with intellects as clear, if not as powerful, as that possessed by Frederick himself. The Prussian officials, however, who have administered Posen since 1815, have not always risen to the height of their mission. Edward Henry v. Flottwell, who was charged with the government of the province from 1830 to 1840, alone understood the conditions of success. He knew that in politics it is as mischievous as it is futile to endeavour to reconcile the irreconcilable. The efforts made in that direction after 1815 strengthened the revolutionary spirit in Posen. On the retirement of Flottwell, Frederick William IV. tried again to propitiate Polish national feeling, with the result that the irreconcilable forces grew in strength, and in March, 1848, the Poles were the driving-power of the Revolutionary movement in Berlin. ...

"As far as international life is concerned the true significance of the Polish question is in the relations it has created between the three great Northern Powers. Those between Prussia and Russia have in consequence become extremely intimate. At the present moment that intimacy is as great, if

not greater, than at any previous time.

{294}

Besides the German Ambassador at St. Petersburg and the Russian Ambassador at Berlin, there is a German military officer at St. Petersburg, and a Russian military officer at Berlin, who are especially charged to convey intimate communications between the Czar and the Kaiser. In spite of the alliance between Russia and France, which was concluded by the former Power, mainly for financial reasons, and which has never much disturbed the equanimity of Berlin, it is quite certain that in no conceivable circumstances will there be a real breach between Prussia and Russia. The Government of the Kaiser must and will make every possible concession to Russia rather than provoke a serious breach. This is the true inwardness of the policy as regards Poland. As long as Posen continues Polish Germany will be largely dependent on Russia."

Rowland Blennerhassett,
The Significance of the Polish Question
(Fortnightly Review, March, 1908).

Dr. Dillon, who reviews European politics regularly for the ***Contemporary Review***, says with positiveness that the Polish expropriation bill was passed "against the better judgment of press, bar, gentry, political parties and people." He cites it as an illustration of the absolute domination under which the Prussian legislature is held, and maintains that national feeling and opinion have, practically, no influence over Prussian policy and no weight in the conduct of Prussian affairs. Concerning motives behind the Polish expropriation, this well-informed writer reports it to be a prevalent belief in Austrian and other political circles that the bill was driven through as a military measure, in anticipation of some future hostile alliance between Russia and Great Britain. It seems to be the belief that the Kaiser, if not his ministers, is haunted with the expectation of a war to be fought with those powers in combination, and is

determined that, if a British fleet in the Baltic is ever coöperating with a Russian army, there shall be a population of patriotic Germans instead of disaffected Prussian Poles between them and Berlin.

GERMANY: A. D. 1908.

The leading motive of German Foreign Policy officially stated. The Principle of the "Open Door."
Colonial Expansion unnecessary.

"Usually it has been stated that Germany has an annual increase of population of 800,000, that these new masses must be supported by manufactories, and that the German Empire will thus be forced, with or against its will, into expansion, in order to procure the raw material and to establish the requisite markets for its industrial growth. The annexation of Holland and Flemish Belgium, containing Antwerp, is described as a mere preliminary necessary to make possible such measures of expansion. Germany must enlarge its maritime basis, and should have control of the Lower Rhine and its harbors. To the alien, these arguments may seem plausible enough. Whoever is acquainted with existing conditions, however, knows that, though seemingly plausible, this is not the truth.

"In the first place, it is not true that colonial expansion is a necessity for Germany, resulting from its industrial growth. The impetus given to German commerce and German manufactures is to be ascribed far more to the increase in the buying capacity of other nations—England, France, Russia or America—than to all the German colonies combined. Germany needs no colonies; what she wants is merely free competition on all seas, the open door, and the right to cooperate freely on an equal footing with all other commercial and industrial nations, in opening up new and as yet unopened districts and markets. Hence the principle of the open door is the leading motive of the foreign policy pursued by Germany. It is the red thread that winds itself through the Eastern-Asiatic, the

Oriental and the Moroccan policy of the German Empire. The high quality of all German products obviates the necessity of unfair preferences accruing to political power. All they need is a fair chance to compete on equal terms with other countries. The world is large enough, and rich enough, in still dormant possibilities, to admit of a pacific co-operation by all nations in this great work."

***Baron von Speck-Sternburg,
Imperial German Ambassador to the United States,
The Truth about German Expansion
(North American Review, March, 1908).***

GERMANY: A. D. 1908.
Amendment to Industrial Code.
Hours of Labor.

See (in this Volume)
LABOR PROTECTION: HOURS OF LABOR.

GERMANY: A. D. 1908.
Remarkable Decrease of Emigration.

See (in this Volume)
IMMIGRATION AND EMIGRATION: GERMANY.

GERMANY: A. D. 1908.
North Sea and Baltic Agreements.

See (in this Volume)
EUROPE: A. D. 1908.

GERMANY: A. D. 1908 (January).
Institution of Juvenile Courts.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

GERMANY: A. D. 1908 (April).

Passage of Law defining for the Empire at large the Rights of Association and Public Meeting.

The rights of association and public meeting were determined for the Empire at large by an enactment of the Reichstag, for the first time, in April, 1908. Hitherto each State had regulated these fundamental matters of political freedom by legislation of its own, some with considerable latitude, and others, especially in the North German States, with a narrow restraint, subject, in an intolerable degree, to the discretion or will of the police. The national law now brought into force, superseding the local legislation, enlarged greatly the liberty of citizens to associate themselves for legitimate purposes and to hold public meetings. An attempt to forbid the use of any foreign language at public meetings was defeated; but public speaking in other languages was sanctioned only in districts where 60 per cent, of the population use the foreign tongue. This does not apply, however, to international congresses in Germany, or to meetings of electors for the election of legislative representatives, Federal or State; and the States have some privilege of modifying the rule.

GERMANY: A. D. 1908 (April).

Treaty with Denmark, England, France, the Netherlands, and Sweden, for maintenance of the Status Quo on the North Sea.

See (in this Volume)

EUROPE: A. D. 1907-1908.

GERMANY: A. D. 1908 (November).

Excitement in Europe over a published Interview with the Emperor.

What may fairly be called a "row" in the European world, and

of the greatest liveliness in Germany itself, arose, early in November, 1908, from the appearance in the London **Telegraph** of a reported interview with the Emperor by "a representative Englishman who long since passed" it was said, "from public into private life."

{295}

The writer characterized it as "a calculated indiscretion," which was expected to prove of great public service, by removing misconceptions of the Emperor's feelings toward the English. The effect produced by the publication left no doubt of its indiscretion, but proved likewise that it had been very badly miscalculated. In his anxiety to convince the English of his friendliness to them the talkative Emperor made known that France and Russia, during the Boer War, had invited him to join them in a demand on England to stop it, and claimed credit for having prepared for the British army in that war a plan of campaign, which could be found at Windsor Castle, and which was on lines that Lord Roberts had followed in his subsequent operations to a large extent.

How flattering this story was to English pride, and how pleasing to the Governments of Russia and France, might be imagined very easily; but it would not have been so easy to anticipate the outbreak of anger that it exploded in Germany. The Empire itself was surprised by that. It had been submissive to so many "indiscretions" of speech from its Kaiser that it could hardly have expected to be moved excitedly by anything from the imperial lips. But, with the indiscretion in this case, there seemed to be a reckless interference with the appointed organs provided for dealing with foreign affairs, doing mischief to the whole system of governmental administration. This proved, however, to be less the fact than appeared. According to subsequent explanations, the Emperor had sent the manuscript of the interview (which embodied the substance of a number of conversations with several Englishmen) to the Chancellor, Prince von Bülow, for his judgment on it, and the latter, not recognizing its

character, had not read it, but passed it to a subordinate, who simply verified the facts stated in it and returned it to the Emperor as approved.

This revelation convicted the Chancellor very clearly of a careless performance of duty in his office, and laid on him a large share of responsibility for the mischievous publication. He offered his resignation to the Emperor and it was refused. Constitutionally he was responsible only to the Emperor; the Reichstag could not hold him to account, in any practical way, nor did it attempt to do so; but there was such plain speaking in the Chamber from all parties, Conservative, Liberal, and Radical, during two days of debate, November 11 and 12, as never had been heard in Germany before. Whatever the language of the Constitution might be, it was made known beyond a question, then and in a later discussion, that Germany expected the crowned head of its Government to conduct himself—in the words of one speaker—as "the first servant of the State," preserving his own august irresponsibility only by acting and speaking in public matters, through ministers responsible to the elected representatives of the people. "We wish," said Herr Bassermann, leader of the National Liberals "so far as it is possible, for trustworthy guarantees against the intervention of the personal regime," and before he sat down he declared with the approval of the House; "It is the desire of my friends that the Kaiser should be thoroughly informed with regard to these proceedings. ... Although fully convinced that even these utterances of our Kaiser sprang from his deep anxiety for the welfare of his people, we must give expression to the earnest desire that the Kaiser will, in his political activity, impose upon himself the reserve proper to a Constitutional ruler."

Dr. Wiener, for the Radicals, corroborated the previous speaker by declaring that the article in question had filled the entire nation with embitterment, consternation, and rage, because it was felt that "confidence in our trustworthiness

had been shaken. Everywhere it had been recognised that Germany's prestige had received a severe blow." The trend of his speech was to show that the so-called "interview" had been interpreted in Germany as a crass specimen of personal regime which was distasteful to the nation in its entirety. Constitutional Government was what was wanted: the Minister, not the Sovereign, should be responsible to the people.

Prince Hatzfeld, of the Imperial party, who stands in great favor with the Kaiser, impressed upon the House that the Chancellor and not the wearer of the crown was the responsible personage in the State. Prince von Bülow, speaking on the first day of debate, declared that grave injury had been caused by the publication in the ***Daily Telegraph***. He added that immediately on reading the article in question, as to the disastrous consequences of which he could not for a moment be in doubt, he sent in his resignation, taking upon himself full responsibility for the mistakes which had been made in handling the manuscript. And he followed this up with the following significant statement: "Gentlemen! recognition that the publication of these utterances has not in England had the effect anticipated by his Majesty the Emperor, and, on the other hand, in Germany has called forth great excitement and painful regret, will—this firm conviction I have won in these sad days—induce his Majesty the Kaiser in future to impose upon himself, even in his private conversations, that reserve which is indispensable to a consistent policy and to the authority of the Crown. If that were not so, neither I nor any of my successors could accept responsibility for it."

Proposals of amendment to the Constitution, carrying such ministerial responsibility into the fundamental law, were advocated without success; but the unwritten constitution which public opinion moulds slowly in every country took a notable shaping from these debates.

For some time the Emperor was very silent, and kept himself

unusually retired. Having occasion to speak publicly at Berlin on the 21st of November, when the centennial of the formation of the City Council was celebrated, it was reported that "Prince von Bülow stepped forward and impressively handed him a printed sheet," from which, contrary to his custom, he read his remarks.

GERMANY: A. D. 1908-1909.

Attempted Reform of Imperial Finance and its Defeat.

Breaking of Chancellor Bülow's "Bloc" in the Reichstag by the Government's project of New Taxes.

Triumph of the Agrarian Interests in renewed Coalition with the Center.

Resignation of Chancellor Bülow.

His successor.

Expenditure outrunning income from year to year—thanks mainly to the burden of army and navy—with deficits made good by loans, mortgaging the future in an ever-growing public debt, had forced the Government, in 1908, to a resolution, not that the imperial expenditure on armament must be cut down, but that imperial taxation must be increased.

{296}

The Governments of the Federated States, which are directly represented, as such, in the Federal Council, were assenting parties to this conclusion, and the resulting measure was regarded, in all the proceedings which followed, as emanating essentially from that senatorial branch of the Parliament of the Empire.

Preparatory to the undertaking, a new Minister of Finance, Herr Reinhold Sydow, was brought into office, and early in November, 1908, he submitted to the Reichstag a bill providing for new taxes that were estimated to add 500,000,000 marks (\$125,000,000) yearly to the Treasury of the Empire. The scheme included an extended and augmented inheritance tax, new methods of deriving revenue from spirits and tobacco, added

excise duties on beer and bottled still wines, taxes on electricity, gas, advertisements, etc. The bill went to the Finance Committee of the Reichstag and developed there, during the next five months, an antagonism of class interests, and consequently of parties, which completely shattered the "bloc," or coalition, which Chancellor Bülow had contrived to organize in 1906 for the support of his administration. The proposed new inheritance tax or death duty was especially obnoxious to the land-owning classes,—the agrarian core of German conservatism,—and no influence from the Government could save it from being stifled in their hands. Other oppositions were rallied against the proposals which touched spirits, tobacco, electricity, gas, and newspaper advertisements, and by the 20th of March, 1909, it was known that the Finance Committee had rejected or would reject all but about one-fifth of the new taxation which the Government and the Federal Council claimed from it.

A month later the Government signified its abandonment of a present expectation, at least, of financial reform, by inviting subscriptions to a fresh loan. The budget wrangle in Committee went on, however, until the 13th of May, when the National-Liberals, the Radicals, and the Socialists of the Committee withdrew from it, the Chairman, Herr Paasche, a National-Liberal, resigning, refusing to take any further part in proceedings which they wholly disapproved. This left the Conservatives, the Center or Clerical party, and the Poles, who seem to have practically organized an opposition "bloc," which proceeded to frame a budget on entirely different lines from that which the Government desired, one of its contemplated features being a tax on purchases and sales of stocks. On the 18th of May the Reichstag was adjourned until the 15th of June, and a month of rest from the controversy was enjoyed.

When the Reichstag reassembled the Government laid before it several proposals of taxes to be substituted for those which

the Committee had rejected. Inheritance taxation was still prominent in the revised scheme, but considerably modified in its range and reduced in productiveness. With it went an extensive readjustment of stamp duties, applied to bonds, stock certificates, transfers of real estate, bills and checks and a tax on policies of fire insurance. This revised budget of additions to the Imperial revenue was estimated to yield about \$35,000,000. It fared no better than the original proposals of the Government. A week after its introduction the Reichstag adopted the tax on securities (called the ***Cotierungssteuer***) which the Government disapproved, and on the 24th of June it rejected the new inheritance tax bill, by 194 votes to 186, the minority being composed of National-Liberals, Radicals and Socialists, with a few from the Conservative side. On the next day, rumors of the intended resignation of Prince Bülow were checked by the publication of the following semi-official statement:

"Prince von Bülow will remain as chancellor of the empire. The Reichstag will not be dissolved. The chancellor holds that his duty is to be in accord with the conviction of the Federal Council of the necessity to bring about the passage of a taxation measure, but with the exclusion therefrom of duties on stock transfers, the output of the grain mills, and the exports of coal. Financial reform must now come into operation. What the chancellor will do after this has been accomplished is his personal affair."

Nevertheless, it was made known on the 27th that the Chancellor had offered his resignation to the Emperor, who had declined to accept it, pointing out "that in the unanimous conviction of the Federal Governments the early achievement of finance reform is a vital question for the internal welfare of the Empire, as well as for its position in relation to foreign countries. In the circumstances he could not take into closer consideration the fulfilment of Prince Bülow's wish to be relieved of his offices until the labours for the reform of

the Imperial finances should have produced a result of a positive kind which the Federal Governments could accept." To this statement there was added, semi-officially, next day, the following: "Subject to the rejection of those taxation proposals which would be injurious to the general interest, and therefore impossible of acceptance by the Federal Governments, the Imperial Chancellor was unwilling not to comply with the Emperor's desire. Nevertheless, having regard to the political development which was manifested by the division on the inheritance tax, he is irrevocably resolved to retire from office immediately after the accomplishment of finance reform."

Then followed negotiations with the Conservative-Clerical majority now fully in control of the Reichstag, the Government yielding step by step, and the Federal Council coming openly into the management of the negotiations, the Chancellor falling into the background, and waiting only for permission to lay his office down. In the resulting budget of new taxes there was very little saved of the "financial reform" which the Federal Council and the Chancellor had undertaken to introduce. On most points the land-owners had their way. The character and effect of the legislation accomplished in the early days of July were described thus by a Berlin correspondent of the New York *Evening Post*, who wrote on the 11th of the month:

"The *leitmotif* of the bill is that property shall be protected and industry shall pay. Even on the reckoning of the new majority the ratio between indirect and direct taxation in the scheme is as 14 to 34, but in reality property comes off far better. ... The large land-owners will not be hit at all. The only tax that could touch them to any appreciable extent is the stamp duty on transfers of real estate.

{297}

But the remedy lies in their hands; they need not sell, and, in any event, of the \$10,000,000 at which the returns are

estimated only \$1,250,000 at most falls on landed property. If the spirits bounty to be paid by the Government to the spirit distilleries (which are in agrarian hands) is set against this sum, it will be seen that the agrarians do not only **not** suffer, but net a profit of some ten millions of dollars. Most of all it is the consuming classes that are the victims of the new majority's taxation proposals. Every cup of coffee, the staple nourishment of the German workingman's family, every cup of tea, every glass of beer and schnapps, the staple refreshment of the German workingman, will cost more, the total sum to be derived from these sources reaching \$54,250,000, which, with the duty on the poor man's cigar, amounts to over \$60,000,000. Adding to this 30 per cent. for the increase in the middleman's prices, the total burden of the consuming classes reaches over \$80,000,000, or an increase of \$7.50 on the workingman's household expenses a year."

On the 13th of July the session of the Reichstag was closed by Imperial decree. On the 14th the following announcement appeared in the **Imperial Gazette**: "His Majesty the Emperor and King has been graciously pleased to accede to the request of the Imperial Chancellor, the President of the Ministry, and Minister for Foreign Affairs, Prince Bülow, to be relieved of his offices, and has conferred upon him the High Order of the Black Eagle with brilliants. His Majesty has been graciously pleased to appoint Dr. von Bethmann-Hollweg, Secretary of State for the Interior, Minister of State, to be Imperial Chancellor, President of the Ministry, and Minister for Foreign Affairs." Herr Sydow now resigned from the secretaryship of the Imperial Treasury, and was made Prussian Minister of Commerce, in place of Herr Delbruck, who succeeded the new Chancellor as "Imperial Secretary of State for the Interior and representative of the Imperial Chancellor." Herr Sydow's place in the department of the Imperial Treasury was taken by Herr Wermuth.

GERMANY: A. D. 1908-1909 (September-May).

The Casablanca Incident and its Arbitration at The Hague.
Friendly Agreement with France.

See (in this Volume)
MOROCCO: A. D. 1907-1909.

GERMANY: A. D. 1909.
Accelerated Naval Construction.
Excitement in Great Britain.
Parliamentary Debates.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

GERMANY: A. D. 1909.
Extent of Trade Unionism.

See (in this Volume)
LABOR ORGANIZATION: GERMANY.

GERMANY: A. D. 1909.
Proposed Amendments of the System of Workingmen's Insurance.

See (in this Volume)
POVERTY, THE PROBLEMS OF: PENSIONS;
also,
LABOR PROTECTION: ACCIDENT AND SICKNESS INSURANCE.

GERMANY: A. D. 1909 (January).
Rejection of Proposed Reforms of the Elective Franchise
in Prussia.

See (in this Volume)
ELECTIVE FRANCHISE: PRUSSIA.

GERMANY: A. D. 1909 (April).
Economic Conditions.

Gain of Fifteen Years in National Wealth.
Increased Cost of Living.
Diminished Savings.
Check on the Overcrowding of Towns.

A report by the British Consul-General on the trade and commerce of the consular district of Frankfort-on-the-Main for the year ending April 30, 1909, gave the following items of interest touching general economic conditions of the year:

Early in 1909 the national wealth of Germany, which had been estimated at 220,000,000,000 marks 15 years ago, was estimated to have reached 350,000,000,000 marks—i. e., an increase of 59 per cent. in half a generation.

"The cheapening of all manufactured commodities in comparison with the price they had reached during the end of the boom has failed until now, in spite of an unprecedented supply of cash, because the development which had taken place behind the wall of protection—the system of syndication—has killed free competition at home and has unduly raised the cost of the raw material needed by the finishing industries. The agricultural protection as well as the industrial has, moreover, increased the cost of living and has narrowed down the margin of profit which might have been used like a safety valve for reductions of price to revive trade at home or facilitate competition abroad. Syndication and protection have in fact combined to deprive German manufacture of that elastic cheapening power which ought chiefly to revive trade during the period succeeding a commercial high tide. At the same time the increased protection of the home market has admittedly rendered foreign markets more difficult for the German manufacturer."

See (in this Volume)
LABOR REMUNERATION: WAGES, &C.

GERMANY: A. D. 1909 (September).

Speech of the Emperor on the Pride of his Subjects in
"the Game of War."

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY.

GERMANY: A. D. 1909 (September).

Latest Statistics of the Social Democratic Party.

See (in this Volume)

SOCIALISM: GERMANY.

GERMANY: A. D. 1909 (October-December).

Socialist Gains in By-elections, etc.

Changed relations between Parties and the Government.

Several by-elections for the Reichstag and elections to the diets of Saxony and Baden in these months showed somewhat startling gains for the Socialists. In the Saxon Diet they won 25 seats, whereas in the late chamber, elected in 1907, they had held but 1. Both the Conservatives and the National Liberals were losers in the contest, the former most heavily. The Radicals shared a few of the gains. In the Baden Diet the Socialist gain was 8. At a by-election in one of the Brandenburg divisions the Socialists increased their vote by more than a thousand.

The Reichstag was reopened by the Emperor on the 30th of November. On the organization of the House, Dr. Herman S. Paasche, National Liberal, declined election as Second Vice-President, stating that the National-Liberal party had decided unanimously not to accept office in the reorganization of the House. The Imperial party, or free Conservatives, also declined to take part in the organization, while the Radicals went so far as to decide that they would cast blank votes. These three parties are determined to place the full

responsibility for the coming legislation upon the German Conservatives and Clericals.

{298}

This new attitude of parties, as one side of the sequence to the dissolution of the bloc of the past two years, and to the retirement of Chancellor Bülow, was responded to most appositely on the side of the Government by the new Imperial Chancellor, Dr. von Bethmann Hollweg, when he made his first speech in that capacity to the Reichstag, December 9th. In not many words he made it plain that the Imperial Government's policy now was "to stand aloof from parties and groups of parties; in short, that the government of Germany was not a government by party. Governmental measures would be submitted to the Reichstag for adoption, but he was not disposed to define the constellation of parties which, he thought, would support these measures. The recent political crisis over the taxation bill had made no change in German institutions, he continued. Radicalism strove to divide all Germany into two political camps, but the existence of such a dualism was a fiction devised for party objects. It could not contribute to the sound development of the country for every proposal to be classified as either radical or reactionary. Germany, the chancellor affirmed, needed continuous and steady policies, both at home and abroad, to satisfy the people to the end that their work, either material or intellectual, might be undisturbed by disorders or experiments." His words in part were as follows:

"As decidedly as the separate parties have ever refused, and still refuse, to be Government parties—and I personally can thoroughly understand it—so little will a Government in Germany ever be able to be a party Government. With the difficulties which arise from this fact every German statesman has had to fight, and in this relation of things, which is historic and based upon the peculiarity of our party life and

of our State institutions, the last crisis has altered nothing whatever. I do not shut my eyes," continued the Chancellor, "to the excitement of party politics which pervades the country." But he believed that there were wide circles of the German people who did not wish to live permanently on political excitement and recrimination. "What our people desires in the first place is not to be disturbed in its actual work, whether economic or intellectual, either at home or abroad, in the markets of the world, by unrest or experiments. It wishes to be supported and encouraged by a policy of continuity and stability at home and abroad." As in the past there had never been a single party which had given its stamp to German policy, so all parties must work together in the future. The question was not one of "actual collaboration" or of nervous anxiety about the creation of a temporary Parliamentary majority, but of the conviction that there was an obligation to work imposed by the community upon each of its representatives, and the certainty that this obligation would survive the present turmoil.

It is an interesting experiment which the new Chancellor is venturing on; but it seems to require a Bismarck in the Chancellor's shoes.

GERMANY: A. D. 1909 (December).
The Mannesmann Concession Question.

See (in this Volume)
MOROCCO: A. D. 1909.

GERMANY: A. D. 1910 (March).
Demand of the Reichstag for Ministerial Responsibility.

On the 15th of March, 1910, it was reported from Berlin that the Reichstag had adopted a motion, made by a Socialist member, demanding the introduction of a bill making the chancellor responsible to the Reichstag for his official acts

and also extending his responsibility to cover all of the acts and documents made by the Emperor, for which responsibility he shall be answerable in a court of law.

[Transcriber's note: The First World War was fought from July 28, 1914 to November 11, 1918, between the Allies (France, the United Kingdom, Russia, the United States, Italy, and Japan) and the Central Powers (Germany, Austria-Hungary, the Ottoman Empire, and Bulgaria).]

-----GERMANY: End-----

GHENT: A. D. 1900.

Municipal organization of Insurance against Unemployment.

See (in this Volume)

POVERTY, PROBLEMS OF: UNEMPLOYMENT.

GHOSE, Dr. Rash Bihari.

See (in this Volume)

INDIA: A. D. 1907-1909.

GIBBONEY, D. Clarence.

See (in this Volume)

MUNICIPAL GOVERNMENT: PHILADELPHIA.

GIFTS AND BEQUESTS, Notable:

Of Andrew Carnegie:

To Building for the Bureau of American Republics.

See (in this Volume)

AMERICAN REPUBLICS, BUREAU OF.

For Court House and Library for Permanent Court of

Arbitration at The Hague.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1903.

To Foundation for the Improvement of Teaching.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1905-1908.

To Hero Funds.

See (in this Volume)

CARNEGIE HERO FUNDS.

To Institute at Pittsburg.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1907.

To Institution of Washington.

See (in this Volume)

SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

To Scottish Universities.

See (in this Volume)

EDUCATION: SCOTLAND: A. D. 1901.

GIFTS AND BEQUESTS, Notable:

Of George Crocker for Cancer Research.

See (in this Volume)

PUBLIC HEALTH: CANCER RESEARCH.

GIFTS AND BEQUESTS, Notable:

Of Edwin Ginn to Fund for the Peace Propaganda.

See (in this Volume)

War, The Revolt against: A. D. 1909.

GIFTS AND BEQUESTS, Notable:

Of Mrs. Harriman and others to the State of New York for
a State Park on the Hudson.

See (in this Volume)

NEW YORK STATE: A. D. 1909-1910.

GIFTS AND BEQUESTS, Notable:

Of Miss Anna T. Jeanes to Schools for Southern Negroes.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1907.

GIFTS AND BEQUESTS, Notable:

Of Mr. John Stewart Kennedy.

Nearly \$30,000,000, out of an estate valued close to
\$60,000,000, was left to public institutions by John Stewart
Kennedy, banker and railroad builder, who died early in
November, 1909. The remainder of the estate was bequeathed to
relatives and employés. The larger bequests to religious,
educational, and benevolent institutions were the following:

Board of Foreign Missions of the
Presbyterian Church in the United States
\$2,250,000

Board of Home Missions of the
Presbyterian Church in the United States
2,250,000

Board of Church Erection Fund of the
General Assembly of the Presbyterian
Church in the United States
2,250,000

Presbyterian Hospital in New York City
2,250,000

New York Public Library, Astor, Lenox,
and Tilden Foundations
2,250,000

Metropolitan Museum of Art
2,250,000

Columbia University
2,250,000

Church Extension Committee of the
Presbytery of New York
1,500,000

Trustees of Robert College,
Constantinople, Turkey
1,500,000

University of the City of New York
750,000

American Bible Society
750,000

Presbyterian Board of Aid for Colleges
750,000

Charity Organization Society of the City
of New York for its School of
Philanthropy,

"to which I have already given an
endowment
of \$250,000, or to the said school if the
same be separately incorporated at the
time
of my death,"

750,000

United Charities, a corporation of
the State of New York
1,500,000

GIFTS AND BEQUESTS, Notable:
Of Letchworth Park to the State of New York.

See (in this Volume)
NEW YORK STATE; A. D. 1907.

GIFTS AND BEQUESTS, Notable:
Of Rhodes Scholarships.

See (in this Volume)
EDUCATION: RHODES SCHOLARSHIPS.

GIFTS AND BEQUESTS, Notable:

Of John D. Rockefeller to the General Education Board.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1902-1909.

GIFTS AND BEQUESTS, Notable:

The Russell Sage Foundation.

See (in this Volume)

SOCIAL BETTERMENT. UNITED STATES: A. D. 1907.

From Mrs. Russell Sage to Yale University.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1910.

Of Mrs. Russell Sage to the U. S. Government.

See (in this Volume)

Constitution Island.

GINN, EDWIN:

Great Gift to Fund for the Peace Propaganda.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1909.

GIOLITTI, SIGNOR GIOVANNI:

Minister of the Interior and then Premier of
the Italian Government.

See (in this Volume)

ITALY: A. D. 1901, 1903, and after.

GIORGIS, GENERAL DE:

Command of Gendarmerie in Macedonia.

See (in this Volume)

TURKEY: A. D. 1903-1904.

GLADSTONE, HERBERT J.:

Secretary of State for Home Affairs.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

First Governor-General of United South Africa.

See (in this Volume)

SOUTH AFRICA: A. D. 1908-1909.

GOBAT, ALBERT.

See (in this Volume)

Nobel Prizes.

GOETHALS, LIEUTENANT-COLONEL GEORGE W.:

Chief Engineer of the Panama Canal.

See (in this Volume)

PANAMA CANAL: A. D. 1905-1909.

GOLGI, CAMILLO.

See (in this Volume)

NOBEL PRIZES.

GOLUCHOWSKI, Count.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1905-1906.

GOMEZ, José Miguel:
President of Cuba.

See (in this Volume)
CUBA: A. D. 1906-1909.

GOMEZ, General Maximo:
Military head of the last Cuban Rising against Spain.

See (in this Volume)
CUBA: A. D. 1902.

GOMEZ, General:
Acting President of Venezuela.

See (in this Volume)
VENEZUELA: A. D. 1905-1906, and 1907-1909.

GOMPERS, Samuel:
Sentence for alleged Violation of an Injunction.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1908-1909.

GORDON MEMORIAL COLLEGE, at Khartoum.

See (in this Volume)
EDUCATION: EGYPT.

GOREMYKIN, Ivan Logginovich.

See (in this Volume)
RUSSIA: A. D. 1906.

GORGAS, Dr. W. C., United States of America:
In charge of the Sanitation of the Panama Canal Zone.

See (in this Volume)
PUBLIC HEALTH: PANAMA CANAL.

GOVERNORS' CONFERENCE, on Conservation of Natural Resources.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

"GRAFT," so called, in Municipal Government.

See (in this Volume)
MUNICIPAL GOVERNMENT.

GRAND TRUNK PACIFIC RAILWAY PROJECT.

See (in this Volume)
CANADA: A. D. 1903.

GRAY, Justice George:
On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

GREAT BRITAIN.

See (in this Volume and Volume II)
ENGLAND.

GREECE: A. D. 1905.
Assassination of Prime Minister Delyannis.
His successors.

Theodoros Delyannis, the Premier of Greece, was assassinated on the 13th of June, 1905, by a revengeful gambler whose place had been closed by the police. A new Ministry formed by M. Ralli conducted the Government until December, when its defeat

in the election of a president of the representative assembly forced a resignation. It was succeeded by a Cabinet formed under M. Theotokis, the leader of the Opposition.

GREECE: A. D. 1905-1908.

Barbarities of Greek bands in Macedonia.

See (in this Volume)

TURKEY: A. D. 1905-1908.

GREECE: A. D. 1905-1906.

Insurrection in Crete.

Demand for Union with "her Mother Greece."

Investigation by the Powers.

Resignation of Prince George.

Appointment of M. Zaimis.

See (in this Volume)

CRETE; A. D. 1905-1906.

GREECE: A. D. 1907-1909.

The Cretan Situation as dealt with by the
Four Protecting Powers.

See (in this Volume)

CRETE: A. D. 1907-1909.

GREECE: A. D. 1909 (July).

Destructive Earthquake in Ellis.

See (in this Volume)

EARTHQUAKES: GREECE.

GREECE: A. D. 1909.

The Government dominated by a Military League.
Its submission to the Dictatorship.

Whatever vitality may previously have animated the forms of constitutional government in Greece was extinguished suddenly in July, 1909, by a demonstration of power on the part of a league of army officers to give orders to it. The Military League was backed, evidently, by a strong popular feeling against the Government, partly well founded, perhaps, but largely due to an unreasoning desire for rash undertakings to secure the annexation of Crete. The revolution in Turkey had stimulated this by seeming to open opportunities for breaking the island away from the claimed sovereignty of the Turks. What Bulgaria had been able to do in the situation for herself, and what Austria had done in annexing Bosnia and Herzegovina, it must be that the Powers which held Crete in commission, so to speak, could do for Greece, in the present state of things, if Greece had a competent Government to deal with affairs. This seems to have been the feeling, to a large extent, which produced the Military League and the popular threatenings whereby the Ministry of M. Theotoki was impelled to resign office on the 17th of July. The new Cabinet constructed by the King, under M. Ralli, held the semblance of power a little more than a month, and then had to choose between dropping it and taking orders from the League.

{300}

When it hesitated, and ventured an arrest of several leaders of the military combination, the latter, in a body, to the number of over 500, with about 2000 of the men of their commands, took possession of a hill outside of Athens, on the 27th of August, and established there a menacing camp. Parley was then opened with them and they submitted a programme of demands which M. Ralli declined to accept, and resigned.

According to a manifesto published by the League on the 27th, its demands, summarized in a letter from Athens, were as follows: "The officers belonging to the Military League respectfully ask the King and the Government to carry out radical reforms, and especially to proceed with the reorganization of the army and navy, in order that Greece

might not in the future have to undergo any more humiliations such as she had had to tolerate in the past. The commands held by the Royal Princes in the army and navy are considered by the league to be prejudicial to their own prestige and to the accomplishment of their duties. The officers consequently insist that the Crown Prince, who is commander-in-chief of the army, and the other Royal Princes, should not hold any command in the army. They demand that the army shall be controlled by a council composed of the commanders of the three divisions under the presidency of the eldest of them, and the superintendence of the Crown Prince. They further ask that the two War Ministries should be invariably entrusted to the best officers in the army and navy and not to civilians. Among the detailed features of their programme they ask that four classes of the reserve should be called to the colours annually for manoeuvres, that a battleship of not less than 10,000 tons, and eight destroyers of not less than 150 tons each, should be constructed, that the existing three cruisers should be repaired, that all the useless small ships should be sold, including the Royal yachts, with the exception of one for the King, that a war school should be established, that a foreign general with some officers should be called in to organize a Staff service and to look after the theoretical and practical training of the army and navy, and that a more efficient corps of

Gendarmerie should be organized. In order to provide the necessary funds to carry out these reforms the league suggests that large retrenchments should be made in the general Budget."

The King found a compliant premier, M. Mavromichalis, who submitted to these dictations in principle, amnestied the whole League, and took one of its leaders, Colonel Lapathiotis, into his Cabinet, as Minister of War. Since that day the actual Government of Greece has been transferred from the King, his Constitutional Ministers and the "Boule," or Legislative Chamber, to the Military League. The nominal Government turned a cheerful face to the world by publishing a semi-official explanation which began as follows:

"Now that the situation has become clearer it becomes plain that the sole object of the military movement was the reorganization of the army and the reform and improvement of the Administration. The movement was at no time directed against the King or the dynasty, nor had it as its object the diminution of the rights and privileges of the Crown or the violation of the Constitution. The request of the Military Committee that the Crown Prince and the Royal Princes should be relieved of their high commands in the army was only formulated in their Highnesses' interests, and with a view to relieve them of grave responsibilities likely to injure their prestige and in order to avert the discord and hatred which personal favoritism and the sympathies of the Princes would inevitably have engendered among the officers serving under them."

That the League had strong backing in the country was shown by popular demonstrations, one of which, at Athens, on the 27th of September, brought 50,000 people, it was said, to the Champ de Mars, to pass a resolution and to convey it to the King. "The resolution began by expressing profound satisfaction at

the initiation of the struggle by the Military League against the mischievous influence of parties on State affairs, and against the misuse of interest in the army and navy, and ... concluded by declaring the determination of the people to exercise constant supervision over the Government and the Chamber until their demands had been completely fulfilled.

"The demonstrators then marched to the Royal Palace, where the committee were received by the King and handed his Majesty the resolution. The King, after congratulating them upon the orderly and lawful way in which the people had made known their wishes, expressed his conviction that his Government and the Chamber would consider them and would vote the requisite laws."

The Chamber, however, was less compliant, and showed marked signs of refusing legislation for the removal of the royal Princes from active service in the army. This angered the military dictators, and fresh trouble was threatened. It was averted by the resignation of the Princes, and by the speedy adoption of the whole series of measures demanded by the League, no less than twenty-three bills being enacted within the space of an hour.

The dictatorial work of the League, however, had not gone far enough to satisfy one of its chiefs, a Lieutenant Typaldos, commander of a fleet of torpedo-boats and submarines, who suddenly set on foot a naval revolt of his own, withdrawing, with a few other officers and men, to Salamis and seizing the arsenal there. But, having the League against him, Typaldos was easily put to flight, and was captured eventually in ignominious disguise. For a time after this all went smoothly, and the Government was credited with a number of good measures, which its military masters permitted it to adopt. The situation was ruffled again toward the end of December by some offensive words in the Chamber from the Minister of War, Colonel Lapathiotis, which a large part of the deputies

resented. These gave notice that they would not enter the Chamber again while the Colonel remained in the Ministry. Fortunately, just at this time, the obnoxious Minister gave offense to his associates of the League, by promoting several officers without consulting them, and they were willing that he should be dismissed.

{301}

GREECE: A. D. 1910.

Agreements for a restored Constitutional Regime.

The dismissal of Colonel Lapathiotis emboldened the party in the Chamber which follows the lead of ex-Premier Rallis to make some show of an independent opposition, and provoked thereby the most arrogant reminder yet given of the dictatorial power of the Military League. On the 2d of January two officers from the League appeared in the Chamber, bearing letters addressed to the Prime Minister and to the two leaders of Opposition parties, M. Rallis and M. Theotokis, requiring the Chamber to pass twenty-seven specified measures, besides the pending budget, and requiring the Government to recall its diplomatic representatives from Paris, Berlin, Vienna, and Rome. The messengers announced that they would return at 2 p. M. for a reply, and when they did so they were assured that the commands received would be obeyed. A few hours later the Premier received a fresh mandate to dismiss his Minister of the Interior. On this, he and his colleagues attempted to resign, but were so entreated by the King to remain and submit to the humiliating situation, rather than bring the country to a state of complete political wreck, that they did so, excepting the Minister of the Interior, who withdrew.

In the succeeding four weeks, negotiations appear to have been effected between the League and the leaders of political parties, with the result announced as follows in a telegram from Athens to the American Press, January 28:

"An agreement was reached to-day by the Theotokis party, the Rallis party, and the Military League to convoke the National Assembly for a revision of the Constitution, with the condition that the league shall first be dissolved. The powers of the National Assembly will be limited as to the sections of the Constitution to be revised, and no interference with the royal prerogatives will be permitted."

King George assented to the proposed convocation of a National Assembly for the revision of the Constitution, though the existing Constitution would be violated by the method of procedure to be taken, since the choice seemed to lie between this and a complete wreckage of constitutional government. A Cretan leader, M. Venezelo, of high reputation for political sagacity, came to Athens on invitation and conducted a settlement of the affair with apparent success. The Mavromichalis Ministry gave way to another, formed under M. Dragoumis; a programme of constitutional changes to be laid before the contemplated National Assembly was agreed upon; the election of the Assembly was appointed for August next and its meeting for September, and the dissolution of the Military League was pledged. Such was the situation in the later days of March, 1910.

GREEN HILLS, Capture of.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

GREY, ALBERT HENRY GEORGE, EARL:
Governor-General of Canada.

See (in this Volume)

CANADA: A. D. 1904.

GREY, SIR EDWARD:

Secretary of State for Foreign Affairs.

See (in this Volume)

ENGLAND: A. D. 1905 (December), 1905-1906; and

TURKEY: A. D. 1905-1908.

GREY, SIR EDWARD:

Correspondence on American Fishing Rights
in Newfoundland waters.

See (in this Volume)

NEWFOUNDLAND: A. D. 1905-1909.

GREY, SIR EDWARD:

On the Changed Conditions in Europe that make for Peace.

See EUROPE: A. D. 1909.

GREY, SIR EDWARD:

On the Budget of 1909 and the House of Lords.

See ENGLAND: A. D. 1909 (April-December).

GROCERS' ASSOCIATION, Dissolution of the.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

GROSSCUP, JUDGE PETER S.:

Decision in the Case of the
United States v. Swift & Co., et al.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-
1906.

GROSSCUP, JUDGE PETER S.:

Opinion in Standard Oil Case.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1904-1909.

GRUITCH, GENERAL:
Head of Radical Servian Ministry.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA: A. D. 1903.

GUANTANAMO:
Coaling and Naval Station leased to the United States.

See (in this Volume)
CUBA: A. D. 1903.

GUATEMALA.

See (in this Volume)
CENTRAL AMERICA.

GUERRA, COLONEL PINO:
Leader of Insurrection in Cuba.

See (in this Volume)
CUBA: A. D. 1906 (AUGUST-OCTOBER).

GUIANA, BRITISH: A. D. 1904.
Settlement of Brazilian boundary dispute.

See (in this Volume)
BRAZIL: A. D. 1904.

GULLY, W. C.:
Resignation of the Speakership of House of Commons.

Elevation to the Peerage.

See (in this Volume)
ENGLAND: A. D. 1905 (JUNE).

GUMMERÉ, S. R.:
American Delegate to the Alegeciras Conference
on the Morocco Question.

See (in this Volume)
EUROPE: A. D. 1905-1906.

GUTHRIE, GEORGE W.:
Mayor of Pittsburg.

See (in this Volume)
MUNICIPAL GOVERNMENT.

H.

HAAKON VII., King of Norway.

See (in this Volume)
NORWAY: A. D. 1902-1905.

HABIBULLAH, Ameer of Afghanistan.

See (in this Volume)
AFGHANISTAN: A. D. 1901-1904.

HAECKEL, Ernst Heinrich.
Eminent German scientist, retired from his Professorship
at Jena University on his 75th birthday, February 10, 1909.

HAGEN-HAGEN, LIEUTENANT:
Tragically ended Greenland Coast Survey.

See (in this Volume)
POLAR EXPLORATION.

HAGOPIAN, H.:
On the Turkish Revolution.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

HAGUE TRIBUNAL, The: A. D. 1902.
Decision of the Pious Fund Question between Mexico and
the United States.

See (in this Volume)
MEXICO: A. D. 1902 (MAY).

HAGUE TRIBUNAL, The: A. D. 1903.
Decision on Venezuela Question.

See (in this Volume)
VENEZUELA: A. D. 1902-1903.

HAGUE TRIBUNAL, The:
Carnegie Gift to it of a Court House and Library.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1903.

HAGUE, The: A. D. 1907.
The Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

HAICHENG, RUSSIAN EVACUATION OF.

See (in this Volume)

JAPAN: A. D. 1904 (JULY-SEPTEMBER).

HAKKI BEY: Grand Vizier.

See (in this Volume)

TURKEY: A. D. 1909 (MAY-DECEMBER).

{302}

HALDANE, Richard B.:

Secretary of State for War.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

HALE vs. HENKEL, The case of.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1905-1906.

HAMID EDDIN, Sheik of the Hadramaut:

His claims to the Caliphate, against the Sultan.

See (in this Volume)

TURKEY: A. D. 1903-1905.

HAMLIN, Reverend Dr. Cyrus.

See (in this Volume)

EDUCATION: TURKEY, &c.

HANKAU-SZE-CHUAN RAILWAY LOAN.

The question of American participation.

See (in this Volume)

CHINA: A. D. 1904-1909.

HANSEN, Ole.

See (in this Volume)
DENMARK: A. D. 1901.

HARBIN,
KHARBIN: A. D. 1905.
Opened to all commerce.

See (in this Volume)
CHINA: A. D. 1905 (DECEMBER).

HARCOURT, VERNON.

See VERNON-HARCOURT.

HARDEN, Maximilian:
The Trials of.

See (in this Volume)
GERMANY: A. D. 1907-1908.

HARDIE, KEIR.

See (in this Volume)
ENGLAND: A. D. 1905-1906;
LABOR ORGANIZATION: ENGLAND: A. D. 1903; and
SOCIALISM: ENGLAND.

HARRIMAN, Edward H.:
His extraordinary Accumulation and Organization of
Railway Properties.
His death.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1901-1909.

HARRIMAN, Mrs. E. H.

Gift of land to New York for a State Park.

See (in this Volume)

NEW YORK STATE: A. D. 1909-1910.

HARVARD UNIVERSITY:

Interchanges of Professors with French and German Universities.

See (in this Volume)

EDUCATION: INTERNATIONAL INTERCHANGES.

HASSAN FEHMI EFFENDI,

Assassination of.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

HATSUSE,

Sinking of the.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

HATTI HUMAYUN, The Turkish.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER).

HAUSA LAND.

See (in this Volume)

AFRICA: A. D. 1903 (NIGERIA).

HAVANA: A. D. 1907.

Population.

See (in this Volume)
CUBA: A. D. 1907.

HAY, John:
Secretary of State.

See (in this Volume)
UNITED STATES: A. D. 1901-1905, and 1905-1909.

HAY, John:
Negotiation of the Hay-Bond Reciprocity Treaty.

See NEWFOUNDLAND: A. D. 1902-1905.

HAY, John:
Negotiation of Treaty with China to open two new Ports
to Foreign Trade.

See (in this Volume)
CHINA: A. D. 1903 (MAY-OCTOBER).

HAY, John:
Honorary President of Second International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

HAY, John:
Proclamation of his death.

See UNITED STATES: A. D. 1905 (JULY).

HAY-PAUNCEFOTE CANAL TREATY, Interoceanic.

See (in this Volume)

PANAMA CANAL: A. D. 1901-1902.

HAITI: A. D. 1901-1902.

Participation in Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

HAITI: A. D. 1902.

Revolution and Civil War produced by a Blunder of Law.
Resignation of President Sam.
Election of General Nord Alexis.

An outbreak of revolution in Haiti occurred under singular circumstances on the 12th of May, 1902. As related in a despatch of a few days later by Mr. W F. Powell, United States Minister to Haiti, the circumstances were these: When, in April, 1896. General Theresias Simon Sam was elected President of the Republic (see, under HAYTI, in Volume VI. of this work), on the sudden death of President Hypolite, "Congress enacted a law requiring him to enter upon the duties of the Presidential office at once, and to remain in office until May 15, 1903. This law, it seems now," wrote Mr. Powell, "was not constitutional, as the constitution states: 'That upon the death, resignation, malfeasance in office, or removal therefrom of the President before the 15th of May (in any year) the cabinet or council of ministers is charged with these functions until the 15th of May, when the newly elected President shall assume the duties of the Presidency; but if a President should accept office or enter upon the duties of the same prior to this time (15th of May), then his term of office must expire on the 15th of May of the year preceding the time that it actually expired, thus not allowing the incumbent to remain in office the full seven years, the time for which he was elected.'

"For some reason this provision of the constitution was not thought of, or else forgotten, at the time General Sam was elected. No mention was made of this section until about a year ago, when the question was launched upon the public view by the enemies of the Government. The more this question was discussed the more potent it became, until it occupied the attention of all classes to the exclusion of all other matters. ... The several political arrests and the exile of many persons within the past two years have been on account of this discussion, they demanding that this article of the constitution should be literally followed, the Government, on its part, believing that in the arrest and exile of all such persons all discussions and agitation of this matter would cease. But this rigor on the part of the Government produced, instead of friends, enemies, who were daily gaining strength.

"At the several interviews I had with the President up to the time I left for Santo Domingo (February 10) he stated that it was his intention to remain in office until he had finished his term (to May 15, 1903) and that he would not resign or cease to be President prior to that time. He had also impressed this fact upon the members of his cabinet up to May 1 of the present year, when it was learned that it was his intention to resign at an early day." This announcement brought a number of candidates into the field, and Mr. Powell, on returning to Port au Prince on the 11th of May, found a precarious situation there. He secured an interview with President Sam the following morning, and "was informed that he had determined to resign, that his resignation was ready to be sent to Congress, that he was tired of this constant agitation, and that he would leave by the French steamer then in port for France, where he would pass the remainder of his life in quietness and peace; that since it was the wish of the people to have a new President he would not oppose them, but would abide by article 93 of the national constitution, and if the chambers did not elect a President to-day, Monday, the country would be without a President."

One of the candidates, General Leconte, a member of the Government about to be dissolved, "felt certain that he would be elected, as he had sufficient votes pledged in both houses to elect him. This news spread rapidly, the streets became full of armed citizens wending their way toward the chambers to prevent, forcibly if necessary, his election. At first it was difficult to get the members together. The streets in the neighborhood of the legislative halls were thronged with people and the Government troops, the latter to protect the members in case of violence. Several secret meetings of the members were held. At last the doors were opened, and as soon as opened every available space not occupied by the two houses was filled by the friends and foes of General Leconte. As the balloting was about to commence some one in the chambers fired his revolver. In an instant shooting commenced from all parts of the room. One or two were killed and the same number wounded. The members all sought shelter in the most available places they could find—under benches or desks. Others forgot the way they entered and sought exit by means of the windows. By this means the populace prevented the election of General Leconte, forcibly adjourned the chambers without date, and dispersed the members of both chambers. The Government troops immediately retired to the palace, the arsenal, the barracks, or the arrondissement, as it was thought that an attack would be immediately made on each place.

"A committee of safety was at once formed to safeguard the interests of the city, and as the news reached the other cities of the Republic similar committees were named with like duties. The next object was to secure the palace, arsenal, and the Government buildings. A concerted attack was made on each of the above places at 10 p. m., lasting about twenty minutes, in which the Government troops were the victors. It is supposed that in these engagements about one hundred persons

were either killed or wounded."

The next day, on the ex-President's request, Mr. Powell, as dean of the diplomatic corps, arranged with his associates to escort General and Mrs. Sam, together with General Leconte, to the steamer on which they wished to embark, and their departure was undisturbed.

On the 26th of May a Provisional Government, with General Boisrond Canal for its President, was established by delegates sent from "the several sections of the Republic." Elections for a new Chamber of Deputies were appointed to be held early in July; though the Constitution had declared that such elections "must occur during the first weeks in the month of January." This gave a fine opening for future troubles. Meantime, irregular skirmishing, preliminary to positive civil war, was bringing all business to an end. On the 26th of July Mr. Powell reported to Washington that civil war had been declared. The contest for the Presidency seemed narrowed to two candidates. General Nord Alexis, Minister of War and Marine in the Provisional Government, and Mr. A. Firmin, whose cause was supported by the Haytian navy, of two gunboats, commanded by Admiral Killick. It is needless to give details of the hostilities that ensued.

The elections were determined and the Chamber of Deputies was organized about the 20th of August. The Deputies had then to choose the Senatorial body, and the strife of factions among them prevented that election until late in the year, when the forces of the Provisional Government had achieved successes which brought the civil war practically to an end. General Nord Alexis, who had been campaigning for months, returned triumphantly with his army to Port au Prince on the 14th of December; was acclaimed President by the Army on the 17th, and was formally elected by the National Assembly on the 21st. He was then reported to be 85 years old.

HAITI: A. D. 1908.

Revolution once more.

Overthrow and expulsion of President Nord Alexis.

General Antoine Simon his elected successor.

The Government under President Nord Alexis was maintained for six years, by its own unsparing use of power, it would seem, rather than by the good will of the country. Revolutionary projects had been crushed with prompt vigor before they had much chance of development, until November, 1908, when one, led by a displaced military commander, General Antoine Simon, ran so rapid a course that it arrived at complete success on the 2d of the following month. The aged but indomitable Nord Alexis strove hard to resist it, even to the last inch of fighting in his own palace; but Port au Prince rose against him; his partisans fell away; his soldiers deserted; and finally, on the afternoon of December 2d, he consented to be taken on board a French training-ship, then in port. In doing this there was difficulty in saving him from an angry city mob. The escape of the fallen President was described in a Port au Prince despatch to the Associated Press as follows:

"So serious was the situation that the French minister, M. Carteron, and other foreign representatives, with members of a specially appointed committee, forced themselves upon the President, who finally consented to withdraw. Shouts greeted him as he stepped to his carriage. M. Carteron, carrying the French tri-color, threw the folds of the flag over the shoulders of the deposed president to protect him. All along the route the people who lined the streets shouted, jeered and cursed the fallen President, but when the landing stage was reached, the mob lost all restraint. The scene was tragic and shameful. Infuriated women broke through the cordon of troops and shrieked the coarsest insults into the very face of the President, who strove bravely to appear undismayed. They hurled themselves, fighting with hands and feet, against the soldiers, who found difficulty in forcing them back. One woman

with a murderous knife, got to the President's side and made a sweep at his body, but the blow fell short, and, before she could follow it with another, she was seized by a soldier. A man struck the President a glancing blow with his fist on the neck. Alexis, shaking his head, so, turned to M. Carteron and said: 'I told you your excellency.'

{304}

"To clear space, the troops fired several volleys over the heads of the mob. For a moment, they gave way, and Alexis, with the French colors draped about him, was hustled into a skiff, in tow of a steam launch, his disordered suite tumbling in after him. As the launch drew away, three Haytian gunboats and the American warships in the harbor fired a salute to the fallen President.

"A trunk which was left behind on the precipitate departure of the President and his party from the wharf, was seized upon by the rioters and broken open. It was found to contain some \$10,000 in gold and 20,000 Haytian gourdes. The specie was scattered about and promptly pillaged."

According to a despatch of the next day, "riot and pillage swept through the night following the flight of the fallen President, Nord Alexis. The populace, maddened by a taste of revolt, gave themselves over to absolute license, They looted stores and residences and then fought among themselves over the booty until an armed force, hastily gathered together by General Poitevin, fired a volley into the mob and finally drove them into hiding. In all, twelve persons were killed and many wounded before order was restored. ...

"Past 90 years of age—how many years beyond nobody knows—Nord Alexis had faced his foes with the strength and determination of a man in the very prime of life. To-day he said: 'The courageous conduct of M. Carteron (the French minister) saved

my life.' ... The President was broken-hearted over the attitude of his people, of whose hostility he was entirely ignorant. 'They always cheered me when I appealed in the streets,' he said mournfully, 'and I have always labored for their good.'

"He protested against the 'legend' that he ever had shown any enmity toward the whites, and, for the first time, expressed his views with regard to the summary executions which took place on March 15th last, when many men were shot to death by order of General Leconte. He had always been convinced, he said, that the men had been killed during an attack upon the palace. His officials and those upon whom he depended had kept back the truth from him.

"With regard to his destination, Nord Alexis said that he would wait until he could be transported to Jamaica, Saint Thomas or Martinique."

General Simon and his victorious army of rebellion entered the capital on the 5th. Some degree of order had been restored by a Committee of Safety, under ex-President Legitime, but fresh strifes were imminent between rival candidates for the vacant presidency. Simon, with his military following, brushed them aside, and obtained a unanimous election by the Haitian Congress on the 17th, assuming office as President on the 20th.

HAITI: A. D. 1909.

The Haitian People.

The splendid industry of the Women.

The curse of the country in its Military Government.

"Four-fifths of the Haitians—the peasantry of the country, that is to say—are hard working, peaceable country people. These four-fifths of 3,000,000 are entirely negro in race, and probably represent a mingling of West African types from Senegambia, Dahomé, and the Congo. It is a race which

exhibits, away from the towns, a fine physical development; its skin colour is much darker and the negro type more pronounced than in the United States. ... The women are the best part of the nation They are splendid, unremitting toilers. In the face of all discouragements with, which a bad Government clouds their existence the women of Haiti almost remind one of certain patient types of ant or termite, who, as fast as you destroy their labour of months or days, hasten to repair it with unslacking energy.

"The curse of Haiti from the day she established her independence in 1804 to the present time is the tyrannical and wasteful Government of the military party. ... Scarcely a President in the history of Haiti has not been a military man and the favourite leader, for the time being, of the major portion of the army. ... That President Antoine Simon will follow in the bloody footsteps of all his Presidential predecessors is improbable. He is a man of obviously kindly nature, with a record of 22 years' essentially clement government of the great southern province of Haiti; but he is an old man of imperfect education, and though he may turn out a complete surprise, yet so far he has done nothing to improve the conditions of political elections. The whole power of the country is still entirely based on the soldiers."

***Sir Harry Johnston,
in The London Times, April 13, 1909.***

HEARST, William R.:
Candidacy for Mayor of New York.

See (in this Volume)
NEW YORK CITY: A. D. 1905 and 1909.

HEARST, William R.:
Candidacy for Governor of New York State.

See (in this Volume)
NEW YORK STATE: A. D. 1906-1910.

HEDERVARY MINISTRY.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1902-1903.

HENEY, FRANCIS J.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO,
and UNITED STATES: A. D. 1903-1906.

HENRIQUES, CAMPOS.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

HENRY PHIPPS INSTITUTE.

See (in this Volume)
PUBLIC HEALTH: TUBERCULOSIS.

HENRY, Prince of Prussia:
Visit to the United States.

See (in this Volume)
UNITED STATES: A. D. 1902 (FEBRUARY-MARCH).

HEPBURN ACT.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1870-1908, and 1906-1909.

HERMANN, BINGER:
U. S. Commissioner of the Land Office, involved in Land Frauds.

See (in this Volume)
UNITED STATES: A. D. 1903-1906.

HERO FUNDS.

See (in this Volume)
CARNEGIE HERO FUNDS.

HERREROS, The.

See (in this Volume)
AFRICA: A. D. 1904-1905, and
GERMANY: A. D. 1906-1907.

HERRING, A. M.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

HERVÉ, Gustave:
Apostle of Anti-Militarism in France.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1909.

HERZEGOVINA.

See (in this Volume)
BALKAN AND DANUBIAN STATES.

HETCH HETCHY PROJECT, The.

See (in this Volume)
SAN FRANCISCO: A. D. 1901-1909.

HICKS-BEACH, SIR MICHAEL:

Retirement from the English Chancellorship of the Exchequer.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

HIGHBINDER ASSOCIATIONS, CHINESE.

See (in this Volume)
SAN FRANCISCO: A. D. 1902.

{305}

HILL, David Jayne:
Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

HILL, James J.:
His connection with the Northern Securities Case.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1901-1905.

HILMI PASHA.

See (in this Volume)
TURKEY: A. D. 1902-1903; 1908 (JULY-DECEMBER), and after.

HINDU DISAFFECTION.

See (in this Volume)
INDIA: A. D. 1907-1909.

HINDU IMMIGRATION:
The Resistance to in South Africa, Australia, and elsewhere.

See (in this Volume)
RACE PROBLEMS.

HISGEN, Thomas L.:
Nominated for President of the United States.

See (in this Volume)
UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

HITCHCOCK, Ethan Allen:
Secretary of the Interior.

See (in this Volume)
UNITED STATES: A. D. 1901-1905, 1903-1906, and 1905-1909.

HITCHCOCK, Frank H.:
Postmaster-General.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

HOFF, JACOBUS HENRICUS VAN'T.

See (in this Volume)
NOBEL PRIZES.

HOHENLOHE, Prince.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1905-1906.

"HOLDING COMPANY," The:
Decision of its Illegality as a method of Combination
between Corporations.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1901-1905.

HOLLAND.

See (in this Volume and Volume III)
NETHERLANDS.

HOLSTEIN, Herr von:
On the German "Navy Fever."

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907-1909.

HOLSTEIN-LEDREBORG MINISTRY.

See (in this Volume)
DENMARK: A. D. 1905-1909.

HOLY SEE.

See (in this Volume and Volume IV)
PAPACY.

"HOLY WAR," IN ARABIA.

See (in this Volume)
TURKEY: A. D. 1903-1905.

HOMEL, JEWISH MASSACRE AT.

See (in this Volume)
RUSSIA: A. D. 1901-1904.

HONDURAS.

See (in this Volume)
CENTRAL AMERICA.

HORUP, M.

See (in this Volume)
DENMARK: A. D. 1901.

HOTTENTOTS, REVOLT OF THE.

See (in this Volume)
GERMANY: A. D. 1906-1907.

HOURS OF LABOR.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902;
GERMANY: A. D. 1908.
Also,
LABOR PROTECTION: HOURS OF LABOR; and
LABOR REMUNERATION: WAGES AND COST OF LIVING.

HOUSING AND TOWN-PLANNING ACT.

See (in this Volume)
SOCIAL BETTERMENT: ENGLAND: A. D. 1909.

HSIHOYEN, BATTLE OF.

See (in this Volume)
JAPAN: A. D. 1904 (JULY-SEPTEMBER).

HSUAN-TUNG:
Child-Emperor of China.

See (in this Volume)
CHINA: A. D. 1908 (NOVEMBER).

HUDSON BAY REGION: A. D. 1903-1904.
Canadian measures to establish Sovereignty over Land and Sea.

See (in this Volume)
CANADA: A. D. 1903-1904.

HUDSON BAY REGION:

Projected Railway from the Canadian Northwest.

See (in this Volume)
RAILWAYS: CANADA: A. D. 1908-1909.

HUDSON-FULTON COMMEMORATION.

See (in this Volume)
NEW YORK STATE: A. D. 1909.

HUDSON TUNNELS.

See (in this Volume)
NEW YORK CITY: A. D. 1900-1909.

HUGHES, Charles Evans:

Counsel of the Legislative Joint Committee to Investigate
Life Insurance Companies in New York.

See (in this Volume)
INSURANCE, LIFE.

HUGHES, Charles Evans:

Governor of the State of New York.

See (in this Volume)
NEW YORK STATE: A. D. 1906-1910.

Also,

ELECTIVE FRANCHISE: UNITED STATES, and PUBLIC
UTILITIES.

HUGHES, Charles Evans:

On the Proposed Income Tax Amendment to the Constitution
of the United States.

See (in this Volume)
UNITED STATES: A. D. 1909 (JULY).

HUMPHREY, Judge:
Immunity Decision in "Beef Trust" Case.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-
1906.

HUNGARY.

See (in this Volume)
AUSTRIA-HUNGARY.

HYDE, Dr. Douglas:
Founder of Gaelic League.

See (in this Volume)
IRELAND: A. D. 1893-1907.

HYDE, HENRY B.:
Founder of the Equitable Life Assurance Society.

See (in this Volume)
INSURANCE, LIFE.

HYDE, James Hazen:
Relations to the Equitable Life Assurance Society.

See (in this Volume)
INSURANCE, LIFE.

I.

ICELAND:

Its Ancient Claims to Nationality.

Within the last few years the Icelanders have been asserting their ancient right to a national life of their own so seriously that the King of Denmark has exerted himself to soothe their discontent with but partial success. For many historical reasons Iceland ought to have an independent standing among the European states. For some of those reasons its people seem fairly entitled to recognition as the foremost representatives of the old Norse or Scandinavian race. Their ancestors were men of the best blood of Norway, who quitted that country in the ninth century and took possession of the arctic island, because they would not submit to the despotism established by Harold the Fairhaired. That they took with them the best culture of their race and time is proved by the fact that almost everything we know of the old Norse literature, and of the mythology and history embedded in it, was preserved by their pens. Learning was cherished and cultivated among them from the first: and they had the capacity and the spirit for self-government from the first. Before the end of the tenth century they had adopted a republican constitution and founded a commonwealth which endured for about 300 years. This antedated the rise of the city republics of Italy and the free cantons of the Swiss by one or two centuries at the least.

The Icelandic republic was destroyed at last by feuds among its leading families, which invited Norwegian intervention from time to time, and subjected the island to the parent kingdom in the end. Late in the fourteenth century the three Scandinavian kingdoms of Norway, Sweden, and Denmark were joined in a union which did not endure.

{306}

Its dissolution left Norway, with Iceland as a dependency, attached to Denmark, and that connection was maintained till

1814. Norway was then transferred from the Danish to the Swedish crown; but Iceland was still kept as a part of the dominion of the Danish King. Norway regained national distinctness and independence in 1905, and now it is to be hoped that Iceland will have its just turn.

The island has never been governed as a mere province of Denmark, but always under its own laws. Its old representative assembly, the Althing, was suspended during most of the first half of the last century, but revived in 1845 as a merely consultative assembly. As such it voiced very steadily the claim of the Icelanders to more of autonomy and political distinctness than their Danish lord was willing to yield. In 1874, however, at the 1,000th anniversary of the Icelandic settlement, he granted a constitution which reinvested the Althing with legislative powers, and met the wishes of the island in other important ways; but not so far as to produce content.

IDAHO: A. D. 1905-1907.

Murder of ex-Governor Steunenberg.

Trial and acquittal of Haywood.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1899-1907.

IDE, HENRY CLAY:

Governor-General of the Philippine Islands.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1906-1907.

IGNATIEFF, COUNT ALEXEI:

Assassination.

See (in this Volume)

RUSSIA: A. D. 1906.

ILLINOIS: A. D. 1899.

Enactment of the first Juvenile Court Law.

See (in this Volume)

CHILDREN, UNDER THE LAW: AS OFFENDERS.

IMAM, ALI.

See (in this Volume)

INDIA: A. D. 1907-1909.

-----IMMIGRATION AND EMIGRATION: Start-----

IMMIGRATION AND EMIGRATION: Australia: A. D. 1909.

The needs of the country.

The attitude of the people toward Immigration.

The difficulties.

Speaking at a dinner in his honor, given in London, after his return from five years of service as Governor-General of Australia, Lord Northcote touched on what he described as "the Aaron's rod of all political questions in Australia, which, if it does not swallow up the others, at all events the others depend upon it,"—meaning the increase of Australia's population. As to the attitude of Australia to the immigration question he said: "No doubt, from time to time certain over-zealous officials have made mistakes which have prejudiced Australia in the eyes of the British public, but I do not believe that anything in the nature of a fixed desire to keep out men who are able to sustain themselves by their labour has ever existed. Of course, Australia has her number of unemployables, and is not prepared to import more from the old country. Then I come to the very important question of coloured immigration, and that is a question we should look at from an Australian as well as from a British point of view. ...

"Suppose Australia or Canada confronted by the presence of a large number of Asiatics, men of ability enough to hold their own, men who, if they come there, come to stay, and it is quite conceivable from an Australian point of view that if they do not rigidly secure themselves against the possibility of being swamped by Asiatic labour, they may be presented with a problem even more serious than is the great negro question in the United States. I say this to show that there is more to be said for the Australian point of view than some people are inclined to suppose. Of course a great deal depends upon whether the huge northern territory can be populated by white men. Upon that I hesitate to pronounce a definite opinion. I believe it is possible for a white man, if he is steady, sober, and careful, to colonize for a time this great tropical land; but it is a very serious matter how far the climate is suitable for women and children, and whether we can hope from generation to generation that a healthy and virile race can continue to live and breed in that climate. The territory is over half a million square miles in extent, and the white population is well under 2,000 people. ...

"There is plenty of land all through Australia for men who are willing to go there and will be steady and sober and work hard. I have been North, South, East, and West. I can claim for myself the credit that I have travelled fairly hard, and I have seen in every State of Australia plenty of land available for close settlement. If the great landowners are disinclined to sell their holdings—and I quite acknowledge that a great deal of the best land in Australia is in comparatively few hands—at all events the State Governments have very large reserves of land; and by the application of irrigation and other methods of scientific farming they could compete on even terms at least with these squatters, and they could turn these waste lands into fertile country fit for settlers. I am very glad to think that both in New South Wales and Victoria very large irrigation works are in progress and will be completed in a very short time, adding enormously to the acreage of land

fit for cultivation; and I say deliberately and advisedly, I care not for reports of Commissions or individuals, that there is land and to spare for generations for men who are ready to undertake the cultivation."

A correspondent of the London *Times*, writing from Sydney in January, 1909, on the subject of the vast quantity of fertile land in Australia that is locked up by private owners in vast sheep runs, to the exclusion of settlement, had this to say: "You may take it as an axiom that immigration to Australia will do no good till the fertile lands are thrown open. And a very large proportion of the closed land is controlled from London, either by ex-Australians who live there and draw their income from Australian property, or by big British companies. ... It is necessary to warn seriously shareholders and directors of the big companies that they must put pressure on their officials out here, or prepare to have more drastic pressure forced on themselves. At present, those officials are often responsible for Australian dislike of the absentee company."

{307}

In another letter to the same paper it was said: "Somehow or other the locked-up lands must be opened for agricultural uses. No one now doubts that, and only a few owners, usually either absentees or corporations, pretend to doubt it. The Labour recipe is a Federal land tax on estates over £5,000 in value, of such a kind that fair use of the land will produce profit on which the tax will be a mere fleabite, while it will be a serious charge on fertile land that is used only for sheep runs. The proposed tax is to be Federal simply because there is no hope of passing the requisite Bill through several of the State Upper Houses; otherwise it is more properly a State concern. Now what we have to remember is that this is not only Labour's remedy. I believe it would be quite possible to carry such a proposal in the present Federal Parliament, so

definitely has public opinion swung round against the big owners who keep their land idle. If it is not carried next session, it will be because Mr. Deakin gave his word two years ago that he would not introduce the subject in this Parliament; but Mr. Deakin's attitude is this—that he wishes the States would do it, that he does not consider this Parliament has any mandate to legislate for it, but that he personally has always favoured such a tax, and, if the States take no steps in that direction, he will support, or even propose, the measure when it has been submitted to the country at a general election. It is useless, therefore, for any one to decry the tax as merely a Labour idea, a 'Socialistic' nostrum. The support given it in Australia is far wider than that. And, apart from the many who advocate it as the best remedy for the present land-hunger, there is an increasing body of electors who are being forced into supporting it because no other remedies seem practicable."

The attitude of the Australian Labor Party on the inseparable immigration and land questions was stated very clearly and succinctly in a letter to the London *Times*, dated at Newcastle, New South Wales, June 30, 1909, by a member of the Party, Frank Pittock, who signs himself "a Magistrate of the Territory." He writes: "We cannot at present obtain land for our own genuine land-seekers, skilled in the peculiar requirements of pastoral and agricultural work on the Australian soil. We certainly are unable to give our own unemployed a chance on the land. Any importations of labour from over the seas merely serve to render more distressful the unfortunate position of the colonial out-of-works. On the other hand, we do now, and always have, welcomed new arrivals who may be able, in the near future, to effectively augment our productive wealth. The party fully recognizes the need of population—of the right sort. We have vast empty spaces all over the continent, now grazing grounds for sheep, yet eminently suitable for intense settlement. The Australian Labour party seeks the support, at the forthcoming general

election, of all who believe, as does your own Australian Correspondent, that the satisfying of the earth-hunger of our people is the great outstanding need of the day. Can we but be authorized to force the huge monopolists to surrender portions of their holdings we shall have, not only land for our own landless, but land and to spare for those who seek it from the British Isles. ... We dare not, as a conscientious and humanitarian party, invite our kith and kin from other parts to come here now. We should be traitors to the Empire, betrayers of the race, if we endorsed in any way the attitude of those who seek, apparently, to flood this fair land with any population at all, regardless of the evil consequences to the immigrants themselves, and alike regardless of the grave injustice thereby done to native-born landless and, in many cases, at present, work-seeking Australians."

A Press despatch from Sydney, October 30, made the following announcement: "Under the closer settlement amendment Bill, which is now before the Legislative Council of New South Wales, the Government will be empowered by proclamation to earmark estates in the vicinity of towns which might impede settlement. When such estates are of the value of £10,000 and upwards the Government may agree with the owners to subdivide them on terms and areas to be agreed upon, so as to ensure *bona fide* settlement. If the owners fulfil the agreement, the proclamation will be cancelled; if the owners refuse to subdivide within five years, the Government reserves the power to resume at the value on the date of proclamation."

IMMIGRATION AND EMIGRATION: Brazil: 1908-1909.
Increasing Influx.

"During the year [1908] 112,234 persons came into the country, of which 17,539 were visitors and 94,695 immigrants. This shows a notable increase of 26,908 immigrants, or about forty per cent. over the number registered in 1907. Of these 74,999 came at their own expense and 11,109 at the cost of the Union.

The increase continues this year, as will be seen from the record of the Port of Rio de Janeiro alone, which received 13,580 immigrants during the first quarter of this year, as compared with 8,607 in 1908 and 5,943 in 1907. In spite of the small grant allotted to this service, it has been conducted with the greatest efficiency. The Department for the Peopling of the Soil has effected the location of immigrants in 26 colonies, situated respectively in the States of Espirito Santo, Rio de Janeiro, Minas Geraes, São Paulo, Parana, Santa Catharina, and Rio-Grande-do-Sul, eleven of which are directly under the supervision of the Union. All the nucleus colonies founded last year enjoy unrestricted prosperity, and it has been even necessary to acquire neighbouring lands in order to satisfy the constant demand for more land on the part of the families settled."

***President's Message to Congress,
May 3, 1909.***

IMMIGRATION AND EMIGRATION: Canada: A. D. 1896-1909.
The "American Invasion" of the Northwest.
Immigration of the last decade.

See (in this Volume)
CANADA: A. D. 1896-1909.

IMMIGRATION AND EMIGRATION: England: A. D. 1905-1909.
The Aliens Act.
Restrictions on the admission of Aliens.
A new policy.

Until 1905, England offered practically an open door to the aliens who sought either a permanent home or a temporary residence on her island soil. Little scrutiny was given to them and almost no restriction on their coming in. But some years before that date a growing criticism of such unconditioned hospitality was begun.

{308}

In 1888 it induced the appointment of a Select Committee of the House of Commons "to inquire into the laws existing in the United States and elsewhere on the subject of the immigration of destitute aliens, and the extent and effect of such immigration into the United Kingdom, and to report whether it is desirable to impose any, and if so, what, restrictions on such immigration." The Commission reported in 1889 that it thought "the alien population was not numerous enough to create alarm," and that it was "not prepared to recommend legislation at present," but saw "the possibility of such legislation becoming necessary in the future." Several proposals of restrictive measures were urged without success in the course of the next dozen years, and, in 1902, a Royal Commission was appointed, "to inquire into—

(1) the character and extent of the evils which are attributed to the unrestricted immigration of aliens, especially in the Metropolis;

(2) the measures which have been adopted for the restriction and control of alien immigration in foreign countries and in British colonies."

The Commission produced an elaborate report in 1903 (Parliamentary Papers, Cd. 1741). Reviewing the hospitality of the past, it found that the migrant aliens of former generations had made the English people "their debtors"; but they were of a different stamp from the immigrants of the present movement, which "may be said to have begun about 1880, and is drawn mainly from the Jewish inhabitants of Eastern Europe." The causes of this recent exodus have been partly economic and partly due to oppressive measures; and the result of the Commission's investigation of it was the expressed opinion that "in respect of certain classes of immigrants, especially those arriving from Eastern Europe, it is necessary in the interests of the State generally, and of certain

localities in particular, that the entrance of such immigrants into this country and their right of residence here should be placed under conditions and regulations coming within that right of interference which every country possesses to control the entrance of foreigners into it. Such regulations should, in our opinion," the report went on to say, "be made in order to prevent so far as possible this country being burdened with the presence of 'undesirable aliens' and to provide for their repatriation in certain cases.

"But we think that the greatest evils produced by the presence of the alien immigrants here are the overcrowding caused by them in certain districts of London, and the consequent displacement of the native population. There seems little likelihood of being able to remedy these great evils by the enforcement of any law applicable to the native and alien population alike. We therefore think that special regulations should be made for the purpose of preventing aliens at their own will choosing their residence within districts already so overcrowded that any addition to dwellers within it must produce most injurious results. On this point the Commission recommended specifically that if it be found that the immigration of aliens into any area has substantially contributed to any overcrowding, and that it is expedient that no further newly-arrived aliens should become residents in such area, the same may be declared prohibited area.

"We are also of opinion that efforts should be made to rid this country of the presence of alien criminals (and other objectionable characters)."

An Act embodying substantially the recommendations of the Commission passed Parliament in 1905. Both the Act and the administration of it have been criticised since, as lacking stringency. Its working was reviewed at considerable length in *The Times* of February 9, 1909 which made the following statements, among others, on the subject:

"The Act, as now administered, does not subject all alien immigrants, or even all steerage immigrants, to inspection. To begin with, the regulation of alien immigration is confined, practically, to the traffic between the United Kingdom and ports in Europe or within the Mediterranean Sea."

In fact, according to *The Times*, "the vast majority of aliens are not affected by the Act. A foreigner may enter this country unchallenged—If he comes from an 'extra-European' port (with some exceptions); if he is a cabin passenger; if he is an exempted second-class passenger; if he is a transmigrant; if he is a passenger in a ship containing fewer than 21 'alien steerage passengers.'

"Then also, though nominally a subject for inspection, he is not called upon to satisfy the full requirements of the Act, if he is proceeding to a destination outside the United Kingdom; if he holds a return ticket; if he is a seaman; if he is fleeing from religious or political persecution."

IMMIGRATION AND EMIGRATION: Germany: A. D. 1904-1908.
Remarkable decrease of Emigration.

"German emigration has dwindled so steadily and rapidly that at present it would seem to have reached the low-water mark in its downward trend. A glance at the official statistics of emigration will indicate the remarkable extent of this retrogression. In 1852, Germans, to the number of 145,918, and in 1854, to the number of 215,009, went to the United States alone. In 1872, just after the unification of the Empire, the grand total of German emigration amounted to 128,152; in 1873, to 110,438; in 1881, to 220,902; in 1882, to 203,585 persons. During the years succeeding 1882 up to 1892, the figures, in the average, still surpassed 100,000, but since then they have shown a notable falling off. Thus only 22,309 in 1900; 22,073 in 1901; 32,098 in 1902; 36,310 in 1903; 27,984 in 1904—were

recorded as having gone from Germany to lands beyond the sea.

"This retrogressive tendency appears the more surprising when it is remembered that Germany's population, mainly as a result of the excess of births over deaths, but partly through its inland migration, has, since the foundation of the Empire, increased at an average annual rate of over half a million, during recent years at the still higher rate of 800,000 per annum. The cause for this seeming anomaly lies in the extraordinary economical development of Germany during the last decade, in the consequent steady improvement of the social status of its laboring classes, brought about by a progressive rise in wages, and in the elimination, thereby, of one of the strongest incentives to emigration in former days."

***Baron Speck von Sternburg,
The Phantom Peril of German Emigration and
South American Settlements
(North American Review, May, 1906).***

{309}

Of the emigrants from Germany in 1908, the United States Consul-General reported that they numbered only 19,880, being 11,816 less than in 1907.

"From 1897 to 1907 the yearly mean average was 27,526, or 0.47 per cent. of the population. Altogether since 1871 the German Empire has lost only 2,750,000 people by emigration, or as many people as can be made good in four years by the excess of births over deaths."

IMMIGRATION AND EMIGRATION: Italy: A. D. 1908.
Great falling off in the Movement of Emigration.

As reported in a Press despatch from Rome, in June, 1909, the statistics of 1908 showed a marked falling off in Italian

emigration. "In 1907 the total number of emigrants was 704,675; in 1908 it was only 486,674. The most notable reduction is in the number of emigrants to the United States, which has fallen from 298,124 in 1907 to 131,501 in 1908. This chiefly affects Southern Italy, the Abruzzi, Campania, Calabria, Basilicata, and Sicily; the northern emigration, which for the most part is directed towards European countries, is also diminished, but in a less proportion. Unfortunately, this change is not due to more favourable labour conditions in Italy, but to a smaller demand for labour in North America. The number of emigrants to Argentina has slightly increased from 78,493 to 80,699; but the great market for Italian labour, the United States, is, to judge from the figures of this year as well as last year, surely and irretrievably growing smaller."

IMMIGRATION AND EMIGRATION: Peru: A. D. 1906.
Decree for the Encouragement of Immigration.

The following decree was promulgated by President Pardo the 10th of August, 1906:

"First.

The State will provide third-class passages for the natives of Europe and America who may wish to introduce industrial or private enterprises, provided that they fulfill the following conditions:

(a) That they are from 16 to 50 years of age, if they are males, and from 10 to 40 if they are females, fulfilling the conditions of morality and health laid down in the rules now in force.

(b) That they come to engage in agriculture, in mining, or in other industries, or to devote themselves to these occupations for account of colonization, immigration, or irrigation enterprises.

"Second.

The payment of the passages will be made through the consuls of the Republic in the ports of shipment in view of the orders cabled by the ministry of fomento, to which office must be presented in writing the request of the interested parties for such payment, indicating at the same time the number of immigrants, the agricultural estate or industrial establishment to which they are destined, and declaring themselves obliged to provide lodging, board, and medical attendance for the immigrants from the port of landing to the place of destination.

"Third.

The consuls of the Republic, on receipt of the order from the minister of fomento, shall make the payment of the passages to the steamer companies direct, with previous personal and individual evidence that the immigrants fulfill the conditions set forth in Article 1 of this decree, and for this purpose they shall give a certificate to each immigrant, which shall be collected by the maritime authorities of the port of landing and afterwards forwarded to the ministry of fomento.

"Fourth.

A general register of immigrants shall be opened in the agricultural section of the ministry of fomento, in accordance with the models and instructions obtained from that department."

IMMIGRATION AND EMIGRATION: UNITED STATES: A. D. 1868-1908.

Chinese Exclusion Laws vs. Treaties with China.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1868-1900, and 1905-1908.

IMMIGRATION AND EMIGRATION: A. D. 1905-1909.

National Conference of 1905.

The New Immigration Law.

Excluded Classes.

Congressional Commission to investigate Immigration.

Its Preliminary Report.

Information for Immigrants.

Measures for distributing them.

Backward turn of the tide in 1908.

At a National Conference on the subject of Immigration, held at New York in December, 1905, under the auspices of the National Civic Federation, the Commissioner-General of Immigration, Mr. Frank P. Sargent, presented some facts of the immigration of the preceding statistical year which claimed very grave consideration. During the twelve months ending June 30 there had been 1,026,499 arrivals in this country, and of this number seven hundred and seventy-seven thousand, or 76 per cent., settled in six States—New York, Pennsylvania, Massachusetts, Illinois, New Jersey, and Ohio. New York received over three hundred and fifteen thousand, while the West received only forty three thousand; Pennsylvania received over two hundred and ten thousand, while the South received only forty-six thousand. Fifty-seven thousand came to New Jersey, while North Carolina's share was one hundred and eighty-three. These figures gave point to Mr. Sargent's statement that the immigrants go where their friends are. Their only sources of information concerning this country are the agents of the transportation companies and their friends who have come here before. The resulting lack of knowledge concerning those parts of the country in which they are most needed is the chief cause of the congestion in the large cities and the more densely populated States which is one of the most serious aspects of the immigration problem.

Nearly twelve thousand immigrants were refused admission during the year, of whom eight thousand were paupers, two

thousand diseased, and one thousand brought in violation of the contract labour law. "It is right," said Mr. Sargent, "that they should be denied admission, wrong that they ever should have been started from home."

In the new Immigration Law enacted by Congress in February, 1907, provision was made for giving information to immigrants, after their landing in the country, such as may guide them in the choice of their place of settlement. It authorized the Commissioner-General of Immigration to establish a Division of Information, the duty of which shall be "to promote a beneficial distribution of aliens admitted into the United States among the several States and Territories desiring immigration." To which end "correspondence shall be had with the proper officials of the States and Territories, and said division shall gather from all available sources useful information regarding the resources, products, and physical characteristics of each State and Territory, and shall publish such information in different languages and distribute the publications among all admitted aliens who may ask for such information at the immigrant stations of the United States and to such other persons as may desire the same." Agents appointed by any State or Territory to represent to arriving immigrants the inducements it can offer to them are to have perfect freedom and opportunity to do so.

{310}

For checking the immigration of prohibited classes of aliens at the foreign starting-points of their journey to America, instead of at the landing places on this side of the ocean, the new law only lays more rigid restrictions and heavier penalties on the transportation companies, to make them exercise a more careful discrimination in their acceptance of passengers. It adds several classes to the former list of aliens to be excluded from admission to the United States. The list now reads: "All idiots, imbeciles, feeble-minded persons,

epileptics, insane persons, and persons who have been insane within five years previous; persons who have had two or more attacks of insanity at any time previously; paupers; persons likely to become a public charge; professional beggars; persons afflicted with tuberculosis or with a loathsome or dangerous contagious disease; persons not comprehended within any of the foregoing excluded classes who are found to be and are certified by the examining surgeon as being mentally or physically defective, such mental or physical defect being of a nature which may affect the ability of such alien to earn a living; persons who have been convicted of or admit having committed a felony or other crime or misdemeanor involving moral turpitude; polygamists, or persons who admit their belief in the practice of polygamy, anarchists, or persons who believe in or advocate the overthrow by force or violence of the Government of the United States, or of all government, or of all forms of law, or the assassination of public officials: prostitutes, or women or girls coming into the United States for the purpose of prostitution or for any other immoral purpose; persons who procure or attempt to bring in prostitutes or women or girls for the purpose of prostitution or for any other immoral purpose,"—together with contract laborers, so called, assisted immigrants, and children under sixteen years of age unaccompanied by one or both of their parents.

The new law created a Commission to investigate the subject of immigration and to report its findings and recommendations to Congress. The Commission to be composed of three Senators, three Representatives, and three persons to be appointed by the President. A preliminary report from this Commission was presented to Congress on the 1st of March, 1909. This indicated no more than the progress that had been made in a most exhaustive investigation, which probably would require the greater part of another year to carry it to completion. It was covering every phase of the immigration question, including Oriental aliens and other excluded classes, peonage,

charity among immigrants, white slave traffic, conditions of steerage, anthropology, congestion in large cities, alien criminality, competition of immigrants, school inquiries, administration of the immigration laws, distribution of immigrants, and other questions. In its work the Commission had employed 198 persons, of whom 82 were in Washington, 2 in New York, 2 in San Francisco, 92 in field work, and 20 in special lines of inquiry.

The preliminary report of the Commission indicates that the present provisions of law for the exclusion of undesirable persons are stronger in theory than they are effective in practice, and that thousands of very undesirable immigrants enter the country every year. The Commission expresses a confident expectation of finding means of prevention that will be effective. It is conducting an inquiry of great importance into the subject of alien criminality. The higher criminal courts of New York city are keeping records, at its request, in detail, of each person convicted of crime, and it is intended that a study of foreign-born criminals, and criminals of the second generation, will be made in that city. The investigation, however, is not confined to the larger cities.

The Division of Information in the Department of Commerce and Labor which the new Immigration Law provided for was organized with Mr. Terence V. Powderly, former Commissioner-General of Immigration, as its Chief. In July, 1909, there was an announcement of its undertaking to bring about coöperation with the Governors of States and Territories, in organized measures to accomplish a better distribution through the country of the foreigners that come to it.

Dr. L. Pierce Clark has lately called attention to the fact that the increase of immigration into the United States has reached the point of making the influx of aliens the principal source of population, and that "its character has changed so fundamentally that it has assumed an entirely new relation to

American social problems. Up to 1900 the average annual immigration had not exceeded one-half of one per cent of the population of the United States, and the races which had made the first settlement in the country were still contributing more than 75 per cent. of the whole number of arrivals. By 1901 the new immigration had fairly started, the English, Irish, German, and Scandinavian had been supplanted by Hebrews, Slavs, and Italians, and the impetus had been received which, four years later, was to carry immigration past the million-a-year mark. More than one-fifth of all the immigrants who have come to this country have arrived since 1900, and, with the changed source of immigration, a remarkable transformation in the composition of our foreign-born population is in progress."

The industrial depression of 1907, however, produced evidence that much of this later immigration has not been for permanent settlement; that the facilitation and cheapening of travel have brought about extensive movements of people, from southern and southeastern Europe, especially, who come to America only to earn and save a little fund which suffices for a comfortable remainder of life in their own land. The check to such earning which occurred in 1907 turned the tide of migration instantly back from America to Europe. According to statistics prepared by Mr. Watchorn, the late Commissioner-General of Immigration, the excess of departures over arrivals at the port of New York, in the half year from January 1 to July 1, 1908, was 129,511. In the whole fiscal year that ended June 30, 1908, the departures from New York were 631,458; the arrivals 689,474; showing the gain of population to the country that year from incomers through the port of New York to have been only 58,016, even if all became permanent inhabitants.

See, also (in this Volume)
RACE PROBLEMS, AND CANADA.

-----IMMIGRATION AND EMIGRATION: End-----

{311}

IMPERIAL CONFERENCE.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

IMPERIAL PRESS CONFERENCE, The.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909 (JUNE).

INCOME TAX:

Proposed amendment to the U. S. Constitution.

See (in this Volume)
UNITED STATES: A. D. 1909 (JULY).

INDEMNITY FOR THE BOXER RISING:

Remittance of part of it by the United States.

See (in this Volume)
CHINA: A. D. 1901-1908.

INDEPENDENCE LEAGUE.

See (in this Volume)
NEW YORK CITY: A. D. 1905, and
NEW YORK STATE: A. D. 1906-1910.

INDEPENDENCE PARTY, or KOSSUTH PARTY.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1902-1903, and 1904.

INDEPENDENT FILIPINO CHURCH.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1902.

INDEPENDENT LABOR PARTY, BRITISH.

See (in this Volume)
ENGLAND: A. D. 1903, and 1905-1906; also,
SOCIALISM: ENGLAND.

INDEPENDENTS.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

INDEPENDISTAS.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

INDETERMINATE SENTENCES.

See (in this Volume)
CRIME AND CRIMINOLOGY.

-----INDIA: Start-----

INDIA: A. D. 1902-1903.
Ravages of the Bubonic Plague.

See (in this Volume)
PUBLIC HEALTH: BUBONIC PLAGUE.

INDIA: A. D. 1902-1904.
Forced opening of Tibet to trade.
The mission and expedition of Colonel Younghusband.

See (in this Volume)
TIBET: A. D. 1902-1904.

INDIA: A. D. 1903.
The question of Indian Labor in South Africa.

See (in this Volume)
SOUTH AFRICA: A. D. 1903.

INDIA: A. D. 1903 (January).
Great Durbar at Delhi.

A great ***Durbar*** or reception was held at Delhi, on the first of January, 1903, by the Viceroy and by the Duke and Duchess of Connaught, specially deputed to represent their majesties the Emperor and Empress of India. About 100 ruling chiefs were in attendance, and the visitors drawn by the spectacle were estimated to number 173,000.

INDIA: A. D. 1903-1908.
Hostility in the Transvaal to British Indian Immigration.

See (in this Volume)
RACE PROBLEMS: SOUTH AFRICA: A. D. 1903-1908.

INDIA: A. D. 1904-1909.
Coöperative Industrial Movement.

See (in this Volume)
LABOR ORGANIZATION: INDIA.

INDIA: A. D. 1905 (April).
Terrific earthquake in the Punjab and United Provinces.

See (in this Volume)
EARTHQUAKES: INDIA: A. D. 1905.

INDIA: A. D. 1905 (August).
Resignation of Lord Curzon.

Announcement of the resignation of the Viceroyalty by Lord Curzon was made August 21. The immediate cause of his action was understood to be the refusal of the Home Government to approve his nomination of an officer, General Barrow, whom he wished to have placed on the Viceroy's Council. But friction between Lord Curzon and the Commander-in-Chief in India, Lord Kitchener, over questions of military administration and the authority belonging to their respective offices had been troublesome for some time past, and the Viceroy had seemed to regard the attitude of the government at home as more favorable to Lord Kitchener than to himself.

INDIA: A. D. 1905 (August).
Agreement concerning India between Great Britain and Japan.

See (in this Volume)
Japan: A. D. 1905 (August).

INDIA: A. D. 1905-1908.
The Starving Poverty of the Mass of the People.

"Suppose we divide the past century into quarters, or periods of twenty-five years each. In the first quarter there were five famines, with an estimated loss of life of 1,000,000. During the second quarter of the century were two famines, with an estimated mortality of 500,000. During the third quarter there there were six famines, with a recorded loss of life of 5,000,000. During the last quarter of the century, what? Eighteen famines, with an estimated mortality reaching the awful totals of from 15,000,000 to 26,000,000. And this does not include the many more millions (over 6,000,000 in a single year) barely kept alive by government doles.

"What is the cause of these famines, and this appalling increase in their number and destructiveness. The common answer is, the failure of the rains. But there seems to be no evidence that the rains fail worse now than they did a hundred years ago. Moreover, why should failure of rains bring famine? The rains have never failed over areas so extensive as to prevent the raising of enough food in the land to supply the needs of the entire population. Why then have people starved? ... Because they were so indescribably poor. All candid and thorough investigation into the causes of the famines of India has shown that the chief and fundamental cause has been and is the poverty of the people,—a poverty so severe and terrible that it keeps the majority of the entire population on the very verge of starvation even in years of greatest plenty. ...

"And the people are growing poorer and poorer. The late Mr. William Digby, of London, long an Indian resident, in his recent book entitled, *Prosperous India*, shows from official estimates and Parliamentary and Indian Blue Books, that, whereas the average daily income of the people of India in the year 1850 was estimated as four cents per person (a pittance on which one wonders that any human being can live), in 1882 it had fallen to three cents per person and in 1900 actually to less than two cents per person. Is it any wonder that people reduced to such extremities as this can lay up nothing? ...

{312}

"One cause of India's impoverishment is heavy taxation. Taxation in England and Scotland is high, so high that Englishmen and Scotchmen complain bitterly. But the people of India are taxed more than twice as heavily as the people of England and three times as heavily as those of Scotland. According to the latest statistics at hand, those of 1905, the annual average income per person in India is about \$6.00, and the annual tax per person about \$2.00. ...

"Notice the single item of salt-taxation. Salt is an absolute necessity to the people, to the very poorest; they must have it or die. But the tax upon it which for many years they have been compelled to pay has been much greater than the cost value of the salt. Under this taxation the quantity of salt consumed has been reduced actually to one-half the quantity declared by medical authorities to be absolutely necessary for health. ...

"Another cause of India's impoverishment is the destruction of her manufactures, as the result of British rule. ... Great Britain wanted India's markets. She could not find entrance for British manufactures so long as India was supplied with manufactures of her own. So those of India must be sacrificed. England had all power in her hands, and so she proceeded to pass tariff and excise laws that ruined the manufactures of India and secured the market for her own goods.

"A third cause of India's impoverishment is the enormous and wholly unnecessary cost of her government. ...

"Another burden upon the people of India which they ought not to be compelled to bear, and which does much to increase their poverty, is the enormously heavy military expenses of the government. ...

"Perhaps the greatest of all the causes of the impoverishment of the Indian people is the steady and enormous drain of wealth from India to England, which has been going on ever since the East India Company first set foot in the land, three hundred years ago, and is still going on with steadily increasing Volume. ... Says Mr. R. C. Dutt, author of the ***Economic History of India*** (and there is no higher authority), 'A sum reckoned at twenty millions of English money, or a hundred millions of American money [some other authorities put it much higher], which it should be borne in

mind is equal to half the net revenues of India, is remitted annually from this country [India] to England, without a direct equivalent.'"

***J. T. Sunderland,
The New Nationalist Movement in India
(Atlantic Monthly, October, 1908).***

INDIA: A. D. 1905-1909.

The Partition of Bengal.

Resentment and Disaffection of the Bengalese.

The Swadeshi Movement.

Reported improvement of conditions in the new province of Eastern Bengal and Assam.

The partition of Bengal, in October, 1905, one of the latest measures of Lord Curzon's administration of the Government of India, gave rise to much native agitation and disaffection, and is still under criticism in England, but not likely to be undone. In the view of the Anglo-Indian Government the partition was a necessity, because of the magnitude of the province, in territory and population, which made the task of provincial administration too difficult. It was far the largest of the administrative divisions of British India, containing nearly a third of the Indian subjects of the English King. Assam, formerly joined with it, had been separated from it administratively in 1874, under a Chief Commissioner. Fifteen of the eastern districts of Bengal, adjacent to Assam, were now united with the latter to form a new province, called Eastern Bengal and Assam, and this disruption of the old province was resented very passionately by a large part of the Bengalese. They refused to believe the reasons given for the partition, but gave it an offensive explanation, which one of the native journals in Calcutta put briefly as follows: "The objects of the scheme are, briefly, first, to destroy the collective power of the Bengali people; secondly, to overthrow the political ascendancy of Calcutta;

and, thirdly, to foster in East Bengal the growth of a Mohammedan power which it is supposed will have the effect of keeping in check the rapidly growing strength of the educated Hindu community." In the official British view, on the other hand, the whole stir of Bengalese feeling was artfully wrought up for mischievous ends; but it is easier to believe that something in the nature of a historic sentiment of nationality was really hurt and angered by the partition. Yet Bengal cannot be said to have had anything that resembled a distinct national history for many centuries before it came under the rule of the British East India Company, in 1765. Nor had its name been precisely and continuously attached to any well-defined territory.

Whatever the source of excited feeling may have been, however, it was ardent and persistent, especially in the educated class, and it gave a start to what received the name of the Swadeshi or national movement of hostility to all things English, directed mainly to the boycotting of English merchandise, and to the organization of efforts for promoting home production in all industrial fields. The Swadeshi movement soon spread beyond Bengal; but its stimulations have been centered there. The intensity of the feeling in Bengal was such that on the 16th of October, 1905, when the partition took effect, the Hindus of Calcutta put on mourning garments, suspended business and work, and vowed that its anniversaries should be memorial mourning days. Pupils in native schools became so offensive in their anti-English demonstrations that the Lieutenant-Governor of the new province, Sir Bampfylde Fuller, in February, 1906, unwisely requested the Calcutta University to disaffiliate two schools in the Pabna district, taking away the pecuniary aid they received. The request was disapproved by Lord Curzon's successor in the Viceroyalty, Lord Minto, and rather than withdraw it the Lieutenant-Governor resigned.

In the winter of 1909 the London *Times* sent a special

correspondent into Eastern Bengal to study the results of the partition, so far as developed in three years. His observations and conclusions were communicated in a long, interesting letter from Dacca, February 15th. He wrote:

"No one can visit the new province, and endeavour to inquire impartially into its condition before the 'partition,' without realizing that some administrative division of Bengal had become imperative. Until five years ago, Eastern Bengal was the 'Cinderella' of the provinces of India. Good administration stopped short on the line of the Ganges. Beyond that line officers were few, and the interest of the central authorities in their work and in the welfare of the people in their charge was comparatively limited. ...

{313}

Land revenue administration was persistently neglected in the temporary settled tracts. Calcutta and its immediate vicinity, and the more accessible districts of Old Bengal, absorbed the greater part of the time and attention of the Bengal Government. Money was poured out upon Calcutta and its environs, and Eastern Bengal was financially starved. Very little was spent upon education, and the whole riverain region was most inadequately policed. Crime was far more rife in the southern districts of the province than in any other part of India. The peasantry groaned beneath the exactions of the representatives of absentee landlords, and they were left unregarded and unprotected. The whole province suffered because its rulers were immersed in the preoccupations of Calcutta. The very railways were constructed, not to serve the needs of these 30 millions of people, but to meet the requirements of the city on the Hughli. ...

"It is remarkable to note how, in the short space of three years, the old deplorable conditions of Eastern Bengal have already undergone a satisfactory process of modification. The province is no longer content to be dragged at the tail of Old Bengal. A new and independent provincial spirit is springing

up. Eastern Bengal is beginning to recognize all that a separate existence means to it. Its Civil servants, from the Lieutenant-Governor downwards, take a pride in the great work of regeneration which has been entrusted to them. Their task is enormous, and the workers are far too few. They are like men who have been set to create a new colony out of a land of chaos. They have before them almost as formidable an undertaking as the making of modern Egypt, but it is an Egypt of green rice-fields with half-a-dozen Niles. ...

"The demand for higher education in Eastern Bengal is perhaps greater than in any other part of India. The admirable Government College at Dacca has now been provided with splendid buildings, begun, however, before the 'partition.' The whole province is being supplied with a set of colleges adequate to its needs. The staffs of the colleges are being augmented and their administration overhauled. The principal private colleges are also being assisted with liberal grants and transformed into institutions which will give a sound education. The exceptionally large number of 'high' English schools in Eastern Bengal had also been greatly neglected, both those under the Government and those in private hands. All are now being improved, and are receiving liberal assistance. ...

"Another important task undertaken by the new Government is that of conducting an elaborate survey and framing a Record of Rights in the zemindari tracts which constitute the bulk of the province. The undertaking was devised before the 'partition,' but it has been expedited by the change. It is an extraordinary thing that in all these permanently settled areas there has been hitherto no record and no map. The consequence was that the cultivators were constantly bullied and harassed by the agents of the absentee zemindars, and were never able to feel any reasonable security of tenure of the land they tilled. Land disputes were incessant, and were constantly accompanied by loss of life. In the Backergunge

district, the most turbulent area in India, there were frequent riots, of which murders were an almost invariable feature. Since the framing of the Record of Rights in Backergunge this class of crime has already decreased by 50 per cent.

"I have yet to meet anybody, English or Indian, who can tell me in what respect the 'partition' has injured a single living soul; while one has only to visit this province, invigorated with new life and inspired by new aspirations, to realize the benefits the severance has conferred upon millions of neglected people. To alter or to modify it now would be suicidal folly; it would be worse, for it would be a criminal blunder. It would not placate the wordy 'patriots' of Calcutta, who have used the 'partition' as a rallying cry for lack of a better grievance; and it would alienate the 18 millions of backward Mahomedans in the province who have placed their alliance in British honour and British pledges. The Nawab of Dacca, with whom I had a long conversation on the subject, declared that any attempt to meddle with the 'partition'—an attempt he still seemed to fear was possible—would produce the most deplorable results among his co-religionists. ... Nor is there the slightest need for change or modification. The 'partition' is already thrice justified in the eyes of all men, save only a few malcontent members of Parliament who know nothing of present conditions in Bengal. Even in Calcutta the outcry, which was always less against the fact of the 'partition' than against the motive which the Bengalis erroneously believed to have prompted it, has long ago died away. Yet, justifiable and necessary though the 'partition' was, it remains to be added that, apart from its complex administrative problems, Eastern Bengal will never be a very easy province to control. The high-caste Hindus, the Brahmins, the Baidyas, and the Kayasths—the Brahmins and the lesser Brahmins,—rule the roast, and it will be long years before the teeming millions of Mahometan cultivators emerge from their depressed condition. The few Mahomedan families who

can claim noble birth are decadent and disappearing. The Hindus have absorbed their lands, the clever lawyers have converted themselves into rich landowners. It is from the ranks of these high-caste Hindus that are drawn the members of the revolutionary societies to which I alluded in a telegraphic despatch sent from this city yesterday. These classes show a persistent and increasing spirit of hostility to the British Raj which no amount of conciliatory measures will overcome. It is impossible to move about the province and to converse with the men who know it best without feeling that the situation is full of dangerous possibilities. The men of Eastern Bengal are more courageous, more determined, more persistent than their compatriots in Old Bengal; and the better classes of Hindus have qualities which are not easily discernible in the Calcutta *babu*. They approach more nearly to the spirit of the Mahrattas of the Deccan than any other section of the people on this side of India. It is a significant fact that most of the prisoners now under trial at Alipur in connexion with the anarchist conspiracy came from Eastern Bengal. But even as one writes one realizes how difficult it is to generalize in this country of startling paradox.

{314}

Yesterday, in Dacca, 200 Hindu pundits assembled to present a Sanscrit address to the Lieutenant-Governor, Sir Lancelot Hare. Many of them had come long distances. They were all old men with great nobility of countenance, some with long beards, others with the face of the Cæsars. And at the conclusion of the ceremony each kindly and venerable scholar advanced, and with great dignity presented the Lieutenant-Governor with a rose. From the bombs of last week to the roses of yesterday, what a gulf lies between the two!"

INDIA: A. D. 1907.

Hostility in Western Canada to Hindu Laborers.

See (in this Volume)

RACE PROBLEMS: CANADA.

INDIA: A. D. 1907 (December).

Meeting and Resolution of the All-India Moslem League.

Mahomedan loyalty to the British Government.

A new factor in Indian politics.

"On December 30th last a Mahomedan Conference, in session at Dacca, the capital of the newly-created Province of Eastern Bengal, departing absolutely from its traditions, openly discussed the question of the protection of Mahomedan interests from a political standpoint, and finally carried unanimously a motion for the formation of an 'All-India Moslem League' to promote among the Mahomedans of India feelings of loyalty to the British Government, and to remove any misconceptions that may arise as to the intentions of Government with regard to any of its measures; to protect and to advance the political rights and interests of the Mahomedans of India, and respectfully to represent their needs and aspirations to Government, and to prevent the rise among Mahomedans in India of any feelings of hostility towards other communities, without prejudice to the other objects of the League. A strong Provisional Committee was formed, with power to add to its number, and the joint secretaries appointed were the Nawabs Vicar-ul-mulk and Mohsin-ul-mulk, two of the most important members of the Mahomedan community in India and men of great intellectual capacity. The Committee was charged to frame a constitution within a period of four months, and further to convene a meeting of Indian Mahomedans at a suitable time and place to lay the constitution before such meeting for final approval and adoption. The Rubicon has been crossed; the Mahomedans of India have forsaken the shades of retirement for the political arena; henceforth a new factor in Indian politics has to be reckoned with."

E. E. Lang,

The All-India Moslem League

(Contemporary Review, September, 1907).

INDIA: A. D. 1907-1908.

The Outbreak of Anarchism.

Summary Measures of Suppression.

The native disaffection in Bengal which became anarchistic in its violence in 1907, and which perpetrated a number of murders before it was suppressed, culminated on the 10th of February, 1909, in the assassination of a prominent native lawyer, Ashutosh Biswas, who had taken part in the prosecution of some of the anarchists. Writing of that crime, from Calcutta, a special correspondent of the London *Times*, who had been pursuing an investigation of the terrorist conspiracy from its beginning, gave an extended account of what he had learned, part of which is given in the following:

"All that can be said with certainty is that the gospel of violence, the creed which advocates the use of any form of force against the British, is Mahratta in its origin; but so far it is the Bengalis alone who have put it into practice. It was conceived in Poona, which city has always continued to inspire and direct it; it was transferred to Baroda, where it flourished in secret among a limited circle; and it was transplanted to Calcutta, where it grew apace, somewhere between the years 1902 and 1904. Certain classes of Bengalis, who are all adepts at intrigue, took up the new idea with enthusiasm; but not all who knocked were admitted to the inner circle. The real conspirators were still probably few in number when the 'partition' of Bengal gave the politicians their opportunity. The anarchists were furious at the partition agitation. They were quite content that less militant persons should prepare the ground for them, by preaching to the people of the iniquities of the British Raj; but they were reluctant to see the popular mind actively diverted to such minor issues as *swadeshi* and the boycott. The extermination of the British was their one and

only aim.

"However, as the Congress politicians had succeeded in arousing intense excitement about the partition, the anarchist gang sought to turn the situation to their own advantage. ... Recruits were, however, only gradually admitted into the inner ring; and there were many people who associated with the anarchists, and sometimes furnished them with funds, who never took part in their operations. Propaganda formed a prominent feature of the anarchists' work. In this department the worst types of seditious journals, which have now disappeared, played a great part. Such newspapers as the *Yugantar* started 'messes' and 'hostels,' to which subscribers, particularly those residing up-country, were invited to come free of charge. They stayed for a day or two, heard the new gospel preached, and then made way for others. ...

"The existence of this considerable organization was not really suspected by the police until after the attempt to wreck Sir Andrew Fraser's train in December, 1907. Some of the anarchists were under suspicion, and were being watched as notoriously disaffected persons, but even the shooting of Mr. B. C. Allen, District Magistrate of Dacca, in the same month, did not reveal the conspiracy. The police were, however, on the right track; and a couple of days after two unfortunate ladies had been killed by a bomb at Muzaffarpur, on April 30, 1908, they acted. At a house in Calcutta, and in a garden on the outskirts, large seizures of bombs, explosives, and revolvers were made and about 30 alleged anarchists were arrested. Other arrests followed. The famous Manicktollah garden was the principal scene of anarchist activity. It is so secluded that one wonders it was ever discovered. Far on the confines of Calcutta, through a network of mean huts beneath waving palms, a series of winding paths leads to a couple of mouldering gate-pillars innocent of any gate. Within, under shady trees, stands a small building in the last stage of disrepair. It is mean and dirty and squalid, the true squalor

of anarchism. If it is only in such a spot that any movement can be hatched for the overthrow of the British Raj, then the British Raj is safe for a long time.

{315}

"The prisoners were taken to the Alipur Gaol, and their trial was commenced at the Alipur Police Court. I visited the Court one day—I think it was the seventieth day of the trial—and marvelled afresh. They were ranged in rows, about 50 men, all young, all huddled together and squatting on their haunches. The only man among them with an intellectual face was Arabindo Ghose, the alleged leader, who sat in a far corner. He has the face of a dreamer, as indeed he is, and with his long hair and short beard might very well pass for a certain type of artistic Frenchman. Whether he be guilty or not is no affair of mine, but his record excites pity. He went to England with brilliant gifts and high hopes, and he had a distinguished career at school and University. But men who profess to know say that he had more than the ordinary share of the rough and tumble of juvenile life amidst alien and often thoughtless comrades, and that those years were made thoroughly unhappy for him. When at last, after he had passed for the Civil Service, he was rejected because he could not pass the horsemanship test, one can perhaps understand that a man of his temperament returned to India with black rage and despair at his heart. But his associates seemed to be mere boys, haggard, wild looking youths of a peculiarly low physical type."

The trial of the prisoners described above, at Alipur, resulted in the condemnation of two to death, six to transportation for life, one to imprisonment for life, and five to imprisonment for terms ranging from one to ten years. The remainder, including the alleged leader, Arabindo Ghose, were acquitted. With the sanction of Lord Morley, the Secretary for India, summary measures were taken to silence

the seditious journalism and speech which took a terroristic tone and instigated crime. Loud protests against these measures were called out in England, and one hundred and forty-six Liberal, Labor, and Irish Members of Parliament addressed a note in May last to the Prime Minister, asking his attention to "the fact that ever since the 8th December last nine British subjects in India have been deported from their homes and detained in prison without having been charged with any offence or informed even of the grounds of suspicion entertained against them by the Government of India. Some of them are admitted to be men of high character. None are alleged to have been previously convicted of any crime. Under these circumstances," said the writers, "we may venture to make an urgent appeal to you that they may be either brought to trial or set at liberty."

In his reply Mr. Asquith said: "Such an appeal is perfectly natural, and I am not surprised to find that it is widely and influentially supported. Deportation without trial as a method of dealing with political agitation must necessarily be repugnant to Englishmen, and to no one has the necessity of resorting to such a measure been more repugnant than to Lord Morley. When, however, I am appealed to on behalf of the persons so deported, I must ask you and those who are acting with you to bear in mind that deportation has been resorted to for the sole purpose of preserving the country from grave internal commotion. It is a preventive not a punitive measure, and the responsibility for fixing the period of detention must, therefore, rest with those who are charged with the arduous and anxious duty of maintaining order in India.

"The Secretary of State and the Government of India are, I submit, the only possible judges of the circumstances which may warrant the release or the further detention of the persons deported, and the decision is one which, in my view—and I hope that you and your co-signatories may find yourselves in agreement with me—may be left with absolute

confidence in their hands.

"It is particularly necessary at a moment when a great extension of popular representative elements in Indian administration has just been sanctioned by Parliament that none of the various forms of anarchical violence should be tolerated, and that no lawful instrument for suppressing them should be discarded."

One of the trials for seditious journalism which caused most excitement throughout India did not arise from publications in Bengal, but in Bombay. The accused was Bal Gangadhar Tilak, a Brahmin, professor of law and mathematics, who conducted a native paper called the ***Mahratta***. The specific charge against him was that in his newspaper he had urged the people to demand the restoration of the old Shiwaji religious festivals and, if it was refused, to throw bombs until it was granted. The government contended that he had not incited the people to violence in overt words, but by subtle insinuations and unmistakable innuendo. At his trial in July, 1908, he spoke in his own defence, with great ability, for five days. He was convicted and sentenced to imprisonment for six years.

INDIA: A. D. 1907-1908.

Mortality Statistics and Birth Rate.

See (in this Volume)
PUBLIC HEALTH.

INDIA: A. D. 1907-1909.

The recent Movements of Discontent.

Their Character, Causes, and Meaning.

Hindu and Moslem feeling.

English attitude.

The Past of British Government and its Fruits.

Neglect of Education and Political Training.

Slight Organization of Local Self-Government.

The Governed not taken into the confidence of the Government.
Is Democracy forbidden to Asiatic peoples?

The political disaffection in India which has been expressing itself violently within the last few years, not only in seditious speech and print, but in the manner of the Russian terrorists, with bombs and other instruments of anarchy and assassination, was not started by the Bengal Partition and the resentments which that measure gave rise to, but those gave a fresh and strong impulse to feelings that had been in fermentation for some time. Behind that immediate impulse was, undoubtedly, a much stronger one, which came from the startling revelation of the Russo-Japanese War, that one Asiatic people, at least, could outfight one, at least, of the proud and domineering Powers of Europe, and outdo them all in a practical handling of the boasted "Science of the West." Torpid energies and sleeping ambitions were pricked in India by the amazing triumph of the Japanese, as they were elsewhere throughout the East; and it is since 1905 that the demand of the Hindus for a political life of their own has taken a tone which commands the ear of all open-minded and generous Englishmen, like John Morley, and draws from them the response they are now trying to make.

{316}

So far as it is a demand for an Independent Indian Empire, with the whole fabric of British rule swept away, it comes manifestly from nothing that has weight or force in India itself. Probably no Hindu who could make intelligent use of political freedom ever dreams of the present possibility of a nationalized India, in which the 200,000,000 of his own race and creed and the 60,000,000 of Mohammedans (saying nothing of the added millions of other lineages and other faiths) would be peaceful fellow citizens, administering the institutions of self-government in harmony together. The Moslems, at least, are under no illusion as to what would happen if the

incongruous elements of the enormous population of India were left politically to themselves, under the conditions that now exist. In 1908, when that idea seemed to be growing in Hindu thought, they organized an "All-India Moslem League," avowedly, as declared by the Nawab of Dacca, "to save themselves from being submerged by an enormous and noisy majority of the other race." "The safety of the Mohammedans," said the president of the conference, "lay in loyalty to the government; they must be prepared to fight for the government if necessary." Thus British rule in its present form has the Moslem dread of Hindu ascendancy to give it a substantial support, even though the Hindus outnumber the Moslems by more than three to one. In thinking power, the Hindu is perhaps the higher type of man; but the blood of the Afghan and Mongol conquerors of Hindustan must have transmitted more of political as well as military energy to the Moslems of the present day. The Hindu mind is too mystically metaphysical for the politics of a world that is dominated by its least metaphysical minds.

But the higher intelligence of the Hindus appears to agree with that of the Moslems in understanding that India is in no present condition for taking its political fortunes into its own hands. The really intelligent classes have been making it plain, however, that they do want a more effective participation in the management of their own affairs than has been allowed to them hitherto, and it is the claim of that class which Lord Morley and his colleagues in the British Government are acknowledging and aiming to satisfy. It seems to have been generally and fairly represented in the great conventions assembled annually for many years past, under the name of the "Indian National Congress," an unofficial Congress, possessing no authority, but exercising an influence that has increased. Its character was described a few years ago in one of the American reviews by a writer who said that he had watched it from its birth:

"The Indian National Congress," he wrote, "is avowedly national in its name and scope. The Provincial Congresses which meet in every province for the discussion of provincial matters, unite together in a National Congress, which is annually held at a chosen centre, for the furtherance and discussion of national interests. A Congress consists of from five hundred to one thousand of the political leaders of all parts of India, comprising representatives of noble families, landowners, members of local Boards and municipalities, honorary magistrates, fellows of universities, and professional men, such as engineers, bankers, merchants, shopkeepers, journalists, lawyers, doctors, priests and college professors. The delegates are able to act in concert and to declare in no uncertain accents the common public opinion of the multitude of whom they are the mouthpiece. They are as representative in regard to religion as to rank and profession; Hindus, Parsis, Mohammedans and Christians have in turn presided.

"The deliberations are marked by acumen and moderation. The principal items of their propaganda constitute a practical programme displaying insight and sagacity, and covering most of the political and economic problems of the Indian Empire. I take it upon myself to say, as a watchful eye-witness from its birth, that the Indian National Congress has discharged its duties with exemplary judgment and moderation."

***Sir Henry Cotton,
The New Spirit in India
(North American Review, November, 1906).***

The meeting of this Indian Congress in 1908 was held at Madras on the 27th of December, not long after Lord Morley had explained his plan for the enlargement of the Legislative Councils in India and for the election of a certain number of their members by popular vote. In the address of the President of the Congress, Dr. Rash Bihari Ghose, the proposed reforms

were discussed at length, and welcomed with warmth, as going near, apparently, to satisfying the claims of the majority of those represented in the Congress. "We are now," said the speaker, "on the threshold of a new era. An important chapter has been opened in the history of the relations between Great Britain and India—a chapter of constitutional reform which promises to unite the two countries together in closer bonds than ever. A fair share in the Government of our own country has now been given to us. The problem of reconciling order with progress, efficient administration with the satisfaction of aspirations encouraged by our rulers themselves, which timid people thought was insoluble, has at last been solved. The people of India will now be associated with the Government in the daily and hourly administration of their affairs. A great step forward has thus been taken in the grant of representative government for which the Congress had been crying for years. ... We do not know what the future destiny of India may be. We can see only as through a glass darkly. But of this I am assured, that on our genuine co-operation with the British Government depend our future progress and the development of a fuller social and political life. Of this also I am assured, that the future of the country is now in a large measure in our own hands."

At about the same time the All-India Moslem League held its meeting at Amritsar, and gave an equally hearty welcome to the principle of the proposed reforms, but appealed against the mode of election contemplated, which might be to the disadvantage of the Moslem minority. In the address of the President, Mr. Ali Imam, he said: "It is impossible for thoughtful men to approach the subject without regard to the pathetic side of the present situation.

{317}

It is the liberalism of the great British nation that has taught Indians, through the medium of English education, to admire democratic institutions, to hold the rights of the people sacred above all rights and to claim for their voice

first place in the government of the country. The mind of close upon three generations of the educated classes in the land has been fed on the ideas of John Stuart Mill, Milton, Burke, Sheridan and Shelley, has been filled with the great lessons obtainable from chapters of the constitutional history of England and has been influenced by inexpressible considerations arising out of the American War of Independence, the relation of Great Britain with her Colonies, and last, though not least, the grant of Autonomy to the Boers after their subjugation at an enormous sacrifice of men and money. The bitterest critic of the educated Indian will not hold him to blame for his present state of mind. It is the English who have carefully prepared the ground and sown the seed that has germinated into what some of them are now disposed to consider to be noxious weed. It will be a dwarfed imagination however that will condemn the educational policy of the large-hearted and liberal-minded Englishmen who laid its foundation in this country. Those who inaugurated it aimed at raising the people to the level where co-operation and good understanding between the rulers and the ruled are possible. Under the circumstances, the desire of the educated Indian to take a prominent part in the administration of his country is neither unnatural nor unexpected. ...

"The best sense of the country recognizes the fact that the progress of India rests on the maintenance of order and internal peace, and that order and internal peace in view of the conditions obtaining in our country at present and for a very long time to come, immeasurably long time to come, spell British occupation. British occupation not in the thin and diluted form in which Canada, Australia and South Africa stand in relation to England, but British occupation in the sense in which our country has enjoyed internal peace during the last 50 years. Believe me that as long as we have not learnt to overcome sectarian aggressiveness, to rise above prejudices based on diversity of races, religions and languages, and to alter the alarming conditions of violent intellectual

disparity among the peoples of India, so long British occupation is the principal element in the progress of the country. The need of India is to recognize that true patriotism lies in taking measure of the conditions existing in fact, and devoting one's self to amelioration. ... The creed of the All-India Muslim League is cooperation with the Rulers, coöperation with our non-Muslim countrymen and solidarity amongst ourselves. This is our idea of United India."

These expressions from prominent leaders of the two principal races of India are quite in accord with the judgment of liberal-minded Englishmen, as to the present duty of their government to the people of this great Asiatic Dependency. They are quite in accord with the judgment that has dictated the measure undertaken by the present British Government. They recognize that the relation which England bears to India, however unjustifiable in its origin it may be, is one that cannot be suddenly changed without great danger and certain harm. As Goldwin Smith has said:

"To attempt to strike the balance between the advantages and disadvantages of British rule in India would be to enter into a boundless controversy. Foreign rule in itself must always be an evil. India was rescued by Great Britain from murderous and devastating anarchy. Though at the time she was plundered by official corruption of a good deal of the wealth which, being poor though gorgeous, she could ill afford to lose, she has since enjoyed general peace and order; both, we may be sure, to a far greater extent than she otherwise would have done. The deadly enmity between her races and religions has been controlled and assuaged. ...

"It does not appear that there is any considerable migration from the provinces directly under British dominion to those which are under native rule. The people, no doubt, are generally fixed to their habitations by poverty and difficulty of movement; still, if they greatly preferred the native rule,

a certain amount of migration to it there would probably be. That the masses of India in general are miserably poor cannot be denied. The question is, whether under the Mogul Emperors they were better off. ... The population has vastly increased, and its increase may in some measure account for dearth. With regard to fiscal and commercial questions, it may safely be said that, at all events in late years, there has been no disposition on England's part to do anything but justice to India.

"India's complaints, speaking generally, seem to be of things inseparable from foreign rule, the withdrawal of which would be the only remedy. But suppose British rule withdrawn from India, what would follow? Is there anything ready to take its place? would not the result be anarchy, such as prevailed when England came upon the scene, or a struggle for ascendancy between the Mahometan and the Hindoo, with another battle of Paniput? Suppose the Mahometan, stronger in spirit though weaker in numbers, to prevail, would his ascendancy be more beneficial and less galling to the Hindoo than is that of the English Sahib?"

Goldwin Smith,
British Empire in India
(North American Review, September 7, 1906).

Of the ultimate possibilities of a nationalized unification of the mighty masses of population in the vast peninsula, there can, perhaps, be as much or more said hopefully as against the hope. A writer who believes that there may be an independent India has put an outline of the argument, pro and con, in these few following words:

"India, we are almost tired of hearing, is as large as Europe, putting aside Russia and Scandinavia, with as great a population, as many diverse and heterogeneous nationalities, differing from each other in language, in custom, in religion,

and in everything that makes for individuality; and we might as well speak of the Indian nation as the European nation. ... To this contention Young India opposes the most emphatic contradiction. India is a nation, a people, a country: its interests and aspirations are one and unique. Railways, telegraphs, post-office, the Press, education, knowledge of English, have welded into one harmonious whole all the manifold centrifugal forces of its vast area.

{318}

Young India will quote Switzerland as an example of a country with several languages and two conflicting religions, and yet undoubtedly constituting a nation. If the only tongue in which the Madrassi and the Bengali can communicate is English, so let it be. It is sufficient that a medium of communication exists. And it does exist. The educated Indian speaks and writes in English as easily as in his own mother-tongue. It is in English that the most vehement tirades against British rule, whether printed, spoken, or dealt with in private correspondence, are hurled across the land. Politically speaking, Lahore is a suburb of Calcutta. The fact cannot be gainsaid and must be reckoned with. India, as a whole, as a political unit, has found a voice. There is a national India, as there is not a national Europe."

E. C. Cox,
Banger in India
(Nineteenth Century, December, 1908).

This view recognizes, as was recognized in the address of the President of the All-India Moslem League, quoted above, that English rule and English influence have done much towards preparing both the country and the people for the self-government to which the latter are now beginning to aspire. It must be said, however, that most of this preparation has been casually consequent on policies that had no such deliberate intent. Until quite late years there is little sign to be seen in British Indian policy of a thought

of developing opportunity and capability in the people to become more than valuable customers and docile wards. While India was in the hands of a commercial company it was managed, naturally, like an imperial estate, with strictly economic objects in view. Even then there was wisely economic consideration given to the general welfare of the people; but it was welfare as seen from the estate-owners' standpoint. The proprietary government did many things for its subjects and servants; bettered their conditions in many ways; added greatly to the equipment of their lives; but it did very little, if anything, toward putting them in the way of bettering things for themselves. It contemplated nothing for India but the perpetuity of its management as an imperial estate, entailed in the possession of a proprietary race.

The taking of this imperial estate from company management into national management has not seemed hitherto to alter the business nature of its administration very much. Its many millions of inhabitants have been better governed and better cared for, without doubt; but the idea of benevolence to them has never been much enlarged beyond the idea of an honestly good overseeing care. Institutions have been provided or encouraged for the educating of a class among them which could be of useful assistance in the caretaking of the mass; but common education for the mass, to qualify them better for the care of themselves, received scant attention till 25 years ago. In the very explanation that is often given of the present discontent in India there is an impeachment of the past treatment of the country by its able and powerful masters. It is said that the educated Hindus find no satisfying career for themselves outside of the service of the government, and that an increasingly large class in excess of the openings which that service can afford has been educated in recent years; that, consequently, the swelling crowd of disappointed place-seekers, whose intelligence and ambition have been whetted in the higher schools and colleges of the Indian Empire, are the disturbers of public content. After a

century and a half of supreme British influence and power in India, there ought to have been more and better openings of opportunity for educated young Hindus than through the doors of public office. There would have been if the development of country and people had been conducted with more reference to their benefit, and with less close attention to the interests of British trade.

Since 1882-1883 there has been more endeavor to establish and assist native primary schools; but the percentage of population that they reach is small. The statistics given in an official "Statement exhibiting the Moral and Material Progress and Condition of India during the year 1905-1906" make the following showing:

Provinces. Number of	Number of Institutions
Pupils	
Bengal 1,232,278	43,996
United Provinces 576,336	15,708
Punjab 211,464	3,762
Burma 385,214	20,996
Central Provinces 209,680	3,090
Eastern Bengal and Assam 722,371	21,790
Coorg 4,666	116

North West Frontier Province	1,087
28,496	
Madras Presidency	28,258
918,880	
Bombay and Sind Presidency	13,865
736,209	
Total	152,668
5,025,594	

Except in the Punjab and in Eastern Bengal and Assam these figures include both public and private institutions of education, of all grades, from primary schools to colleges. All institutions in which the course of instruction conforms to standards prescribed by the Department of Education or by the University, and which either undergo inspection by the Department or present pupils at public examinations, are classed as "public," but may be under either public or private management. While the schools and colleges seem numerous, it will be seen that they average but 33 pupils each, and give teaching to a slender fraction of the children of the 294,000,000 of people under British rule. In the report from which we quote the proportion of pupils to the estimated population of school-going age is given as 28.4 per cent. of boys and 2.9 per cent. of girls in Bengal; 8.06 per cent. of boys and 0.96 per cent. of girls in the United Provinces; 21.8 per cent. of boys and 1.8 of girls in the Central Provinces; 28.2 per cent. of boys and 2.9 per cent. of girls in Eastern Bengal and Assam; 29 per cent. of boys and 5.4 per cent. of girls in Madras; 31.8 per cent. of boys and 6 per cent of girls in Bombay. The total expenditure on education, from all sources, including fees, was £735,043 in Bengal (increased to £830,415 in 1907-1908); £441,421 in the United Provinces (increased to £491,723 in 1907-1908); £331,038 in the Punjab; £218,445 in Burma; £145,389 in the Central Provinces; £318,788 in Eastern Bengal and Assam; £624,602 in the Madras Presidency (increased to £712,740 in 1907-1908); £685,444 in the Presidency

of Bombay (increased to £756,168 in 1907-1908). Total in 1905-1906, £3,500,170. Education in British India cannot be made wide or deep on expenditure of this scale.

{319}

Education in the literary meaning, then, was tardily undertaken and is very limited yet in its extent. Quite as tardy, and quite as scant in the measure until John Morley got the handling of it, has been the political training that England,—greatest of political teachers as she has been for the world at large,—has allowed her Indian subjects to receive. It must not be understood that nothing of self-government has been conceded hitherto to these people. The exact measure of their participation in the management of their own public affairs, and the period within which they have exercised it, are described in the official "Statement exhibiting the Moral and Material Progress and Condition of India" from which the above exhibit of educational institutions is taken. The following is quoted partly from the "Statement" of 1905-1906 and partly from the later one of 1907-1908:

"Local self-government, municipal and rural, in its present form, is essentially a product of British rule. Beginning in the Presidency towns, the principle made little progress until 1870, when it was expressly recognised by Lord Mayo's Government that 'local interest, supervision, and care are necessary to success in the management of funds devoted to education, sanitation, medical charity, and local public works.' The result was a gradual advance in local self-government, leading up to the action taken by Lord Ripon's Government in 1883-1884, and to various provincial Acts passed about that time, which form the basis of the provincial systems at present in force. Municipal committees now exist in most places having any pretension to importance, and have charge of municipal business generally, including the care and superintendence of streets, roads, fairs and markets, open

spaces, water supply, drainage, education, hospitals, and the like. Local and district boards have charge of local roads, sanitary works, education, hospitals, and dispensaries in rural districts. A large proportion of their income is provided by provincial rates. Bodies of port trustees have charge of harbour works, port approaches, and pilotage. There is also a smaller number of non-elective local bodies discharging similar duties in towns other than constituted municipalities, and in cantonments.

"The municipal bodies exist, raise funds, and exercise powers under enactments which provide separately for the special requirements of each province and of the three presidency capitals, Bombay, Calcutta, and Madras. In the municipalities as a whole about half of the members are elected by the townsfolk under legal rules; in every town some, and in a few minor towns all, of the members are appointed by the Government. In almost every municipal body one or more Government officials sit as members. The number of Indian and non-official members, however, in every province, largely exceeds the number of Europeans and officials. The municipal bodies are subject to Government control in so far that no new tax can be imposed, no loan can be raised, no work costing more than a prescribed sum can be undertaken, and no serious departure from the sanctioned budget for the year can be made, without the previous sanction of the Government; and no rules or bye-laws can be enforced without similar sanction and full publication.

"There were 746 municipalities at the end of 1907-1908, containing within their limits over 16 million people or 7 per cent. of the total population. Generally speaking, the income of municipalities is small. In 1907-1908 their aggregate income amounted to £3,910,000, excluding loans, sales of securities, and other extraordinary receipts. About 40 per cent. of the total is provided by Calcutta, Bombay, Madras, and Rangoon. ...

"The interest in municipal elections, and in municipal affairs generally, is not usually keen, save in a few cities and large towns; but, as education and knowledge advance, interest in the management of local affairs gradually increases. In most provinces municipal work is fairly well done, and municipal responsibilities are, on the whole, faithfully discharged, though occasional shortcomings and failures occur. The tendency of local bodies, especially in the smaller towns, is to be slow in imposing additional taxes, in adopting sanitary reforms, and in incurring new expenditure. Many members of municipal bodies are diligent in their attendance, whether at meetings for business or on benches for the decision of petty criminal cases."

The elected members of these municipal committees number less than five thousand. This, therefore, is the extent of the class in the whole of British India, which now receives an elementary political training. Nothing more is needed for proving that India cannot possibly be prepared for independent self-government.

In a memorable speech made by Lord Macaulay in 1833 he predicted a time when England's Indian subjects might demand English institutions, and exclaimed: "Whenever the day comes it will be the proudest in English history." The day has come, and it does not bring pride to England; because her wards in India have not been made ready for what they ask. It will need time to repair the long neglect; but there is no grander fact in recent history than the beginning of the labor of repair. It is to be a work of education, not for the people of India alone, but for Englishmen as well. They are to learn, and have begun to learn, the mistake of egotism and self-sufficiency in their government of these people. Some months ago there was published in ***The Times of India***, at Bombay, a number of articles on the causes of the existing discontent, some by English writers, some by Hindus, some by Mohammedans, all seriously and frankly studying the situation, and most

suggestive in their thought. The cause emphasized most by one of the English writers is that which always has worked and always will work when one self-complacent and self-confident people undertakes to be an overruling providence for another people, by making laws for it and managing its affairs. The more consciousness there is on the ruling side of just intention and superior knowledge, the less likely it is to satisfy the ruled; because the satisfying of its own judgment of what is good for the latter is assumed to be enough.

During the last half century, at least, the British Government has endeavored, without a doubt, to do good to its Indian subjects, and it has done them great good; but everything has been done in its own way, from its own points of view and upon its own judgment of things needful and good and right. And this is why its Indian subjects not only feel wronged, but are wronged.

{320}

As the writer in *The Times of India* reminds his countrymen, "right is a relative term," and not, he says, "as we Islanders would have it, an absolute one. A thing that is right for us, with our past training and traditions, may not only seem, but really be, a grave wrong to those whose environment differs from our own." He cites instances of grave mistakes in well-intended legislation that would have been avoided, if the makers of the laws had counseled sufficiently with natives of experience in the matters concerned. One example is in a land alienation act, for the Punjab, which was framed with purely philanthropic motives, being intended to free the native peasantry—the ryots—from thralldom to money lenders, but which, by making the recovery of debts difficult, has trebled the rate of interest to the ryot, who borrows just as much, and mortgages himself instead of mortgaging his land. Alluding to this and to another act of excellent intention but irritating effect, the writer says: "When these worthy aims of

government were debated in the Bombay and Punjab legislatures, who was there, among the officials, in touch with Indian feeling and sentiment? Who among the senators ever suggested the possibility that the evil of mortgage and borrowing was not intrinsically an evil in India, but that legislation—our own past legislation—had made it so? Was there no officer of government who could advise the authorities that every Hindoo, almost, is at heart a money lender; that it is second nature to him; that indebtedness in itself is neither reproach nor handicap in his eyes; and that if you take from him his freedom of barter you do take his life?"

"We have failed," says this writer, "to avail ourselves of the material we ourselves have trained." That, undoubtedly, is the cardinal mistake that the English in India have made. Until now, they have not taken the best of India into their confidence and their counsels.

Another of the writers referred to above gave another characterization of the British rule as the natives more generally feel it, in which a deeper working of more subtle irritations can be seen. He wrote:

"Personal rule, the will of the king, God's anointed and therefore invested with quasi-divine sanction, is the only rule to which the East has been used, which it can like and respect. The people can understand, even while they suffer under, the most extravagant individual caprices; and when the tyranny becomes too intolerable, they always had in the last resort an excellent chance of being able to overthrow it. But they cannot and probably never will understand, still less appreciate, the cold, implacable, inhuman impersonality of the English government. They might as well be governed by a dynamo, without human bowels or passions. It cannot be humanly approached; it has no human side; its very impeccability is exasperating; and the exactitude with which it metes out its machine-made justice, according to inflexible rules and

formulae into which no human equation enters, chills and repels the Eastern mind, and its strength is commensurate with its remorselessness."

"They might as well be governed by a dynamo!" That, in this connection, is a powerfully expressive phrase. The dynamo and everything of a dynamic nature—every mechanical motor-working of forces, whether material or political, are naturally congenial to the man of the Western world—understandable by him, serviceable to him—and they are not so to the man of the East. Somewhere in the process of their evolution the one got an aptitude for projecting work outwardly from the worker—action at some remove from the actor—shuttle throwing, for example, carried out from the weaver to the arms and fingers of a machine, and government from the personally governing will to an organic political system—while the other did not. In this, more than in anything else, perhaps, the radical difference of nature between the Occidental and the Oriental peoples is summed up. The one is endowed with a self-enhancing power to act through exterior agencies, of mechanism in his physical labors, of representative institutions in his government, of systems and organisms in all his doings, which the other lacks.

This might have seemed a generation ago to set an insurmountable barrier against the passing of democracy and democratic institutions into Asia; but we have little right to-day to imagine that anything can stop their march.

INDIA: A. D. 1908.

American Mission Schools.

See (in this Volume)
EDUCATION: INDIA.

INDIA: A. D. 1908-1909.

Passage of the Indian Councils Bill by the British Parliament.

Popular Representation in the Legislative Councils introduced.
Lord Morley's explanations of the Measure.
Appointment of a native member of the
Viceroy's Executive Council.

The great project of reform in the Government of India which Lord Morley, as Secretary for India in the British Administration, brought before Parliament in December, 1908, embodied fundamentally in what was known during the discussion of it as the Indian Councils Bill, had its origin more than two years before that time, not in the councils of the British Ministry, but in those of the Government of India. The facts of its inception and preliminary consideration were indicated in a British Blue Book of 1908 (Cd. 4426), which contained proposals on the subject from the Government of India, dated October 1, 1908, and the reply of Lord Morley to them, November 27. More recently the early history of the reform project was told briefly by the Viceroy of India, the Earl of Minto, in a speech in Council, on the 28th of March, 1909. He said:

"The material from which the Councils Bill has been manufactured was supplied from the Secretariat at Simla, and emanated entirely from the bureaucracy of the Government of India. It was in August, 1906, that I drew attention in Council in a confidential minute to the change which was so rapidly affecting the political atmosphere, bringing with it questions we could not afford to ignore, which we must attempt to answer, pointing out that it was all-important that the initiative should emanate from us, that the Government of India should not be put in the position of appearance of having its hands forced by agitation in this country or by pressure from home, and that we should be the first to recognize the surrounding conditions and place before his Majesty's Government the opinion which personal experience and close touch with the everyday life of India entitle us to hold.

{321}

I consequently appointed the Arundel Committee. That minute was the first seed of our reforms sown more than a year before the first anarchist outrage sent a thrill of shocked surprise throughout India—the attempt to wreck Sir Andrew Fraser's train in December, 1907. The policy of the Government of India in respect to reforms has emanated from mature consideration of political and social conditions, while the administrative changes they advocated, far from being concessions wrung from them, have been over and over again endangered by the commission of outrages which could not but encourage doubts as to the opportuneness of the introduction of political changes, but which I steadfastly refused to allow to injure the political welfare of the loyal masses in India."

The Indian Councils Bill was printed on the 20th of February, 1909, and its second reading in the House of Lords was moved by Lord Morley in an explanatory speech on the 23d. A prefatory memorandum accompanying the text of the Bill was as follows:

"The object of this Bill is to amend and extend the Indian Councils Acts, 1861 and 1892, in such a way as to provide:

"(i.) For an enlargement of the Legislative Council of the Governor-General and of the existing Provincial Legislative Councils;

"(ii.) For the election of a certain proportion of their members by popular vote; and

"(iii.) For greater freedom to discuss matters of general public interest and to ask questions at their meetings, and more especially for the discussion of the annual financial statements.

"The Executive Councils of the Governments of Madras and

Bombay are enlarged, and powers are taken to create Executive Councils in the other Provinces of India, where they now do not exist. Provision is also made for the appointment of Vice-Presidents of the various Councils.

"The details of the necessary arrangements, which must vary widely in the different Provinces, are left to be settled by means of regulations to be framed by the Government of India and approved by the Secretary of State."

In his speech on moving the second reading of the Bill, Lord Morley said: "I invite the House to take to-day the first definite and operative step in carrying out the policy which I had the honour of stating to your lordships just before Christmas, and which has occupied the active consideration both of the Home Government and of the Government of India for very nearly, if not even more than, three years. The statement was awaited in India with an expectancy that with time became almost impatience, and it was received in India—and that, after all, is the point to which I looked with the most anxiety—with intense interest and attention and various degrees of approval, from warm enthusiasm to cool assent and acquiescence. So far as I know ... there has been no sign in any quarter, save possibly in the irreconcilable camp, of organized hostile opinion among either Indians or Anglo-Indians. ...

"There are, I take it, three classes of people that we have to consider in dealing with a scheme of this kind. There are the extremists, who nurse fantastic dreams that some day they will drive us out of India. In this group there are academic extremists and physical force extremists, and I have seen it stated on a certain authority—it cannot be more than guessed—that they do not number, whether academic or physical force extremists, more than one-tenth, I think, or even 3 per cent., of what are called the educated class in India. The second group nourish no hopes of this sort, but hope for autonomy or

self-government of the colonial species and pattern. And then the third section of this classification ask for no more than to be admitted to co-operation in our administration, and to find a free and effective voice in expressing the interests and needs of their land. I believe the effect of the reforms has been, is being, and will be to draw the second class, who hope for colonial autonomy, into the third class, who will be content with being admitted to a fair and full co-operation."

As to the objections raised by the Mahomedans of India, to the plans of the measure for their representation in the Councils, Lord Morley announced the readiness of the Government to yield to them. "We," he said, "suggested to the Government of India a certain plan. We did not prescribe it, we did not order it, but we suggested and recommended this plan for their consideration—no more than that. It was the plan of a mixed or composite electoral college, in which Mahomedans and Hindus should pool their votes, so to say. The wording of the recommendation in my dispatch was, as I soon discovered, ambiguous—a grievous defect, of which I make bold to hope I am not very often in public business guilty. But, to the best of my belief, under any construction the plan of Hindus and Mahomedans voting together in a mixed and composite electorate would have secured to the Mahomedan electors, wherever they were so minded, the chance of returning their own representative in their due proportion. The political idea at the bottom of that recommendation which has found so little favour was that such composite action would bring the two great communities more closely together, and this idea of promoting harmony was held by men of very high Indian authority and experience who were among my advisers at the India Office. But the Mahomedans protested that the Hindus would elect a pro-Hindu upon it, just as I suppose in a mixed college of say 75 Catholics and 25 Protestants voting together the Protestants might suspect that the Catholics voting for the Protestant would choose what is called a Romanizing Protestant and as little of a Protestant as possible. ... At any

rate, the Government of India doubted whether our plan would work, and we have abandoned it. I do not think it was a bad plan, but it is no use, if you are making an earnest attempt in good faith at a general pacification, out of parental fondness for a clause interrupting that good process by sitting too tight.

"The Mahomedans demand three things. I had the pleasure of receiving a deputation from them and I know very well what is in their minds. They demand the election of their own representatives to these councils in all the stages, just as in Cyprus, where, I think, the Mahomedans vote by themselves. They have nine votes and the non-Mahomedans have three, or the other way about.

{322}

So in Bohemia, where the Germans vote alone and have their own register. Therefore we are not without a precedent and a parallel for the idea of a separate register. Secondly, they want a number of seats in excess of their numerical strength. Those two demands we are quite ready and intend to meet in full. There is a third demand that, if there is a Hindu on the Viceroy's Executive Council—a subject on which I will venture to say a little to your lordships before I sit down—there should be two Indian members on the Viceroy's Council and that one should be a Mahomedan. Well, as I told them and as I now tell your lordships, I see no chance whatever of meeting their views in that way to any extent at all."

Turning to a much criticised feature of the projected remodelling of Indian Government—namely, the announced intention of the Government to name an Indian member of the Viceroy's Executive Council—the Secretary reminded the House that this was not touched by the pending bill, for the reason that the appointment of that Council lies already within the province of the Crown. In meeting the objections raised to this part of the reform project, he amused the House greatly by remarking: "Lord MacDonnell said the other day: 'I believe

you cannot find any individual native gentleman who has enjoyed the general confidence who would be able to give advice and assistance to the Governor-General in Council.' It has been my lot to be twice Chief Secretary for Ireland, and I do not believe I can truly say I ever met in Ireland a single individual native gentleman who 'enjoyed general confidence.' And yet I received at Dublin Castle most excellent and competent advice. Therefore I will accept that statement from the noble lord. The question is whether there is no one of the 300 millions of the population of India who is competent to be the officially-constituted adviser of the Governor-General in Council in the administration of Indian affairs. You make an Indian a Judge of the High Court, and Indians have even been acting-Chief Justices. As to capacity, who can deny that they have distinguished themselves as administrators of native States, where far more demand is made on their resources, intellectual and moral? It is said that the presence of an Indian member would cause restraint in the language of discussion. For a year and a half I have had two Indians at the Council of India, and I have never found the slightest restraint whatever."

Debate on the Bill in the House of Lords was resumed on the 4th of March, and it was amended by striking out a clause which gave power to constitute provincial executive councils in other provinces than Madras and Bombay, where they were already existing. It then passed through Committee, and on the 11th of March it was read a third time and passed by the Upper House.

A fortnight later, Lord Morley brought into exercise the authority possessed by the Crown, to appoint on its own judgment a native member of the Viceroy's Executive Council. His choice fell on a distinguished Hindu lawyer, Mr. Satyendra Prasanna Sinha, of whom the London *Times*, on announcing the appointment, said: "Mr. Sinha now fills the office of Advocate-General of Bengal, to which he was not long ago

promoted, and he will succeed Sir Henry Richards as Legal Member of Council. Of his fitness to discharge the departmental duties of his new position we make no question. Lord Morley has doubtless satisfied himself that the qualifications of his nominee in this respect will not discredit the experiment on which he has ventured. But, however high those qualifications, and however well they may stand the test of experience, gifts and attainments of another order are needed for the post to which Lord Morley has named him. A member of the Viceroy's Executive Council is much more than a departmental chief. ... For him there are no State secrets and no confidential documents. He has a right to know and to debate the *imperii arcana*. The most delicate mysteries of diplomacy, the most carefully guarded of military precautions, are trusted to his faith and to his discretion. Breadth of political knowledge and of judgment, insight into men and things, a sure sense and grasp of realities, coolness, courage, and rapid decision in emergencies, absolute impartiality between native races, creeds, and classes, and an instinctive devotion to England, to her traditions and to her ideals, are amongst the qualities which have been deemed the best recommendations for so immense a trust. Mr. Sinha may possess them all, but they are rare amongst the men of any race, and some of them are notoriously uncommon amongst Orientals."

This expresses the English opinion that objects to the admission of Indians to the Executive Councils of Indian Government, even while assenting to their representation in the Legislative Councils of the dependency. It is to be hoped that Mr. Sinha will help to weaken that opinion. Reports from India on the appointment were to the effect that it had given great general satisfaction.

On the return of the Councils Bill to the Commons the clause which the Lords had stricken out was restored, but in a modified form. Authority to extend the creation of provincial

executive councils was given, but with the reservation to the House of Lords as well as to the House of Commons of a veto upon the establishment of such councils in any new provinces, except Bengal. As thus amended the clause was accepted by the Upper House and became law, May 25, 1909.

The following are the essential provisions of the Act:

"I.

(1) The additional members of the councils for the purpose of making laws and regulations (hereinafter referred to as Legislative Councils) of the Governor-General and of the Governors of Fort Saint George and Bombay, and the members of the Legislative Councils already constituted, or which may hereafter be constituted, of the several Lieutenant-Governors of Provinces, instead of being all nominated by the Governor-General, Governor, or Lieutenant-Governor in manner provided by the Indian Councils Acts, 1861 and 1892, shall include members so nominated and also members elected in accordance with regulations made under this Act, and references in those Acts to the members so nominated and their nomination shall be construed as including references to the members so elected and their election.

{323}

"(2) The number of additional members or members so nominated and elected, the number of such members required to constitute a quorum, the term of office of such members and the manner of filling up casual vacancies occurring by reason of absence from India, inability to attend to duty, death, acceptance of office, or resignation duly accepted, or otherwise, shall, in the case of each such council, be such as may be prescribed by regulations made under this Act:

"Provided that the aggregate number of members so nominated and elected shall not, in the case of any Legislative Council

mentioned in the first column of the First Schedule to this Act, exceed the number specified in the second column of that schedule.

" 2.

(1) The number of ordinary members of the councils of the Governors of Fort Saint George and Bombay shall be such number not exceeding four as the Secretary of State in Council may from time to time direct, of whom two at least shall be persons who at the time of their appointment have been in the service of the Crown in India for at least twelve years.

"(2) If at any meeting of either of such councils there is an equality of votes on any question, the Governor or other person presiding shall have two votes or the casting vote.

"3.

(1) It shall be lawful for the Governor-General in Council, with the approval of the Secretary of State in Council, by proclamation, to create a council in the Bengal Division of the Presidency of Fort William for the purpose of assisting the Lieutenant-Governor in the executive government of the province, and by such proclamation—

"(**a**) to make provision for determining what shall be the number (not exceeding four) and qualifications of the members of the council; and

"(**b**) to make provision for the appointment of temporary or acting members of the council during the absence of any member from illness or otherwise, and for the procedure to be adopted in case of a difference of opinion between a Lieutenant-Governor and his council, and in the case of equality of votes, and in the case of a Lieutenant-Governor being obliged to absent himself from his council from indisposition or any other cause.

"(2) It shall be lawful for the Governor-General in Council, with the like approval, by a like proclamation to create a council in any other province under a Lieutenant-Governor for the purpose of assisting the Lieutenant-Governor in the executive government of the province: Provided that before any such proclamation is made a draft thereof shall be laid before each House of Parliament for not less than sixty days during the session of Parliament, and, if before the expiration of that time an address is presented to His Majesty by either House of Parliament against the draft or any part thereof, no further proceedings shall be taken thereon, without prejudice to the making of any new draft.

"(3) Where any such proclamation has been made with respect to any province the Lieutenant-Governor may, with the consent of the Governor-General in Council, from time to time make rules and orders for the more convenient transaction of business in his council, and any order made or act done in accordance with the rules and orders so made shall be deemed to be an act or order of the Lieutenant-Governor in Council.

"(4) Every member of any such council shall be appointed by the Governor-General, with the approval of His Majesty, and shall, as such, be a member of the Legislative Council of the Lieutenant-Governor, in addition to the members nominated by the Lieutenant-Governor and elected under the provisions of this Act.

"4. The Governor-General, and the Governors of Fort Saint George and Bombay, and the Lieutenant-Governor of every province respectively shall appoint a member of their respective councils to be Vice-President thereof, and, for the purpose of temporarily holding and executing the office of Governor-General or Governor of Fort Saint George or Bombay and of presiding at meetings of Council in the absence of the Governor-General, Governor, or Lieutenant-Governor, the Vice-President so appointed shall be deemed to be the senior

member of Council and the member highest in rank, and the Indian Councils Act, 1861, and sections sixty-two and sixty-three of the Government of India Act, 1833, shall have effect accordingly.

"5.

(1) Notwithstanding anything in the Indian Councils Act, 1861, the Governor-General in Council, the Governors in Council of Fort Saint George and Bombay respectively, and the Lieutenant-Governor or Lieutenant-Governor in Council of every province, shall make rules authorising at any meeting of their respective legislative councils the discussion of the annual financial statement of the Governor-General in Council or of their respective local governments, as the case may be, and of any matter of general public interest, and the asking of questions, under such conditions and restrictions as may be prescribed in the rules applicable to the several councils.

"(2) Such rules as aforesaid may provide for the appointment of a member of any such council to preside at any such discussion in the place of the Governor-General, Governor, or Lieutenant-Governor, as the case may be, and of any Vice-President.

"(3) Rules under this section, where made by a Governor in Council, or by a Lieutenant-Governor, or a Lieutenant-Governor in Council, shall be subject to the sanction of the Governor-General in Council, and where made by the Governor-General in Council shall be subject to the sanction of the Secretary of State in Council, and shall not be subject to alteration or amendment by the Legislative Council of the Governor-General, Governor, or Lieutenant-Governor.

"6. The Governor-General in Council shall, subject to the approval of the Secretary of State in Council, make regulations as to the conditions under which and manner in which persons resident in India may be nominated or elected as

members of the Legislative Councils of the Governor-General, Governors, and Lieutenant-Governors, and as to the qualifications for being, and for being nominated or elected, a member of any such council, and as to any other matter for which regulations are authorised to be made under this Act, and also as to the manner in which those regulations are to be carried into effect. Regulations under this section shall not be subject to alteration or amendment by the Legislative Council of the Governor-General.

{324}

"7. All proclamations, regulations and rules made under this Act, other than rules made by a Lieutenant-Governor for the more convenient transaction of business in his council, shall be laid before both Houses of Parliament as soon as may be after they are made."

FIRST SCHEDULE.

MAXIMUM NUMBERS OF NOMINATED AND ELECTED MEMBERS OF LEGISLATIVE COUNCILS.

Maximum
Legislative Council.
Number.

Legislative Council of the Governor-
General 60

Legislative Council of the Governor of
Fort
Saint George
50

Legislative Council of the Governor of
Bombay 50

Legislative Council of the Lieutenant-
Governor
of the Bengal division of the Presidency
of
Fort William
50

Legislative Council of the Lieutenant-
Governor
of the United Provinces of Agra and Oudh
50

Legislative Council of the Lieutenant-
Governor
of the Province of Eastern Bengal and
Assam 50

Legislative Council of the Lieutenant-
Governor
of the Province of the Punjab
30

Legislative Council of the Lieutenant-
Governor
of the Province of Burma
30

Legislative Council of the Lieutenant-Governor
of any Province which may hereafter be
constituted 30

As will be seen, the Act only conveys in outline to the Government of India the authority needed for introducing the intended reforms, leaving all constructive details to be filled out by the latter in regulations and rules. Six months were occupied in that task by the Indian Government, and the resulting prescriptions were published on November 15th, in a document filling 450 pages of print. The following is a summary of them, communicated to *The Times* by its Calcutta correspondent:

"They comprise, first, a short notice bringing the new Councils Act into force; secondly, the rules and regulations for guiding the constitution of the enlarged Imperial and Provincial Councils, with election rules; thirdly, rules for the discussion of the annual financial statement and general resolutions and for the asking of questions; and, fourthly, a Government resolution explaining the reasons for the changes made and their main details.

"The resolution shows that the Imperial Council will consist of 68 members, while the number of members in each of the Provincial Councils will be as follows:—Bengal, 51; Madras and Bombay, each 48; the United Provinces, 49; Eastern Bengal and Assam, 43; the Punjab, 27; and Burma, 18.

"The Viceroy's Council has an official majority of three, while all the Provincial Councils have non-official majorities, ranging from 14 in Bengal to three in Burma. In the Viceroy's Council the Mahomedans will have in the first Council six members elected by purely Mahomedan electorates, and will also presumably get seats in Sind and the Punjab, as

the resolution says that a representative of the Bombay landholders on the Imperial Council will be elected at the first, third, and subsequent alternate elections by the Sind landholders, the great majority of whom are Mahomedan, and at the other elections by the Sirdars of Gujarat and the Deccan, the majority of whom are Hindus.

"Again, the Punjab landholders consist equally of Mahomedans and non-Mahomedans, and presumably a Mahomedan will be alternately chosen. Accordingly, it has been decided that at the second, fourth, and alternate elections, when these two seats shall not be held by Mahomedans, there shall be two special electorates consisting of Mahomedan landholders who are entitled to vote for the member representing them in the Imperial Council, and the landowners of the United Provinces and of Eastern Bengal and Assam respectively. The Bombay Mahomedan member of the Imperial Council will be elected by the non-official Mahomedan members of the Provincial Council.

"The tea and jute industries get five members on the Provincial Councils of the Bengals and Madras.

"All members are required to take the oath of allegiance to the Crown before sitting on any of the Councils, and no person is eligible for election if the Imperial or a Provincial Government is of opinion that his election would be contrary to public interest. This provision takes the place of the old power to reject members selected by the electorate.

"The examination of the annual financial proposals is divided into three parts. The first allows a chance for discussing any alteration in taxation and any new loan or grant to a local Government. Under the second any head of revenue or expenditure will be explained by the member in charge of the Department concerned and any resolution may be moved, and at the third stage the Finance Minister presents his budget and explains why any resolutions will not be accepted, a general

discussion following.

"The resolution concludes as follows:

"The new Provincial Councils will assemble early in January and the Imperial Council in the course of that month. ...

"‘The **maximum** strength of the Councils was 126; it is now 370. There are now 135 elected members against 39, while an elected member will sit as of right, needing no official confirmation. The functions of the Councils are greatly enlarged. Members can demand further information in reply to formal answers and discussion will be allowed on all matters of public interest. They will also in future be enabled to take a real and active part in shaping financial proposals. They will have liberal opportunity to criticize and to initiate and suggest definite resolutions.”

As operative at the center of discontent, in Bengal, an unfortunate defect in the regulations was soon discovered, which made trouble at once. It was reported to ***The Times*** as follows:

"The regulations for the election of the new Councils have produced a political situation here which will be scarcely intelligible to those who are not acquainted with the peculiarities of the Bengali character. The educated classes in Calcutta were in despair when they discovered that the rules virtually excluded their leaders, and the more extreme men seized the opportunity of advocating a boycott of the reforms. Sir Edward Baker, however, promptly recognized that the regulations required modification. The rule which restricted the candidates for the representation of district boards and municipalities to present members of these bodies was at once altered so as to include those who had at any time served for three years on a local authority. The effect of this concession was to render eligible many previously

excluded.

{325}

Further, when it was pointed out that Mr. Surendranath Banerjee was shut out by the rule disqualifying dismissed Government servants, Sir Edward Baker spontaneously intimated to the Bengali leader that he was exempted from the operation of this regulation. But, in spite of these conciliatory steps, pressure is being put on Mr. Banerjee to refuse to stand, apparently on the ground that, as many of the well-known Moderates are still ineligible, it is incumbent on Mr. Banerjee to refuse his services to his country rather than weaken the force of a united protest."—These persuasions had success. Mr. Banerjee refused to be a candidate.

The following report from Dacca, December 29, indicates the result: "The Council elections for Eastern Bengal are not yet complete. They show, however, a marked preponderance of Mahomedan representation, due to the deliberate abstention of the Hindu electorate. This abstention has been worked from Calcutta in accordance with the manifesto issued by the Bengali leaders. It is very noticeable among the Zemindar voters, who are mainly Hindu. The idea is that the Government will nominate Hindu representatives and will thus defeat the object of the Reform Scheme."

INDIA: A. D. 1909 (July).

Assassination in London of Sir W. Curzon-Wyllie by an Indian Anarchist.

The virulence of the hostility in India to British rule, as developed in schools of anarchism and terrorism, was shown startlingly to England on the 1st of July, 1909, when Lieutenant-Colonel Sir William Curzon-Wyllie and Dr. Cawas-Lalcaca, a Parsee, were shot dead by an Indian student, at the close of a reception held in the Imperial Institute at London. Sir Curzon-Wyllie, formerly of the Indian Staff Corps, had been serving since 1901 as political aide-de-camp to the

Secretary of State for India, at London. The reception at which he was assassinated was one of the evenings "At Home" of the National Indian Association, held mainly for the purpose of giving the many young Indians residing temporarily in England an opportunity for social intercourse with friendly English people. The assassin, a student named Dhinagri, came as a guest. His brother, a doctor in Calcutta, hearing that he had been coming under anarchist influences, had asked Sir Curzon-Wyllie some time before to talk with him, and that gentleman had done so, with no effect apparently, but to rouse his resentment. The motive of the crime, however, appears to have been wholly in the desire to make a display of "patriotism" and to achieve distinction as a martyr to the cause of liberty for India. The victim might easily have been some other. Sir Curzon-Wyllie was leaving the place when he paused to speak to Dhinagri, and received two deadly bullets at close range, in the face. Dr. Lalcaca, who stood near, rushed forward to intervene, and the pistol was turned on him. Others seized the assassin before he could do more.

When tried and convicted, on the 23d of July, and asked if he had anything to say, Dhinagri replied angrily: "I have told you over and over again that I do not acknowledge the authority of the Court. You can do whatever you like. I do not mind at all. You can pass sentence of death on me. I do not care, but remember that one day we shall be all powerful, and then we can do what we like. That is all I want to say." On being sentenced to death, the prisoner, making an Oriental salute to the Judge, said,—"Thank you, my Lord. I don't care. I am proud to have the honour of laying down my life for the cause of my country."

The family of Dhinagri, in India, employed counsel to attend his trial, who announced to the court that they viewed his crime with the greatest abhorrence.

-----INDIA: End-----

INDIAN (EAST) IMMIGRATION:

The resistance to it in South Africa, Australia, and elsewhere.

(See in this Volume)

RACE PROBLEMS.

INDIAN NATIONAL CONGRESS, The.

See (in this Volume)

INDIA: A. D. 1907-1909.

INDIAN TERRITORY.

United with Oklahoma to form the State of Oklahoma.

See (in this Volume)

UNITED STATES. A. D. 1906 (JUNE).

INDIANS, The American:

End of the Tribal Autonomy of the Five Civilized Tribes.

The last of the proceedings for ending the autonomy of the Five Civilized Tribes making them citizens of the United States, and dividing their tribal lands among them individually, was finished in the summer of 1902, by the Cherokee Council, which ratified agreements already accepted by the other four tribes.

See, Volume VI.,

INDIANS, AMERICAN: A. D. 1893-1899.

According to Mr. William Dudley Foulke, who investigated the circumstances, the Creek nation has suffered grievous frauds in the final settlement of their land affairs, by the operation of the Curtis Act, in the matter of the sale of town sites. Mr. Foulke's account of the case is given in an article entitled "Despoiling a Nation," published in January 2, 1908.

INDUSTRIAL ARBITRATION.

See (in this Volume)
LABOR.

INDUSTRIAL COMBINATIONS (capitalistic).

See (in this Volume)
COMBINATIONS, INDUSTRIAL.

INDUSTRIAL COMBINATIONS (of the employed).

See (in this Volume)
LABOR.

INDUSTRIAL COMMISSION (UNITED STATES), of 1898-1902: On the Sherman Anti-Trust Act, of 1898, applied to Railroads.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1890-1902.

INDUSTRIAL COMMISSION (UNITED STATES), of 1898-1902: On Hours of Labor.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1902.

INDUSTRIAL TRAINING.

See (in this Volume)
EDUCATION.

INHERITANCE TAX: Defeated Proposal in Germany.

See (in this Volume)

Germany: A. D. 1908-1909;
also, DEATH DUTIES.

INITIATIVE.

See (in this Volume)
REFERENDUM.

INJUNCTIONS, in Labor Disputes.

See (in this Volume)
LAW AND ITS COURTS: UNITED STATES.

INLAND WATERWAYS COMMISSION.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

INMEDIATISTAS.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

INSTITUTE OF INTERNATIONAL RIGHT, The.

See (in this Volume)
NOBEL PRIZES.

INSURANCE, AGAINST UNEMPLOYMENT.

See (in this Volume)
POVERTY, PROBLEMS OF: UNEMPLOYMENT; GERMANY.

{326}

INSURANCE, Industrial.

See (in this Volume)
LABOR PROTECTION.

INSURANCE, Life:

The Legislative Investigation of Companies doing business in the State of New York, in 1905.

Startling Disclosures of Vicious Management in the greater organizations, and of Perfunctory State Superintendence.

Report and Recommendations of the Committee.

Remedial Legislation.

A conflict in the Board of Directors of the Equitable Life Assurance Society of New York, which came to public knowledge in February, 1905, afforded the beginning of exciting revelations, as to practices and conditions in the management of the stupendous organizations of life insurance that are centered in New York City.

The Equitable Society was founded in 1859 by Henry B. Hyde as a stock company, with a capital of \$100,000, in 1000 shares, and neither its legal constitution nor its capital had been changed; but its assets at the end of the year 1904, according to its statement, had grown to the enormous total of \$412,438,380, and it held a surplus over liabilities of \$80,394,861. This prodigious fund had come under the control of the holders of the small capital stock of the company—\$100,000; and practically it was controlled by one stockholder, James Hazen Hyde, son of the deceased founder, who had inherited a majority of the shares. By the Charter of the Society, its stockholders were entitled to semi-annual dividends at a rate not exceeding 3½ per cent., and its business was to be conducted on the mutual plan: that is, earnings and receipts above dividends, losses and expenses were to be accumulated and policy holders were to be credited with equitable shares of the net surplus, after sufficient deduction to cover outstanding risks and other obligations. Nevertheless, the opportunities for personal enrichment,

afforded by the controlling of the great floods of money poured into its coffers had been found to be immense.

James Hazen Hyde, inheritor of the majority of stock, was Vice President of the company. Under the terms of his father's will he had not yet come into personal possession of his inheritance, but would do so in a short time. The President of the company, James Alexander, appears to have become anxious as to the use the young man would make of the power of that possession when it came to him, and he entered on a movement toward changing the organization of the Equitable Society, to make it a mutual institution in reality, by securing to the policy holders a voice in the election of directors, leaving their board no longer a body to be chosen by a single man. This movement became necessarily public, and the situation in the company was exposed to public knowledge in a sudden and startling way. Flood-gates of discussion were opened and questions started which ran from the Equitable to other mammoths of life insurance organization that had grown up. Facts came to light which showed the magnitude of financial power they had drawn into small circles of men and families, and the extravagance of compensation appropriated to themselves by some of these self-appointed and self-perpetuated administrators of life insurance funds. Such disclosures became the sensation, not merely of a day, but of months.

At the outset of the undertaking of President Alexander to reform the constitution of the Equitable, Vice-President Hyde was able easily to defeat his movement and make good his own mastery of the board of directors; but as the public became a party to the controversy, more and more, it bore down Mr. Hyde. In April the directors were constrained to appoint a committee to investigate and report on "the present management of the society." The committee, composed of H. C. Frick, E. H. Harriman, Brayton Ives, Cornelius N. Bliss, and M. E. Ingalls, made a report on the 2d of June which was a deadly indictment

of the society, on many counts,—for "excessive salaries, excessive commissions, excessive expenses, superfluous offices," and a "general looseness in the administration of its affairs." Mr. Hyde and his board made a show of disputing the findings of the committee and rejecting its recommendations, but the atmospheric pressure from outside proved irresistible, and they gave way to it. Mr. Hyde sold his 502 shares of stock to Thomas F. Ryan for \$2,500,000 cash, Mr. Ryan making it a condition of the purchase that the Honorable Paul Morton, formerly prominent in railway administration and lately Secretary of the Navy in President Roosevelt's cabinet, should be chairman of the Equitable board of directors and should have a free hand in reorganizing its management. Mr. Ryan then, on the 15th of June, placed the shares in a voting trust, composed of ex-President Grover Cleveland, Justice Morgan J. O'Brien, and George Westinghouse. The deed of transfer to these trustees empowered them to carry out a plan of mutualization, to the end that the society's policy holders should elect a majority of the directors in its board.

The Equitable Life Assurance Society was now in a fair way to be placed on a footing that would justify its name; but the events which accomplished this had created an imperative demand for thorough proceedings of law, to reform and regulate the whole system under which the profoundly serious obligations and responsibilities of life insurance are fulfilled. The first step to that end was taken by the Legislature of the State of New York on the 20th of July, 1905, when it appointed a joint committee of the Senate and Assembly and directed the committee "to investigate and examine into the business and affairs of life insurance companies doing business in the State of New York, with reference to the investments of said companies, the relation of the officers thereof to such investments, the relation of such companies to subsidiary corporations, the government and control of said companies, the contractual relations of said

companies to their policy holders, the cost of life insurance, the expenses of said companies, and any other phase of the life insurance business deemed by the committee to be proper, for the purpose of drafting and reporting to the next session of the Legislature such a revision of the laws regulating and relating to life insurance in this State as said committee may deem proper."

{327}

This most notable investigating committee was composed of Senators William W. Armstrong, William J. Tully, D. J. Riordan, and Assemblymen James T. Rogers, W. W. Wemple, Ezra P. Prentice, John McKcown. It was organized on the 1st of August, with Senator Armstrong as its chairman, and opened public hearings on the 5th of September following, having engaged for its counsel Messrs. Charles E. Hughes and James McKeen. Mr. Hughes was little known to the public at large when he accepted the duty of conducting this investigation. It revealed him to the State and the Nation, and was the fortunate introduction to public life of a man of rare nobility in character and of remarkable powers.

Eighteen insurance companies doing business in New York were subjected to investigation; but interest in the proceeding was centered with intensity on the probing of the affairs of a few of the greater institutions, such as the Equitable, the Mutual Life, the New York Life, the Prudential, and the Metropolitan. The disclosures were rich in sensation; a few only can be noted here. As to salaries, for example: in the Equitable, the late Henry B. Hyde and his successor, Mr. Alexander, as presidents, had received \$75,000 per annum in the early years and \$100,000 in the later years of their terms. James H. Hyde, graduated from college in 1898 and made vice-president the next year, on his father's death, received in the first year \$25,000, in the next two years \$30,000, in his fourth year \$75,000, and thereafter \$100,000. Second vice-presidents were

paid as high as \$50,000 per annum; third vice-presidents as high as \$40,000; fourth vice-presidents as high as \$30,000. Salaries of secretaries and comptrollers had run up to \$25,000 and \$30,000. Thirteen executive officers in the society whose salaries aggregated \$297,600 in 1900, were drawing \$448,500 in 1905.

Executive officers in the Mutual Life surpassed even this experience of bounty. The president's salary had been \$30,000 from 1877 to 1885, \$50,000 from 1886 to 1892, then raised to \$75,000 in 1893, to \$90,000 in 1895, to \$100,000 in 1896, and to \$150,000 in 1901. Richard A. McCurdy had been president for twenty years and vice-president for the preceding twenty. The vice-president's salary had grown from \$20,000 in 1877 to \$50,000 in 1902; the treasurer's had been \$40,000 since 1896.

In the New York Life the salary of the president, John A. McCall, had stopped its increment at \$100,000, which it reached in 1901. The second vice-president's salary went to \$75,000 the same year. The total salaries of executive officers were raised from \$149,000 in 1893 to \$322,000 in 1905.

Agency commissions were sometimes richer sources of income than the fixed salaries of these generous companies. In the Mutual Life Company, the president's son, Robert H. McCurdy, had an interest in the general agency of the company for New York City from which he drew \$530,788 between 1889 and 1904; besides which, as superintendent of the foreign department of the company, he was paid commissions on its foreign business which yielded him \$1,268,390 between 1886 and 1905; some part of which commissions, however (to an amount not ascertained), were shared by him with his partner in the New York City agency. The total net profits of that metropolitan agency,—in which the president's son-in-law was likewise a partner,—were found by the investigating committee to have been \$2,389,123 in the twelve years 1893-1904.

These, however, were not the worst, in their moral implications, of the disclosures that resulted from the search light brought to bear on the administration of certain life insurance companies by the Legislative Committee and Mr. Hughes. A startling share of the prodigal expenditures of some boards, from the excessive profits of their business, went secretly, with no accounting, to undiscoverable purposes, which were purposes, of course, that would not bear questioning. The following, from the report of the investigating Committee on the Mutual Life Company, is indicative of the glimpses given of foul uses to which the funds of that company were applied. "For a considerable period," says the report, "it has been the practice for the Committee on Expenditures to authorize the payment to its chairman of \$25,000 every few months, or from \$75,000 to \$100,000 a year, upon the request of one of the executive officers. The persons to whom the moneys were to be paid by the company, or the services, if any, for which the payment was to be made, were not known to the committee, and the only voucher was the receipt of the chairman of the committee who received and paid over the money in cash. There was no reason for this practice save to conceal the purposes for which the moneys were used, and it obviously facilitated improper payments.

"There were also a large number of payments charged to legal expenses which were made upon the recommendation of one Andrew C. Fields, who for many years was the head of the 'Supply Department.' He was in actual charge of and gave a large part of his time to matters of legislation. For many years the company maintained under his care a house at Albany, and through him and his agents a close watch was kept upon the proceedings of the Legislature. The rent of this house, the supplies there consumed, and the wages of the cook and other servants, were charged to 'legal expenses.' Fields left for parts unknown soon after the Committee began its hearings and

it has not been able to procure his testimony. It appears, however, that he acted also for the Equitable, and from their records have been produced a series of memoranda of instructions sent Fields by Thomas D. Jordan, its comptroller, whose whereabouts the Committee has been unable to ascertain, although it has made diligent effort to do so."

The Committee quotes extensively from these memoranda of "T. D. J.," who instructs his Albany lobbyist what bills the latter is to "kill," and what he is to support. There are depths of corruption suggested by this story of the hospitable Andrew Fields, the vigilant Thomas D. Jordan, their "legal expenses" for hospitable house-keeping at Albany, and the sudden vanishment of both when Mr. Hughes began to do his questioning; but the depths are left unfathomed, because the Committee found no sounding line.

"The testimony taken by the committee," says their report, "makes it abundantly clear that the large insurance companies systematically attempted to control legislation in this and other States which could affect their interests, directly or indirectly, and that in this effort Fields, who concerned himself mainly with this State, played a most important role."
{328}

The three companies [Mutual, New York Life, and Equitable] divided the country, outside of New York and a few other States, so as to avoid a waste of effort, each looking after legislation in its chosen district and bearing its appropriate part of the total expense." The so-called "legal expenses" of the Mutual in seven years, 1898-1904, exceeded two millions of dollars. "In 1904 they amounted to \$364,254.95, while those of the New York Life and Equitable for the same year were \$172,698.42 and \$204,019.25 respectively."

The New York Life employed one Andrew Hamilton to give attention to matters of legislation throughout the country, and the company was found to have paid him no less than

\$1,167,697 for "legal expenses," between 1895 and 1905, no vouchers being filed beyond Hamilton's receipt. And these "legal expenses were in addition to all the ordinary outlays in connection with suits or legal proceedings or the work of the legal department of the company."

In the accounts of the Equitable, "among the disbursements charged to legal expenses appear annual retainers of \$20,000 paid Chauncey M. Depew [United States Senator from New York] and \$5000 (for one year—1900—\$7500) to David B. Hill. Mr. Depew testifies ... that his services consisted of advising the late Mr. Hyde in regard to matters of investment, settlement of controversies and troublesome questions of various sorts. ... During this time Mr. Depew was a director and member of the Executive Committee. The testimony as to the services is very general, and it does not appear," says the committee, "that outside of those which the society was fairly entitled to receive from him as a director, the services were such as to warrant the payments made. ... The Equitable contributed to the Republican National Committee \$50,000 in 1904; undoubtedly contributions were made in prior national campaigns, but their amount has not been stated. For many years the society has made an annual contribution of \$10,000 to the Republican State Committee through Senator Platt." Senator Platt was a collector, also, of similar contributions from the Mutual Life, and that company gave \$40,000 to the Republican National Committee in 1904, as well as smaller sums in previous years.

Of the management in these great companies of the enormous surplus of profit, which even their inordinate self-appropriations left in their keeping, no clear account could be given here. It is set forth in the Committee's report by examples of investments, in stocks, bonds, and real property, so conducted, through subsidiary organizations, etc., as to yield a personal profit to the skilful financiers within the life insurance circle. The details which make the matter plain cannot be abridged and require more space than

can be afforded in this place.

From the investigation of the life insurance companies the Committee and its counsel passed to the State Department which was instituted to scrutinize and supervise these organizations, for the detection and prevention of such abuses in their management as had now come to light. Their findings in this direction were stated partly as follows:

"It would seem that the Superintendent [of Insurance] has had ample power, and has been charged with the correlative duty, to inquire into and to ascertain the transactions of insurance companies, to the end that abuses may be exposed and correct administration assured. The scheme by which the superintendent may require detailed written statements duly verified, as to any matter of corporate business and may supplement these statements by an examination of the company's books and of the officers and agents under oath, would appear well calculated to prevent the secret growth of improper practices. Not only through the visitorial powers of the superintendent were a wholesale publicity and the consequent enforcement of the law to be assured, but the superintendent was also charged with the duty of recommending to the Legislature annually such amendments to the law as in his judgment were needed to correct evils found to be without the purview of existing statutes.

"But the supervision by the department has not proved a sufficient protection against extravagance and maladministration. Annual statements from the corporations have been received, filed and published, but in many particulars without sufficient detail to exhibit the real efficiency or honesty of the management. Nor has there been suitable effort upon the facts actually reported to detect and expose evasions of departmental requirements and the resort to artifice and double dealing in order to avoid a true disclosure of the companies' affairs. For the most part a

critical examination of the reports so made seems to have been neglected, and the verification of the annual statements has been left to examinations conducted at irregular intervals. No rule seems to have been adopted with reference to the frequency of examinations. Thus the Security Mutual Insurance Company has been examined four times since its reincorporation in 1898, at its request and apparently with no other object than to enable it to use the department's certificate in support of its annual statement, while the Provident Savings Life Assurance Society has been examined only once in the past ten years (1897) and it would seem that this was the only examination in its history. The Metropolitan Life Insurance Company has also been examined only once during ten years, that is, in 1900. The advisability of frequent examinations is sufficiently illustrated by the case of the Washington Life Insurance Company, where it appeared on the examination in 1904 that during the interval of four years since the prior examination it had, in at least two annual statements, deceived the department by glaringly false returns of its existing liabilities, and that instead of having an alleged surplus of considerable amount its capital was seriously impaired. In connection with this company it may be noted that a more careful scrutiny of the reports to the department of lapsed and restored policies would have led at an earlier date to the investigation which appears finally to have been induced by outside criticism."

As to remedial legislation, the main recommendations of the Committee were in substance these:

- (1) Investments in stocks of banks and trust companies, in the common stock of any corporation, in syndicate participations, and in speculative bonds, to be forbidden.
- (2) No political contributions or lobby expenditures to be permitted.

(3) Full publicity regarding salaries and expenses.

(4) New business of the "big three" companies restricted to \$150,000,000 a year each, and the business of other companies limited.

{329}

(5) Agents' commissions to be based on the amount of the policy and not on the amount of the premium.

(6) Only four kinds of standard policies to be permitted—term, straight life, limited payment and endowment.

(7) Investment policies to be discouraged and deferred dividends forbidden.

(8) All dividends on participating policies to be apportioned annually.

(9) No company to be permitted to sell both participating and non-participating policies.

(10) The present trustees of mutual companies to be removed. New ones to be elected under a system whereby the policy-holders really elect.

The Committee presented the elaborate report of its investigation to the Legislature on the 22d of February, 1906, and its recommendations were embodied for the most part in an enactment, the drafting of which, to a large extent, was the careful work of Mr. Hughes, the master mind of the whole proceeding of investigation.

The statements made above are drawn entirely from the Committee's Report, as published in Volume 10 of the printed testimony and report.

***Assembly Document Number 41,
State of New York, 1906.***

"INTELLECTUALS."

See (in this Volume)
SOCIALISM: FRANCE: A. D. 1909.

INTELLIGENZIA, The.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

INTEMPERANCE.

See (in this Volume)
ALCOHOL PROBLEM.

INTERFEROMETER, Professor Michelson's.

See (in this Volume)
SCIENCE AND INVENTION, RECENT.

INTERNATIONAL AGREEMENTS.

See (in this Volume)
EUROPE.

INTERNATIONAL ARBITRATION.

See (in this Volume)
WAR, THE REVOLT AGAINST, AND ARBITRATION,
INTERNATIONAL.

INTERNATIONAL BARBARISM.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

INTERNATIONAL BUREAU OF THE AMERICAN REPUBLICS.

See (in this Volume)
AMERICAN REPUBLICS.

INTERNATIONAL BUREAU OF THE AMERICAN REPUBLICS:
Resolution of the Third International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

INTERNATIONAL CONFERENCE OF AMERICAN REPUBLICS,
Second and Third.

See (in this Volume)
AMERICAN REPUBLICS.

INTERNATIONAL CONGRESS OF ARTS AND SCIENCES.

See (in this Volume)
ST. LOUIS. A. D. 1904.

INTERNATIONAL CONGRESS ON ALCOHOLISM.

See (in this Volume)
ALCOHOL PROBLEM: INTERNATIONAL.

INTERNATIONAL CONGRESSES, of Science.

See (in this Volume)
SCIENCE AND INVENTION.

INTERNATIONAL COUNCIL OF WOMEN.

See (in this Volume)
WOMEN.

INTERNATIONAL COURT OF JUSTICE, Central American.

See (in this Volume)
CENTRAL AMERICA: A. D. 1907.

INTERNATIONAL FISHERIES COMMISSION, United States and
Canada.

See (in this Volume)
FOOD FISHES.

INTERNATIONAL GEOGRAPHIC CONGRESS.

See (in this Volume)
GEOGRAPHIC CONGRESS.

INTERNATIONAL HARVESTER COMPANY:
Profit-sharing with Employees.

See (in this Volume)
LABOR REMUNERATION: PROFIT-SHARING.

INTERNATIONAL INSTITUTE OF AGRICULTURE.

See (in this Volume)
AGRICULTURE.

INTERNATIONAL INTERCHANGES, Educational.

See (in this Volume)
EDUCATION: INTERNATIONAL INTERCHANGES.

INTERNATIONAL LAW:

Convention providing for a Commission of Jurists to draft a Code for Regulation of Relations between American Nations.

See (in this Volume)

AMERICAN REPUBLICS: THIRD INTERNATIONAL CONFERENCE.

INTERNATIONAL MERCANTILE MARINE COMPANY, Formation of the.

See (in this Volume)

COMBINATIONS, INDUSTRIAL (INTERNATIONAL).

INTERNATIONAL PEACE CONGRESSES.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1904.

INTERNATIONAL RAILWAY CONGRESS.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1905.

INTERNATIONAL RIGHT, The Institute of.

See (in this Volume)

NOBEL PRIZES.

INTERNATIONAL SCHOOL OF PEACE.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1909.

INTERNATIONAL WOMAN SUFFRAGE ALLIANCE.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

INTERNATIONALISM, SUPERSEDING NATIONALISM.

See (in this Volume)

WORLD MOVEMENTS: FICHTE'S PROPHECY.

INTEROCEANIC CANAL.

See (in this Volume)

PANAMA CANAL.

INTERPARLIAMENTARY UNION, The.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1904-1909.

INTERSTATE COMMERCE ACT, and Commission.

See (in this Volume)

RAILWAYS: UNITED STATES; also,

COMBINATIONS, INDUSTRIAL: UNITED STATES.

INTERSTATE COMMERCE COMMISSION.

On the passage, in 1906, of the Hepburn Act, amendatory of the Interstate Commerce Law, the Commission was reconstructed by fresh appointments, in making which the President retained Messrs. Knapp, of New York, Prouty, of Vermont, Clements, of Georgia, and Cockrell, of Missouri. His new appointees were Franklin K. Lane, of California, Edgar Erastus Clark, of Iowa, and James S. Harlan, of Illinois.

INTOXICANTS, PROBLEMS OF THE.

See (in this Volume)

ALCOHOL PROBLEM, AND OPIUM PROBLEM.

INTRANSIGENTES.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

INVENTORY OF CHURCH PROPERTY, THE FRENCH.

See (in this Volume)
FRANCE: A. D. 1905-1906.

{330}

-----IRELAND: Start-----

IRELAND: A. D. 1870-1903.

The Working of the successive Land Laws.
The Act of 1903.
Text of its main provisions.

The French writer, L. Paul-Dubois, whose work, ***L'Irlande Contemporaine***, published in 1907, has appeared since in an English translation, seems to have made a very careful and intelligent study of the working of the successive land-laws for Ireland, intended to be beneficial to the tenants, which began with that of Gladstone in 1870.

See in Volumes III and VI
IRELAND.

Mr. Gladstone, himself, in the Act of 1881, endeavored to remedy the defects of the Act of 1870; but M. Paul-Dubois finds that, while the later Act "brought and continues to bring immense good to the country," yet "the system established by it is, as a matter of fact, no longer bearable for any one,"—for the reason that "the first great characteristic of the Gladstonian legislation is duality of ownership." It is, as he explains, an unhealthy system,

unsound both economically and socially,—this dual ownership, which turns the landlord and tenant into co-proprietors of the soil. It paralyses agriculture by preventing the investment of capital on either side, and by destroying all interest of either landlord or tenant in the good farming of the land. The landlord feels himself no longer called upon to do anything for his property, and has no care left but that of collecting his rents. The tenant, on the other hand, refrains from making any improvement or advances that might cause his rent to be raised at the next quinquennial revision; the land is thus starved of both labor and capital. We may add, also, that the new regime gives rise to an infinity of ruinous lawsuits between the co-owners. ... For a quarter of a century there has been only one class of men whose affairs have prospered, namely, the solicitors. Their number has increased by 30 per cent." In his view of the results, M. Paul-Dubois is sympathetic with both landlords and tenants. But in his judgment the tenants were not fairly dealt with under the Gladstonian laws by the Land Commission or by the courts. The courts, especially, in interpreting the Act of 1881, which left "fair rent" undefined, established rulings which practically nullified the intentions of the law, until, as this writer expresses it, "the Act of 1896 brought the Irish judges to reason."

Eleven years before that time, however, a little experiment was begun on the line of a true solution of the Irish land question, namely, toward the buying of the soil of the island from its landlords and making its cultivators the owners of it. This was in the Ashbourne Land Purchase Act of 1885, which provided a fund of £5,000,000 for advances to be made to tenant purchasers, with provision for the repayment of the loan in forty-nine annuities. In 1889 this fund was increased to £10,000,000. By 1891 the fund had been exhausted, and "25,367 tenants had been turned into owners of their farms. Its success even alarmed some of the landlords, who began to fear that the farmers would combine and force them to sell

their land. However this may be," says the French writer, "in 1891 the Conservative Government passed a new Act which, under the pretence of regulating the progress of the operation, complicated it to such an extent that the machine almost stopped working. In 1896, by another Act, the existing evils were slightly remedied, but only to an insufficient extent. ... Finally, in 1903, it was found that under the new system established in 1891 and 1896, only 38,251 tenants had been turned into proprietors; and at that same date the total number of peasant owners created from first to last had reached no higher figure than 73,917. As Land Purchase was progressing more and more slowly, it was felt that some new impulse must be given to the machine. This was the aim of the great Land Act of 1903."

***L. Paul-Dubois,
Contemporary Ireland, part 2, chapters 1-2
(Maunsel & Co., Dublin, 1908).***

"The Irish Land Purchase Act of 1903 was in every respect epoch-making. It was preceded by, and founded upon, the report of a conference held between the representatives of landlord and tenant in Dublin. The Landlords' Convention, the official representative of the landlord party, held aloof and refused to join in the conference. Typical landlords, such as the Duke of Abercorn, Lord Barrymore, and Colonel Saunderson, refused to serve, ridiculing the project as absurd and quixotic. Lord Dunraven led a saner section of landlords, with the result that, after a session of five days, the conference agreed to a report, upon which the government acted. The official landlords, seeing the reasonableness of the findings and recognizing their own folly, succumbed at once, and fell in with the general tendency for settlement. Substantially, the Act of 1903 accepted the principle of universal sale of the landlord's interest to the occupier. It ignored legal compulsion. But it accepted what was finely called the principle of compulsion by inducement. It placed the sum of

£100,000,000 (\$500,000,000) at the disposal of landlord and tenant for the purposes of the act. It went further,—for it enacted that out of a fund called the Land Purchase Aid Fund each landlord who sold should receive a bonus (Latin for gift) of 12 per cent. on the purchase money. It appointed a new tribunal to administer the Act. And to this tribunal were given powers of re-settling congested districts by the purchase of grass lands, the enlargement of uneconomic holdings, and the restoration of certain evicted tenants where possible."

***Thomas W. Russell, M. P.,
The Workings of the Irish Land Law
(American Review of Reviews, November, 1905).***

The following are among the important provisions of the Land Act of 1903:

"1.

(4) Notwithstanding any provisions to the contrary contained in the Purchase of Land (Ireland) Amendment Act, 1888, an advance may be sanctioned under the provisions of the Land Purchase Acts not exceeding the sum of seven thousand pounds to one purchaser where, in the opinion of the Land Commission, it is expedient to make any such advance for the purpose of carrying out the sale of a holding to which the Land Law Acts apply. ...

{331}

"2.

(1) In the case of the sale of an estate advances under the Land Purchase Acts may be made for the purchase of parcels thereof by the following persons:

(a) A person being the tenant of a holding on the estate;

(b) A person being the son of a tenant of a holding on the estate;

(c) A person being the tenant or proprietor of a holding not exceeding five pounds in rateable value, situate in the neighbourhood of the estate; and

(d) A person who within twenty-five years before the passing of this Act was the tenant of a holding to which the Land Law Acts apply, and who is not at the date of the purchase the tenant or proprietor of that holding. Provided that in the case of the death of a person to whom an advance under this paragraph might otherwise have been made, the advance may be made, to a person nominated by the Land Commission as the personal representative of the deceased person.

"(2) Advances under this section shall not, together with the amount (if any) of any previous advance under the Land Purchase Acts then unrepaid by the purchaser, exceed one thousand pounds:

"Provided that the limitation in this subsection may, subject to the other limitations in the Land Purchase Acts, be exceeded where the Land Commission consider that a larger advance may be sanctioned to any purchaser without prejudice to the wants and circumstances of other persons residing in the neighbourhood.

"(3) The Land Purchase Acts shall, subject to the provisions of this section, apply to the sale of a parcel of land in pursuance of this section, in like manner as if the same was a holding, and the purchaser was the tenant thereof at the time of his making the purchase, and the expression "holding" in those Acts shall include a parcel of land in respect of the purchase of which an advance has been made in pursuance of

this section. ...

"6.

(4) In the case of a congested estate as defined by this section, if the Land Commission, with the consent of the owner, certify to the Lord Lieutenant that the purchase and resale of the estate are desirable in view of the wants and circumstances of the tenants thereon, then the Land Commission may purchase the estate for a price to be agreed upon, and in such case the condition in this section as to resale without prospect of loss may be relaxed to such extent as the Lord Lieutenant may determine.

"(5) The expression "congested estate" means an estate not less than half of the area of which consists of holdings not exceeding five pounds in rateable value, or of mountain or bog land, or not less than a quarter of the area of which is held in rundale or intermixed plots. ...

"8.

The Land Commission may purchase any untenanted land which they consider necessary for the purchase of facilitating the resale, or redistribution, of estates purchased, or proposed to be purchased, by them, and the foregoing provisions of this Act, with respect to advances for the purchase of parcels of land comprised in estates, shall apply in the case of the sale by the Commission of any parcel of such untenanted land.

"9.

(1) There shall not be at any time vested in the Land Commission lands exceeding in the aggregate, according to the estimate of the Commission, as approved by the Treasury, the capital value of five million pounds in respect of which undertakings to purchase have not been received by the Commission. ...

"12.

(1) The Land Commission may take such steps and execute, or cause to be executed, such works as may appear expedient for the benefit or improvement of estates, or untenanted land, purchased or proposed to be purchased under this Act, or for the use or enjoyment thereof or generally for the purposes of this Act. ...

"19.

Where an estate is purchased by the Land Commission and tenants on the estate to the extent of three-fourths in number and rateable value have agreed to purchase their holdings, the Estates Commissioners may, if, having regard to the circumstances of the case, they think it expedient, order that the remaining tenants, or any of them, shall be deemed to have accepted the offers made to them, and the Land Purchase Acts shall apply accordingly, where the tenant could have obtained an advance of the entire purchase money, and the Land Commission have offered in the prescribed manner to make the advance."

IRELAND: A. D. 1893-1907.

The Gaelic League.

"At the eve of the great famine, the mass of the people, outside the large towns, still spoke Irish; to-day partly owing to emigration, Irish is only spoken by 600,000 persons, out of four and a half millions, and that concurrently with English. Twenty thousand persons speak Irish only; these are mainly of the West. ... Anglicisation had begun its work, when the old language had been lost. Therefore, must not the Irish renaissance begin with the readoption of that language? So thought a small and elite group of Irish patriots, men of talent and enthusiasm, imbued with the national gospel preached by Thomas Davis forty years earlier—a gospel which Ireland had to some extent forgotten amidst the sufferings of the Great Famine, Fenianism and the Land Wars. Prominent in this group was the descendant of an old Protestant family of

Roscommon, a Celtic scholar and folklorist, a poet of merit in English, a poet in Irish also, so say the connoisseurs, Dr. Douglas Hyde. He had the genius for propaganda, and when the country was ripe for it, gave body to his ideas by founding the Gaelic League, with the aid of his early friends, in 1893. The Gaelic League—though to limit the Irish renaissance by placing it under this title would be to limit its actual scope—may be said to be a faithful representative of the general ideas underlying the new Irish movement. It has declared its objects to be, the preservation of Irish as the national language, the study of ancient Irish literature, and the cultivation of a modern literature in the Irish language. But we must be careful not to judge it by its name. The Gaelic League is not a society of scholars, and leaves to others all that concerns literature and philology, pure and simple. It is occupied with propaganda, the application of its doctrine of a national renaissance on the basis of a national language. It intends to confer anew upon the country a psychological education, and, by means of the national language, by the revival of national art and literature, and the reconstitution of a national social system, to regenerate its soul from within and teach Ireland how she may again be a nation. ... Though still growing, it has already in Ireland 964 branches, local and popular centres of activity, whose work it is to spread the national idea and the national language by every means, and to make them active factors in the every-day life of the family and social circle. Their primary duty is to organise Irish language classes for the benefit of their members.

{332}

These classes are practical above all in their scope, and are conducted sometimes by paid teachers and sometimes by generous volunteers whose work is almost always good. ... Such a teacher in the country manages, on his rounds, to hold a dozen classes or so regularly every week. There are special classes for workmen, for students, for ladies; special classes for beginners, for veterans, Irish history classes, singing and

even dancing classes, where the old national airs are taught and the national reel and jig. ... In the summer, during holiday time, the enthusiasts of Irish speech come together in the western villages for the **Sgoil Saoire** (Summer school). There their teachers are the old peasants, from whom they learn not only the correct accent, the music of the language, but the spirit and tradition of ancient Irish culture, of which these peasants, who, from generation to generation, have gathered up the songs and legends of former times, are the most faithful guardians. In the summer also the **Seilge** are organised, that is to say, excursions to places of historical interest, with national sports and recreations. A **seilg** in Galway in 1901 was attended by no less than 2,000 pilgrims. In the winter evenings each branch holds reunions from time to time, lectures (**seanchus**), followed by discussions on Irish subjects, concerts (**sgoruidheacht**), with choirs, Irish dances and songs, and **ceilidhe**, informal meetings on the lines of ancient village gatherings, where serious conversation—in Irish—alternates with music or a ‘recital,’ that is to say, a story or a piece of news, told, according to popular custom, by the author or a raconteur. Every year the Gaelic and National Festival, that of St. Patrick, is celebrated throughout Ireland, but notably in Dublin. ... A start—the first and greatest difficulty—has been made, and now the League is a power in Ireland. It sells annually 20,000 Gaelic books and pamphlets, in which are included **editiones principes** of the poets of the eighteenth century, and new Irish publications, tales, and novels. Its financial resources are moderate. They represent, however, the spontaneous obol of the poor; and a large part of the annual subscription to the Language Fund, during St. Patrick’s week, is made up of pence and of half-pence. From the start the League has had the good sense officially to declare that it was both necessary and desirable that it should stand apart from all political and religious struggles; such has been its line of conduct, and now within it are found representatives of every party, from

the strongest Orangemen to the fiercest separatists."

***L. Paul-Dubois,
Contemporary Ireland,
part 3, chapter 2
(Maunsel & Co. Dublin, 1908).***

Public meetings have been held in Ireland during the past year (1909) to support the demand of the Gaelic League "that the Irish language, both oral and written, and Irish history be made essential subjects for matriculation in the new national University, and that proper provision be made for the teaching of Irish in all its colleges."

IRELAND: A. D. 1901 (March).
Census

"4,456,546 Persons (2,197,739 Males and 2,258,807 Females) were returned in the Enumerators' Summaries as constituting the population of Ireland on the night of Sunday, the 31st of last March—thus showing a decrease since 1891 of 248,204 persons, or 5.3 per cent.—the decrease in the number of males was equal to 5.2 per cent., and in the number of females to 5.3 per cent.

"There was during the decade a decrease of 41,297 persons, or 3.5 per cent. in the Province of Leinster; 98,568, or 8.4 per cent. in the Province of Munster; 38,463, or 2.4 per cent. in the Province of Ulster; and 69,876, or 9.7 percent, in the Province of Connaught."

In 1841 the population enumerated in Ireland as a whole had been 8,196,597; in 1851 it had been 6,574,278; in 1861, 5,798,967; in 1871, 5,412,377; in 1881, 5,174,836; in 1891, 4,704,750. Excepting in 1861 the showing is a steady decrease, and this latest census finds the island almost half depopulated.

"According to the Summaries furnished by the Enumerators, 3,310,028 persons returned themselves as Roman Catholics, this number being 237,279 or 6.7 per cent under the number so returned in 1891; 579,385 were returned under the head of 'Protestant Episcopalians,' being a decrease of 20,718, or 3.5 percent., compared with the number tabulated under that head in 1891; 443,494 were returned as Presbyterians, being a decrease of 1,480 or 0.3 per cent. compared with 1891; the number of Methodists returned on the present occasion amounts to 61,255, being an increase of 5,745 or 10.4 per cent, on the number returned on the Census Forms in 1891."

In Dublin City, as extended under the Dublin Corporation Act of 1900, the population enumerated in 1901 was 289,108, being a gain of 20,521 since 1891. With the Urban Districts of Rathmines and Rathcar, Pembroke, Blackrock and Kingstown added, the total population of Dublin and suburbs was 373,179,—an increase in the decade of 27,220.

The following table shows the population of the 14 towns in which more than 10,000 inhabitants were found: compared with the enumeration of 1891.

Towns .	1891 .	1901 .
Belfast	273, 079	348, 965
Cork	75, 345	75, 978
Limerick	37, 155	38, 085
Londonderry	33, 200	39, 873
Waterford	26, 203	26, 743
Galway	13, 800	13, 414
Drogheda	13, 708	12, 765
Newry	12, 961	12, 587
Dundalk	12, 449	13, 067

Lisburn	12, 250	11, 459
Wexford	11, 545	11, 154
Lurgan	11, 429	11, 777
Kilkenny	11, 048	10, 493
Sligo	10, 862	10, 862
Total	554, 446	637, 222

IRELAND: A. D. 1902 (February).

Lord Rosebery and Sir Henry Campbell-Bannerman at issue on the Home Rule question.

In a speech delivered at Liverpool in February Lord Rosebery pronounced a most positive funeral oration on what he assumed to be the death and burial of the Irish Home Rule question in British politics. A few days later Sir Henry Campbell-Bannerman, speaking at the annual meeting of the General Committee of the National Liberal Federation, took occasion to resurrect the supposedly buried issue and take it under his protection, as one of the responsibilities of the Liberal Party.

{333}

Home Rule, he said, was often spoken of as if it were "a strange, fantastic, almost whimsical and mad-cap policy, rashly adopted in a random way, to secure the Irish vote. It is to be easily and lightly dropped at any moment when an equal amount of support can be obtained from any other quarter! Not a very noble view of the case! Not, in truth, a very creditable or even a decent view of the case, but intelligible enough if there were in the way no principles and no facts." One such fact he found in the "fixed constitutional demand of the Irish people"; and Sir Henry concluded that the "old policy" remains "the sole remedy for the condition of Ireland, which is the most serious weakness in the whole British Empire and the most grave blot upon its fame."

By these two sharply opposed utterances the Liberals of the United Kingdom were called to decide which leading they would follow—that of Lord Rosebery or that of Sir Henry. Not being in power, however, nor measurably within reach of it, decision of the party did not need to be made in haste.

IRELAND: A. D. 1902-1908.

Conditions in the matter of Disorder and Crime.

In the course of a debate in the British Parliament on conditions in Ireland, which took place on the 24th of February, 1909, Lord Percy, charging the Liberal Government with responsibility for an increase of disorder and crime since it came into power, brought statistics in evidence as follows: "Take the indictable offences against property and firing into houses. In 1906 the total number of these offences was 20; in 1907, 29; in 1908, 80. Outrages on the person by the use of firearms, agrarian and non-agrarian, were:—In the first 11 months of 1906, 20 agrarian and 36 non-agrarian; in 1907, 56 agrarian and 53 non-agrarian; in 1908, 128 agrarian and 65 non-agrarian. In addition to these open outrages there was the system of boycotting and intimidation. In cattle-driving—a new offence unheard of before the days of the Chief Secretary—there were 390 cases in 1907 and 681 in 1908. The number of persons under police protection on January 31, 1907, was 196; in 1908, 270; and in 1909, 335. The cases of boycotting had risen from 162 on November 30, 1905, to 874 on January 31, 1908. An impression prevailed that the cases of boycotting were 'minor cases,' and of no great importance; but the Lord Chief Justice, at the Clare Spring Assizes on one occasion, referring to these so-called minor cases, pointed out that no one dealt with or spoke to the boycotted person, and that he had to go 20 miles to Limerick for the necessaries of life. People also had to go to mass and to weddings protected by police; and he asserted that the Government could not point to a civilized country in Europe in which the Government would tolerate a large section of its population

living daily and hourly under the shadow of a terror like this."

The Chief Secretary for Ireland, Mr. Birrell, retorted with the following: "For the purpose of making a comparison between the condition of Ireland to-day and as it was when the Government was led by the right honourable gentleman the leader of the Opposition, when they introduced and made permanent their Crimes Act, we must consider what was the state of things in 1886 as compared with what it is now. I will give the House the figures. Murders in 1886, seven; in 1908, one; manslaughter in 1886, three; now, none; firing at the person, 16; now, 15; firing into dwellings—and here is a most formidable addition, I admit—43; now, 66; incendiary fires and arson, 103; now, 54; killing, cutting, and maiming cattle—a horrible and brutal crime—73; now, 22—far too many; riots and affrays, nine; now, 13; threatening letters or notices, 434; now, 233; intimidation, 92; now, 57; injury to property, 150; now, 89; other offences, 136; now, 26; showing in 1886 a total of 1,056, and now a total of 576. On January 1, 1886, there were 175 persons wholly boycotted, and 716 partially boycotted—a total of 891. In those days, I admit, the police made no distinction between partial and minor boycotting. In 1887 there were 145 persons wholly boycotted, and 763 partially boycotted, making a total of 908. On January 1, 1909, there were 15 wholly boycotted, 10 partially boycotted, and 172 cases of minor boycotting, making in all 197. Persons under constant police protection on December 31, 1887, numbered 252, and those under protection by patrol, 704—a total of 956. On December 31, 1908, there were 74 persons under constant protection, 270 under protection by patrol, a total of 344 against the total of 956. I leave the House to draw their own inference from those figures."

An official return to Parliament, from the Royal Irish Constabulary Office, Dublin Castle, of the number of cases of boycotting and of persons boycotted throughout Ireland on the

31st day of January, 1908, and on various days in several preceding years, showed 5 cases of entire boycotting, affecting 26 persons, and 9 cases of partial boycotting, affecting 39 people, on the date mentioned in 1908; 4 cases of entire boycotting, affecting 20, with seven cases of the partial boycott, affecting 35, on the 31st of July, 1907. On the 31st of July, 1903, there had been 4 cases of entire and 21 cases of partial boycotting affecting 25 and 131 persons respectively; while the cases on the 31st of March, 1902, of entire boycotting had numbered 5, the partial cases 46, and they were directed in the first instance against 26 people, and against 275 in the second.

IRELAND: A. D. 1905.

Defective working of the Land Purchase Act of 1903.

Inadequacy of its financial provisions.

Baffled in the Western Counties by cupidity of landlords.

The first two years of the working of the Irish Land Purchase Act of 1903 sufficed to show that the splendid promise of that measure could not be realized satisfactorily without fundamental changes in its plan. By that time the agreements effected between landlords and tenants for transfers of land from the former to the latter called for purchase payments far in excess of the sums which the Act had provided for supplying at so early a stage of the operation. The process of transfer was checked and the feelings that helped it on were chilled by increasing delays in the completion of transactions when begun.

But this was not the worst disappointment in the working of the Act. Another more serious is charged to the cupidity of landlords in the poorer counties of the west. In the article by Mr. Thomas W. Russell from which a quotation is given above he explains it as follows:

"It was quite impossible to apply the same rule to Connaught and to other similar areas as to Ulster, Leinster, and Munster. In the west the holdings are small and hopelessly uneconomic in their character. Parliament felt, and rightly so, that to make the occupier of a five-acre bog holding an owner was to do him no good. Such a feat in statesmanship merely freed the western landlord from a risky security and transferred the risk to the state. It was, therefore, enacted that the large grass holdings which abound in that region,—and which are held by graziers on a tenure of eleven months, the object of the term being to avoid the creation of a tenancy,—should be bought and wherever possible should be distributed among the small holders, thus rendering a decent living possible. And in several cases this has been successfully done by the congested districts board, with the very best results. ... The landlords as a whole professed at the land conference and in Parliament their entire willingness to sell, provided they received a price equivalent when securely invested to their second-term net income. To enable this to be done the bonus of £12,000,000 was sanctioned by Parliament. The whole thing was a bargain—a clear case of contract. And what the western landlords have been guilty of is a simple breach of faith. They are quite ready to sell the bog holdings, the barren mountain tracts out of which a decent living cannot be had, demanding for this wretched land in many cases more than is being asked in Antrim and Down for the best land in these counties. But the grass ranches they refuse to part with. And so the whole plan of the act,—the whole scheme for the re-settling of the land, and raising the station of the small holder,—has been brought to naught.

"In this connection another difficulty has arisen. When the western sections of the act were being passed, Mr. Wyndham,—who was in grim earnest about these poor people,—provided for the sale of congested estates to the estates commissioners or to the congested districts board.

Special inducements were given to sales under these sections. The cost of sale was borne almost entirely by the state, and the commissioners were authorized in such cases to spend money upon the improvement of the holdings. The policy was excellent. But the landlords have ruined it. They quickly discovered that if they sold to the estates commissioners the land would be inspected by an expert valuer, and its price would depend upon its value. This was not their idea of how things should be done. They preferred to sell to the tenant direct, against whom they could use the screw of arrears of rent, and from whom they could exact a higher price. Hardly a case of sale to the estates commissioners has taken place under these well-meant sections. And for the reasons stated. ... The fact is, compulsory powers of purchase in all such cases ought to have been frankly given. But to mention the word compulsion to the then chief secretary was to send him into a fury. He would not hear of it."

***T. W. Russell,
Workings of the Irish Land Purchase Act
(American Review of Reviews, November, 1905).***

IRELAND: A. D. 1905.

Formation of the Sinn Fein Party.

"While the outside world was looking to the Irish Parliamentary Party as the guardian of the national conscience of Ireland, a Young Ireland Party, determined, virile, thoughtful, idealistic and, strange though it may seem, practical, was gradually forming, becoming a power, sweeping away outworn ideas, preaching new and putting them into practice, and working wonders in the revival of a genuine national spirit throughout the country. ... Naturally, and very gradually, the various units gravitated toward one another; and, less than two years ago, under the guidance of a Dublin boy named Arthur Griffith, they elected a National Council, and formed themselves into a party known as the 'Sinn Fein

Party,' which included probably three-fourths of the national thinkers in Ireland. Since its inception, the Sinn Fein Party has been rapidly gaining power, raising itself upon the ruins of a fast crumbling Parliamentary agitation, and eventually leaping into greater popular prestige when, recently, the ludicrous Irish Councils Bill was submitted to the nation as the fruits of a generation of Parliamentary agitation.

"***Sinn Fein***' is Gaelic for 'Ourselves.' The doctrine of the Sinn Fein Party is that the salvation of a nation is to be wrought out by the people and upon the soil of that nation, and it holds that 'God helps those who help themselves.' It asks Ireland to cultivate, what for a long time it neglected, self-reliance, and aims at regenerating the Irish nation, not merely politically, but also linguistically, industrially, educationally, morally and socially. Almost all preceding national movements made the grave mistake of considering politics coincident with patriotism; the Sinn Fein policy provides for all-round upbuilding of the nation, and is successfully working along many lines on which no political movement touched before."

Seumas MacManus,
Sinn Fein
(North American Review, August, 1907).

IRELAND: A. D. 1905 (December).
Change of Government.

On the change of government which took place in the United Kingdom in December, Mr. Balfour resigning the Premiership and Sir Henry Campbell-Bannerman forming a Liberal Ministry, the Earl of Aberdeen was appointed Lord Lieutenant and Mr. James Bryce Chief Secretary for Ireland.

IRELAND: A. D. 1907.
Effects of the Land Purchase Act as seen by

a revisiting Irishman.

Notwithstanding the defects in the working of the Land Purchase Act, as described above, Mr. T. P. O'Connor, the well-known Irish journalist in London, on returning from a visit to Ireland in the spring of 1907 after a somewhat protracted absence, wrote enthusiastically to the New York Tribune of the happy awakening he had found in the country to a new life. "You are seeing in Ireland," said a lady to him, "not merely a revolution but a renaissance," and he found her characterization to be true. He concludes, too, that there was no exaggeration in her further remark, that "so much is going on in Ireland now that you dare n't leave it even for a month." "Everybody," writes Mr. O'Connor, "seemed to be doing something and something new for Ireland"; with Catholics and Protestants working together, as they have never worked before. And the main cause of this "renaissance" is traceable to the working of the Land Purchase Act of 1903. Already, says Mr. O'Connor, under the working of this splendid measure, nearly half the soil of Ireland has changed hands, and "the second half will be transferred at a much accelerated speed."

{335}

"For seven centuries there has been a continual, a bloody, a desperate war in Ireland between two races, and the prize for which they fought—was the land. ... And now, at last, before our own eyes, in this generation of men to which we belong, this secular struggle is at an end; the battle has been fought and has been won; the land belongs again to the ancient Celtic race from which it was stolen centuries ago. ... If you want to realize further what all this means, do not forget that these people who are now brought into full liberty are able to appreciate it the more from the fact that the greater part of them were born into slavery, and know all that slavery means. I myself, though no septuagenarian, can remember the time when the Irish farmers were driven to the polls to vote for their

landlords like so many cattle. I remember the poor, wretched, cringing slaves which they had to be in those not very far off days; how they bowed and cried, 'Yer Honor,' at every second word; and how, in fact, they revealed by their outward bearing the knowledge that when they stood in the presence of the landlord they were confronted by the master of their life or death.

"The despair of the impossible situation in the Ireland of 40 or 50 years ago was worse almost than the servitude. There was no room left for hope in a system which permitted the landlord to rob the tenant of every addition the latter made to the wealth of the soil; and there could be no hope or prospect in a system which kept the tenant liable to eviction from his holding whenever the landlord wished to do so. And now realize that on half the soil of Ireland the people never see a landlord or a landlord's representative; that every year brings them nearer to the time when they will be the absolute owners of their holdings; but they know that their children will secure full possession and complete ownership if they do not, and you can understand what a new strong tide of hope and exultation there must be in the breasts of these people."

IRELAND: A. D. 1907.

The Evicted Tenants Act.

The healing of an Irish Sore of Twenty Years.

"The passing of the Evicted Tenants Act in the recent session, defective though it may be in one respect, is an admission on the part of all parties in Parliament that a long pending Irish controversy must be closed, and that the demand persistently and pertinaciously made by the great majority of the Irish members and people for over twenty years for the reinstatement of a large body of evicted tenants must be conceded. ...

"The wholesale evictions of tenants, whom it is now decided to

reinstate, were primarily due to the agricultural crisis of 1885, when the great fall of price of Irish farm produce commenced. This averaged not less than 20 to 30 per cent. in respect of cattle and dairy produce, the main sources of income to Irish farmers. Tenants for the most part paid their rents in that year, hoping for better times, but many who lived from hand to mouth, with little or no margin, fell into arrears. The position was far worse in the following year, when it became clear that the fall of prices was a permanent one. The Land Court recognised this by fixing judicial rents at 18 to 20 per cent. less than those fixed between 1881 and 1885. An universal demand consequently arose on the part of all other tenants for a reduction of rent in proportion to the new range of prices. They claimed this not only in the case of yearly tenancies, but of holdings where judicial rents had been adjudicated before 1885, and of holdings under leases. The majority of Irish land-owners in 1886 recognised the justice of the claim, and allowed rebatements of rent, averaging between 20 and 30 per cent. in respect of all classes of holdings. The claim of the tenants was not for the forbearance of the land-owners, but was founded on right, on the traditional claim to a property in their holdings—a claim to which the Land Act of 1881 had given Parliamentary and legal sanction. That great agrarian Act had in fact established Dual Ownerships of land in Ireland. It secured to the occupiers a property in their holdings by enabling them to appeal to a Land Court for the settlement of rent, and by giving them fixity of tenure and the right of bequeathing or assigning their interests. Beneficent and generous as the Act was, it had serious defects. ...

"As a result of these defects the Land Act of 1881, great as it was in principle, did not afford a sufficient remedy in the crisis caused by the great fall of prices in 1885-1886. A minority of Irish landowners refused to follow the example of the larger and better class of owners, and to make rebatements of rent in 1886. They justified their refusal on the ground

that since the Act of 1881 the tenants had no longer a claim for forbearance in respect of rent. They insisted, therefore, on full payment, and began to evict on a large scale those in default. ...

"Numerous combinations of tenants were formed to refuse full payment of rent and to resist evictions to the utmost. With the object of assisting and strengthening resistance of the tenants, a new form of combination was devised by Mr. T. Harrington, M. P., known as the 'Plan of Campaign.' The essential feature of it was the payment by the tenants of an estate adopting it of 50 per cent. of the rent due into a common fund, to be administered by a committee of tenants for the purpose of resisting eviction, and supporting the evicted families. The fund thus created was beyond the reach of the landowners and of the individual members of the combination. It afforded, therefore, great security for the maintenance of the combination.

"The tenants, before adopting the plan, were advised to offer arbitration of their rents to their landlords. If evictions took place the tenants were to stand by one another, and not to come to agreement with their landlords, except upon terms that the evicted men were to be reinstated in their holdings. Those taking farms from which tenants were evicted were to be rigidly boycotted.

"The plan thus devised was commended to the tenants of Ireland, where landowners refused reasonable abatements of rents, by many of the Irish members, such as Mr. Dillon, Mr. W. O'Brien, and others. ... Mr. Parnell held aloof from it, not so much from disapproval of its method, as from fear that it might injure the Home Rule cause with English constituencies. Many of the Catholic Bishops expressed their disapproval. It was denounced by the Government as a fraudulent and dishonest attempt to break contracts. They prosecuted Mr. Dillon and other leaders for conspiracy under the ordinary law. The Irish

judges pronounced the scheme of combination to be a criminal conspiracy on the ground that it subjected landlords to unlawful pressure. ...

{336}

"By the commencement of the session of 1887 the Royal Commission appointed by the Government to report on agricultural prices and the claim for a revision of judicial rents, presided over by Lord Cowper, an ex-Lord Lieutenant, reported in favour of all that had been contended for by Mr. Parnell in his Bill of the previous year. They emphatically affirmed that a great and permanent fall of prices had taken place. They advised that judicial rents, fixed before the year 1885, should be revised and reduced, and that leaseholders should be admitted to the privileges of judicial rents. The Government, at the instance, as it is believed, of Mr. Chamberlain and the Liberal Unionists, were compelled to legislate in accordance with this report. ...

"This measure, which so greatly extended the Act of 1881, was accompanied by a new Coercion Act dispensing with trial by jury in agrarian cases, and enabling resident magistrates—mere nominees of the Government—to try and convict in such cases. ...

"The Act of 1887, by providing a legal alternative, put an end to further combinations of tenants. The Plan of Campaign was not adopted in any fresh cases. It had been put in force on 111 estates where the owners refused general abatements of rent. In 94 of these it had the effect of inducing the owners to come to terms with their tenants for reductions of rent of a reasonable character and sufficient to avoid further trouble. In seventeen estates only the owners were obdurate, and declared war against their tenants. ...

"After the passing of the Coercion Act wholesale evictions

were resumed on the Campaign estates, and were supported by all the forces at the disposal of the Government. ... In 1891, a great step was taken by the late Government in the direction of a more conciliatory attitude to the evicted tenants. In the Land Purchase Act of that year a clause was inserted enabling the Land Commissioners to admit the evicted tenants as purchasers of holdings, where their former landlords agreed to their reinstatement. The clause was to have effect for one year only, and very few transactions took place under it. ...

"Nothing more was done till 1903. Meanwhile this Irish sore remained unhealed. The evicted men continued to live in temporary dwellings near to their former homes, patiently expecting reinstatement at some future time. Nor have they been mistaken in this respect, though many of them had to wait nine more years, and the remainder still longer.

"In 1903 it became advisable for the Tory Government to bid for the support of the Irish Nationalists for Mr. Wyndham's measure aiming at an universal scheme of land purchase in Ireland—a scheme offering very great inducements to landlords to sell to their tenants. It was again provided in this Act that the evicted tenants might be reinstated, not as tenants, but as owners by purchase of their former holdings, Provision was made for the advance of money from an Irish fund for buying out the Planters, for rebuilding the houses of the evicted men, for restocking their farms, and for buying untenanted land on which to replace the evicted men, where it was not possible to reinstate them in their former farms. ... As a result, however, all the remaining Campaign estates except two were dealt with under this Act, and nearly all the men evicted from them were reinstated on the most favourable terms. ...

"The Act of 1903, however generous and successful so far as it went, failed to deal with the whole case. It is wanting in backbone—in coercive power as against a residuum of

landowners. Two Campaign estates—the Clanricarde and the Lewis estates—remained undealt with, and about 2000 tenants evicted from other, not Campaign, estates were left out in the cold. It was to supply coercive power for dealing with these remaining cases that the recent Act was passed."

***Eversley,
The Evicted Tenants (Ireland) Act
(Fortnightly Review, December, 1907).***

IRELAND: A. D. 1907 (May).

Proposed Bill for the creation of a Representative Council.
Rejected by the National Party.
Abandoned by the Government.

A Bill proposing half-way progress toward Home Rule for Ireland was introduced in the British Parliament by the Chief Secretary for Ireland, Mr. Augustine Birrell, in May, 1907. Its main feature was the creation of a Representative Council, not to be legislative in function, but having large administrative powers. This Council was to consist of 107 members, eighty-two elected by the Irish householders (including peers and women), and twenty-five nominated by the crown. Eight of the existing Irish departments, including agriculture, public works, congested districts, and the registrar's office were placed under its control and a new one, the education department, created. In addition to the \$10,000,000 of annual expenditure controlled by these departments, the bill provided for an increase of \$3,250,000 to be spent on public works and "general improvement." The provisions of the Bill did not extend to the constabulary, the courts, the prisons, or the Land Commission. The Lord Lieutenant was to have general supervisory control.

Apparently the Liberal Ministry had been led to expect that Mr. John Redmond and other leaders of the Irish National Party would accept this measure, as an installment of the

self-government they claimed for Ireland. If so, then the leaders who encouraged that expectation were overborne by their followers, for the Bill was denounced and rejected, on motion of Mr. Redmond, at a convention of the National Party, in Dublin, on the 21st of May, and was therefore withdrawn.

In offering this plan of government the English Liberals had turned back to what was the original Gladstone project of Irish home rule, contemplated and discussed, without result, by the Liberal cabinet in 1885. As Mr. Morley relates in his *Life of Gladstone*, there were two main opinions in the cabinet at that time: "One favored the erection of a system of representative county government in Ireland. The other view was, that besides the county boards, there should be in addition a central board for all Ireland, essentially municipal and not political; in the main executive and administrative, but also with a power to make bye-laws, raise funds, and pledge public credit in such modes as parliament should provide.

{337}

The central board would take over education, primary, in part intermediate, and perhaps even higher; poor law and sanitary administration; and public works. The whole charge of justice, police, and prisons would remain with the executive."

This defines, practically, a measure of home rule within the same limits that Mr. Birrell proposed. It appears to have been suggested to Mr. Gladstone by Mr. Chamberlain and to have been accepted by the premier, with the understanding that it would satisfy Mr. Parnell, for the time being, at least. It was not acceptable, however, to a majority of the Cabinet, and, when rejected, Gladstone remarked bitterly to one of his colleagues: "Within six years, if it please God to spare their lives, they will be repenting in sackcloth and ashes." The wearing of the sackcloth was not postponed so long.

IRELAND: A. D. 1909.

Amended Land Purchase Act.

The defects which have been noted above in the very promising Land Purchase Act of 1903 raised increasing difficulties in the operation of it, until the pressing need of amendatory legislation was acknowledged by all parties. Wide differences of view, however, between different interests involved made the attainment of such legislation no easy task. A Bill for the purpose, brought forward in the autumn of 1908, by the Chief Secretary for Ireland, Mr. Birrell, was pushed over into the next session, and reintroduced in March, 1909. Mr. Birrell then reviewed the circumstances which had rendered amendments of the Act necessary, stating that "28 millions had now been advanced for land purchase, and that there were pending agreements involving the advance of 56 millions. The total acreage of the land sold and agreed to be sold exceeded 7,000,000 acres. The country was now in the very middle of this great agrarian revolution. Mr. Wyndham, the author of the Act of 1903, thought that £100,000,000 would suffice to carry this revolution through, but already £84,000,000 had been accounted for and there was every reason for supposing that Mr. Wyndham's estimate should have been £183,000,000. With regard to the loss on the flotation of land stock, he expressed the opinion that for a decade, at any rate, it would be unsafe to assume that a higher issue price would be obtained than £85, and he calculated that if nothing were done a charge of £855,000 annually would eventually have to be made good by the ratepayers. It was impossible to expect them to bear this enormous burden, and if the law were not amended the scheme of land purchase must break down. His proposal in regard to the bonus was that, instead of fixing it at 3 per cent., it should be paid according to a scale under which the lower the price given for the land the higher would be the bonus. For this at least £3,000,000 would be required over and above the original £12,000,000. By this Bill the Exchequer was assuming, everything considered, a total capital liability of about £30,000,000. Calling attention to the principal

provisions of the Bill, he reminded the House that landlords were empowered to take payment partly in cash and partly in stock at 92. He then mentioned the steps that were being taken to accelerate the work of the Estates Commissioners and stated that advances to the amount of £10,000,000 were never likely to be exceeded in one year; they now had reached £8,000,000."

On a question arising as to one part, called a "bonus," provided for in the transaction of purchase, Mr. Wyndham, who had been Chief Secretary in 1903, and author of the original Act, said. "Some honourable members sitting for English constituencies might think that the bonus was not necessary. They might think that if the State lent its credit, landlord and tenant could come to terms, and that the bonus was something thrown in as a sop to the landlords. If the transfer of land in Ireland were sporadic, he agreed that landlords might sell without the assistance of a direct bonus from the State. The question to be solved in Ireland, however, was that of the general transfer of ownership of land throughout the country, and that, broadly speaking, could not be effected unless the present owners received an equivalent to the income which they now enjoyed. In the past nearly all the cases of the sporadic transfer of ownership of land had been got rid of, and there were now left those cases which could not be dealt with unless a bonus were given. It had been generally recognized by all parties that a bonus should be given rather than that the land difficulties in Ireland should continue, and six years ago the decision arrived at was supported by the unanimous opinion of all parties in the House. Now it was proposed that the method of giving a substantial bonus at a uniform rate should be set aside in such a way as to increase the discrepancy between pending and future agreements. Already by altering the rate of instalments in future agreements, and by giving stock instead of cash, they had created a wide difference between the two classes. On the top of that they were now going to do away with the bonuses and apply a method which he thought he would be able to show would prove most

injurious; and if it did prove injurious, it would touch the cardinal point in the whole matter."

Mr. Wyndham opposed the new Bill on this point, apparently without success. Strong opposition to a grant of the power of compulsory purchase which the Bill embodied was raised, in the House of Commons, as well as ultimately in the House of Lords. Its contemplated changes in dealing with what are called "congested estates" and "congested districts," being those in which the holdings of tenants are too small to yield a decent living, were also a subject of criticism and opposition.

The Bill received some amendment in the House of Commons, before having its third reading and passage on the 18th of September. In the House of Lords it met with harder treatment, and was returned to the Commons with amendments which the latter rejected *in toto*. Informal conferences brought about an accommodation of the differences between the two Houses and placed the Act on the statute book. The peers yielded on the question of compulsory purchase, as well as with regard to the tribunal which should have a deciding authority in the matter, these being the two points most in dispute.

IRELAND: A. D. 1909 (January).

Disclosures of Poverty by the Old Age Pensions Act.

See (in this Volume)

POVERTY, PROBLEMS OF: PENSIONS.

IRELAND: A. D. 1909 (October).

Organization of the two new Irish Universities.

See (in this Volume)

Education: Ireland.

IROQUOIS THEATER, Burning of the.

See (in this Volume)
CHICAGO: A. D. 1903.

IRRIGATION.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

ISLE OF PINES:

United States Supreme Court Decision concerning.

See (in this Volume)
CUBA: A. D. 1907 (APRIL).

ISTHMIAN CANAL.

See (in this Volume)
PANAMA CANAL.

ISVOLSKY, Alexander: Russian Minister of Foreign Affairs.
His Aide Memoire on Macedonian Affairs.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

ISVOLSKY, Alexander:
Convention with Great Britain.

See (in this Volume)
EUROPE: A. D. 1907 (AUGUST).

ITAGAKI, Count.

See (in this Volume)

JAPAN: A. D. 1903 (JUNE).

-----ITALY: Start-----

ITALY: A. D. 1870-1905.

Increase of Population compared with other European Countries.

See (in this Volume)

EUROPE: A. D. 1870-1905.

ITALY: A. D. 1901.

The First Year of the Reign of King Victor Emmanuel III.

Greatly improved conditions.

Restored Liberty of Speech and Meeting.

Neutrality of Government in Labor Disputes.

Zanardelli and Giolitti in the Ministry.

In the early months of 1901, when Volume VI. of this work went to press, Italy was in an uncertain and anxious state. It had not recovered from the shock of the assassination of King Humbert, and could not foresee what length the sobering effects of that tragedy would have. It had hope that the new reign just beginning would quiet the dreadful disorders that had become rife in Parliament and in the country at large, but fear to the contrary was more than equal, perhaps, to the hope. Happily it was the hope that found justification within the passing year, as will be learned from the following report of conditions, published in the last month of 1901:

"Those who expected that King Victor Emmanuel III's reign would be coincident with a marked improvement in Italy, have so far been amply justified. Few ventured to hope that his Liberal Ministry under Signors Zanardelli and Giolitti would weather a Parliamentary session. As it is, despite some weakness and a few mistakes, it has come out triumphant. Compared with eighteen months ago, Italian politics have undergone what is little less than a revolution. The closing

months of the last reign saw the most dangerous constitutional crisis that United Italy has known. A reactionary Government was threatening Parliamentary liberty; the Liberals and Socialists were making a desperate stand, which at all events preserved the Constitution, and perhaps saved Italy from revolution. Now the signs of danger have almost passed. The Crown is fast getting back its popularity. Parliament is asserting itself as it has not done for many years, and is able to give its time to quiet, useful work. The Extreme Left, stubbornly obstructionist last year, is giving an independent but fairly cordial support to the Ministry. Outside Parliament Italians have for once a government 'which allows them to breathe and move and speak.' For the first time since Crispi introduced coercion, seven years ago, there is liberty of speech and public meeting. Still, occasionally, the unteachable censorship suppresses an issue of some democratic paper. But there is no prosecution for political speeches, no arbitrary political imprisonment, no harrying of cooperative or benefit societies from empty fear of political designs or at the bidding of shopkeepers.

"But this is of small account beside the altered attitude of the Government towards labour questions. Hitherto its influence had been always more or less on the side of the employers. Trade Unions were dissolved and sometimes their members arrested; their organisers were imprisoned for 'exciting to class-hatred,' and under the military courts of 1898 it was an offence to plead, however moderately, in defence of the claims of labour. When the agricultural labourers of the lower Po valley struck for a living wage, the Government sent soldiers to reap the crops. Suddenly and radically all this has changed. At last the law is observed, and Trade Unions are allowed the legal sanction which nominally they have had for years. The Government has announced its neutrality in labour disputes, so long as there is no violence or interference with individual liberty. The result has been an epidemic of strikes. The Italian working

man, long cowed by his powerlessness before the alliance of employer and Government, is using his new freedom to raise his miserable wage. Signor Giolitti estimated in the middle of last June that since the beginning of the year there had been 511 strikes, affecting 600,000 workmen (a number almost unparalleled even in England) and resulting in an increase of wages by nearly £2,000,000, a huge sum in poverty-stricken Italy. Probably by now the total of strikers has reached a figure which has never been equalled within a year in any European country. ... Thanks to the vigorous advocacy of arbitration by the Chambers of Labour, the urban strikes have generally been short, and, so far as I know, except for some not very serious trouble at Naples, there has been no case of disorder in them."

***Bolton King,
The New Reign in Italy
(Contemporary Review, December, 1901).***

ITALY: A. D. 1902 (June).
Renewal of the Triple Alliance.

See (in this Volume)
TRIPLE ALLIANCE.

ITALY: A. D. 1902-1904.
Coercive Proceedings against Venezuela concerted with
Great Britain and Germany.
Settlement of claims secured.
Reference to The Hague.

See (in this Volume)
VENEZUELA: A. D. 1902-1904.

ITALY: A. D. 1903 (March).
General Strike in Rome.
See (in this Volume)

LABOR ORGANIZATION: ITALY.

ITALY: A. D. 1903 (October).

Change of Ministry.

Signor Giuseppe Zanardelli, President of the Council, or Premier, since February, 1901, gave his resignation to the King in October, 1903, on account of ill-health, and a new Ministry was formed by Signor Giolitti, who had been Minister of the interior in the administration of Zanardelli, and who still retained that portfolio after assuming the presidency of the Council.

ITALY: A. D. 1903-1905.

Initiation of the International Institute of Agriculture by the King.

See (in this Volume)
AGRICULTURE.

ITALY: A. D. 1904.

Tokens of a Disposition to bring the Church and the State into better Accord.

Several marked tokens of a conciliatory disposition on both sides of the long break in relations between the Papacy and the Government of the Kingdom of Italy appeared in the course of the year 1904. The Government brought in a bill for increasing the public salaries of curés. Its diplomatic agents in South America were instructed to give attention to a Papal nuncio who travelled thither on a mission from the Vatican as though he represented the King. The King conveyed a piece of ground to the Pope which enlarged his domain. A Cardinal took part in a reception to the King at Bologna and sat at table with them. These were such amenities between the royal and pontifical courts as had not been seen for a generation, and they seemed to bear much significance; but little came from

them in the end.

{339}

ITALY: A. D. 1904 (October-December).

Dissolution of the Chamber of Deputies.

The Government sustained in the Elections.

Increased Participation by the Catholics.

The Chamber of Deputies was dissolved by royal decree on the 17th of October, and elections appointed to be held on the 6th and 13th of November. The canvass was more animated than usual, Catholics taking part in it, and in the subsequent voting, more numerously than hitherto. The Ministry of Premier Giolitti, representing the Liberals and Moderates in politics, between groups of the extreme Right and Left, secured a strong majority. Those of the Left lost a number of seats, though the Socialists claimed to have made large gains in the popular vote.

ITALY: A. D. 1905.

Effect of the Russo-Japanese War on the Triple Alliance.

See (in this Volume)

EUROPE: A. D. 1904-1909.

ITALY: A. D. 1905.

Action with other Powers in forcing Financial Reforms in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

ITALY: A. D. 1905 (September).

Earthquake in Calabria.

See (in this Volume)

EARTHQUAKES.

ITALY: A. D. 1905-1906.

Illness and Retirement of Premier Giolitti.

The Fortis and Sonnino Ministries.

The Demoralized Railway Service.

Catholic Abstention from Politics relaxed.

Return of Giolitti to Power.

The Italian Premier, Signor Giolitti, was forced by illness to withdraw from office early in the year, and Signor Fortis was commissioned by the King to form a new Ministry. He did not succeed, and Signor Tittoni was then required by the King to take the lead in Government with the late colleagues of Signor Giolitti. Tittoni soon resigned, however, and Fortis was again called, late in March, to form a Cabinet, which he now found himself able to do. In the following December, however, a reconstruction of the Fortis Ministry occurred, the King requiring the Premier to retain his place, while his colleagues were partly changed.

Throughout the year the Government and the country were greatly troubled by a general demoralization in the management and service of the railways. Travel and freight transportation were exasperatingly delayed; accidents were of constant occurrence, and strikes, having no result but the public affliction, were repeated again and again.

Early in the summer an encyclical on the attitude to be taken by the faithful in political controversies was addressed to the Italian bishops by the Pope. Not distinctly, but by inference, it was taken to be a relaxation of the policy of abstention from politics, and to prompt political action by Catholics, but always under clerical guidance and advice.

The Fortis Ministry held its ground in the Government, against much attack, until February, 1906, when it lost the support of

a majority in the Chamber, and gave place to a coalition Cabinet formed by Signor Sonnino, which conducted the administration till the following May, when, on a question of the purchase of the Southern railways, it suffered defeat. Whereupon Signor Giolitti returned to power, in the face of a threat from the employees of the railways that they would proclaim a general strike if he took up the reins again. The strike did not occur, and a notable access of vigor and activity of Government appeared.

ITALY: A. D. 1906.

At the Algeiras Conference on the Morocco Question.

See (in this Volume)

EUROPE: A. D. 1905-1906.

ITALY: A. D. 1906 (April).

Violent eruption of Mount Vesuvius.

See (in this Volume)

VOLCANIC ERUPTIONS.

ITALY: A. D. 1906-1909.

The Giolitti Administration.

Its recent resignation.

The Giolitti Ministry was maintained in the direction of the Government for nearly four years, by virtue of the energetic and efficient administration it conducted. Its capabilities were demonstrated somewhat notably before the close of 1906, by the conversion of the Italian rentes (Government bonds) from 4 to 3 per cent.,—a financial operation which had been discussed and fumbled over, apparently, for a long time. Premier Giolitti brought the question to a determination in the Chamber after less than one day of debate; and the conversion of 8,000,000,000fr. of national debt was so readily accepted by the rente-holders that only 1,700,000fr. needed to

be paid off.

Relations between the Government and the Papacy were improved by the breach of the latter with France, which led to the substitution of Italy for France as the protector of Catholics and Catholic interests in the Empire of the Turks. This was not, however, agreeable to Austria, and began a coolness between these two of the parties to the Triple Alliance which all the disturbing occurrences in the Near East have tended since to increase. The Alliance with Austria and Germany had been renewed in 1902; but there have been several occasions within the past three years on which Italian ill-feeling toward the former has flamed out quite threateningly in Press and Parliament, and sometimes in popular demonstrations.

A disturbing agitation of the question of religious instruction in the schools occurred in 1908, bringing demands from anti-clerical parties for its prohibition; but the Government was upheld in refusing such action. A disturbing excitement in Sicily was produced that year by the conviction, after a much prolonged and sensational trial, of Signor Nasi, ex Minister of Public Instruction, on charges of embezzlement of public moneys. The convicted Minister was a Sicilian, and his fellow-countrymen resented the prosecution of him as an indignity to themselves. To pacify them, Signor Nasi, after a short detention in his own house, had the remainder of his sentence of imprisonment remitted.

The Giolitti Ministry came to its end somewhat unexpectedly on the 2d of December, 1909. It had brought forward, not long before, a Bill embodying proposals for the reform of taxation, avowedly to transfer some larger proportion of its burden from the poor to the rich, especially by death duties and income taxes. When the election of a committee to deal with the Bill occurred December 2, the opponents of the Government secured a majority, whereupon Premier Giolitti and his Cabinet resigned. A new Ministry was formed, under Baron Sonnino, the leader of

the Opposition. The parliamentary support it must depend on is said to be made up of extremely contradictory elements.

{340}

ITALY: A. D. 1908.

Falling off in Emigration.

See (in this Volume)

IMMIGRATION AND EMIGRATION: ITALY.

ITALY: A. D. 1908 (December).

The Awful Destruction of Messina and Reggio by Earthquake.

See (in this Volume)

EARTHQUAKES: ITALY.

ITALY: A. D. 1908.

Election of a Jewish Mayor of Rome.

Whether specially significant or not, the election in Rome, in 1908, of Ernesto Nathan, a Jew and an ex-Grand Master of the Order of Free Masons, to be Mayor of the City, was an event which excited wide interest and remark. Mr. Nathan's birth, and his education partly, were in England, but he acquired citizenship in Italy, and rose in reputation and influence at Rome, until he had become the leading figure in the hard fought municipal election of the winter of 1908, which defeated the Church party and elected sixty Radical members out of eighty composing the City Council. The Mayor is elected by the Council, and it gave the office to Nathan.

ITALY: A. D. 1909.

Church Movement of Agricultural Labor Organization.

See (in this Volume)

LABOR ORGANIZATION: ITALY.

ITALY: A. D. 1909.

Tardy Construction of "Dreadnoughts."

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

ITALY: A. D. 1909 (March).

Parliamentary Elections.

Socialist, Republican, Radical, and Catholic Gains.

Conservative Losses.

Large, but Reduced Majority for the Government.

Extensive changes in the representation of the numerous parties in Italian politics resulted from the Parliamentary elections held in March, 1909. As finally reported, after seventy four second ballots had been taken, the outcome was as follows:

From seven Deputies the Catholics rose to 24. The Socialists went up from 26 to 42, the extreme Radicals from 32 to 42, and the Republicans from 19 to 24. The parties of the Extreme Left had thus risen from 77 to 108. The Moderate Liberals, or Constitutional Opposition, as they call themselves, declined the most, numbering between 60 and 70. But the gains made by the parties of the extreme Left had only recovered for them the ground they had lost in the election of 1904.

"An interesting feature of the elections is that the Pope's supporters are said to have taken a more active part than they have done since the beginning of united Italy. The Papal inhibition against going to the polls was removed in seventy-two constituencies, or one-seventh of the whole number voting. The result has been no gain in Rome, where the Anti-Clerical bloc repeated its victories of the preceding year, and a fairly slight gain in the rural districts. In general, it may be questioned whether the Papal *non*

expedit has really kept Catholics out of politics to a very considerable extent. If we take the enrolled electors in Germany, we find that they constitute 20 per cent. of the entire population; in France the ratio is nearly 24 per cent.; in Italy it is less than 8 per cent. At first sight that would indicate that an enormous number of Italians boycott the polls. We find, however, that the Italian franchise demands not only the ability to read and write, but a certain degree of additional elementary education. At the same time we find that in 1901 nearly 44 per cent, of all males over twenty years of age were illiterate. This at once nearly doubles the electoral ratio. Add the fact that there are very considerable property qualifications for the franchise, and we get for Italy a ratio not far removed from Germany's 20 percent. It would follow that the number of Italians who refrain from availing themselves of their electoral rights is not very large."

*New York Evening Post,
March 8, 1909.*

ITALY: A. D. 1909 (May).

Proposed Payment of Members of Parliament.

A Press despatch from Rome, May 9, 1909, reported:

"Leave was asked yesterday to introduce in the Chamber of Deputies two Bills for the payment of members of Parliament. According to the first Bill, proposed by Signor Galli, all Deputies and Senators would receive £240 a year; the second Bill, proposed by Signor Chimienti, would make a payment of 24s. for every sitting attended. Signor Giolitti said that the idea of the payment of members of Parliament was evidently gaining ground, and that the Government would not oppose the introduction of the Bills. On the other hand, he deprecated the contention which had been advanced, that the non-payment of Deputies was in any way responsible for a scanty

attendance, and earnestly recommended the Chamber to give the question its very careful consideration before committing itself either way."

ITALY: A. D. 1909 (November).
Naval strength.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

-----ITALY: End-----

ITO, Prince Hirobumi:
Visit to the United States.
Mission to St. Petersburg.

See (in this Volume)
JAPAN: A. D. 1901-1904.

ITO, Prince Hirobumi:
President of the Japanese Council.
His Party.

See (in this Volume)
JAPAN: A. D. 1903 (June).

ITO, Prince Hirobumi:
Resident-General in Korea.

See (in this Volume)
KOREA: A. D. 1905-1909.

ITO, Prince Hirobumi:
His assassination.

See (in this Volume)
JAPAN: A. D. 1909 (OCTOBER).

J.

JAMAICA: A. D. 1906.

Harmony of relations between the White minority and the
Colored majority of inhabitants.
How explained.

See (in this Volume)
RACE PROBLEMS: JAMAICA.

JAMAICA: A. D. 1907.

Destructive Earthquake.

See (in this Volume)
EARTHQUAKES: JAMAICA.

JAMES, Professor William:

Plan for ending War.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1904.

JAMESON, Dr. Leander S.:

Premier of Cape Colony.
His Continuance of the Policy of Cecil Rhodes.

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1904.

JAMESON, Dr. Leander S.:

At the Imperial Conference of 1907.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

{341}

JAMESON, Dr. L. S.:

In Movement for South African Union.

See (in this Volume)

SOUTH AFRICA: A. D. 1908-1909.

JAMESTOWN TRICENTENIAL EXPOSITION.

The three hundredth anniversary of the first permanent English settlement in America was celebrated on the site of the settlement, at Jamestown, Virginia, by an Exposition which was opened by President Roosevelt on the 26th of April, 1907. The advantages of the place for naval display tempted Congress to give that character, in the main, to so much of the celebration as was organized under national auspices that other features were quite eclipsed. As an illustration of three centuries of progress from the beginnings of civilized life in the United States it cannot be said to have had much success. But the show, from many nations, of battle ships and the paraphernalia of naval war was superb.

JANNARIS, Professor, Imprisonment of.

See (in this Volume)

CRETE: A. D. 1905-1906.

-----JAPAN: Start-----

JAPAN: A. D. 1901 (July).

Unveiling of a Monument to commemorate the Advent of Commodore Perry.

A monument to commemorate the arrival of Commodore Perry in Japan, in 1853, was unveiled with imposing ceremonies, at Kurihama, on the 14th of July, 1901, that being the

forty-eighth anniversary of the event. Commodore Rodgers, with three vessels of the Asiatic Squadron of the United States, attended to represent the United States officially in the ceremonies of the day. The monument was erected by the Japanese "America Association of Japan."

JAPAN: A. D. 1901-1904.

Persistent occupation of Manchuria by the Russians.
Japanese negotiations and demands, without satisfaction.

"In spite of repeated promises to evacuate the points seized and held by Russian forces when, after the relief of the Legations, these forces were withdrawn from Peking and Chili, to be concentrated in Manchuria [see Manchuria, in Volume VI.], and in disregard of the interests of the other allies, the policy of keeping all that she had gained, and of gaining more as far as possible, was steadily pursued by Russia. ... It was the probable effect of a continued occupation of Manchuria by Russia upon their business interests which led Great Britain and America to wish that the repeated Russian assurances of good faith toward China and toward all foreign nations should manifest themselves in works. The case could not be wholly the same with Japan. Her interests of trade were, indeed, if not at the time so large, more close and vital than those of any other nation outside of China. But her other interests were incomparable. So that when Russia failed to carry out her engagements, even under a convention which was so much in her favor [see, in this Volume, China. A. D. 1901-1902], there was a revival of suspicion and apprehension on the part of the Japanese Government and the Japanese people. Manchuria and Korea both pointed an index finger of warning directed toward Russia.

"It was to further a peaceful adjustment of all the disturbed conditions of the interests of Russia and Japan in the Far East that Marquis Ito went, on his way home from his visit to the United States, at the end of 1901, on an unofficial

mission to St. Petersburg. The failure of the overtures which he bore discouraged those of the leading Japanese statesmen who were hoping for some reconciliation which might take the shape of allowing Russian ascendancy in Manchuria and Japanese ascendancy in Korea. It also strengthened the conviction which prevailed among the younger statesmen that the St. Petersburg Government regarded Manchuria as not only its fortress in the Far East, but also as its path to the peninsula lying within sight of Japan's shores. 'The Japanese Government,' says Mr. D. W. Stevens, 'at last felt that the vital interests of Japan might be irrevocably jeopardized in Korea as well as in Manchuria, if it continued to remain a mere passive spectator of Russian encroachments; and in August, 1903, it resolved to take a decisive step. In the most courteous form and through the usual diplomatic channels Japan intimated at St. Petersburg that her voice must be heard, and listened to, in connection with Far Eastern questions in which her interests were vitally concerned.' The answer of Russia was the appointment of Admiral Alexeieff as Viceroy over the Czar's possessions in the Far East, with executive and administrative powers of a semi-autocratic character. ... Negotiations having in view the peaceful adjustment of the conflicting interests of Russia and Japan in the Far East, which were begun by the latter country in the summer of 1903, were further continued. Mr. Kurino, the Japanese Minister at St. Petersburg, was informed by Baron Komura, who was then Japanese Minister of Foreign Affairs, that the recent conduct of Russia at Peking, in Manchuria, and in Korea, was the cause of grave concern to the Government at Tokyo. 'The unconditional and permanent occupation of Manchuria by Russia would,' said Baron Komura, 'create a state of things prejudicial to the security and interests of Japan. The principle of equal opportunity would thereby be annulled, and the territorial integrity of China be impaired. There is, however, a still more serious consideration for the Japanese Government; that is to say, if Russia was established on the flank of Korea it would be a constant menace to the separate existence of that empire, or

at least would make Russia the dominant power in Korea. But Korea is an important outpost in Japan's line of defence, and Japan consequently considers its independence absolutely essential to her own repose and safety. Moreover, the political as well as the commercial and industrial interests and influence which Japan possesses in Korea are paramount over those of other Powers. These interests and this influence Japan, having regard to her own security, cannot consent to surrender to, or share with, another Power.'

{342}

"In view of these reasons, Mr. Kurino was instructed to present the following note to Count Lamsdorff, the Russian Minister of Foreign Affairs:

'The Japanese Government desires to remove from the relations of the two empires every cause of future misunderstanding, and believes that the Russian Government shares the same desire. The Japanese Government would therefore be glad to enter with the Russian Imperial Government upon an examination of the condition of affairs in the regions of the extreme East, where their interests meet, with a view of defining their respective especial interests in those regions. If this suggestion fortunately meets with the approval, in principle, of the Russian Government, the Japanese Government will be prepared to present to the Russian Government their views as to the nature and scope of the proposed understanding.'

"The consent of Count Lamsdorff and the Czar having been obtained, on August 12th articles were prepared and submitted by the Japanese Government which it wished to have serve as a basis of understanding between the two countries. The essential agreements to be secured by these articles were:

(1) A mutual engagement to respect the independence and territorial integrity of the Chinese and Korean empires, and

to maintain the 'open door' in these countries; and

(2) a reciprocal recognition of Japan's preponderating interests in Korea and of Russia's special interests in Manchuria.

These demands were not altered in any very important way by Japan during all the subsequent negotiations. It was their persistent rejection by Russia, together with her long delays in replying while she was meantime making obvious preparations of a warlike character, which precipitated the tremendous conflict that followed some months later."

***George T. Ladd,
In Korea with Marquis Ito, chapter 10
(copyright, 1908, C. Scribner's Sons).***

JAPAN: A. D. 1902.

Defensive Agreement between Great Britain and Japan.

An agreement of great importance, in the nature of a defensive alliance, between Great Britain and Japan, was concluded at London on the 30th of January, 1902. On the publication of the Treaty, a few days later, it was accompanied by a communication from the British Secretary for Foreign Affairs, the Marquis of Lansdowne, to Sir C. MacDonald, the British Minister at Tokyo, in which the actuating motives of the Agreement were set forth, as follows:

"Sir: I have signed to-day, with the Japanese minister, an agreement between Great Britain and Japan, of which a copy is inclosed in this dispatch.

"This agreement may be regarded as the outcome of the events which have taken place during the last two years in the Far East, and of the part taken by Great Britain and Japan in dealing with them. Throughout the troubles and complications

which arose in China consequent upon the Boxer outbreak and attack upon the Peking legations, the two powers have been in close and uninterrupted communication, and have been actuated by similar views. We have each of us desired that the integrity and independence of the Chinese Empire should be preserved, that there should be no disturbance of the territorial status quo either in China or in the adjoining regions, that all nations should, within those regions, as well as within the limits of the Chinese Empire, be afforded equal opportunities for the development of their commerce and industry, and that peace should not only be restored, but should, for the future, be maintained.

"From the frequent exchanges of views which have taken place between the two Governments, and from the discovery that their Far Eastern policy was identical, it has resulted that each side has expressed the desire that their common policy should find expression in an international contract of binding validity. ...

"His Majesty's Government have been largely influenced in their decision to enter into this important contract by the conviction that it contains no provisions which can be regarded as an indication of aggressive or self-seeking tendencies in the regions to which it applies. It has been concluded purely as a measure of precaution, to be invoked, should occasion arise, in the defense of important British interests. It in no way threatens the present position or the legitimate interests of other powers. On the contrary, that part of it which renders either of the high contracting parties liable to be called upon by the other for assistance can operate only when one of the allies has found himself obliged to go to war in defense of interests which are common to both, when the circumstances in which he has taken this step are such as to establish that the quarrel has not been of his own seeking, and when, being engaged in his own defense, he finds himself threatened, not by a single power, but by a

hostile coalition."

JAPAN:

Agreement between Great Britain and Japan, signed at London, January 30, 1902.

"The Governments of Great Britain and Japan, actuated solely by a desire to maintain the *status quo* and general peace in the extreme East, being moreover specially interested in maintaining the independence and territorial integrity of the Empire of China and the Empire of Korea, and in securing equal opportunities in those countries for the commerce and industry of all nations, hereby agree as follows:

"Article I.

The High Contracting Parties having mutually recognized the independence of China and of Korea, declare themselves to be entirely uninfluenced by any aggressive tendencies in either country. Having in view, however, their special interests, of which those of Great Britain relate principally to China, while Japan, in addition to the interests which she possesses in China, is interested in a peculiar degree politically, as well as commercially and industrially, in Korea, the High Contracting Parties recognize that it will be admissible for either of them to take such measures as may be indispensable in order to safeguard those interests if threatened either by the aggressive action of any other Power, or by disturbances arising in China or Korea, and necessitating the intervention of either of the High Contracting Parties for the protection of the lives and property of its subjects.

"Article II.

If either Great Britain or Japan, in the defence of their respective interests as above described, should become involved in war with another Power, the other High Contracting Party will maintain a strict neutrality, and use its efforts to prevent other Powers from joining in hostilities against

its ally.

"Article III.

If in the above event any other Power or Powers should join in hostilities against that ally, the other high contracting party will come to its assistance and will conduct the war in common, and make peace in mutual agreement with it.

{343}

"Article IV.

The High Contracting Parties agree that neither of them will, without consulting the other, enter into separate arrangements with another Power to the prejudice of the interests above described.

"Article V.

Whenever, in the opinion of either Great Britain or Japan, the above-mentioned interests are in jeopardy, the two Governments will communicate with one another fully and frankly.

"Article VI.

The present agreement shall come into effect immediately after the date of its signature, and remain in force for five years from that date. In case neither of the High Contracting Parties should have notified twelve months before the expiration of the said five years the intention of terminating it, it shall remain binding until the expiration of one year from the day on which either of the High Contracting Parties shall have denounced it. But if, when the date fixed for its expiration arrives, either ally is actually engaged in war, the alliance shall, ipso facto, continue until peace is concluded. In faith whereof the undersigned, duly authorized by their respective Governments, have signed this agreement, and have affixed thereto their seals."

In August, 1905, the above Treaty was replaced by a fresh

Agreement of similar tenor.

See, below,
JAPAN: A. D. 1905 (AUGUST).

JAPAN: A. D. 1902 (August).

Success of Prince Ito's Party in the Parliamentary Election.

"Thus far parties, so called, have been magnetized around men. They have not crystallized along the axes of principles. Marquis Ito, ultra-conservative in politics but radical and reformer in things social, is at one pole. Count Okuma, radical in politics, sternly conservative of social life and the traditionary ethics, is at the other.

"The August elections of 1902 show apparently at least that the day of party government has dawned, for now and for the first time Marquis Ito leads in the Lower House a host of the friends of the Constitution (*Rikken Seiyu Kai*) that has an overwhelming majority of seats and in time of a 'division' nearly if not wholly a plurality of votes. The returns are just in and the table stands about thus:

Seiyu Kai (Constitution Friends)	193
Progressists	106
Independents	56
Imperialists and others	21

"It was a smart stroke of policy for Ito, two years ago, to unite in one organization [see in Volume VI. of this work, Japan: A. D. 1900 (August-October)] the Radicals under Hoshi Toru and his own following of 'clansmen, capacities and young statesmen.' It was the union of the strong and the subtle, taking the name not of a party but of an 'Association,' with a purpose of upholding the constitution (in the Prussian sense), in order to control both the educational and the economic

policy of the country, to complete the radical transformation of the Japanese into a modern man, and 'to screen Japan's Western evolution against all possibility of reaction.'"

***W. E. Griffis,
in The Independent.***

JAPAN: A. D. 1903 (June).

The Marquis Ito accepts Presidency of the Council to strengthen the Government.

To strengthen the Ministry of Count Katsura in the Diet, the Marquis Ito, powerful head of the Rikken Seiyu-kai (Association of the Friends of the Constitution, foreseeing trouble to come from the proceedings of Russia in Manchuria, consented in June to accept the post of President of the Council, and was joined in the Council by Marquis Yamagata and Count Matsukata. The Government was thus greatly reinforced for dealing with the difficulties that now approached very fast. A section of the Seiyu-kai seceded from it, however, and formed the Doshishukai (Assembly of Fellow-thinkers), under Count Itagaki.

See (in Volume VI.)

JAPAN: A. D. 1900, AUGUST-OCTOBER.

JAPAN: A. D. 1904 (February-July).

War with Russia.

Sudden opening of Hostilities.

Occupation of Korea.

Battles at the Yalu.

The Armies in Manchuria.

Movement of General Nogi on Manchuria.

Simultaneously with the rupture of diplomatic relations with Russia, on the 6th of February, 1904, the Japanese Government dispatched from Sasebo a fleet of 7 battle-ships, 18 cruisers,

and flotillas of torpedo boats and destroyers, under Vice-Admiral Togo, with transports conveying troops, to open operations of war. The transports were convoyed to Chemulpho, the port of Seoul, Korea, by 4 cruisers and a number of torpedo boats, under Rear-Admiral Uryu; while Admiral Togo proceeded with the remainder of his fleet to Port Arthur. The troops sent to Chemulpho were landed on the 8th, and Admiral Uryu, the next day, attacked a Russian cruiser and gunboat in Chemulpho harbor with such effect that they were destroyed by their commanders. On the night of the 8th Togo's torpedo boats were sent against the Russian fleet at Port Arthur and crippled it to a serious extent. A second body of 14,000 troops was landed at Chemulpho on the 15th.

The Japanese had now a strong footing in Korea, with Seoul securely in hand, and the First Japanese Army, under General Kuroki, was ready to begin its northward advance. Phyangyang was occupied on the 20th, after which further troops could be landed at Chinampho, saving a long march. By the end of March there were about 45,000 men in the force moving toward the Yalu. The first encounter with the Russians was near Chengju, where 600 of the latter's cavalry were driven back. On the 4th of April the Japanese advance guard reached the Yalu, which forms the boundary between Korea and Manchuria, and occupied Wiju, near its mouth, the opposing cavalry having been withdrawn to the opposite bank of the river on the preceding day. The main body arrived at Wiju April 20. The Russians, on the other side of the Yalu, were then concentrating a force of about 25,000 men, with Liaoyang and Fenghuangcheng for its first and secondary bases.

For ten ensuing days both armies were busy in preparations and manoeuvres, the one for attempting to force a crossing of the Yalu, the other to resist it. How their preparations compared in effectiveness is described by an experienced correspondent, David Fraser, who accompanied the Japanese and wrote the story of the campaign, publishing it subsequently in a book entitled

"A Modern Campaign." The difference that Mr. Fraser saw between the painstaking, the thoughtfulness and the carefully acquired knowledge which went into the Japanese preparation for their attack,—the concealment of their forces, the masking of their batteries, the obscuring of all that they did,—and the contrasting carelessness of the Russians in the same particulars, was the difference that gave success to the one and brought defeat on the other.

{344}

Before the Japanese moved they knew everything they needed to know,—the fordable places on the streams they had to cross, the points of advantage on every mile of the ground to be traversed, the positions of the enemy,—and the Russians did not. And the Japanese were able to repeat much of the same feinting and maneuvering by means of which they had forced the passage of the Yalu at the same place, against the Chinese, in 1894.

On the 25th of April the Japanese were ready to bring their preparations into use, and on that and the next two days they drove the Russian outposts from the islands they needed to occupy, and began building bridges at night. In the end, ten bridges were built, some of them invisible to the enemy. Many signs of Japanese movement down the river were then exhibited to the Russians. A Japanese battery became busy at a point some distance below Wiju; gunboats and other vessels were collected in that direction; troops were in motion in the same direction; but quiet reigned at and around Wiju, the batteries behind which had not yet betokened their existence. That quiet in this part of the Japanese line was broken suddenly at midday on the 29th, when a pontoon train, with accompanying troops, was hurried to the river, the pontoons launched, manned and paddled to the opposite bank. A Russian outpost which fired on these invaders drew the first revelation of a hitherto hidden and silent Japanese battery, and fled from its shells. Possession of the further shore was thus secured for sufficient time to enable the construction of the pontoon

bridge, which the strong current in the river made a difficult task. It was ready, however, for the crossing of the river that night by the infantry of the entire 12th division of the Japanese Army.

The thrilling episode of the battle of the next two days was the opening of fire from the hitherto hidden and unsuspected batteries of Japanese heavy guns. Mr. Fraser tells us that the Russians had believed it impossible to bring heavy artillery over the Korean roads, and were in consternation when the howitzers belched forth their shells in a fairly overpowering way. "The trees," he says, "screened the flashing of the Japanese guns from the Russian eyes. There was no smoke to indicate their whereabouts. The indirect fire of the howitzers was as deadly as if it had been aimed point-blank. The Russians, on the other hand, fired at random into the belt of trees; they had been able to locate only two of the Japanese guns. Their fire had little or no effect upon the well-protected Japanese gunners. In ten minutes the Russian shooting grew wild. ... After twenty-five minutes both batteries were silenced."

It is the testimony of all witnesses of the fighting on both days of the battle, especially on the 1st of May, that the Russians showed desperate courage; but every advantage, of position, of equipment, of numbers, and, above all, of generalship, was in favor of the Japanese. They drove the enemy from all his entrenchments, and entered Manchuria, to pursue there an equally successful campaign, for the same reasons, of superior ability and more thorough preparation.

The reported loss of the Japanese in the conflicts on the Yalu was 5 officers and 218 men killed, 33 officers and 780 men wounded. They captured 22 field guns, 8 machine guns, a quantity of rifles and ammunition, and took 628 prisoners, including 18 officers. General Zasulich, the Russian commander, reported 70 officers and 2324 men killed, wounded

and taken prisoners. Another Russian report of losses gave 28 officers and 564 men killed, 38 officers and 1081 men wounded, and 6 officers and 679 men missing.

The Russians retreated on Fenghuangcheng, but made no stand there, and the Japanese, who followed, occupied the place on the 6th of May. The advance of the latter was halted at that point until late in June, waiting for operations in other parts of the field.

Meantime, between the 4th and the 22d of May, the Second Japanese Army, General Oku commanding, had been landed near Pitsewo, on the western coast of the Liao-tung peninsula, and this began a general advance on the 25th. It fought a severe battle on the following day, at Nanshan, or Kinchou, from which the Russians fell back. The victory of the Japanese cost them heavily, their reported loss being 739 killed and 5455 wounded; while General Stössel, the Russian commander, reported a loss of 30 officers and 800 men killed and wounded.

On June 6th this Second Army was divided into two, one of which, passing to the command of General Nogi, became the Third Japanese Army, and was marched presently toward Port Arthur, to open the famous siege of that stronghold. General Oku, retaining about 50,000 men in the Second Army, and starting northward on the 15th, was opposed by Russian forces under General Stackelberg. The first important conflict was on June 15 at or near Telissu station, which gave the battle its name. Again the Russians were forced back, with a loss of 103 officers and about 2600 men, killed and wounded, besides a missing list of 764. The Japanese loss was 50 officers and 1113 men killed and wounded. Hard fighting occurred again between the 6th and 9th of July, on the approach of the Japanese to Kaiping and the Kaiping River, beyond which their opponents were driven. "The occupation of Kaiping and the country immediately to the north placed General Oku's army on the edge of the Liao Valley, opened the way to the Yingkon and

Newchwang, and facilitated his further advance to the north by allowing supplies to be received from the sea, thus shortening his line of communications."

A Fourth Japanese Army, under General Nodzu, had now been landed at Takushan, on the eastern coast of the Liao-tung peninsula, and was reconnoitering toward Oku's forces, as well as toward the First Japanese Army, which had remained in the vicinity of Fenghuangcheng until the 24th of June, waiting for these cooperative masses of troops to be got into place. It was now being moved in three columns, one of which was soon in touch with the Fourth Army (Nodzu's), and the two began working to the west and northwest. The Russians gave up Fenshuiling, and by the 9th of July, when Oku, with the Second Army, occupied Kaiping, the three Japanese armies in the northern part of the Liao-tung peninsula—the First, Second, and Fourth—"were united on a front from Kaiping east to Fenshuiling, thence northeast through Motienling, with covering detachments of Kobi troops eastward at Saimachi, Hsienchang and Huaijen.

{345}

The Russians were concentrated in the Liao Valley at Tashihchiao, Haicheng, Anping and Liaoyang." On the 6th of July Field Marshal Oyama had left Tokyo to take active command of this united army, and the great operations of the Manchurian campaign were about to begin.

***Epitome of the Russo-Japanese War,
United States War Department,
Second [Military Information] Division,
General Staff, Number 11.***

At this time General Nogi, with the Third Japanese Army, was fighting his way slowly toward Port Arthur, against obstinate resistance, not arriving at the front of the land defences proper until the 14th of August.

The Russians had evacuated Dalny (formerly called Talienwan), with its fine harbor, on Talienwan Bay, thirty miles distant from Port Arthur, and the Japanese had occupied it on the 30th of May. This was an acquisition of great importance to them.

JAPAN: A. D. 1904 (February-August).

The War with Russia: Siege of Port Arthur.

The Naval Surprise.

Unreadiness of the Defence.

Naval operations of the six months.

Fate of the Russian fleets in the East.

Mr. E. K. Nojine, "accredited Russian War Correspondent," who went through the whole experience at Port Arthur, from first to last of the war, and who wrote what he entitles "The Truth about Port Arthur," opens his severely critical narrative with the following statement:

"When, one hour before midnight on February 8, 1904, our warships began to belch fire from their many steel mouths, and the seaward batteries suddenly thundered forth their angry death-dealing tidings, no one dreamed that the noise was War, for no one had taken the constant rumors of the rupture of diplomatic relations and of approaching hostilities at all seriously. ... Although the sky in the East had for weeks been blood-red with the menace of immediate war, yet when it came

the surprise was absolute, its horror intensified by our complete unreadiness."

What this writer tells of the unreadiness, and of the slowness with which the serious need of more readiness was comprehended by the controlling authority at Port Arthur, during the weeks that passed before the stronghold was fully invested, goes almost beyond belief. He writes bitterly and contemptuously of General Stössel, who held command of the district, and admiringly of General Smirnoff, Commandant of the fortress, whom Stössel could overrule. He seems to have been sustained in his judgment by the court-martial which subsequently condemned Stössel to death.

The sound of midnight battle on its sea-front (February 8-9) which announced a beginning of war to the surprised garrison of Port Arthur came from the attack of Admiral Togo's torpedo boats on the Russian fleet in the harbor. Three of the Russian ships were crippled, but not seriously. The next day Togo made a general attack with his whole fleet of fifteen vessels, including five battle-ships, and did some damage to four more of his enemies' vessels; but a fortnight is said to have repaired them all. The general result of the two operations was "to insure the at least temporary immobility of the Port Arthur fleet," so that "the transport of the army from Japan to Korea might go on without fear of molestation." A squadron was then detached to look after four cruisers at Vladivostock, and that harbor was cannonaded for the same purpose on the 6th of March. Meantime, on the 9th of February, a Russian cruiser and a gunboat, attempting to leave Chemulpho harbor, were driven back, and were then destroyed by their Russian commander.

The main Japanese fleet hovered constantly near Port Arthur, not only maintaining a strict blockade, but making frequent close approaches, to sink vessels and plant mines in the entrance channels of the harbor; to harass the Russian fleet

with torpedo attacks, or to come boldly within range of its shore defenses and give battle to them, as well as to bombard the fortress and town. There were heavy bombardments on the 10th and the 22d of May. The Russian fleet, commanded by Vice-Admiral Makaroff, made retaliatory sorties, in returning from one of which, on the 13th of April, the admiral's flag-ship, the Petropalovsk, struck and exploded a line of floating mines. The huge battle-ship was so shattered by the explosion that she sank in two minutes, carrying down the admiral, the famous painter, Verestchagin, who was his guest, and 550 other officers and men. Of all on board only 85 were saved.

In the course of the next month the Japanese suffered several of the same disasters, two of their battle-ships, the Hatsuse and the Yashima, and two other vessels of less importance, being blown up by the explosion of mines. Of the crew of the Hatsuse nearly 500 perished, while all on board the Yashima were said to have been saved. By collision in a fog one of the Japanese cruisers was sunk, with all but 90 of her crew. And the three most calamitous of these happenings, to the two battle-ships and the cruiser, occurred on the same day—the 15th of May. Admiral Togo's fleet was weakened very seriously by these losses. Somewhat later the same fate befell a number of Russian ships, but the loss in them was less.

Though watched by a Japanese squadron under Vice-Admiral Kamimura, the Russian war-ships at Vladivostock were able to slip out for occasional cruises, in which they captured or destroyed Japanese transports and merchant ships. In more than one instance—notably that of the Kinshu-Maru—the soldiery on captured transports refused to surrender and committed "hara-kiri" in a body, or were engulfed by the sea. "It is quite true that the work done by the Vladivostock squadron was not great in amount, but they must have caused some inconvenience to the military forces of Japan engaged in the campaign."

On the 23d of June Rear-Admiral Vithöft, who had succeeded the late Admiral Makaroff in the naval command at Port Arthur, sailed out of the harbor with six battle ships, five cruisers and ten torpedo boats, apparently intending to offer battle to the Japanese. The Russians had repaired their damaged vessels and now seemed to have a fleet that was equal to Togo's in strength, since he opposed only four battle-ships to their six. Nevertheless when the Japanese approached them they withdrew, returning to Port Arthur, pursued by torpedo-boats, and nearly losing the battle ship Sevastopol, which struck a mine and was disabled for six weeks.

{346}

Little occurred during that period on the naval side of the Port Arthur campaign. Then, on the 10th of August, it was reopened startlingly, to be ended with practical completeness within the next few days. On that morning the Port Arthur fleet and the Vladivostock squadron put to sea from their respective harbors, evidently attempting a junction. The Port Arthur fleet was the first to encounter its enemy, which it did the same day, when no more than 25 or 30 miles out from the port. Admiral Vithöft now had with him only five battle ships, having left one, probably disabled, behind. With these were the four cruisers, two gunboats and a number of torpedo craft. Admiral Togo brought against this force four battle-ships and four armored cruisers in the battle that ensued. It "took the form of a long-range engagement between the fleets, steering nearly the same course towards the east. ... At a time which is variously reported, but probably about 6.15 p. m., a 12-inch shell ... burst near the conning tower of the Cesarevitch [the flagship], killing Admiral Vithöft and wounding the captain of the ship. At the same time the Cesarevitch's steering gear was damaged, the helm jammed, and she made a sudden sheer to port. This threw the Russian line into confusion. ... The Russian formation was now broken up, and

the ships fell into a confused group at which the Japanese directed a hot fire at the comparatively short range of 3500 yards. At times the Russian ships were hidden by the smoke of exploding shells, and about 7 p. m. their fire slackened perceptibly. One report states that a second-class battle-ship and two coast-defence vessels had joined the Japanese, besides another ship of a class not certainly known. The whole twelve Japanese ships concentrated their fire on the six Russian battle-ships and four unarmored cruisers till 8 p. m. Prince Ukhtomsk, who had succeeded to the Russian command on Admiral Vithöft's death, then signalled to the fleet to follow him, and turned toward Port Arthur. All could not follow, and some made for shelter in other ports, harassed by torpedo attacks, but not otherwise pursued.

The result of the Russian sally from Vladivostock was much the same. The three armored cruisers from that port were not intercepted by the Japanese until the morning of the 14th, three days after the defeat of the Port Arthur fleet which they had hoped to join. They were then attacked by four armored and two unarmored cruisers. They fought obstinately and suffered frightful losses in officers and men,—415 wounded and 251 killed. One of the ships, reduced to helplessness, was sunk by its own surviving crew, most of whom were picked up by the Japanese. The other two escaped to Vladivostock in a wrecked state.

These engagements "really ended the naval campaign of 1904. Of the ships [from Port Arthur] that got through the Japanese fleet, one battle ship, the *Cesarevitch*, and three destroyers were disarmed and interned at Kiachow (Tsingtau); one cruiser, the *Askold*, and one destroyer had the same fate at Shanghai, and another cruiser, the *Novik*, was destroyed ... at Korsakovsk. A third cruiser, the *Diana*, was disarmed and interned at the neutral French port of Saigon. One destroyer had been seized at Chefoo by the Japanese for disregard of Chinese neutrality, and one was wrecked on the coast of Shantung. The rest of the

fleet which got back to Port Arthur remained there only to be destroyed in nearly every case by their own crews, to save them from the fate of being surrendered to their enemy on the fall of the fortress. ... The grand total of the Russian loss [of officers and men] in the six battle-ships and four cruisers amounted to 81 killed and 420 wounded. ... The total Japanese loss, as reported at the time, was 61 killed and 124 wounded." Later statements brought the total loss up to 225.

***Admiral Sir Cyprian Bridge,
The Naval Annual, 1905, chapter 7.***

JAPAN: A. D. 1904 (July-September).

The War with Russia: Campaign in Manchuria.

Japanese advances; Russian retreats.

The great battle and Japanese victory at Liao-Yang.

On the 4th of July the Russians, who had given up Motienling to the Japanese five days before, made an attempt to recover it, but failed. They repeated the attempt on the 17th, and again without success. On the 10th a force from the Fourth Japanese Army (Nodzu's), advancing from Fenshuiling toward Tomucheng, met with a repulse. The right column of Kuroki's army (the First) fought a considerable engagement with the Russians at Hsihoyen on the 19th. Oku's army (the Second), advancing from Kaiping, fought them at Tashinchiao on the 24th. Nodzu was engaged with them again on the 31st at Tomucheng, and Kuroki's right column at Yushulingtzu on the same day; while the left column, simultaneously, expelled them from Yangtzuling. On the 2d of August the Russians retired from Haicheng and the Japanese occupied it the following day. The Russians had been steadily forced back to the vicinity of Liao-Yang, where they had prepared themselves for a determined stand.

"The front of the Russian forces at and in the vicinity of Liao-Yang extended from Anshantien through Lantzushan and the

mountain range east of Anping to the Taitzu River. The Japanese front extended from Haicheng through Tomucheng and Yantzuling to Yushulingtzu."

***Epitome of the Russo-Japanese War,
United States War Department,
Second [Military Information] Division.
General Staff, Number 11.***

Both sides were now making ready for the first of the two most terrific battles of the war; but the month of August was near its close before the Japanese began their assault on the formidable works behind which the Russians awaited their attack. In the "Epitome" cited above the effective Russian force taking part in this struggle is estimated at about 140,000, commanded by General Kuropatkin.

Lord Brooke, Reuter's special correspondent in Manchuria, in his book entitled "An Eye-witness in Manchuria," describes the battle of Liao-Yang as "the biggest artillery battle of which history has record." The Russians occupied a line of rocky hills south and east of Liao-Yang. Oku opposed their right and center; Nodzu the center and left; Kuroki was farther east, intending to force the passage of the Tai-tze-ho and reach the rear of their main body. Artillery on both sides opened the battle at dawn, August 30, and a terrible duel was fought for five hours.

{347}

Then, at half-past eleven, General Oku delivered the first infantry assault, which cost a fearful loss of life, and failed. Late in the afternoon a resolute turning movement on the Russian right was attempted by the Japanese and pressed until darkness came, with success only to the extent of driving the enemy from one village. Then a night attack on the Russian center was made, and that, too, was repelled.

The morning of the 31st brought a renewal of the artillery

duel, followed by assault after assault from Oku's indomitable troops on the Russian right flank, with the result of driving it back to the cover of the railway embankment. Meantime General Kuroki, whose army was on the extreme right of the Japanese line, had forced the passage of the Tai-tze-ho River, at a ford 26 miles east of Liao-Yang. This compelled Kuropatkin to withdraw some of his troops from the outer fortifications south and east of Liao-Yang and send them against Kuroki. The crisis of the struggle was now in the battles fought on the next two days with Kuroki, in vain attempts to cut him off from the river ford and crush his not large army. At the same time the Japanese were making a direct attack on Liao-Yang and endeavoring to cut Kuropatkin's communications with Mukden. Neither Russians nor Japanese had success in these attempts, but the former were brought to a situation which compelled retreat. On the fourth of September they evacuated Liao-Yang and withdrew from the surrounding works. "As soon as the evacuation began," wrote Lord Brooke, "the Japanese guns opened fire on the Russians, who had for line of retreat only the railway bridge and the two pontoons across the Tai-tze-ho. Nevertheless the retirement was carried on with great coolness, and the loss sustained in crossing the river was comparatively small in view of the difficult position from which the Russians had to extricate themselves. All the artillery was got away. But if the evacuation of Liao-Yang was cleverly effected, the army of Kuropatkin was still in great danger, and the Commander-in-chief seemed really afraid that a large part of his force would be cut off. It was a reasonable apprehension, for General Kuroki's army began the day with renewed vigor. ... In a melancholy frame of mind the whole army marched northward, with Kuroki continually pressing its flank and the fear that Oku would ere long be on his heels."

Pursuit by the Japanese was given up on the morning of September 6th.

In the "Epitome" of the war, prepared and published by the American Army Staff, the total Russian loss in the Liao-Yang battles is given as reported to have been 54 officers and 1810 men killed; 252 officers and 10,811 men wounded; 5 officers and 1211 men missing. The Japanese reported a total loss of 17,539 officers and men, without details.

JAPAN: A. D. 1904 (October).

War with Russia: Quiet Aspect of Life during the War.
Spartan Discipline of Japanese Feeling and Conduct.

"For all industrial civilization the contest is one of vast moment;—for Japan it is probably the supreme crisis in her national life. As to what her fleets and her armies have been doing, the world is fully informed; but as to what her people are doing at home, little has been written.

"To inexperienced observation they would appear to be doing nothing unusual; and this strange calm is worthy of record. At the beginning of hostilities an Imperial mandate was issued, bidding all non-combatants to pursue their avocations as usual, and to trouble themselves as little as possible about exterior events;—and this command has been obeyed to the letter. It would be natural to suppose that all the sacrifices, tragedies, and uncertainties of the contest had thrown their gloom over the life of the capital in especial; but there is really nothing whatever to indicate a condition of anxiety or depression. On the contrary, one is astonished by the joyous tone of public confidence, and the admirably restrained pride of the nation in its victories. Western tides have strewn the coast with Japanese corpses; regiments have been blown out of existence in the storming of positions defended by wire-entanglements; battle-ships have been lost; yet at no moment has there been the least public excitement. The people are following their daily occupations just as they did before the war; the cheery aspect of things is just the same; the theatres and flower displays are not less well

patronized. The life of Tokyo has been, to outward seeming, hardly more affected by the events of the war than the life of nature beyond it, where the flowers are blooming and the butterflies hovering as in other summers. Except after the news of some great victory,—celebrated with fireworks and lantern processions,—there are no signs of public emotion; and but for the frequent distribution of newspaper-extras, by runners ringing bells, you could almost persuade yourself that the whole story of the war is an evil dream.

"Yet there has been, of necessity, a vast amount of suffering—viewless and voiceless suffering—repressed by that sense of social and patriotic duty which is Japanese religion. ... The great quiet and the smiling tearlessness testify to the more than Spartan discipline of the race. Anciently the people were trained, not only to conceal their emotions, but to speak in a cheerful voice and to show a pleasant face under any stress of moral suffering; and they are obedient to that teaching to-day. It would still be thought a shame to betray personal sorrow for the loss of those who die for Emperor and fatherland."

***Lafcadio Hearn,
A Letter from Japan
(Atlantic Monthly, November, 1904).***

JAPAN: A. D. 1904-1905 (May-January).

War with Russia: Operations against Port Arthur.

Preliminary battles.

Investment and Siege.

The Defences.

Desperate assaults in August.

Story of Lieutenant Sakurai.

The assault on 203 Metre Hill and its capture.

Surrender of the Fortress.

Trial and condemnation of General Stössel.

As stated heretofore, the Japanese began landing their Second Army, under General Oku, at Petsiwo, for operations against Port Arthur, on the 4th of May. Very quickly thereafter the railway was cut and Port Arthur was blockaded by land as well as by sea. On the 8th the last train from the north was brought in. By the 25th Oku was ready to advance, and on the following day he attacked the Russians at Kinchou (the battle bearing sometimes the name of Nan-shan), and expelled them from that position, the loss of which, according to the correspondent Nojine, sealed the fate of Port Arthur.

{348}

He accuses General Stössel of having boastfully assumed that the Japanese could never take Kinchou, denouncing as traitors all who questioned the sufficiency of its fortification and urged the strengthening of the works. The expulsion from Kinchou necessitated the abandonment of the important port of Dalny, which was done with great haste on the night of the 26th. "In Dalny," says Nojine, "there were numerous buildings, docks, and the most splendid breakwaters running out into the sea for a distance of one and a half miles. ... Owing to want of time nothing except a few of the railway bridges was blown up. ... Besides the numerous town, harbor and railway buildings, there was an immense amount of private house property, as well as large warehouses, stocked with food and stores of all sorts, both public and private. The enemy got possession of them all undamaged, just as they were. After the capture of Arthur the Japanese confessed that by not destroying Dalny we had assisted them enormously in their difficult task of disembarking their siege-train, and that the railway had enabled them easily to get it into position in the investing lines. ...

"The enemy having now taken complete possession of Dalny, at once used it as their base. There, quietly and comfortably, without any interference from us, they carried out the landing of troops for the investment. Ten transports would arrive daily, bringing everything necessary for the concentrating

army. The railway from Dalny and all the rolling stock was in perfect order; ... our fleet did not hinder them in any way; they had command of both land and sea."

On the 6th of June Oku's army was divided, that general leading part of it (still called the Second Army) northward, leaving the remainder, as a Third Japanese Army, under General Nogi, to conduct the investment and siege of Port Arthur.

At about this time, according to Nojine, Stössel was persuaded by Smirnoff to permit the latter to fortify some of the outer hills of the peninsula, which had been neglected hitherto; these were Kuen-san Hill, the Green Hills, Angle Hill, Wolf's Hill, Ta-ku-shan and Sia-gu-shan hills. "The latter," says Nojine, "were of immense importance, as they were quite inaccessible, and protected the whole of the western front of the Fortress, but only so long as Wolf's Hills were in our possession." On the 26th and 27th of June the Japanese attacked and captured Kuen-san and Green Hills. The latter were recovered by the Russians on the 4th of July, but they failed to retake Kuen-san. The loss of the latter was very serious; for the Japanese from its summit could look into the works on the Green Hills and, by telephone, direct the fire of their batteries on them.

Until the 26th of July not much occurred, as the assailants were busy strengthening the positions they had acquired. Then they began a determined attack on Green Hill, and continued it through two days. On the morning of the 28th the Russians gave up the position and drew back towards Port Arthur, to what is called the Wolf's Hills line. They were driven from this on the 30th, and the close investment of Port Arthur began then.

***E. K. Nojine,
The Truth about Port Arthur,
chapters 11-22.***

As described in the "Epitome of the Russo-Japanese War" prepared for the United States of America General Staff, the immediate "defences of Port Arthur, divided into eastern and western sectors by the valley through which the railway enters the town, consisted of permanent masonry forts whose gorges were connected by the old Chinese Wall, temporary works constructed just prior to and during the siege, and connecting and advance trenches. The west sector followed an irregular crest, with an elevation of about 500 feet, around the new town, and terminated on Laotiehshan, the highest point in the vicinity, with an elevation of about 1000 feet. The east sector encircled the old town at a distance of from two to two and a half miles, running along an irregular crest, about 350 feet in elevation, within which was an elevation (Wangtai or Signal Hill) of about 800 feet. The permanent forts were polygonal in trace and had ditches with caponieres and galleries. The gap between the two sectors was covered by the fort on Paiyushan (Quail Hill).

"Of the works most intimately connected with the siege the Sungshushan, Ehrlungshan, North and East Tungchikuanshan, Itzushan, and Antzushan forts were strong permanent fortifications. The two Panglungshan forts, East and West, were semi-permanent redoubt-shaped fortifications; 203 Meter Hill and Aksakayama were semi-permanent works with two lines of advance trenches. Kuropatkin Fort was a strong field-work with deep ditch; the Shuishihyung lunettes were also provided with ditches, but not so deep. P. H., Kobu and Hachimakiyama were more in the nature of semi-permanent trenches with bomb-proofs."

***Epitome of the Russo-Japanese War,
United States War Department,
Second [Military Information] Division,
General Staff, Number 11, pages. 28-29.***

"In this fortress, for the first time, were utilised all those

terrible agencies of war which the rapid advance of science in the past quarter of a century has rendered available. Among these we may mention rapid-fire guns, machine-guns, smokeless powder, artillery of high velocity and great range, high explosive shells, the magazine rifle, the telescopic sight, giving marvellous accuracy of fire, the range-finder, giving instantaneously the exact distance of the enemy, the search-light, the telegraph and the telephone, starlight bombs, barbed-wire entanglements, and a dozen other inventions, all of which were deemed sufficient, when applied to such stupendous fortifications as those of Port Arthur, to render them absolutely impregnable.

"The Russians believed them to be so—certainly the indomitable Stössel did. And well he might, for there was no record in history of any race of fighters, at least in modern times, that could face such death-dealing weapons and not melt away so swiftly before their fury as to be swept away in defeat. But a new type of fighter has arisen, as the sequel was to tell."

***Richard Barry,
How Port Arthur Fell
(Fortnightly Review, March, 1905).***

"The first bombardment from the land side began suddenly on August 7. ... The bombardment continued all day, though doing little material damage. Next morning, from 2 to 5 A. M., we heard heavy musketry fire from the direction of Ta-ku-shan: the enemy leaving the town and the main defences in peace, were turning their attention to it.

{349}

This hill corresponded in the east to 203 Metre Hill in the west, and was equally important and equally unfortified. It and Sia-gu-shan, the natural forts of Arthur on the eastern front, had a bad time. In the first place they had not been made the most of, for in the original plan of defence of Port

Arthur they had been thought to be important points and so had been neither fortified nor armed as their position with regard to the Fortress warranted, and Smirnoff had only recently succeeded in arming them to a small extent. In the second place they became, after the abandonment of Wolf's Hills, open to flanking fire, and therefore untenable. The companies of the 13th East Siberian Rifle Regiment sent there went literally to their death, but, together with the gunners, they held on as long as possible."

Both of the hills were taken by the Japanese that night. The Russians immediately concentrated a heavy artillery fire on the new occupants, and the next day they attempted to retake Ta-ku shan by assault, but failed. On the 11th they repeated the attempt, with no better success. On the 16th General Nogi sent in a flag of truce, bearing the proposal of "a discussion of negotiations for the surrender of the Fortress," saying: "The Russians have given signal proofs of their gallantry, but Arthur will be taken all the same." The invitation was declined. On the 20th the Japanese gained Angle Hill and Pan-lun-shan redoubt; but the Russians recaptured the latter on the following night.

The Japanese now hoped to be able to take the Fortress by a general assault, and made the attempt with extraordinary determination on the 21st, 22d, and 23d. "On the night of the 23d," writes Nojine, "the Japanese made the most desperate of all their attacks so far. They made three separate and most determined assaults on Zaredoubt Battery, on the line between it and Big Eagle's Nest, and on Ruchevsky Battery. Though temporarily successful at one or two points, they were finally driven back out of all with shocking slaughter." It is of this assault that Lieutenant Tadayoshi Sakurai tells the terrible story in one of the chapters of his book, entitled "Human Bullets: A Soldier's Story of Port Arthur," from which the following is quoted:

"I gathered my men around me and said: 'I now bid you all farewell. Fight with all your might. This battle will decide whether Port Arthur is to fall or not. This water you drink, please drink as if at your death moment.'

"I filled a cup with water that was fetched by one or two soldiers at the risk of their lives, and we all drank farewell from the same cup. Soon we received orders to advance to a point half-way up the side of Panlung. ... This fortress of Panlung had been captured with the flesh and blood of the Ninth Division of the Seventh and Eighth Regiments of the Second Reserve, and was now an important base from which a general assault on the northern forts of East Kikuan and Wantai was to be made. This critical spot was finally taken after a terrible struggle and a valiant action by the men of General Oshima's command. The sad story was eloquently told by the horrible sights of the ravine. While running through the opening in the wire-entanglement beyond, I noticed many engineers and infantry men dead, piled one upon another caught in the wire, or taking hold with both arms of a post, or grasping the iron shears.

"When we reached the middle of the side of Panlung, I saw the regimental flag that I used to carry, flying above our heads in the dark. My heart leaped at the sight of the dear flag. ... As soon as we were gathered together the Colonel rose and gave us a final word of exhortation, saying: 'This battle is our great chance of saving our country. To-night we must strike at the vitals of Port Arthur. Our brave assaulting column must be not simply a forlorn-hope ("resolved-to-die"), but a "sure-death" detachment. I as your father am more grateful than I can express for your gallant fighting. Do your best, all of you.'

"Yes, we were all ready for death when leaving Japan. Men going to battle of course cannot expect to come back alive. But in this particular battle to be ready for death was not

enough; what was required of us was a determination not to fail to die. Indeed we were 'sure death' men, and this new appellation gave us a great stimulus. Also a telegram that had come from the Minister of War in Tokyo was read by the aide-de-camp, which said, 'I pray for your success.' This increased the exaltation of our spirits.

"Let me now recount the sublimity and horror of this general assault. I was a mere lieutenant and everything passed through my mind as in a dream, so my story must be something like picking out things from the dark. I can't give you any systematic account, but must limit myself to fragmentary recollections. If this story sounds like a vain-glorious account of my own achievements, it is not because I am conscious of my merit when I have so little to boast of, but because the things concerning me and near me are what I can tell you with authority. If this partial account prove a clue from which the whole story of this terrible assault may be inferred, my work will not have been in vain.

"The men of the 'sure-death' detachment rose to their part. Fearlessly they stepped forth to the place of death. They went over Panlung-shan and made their way through the piled-up bodies of the dead, groups of five or six soldiers reaching the barricaded slope one after another. I said to the colonel, 'Good-by, then!' With this farewell I started, and my first step was on the head of a corpse. Our objective points were the Northern Fortress and Wang-tai Hill.

"There was a fight with bombs at the enemy's skirmish-trenches. The bombs sent from our side exploded finely, and the place became at once a conflagration, boards were flung about, sand bags burst, heads flew around, legs were torn off. The flames mingled with the smoke, lighted up our faces weirdly, with a red glare, and all at once the battle-line became confused. Then the enemy, thinking it hopeless, left the place and began to flee. 'Forward! forward!

now is the time to go forward! Forward! Pursue! Capture it with one bound!’ and, proud of our victory, we went forward courageously. Captain Kawakami, raising his sword, cried, ‘Forward!’ and then I, standing close by him, cried, ‘Sakurai’s company, forward!’ Thus shouting I left the captain’s side, and, in order to see the road we were to follow, went behind the rampart. What is that black object which obstructs our view? It is the ramparts of the Northern Fortress. Looking back, I did not see a soldier. Alack, had the line been cut? In trepidation, keeping my body to the left for safety, I called the Twelfth Company.

{350}

“‘Lieutenant Sakurai!’ A voice called out repeatedly in answer. Returning to the direction of the sound, I found Corporal Ito weeping loudly. ‘What are you crying for? What has happened?’ The corporal, weeping bitterly, gripped my arm tightly. ‘Lieutenant Sakurai, you have become an important person.’ ‘What is there to weep about?’ I say, ‘what is the matter?’ He whispered in my ear, ‘Our captain is dead.’ Hearing this, I too wept. Was it not only a moment ago that he had given the order ‘Forward’? Was it not even now that I had separated from him? And yet our captain was one of the dead. In a moment our tender, pitying Captain Kawakami and I had become beings of two separate worlds. Was it a dream or a reality, I wondered?

"Corporal Ito pointed out the captain’s body, which had fallen inside the rampart only a few rods away. I hastened hither and raised him in my arms. ‘Captain!’ I could not say a word more. But as matters could not remain thus, I took the secret map which the captain had, and, rising up boldly, called out, ‘From henceforward I command the Twelfth Company.’ And I ordered that someone of the wounded should carry back the captain’s corpse. A wounded soldier was just about to raise it up when he was struck on a vital spot and died leaning on the

captain. One after another of the soldiers who took his place was struck and fell.

"I called Sub-Lieutenant Ninomiya and asked him if the sections were together. He answered in the affirmative. I ordered Corporal Ito not to let the line be cut, and told him that I would be in the center of the skirmishers. In the darkness of the night we could not distinguish the features of the country, nor in which direction we were to march. Standing up abruptly against the dark sky were the Northern Fortress and Wang-tai Hill. In front of us lay a natural stronghold, and we were in a caldron-shaped hollow. But still we marched on side by side.

‘The Twelfth Company forward!’ I turned to the right and went forward as in a dream. I remember nothing clearly of the time. ‘Keep the line together!’ This was my one command. Presently I ceased to hear the voice of Corporal Ito, who had been at my right hand. The bayonets gleaming in the darkness became fewer. The black masses of soldiers who had pushed their way on now became a handful. All at once, as if struck by a club, I fell down sprawling on the ground. I was wounded, struck in my right hand. The splendid magnesium light of the enemy flashed out, showing the piled-up bodies of the dead, and I raised my wounded hand and looked at it. It was broken at the wrist; the hand hung down and was bleeding profusely. I took out the already loosened bundle of bandages, tied up my wound with the triangular piece, and then wrapping a handkerchief over it, I slung it from my neck with the sunrise flag, which I had sworn to plant on the enemy’s fortress.

"Looking up, I saw that only a valley lay between me and Wang-tai Hill, which almost touched the sky. I wished to drink and sought at my waist, but the canteen was gone; its leather strap alone was entangled in my feet. The voices of the soldiers were lessening one by one. In contrast, the glare of the rockets of the hated enemy and the frightful noise of the

cannonading increased. I slowly rubbed my legs, and, seeing that they were unhurt, I again rose. Throwing aside the sheath of my sword, I carried the bare blade in my left hand as a staff, went down the slope as in a dream, and climbed Wang-tai Hill.

"The long and enormously heavy guns were towering before me, and how few of my men were left alive now! I shouted and told the survivors to follow me, but few answered my call. When I thought that the other detachments must also have been reduced to a similar condition, my heart began to fail me. No reinforcement was to be hoped for, so I ordered a soldier to climb the rampart and plant the sun flag overhead, but alas! he was shot and killed, without even a sound or cry.

"All of a sudden a stupendous sound as from another world rose around about me. 'Counter-assault!' A detachment of the enemy appeared on the rampart, looking like a dark wooden barricade. They surrounded us in the twinkling of an eye and raised a cry of triumph. Our disadvantageous position would not allow us to offer any resistance, and our party was too small to fight them. We had to fall back down the steep hill. Looking back, I saw the Russians shooting at us as they pursued. When we reached the earthworks before mentioned, we made a stand and faced the enemy. Great confusion and infernal butchery followed. Bayonets clashed against bayonets; the enemy brought out machine-guns and poured shot upon us pell-mell; the men on both sides fell like grass. But I cannot give you a detailed account of the scene, because I was then in a dazed condition. I only remember that I was brandishing my sword in fury. I also felt myself occasionally cutting down the enemy. I remember a confused fight of white blade against white blade, the rain and hail of shell, a desperate fight here and a confused scuffle there. At last I grew so hoarse that I could not shout any more. Suddenly my sword broke with a clash, my left arm was pierced. I fell, and before I could rise a shell came and shattered my right leg. I gathered all my strength

and tried to stand up, but I felt as if I were crumbling and fell to the ground perfectly powerless. A soldier who saw me fall cried, 'Lieutenant Sakurai, let us die together.'"

Tadayoshi Sakurai,
Human Bullets, chapter 26
(Houghton Mifflin Co., Boston).
<https://www.gutenberg.org/ebooks/47548>

The soldier who offered to die with him stayed with the Lieutenant till morning, binding his wounds, and finally creeping away to find and bring help if he could. He, too, had been wounded, and Sakurai found him later in a hospital. At the end of many hours of constantly imminent death, the helpless and suffering Lieutenant was saved by two soldiers who bore him, stealthily and with infinite difficulty out of the range of the Russian rifles and to a field hospital, where he found himself among intimate friends.

{351}

Of the scene on the morning following the terrific assaults of August 23d, the correspondent Nojine writes:

"The rising sun showed up sheaves of corpses on the ground that was still ours. Death had indeed triumphed, and had claimed 22,000 lives. From this time forward the enemy remained content with the slower advance of regular siege operations. ... The enemy had got close up to our positions, and the salient angle of the north-east was almost in their hands. I say 'almost,' because the ruins of these works remained the greater part of the time untenanted, neutralized by the gun-fire of both sides." A month passed before another serious assault was undertaken by the Japanese. Then, on the 21st of September, they attacked what was called "203 Metre Hill." "Column after column rushed forward on to 203 Metre Hill, covering all its fore hills and slopes with heaps of dead; but

at 8.45 a. m. they were repulsed. This assault was distinguished by particular obstinacy. ... Having got three-quarters of [the hill] they meant to get possession of the rest at all costs: they slowly crawled upwards, fell dead, rolled back, and others dashed forward; they lay concealed and waited for reinforcements; nothing would drive them back. All their thoughts, all their endeavors were to get possession of this hill. Our men began rolling down great boulders from the top. These bounded down, flattened out the dead and sought out the living, who, in trying to dodge, exposed themselves and were shot by our men on the lookout. ... During the night of the 21st about 900 corpses were collected under 203 Metre Hill." Nevertheless the assault was repeated on the following day. "From the moment this assault was beaten back, the trenches in front of 203 Metre Hill were gradually evacuated and the enemy went to earth only on Angle Hill. All their sapping was confined to the north-east. On the western front of the Fortress there now remained in our possession only 203 Metre, Flat and Divisional Hills. ... October 1 was an epoch in the history of the defence of Port Arthur, for it was on this day that the first of the 11-inch shells fell into the Fortress, and so changed the aspect of affairs. ... Nowhere could we find real safety from them. ... The concrete of the forts, the armor on the battle ships, were penetrated clean through." Mining and counter-mining, by the besiegers and the besieged, were now in progress, and the explosion of such mines was begun near the end of October. On the 30th of that month the Japanese made another general assault, after a "cruel bombardment" of four days. "The October attacks were short, but most determined and bloody. As regards their success, it was but slight. The enemy had gained some dozens of yards—no more. ... The Japanese had fired over 150,000 shells." The "November assault season" began on the 20th. Its climax was on the 26th, "when time after time, the enemy threw themselves with extraordinary gallantry and persistence on forts Ehr-lung-shan, Chi-kuan-shan and B Battery. Thousands were mown down, but the living surged onwards. But it could not go

on forever, and at 3.30 the infantry attacks slackened and ceased. ... All next day and night an incessant stream of wounded poured into Arthur, our losses being more than 1500 men. ... The slopes below and beyond Tumulus Hill were thickly spread with dead Japanese. A thick, unbroken mass of corpses covered the cold earth like a coverlet. On the day of the assault the following order had been issued by Major-General Nakamura, who commanded the Japanese force told off for that forlorn hope: ... 'Our objective is to sever the Fortress on two parts. Not a man must hope to return alive. If I fall, Colonel Watanabe will take over the command; if he also falls, Colonel Okuno will take his place. Every officer, whatever his rank, must consider himself his senior's successor. The attack will be delivered mainly with the bayonet. No matter how fierce the Russian fire, our men will not reply by a single shot until we have established ourselves. Officers will shoot any men who fall out or retire without orders.' ... This is the kind of foe we had to fight. ...

"We now come to the culmination of the tragedy, and perhaps the bloodiest scene of carnage of the whole war—the fight for and capture of 203 Metre Hill." The attack began November 27 and was continuous for eight days, excepting that an hour's truce was obtained by the Japanese, December 2, for the burial of their dead. The next day "the fight on the hill was, if possible, more exasperated. In the Fortress the feeling of alarm was intensified, and all unemployed men had been got under arms, ... and the other points denuded, in order to feed the maw of 203 Metre Hill. Even the hospitals gave their contribution. December 4—bright and frosty—ushered in a fresh hell. It was now hardly a fight between men that was taking place on this accursed spot; it was a struggle of human flesh against iron and steel, against blazing petroleum, lyddite, pyroxiline and mélinite, and the stench of rotting corpses. It was the last day but one of the long-drawn agony." At noon on the 5th the Japanese gained the top of the hill, and held it against an attempt that evening to drive them off. "203 Metre

Hill was lost, and with it more than 5000 Russians."

The end was now near. On the 15th four generals, and other officers, including General Kondratenko, the most valued assistant of General Smirnoff, were holding a consultation in one of the casemates, and were killed by a 11-inch shell, which penetrated even that shelter. On the 18th Chi-kuan-shan Fort was captured; on the 28th Ehr-lung-shan was lost; on the 31st the Japanese took fortification Number 3, and on New Year's Day they won the Eagle's Nest. That day General Stössel sent a flag of truce to open negotiations for surrender. The capitulation was signed the next day. "Of 18,000 sick and wounded reported on the day the garrison marched out, 6000 only were wounded; the balance were cases of scurvy."

***E. K. Nojine,
The Truth about Port Arthur
(Dutton & Co., New York).
<https://www.gutenberg.org/ebooks/59972>***

General Stössel was subsequently ordered for trial before a military commission, on a number of charges, including disobedience of orders from the General Commanding in Manchuria, false reports to headquarters, improper interference with the commandant of the Fortress, and personal absence from most of the engagements that had taken place in and around Port Arthur. He was condemned to death, but the Tzar commuted the sentence to imprisonment for ten years. He began serving the sentence in March 1908, and was pardoned and released on the 19th of May, 1909.

{352}

JAPAN: A. D. 1904-1905 (September-March).
War with Russia: The Campaign in Manchuria.
From the Battle of Liao-Yang to the end of
the Battle of Mukden.

Early in October, a month after the escape of the Russian army from its defeat at Liao-Yang, General Kuropatkin attacked the Japanese at the Sha-ho river and fought a desperate battle with no substantial success. Extensive movements were then interrupted by the approach of winter, and the campaign was practically suspended for the next four months. "The three Japanese armies had maintained the same relative positions in which they had fought their way from Hai-Cheng northward. Kuroki's was the right, Oku's the left, and Nodzu's the center. By the middle of February, Marshal Oyama had been reënforced by Nogi's one hundred thousand veterans of Port Arthur, hereafter to be known as the fourth Japanese army, operating to the west of Oku. A somewhat mysterious fifth army, under command of General Kawamura, had been operating somewhere between Kuroki and Vladivostok, and, while its movements had not been known definitely, it had been expected to threaten General Kuropatkin's left. Both Russians and Japanese were within a few miles of Mukden, the sacred city of the Manchus. This city of half a million people lies in a plain,—really the valley of the Hun River,—with the Hun and the Liao rivers twenty to thirty miles west and southwest. Eastward are the Mao-Tien Mountains, extending along the line of the Port Arthur & Harbin Railway. The Russian and Japanese lines formed a huge bow or crescent, the Japanese to the southward, extending over a hundred miles of plains and hill from Chang-Tan eastward across the railway to Lone Tree (Putiloff) Hill, almost all the strong positions being held by the Russians." In this position of the two stupendous armies the long series of engagements known collectively as the Battle of Mukden was opened by the Japanese on the 20th of February, 1905. The center of the Russian army rested on the Sha-ho; its right wing, commanded by General Kaulbars, was distant from its left wing, commanded by General Linevitch, more than one hundred and twenty miles. The Japanese attack was begun by Kuroki, commanding their right. Crossing the Sha-ho, he "swung around the Russian left, driving it from the

mountains in the vicinity of Tie Pass to Fushun, an important fortified post (and the Russian coal depot) on the Hun River; Nogi's force had attacked General Kuropatkin from the west. Nogi had marched through the neutral zone south of the Liao River, to Sin-Min-Tun, a violation of neutrality against which the Russians and Chinese had protested. This neutral zone, however, had already been used by the Russians as a base to forward coal and supplies to their army, so the Japanese Government claimed that the neutrality had become null and void. On March 3, Nogi rolled up the Russians in flight, and his advance was not checked until his right wing had come into touch with Oku's left, only about eight miles south of Mukden. While the armies of Oku and Nodzu continued to pound the Russian center, with tremendous losses to themselves and to the enemy, Nogi's left, after a forced march of forty miles, fell upon the Russian center. Through this Oku and Nodzu drove a wedge, and, although Generals Linevitch and Kaulbars had made a desperate defense and General Rennenkampf's Cossacks had performed prodigies of valor, the Russians had found themselves (by the end of the first week in March) attacked in so many places on the north of their flanks that it had become a question with Kuropatkin, not only of retreat, but of saving large bodies of troops from being surrounded and annihilated.

"Early on the morning of March 10, the Japanese occupied Mukden, and the Russian retreat had become a rout. The next day the important fortified town of Fushun was seized by the Japanese, and thereafter the Russians, disorganized and suffering from hunger and the weather, poured northward to Tie Pass, forty miles from Mukden,—outmarched, outgeneraled, and outfought."

***American Review of Reviews,
April and May, 1905.***

"The sufferings caused by the retreat cannot be exaggerated. It must be remembered that the weather remained intensely cold

and that the arrangements for collecting the wounded were all disorganised. ... Defeat, it may be added, was wholly unexpected by the Manchurian Army, and that view was shared by the foreign attaches and the war correspondents. Whatever their opinions might be as to the possibility of General Kuropatkin marching on Liao-Yang, they felt confident that the Japanese would be unable to turn the Russians out of the positions so long and so carefully prepared. The Japanese accomplished this seemingly impossible task. ...

"Following on the disaster of Mukden, General Kuropatkin was relieved of his command, exchanging places with General Linevitch. The new Commander-in-Chief fixed his headquarters at Guntzuling, where the shattered army was re-formed."

***Lord Brooke,
An Eye Witness in Manchuria,
chapter 37.***

JAPAN: A. D. 1904-1905 (October-May).

War with Russia: The expedition of the Baltic Fleet to relieve Port Arthur.

The Dogger Bank incident.

The Seven Months Voyage.

Battle of Tsushima.

Destruction of the Fleet.

After the sea-fights of August 10-14, between Port Arthur and Vladivostok (see above, A. D. 1904, February-August) Russia had no naval force of any importance in the Pacific, and hastened preparations for sending out a fleet from the Baltic Sea.

See above,

JAPAN: A. D. 1904 (February-August).

Under the command of Admiral Rozhdestvensky, this intended

reinforcement of the defence of Port Arthur was despatched from Reval and Libau, sailing from the latter port on October 15. At the outset of its voyage, while traversing the North Sea, the Russian fleet experienced a misadventure which occasioned much excitement for a time and threatened to raise a serious question between the Russian and British governments. Briefly stated, the main facts of the case, according to evidence accepted subsequently by an International Commission of Inquiry, were these:

Before sailing from Reval, and, further, while anchored at the Skagen, making ready to pass to the North Sea, Admiral Rozhdestvensky had been warned by agents of his government that suspicious vessels were on the coast of Norway, and that he must beware of hostile undertakings, which were likely to have the form of torpedo attacks. Accordingly he sailed from the Skagen, October 20, twenty-four hours earlier than he had planned, sending off the fleet in six divisions, that which he accompanied being the last, and starting at 10 p. m.

{353}

In one of the preceding divisions a transport, by reason of defects in her engine, fell behind the cruisers which escorted her, and at 8 p. m. on October 21 was some fifty miles astern of the remainder of the fleet. She then met several Swedish vessels which she imagined to be torpedo craft, and fired on them, sending a wireless message to the Admiral that she was attacked by torpedo boats on all sides. This message led the Admiral to signal to his captains that they might expect attacks and must keep a doubly vigilant watch. At an early hour in the following morning his own immediate squadron arrived at the Dogger Bank, where, as usual, many fishing craft, mostly English, were "shooting their trawls," and doing so in a regulated way, under the direction of a fishing master or captain, who signalled with rockets to his fleet. One of the preceding divisions of the Russian armada had passed these without alarm, recognizing what they were; but Admiral Rozhdestvensky and the officers of his flagship were so

expectant of enemies that the sight of a green rocket shot into the air, and a distant glimpse of some kind of a ship which seemed to be headed straight for them, at a great rate of speed, convinced them instantly that they were in the midst of swarming foes, and they opened fire.

According to testimony, their fire was kept up for about half an hour, as they passed through the fishing fleet, one of the vessels in which was sunk, her skipper and one other man killed, while all but one of the remaining crew received wounds. Two others of the fishing craft were struck, and the hospital ship of the National Mission which attended the fleet received some damage. Ultimately it was learned that the Russians, in their wild firing, did harm to one another, so seriously that the chaplain of one of their ships received a wound from which he died.

Wild excitement was created in England by the news of this strange performance. Hurried naval preparations were made for vigorous action, if found necessary, and formal demands for apology, inquiry and compensation were presented at St. Petersburg. Nothing, however, was done rashly, and the two governments concerned agreed sensibly and quickly to an investigation of the affair by an International Commission, which gave hearings in Paris soon afterwards. The Commission found precedents in recent naval experience—even in the manoeuvres of the British navy—of a similar mistaking of fishing boats and other vessels for torpedo craft, and was able to deal gently and pacifically with the facts brought before it. It decided that the fishing fleet had committed no hostile act, and that no torpedo boat was either among them or near them, and that, consequently, the Russian Admiral was not justified in opening fire. As for his not stopping to ascertain the damage he had done, the conclusion was that enough uncertainty on the subject of danger had been raised in his mind to warrant that neglect; but a majority of the commissioners expressed regret that he had not given notice of

what had happened when he passed through the Straits. Then, as *The Naval Annual* remarked, in reviewing the incident, "diplomacy steps in and seeks to soothe military and national susceptibilities by declaring that Admiral Rozhdestvensky's 'valeur militaire' is unimpaired, and his 'sentiments d'humanité' unimpeachable."

*Naval Annual, 1905,
chapter vi.*

Between the English and Russian governments the affair was settled amicably by an indemnity of £65,000 from the latter to the fishermen who suffered.

The first halt in Rozhdestvensky's voyage was off Tangier, where he divided his fleet, sending one division, under Admiral Folkersahm, by the Suez Canal route, and leading the other in person down the Atlantic and round the Cape. They met off Madagascar on the 3d of January, and got news there of the fall of Port Arthur and, later, of the defeat of the Russian army at Mukden. The stay of the reunited fleet at Nossi Bé island, off the west coast of Madagascar, near its northern extremity, was prolonged, awaiting orders, till the 17th of March. Nothing was known of its next movements until it was seen off Singapore, April 8. Thence it proceeded to Kam-ranh Bay, in French Indo-China, where it stayed for some weeks, waiting to be joined by another squadron from the Baltic, which came under the command of Admiral Nebogatoff. This use of the waters of a neutral Power was bitterly complained of in Japan and sharply criticised elsewhere. The whole fleet resumed its northward voyage on the 14th of May, and on the 27th, in the Korean Straits, off the island of Tsushima, it was intercepted by Admiral Togo's fleet. An account of the circumstances of the interception, and of the wonderfully decisive battle which ensued, derived by Mr. George Kennan from both Russian and Japanese participants in the engagement, was published in *The Outlook* of July 29, 1905. Mr.

Kennan, who had been with the Japanese forces during the siege of Port Arthur, and had described it for *The Outlook*, obtained permission to visit some of the wounded and captured officers of Rozhdestvensky's fleet in hospital at one of the naval stations in Japan. As he spoke their language they talked with him freely, and information from both victors and vanquished is thus combined in the account from which we quote a few passages, as follows:

"When the Baltic fleet left the coast of Annam, on its way to Vladivostok, Admiral Rojesvensky [so Mr. Kennan writes the name] had no accurate information with regard to the whereabouts of the Japanese squadrons. They might all be concentrated in the Tsushima Strait, between Japan and Korea, or they might be watching, in three separate detachments, the three channels that give access to the Sea of Japan, viz, Tsushima, Tsuguru, and La Perouse. Thinking that Togo would not dare to leave wholly unguarded the two northern passages, which are nearest to Vladivostok, Rojesvensky assumed that the Japanese fleet had been divided into three sections, and that, on any route which he might select, he would probably have to deal with only one of them. ...

"Admiral Togo, however, did not divide his fleet. Anticipating, with acute prescience, the reasoning and the decision of the Russian commander, he concentrated his whole force in the Tsushima Strait, and concealed it so perfectly in unfrequented harbors at the southern end of Korea that nobody ever saw it or discovered its location. ... It seems to have had its main base near Masampho, Korea. The arrangements made for discovering the approach and reporting the movements of the Russian fleet were as comprehensive and perfect as possible.

{354}

All along the southwestern coast of Japan signal stations had been established on prominent islands and on the tops of high mountains, and every one of these 'watch-towers,' as they were called, was connected by telephone, either with Sasebo or with

Maizuru. Fast scouting ships, equipped with wireless telegraph instruments, patrolled the entrance to the strait, and on the charts carried by them, as well as by all other vessels of the Japanese fleet, the whole stretch of water between Japan and Korea had been divided into small numbered squares, so that the exact location of the enemy at any moment might be designated by a number. There was no possibility of Rojesvensky's getting through the strait unobserved unless he should be favored by dense fog.

"At five o'clock on the morning of Saturday, May 27, the scouting ship Shinano-maru reported by wireless telegraphy from the vicinity of Quelpart Island, 'Enemy's fleet sighted in square 203. He seems to be steering for the East Channel' (the passage between Tsushima Island and the Japanese mainland, which is called on English charts Krusenstern Strait). The Japanese fleet, which was all ready for sea, left its Korean base at once. Admiral Togo himself, with four battle-ships and eight armoured cruisers, took a northerly course in order to get ahead of the enemy and stop his progress at or near Oki Island (Okinoshima), while Admirals Kamimura, Uriu, Dewa, and Kataoka sailed in a southeasterly direction for the purpose of enveloping his rear. The officers last named came into touch with the Russian fleet between Iki Island and Tsushima soon after ten o'clock; but as the Japanese plan of action did not contemplate an attack at that point, they merely kept the enemy in sight and reported to Admiral Togo by wireless telegraphy the number and disposition of his ships. Rojesvensky had in all thirty-eight vessels, and they entered the strait in two parallel columns.

"The Russians, of course, saw on their left flank and in their rear the squadrons of Admirals Kamimura, Kataoka, Uriu, and Dewa, but, as these ships showed no disposition to attack, they (the Russians) were confirmed in their belief that only a part of the Japanese fleet was there, and that they should get through the strait without a serious fight. They remained

under this delusion until half past one o'clock in the afternoon, when, to their great surprise, Admiral Togo, with four battle-ships and eight armored cruisers, appeared directly ahead. ... At 1.55 p. m., when the flag-ships of the two fleets were a little more than four miles apart, Togo hoisted the following signal: 'The fate of the Empire depends upon this battle. Let every man do his best.' At two o'clock the Japanese squadrons on the flank and rear of the Russians closed in a little, and eight minutes later the fight began, Admiral Togo opening fire at a distance of about four miles. It became evident at once to the officers of the Orel that in the matter of marksmanship they were wholly outclassed. The fire of the Japanese was a little wild at first, but in a few minutes they got the range with surprising accuracy, and struck the leading battle-ships of the two Russian columns with almost every shot. Ten minutes after the fight began, a twelve-inch shell entered the forward turret of the Kniaz Suvaroff, burst there with terrific violence, exploded three or four rounds of ammunition that had just been brought up from the magazine, wrecked both guns, and blew the top of the turret completely off. In less than an hour the Russian flag-ship had lost one mast and both funnels, and had taken fire fore and aft; the Oslabya and the Alexander III. were also in flames; the Orel, the Sissoi Veliki, and the Borodino had been severely if not fatally injured; the Russian columns had been broken up and thrown into disorder; and the issue of the battle had been fully determined. In other words, the Baltic fleet had been overwhelmed and defeated, by gun-fire alone, in less than forty-five minutes. Most of the second-class Russian vessels were still in fighting condition, but the battle-ship section had lost more than half of its original efficiency, and there was no longer any doubt as to the outcome of the engagement. ... Admiral Togo says, in his detailed official report, that 'at 2.45 p. m. the result of the battle had been decided.' And in this judgment the officers of the Orel virtually coincide. They frankly admit that they were overwhelmed from the very first by the accuracy

and destructiveness of Admiral Togo's long-range gun-fire."

Though the result of the battle was made certain within its first hour, the destruction of Russian ships went on to the end of the day and through most of the night, with pursuit of those in flight continued until the 26th. Twenty-two of the Russian vessels of all classes were sunk, 6 were captured, 6 were afterwards interned in neutral ports, and two only made their way to Valdivostok. The Japanese lost 3 torpedo boats; 116 of their officers and men were killed, and 538 received wounds. The prisoners they captured numbered about 6000.

Admiral Rozhdestvensky, accused of cowardice in the battle, was tried by court-martial and acquitted by a verdict rendered in July, 1906.

JAPAN: A. D. 1904: A. D. 1904-1905.

War with Russia: Japan's greatest achievement.

Sanitation of the Army.

"Without minimizing for a moment the splendor of Japanese victories on land and sea, at Mukden, Port Arthur, Liao-Yang, or with Togo off Tsushima, in the Korean Straits (and two of these battles are among the bloodiest in history), I yet unhesitatingly assert that Japan's greatest conquests have been in the humanities of war, in the stopping of the needless sacrifice of life by preventable diseases. This dreadful and unnecessary waste of life, especially in conflicts between so-called civilized and Anglo-Saxon races, is one of the most ghastly propositions of the age. The Japanese have gone a long way toward eliminating it. ...

"Longmore's tables, which are accepted as the most reliable statistics of war, and which are based on the records of battles for the past two hundred years, show that there has rarely been a conflict of any great duration in which at least four men have not perished from disease for every one from

bullets. In the Russo-Turkish War, 80,000 men died from disease and 20,000 from wounds. In the Crimean campaign, it is asserted on eminent French authority that in six months the allied forces lost 50,000 soldiers from disease and only 2,000 from casualties.

{355}

In the French campaign in Madagascar, in 1894, of the 14,000 men sent to the front 29 were killed in action and 7,000 from disease, most of which was preventable. In our Spanish American War, in 1898, in a campaign the actual hostilities of which lasted six weeks, the deaths from casualties, as given me by the surgeon-general of the United States army, last week, were 293, while those from disease amounted to 3,681, or nearly 14 to 1.

"Compare these frightful figures with the record of killed, wounded, and sick in the Japanese army from February, 1904, to May, 1905, as furnished me by Minister of War General Terauchi, in Tokio, in August last. There were killed on the field 43,892, or 7.32 per cent. of the entire army in the field; there were wounded 145,527, or 24.27 percent.; there died of wounds 9,054, or 1.51 percent.; there died from sickness and disease, including contagious cases, 11,992, or about 2 per cent. of the army. In other words, the total number of deaths from casualties and wounds amounted to 52,946, or nearly 9 per cent, of the army, while the total deaths from sickness amounted to 11,992, or 2 per cent. of the army. This record is unparalleled and unapproached in the history of warfare. How did the Japanese accomplish it? In three preeminently fundamental ways. First, thorough preparation and organization for war, such as was never before made in history; second, through the simple, non-irritating, easily digested ration furnished the troops; and third, because of the brilliant part played by the members of the medical profession in the application of practical sanitation and the stamping out of preventable disease in the army, thereby saving its great hosts for the legitimate purpose of

war, the defeating of the enemy in the field. ...

"She organized her medical department on broad, generous lines, and gave its representatives the rank and power their great responsibilities merited, recognizing that they had to deal with a foe which history has shown has killed 80 percent. of the total mortality in other wars. She even had the temerity (strange as it may seem to an American or an English army official) to grade her medical men as high as the officers of the line, who combat the enemy who kills only 20 per cent., and to accord them equal authority, except, of course, in the emergency of battle, when all authority devolves, as it should, on the officers of the line. In her home land she organized the most splendid system of hospitals that has ever been devised for the treatment of sick and wounded, and with her army at the front she put into execution the most elaborate and effective system of sanitation that has ever been practised in war. Upon the declaration of war, she was prepared to house, scientifically treat, and tenderly care for 25,000 wounded in Japan alone, and as the war progressed the hospital capacity was rapidly increased, so that one and one-half years after its commencement, or on the sixth day of July, 1905, the twelve military home hospitals possessed a normal capacity of 58,261."

***Major Louis L. Seaman, M. D.,
Lessons for America in the Japanese Medical Service
(American Review of Reviews November, 1905).***

JAPAN: A. D. 1904-1905. War with Russia:
Casualties of the entire war on the Japanese side.

The following is an official Japanese statement of the casualties of the entire war on the Japanese side:

"Killed in battle. 47,387

Died of wounds	11,500
Wounded, but recovered	161,925

Total killed and wounded
220,812

Died of sickness	27,158
Sick, but recovered	209,065

Total sick
236,223

Total of killed,
wounded, and sick
457,035

Total of fatal casualties
86,045

"These figures relate to the field only, not including cases among the troops in Japan or Formosa, and they may be slightly altered when all the reports of hospitals are compiled. Of those who succumbed to disease nearly three-fourths died in the field and one-fourth after reaching home.

"To find the total number of killed in battle and patients treated the following additions must be made:

Total of killed, wounded, and sick in the field	457,035
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Patients treated at home	97,850
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Russian prisoner patients	77,803
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Grand total	632,688
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"The above figures do not include slight cases remaining with the Japanese regiments. In April, 1906, when these figures were published, the Japanese missing had been reduced to 3,000.

"Comparative statement of the result of treatment, by wars:

Wounded treated in Hospital.		Sick and wounded treated in Hospital.	
Recovered completely. Per cent.	Died. Per cent.	Recovered completely. Per cent.	Died. Per cent.
Chinese-Japanese war 63.23	7.49	50.94	14.24
Russo-Japanese war 71.58	8.83	54.81	7.65

"The difference between each of the totals and 100 represents men incapacitated for active service.

"Comparative statement of cases and deaths from sickness and wounds, by wars:

of	Died of	Wounded.	Sick.	Died
Wounds.	Disease.			
Chinese-Japanese		1	6.93	1
12.09				
North China		1	4.37	1
1.97				
Russo-Japanese		1	1.07	1
0.46				

"Comparative statement of percentage of sickness in total number of troops in field, by war:

Percentage of deaths	Percentage of	
sickness for	sickness for all	from
troops engaged.	troops engaged.	all
Chinese-Japanese	59.20	
9.29		
North China war	34.88	
4.33		

Russo - Japanese 36 . 04
2 . 99

"The average monthly percentage of sickness during the twenty-one months of the Russo-Japanese war was 8.69, while the average monthly percentage for 1902, which is said to have had an exceptionally good medical record, was 10.21."

***Charles Lynch,
Report (United States War Department,
Reports of Military Observers ...
during the Russo-Japanese War, part 4).***

{356}

JAPAN: A. D. 1904-1905.

General Consequences in Europe of the Russo-Japanese War.

See (in this Volume)

EUROPE: A. D. 1904-1909.

JAPAN: A. D. 1904-1905.

Conventions with Korea, establishing a Protectorate over that Empire, with Control of its Finances and its Foreign Relations.

See (in this Volume)

KOREA: A. D. 1904-1905.

JAPAN: A. D. 1904-1905.

The Red Cross Society.

See (in this Volume)

RED CROSS SOCIETY.

JAPAN: A. D. 1905.

Report on treatment of the Opium Problem in Formosa.

See (in this Volume)
OPIUM PROBLEM.

JAPAN: A. D. 1905 (June-October).

Ending of the war with Russia.

Mediation offered by the President of the United States
and accepted.

Negotiation and Conclusion of the Peace Treaty of Portsmouth.

In the third article of the Convention for the Pacific Settlement of International Disputes agreed to and signed at the First International Peace Conference, at The Hague, in 1898, it was recommended, "in case of serious disagreement or conflict," "that one or more Powers, strangers to the dispute, should on their own initiative, and as far as circumstances may allow, offer their good offices or mediation to the States at variance." To this recommendation was added the declaration that "Powers, strangers to the dispute, have the right to offer good offices or mediation, even during the course of hostilities"; and "that the exercise of this right can never be regarded by one or the other of the parties in conflict as an unfriendly act."

The first important action on this recommendation was taken by the President of the United States, Mr. Roosevelt, on the 8th of June, 1905, when he directed a communication from the then acting Secretary of State, Mr. Loomis, to be dispatched by telegraph to the Ambassadors of the United States at Tokyo and St. Petersburg, identically the same to each, and to be presented by the latter to the Governments of Russia and Japan. The communication was in the following words:

"The President feels that the time has come when, in the

interest of all mankind, he must endeavor to see if it is not possible to bring to an end the terrible and lamentable conflict now being waged. With both Russia and Japan the United States has inherited ties of friendship and good will. It hopes for the prosperity and welfare of each, and it feels that the progress of the world is set back by the war between these two great nations. The President accordingly urges the Russian and Japanese Governments, not only for their own sakes, but in the interest of the whole civilized world, to open direct negotiations for peace with one another. The President suggests that these peace negotiations be conducted directly and exclusively between the belligerents—in other words, that there may be a meeting of Russian and Japanese plenipotentiaries or delegates without any intermediary, in order to see if it is not possible for these representatives of the two powers to agree to terms of peace. The President earnestly asks that the Russian Government do now agree to such meeting, and is asking the Japanese Government likewise to agree. While the President does not feel that any intermediary should be called in in respect to the peace negotiations themselves, he is entirely willing to do what he properly can if the two powers concerned feel that his services will be of aid in arranging the preliminaries as to the time and place of meeting; but if even these preliminaries can be arranged directly between the two powers, or in any other way, the President will be glad, as his sole purpose is to bring about a meeting which the whole civilized world will pray may result in peace."

The despatch to Tokyo was delayed in transmission and did not reach Minister Griscom until the evening of the 9th, but was delivered to the officials of the foreign office the same night, and the following reply from Baron Komura was handed to Mr. Griscom at 1 o'clock on the morning of the 10th:

"The Imperial Government have given to the suggestion of the President of the United States, embodied in the note handed to

the minister for foreign affairs by the American minister on the 9th instant, the very serious consideration to which, because of its source and its import, it is justly entitled. Desiring in the interest of the world as well as in the interest of Japan the reestablishment of peace with Russia, on terms and conditions that will fully guarantee its stability, the Imperial Government will, in response to the suggestion of the President, appoint plenipotentiaries of Japan to meet plenipotentiaries of Russia at such time and place as may be found to be mutually agreeable and convenient, for the purpose of negotiating and concluding terms of peace directly and exclusively between the two belligerent powers."

At St. Petersburg, the reply from Count Lamsdorff, Minister for Foreign Affairs, was given to Ambassador Meyer on the 12th as follows:

"I have not failed to place before my august master the telegraphic communication which your excellency has been pleased to transmit to me under instructions of your government. His Majesty, much moved by the sentiments expressed by the President, is glad to find in it a new proof of the traditional friendship which unites Russia to the United States of America, as well as an evidence of the high value which Mr. Roosevelt attaches, even as His Imperial Majesty does, to that universal peace so essential to the welfare and progress of all humanity. With regard to the eventual meeting of Russian and Japanese plenipotentiaries, 'in order to see if it is not possible for the two powers to agree to terms of peace,' the Imperial Government has no objection in principle to this endeavor if the Japanese Government expresses a like desire."

This Russian response seemed somewhat equivocal to the Japanese Government, and Foreign Minister Komura asked for an assurance as to the powers to be conferred on the peace plenipotentiaries from St. Petersburg. How the assurance was

obtained has not been made known to the public; but Japan received it soon through President Roosevelt, and Baron Komura requested Mr. Griscom to "assure the President that the attitude taken by the Japanese Government regarding the nature of the powers to be conferred on the peace plenipotentiaries was not in any degree inspired by a desire to raise difficulties or delay negotiations.

{357}

Experience has taught the necessity of caution, and the Japanese Government thought that by securing at the outset a common understanding upon this subject they would preclude possibility of any difficulty arising in the initial stage of negotiations and would smooth the way for the real work of the negotiators; but having entire confidence in the wisdom of the President, the Japanese Government accepts his interpretation of the intention of Russia and will without further question appoint plenipotentiaries with full powers to negotiate and conclude terms of peace."

In consultations as to the place of meeting, Russia suggested Paris and Japan proposed Chefu, but objections were raised to both, as well as to The Hague and Geneva, recommended by President Roosevelt. Japan wanted it nowhere in Europe and Russia would have it nowhere in the East; so Washington became the chosen point. But, when one of the first ten days of August became the appointed time of assembly for the negotiation, the probable heat of Washington was forbidding, and Portsmouth, New Hampshire, where the Government of the United States possesses an island domain of its own, for navy-yard uses, was finally fixed on for the most important peace-parley that has taken place in the world within a century, at the least.

The plenipotentiaries commissioned by Japan were Baron Komura Iutaro and Mr. Takahira Kogoro, then Japanese Minister at Washington. Mr. Nelidoff, Russian Ambassador at Paris, was named in the first instance for chief plenipotentiary by the

Tzar, but illness prevented his serving. Mr. Nicholas Mouravieff, Ambassador at Rome, was then appointed, but became equally disabled in health, and M. Sergius Witte took his place, with Baron Roman Rosen, Russian Ambassador at Washington, associated in the mission. On Saturday, the 5th of August, on board the Government yacht *Mayflower*, at Oyster Bay, the summer residence of President Roosevelt, the four plenipotentiaries, attended by members of their respective suites, were received by the President, introduced to each other, and entertained at a lunch. Thence they were conveyed, by separate vessels, first to Newport, where Sunday was spent, and afterwards to Portsmouth. Their conference was opened on Wednesday, the 9th, and the resulting Treaty of Peace was signed by the negotiators, September 5th.

At the outset of their communications with each other the differences of mind seemed insurmountable. How they were brought to agreement has been told by two writers who had better opportunities, perhaps, for knowing the inner circumstances of the negotiation than any other persons outside of the plenipotentiaries themselves. One of these was Dr. Frederick de Martens, the eminent Russian Professor of International Law, who came as a special consulting delegate with M. Witte. In an article on "The Portsmouth Peace Conference," published in *The North American Review* of November, 1905, he wrote:

"During three long weeks the *pourparlers* between the representatives of the two Powers seemed to show the absolute impossibility of attaining the desired object, that is, peace. There were especially two obstacles in the way—the Japanese demands that Russia should cede Saghalin and that Russia should pay Japan a war indemnity. These two conditions Russia categorically rejected, and the failure of the Conference seemed inevitable. Then it was that the President of the United States, again basing his action on the principles of the Hague Convention, considered himself once more justified

in intervening between the two disputing nations. At first, Mr. Roosevelt proposed that a Commission composed of neutrals, whose decision however, would not be binding on the contending parties, should fix the amount of the sum that Russia should pay to Japan. But this proposal was immediately abandoned because of its evidently impracticable nature. The second intervention of the President was more effective and happy. Japan was now to be asked to withdraw her demand for an indemnity, and the Tsar, who desired sincerely to see the unfortunate war ended, was to consent to the cession of the southern portion of the island of Saghalin. It was at the sitting of August 29th that an accord, based on these mutual concessions, was brought about; and, during the six days that followed, the stipulations of the definitive treaty of peace were drawn up by a commission named for that purpose. At last, on September 5th, the treaty was concluded, and a battery of artillery, in front of the building where the sittings had been held, fired a salute of nineteen guns in honor of the great event."

***F. de Martens,
The Portsmouth Peace Conference
(North American Review, November, 1905).***

To the same effect Dr. E. J. Dillon, the well known publicist, who had been an intermediary in some of the preliminary unofficial diplomacy, wrote in ***The Contemporary Review*** of October as follows:

"The Peace of Portsmouth is the outcome of rare moral courage meeting, assailing and worsting a combination of forces, the classification and labelling of which had best be left to the future historian and biographer who can appreciate, without bias and blame, without apprehension. The first man to display that unwonted moral courage was Theodore Roosevelt, whose influence for good on the living and working of nations is a beneficent force to which the world is beginning to look as to

some permanent institution. It is not too much to say that if Japan and Russia are at peace today, if countless human beings doomed seemingly until a few weeks ago to a terrible death on the battlefield are now about to return to their homes and families and set about building up instead of pulling down, the credit for this welcome change in international relations is due in the first place to the President of the United States. ...

"There was hardly a man in Russia acquainted with the elements of the problem who considered Mr. Roosevelt's invitation to a peace conference as other than a voice crying in the wilderness. He had felt his way some months before and convinced himself that it then led nowhither. Soon afterwards I was myself authorised to put forth a feeler and inquire whether a war indemnity formed part of Japan's irreducible minimum. And the result of that inquiry was that hostilities were allowed to take their course.

{358}

"After the Battle of Mukden Mr. Roosevelt again returned to the attack, moving slowly and very cautiously, but creating his opportunity as well as utilising it, advising as well as questioning, exhorting almost as much as he argued. With Japan, whose statesmen he knew well, and with the mainsprings of whose action he was perfectly familiar, he experienced no difficulty. What Nippon said, she really meant; what she promised—but not one iota more—she religiously fulfilled; and both her declarations and her promises apparently flowed from a desire to do what every man in the forum of his own conscience would term the right thing. Probably never before in human history has the world's cultivated sense of what is fair and just been taken by any nation, Christian or non-Christian, as its own standard of ethics, its own rule of action regardless of immediate consequences. ...

"And Japan's capacity and readiness to sacrifice the less to the greater, the material to the moral, was, so to say, the fulcrum on which Mr. Roosevelt rested his lever. All the force of his endeavours was concentrated here, all his fund of optimism was derived from this source.

"But it takes two to make peace as well as to make war. And the President's great and greatest difficulty was to persuade Russia, not indeed to imitate Japan's example, but to consult what to outsiders appeared to be her own national interest and to make peace on acceptable terms."

***E. J. Dillon,
The Story of the Peace Negotiations
(Contemporary Review, October, 1905).***

The Treaty of Peace thus happily agreed upon at Portsmouth was duly ratified by the Emperors of Russia and Japan, at St. Petersburg and at Tokyo simultaneously, on the 14th of October, 1905. The following is the text of the Treaty in full:

JAPAN:

The treaty of peace signed at Portsmouth.

By the helping grace of God, we, Nicholas II, Emperor and Autocrat of all the Russias, etc., hereby declare that, in consequence of a mutual agreement between us and His Majesty, the Emperor of Japan, our plenipotentiaries concluded and signed at Portsmouth, August 23, 1905, a treaty of peace which, word for word, reads as follows:

His Majesty, the Emperor of all the Russias, on the one hand, and His Majesty, the Emperor of Japan, on the other hand, being animated by the desire to restore the benefits of peace for their countries and their peoples, have decided to conclude a treaty of peace and have appointed for this purpose

their plenipotentiaries, to wit:

His Majesty the Emperor of Russia—

His Excellency, Mr. Sergius Witte, his secretary of state and president of the committee of ministers of the Empire of Russia, and

His Excellency, Baron Roman Rosen, master of the Imperial Court of Russia and his ambassador extraordinary and plenipotentiary to the United States of America:

And his Majesty, the Emperor of Japan—

His Excellency, Baron Komura Iutaro, Iusammi, knight of the Imperial Order of the Rising Sun, his minister of foreign affairs, and His Excellency, Mr. Takahira Kogoro, Iusammi, knight of the Imperial Order of the Sacred Treasure, his envoy extraordinary and minister plenipotentiary to the United States of America;

Who, after having exchanged their full powers, found in good and due form, concluded the following articles:

Article I.

There shall be in the future peace and friendship between Their Majesties the Emperor of all the Russias and the Emperor of Japan, as well as between their respective nations and subjects.

Article II.

The Imperial Government of Russia, recognizing that Japan has predominant political, military, and economic interests in Korea, agrees not to interfere or place obstacles in the way of any measure of direction, protection, and supervision which the Imperial Government of Japan may deem necessary to adopt in Korea.

It is agreed that Russian subjects in Korea shall be treated in exactly the same manner as the citizens of other foreign countries; that is, that they shall be placed on the same footing as the citizens of the most-favored nation.

It is likewise agreed that, in order to avoid any cause of misunderstanding, the two high contracting parties shall refrain from adopting, on the Russo-Korean frontier, any military measures which might menace the security of the Russian or Korean territory.

Article III.

Russia and Japan mutually engage:

1. To completely and simultaneously evacuate Manchuria, with the exception of the territory over which the lease of the peninsula of Liao tung extends, in accordance with the provisions of additional Article I annexed to this treaty, and
2. To entirely and completely restore to the exclusive administration of China all parts of Manchuria now occupied by Russian and Japanese troops, or which are under their control, with the exception of the above-mentioned territory.

The Imperial Government of Russia declares that it has no territorial advantages or preferential or exclusive concessions in Manchuria of such a nature as to impair the sovereignty of China or which are incompatible with the principle of equal opportunity.

Article IV.

Russia and Japan mutually pledge themselves not to place any obstacle in the way of general measures which apply equally to all nations and which China might adopt for the development of commerce and industry in Manchuria.

Article V.

The Imperial Government of Russia cedes to the Imperial Government of Japan, with the consent of the Government of China, the lease of Port Arthur, of Talien, and of the adjacent territories and territorial waters, as well as the rights, privileges, and concessions connected with this lease or forming part thereof, and it likewise cedes to the Imperial Government of Japan all the public works and property within the territory over which the above-mentioned lease extends.

The high contracting parties mutually engage to obtain from the Government of China the consent mentioned in the foregoing clause.

The Imperial Government of Japan gives on its part the assurance that the property rights of Russian subjects within the above-mentioned territory shall be absolutely respected.

{359}

Article VI.

The Imperial Government of Russia obligates itself to yield to the Imperial Government of Japan, without compensation and with the consent of the Chinese Government, the Chan-chun (Kwan-Chen-Tsi) and Port Arthur Railroad and all its branches, with all the rights, privileges, and property thereunto belonging within this region, as well as all the coal mines in said region belonging to this railroad or being operated for its benefit.

The two high contracting parties mutually pledge themselves to obtain from the Chinese Government the consent mentioned in the foregoing clause.

Article VII.

Russia and Japan agree to operate their respective railroads in Manchuria for commercial and industrial purposes

exclusively, but by no means for strategic purposes. It is agreed that this restriction does not apply to the railroads within the territory covered by the lease of the Liao tung peninsula.

Article VIII.

The Imperial Governments of Russia and Japan, with a view to favoring and facilitating relations and traffic, shall conclude, as soon as possible, a separate convention to govern their operations of repair on the railroads in Manchuria.

Article IX.

The Imperial Government of Russia cedes to the Imperial Government of Japan, in perpetuity and full sovereignty, the southern part of the island of Saghalin, and all the islands adjacent thereto, as well as all the public works and property there situated. The fiftieth parallel of north latitude is adopted as the limit of the ceded territory. The exact boundary line of this territory shall be determined in accordance with the provisions of additional Article II annexed to this treaty.

Japan and Russia mutually agree not to construct within their respective possessions on the island of Saghalin, and the islands adjacent thereto, any fortification or similar military work. They likewise mutually agree not to adopt any military measures which might hinder the free navigation of the Straits of La Perouse and Tartary.

Article X.

The right is reserved to Russian subjects inhabiting the territory ceded to Japan to sell their real property and return to their country; however, if they prefer to remain in the ceded territory, they shall be guarded and protected in the full enjoyment of their property rights and the exercise of their industries, provided they submit to the laws and jurisdiction of Japan. Japan shall have perfect liberty to

withdraw the right of residence in this territory from all inhabitants laboring under political or administrative incapacity, or to deport them from this territory. It pledges itself, however, to fully respect the property rights of these inhabitants.

Article XI.

Russia obligates itself to reach an understanding with Japan in order to grant to Japanese subjects fishing rights along the coast of the Russian possessions in the Seas of Japan, Okhotsk, and Bering. It is agreed that the above-mentioned obligation shall not impair the rights already belonging to Russian or foreign subjects in these regions.

Article XII.

The treaty of commerce and navigation between Russia and Japan having been annulled by the war, the Imperial Governments of Russia and Japan agree to adopt as a basis for their commercial relations, until the conclusion of a new treaty of commerce and navigation on the basis of the treaty in force before the present war, the system of reciprocity on the principle of the most favored nation, including import and export tariffs, custom-house formalities, transit and tonnage dues, and the admission and treatment of the agents, subjects, and vessels of one country in the territory of the other.

Article XIII.

As soon as possible, after the present treaty takes effect, all prisoners of war shall be mutually returned. The Imperial Governments of Russia and Japan shall each appoint a special commissioner to take charge of the prisoners. All prisoners in the custody of one of the governments shall be delivered to the commissioner of the other government or to his duly authorized representative, who shall receive them in such number and in such suitable ports of the surrendering nation as the latter shall notify in advance to the commissioner of the receiving nation.

The Governments of Russia and Japan shall present to each other, as soon as possible after the delivery of the prisoners has been completed, a verified account of the direct expenditures made by them respectively for the care and maintenance of the prisoners from the date of capture or surrender until the date of their death or return. Russia agrees to refund to Japan, as soon as possible after the exchange of these accounts, as above stipulated, the difference between the actual amount thus spent by Japan and the actual amount likewise expended by Russia.

Article XIV.

The present treaty shall be ratified by Their Majesties the Emperor of all the Russias and the Emperor of Japan. This ratification shall, within the shortest possible time and at all events not later than fifty days from the date of the signature of the treaty, be notified to the Imperial Governments of Russia and Japan, respectively, through the ambassador of the United States of America at St. Petersburg and the minister of France at Tokyo, and from and after the date of the last of these notifications this treaty shall enter into full force in all its parts. The formal exchange of the ratifications shall take place at Washington as soon as possible.

Article XV.

The present treaty shall be signed in duplicate, in the French and English languages. The two texts are absolutely alike; however, in case of difference of interpretation the French text shall prevail.

In witness whereof the respective plenipotentiaries have signed the present treaty of peace and affixed thereto their seals.

Done at Portsmouth, New Hampshire, the twenty-third day of

August (fifth of September) of the year one thousand nine hundred and five, corresponding to the fifth day of the ninth month of the thirty-eighth year of Meiji.

IUTARO KOMURA. [L. S.]
K. TAKAHIRA. [L. S.]
SERGIUS WITTE. [L. S.]
ROSEN. [L. S.]

In conformity with the provisions of Articles II and IX of the treaty of peace between Russia and Japan under this date, the undersigned plenipotentiaries have concluded the following additional articles:

{360}

I. To Article III:

The Imperial Governments of Russia and Japan mutually agree to begin the withdrawal of their military forces from the territory of Manchuria simultaneously and immediately after the entrance into force of the treaty of peace; and within a period of eighteen months from this date the armies of the two powers shall be entirely withdrawn from Manchuria, with the exception of the leased territory of the peninsula of Liao-tung.

The forces of the two powers occupying advanced positions shall be withdrawn first.

The high contracting parties reserve the right to maintain guards for the protection of their respective railroad lines in Manchuria.

The number of these guards shall not exceed 15 men per kilometer, and within the limit of this maximum number the commanders of the Russian and Japanese armies shall, by mutual

agreement, fix the number of guards who are to be employed, this number being as low as possible and in accordance with actual requirements. The commanders of the Russian and Japanese forces in Manchuria shall reach an understanding regarding all the details connected with the evacuation, in conformity with the principles herein above set forth, and shall, by mutual agreement, adopt the measures necessary to carry out the evacuation as soon as possible and at all events within a period not exceeding eighteen months.

II. To Article IX:

As soon as possible after the present treaty takes effect, a boundary commission composed of an equal number of members appointed respectively by the two high contracting parties shall mark on the spot and in a permanent manner the exact line between the Russian and Japanese possessions on the island of Saghalin. The commission shall be obliged, as far as topographical conditions permit, to follow the 50th parallel of north latitude for the line of demarcation, and in case any deviations from this line are found necessary at certain points compensation shall be made therefor by making corresponding deviations at other points. It shall also be the duty of said commission to prepare a list and description of the adjacent islands which are comprised within the cession, and finally the commission shall prepare and sign maps showing the boundaries of the ceded territory. The labors of the commission shall be submitted to the approval of the high contracting parties.

The additional articles mentioned hereinabove shall be considered as being ratified by the ratification of the treaty of peace, to which they are annexed.

Portsmouth, August 23 (September 5), 1905, corresponding to the 5th day, 9th month and 28th year of Meiji.

IUTARO KOMURA.
K. TAKAHIRA.
SERGIUS WITTE.
ROSEN.

The ratification by the Tsar was in the following terms:

Therefore, after mature consideration of this treaty and the two additional articles, we approved, confirmed, and ratified them, and do hereby approve, confirm, and ratify them in their full purport, pledging our imperial word for ourselves, our successors, and our heirs, that everything set forth in the above-mentioned acts shall be inviolably observed. In witness whereof we, having signed this, our imperial ratification, with our own hand, have ordered affixed thereto our imperial seal.

Given at Peterhoff, the first day of October, in the year of our Lord one thousand nine hundred and five and of our reign the eleventh.

On the original is written in His Imperial Majesty's own hand:

L. S. "NICHOLAS."

countersigned

COUNT LAMSDORFF,
Secretary of State, Minister of Foreign Affairs.

JAPAN: A. D. 1905 (August).

New Defensive Agreement between Great Britain and Japan.

On the 12th of August, 1905, three days after the plenipotentiaries of Japan and Russia had held their first meeting at Portsmouth and opened the negotiations which resulted in a Treaty of Peace, a new Agreement of defensive

alliance between Japan and Great Britain, replacing that of three years before, was signed at London, but not made public until the 6th of September, the day following the conclusion of the Russo-Japanese Treaty of Peace.

See, above,
JAPAN: A. D. 1902.

It was then communicated to the Governments of Russia and France, through the medium of the British Ambassadors at St. Petersburg and Paris, with an accompanying explanatory despatch from Lord Lansdowne, as follows:

"Sir, I inclose, for your Excellency's information, a copy of a new Agreement concluded between His Majesty's Government and that of Japan in substitution for that of the 30th January, 1902. You will take an early opportunity of communicating the new Agreement to the Russian Government. It was signed on the 12th August, and you will explain that it would have been immediately made public but for the fact that negotiations had at that time already commenced between Russia and Japan, and that the publication of such a document whilst those negotiations were still in progress would obviously have been improper and inopportune.

"The Russian Government will, I trust, recognize that the new Agreement is an international instrument to which no exception can be taken by any of the Powers interested in the affairs of the Far East. You should call special attention to the objects mentioned in the preamble as those by which the policy of the Contracting Parties is inspired. His Majesty's Government believe that they may count upon the good-will and support of all the Powers in endeavouring to maintain peace in Eastern Asia, and in seeking to uphold the integrity and independence of the Chinese Empire and the principle of equal opportunities for the commerce and industry of all nations in that country.

"On the other hand, the special interests of the Contracting Parties are of a kind upon which they are fully entitled to insist, and the announcement that those interests must be safeguarded is one which can create no surprise, and need give rise to no misgivings.

"I call your especial attention to the wording of Article II, which lays down distinctly that it is only in the case of an unprovoked attack made on one of the Contracting Parties by another Power or Powers, and when that Party is defending its territorial rights and special interests from aggressive action, that the other Party is bound to come to its assistance.

{361}

"Article III, dealing with the question of Corea, is deserving of especial attention. It recognizes in the clearest terms the paramount position which Japan at this moment occupies and must henceforth occupy in Corea, and her right to take any measures which she may find necessary for the protection of her political, military, and economic interests in that country. It is, however, expressly provided that such measures must not be contrary to the principle of equal opportunities for the commerce and industry of other nations. The new Treaty no doubt differs at this point conspicuously from that of 1902. It has, however, become evident that Corea, owing to its close proximity to the Japanese Empire and its inability to stand alone, must fall under the control and tutelage of Japan.

"His Majesty's Government observe with satisfaction that this point was readily conceded by Russia in the Treaty of Peace recently concluded with Japan, and they have every reason to believe that similar views are held by other Powers with regard to the relations which should subsist between Japan and Corea.

"His Majesty's Government venture to anticipate that the alliance thus concluded, designed as it is with objects which are purely peaceful and for the protection of rights and interests the validity of which cannot be contested, will be regarded with approval by the Government to which you are accredited. They are justified in believing that its conclusion may not have been without effect in facilitating the settlement by which the war has been so happily brought to an end, and they earnestly trust that it may, for many years to come, be instrumental in securing the peace of the world in those regions which come within its scope.

JAPAN:

Agreement between the United Kingdom and Japan.

"PREAMBLE.

The Governments of Great Britain and Japan, being desirous of replacing the agreement concluded between them on the 30th of January, 1902, by fresh stipulations, have agreed upon the following articles, which have for their object—

(a) The consolidation and maintenance of the general peace in the regions of Eastern Asia and of India.

(b) The preservation of the common interests of all powers in China, by insuring the independence and integrity of the Chinese Empire and the principle of equal opportunities for the commerce and industry of all nations in China.

(c) The maintenance of the territorial rights of the high contracting parties in the regions of eastern Asia and of India, and the defense of their special interests in the said regions.

"ARTICLE I.

It is agreed that whenever in the opinion of either Great

Britain or Japan any of the rights and interests referred to in the preamble of this agreement are in jeopardy, the two governments will communicate with one another fully and frankly and will consider in common the measures which should be taken to safeguard those menaced rights or interests.

"ARTICLE II.

If by reason of unprovoked attack or aggressive action, wherever arising, on the part of any other power or powers either contracting party should be involved in war in defense of its territorial rights or special interests mentioned in the preamble of this agreement, the other contracting party will at once come to the assistance of its ally and will conduct the war in common and make peace in mutual agreement with it.

"ARTICLE III.

Japan possessing paramount political, military, and economic interests in Korea, Great Britain recognizes the right of Japan to take such measures of guidance, control, and protection in Korea as she may deem proper and necessary to safeguard and advance those interests, provided always that such measures are not contrary to the principle of equal opportunities for the commerce and industry of all nations.

"ARTICLE IV.

Great Britain having a special interest in all that concerns the security of the Indian frontier, Japan recognizes her right to take such measures in the proximity of that frontier as she may find necessary for safeguarding her Indian possessions.

"ARTICLE V.

The high contracting parties agree that neither of them will without consulting the other enter into separate arrangements with another power to the prejudice of the objects described in the preamble of this agreement.

"ARTICLE VI.

As regards the present war between Japan and Russia, Great Britain will continue to maintain strict neutrality unless some other power or powers should join in hostilities against Japan, in which case Great Britain will come to the assistance of Japan and will conduct the war in common and make peace in mutual agreement with Japan.

"ARTICLE VII.

The conditions under which armed assistance shall be afforded by either power to the other in the circumstances mentioned in the present agreement, and the means by which such assistance is to be made available, will be arranged by the naval and military authorities of the contracting parties, who will from time to time consult one another fully and freely upon all questions of mutual interest.

"ARTICLE VIII.

The present agreement shall, subject to the provisions of Article VI., come into effect immediately after the date of its signature and remain in force for ten years from that date. In case neither of the high contracting parties should have notified twelve months before the expiration of the said ten years the intention of terminating it, it shall remain binding until the expiration of one year from the day on which either of the high contracting parties shall have denounced it. But if when the date fixed for its expiration arrives either ally is actually engaged in war the alliance shall *ipso facto* continue until peace is concluded."

JAPAN: A. D. 1905 (December).

Treaty with China relative to Manchuria.

See (in this Volume)

CHINA: A. D. 1905 (DECEMBER).

JAPAN: A. D. 1905-1909.

Korea under Japanese Control.

The rule of Prince Ito.

Insurrection and its suppression.

Constructive and Reformatory Work.

See (in this Volume)

KOREA: A. D. 1905-1909.

JAPAN: A. D. 1905-1909.

Disputes with China.

The Fa-ku-menn Railway and

the Antung-Mukden Railway Questions.

Settlement of the latter by Japanese Ultimatum.

See (in this Volume)

CHINA: A. D. 1905-1909.

JAPAN: A. D. 1906.

Chinese Students in the Country.

See (in this Volume)

EDUCATION: CHINA: A. D. 1906.

{362}

JAPAN: A. D. 1906.

Resentment at Segregation of Oriental Children in
San Francisco Schools.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

JAPAN: A. D. 1907.

Riotous attacks on Japanese laborers in British Columbia
and the State of Washington.

See (in this Volume)
RACE PROBLEMS: CANADA.

JAPAN: A. D. 1907 (June).

Treaty with France concerning affairs in the East.

A treaty between the governments of Japan and France was signed on the 10th of June, 1907, according to which France recognizes the rights of Japan in Korea and her special interests in Manchuria, and Japan, on her side, promises not to interfere with French possessions in Siam and Indo-China.

JAPAN: A. D. 1908 (May).

Slender victory of the Saionji Ministry in the Parliamentary Elections.

Parliamentary elections in May, 1908, gave the Ministry a bare probability of support by combinations of the party of Prince Ito—the Rikken Seiyu-kai—with some of the other partly sympathetic groups. The maintenance of the prudent policy of Government since the close of the great war, against the Jingo element, was left somewhat precarious.

JAPAN: A. D. 1908 (November).

Exchange of Notes with the United States, embodying an important Declaration of Common Policy in the East.

On the 30th of November, 1908, distinct form was given to a common understanding between Japan and the United States, as to their agreement in purposes and policy touching affairs in the East. The form was not that of a treaty, but of a simple Declaration, identical in notes exchanged at Washington between Secretary Root and Ambassador Takahira. The following is the text of the Declaration:

"I.

It is the wish of the two Governments to encourage the free

and peaceful development of their commerce on the Pacific Ocean.

"II.

The policy of both Governments, uninfluenced by any aggressive tendencies, is directed to the maintenance of the existing *status quo* in the region above mentioned, and to the defense of the principle of equal opportunity for commerce and industry in China.

"III.

They are accordingly firmly resolved reciprocally to respect the territorial possessions belonging to each other in said region.

"IV.

They are also determined to preserve the common interests of all Powers in China by supporting, by all pacific means at their disposal, the independence and integrity of China and the principle of equal opportunity for commerce and industry of all nations in that Empire.

"V.

Should any event occur threatening the *status quo* as above described, or the principle of equal opportunity as above defined, it remains for the two Governments to communicate with each other, in order to arrive at an understanding as to what measures they may consider it useful to take.

JAPAN: A. D. 1908-1909.

Suppression of Race-track Gambling.

See (in this Volume)
GAMBLING.

JAPAN: A. D. 1909.

Material Development of the Country.

"The mileage of Japanese railways, now over 5,000 miles, has been quadrupled within 20 years—without counting the Korean and South Manchurian railways, which are owned by Japanese companies. The development of posts, telegraphs, and telephones has proceeded on an even greater scale, and the revenues of the department, which only amounted in 1899 to £1,740,000, exceeded £3,850,000 in 1909, whilst the amount invested in postal savings banks rose during the same decade from under £2,200,000 to £10,698,409. The Japanese merchant flag, represented by a steam tonnage of nearly one and a quarter million tons, is known in every sea, and the Nippon Yusen Kaisha, on one of whose excellent steamers I crossed the Pacific a few weeks ago, has alone a well-equipped fleet of 265,000 tons in the aggregate, running not only to the United States and to Europe, but to South America and Australia, besides local services in Japanese, Chinese, and Korean waters. ...

"Powerful firms like the Mitsui, the Mitsubishi, Messrs. Okura, Messrs. Takata, &c., take a leading part in every branch of a national import and export trade which has risen within 30 years from under £6,000,000 to nearly £100,000,000 in 1907. Great industrial cities have grown up like Osaka, the centre of the cotton-spinning industry, whose population, less than 400,000 a quarter of a century ago, now exceeds 1,200,000. The aggregate capital of Japanese industrial companies, which in 1882 was estimated at £10,000,000, rose within the same period to more than £126,000,000, and in the cotton industry alone the number of spindles increased from 65,000 to over one and a half million. According to statistics collected by Mr. Takahashi and Mr. Igarashi, the national wealth of Japan was assessed at the beginning of 1905 at close upon £2,500,000,000, to which must now be added, over and above any normal increment, the economic value of the position she has acquired in Southern Manchuria and Korea."

Correspondent of The Times, London.

JAPAN: A. D. 1909.

Parties in Domestic Politics.

The present parties in the lower house of the Japanese Parliament were thus described by the Tokio correspondent of the London ***Times***, in January, 1909:

"The Lower House consists of 379 members. These are divided into five sections—namely, the ***Seiyu-kai*** (192 members), the Progressists (67), the ***Boshin*** Club (42), the ***Yushin-kai*** (44) and the ***Daido*** Club (34).

If any man were required to indicate clearly the lines of division between these sections, he would be much perplexed to do so. On the broad bases of Liberalism and Conservatism the first four occupy the same Liberal platform, while the last stands as the sole exponent of Conservative views. Yet the four Liberal sections are not more hostile to each other than the fifth is to all. They are held asunder by traditions and by prejudices.

"The Seiyu-kai has fought its way to an overwhelmingly strong position in the face of perennial opposition from the Progressists. Once only did the two join hands, but their union lasted no more than a few weeks, and they separated with a strong access of mutual rancour. Yet both had entered the arena originally as champions of the same cause, constitutional government, and nothing held them apart save personal rivalries. In the course of their 28 years of strenuous evolution, they gradually sloughed off their extremists, and these constitute the present ***Yushin-kai***, a coterie of brilliant Radical free-lances,

whose hand may be said to be against every one.
{363}

The ***Daido*** Club are frank Conservatives. They are the only unequivocal supporters of the Cabinet now in office. ... There remain the ***Boshin*** Club. They are an association of business men—the first political association of that complexion in Japan. The early Diets were all conspicuously deficient in representatives of the commercial and manufacturing classes; mainly because politics had become a more or less discredited pursuit before ever a general election was held, and partly because the urban population did not return a due proportion of members. The latter defect having been remedied by the new election law of 1901, there was thereafter found in the Lower House a group of men calling themselves ‘Independents,’ but always seen in the Government lobby. In fact their sense of business interests prompted them to lend their support to the principle of stable Cabinets above everything."

JAPAN: A. D. 1909.

Present Status of Christianity.

See (in this Volume)
MISSIONS, CHRISTIAN.

JAPAN: A. D. 1909 (July-September).

The State of the War Debt and its Payment.

The following is a Press despatch from Tokyo to London, July 17, 1909:

"At the close of 1906, when Japan came to make out the accounts of her war with Russia, she found that she had incurred a total expenditure of about 1,700 million yen (£170,000,000). By that amount her national debt was increased. She then determined to lay aside every year a sum of at least 110 million yen (£11,000,000) for the service of

the debt. That did not mean, of course, that redemptions aggregating 110 millions were to be made annually. These 110 millions were for the service of the debt; in other words, they were for the purpose of paying interest as well as principal. The portion applicable to redemption would be from 30 to 37 millions yearly, and the loan would thus be completely paid off in about 30 years. That was the programme when the Marquis Katsura came into office. But very soon he announced the Treasury's intention of increasing the redemption fund to 50 millions. That is to say, he added some 16 millions to the money available for paying off the debt; and evidently, if the increase were permanent, the whole indebtedness would be wiped off in about 20 years instead of 30, as originally planned. Still better things, however, are said to be contemplated. The sum actually devoted to the sinking fund during the last fiscal year was 50,800,000 yen, and since the interest on that amount will go to augment the redemption fund during the current year, the amount paid off from that source will be 53,340,000 yen. To this it is proposed to add another 10 millions obtained from the national growth of the State's income, for the experience of the last year encourages the belief that such growth may be confidently expected, the actual development of the ordinary revenue having reached a sum of over 30 millions. It is further expected that from 1912 onwards the yield from the Customs duties will advance from 38 to 53 millions, unless Japan manages her negotiations for tariff revision clumsily."

Speaking to the Bankers' Club at Tokyo in September, 1909, Premier Katsura expressed the belief that the financial condition of the country was encouraging, and while maintaining that the present system of finances was excellent, he expressed the hope to improve it steadily until perfection is reached. The premier said that the government's policy would begin this year, and the development of resources and the avoidance of unproductive expenditure would be consistently followed. He announced the following measures as

forming part of the financial programme for the ensuing year:—

1. Reduction and modification of the war taxes in order to relieve the pressure on the people.
2. Increase of the sinking fund. By the allocation of a considerable amount out of the surplus of previous years the sum of 53,000,000 yen (£5,300,000) previously fixed for this service will be greatly exceeded.
3. The raising of the salaries of all Government officials by 30 per cent. This reform had been delayed by the outbreak of the Russo-Japanese war.

JAPAN: A. D. 1909 (August).
The Burning of Osaka.

See (in this Volume)
OSAKA.

JAPAN: A. D. 1909 (September).
Visit of a Commercial Commission to the United States.

A large party of prominent Japanese business men, headed by Baron Shibusawa, and coming as a Commercial Commission to seek more intimate commercial relations between Japan and the United States, landed at Seattle on the 1st of September, 1909, and toured the country for a number of weeks. The party received much attention and were entertained most hospitably everywhere, nowhere with more warmth than on the Pacific Coast, where ill-feeling toward Japan had been manifested in some circles a few years before. In a statement to the Press at Seattle Baron Shibusawa said: "It is interesting to note that while different European nations are talking about the increase of armament, and when especially great rulers are exchanging visits accompanied by warships, the Japanese people are perfectly satisfied in sending us plain business men on a

peaceful mission to this great commercial country. I have been told that Japan is spoken of as a warlike nation, but this is altogether absurd. We are all deeply interested in the development of the Japanese-American commercial relations, which, of all reasons, prompts us to pay a visit to your country. Let us therefore work for the extension of commercial relations to our mutual interests. We must go hand in hand with you to develop the vast field in the East."

JAPAN: A. D. 1909 (October).

Assassination of Prince Ito.

Prince Hirobumi Ito, the man of most light and leading, as he appears to have been, in the transformation of Japan within the past half century, was foully assassinated on the 26th of October, 1909, at Kharbin, or Harbin, Manchuria. He had gone to Kharbin to meet M. Kokovsoff, Russian Minister of Finance, for a conference on the Manchurian questions that had arisen between Russia and Japan. As he stepped from the railway train which brought him to the city, and was approaching the Minister, who came to welcome him, he was fired upon from the surrounding crowd. Three revolver shots struck the Prince, two of which inflicted wounds that caused his death within twenty minutes. Three of his attendants were wounded, not fatally, by other shots. All were found to have been fired by one bystander, who proved to be a Korean. The assassin made no attempt to escape, but exclaimed when seized: "I came to Kharbin for the sole purpose of assassinating Prince Ito, to avenge my country." He had two companions who boasted of being parties to the crime. He was subsequently identified as Indian Angan, formerly editor of a newspaper at Seoul.

{364}

Since retiring from his responsible post in Korea, as Resident-General, Prince Ito had resumed the presidency of the Privy Council, in the Japanese Government, which Prince

Aritomo Yamagata had filled during his absence. Prince Yamagata was now reappointed to that office. He and Prince Ito had been intimate friends, and yet political opponents, differing in opinions and heading rival parties, but always acting together on the vital questions of national policy.

JAPAN: A. D. 1909 (December).

Naval Armament, Present and Prospective.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL: JAPAN.

-----JAPAN: End-----

JAPANESE IMMIGRATION:

The Resistance to it in America, Australia, and South Africa.

See (in this Volume)

RACE PROBLEMS.

JEANES, Miss Anna T.:

Great Gift to Schools for Southern Negroes.

See (in this Volume)

EDUCATION: UNITED STATES. A. D. 1907.

JEROME, William Travers:

Reelection as District Attorney of the County of New York.

See (in this Volume)

NEW YORK CITY: A. D. 1905.

JEWS, THE: In Roumania.

Oppressions.

Remonstrance of the United States.

See (in this Volume)

BALKAN AND DANUBIAN STATES: ROUMANIA.

JEWS, THE:

Persecution and Massacre in Russia.

See (in this Volume)

RUSSIA: A. D. 1901-1904, and 1903 (APRIL).

JIMENEZ, President: His overthrow.

See (in this Volume)

SAN DOMINGO: A. D. 1904-1907.

JOAN OF ARC, Beatification of.

See (in this Volume)

PAPACY: A. D. 1909 (APRIL).

JOINT STATEHOOD ACT.

See (in this Volume)

UNITED STATES: A. D. 1906.

JOLO, Sultan of.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1901-1902.

JONES, John Paul:

Recovery and removal of his remains from Paris.

See (in this Volume)

UNITED STATES: A. D. 1905 (FEBRUARY-JUNE).

JOUBERT-PIENAAR, General F.:

On Slavery in Portuguese Africa.

See (in this Volume)
AFRICA: PORTUGUESE: A. D. 1905-1908.

JUAREZ, BENITO:
Celebration of his centenary.

See (in this Volume)
MEXICO: A. D. 1906.

JUDSON, Harry Pratt:
President of the University of Chicago.

See (in this Volume)
EDUCATION: A. D. 1901-1909.

JUNIOR REPUBLIC, The.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

JUSTH, M. de.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1908-1909.

JUVENILE COURTS.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

JUVENILE REFORM.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS OFFENDERS.

K.

KAFFIR, The Problem of the.

See (in this Volume)

RACE PROBLEMS: IN SOUTH AFRICA.

KAIPING.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY), and (JULY-SEPTEMBER).

KAJAR TRIBE, The:

The Tribe of the Persian Imperial Dynasty.

See (in this Volume)

PERSIA: A. D. 1905-1907.

KAMIMURA, Admiral.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

KANO:

British capture.

See (in this Volume)

AFRICA: A. D. 1903 (NIGERIA).

KANSAS: A. D. 1904.

Legislation and action against the Standard Oil Company.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.:

UNITED STATES: A. D. 1904-1909.

KARAGEORGEVICH.

See (in this Volume)

BALKAN AND DANUBIAN STATES: SERVIA.

KATANGA, Railway Lines to.

See (in this Volume)

RAILWAYS: CENTRAL AFRICA.

KATSURA, Count:

His Ministry strengthened by Marquis Ito.

See (in this Volume)

JAPAN: A. D. 1903 (JUNE).

KAULBARS, General.

See (in this Volume)

JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

KAWAMURA, General.

See (in this Volume)

JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

KELANTAN:

Cession of Suzerainty to Great Britain.

See (in this Volume)

SIAM: A. D. 1909.

KELLY, Charles F.:

Confessions as a "Boodler."

See (in this Volume)

MUNICIPAL GOVERNMENT.

KENNEDY, John Stewart, the Bequests of.

See (in this Volume)
GIFTS AND BEQUESTS.

KENTUCKY: A. D. 1905-1909.

The Tobacco Farmers' Union and its Night Riders.

"Kentucky has been having an experience unique, costly, tragic, and probably to some extent valuable, with the farmers engaged in the chief agricultural industry of the state—growing tobacco. Some 80,000 of them, representing probably 400,000 of the population of the state, have been engaged in a union demonstration for the purpose of securing higher pay. The result has been in some sections anarchy, in all great distress. ...

"A trust having arisen in New York which was able to control the output, and therefore to make prices to suit itself, the farmers have answered this trust by forming under the equity society a union of their own, and going on a strike for higher prices. ... The union to which I refer is the Burley Tobacco Society, in Kentucky. It is organized to oppose the exactions of the American Tobacco Company of New Jersey. Tobacco is grown in several distinct districts in Kentucky, and there, as elsewhere, each district has, by reason of soil or climate, a virtual monopoly of its own type. Down in the southwestern corner, in the so-called Black Patch, embracing several counties of Tennessee, a dark and heavy leaf is grown and fire-cured for the foreign trade. This is bought by government, or so-styled 'regie' buyers. North of this is a heavy leaf stemmed for the British trade. North and east of this is the region in which a dark air-cured leaf is grown for domestic uses. East of this, embracing all Blue Grass and extending to Maysville, is the Burley district, in which is grown the famous red and white Burley tobacco. ...

"Pooling tobacco in Kentucky started down in the Black Patch, or received its greatest impetus there. The regie buyers combined, or were formed into a combination by their superiors, and the Patch was districted, each man being given an exclusive territory, and no farmer being allowed to sell to any one but his own buyer. In this way a set price as low as four cents was made, and the farmer had no option but to take it; no option, at least, that was open to the farmer not rich enough to ship his crop to Bremen and seek European competition. In this situation a group of canny planters formed a tight little corporation of \$200 capital, for the avowed purpose of holding, handling, buying, and selling tobacco. They induced about a thousand of their neighbors—there are forty thousand dark-tobacco growers in the Patch—to pledge their crops with them, and they planned to hold this much off the market and compel the regie buyers to pay a higher price for it. This proving popular, they soon had five thousand pledges. Then they—or interests closely allied with them—organized a band of Ku-Klux, called Night Riders, who, first by so-called ‘peace armies,’ and then by raiding at night all who resisted, frightened or forced—during the next three years—all the forty thousand to sign.

"The tight little corporation thus had a monopoly of the dark tobacco. It forced the regie buyers to pay a price raised by slow degrees to 11 cents round, exacted large commissions and profits,—as much as 1500 per cent a year on the capital,—and now controls the Black Patch absolutely. All its pledges expire in January, 1909, and the situation will then become anarchistic. The success of this Black Patch plan was entirely due to the employment of Night Riders, who correspond to the professional ‘sluggers’ of a labor union, or the hired assassins of a Black-Hand league."

***J. L. Mathews,
The Farmers' Union and the Tobacco Pool
(Atlantic Monthly, October, 1908).***

KHARBIN, OR HARBIN, RUSSIAN CONTROL AT.

See (in this Volume)
CHINA: A. D. 1909 (MAY).

KHARBIN: A. D. 1909.
Assassination of Prince Ito.

See (in this Volume)
JAPAN: A. D. 1909 (OCTOBER).

KHARKOFF, DISTURBANCES IN.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

KHARTUM, THE NEW.

See (in this Volume)
SUDAN, THE: A. D. 1907.

KHARTUM, THE NEW:
Gordon Memorial College.

See (in this Volume)
EDUCATION: EGYPT.

KIAMIL PASHA: GRAND VIZIER.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

KIEFF, DISTURBANCES IN.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

KINCHOU, BATTLE OF.

See (in this Volume)

JAPAN: A. D. 1904 (February-July), and
1904-1905 (May-January).

KINGSTON, Jamaica: A. D. 1907.

Destruction of Kingston.

See (in this Volume)

EARTHQUAKES: JAMAICA.

KINSHU-MARU, THE INCIDENT OF THE.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

KIPLING, RUDYARD.

See (in this Volume)

NOBEL PRIZES.

KIRDORF, HERR:

Head of the Coal and Steel Syndicates in Germany.
His attitude towards the Workingmen.

See (in this Volume)

LABOR ORGANIZATION: GERMANY: A. D. 1905-1907.

KISHINEFF, JEWISH MASSACRE AT.

See (in this Volume)

RUSSIA: A. D. 1903 (APRIL).

KITCHENER OF KHARTUM, GENERAL LORD:

In South Africa.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

KITCHENER OF KHARTUM, GENERAL LORD:
In India.

See (in this Volume)
INDIA: A. D. 1905 (AUGUST).

KLERKSDORP CONFERENCE.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

KNIAZ POTEKIN, MUTINY ON THE.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

KNIGHTS OF LABOR.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES.

KNOX, PHILANDER C.:
Attorney-General.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

KNOX, PHILANDER C.:
Secretary of State.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

KOCH, Robert.

See (in this Volume)
NOBEL PRIZES.

KOCHER, E. T.

See (in this Volume)
NOBEL PRIZES.

KOMURA, BARON IUTARO,
Japanese Minister of Foreign Affairs.

See (in this Volume)
JAPAN: A. D. 1901-1904.

KOMURA, BARON IUTARO,
Japanese Plenipotentiary for negotiating
Treaty of Peace with Russia.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

KONDRATENKO, General.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

KOREA: A. D. 1901-1904.
Japanese distrust of Russian designs.
Negotiations and demands.

See (in this Volume)
JAPAN: A. D. 1901-1904.

KOREA: A. D. 1902.
Agreement respecting Korea between Great Britain and Japan.

See (in this Volume)
Japan: A. D. 1902.

KOREA: A. D. 1904 (February).
Occupation by the Japanese.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY).

KOREA: A. D. 1904-1905.

Conventions with Japan, creating Protectorate Relations
with that Empire and submitting Financial and
Diplomatic Affairs to Japanese control.

On the 25th of February, 1904, the text of a protocol,
concluded on the 23d, between the Governments of Japan and
Korea, was communicated to the Government of the United States
(and, of course to others), by the Government of Japan, with
an accompanying explanation, as follows:

"In the prosecution of the present war the use of some of the
ports and some portions of the territory of Korea is found
inevitable, and therefore, with a view to facilitate military
operations and to show that such use of ports and territory is
made with the full knowledge and consent of Korea, and not in
disregard or violation of her independence or territorial
integrity, and also in order to prevent future complications,
the Japanese Government concluded with the Korean Government
on the 23d instant the following protocol. ...

"ARTICLE I.

For the purpose of maintaining permanent and solid friendship
between Japan and Korea and firmly establishing peace in the
Far East, the Imperial Government of Korea shall place full
confidence in the Imperial Government of Japan and adopt the
advice of the latter with regard to improvements in

administration.

"ARTICLE II.

The Imperial Government of Japan shall, in a spirit of firm friendship, insure the safety and repose of the Imperial House of Korea.

{366}

"ARTICLE III.

The Imperial Government of Japan definitively guarantee the independence and territorial integrity of the Korean Empire.

"ARTICLE IV.

In case the welfare of the Imperial House of Korea or the territorial integrity of Korea is endangered by the aggression of a third power or internal disturbances, the Imperial Government of Japan shall immediately take such necessary measures as circumstances require, and in such case the Imperial Government of Korea shall give full facilities to promote the action of the Imperial Japanese Government. The Imperial Government of Japan may, for the attainment of the above-mentioned object, occupy, when circumstances require it, such places as may be necessary from strategic points of view.

"ARTICLE V.

The Government of the two countries shall not in future, without mutual consent, conclude with a third power such an arrangement as may be contrary to the principles of the present protocol.

"ARTICLE VI.

Details in connection with the present protocol shall be arranged as the circumstances may require between the representative of Japan and the minister of state for foreign affairs of Korea."

On the 30th of August, 1904, an additional Agreement between the Governments of Japan and Korea, signed in part on the 19th and in part on the 22d of that month, was communicated by the Japanese Ambassador to the United States to the State Department at Washington, with a note saying: "In communicating this agreement to the Government of the United States I am instructed to say that it is nothing more than the natural consequence or development of the protocol concluded between the Japanese and Korean Governments on the 23rd of last February, which I had the honor to communicate at that time for the information of the Government of the United States. I am further directed to say that the agreement does not in anywise interfere with the full operation or validity of Korea's existing treaties; and that Article II thereof is not intended to place any impediment in the way of legitimate enterprise in Korea, but merely to check, as far as possible, the future conclusion of unwise and improvident engagements, which in the past have been fruitful sources of trouble and complication."

The Agreement thus announced was in the following terms:

"ARTICLE I.

The Korean Government shall engage a Japanese subject recommended by the Japanese Government as financial adviser to the Korean Government, and all matters concerning finance shall be dealt with after his counsel shall have been taken.

"ARTICLE II.

The Korean Government shall engage a foreigner recommended by the Japanese Government as diplomatic adviser to the foreign office, and all important matters concerning foreign relations shall be dealt with after his counsel shall have been taken.

"ARTICLE III.

The Korean Government shall consult the Japanese Government before concluding treaties and conventions with foreign

powers, and also in dealing with other important diplomatic affairs, such as grants of concessions to or contracts with foreigners."

Writing of this Agreement a few days later to the State Department at Washington, the American Minister to Japan, Mr. Lloyd Griscom, remarked:

"It is interesting to note that Mr. Megata, selected to be financial adviser to the Korean Government, was educated in America and is a graduate of Harvard University, and Mr. Stevens, who has been chosen as adviser to the foreign office, is an American gentleman about whom it would be superfluous to inform you."

Under a third Agreement, signed April 1, 1905, Japan took over the control and operation of the post, telegraph, and telephone services of Korea, in order to "rearrange the system of communications in that country, and, by amalgamating it with that of Japan, to unite the two systems into one."

Finally, on the 17th of November, 1905, a fourth Agreement was signed, which definitely surrendered to Japan the "control and direction of the external relations and affairs of Korea," in the following stipulations:

"ARTICLE I.

The Government of Japan, through the department of foreign affairs in Tokyo, will hereafter have control and direction of the external relations and affairs of Korea and the diplomatic and consular representatives of Japan will have the charge of the subjects and interests of Korea in foreign countries.

"ARTICLE II.

The Government of Japan undertake to see to the execution of the treaties actually existing between Korea and other powers, and the Government of Korea engage not to conclude hereafter

any act or engagement having an international character, except through the medium of the Government of Japan.

"ARTICLE III.

The Government of Japan shall be represented at the court of His Majesty the Emperor of Korea by a resident general, who shall reside at Seoul primarily for the purpose of taking charge of and directing the matters relating to diplomatic affairs. He shall have the right of private and personal audience of His Majesty the Emperor of Korea. The Japanese Government shall have the right to station residents at the several open ports and such other places in Korea as they may deem necessary.

"Such residents shall, under the direction of the resident general, exercise the powers and functions hitherto appertaining to Japanese consuls in Korea, and shall perform such duties as may be necessary in order to carry into full effect the provisions of this agreement.

"ARTICLE IV.

The stipulations of all treaties and agreements existing between Japan and Korea not inconsistent with the provisions of this agreement shall continue in force.

"ARTICLE V.

The Government of Japan undertake to maintain the welfare and dignity of the Imperial House of Korea."

With the communication of this Agreement to foreign Powers there went a declaration by the Japanese Government, in part as follows:

"The relations of propinquity have made it necessary for Japan to take and exercise, for reasons closely connected with her own safety and repose, a paramount interest and influence in the political and military affairs of Korea. The measures

hitherto taken have been purely advisory, but the experience of recent years has demonstrated the insufficiency of measures of guidance alone.

{367}

The unwise and improvident action of Korea, more especially in the domain of her international concerns, has in the past been the most fruitful source of complications. To permit the present unsatisfactory condition of things to continue unrestrained and unregulated would be to invite fresh difficulties, and Japan believes that she owes it to herself and to her desire for the general pacification of the extreme East to take the steps necessary to put an end once for all to this dangerous situation."

KOREA: A. D. 1904-1905.

Status of the Korean Empire under Japanese Control.
The Japanese View.

"After her quick entry into Seoul at the outbreak of the war, Japan found herself precisely in the position which she had long desired to establish. The plan of joint non-intervention in Korean affairs as agreed upon between Japan and Russia in 1896 and 1898 [see, in Volume VI. of this work, Korea], which had again and again resulted in competitive intervention, had proved disastrous to the interest of Japan and of general reform; but now Russia had abruptly withdrawn from Seoul, and Japan found herself free to move alone. Thereupon she hastened to impose upon the Korean Foreign Minister a treaty of alliance [as above], on February 23, 1904, which laid the foundation for all Japan's subsequent conduct in the peninsula. ...

"An analysis and interpretation of the forces which the war has set loose and which are bringing their inevitable consequences would be highly instructive. Let us, however, content ourselves here by pointing to the Korean clauses in the three important documents concluded within the last two

years, in which the rapid development of the Korean problem is easily traceable,—namely, the Korean-Japanese treaty of alliance of February 23, 1904, the Russo-Japanese treaty of peace signed on September 5, 1905 [see, in this Volume, JAPAN; A. D. 1905 (June-October)], and the Anglo Japanese agreement of alliance concluded on August 12 [see JAPAN: A. D. 1905 (August)], and published with Lord Lansdowne's dispatch to the British Ambassador at St. Petersburg on September 26, 1905. It will be remembered that the first instrument at once placed Korea under Japan's military protection and administrative guidance, and bound Japan to uphold Korea's independence and territorial integrity, including the safety of her Imperial house. One will readily observe that two distinct points are here involved. These two points the further progress of events, some of which have already been described, seems to have put so far apart, that in the treaty of Portsmouth Japan's preponderance over Korea was recognized by Russia, while little was said of the independence of the peninsular empire. It was even said that M. Witte insisted during the discussion of the clause that Baron Komura should declare in his proposed terms that Japan intended to make of Korea a province of the Japanese Empire. This the Baron is reported to have emphatically declined, presumably because he would not consider the protection by Japan and the territorial integrity of Korea incompatible with each other. The difference between the theoretical and practical situation is, however, reflected unmistakably in the Anglo-Japanese agreement, the third article of which reads: 'Japan possessing paramount political, military, and economic interests in Korea, Great Britain recognizes Japan's right to take such measures for the guidance, control and protection of Korea as she may deem proper and necessary to safeguard and advance those interests, providing the measures so taken are not contrary to the principle of equal opportunities for the commerce and industry of all nations.' In other words, Japan is left free to control Korea and then prevail upon the latter to open her door equally wide to all nations, including Japan herself. After

specially dwelling on the substance of this article, Lord Lansdowne says in his dispatch: 'The treaty at this point differs conspicuously from that of 1902. It has, however, become evident that Korea, owing to its close proximity to the Japanese Empire, and to its inability to stand alone, must fall under the control and tutelage of Japan. His Majesty's Government observes with satisfaction that this point has been readily conceded by Russia in the treaty of peace, and there is every reason to believe that similar views are held by the other Powers with regard to the relations which should subsist between Japan and Korea.' Thus are Korea's alleged incapacity of self-government and Japan's need of control over the peninsular affairs openly recognized by a third Power, and it is taken for granted that no other Power will deny these points. Such a declaration could not be made, it is admitted, in 1902, when the first treaty of alliance was concluded, nor perhaps even at the time when the Korean-Japanese protocol was signed in February, 1904. Yet the doctrine of Korea's independence is still not theoretically contradictory with this situation now recognized by the Russian and British governments, nor has it become less effective than in the last year, for, while the control by Japan has since been tightened, Korea remains a separate empire with all the sovereign rights of an independent State. Japan, speaking technically, exercises a supervisory control and discharges administrative functions entrusted to her care. The future trend of affairs—whether the Korean independence will vanish into a mere fiction as the Japanese control advances, or whether under the latter the peninsular people will be trained to an effective self-government—must largely be determined by the mutual interaction of the complex factors, both Korean and Japanese, public and private, conscious and unconscious, which are steadily working out the destiny of the peninsula."

***K. Asakawa,
Korea and Manchuria under the New Treaty
(Atlantic Monthly, November, 1905).***

KOREA: A. D. 1905 (August).

New Agreement concerning Korea between Great Britain and Japan.

See (in this Volume)

JAPAN: A. D. 1905 (AUGUST).

KOREA: A. D. 1905-1909.

Japanese Control of Korean Affairs.

Under Prince Ito.

Attempted appeal of Korea to the Hague Conference of 1907.

Enforced abdication of the Emperor.

Elevation of his Son to the Throne.

Extensive and fierce Revolt rigorously fought down.

Retirement of Prince Ito.

Recent Measures.

As to the use made by the Japanese of the entireness of their domination in Korea, as conceded to them in the treaties referred to above, by the Government of Korea, primarily, and by Great Britain and Russia, secondarily, in their recognition and endorsement of the status thus established, there has been much controversy since.

{368}

The Koreans themselves have been loud complainants of harsh and oppressive exercises of Japanese power in their country, and have found many sympathizers among the western peoples to denounce their alleged wrongs. On the other hand, many foreign visitors to Korea, after careful observation of conditions in the country, have borne strong testimony in favor of the Japanese conduct of Korean affairs. Professor George T. Ladd, for example, of Yale University, is one of these witnesses whose judgment has great weight. Having gone to Japan to give a course of lectures there, Professor Ladd was asked by Prince Ito, the Japanese Resident-General in Korea, to visit the latter country as an observer, and lend counsel to the Prince relative specially to some matters that touched American

missions. His subsequent book, entitled "In Korea with Prince Ito," represents, beyond question, a careful and candid study of conditions which he had the best of opportunities for becoming rightly acquainted with. It does not approve or justify everything that the Japanese dictators of Korean administration were doing, but it represents the general motive and intent of their undertakings to have been for the improvement of the people and country whose affairs they had taken into their hands. The same may be said of what has been written of Korea since the Russo-Japanese war by Mr. George Kennan, the experienced traveller in the East and student of its peoples and their life.

The truth appears to be that the Japanese are using their power in Korea as justly, as honestly, as rightly as the English are using similar power in Egypt, as the Americans are using it in the Philippine Islands, or as any people has ever used the power to dictate government to another people. The question of right and wrong in all such cases goes back of the mode of using the overlordship, and is a question of the right to hold it for any mode of use. That there was compulsion in the procurement of the convention by which the Emperor of Korea and his decadent Government surrendered themselves to the dictatorial protection of Japan goes without saying. That there is not a strong nation in the world to-day that would not, in the same circumstances, have exercised the same compulsion and wrung the same surrender, is just as indisputable; but the political morality of the world is still too undeveloped for that fact to be exonerating. It only "sights" the political ethics of Japan along the level of our Christendom, and finds her to be, at least, not below it.

Soon after the Convention of November 17, 1905 had been signed, Marquis Ito, the Japanese Resident-General in Korea, invited the newspaper editors in Seoul to a luncheon, at which he addressed them, as reported at the time, partly in these words:

"If the state of affairs in Korea be examined, it is found that the relations between sovereign and subject, government and governed, are of a very distant nature, and are by no means so close as those in Japan. Hence it becomes inevitable to adopt toward the Government measures of a more or less compulsory nature. The people, however, are eminently peaceful and quiet, and toward them, therefore, the policy pursued must be one of gentle persuasion. Those are points which have to be kept in view not merely by our officials, but also by all Japanese subjects residing in Korea. Such Japanese subjects must carefully refrain from all acts of violence to which their country's victories may prompt them, and must be guided by a spirit of kindness in their dealings with the Koreans. Already the United States representative in Seoul has received instructions from his Government for the removal of the legation, and it may be assumed that the other powers will similarly recognize Japan's convention. It will then be for Japan not to forget the duties that heaven has delegated to her, but to lead Korea gently and helpfully along the path of progress, for assuredly anything like arbitrary or coercive conduct will earn for Korea the sympathy of the nations, and will defeat the true and abiding policy of Japan."

Discontent, complaint, resistance in Korea were inevitable, whatever treatment the country in so helpless and humbled a situation might receive. By a dexterous movement in 1907 it compelled the world to take notice of its plight. The Emperor, or his immediate entourage, succeeded by some means in fairly smuggling out of the country a delegation commissioned to claim a hearing before the Peace Conference at The Hague. Their claim was effectually extinguished by the agreement of 1904, which turned over to Japan the whole management of the foreign affairs of Korea; but the Korean situation was discussed widely for a time. Nothing of benefit to the native Korean Government, however, came from the event. The iron hand of Japanese control was laid in heavier pressure on the feeble

court, at once. The nominal Korean Ministry was made to demand and compel the abdication of the Emperor, on the ground that he had endangered the national welfare by violation of the treaty of August, 1904. His young son was crowned in his stead, and Korea was required to submit to a new Agreement, signed on the 24th of July, 1907, by which the Resident-General "acquired initiative as well as consultatory competence to enact and enforce laws and ordinances, to appoint and remove Korean officials, and to place capable Japanese subjects in the ranks of Korean officialdom." Special provision was made for the separation of the Judiciary and the Executive, so as to put an end, wrote an English correspondent, "to the grievous corruption practised under a system which invested provincial governors and district magistrates with judicial functions, reducing the administration of justice to a mere matter of favour or interest." Under this new agreement the Resident-General acquired authority sufficient to overcome obstruction, for it pledged the Government of Korea to act under his guidance in matters of administrative reform; not to enact any laws or take any important measures without his previous assent; and not to appoint or dismiss high officials without his concurrence.

The attempt to carry an appeal to the Hague Conference was not fortunate for Korea in the result. As a coup it was skilfully executed, but can hardly be regarded as shrewd in the planning. It was attributed, in both plan and execution, to an American, Mr. Homer B. Hurlbert, who went to Korea as an educator some years before, under an appointment by the Government of the United States, on an official request from Korea; who had acquired much influence there and was strenuously a partisan of the Koreans, as against the Japanese.

{369}

Publishing a small periodical, the *Korean Review*, Mr. Hurlbert became an effective champion of their cause, publicly

as well as privately in the native counsels of the overlorded empire. In the latter capacity he was pitted against another American, Mr. Durham White Stevens, whose appointment by Japanese selection, in 1904, to be adviser to the Korean Foreign Office, is mentioned above. Originally in the service of his own country, Mr. Stevens had then become official adviser to the Japanese Legation at Washington, and passed from that to the service in Korea. His fidelity to Japanese interests centered on him the animosity of the rebellious element in Korea, and he fell a victim to their hate.

The forcing of the old Emperor from the throne and the exaction of a more direct and complete submission of Korea to Japanese rule had provoked an extensive revolt. This was made more serious by an acknowledged mistake committed by Prince Ito, in disbanding the Korean army. A correspondent of the New York *Evening Post*, who wrote from Tokyo on the 14th of December, 1908, gave this account of the effect, and of the dreadful suffering of the country from the conflict that followed, in 1907-1908:

"The discharged soldiers, stung by the disgrace of dismissal and the dishonor of forced submission to hated intruders, quickly spread all over the country, stirring up their compatriots to a fearless and often a fatal zeal against the alien administration. The Japanese authorities forthwith set about a vigorous suppression of the malcontents, even to the extent of a merciless annihilation of life and a wholesale destruction of property. ... The rebel forces only waxed more formidable, until by the approach of spring the insurgent bands were so widely distributed and menacing that no Japanese could safely venture beyond the confines of well-guarded towns and cities.

"Accordingly the imperial authorities were driven to replace their new policy of remaining on the defensive by the former one of extermination, and no quarter. Last summer, therefore,

a well-organized campaign for completely wiping out the insurrectionary forces was resolved upon and put into execution. ... A proclamation had previously been issued to the effect that all Koreans affording food or shelter to the insurgents, or in any way rendering assistance liable to involve a charge of complicity, would be summarily dealt with; while those who surrendered to the proper authorities would be pardoned. The message placed the people between the devil and the deep sea. If the natives refused assistance to the insurgents, obedience would be required of them at the point of the bayonet by their insulted fellow-patriots; while if they were suspected of thus acquiescing, they perished at the hands of the Japanese soldiery. Under the circumstances the Koreans naturally chose rather to die serving their own people than to suffer the same fate by resisting them."

A tragical incident of this fierce struggle was the assassination of Mr. Durham White Stevens, while visiting the United States. He had been marked for death by the Korean insurgents, and was slain by their emissaries, in March, 1908, soon after his landing in California.

The correspondent above quoted regarded the insurrection as having spent its force at the time of his writing, December, 1908. Against the enormous destruction of life and property which the suppression of it had cost, he proceeded to set a brief summary of the simultaneous constructive and reformatory work which the Japanese had been carrying on. This was described more broadly, however, a little later, by a writer in the London *Times*, from whom we quote;

"The coasts have been lighted and buoyed; posts, telegraphs, and, telephones have been provided; roads and railways have been built; public buildings have been erected; various industrial enterprises have been started, as printing, brick-making, forestry, and coal-mining; model farms have been laid out; the cultivation of cotton has been commenced and

promises to become a great industry; an industrial training school has been built and equipped; an exposition has been held in Seoul; sanitary works have been inaugurated; fine hospitals and medical schools have been opened; an excellent educational system modelled on that of Japan has been organized; waterworks have been constructed in several towns; and, last though not least, complete freedom of conscience has replaced the old anti-Christian bigotry."

In June, 1909, the veteran statesman, Prince Ito, was relieved of the trying office of Resident-General in Korea, and succeeded by Viscount Sone, who had previously served with him as Vice Resident-General. A Tokyo correspondent wrote of the change:

"It was first planned to appoint Viscount Terauchi, minister of war in the Japanese Cabinet, to the residency in Korea, but Prince Ito objected, pointing out to the ministers that the selection of Viscount Terauchi, a lieutenant-general, would be considered as a triumph for the military regime and an abandonment and disavowal of Prince Ito's policy for the peaceful development of Korea. As usual, Prince Ito's advice was accepted by his fellow statesmen, and Viscount Sone, who received his training in Korea under the administration of Prince Ito, was named to the post.

"A high officer said to-day that when the Korea residency was created it was incumbent upon Japan to send her most able statesman, Prince Ito, to fill the important post. He formulated his policy of administration without interference, and while some of the leading men of Japan were inclined to doubt the wisdom of that policy they are now virtually converted to his ideas, and it is generally believed that the feeling of confidence and friendship for Japan can be created among the Koreans and make the country doubly valuable."

Further changes in the administration of Korean affairs

attended this official change. They were reported to the London *Times* by its Tokyo correspondent, July 18, as follows:

"Japan has just taken some important steps in Korea, the occasion chosen being the simultaneous presence of the outgoing and the incoming Residents-General in Seoul. She has made arrangements for the establishment of a central bank under official auspices, and she has negotiated for the abolition of the two Departments of War and Justice. ... The capital will be one million sterling in £10 shares, 30,000 of which shares will be allotted to the Korean Government, the remainder being offered for subscription in Korea and Japan. ... An important feature is that all the bank's officers will be nominated by the Japanese Government, though they may include Korean subjects.

{370}

"This being a purely financial measure which falls naturally into its place in the sequence of Japan's protectorate programme has not attracted any special attention. Not so, however, the abolition of the Korean Department of Justice, and its replacement by a bureau in the Residency-General. The immediate effect of that change is to convert the Korean Courts of law into branches of the Japanese tribunals of justice. Korean laws will, of course, be administered—and their revision and codification cannot be accomplished in a moment—but all the occupants of the bench will be selected and appointed by Japan, and if competent Koreans cannot be found, or until they are educated, Japanese alone will be nominated. Japan is to bear the charges of this arrangement—namely, £50,000 annually. The innovation is not so radical as it appears at first sight. Already the assistant Judges in the principal Courts were Japanese subjects, so that what is now done is to extend the system rather than to alter it. ...

"These things may be regarded as a definite step towards the reality of Japan's control in Korea. There have been three distinct stages in her attitude towards her neighbour: first, the advisory stage; then the stage of subordinate administration; and finally the stage of well-nigh effective direction. The first stage was antecedent to the Convention of November, 1906. During that period Japan limited herself to tendering counsels which Korea adopted or rejected at will. The second stage was marked by assumption of entire authority in the realm of foreign affairs; entire authority in the domain of communications; practically entire authority in military and police affairs, and vicarious authority in the Departments of State by means of Vice-Ministers, in the field of justice by the agency of assistant judges, and in provincial administration by means of secretaries who ranked as assistant-governors. The third stage has just been inaugurated; military control has been made complete; judicial control has been made complete, and financial control has been made well-nigh complete. Very little remains to be done."

-----KOREA: End-----

KOSSUTH, Ferencz:

Leader of the Independence Party in Hungary.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1902-1903; 1904;
1905-1906; 1908-1909.

KRATZ, Charles:

Municipal "Boodler" of St. Louis.

See (in this Volume)

MUNICIPAL GOVERNMENT.

KRONSTADT:

Revolutionary Disturbances.

The treachery that defeated the Rising of 1906.

See (in this Volume)

RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER), and
1906 (AUGUST).

KUANG-HSU: Emperor of China.

His death.

See (in this Volume)

CHINA: A. D. 1908 (NOVEMBER).

KUENSAN HILL, CAPTURE OF.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

KULTURKAMPF, The.

See (in this Volume)

EDUCATION: PRUSSIA; A. D. 1904.

KURINO: JAPANESE MINISTER AT ST. PETERSBURG.

See (in this Volume)

JAPAN: A. D. 1901-1904.

KUROKI, General.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

KUROPATKIN, General:

In the Russo-Japanese War.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

KUYPER, REVEREND DR. ABRAHAM.

See (in this Volume)
NETHERLANDS: A. D. 1905-1909.

L.

LABOR EXCHANGES ACT, British.

See (in this Volume)
POVERTY, PROBLEMS OF: ENGLAND.

-----LABOR ORGANIZATION: Start-----

Trade Unions
Labor Parties
Strikes
Lockouts
Mediations
Arbitrations
Industrial Agreements

LABOR ORGANIZATION: Australia: A. D. 1886-1906.

The Rise of the Labor Party.
Its rigorous organization.

Some account of the part played in Australian politics by the
Labor Party is given elsewhere.

See, in this Volume,
AUSTRALIA: A. D. 1903-1904, and after.

The circumstances of the rise and growth of the party are
related briefly and the rigorousness of its organization is
described in the following:

"To trace the origin of the movement we must go back to the fall of prices which began about 1886, to the succeeding lean years 1886-1892, and the miseries of the consequent period of unsuccessful strikes. The strikers and their working-class sympathizers were taunted with appealing to brute force, and recommended to depend rather upon constitutional political methods for the redress of grievances. The workingmen took the advice and bettered it. The trades unions devoted a portion of their funds and much of their energy to political propaganda. First in New South Wales, later in all the colonies and in many widely separated districts, labor leagues were organized which sketched out a policy and laid down a pledge which all candidates supported by the leagues must sign. These formed the nucleus of a new and independent political party which gave their votes to either Liberal or Conservative indifferently, regardless of which was in office, in return for legislative concessions from either. The new party springing thus almost simultaneously to life all over the continent was at first regarded as a pathetic joke. They were few in numbers, uneducated, inexperienced in affairs of state, and had opposed to them all the wealth and the legal astuteness in every chamber where they held seats. But they were determined, united, and, with rare exceptions, self-sacrificing. They were mutually bound not to take office except with the consent of their fellow-laborites, so that they were labeled from the first as 'Not for sale.' And from their point of view the plan has succeeded.

{371}

"Friend and foe alike pay tribute to the magnificent organization and discipline of the movement, and to the personal disinterestedness of the leaders. A great economy of effort is assured by having a platform and organization practically identical for the Federal, State and municipal elections, and for general propaganda work, and consequently

being able to utilize the same bodies—the local political labor leagues—and the same workers for what seems to them social righteousness, whether in national, State, or municipal concerns. The Labor party was born of trades-unionism, and its whole administration has been based on trades union methods. The political labor leagues were at first composed of trades-unionists, and are still closely in touch with trades unions. These are the bodies who vote for the selection of candidates for all elections and for delegates to the annual and triennial State and Federal conferences of the party. The Labor party in Parliament may be the controlling force, but no other party in Australia has to carry out the behests of its constituents as does this.

"We now come to the pledge and the caucus. The pledge, which was first drafted by the New South Wales Labor Conference in 1895, reads as follows: 'I hereby pledge myself not to oppose the candidate selected by the recognized political Labour organisation, and, if elected, to do my utmost to carry out the principles—embodied in the Federal Labour Platform, and on all questions affecting the Platform to vote as a majority of the Parliamentary Party may decide at a duly constituted caucus meeting.'

"As the pledge binds all members to carry out the general principles of a platform decided for him by the united labor vote of Australia, so each man has his vote in the legislature decided for him beforehand on all details of that policy by the caucus vote of his party in the legislature, before or during the course of debate. The advocates of the system say that this is the only way in which any consistent policy can be carried out to a successful end. Opponents assert that in it we have the germs of machine politics, and that labor may by and by pay dearly for its present victory. The large amount of direct representation in Australia, and the increasing probabilities of the initiative and referendum being more largely used, may check this tendency."

***Alice Henry,
The Australian Labor Movement
(The Outlook, November 3, 1906).***

LABOR ORGANIZATION: A. D. 1905-1909.
Failures of the Compulsory Arbitration Law.

In this Volume, under the heading—AUSTRALIA: A. D. 1905-1906,—an instance of failure in the operation of the compulsory Arbitration Law to arrest a strike of coal miners in New South Wales is recorded. The failure was repeated in the same field in the fall of 1909, when 12,000 miners of the Newcastle and Maitland collieries of New South Wales stopped work. "The men," it was reported, "demand an open conference to deal with the principal grievances, with resort, in the event of failure, to the Federal Arbitration Court or a special commission. The owners, on the other hand, insist on a conference with closed doors and the settlement of undecided questions under the State Industrial Act. They further want work to be resumed simultaneously with the opening of the conference. The men, however, refuse to hew coal until their grievances have been settled, but offer to carry on during the conference all work necessary to keep the mines in working order."

The correspondent who reported this went on to say:

"The public seems to be without a remedy against the strikers, since it is impossible to imprison the whole mass, and the imprisonment of the leaders would mean a general strike. In addition the only available labour for colliery purposes is controlled by the trade unions."

Evidently, however, the law was vindicated in the end, since a report from Sydney on the 29th of December, made known that 13 officials of the miners' union had been fined £100 each, with

two months hard labor in default.

LABOR ORGANIZATION: Austria: A. D. 1902.

During a strike of about 6500 men in various employments at Trieste, in February, 1902, there were conflicts with the military in which about 40 were killed and wounded. The demand was for an eight hours day, and it was conceded in the end, after an arbitration which decided in their favor. In the following August serious labor disturbances occurred in Galicia, where the peasants claimed better wages, and troops had to be sent to the region to restore order.

LABOR ORGANIZATION: Belgium: A. D. 1902.

General Strike of Workmen as Protest against the Plural Suffrage.

See (in this Volume)

BELGIUM: A. D. 1902.

LABOR ORGANIZATION: A. D. 1903.

Compensation for Injuries to Workmen.

After months of debate an Act prescribing compensation for accidents injurious to workmen was passed, attempts to attach to it the principle of compulsory insurance having failed.

LABOR ORGANIZATION: Canada: A. D. 1907-1908.

The Act known as "The Industrial Disputes Investigation Act."

Its main provisions.

Its object, not Compulsory Arbitration, but the Compulsory Attempting of Arbitration.

General success of the Act.

Failure to prevent Canadian Pacific Railway Strike.

In the judgment of many who give thought and study to labor

questions, the most promising experiment yet made in legislation for dealing with disputes between employers and workmen is the Canadian Act of March, 1907, entitled "An Act to aid in the Prevention and Settlement of Strikes and Lockouts in Mines and Industries connected with Public Utilities." The essence of the Act is in its 56th to 61st sections, which read as follows:

"56.

It shall be unlawful for any employer to declare or cause a lockout, or for any employee to go on strike, on account of any dispute prior to or during a reference of such dispute to a Board of Conciliation and Investigation under the provisions of this Act, or prior to or during a reference under the provisions concerning railway disputes in the Conciliation and Labour Act: Provided that nothing in this Act shall prohibit the suspension or discontinuance of any industry or of the working of any persons therein for any cause not constituting a lockout or strike: Provided also that, except where the parties have entered into an agreement under section 62 of this Act, nothing in this Act shall be held to restrain any employer from declaring a lockout, or any employee from going on strike in respect of any dispute which has been duly referred to a Board and which has been dealt with under section 24 or 25 of this Act, or in respect of any dispute which has been the subject of a reference under the provisions concerning railway disputes in the Conciliation and Labour Act.

{372}

"57.

Employers and employees shall give at least thirty days' notice of an intended change affecting conditions of employment with respect to wages or hours; and in every case where a dispute has been referred to a Board, until the dispute has been finally dealt with by the Board, neither of

the parties nor the employees affected shall alter the conditions of employment with respect to wages or hours, or on account of the dispute do or be concerned in doing, directly or indirectly, anything in the nature of a lockout or strike, or a suspension or discontinuance of employment or work, but the relationship of employer and employee shall continue uninterrupted by the dispute, or anything arising out of the dispute; but if, in the opinion of the Board, either party uses this or any other provision of this Act for the purpose of unjustly maintaining a given condition of affairs through delay, and the Board so reports to the Minister, such party shall be guilty of an offence, and liable to the same penalties as are imposed for a violation of the next preceding section.

"58.

Any employer declaring or causing a lockout contrary to the provisions of this Act, shall be liable to a fine of not less than one hundred dollars, nor more than one thousand dollars, for each day or part of a day that such lockout exists.

"59.

Any employee who goes on strike contrary to the provisions of this Act shall be liable to a fine of not less than ten dollars, nor more than fifty dollars, for each day or part of a day that such employee is on strike.

"60.

Any person who incites, encourages or aids in any manner any employer to declare or continue a lockout, or any employee to go or continue on strike contrary to the provisions of this Act, shall be guilty of an offence and liable to a fine of not less than fifty dollars nor more than one thousand dollars.

"61.

The procedure for enforcing penalties imposed or authorized to be imposed by this Act shall be that prescribed by Part XV. of

the Criminal Code relating to summary convictions."

A sufficient understanding of the practical operation of the Act may be derived from the following prescriptive sections:

"5.

Wherever any dispute exists between an employer and any of his employees, and the parties thereto are unable to adjust it, either of the parties to the dispute may make application to the Minister for the appointment of a Board of Conciliation and Investigation, to which Board the dispute maybe referred under the provisions of this Act: Provided, however, that, in the case of a dispute between a railway company and its employees, such dispute may be referred, for the purpose of conciliation and investigation, under the provisions concerning railway disputes in the Conciliation and Labour Act.

"6.

Whenever, under this Act, an application is made in due form for the appointment of a Board of Conciliation and Investigation, and such application does not relate to a dispute which is the subject of a reference under the provisions concerning railway disputes in the Conciliation and Labour Act, the Minister, whose decision for such purpose shall be final, shall, within fifteen days from the date at which the application is received, establish such Board under his hand and seal of office, if satisfied that the provisions of this Act apply.

"7.

Every Board shall consist of three members who shall be appointed by the Minister. Of the three members of the Board one shall be appointed on the recommendation of the employer and one on the recommendation of the employees (the parties to the dispute), and the third on the recommendation of the members so chosen."

"11.

No person shall act as a member of the Board who has any direct pecuniary interest in the issue of a dispute referred to such Board."

"23.

In every case where a dispute is duly referred to a Board it shall be the duty of the Board to endeavour to bring about a settlement of the dispute, and to this end the Board shall, in such manner as it thinks fit, expeditiously and carefully inquire into the dispute and all matters affecting the merits thereof and the right settlement thereof. In the course of such inquiry the Board may make all such suggestions and do all such things as it deems right and proper for inducing the parties to come to a fair and amicable settlement of the dispute, and may adjourn the proceedings for any period the Board thinks reasonable to allow the parties to agree upon terms of settlement.

"24.

If a settlement of the dispute is arrived at by the parties during the course of its reference to the Board, a memorandum of the settlement shall be drawn up by the Board and signed by the parties, and shall, if the parties so agree, be binding as if made a recommendation by the Board under section 62 of this Act, and a copy thereof with a report upon the proceedings shall be forwarded to the Minister.

"25.

If a settlement of the dispute is not arrived at during the course of its reference to the Board, the Board shall make a full report, thereon to the Minister, which report shall set forth the various proceedings and steps taken by the Board for the purpose of fully and carefully ascertaining all the facts and circumstances, and shall also set forth such facts and circumstances, and its findings therefrom, including the cause of the dispute and the Board's recommendation for the

settlement of the dispute according to the merits and substantial justice of the case.

"26.

The Board's recommendation shall deal with each item of the dispute and shall state in plain terms, and avoiding as far as possible all technicalities, what in the Board's opinion ought or ought not to be done by the respective parties concerned. Wherever it appears to the Board expedient so to do, its recommendation shall also state the period during which the proposed settlement should continue in force, and the date from which it should commence."

"28.

Upon receipt of the Board's report the Minister shall forthwith cause the report to be filed in the office of the Registrar and a copy thereof to be sent free of charge to the parties to the dispute and to the representative of any newspaper published in Canada who applies therefor, and the Minister may distribute copies of the report, and of any minority report, in such manner as to him seems most desirable as a means of securing compliance with the Board's recommendation."

{373}

The fundamental object of the law, as will be seen, is not to compel arbitration, but to compel an attempt at arbitration, before any strike or lockout is permitted, and to give authentic and full publicity to all the circumstances which can justify or condemn a strike or lockout, if one occurs. So far in the experience of Canada with this wise enactment it has generally been successful in bringing about a peaceful settlement of labor disputes. It failed in the case of a disagreement between the Canadian Pacific Railway Company and its mechanical employés, which arose in April, 1908, when the Company served notice of a reduction of wages to one class of

boiler-makers, and of an increase in the proportion of apprentices to be employed in its shops, together with some changes of rules concerning machine tools, etc. The men applied for the appointment of a Conciliation Board, in accordance with the law, but were not satisfied with the conclusions reported by a majority of the Board, and struck, as the law then permitted them to do. The strike was weakened by the unfavorable public opinion which the investigation produced.

LABOR ORGANIZATION: England: A. D. 1892-1901.
A Statistical Study of Ten Years of Trade Disputes.

The following is the concluding summary of an elaborate statistical study of Strikes and Lockouts in England during the ten years from 1892 to 1901, made by an eminent statistician, Mr. J. H. Schooling:

"To sum up the chief practical points that seem to have come out of this examination of trade disputes during 1892-1901, these are:

"(a)

An improvement during 1897-1901 as compared with 1892-1896.

"(b)

An altogether undue predominance of the Mining and Quarrying Trades in trade disputes, not only actually, but also relatively to the industrial population of each group of trades compared. This is a most unsatisfactory feature, for the reason that so many other trades depend upon non-interruption of coal mining for their successful working. Therefore, efforts to prevent disputes should be specially directed to the Mining and Quarrying Trades.

"(c)

Nearly two-thirds of all trade disputes are caused by disputes

about wages, and nearly one-half of all trade disputes are caused by a demand by workpeople for 'an increase of wages.' Only 6 per cent. of all disputes are caused by resistance 'against decrease of wages.' ...

"(d)

Trade Unionism is not so productive of strikes as it is commonly supposed to be.

"(e)

Conciliation Boards, etc., do not cause the settlement of many disputes after the dispute has commenced. Their work is in the direction of preventing strikes and lock-outs. That this work is effective and that it should be zealously promoted is evidenced by the fact that in 1901, 75 per cent. of all changes in wages and in hours of labour were arranged by sliding scales, wages boards, or by other peaceful methods, while only 2 per cent. of these changes followed upon strikes or lock-outs.

"(f)

The respective chances of success by workpeople or by employers when a trade dispute is entered upon are, in round numbers:

150 chances for the employers; and

100 chances for the workpeople.

"In addition to this relatively small chance of success by workpeople when they strike, the cost to them and to their trade organisations is relatively greater than the cost to employers."

***J. H. Schooling,
Strikes and Lock-outs, 1892-1901
(Fortnightly Review, May, 1904).***

LABOR ORGANIZATION: A. D. 1900-1906.

The Taff Vale Decision.
Trades Unions made liable for Damages.
Resulting amendment of the English Law.

In the summer of 1900 a strike of employés of the Taff Vale Railway Company occurred, which lasted only a fortnight or thereabouts, but had large and important consequences. During the strike the Company applied for an injunction to restrain two officers of the Amalgamated Society of Railway Servants from interfering as such with the affairs of the road. The Society opposed the application, on the ground that it was not a corporation or an individual and could not be sued. Justice Farwell, before whom the case came, held that a trade union was a corporate body, responsible for illegal acts committed by its officers. This decision was a serious menace to the unions generally, and they cooperated extensively with the Amalgamated Society in carrying an appeal to the higher courts. The case was argued in the Court of Appeals in November, 1900, and the justices of that court reversed the decision of Justice Farwell. The plaintiff in the suit, the Railway Company, then carried it to the tribunal of last resort, the House of Lords, and there, in July, 1902, the judgment of the Court of Appeals was set aside and that of Justice Farwell was sustained, making it the law of Great Britain, that a trade union is a legal entity, capable of suing and being sued. On this decision the Taff Vale Railway Company brought suit against the Amalgamated Society for damages, and obtained a verdict on the 20th of December which awarded the Company £28,000.

A strenuous endeavor to overcome the effect of the decision rendered by the House of Lords, through amendatory legislation, was begun by the Labor Party, with strong sympathy among the Liberals, and it had success. An Act (which became law on the 21st of December, 1906) "to provide for the regulation of Trades Unions and Trade Disputes," added the following "as a new paragraph after the first paragraph of

section three of the Conspiracy and Protection of Property Act, 1875":

"An act done in pursuance of an agreement or combination by two or more persons shall, if done in contemplation or furtherance of a trade dispute, not be actionable unless the act, if done without any such agreement or combination, would be actionable."

Further provisions of the new Act were as follows:

"2.

It shall be lawful for one or more persons, acting on their own behalf or on behalf of a trade union or of an individual employer or firm in contemplation or furtherance of a trade dispute, to attend at or near a house or place where a person resides or works or carries on business or happens to be, if they so attend merely for the purpose of peacefully obtaining or communicating information, or of peacefully persuading any person to work or abstain from working. ...

{374}

"3.

An act done by a person in contemplation or furtherance of a trade dispute shall not be actionable on the ground only that it induces some other person to break a contract of employment or that it is an interference with the trade, business, or employment of some other person, or with the right of some other person to dispose of his capital or his labour as he wills.

"4.

(1) An action against a trade union, whether of workmen or masters, or against any members or officials thereof on behalf of themselves and all other members of the trade union in respect of any tortious act alleged to have been committed by

or on behalf of the trade union, shall not be entertained by any court.

(2) Nothing in this section shall affect the liability of the trustees of a trade union to be sued in the events provided for by the Trades Union Act, 1871, section nine, except in respect of any tortious act committed by or on behalf of the union in contemplation or in furtherance of a trade dispute.

LABOR ORGANIZATION: A. D. 1903.

Political effect of the Taff Vale Decision of the House of Lords, stimulating the growth of the Labor Party.

The Taff Vale Decision rendered by the House of Lords gave an immediate great impetus to the growth and the independence of the Labor Party, pledged by a resolution adopted at a "Labor Representation Conference" held in February, 1903, to insist that Labor candidates and Labor Members of Parliament when elected should "strictly abstain from identifying themselves with the interests of any section of the Liberal or Conservative parties," holding themselves free to act solely for the purpose of "securing the social and economic requirements of the industrial classes." The same conference took action for the creation of a fund for the payment of Labor Members of Parliament and for assisting in the payment of election expenses. The effects of the movement were soon felt in Parliamentary elections.

See (in this Volume),
SOCIALISM: ENGLAND.

LABOR ORGANIZATION: A. D. 1906 (March).

Report of Royal Commission on Labor Disputes.

A Royal Commission on Labor Disputes, appointed in England in 1903, submitted its report in March, 1906. The trades unions had declined to take part in its investigations, though their

interests were represented on the Commission by one of the ablest and staunchest champions of the rights of labor, Sidney Webb. Coal mine owners were represented by one member; the remaining three members were Lord Dunedin, President of the Court of Session, Sir Godfrey Lushington, formerly of the Home Office, and an eminent lawyer of Liberal politics, Arthur Cohen. The most important recommendation of the Commission was that "an agreement or combination by two or more persons to do or procure to be done any act in contemplation or furtherance of a trade dispute shall not be the ground of a civil action, unless the agreement or combination is indictable as a conspiracy, notwithstanding the terms of the 'Conspiracy and Protection of Property Act of 1875.'" The Act of 1875 had so modified the old conspiracy law that no combination to do what would not be punishable by imprisonment if done by a single person could be made the subject of a criminal proceeding. The Commission now advised an extension of the same rule to civil actions. But, by unanimous agreement the Commission approved the decision rendered by the House of Lords in the Taff Vale case (see above), which took away from trades unions in Great Britain the immunity from being sued which they had formerly enjoyed. As to the right of "picketing," in the prosecution of a labor strike, the Commission would have it limited only to prevent coercion by menace or intimidation in the performance. It recommended punishment for a workman who "acts in such a manner as to cause a reasonable apprehension in the mind of any person that violence will be used to him or to his wife or family, or damage be done to his property."

In the judgment of the Commission the incorporation of trades unions is much to be desired. These are the main conclusions to which it was led by its long study of the subject of industrial disputes.

LABOR ORGANIZATION: A. D. 1907-1909.

Excellent Settlement of a threatened Railway Strike.

Adopted System of Conciliation and Arbitration Boards.

A general railway strike in Great Britain was threatened very seriously in the autumn of 1907, when the Amalgamated Society of Railway Servants, ably led by its Secretary, Mr. Richard Bell, who is a Member of Parliament, presented demands to the companies which the latter would not yield to. Mr. David Lloyd-George, the then President of the Board of Trade—which is a department of the National Government—undertook to negotiate a peaceable settlement of the dispute, and accomplished it with remarkable success. The outcome of his skilful diplomacy was the acceptance, November 6, 1907, by both companies and men of a comprehensive scheme for conciliation and arbitration, which provided for the formation of boards for each railway, consisting of representatives of the company and of the men, to consider thereafter any question relating to rates of wages and hours of duty. The scheme further provided that questions which these boards were unable to settle were to be referred to a single arbitrator.

The London and North-Western was the first railway company to complete its arrangements in connection with the scheme, and demands from most of the grades concerned in the working of traffic, numbering about 39,000 men, were considered by the newly-formed conciliation boards. The principal grades concerned were: Engine drivers, firemen and cleaners; signalmen; brakesmen and shunters; passenger guards and platform porters; carriage cleaners, wagon examiners and greasers; permanent way men; goods staff; cartage staff.

As agreement in the London and North-Western case was found impossible, reference was made to arbitration, and Sir Edward Fry was chosen to be arbitrator. He gave hearings on the questions in controversy in December, 1908, and his award was announced in the February following. He decided that the railway company had made good its contention that it could not pay an "all round advance" in wages of two shillings per week, which had been the demand for all grades in the service.

{375}

He allowed, in fact, few increases in wages; but awarded, on the contrary, some reductions in wage which the company claimed. On other points, concerning the pay for overtime, etc., his award was to the satisfaction of the railway employés. On the whole, it seems to have ended the dispute with considerable satisfaction all round. On this first decision under the new arrangement for settling disputes, Mr. Bell expressed himself as "very pleased to find that a great many of the concessions asked for have been embodied by the arbitrator in his award. We have got," said he, "rate and a quarter for overtime for all classes uniformly. We have got rate and a quarter for Sunday duty for signal men, as well as other grades who have hitherto not been paid extra rates. We have got payment for Sunday labour for the passenger staff—men who were formerly not paid for Sunday duty; we have established the principle that men doing the work of a higher grade for more than one day shall be paid at the rate of the higher grade. That is the principle we have been fighting for for several years, and it will mean many shillings per week to thousands of men. A very important item of the award is the decision that no alteration shall be made in the shape of increased hours or reduced wages in regard to men whose claims were submitted to the arbitrator, but whose conditions have not been altered by the award. We have always, hitherto, had to complain about companies 'cutting,' but the London and North-Western cannot do it here."

Mr. Bell mentioned that several other similar claims against other companies were going to arbitration, but while he thought that Sir Edward Fry's decisions might have some influence upon future conferences, he pointed out that other arbitrators will possibly refuse to accept any lead, but decide matters entirely upon their own views after dealing with the particular cases.

A general report to the Board of Trade, on the working of the

Railway Conciliation Boards, under the agreement of November 6, 1907, was published in March, 1909, as a Blue Book, from which the following is taken:

"The agreement was signed initially on behalf of 11 of the principal railway companies, but adhesion to its terms was afterwards signified, subject in the case of the Scottish companies to modifications of certain clauses upon matters of detail, by 35 other companies, making a total of 46 railway companies that have adopted the arrangements proposed by the Department for avoiding the serious results that would attend a cessation of labour on railways. The assenting companies include nearly all those having as many as 200 *employés* in their service, and in fact the only companies that have not adopted the scheme are small companies for which the formation of conciliation boards was not thought to be required, and a few of the larger companies to whose lines the provisions of the agreement were for special reasons unsuitable. ...

"For the 46 railways dealt with under the scheme, the number of boards to be formed, apart from the central conciliation boards, was 169, and the total number of representatives to be elected on such boards was 877. On 44 of the railways there was provision for a central board in addition to the sectional boards, thus making a total of 213 conciliation boards to be formed altogether under the scheme. ... Eight hundred and fifty representatives of *employés* were to be elected in these 416 elections, and for these places the total number of candidates nominated was 1,608.

"The total number of *employés* eligible to vote upon the various railways coming within the scheme is estimated at a little over 270,000. After allowing for cases where the representatives were returned unopposed, it is found that where voting papers have actually been issued, over 77 per cent. of the *employés* eligible have availed themselves of the franchise."

LABOR ORGANIZATION: A. D. 1908.

"A Notable Labor Treaty."

The Shipbuilding Agreement between Employers and Trade Unions to avert Strikes and Lockouts.

In the early part of 1908 the woodworkers in the shipbuilding yards of the north of England went on strike against a reduction in wages, which was equivalent to one that the ironworkers in all the British shipyards and the woodworkers in the Scotch yards had accepted. The Federation of Shipbuilding Employers then notified a national lockout unless the strikers resumed work pending the adjustment of the dispute by conference. For some time past there had been negotiations on foot between the federated employers and certain of the other shipbuilding labor unions, aiming at the conclusion of a permanent working agreement for the prevention of strikes. The woodworkers were now brought into this negotiation, and after a long threshing out of disputes, in a joint committee of representatives from twenty-six trade unions and from the employers' federation a "Memorandum of Agreement" was produced which all signed on the 16th of December, 1908, and which the London *Times*, making it public on the 11th of January, characterised rightly as "A Notable Labor Treaty." The provisions of this industrial agreement seem to be of so much historical importance that we give the important sections entire:

"I.—GENERAL FLUCTUATIONS IN WAGES.

"(1) Changes in wages due to the general conditions of the shipbuilding industry shall be termed general fluctuations. Such general fluctuations in wages shall apply to all the trades comprised in this agreement and in every federated firm at the same time and to the same extent. Differences in rates of wages in any trade in different districts can be dealt with as heretofore under clause II., section 3.

"(2) In the case of all such general fluctuations the following provisions and procedure shall apply, viz.:

(a) No step toward an alteration in wages can be taken until after the lapse of six calendar months from the date of the previous general fluctuation.

(b) Before an application for an alteration can be made, there shall be a preliminary conference between the federation and the unions, in order to discuss the position generally. Such conference shall be held within 14 days of the request for the same,

(c) No application for an alteration shall be competent until the foregoing preliminary conference has been held, and no alteration shall take effect within six weeks of the date of the applications.

(d) The application for a proposed alteration shall be made as follows: The federation to the unions parties to this agreement; or the said unions to the federations,

(e) Within 14 days after the receipt of an application the parties shall meet in conference.

(f) The conference may be adjourned by mutual agreement, such adjourned conference to be held within 14 days thereafter.

(g) Any general fluctuation in trademen's rates shall be of the following fixed amount, viz.:—Piecework rates, 5%; and Time rates 1 /- per week [sic], or ¼d. per hour where payment is made by the hour.

"II.
QUESTIONS OTHER THAN GENERAL FLUCTUATIONS IN
WAGES.

"(1) When any question is raised by or on behalf of either an employer or employers, or of a workman or workmen, the following procedure shall be observed, viz.:—

(a) A workman or deputation of workmen shall be received by their employers in the yard or at the place where a question has arisen, by appointment, for the mutual discussion of any question in the settlement of which both parties are directly concerned; and failing arrangement, a further endeavour may, if desired, be then made to negotiate a settlement by a meeting between the employer, with or without an official of the local association, on the one hand, and the official delegate, or other official of the workmen concerned, with or without the workman or workmen directly concerned, as deemed necessary.

(b) Failing settlement the question shall be referred to a joint committee consisting of three employers and three representatives of the union or of each of the unions directly concerned, none of whom shall be connected with the yard or dock where the dispute has arisen,

(c) Failing settlement under subsection (b), the question shall be brought before the employers' local association and the responsible local representatives of the union or unions directly concerned in local conference.

(d) Failing settlement at local conference, it shall be competent for either party to refer the question to a central conference to be held between the executive board of the federation and representatives of the union or unions directly concerned, such representatives to have

executive power.

"(2) If the question is in its nature a general one affecting more than yard or dock, it shall be competent to raise it direct in local conference, or if it is general and affecting the federated firms or workmen in more than one district, it shall be competent to raise it direct in central conference without in either case going through the prior procedure above provided for.

"(3) The questions hereby covered shall extend to all questions relating to wages, including district alterations in wages and other matters in the shipbuilding and ship repairing trade, which may give rise to disputes.

"III.—GRAND CONFERENCE.

"In the event of failure to settle any question in central conference under clause II., section 1, subsection (*d*), either party desirous to have such question further considered shall prior to any stoppage of work refer same for final settlement to a grand conference to be held between the federation and all the unions parties to this agreement. A conference may by mutual agreement be adjourned. On any occasion when a settlement has not been reached, the conference must be adjourned to a date not earlier than 14 days nor later than one month from the date of such conference. ...

"VI.—GENERAL PROVISIONS.

"At all meetings and conferences the representatives of both sides shall have full powers to settle, but it shall be in their discretion whether or not they conclude a settlement.

"In the event of any stoppage of work occurring in any federated yard or federated district either in contravention

of the foregoing or after the procedure laid down has been exhausted, entire freedom of action is hereby reserved to the federation, and any federated association, and to the unions concerned, notwithstanding the provisions of this agreement. The suspension of the agreement shall be limited to such particular stoppage, and the agreement in all other respects shall continue in force.

"Pending settlement of any question other than questions of wages, hours, and piece prices (the last-named of which is provided for above), two or three employers not connected with the yard where the question has arisen shall give a temporary decision, but such decision shall be without prejudice to either party, and shall not be adduced in evidence in the ultimate settlement of the question.

"The expression 'employer' throughout this agreement shall include an employer's accredited representative.

"Until the whole procedure of this agreement applying to the question at issue has been carried through there shall be no stoppage or interruption of work either of a partial or of a general character.

"VII.—DURATION OF AGREEMENT.

"This agreement shall continue in force for three years, and shall thereafter be subject to six months' notice in writing on either side, said notice not to be competent until the three years have elapsed."

Signed by the President of the Shipbuilding Employers Federation and by seven representatives of the Trades Unions.

LABOR ORGANIZATION: A. D. 1909.
Educational Demands of the Trade Unions.

See (in this Volume)
EDUCATION: ENGLAND.

LABOR ORGANIZATION: A. D. 1909.
Trade Unions forbidden to pay Members of Parliament.

See (in this Volume)
ENGLAND: A. D. 1909 (JULY-DECEMBER).

LABOR ORGANIZATION: France: A. D. 1884-1909.
Organized Labor in the French Republic.
The Syndicats and Syndicalism.
A Trade Union version of Socialism.
The Confédération Générale du Travail,
and the idea of a general strike.
Its revolutionary implication.

The strike of government employés in the French telegraph and postal service, begun in March, 1909, and which was recognized instantly as a most alarmingly revolutionary movement, roused inquiry everywhere concerning the form and character that labor organization in France has taken on. The London *Times* gave elaborate satisfaction to this inquiry by a series of five articles, published in April, by a writer whose evident knowledge of the subject was complete. The statements here following are condensed from that source:

{377}

The organization of labor in France differs in important respects from that in Great Britain and the United States. "The French term for trade unions is *syndicats*, or, more correctly, *syndicats professionnels*; but the two terms are not equivalent or synonymous. For, whereas the word 'trade union' is applied only to combinations of persons employed, the *syndicats* include also combinations of employers and of both together." The employers' associations are called

syndicats patronaux. "A trade union is a combination of persons engaged in the same trade without any reference to locality; they may be and generally are widely distributed in many places; the bond is the trade, not the locality; hence the use of the singular number. There is another kind of combination formed by several trades in the same locality and called a trades council; the bond is the locality, not the trade. Both forms of organization exist in France; the trade union is called ***syndicat ouvrier***, and the trades council ***bourse du travail***. ... Both play a part in the movement, and, though in the aggregate they are composed of the same individuals, their policy and interests are not always or necessarily identical. Both are further combined into federations.

"The effective development of trade unionism in France only dates from 1884, when the law authorizing the formation of ***syndicats professionnels*** was passed." Unions had existed before, but under difficulties, without sanction of law. "The peculiarity of the struggle for the right of combination in France was that the necessity remained under numerous changes and diverse forms of government ... and that the democratic State was not less but rather more oppressive than the others. ... It was the National Assembly, travailing with the Revolution, which, in the sacred name of liberty and the rights of man, forbade the citizens to form trade organizations by the law of 1791; and for nearly 100 years this ban remained through all the subsequent changes, sometimes fortified, sometimes relaxed, but never removed." The law of 1791 was relaxed under Napoleon III., but the severity of it was renewed by the Government of the Third Republic, down to 1884. In that year, according to official returns, there existed but 68 regularly constituted unions in France. By 1890 the number had increased to 1006, with a membership of 139,692. In 1908 the reported number of unions was 5524, and their membership 957,102. "The aggregate is as yet comparatively small, and, numerically, trade unionism is

still relatively weak in France; but the example of Germany shows how rapidly this movement may increase in strength. According to the occupational census of 1901 the number of persons in France who might be enrolled in trade unions was approximately 9,000,000; and the numbers would not be substantially higher now, so that the official returns show roughly about 10 per cent. organized. ... With regard to organization by industries the largest number of trade unionists belonged in 1907 to the following groups:

Transport,	260,869;
metal industries,	103,835;
textiles,	78,854;
building trades,	66,678;
miners,	64,194;
agriculture and forestry,	51,407;
food and drink,	48,353.

But trade union strength depends, for economic purposes, more upon the proportion of workers organized in a given trade than upon the actual number. From this point of view the strongest groups are, with the percentage of workers organized, as follows:

Miners,	35 per cent;
chemical industries,	31.2;
transport,	23.4;
paper and printing,	20.9;
leather,	20.0;
metal workers,	18.7.

These figures have an important bearing on the situation, because of the division, which will be discussed in a subsequent article, of the unions into revolutionary and

moderate groups. As for geographical distribution, Paris is the great centre, and the north of France is much stronger than the south."

"The term ***bourse du travail*** means literally 'labour exchange,' and that was the original function of these organizations; it still is one of them, but is overshadowed by the all-devouring political aims which in France seem to seize hold of all things, one after another, and swallow them up. The ***bourses*** were started in 1886, two years after trade unionism received its charter. ... But instead of being used for their original purpose, strictly as labour exchanges, they soon became a form of labour organization corresponding as nearly as possible to our trade councils, though supported by municipal or departmental subventions. ... According to M. Mermeix, to whose brilliant work on 'Le Syndicalisme contre le Socialisme' I am indebted for much information, the *syndicats* were promptly seized upon by the Guesdist or Social Democratic party as soon as they began to develop freely after 1884, and the other Socialist bodies, who were then in violent antagonism, responded by cultivating the ***bourses du travail***. The inevitable result was a strong political turn given to both sets of organizations; but it was not the turn intended by the Socialists. For presently the ***syndicats*** and the ***bourses***, which really represent 'Labour' turned against the politicians called Socialists, who do not represent 'Labour,' and made common cause against them."

"The most obvious feature of the movement in recent years has been a great increase of industrial restlessness. We need not put it all down to the trade unions, but they have had a good deal to do with it, and have undoubtedly been devoting their energies in an increasing measure to strikes." This "began in 1899 and has continued, with fluctuations, ever since. It reached its high-water mark in 1906, and then somewhat subsided, but recent events show that the same spirit is still active. And besides increasing in number, extent, and

duration, the strikes have frequently been marked by acts of violence and attended in several cases by loss of life. All this, in spite of a system of conciliation and arbitration and strong organization on the part of employers. What is the cause? There has been nothing in the economic situation to account for industrial disorder continued over a series of years. ...

"**Syndicalisme** is the distinctive mark of the present labour movement in France. ... Perhaps the essential character of **Syndicalisme** is best expressed by saying that it is a purely trade union version of Socialism, definitely and even violently opposed to Collectivism and more nearly allied to anarchism, yet distinct from it. ... The object of Syndicalisme is revolution, sudden and complete, in which the State, with all the apparatus of government, is to disappear, and the possession and control of material means—which alone count—is to pass from the hands of its present owners, whether private or public, into those of organized labour. This original idea is Socialistic or Collectivist in so far as it is directed against capitalism; it is anarchistic in so far as it contemplates the disappearance of the State; but, above all, it is trade unionist, for the **syndicat** is posited as the unit or cell of the future social organism. ...

{378}

To complete this brief outline of the idea of **Syndicalisme** it is only necessary to add that the means whereby the revolution is to be accomplished is the general strike, and that, pending that consummation, ordinary strikes are systematically encouraged as good practice, in which, as by skirmishes or manoeuvres, the labour forces are trained and prepared for the great encounter."

The idea of a general strike was put forward in 1888 by an anarchist Parisian carpenter named Tortelier, and the militant forces of organized labor rallied to it. It brought together the two sets into which labor organization had split—the

Guesdist party, controlling the *Syndicats*, and their opponents in possession of the *bourses du travail*. It "caused the rout and withdrawal of the Social Democrats, and so led to the birth of *Syndicalisme*. The turning point was reached in 1894 at a joint congress held at Nantes, when after a set debate the general strike was adopted by 65 votes against 37, with nine abstinents. In the following year the Confédération Générale du Travail was formed as a new and united federation of trade unions, purged of politics, or, at least, of Parliamentary politics; and thenceforward the two sets of organizations—trade unions and trades councils—drew the labour car together; but at first and for some years they by no means pulled together." In 1902 they were harmonized, "mainly by the efforts of M. Niel," who has been called the real creator of the *Confédération Générale*, to the head of which, as general secretary, "which means president," he was elected in February, 1909. "The word 'president' is eschewed, as savoring of the *bourgeois* state." M. Niel is a compositor. "He is of the best type of trade unionist; a calm, capable, level-headed man, devoted to trade unionism, but no crazy theorist or violent fanatic."

"The numerical strength of the Confederation or its want of strength is a point on which its enemies are never tired of insisting. In October last the official figures presented to the congress at Marseilles were: First section, 2,586 *syndicats*, with an aggregate membership of 294,398; second section, 154 *bourses du travail*, representing 2,014 *syndicats*. The figures must not be added together, because the two sections represent the same or almost the same forces, differently organized. The returns of the first section show the effective membership, and we may call it 300,000. Now the official statistics of the *Ministère du Travail* give the total membership of *syndicate ouvriers* at the beginning of 1908 as 957,102. The Confederation, therefore, embraces less than one-third of the organized labour in France. But that calculation is open

to some criticisms; the Government returns are said to be too high, those of the Confederation too low. There is probably some truth in both statements."

LABOR ORGANIZATION: A. D. 1902.

Extensive Strike of Coal Miners.
Strikes at Marseilles.

On the 8th of October, 1902, the National Committee of French Miners, meeting at Paris, voted to declare a general strike, and issued a manifesto to their comrades in Europe, America, and Australia, appealing for aid and stating their cause, in these words; "We are pushed to the last extremity in fighting to obtain a slight improvement in our miserable condition—more equitable remuneration, with the regulation of our work for the present, and legislation sheltering us against the strict needs of old age. We are sure you understand your duty. We leave to you the initiative in such measures as are most convenient to you in aiding us in this struggle." The strike had actually begun in part before this order was given and it was estimated that some 42,000 men had left work in the northern coal fields. The whole number of French miners was calculated by the *Temps* to be 162,000 men, of whom, however, only 60,000 belonged to the federation. The mine owners refused to discuss the matter, declaring that the strike began before any warning had been given them and without any sufficient motives, and also that the chief points in dispute were already before parliamentary committees. Troops were sent to the mining districts, and some conflicts occurred. The Government attempted arbitration, and late in October an agreement was reached which brought the strike to an end.

At the same time troublesome strikes of dock-laborers, stokers, and sailors were going on at Marseilles, for some weeks.

LABOR ORGANIZATION: A. D. 1906.
Serious Strikes and Labor Disturbances.

See (in this Volume)
FRANCE: A. D. 1906.

LABOR ORGANIZATION: A. D. 1909 (March-May).
Serious Strike of Government Employés in the Telegraph
and Postal Service.
Overcome by the firmness of the Government.
Disciplinary proceedings.
Court decision against Trade Unions among
Employés of the State.

The organizations involved in the strike of government employés in the telegraph and postal service of France, which began on the 13th of March, 1909, are outside of the Labor *Syndicats* embraced in the *Confédération Générale du Travail* described above; but in part they have been brought into close connection with that combination and have striven for identification with it. As explained by the Paris correspondent of the London *Times*, "the associations of French Civil servants include two quite separate groups—one in favour of Parliamentary action, the other sympathizing with the General Confederation of Labour and desiring to be allowed to combine freely and, when it suits them, to strike. The former group is represented by a Comité d'Études so-called, and includes a large number of primary school teachers and *Lycée* professors, the association of the Law Courts clerks, sub-*employés* at the Post Office, *employés* of the Roads and Inland Communications Department of the Ministry of Public Works, and so forth. These various associations, forming the first group, are convinced that their lot can be quite adequately improved if Parliament will only vote a satisfactory Bill on the *status* of functionaries. The second group has no confidence whatever in such a measure. It does not count on

Parliament for a panacea. Under the title of 'Central Committee for the defence of the syndical rights of wage-earners of the State, the departments, and the communes,' it has always worked in unison with the revolutionary unions of the General Confederation of Labour, and it was this group which wrote two years ago to M. Clemenceau an open letter stating their demands, among which the most important of all was the right to strike.

{379}

In consequence of that manifestation, which was regarded as illegal, a certain number of functionaries were dismissed, notably, as readers of *The Times* will recall, a school teacher by the name of Nègre, an official of the Ministry of the Interior, M. Janvion, a postman named Simonnet, and an electrician, M. Pataud."

These dismissed officials, M. Pataud especially, were the leaders of the strike that was undertaken on the 13th of March, when twelve hundred men employed in the central offices of the Paris Telegraph Department stopped work at about 2 o'clock in the afternoon, "in order to express 'sympathy' with three hundred men of the postal service who had invaded the offices on the 12th, and had made a demonstration against M. Simyan, the Under-Secretary of State for Posts and Telegraphs." "The precise grievances of the strikers," said *The Times*, "are probably known to their superiors; but, so far as we have seen, they have not been placed before the outside world in any form which renders it possible even clearly to understand them."

On the other hand, a special correspondent of the New York *Evening Post* wrote from Paris on the 25th of March: "The strike of these government employees may have been a side development of the general movement which threatens to transform the Parliamentary French republic into a *république syndicale*; but, in itself, it was something far different. And, for another reason, it is a direct

object-lesson for the United States, where the trade unions are not yet revolutionary. The entire strike has been a spontaneous uprising of civil service in possession against the invasion of a spoils system. The strike would not have been possible if these civil service appointees—‘government functionaries’—had not formed themselves into strongly organized unions, just as private service employees have long been doing; and in this they have been encouraged by successive republican governments, unforeseeing perhaps such strikes as the inevitable consequence. The spoils system in the present case means the intervention of political influence in civil service appointments and promotions." The strikers, said this writer, want essentially two things, "First, that politicians—and particularly Postmaster-General Simyan, who was taken over from M. Combes into the present government—should cease interfering with civil service appointments and promotions and no longer use their power in behalf of the favorite of some deputy with ‘influence.’"

The situation produced in Paris by the strike was thus described by this correspondent of ***The Post***: "We of Paris were for eight days in the same condition as Frenchmen were before Richelieu invented a State postal service for the use of private persons. For example, my last letters were sent—one to Havre by a special messenger who was carrying by hand cable messages for several correspondents to be forwarded from that port; one to London by another special messenger, who posted it with many others in a channel boat; and a third to Cherbourg by the kindness of the American Chamber of Commerce of Paris, which organized a service of its own for its members. ... If there had been a sudden outbreak between Servia and Austria last week, the French government would have known little about it, and, in case of need, army mobilization would have been impossible."

A system of public service in which such situations as this are made possible could not exist long without destruction of

government and of all social order. No argument was needed to demonstrate that it must not be paltered with; but the Government of France was forced momentarily to yield so much show of deference or respect to its rebellious servants, whose demands were made with arrogance of spirit and insolence of tone, that the arrogance and insolence appeared to have triumphed in the encounter with national sovereignty and law. The tenor of an interview given on the 22d by the Premier, M. Clemenceau, and the Minister of Public Works, Posts, and Telegraphs, M. Barthou, to a committee from the striking employés of the State, was thus stated in a Press despatch at the time:

"The two conditions which had been submitted to the Ministers were, first, immunity from disciplinary penalties for all the strikers; secondly, the resignation of M. Simyan, the obnoxious Under-Secretary of State. The Ministers had agreed to the first of these conditions for all strikers who should have returned to work by Tuesday morning. The second condition was refused by the Ministers on the ground that M. Simyan is responsible to the Chamber of Deputies, but not to the postal employés. M. Barthou had, however, made it plain that, in accordance with the terms of his speech in the Chamber last Friday, the Government contemplated appointing in place of M. Simyan an official with the qualification of technical knowledge. 'When, on Friday,' he said, 'I discussed before the Chamber the transformation of the Under-Secretaryship of Posts and Telegraphs into a technical directorship, I was not employing an empty phrase. I consider that the reform is of practical interest and that it ought to be effected at an early date.' This was as near a promise to fulfil the strikers' demands as constitutional considerations would permit." This brought about a return to duty of postal clerks and operators of the telegraph and the telephone; but they returned as victorious revolutionists, and the news from Paris in the following weeks was filled with accounts of their manifestations of contempt and defiance for the Government,

and the extensive insubordination among them that prevailed. But the Government, on its side, supported strongly by a great majority of votes in the Chamber of Deputies, and by resolute expressions of public opinion from every part of France, was now taking measures to prepare itself for defeating any future attempt to paralyze the service of the posts and wires. The engineer troops and other technical branches of the service were warned to be ready for emergencies, carrier pigeons were collected, and preliminary arrangements made for an elaborate service of motor-cars. Chambers of commerce throughout the country were called on to be prepared to coöperate with the Government in organizing an auxiliary mail service. By such measures it was soon rendered safe to begin applying discipline to the insubordination that had become rife. Seven flagrant offenders were tried by a Council of Discipline and dismissed, on the 8th of May, and this precipitated an attempt to renew the strike, and to make it introductory to the long-threatened revolutionary strike of all labor in France.

{380}

A few anxious days followed, while the menace kept a serious show, and then it vanished, like an emptied cloud. The firm attitude of the Government and the hostility of national opinion had daunted the revolutionary *syndicats* which inclined to join fortunes with the revolutionists of the public service, and the latter were left to confront official authority alone. Their second strike came to nothing. A despatch from Paris on the 16th of May stated that 548 postmen who were prominent in the rebellion of the strike had been expelled from the service, and that others were receiving less severe punishments from the Disciplinary Court.

Ultimately, sixteen officials of the Post Office were prosecuted by the Government for illegally forming a trade union. They were brought to trial in July, with the result announced on the 29th as follows: "The 16 officials who were prosecuted by the Government have been condemned to a purely nominal fine of 12s. 6d., and their union has been declared to

be contrary to the law. The Court argued that in the present state of the law there was no doubt whatever that the Waldeck-Rousseau Bill of 1884, permitting the organization of trade unions, solely had application to the interests of private individuals, and that the Chamber of Deputies had not meant to extend the provisions of that law to Civil servants. The considerations of this important legal judgment furthermore declare it to be utterly preposterous that State **employés** should arrogate to themselves the right to strike, since they are the **employés** of the nation, and enjoy moreover such special privileges as servants of the State that no comparison can be drawn between them and the working classes, whose right to strike is not contested."

The judgment of the Paris Correctional Court, in the case of the sixteen officials who were prosecuted for illegally forming a trade union was followed, on the 7th of August, by a kindred decision from the Conseil d'État, to which two dismissed postmen had appealed. Their application to be restored to the service was denied. The decree of the Conseil expressly declared that a strike of civil servants is an "illegal act," and added that a State official "has accepted all the obligations arising from the necessities of the public service and has renounced all privileges incompatible with the essential continuity of the national life," that civil servants who declare a strike place themselves collectively outside the pale of the laws and regulations which guarantee the exercise for them of the rights which they normally possess as servants of the State.

Having thus vindicated its authority over the servants of the State, the Government exercised a wise clemency at once. Two days after the decision of the Conseil d'État, the new Minister of Public Works authorized the publication of the following note: "In consequence of the decision of the Conseil d'État, M. Millerand has decided, while approving the suspensions pronounced by their respective chiefs, that 30

officials of both sexes, five subaltern officials, and ten Post Office workmen who have been dismissed should resume work the day after tomorrow." Further reinstatements were announced in the course of the following month.

LABOR ORGANIZATION: Germany: A. D. 1905.
Strikes.

Upwards of 100,000 miners in the coal fields of the Ruhr district began a strike in January which did not end until the middle of February, and which caused most of the iron works and machine shops of Rhenish Prussia and Westphalia to be closed. Low wages (of 4 marks or a little less than a dollar per day) and inhuman and dishonest treatment were the chief complaints in the miners. A bill to reform conditions in the mines was passed soon afterwards. The cost of the strike to all concerned was estimated to have been more than \$30,000,000. A very serious strike of about 40,000 men in electrical industries occurred at Berlin in September and October, resulting in a concession of six per cent. increase of wages to the men. Statistics published in the next year showed a startling increase of labor conflicts in 1904 and 1905. From 1899 to 1903 the yearly average of strikes had been 1242. In 1904 the number rose to 1870, and in 1905 to 2057. Lockouts had averaged 42 in each of the previous five years, but increased to 120 in 1904. Apparently the labor conditions were no more peaceable in 1906.

LABOR ORGANIZATION: Germany: A. D. 1905-1906.
The Operation of Industrial Courts.
Desire for Voluntary Boards of Conciliation.

"In the event of actual dispute the official machinery of the Industrial Courts is always at call, should the disputants be willing to use it. The law requires the formation of these Courts in all towns with over 20,000 inhabitants, but they may be formed elsewhere at the option of the Government of the

State or on the joint requisition of a given number of employers and workpeople, and they consist of equal numbers of both. That the 406 Courts now in existence do not mediate oftener would appear to be less the fault of the workpeople than of the employers. During 1905 they acted as boards of conciliation on 350 occasions: on 165 in response to invitations from both sides, on 175 on the invitation of the workpeople alone, and on ten only on the sole invitation of the employers. Only in 128 cases was it possible to bring the disputing parties together. ...

"At the annual meeting of the German Society for Social Reform, held in Berlin in December, 1906, resolutions were adopted 'affirming the meeting's conviction that industrial peace would best be promoted by the development of collective arrangements between employers and work-people in the form of (1) wages agreements, (2) voluntary boards of conciliation and arbitration, and (3) workmen's committees for individual works'; and it was urged that, 'after the example of Great Britain, conciliation boards suited to the various industries should be generally formed, these to cooperate with higher tribunals and to call in on occasion the help of prominent public men as advisers and arbitrators.'"

***William H. Dawson,
The Evolution of Modern Germany,
page 136
(Unwin, London; Scribners, New York., 1909).***

LABOR ORGANIZATION: Germany: A. D. 1905-1909.
The Spirit of the Struggle between Capitalists and Workmen.
Attitude of the Latter.

"The struggle between labour and capital in Germany is a little less refined than in some other countries. ...
Rhineland—Westphalia is its chosen battle ground. Here all the

conditions of economic warfare exist in a rare degree. It is a striking fact that a large part of the natural resources, industry, and wealth-production of that unresting workshop of Germany is under the control of a dozen men of commanding business genius—men of strong and masterful character, born rulers of the sternest mould, without sentiment, not insusceptible to justice, yet never going beyond it, inflexible in decision, of inexhaustible will-power, and impervious to all modern notions of political liberalism.

{381}

These men, who have so conspicuously helped to create modern industrial Prussia, and who are a greater real power in the land than Ministers and legislators put together, typify in modern industry the feudalism which is slowly dying upon the great estates of the East. Their attitude towards the unions in which their workmen are organised to the number of hundreds of thousands is frequently expressed in the maxim, 'We intend to be masters in our own house,' and nothing is wanting in the vigour with which this maxim is applied. On the occasion of the Mannheim conference of the Association for Social Policy in September, 1905, Herr Kirdorf, probably the best known industrialist of Westphalia, and the head of the Coal and Steel Syndicates, was invited to give an employer's reply to an indictment of the syndicates made by Professor Gustav Schmoller. In the course of his statement occurred the following observations on the question of labour organisation:—

"'It is regrettable that our workpeople are able to change their positions at any time. An undertaking can only prosper if it has a stationary band of workers. I do not ask that legislation should come to our help, but we must reserve to ourselves the right to take measures to check this frequent change of employment. The proposal has been made that all workpeople should be compelled to join organisations and that employers should be required to negotiate with these organisations. For myself I would remark that I refuse to

negotiate with any organisation whatever.' ...

"Public opinion naturally finds itself often in conflict with the Westphalian industrialists' attitude, which more than anything else was responsible for the solid gain won by the men in the great colliery strike of 1905. It was the same Herr Kirdorf who declared during that strike, 'The movement can only end by the men recognising that they can get nothing by a strike and returning to the mines. We will negotiate with every man singly, but we will not concede workmen's committees.' It was this inflexible attitude, persisted in too long, which turned first the public and then the Government against the colliery owners. By refusing to meet the colliers' 'Committee of Seven' they created the impression that the men were wishful for peace but were unable to gain an ear for their overtures. In the end not only were workmen's committees granted by force of law, but the hours of labour were curtailed, fines were abolished, and other concessions were made which cost the colliery owners dearly, until the extra burden could be transferred to the public."

***William H. Dawson,
Evolution of Modern Germany,
pages 122-125
(Unwin, London; Scribners, New York, 1909).***

LABOR ORGANIZATION: Germany: A. D. 1909.
Extent of Trade Unionism.

The twentieth International Congress of Miners was held in Berlin, and at its opening, on the 31st of May, 1909, Herr Ritter, president of the Federation of Berlin Trade Unions, in welcoming the Congress, said that there were now 223,000 trade unionists in Berlin, as compared with 40,000 when the congress held its last meeting there 15 years ago. Another German speaker said that during the last 15 years the number of trade unionists in the whole Empire had increased from 300,000 to

1,800,000.

LABOR ORGANIZATION: Italy: A. D. 1901.

Changed Attitude of the Government toward Labor Unions.

See (in this Volume)

ITALY: A. D. 1901.

LABOR ORGANIZATION: Italy: A. D. 1909.

A Church Movement of Agricultural Labor Organization.

"An agitation among agricultural labourers in North Umbria seems to have taken a new and very unusual form, since, from all accounts, it is directly promoted and supported by the clergy. The parish priests in the neighbourhood of Perugia are said not only to have put themselves at the head of the movement, but to have actually initiated it with a manifesto denouncing the grievances of the labourers, and calling upon them to organize themselves in order to extort more favourable conditions from the landowners who employ them. The Church seems to have satisfied itself that the mutual relations of capital and labour were unfair to the labourer, and to have determined to be beforehand with the Socialist agitator, creating an organization which will call itself **democristiana**, or Christian democrat, in anticipation of what might have been a more revolutionary Socialist league. The manifesto was issued last May, and contained much the same demands as have been successfully made by labour in other parts of Italy. ... So far the landowners have proved absolutely recalcitrant. A league of resistance has been formed on their side, and an attempt was made at reprisals by boycotting parish priests, stopping any payment of tithes to the Church, dismissing any private chaplains who belonged to the secular clergy, and employing the regular clergy instead of the parochial in any cases where their services were required.

"The parish clergy were not to be intimidated by financial

loss, and the proprietors then appealed to the Archbishop of Perugia to put his veto on their agitation. The Archbishop, Monsignor Mattei-Gentile, could only inform them that he had already given his sanction to the movement. The proprietors, by the friendly mediation of a Cardinal, then appealed to the Pope. After some consideration, Pius X. sent a certain Signor Giovanni Passamonti, a lawyer who has had a good deal of experience in Umbrian affairs, to make an inquiry, and attempt some kind of compromise. Neither side, however, would listen to suggestions of conciliation. ... So the matter now stands. The position is certainly an interesting one, as it is the first time that the Church has actually taken the lead in a labour movement."

***Rome Correspondent, London Times,
July 21, 1909.***

{382}

LABOR ORGANIZATION: Netherlands: A. D. 1903.

Laws against Railway Strikes.

Failure of Labor Strike to prevent their Passage.

Early in 1903 it was made known that the Government of the Netherlands intended to bring forward in the States-General a bill prohibiting strikes among railway employees, on the ground that they were engaged in a public service which must not suffer interruption. At once the railway men gave notice that they would, if this measure were undertaken, appeal to all workmen in the country for a general strike. The Government then prepared itself for a struggle by summoning a certain quota of the infantry and engineers of the Reserves to arms, and, on the 25th of February, its proposed legislation was introduced. It amended the penal code, in order to punish strikes by persons in the public service as misdemeanors and to attach penalties of more severity to all attacks on the freedom of labor. It provided, further, for the organization

of a military railway brigade, to insure service on the lines in case of a strike; and finally, it created a commission to investigate the condition of the railway service and of its employees. Pending the discussion of these measures the threatened strike was undertaken, and was seen very soon to have failed. Without any serious conflict with the authorities it was given up, and, on the 11th of April, the bills became Law.

LABOR ORGANIZATION: New Zealand: A. D. 1896-1908.
The Compulsory Arbitration Law.
Its working.

At the meeting of the National Civic Federation of the United States, in December, 1908, Mr. Hugh H. Lusk, of New Zealand, spoke of the compulsory arbitration law of that country.

See, in Volume VI. of this work.
NEW ZEALAND.

"In form," he said, "the law is not compulsory upon all men, but only upon those who become amenable to it by registering their associations under the law. Since associations, both of workers and of employers, are generally registered, it is and has been for twelve years now past absolutely compulsory arbitration. About six years ago the law was extended to the Commonwealth of Australia, where it is now in force. In New Zealand compulsory arbitration has hitherto been a great success, It has had the effect of preventing all strikes and all lockouts for twelve years in that country until the other day. The history of its extension to Australia has been the greatest tribute that could be made to its success in New Zealand. It has not been in all respects as great a success in Australia as in New Zealand. New Zealand has a million white inhabitants, Australia nearly five million; therefore, by the extension of the law from New Zealand to Australia you have got, as it were, a stepping stone from which you can easily

see how far it would be likely to be a success in a country as much greater and as much more populous than Australia as is this country.

"The law of New Zealand, and now of Australia, compels all associated workers who are registered under the act to submit to the law if they have causes of difference with their employers. In the first place, they have to go to a member of the Board of Conciliation, one of which exists in any considerable district, and the Conciliation Board failing in its object they can remove the cause into the Court of Arbitration, which passes final judgment.

"For twelve years the law operated without serious breakdown in New Zealand. It has been carried on for five years without a serious breakdown in Australia. Now, what is wrong with the Act and its operations? At first the workers were perfectly satisfied with the court because, as a general rule, it was with them. Later on, the court as a rule has been against them. They have been inclined to the belief that the constitution of the court is unfavorable, the court being constituted of two representatives of labor and two representatives of capital, together with one Judge of the Supreme Court, sitting as president or chairman. They have come to the conclusion that it is the fifth man who really gives the decision. The difficulty in such a case as this is that if the representative man who gives his decision has not the confidence of both parties the court fails in its object. It is believed that the decisions are, in general, those of a man belonging to the capitalist class—since laborers do not often find their way to the Supreme Court bench in any country. This seems to be the bottom of the difficulty both in New Zealand and in Australia. I do not think you could enact a law either as a Federal law or as a State law, to-day, such as the law in New Zealand and enforce it. The people are not ready for it. The Canadian plan seems to me to be a step, although perhaps rather a timid step in the right direction."

The exceptional strike to which Mr. Lusk referred, as occurring "the other day," was in February, 1907. The strike was of men in the freezing works of the frozen meat trade. They stopped work as individuals, not as a union, each claiming his right to take a rest from work; but the law was applied to them, nevertheless, and they were fined £5 each. Mr. Gompers, who spoke after Mr. Lusk, declared himself emphatically against the New Zealand system, saying: "I would not have employers do as they please; I would not want workmen to do as they please; but I believe that by the organization of industry and by the organization of labor we are gathering forces conscious of their power, which, intelligently and wisely wielded, bring forth a spirit of conciliation that no court of arbitration ever yet was able to impose. There is in the United States more genuine conciliation between organized employers and organized workmen than exists in any other part of the world."

LABOR ORGANIZATION: Russia: A. D. 1904-1905.
Revolutionary Strikes.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

LABOR ORGANIZATION: Scotland: A. D. 1904-1909.
Five Years of Peace in Coal Mining.
A threatened conflict averted.

In 1904 the coalmasters of Scotland made an agreement with their men for regulating wages according to a fixed scale, to be neither below 37½ per cent., nor over 100 per cent. above what is called the basis of 1888, which was 4s. per day. In effect the range was from 5s. 6d. to 8s. per day, and within these limits the Coal Conciliation Board was empowered to adjust questions of wages as they arose. Under this agreement the Conciliation Board operated satisfactorily till the summer

of 1909, and under the constitution of the board there was power to refer any question on which the representatives of the masters and men could not agree to a neutral chairman, whose decision was to be absolute.

{383}

During the first three years of the agreement trade was prosperous and wages rose nearly to the maximum under which the Conciliation Board could adjudicate. Then came the period of general depression, and wages went down, along with prices of coal, until, finally, the coalmasters applied for a further reduction to the minimum of the agreement, 5s. 6d. per day. The men's representatives on the Board refused to entertain the proposal. The disagreement became acute in a few weeks, and the Miners' Federation of Great Britain threatened a general strike in support of the contention of its Scottish members. On a ballot taken in July, 518,361 of the coal miners of the United Kingdom voted for a general stoppage of work, in support of the demands of the Scottish miners against 62,980 who opposed the undertaking. But the efforts of the Government, exerted through the Board of Trade, were successful in averting the threatened catastrophe. Conferences between delegates from the coal miners and the coal owners, held at the offices of the Board of Trade and under chairmanship of the President of the Board, Winston Churchill, resulted in an agreement signed on the 30th of July, which is to be in force until August 1st, 1912, and indefinitely thereafter unless six months notice of a wish to terminate it is served by one party to it on the other. The agreement provides for the continuation of the former Conciliation Board "with the provision that there shall be obligatory a neutral chairman (whose decision in cases of difference shall be final and binding) to be selected by such method as shall be mutually agreed upon by the parties, and, failing agreement, by the Speaker of the House of Commons."

On the point of wages, the opinion of the miners' delegates was reported to be that the agreement was "fair to all parties, for it secured the owners against having to pay an increased wage unless all the circumstances of the trade, considered over a reasonable period, were taken into account by a perfectly impartial arbitrator. The concession of the principle of the 50 per cent. increase on the 1888 basis as a **minimum** wage would, as far as could be foreseen, obviate trouble in the future, and the safeguards which had been introduced into the grant of the concession were, in the opinion of all the delegates who were willing to express their views, eminently fair to all the interests concerned."

LABOR ORGANIZATION: South Africa: A. D. 1903-1904.
The question of Asiatic Labor for the mines in the Transvaal.
Admission of Chinese Coolies.
The political side of the Opposition to White Labor.

See (in this Volume)
SOUTH AFRICA: A. D. 1903-1904.

LABOR ORGANIZATION: Spain: A. D. 1902.
Great Strike at Barcelona.

Barcelona, the scene of frequent and much disturbance, both political and industrial, produced, in the middle of February, a general strike of 80,000 workmen, between whom and the troops of General Weyler, the Minister of War, a week of battle in the streets occurred, with martial law in force.

LABOR ORGANIZATION: Spain: A. D. 1909.
Insurrection and Strike at Barcelona.

See (in this Volume)
SPAIN: A. D. 1907-1909.

LABOR ORGANIZATION: Sweden: A. D. 1909.

The Lockout and the attempted General Strike of all Labor in the Kingdom.

The labor conflicts of 1909 were marked most impressively by two attempts, in two countries, to combine all unionized labor, of all trades and employments, in the oft-threatened "general strike," whereby an absolute paralysis of society might be brought about. The first of these attempts was planned in France, for the enforcement of the demands of the postal and telegraphic employees of the Government, who claimed the right to engage in conflict with the State by an organized "strike." This came happily to naught; and, the second, undertaken in Sweden, had the same result.

A dispute in the paper, woolen, and cotton industries of Sweden led, first, to a lockout of about 13,000 workmen in those factories, the employers acting in a compact association, which seems to have embraced all important fields of production. On the 26th of July the lockout was extended to certain other allied trades, affecting about 40,000 employees in all; and it was then announced that on the 2d of August, if the men did not come to terms, the closing of works would be carried into the iron trades, and further still. This challenged the Allied Trade Unions to summon a "general strike" of all their membership, and the call went out for an universal dropping of work on August 4th. Exception, however, was made in the call, of employees in the water-works, lighting and sanitation departments of the public service, and of those on whom hospitals, funerals and living animals were dependent for care. Railway, postal, telegraph and telephone employees were not included in the Labor Federation, and did not strike. Between lockout and strike, however, the suspension of industry was so extensive as to reduce Stockholm, especially, to a very grave situation; but the emergency was faced with remarkable energy and courage by both Government and people.

Neither employers nor employees would listen to any mediation between them by King or Ministers, and the measures of Government were directed solely to the repression of disorder and the checking of all that savored of revolutionary aims. How the public of Stockholm saved itself from paralysis is told by a correspondent who wrote from that city on the 28th of August, when the strike was in its fourth week. "How is it," he asked, "that the trams are running, cabs are plying for hire in the streets, the steam ferries are working as usual, streets and houses are lighted, and there seems no lack of provisions or transport? The explanation is that these and many other of the most important social services are being performed by a brigade of volunteers, who have come forward in the public interest and who devote their time and energies gratuitously to supplying the most pressing needs of society at large. ...

"On July 31 plans were first formed for meeting the situation by the organization of a band of voluntary helpers, and on August 2 a meeting was held at which definite action was determined upon. A 'Public Security Brigade' (Frivilliga skyddskaren) was to be enrolled, and the following services, amongst others, were to be undertaken: The protection of banks, insurance offices, and similar institutions liable to attack or plunder by the strikers; the working of trams and steamboats, and of gas, water, and electric lighting machinery; the driving of motor and other cabs; the conveyance of the sick to the hospitals, and the rendering to the hospital staff of any necessary help; the unloading and transport of the necessities of life, such as food, coal, wood, &c. The object of the organization was not to help individual sufferers or to safeguard individual interests, but in every way possible to maintain such services as should be considered necessary for the security and welfare of the community.

"The appeal for volunteers met with a generous and enthusiastic response, and within a week of the first meeting on August 2 the whole organization was in full working order. All classes supplied their **quota**. Counts and barons, military and naval officers, professional and business men, engineers, clerks, students from the Universities and technical schools, alike volunteered their services. The importance of such a movement can hardly be overestimated. The fact that the executive body has no connexion with the Government or municipality and yet is working in constant touch and in perfect harmony with both speaks Volumes for the spirit in which the work has been undertaken and the efficiency with which it is being carried out. It is an object-lesson in the capacity of the upper and middle classes to meet such an emergency. And lastly, if, as is thought probable by some, the institution should become a permanent one, Sweden will have one of the best guarantees for industrial peace in the future."

When this was written, the struggle, so far as it involved an attempted general strike, was near its end. On the 3d of September the Labor Federation announced its willingness that those organizations which were not connected with the original dispute, but which had joined the strike to help make it general, should return to work, if the Government would renew its proffer of mediation in the primary dispute. This the Government did willingly; but at the end of September it was announced that the negotiations undertaken had broken down and that 60,000 men were still without work.

The most serious feature of the conflict was the apparent readiness with which many labor organizations broke agreements and contracts, in order to take part in it, even when not called on to do so by the general Federation. According to the claim of the Employers' Federation, moreover, it was faithlessness to such contracts which had most to do with

bringing of the Lockout on. On the other hand, the workmen maintain that it is the aim of the employers to break down their unions, and that self-preservation justifies them in breaking contracts when that course is necessary to defeat such attempts. Where the very truth lies is questionable, here as in most such conflicts.

LABOR ORGANIZATION: United States: The Organization of Labor.

"Most of the national trade unions are affiliated to one great federal organization, known as the American Federation of Labor. The railway brotherhoods, so called, keep their separate organizations, without affiliating to any other body. There are some independent unions; while the Knights of Labor are a body entirely distinct from all other organizations, and have a different organic law. It is difficult to ascertain the membership of unions. In Great Britain the law requiring registration enables the Government to state with fair accuracy the strength of unions in that country. According to the latest reports available, the English trade unions had a membership of 1,802,518, while in the United States,—with double England's population,—the estimated membership of labor organizations on July 1 last was 1,400,000. It is estimated at the present time that there are nearly 18,000,000 persons (men, women, and children) in the United States working as wage-earners. The percentage embraced in the labor unions is not large, therefore, being not more than 8 per cent. of the whole body. It must be remembered, however, that in many trades the members are organized up to a large proportion, —sometimes 90 per cent.—of the total number engaged. The American Federation of Labor probably represents 850,000 members, and the Knights of Labor perhaps 200,000. The Order of Railway Conductors of America,—whose head, Mr. E. E. Clark, has been appointed on the Coal Commission,—has nearly 25,000 members; the Brotherhood of Locomotive Engineers, over 34,000; the Brotherhood of Locomotive Firemen, nearly 38,000;

the Brotherhood of Railway Trainmen, about 44,000; and there are at least four other influential railroad organizations."

***Carroll D. Wright,
Labor Organization in the United States
(Contemporary Review, October. 1902).***

LABOR ORGANIZATION: United States:

The Trade Union as a factor in the Assimilation of the Foreign-born Population, and in its Political Education.

"Whatever our judgment as to the legality or expediency of the industrial policy of our American unions, no student of contemporary conditions can deny that they are a mighty factor in effecting the assimilation of our foreign-born population. Schooling is primarily of importance, of course, but many of our immigrants come here as adults. Education can affect only the second generation. The churches, particularly the Catholic hierarchy, may do much. Protestants seem to have little influence in the industrial centres. On the other hand, the newspapers, at least such as the masses see and read, and the ballot under present conditions in American cities, have no uplifting or educative power at all. The great source of intellectual inspiration to a large percentage of our inchoate Americans, in the industrial classes, remains in the trade-union. It is a vast power for good or evil, according as its affairs are administered. It cannot fail to teach the English language. That in itself is much. Its benefit system, as among the cigarmakers and printers, may inculcate thrift. Its journals, the best of them, give a general knowledge of trade conditions, impossible to the isolated workman. Its democratic constitutions and its assemblies and conventions partake of the primitive character of the Anglo-Saxon folkmoot, so much lauded by Freeman, the historian, as a factor in English political education and constitutional development. Not the next gubernatorial or presidential candidate; not the expansion of the currency, nor the reform

of the general staff of the army; not free-trade or protection, or anti-imperialism, is the real living thing of interest to the trade-union workman. His thoughts, interests, and hopes are centred in the politics of his organization. It is the forum and arena of his social and industrial world."

W. Z. Ripley,
Race Factors in Labor Unions
(*Atlantic Monthly*, March, 1904).

{385}

LABOR ORGANIZATION: United States: A. D. 1899-1907.

The Western Federation of Miners.

Its adoption of a Socialist Platform.

Its fierce Conflict with Mine Owners.

Alleged Criminal Instigations by its Leaders.

Orchard's Confessions.

Trial and Acquittal of Secretary Haywood.

The Western Federation of Miners was organized in Butte, Montana, in 1893. The domain of the organization was and is mainly the metal mining fields west of the Mississippi River; while that of the organization called the United Mine Workers was and is the coal fields east of the Mississippi. The strongly marked difference in character between these two comprehensive unions of mining labor is indicated in an article by William Hard, contributed to ***The Outlook*** of May 19, 1906. "The United, Mine Workers," wrote Mr. Hard, "accepts the present industrial system and regards the employer as its partner. The Western Federation of Miners denounces the present industrial system and regards the very existence of the employer as an evil. The United Mine Workers is interested mainly in the division of the proceeds of the present industrial system between itself and its partner, the employer. It wants to increase its own share of the proceeds and it wants to reduce its partner's share. The Western

Federation of Miners, on the other hand, is interested mainly in the elimination of the employer. It wants more wages, of course, but if it should succeed in establishing a scale of even a hundred dollars a day it would still be bound by its principles to spurn the relaxing comforts of prosperity and to nerve itself to a continuation of the struggle.

"Edward Boyce, as President of the Federation, addressed its annual Convention in 1902 as follows: 'There are only two classes of people in the world. One is composed of the men and women who produce all. The other is composed of men and women who produce nothing, but live in luxury upon the wealth produced by others.'" The Convention, at the same session, adopted the following declaration: "We, the tenth annual Convention of the Western Federation of Miners, do declare for a policy of independent political action, and do advise and recommend the adoption of the platform of the Socialist Party of America."

Says Mr. Hard, in comment on this Socialist pronouncement by the Western Federation: "There is usually one of two reasons for the presence of a large number of Socialists in any trade union. One is the influence of Europeans; the other is a particularly spectacular triumph of the machine over the man, and a particularly cruel displacement of human beings by superhuman tools. ... The Western Federation of Miners, however, has not been devoured by the machine, and it does not contain more than a small percentage of Europeans. Whatever of lawlessness there has been in the history of the Western Federation has been American lawlessness. Whatever of radicalism there has been in that history has been radicalism cherished and propagated by Americans. That favorite National scapegoat, 'the foreigner,' cannot be loaded with the sins of the Western Federation. ... The Western mines are full of longlimbed, franked-eyed men who have adventured themselves far and wide upon the face of the earth. There are Eastern miners who were blacklisted after leading unsuccessful

strikes. There are cowboys who tired of the trail. There are farmers who preferred prospecting to plowing. There are city men who burst the bars of their cages to breathe the open air of the West. These adventurous characters, going out into a new country and plunging into the virgin, everlasting hills, where it would seem that at last all men would stand on the same footing, have suddenly discovered that amid these primitive surroundings the modern industrial system is not only found, but is found at its worst. No one would try to find a parallel anywhere else on earth for the reckless unscrupulous and maddening insolence of the corporations of the Rocky Mountain States. And practical anarchism among corporations is always a strong promoter of theoretical Socialism among trade unions. ...

"The internal policy of the Western Federation of Miners is consistent with its published principles. The most important part of this policy is an aversion to the signing of contracts with employers. A contract is regarded as a manacle. It binds one union when another union might need its help. ... In consequence of not demanding a contract, the Federation naturally does not demand a closed shop. As it does not ask the employer to bind himself by a contract to anything, it does not ask him to bind himself to the exclusive employment of union men. In three other respects besides its failure to demand a closed shop the Western Federation of Miners follows a policy which has often been admired by enemies of trade unions. The Western Federation has no apprentice system. It does not restrict output. And it discountenances jurisdictional quarrels between rival trade organizations. ...

"So much for the philosophy of the Western Federation of Miners. Now for the lawlessness with which it has been charged. There can be no doubt that members of the Western Federation of Miners have frequently coerced non-union men. ... A programme of intimidation has at times, in certain mining camps, become the equivalent of a closed shop contract. The

employer was not asked to exclude non-union men. The union excluded them spontaneously, without bothering the employer about it. ... In addition to the coercion of individual non-unionists, there have been a few occasions on which armed bodies of union men have stormed mining property and captured it."

On the other side of the case this writer recounts the acts of violence and the barbarous "deportations" which the miners of the Western Federation have suffered at the hands of the Mine-Owners' Association and the Citizens' Alliance in coöperation with them; and he emphasises this fact:—"that the members of the Citizens' Alliance and the members of the Western Federation of Miners are brothers under their skins. They come in the main from exactly the same breed. Two men go out prospecting. They come from the same town in Ohio. Their claims are half a mile apart. One man strikes gold. The other doesn't. One man becomes a millionaire and a member of the Mine-Owners' Association. The other becomes a workingman and a member of the Western Federation. ... They were all of them American adventurers before they became employers and employees. Practically identical in breed, the mine-owners and the miners are practically identical in temperament. They transact their affairs on both sides with an untrammelled recklessness which is appalling, but which, if the distinction be admitted, savors of anarchy rather than of illegality.

{386}

The situation is like that in the rough early mediaeval States before the central authority had established its power by means of police. ... That these frontiersmen, as workingmen and as members of the Western Federation, have used their guns in trade union controversies is indubitable. That the Western Federation, however, is an organized criminal clique, and that it accentuates and stimulates the gun-playing proclivities of its members, is, so far, unsupported by evidence."

William Hard,

The Western Federation of Miners
(The Outlook, May 19, 1906).

The question on which Mr. Hard threw doubt, as to whether the leaders of the Western Federation of Miners, or any of its responsible members, had been implicated in the dreadful crimes of murder and destruction of property which attended the conflict between the Federation and the mine-owners of the Far West, came to trial in connection with the horrible murder of ex-Governor Frank Steunenberg, of Idaho. The victim had been Governor of that State in 1899, when, during a strike in the Cœur d'Alene district, a mill at Wardner was blown up by a mob. Governor Steunenberg obtained the aid of Federal troops and vigorously crushed the disorder. Six years afterwards, on the 30th of December, 1905, at the gate of his residence in Caldwell, he was blown to pieces by a bomb, so placed that it was exploded by the opening of the gate. A man named Harry Orchard was arrested on suspicion and held until, finally, he not only confessed the crime in question, but owned, or claimed to have participated in, or had knowledge of, an appalling number of other murders, deadly explosions, and other barbarities, all of which he alleged to have been committed at the instigation and under the direction of officials in the Western Federation. Its President, Charles H. Moyer, its Secretary, W. D. Haywood, and George A. Pettibone of its executive were especially implicated by Orchard's confession in the murder of Governor Steunenberg. These accused men were in Colorado at the time, and there, on a requisition from the Governor of Idaho, they were arrested on the 15th of February, 1906, and taken hurriedly to Boise, having no opportunity to resist what was claimed to be the illegal extradition. Subsequently, however, when the question was carried from the Supreme Court of Idaho up to the Supreme Court of the United States, the legality of the proceeding was affirmed by all of the tribunals which reviewed it.

Intense feeling in labor circles was enlisted in behalf of the

accused chiefs of the Western Federation of Miners. Very generally their innocence of the imputed crimes was believed, and they were looked on as victims of an implacable conspiracy, in which capitalists and politicians were leagued, to hunt them to their death. More than a year intervened between their arrest and the trial of Haywood, who was the first to be arraigned. This greatly exciting trial was opened, at Boise City, the capital of Idaho, in May, 1907, and was concluded on the 28th of July, resulting in the acquittal of the accused. Orchard's testimony does not seem to have been seriously shaken, otherwise than by the incredible horrors of his story; but corroborative evidence was lacking, and nobody could trust a witness whose moral irresponsibility was so plain a fact. The announcement of the verdict of acquittal was gladly received. It was followed at once by the release of President Moyer on bail.

LABOR ORGANIZATION: United States: A. D. 1900-1909.
Labor Unions and Oriental Immigration.

See (in this Volume)
RACE PROBLEMS: UNITED STATES.

LABOR ORGANIZATION: United States: A. D. 1900-1909.
Study and treatment of Industrial Problems by the
National Civic Federation.

See (in this Volume)
SOCIAL BETTERMENT: UNITED STATES.

LABOR ORGANIZATION: United States: A. D. 1901.
Teamsters' Strike in San Francisco.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO.

LABOR ORGANIZATION: United States: A. D. 1901.

The unfortunate Strike of the Amalgamated Association of Iron, Steel, and Tin Plate Workers.

Its conflict with the United States Steel Corporation.

Breaches of Contract involved.

Failure.

A strike which involved breaches of contract between employés and employers, and which resulted most unfortunately to those engaged in it, was ordered in July, 1901, by the heads of the National Amalgamated Association of Iron, Steel, and Tin Plate Workers of the United States. As in the case of the Anthracite Coal Strike of 1902, which is told of below, the circumstances of this strike received a very thorough study and a very clear exposition to the public, in an article from the pen of Dr. Talcott Williams, published in the ***American Review of Reviews*** for September, 1901, and what is stated here is drawn from that article:

The industries concerned in what occurred had been carried on for a considerable period under conditions too complicated to be described in this limited place. It must suffice to say that there were union mills and non-union mills, and also a third class, of "open" mills, in which union and non-union men worked together. A truce had sprung up during a period of prosperity in which, says Dr. Williams, "there had come to be a quasi, only a quasi, general understanding that certain mills were to be considered as union, certain as non-union, and certain as 'open.'" While "the trade was still divided among hundreds of mill-owners," the Amalgamated Association of workers in them "equalized conditions for all of them. It lifted wage disputes out of the narrow mill atmosphere. It forced all concerned to look at the trade as a whole. It gave continuity and uniformity to contracts for wages. It established standards of wages"—for union and non-union, both. But when, in June, 1901, "the Amalgamated came to its annual collective bargaining," it had to deal, not with numerous independent mill-owners, but with the great consolidation of

them that had just occurred, in the formation of the mammoth United States Steel Corporation.

"Two courses," says Dr. Williams, "were open to the president and officers and Advisory Council of the Amalgamated. They might, after the usual conference, for which its constitution provides, through a special committee, have signed its 'scale' for the union mills in which its membership worked and wait for the social and political pressure of public opinion, as in 1900, to force this new representative of capital—the 'Trust'—in its various forms to accept a collective bargain for part of its mills, trusting to events, the steady gravitation of skilled labor to its ranks, and the greater economic efficiency of the union—for unless it is that it cannot survive—to win a slow battle. Much depended for organized labor all over the country in formally committing the United States Steel Corporation, the greatest employer of labor on the planet, to the recognition of a union scale as the best regulator of wages, union and non-union.

{387}

It looked as if this waiting plan were adopted when the scale was signed for one year to come, carrying a new non-interruption clause, with the American Tin Plate Company. ... On the last day on which the scale could be signed—June 29—and it generally is not signed before, the demand was made that the scale should be signed for all [of certain] non-union mills. The advance in wages asked was conceded. Mr. Persifor F. Smith, for the company, offered to sign for twenty-one mills accepted in the past as union. President Shaffer refused to sign for any, unless all were accepted as union. Mr. Smith refused to sign for mills non-union in the past, and claimed that two, Salzburg and Old Meadow, hitherto union, had abandoned the organization, a position later conceded. The issue raised was whether the change from individual to collective bargaining could be required under penalty of a strike, not only in the mills in question, but in all the mills of the company. The men involved had a right to require

a collective bargain for as many as they chose to include. The company had its right, equally, to decide where it would have individual and where collective bargaining. ...

"The Amalgamated was ... strong, until it struck. Its demand for wages and hours were all accepted. It had been allowed to organize lodges in various non-union mills, after the corporation had bought them, where before it was excluded. When it attempted, on its own demand and instance, to change the status of these mills and act for their labor, it proved right in its claim that the men wished to be union in four out of five of the steel hoop mills and wrong in five out of the seven mills claimed in the Sheet Steel Company. Each contestant claimed more than it could control. A compromise was in order. A compromise was offered. Twelve mills in all were in dispute. The corporation offered four. The Amalgamated demanded all or none. ... A strike was ordered July 15, and the American Tin Plate Company men broke their year's contract of a fortnight before."

The strike was "circumscribed at first by members of the Amalgamated in the Federal Steel Company plants at Chicago, Joliet, and Milwaukee refusing to break their contracts and strike. Here, the membership of the Amalgamated was less than a tenth of the whole number involved. It is not over this proportion in the general body of men on the pay-roll of the United States Steel Corporation. The proportion in union mills varies. In none does it include all. In some, those without its membership are a small fraction, in others, more than half. By the men of the National Steel Company and the National Tube Company, annual contracts were broken, sacrificing the annual collective bargain."

"Nothing can be accomplished for labor, even that tenth share of it organized in the Amalgamated, until this share has learned that contracts must be kept and the line drawn between wages and business control. The successful efforts of the

Amalgamated to induce its members to break their contracts, first in the tin works and later at various works in the Federal Steel Company, has deepened the conviction among business men and the public that men in the union cannot be trusted to keep promises; and until this trust is possible, nothing is possible."

The strike failed in its objects completely, and came to an end on the 14th of September, having lasted sixty-one days. Under the agreement which then terminated it, the union mills which the Amalgamated Association had been able to keep closed were recognized as being within its sphere, but no provision could be made for the displaced union men of mills which had been wholly or partly reopened during the progress of the strike, and large bodies of the strikers were left to seek employment where they could.

LABOR ORGANIZATION: United States: A. D. 1902.

Remarkable Conference on the Peaceful Settlement of Labor Disputes, under the auspices of the National Civic Federation. Appointment of a Committee of Conciliation.

In January, 1902, a remarkable conference, to discuss the relations between labor and capital and to seek means for the peaceable settlement of industrial disputes, was held in New York, under the auspices of the National Civic Federation. Notable men of all professions, of high circles in business, of high leadership in trade unions, and of high official positions, came together, with the Honorable Oscar S. Straus presiding, and held frank and free talk on a subject which concerned them all in the greatest possible degree. The main practical result of the Conference was the appointment of a powerful standing Committee, to act for the Civic Confederation as an agency of conciliation and intermediation between the parties in industrial disputes. The Committee, which has exercised its good offices many times since, not always with success, but always with an influence that must be

of growing effect, was appointed as follows:

On Behalf of the Public.

Grover Cleveland;
Cornelius N. Bliss;
Charles Francis Adams;
Archbishop John Ireland;
Bishop Henry C. Potter;
Charles W. Eliot, president of Harvard University;
Franklin MacVeagh, Chicago;
James H. Eckels;
John J. McCook;
John G. Milburn, Buffalo;
Charles J. Bonaparte, Baltimore;
Oscar S. Straus;
Ralph M. Easley.

Representatives of Organized Labor.—

Samuel Gompers, president of the American Federation of Labor;
John Mitchell, president of the United Mine Workers;
F. P. Sargent, grand master of the Brotherhood of
Locomotive Firemen;
T. J. Shaffer, president of the Amalgamated Association
of Iron, Steel, and Tin Workers;
James Duncan, secretary of the Granite Cutters' Association;
Daniel J. Keefe, president of the International Association
of 'Longshoremen;
Martin Fox, president of the National Iron Molders' Union;
James E. Lynch, president of the International
Typographical Union;
Edward E. Clarke, grand conductor, Brotherhood of
Railway Conductors;
Henry White, secretary of the Garment Workers of America;
Walter Mac Arthur, editor of the
Coast Seamen's Journal, San Francisco;

James O'Connell, president of the International Association of Machinists.

Representative Employers.

Senator Marcus A. Hanna, Cleveland;
Charles M. Schwab, president of the
United States Steel Corporation;
S. R. Callaway, American Locomotive Works;
Charles Moore, president of the National Tool Company;
J. D. Rockefeller, Jr.;
H. H. Vreeland, Metropolitan Street Railway Company;
Lewis Nixon, Crescent Shipyard, Elizabethport, New Jersey;
James A. Chambers, president of the American Glass Company,
Pittsburg, Pennsylvania;
William H. Pfahler, president of the National Association
of Stove Manufacturers, Philadelphia, Pennsylvania;
E. P. Ripley, president of the Atchison,
Topeka & Santa Fe Railway;
Marcus M. Marks, president of the National Association
of Clothing Manufacturers;
J. Kruttschnitt, president of the Southern
Pacific Railway Company.

{388}

LABOR ORGANIZATION: United States: A. D. 1902-1903.

The Great Strike of Anthracite Coal Miners.

Distress and Alarm in the Country.

Intermediation of President Roosevelt.

Arrogant Attitude of Mine-owning Interests.

Final submission to Arbitration Commission appointed by
the President.

Award of the Commission.

A prolonged general strike of miners in the anthracite coal
fields of Pennsylvania, beginning in May, 1902, was one of the

most serious in its public effects and the most alarming that has ever occurred in the United States. It may be said to have had its origin in a previous strike that came about in the fall of 1900, resulting from which the miners had obtained an advance in wages of ten per cent. That increase was guaranteed until the 1st of April, 1901. In the interval Mr. John Mitchell, the able and much respected President of the United Mine Workers of America, strove to secure from the railway magnates who are the masters of the anthracite coal property and trade some recognized right on the part of the miners as a body to discuss and arrange the terms and conditions of their work. The rebuffs that he met with were near to causing another strike in the spring; but some powerful influences were brought to bear, it was said, by New York financiers, which patched up a truce for the ensuing year. The ten per cent increase of wages was continued for that further period, and the miners, in some way, rightly or wrongly, acquired an idea that the next year was to bring about an arrangement of free and fair representative conferences between their union and the union of mine-owners and operatives, like that which had been established in the bituminous coal regions. In this expectation they were wholly disappointed when the year came to its end, as it did on the 1st of April, 1902.

The National Civic Federation, in which every great social interest, of capital, labor, politics, education, religion, philanthropy, is splendidly represented, intervened in the disputes which followed, and brought about some meetings on the subject; but the capitalist side of the controversy was entrenched in its determination to give no recognition to any union of miners, and to refuse an arbitration of the dispute, while the miners were provoked to the making of larger demands than they might have insisted upon, probably, if they had been differently met. By a small majority of the delegates to a convention held in May the miners voted to strike—against the judgment of President Mitchell it is said—and work in the mines was stopped about the middle of the month.

On both sides of the conflict there were real difficulties in the way of approach to a common ground of negotiation. These were fairly set forth by Dr. Talcott Williams, of the Philadelphia Press, in The

Review of Reviews for July,

1902. On the side of the anthracite railroad managers and mine operators he pointed to the fact that they were "under a grinding competition with bituminous coal. To accept a union of United Mine Workers of America, in which the bituminous workers were two to one, was, they believed, to render it certain that on most issues the management of the union would keep bituminous mines busy rather than anthracite." Further to the fact that "anthracite mining varies greatly from mine to mine, and a uniform 'scale,' as in bituminous mines, is difficult." But, said he, "it cannot be impracticable, for veins as narrow, tortuous and varying are mined under a 'scale' in England." As for difficulties of concession on the part of the mine-workers, this just analyzer of the conflict described their division into three classes having different and unequal footings in the industry. These were the miners who break out or detach the coal in the mines; the laborers whom the miners employ to load and remove what the latter detach; and, finally, the men employed as mine bosses and to operate engines and pumps. The miners are paid for the quantity taken out; the laborers (who aspire to become miners) receive wages for a ten hours day; the bosses and engineers are employed by the year and have continuous work, because the pumps cannot be stopped, whether mining goes on or not. These three interests must be consolidated in a union of the mine-workers if it is to have any effective strength; and this raises knotty problems among them. The attitude of the railroad managers and operators had prevented such a consolidation, with bad results, in Dr. Williams's opinion. As he summed up the situation, it was this: "Had the miners' union in the past eighteen months exerted the rigid discipline of big well-managed unions, prevented small strikes, and worked for a cheap output, it might have divided capital. But it had not been 'recognized.' Therefore, its control was often loose. Local unions irritated local operators. In the Reading mines, the proportion of coal mined per miner fell one-eighth.

It is part of a bad system of over-manned mines under which miners try to distribute work. Output was reduced and wages increased. The result was that the miners were without the responsible control of a big union, and the railroad managers and operators irritated by small strikes and ready for a fight."

In his conclusions this well-informed critic of the situation justified the public feeling of the time which held the capitalists of the controversy more accountable than the laborers for the loss and suffering inflicted on the country. He closed his article with these words:

"Under competition, the anthracite plant is one-half larger in mines and one-half greater in labor than the utmost demand of the public. Two-thirds of the mines and two-thirds of the men, run more regularly and systematically, could in spite of the lack of demand in summer, produce the coal cheaper and more profitably, and at a higher individual aggregate average, even if at a lower per diem or per ton than the present system.

{389}

What the anthracite coal industry really needs is a reorganization like that after the London dock strike of 1889, reducing the number of men but increasing work for each. As it is, men who prefer working all the year to working two-thirds of the year, and often half a day at that, have, by a natural elimination, been weeded out steadily, and have left a large share of men, bred to a habit of irregular work and short hours. This one fact is at the bottom of much fitful irregularity in the mines.

"The railroad managers, holding public franchises weighted by public responsibilities, have clearly no right, as they have all united in doing, to refuse all compromise, conciliation, or adjustment, and simply stop work, letting the public pay the cost in higher coal. They are bound either to reach an adjustment themselves, to let some one else reach one for

them, or to reorganize the whole industry on a basis which will reduce the material and moral waste of the present system, where poor mines are worked and men are one-third of the year idle even in a prosperous year."

The powers which controlled the mines did not, however, see their duty to the public in this light, and the strike went on. Before the summer ended the pinch of scarcity in the supply of fuel to the country was being felt widely, in most industries and in domestic life. The pinch increased, and the price of coal went higher as cold weather came on. Control of the rougher elements among the miners and mine laborers was lost by their leaders, and rioting broke out, with dark outrages of crime, calling for a strenuous employment of militia and police. There were threatenings, too, of a sympathetic strike of bituminous miners, which might easily produce a fuel famine of frightful effect; but President Mitchell and other intelligent leaders succeeded in persuading the miners of the bituminous district that their best help to the anthracite unions was by adhering to their yearly contract and continuing the work which enabled them to contribute funds to the support of the existing strike. In August they were reported to be sending to the idle anthracite men no less than \$130,000 a week. With this and other help these seemed likely to maintain their stand for months. By the first of October the supply of anthracite coal was so meagre that "factory managers were put to their wits' end to get fuel enough at \$15 or \$20 a ton to keep their machinery running; whereas, in normal times, their supplies had cost perhaps \$3 a ton. The great majority of the retail coal dealers were entirely sold out, and for the poor who were obliged to buy in small quantities the price had reached a cent a pound, or even more, with prospect of a total cessation of the anthracite supply. Soft coal was being largely substituted for hard coal; but it also, in the East, had advanced 300 or 400 per cent. in price, and it was not well adapted for chimneys, furnaces, stoves and grates that had been constructed for anthracite. Furthermore,

the cessation of anthracite mining during that half of the year in which the bulk of the winter's supply is produced had created a situation of scarcity that could not have been wholly overtaken by the utmost effort to substitute the bituminous article."

The situation was now so grave that the whole country was demanding an intervention of government by some means to end the obstinate dispute. The Federal Executive could find no legal authority to act; but President Roosevelt determined to bring the prestige and weight of his high office and of his vigorous personality into an exercise of persuasive influence in the case. He invited the representatives of both parties in the conflict to meet him, and the meeting took place October 3d. In opening a discussion of the subject he disclaimed any right or duty to intervene between them on legal grounds, but said that "the urgency and the terrible nature of the catastrophe impending over a large portion of our people " had impelled him to think it incumbent on him to use such influence as he could to "bring to an end a situation which has become literally intolerable." "With all the earnestness that is in me," he pleaded, "I ask that there be an immediate resumption of operations in the coal mines in some such way as will, without a day's unnecessary delay, meet the crying needs of the people. I do not invite a discussion of your respective claims and positions. I appeal to your patriotism, to the spirit that sinks personal considerations and makes individual sacrifices for the general good." Mr. Mitchell then spoke briefly, saying that he and his associates did not feel that they were responsible for "this terrible state of affairs"; and he made the following proposition; "We are willing to meet the gentlemen representing the coal operators to try to adjust our differences among ourselves. If we cannot adjust them that way, Mr. President, we are willing that you shall name a tribunal who shall determine the issues that have resulted in the strike; and if the gentlemen representing the operators will accept the award or decision of such a tribunal, the

miners will willingly accept it, even if it is against their claims."

To say that the President's appeal and Mr. Mitchell's proposal of arbitration had an arrogant response from the chiefs of the coal monopoly is to speak mildly of the spirit and language of their replies. "I now ask you," said one of them, "to perform the duties vested in you as President of these United States and to at once squelch the anarchistic condition of affairs in the coal region by the strong arm of the military at your command." "The duty of the hour," cried another dictatorially, "is not to waste time negotiating with the fomenters of this anarchy and insolent defiance of law, but to do as was done in the War of the Rebellion—restore the majesty of the law." With one consent they rejected the proposal of arbitration with scornful defiance, and the meeting broke up without result.

But, behind the men in immediate command of the railway and the mining companies there was a bigger-brained financial power that could comprehend, as they could not, the recklessness of so arrogant a challenge, which went straight past the miners and the President of the United States to a suffering public. As the captain of that force, Mr. J. Pierpont Morgan took the business in hand, and, after a conference with Secretary Root and some talk with railway presidents, brought the latter to a different state of mind. On the 13th of October he went to Washington with the proposal of a Commission, to be appointed by the President, to which the companies were willing that "all questions between the respective companies and their own employés" should be referred.

{390}

"The Commission to be constituted as follows:

(1) An officer of the Engineer Corps of either the military or naval service of the United States;

(2) an expert mining engineer, experienced in the mining of coal and other minerals, and not in any way connected with coal-mining properties, either anthracite or bituminous;

(3) one of the judges of the United States courts of the Eastern District of Pennsylvania;

(4) a man of prominence, eminent as a sociologist;

(5) a man who by active participation in mining and selling coal is familiar with the physical and commercial features of the business."

There were added the stipulations that upon the constitution of such Commission the miners should return to work and "cease all interference with and persecution of any non-union men who are working or shall hereafter work," and that the Commission's findings should govern the conditions of employment between the respective companies and their own employees for a term of at least three years. On this basis, with some modifications, an agreement with Mr. Mitchell, acting for the miners, was arrived at, and the appointment of the Commission, named as follows, was announced on the 16th:

Brigadier General John M. Wilson, U. S. A., retired
(late Chief of Engineers), Washington, D. C.,
"as an officer of the Engineer Corps."

Edward Wheeler Parker, Washington, D. C.,
chief statistician of the coal division of the Geological
Survey, and editor of the Engineering and Mining Journal;
"as an expert mining engineer."

Honorable George Gray, Wilmington, Delaware,
"as a Judge of a United States Court."

Edgar E. Clark, Cedar Rapids, Iowa, Grand Chief of the Order of Railway Conductors, as a sociologist, the President assuming that for the purpose of such a Commission the term sociologist means a man who has thought and studied deeply on social questions and has practically applied his knowledge."

Thomas H. Watkins, Scranton, Pennsylvania,
"as a man practically acquainted with the mining and selling of coal."

Bishop John L. Spalding, Peoria, Illinois
(The President added the Bishop's name to the Commission.)

Carroll D. Wright, Commissioner of Labor;
appointed Recorder of the Commission.

Mr. Mitchell's acceptance of the plan of settlement, as finally worked out by the President, was ratified by a miners' convention at Wilkes-barre, and the strike was declared at an end October 21st. The Arbitration Commission was organized at the White House on the 24th, under the presidency of Judge Gray. Carroll D. Wright, appointed originally as recorder of the Commission, was added as a seventh member to the board, all parties consenting. Public hearings by the Commission were opened at Scranton on the 14th of November, President Mitchell being the first witness, under cross-examination by railway attorneys for five days. The investigation was laborious and long, and it was not until the 21st of March, 1903, that the award of the Commission was made. The following summary of its important decisions is derived from an exposition of it by Walter E. Weyl, Ph. D., in The ***Review of Reviews*** for April, 1903:

"There were four demands of the miners,--namely, for an increase of pay, a decrease in hours, the weighing of coal where practicable, and the recognition of the union. The first two demands of the miners have been compromised, the miners

receiving over half of the increase demanded; the third demand was refused, but the conditions reformed; while for the fourth demand, the men secured practically what they desired, although formal recognition was denied them.

"At the beginning of the hearings, the commission decided that any increase in the rate of pay, or any decrease in the hours, should be retroactive, and be effective from the first day of November. There would have been difficulty in carrying out this plan, however, especially in the case of a reduction in hours, and in substitution therefor the commission provided for a 10 per cent. increase in all wages of all employees during the five months of investigation, from November 1, 1902, to April 1, 1903. ... With regard to future wages and future hours of labor, the commission has adopted the plan of awarding increases for the various classes of employees and making this increased wage the minimum of a sliding scale. In other words, during the three years from April 1, 1903, to April 1, 1906, wages may not fall below the increased scale now awarded, no matter what the price of coal may be, but must rise above that rate in case the price of coal advances. The contract miners asked for an increase of 20 per cent., and have received a minimum of 10 per cent." The engineers hoisting water and the firemen were awarded the reduction in hours that they asked for, from twelve to eight, without reduced pay. Other engineers and pump men who asked the same received a five per cent. increase of pay with a reduction of working days per week from seven to six. The work day of men paid by the day was cut down from ten hours to nine. "These wages, however, are not necessarily the wages which will prevail, but merely the irreducible minimum of wages during the next three years. It was suggested by Mr. Baer that a sliding scale should be adopted, and that the wages of all mine workers should not fall below what they were in April, 1902, but should be increased by one per cent. for every five cents increase in the price of the large sizes of coal in New York City." This seems to have made part of the award.

"The commission says that it does not consider the question of recognition within the scope of the jurisdiction conferred upon it, although it states that 'the suggestion of a working agreement between employees and employers embodying the doctrine of collective bargaining is one which the commission believes contains many hopeful elements for the adjustment of relations in the mining region.' This concession, however, is qualified by the statement that 'the present constitution of the United Mine Workers of America does not present the most inviting inducements to the operators to enter into contractual relations with it.' Notwithstanding its disclaimer of jurisdiction, however, the Anthracite Coal Strike Commission has in practical effect compelled the operators to grant to the union full, plenary, and distinct recognition. The recognition of the United Mine Workers is clearly indicated by the language of the award.

{391}

Section 4 provides that 'Any difficulty or disagreement arising under this award, either as to its interpretation or application, or in any way growing out of the relations of the employees and employers, which cannot be settled or adjusted by conciliation between the superintendents or managers of the mine or mines and the miner or miners directly interested, or is of a scope too large to be settled or adjusted, shall be referred to a board of conciliation, to consist of six persons, appointed as hereinafter provided. That is to say, if there shall be a division of the whole region into three districts, in each of which there shall exist an organization representing a majority of the mine workers of such district, one member of said board of conciliation shall be appointed by each of said organizations, and three other persons shall be appointed by the operators, the operators of said district appointing one person.' The award of this board of conciliation shall be final, and in case of dispute the matter shall be referred to an umpire appointed by one of the Circuit judges of the Third Judicial Circuit of the United States.

There could be no clearer, no more definite, recognition of the union than is herein provided."

LABOR ORGANIZATION: United States: A. D. 1902-1909.
The National Farmers' Union and the
American Society of Equity.

A history of the Farmers' National Union has been written by its President, Charles Simon Barrett, from whose narrative the following account is drawn. It is quoted here from the *National Civic Federation, Review*.

"In the little town of Emory, Texas, in the year 1902, ten men met together at various times and discussed the methods of formulating rules and plans by which the laboring masses might be allowed a voice in the pricing of their farm products. From this meeting of a few plain men the Texas Union was formed. Credit as the founder of the Farmers' Union is given to Newt. Gresham, of Texas, an indefatigable worker for the good of farmers, who was long identified with the Farmers' Alliance as one of the organizers of that association.

"From local and State unions the organization has grown to be a national union, holding annual conventions and gathering into its fold an aggregation of between two and three million members.

"The most striking feature of this great organization is the fact that its membership is made up of employers and employés. No line is drawn separating the farm owner, operator or laborer, but all are received in the Farmers' Union on one broad platform of mutual aims and interests. Recognizing that the good of all is the good of the individual, the Farmers' Union, in democratic fashion, labors for the greatest good for the greatest number.

"The Farmers' Union works along the most practical lines.

There have been four great national meetings, the first being held in Texarkana in 1905, and the convention of 1906 at the same place; in 1907 the national meeting was at Little Rock, Arkansas, and in 1908 at Fort Worth, Texas, where President Gompers appeared. Besides the annual meetings of the National Union several important conventions have been held: one in January, 1907, in Atlanta, Georgia, was called as a grand national rally. At Memphis, Tennessee, the same year, a convention of the Farmers' Union was held for the purpose of devising ways and means by which the cotton then held by the membership of the Union might be sold advantageously. At New Orleans, 1908, another cotton growers' meeting was held, and at Topeka, Kansas, and Atlanta, Georgia, very important meetings were arranged between the cotton spinners and growers of the South and representatives from many English and continental cotton mills of Europe.

"The purpose and principles of the Farmers' Union, as enunciated in its constitution, afford material for an interesting study. It declares the following purposes:

- 'To establish justice.
- To secure equity.
- To apply the Golden Rule.
- To discourage the credit and mortgage system.
- To assist members in buying and selling.
- To encourage the agricultural class in scientific farming.
- To teach farmers the classification of crops, domestic economy and the process of marketing.
- To systematize methods of production and distribution.
- To eliminate gambling in farm products by boards of trade, cotton exchanges and other speculators.
- To bring farmers up to the standard of other industries and business enterprises.
- To secure and maintain profitable and uniform prices for grain, cotton, live stock and other products of the farm.
- To strive for harmony and good will among all

mankind and brotherly love among ourselves.'"

Another extensive organization of farmers bears the name of the American Society of Equity, which was reported in 1906, when it went into alliance with the American Federation of Labor, to have a membership of 268,000. This membership was scattered principally throughout Kentucky, Indiana, Illinois, Wisconsin, Minnesota, and Nebraska, with some members in Kansas, Oklahoma, and Michigan.

LABOR ORGANIZATION: United States: A.D. 1903.

Establishment of the Department of Commerce and Labor in the Federal Government.

See (in this Volume)

UNITED STATES; A. D. 1903 (FEBRUARY).

LABOR ORGANIZATION: United States: A. D. 1904.

President Roosevelt on Combinations among Employees of the Government.

"There is no objection to employees of the Government forming or belonging to unions; but the Government can neither discriminate for nor discriminate against nonunion men who are in its employment, or who seek to be employed under it. Moreover, it is a very grave impropriety for Government employees to band themselves together for the purpose of extorting improperly high salaries from the Government. Especially is this true of those within the classified service. The letter carriers, both municipal and rural, are as a whole an excellent body of public servants. They should be amply paid. But their payment must be obtained by arguing their claims fairly and honorably before the Congress, and not by banding together for the defeat of those Congressmen who refuse to give promises which they can not in conscience give. The Administration has already taken steps to prevent and punish abuses of this nature; but it will be wise for the

Congress to supplement this action by legislation."

***President's Message to Congress,
December 16, 1904.***

{392}

LABOR ORGANIZATION: United States: A. D. 1904-1905.

Long unsuccessful Strike of Operators in the
Fall River Cotton Mills.

From July 25, 1904, until January 18, 1905, about 25,000 workers in the Cotton Mills of Fall River, Massachusetts, were idle, and seventy-two mills were substantially out of business, as the consequence of a reduction of wages which the operatives would not consent to. Great suffering among the men and women concerned was said to have been endured. It was through the mediation of Governor Douglas that a settlement was finally brought about, the work people submitting to the reduced wages, but having the promise of some increase later on, if an independent examination of the books of the mill companies should show a certain stipulated percentage of profit.

LABOR ORGANIZATION: United States: A. D. 1905 (April-July).
Strike of the Teamsters' Union at Chicago.

One of the most violently conducted strikes that has ever occurred in the United States was brought on at Chicago, in the spring of 1905, by an attempt of the Teamsters' Union in that city to give sympathetic support to a strike of the Garment Workers Union. The latter selected for special attack the firm of Montgomery Ward & Co., which carries on an enormous mail-order business, selling goods of all descriptions through no agencies, but dealing directly with customers in small towns and rural districts throughout the country. This company employed few garment workers relatively:

but, probably because the magnitude and diversity of its shipments made it particularly vulnerable to such an attack, the teamsters began their undertaking by refusing to move its wagons or goods. From this the movement spread, as teamsters refusing to deliver goods to Montgomery Ward & Co. were discharged, and the concerns discharging them were boycotted in turn. Presently business in Chicago, to a large extent, was brought to a stand-still. The membership of the Teamsters' Union in the city was said to exceed 35,000, and 4000 were estimated to be on strike at the end of the first week in May. From this time the heat of passion in the conflict rose fast. An Employers' Teaming Association was organized, and the business interests of Chicago showed readiness to fight the striking union to a finish. Fierce attacks were made on the non-union teamsters brought into the work, but they seem to have been well defended by the police. In a hundred ways the whole city was divided into factions and deplorably disturbed. Children refused to attend schools which received coal from boycotted companies or wagons; and arrests of both children and parents were necessary to enforce the compulsory education laws.

While the strike was in its earlier weeks, President Roosevelt visited Chicago, and was called on by the President of the Teamsters' Union, Mr. Shea, who protested against a supposed design to call Federal troops to the city. In reply to him the President said: "I have not been called upon to interfere in any way, but you must not misunderstand my attitude. In every effort of Mayor Dunne to prevent violence by mobs or individuals, to see that the laws are obeyed and that order is preserved, he has the hearty support of the President of the United States—and in my judgment he should have that of every good citizen of the United States. ... I am a believer in unions. I am an honorary member of one union. But the union must obey the law, just as the corporation must obey the law; just as every man, rich or poor, must obey the law. As yet no action whatever has been called for by me, and most certainly

if action is called for by me I shall try to do exact justice under the law to every man, so far as I have power. But the first essential is the preservation of law and order, the suppression of violence by mobs or individuals."

At a banquet the same evening the President recurred to the subject and added, with fine emphasis: "This Government is not and never shall be the government of a plutocracy. This Government is not and never shall be the government of a mob." Those immediately responsible for dealing with a local situation, the President said, must first exhaust every effort before a call is made upon any outside body. "But," he added, "if ever the need arises, back of the city stands the State, and back of the State stands the Nation."

Chicago kept the conflict within itself, fighting it out through 105 days. It ended in the unconditional defeat of the Teamsters' Union, which called off the strike on the 20th of July. It was followed by a grand jury investigation of charges which each side had hurled freely against the other, of blackmail attempts by one, of bribery and attempted bribery by the other. The evidence obtained left little doubt that labor-leaders had extorted money for the prevention of strikes, and that business men had paid for exemption from trouble.

LABOR ORGANIZATION: United States: A. D. 1906.

Suspension of Coal Mining, both Anthracite and Bituminous, throughout the Country.
Final Agreement for Three Coming Years.

On the 31st of March, 1906, the agreements between mine owners and miners under which the latter had been working, in the bituminous mines for two years and in the anthracite for three, expired, and agreements for the future working had not been arrived at in either case. Miners in the bituminous field had accepted a wage reduction of five and a half per cent. in

1904, and now wanted it restored. Part of the mine owners, in Western Pennsylvania, were willing to concede it; others, in the more western States, stood out against them. In the anthracite field there was also a question of wages between miners and operators, and both sides offered arbitration, but differed as to the point to be submitted. The miners claimed arbitration of the general question of wages and conditions in the mines; the operators maintained that those had been adjudicated by the arbitration of 1903, and that the only proper question now was whether any change in conditions had occurred which called for a readjustment. That question they would submit to at least a majority of the members of the former Anthracite Coal Strike Commission, or they would agree that the awards made in 1903 by that Commission "and the principles upon which they were established by the Commission, and the methods established for carrying out their awards, shall be continued for and during the further term of three years from the first day of April, 1906."

{393}

The 1st of April found these disagreements still existing, and coal mining, both anthracite and bituminous, was generally suspended throughout the United States. More than 300,000 miners, on the whole, stopped work. In the anthracite field the suspension of work lasted until the 10th of May, when it was resumed under an agreement which continued for another three years (until March 31, 1909) the award of 1903. During the forty days of idleness there were few disorders of any kind in this region. In the soft coal fields the suspension was more protracted. It was ended in different localities at different times. Some mine owners, in several States, made terms with their men at an early day. Some kept their mines idle until the middle of July. Serious disturbances and conflicts of rioters with police and militia occurred in a number of States. At the end the miners had won a restoration of the wages of 1904, but had made concessions on other points

of dispute which differed in different States.

LABOR ORGANIZATION: United States: A. D. 1907.

President Roosevelt's Foundation for the
Promotion of Industrial Peace.

President Roosevelt, having been awarded the Nobel Prize of the year 1906 for his services in the interest of international peace, devoted the sum received, being somewhat more than \$40,000, to the creation of a fund "the income of which shall be expended for bringing together in conference at the city of Washington, especially during the sessions of congress, representatives of labor and capital for the purpose of discussing industrial problems, with the view of arriving at a better understanding between employers and employés, and thus promoting industrial peace." To carry out this purpose, an organization was incorporated by Act of Congress, March 2, 1905, under the name of the "Foundation for the Promotion of Industrial Peace," with trustees named as follows:

Chief Justice Melville W. Fuller, president;
Seth Low of New York, representing the general public,
treasurer;
John Mitchell of the United Mine Workers of America,
representing labor, secretary;
Thomas G. Bush of Birmingham, Ala.,
representing general public;
Marvin A. Hughitt, representing capital, and
Secretaries James Wilson and Oscar Solomon Straus.

Vacancies in the board to be filled by the President of the United States. The Trustees to pay over the income of the Foundation, or such part as they may apportion, to an Industrial Peace Committee, of nine members, selected and appointed by the Trustees, "three members of this committee to be representatives of labor, three to be representatives of capital, each chosen for distinguished services in the

industrial world in promoting righteous industrial peace, and three members to represent the general public." As originally appointed, this Committee was made up of the following persons:

"Archbishop John Ireland,
Marcus M. Marks of New York,
Ralph M. Easley of New York,
Elbert H. Gary, chairman finance committee
United States Steel Corporation;
Lucius Tuttle, president of Boston & Maine railroad;
J. Gunby Jordan of Columbus, Georgia;
Samuel Gompers, president of the
American Federation of Labor;
Daniel Keefe, president of the Longshoremen's association, and
Warren S. Stone, president International Brotherhood
of Locomotive Engineers."

LABOR ORGANIZATION: United States: A. D. 1907.
Abortive Strike of Telegraphers.

A widely organized and considerably prolonged strike of American telegraph operators, in the fall of 1907, was made abortive by the fact that the supply of men and women who have some training for the ordinary work of telegraphy is too large for a trade union to control the employment of it. The telegraphic service was made very imperfect for some weeks, and the public was subjected to much inconvenience; but the employing companies were brought to no such straits as could be coercive. The struggle of the operators was mainly for the recognition of their union, to secure negotiation with them as a body, for the adjusting of some conditions of which they complained. They suffered absolute defeat, and had to make terms individually at the end.

LABOR ORGANIZATION: United States: A. D. 1907 (April).
Threatened Railway Strike averted by Federal Intermediation.

A strike of trainmen and conductors on railways west of Chicago which threatened to be very serious was averted, in April, 1907, by the intermediation of the Chairman of the Interstate Commerce Commission and the Commissioner of Labor, acting in obedience to the Erdman Law, so called, of 1898. Both parties to the dispute made concessions. The employés withdrew their demand for a nine-hour work day, and the railway companies made an advance in wages which was estimated to add over \$5,000,000 to the earnings of 50,000 men during the ensuing year.

LABOR ORGANIZATION: United States: A. D. 1908.

The Work of the National Civic Federation in Promotion of Trades Agreements.

The following is from the annual address of President Seth Low to the National Civic Federation, at its annual meeting in New York on the 14th of December, 1908. The special subject of discussion at the meeting was "The Trade Agreement," on which Mr. Low spoke in part as follows:

"It has been our good fortune during the year to associate Mr. John Mitchell with the active work of the Federation, as the Chairman of its Trades Agreement Department. Mr. Mitchell entered upon his duties on August 1, and we have already had many opportunities to perceive the advantage to our work likely to result from his permanent connection with it. Through correspondence with labor unions and with the employers who have trade agreements with labor unions, he is building up an exceedingly strong department, the influence of which ought to be very helpfully felt in furthering the use of the trade agreement as a means for promoting industrial peace and progress.

"There are still some, though they are fewer in number than they used to be, who maintain that the relation of the

employer to the employé is an individual one, and who therefore will not deal with men as members of an organization in matters relating to their employment. I read in the paper the other day that there are 89,000 stockholders in the Pennsylvania Railroad Company. No one contends that these people organize into a company in order to fight labor. They organize because they have to in order to work together, and, as a result of organizing, they are represented in every use made of their capital by their officers. Can any one seriously contend that these 89,000 stockholders, speaking through their officers, are justified in saying to their 160,000 employés, 'We insist upon dealing with you, man by man; we will not recognize your organization.' Is it not rather clear, that the 160,000 employés, so far as their interests are common, must unite if they are to have anything at all to say as to the conditions upon which they will work, and, if they unite, they must have an organization and they must be represented by their officers? ...

{394}

"Take another illustration: The United States Steel Corporation employs, in round numbers, 200,000 men. Of this vast army of workmen about 44,000, nearly all of them representatives of organized labor, own stock in the corporation. In their capacity as stockholders, these 44,000 workmen are represented by the officers of the corporation. Can it be contended that they are any the less free, or have any less right, to be represented, in their capacity as workmen, by the chosen representatives of their trade organization? And when the two attributes of holding stock and taking employment are thus united in the same persons, will any one any longer contend that these men, as workmen, organize for the purpose of antagonizing themselves as capitalists?

"Now it is out of conditions that have produced a situation

like this that the so-called 'trade agreement' has sprung. In its simplest statement, a trade agreement is an agreement between organized stockholders and organized workmen, both acting through their chosen representatives, to determine, for the period of the agreement, the general terms of employment of the various classes of workingmen concerned. That each side tries to make the best bargain it can, goes without saying. That conditions favor sometimes one side and sometimes the other is equally true. That each side tends, when it has in its turn the upper hand, to push the other too hard is not improbable. But just as certainly as a pendulum, after swinging from one side to the other, tends to rest in a position of equilibrium, so such trade agreements tend to relieve the trade to which they apply of the extreme swing from conditions favoring capital to conditions favoring labor, and *vice versa*, which so often spells disaster to capital and labor alike. In other words, trade agreements that are revisable from time to time certainly make for industrial peace, and they ought as certainly to make for industrial progress. In the meanwhile they are constantly educating everybody concerned into a realization of the fundamental importance of keeping faith."

LABOR ORGANIZATION: United States: A. D. 1908-1909.
The Question of Injunctions in Labor Disputes.

See (in this Volume)

LAW AND ITS COURTS: UNITED STATES.

LABOR ORGANIZATION: United States: A. D. 1908-1909.
Union Boycotting a Violation of the Sherman Anti-Trust Law.
The American Federation of Labor and the Bucks Stove Company.
Alleged Contempt of Court by President Gompers and others.

Early in 1908 the Supreme Court of the United States gave final decision to a case in which the Hatters' Union and the American Federation of Labor were proceeded against, for

boycotting the goods of a hat manufacturing firm which refused to unionize its factory. As the plaintiffs in the suit sold their hats in many States, the boycott was alleged to be a combination in restraint of interstate commerce, and a violation, therefore, of the anti-trust law. The United States Circuit Court had dismissed the complaint, and the Court of Appeals had affirmed its decree; but the Supreme Court, by a unanimous decision, overruled both. It held that the law in question is violated by a combination to prevent the sale of non-union articles in different States.

[Under this decision, in a suit by the hat manufacturing company against the Hatters' Union for damages, a jury at Hartford, Connecticut, on the 3d of February, 1910, awarded \$74,000 to the former. The Union has appealed from the verdict.]

The attitude of law toward trade union boycotting was exhibited a year later in another more notable case, which arose from action taken by the American Federation of Labor against the Bucks Stove Company. In March 1907, the Federation had proclaimed a boycott against that company, advertising it in the official organ of the Federation as one which "we don't patronize," and taking measures to prevent tradesmen from buying the company's stoves. A suit to enjoin this boycott was brought, and the injunction was granted, in December, 1907, by Judge Gould, of the Supreme Court of the District of Columbia. The issuance of the injunction was made dependent, however, on the filing of a bond by the plaintiff, to make good all damages if the injunction should not finally be sustained, and an interval of six days occurred before the filing of the bond made the injunction effective. In that interval, many copies of a publication which the injunction would forbid were sent out by mail from the headquarters of the Federation, and more or less of these copies reached their destination after the injunction became of force. This proceeding, together with various devices by which the officers of the Federation had

sought to evade the injunction, through covert allusions to the boycott, became the ground of a charge that the principal officers of the Federation, Samuel Gompers, John Mitchell, and Frank Morrison, had violated the injunction and been guilty of contempt of court. On this charge, in July, 1908, these officials were ordered to show cause, on the 8th of September following, why they should not be punished for contempt. The case came then before another judge, Daniel T. Wright, whose judgment, rendered near the end of the year, held them guilty of contempt and sentenced them to imprisonment, severally, for one year, for nine months and for six months.

Appeal from the injunction, meantime, had been taken to the Court of Appeals of the District of Columbia, and there, on the 11th of March, 1909, it received a modification which seems, practically, to have extinguished the contempt. The Court held that the decree should be modified to the extent that it shall only restrain the defendants from conspiring or combining to boycott the business of the Bucks Stove & Range Company or threatening or declaring any boycott or assisting therein, and from printing the name of the complainant, its business or product in the "we don't patronize" or "unfair" list of defendants in furtherance of any boycott. The court held that the defendants cannot be restrained from all publications referring to the Bucks company, but only such as are made in furtherance of an illegal boycott.

On the appeal from the decree of the Court which adjudged Gompers, Morrison, and Mitchell to be guilty of contempt of court, the District Court of Appeals, on the 2d of November, 1909, affirmed that decree, and the sentence of Judge Wright was thus in force. A stay was given to it for a time, during which a writ of certiorari was obtained from the Supreme Court of the United States, which will review the whole case, but not until October, 1910.

LABOR ORGANIZATION: United States: A. D. 1909.

Expiration and Renewal of the Three Year Agreement
in the Anthracite Coal Districts.

Report of the Conciliation Board for the past Three Years.

Again, in the spring of 1909, at the end of a three year term of agreement (see above, A. D. 1906), the anthracite coal miners and their employers were in controversy over a renewal of the agreement. The latter proffered a renewal, without change, for another three years. The miners, in convention, at Scranton, on March 23d and 24th, refused the offer unless the agreement should be signed by them as members of the United Mine Workers of America, recognizing their organization. In this they were upheld by the new President of the United Mine Workers, Thomas L. Lewis, successor to Mr. John Mitchell, whose state of health had compelled him to resign. The old agreement expired on the 31st of March, and nothing was formulated at the time in its place, except a verbal understanding that, pending further conferences, the miners would continue work on the former terms. Later, however, it was stated that the Board of Conciliation, created by the strike commission of 1902, had been continued for a further period of three years.

At the end of August, 1909, the Conciliation Board published a report of the last three years of its work, in the settling of differences between mine-workers and operators. Only twenty-three grievances were presented to the mediators between April 1, 1906, and April 1, 1909, as compared with 150 grievances in the preceding three years. The Volume issued three years ago contained 336 pages. This year only 69 pages are required to tell of the grievances and settlement. A number of the grievances covered in the new report were settled out of court. Of the others, some were decided in favor of the employees, some for the employers. In three years only three grievances had to be referred to an umpire. As the

purposes of the board have become more clearly understood, a greater number of differences have been settled without reaching the stage of formal complaints. The members use their influence with the contestants to effect a compromise, avoiding the delay occasioned by a formal investigation.

LABOR ORGANIZATION: United States: A. D. 1909 (May-June).
The Georgia Railroad Strike.

See (in this Volume)
Race Problems: United States: A. D). 1909.

LABOR ORGANIZATION: United States: A. D. 1909-1910.
Strike of Girls in the Shirtwaist Trade at New York.
Its Social Significance.

One of the most important of recent labor strikes, in its social aspect, was undertaken in November, 1909, by the shirtwaist-makers of New York City, mostly girls. At the outset, the strikers numbered between 25,000 and 30,000; but half of them, by the middle of December, had made terms with their employers and resumed work. Ten or fifteen thousand were still in heroic contention with obstinate masters of the trade, and having public opinion and sympathy very strongly on their side. "The strike began," says the New York ***Evening Post***, "in a multiplicity of causes. Wages, sanitary conditions in the shops, humane treatment by foremen and forewomen, and recognition of the Waistmakers' Union all played a part. The contest has now [December 15] settled down to the single question of the union shop. The employers profess themselves ready to arbitrate every other point in dispute. The strikers maintain that recognition of their union is their only guarantee against the recurrence of conditions such as precipitated the conflict. ... It would be easy to exaggerate the significance of the eager way in which the Suffragist leaders have thrown themselves into the conflict. It is even easy to exaggerate the significance of the way in

which women of wealth and social prominence have come out in support of the strike. More significant to us is the zeal with which women of no very great social prominence, but still not of the working class, have from the beginning given their services in organizing and managing the strike, and particularly in doing picket duty on the streets and defending the rights of the girl employées before the police magistrates and in the courts. Here evidently is a sex-sentiment which cuts across the boundaries of class and bids fair to give a new aspect to labor conflicts of the future in which women are involved. The present strike has a social significance quite beyond the questions immediately at issue. It is our first great woman's strike, and as such it signalizes in a dramatic fashion woman's invasion into the field of industry."

-----LABOR ORGANIZATION: End-----

-----LABOR PROTECTION: Start-----

EMPLOYERS' LIABILITY
INDUSTRIAL INSURANCE
HOURS OF LABOR,
etc.

LABOR PROTECTION:

Safety Guards.
Employers' Liability.
Insurance, etc.
The Needed Law.

"In order to protect workingmen against injury by disease or negligent arrangements of machinery and ways, we need a state code of regulations which will prescribe protective devices, provide faithful inspectors and punish those guilty of violating the law. The roundabout method of making employers liable for damages in case of negligence has little effect, because employers can buy legal protection and wage-earners

have no money for law suits. Employers' liability laws may be made more severe and drastic; by statutes the obnoxious 'fellow servant' factor may be eliminated; various other provisions may be enacted by Congress and by state legislatures to extend somewhat the definition of negligence; but no law of this kind ever was made or ever can be made which will protect workmen from the loss of wages not clearly due to negligence of employers. An employer cannot be made 'liable' for defects for which he or his agent is not responsible. It is sheer waste of time to labor for improvement of a law whose fundamental principle covers only cases of employers' fault, because a vast number of injuries are due to causes which the utmost care cannot prevent.

{396}

"In order to secure income in periods of incapacity for labor several legal ways are open. The British method has much to commend it and finds favor with many Americans, the method based on the principle of 'compensation.' In Great Britain the old liability law is left to stand, like a rotting trunk, by the side of the new and living tree of the 'compensation' law. By the terms of this new law, enacted in 1897 and extended 1907 to certain trade diseases, the employer is required to pay indemnity to any employé who is injured in health or limb by accident or any cause due to the trade, and in case of death his dependent family is paid a certain sum for support. The employer resting under this obligation is permitted to meet it any way he can find. Usually he will bargain with an insurance company to carry his legal risk for a premium. It is said the insurance companies are putting up the rates, but Britishers will discover a way to cover the risk in the cheapest form. Already our federal government has embodied this 'compensation' principle in a law which gives a meagre sum to its own employés of certain classes when injured in its service; and the example of the central government will probably soon be imitated in several states. Bills are now

being drawn for this purpose.

"The 'social insurance' principle is entirely different from that of either 'liability' or 'compensation.' The word 'compensation' carries a little of the flavor of the ancient damage suit, while 'insurance' is simply an amicable business arrangement to provide in advance for the inevitable average risk of the trade, which may be extended beyond the perils of the shop and mill to all places and conditions of the workman's life.

"Historically the unquestioned tendency is from the liability principle to the direct insurance principle, with a wayside inn, perhaps, in some law like that of Great Britain, the law of France being almost squarely on the social insurance ground so far as it goes.

"The Illinois Industrial Insurance Commission proposed a law based on the insurance principle, though its friends were compelled to stop at a compromise with existing laws and constitutions. The bill offered by that commission was based on permission and persuasion; it offered to the employers who would provide an adequate system of insurance against trade accidents, freedom from the sword of the existing liability law; and it offered to the workmen, if they were willing to accept these terms, an assured income in case of injury and to their dependents relief in case of death due to occupation. A law passed by the Legislature of Massachusetts, in May, 1908, has actually embodied this idea and set it to work in the field of experiment. It remains to be seen whether the motives mentioned will induce employers and employés to agree on the plan. Without agreement the law will be a dead letter, for it is merely permissive, and agreements will not be made unless the economic motive is adequate. Up to this writing (December 7) not a single employer has organized a scheme under this law.

"The Wisconsin Board of Labor has made what seems a wise proposition to the effect that employers be compelled to insure their employes up to the ordinary amount already known to be spent for litigation, casualty insurance premiums and other expenses; and they also properly suggest state organization for the collection and administration of the premiums.

"The recent International Congress on Workingmen's Insurance, after many years of debate, reached conclusions of vast import, happily without dissent. One conclusion was that all attempts to insure the workmen who most need it, whose pay is small and uncertain, and who are not organized, must prove failures. Delegates from France and England who have always stood for 'liberty' have come to admit this truth. Not even subsidies to voluntary insurance associations have been effective. Only when insurance is made compulsory on all does it reach the multitude of the wage-earners. But compulsion to insure may include liberty of method, if the plan adopted is approved by legal authority and by actuaries. Either private companies, mutual associations, or state departments of insurance may be trusted to conduct the plans once they are obligatory on all.

"Another interesting conclusion at the Rome congress was that compulsory insurance can cover only a minimum guarantee of income to the sick, wounded or invalid workman; while above this minimum, with advancing wages, workmen and their employers can well unite in providing more generously for loss of income by voluntary payments of higher premiums. Trade unions, fraternal societies and other organizations, as well as casualty companies, have before them an indefinite field for expanding their activities in this direction."

***Charities and the Commons,
March 13, 1909.***

LABOR PROTECTION: Accident and Sickness Insurance:
Proposed Amendments to the German Compulsory Insurance Laws.

A Bill to amend the compulsory insurance laws of Germany which was laid by the Imperial Government before the Federal Council in April, 1909, to be acted on in the course of the ensuing year, is described in part elsewhere.

See, in Volume IV. of this work,
SOCIAL MOVEMENTS: A. D. 1883-1889.

See in Volume VI.
GERMANY: A. D. 1897-1900.

See in this Volume,
POVERTY, PROBLEMS OF: PENSIONS.

Of the contemplated amendments that relate to accident and sickness insurance it was announced, that "the proposed amendments of the law of accident insurance are mainly formal, but the scheme of insurance against illness is to be largely extended, and will include practically all classes of workers for whom insurance against invalidity and old age is or is to be compulsory. On the one hand, the system will in future include agricultural labourers, workers engaged for less than one week, and assistants and apprentices, whose insurance is not at present compulsory. On the other hand, it will include such categories of workers as stage and orchestra *employés*, and teachers who are not in the service of the State, if their salaries do not exceed £100 a year. The crews of seagoing ships, as well as of vessels plying on inland waterways, are now brought into the general sick insurance system."

{397}

LABOR PROTECTION:

Accidents to Workmen in the United States.
The Death Roll.
Appalling Statistics.

"Mr. Frederick L. Hoffman, of the Bureau of Labor, Department of Commerce and Labor, has compiled some striking statistics concerning the subject of accidents to workingmen. The importance of this subject is apparent when it is considered that between 30,000 and 35,000 workmen lose their lives in accidents in the course of their employment in this country during a year. Statistics have been secured from official sources and from insurance experience which show that the accident liability to which American workmen are subject is indeed high. Census reports covering the years 1900 to 1906 show that out of over 1,000,000 deaths of males more than nine per cent. were due to accident. The liability of workmen to accidental injury or death is brought under five general classifications, including factories and workshops, electrical industries, mines and quarries, transportation by rail and transportation by water. Of those employed in factories and workshops, probably the most exposed class is the workers in iron and steel. Of 8,456 accidents during the years 1901 to 1905, 4.1 per cent, of the accidents to men employed in rolling mills resulted fatally. According to industrial insurance experience, the fatal-accident rate of electricians and of electric linemen is excessive. Of 645 deaths of electricians, 14.7 per cent., and of 240 deaths of linemen, 46.7 per cent., were due to accidents. In the anthracite mines of Pennsylvania state inspectors have found that during ten years there have averaged annually 3.18 fatal accidents for every 1,000 men employed, and the rate is even higher than this for certain specific occupations in the mines. That this rate is excessive is shown by comparison with the death rate from accident of 1.29 per 1,000 in the British coal mines. Reports of the Interstate Commerce Commission show that during ten years 16,363 railway trainmen lost their lives in accidents. This is equivalent to 7.46 deaths per 1,000

employés."

Electrical Review,
January 2, 1909.

LABOR PROTECTION:
Child Labor.

See (in this Volume)
CHILDREN, UNDER THE LAW: AS WORKERS.

LABOR PROTECTION: Employers' Liability in Great Britain.
The Workmen's Compensation Act of 1906.

The Workmen's Compensation Act which passed the British Parliament in December, 1906, has the core of its purpose in the first of two appended schedules, which fixes the "Scale and Conditions of Compensation," in the following terms:

"(1) The amount of compensation under this Act shall be—

"(a) where death results from the injury—

"(i) if the workman leaves any dependants wholly dependent upon his earnings, a sum equal to his earnings in the employment of the same employer during the three years next preceding the injury, or the sum of one hundred and fifty pounds, whichever of those sums is the larger, but not exceeding in any case three hundred pounds, provided that the amount of any weekly payments made under this Act, and any lump sum paid in redemption thereof, shall be deducted from such sum, and, if the period of the workman's employment by the said employer has been less than the said three years, then the amount of his earnings during the said three years shall be deemed to be one hundred and fifty-six times his average weekly earnings during the period of his actual employment under the said employer;

"(ii) if the workman does not leave any such dependants, but leaves any dependants in part dependent upon his earnings, such sum, not exceeding in any case the amount payable under the foregoing provisions, as may be agreed upon, or, in default of agreement, may be determined, on arbitration under this Act, to be reasonable and proportionate in the injury to the said dependants; and

"(iii) if he leaves no dependants, the reasonable expenses of his medical attendance and burial, not exceeding ten pounds;

"(b) where total or partial incapacity for work results from the injury, a weekly payment during the incapacity not exceeding fifty per cent. of his average weekly earnings during the previous twelve months, if he has been so long employed, but if not then for any less period during which he has been in the employment of the same employer, such weekly payment not to exceed one pound:

"Provided that—

"(a) if the incapacity lasts less than two weeks no compensation shall be payable in respect of the first week; and

"(b) as respects the weekly payments during total incapacity of a workman who is under twenty-one years of age at the date of the injury, and whose average weekly earnings are less than twenty shillings, one hundred per cent, shall be substituted for fifty per cent. of his average weekly earnings, but the weekly payment shall in no case exceed ten shillings.

"(2) For the purposes of the provisions of this schedule relating to 'earnings' and 'average weekly earnings' of a

workman, the following rules shall be observed:—

"**(a)** average weekly earnings shall be computed in such manner as is best calculated to give the rate per week at which the workman was being remunerated. Provided that where by reason of the shortness of the time during which the workman has been in the employment of his employer, or the casual nature of the employment, or the terms of the employment, it is impracticable at the date of the accident to compute the rate of remuneration, regard may be had to the average weekly amount which, during the twelve months previous to the accident, was being earned by a person in the same grade, employed at the same work by the same employer, or, if there is no person so employed, by a person in the same grade employed in the same class of employment and in the same district;

"**(b)** where the workman had entered into concurrent contracts of service with two or more employers under which he worked at one time for one such employer and at another time for another such employer, his average weekly earnings shall be computed as if his earnings under all such contracts were earnings in the employment of the employer for whom he was working at the time of the accident;

"**(c)** employment by the same employer shall be taken to mean employment by the same employer in the grade in which the workman was employed at the time of the accident, uninterrupted by absence from work due to illness or any other unavoidable cause;

"**(d)** Where the employer has been accustomed to pay to the workman a sum to cover any special expenses entailed on him by the nature of his employment, the sum so paid shall not be reckoned as part of the earnings.

"(3) In fixing the amount of the weekly payment, regard shall be had to any payment, allowance, or benefit which the workman may receive from the employer during the period of his incapacity, and in the case of partial incapacity the weekly payment shall in no case exceed the difference between the amount of the average weekly earnings of the workman before the accident and the average weekly amount which he is earning or is able to earn in some suitable employment or business after the accident, but shall bear such relation to the amount of that difference as under the circumstances of the case may appear proper.

"(4) Where a workman has given notice of an accident, he shall, if so required by the employer, submit himself for examination by a duly qualified medical practitioner provided and paid by the employer, and, if he refuses to submit himself to such examination, or in any way obstructs the same, his right to compensation, and to take or prosecute any proceeding under this Act in relation to compensation, shall be suspended until such examination has taken place."

Further clauses of this schedule, and of the second schedule, which relates to the arbitration of disputed matters, are prescriptive in detail of procedure for carrying out the orders stated above. The liability of the employer and its limitations are set forth in the body of the Act, as follows:

"I.

(1) If in any employment personal injury by accident arising out of and in the course of the employment is caused to a workman, his employer shall, subject as hereinafter mentioned, be liable to pay compensation in accordance with the First Schedule to this Act.

(2) Provided that—

"(a) The employer shall not be liable under this Act in respect of any injury which does not disable the workman for a period of at least one week from earning full wages at the work at which he was employed:

"(b) When the injury was caused by the personal negligence or wilful act of the employer or of some person for whose act or default the employer is responsible, nothing in this Act shall affect any civil liability of the employer, but in that case the workman may, at his option, either claim compensation under this Act or take proceedings independently of this Act; but the employer shall not be liable to pay compensation for injury to a workman by accident arising out of and in the course of the employment both independently of and also under this Act, and shall not be liable to any proceedings independently of this Act, except in case of such personal negligence or wilful act as aforesaid:

"(c) If it is proved that the injury to a workman is attributable to the serious and wilful misconduct of that workman, any compensation claimed in respect of that injury shall, unless the injury results in death or serious and permanent disablement, be disallowed.

"(3) If any question arises in any proceedings under this Act as to the liability to pay compensation under this Act (including any question as to whether the person injured is a workman to whom this Act applies), or as to the amount or duration of compensation under this Act, the question, if not settled by agreement, shall, subject to the provisions of the First Schedule to this Act, be settled by arbitration, in accordance with the Second Schedule to this Act."

LABOR PROTECTION: In New Zealand:
Compensation for "Miners' Disease."

In the later part of 1908 a singular labor strike was caused

in New Zealand by legislation making "miners' disease" a ground of compensation from employers. The men refused to be examined for the disease, and the masters refused to engage them without examination; while the Government, which apparently expected masters to take the risk of engaging men already diseased, itself refused to admit the miners to the benefits of State insurance without examination.

A despatch from Wellington, January 9, 1909, announced: "The Waihi miners have unanimously refused to submit to medical examination, and 1,700 men will cease work on Monday unless the owners concede the point. The outlook is serious and the township is depressed. The Auckland coal miners remain idle, and consequently part of the coast fleet is laid up and a number of hands have been discharged." But a later despatch of the same date added: "The Government have now resolved to accept the risk of insuring the miners without examination, pending an amendment of the Act next session.

LABOR PROTECTION: In the United States: On Interstate Railways.

In his message to Congress, December, 1908, the President referred to this enactment, which he had approved in the previous April:

"Among the excellent laws which the Congress passed at the last session was an employers' liability law. It was a marked step in advance to get the recognition of employers' liability on the statute books; but the law did not go far enough. In spite of all precautions exercised by employers there are unavoidable accidents and even deaths involved in nearly every line of business connected with the mechanic arts. This inevitable sacrifice of life may be reduced to a minimum, but it can not be completely eliminated. It is a great social injustice to compel the employee, or rather the family of the killed or disabled victim, to bear the entire burden of such

an inevitable sacrifice. In other words, society shirks its duty by laying the whole cost on the victim, whereas the injury comes from what may be called the legitimate risks of the trade. Compensation for accidents or deaths due in any line of industry to the actual conditions under which that industry is carried on should be paid by that portion of the community for the benefit of which the industry is carried on—that is, by those who profit by the industry. If the entire trade risk is placed upon the employer he will promptly and properly add it to the legitimate cost of production and assess it proportionately upon the consumers of his commodity. It is therefore clear to my mind that the law should place this entire ‘risk of a trade’ upon the employer. Neither the Federal law, nor, as far as I am informed, the State laws dealing with the question of employers’ liability are sufficiently thoroughgoing. The Federal law should of course include employees in navy-yards, arsenals, and the like."

{399}

The following is the text of the Act:

"Section 1.

That every common carrier by railroad while engaging in commerce between any of the several States or Territories, or between any of the States and Territories, or between the District of Columbia and any of the States or Territories, or between the District of Columbia or any of the States or Territories and any foreign nation or nations, shall be liable in damages to any person suffering injury while he is employed by such carrier in such commerce, or, in case of the death of such employee, to his or her personal representative, for the benefit of the surviving widow or husband and children of such employee; and, if none, then of such employee’s parents; and, if none, then of the next of kin dependent upon such employee, for such injury or death resulting in whole or in part from the negligence of any of the officers, agents or employees of

such carrier, or by reason of any defect or insufficiency, due to its negligence, in its cars, engines, appliances, machinery, track, roadbed, works, boats, wharves, or other equipment.

"Section 2.

That every common carrier by railroad in the Territories, the District of Columbia, the Panama Canal Zone, or other possessions of the United States shall be liable in damages to any person suffering injury while he is employed by such carrier in any of said jurisdictions, or, in case of the death of such employee, to his or her personal representative, for the benefit of the surviving widow or husband and children of such employee; and, if none, then of such employee's parents; and, if none, then of the next of kin dependent upon such employee, for such injury or death resulting in whole or in part from the negligence of any of the officers, agents, or employees of such carrier, or by reason of any defect or insufficiency, due to its negligence, in its cars, engines, appliances, machinery, track, roadbed, works, boats, wharves, or other equipment.

"Section 3.

That in all actions hereinafter brought against any such common carrier by railroad under or by virtue of any of the provisions of this Act to recover damages for personal injuries to an employee, or where such injuries have resulted in his death, the fact that the employee may have been guilty of contributory negligence shall not bar a recovery, but the damages shall be diminished by the jury in proportion to the amount of negligence attributable to such employee:

Provided, That no such employee who may be injured or killed shall be held to have been guilty of contributory negligence in any case where the violation by such common carrier of any statute enacted for the safety of employees contributed to the injury or death of such employee.

"Section 4.

That in any action brought against any common carrier under or by virtue of any of the provisions of this Act to recover damages for injuries to, or death of, any of its employees, such employee shall not be held to have assumed the risks of his employment in any case where the violation by such common carrier of any statute enacted for the safety of employees contributed to the injury or death of such employee.

"Section 5.

That any contract, rule, regulation, or device whatsoever, the purpose or intent of which shall be to enable any common carrier to exempt itself from any liability created by this Act, shall to that extent be void: **Provided**, That in any action brought against any such common carrier under or by virtue of any of the provisions of this Act, such common carrier may set off therein any sum it has contributed or paid to any insurance, relief benefit, or indemnity that may have been paid to the injured employee or the person entitled thereto on account of the injury or death for which said action was brought.

"Section 6.

That no action shall be maintained under this Act unless commenced within two years from the day the cause of action accrued.

"Section 7.

That the term 'common carrier' as used in this Act shall include the receiver or receivers or other persons or corporations charged with the duty of the management and operation of the business of a common carrier.

"Section 8.

That nothing in this Act shall be held to limit the duty or liability of common carriers or to impair the rights of their employees under any other Act or Acts of Congress, or to

affect the prosecution of any pending proceeding or right of action under the Act of Congress entitled 'An Act relating to liability of common carriers in the District of Columbia and Territories, and to common carriers engaged in commerce between the States and between the States and foreign nations to their employees,' approved June eleventh, nineteen hundred and six."

***Statutes of the United States of America
passed 1st at Session of the 60th Congress, 1907-1908,
part 1, chapter 149.***

LABOR PROTECTION: HOURS OF LABOR:

Judicial Limitation of Police Power to regulate them
in the United States.

By a decision from the Supreme Court of the United States, in April, 1905, an Act of the Legislature of New York, limiting the hours of labor to be exacted from workmen in bakeries, was pronounced unconstitutional. The law in question provided that "no employee shall be required or permitted to work in a biscuit, bread or cake bakery or confectionery establishment more than sixty hours in any one week, or more than ten hours in any one day, unless for the purpose of making a shorter work day on the last day of the week; nor more hours in any one week than will make an average of ten hours per day for the number of days during such week in which such employee shall work." The New York Court of Appeals had passed on this enactment and declared it constitutional, as a measure for the protection of public health. A majority of the Supreme Court—five to four—rejected this view, saying, in the opinion written by Justice Peckham: "We think the limit of the police power has been reached and passed in this case. There is, in our judgment, no reasonable foundation for holding this to be necessary or appropriate as a health law to safeguard the public health or the health of the individuals who are following the trade of a baker." In the dissenting opinion of

Justice Harlan, Justices White and Day concurring, it was said: "The rule is universal that a legislative enactment, Federal or State, is never to be disregarded or held invalid unless it be, beyond question, plainly and palpably in excess of legislative power. If there be doubt as to the validity of the statute, that doubt must therefore be resolved in favor of its validity, and the courts must keep their hands off, leaving the Legislature to meet the responsibility for unwise legislation."

LABOR PROTECTION: LIMITATION OF WORKING HOURS FOR TRAINMEN.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1907.

{400}

LABOR PROTECTION: THE "ENGLISH COAL MINES (EIGHT HOUR) ACT."

The Act so called, passed in 1908, came into force on the 1st of July, 1909, except as respects mines in the counties of Northumberland and Durham, where its operation was deferred until the 1st of January, 1910. The Act provides that "a workman shall not be below ground in a mine for the purpose of his work, or of going to and from his work, for more than eight hours during any consecutive twenty-four hours"; but this is qualified by the condition that "no contravention of the foregoing provisions shall be deemed to take place in the case of a workman working in a shift if the period between the times at which the last workman in the shift leaves the surface and the first workman in the shift returns to the surface does not exceed eight hours." This rule, it is said, makes the nominal working day of eight hours "one that will vary, according to local conditions, from eight and a half to nine hours." On the other hand, the Coal Owners' Association

of South Wales and Monmouthshire, in a manifesto issued shortly before the Act became operative, declared: "The Act does not permit eight hours' work underground, but a considerable portion of this time is taken up in travelling to and from the actual place of work, and in many of the older collieries not more than 6½ hours' effective work will be performed. The owners are strongly of opinion that it will be found impossible to work such collieries and maintain them in repair with all the pumping of water, boilers, engines, horses, officials, and attendants necessary for 24 hours per day on 6½ hours' productive work, especially in view of the fact that in South Wales a much larger proportion of the collier's time is occupied in other work than in producing coal than is the case in most other coalfields."

The conditions are described as being different in the Welsh mines from those in other British coal fields, and it seems to have been there only that trouble arose when the Act came into effect.

LABOR PROTECTION: Germany's Latest Code.

"The coal miners of Prussia have secured a legal eight-hours day for underground work, but in industry generally the number of hours worked is ten daily, or sixty weekly, and these hours generally fall between six and six or seven and seven. In some industries, and especially the textile industries, from sixty-three to sixty-six hours per week are commonly worked by both sexes. ... Just as there was once a time when the textile industry of the Rhineland worked to a large extent seventeen hours a day in order to facilitate competition with England's more highly developed factories and more skilled workers, so now a day of ten and eleven hours is maintained in the same industry purely out of fear of the foreigner. ... The only limitation of hours introduced by the amendment to the Industrial Code which was passed in 1908 applied to female

workers, and it merely fixed the rule of sixty hours, subject to many exceptions. An investigation made in 1902 by the Government into the hours worked by females employed in factories and workshops showed that of 813,560 such workpeople, employed in 38,706 works, 86,191 (in 6,768 works), or 10.6 per cent., worked nine hours or less, while 347,814 (in 18,267 works), or 42.8 per cent., worked from nine to ten hours (inclusive), so that over half already enjoy the protection which the new law is to afford. The Socialists at present demand a ten-hours day for both sexes, for the whole country and for all industries, but they regard this no longer as their final objective, but as a stage on the way towards the goal of an eight-hours day, via a halfway house of nine hours."

William H. Dawson,
The Involution of Modern Germany,
pages 129-131
(Unwin, London; Scribners, New York, 1909).

"On December 28 last [1908] an industrial amendment Act was passed by the German Reichstag and became law. It introduces a number of new and more stringent regulations for the protection of women and children, which will have the effect of securing a large reduction of the hours of labour in many manufacturing industries. In its application it goes beyond the existing factory law, which applies to *Fabriken*, and it includes all *Betriebe* (industrial establishments) in which ten or more persons are employed. It reduces the maximum number of hours for women from 11 to 10 on ordinary week days and from 10 to 8 on Saturday. That is to say, it reduces the statutory maximum week from 65 to 58 hours. It extends the period during which night-work is prohibited by an hour, and fixes it from 8 p. m. to 6 a. m., instead of from 8.30 p. m. to 5.30 a. m. as heretofore. It further provides that after each day's work an unbroken interval of 11 hours' rest must elapse; and this also applies

to workers of both sexes under 16. The latter, who already enjoy the daily and weekly maximum now granted to women, will also have the statutory times of beginning and leaving off work altered from 5.30 A. M. to 6 A. M. for beginning and from 8.30 A. M. to 8 P. M. for leaving off."

LONDON TIMES,
MARCH 15, 1909.

LABOR PROTECTION:

Japanese Legislation in Prospect.

The following report from Japan came to the American Press in a telegram dated December 15, 1909, at Victoria, British Columbia: Factory owners of Japan, who employ 642,000 hands, of whom 392,000 are women and a big percentage children, are excited over factory laws to be advocated at this session of the Diet, according to news brought here yesterday. The law will provide against employment of children less than twelve years old, but those above ten now employed will be permitted to continue. Workers under sixteen and females may not be worked more than twelve hours a day, and must be given two days rest each month. In days of ten hours, an hour's rest must be given.

LABOR PROTECTION:

Report of the United States Industrial Commission in 1902.
Recommendations for State Legislation.
Child Labor and Woman's Labor.
The Utah Law on Labor in Mines.

"Perhaps the subject of greatest public interest to-day is that of the regulation of the hours of labor permitted in industrial occupations, and especially in factories. Most of the Northern and Eastern States prohibit the employment of persons under the full age in factories or other mechanical establishments for more than a prescribed time per diem,

usually ten hours, and not exceeding sixty hours per week. Obviously, Congress has no power without a constitutional amendment to legislate directly on this subject. The Commission are of the opinion that a uniform law upon this subject may wisely be recommended for adoption by all the States.

{401}

We believe that such legislation can not, under the Federal and State constitutions be recommended as to persons, male or female, above the age of 21, except, of course, in some special industries where employment for too many hours becomes positively a menace to the health, safety or well-being of the community; but minors not yet clothed with all the rights of citizens are peculiarly the subject of State protection, and still more so young children. The commission are of opinion, therefore, that a simple statute ought to be enacted by all the States to regulate the length of the working day for young persons in factories (meaning by 'young persons' those between the age of majority and 14); and in view of the entire absence of protection now accorded by the laws of many States to children of tender years we think that the employment of children in factories in any capacity, or for any time, under the age of 14, should be prohibited. The question of shops and mercantile establishments generally appears even more subject to local conditions than that of factories; therefore the Commission see no need for even recommending to the States any uniform legislation upon this subject. But child labor should be universally protected by educational restrictions, providing in substance that no child may be employed in either factories, shops, or in stores in large cities, who cannot read and write, and, except during vacation, unless he has attended school for at least twelve weeks in each year. Further regulation, especially in the line of bringing States which now have no factory acts up to a higher standard, is earnestly recommended.

"The Supreme Court of the United States has affirmed the

constitutionality of the Utah law limiting the length of the day's labor in mines or under-ground workings, even in the case of male citizens of full age. The Commission would therefore recommend that the provisions of the Utah constitution and statutes be followed in all the States, by which the period of employment of workmen in all under-ground mines or workings shall be eight hours a day, except in cases of emergency, when life or property is in imminent danger, and also that the employment of children under the age of 14 and of all women and girls in mines or under-ground quarries and workings shall be forbidden."

***Final Report (1902) of Industrial Commission,
pages 946-948.***

LABOR PROTECTION:

Hours of Labor for Women.

Right of the State to put other Limitations than on Men.

U. S. Supreme Court Decision.

The constitutional right of a State to put other limitations on the hours of labor for women than it puts on the hours of labor for men was questioned by the proprietor of a laundry in Oregon, and the question was carried to the Supreme Court of the United States. The decision of that tribunal was rendered early in 1908, affirming the right of a State to make such distinction in labor limitations between the two sexes, and the ground of the decision introduces a principle of enormous importance into law. A legal limitation of the hours of labor touches the contractual rights of the individual, and the Court conceded that in those rights women stand on the same plane as men; but the State, it declares, has the constitutional right, for the public good, to limit the contractual right of the individual, and its reasoning on the matter before it turns therefore on the question whether the protection of women by this special limitation of contractual rights is or is not for the public good? On this question the

counsel for the State of Oregon, Mr. Louis D. Brandeis, had submitted a remarkable mass of testimony, social and physiological, which the Court accepted as conclusive, and founded its decision thereon. This testimony the Court declared to be "significant of a widespread belief that women's physical structure, and the functions she performs in consequence thereof, justify special legislation restricting or qualifying the conditions under which she should be permitted to toil." Though "constitutional questions ... are not settled by even a consensus of present public opinion," yet the Court held that "when a question of fact is debated and debatable, and the extent to which a special constitutional limitation goes is affected by the truth in respect to that fact, a widespread and long-continued belief concerning it is worthy of consideration." Applying that principle in this case, the Court affirmed that "as healthy mothers are essential to vigorous offspring, the physical well-being of woman becomes an object of public interest and care in order to preserve the strength and vigor of the race." On account of her physical constitution, "she is not an equal competitor with her brother." In spite of the removal of legal and other disabilities, "she will still be where some legislation to protect her seems necessary to secure a real equality of right." Such legislation to defend woman, to use the Court's phrase, "from the greed as well as the passion of man," is not merely for her benefit, but for the well-being of the race.

"The two sexes," said Justice Brewer, who delivered the decision of the Court, "differ in structure of body, in the functions to be performed by each, in the amount of physical strength, in the capacity for long-continued labor, particularly when done standing, the influence of vigorous health upon the future well-being of the race, the self-reliance which enables one to assert full rights, and in the capacity to maintain the struggle for subsistence. This difference justifies a difference in legislation and upholds that which is designed to compensate for some of the burdens

which rest upon her."

LABOR PROTECTION: ORIENTAL COMPETITION:

The Force of the Objection to it in Countries under
the Protective Tariff System.

See (in this Volume)

RACE PROBLEMS; UNITED STATES.

LABOR PROTECTION: A. D. 1900-1909.

Study and Treatment of Industrial Problems in
the United States by the National Civic Federation.

See (in this Volume)

SOCIAL BETTERMENT: UNITED STATES.

-----LABOR PROTECTION: End-----

{402}

-----LABOR REMUNERATION: Start-----

LABOR REMUNERATION.

Cooperative Organization.

Pensions.

Profit-sharing.

Wages Regulation, etc.)

LABOR REMUNERATION:

The Bonus System.

Its Working in the Shops of the Bethlehem Steel Company.

"Awarding extra compensation for extra work has long been the practice of successful manufacturing; but the particular method of awarding a **bonus** above referred to is of recent origin, and fills an important need in modern systems of management. It may be briefly described as follows:

Alternative ways of doing a piece of work are carefully investigated by the most competent expert available and the results recorded. The best method is determined and taught to an ordinary workman, who is awarded extra compensation in addition to his day's pay for doing the work in the time and manner specified. This method of compensation was the outcome of an attempt to introduce in complicated work equitable piece rates determined as nearly as possible by scientific methods."

The original working out of this method into a system is ascribed by the writer of the above to Mr. Fred W. Taylor, in the early eighties, he being then in the employ of the Midvale Steel Company. After setting forth the principles involved in the system, this writer concludes his article by stating:

"The principles above outlined were applied during the spring and summer of 1901 to the ordnance and armor-plate machine shops of the Bethlehem Steel Company, and resulted in a short time in more than doubling the output of those shops. The system is still in use substantially as introduced, and the superintendent, Mr. Archibald Johnston, in his testimony before the House Committee on Labor, February 13, 1902, makes the following statement regarding it:

"This arrangement has worked very satisfactorily, both to the men and the company, for it has enabled us to get work out more quickly, and to add to the producing capacity of our invested capital; while for the men it has been a great benefit, as we have many instances of employees who have bought homes for themselves principally from their extra earnings on the bonus system, and from overtime work. The system has been a stronger incentive to industry than any other we have been able to put into effect in our plant."

***H. L. Gantt,
The Bonus System of Rewarding Labor
(American Review of Reviews).***

LABOR REMUNERATION: COÖPERATIVE ORGANIZATION:

France, Italy, etc.

Cooperative Production.

A book published in 1905, entitled "Labor Problems," by T. S. Adams and Helen L. Sumner, gives an interesting account of coöperative associations for contract labor in France, of which there were 296 on the 1st of January, 1901, seemingly having considerable success, 106 of the number being in the building trades. Similar organizations were reported in Italy and New Zealand. In France, the law provides for dividing public contracts, and for making payments on them in such ways as to bring them within the means of these associations of workmen. In Germany and Holland there is said to have been a less degree of success in organizing this mode of productive coöperation.

LABOR REMUNERATION: GREAT BRITAIN:

The Coöperative Union and Coöperative Congress.

Recent Statistics of Membership, Organizations, and Operations.

Rapidly increasing Coöperation in Agriculture.

As reported at the annual Coöperative Congress of 1905, the Coöperative Union of Great Britain had then a membership of 2,200,000, conducting coöperative undertakings with a total capital of £36,500,000 and a trade of £92,000,000. At that meeting a proposition to act with the Labor Representation Committee, for increasing the representation of labor interests in Parliament, was defeated by 801 votes against 135.

Four years later, at the Congress held in May, 1909, the reported membership of the Coöperative Union had increased to 2,516,194, in 1560 affiliated societies. Among other statistics reported for the previous year were the following:

"The two large wholesale societies—one in England and the other in Scotland—had a membership of 1414 in 1908, or a decrease of three as compared with the total for 1907; the shares held amounted to £1,984,676, a rise of £190,131; the loans were £5,114,201, an increase of £382,990; the sales for the year amounted to £32,433,968, an increase of £43,940, and the interest on capital was £96,350, an increase of £5,498. The year's trading, however, resulted in a decrease of profits amounting to £137,197, the total profits being £731,124. There were 1428 distributive societies, a decrease of 15, but the membership rose to 2,404,595, or 81,217 more; the shares held went up to £30,037,352, an increase of £998,703; the loans amounted to £4,558,021, a rise of £212,377; the sales increased by £1,635,749, the total being £60,783,278; but the profits dropped to £10,773,005, or a decrease of £126,327.

"Coöperative production forms a large and important branch of the movement. Some facts relating to it are given from the last annual report of the Chief Registrar of Friendly Societies in order to supplement the figures of the central board. According to the Chief Registrar's report, 1251 societies, including distributive, wholesale, and productive societies, made returns showing that, they carried on production to the extent of £16,989,764 in the year, calculated on wholesale prices. The workpeople employed in production numbered 44,188—men, 25,809; women, 12,212; boys, 6167—and the wages paid to these (exclusive of bonus) amounted to £2,324,674. The board's annual summary of the operations carried on by the productive societies and the productive departments of the two wholesale societies shows a total production in 1908 of £11,112,220. To this is added an estimated production of £7,750,000 by the distributive societies, making the total production of the coöperative movement for the year about £18,862,000. The number of productive societies to which the Board's returns relate is 122, a decrease of five as compared with the total for the previous year. The number of people employed by these

societies during the year was 28,575, an increase of 1637; the capital invested was £4,610,072, an increase of £259,137; the trade, as stated above, was £11,112,220, an increase of £450,802; the profits amounted to £352,398, a decrease of £15,317; and the losses amounted to £68,650, as against £8336.

{403}

"Among the industries engaged in coöperative production, corn milling had a trade last year amounting to £4,564,706, which was considerably higher than the total for the previous year. Increases were also recorded in the cotton, linen, silk, and wool industries, and by societies engaged in woodwork, building, and quarrying, printing and bookbinding, baking, and laundry-work. But the societies producing boots, shoes, and leather, metal and hardware, and various other goods had a reduced trade."

In an article on "The Coming of Coöperation," in Agriculture, the London *Times* of May 3, 1909, made the following statements: "The coöperative movement, on which more than anything else the success of all small farmers and many big farmers depends, is advancing with a rapidity very little realized even by farmers themselves.

"The position at present is this. In Ireland, in Scotland, and in England exist three organization societies which decided in July of last year to amalgamate for certain purposes. Under the lead of Sir Horace Plunkett the three societies decided that joint action would be effective in all the three branches of cooperative trade—

‘(1) The acquisition of farmers’ supplies of the best quality at the lowest price;

(2) the marketing of produce in the most economical manner; and

(3) the interchange of certain products.'

"Into this third attribute of cooperation it is worth while inquiring closely. The idea, which may mean an immense advance in the production of the farm, small or great, has not become familiar even to some of the best local coöperative societies we have. A few examples will illustrate the possibilities. No one will doubt the value of geographical knowledge to the farmer. One of the biggest successes made on the Fen farms in recent years resulted from the accident that a Fen farmer went to shoot snipe in Ireland, and there came upon a potato which proved to be exceptionally suited to the Fen soil. Many small fortunes have been made in potato farming by the use of Scotch seed. To-day, of course, every one is aware of its excellence, due partly to the red soil, partly to the wise custom of the Scotch farmer in digging his potatoes before they are mature. But this knowledge penetrated very slowly. ...

"An admirable instance, illustrating the same point, may be found in the unpublished history of the French wheats recently introduced into England. The whole tale is full of suggestions for English farmers and for the organization societies. French farmers, as we all know, are very closely federated; and every sort of work—in buying, in marketing, and in advancing money—is carried on by the local and federated syndicates. Some years ago the leaders of these syndicates came to the conclusion that their wheats greatly improved by a year or two in English soil. They preferred their own varieties, but found them more prolific when the seed was imported from England. Several difficulties met them. They had first to persuade English growers to grow these varieties, and secondly they had to compel them to keep the stock pure. The second difficulty might have been insuperable without joint action, but it was soon overcome by the syndicates.

"At present Ireland is a long way ahead of England, and England of Scotland, in co-operative organization; but

certainly in England, as well as Ireland, co-operation has advanced more rapidly in the last year or two than seemed at all likely at the beginning of the century. The Agricultural Organization Society, which was formed for propaganda work, is already able to give proof of valuable results from joint action towards what may be called the self-sufficiency of Britain. The advance has been made possible by the new federations of farmers, as well as by the multiplication of local co-operative societies."

LABOR REMUNERATION:

Exhibition of Coöperative Productions.

An exhibition of coöperative productions was opened in August, 1909, at the Crystal Palace, London, in connection with a National Co-operative Festival. On the one side goods were shown from the various co-partnership productive societies, including boots and shoes, baskets, cloth, velvets, cutlery, watches, and printing; and on the other side were specimens of the Co-operative Wholesale Society's goods, such as working exhibits of sweet-boiling, soap-milling, and cigar and cigarette making. In addition to the exhibits from workshops, the Tenant's Housing Societies showed plans of their houses owned on the coöperative principle by groups of workmen and others. It was pointed out by the promoters of the exhibition that such houses may be completely equipped for habitation with articles produced under cooperative conditions.

LABOR REMUNERATION: India:

Rapidity of the Movement.

"The co-operative movement in India, which was started five years ago by the passing of the Cooperative Credit Societies Act, has made steady and satisfactory progress in all the Provinces, and there are now 2,000 societies with 185,000 members and a working capital of over half a million sterling. Each Province has its official registrar and staff of

inspectors, whose business it is to preach the benefits of co-operation, to encourage the formation of new societies, to help each society to draw up its by-laws, to check and audit its accounts free of charge, to point out mistakes, and to put things right. The ordinary type of co-operative society is the village bank of from 50 to 100 members, all residents of the same neighbourhood, who know intimately each other's needs and resources, and, above all, each other's character."

***Correspondent London Times,
December 17, 1909.***

LABOR REMUNERATION: New Zealand:
The Labor Group Method.

"What distinguishes New Zealand as a State is the way in which governmental powers have been used, not to stop competition in the socialistic sense, but to force a higher and fairer level, on which it acts for the many rather than for the few. Every startling step has been of this nature. New Zealand is democratizing competition. If the public is there threatened with monopoly prices in coal or in insurance, the State acts competitively for the whole people. Our great interest in this method is that it may have immeasurable development without landing us in Socialism. It has the soul of democracy in it while preserving great areas on which those forms of private property may be maintained which Socialism usually attacks. Even more significant is the other illustration which New Zealand offers.

{404}

"It is the allotment of work to labor groups under the co-operation method. It unifies at once the political and the industrial practice. If the digging and laying up of a cellar, a section of roadway, or the foundations of a bridge are assigned to twelve laborers for the sum of fifty pounds, they

elect their own manager, agreeing upon the distribution of the work. A standard of efficiency is set, which the inspector enforces. The lump sum of fifty pounds is assumed by the authorities to give first a 'fair wage,' but beyond that a margin is given which extra zeal and fidelity may very materially increase. Under private contractors working for profit, this is of course a very old story. It is not an old story for the State or town to do it, with the express purpose of avoiding certain evils of competition, like insecurity and lack of work."

***John Graham Brooks,
Industrial Democracy
(The Outlook, November 17, 1906).***

LABOR REMUNERATION: Russia: A. D. 1903.
Statistics of Consumers' Associations.

In 1903 "the number of co-operative consumers' associations in Russia was 824. In order to compile some statistics, in regard to these, the 'Permanent Commission for Co-operative Associations' sent out some inquiry blanks which, in 204 cases, were properly filled out and returned. From these reports is gathered that the 204 associations had together 91,417 members and 26,402 annual subscribers, making a total number of about 118,000 customers. The average membership of the associations was 577. The number of employees was 3258, or 16 per association, and the expenses for wages and maintenance of these amounted to 1,131,307 rubles, or averaging 5515 rubles for each association. The total capital reached a sum of more than 4,000,000 rubles, which item was counterbalanced by a total indebtedness of nearly an equal amount. Of the entire net profit,—1,270,000 rubles,—256,539 rubles were distributed as dividends on shares, 590,857 rubles as premiums on purchases, and 68,155 were paid into the government as taxes."

Herman Rosenthal
(American Review of Reviews).

LABOR REMUNERATION: United States:
Coöperative Distribution and Coöperative Production.

"Today in Utah are eighty-seven coöperative distribution societies and in California sixty; and elsewhere are signs that the excellent principles of united effort may soon enter upon another and very likely its most notable revival. In San Francisco before the earthquake the coöperators had a large wholesale store doing a good business. At Lawrence, Massachusetts, the flourishing Arlington Store Society, an admirably conducted Rochdale venture, has 4,360 members and does an annual business of more than \$500,000, and at Lewiston, Maine, is a store managed on lines of modified coöperation with annual sales of more than \$600,000. Through the country the coöperative stores number about 250, with 60,000 or more members and \$7,000,000, of annual business; a showing that looks small compared with the gigantic operations of the British societies. But with the development of the Cooperative Association of America, a new enterprise managed by men like Frank Parsons, B. O. Flower, Charles E. Lund and other advanced thinkers, there is likely to be in the next few years a new and very different story to tell of coöperation in America.

"Coöperative production has already made a different story, although even that is flecked with enough of failure. ... So far back as 1868, in Minneapolis, four journeymen coopers had formed a cooperative society, steadily enlarged as the milling interests increased. In 1874, when the flour output was about 500,000 barrels a year, so many coopers had come to town that the Coöperative Barrel Manufacturing Company was formed and twelve years afterwards two-thirds of all barrels made in Minneapolis were made in coöperative shops. And then somehow the things began to decline. Of seven great coöperative shops

existing in 1886 only three survive. ... In other lines of productive effort Coöperation has often achieved notable success. The coöperative creamery, for instance, has been a boon to millions of farmers. Of such creameries in the United States there are about 3,800 with a membership in their associations of more than 300,000 and an annual product worth more than \$80,000,000. In Minnesota six-sevenths of all the creameries are coöperative; six hundred have been organized in the last ten years with a membership of 50,000. The idea is steadily gaining; it is very strong in all the Western States, and even in Massachusetts twenty-eight of fifty creameries are coöperative. In the operation of these societies there has been almost uniform success. The farmers indeed have done far more than the workingmen to show the benefits of union. There are in the United States about 4,000 farmers' purchasing and distributing societies with 500,000 members. Fruit growers' associations have been formed in nine states and have now more than 100,000 members. The Southern California Fruit Exchange, organized in 1891, handles more than half the orange business in California. It has seventy associations with 4,000 members. One third of all the fruit grown in California is now handled coöperatively.

"There are also coöperative bee keepers, coöperative sheep herders, coöperative poultry raisers, cattle breeders, wool growers, cotton growers and milk-dealers, and in six states are flourishing coöperative grain elevators. ...

See above,

LABOR ORGANIZATION: UNITED STATES: A. D. 1906.

Of coöperative insurance companies we have about 3,800, including mutual life, fire, hail and live-stock insurance. Three thousand of these are among the farmers, with a total membership of 2,700,000 and total risks reaching the amazing sum of \$3,000,000,000. Premiums among the farmers' coöperative insurance companies average twenty-four cents for each \$100 of

insurance against an average among all companies, as reported by the United States census, of \$1 for every \$100 of insurance. In Michigan, Iowa, Indiana, Kansas, Nebraska, Minnesota, Wisconsin, and the Dakotas farmers' coöperative telephone companies have had a phenomenal growth and have effected in some degree a transformation of rural life. ... Coöperative distribution ... has lately been revived in America through the well-considered efforts of the Coöperative Association of America, and still more recently through the Golden Rule Fraternity.

{405}

The Coöperative Association began in Lewiston, Maine, in 1900, as 'A Trust for the People.' It has utilized the ordinary trust machinery towards communal good instead of personal profit. There is a holding company called the 'Co-Workers' Fraternity' and this owns a controlling interest in stock of the Coöperative Association of America, in the National Production Company of New Jersey, in the Massachusetts Coöperative Society, and is to own a similar control in the other coöperative societies now being formed. On this modern and comprehensive basis coöperation is being reformed and reorganized in America. Its pitfalls hitherto have been chiefly those of management. On the new plan of organization these should be avoided. ... The revived prospects of Coöperation in America are due chiefly to the altruistic efforts of a certain band of thoughtful men and women that believe this to be the first step towards a cure of the national evils."

Charles D. Russell,
The Uprising of the Many,
pages 30-37 (New York, Doubleday, Page & Co., 1907).

"I spent nearly four weeks, from March 3 to March 27, [1908] visiting a chain of co-operative stores, fifty-five in number, in the vicinity of Minneapolis, Minnesota. These stores are organized on the famous Rochdale plan, for the benefit of the

consumer instead of the capitalist. The profits are divided in proportion to purchases, except that the general public who have not yet chosen to become members or shareholders receive only half-dividend or benefit. Goods are not sold cheaper; it is aimed to create capital by earning good profits. An accounting is had and the profits ascertained once in three or six or twelve months. These profits are then distributed between a surplus fund, an educational or propaganda fund, and dividend on purchases, which is paid in cash if the shareholder has paid in full, or credited on his share if only part paid. This is the nub of the Rochdale System, departures from which have been the cause of a long and almost unbroken line of failure in American attempts in co-operative stores.

"These Minnesota and Wisconsin stores have all been organized on a nearly uniform plan by a propaganda organization known as the Right Relationship League, consisting of three active officers, two additional directors, eight field organizers, and an associate membership of all the store shareholders who pay a fee of one dollar. The stores are incorporated by counties; when there are several stores in one county, they are 'departments' or branches. For example, the Polk County (Wisconsin) company has ten stores, the Pepin County company nine stores, and each has a general manager and a joint warehouse. Instead of starting a new store with a new manager and no established trade, the newly organized co-operative company buys out the best or next best general store in the town and continues the former owner as manager.

"Of the old guard who wrote and hoped for co-operation twenty to thirty years ago, all gave up the fight long since, myself excepted. Edward Everett Hale, Richard T. Ely, Carroll D. Wright, Washington Gladden, E. W. Bemis, John R. Commons, will be glad to know that the lost cause is reviving and may yet, in their lifetime, justify their early faith and repay their labors."

***N. O. Nelson,
The Co-operative Movement in the United States
(The Outlook, July 4, 1908).***

In February, 1909, it was reported that the stores of the above League had increased in number to seventy-six; that the membership and capital had been doubled within a year, and that a wholesale company had been formed, each store subscribing \$1000.

In "Labor Problems," by T. S. Adams and Helen L. Sumner, a considerable number of successful undertakings in producers' co-operation in the United States are enumerated, including establishments operated by labor unions in the iron, glass, garment and cigar-making, box-workers, wood-workers, building trades, etc., east and west; besides co-operative laundries and restaurants. The most interesting of these organizations appears to be that of the Workers' Coöperative Association of Boston, formed in 1900 by members of the building trades.

LABOR REMUNERATION:

The "New Protection": Australia: A. D. 1907-1908.

The "New Protection," so called, introduced in Australia, "is an extension of the principle of the Wages Boards Acts, which aim to preserve for the workers a certain assured remuneration. Under the New Protection, the field of this minimum wage legislation is extended to the trades subsidized or assisted under protective duties, so as to compel the manufacturers to share the accruing advantage with their employees. The Tariff Excise Act is the first installment of the new legislation. It came into force on January 1, 1907, and was specially intended to protect the agricultural implement industry from American and Canadian competition. It placed upon imported harvesters a duty of sixty dollars. The Federal Labor party supported the manufacturers in obtaining the duty, on condition that there was inserted a clause

imposing upon locally produced harvesters an excise duty of half the amount of the import duty. Manufacturers would, however, be exempt from the payment of this excise upon showing proof that their workmen had been paid 'fair and reasonable remuneration.'

"At the close of the manufacturing season one hundred and twelve manufacturers of harvesters filed applications for exemption from excise duty." This, at once on a test case, carried the question, what is a "fair and reasonable remuneration" for wage-paid labor into the Court of Conciliation and Arbitration, and its judge, much against his will, was required to determine it. He decided that not less than \$9.50 per week, in Australia, for the lowest class of unskilled labor, could be regarded as a "living wage." "This formed the basis of the entire Tariff Excise scale, since from it the court calculated the rates of payment for all other employees. This was the easier because there was but little difference of opinion between the employers and the respective unions as to the proportionate wages to be paid to various classes of skilled labor, and, with the price for unskilled labor raised, a similar increase followed in all the skilled trades in the business of manufacturing harvesters.

"The Harvester legislation is only the fore-runner of plans for extensive control over industry to be brought forward as soon as the import duties under the recently introduced tariff are decided.

{406}

"In this the three objects to be gained are not always easily reconciled, and the detail work, besides, of drafting rules and regulations to result in a moderately practicable working Act will be enormous. These objects are:

1. To conserve the market for the Australian manufacturer.

2. To insure fair remuneration to the employee.
3. To protect the consumer by placing a limit upon the price which may be charged.

The rough outline of the proposals is as follows: All dutiable goods bearing the Commonwealth Trade-Mark (a sort of universal label) as a guarantee that they have been manufactured under fair and reasonable conditions as to remuneration of labor will be exempt from excise. A board of excise, to consist of three members, to be appointed to give effect to these proposals. All goods manufactured under conditions which are in accordance with the State or Commonwealth industrial award or agreement, or which are declared to be fair and reasonable by the newly created board of excise, will be entitled to have the Commonwealth Trade-Mark affixed."

***Alice Henry,
Australia's "New Protection"
(The Outlook, February 8, 1908).***

The constitutionality of the Tariff Excise Act was soon brought to a test, and the Federal High Court decided in June, 1908, that wages could not be regulated in the method proposed. In the following October proceedings were opened in Parliament to secure such an amendment of the Constitution as would empower the desired legislation.

LABOR REMUNERATION: Pensions:
The German State-aided System.

See (in this Volume)
POVERTY, PROBLEMS OF: PENSIONS.

LABOR REMUNERATION:
System adopted by American Railroad Companies.

On the 10th of November, 1909, announcement was made by the New York Central Railroad Company that it had adopted an employees' pension system, by which 100,000 men would be affected. Under the plan, employees reaching the age of seventy years are retired. If they have been continuously in the service of the company for at least ten years preceding their retirement, they will be entitled to a pension. An employee who has been at least twenty years in continual service and has become unfit for duty may be retired with a pension, although he has not reached the age of seventy. The amount of the pensions is 1 per cent, for each year of continuous service, based upon the average rate of pay received for the ten years next preceding retirement. The pension system became effective on January 9, 1910.

The latest government report on the number of railroad employees puts the total for the country at 1,672,074. "Of these," says the New York *Evening Post*, "approximately 665,000, or about 40 per cent., serve the roads which have pension systems. These companies are the New York Central, the Rock Island, the Pennsylvania, the Buffalo, Rochester and Pittsburg, the Chicago and Northwestern, the Illinois Central, the Atchison, Topeka and Santa Fe, the Union Pacific, Southern Pacific, and their affiliated lines, the Delaware, Lackawanna and Western, the Baltimore and Ohio, the Atlantic Coast Line, the Reading, and the Central of New Jersey."

LABOR REMUNERATION: Profit-sharing:
Plan of Furness, Withy & Company.

One of the greatest of the British ship-building and shipping concerns, that of the incorporated firm of Furness, Withy & Co. of which Sir Christopher Furness is the managing director, announced in the fall of 1908 that it could not continue its business unless the constant troubles between itself and its employees over wages questions could be brought to an end.

With that view it was proposed to the workmen that they should become partners in the business by taking shares of the company's capital stock and paying therefor by a five per cent reduction of their wages until the price of their shares should be covered. Additional shares of stock would be issued for the purpose, on which four per cent of dividend would be paid, whether the company divided any surplus on the general stock or not. A certain percentage of the earnings of the business would be allotted to capital, and to cover depreciation and development, over and above which the employee-partners would participate in all profits. With reference to these allotments, to capital, etc., Sir Christopher Furness, speaking to a Labor Union meeting on the subject of his proposal, said: "I am aware that a section of working-men criticise the amounts laid aside by some companies for these various purposes as if they were devices for stealing the real earnings of the company from their employees, but, take my word for it, these allotments cannot be dispensed with, that is to say, if the directors have any regard for the continuance of the company with a reasonable hope of prosperity. Possibly an arrangement might be reached that nothing beyond a definite percentage on an average of years should be put aside."

Importantly in connection with the arrangement of profit-sharing co-partnery, Sir Christopher planned to organize what he called a Works Council, to be composed of an equal number of representatives of the workmen and representatives of the company. It would be, he said, a kind of Court of Reference and Committee of Counsel rolled into one. The proposals of the firm were accepted by its employees and the co-partnery arrangement was carried out.

A year and a half later, on May 22, Sir Christopher Furness and two others purchased an extensive colliery, the Wingate Colliery, and made a similar proposition to the workmen there, offering them one quarter of the shares of the company to be

formed, on the same terms of payment as in the case of the ship-building company. This gave evidence that the plan had worked satisfactorily thus far in its earlier trial.

On the 15th of December, 1909, the secretary of the Company addressed a letter to its Employé Shareholders, saying: "I have to acquaint you that my board have had under consideration the working of the company since the adoption of the co-partnery scheme, and I am directed to say that they consider the results, from every point of view, to be very satisfactory." The substantial results to the employees were thus stated:

"On the financial side you will also be pleased to hear that the working results are equally satisfactory. The audited accounts up to September 30 last, and the estimated results from that date to the present time, show such a balance as enables the directors to declare a dividend. They propose therefore, to make a distribution on the agreed basis of the scheme—viz., the guaranteed 4 per cent. to the *employé* shareholders, the fixed 5 per cent. to the Ordinary shareholders, with a bonus of 5 per cent. to both classes of shareholders. This will yield to the *employé* shareholders a return at the rate of 9 per cent. per annum, and to the Ordinary shareholders at the rate of 10 per cent. per annum, for the nine months ending December 31, 1909.

{407}

"For better convenience it has been decided by my board to make the financial year end on December 31.

"The amount due to each *employé* shareholder will be paid at the offices of the company at the respective ship-yards on the pay-day, Friday, December 24."

Promising as this plan of profit-sharing appeared, it did not

prove satisfactory to the employ  s, and, on the 1st of April, 1910, they voted against its continuance, complaining that their expectation of full employment had not been realized, and that the system tended to break up trade unions, which are labor's surest support and defence.

LABOR REMUNERATION:

The Plan of the United States Steel Corporation,
and other Great Corporations.

"An occurrence of tremendous and far-reaching importance is the success of the United States Steel Corporation's wage-earners' investment and profit-sharing plan. When this plan was announced, January 1, [1903], every thoughtful man in the country gave it close attention. ... With all, the question of questions was, Will it succeed? ... We have not been compelled to wait long for the answer. The directors of the Steel Corporation offered 25,000 shares of stock to their 168,000 employees. The books were to be kept open thirty days. No one dared believe that within this month, while the plan was so new, while all sorts of prejudices or fears might deter subscribers, and while the great mass of employees would still be studying and thinking about the offer which to them must have seemed somewhat novel and complicated, all or even one-half of the proffered stock would be taken up. Yet, when the books closed Saturday evening, January 31, it was found that the 25,000 shares offered had been subscribed for more than twice over. Twenty-seven thousand six hundred and thirty-three employees had subscribed for 51,125 shares. ...

"The company's proposal was to share profits with all employees who would demonstrate their interest and thrift by buying the company's stock. Consequently, the great bulk of the stock set aside for purchase by employees was offered to the men who earn the smallest salaries. This was done by dividing the 168,000 employees into six classes, according to their salaries—Class A, over \$20,000 a year; Class B, \$10,000

to \$20,000, down to Class E, \$800 to \$2,500 a year, and Class F, under \$800 a year—and then by limiting the amount of stock employees could take to the following proportions of their annual salaries: Class A, 5 per cent.; Class B, 8 per cent.; Class C, 10 per cent.; Class D, 12 per cent.; Class E, 15 per cent.; and Class F, 20 per cent. It will thus be seen why 90 per cent. of all the stock subscribed for in January goes to the two classes of mechanics and workmen whose salaries are under \$2,500 a year.

"The method is really a very simple one. Employees subscribe for stock, one or two shares apiece. The shares cost \$82.50, or less than the market value. Each employee pays in monthly installments, taken from his wages, and he may have the payments made small or large, as he likes, save that not more than 25 per cent. of his wages may be so used in any month, and he may not be more than three years in completing payment. Dividends at the rate of 7 per cent. a year go to the subscriber from the date of his first payment. Interest at 5 per cent. is charged on the deferred payments. In other words, the corporation sells stock below the market price, on credit, and pays the holder 2 per cent. a year in dividends more than he has to pay in interest. Here is a direct inducement to the investment of savings. But this is not all. Inducements are offered the employee to complete payment for his stock and to hold it. As soon as he has fully paid for it, the certificate is issued in his name, and he is free to dispose of it. But to make it worth his while to hold it and at the same time keep his place as a working partner in the company's service, the corporation says to him: 'If you hold your stock, and beginning with January next year you show it to the treasurer of your company, and present a letter from the proper official that during the preceding year you have been in the employ of the company, and have shown a proper interest in its welfare and progress, and you do this each January for five years, we will give you, in addition to the dividends paid you, a bonus of five dollars per share for each year. During the second

period of five years, we will pay you a further yearly bonus, as a reward for your continuous faithful service.' The amount of the second bonus cannot now be fixed, but it will doubtless be larger than the first one. Ample provision is made for the protection of subscribers who from one cause or another are unable to complete payment. Subscribers who discontinue payments get their money back and keep the difference between the 7 per cent. dividends and the 5 per cent. interest. In the case of subscribers who die or are disabled while faithfully serving the corporation, after having paid for their stock, the five dollars per share yearly bonus is not lost, but is paid over to them or to their estates."

***Walter Wellman,
The Steel Corporation Points the Way
(American Review of Reviews, March, 1903).***

"On December 31, 1908, it was reported that 22,960 employees had purchased shares under this plan and at that date either held the certificates or were making monthly payments for them on account. This is about 10 per cent. of the total number of employees, so that the scheme has not failed to enlist support. Indeed, it appears that in certain years, in 1907, for instance, the allotments of stock to employees were over-subscribed by 100 per cent. In May of this present year it was announced that since the scheme went into effect 193,493 shares of preferred stock and 15,318 of common stock had been sold to the employees at a total price of \$17,491,680. For 1909, the preferred was allotted at \$110 per share, and the common on the basis of \$50 per share. Indeed, one might opine that of late the attention of the lucky employee-holders might have been concentrated more on the ticker than on the steel hammer. Their paper profits have been figured at over \$6,000,000, and it is asserted that much of the stock has been sold by the fortunate investors."

New York Evening Post,

July 29, 1909.

{408}

A plan of profit-sharing with its employees similar to that of the United States Steel Corporation was introduced by the International Harvester Company, 1909, and by the Youngstown Sheet and Tube Company at about the same time. The plan of the former company was described very fully to the National Civic Federation, at its tenth annual meeting in New York, November, 1909, by Mr. George W. Perkins, chairman of the finance committee of the company. The result of the plan is "that a man begins to buy a share of the company's stock at a price below the market value; he is allowed to pay for it in instalments, paying 5 per cent. interest on deferred payments; he is credited with 7 per cent. dividends on the preferred stock and whatever dividends are declared on common stock. In addition to this, he is credited with, respectively, \$4 and \$3 per share, each year, on the preferred and common stock, and at the end of five years receives a further benefit by way of a share in a fund made up of such \$4 or \$3 deposits as are made by the company on account of those who do not continue under the plan. It will be seen that this offers the men an exceedingly satisfactory form of investment in the business in which they are employed, and gives to the company the great advantage of anchoring its organization to the business.

"The stock offered last summer was largely over subscribed, and the company to-day has more than 4,300 employees as stockholders."

LABOR REMUNERATION:

Wages Regulation by Law.

The English Trade Boards Bill.

To Suppress "Sweating" in certain Industries.

A Bill known as the Trade Boards Bill, which had passed the

House of Commons already, had its second reading in the House of Lords, almost without opposition or serious criticism, on the 20th of August, 1909. The second reading was moved by Lord Hamilton of Dalzell, who said in doing so that "its object was the establishment of a **minimum** rate of wages in certain sweated industries. The establishment by statute of a **minimum** rate of wages was, he supposed, a new departure, but the regulation of the conditions of labour in certain trades was by no means new, and ever since the passing of the first Factory Act Parliament had from time to time agreed to legislation having that object. Every one knew what sweating was, and every one acknowledged it to be a great evil. It was not a new thing, but the Government were of opinion that the time had now come when the only practical remedy should be applied. He understood that in Germany legislation dealing with this subject was imminent. He commended that fact to any one who might be afraid that by legislation of this sort the trade of this country would be driven abroad.

"As a matter of fact there was no reason to believe that any trade would be killed by the Bill. He did not know of any better proof of that than was found in the fact that almost all connected with the trades mentioned in the schedule, both masters and men, warmly supported the bill. He imagined that there would be a levelling up process. Employers who had paid fair wages would continue to do so; employers who would like to pay fair wages but were afraid of having their prices cut by the class below would now be able to do so, while the genuine sweater would have to pay fair wages whether he liked it or not. Girls living at home with their families and married women who had no children were often willing to work at considerably less than the market rate for the purpose of earning a little pocket money, and it might be said that if both parties were agreeable to this arrangement there was no reason to interfere. Seeing, however, that these people dragged down the level of wages and inflicted a serious injury

on those who had to carry on trade for their living, they were included in the Bill. If their work was worth having, it must be worth paying for. The trades selected for the purpose of the Bill were certain parts of the tailoring trade, the paper box making trade, certain parts of the common lace finishing trade, and certain parts of the chain making trade. These were all trades in which sweating was acknowledged to exist. The Bill could be extended to other trades by a Provisional Order Bill, and in this way the control of Parliament would be maintained. The **minimum** rate of wages in the specified trades would be regulated by a Central Trade Board assisted by local committees. Notice would be given when it was intended to fix a minimum rate of wages, and there would be an interval of three months to give those who desired to raise objections an opportunity of being heard. During the intermediary period, which would last six months, the rate of wages fixed by the Board would not be compulsory. He admitted that the establishment of a minimum rate of wages was a new principle. In certain quarters it had been objected to as an undue interference with freedom of contract, but the principle would only be applied where the workpeople had shown themselves incapable of any action for themselves. The conditions in those extreme cases clearly called for legislative action, in the interests of the community as well as of the workpeople themselves."

Almost every speaker who discussed the Bill, Liberal and Conservative alike, gave it cordial support.

LABOR REMUNERATION: Wages and Cost of Living:
Germany and England compared, 1908-1909.

Results of a statistical study of labor conditions in Germany, compared with those in Great Britain, were published by the British Government in the summer of 1908, and the showing favors the British workingmen. As nearly as the different housing of their class in the two countries can be compared,

the average of German rents is to rents in England as 123 to 100; while the cost of food to the Germans is to that of the English as 115 to 100. On the side of necessary expenditure, therefore, the wages of the German workman are drawn upon more heavily than the Englishman's by fifteen or twenty per cent., at the least. In other words, he would need to have higher wages than the Englishman, by as much as fifteen or twenty per cent., to put him on a footing of equality with the latter in the circumstances of his living. Instead of which his wages are lower by a number of points, the statistical ratio being 83 to 100 in the average of weekly wages, and 75 to 100 in the average of hourly rates. But this does not end his disadvantages, for he renders more hours of work, in the measure of 111 to 100. Notwithstanding all which handicaps, it is quite commonly conceded that the German workingman is physically more vigorous than the English, as a rule, and contrives, by more thriftiness in his living, to keep it on a higher level. Which is an extraordinarily creditable fact.

{409}

That the German workman lives and labors under the conditions produced by a high protective tariff, which is claimed to be protective of high wages as well as high prices, while the British workman's conditions of life and labor are the product of free trade in everything but a few tariff-taxed articles of luxury, such as wines, tobacco, silks, jewels and the like, are facts to be borne in mind when these comparisons are considered.

The following is from a report by the British Consul-General on the trade and commerce of the consular district of Frankfort-on-the-Main for the year ending April 30, 1909.

"In last year's report it was stated that the belief was gaining ground that wages in Germany were not only approaching those paid in the United Kingdom for the same class of work,

but in some cases even exceeded them. That the German workman to-day lives better than he used to there can be little doubt. The standard of life has been raised all round; the lowest aspect and standard of years gone by no longer exists. Food has improved, clothes have improved, Germany has become a rich country without the lowest grades of poverty which exist elsewhere. Wages have been increased in keeping with the higher level. Yet I do not think that, generally speaking, the German workman lives as well as the British workman."

After giving a table relating to savings bank deposits the report says that while during 1900-1905 the number of deposit books increased by 22.7 percent, and the total deposits by 44 per cent., during 1905-1907 they increased by only 7.95 and 10 per cent. respectively. This is considered to be attributable to the increased cost of living, and also to the fact that "with increasing wealth people are apt to become less thrifty."

LABOR REMUNERATION: France, Germany, and England: Workmen's Living Expenses compared, 1909.

A British Board of Trade report on the conditions of industrial life in France, published in May, 1909, summarizes as follows, in a prefatory note, the conclusions drawn from the mass of facts collected, as to the comparative cost of living to workmen in France, Germany, and England: "As regards rents, it appears that the French workman pays somewhat less than the English workman for a corresponding amount of housing accommodation, and therefore much less than the German workman; but against this must be set the fact that his housing accommodation is, as a rule, decidedly inferior in quality. The difference between the rent-levels of the capital and of the rest of the country is quite as marked in France as in England or Germany.

"The range of town price-levels is not very wide in any one of

the three countries investigated, and in France, as in the other two, the differences between one town and another in the cost of living (so far as it relates to expenditure on food) are, as a rule, by no means great. When the relative levels of food-prices in the three countries are compared, so far as the **data** permit, it appears that the general ratio of French prices to English prices for corresponding commodities is the same as that of German prices.

"On the assumption which has been adopted for the purposes of these international comparisons it follows that an English workman, with an average family, who should go to France and endeavour to maintain there his accustomed mode of living, would find his expenditure on rent, food, and fuel substantially increased—though not to so large an extent as if he had gone to Germany. On the other hand, he would find his wages to be lower than in the latter country and much below the English level, in spite of longer hours.

"The results of the comparison are somewhat modified if we take as its basis the foreign rather than the English mode of living. A French workman living in England according to his French standard would find a certain reduction in the cost of food, but a rise in the cost of housing accommodation. On the whole his expenses of living would be somewhat decreased, but in a proportion by no means so great as that by which the English workman would find his expenses increased on migration to France."

LABOR REMUNERATION: United States: 1905-1906 compared with 1890.

Gains to Labor.

Bulletin No. 71 of the United States Bureau of Labor, published in July, 1907, is devoted mainly to an elaborate report on Wages and Hours of Labor in Manufacturing Industries, 1890 to 1906, exhibiting "the average wages per

hour, the average hours of labor per week, and the number of employees in both 1905 and 1906, in the leading wage-working occupations of 4,034 establishments in the principal manufacturing and mechanical industries of the United States." The report does not cover salaried employees in any industries. With it, in a separate article, the retail prices of food in different parts of the country, 1890-1906, are tabulated. A summary of deductions from the figures detailed is submitted by way of preface to the tables and from this the following is taken:

"In the year 1906 the average wages per hour in the principal manufacturing and mechanical industries of the country were 4.5 per cent higher than in 1905, the regular hours of labor per week were 0.5 per cent lower than in 1905, and the number of employees in the establishments investigated was 7 per cent greater than in 1905. The average full-time weekly earnings per employee in 1906 were 3.9 per cent greater than in 1905.

"The variation in the purchasing power of wages may be measured by using the retail prices of food, the expenditures for which constitute nearly half of the expenditures for all purposes in a workingman's family. According to that article [on prices] the retail prices of food, weighted according to consumption in representative workingmen's families, were 2.9 per cent higher in 1906 than in 1905. As the advance in wages per hour from 1905 to 1906 was greater than the advance in the retail prices of food, the purchasing power of an hour's wages, as measured by food, was greater in 1906 than in 1905.

{410}

In 1906 the purchasing power of an hour's wages as expended for food was 1.4 per cent greater than in 1905, and the purchasing power of a full week's wages was 1 per cent greater in 1906 than in 1905, or, expressed in other words, an hour's wages in 1906 in the manufacturing and mechanical industries in the United States would purchase 1.4 per cent more food than an hour's wages in 1905, and a full week's wages in 1906

would purchase 1 per cent more food than a full week's wages in 1905.

"As compared in each case with the average for the years from 1890 to 1899, the average wages per hour in 1906 were 24.2 per cent higher, the number of employees in the establishments investigated was 42.9 per cent greater, and the average hours of labor per week were 4.6 per cent lower. The average earnings per employee per full week in 1906 were 18.5 per cent higher than the average earnings per full week during the ten years from 1890 to 1899.

"The retail price of the principal articles of food, weighted according to family consumption of the various articles, was 15.7 per cent higher in 1906 than the average price for the ten years from 1890 to 1899. Compared with the average for the same ten-year period, the purchasing power of an hour's wages in 1906 was 7.3 per cent greater, and of a full week's wages 2.4 per cent greater, the increase in the purchasing power of the full week's wages being less than the increase in the purchasing power of hourly wages, because of the reduction in the hours of labor."

In 40 of the 41 industries covered by this report the greatest increase of wages "was in the manufacture of cotton goods, where the average wages per hour in 1906 were 11.2 per cent higher than the average wages per hour in 1905. In the manufacture of electrical apparatus and supplies there was an increase in wages per hour of 10.1 per cent. In street and sewer work done by contract the increase in wages per hour was 8.7 per cent; in iron and steel, Bessemer converting, 8.5 per cent. and in the manufacture of cigars, 8.4 per cent. In the manufacture of bar iron the increase in wages per hour was 6.9 per cent, and in the building trades 6.1 per cent. Briefly stated, two industries show an increase in hourly wages of more than 10 per cent., 7 industries an increase of 5 per cent but less than 10 per cent., and 31 industries an increase of

less than 5 per cent. In one industry, paper and wood pulp, there was a decrease of wages of 1.1 per cent. In the industries as a whole, weighted according to importance, the increase in wages was 4.5 per cent. ...

"The per cent of change in hours of labor in 1906, as compared with 1905, was not so great as the per cent of change in wages per hour. In 5 industries there was a decrease of hours of 1 per cent or more, while in 25 industries there was a decrease of less than 1 per cent. In 5 industries there was an increase in hours of labor per week; in no instance, however, was the increase more than 0.3 per cent. Five industries show no change in hours of labor. The hours of labor were not reported for slaughtering and meat packing, for the reason set forth in footnote on page 58. The decrease in hours of labor in the industries taken as a whole was 0.5 per cent.

"In 1906 there was an increase in the retail price of food, weighted according to family consumption of 2.9 per cent as compared with 1905, an increase of 3.6 per cent as compared with 1904, an increase of 4.9 per cent as compared with 1903, an increase of 4.3 per cent as compared with 1902, and an increase of 10 per cent as compared with 1901. The retail price of food was 21.2 per cent higher in 1906 than in 1896, the year of lowest prices, and 15.7 per cent higher than the average price for the ten years, 1890 to 1899."

-----LABOR REMUNERATION: End-----

LABOR TRAINING:

Technical and Industrial Education.

See (in this Volume)
EDUCATION.

LADRONES.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901-1902.

LAFAYETTE, Marquis de:
Representatives of the Family invited Guests
of the United States.

See (in this Volume)
UNITED STATES: A. D. 1902 (MAY).

LA FOLLETTE, Robert Marion.

See (in this Volume)
WISCONSIN: A. D. 1900-1909; also,
PUBLIC UTILITIES, REGULATION OF.

LAGERLOF, Selma.

See (in this Volume)
NOBEL PRIZES.

LAKES-TO-THE-GULF DEEP WATERWAY.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

LALLA R'KIA.

See (in this Volume)
MOROCCO: A. D. 1903.

LAMA, The Dalai.

See (in this Volume)
TIBET.

LAMSDORFF, Count: Russian Minister of Foreign Affairs.

See (in this Volume)
JAPAN: A. D. 1901-1904.

LAND: In the United States:
Reclamation of Arid Lands.
Wasteful Culture.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

LAND: The Small Holdings Act in Great Britain.

See (in this Volume)
ENGLAND: A. D. 1907-1908.

LAND: Taxation proposed in the British Budget of 1909.

See (in this Volume)
ENGLAND A. D. 1909 (APRIL-DECEMBER).

LAND LAWS, IRISH: THE WORKING OF THE SUCCESSIVE LAWS.
The Act of 1903.

See (in this Volume)
IRELAND: A. D. 1870-1903, 1905.

LAND LAWS, RUSSIAN: THE AGRARIAN LAW.

See (in this Volume)
RUSSIA: A. D. 1909 (APRIL).

LAND OFFICE FRAUDS.

See (in this Volume)
UNITED STATES: A. D. 1903-1906.

LAND PURCHASE ACT, of 1909, IRISH.

See (in this Volume)
IRELAND: A. D. 1909.

LAND QUESTION, IN AUSTRALIA.

See (in this Volume)
IMMIGRATION AND EMIGRATION: AUSTRALIA.

LAND, RUSSIAN CROWN: SALE TO PEASANTS OPENED.

See (in this Volume)
RUSSIA: A. D. 1906.

LAND SYSTEM, OF NEW ZEALAND.

See (in this Volume)
NEW ZEALAND: A. D. 1905.

LANDIS, Judge K. M.:

Judgment against the Standard Oil Company, imposing a Fine
of \$29,000,000.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.:
UNITED STATES: A. D. 1904-1909.

LANDLORDISM:

Overthrown Politically in Denmark.

See (in this Volume)
DENMARK: A. D. 1901.

LANGLEY, Samuel P.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: AERONAUTICS.

{411}

LANSDOWNE, Henry Charles, Marquess of:

Secretary for Foreign Affairs.

Despatch explanatory of Agreements between England and France,
April, 1904.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

On each of the Two Defensive Agreements with Japan.

See (in this Volume)

JAPAN: A. D. 1902, AND 1905 (AUGUST).

On the Budget of 1909.

See (in this Volume)

ENGLAND: A. D. 1909 (APRIL-DECEMBER).

LARRINAGA, Tulio:

Delegate to Third International Conference
of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

LATHAM, Hubert.

See (in this Volume)

SCIENCE AND INVENTION; RECENT: AERONAUTICS.

LATIN BIBLE, Revised Translation of.

See (in this Volume)

PAPACY: A. D. 1907-1909.

LAURIER, Sir Wilfred, Premier of Canada:
At Colonial Conference in London, 1902.

See (in this Volume)
BRITISH EMPIRE.

At the Imperial Conference of 1907.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

LAURIER MINISTRY:
Supported in the Canadian Elections, 1904.

See CANADA: A. D. 1904.

LAVERAN, Charles L. A.

See (in this Volume)
NOBEL PRIZES.

LAW AND ITS COURTS: England:
Institution of a Court of Criminal Appeal.

An important innovation in the administration of criminal law was introduced in Great Britain by an Act of Parliament "to Establish a Court of Criminal Appeal," approved August 28, 1907. In part, the enactment was as follows:

"1.

(1) There shall be a Court of Criminal Appeal, and the Lord Chief Justice of England and eight judges of the King's Bench Division of the High Court, appointed for the purpose by the Lord Chief Justice with the consent of the Lord Chancellor for such period as he thinks desirable in each case, shall be

judges of that court.

"(2) For the purpose of hearing and determining appeals under this Act, and for the purpose of any other proceedings under this Act, the Court of Criminal Appeal shall be summoned in accordance with directions given by the Lord Chief Justice of England with the consent of the Lord Chancellor, and the court shall be duly constituted if it consists of not less than three judges and of an uneven number of judges.

"If the Lord Chief Justice so directs, the court may sit in two or more divisions. The court shall sit in London except in cases where the Lord Chief Justice gives special directions that it shall sit at some other place. ...

"3. A person convicted on indictment may appeal under this Act to the Court of Criminal Appeal—

(a) against his conviction on any ground of appeal which involves a question of law alone; and

(b) with the leave of the Court of Criminal Appeal or upon the certificate of the Judge who tried him that it is a fit case for appeal against his conviction on any ground of appeal which involves a question of fact alone or a question of mixed law and fact, or any other ground which appears to the court to be a sufficient ground of appeal; and

(c) with the leave of the Court of Criminal Appeal against the sentence passed on his conviction, unless the sentence is one fixed by law.

"4.

(1) The Court of Criminal Appeal on any such appeal against conviction shall allow the appeal if they think that the verdict of the jury should be set aside on the ground that it

is unreasonable or cannot be supported having regard to the evidence, or that the judgment of the court before whom the appellant was convicted should be set aside on the ground of a wrong decision of any question of law or that on any ground there was a miscarriage of justice, and in any other case shall dismiss the appeal: Provided that the court may, notwithstanding that they are of opinion that the point raised in the appeal might be decided in favour of the appellant, dismiss the appeal if they consider that no substantial miscarriage of justice has actually occurred.

"(2) Subject to the special provisions of this Act, the Court of Criminal Appeal shall, if they allow an appeal against conviction, quash the conviction and direct a judgment and verdict of acquittal to be entered.

"(3) On an appeal against sentence the Court of Criminal Appeal shall, if they think that a different sentence should have been passed, quash the sentence passed at the trial, and pass such other sentence warranted in law by the verdict (whether more or less severe) in substitution therefor as they think ought to have been passed, and in any other case shall dismiss the appeal.

"5.

(1) If it appears to the Court of Criminal Appeal that an appellant, though not properly convicted on some count or part of the indictment, has been properly convicted on some other count or part of the indictment, the court may either affirm the sentence passed on the appellant at the trial, or pass such sentence in substitution therefor as they think proper, and as may be warranted in law by the verdict on the count or part of the indictment on which the court consider that the appellant has been properly convicted.

"(2) Where an appellant has been convicted of an offence and the jury could on the indictment have found him guilty of some

other offence, and on the finding of the jury it appears to the Court of Criminal Appeal that the jury must have been satisfied of facts which proved him guilty of that other offence, the court may, instead of allowing or dismissing the appeal, substitute for the verdict found by the jury a verdict of guilty of that other offence, and pass such sentence in substitution for the sentence passed at the trial as may be warranted in law for that other offence, not being a sentence of greater severity.

"(3) Where on the conviction of the appellant the jury have found a special verdict, and the Court of Criminal Appeal consider that a wrong conclusion has been arrived at by the court before which the appellant has been convicted on the effect of that verdict, the Court of Criminal Appeal may, instead of allowing the appeal, order such conclusion to be recorded as appears to the court to be in law required by the verdict, and pass such sentence in substitution for the sentence passed at the trial as may be warranted in law.

"(4) If on any appeal it appears to the Court of Criminal Appeal that, although the appellant was guilty of the act or omission charged against him, he was insane at the time the act was done or omission made so as not to be responsible according to law for his actions, the court may quash the sentence passed at the trial and order the appellant to be kept in custody as a criminal lunatic."

{412}

LAW AND ITS COURTS: France:

Reform of Judicial Procedure in Criminal Trials.

Criticism of French judicial procedure in criminal trials, under the system which puts the duties of a prosecuting attorney on the judge, was much sharpened in the autumn of 1909 by the attention drawn to a sensational murder trial at

Paris—the Steinheil case. The result was to impel the Government to undertake measures of reform, beginning with the appointment, November 20, of an extra-Parliamentary commission to study the whole question of reform. Within a month after the appointment of the commission one of its leading members, in an article in the ***Matin***, indicated the main points of the recommendations which the commission was already prepared to make. It would recommend that the authority of the President of the Assize Court should remain intact, and that the Judge should as heretofore continue to direct the jury and preside over the whole process of the instruction or preliminary inquiry. In the view of the Commission the Judge's moral authority cannot but be augmented by the proposal to relieve him of the duty of cross-examining a prisoner at the bar. It would be recommended that in future a summary statement of the case by the Public Prosecutor, or in a civil suit by the plaintiff, should be followed by a presentation of the defendant's case on the part of counsel for the defence. The jury would thus be made acquainted with the issue, and the witnesses would then be called. Each witness would be liable to cross-examination on behalf both of the defence and of the prosecution, and the Judge, remaining aloof from the discussion in his new role as arbitrator, could not but gain moral authority in a degree which would materially promote the ends of even-handed justice.

A Bill on these lines was introduced by the Minister of Justice in the following month.

LAW AND ITS COURTS: International:
Naval Prize Court, and proposed Judicial Arbitration Court.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1909 (OCTOBER).

LAW AND ITS COURTS: United States:
The Question of Injunctions in Labor Disputes.

The question of the issuance of writs of injunction by the courts in connection with labor disputes came much into discussion during the canvass preliminary to the American presidential election of 1908, and was a prominent subject of declaration in the platforms of the political parties.

See (in this Volume)

UNITED STATES: A. D. 1908, APRIL-NOVEMBER).

Subsequently, President Taft, in his first annual message to Congress, cited the pronouncement of the Republican party on this question, and said: "I recommend that in compliance with the promise thus made, appropriate legislation be adopted. The ends of justice will best be met and the chief cause of complaint against ill-considered injunctions without notice will be removed by the enactment of a statute forbidding hereafter the issuing of any injunction or restraining order, whether temporary or permanent, by any Federal court, without previous notice and a reasonable opportunity to be heard on behalf of the parties to be enjoined; unless it shall appear to the satisfaction of the court that the delay necessary to give such notice and hearing would result in irreparable injury to the complainant and unless also the court shall from the evidence make a written finding, which shall be spread upon the court minutes, that immediate and irreparable injury is likely to ensue to the complainant, and shall define the injury, state why it is irreparable, and shall also endorse on the order issued the date and the hour of the issuance of the order. Moreover, every such injunction or restraining order issued without previous notice and opportunity by the defendant to be heard should by force of the statute expire and be of no effect after seven days from the issuance thereof, or within any time less than that period which the court may fix, unless within such seven days or such less period, the injunction or order is extended or renewed after previous notice and opportunity to be heard."

LAW AND ITS COURTS: National and State Legislation.

Need of Uniformity.

Movements to secure it.

Speaking in 1906 at a dinner of the Pennsylvania Society, the Honorable Elihu Root, then United States Secretary of State, addressed, in a few words, a very pregnant suggestion and admonition to the lawmakers of the States in the American Union. He spoke first of the strongly nationalized sentiment of patriotism that has had its rapid growth of late in the country, saying: "Our country as a whole, the noble and beloved land of every citizen of every State, has become the object of pride and devotion among all our people. North and South, within the limits of the proud old colonial commonwealths, through out that vast region where Burr once dreamed of a separate empire dominating the valley of the Mississippi, and upon the far distant shores of the Pacific: and by the side of this strong and glowing loyalty to the nation, sentiment for the separate States has become dim and faint in comparison." Then he added, warningly: "There is but one way in which the States of the Union can maintain their power and authority under the conditions which are now before us, and that way is by an awakening on the part of the States to a realization of their own duties to the country at large. Under the conditions which now exist, no State can live unto itself alone and regulate its affairs with sole reference to its own treasury, its own convenience, its own special interests. Every State is bound to frame its legislation and its administration with reference not only to its own social affairs but with reference to the effect upon all its sister States."

Quoting and affirming these remarks of the thoughtful statesman, the *National Civic Federation Review*, of July, 1909, says: "The plain truth is that the movement of people and of merchandise goes on in our day without any

regard to State lines; and it is becoming increasingly clear that unless the States will legislate with substantial uniformity on a number of subjects the tendency toward centralization and a corresponding increase of Federal power cannot permanently be resisted."

In its preceding issue, of March, the **Review** had made the following announcement: "The National Civic Federation, through its experience in holding national conferences on such subjects as the trusts, taxation, immigration and election reform—conferences to which the Governors of States sent official representatives—has become impressed with the necessity for a systematic national effort toward securing, within reasonable limits, more uniform legislation in the States of the Union.

{413}

"There are useful national organizations of farmers, manufacturers, wage-earners, bankers, merchants, lawyers, economists and other organizations which hold national meetings for the discussion of affairs peculiar to their own pursuits and callings. The Civic Federation, however, provides a forum in its annual conference for representatives of all these elements to discuss national problems in which they have a common interest. Heretofore there has been no effort to crystallize into State organizations this representative membership for the accomplishment of concrete aims.

"A committee has been appointed to organize a Council of one hundred representative men in each State. Mr. John Hays Hammond has accepted the chairmanship of this committee, of which the following are also members: Messrs. Alton B. Parker, New York; Myron T. Herrick, Ohio; David R. Francis, Missouri; Curtis Guild, Jr., Massachusetts; Nahum J. Bachelder, New Hampshire; Edwin Warfield, Maryland; Herman Ridder, New York; C. F. Brooker, Connecticut; Bruce Haldeman, Kentucky; Victor

Rosewater, Nebraska; Clark Howell, Georgia; P. I. Bonebrake, Kansas; James Lynch, Indiana; Harry Pratt Judson, Illinois; A. H. Revell, Illinois; John B. Lennon, Illinois; John H. Holliday, Indiana, and Benjamin Ide Wheeler, California.

"The continued existence for eighteen years of the Annual Conference of Commissioners on Uniform State Laws, created by the different States at the instance of the American Bar Association, shows that the State Executives and Legislatures are fully alive to the importance of this subject. The last-named organization has been instrumental in securing the passage in thirty-five States of a uniform negotiable instruments law, and is promoting other commercial measures, including a uniform food law to conform to the national law.

"This necessity for uniform legislation is further illustrated by the proceedings at the annual meetings of the National Association of the State Attorneys General and of the State Labor Commissioners, Insurance Commissioners, etc., etc."

Discussing the subject in the July issue of the ***Review***, President Amasa M. Eaton of the Commissioners on Uniform State Laws, said: "The subject of uniform legislation is in the air all over the United States. At the instance of the President, a National Conference to secure the conservation of our national resources has been held in Washington, and to carry into effect the conclusions of this Conference there must follow uniform State legislation. At the instance of Governor Guild a conference of the Governors of the New England States, with other delegates, met in Boston last fall on the subject of forestry, shell fisheries and automobiles, all subjects calling for uniform legislation. A similar conference of the Governors of New York and the adjoining States has met in New York, at the instance of Governor Hughes of New York, to consider a uniform automobile law. A National Divorce Congress, called by Governor Pennypacker by virtue of an act of the Legislature of Pennsylvania, has framed a uniform

divorce law which has been indorsed by the Conference of Commissioners on Uniform State Laws. In March a Conference on Uniform Child Labor Laws in the Southern States was held in New Orleans at the call of the Governor of Louisiana, at which the Governors and Delegates of those States were present. The result was the formation of a permanent organization, with the Governor of Louisiana as Chairman, and the executive committee of that organization is to draft a Uniform Child Labor Law and to submit it to the legislatures of the several Southern States.

"All these are but expressions of the deep-seated necessity for uniform legislation that has existed ever since we acquired our independence of Great Britain, intensified by the requirements of a progressive civilization knitting us ever more and more closely into union as a nation."

The whole movement was planned to receive effective organization at a National Conference in Washington which the National Civic Federation, after consultation with other bodies, announced, in the summer of 1909, its intention to call, for January 5-7, 1910. The Conference was held accordingly, in conjunction with a meeting of the Governors of States, which gave attention to the same subject.

LAW AND ITS COURTS:

President Taft's Recommendations for Expediting Procedure.

The following is from President Taft's first annual Message to Congress, December, 1909:

"The deplorable delays in the administration of civil and criminal law have received the attention of committees of the American Bar Association and of many State Bar Associations, as well as the considered thought of judges and jurists. In my judgment, a change in judicial procedure, with a view to reducing its expense to private litigants in civil cases and

facilitating the dispatch of business and final decision in both civil and criminal cases, constitutes the greatest need in our American institutions. I do not doubt for one moment that much of the lawless violence and cruelty exhibited in lynchings is directly due to the uncertainties and injustice growing out of the delays in trials, judgments, and the executions thereof by our courts. Of course, these remarks apply quite as well to the administration of justice in State courts as to that in Federal courts, and without making invidious distinction, it is, perhaps, not too much to say that, speaking generally, the defects are less in the Federal courts than in the State courts. But they are very great in the Federal courts. The expedition with which business is disposed of both on the civil and the criminal side of English courts, under modern rules of procedure, makes the delays in our courts seem archaic and barbarous.

"The procedure in the Federal courts should furnish an example for the State courts. I presume it is impossible, without an amendment to the Constitution, to unite under one form of action the proceedings at common law and proceedings in equity in the Federal courts, but it is certainly not impossible by a statute to simplify and make short and direct the procedure both at law and in equity in those courts. It is not impossible to cut down still more than it is cut down the jurisdiction of the Supreme Court so as to confine it almost wholly to statutory and constitutional questions. Under the present statutes, the equity and admiralty procedure in the Federal courts is under the control of the Supreme Court, but in the pressure of business to which that court is subjected, it is impossible to hope that a radical and proper reform of the Federal equity procedure can be brought about.

{414}

I therefore recommend legislation providing for the appointment by the President of a commission with authority to examine the law and equity procedure of the Federal courts of first instance, the law of appeals from those courts to the

courts of appeals and to the Supreme Court, and the costs imposed in such procedure upon the private litigants and upon the public treasury, and make recommendation with a view to simplifying and expediting the procedure as far as possible, and making it as inexpensive as may be to the litigant of little means."

See (in this Volume),
CRIME AND CRIMINOLOGY.

LEAGUE, ALL-INDIA MOSLEM.

See (in this Volume)
INDIA: A. D. 1907 (DECEMBER).

LEAGUE OF LIBERATION.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

LEAGUE OF UNION AND PROGRESS.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

LECOT, Cardinal.

See (in this Volume)
FRANCE: A. D. 1905-1906.

LEGARDA, BENITO.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901.

LEGISLATION.

See (in this Volume)
LAW AND ITS COURTS.

LEGUIA, Augusto B.:
President of Peru.

See (in this Volume)
PERU: A. D. 1908-1909.

LENARD, PHILIPPE.

See (in this Volume)
NOBEL PRIZES.

LEO XIII.: Death.

See (in this Volume)
PAPACY: A. D. 1903 (JULY-AUGUST).

LEOPOLD II., KING OF BELGIUM:
His Administration of the Congo State.

See (in this Volume)
CONGO STATE.

LEOPOLD II., KING OF BELGIUM:
His death.

See (in this Volume)
BELGIUM: A. D. 1909 (DECEMBER).

LERROUX, Señor:
Socialist-Republican Leader in Spain.

See (in this Volume)
SPAIN: A. D. 1907-1909.

LÈSE MAJESTÉ:

Prosecutions in Germany.

See (in this Volume)

GERMANY: A. D. 1903 .

LETCHWORTH PARK.

See (in this Volume)

NEW YORK STATE: A. D. 1907.

LEWIS, THOMAS L.:

President of the United Mine Workers of America.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1909.

LEWIS AND CLARK EXPOSITION.

See (in this Volume)

PORTLAND, OREGON.

LEWIS ESTATE, Evicted Tenants of the.

See (in this Volume)

IRELAND: A. D. 1907.

LHASA: A. D. 1904.

Reached by British Expedition under Colonel Younghusband.

See (in this Volume)

TIBET: A. D. 1902-1904.

LIAO-TUNG PENINSULA.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

LIAO-YANG, Battle of.

See (in this Volume)

JAPAN: A. D. 1904 (JULY-SEPTEMBER).

LIAUTEY, General:

Operations in Morocco.

See (in this Volume)

MOROCCO: A. D. 1907-1909, and 1909.

LIBERAL-CONSERVATIVE SEPARATIST PARTY.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1904.

LIBERIA: A. D. 1904-1905.

Good Relations between Colonists and Natives.

Improved Prospects.

"When it was decided in the United States to found a home for repatriated Africans, the prior experiment of Sierra Leone turned attention toward the same coast, and in 1821 and at subsequent dates settlements were effected, firstly at Monrovia, and later on at Roberts Port, Grand Basa, Sino, and Harper (Cape Palmas). Usually those who conducted the enterprise went through the form of buying small plats of land from local headmen or chiefs; but, as a rule, the promoters of this movement did not trouble overmuch about the rights of the 'bush niggers,' as the indigenous natives were termed. Consequently the first fifty years of the history of Liberia were marked by constant struggles between the American-Liberian invaders and the native blacks. During the last ten years, however, there has been a marked advance in good relations between the American settlers and their native subjects, as many of them may fairly be called. The wise

policy of President Barclay has greatly promoted this good feeling since 1904. He has been able to assemble at different times at the capital chiefs or their representatives from almost all parts of Liberia, even from the Mandingo districts just beyond the limits of the coast belt. Therefore they have no subject of disagreement. Curiously enough one example of this mild rule of black by black is that the white man in Liberia is everywhere received with great friendliness, because he is not associated in the minds of the natives with anything like conquest or oppression.

"How far the original experiment will succeed the next twenty years will, perhaps, indicate. The negroes of American origin who have settled in Liberia have not, as a general rule, been able to stand the climate very much better than Europeans, and, as a rule, they have not been able to rear large families of children. Yet it seems to me as though Liberians of the new generation born in the country are beginning to take hold, but this is partly due to the increasing and I think very sensible practice of intermarriage with women of the fine, vigorous, indigenous races. Probably the future of Liberia will be a negro state very like Sierra Leone in its development, with English as its government language, and such English or American institutions as may prove to be suited to an African country, a coast belt inhabited by negroes professing Christianity and wearing clothes of European cut, and a hinterland of Mohammedans dressed in the picturesque and wholly suitable costume worn at the present day by the Mandingos and by most Mohammedan negroes between Senegal and the White Nile."

Sir Harry Johnston,

Liberia

(Annual Report, Smithsonian Institution, 1904-1905, pages 254-255).

LIBERIA: A. D. 1907-1909.

English, French, and American attention to Conditions in the Republic.

"The policy of the Liberian Republic has caused anxiety for some time past both to England and to France, the Powers whose territory adjoins the Liberian boundary. Some two years ago President Barclay came to Europe to discuss the situation with the British and French Governments. As a result of this exchange of views, Liberia appointed Europeans to her Customs Department, secured a gunboat to patrol her coast-line, and arranged for a frontier force. These measures were approved by the British and French Governments and also by the American Government, and their execution was facilitated by a loan negotiated on behalf of Liberia by the Liberian Development Company.

{415}

The growth of British interests in the Republic led the Foreign Office to appoint a Consul-General at Monrovia, the capital, in the person of Captain Braithwaite Wallis, formerly acting district commissioner in Sierra Leone. So far as the first part of the reform programme was concerned the consequences have been eminently satisfactory. Liberia has been able to pay off some of her debts, and her revenue has increased."

***Correspondent London Times,
April 22, 1909.***

While these movements were in progress, in June, 1908, three commissioners from Liberia came to Washington asking for aid in maintaining and administering its government. Probably in course of this application, the American Ambassador in London, Mr. Reid, addressed a note to the British Secretary of State for Foreign Affairs, on the 29th of June, in which he wrote:

"We should be glad to have your views as to how the two Governments could best co-operate at the present time towards

promoting the welfare of Liberia."

In his reply to this Sir Edward Grey said:

"As I had the honour to explain in March last to the United States Charge d'Affaires, his Majesty's Government have in any measure they may be called upon to take in Liberia no designs whatever upon the independence or integrity of the country, and they do not intend to undertake any responsibility with regard to it. The services of British officials have been lent to the Liberians solely with a view to the better preservation of order, more particularly in that part of Liberia which marches with Sierra Leone, and improved administration.

"The French Government also, as your Excellency is doubtless aware, takes a special interest in the affairs of the Republic, and his Majesty's Government have already assured them that they would have no objection to the services of some French officials being lent for the same objects as the British officials. It is doubtful, therefore, whether there is at the present time any scope for the co-operation of the United States Government in the Customs or police, and if they desire to render active assistance to the Liberian Government they will perhaps prefer to direct their attention to other branches of the administration which are as urgently in need of reform.

"That reforms are required in one other branch at least his Majesty's Government have reason to know, for among the chief difficulties which his Majesty's Government experience in regard to Liberia are the frequent complaints received from British subjects as to the treatment they receive in the Liberian Courts. If therefore the United States could see their way to introducing reforms into the judiciary, either by lending the services of an official to act as judicial advisor or in some other manner, much good would in the opinion of his Majesty's Government be derived not only by the various

subjects of foreign nationalities resident in the country but also by the Liberians themselves.

"While calling attention more specially to this one branch of the administration, which has been a frequent source of trouble, I need hardly add that his Majesty's Government would welcome the co-operation of the Government of the United States with them in Liberia in any other manner which may appear more suitable or more desirable on a consideration of all the circumstances."

This and other information obtained by the State Department led President Roosevelt, on the 18th of January, 1909, to ask Congress for an appropriation of \$20,000 to pay the expenses of a commission to go to Liberia "to examine into the situation, confer with the officers of the Liberian government, and with the representatives of other governments actually present in Monrovia, and report recommendations as to the specific action on the part of the United States most apt to render effective relief to the Republic of Liberia under the present critical circumstances." The conclusion reached by the State Department was that it "is quite clear that Liberia is very much in need of assistance, that the United States can help her substantially, and that it is our duty to help her."

The seriousness of the situation was set forth by Secretary Root in a memorandum to the President. Between forty and fifty thousand civilized negroes, for the most part descendants of the original colonists from the United States, occupy a territory comprising 43,000 square miles, in which there are also over a million and a half members of uncivilized native tribes. The civilized part of the population have been to a great degree cut off from any intimate relation with the rest of the civilized world for two-thirds of a century. They began with little education, with no acquired skill in the art of government, and they have had little opportunity to improve through intercourse with other and more advanced communities.

They find it especially difficult to control the native tribes, or to conduct their own government in accordance with modern requirements.

The British colony of Sierra Leone to the north and the French possessions closing in their hinterland to the east are almost continuously complaining of the failure of Liberia to maintain order upon the border. "Notwithstanding the very kindly disposition on the part of Great Britain, and the similar disposition on the part of France, there is imminent danger that the republic, unless it receives outside assistance, will not be able to maintain itself very long," said Secretary Root.

The Commission to visit Liberia was appointed in the following April, and was conveyed soon afterward to Monrovia by a squadron of three cruiser scouts. It was composed of three members, Mr. W. Morgan Shuster, who had been for a number of years in the Philippine service of the United States, Dr. George Sale, and Mr. Emmett J. Scott, private Secretary of Dr. Booker Washington. These Commissioners were accompanied by Captain Sydney A. Cloman, as Military Attache, and by Major Percy W. Ashburn, of the United States Of America Medical Department, who would study the sanitary conditions in Liberia.

Early in October the Commission returned, but its report to the State Department was not transmitted to Congress until the 25th of March, 1910. It recommended an extension of prompt and effective aid to the Liberian Government, in the refunding of its debt, the reform of its finances, the settlement of its boundary disputes, and the organizing of a competent constabulary force. Also that the United States establish in Liberia a naval coaling station and a research station.

LICENSE LAWS.

See (in this Volume)
ALCOHOL PROBLEM.

LIFE INSURANCE.

See (in this Volume)
INSURANCE.

LILIENTHAL, Otto.

See (in this Volume)
Science and Invention: Aeronautics.

LIMA, WENCESLAO DE.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

LINCOLN, ABRAHAM.

February 12, 1909, the 100th anniversary of his birth, was made a legal holiday by act of Congress. The same bill appropriated \$50,000 for making a highway from Washington to Gettysburg, to be known as the Lincoln Way.

LINDSEY, JUDGE BEN D.: His Juvenile Court at Denver.

See (in this Volume)
CHILDREN, UNDER THE LAW; AS OFFENDERS.

LINEVITCH, General.

See (in this Volume)
JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

LIPPMAN, GABRIEL.

See (in this Volume)
NOBEL PRIZES.

LIQUOR QUESTION.

See (in this Volume)
ALCOHOL PROBLEM.

LLOYD-GEORGE, David:
President of the Board of Trade.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

LLOYD-GEORGE, David:
Address at the Imperial Conference of 1907
on Preferential Trade.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

LLOYD-GEORGE, David:
Success in arranging for the Pacific Settlement
of Labor Disputes in the English Railway Service.

See (in this Volume)
LABOR ORGANIZATION: ENGLAND: A. D. 1907-1909.

LLOYD-GEORGE, David:
Chancellor of the Exchequer.

See (in this Volume)
ENGLAND: A. D. 1908 (APRIL).

LLOYD-GEORGE, David:

On the Working of the Old Age Pensions Act and
its Disclosures of Poverty.

See (in this Volume)

POVERTY, PROBLEMS OF: PENSIONS.

LLOYD-GEORGE, David:

On the Development of the Natural Resources of Great Britain.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: GREAT BRITAIN.

LLOYD-GEORGE, David:

His Budget of 1909.

His speech on it.

See (in this Volume)

ENGLAND: A. D. 1909 (APRIL-DECEMBER).

LOCAL OPTION:

Progress in the United States.

See (in this Volume)

ALCOHOL PROBLEM: UNITED STATES.

LOCKOUTS.

See (in this Volume)

LABOR ORGANIZATION.

LODGE, SIR OLIVER.

See (in this Volume)

SCIENCE, RECENT: ELECTRICAL.

LODZ, Disturbances in.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

LOEB, WILLIAM, JR.:
Collector of Customs at New York.
His unearthing of Corruptions.

See (in this Volume)
UNITED STATES: A. D. 1909 (OCTOBER-NOVEMBER).

LOISY, ABBÉ:
Appointment to be Professor of the History of Religions
in the College de France.

See (in this Volume)
FRANCE: A. D. 1909 (MARCH).

LONDON, ENGLAND: A. D. 1907-1909.
Control of the London County Council lost by the Progressives.
Defeat in Borough Councils Elections of 1909.

The local party of Progressives, so called, who had controlled the London County Council since 1889, lost their majority in the elections of the spring of 1907, and the Conservatives, or Moderates, or Reformers, as they are variedly styled, were brought into power, electing 120 members, against 85. The Progressives, in their eighteen years of ascendancy, had wrought immense changes in the great city, widening congested streets, such as the Strand, opening great new thoroughfares and new parks, electrifying the street railways, remodelling antiquated public institutions, and the like. The cost of their works had been heavy, and ratepayers had become persuaded that there was extravagance in the progressiveness of the party. It had antagonized many powerful interests in the city, moreover, and the wonder seems to be that it had been permitted to conduct the City Government so long.

Again, in elections to the borough councils, in 1909, the Progressives lost heavily, and the Conservatives, who have taken the name of Municipal Reformers, are strongly entrenched in most of the boroughs. Several women were elected, 61 of their sex having been candidates.

LONDON, ENGLAND: A. D. 1908.
Statistics of Elementary Schools.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1909.

LONDON, ENGLAND: A. D. 1908-1909.
International Naval Conference.

See (in this Volume)
War, The Revolt against: A. D. 1907
(appended to account of Second Peace Conference at The Hague).

LONG, John D.:
Secretary of the Navy.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

LOPUKHIN, M.:
His exposure of the Police Spy, Azeff,
to the Russian Revolutionists.

See (in this Volume)
RUSSIA: A. D. 1909 (JANUARY-JULY).

LORDS, British House of:
Decision in case of the Free Church of Scotland.

See (in this Volume)

SCOTLAND: A. D. 1904.

LORDS, British House of:
Defeat of Education Bill, 1906.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1906.

LORDS, British House of:
Menaced Limitation of its Legislative Powers
by the House of Commons.
Its own proposals of Constitutional Change.

See (in this Volume)
ENGLAND: A. D. 1906 (APRIL-DECEMBER); 1907-1908;
1909 (APRIL-DECEMBER), and 1910.

LORDS, British House of:
Rejection of Licensing Bill.

See (in this Volume)
ALCOHOL PROBLEM: ENGLAND: A. D. 1908.

LORDS, British House of:
Rejection of Budget of 1909.

See (in this Volume)
ENGLAND: A. D. 1909 (APRIL-DECEMBER).

LORENTZ, HENRIK ANTON.

See (in this Volume)
NOBEL PRIZES.

LOS ANGELES, CALIFORNIA:
Recent Rapid Growth of the City.

"The advance of this city to the important position of metropolis of Southern California falls into two quite distinct periods, each, however, beginning with the advent of a transcontinental railroad. The first period opened with the completion of the Southern Pacific Railroad as a through line from San Francisco to the East, in 1881, and saw the transformation of Los Angeles from a sleepy, half-Spanish town of about 12,000 souls into a bustling progressive city of 70,000 population. The second period of advance began with the entrance of the Atchison, Topeka and Santa Fe Railroad in 1885. This improved communication with the States east of the Rocky Mountains gave an impetus to tourist travel, especially in the winter season, and the fame of the city and of near-by localities as places of winter resort spread far and wide. The people of Los Angeles were quick to recognize the opportunity for gain and the whole community joined in methods of advertising of the most systematic character. By the aid of its local press and through the agency of an energetic Chamber of Commerce Los Angeles has become one of the best known cities of North America.

{417}

"Since 1900, railroad communication has been further improved by the opening of an additional road to San Francisco by way of the ocean shore and the Salinas and Santa Clara Valleys. This line, known as the Southern Pacific 'Coast Line,' avoids the heavy grades of the Tehachapi Mountains and greatly shortens the running time between Los Angeles and San Francisco. The opening of the San Pedro, Los Angeles and Salt Lake Railroad eastward of Los Angeles in 1903 gave the city direct connection with the central Rocky Mountain region.

"Two other important influences within the past decade contributed to the city's remarkable advance in wealth and population. These are the building of a vast system of suburban electric railways making a large region of fertile

attractive land, now densely populated, directly tributary to Los Angeles, and secondly, the introduction of cheap fuel through the discovery of local supplies of oil. The net-work of suburban electric railways of which Los Angeles is the center is one of the most perfect in the world. These lines reach out in every direction through distances of from 10 to 50 miles, and connect Los Angeles with the many rapidly growing cities of Los Angeles County and its neighbor, Orange County.

"Manufacturing in Los Angeles was for a long time handicapped by the high cost of fuel. This difficulty has been removed by the introduction of crude oil as fuel, and the city now has over 1500 manufacturing establishments, employing over 12,000 people, with an annual output of over \$40,000,000. These include rolling mills, brass-works, paper-box factories, manufactories of mining machinery, pumps, glass, etc. Los Angeles is becoming a manufacturing center for the mining and agricultural lands of Utah, Southern Nevada, Arizona, New Mexico and the Northern parts of Mexico, as well as Southern California itself.

"The steady expansion of Los Angeles has been maintained by a policy of annexation of suburbs. The latest event in this line of growth has elevated the city into the rank of a sea-port. The city has long enjoyed abundant means of ocean traffic by way of Santa Monica, Redondo and San Pedro, but by the annexation of San Pedro and Wilmington, in 1906, with a connecting strip of territory 19 miles long by ½ mile in width, Los Angeles itself becomes a sea-port with the control of traffic on San Pedro Bay. The city thus achieves an extreme length from north to south of 33 miles."

***Frederick H. Clark, Head of History Department,
Lowell High School, San Francisco.***

LOS ANGELES, CALIFORNIA:

Experiments and Experiences in Municipal Government.

See (in this Volume)
MUNICIPAL GOVERNMENT.

LOS ANGELES, CALIFORNIA: A. D. 1905-1909.

Water Supply.

The Owens River Aqueduct.

"The present water supply of the city of Los Angeles is taken from the flow of the Los Angeles River, supplemented by the underground flow of the San Fernando Valley in which the river lies. The demand for water within the city is supplemented by the need for water for irrigation purposes in the surrounding country. Some years ago it became evident that an increased supply must be obtained, or the further development of the city and its environs be brought to a standstill. Extensive investigations resulted in the decision that Owens River offered the best source of supply. This river, the principal drainage of the Owens Valley region, at the base of the Sierra Nevada Mountains, has a large number of tributaries, and empties into Owens Lake, from which the waters escape by evaporation only. The Los Angeles authorities adopted the plan of an aqueduct to conduct the waters of this river along the mountain slopes, over the Mojave Desert, and, by tunnel, through the San Fernando Mountains, to their city,--a total distance of 217½ miles. On the 7th of September, 1905, an election was held at which the voters of Los Angeles, by a majority of about fourteen to one, declared in favor of a bond issue of \$23,000,000 for the undertaking. Besides the construction of the conduit, the project includes the building of a large reservoir in Long Valley, above the Owens Valley proper, for the storage of flood waters; also the construction of a system of additional reservoirs along the line of the aqueduct for the regulation of flow as well as for storage; and a terminal reservoir from which the distributing system proceeds. All of this work is well under way at this date

(1909), and according to the last published report of the Aqueduct Bureau the chief engineer confidently expects that this great project will be brought to completion within the estimated period of five years--and within the estimated cost of \$23,000,000.

"Outside of the above estimates, the City also plans to build a great electric power plant which will utilize the drop of 1500 feet where the aqueduct emerges from the San Fernando Mountains. This plant is estimated to cost from \$4,500,000 to \$5,000,000, and through the sale of electric power will become the source of very considerable revenue to the City. Taken altogether this Owens River Aqueduct is the greatest municipal undertaking in California at the present time, and one of the most important engineering achievements of recent years."

***Frederick H. Clark, Head of History Department,
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LOUBET, Emile:
President of France.

See (in Volume VI.)
FRANCE: A. D. 1899 (FEBRUARY-JUNE).

LOUBET, Emile:
Visit to the King of Italy.

See (in this Volume)
FRANCE: A. D. 1905-1906.

LOUBET, Emile:
Expiration of term as President of the French Republic.

See (in this Volume)
FRANCE: A. D. 1906.

LOUISIANA: A. D. 1908.

Enactment against Race-track Gambling.

See (in this Volume)

GAMBLING.

LOUISIANA PURCHASE EXPOSITION.

See (in this Volume)

ST. LOUIS: A. D. 1904.

LOW, Seth:

Mayor of New York.

See (in this Volume)

NEW YORK CITY: A. D. 1901-1903.

LOWELL, ABBOTT LAWRENCE:

President of Harvard University.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1901-1909.

LOWTHER, JAMES WILLIAM:

Elected Speaker of the House of Commons.

See (in this Volume)

ENGLAND: A. D. 1905 (JUNE).

LUBIN, DAVID:

Originator of International Institute of Agriculture.

See (in this Volume)

AGRICULTURE.

{418}

LUIZ FELIPE, CROWN PRINCE OF PORTUGAL:
His assassination.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

"LUSITANIA,"
The Turbine Steamship.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: TURBINE ENGINE.

LUZURIAGA, JOSÉ.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901.

M.

McADOO, WILLIAM GIBBS.

See (in this Volume)
NEW YORK CITY: A. D. 1900-1909.

McANENY, GEORGE:
President of the Borough of Manhattan.

See (in this Volume)
NEW YORK CITY: A. D. 1909.

McCALL, JOHN A.:
President of New York Life Insurance Company.

See (in this Volume)
INSURANCE, LIFE.

McCLELLAN, GEORGE B.:

Mayor of New York.

See (in this Volume)

NEW YORK CITY: A. D. 1901-1903, and 1905.

McCURDY, RICHARD A.:

President of Mutual Life Insurance Company.

See (in this Volume)

INSURANCE, LIFE.

MACDONALD COLLEGE, The Founding of.

See (in this Volume)

EDUCATION: CANADA: A. D. 1907.

MACEDONIA:

The recent use of the Name.

As employed very commonly at the present time, the name Macedonia simply signifies that part of the small remainder of the Turkish Empire in Europe which coincides nearly with the original Macedonia of ancient history. It is applied to the three Turkish vilayets or provinces of Salonika, Monastir and Kossovo, which have been the scene for years of conditions of strife and misery that are worse, perhaps, than can be found elsewhere in the world. Whether the wretched inhabitants have suffered more from their political masters, the Turks, than from their Bulgarian and Greek neighbors, who covet the ground they occupy, seems to be much of a question. For some account of the Macedonian troubles of late years.

See (in this Volume)

TURKEY.

MCKENNA, REGINALD: First Lord of the British Admiralty.

Speech on the Navy Estimates, 1909.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

MACKENZIE BASIN, Report on the.

See (in this Volume)
CANADA: A. D. 1909.

MCKINLEY, WILLIAM:
President of the United States.
His assassination.

See (in this Volume)
BUFFALO: A. D. 1901, and
UNITED STATES: A. D. 1901 (SEPTEMBER).

MCKINLEY, WILLIAM:
Last public utterance.

See (in this Volume)
TARIFFS: UNITED STATES.

MACLAURIN, RICHARD C.:
President of Massachusetts Institute of Technology.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

MACLEAN, Kaid Sir Harry:
Capture by Raisuli and ransom.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

MACVEAGH, FRANKLIN:
Secretary of the Treasury.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

MACVEAGH, FRANKLIN:
On the corruptions in the United States Customs Service.

See (in this Volume)
UNITED STATES: A. D. 1909 (OCTOBER-NOVEMBER).

MADAGASCAR:
Agreement of England and France concerning matters in.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

MADRIZ, Dr.: President of Nicaragua.

See (in this Volume)
CENTRAL AMERICA: A. D. 1909.

MAGHRABI, AMINA HAFIZ.

See (in this Volume)
EDUCATION: EGYPT.

MAGHREB EL-AKSA.

See (in this Volume)
MOROCCO.

MAGOON, CHARLES E.:
Governor of the Panama Canal Zone.

See (in this Volume)
PUBLIC HEALTH: PANAMA CANAL.

MAGOON, CHARLES E.:
Provisional Governor of Cuba.

See (in this Volume)
CUBA: A. D. 1906 (AUGUST-OCTOBER), and 1906-1909.

MAHDI, THE MOORISH: BU HAMARA.

See (in this Volume)
MOROCCO: A. D. 1903-1904.

MAHDI, A New:
His summary destruction.

See (in this Volume)
AFRICA: A. D. 1903 (SUDAN).

MAHMUD SHEVKET PASHA:
Commander of the Turkish Constitutional Forces.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

MAHOMET and MAHOMETAN.

See (in this Volume)
MOHAMMED and MOHAMMEDAN.

MAKAROFF, Admiral.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

MALARIA.

See (in this Volume)
PUBLIC HEALTH: MALARIA.

MALAY PENINSULA: A. D. 1909.

Cession of Three States to Great Britain.

See (in this Volume)

SIAM: A. D. 1909.

MANCHURIA: A. D. 1901-1904.

Persistent occupation by the Russians.

Remonstrances by the Japanese.

See (in this Volume)

JAPAN: A. D. 1901.

MANCHURIA: A. D. 1903.

Treaty opening two new Ports to Foreign Trade.

See (in this Volume)

CHINA: A. D. 1903 (MAY-OCTOBER).

MANCHURIA: A. D. 1904.

The Russo-Japanese War.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

MANCHURIA: A. D. 1905.

Treaty between China and Japan.

See (in this Volume)

CHINA: A. D. 1905 (DECEMBER).

MANCHURIA: A. D. 1908-1909.

The question of Municipalities on the line of the Chinese
Eastern Railway.

New Russo-Chinese Agreement.

See (in this Volume)
CHINA: A. D. 1909 (MAY).

MANICKTOLLAH GARDEN, The.

See (in this Volume)
INDIA: A. D. 1907-1908.

MANIKALAND.

See (in this Volume)
AFRICA.

MANILLA: A. D. 1900-1902.
The Stamping Out of the Bubonic Plague.

See (in this Volume)
PUBLIC HEALTH.

MANITOBA: A. D. 1901-1902.
Census.
Increased Representation in Parliament.

See (in this Volume)
CANADA: A. D. 1901-1902.

MANNESMANN CONCESSION, The.

See (in this Volume)
MOROCCO: A. D. 1909.

MANUEL II.: King of Portugal.

See (in this Volume)
PORTUGAL.

MARCONI, Guglielmo.

See (in this Volume)
SCIENCE, RECENT: ELECTRICAL.
See, also,
NOBEL PRIZES.

MARISCAL, Ignacio:
Honorary President of Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

MARRAKESH (Morocco City), Events at.

See (in this Volume)
MOROCCO: A. D. 1907-1909.

{419}

MARRIAGE WITH A DECEASED WIFE'S SISTER:
English Act to legalize it.

See (in this Volume)
ENGLAND: A. D. 1907 (AUGUST).

MARSEILLES: A. D. 1902.
Strikes of Dock Laborers, Sailors, and Stokers.

See (in this Volume)
LABOR ORGANIZATION: FRANCE: A. D. 1902.

MARTENS, Frederick de.

See (in this Volume)
NOBEL PRIZES.

MARTINIQUE:

Volcanic Explosion of Mont Pelée.

See (in this Volume)

VOLCANIC ERUPTIONS: WEST INDIES.

MARYLAND: A. D. 1909.

Defeat of Disfranchising Amendment to the Constitution.

See (in this Volume)

ELECTIVE FRANCHISE; UNITED STATES.

MASCHINE, Colonel:

Leader of the Assassins of King Alexander, at Belgrade.

See (in this Volume)

BALKAN AND DANUBIAN STATES: SERVIA.

MASSACHUSETTS: A. D. 1909.

Seeking a Leader for an Educational Revolution.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1909.

MASSACRES:

In Asia Minor.

See (in this Volume)

TURKEY: A. D. 1909 (APRIL-DECEMBER).

MASSACRES:

Of "Bloody Sunday" in St. Petersburg.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

MASSACRES:

Of Jews at Kishineff.

See (in this Volume)
RUSSIA: A. D. 1903 (APRIL).

MATOS, Manuel A.

See (in this Volume)
VENEZUELA: A. D. 1902-1904.

MATSUKATA, Count.

See (in this Volume)
JAPAN: A. D. 1903 (JUNE).

MATTER, New Theory of.

(See in this Volume)
SCIENCE AND INVENTION, RECENT: PHYSICAL.

MAURA, Señor:
Prime Minister of Spain.

See (in this Volume)
SPAIN: A. D. 1901-1904, and 1907-1909.

"MAURETANIA,"
The Turbine Steamship.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: TURBINE ENGINE.

MAURETANIE, French.

See (in this Volume)
MOROCCO: A. D. 1909.

MAY LAWS, The.

See (in this Volume)
EDUCATION: PRUSSIA: A. D. 1904.

MECCA:
Railway from Damascus.

See (in this Volume)
RAILWAYS (TURKEY, ASIATIC: A. D. 1908).

MEDJLISS

MEJLIS:
The Persian Parliament or National Assembly.

See (in this Volume)
CONSTITUTION OF PERSIA.
Also
PERSIA: A. D. 1905-1907.

MELILLA:
Spanish hostilities with Moors.

See (in this Volume)
MOROCCO: A. D. 1909.

MENDEL, GREGOR, and his Law of Variation in Species.

See (in this Volume)
SCIENCE AND INVENTION: BIOLOGICAL.

MENELEK:
Emperor of Ethiopia.

See (in this Volume)
ABYSSINIA: A. D. 1902.

MERRY DEL VAL, CARDINAL.

See (in this Volume)
FRANCE: A. D. 1905-1906.

MERSINA:

Moslem attack on Armenians.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

MESSINA:

Its destruction by Earthquake.

See (in this Volume)
EARTHQUAKES: ITALY.

METCALF, VICTOR H.:

Secretary of Commerce and Labor, and Secretary of the Navy.

See (in this Volume)
UNITED STATES: A. D. 1901-1905, and 1905-1909.

METCHNIKOFF, PROFESSOR ELIE.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: OPSONINS.
See, also,
NOBEL PRIZES.

MEXICO: A. D. 1901-1902.

Invitation and entertainment of Second International
Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

MEXICO: A. D. 1902 (May).

Arbitration of the Pious Fund Question, between the United States and Mexico.

From 1868 until 1902 a claim of the United States against Mexico had been in dispute. It related to the right of the Catholic missions in that part of old California which now forms the American State of California to a portion of the income from a certain fund which pious people of Spain and Mexico, more than two centuries ago, had established for the support of Catholic missions among the California Indians. In 1767 the Jesuits who held the fund were driven from the country and the Spanish Government assumed the trust, which in turn devolved on Mexico when that colony acquired independence. When upper California was ceded to this country Mexico ceased to pay to the missions there the portion of the income due them. Their claim was finally taken up by the American Government, to be pressed against, the Mexican, and, after years of diplomatic controversy, was referred, May 22d, 1902, to the Hague Tribunal for arbitration. This has the distinction of being the first controversy submitted to that permanent tribunal. The decision of the Tribunal was rendered on the 14th of October, 1902, in favor of the California claim, requiring Mexico to pay \$1,420,682 (Mexican currency) of past dues, and \$43,051 annually thereafter.

MEXICO: A. D. 1903.

New Legislative Palace, and other Government Buildings.

"The cities and towns of Mexico are improving at a surprising rate, and the capital city especially is just now in the midst of the greatest building boom that has ever, perhaps, been known in any Latin-American city except Buenos Ayres. The interesting monthly publication entitled Modern Mexico informs us that the federal government alone is entering upon an investment approximating \$50,000,000 in new buildings in the City of Mexico.

"The greatest of these buildings is the so-called Legislative Palace, corresponding to our Capitol building at Washington. The foundations of this building are now being laid, and it will cost, perhaps, \$20,000,000. The City of Mexico has adopted the wise European plan of carefully regulating the height of new buildings, and preventing the construction of anything that would be inartistic or out of keeping with the harmony of the city's architecture. Next to the Legislative Palace, perhaps the most imposing of the new Mexican buildings will be the National Pantheon, which is to cost more than \$5,000,000, and is to be at once a memorial to Mexico's eminent men and a place for their entombment. Several of the executive departments are to be housed in the buildings now approaching completion."

American Review of Reviews,
October, 1903.

MEXICO: A. D. 1903.

Agreement for Settlement of Claims against Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

{420}

MEXICO: A. D. 1904-1905.

Arbitration Treaty with the United States.

Reelection of President Diaz for a Seventh Term.

Extension of the Term.

Currency Reform.

End of the Free Zone.

"Mexico was one of the countries with which the United States government negotiated an arbitration treaty early in the year [1905], a treaty which was dropped, like its fellows, by the

Washington administration, because of the Senate amendments. ... Though the tentative arbitration treaty between the United States and Mexico ... fell through, another very practical and useful arbitration convention was concluded between the two nations during the year. This was the convention agreed to in principle during the Pan-American Conference in the city of Mexico in the winter of 1901-1902, which provides for the settlement by arbitration of all international questions growing out of pecuniary claims. The representatives of several of the nations taking part in that conference affixed their signatures to this preliminary compact, and it has since become operative among a number of them. It was ratified by the Mexican Senate during its spring sessions. As pecuniary claims have in point of fact been one of the most fruitful sources of difficulty between the United States and the other nations of the western hemisphere, the conclusion of an agreement, in a binding form, to dispose by arbitration of any such cases as may arise in the future, is a distinct gain for the cause of the rational adjustment of international controversies, and is a guarantee, not indeed absolute, but most substantial, of lasting peace among the nations of this continent. ...

"There were no striking developments in the political situation in Mexico. On December 1 of the previous year (1904) President Diaz had entered on his sixth consecutive term and his seventh term in all. By a constitutional amendment, a regular vice-president of the republic, for the first time since the early days of Mexico's history, took the oath of office at the same time as the president, on December 1, 1904. The gentleman previously elected, and now occupying the position of vice-president, is the Honorable Ramon Corral, formerly governor of the state of Sonora. By virtue of another constitutional amendment, the present and future presidential terms will be six years, instead of four as formerly. ...

"A measure of vital importance to the economic well-being of

the nation was promulgated on March 25, 1905. This was the decree for the reform of the currency, issued by the Executive under an enabling Act of Congress, approved on December 9, 1904. The new monetary system, due to the initiative of the very able finance minister Señor José Yves Limantour, went into effect on the first of May, but the free coinage of silver ceased on April 16. Broadly speaking, the new system gives Mexico a fifty-cent dollar. It declares that the theoretical unit of the monetary system of the United Mexican States is represented by seventy-five centigrams of pure gold, and is denominated a peso. ...

"On July 1 that time-honored institution known as the Free Zone ceased to exist."

***F. R. Guernsey,
The Year in Mexico
(Atlantic Monthly, February, 1906).***

MEXICO: A. D. 1906.

Celebration of the Centenary of Benito Juarez.
His relation to the Secularizing Movement a generation ago.
Present Pacific Relations between Church and State.

"Though Juarez is generally credited with the paternity of the laws generically known as the Reform Laws, and although he undoubtedly was the life and soul of the secularizing movement of his day, it is worthy of note that he had no formal participation in the chief measures framed against the Church. ... He was not a signatory of the Constitution of 1857, which first attacked the existence of the religious orders; the law for the confiscation of church property was framed by Miguel Lerdo de Tejada, the Finance Minister of President Comoufort (1856); and the constitutional amendments which definitely established the separation of Church and State, instituted civil marriage, placed monastic communities outside the pale of the law, and forbade open-air religious services, were not

enacted until 1873 and 1874, after the death of Juarez, and during the presidency of Sebastian Lerdo de Tejada.

"March 21, 1906, was, by a decree of Congress, observed as a general holiday in Mexico. Pilgrimages to the tomb of Juarez took place in the morning; commemorative tablets were unveiled in the afternoon, and at night General Diaz, surrounded by his cabinet, presided in the Arbeu Theatre at an apotheosis of Juarez, during which the career and character of the reforming president were extolled in an eloquent oration by Honorable Justo Sierra, Minister of Public Instruction. On the stage with the President during these exercises were the son and other surviving descendants of Juarez, who are numerous.

"Curiously enough, a question involving the interpretation of the Reform Laws arose soon after the celebration of the Juarez centenary. The ministers of all denominations in Mexico had been accustomed to conduct a service at the graveside in connection with the burial of the dead. It was generally held that this practice did not conflict with Article 5 of the Law of December 14, 1874, forbidding all forms of religious service other than those held inside the churches. But in May, 1906, the Interior Department issued a circular declaring open-air burial services conducted in the cemeteries to be illegal. This rule has led to the erection of mortuary chapels in the cemeteries which previously were unprovided with them, and the burial services are held inside these chapels.

"While this episode shows that there is no intention on the part of the governmental authorities of Mexico to relax one iota of the laws which curtailed the power of the Church, it is worthy of note that there is no serious religious conflict in Mexico at the present time; and, under laws which are probably as restrictive as those recently enacted in France, which have so agitated that country, Church and State in the Mexican Republic move smoothly in their separate orbits, with conciliatory if not cordial sentiments toward each other."

***F. R. Guernsey,
The Year in Mexico
(Atlantic Monthly, March, 1907).***

MEXICO: A. D. 1906.

Joint Action with the United States
in Central American Mediation.

See (in this Volume)
CENTRAL AMERICA.

{421}

MEXICO: A. D. 1906.

Participation in Third International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

MEXICO: A. D. 1906.

Nationalizing the Railway System.

See (in this Volume)
RAILWAYS: MEXICO.

MEXICO: A. D. 1909.

Extended Governmental Control of Railways.

See (in this Volume)
RAILWAYS: MEXICO.

MEXICO: A. D. 1909.

The Last Year of the Sixth Consecutive Term of Porfirio Diaz
in the Presidency.
His long practical Autocracy, and its effects on the Nation.

A Mexican View.

Since Napoleon remodeled a French republic into an empire there has been nothing of its kind in political workmanship to equal the masterpiece of practical autocracy which Porfirio Diaz has erected in Mexico, on a basis of nominal democracy, within the last 30 years. He has not throned or crowned himself, as Napoleon did, which saves his work from the vulgarity that the Corsican could not resist; but he has exercised more than the sovereignty that imperial seats and trappings could invest him with.

On the 1st of December, 1909, Diaz entered the last year of his sixth consecutive term in the presidency—his seventh term in all—the previous term of four years having now been lengthened to six. Since 1884 he has held the reins of Government by what seems to have become sheer mastery, whatever of free popular election there may have been at the outset of his official career. If internal and external peace, general good order, rapid progress on all lines of material advancement, great gains in public education and a general uplift of the country in its standing before the world were sufficient fruits of his government to test its quality by, then Mexico might well be satisfied with it and with him; for the beneficence of his autocracy on this side of its working appears to be beyond dispute. But Mexico appears to have begun to feel the cost in public character and spirit which paternalized government must always exact for the superficial benefits it bestows, and the country is said to be filled with more than discontent.

A notable Mexican writer, Rafael de Zayas Enriquez, who is described as a lifelong friend and supporter of Diaz, has been bold enough to give voice to the existing feeling in a recent book. The long administration of the masterful president is recounted and studied with honest friendliness, for the open purpose of addressing plain truths to the man whose life and

work are discussed. "You have disarmed the judiciary and the Legislature," he is told, "until they are impotent, and in reality nothing more than branches of the executive."

"Imitating the high example, almost everyone in Mexico who has any power abuses it, and the cowed public submits." "Everyone is permitted to despise the public and to treat it tyrannically." And the honest friend who thus commands the attention of Diaz to the evil workings of his dictatorship, appeals for the ending of it—for the restoration of a nullified constitution, for free elections, for independent legislatures and courts; for the averting of otherwise inevitable storms of revolution, and for the saving of himself from a verdict of history, that "he created a nation, but destroyed a people."

On the other hand there are foreign observers in Mexico who believe that Diaz holds the peace and prosperity of the country in his hand. A Press correspondent wrote not long since: "He, Diaz, alone saved us from a disastrous panic last fall, the effects of which would have reached beyond our boundaries. The Government compelled the Banco Nacional to advance ready money to every institution that was in need and intrinsically sound. The bank was likewise compelled to sell exchange at a loss, so that the failure to keep silver at a parity was less apparent. The Government stood this loss. About January first one of the largest mercantile houses in Mexico, with many branches, was in serious difficulty. Its chief went straight to President Diaz, and said that he must have a million dollars or fail. Recognizing that the failure of this house would precipitate a panic, the Government let him have the money. ... In my opinion, the most serious menace to the prosperity of Mexico is the fear that President Diaz is not as strong physically as is popularly believed. ... The least of the evils which might come from his death, should it occur soon, would be increase in business stagnation and in popular unrest. Many politicians seem ready to avail themselves of the present wide-spread dislike of foreigners. The ferment of

anti-foreign leaven is working among the masses."

Whatever may be the kind and quality of the domination he has exercised for twenty-five years, Mexico must inevitably be put to a crucial test when he drops the helm of state.

MEXICO: A. D. 1909.

Meeting of President Diaz with President Taft.

See (in this Volume)

UNITED STATES: A. D. 1909 (SEPTEMBER-OCTOBER).

MEXICO: A. D. 1909 (FEBRUARY).

Participation in a North American Conference on the Conservation of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: NORTH AMERICA.

MEYER, GEORGE VON L.:

Postmaster-General.

See (in this Volume)

UNITED STATES: A. D. 1905-1909; SECRETARY OF THE NAVY.

UNITED STATES: A. D. 1909 (MARCH).

MICHELSSEN, PROFESSOR ALBERT A.:

Inventor of the Interferometer.

See (in this Volume)

SCIENCE AND INVENTION, RECENT.

See, also,

NOBEL PRIZES.

MICHELSSEN, M.:

Premier of Norway.

See (in this Volume)
NORWAY: A. D. 1902-1905.

MICHIGAN: A. D. 1909.
Legislation giving Home Rule to Cities.

See (in this Volume)
MUNICIPAL GOVERNMENT: MICHIGAN.

MIDHAT PASHA.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

MIGNOT, Bishop.

See (in this Volume)
FRANCE: A. D. 1905-1906.

MIGUEL, Dom:
Pretender to the Crown of Portugal.

See (in this Volume)
PORTUGAL: A. D. 1909.

MIGUELISTAS.

See (in this Volume)
CUBA: A. D. 1906-1909.

MILIOUKOV, PROFESSOR PAUL.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

MILLERAND, M.:
Minister of Public Works, Posts, and Telegraphs

in the Briand Cabinet.

See (in this Volume)
FRANCE: A. D. 1909 (JULY).

MILNER, Alfred, Lord:
In South Africa.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902, and after.

MILWAUKEE REFRIGERATOR TRANSIT CASE.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

{422}

MIN, General: Assassination of.

See (in this Volume)
RUSSIA: A. D. 1906.

MINDANAO, Conditions in.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901-1902.

MINE OWNERS' ASSOCIATION, WESTERN.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1899-1907.

MINERS AND MINING.

See (in this Volume)

LABOR.

MINING, Wasteful.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES.

MINNESOTA: A. D. 1908.

Organization of Coöperative Stores.

See (in this Volume)

LABOR REMUNERATION: COOPERATIVE ORGANIZATION.

MINTO, Gilbert John Murray K. Elliott, Earl of:
Governor-General of Canada.

See (in this Volume)

CANADA: A. D. 1904.

MINTO, Gilbert John Murray K. Elliott, Earl of:
Viceroy of India.
His initiation of the Reform in Indian Government by
the Indian Councils Bill.

See (in this Volume)

INDIA: A. D. 1908-1909.

MIRSKY, Prince Svyatopolk.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

MISSIONS, Christian:

At Large: Notable Movements of 1910.

"The year 1910 will be notable in the annals of foreign
missions. The Laymen's Missionary Movement, now holding

meetings in this city, plans an educative campaign covering over seventy centres and culminating next May in a national congress in Chicago. The Student Volunteer Movement, which enrolls in its mission study classes over 25,000 collegians, and which has sent over 4,000 workers to the foreign field, has just closed a conference at Rochester, where were assembled nearly 3,000 college men and women. In this month also is the gathering of medical missionaries at Battle Creek, Michigan. Next June the important World Missionary Conference takes place in Edinburgh. In October the country's oldest foreign missionary organization, the American Board, celebrates its centennial in connection with the National Congregational Council at Boston."

***New York Evening Post,
January 10, 1910.***

MISSIONS, Christian: China: A. D. 1906-1907.

"In view of the recent remarkable awakening in China, and the strong desire on the part of the Chinese for a knowledge of Western civilisation and science, an influential Committee, 'The China Missions Emergency Committee,' was appointed last year, including in its membership an equal number of prominent representatives of the Anglican Church as well as of the Free Churches of Great Britain, to consider in what ways it might assist the missionary societies and their representatives in China in adjusting and extending their existing operations, so that the momentous demands now made upon them by the surprising changes of thought and policy that have so suddenly emerged, may be adequately met. ...

"It appointed as its representatives the Reverend Lord William and Lady Florence Gascoyne-Cecil, of Hatfield; Sir Alexander R. Simpson, of Edinburgh; Professor Alexander Macalister, of Cambridge; and Mr. Francis William Fox, of London, to attend the Missionary Conference held at Shanghai from April 26th to

May 7th last, and also to pay a series of visits to missionaries and mission stations, for the purpose of learning from the most experienced missionaries what measures should be adopted to meet the new demands that had arisen."

"We found everywhere throughout the Chinese Empire that greater religious liberty is enjoyed than is the case in many other parts of the world, and that, so long as the laws of the country are observed, there is, theoretically, no interference with the conscientious opinions of individuals, with, however, the exceptions that Chinese officials are required occasionally to perform certain ceremonies of an idolatrous character. ...

"In the year 1906, as before stated, there were approximately 3,750 Foreign Protestant Missionaries residing in China. Of these, 1,950 were British, 1,457 American, and some 343 Continental and Independent Workers.

The number of Bible Women:

In 1876, 90;
in 1889, 180;
in 1906, 894.

Number of Boys' and Girls' Day Schools:

In 1878, 289;
in 1906, 385.

Number of Scholars in Day Schools:

In 1876, 4,909;
in 1889, 16,836;
in 1906, 42,546.

Number of Intermediate, High Schools and Colleges:

In 1906, 389.

Number of Students in Colleges, etc. (male and female):

In 1906, 15,137.

Total number of Scholars and Students:

In 1906, 57,683.

"By the commencement of 1908 it is estimated that the total number of Foreign Protestant Missionaries in China will be at least 4,000. The number of Mission Stations (including the sub or smaller ones) is about 5,750. The ordained Chinese Pastors and other Chinese Preachers are now about 6,000. The number of recognized Protestant Church (full) Members and Catechumens is estimated as 250,000, which, with the addition of children and others not regarded as in full connection, represents a total of about 1,000,000 persons who are more or less closely connected with the Protestant Christian Churches of China."

***F. W. Fox, A. Macalister, and A. R. Simpson,
Christian Missions in China
(Contemporary Review, February, 1908).***

See, also, (in this Volume)
EDUCATION: CHINA.

MISSIONS, Christian: India and Korea:
American Mission Schools.

See (in this Volume)
EDUCATION: INDIA, AND KOREA.

MISSIONS, Christian: Japan.

"Viscount Aoki, a former Minister for Foreign Affairs, is a Christian, and so is Viscount Okabé, Minister of Justice in the present Cabinet. There are 10 Christian members of the Imperial Diet, all men of high character and enjoying the respect of their fellow-countrymen, for there is no constituency in Japan which would elect a Christian qua

Christian. It is perhaps among the commercial class that Christianity is gaining most ground, and at Osaka, the great industrial city of Japan, there are churches with Japanese ministers, supported entirely by Japanese congregations, who have at heart to remove the popular reproach that Christianity is a foreign creed which cannot live without foreign subsidies. Missionary activity has always had a free field in Japan, and its philanthropic aspects have never received wider recognition than of recent years. The Emperor himself has frequently marked by handsome contributions his personal interest in orphanages and hospitals conducted under missionary auspices. But if Christianity should ever become the national faith of Japan it will probably be in some new national form impressed upon it by Japanese teachers rather than in any sectarian form borrowed from the West.

{423}

What is meanwhile unquestionably increasing very steadily is the influence of Christian ethics. ... To quote a missionary: 'If there are less than 200,000 professing Christians in Japan, there are more than a million educated Japanese who think in terms of Christian ethics, and who try to live up to them more truly than many millions of professing Christians in the West.'

Correspondent of The Times, London.

In April, 1907, a great international mission conference was assembled at Tokyo, Japan, of which ***The Outlook*** gave the following account the next month:

"Over six hundred delegates, representing organizations in twenty-five countries, assembled last month in Tokyo. They constituted the seventh Conference of the World's Student Christian Federation. The body represented is a federation of various national associations of Christian students. Some of them are Young Men's Christian Associations, organized in the colleges; some of them are student organizations, not

affiliated with the Young Men's Christian Association. The delegates received many messages of greeting from officials of high station; among these were messages from Viscount Hayashi, the Japanese Minister of Foreign Affairs; Marquis Ito, who sent a letter from Korea accompanied with a gift of five thousand dollars; Count Okuma, Elder Statesman; the President of the United States, the King of England, and the King of Norway.

"The meetings were thronged by ten thousand students, mainly Japanese and Chinese. The Conference was of course distinctively Christian in character; it had a definite purpose of proclaiming a Christian message: it advocated ethical and intellectual progress by means of the Christian religion; it assembled in a non-Christian land; yet its existence, so far from arousing resentment or opposition, evoked rather the warmest expression of appreciation and even gratitude. That it stimulated emulation is not surprising. A Buddhist Conference, for example, was summoned in the same city at the same time; but at that Conference resolutions expressing its 'profound respect' to the gathering of Christians were passed, and a deputation to convey these resolutions was chosen. Similarly, a Conference of Shinto priests sent a letter to the Christian Conference expressing their sense of the honor which the Federation had shown to Japan by convening in Tokyo, and, in lieu of a reception which could not be arranged for lack of time, presented material 'mementoes and tokens of esteem,' in order, to use their own words, 'to express our deep appreciation of your coming, and to commemorate this bright event in Japan's history.' The press of Japan was emphatic in its expression of good will."

MISSIONS, Christian: Turkey and the Near East:
American Mission Schools.

See (in this Volume)
EDUCATION: TURKEY.

MISSOURI: A. D. 1906-1909.

Successful Prosecution of the Waters-Pierce and
Standard Oil Companies.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1904-
1909.

MISSOURI RIVER RATE CASE.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1908-1909.

MISTRAL, Frederic.

See (in this Volume)

NOBEL PRIZES.

MITCHELL, JOHN:

President of the United Mine Workers of America.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

MITCHELL, JOHN:

Resignation on account of ill health.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1909.

MITCHELL, JOHN:

Chairman of Trades Agreements Department
of National Civic Federation.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1908.

MITCHELL, JOHN:

Sentence for alleged Violation of an Injunction.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1908-1909.

MITCHELL, John H.:

United States Senator, involved in Land Frauds.

See (in this Volume)

UNITED STATES: A. D. 1903-1906.

MODERATE-REPUBLICANS.

See (in this Volume)

FRANCE. A. D. 1909 (JANUARY).

MODERNISM, Papal Encyclical against.

See (in this Volume)

PAPACY: A. D. 1907.

Also,

TYRREL, FATHER GEORGE.

MODUS VIVENDI:

On American Fishing in Newfoundland waters.

See (in this Volume)

NEWFOUNDLAND: A. D. 1905-1909.

MOHAMMED ALI:

Lately deposed Shah of Persia.

See (in this Volume)

PERSIA: A. D. 1907 (JANUARY-SEPTEMBER).

MOHAMMEDAN CONFERENCE.

See (in this Volume)

INDIA: A. D. 1907 (DECEMBER).

MOHAMMEDANS OF INDIA:

Their present Feeling.

See (in this Volume)

INDIA: A. D. 1907-1909, and 1908-1909.

MOHAMID EL AMIN, a new Mahdi.

See (in this Volume)

AFRICA: A. D. 1903 (SUDAN).

MOHAMMID RESCHAD EFFENDI:

Made Sultan of Turkey as Mohammid V.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

MOHONK (LAKE) PEACE CONFERENCE.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1909.

MOISSAN, H.

See (in this Volume)

NOBEL PRIZES.

MOLTKE, COUNT KUNO VON:

His Libel Suit against Maximilien Harden.

See (in this Volume)

GERMANY: A. D. 1907-1908.

MOMMSEN, THEODOR.

See (in this Volume)
NOBEL PRIZES.

MONASTIR:

Beginnings of the Turkish Revolution.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

MONETA, ERNESTO T.

See (in this Volume)
NOBEL PRIZES.

MONEY. See (in this Volume) Finance and

MONO-RAIL SYSTEM.

See (in this Volume)
SCIENCE AND INVENTION: RAILWAYS.

MONOPOLIES.

See (in this Volume)
COMBINATIONS, INDUSTRIAL.

MONROE DOCTRINE:

Interpreted relatively to German Claims and Complaints
against Venezuela.

Its Recognition by Germany.

See (in this Volume)
VENEZUELA: A. D. 1901, and
UNITED STATES: A. D. 1902-1903.

MONROE DOCTRINE:

Impliedly recognized by the Hague Tribunal.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

MONROE DOCTRINE:

In the case of San Domingo.

See (in this Volume)

SAN DOMINGO: A. D. 1904-1905.

MONROE DOCTRINE:

Stated as an All-America Doctrine by Secretary Root, at the Third International Conference of American Republics, at Rio de Janeiro, in 1906.

See (in this Volume)

AMERICAN REPUBLICS.

{424}

MONROE PALACE, The.

See (in this Volume)

AMERICAN REPUBLICS: THIRD INTERNATIONAL
CONFERENCE.

MONTAGUE, A. J.:

Delegate to Third International Conference
of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

MONTENEGRO.

See BALKAN AND DANUBIAN STATES.

MONTES, I.:

President of Bolivia.

See (in this Volume)

ACRE DISPUTES.

MONT PELÉE, Volcanic explosion of.

See (in this Volume)

VOLCANIC ERUPTIONS: WEST INDIES.

MONTT, Pedro:

President of Chile.

See (in this Volume)

CHILE: A. D. 1906.

MOODY, William H.:

Secretary of the Navy, Attorney-General and Justice of the Supreme Court.

See (in this Volume)

UNITED STATES: A. D. 1901-1905, and 1905-1909.

MOOR, F. R.:

Premier of Natal.

At the Imperial Conference of 1907.

See (in this Volume)

BRITISH EMPIRE: A. D. 1907.

MORALES, President Carlos F.

See (in this Volume)
SAN DOMINGO: A. D. 1904-1907.

MORENGA, Chief of Hereros.

See (in this Volume)
AFRICA: GERMAN COLONIES.

MORET Y PRENDERGAST:
Premier of Spain.

See (in this Volume)
SPAIN: A. D. 1907-1909.

MORGAN, J. Pierpont:
His Intervention in the Anthracite Coal Strike of 1902.

See (in this Volume)
labor organization: united states: A. D. 1902-1903.

MORGAN, J. Pierpont:
His organization of the International
Mercantile Marine Company.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: INTERNATIONAL.

MORGAN, J. Pierpont:
Enlarged Control of Banking Interests.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909-1910.

MORLEY, John, Viscount:
Secretary of State for India.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

MORLEY, John, Viscount:
On the Indian Councils Bill.

See (in this Volume)
INDIA: A. D. 1908-1909.

MOROCCO (Maghreb el-Aksa):
The Name.

Maroc or Morocco, the name given by Europeans to the empire of the Moorish Sultan as a whole, is not so applied by the natives of the country. According to them, the Maroc or country of Marrakech, the Marruecos of the Spaniards, is only one of three States submissive to the authority of the Sultan-Shereef. At the north the kingdom of Fez, at the southwest the oasis of Tafilet, make up his real empire. Beyond these, vast territories occupied by numerous independent tribes, stretch over the space that is marked on our maps with the name Morocco. Its inhabitants have no common name for it as a whole. Their country, indicated in a general manner, with no precise delimitation, is the Maghreb el-Aksa,—that is to say, "The Extreme West."

Élisée Reclus,
Nouvelle Geographic Universelle,
Volume 11, page 653.

MOROCCO: A. D. 1896-1906.
The Creeping of the French Algerian Boundary
into Moroccan Territory.
A Justification of the Encroachment.

"Something has happened during the two weeks preceding the Conference at Algeciras [see EUROPE: A. D. 1904-1906], which may or may not be brought to the attention of the

international diplomats. France from the start has refused to submit her doings along the Algerian frontier to the discussion of the conference. That concerns herself and Morocco alone. What has been happening would in any case put the conference in face of an accomplished fact. Some time ago M. Jonnart, Governor-General of Algiers, was informed that emissaries from Fez were notifying the frontier tribes, whose submission to France dates only from the last few years, that Germany would help the Sultan very shortly to force the French to evacuate their tribal territories. ... M. Jonnart at once set out on a long and ceremonious visit to the tribes along the extreme southern frontier. He was accompanied by General Lyautey, the 'pacificating' general, who has been M. Jaurès' bugbear in this Moroccan affair. The Governor-General returned to Algiers Friday last, just in time to have his news ready for the conference. He has reason to be satisfied. Except for a vague idea that the Moroccan territory along the Algerian frontier is a 'hled-es-siba'—a country where the Sultan has difficulty in collecting his taxes—the foreign press has not kept pace with what has been going on for the last ten years. In one word, during that time France has brought under her domination a stretch of territory of some thousands of square miles. It is true that this territory is sparsely settled by wilfully independent tribes, who so far alternately aided in the Algerian harvests and raided the French outposts. This situation quite justifies the action of the French troops, which has consisted in throwing forward the unbroken line of outposts that enclose and keep in order the French dominion, and not in any military conquest of volatile tribes. M. Jaurès always fell foul of the latter policy, which he ascribed to the military; but it would be as useless as it is absurd. What General Lyautey has been doing all these years, without Germany or any other friend of the Sultan giving sign of life, is not only reasonable: it is better—it has proved effective. And M. Jonnart's tour has secured the formal submission of these tribes whose territory geographers have all along made a part of Tafilalt--the southeasternmost of the four ancient

kingdoms which, together, make up the empire of Morocco. The boundary between Morocco and French territory in Algiers has never been settled since the original treaty of 1845. That drew a line from the coast southward about a hundred miles to Teniet-es-Sassi, four degrees of longitude west from Paris, and then stopped. Whatever was to the south—then a No Man's Land, so far as France was concerned—was to be divided amicably along as natural a line as possible, leaving the east to France as a sphere of influence (the word had not yet been invented). During these sixty years the frontier line has remained about the same on the maps. But France has steadily prolonged her settled domination southward, gaining over a Mohammedan population by serving their material interests without offence to their religion. The railway now reaches Beni Ounif, only a short distance from Fighig, whose Amel is among those notified that Morocco with German help will soon send the French over the desert and far away. At Beni Ounif, besides the Grand Hotel for tourists, there are extensive counting houses for the trade of all the Hinterland, with an appropriate banking system, and everything to draw the Moroccan tribes. There is no doubt that this territory has always been nominally a part of Morocco. ... And now M. Jonnart has visited officially the great Zaouia, or religious centre of Kenadsa, still farther to the west."

***Paris Special Correspondence
New York Evening Post,
February 3, 1906.***

{425}

MOROCCO: A. D. 1903.

State of Affairs in the Moorish Sultanate.

Abd el Aziz, the young Sultan.

His expensive tastes.

His enjoyment of the Playthings of Civilization and Science.

"Regarded as a Moorish ruler and leader, the late Sultan, Mulai Hassan, was a strong man, almost, perhaps, a great man. The loss of Morocco is that apparently she cannot produce his like in the present generation. She was richer a few years ago; and that is part of her decadence. Mulai Hassan had a companion of his right hand: Ba Hamed, the Grand Wazeer. In them Morocco could boast the possession of two strong men; crude, narrow of vision, even brutal and merciless, if judged by European standards, yet genuinely strong men. The greater of them died, and his subordinate successfully hid the fact (though the Court was journeying at the time) from all Morocco, masquerading as one in close attendance upon a Sultan whose corpse, as a fact, was tied in its litter, until city walls were reached, preparations made, and the succession of the youth Abd el Aziz assured. Be it remembered that Ba Hamed, the survivor, was a strong man in his own right. Young Abd el Aziz [who succeeded his father in 1894] was docile perforce, and Ba Hamed ruled, without pity, with greed, and quite unhampered by what Europe calls honour or justice. ...

"Rather more than two years ago [1901], when already the country was perturbed by news of the French advance upon and occupation of Igli, the Moorish town which was regarded as the depot and junction via which the caravan traffic of the desert filtered through Morocco to the coast; at this critical juncture, in the thick of conflicting intrigues, poisonings, and official treachery, Ba Hamed, the greatly feared, greatly hated, and rigidly obeyed Wazeer, died at Marrakish, leaving many scheming heirs-presumptive to his office, but no single successor to the mantle of his authority, the inherent masterfulness of his personality.

"Still youthful Abd el Aziz IV. stretched forth both hands and personally took up the fallen reins of government with a great flourish of trumpets and display of energy. ... Optimistic Europeans, naturally gratified by the active good sense with which Abd el Aziz checked his Filali tribesmen's turbulent

resentment of contact with the French in Igli and its oasis, freely predicted a new lease of life for the Moorish Empire. They credited the new broom with powers which, in view of its origin and environment, had been little short of miraculous. And they omitted reflection regarding the hand which moved the new broom. This was a power behind the Parasol, a latent intelligence, not wholly Moorish, capricious, feminine, subtle, unstable, and somewhat vitiated from long repression in an unwholesome atmosphere. The late Mulai Hassan's Circassian wife, young Abd el Aziz's mother, Lalla R'kia, had also found a dangerous emancipation in the death of Ba Hamed. ...

"Casually observant Nazarenes saw rich, cruel officials swept from their high estate by wholesale, and predicted the birth of probity at Court. Notorious gainers by oppression were loaded with chains in Kasbah dungeons; the young Sultan's brother, the One-Eyed, whom cautious Ba Hamed had kept secure in Tetuan prison, was established on parole at Mcquinez, and 'Here's positive purity of administration!' cried the surface-reading hopeful in Christian-ridden Tangier.

"Of a sudden, all movement ceased. The young Sultan was lost sight of—behind the curtain. ... It is not given to us to know anything of pale Lalla R'kia's attitude during this breathing space. ... (Lalla R'kia died last year.)

"Speaking metaphorically, his Shareefian Majesty Abd el Aziz reappeared on the arm of a commercial agent, a French Israelite, with a genius for the 'placing' of imported commodities. Allah's Chosen had been initiated into the select manias of Europe, and become addicted to golfing, the use of the camera, the bicycle, and other less pretty pastimes from the West. ...

"Commercial agents continued to press upon the young Sultan the latest and most expensive of electrical and other toys,

and those far-seeing gentlemen, the newspaper correspondents, bade Europe take note of the remarkable enlightenment and progressive wisdom of the ruler of Morocco, as evidenced by his interest in motor cars and Broadwood pianos. And the friends of these optimistic gentry criticised the present writer as a croaker and a bird of ill-omen when he published in ***The Fortnightly Review*** for July, 1901, the following extract from a letter sent him by a Moorish friend:

"‘To sum all up, my friend, I grieve because I find the affairs of my native land in parlous order, demanding as never before in the history of Morocco the guidance of a strong, clear mind, a veritable Sultan. That my country’s affairs most urgently need. They have a governing power composed of half a dozen corrupt creatures, of a corrupt, short-sighted, cruel, and desperately greedy Wazeer, whose rightful Lord is occupied exclusively in—Bah! We have spoken of those whose graves will be defiled, and of the trumpery gauds from Paris bazaars. And this, while the turbulent Sus is aflame, the far south-east a mine charged by French aggression, waiting only the match of knowledge of our Lord’s indifference; the country between Tafilalt and Fas is openly given over to brigandage and anarchy, and even Al Ksar, Arzila, and the Gharb, Tangiers outskirts, are full of unrest and disorder, crimes and indifference to crimes.’"

A. J. Dawson,
Morocco, the Moors, and the Powers
(Fortnightly Review, February, 1903).

{426}

"I have not seen the Sultan face to face, but I have conversed with nearly all the leading Europeans who have been with him either at Marrakesh or Fez, and from what they have told me I have been forced to conclude that Mulai Abd-el-Aziz is a charming, kindly, headstrong man, suffering badly from youth,

who delights in reforms for the sake of their novelty and lacks the brain power that distinguished his father, Mulai el Hassan, and his grandfather, Mulai Mohammed. While he stayed in his southern capital he was comparatively free from the attacks of commercial attaches and other rogues, whose designs upon his treasury should have been obvious, though he was guilty of many extravagances, including displays of fireworks that made his envoy to England speak slightly of the special display arranged in his honour at the Crystal Palace. In Fez the agents surrounded him like summer flies. He has twelve motor cars and no roads to ride them over; he paid between three and four thousand pounds for a yacht, sixty feet long, that was to be used on the Sebu river, which is no more than thirty feet wide; in spite of the Koran's prohibition, he has purchased a crown at a price I am afraid to name. He has put some of his soldiers into European uniforms and boots, only to find that they run away from Bu Hamara as readily as they did when dressed in native garments. He has developed an enthusiasm for photography—I have seen some of his work—and in addition to cameras with cases of pure gold, he has one apartment of his palace loaded from floor to ceiling with dark plates, and he was persuaded to order ten thousand francs' worth of printing paper. He has a menagerie in the grounds of the palace at Fez, and on a day when it was reported that the lion sent from England had quarrelled with and killed the lion sent from Berlin, one of the European visitors to the court suggested to him that a contest between the victorious lion and the Bengal tiger would afford good sport. 'No,' said Abd-el-Aziz, 'the lion cost me three thousand pounds!' All Europe knows that the Sultan is poor."

**S. L. Bensusan,
Britain, France, and the Moorish Empire
(Contemporary Review, November, 1903).**

MOROCCO: A. D. 1903-1904.

Appearance of the Mahdi, Bu Hamara,

as a leader of Insurrection.

In 1903 there appeared in Morocco one of the prophetic pretenders called Mahdis, of whom so many have arisen in the Moslem world, to take advantage of occasions of religious excitement, and to lead a rising of wild tribes. This Moorish Mahdi, known as Bu Hamara, was helped to a leadership of insurrection by an incident which greatly stirred the religious temper of tribes wherever known. An English missionary was killed at Fez, and the murderer, flying to a sanctuary of special sanctity, was pursued thereto by the Sultan's guards, and slain within the sacred bounds. Against this sacrilege, committed to satisfy hated Christians, Bu Hamara roused the country, preaching extermination of all Christians within it. The insecure throne of Abd el Aziz was made more insecure, English influence in Morocco was shaken, the French frontiers east and south were endangered, and Bu Hamara's revolt appears to have had much to do with the producing of all that followed,—in the Anglo-French Agreement of 1904, the Algeiras Conference, the dethronement of Abd el Aziz, etc.

MOROCCO: A. D. 1904.

Declarations of England and France concerning Morocco
in the Agreements of the Entente of 1904.
Explanatory Despatch.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

MOROCCO: A. D. 1904-1909.

Exploits of El Raisuli.

The Kidnapping and Ransoming of Messrs. Perdicaris and Varley.

The Capture and Ransom of Kaid Sir Harry MacLean.

Present Respectability of Raisuli as a Moroccan Governor.

One of the chiefs in that mountainous strip of northern

Morocco, nearly parallel to the Mediterranean, which is called "The Riff," has played a startlingly troublesome part in recent Moroccan history. His name is Mulai Ahmed ben Mohammed, but he is commonly designated in all news-mentions of his doings by the title he bears,—El Raisuli, chieftain of a clan. The first exploit which made this title familiar to all the world was in May, 1904, when he kidnapped, from their residence near Tangier, a naturalized American and an Englishman, Mr. Ion Perdicaris and his stepson, Mr. Varley, carrying them into the mountains and holding them captive until he had extorted a ransom of \$70,000, despite the utmost efforts of France, Great Britain, and the United States, with the aid of the Sultan, to obtain their release on less humiliating terms. This success failed, however, to satisfy the audacious brigand, and in July, 1907, he laid hands on another important hostage, this time a British officer, Sir Harry MacLean, who had been long in the service of the Sultan of Morocco, as military adviser, with the title of Kaid. Kaid MacLean ventured to visit the brigand in his mountain retreat for some negotiation, and was detained in pawn. Raisuli held this notable captive until the following February, and released him then on receipt of \$25,000, cash down, with a pledge of \$75,000 more at the end of three years, if he gave no fresh trouble within that time. Meanwhile, he and twenty-eight of his family were to be under British protection. Before this transaction was closed a new Sultan had won the Moroccan throne (as will be explained below) and he thought it wiser to employ the energies of Raisuli officially than to try to maintain a contest of authority with so unmanageable a subject. Accordingly, in February, 1909, Raisuli was appointed governor of twelve tribes in Northern Morocco, and is now one of the most respectable representatives of government in the last of the Barbary States.

MOROCCO: A. D. 1905-1906.

German hostility to the Anglo-French Agreement.

The Kaiser's speech at Tangier.
The International Conference at Algeciras.
The resulting Act.

See (in this Volume)
EUROPE: A. D. 1905-1906.

MOROCCO: A. D. 1907-1909.

Mob-murder of Dr. Mauchamp at Morocco City.
Conflict with Tribesmen at Casablanca.
Bombardment by French and Spanish Ships.
Campaign against the Tribes.
Dethronement of Sultan Abd el Aziz by his brother Mulai Hafid.
Fresh friction between France and Germany.
Its Pacific Settlement by Arbitration at The Hague.

Organization of police forces for the service which France and Spain were commissioned by the Powers at the Algeciras Conference to perform in Morocco was retarded, necessarily, by the prevailing anarchy in the Empire, and fresh causes of disorder occurred before the means for prompt treatment of them were prepared. In the spring of 1907 a French citizen, Dr. Mauchamp, at Marrakesh (Morocco City), undertook to install at his house the apparatus for wireless telegraphy. His Moorish neighbors suspected some diabolical intention, when he raised the necessary mast on his house, and proceeded with fanatic enterprise to kill the man of too much science and to demolish the house. The French Government demanded punishment of the outrage, with indemnity to the family of the victim, and put a force in motion, under General Liautey, which occupied the city of Ujda, not far from the Algerian frontier, to hold it until the demands of justice were complied with. None of the Powers signatory to the Algeciras Conference raised objections to this proceeding.

A more serious intervention was occasioned in July, 1907, when the French took control of the collection of customs at the ports, as directed by the Algeciras agreement. At Casablanca, on the Atlantic coast, the tribesmen attacked a number of European laborers, employed there in quarries, and killed eight. All the foreign residents of the region were in danger, and French and Spanish war-ships were hurried to the scene. The local Moorish official confessed his inability to protect the threatened foreigners, who had taken refuge in the French, Spanish, and British consulates, with hostile tribes swarming around the town, and he asked for help. Marines were landed on the 4th of August and were attacked. "A sanguinary battle followed between the Arabs and the European soldiery, the French cruiser opening fire and shelling the Moorish batteries. Scenes of great disorder and violence followed upon the firing, a raging mob of Moors attacking and pillaging the entire city. The Jews particularly were massacred by hundreds. Another French warship soon appeared upon the scene, accompanied by a Spanish cruiser, and troops were landed to the number of 4000. General Drude, the French commander, was chosen to head the allied troops, Spanish and French, and reinforcements were hurried from France." A number of encounters followed. "The most serious were the attacks, on August 28, and September 2, upon Casablanca and its outskirts, both resulting from a reconnaissance in force by the French Algerian irregular cavalry and the famous Foreign Legion. Seven or eight thousand Moors attacked the Europeans, sweeping down from the hills with all the ferocity and courage traditional in their race. By the aid of machine guns and the batteries from their warships the French succeeded in repelling the tribesmen with considerable loss of life."

Justification of the bombardment of Casablanca was somewhat questioned at the time, and with good reason if the following account of the circumstances, by an eye-witness, a Scotch missionary, are to be believed. His statement was published in the Glasgow *Herald*, and is given here as summarized in

The Outlook, of September 21, 1907.

"This missionary, Dr. Kerr, has lived many years in the country, and he asserts that in many ways the French residents and officials have continually irritated the Moors and provoked them to anger. Dr. Kerr states that no further outbreaks occurred after the massacre of French and Spanish workmen on July 30, and that when the bombardment began on August 1 there was absolutely no immediate provocation for it. He denounces it as contrary to the usages of civilized war and as 'wicked and unjustifiable,' adding that the British merchants in Casablanca will probably sue the French Government for damages caused to their property by what they consider an unnecessary bombardment. The punishment of the Moors concerned in the murder of the eight workmen, says Dr. Kerr, no one could object to, but instead of this the punishment took the form of an unprovoked massacre of persons many of whom were entirely innocent. The details of the affair as he gives them are certainly deplorable, and if his assertion that the landing force of the French fired the first shot is true, the succeeding episodes described are unpardonable. One of these episodes may be quoted here:

"'I saw two young women walking as quickly as they could. ... Suddenly a volley was fired into them by the Spanish marines. They fell, but picked themselves up, and took refuge in a ledge of a wall. After waiting a few minutes they made to return, when another volley was fired at them, and they fell again. ... One of these brave daughters of Ishmael refused to flee without taking with her the "khaik," or outer garment, which fell from her [thus leaving her face uncovered, contrary to Moslem law]. She turned back, picked up her garment, and fled as fast as she could, bleeding all over.'"

In the fall of 1907 General Drude was succeeded in the command at Casablanca by General d'Amade, who prosecuted a more vigorous campaign against the obstinately hostile tribes of

the region, and made but slow progress in reducing them to submission.

Meantime a rising against Sultan Abd el Aziz, in favor of one of his brothers, Mulai Hafid, had been started and was making rapid headway. Mulai Hafid was proclaimed Sultan at Marrakesh on the 25th of August, 1907, and on the 4th of the following January his supporters had gained possession of Fez and proclaimed him there. Abd el Aziz kept the field against his rival until August, 1908, when he had practically no following left, and the direction of Government was assumed formally by Mulai Hafid. His authority had soon become established so fully that the German Government addressed a note to the Powers proposing an immediate recognition of it. France and Spain objected, insisting that Mulai Hafid must confirm existing treaties, accept responsibility for the debts of the previous regime, give pledges of indemnity for the Casablanca outbreak, disavow the "Holy War" which he had countenanced and which had given him his success, and take effective measures for securing the safety of foreigners in the Empire. Their objection was approved generally; Germany assented to the requirements proposed, and it was not until Mulai Hafid had satisfied them that he obtained recognition as the legitimate sovereign of Morocco. This was given in the following note, handed to his representative on the 5th of January, 1909, by the *doyen* of the Diplomatic Body at Tangier:

"The signatory Governments of the Act of Algeciras have received the letter which Mulai Hafid sent to them through the agency of the Diplomatic Body at Tangier in reply to their *communiqué* of November 18. The Governments represented in Morocco received with satisfaction this reply, in which they saw a proof that the explanations which they formulated in their Note of November 18, in the interest of the relations of friendship and confidence which they desire to maintain with the sovereign authority of the Shereefian Empire, are in accordance with the views of Mulai Hafid. In consequence the

signatory Powers of the Act of Algeciras have decided to recognize his Majesty Mulai Hafid as legitimate Sultan of Morocco, and have charged the *doyen* of the Diplomatic Body at Tangier to notify their recognition of him to the representatives of his Majesty in that town."

{428}

Before this settlement was reached an incident had occurred at Casablanca on the 15th of September, 1908, which irritated the chronic sensitiveness of feeling between Germany and France. Five or six soldiers of the Foreign Legion in French service at Casablanca, including three Germans, deserted, and the German Consulate attempted to protect the Germans when their arrest was undertaken by French gendarmes. There was some struggle, but the arrest was accomplished, and the demand of the Consul for the release of the three Germans was refused. Germany demanded satisfaction for the treatment of her Consul. France maintained that satisfaction was due to herself for the interference of the Consul with her military rights; but offered to submit the affair to the Hague Tribunal for arbitration. Germany was willing to arbitrate the questions involved if France would first express regret for the official conduct on her side of the matter. France in reply suggested expressions of regret by both parties; and on these terms, supposedly vindicating national dignity on each side, the case went to The Hague. The Court of Arbitration held its first meeting on the 1st of May, 1909, and announced its judgment on the 22d of the same month. As summarized in an English despatch from The Hague, the opinion of the Court was as follows:

"The Court considered that in this case there was a conflict of jurisdiction between the Consular and the military authority of two foreign Powers, the one Power exercising full Consular authority over her subjects, who happened to be soldiers in the Foreign Legion of the other Power. The latter

Power had effected the military occupation of a certain territory, and in consequence exercised full authority over that territory. As it was impossible to decide this conflict by any absolute ruling, which might indicate in a general way the precedence of either jurisdiction, the Court considered that the question must be determined by the particular circumstances of any given case.

"In this case the jurisdiction of the occupying force had precedence because the persons in question did not leave the territory occupied by that force. The Court decided that the Secretary of the German Consulate at Casablanca wrongly and through a grave and manifest error tried to embark in a German steamer deserters of the French Foreign Legion, who were not of German nationality. The German Consul and the other officials of the Consulate were not responsible for that fact; the Consul, however, in signing the safe conduct, which was laid before him, committed an unintentional error.

"The German Consulate in the circumstances obtaining at that time was not entitled to grant its protection even to deserters of German nationality; the legal error, however, which was committed in this connexion by the officials of the Consulate could not be reckoned either as an intentional or as an unintentional error.

"The French military authorities were wrong in not respecting, as far as possible, the *de facto* protection exercised over those deserters in the name of the German Consulate. The circumstances did not justify either menace by revolver on the part of the French soldiers, or the blows given to the Moroccan soldier of the Consulate."

This proved satisfactory to all concerned, and the Casablanca incident was happily closed.

A more important adjustment of matters between Germany and

France, aiming at a general clearing of causes of friction in their relations, so far as concerned Morocco, had preceded the Casablanca arbitration by nearly three months. All Europe had been surprised and delighted on the 9th of February, 1909, by the announcement of a Franco-German Agreement, just concluded, in the following words:

"The Government of the French Republic and the German Imperial Government, actuated by an equal desire to facilitate the execution of the Act of Algeciras, have agreed to define the significance which they attach to its clauses with a view to avoiding any cause of misunderstanding between them in the future.

"Consequently, the Government of the French Republic, wholly attached to the maintenance of the integrity and of the independence of the Shereefian Empire, decided to safeguard economic equality there, and accordingly not to impede German commercial and industrial interests, and the German Imperial Government, pursuing only economic interests in Morocco, recognizing at the same time that the special political interests of France are closely bound up in that country with the consolidation of order and of internal peace, and resolved not to impede those interests, declare that they will not prosecute or encourage any measure calculated to create in their favour or in favour of any Power whatsoever an economic privilege, and that they will endeavour to associate their nationals in business for which these may be able to obtain contracts (*l'entreprise*)."

This most important agreement resulted from negotiations that were said to have been opened by a suggestion from the German Foreign Secretary, Baron von Schön. Its importance to Europe was hardly exaggerated by the Paris ***Matin***, when it said:

"It is a great and happy event, the importance of which need

not be emphasized. ... This close of the Moroccan quarrel may, if such be the desire, mark a date of capital importance in the history of Europe. In fact, as Prince Bülow has said and repeated, Morocco was only a pretext. If therefore it has become an object of agreement, it is not merely because it has been recognized that the local problem was not insoluble, but also because the general situation has changed or because the 'opportunity' no longer exists."

MOROCCO: A. D. 1908.

A German Statement of the Moroccan Policy of Germany.

See (in this Volume)

GERMANY: A. D. 1908.

{429}

MOROCCO: A. D. 1909.

Discontent with the new Sultan.

His struggle with Pretenders.

Spanish War with the Tribes of the Riff.

Success of Mulai Hafid against his Rivals.

French operations in and around the Moorish Empire.

French Mauretanie.

French Demands.

The Mannesmann Mining Concession.

France and Spain were now strengthened in the execution of their Algeciras commission, by a harmonious backing in Europe, and the native Government in Morocco had acquired, seemingly, a strong and capable man at its head. Sultan Mulai Hafid made that impression very positively on a correspondent of the London *Times*, to whom he gave audience on the 13th of February, and who wrote of him that day: "It is quite evident that Mulai Hafid is a man of large and independent ideas, with a leaning toward democracy. In appearance and manner he is most attractive, and both his looks and his conversation

betoken a character at once strong and of quick decision. Everything he says is very much to the point, and his remarks are often touched with humour and even cynicism. His openmindedness and cordiality extend almost to breaches of the rigorous Moorish etiquette."

Five days later the same correspondent wrote again: "The Fez Moors had hoped at Mulai Hafid's accession for material though indefinite advantages, for they felt that the new Sultan, who owed his throne not to inheritance but to election, would be an instrument in their own hands, and that they would be able to exert their influence for their own purely selfish ends. But they had counted without Mulai Hafid. Once on the throne, he consolidated, at all events locally, his power, and the Fez population, who during the previous reign had undoubtedly held and used considerable influence, found themselves in the hands of a firm, masterful man, who did not hesitate to tax them to an extent formerly unknown, and gave them clearly to understand that he would brook no interference in matters of policy. The effect was instantaneous. The Fezzis began openly to regret the slack *régime* of Mulai Abdul Aziz, and Mulai Hafid became unpopular, as any monarch who really governs in Morocco must always be.

"But if Mulai Hafid was unpopular, he inspired at the same time a wholesome fear. His indifference to public opinion, his breaches of the absurd prescriptions of Moorish etiquette, his personal supervision of every detail, and the publicity in which he lives show not only remarkable courage, but also remarkable knowledge of the people whom he governs. ... Yet he has but a small army, and he is financially hampered. He receives Europeans publicly, and grants audiences in the presence of the whole Court, often before the whole army. He invites his guests to be seated, and chats in a natural and sympathetic manner on all kinds of subjects. But it is quite apparent that his *entourage* is in terror of him. Never have the viziers had less freedom or fewer opportunities for

plunder. The Government is Mulai Hafid, and Mulai Hafid alone, and yet Mulai Hafid is a democrat. He desires to put down—and has already largely done so—the fanatical and always mischievous influence of the great Shereefian families. He works from morning till night, and keeps every one else working. His negotiations with the French Minister are progressing in a way that astonishes every one. ... Mulai Hafid obtained the throne by preaching a holy war against Europeans. He will maintain himself upon the throne by a policy of reform which will win for him the assistance of France against his own fanatical people."

But subsequent events did not realize the confident expectations of this writer. A month later he reported:

"Shereef Sid Mohammed Kittani, a descendant of a former dynasty and chief of an important reactionary religious sect, who was freely spoken of as possible Sultan before Mulai Hafid's proclamation, left Fez secretly yesterday. Apparently he had previously succeeded in dispatching his family and movable property from time to time to some spot in the Berber tribelands without exciting suspicion. His flight has caused what can only be described as consternation. His influence is very great, and he is known to lay claim to the Throne."

Within another month this pretender had defeated Mulai Hafid's forces in a sharp engagement and had an army encamped about eighteen miles east of Fez. French officers were reported to be doing notable work in organizing and equipping the Sultan's troops. On the 8th of May there was alarming news that Mulai el Kebir, another brother of Mulai Hafid and of the ex-Sultan, Abd el Aziz, "who was accompanying the Southern Kaid's to Fez, had left their camp secretly by night and had fled into the Zimmour country," and "many believe that he will take advantage of the Sultan's unpopularity to raise a rebellion." Two days later "nothing is known of the whereabouts of Mulai el Kebir," and "the Sultan does not conceal his anxiety."

Mulai-el-Kebir was on the best terms with his Majesty, but the Sultan's severe treatment of other members of his family no doubt filled him with fear."

From Paris, on the 26th of May, it was telegraphed that the Sultan's Minister of Finance, El Mokri, then visiting Paris on a financial mission, "observes that Mulai Hafid's authority is more solidly established at present than might at first sight appear to be the case. At no time has any Sultan been recognized over a much wider area of Moroccan territory. In the Beled el Makhzen his sway is uncontested. The kaids of the Haouz and the southern Atlas have always been his partisans. El Mokri has no fear of the pretenders."

There were now two pretenders in the field: for Mulai Kebir had been heard from, "beyond Mekinez," where he had raised the standard of revolt. And Bu Hamara was on the stage of civil war again, east of Fez, with an army which "is camped at less than four hours distance from the capital," and which is "actively pillaging the only tribe that remains loyal to Mulai Hafid in that region." Troops sent against him a few days later were said to have been badly beaten. The Sultan was reported to be in quarrel with his viziers; was ill,—invisible in the palace,—and the situation did not seem to look well for him.

Then, suddenly, all news reports from Morocco became silent as to Mulai Hafid and his rivals, and gave entire attention to a serious outbreak of warfare in that northeastern corner of the empire, known as the Riff, where Spain has had a long recognized "sphere of influence," and where she had undertaken the working of valuable iron mines near Melilla. Hostilities were begun in July by an attack of tribesmen on the miners, killing several, and the Spanish troops sent to the scene met disaster, being insufficient in force. In the end, so extensive a rising of Moorish tribesmen had occurred that Spain was obliged to put a large army into the field against

them and organize a costly campaign. It was not until late in September that much success attended the Spanish arms, and not until late in November that the campaign was regarded as closed, the Spanish forces having secured positions which, when fortified, were expected to give them a firm footing in the region, and having brought most of the tribes to terms.

{430}

Meantime, the war had been bitterly unpopular among large classes in Spain, and the feeling had been manifested in destructive rioting at Barcelona and elsewhere.

See (in this Volume)
SPAIN: A. D. 1907-1909.

What France had been doing meanwhile, in and around Morocco, has been told by a writer in ***The Atlantic Monthly:***

"During the year [May, 1908, to May, 1909] the French army under General d'Amade, has continued occupying Casablanca, and the fertile Chaouïa (Shawia) region. It has forced peace, law, and order, and open markets on the inhabitants, to their great advantage. Agriculture has revived; and German trade itself has run up two million francs. Even so the 'economic interests' of Germany in Morocco are scant indeed compared with those of France and England; they are perhaps less than those of Spain—and yet they have long threatened the peace of Europe. ... Meanwhile the interior of Morocco has been chiefly occupied in the unmaking and making of Sultans. Toward the German Emperor these fighting Moors have now a feeling much like that of the Transvaal Boers when the Kruger telegram failed to lead to eventualities. ... The real success of France is along the entire land-frontier of Morocco. For its whole length this is now also the frontier of French territory,—Algiers to the east, the Sahara with its line of French posts to the south, and so on to the Atlantic Ocean

through the new French civil territory of 'Mauritanie.' Here foreign geography will still be incomplete for some time; but it is childish to dismiss these territorial stretches as so many acres of sand. The empire which France might have had in Canada was, in like manner, denounced by Voltaire as acres of snow.

"France absolutely refused to allow any question concerning this land-frontier to be brought up at the Conference of Algeciras. It is no business of Europe; it concerns the two neighbors, France and Morocco, only.

"General Lyautey has had its more than eight hundred miles well under control. ... Of late years France has successfully occupied territory farther and farther to the south, pushing forward the railway, and throwing out a long line of military posts through the Sahara. People who amuse themselves marking obscure changes of conquest on the map, may safely stick their pins one full degree farther west all along this part of Algiers, beginning where Spain at Melilla blocks the way along the Mediterranean coast."

***Stoddard Dewey,
The Year in France
(Atlantic Monthly, August, 1909).***

When newspaper attention reverted to Mulai Hafid a great improvement was found in his affairs. Seemingly, the pretenders to his throne had disappeared, and Bu Hamara, the rebel, now styled El Roghi, was decisively routed by troops of the Sultan on the 16th of August, captured a few days later, and taken to Fez in an iron cage. On the 13th of September it was announced that he had been executed the day before. Later, this was contradicted, and there seems to be no certainty as to his fate.

The Moroccan Government was now being sharply pressed by

France with demands over which negotiation had proceeded hitherto very slowly. M. Pichon, the French Minister for Foreign Affairs, made a statement on the subject to the Chamber of Deputies on the 23d of November, to the following effect: "On August 14 the representatives of the Sultan received a note summing up the conditions imposed by the French Government. These conditions were the evacuation of the Shawia region on condition of the organization by the Maghzen of a force; the evacuation of Casablanca when the French Government felt convinced that the organization of the Shawia police had become sufficiently effective; the organization of the police service on the Algero-Moroccan frontier; the payment of the Maghzen's debts and the reimbursement of the costs of the French military expeditions. The Maghzen owed at present £3,200,000, more than £400,000 of which was due to private creditors. The French Government would allow the Moroccan Government to raise a loan in France in order to facilitate the payment of its debts. ... The French conditions had been acknowledged to be very moderate by all who had had cognisance of them. Germany had recently informed the Maghzen that it was high time to contract a loan. M. Pichon dwelt on the loyalty with which the Franco-German Agreement had been observed by the Berlin Government. Nevertheless the adhesion of the Moroccan Government had not yet been obtained. That Government had admitted the principle of the loan of 80,000,000f. and that of the indemnity of 70,000,000f. for the French military expedition, but there was disagreement still in regard to the guarantees required for the realization of that operation. Mulai Hafid, moreover, demanded the immediate evacuation of the Shawia and of Casablanca. On November 6 M. Pichon informed the Sultan's envoys that it was futile to continue the *pourparlers* if France did not obtain a satisfactory reply. It would not be without danger for the Moroccan Government to persevere in its attitude."

A little later it was made known that the Sultan had yielded to the terms prescribed by the French Government and was to

obtain the loan which would help toward the payment of his debts.

By this time a new Morocco question had sprung out of a sweeping mining concession which certain German exploiters, the Brothers Mannesmann, had obtained from Sultan Mulai Hafid, in distinct violation of the agreements at Algeciras which the Sultan had been a party to. The Mannesmann mining rights under this concession, if allowed, would swallow up all others, and large interests, French, Spanish, German, English, Italian, and Dutch, were arrayed against their claims. The backing of the Mannesmanns in Germany, however, by commercial and newspaper influence, appears to have been very powerful, and it has not been easy for the Government to resist being drawn into alliance with it. But the attitude of the Imperial Government appears to have been strictly loyal to the Algeciras agreements, and it has gone no farther for the Mannesmanns and their partisans than to negotiate with the other Powers concerned for a submission of the question of legality in the Mannesmann concession to a Court of Arbitration. That will probably be the mode of settling it.

{431}

MOROS, The.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901-1902.

MORRIS, SIR EDWARD:
Premier of Newfoundland.

See (in this Volume)
NEWFOUNDLAND: A. D. 1908-1909.

MORTON, PAUL:
Secretary of the Navy.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

MORTON, PAUL:
President of Equitable Life Assurance Society.

See (in this Volume)
INSURANCE, LIFE.

MOSCOW,
Risings and Disturbances in.

See (in this Volume)
RUSSIA.

MOSLEM LEAGUE.

See (in this Volume)
INDIA: A. D. 1907 (December); also, 1907-1909.

MOSQUITO TERRITORY, THE.

See (in this Volume)
CENTRAL AMERICA: A. D. 1905.

MOTIENLING.

See (in this Volume)
JAPAN: A. D. 1904 (JULY-SEPTEMBER).

MOVING PICTURE SHOWS.

See (in this Volume)
SCIENCE AND INVENTION.

MUIJTEHEDS:

The higher Persian Priests.

See (in this Volume)
PERSIA: A. D. 1905-1907.

MUKDEN: A. D. 1903.
Opened to Foreign Trade.

See (in this Volume)
CHINA: A. D. 1903 (MAY-OCTOBER).

MUKDEN: Battle of.

See (in this Volume)
JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

MULAI AHMED BEN MOHAMMED, EL RAISULI.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

MULAI HAFID:
Sultan of Morocco by Dethronement of his Brother.

See (in this Volume)
MOROCCO: A. D. 1907-1909, and 1909.

MULAI HASSAN, Late Sultan of Morocco.

See (in this Volume)
MOROCCO: A. D. 1903.

MULLAH, ABDULLA MUHAMMED.

See (in this Volume)
AFRICA: SOMALILAND.

MULLAS:

The common Persian Priests.

See (in this Volume)

PERSIA: A. D. 1905-1907.

MUNICIPAL COMMITTEES IN INDIA.

See (in this Volume)

INDIA: A. D. 1907-1909.

-----MUNICIPAL GOVERNMENT: Start-----

MUNICIPAL GOVERNMENT:

American Democracy's most Serious Problem.

Present Interest in it.

Hopeful Movements.

Americans have long been forced to acknowledge that political democracy in the United States makes its worst showing in the government of municipalities; and those who give any searching thought to the matter have little dispute over reasons for the fact. It connects very plainly with another fact, namely, that ***municipal politics***, as a political interest distinct and apart from the interests of government in Nation and State, has had no growth in the country as yet. Up to the time of the formation of the national union, the few cities of America had a quite positive political life of their own, which might have carried them into conditions very different from what they have realized since, if it had not undergone the absorption that it did in the politics of a national government. The national political parties formed then on exciting issues, sectional, constitutional, and economic, caught all political feeling into their embrace, not instantly, but gradually, and surely, and appropriated the whole mechanism of political organization to themselves. Cities are the natural centers of such mechanism, and the

great parties of Federal politics were able easily to impose on them a domination which left no free working of public opinion on the immediate concerns of the cities themselves. All political action was drawn into the mill which turns out Presidents, Congresses, Tariffs, Bank Acts, etc., and the mere by-product of Mayors, Aldermen, and City Ordinances which it drops incidentally into the cities, receives almost no stamp of quality or design from the local mind.

Until the wheels of local government are loosened in some way from the clutch of the great party machines, and can work independently, under motive forces of their own, to produce the satisfaction of local needs, interests, and aims, there will be little success in undertakings of municipal reform. How to accomplish that political ungearing is one of the greatest, if not the greatest, of the problems now occupying the minds of the American people. Fortunately it is occupying their minds. Within the last few years they have given more thought to this subject than it ever received from them before; and it has been bold thought, as well as profoundly earnest. It has not been afraid of hospitality to new ideas and new experiences, but is giving them fair hearings and fair tests. The present attitude of the whole country in this matter is of the happiest hopefulness, and every day brightens the prospect of a better future for municipal government in America.

MUNICIPAL GOVERNMENT: BOSTON: A. D. 1909.

A Plan of Government chosen by popular vote.

In connection with the election of November 2, 1909, the citizens of Boston, Massachusetts, had two plans of City Government submitted to their vote, and the charter under which the City will be ruled and its business conducted after the beginning of February, 1910, was determined by the choice between these plans which a majority expressed at the polls. One of the plans emanated from an official body, called the

Finance Commission, which had been appointed to investigate bad conditions in the City Government, and whose investigations had given rise to the demand for a radical reform. This plan had the approval, moreover, of a citizens Committee of One Hundred, which had given much attention to the subject; but it was exceedingly unsatisfactory to the party politicians, whose personal interests were flagrantly disregarded in its scheme. These drafted a form of charter which fitted their own purposes, and the two plans were submitted to the Legislature in the winter of 1909. That body escaped the responsibility of a decision between them by referring both to the voters of Boston. The charter wanted by the party managers was designated as "Plan No. 1"; that of the Finance Commission and the Committee of One Hundred as "Plan No. 2."

{432}

A strenuous campaign of education was fought for some weeks before election day by the supporters of Plan No. 2, who seem to have included practically all single-minded seekers of good government, and an equally active campaign of wire-pulling was carried on by the champions of Plan No. 1. The education was successful in convincing 39,175 voters that Plan 2 should be preferred, while 35,306 were persuaded to the contrary, and about 34,000 remained so indifferent or undecided that they gave the question no vote. But public considerations prevailed over party motives and influences by 3869 votes, which is a highly important fact.

The charter thus adopted for Boston differs in many features from what has acquired the name of "the Des Moines plan," but is fundamentally akin to it in principle and aim. Its prime purpose is to divorce local politics from national politics, freeing municipal elections from the baneful control of parties which have nothing rightly to do with the city's affairs. Its secondary object is to concentrate official responsibility in a moderated way. It subjects the mayor of Boston, at the middle of his term, to a reconsideration of the

vote which elected him (in the nature of the Swiss "recall"), but it does not introduce the initiative and referendum. The operation of the new charter under its provisions was outlined as follows by the Boston ***Herald*** on the day following its adoption:

"By the acceptance of plan 2, party and all other designations will be eliminated from the ballots for the municipal elections, which will be held on the first Tuesday after the second Monday in January of each year. The coming city election will be held on January 11.

"Candidates for mayor must be nominated by petition of not less than 5000 registered Boston voters. The candidate who receives the highest vote at the city election will hold office for four years, unless recalled at the end of two years. The salary will be \$10,000 a year.

"At the state election in the second year of the mayor's term the ballots will contain the question: 'Shall there be an election for mayor at the next municipal election?' And this will be answered by 'Yes,' or 'No.' If a majority of the registered voters vote 'Yes' an election for mayor will be held at the following city election.

"Whether recalled or not, the mayor holding office will have his name on the ballot at the city election unless in writing he requests the election commissioners not to place his name on the ballot. The mayor then elected will hold office for four years, subject to recall at the end of his second year.

"The city council will consist of nine members, all elected at large. The salary will be \$1500 each. In the election on January 11 the voters may vote for nine candidates, and the nine receiving the highest votes will be declared elected. The three highest will have three-year terms, the three next highest will serve for two years and the next three for one

year each. Each year thereafter three candidates-at-large will be elected, and the voters may vote for three. All members of the city council will be elected at large, and there will be no ward members of the body. By the abolition of party designations no primary elections or caucuses for municipal offices will be held.

"All candidates for mayor, city council and school board must be nominated by papers of not less than 5000 registered voters. No voter may sign more than one paper for mayor, not more than nine for council for the first election and for three candidates thereafter, and not more than two papers for the school board when there are two members to be elected.

"If a candidate for any of the offices decides to withdraw from the contest before the election, vacancies in nominations for any cause may be filled by a committee of not less than five persons authorized in the nomination papers to fill such vacancies.

"Members of the street commission, formerly elected at large, will be appointed by the mayor, subject to approval by the civil service commission, but without restriction as to their political affiliation. All department heads will be appointed by the mayor, subject to approval by the civil service commission.

"The new municipal year will begin on the first Monday in February, when the mayor and city council will be inducted into office."

The election, held at the appointed time, January 11, 1910, was managed so badly as to divide the vote of the reforming element between three candidates, against one, the former Mayor, Fitzgerald, whose scandalous administration had afforded the prime incentive to the reform movement, and thus giving opportunity for his election by a small plurality. A

committee of the reform leaders had chosen for their candidate Mr. James J. Storrow, President of the Boston Chamber of Commerce, and strove to concentrate the opposition to Fitzgerald upon him; but the Mayor in office, who had secured renomination, persisted in keeping the field, and won the petty number of 1816 votes, which a little more than sufficed to elect Fitzgerald. The vote given the latter was 47,142, against 45,757 to Mr. Storrow, and 613 to the fourth candidate, Taylor. A recount of the vote was secured, but made no substantial change.

MUNICIPAL GOVERNMENT: California: Charter-framing Power given to Cities.

"All cities in California except the very smallest are permitted to frame their own charters, which become effective upon ratification by the legislature. The cities are quick to avail themselves of this privilege, with the result that almost every possible experiment in municipal organization may be found on trial somewhere in California. That the cities are progressive is shown by the fact that within the past decade every city of any size in the State has remodeled its organization either by a new charter or by far-reaching amendments. A high standard of efficient city organization has been set by the recent charter of the city of Berkeley [adopted 1909], which furnishes a very perfect example of the 'commission' plan. Elections are freed from the influence of national parties, and the possibility of a final choice in the direct primary is sufficient to bring out the entire vote of the city.

"The popular initiative, the referendum, and the recall are now generally established in all the larger cities of the State, but outside of San Francisco and Los Angeles without sufficient use to test their value for good government. In San Francisco the popular initiative has been used more frequently for bad measures than for good. In Los Angeles the spectacular

removal of the mayor in 1909 will doubtless be regarded as a justification of the method of recall."

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San Francisco, California.*

{433}

MUNICIPAL GOVERNMENT: Chicago:
The Municipal Voters' League.

In 1896 there was thought in Chicago of attempting to organize a strictly Municipal Party for action in municipal politics alone, and a conference of citizens appointed a committee to deal with the scheme. The committee decided this project to be impracticable, but its deliberations resulted in the creation of a Municipal Voters' League, acting through a non-partisan committee of nine, whose function was to scrutinize all candidacies and nominations for the City Common Council, and afford information concerning them to voters of all parties who desired the election of honest and capable men. A permanent office force was employed, and thorough investigations made as to the record and character of every nominee for the Council. The results of these investigations were published, with recommendations for or against the respective candidates. The league brought pressure to bear, in the first place, to prevent the nomination of objectionable candidates, and then exerted its influence to defeat such candidates at the polls.

This has been done with such effect in election after election as to produce a remarkable change in the character of the Council. Similar agencies have been brought into action in a number of cities within the few last years, with equally good results.

MUNICIPAL GOVERNMENT:
Chicago's Struggles for a Better Charter.

A body known as the "Charter Convention," made up of delegates appointed by or representing the Governor of the State, the State Assembly, and the several branches and departments of the City Government, was organized in December, 1905, and labored at the framing of a new City Charter until the early part of 1907, when the product of its labors was submitted to the Legislature of Illinois. Some of the main features of the charter were these:

Consolidation in the municipal government of Chicago of the power vested in the board of education, township, park, and other local governments within the city;

submission of propositions to popular vote;

aldermen to be elected once in four years;

the raising of adequate revenue by the issue of bonds and by other means;

the power to own, maintain, and operate all public utilities in the city, including intramural, railroads, subways and tunnels, and telephone, telegraph, gas, electric lighting, heating, refrigerating and power plants;

the parks to be under the management of a city department of parks;

the public-school system to be a department of the city government and under the control of a board of education of fifteen members appointed by the mayor for terms of three years;

the public library to be managed by a board of nine directors appointed by the mayor for terms of six years.

As it went to the Legislature this draft charter represented much compromising of divergent opinions, and, probably, was not really satisfactory to anybody. The Legislature made it less so by amendments, and when it went to the people of Chicago, in September, 1907, for their verdict on it at the polls, they rejected it by 121,935 votes against 59,786.

Early in 1908 the Charter Convention was reassembled and revised its former work, cutting the requisite legislation up into seven distinct bills, with a view to securing better chances of success for some reforms, if the whole could not be won; but the entire lot was killed in the Legislature.

MUNICIPAL GOVERNMENT: The Galveston or Des Moines Plan.
Its Features.
Extent of its Present Trial.

Curiously enough, the present trend of opinion on the question, "What structure of municipal government will lend itself best to the reforms that it needs?" is in a direction that was given to it by accident, about ten years ago. Perhaps nothing short of a great catastrophe, like that of hurricane and flood, which wrecked the city of Galveston, on the 8th of September, 1900, could have broken the conventional pattern on which our cities were constructed so long. At all events, it was that catastrophe which started a crack in the antique pattern first. In improvising for the needs of a desperate emergency, the wrecked community had sense and energy enough to follow the plain instincts of business, and put itself, as a municipal corporation, under the kind of administration that any other corporation would construct. All the folly of localized interests in this and that part of the town, requiring to be "represented" by ward aldermen, went out of their heads. Their common calamity compelled them to understand that particular interests within the narrow bounds of a civic commonwealth are either included in or superseded by the common interests of the whole. They acted accordingly;

dismissed their locally representative aldermen, dropped their old corps of administrative functionaries, and put the undivided management of their affairs into the hands of five commissioners, with a "mayor-president" at the head.

It would not seem to have needed much political wisdom to predict the success of this experiment; but the quick effect of its teaching was more than there could be reason to expect. Houston, the near neighbor-city, was prompt to receive and apply the lesson, but bettering it somewhat. For Houston employed the whole time of its five business managers, paying them fair salaries for the service; whereas Galveston contented itself with less service and paid less.

The two examples then presented, of a municipal corporation conducting its business in the plain mode and by the plain methods of the commercial corporations, drew increasing attention, in all parts of the country, west and east. Boston was soon discussing the Galveston experiment with deep interest, and at a meeting of the highly influential Economic Club of that city, in January, 1907, President Eliot, of Harvard University, declared that he saw in it the dawning of a brighter day. "We have got down very low," he said, "in regard to our municipal governments, and we have got dark days here now, but we can see a light breaking, and one of the lights broke in Galveston. I have personally been interested in the enormous improvement in just one branch of municipal business in our country within the last ten years—that is, school boards and school administrations. There has been a real wave of reform sweeping over the country, in the great cities particularly, with regard to school boards, and every bit of that experience goes the way I am describing it.

{434}

It is all in the direction of a few men not paid, originally determining the general policy of the schools of the city and trusting entirely to experts for executive action. Our whole experience in Massachusetts with the commissions we have had,

tends the same way. If we ask what have been the best performances of the governmental functions in Massachusetts for the last twenty-five years, we have but one answer to make, namely, the work of our commissions, water, sewage, railroads, gas and electric lighting, public libraries where owned by the city, hospitals where owned by the city. You can think of numerous instances in Massachusetts where admirable work has been done by commissions acting on the principles which I have described. I say the day is dawning. What it needs, that the light may grow and get to full noon, is that the people, the great body of the people, should be convinced that municipal government means nothing but good, intelligent conduct of business."

Meantime, in the West, action was already following study of the Galveston plan of city government, and the four states of Iowa, Kansas, North Dakota, and South Dakota passed acts in 1907 to enable the adoption of it by any city so desiring. One of the first to exercise the privilege was the city of Des Moines, Iowa, certain of whose progressive young business men had been studying the municipal problem of late, and who had determined to bring some system of local government into operation that would make their city what it ought to be. On the basis of the Galveston plan they worked out the details of a charter which has become the model of its species most widely accepted, so that more has been heard latterly of "the Des Moines Charter" than of "the Galveston Plan." What is called the Des Moines charter, however, was no special enactment for that city, but a legislative frame of municipal government which any city in Iowa having not less than 25,000 inhabitants may fit itself into.

It confides the whole management of strictly local affairs in the city to four councilmen and a mayor, all elected by the voters of the city at large. It divides their administration into five departments, namely:

The department of Public Affairs;

The department of Accounts and Finances;
The department of Public Safety;
The department of Streets and Public Improvements;
The department of Parks and Public Property.

The mayor, by virtue of his office, is chairman of the council. He is also superintendent of the department of public affairs, and exercises a general supervision over the whole of the city administration.

The council thus composed, with the mayor at its head, is invested with all executive, legislative and judicial authority, formerly exercised by perhaps twelve different officers, and twelve different boards. It appoints the city attorney, the city treasurer, the city auditor, the city engineer; and, in fact, every other appointive official. It makes every appropriation, and conducts the entire affairs of the city. "At the first meeting of this council, immediately following the election of its members, the work of the city is assigned to its most appropriate department; to one of these five departments. Each of the members of the council is also named as superintendent of a particular department; the theory of the law being that the man who is best qualified, by reason of his experience and training, will be placed at the head of that department where his training and experience will be of most value. As superintendent of this department, he is held strictly accountable for all matters which come within his jurisdiction; he is also charged with responsibility for all that is done or not done in his particular department." In the nomination and election of this important council, no party names are permitted to be connected with the candidates, in any manner whatsoever. Each candidate for the office becomes so by the filing of a petition with the city clerk, bearing the signatures of not less than twenty-five citizens, who make affidavit to the effect that the man is of good moral character, of age, and qualified to fill the office. "Ten days before the election is held, the city clerk takes the

petitions which have been filed and prepares the ballot. He does this by arranging the names of candidates in alphabetical order. The candidates for mayor are arranged under the heading 'Mayor'; the candidates for councilmen are also arranged in alphabetical order under the heading 'Councilmen.' There is no party designation, and because of this alphabetical arrangement there can be no favorite position on the ballot. The result is, that the candidate comes before the whole people of the city on his own merit, and on his own record."

As a citizen of Des Moines has described the proceeding, "after the primary has been held the general election is called, and in order to secure names for the ballot in the general election, we take the two candidates who have received the highest number of votes for mayor at the primary, and place their names on the ballot. In order to secure the councilmen, we take the eight candidates for councilmen who have received the highest number of votes at the primary and place their names on the regular election ballot. This gives us two opportunities to weed out undesirable men. In the first place, we have the choice among all candidates at the primary. At the election, we have the choice of one of two men for mayor, and the choice of four out of eight candidates for councilmen."

A most important provision of this Iowa charter for cities has to do with the civil service. "At the first meeting of the city council, after the election of these five commissioners or five councilmen--they are not commissioners—they appoint a civil service board composed of three members, and this civil service board, in whose charge is placed the work of preparing a civil service examination, is appointed for a period of six years. Thus they are removed from any influence that might be exerted by the councilmen, who are only elected for two years. This civil service commission prepares once a year an examination for all employees of the city, with the exception of unskilled labor and the heads of the departments, such as

city attorney, city treasurer, city assessor, etc. (all of whom are appointed by a majority vote of the council). Having passed the examination successfully, the applicant is placed in a position, and so long as his work is satisfactory and he remains competent, he cannot be removed. He may be suspended, but he cannot be removed, and he is entitled to a hearing before the civil service board. This provision at once takes away all chance of a machine being built up through patronage."

{435}

This is a sufficient description of the official frame of government that has been instituted at Des Moines and other cities of Iowa under a general law of that State. The law goes farther, and connects with this frame or system a supplementary provision of methods for giving the whole body of the people an immediate agency in municipal legislation and a power to recall their election of any elected official during his term. By the use of the Swiss process of "initiative," a sufficient number of voters (25 per cent. of the whole) can propose measures which the Council must either adopt or else submit to the general vote, and can suspend measures adopted by the council until the general body of citizens has voted for or against them. These features, of the initiative, the referendum and the recall, are no more essential attachments to the Des Moines or Iowa form of municipal organization than to any other. To what extent the States and cities making trial of the general features of the Galveston scheme of municipal organization have followed Iowa in making the Swiss additions to it, information at present is wanting. Apparently the Des Moines pattern is having wide acceptance.

In the fall of 1909 the towns in the United States which had adopted the so-called Des Moines plan of government were reported to number 12 in Texas, 7 in Kansas, 6 in Iowa, 3 in

Massachusetts, 3 in California, 2 in Colorado, 2 in Missouri, 2 in Tennessee, 1 in West Virginia, 1 in Mississippi, 1 in North Dakota, 1 in South Dakota, being 42 in all. Movements looking to the introduction of the same system were on foot in other cities. At the November election a draft of charter on the lines of the Des Moines plan was submitted to popular vote in the city of Buffalo, New York, and approved by 8848 electors, out of a total of 11,346 who expressed themselves on the subject. The total vote, however, was only about one-sixth of that cast for candidates at the election. On the strength of the opinion expressed, the Legislature is now being asked to enact the charter. Should it do so, the form of government will have trial in the largest city that has yet introduced it.

MUNICIPAL GOVERNMENT: London, England:

Defeat of the Progressives in the County and Borough Elections.

See (in this Volume)

LONDON: A. D. 1907-1909.

MUNICIPAL GOVERNMENT: Los Angeles, California:

Experiments and Experiences.

Since 1900, Los Angeles, California, has been going through some interesting experiences, due to a series of charter amendments. The former charter of the city had been of the common pattern, organizing the municipal government under a mayor and a board of aldermen elected by wards. The amendments of recent years have created a Board of Public Works, with large powers in the management of municipal work; have changed the Board of Education from a body of nine members elected by wards to a membership of seven chosen from the city at large; have provided an elaborate system of municipal civil service regulation; and finally have provided for a complete system of popular initiative and referendum in municipal legislation, and for recall of elective officers. Popular initiative in

legislation is made possible upon the demand by petition of 15 per cent of the voters, estimated upon the total vote for mayor at the preceding municipal election; referendum in ordinary legislation is required upon a petition of 7 per cent of the voters; a recall election must be ordered upon the demand of 25 per cent of the voters concerned in the filling of the office. The official whom the petition seeks to remove is made a candidate for reelection without other nomination, unless in writing he notifies the city clerk that he is not a candidate.

The recall methods, provided for in charter amendments of 1903, have been put into actual service; first, in 1906, when a councilman was replaced by vote of the Ward, and again in February, 1909, when a recall election was ordered for the office of mayor. The proceedings in this case attracted widespread attention and interest throughout the country. They failed, however, to afford a perfect test of recall methods for the reason that after the election had been ordered but before the date had arrived the mayor in office resigned, thus surrendering without a struggle to the opponents who had sought his removal.

MUNICIPAL GOVERNMENT: Michigan: Home Rule for Cities.

The lately revised Constitution of Michigan authorizes cities and villages to frame, adopt and amend their charters, and to pass laws and ordinances in regard to their municipal concerns. Under this improved Constitution, the Michigan Legislature of 1909 adopted the necessary legislation for the formulation of action and for the limitation of taxes and debts. The following, from the New York *Evening Post*, is a summary of the more important provisions of the Act: "Charters of new cities will be framed by a commission of nine electors chosen by popular vote. Revised charters of existing cities will be framed, after a vote of the electors in favor

of revision (submitted by a two-thirds vote of the local legislative body or on an initiatory petition of twenty per cent. of the total vote cast for Mayor), by an elected commission of one member from each ward and three electors at large. Candidates for charter commissioners are to be placed on the ballot without party affiliations designated. Charter amendments may be proposed by a two-thirds vote of the local legislative body, or by an initiatory petition of twenty per cent. of the vote for Mayor.

"Every charter and charter amendment, before submission to the electors, must be submitted to the Governor of the State, but if disapproved by him, and passed on reconsideration by a two-thirds vote of the Charter Commission or local legislative body, shall be submitted to the electors. Copies of charters and charter amendments approved by the electors of the city shall be certified to the secretary of state, and shall thereupon become a law.

"The law names certain things which each city charter shall provide, and imposes certain restrictions on the powers of cities. There must be an elected Mayor and a body vested with legislative power; the clerk, treasurer, and assessors, and other officers may be elected or appointed. This permits the establishment of a commission system, or of a Mayor and council with distinct powers. Provision must be made for the levy, collection, and return of State, county, and school taxes, for annual appropriations for municipal purposes, and for a system of accounts.

{436}

"Provision may be made for municipal taxes and for borrowing money up to prescribed limits, for the regulation of trades, occupations, and amusements, for the purchase of franchises, for a plan of streets within three miles beyond the city limits, 'for a system of civil service,' for the referendum,

and the following omnibus clause: for the exercise of all municipal powers in the management and control of municipal property and in the administration of the municipal government, whether such powers be expressly enumerated or not; for any act to advance the interests of the city, the good government and prosperity of the municipality and its inhabitants, and through its regularly constituted authority, to pass all laws and ordinances relating to its municipal concerns, subject to the Constitution and general laws of the State.

"Limitations include the following: Existing limits to the tax rate and borrowing powers to remain until a change is authorized by vote of the electors, with a maximum limit of 2 per cent. of the assessed valuation for the tax rate and 8 per cent. for loans; but, as authorized by the Constitution, bonds may be issued beyond this limit for public utilities, when secured only upon the property and revenues of the utility. A sinking fund must be provided for bonds. A charter or charter amendment may not be submitted oftener than once in two years. The salary of public officials may not be changed after election or appointment. Certain municipal property may only be sold or vacated when approved by three-fifths of the electors voting thereon.

"A separate act was passed for villages. This follows the main features of the law for cities, but is briefer."

MUNICIPAL GOVERNMENT: New York City: A. D. 1901-1909.
The Municipal Elections of 1901, 1903, 1905, and 1909.

See (in this Volume)
NEW YORK CITY.

MUNICIPAL GOVERNMENT: New York City: A. D. 1905-1909.
The Working of the Bureau of Municipal Research.

The Bureau of Municipal Research, instituted in New York City by an organization of citizens in 1905, has proved to be as effective an agency as has ever been employed for the straightening of crookedness and the correcting of negligence in the conduct of municipal affairs. Its working is described fully in an article which appeared in the *Atlantic Monthly* of October, 1908, by the head of the Bureau, Dr. William H. Allen, under the title, "A National Fund for Efficient Democracy." What the writer aims to do, and does most effectively, is, first, to show how inefficient our democracy is in its practical working, how demoralizing that inefficiency is, how feebly education and religion are struggling against its demoralizations, so long as they do not work to make government efficient; and then he unfolds the remedy indicated in results obtained already from the public enlightenment—the citizen education—which the Bureau of Municipal Research is developing in New York. His final purpose is to plead for the great national fund that would establish a central foundation for the extending and organizing of similar educational work throughout the country at large.

The simple object of the New York Bureau of Municipal Research has been to make and to keep the public acquainted with the working of things in its government; to make and keep it attentive to the facts of efficiency or inefficiency in that working, which proves to be the kind of political education that bears the most practical fruits. The aim of the bureau, says Dr. Allen, has been "educative, not detective. Infinitely more interested in pointing out what is needed than what is wrong, it realizes that the great problem of democracy is not the control of the officer, but the education of the citizen. It began, not by laying down principles of government or discussing men, but by studying the needs of the community and its official acts. It would educate democracy in facts about democracy's acts and methods, democracy's need, and democracy's opportunity." Something of the results achieved is

set forth in the following passage:

"Three years, \$150,000, and scientific method, have accomplished results surpassing all dreams of those who outlined its programme. So convincing are these results that onlookers who said three years ago, 'The tiger will never change its stripes,' are now saying, 'You could hardly do this in cities where the tiger marks are less obvious.' Although many phases of municipal administration have not yet been studied, there is hardly an obstacle to efficiency and honesty that has not been encountered and overcome by light. The real-estate bureau that eluded all graft charges is being reorganized to prevent either graft or one hundred per cent. profits for land sold the city at private sale. While its own staff, consisting of three investigators in 1907 and 40 in the summer of 1908, can of itself do no inconsiderable educational work, the bureau gauges its effectiveness, not by what its own staff accomplishes, but by what the city's staff of 70,000, and through them the city's population of 4,000,000, are enabled to accomplish because of its educational effort.

"Methods that manufacture corruption and inefficiency, and that for 50 years defied political reform, are giving way to methods by which 70,000 employees must tell the truth about what they do when they do it, about what they spend when they spend it, in clear, legible form. ... Tammany officials, when interested, make excellent collaborators. The commissioners of accounts, for 30 years, through reform and Tammany administrations alike, a whitewashing body that condoned and glossed over wasteful and corrupt acts, have become, as a direct result of the bureau's work, a great educational agency."

MUNICIPAL GOVERNMENT: New York City: A. D. 1909.
Proposed New Charter, not acted on in the Legislature.

A Commission appointed for the purpose by Governor Hughes,

after long and careful study of the subject of a new charter for Greater New York, reported in March, 1909, submitting a recommended draft, which was submitted to the Legislature then in session, but obtained no action from that body before its adjournment. The ruling principle in the work of the Commission had been that of reducing the number of elected administrative officers, of putting into separate hands the power to appropriate and the power to spend money, and of concentrating power and responsibility in a few.

{437}

As originally organized, the "Greater New York" City is divided into five boroughs. At the head of each borough is a Borough President, who has charge of the streets and the public buildings within the borough. There is also a Board of Estimate and Apportionment, consisting of the Mayor, Comptroller, the President of the Board of Aldermen, and the Borough Presidents. There is also a Board of Aldermen. The Commissioners proposed that the Borough Presidents shall cease to have administrative functions and shall devote their attention exclusively to the great financial work of the Board of Estimate and Apportionment; that the administrative work be given to heads of departments responsible to the Mayor, and to bureaus, some of them under the Board of Estimate and Apportionment and some under the various departments; and that the Board of Aldermen be supplanted by a Council of thirty-nine members to serve without pay; to have enlarged legislative powers, but none connected with the grant franchises, which the Board of Estimate and Apportionment should control. A new Department of Street Control was proposed, to take over all street work, abolishing the Street-Cleaning Department.

MUNICIPAL GOVERNMENT: Philadelphia: A. D. 1905.

A Temporary House Cleaning of the Municipality.
Mayor Weaver's Conversion.

"Philadelphia has reformed. It is the swiftest and most

thorough municipal revolution known in American civic annals. Without an election and without primaries, without warning and without preparation, the great deep of small householders,—which is Philadelphia,—moved from below. When the work was over, Mayor Weaver, who led the revolution, had not only changed the heads of the two executive departments, with ten thousand employees, but he was in full control of City Councils; he was recognized as the head of the city Republican party organization; he had forced the city Republican committee to withdraw the local ticket already nominated and await the choice of another ticket by the reform leaders; he had begun criminal prosecution, stopped work on contracts for filtration plants, boulevards, and highways amounting to some twelve million dollars, beginning a searching investigation by a board of expert engineers, and had defeated two grabs, one a contract for seventy-five years in gas and the other a street-car grab of one hundred and ten miles of streets, sought by the two local public-service corporations, the United Gas Improvement Company and the Philadelphia Rapid Transit Company. Both had been successfully passed before this revolution broke, and both were recalled, on the demand of the mayor, by the same councils that had passed them.

"The coherent homogeneous vote of the myriads of small homes which make up Philadelphia has made this sweeping victory possible against great odds. The party majority in Pennsylvania and Philadelphia is the strongest in the country. The city machine is as well organized as Tammany Hall. It holds city, State, and federal patronage. For ten years it has without challenge chosen the executive officers at Harrisburg and Philadelphia and held the Legislature and Councils. The city ring, in a decade of unchecked rule, has issued \$40,000,000 of city bonds; let on the filtration plant alone \$13,660,000 of contracts; as much more on various public improvements, and had pending work authorized, but not let, costing about \$30,000,000. The criminal investigation already

made indicates that on the filtration-plant contracts alone the margin of loose profit is from 28 to 30 per cent. In this period the city gas works have been leased for a term ending in 1927, on provisions which yield \$2,000,000 a year, twice the expected profit to the lessee, the United Gas Improvement Company. The other public-service corporation, the Philadelphia Rapid Transit Company, has had a free gift of a subway and over two hundred miles of street without payment and without limitation. The combination, under an antiquated law which threw no safeguards about the ballot of a venal vote controlled by machine office-holders of the great corporations, railroad and public-service, and of a corrupt combination of contractors and politicians, seemed omnipotent. By the adroit use of State and city appropriations for private charities and educational institutions, the respectable were placated. The leaders of this organization were also wise enough to meet reforms non-political halfway. The last State legislature passed excellent sanitary legislation, reorganized on sound lines the city schools of Philadelphia, passed efficient child-labor laws, and at many points improved State legislation. Carefully separating political management and elected officers, the leaders of the machine chose judicial candidates usually unexceptionable, and elected as governor of the State and mayor of Philadelphia men honest, dull, highly respected, without stain but pliant.

"In April, so far as Philadelphia was concerned, self-government seemed to have disappeared. Its charter was amended, in the teeth of universal protest, so as to rob future mayors of all powers. Senator Boies Penrose and Insurance Commissioner Israel W. Durham made all nominations, State and city. The former awaits investigation. Durham has been shown to be a silent and secret partner in a contracting firm holding \$13,660,000 of contracts, under city ordinances he passed, led by officers he chose, and yielding some 30 per cent. profit. In Pennsylvania and Philadelphia, the corporation pays the machine and the machine aids the

corporation. It is like this in other States, but preeminently in that founded by Penn. After a long series of like gifts and franchises, councils voted the Rapid Transit Company one hundred and ten miles of streets, passed a costly boulevard system, and in return for \$25,000,000 intended for more contracts proposed to lease the city gas works for seventy-five years, postponing reduction in the price of gas for three-quarters of a century.

"This ran the pliant fingers of the machine into the pockets of every householder who had a gas bill to pay, some two hundred and eighty thousand in number. Suddenly this great mass moved from within. The pulpit of small churches knew it before the press, the little division leaders before the ward managers, and they before the chiefs of the organization. In a week, the city seethed. Children of councilmen came crying from the public schools. No one would play with them. Callous, thick-skinned politicians found their mail, their telephones, and their daily tours one hot rain of protest from their old neighbors. Division leaders reported defection by the avalanche.

{438}

The small householder, the narrow burgher, comfortable, contented, owning his house, careless over ideals, education, corruption, and venal voter, was aflame over a bigger gas bill. It is the old story of ship money and stamp taxes. No vote was necessary. No primary was needed. The leaders of a political machine are ignorant of much, but they know the voice of the voter in the land. John Weaver, the mayor, chosen by the machine, and its lifelong friend and supporter, had been a fair case lawyer and district attorney. Honest, narrow, clean-lived, of a legal mind, restive at the way he was treated as a mere figurehead, he recognized the civic revolution because he was himself of the class that had risen. He had, moreover, in his day won his division and was a ward leader."

American Review of Reviews,
July, 1905.

The Israel W. Durham referred to above, who was the absolute "boss" of Philadelphia from 1896 to 1905, died on the 28th of June, 1909.

See, also,
PENNSYLVANIA: A. D. 1906.

MUNICIPAL GOVERNMENT: A. D. 1909.

The old Evil Conditions revived.
Defeat of Revolt against them.

The old mastery of the City Government by an all-powerful and shameless political "machine" was recovered at the end of the term of Mayor Weaver, and conditions were soon as rotten as before the momentary and partial cleansing had been performed. In 1909 a hopeful revolt against them was undertaken, under the lead of D. Clarence Gibboney a young lawyer who as secretary of an active "Law and Order Society," had shown inspiring powers of leadership and high qualities of sincerity and resolution. Gibboney had been put forward for District Attorney in 1906 on Democratic and Independent tickets, and had suffered defeat. Now he was brought again to the front, for that office, from which the plunderers of the city could be most advantageously attacked. A William Penn Party had been organized in the interest of reform, and his nomination by this was endorsed by the Democratic organization. A great effort was made to rouse the conscience and the self-respect of the city, to throw off the thralldom of blind partisanship under which it submits to be corrupted and robbed. But the effort failed. Gibboney was rejected by a majority of about 40,000 voters.

MUNICIPAL GOVERNMENT: Pittsburg:
Achievements of a Reforming Mayor.

George W. Guthrie became Mayor of Pittsburg in 1906. "When Mayor Guthrie went into office there was no merit system in Pittsburg; but he soon established an effective one of his own, and at the 1907 session of the Pennsylvania Legislature effectively co-operated with the Pennsylvania Civil Service Reform Association and similar bodies, with Mayor Dimmick, of Scranton, and the business bodies of second-class cities, to secure a law which would permanently establish the merit system in them. He and his colleagues succeeded. A short time ago some one asked the Mayor how many Democrats he had appointed to office. His immediate reply was, 'I haven't the least idea. The question of party has never entered into the matter.' ...

"The tax levied in February, 1906, before Mayor Guthrie assumed office, was 15 mills. That levied in February, 1907, the first under his administration, was 12½ mills. This year, had it not been for the annexation of Allegheny, the city would have required only 10 or 10½ mills. The Mayor's first estimate was 11 mills; but the final figures, as made up by the Finance Committee, showed that the lower figure would have been sufficient. When the Mayor entered office, there was a cash deficit of \$400,000, caused by the payment of bills left over from the previous administration. He closed his first year with a small surplus, and the second (1907) with a large one. The total tax valuation of the old city of Pittsburg is \$599,852,923. Its total bonded indebtedness is \$24,956,001, and its net indebtedness (arrived at by deducting bonds in the saving fund) is \$16,532,425, or .0275 per cent of the valuation. This highly desirable financial result, however, has not been reached by any false economy. Inadequate salaries have been raised. All the street repairing for 1907 was paid for out of the tax levy, and the work on the filtration plant has been pushed unceasingly. Enough of the filter beds are finished to provide for present needs, and as soon as they are 'ripened' and the pumping machinery rearranged the city will

have filtered water. ...

"For many years, under the old regime, Pittsburg had been free from many of the evils of an open city; but a syndicate of Councilmen and politicians had made immense sums out of the business. They controlled the leases of the houses, which they sublet at exorbitant sums. They also controlled the supplies which were furnished to them. The Mayor issued but one order for the regulation of this district. He made no attempt to solve the entire problem. As the law was plain about the sale of liquor, he declared that that must stop absolutely; and that no house could be run on streets on which there were surface cars. This order proved to be the death-blow of the combination that had previously existed. The politicians, when they heard the order, laughed. They had fooled every other Mayor, and they thought they could fool Guthrie. He would need Councils and must necessarily 'deal' with them. But he needed no one, and he 'dealt' with no one. He waited six weeks for his warning to be taken, and then he acted. One Saturday night the police drew a net around the district, and over one thousand arrests were made. Then came the final blow that stopped political interference. Under the old system police magistrates had been in the habit of holding fines or delaying sentences, which, under the pressure of political influence, were remitted or suspended. Such money as was paid in was held for a month before being turned over to the city treasury. ...

Mr. Guthrie established the rule that all fines and jail sentences, once imposed, would have to stand unless revoked by the county courts. Not only have the revenues of the city largely increased by this policy, as we have already seen, but one of the greatest sources of political evil has been removed. Since this policy was inaugurated there has been no political or machine interference in the administration of the law. Incidentally, I may mention that one Councilman went to jail for his complicity with the protection of the social evil.

"The situation in Pittsburg is so changed and improved that the Secretary of the Civic Voters' League was able to say recently; 'While we have forced Councils to be good, elected the best Mayor in the country, put in county offices men of ability and honesty, forced the politicians to give us a good civil service measure, I am convinced that our most important victory has been to convince the political leaders and bosses that there is a new era in politics, and that for the future none but the best men can be elected to public office.'"

***Clinton Rogers Woodruff,
A Mayor with an Ideal
(The Outlook, April 25, 1908).***

MUNICIPAL GOVERNMENT:

Defeat of the Reforming Mayor in 1909, but no Discouragement of the Reforming Activity of the Voters' League.
Unparalleled Success in convicting Bribed Officials and their Bribers.

Mayor Guthrie, nominated for reëlection in 1909, was defeated by the nominee of a corrupt party "machine"; but this put no check on the efforts of the Voters' League behind him to hunt down the corrupting influences and agencies which had mastered the city once more. A fortunate accident gave the League a single clue to the hidden labyrinth of rascality, and it sufficed for astounding revelations. It tracked and caught, first, a single ex-Councilman, who had handled large sums of bribe-money, receiving and dividing it among his fellow members of a gang known as the "Big Six." This man, John P. Klein, when he found himself helplessly in the toils, and likely to be the scape-goat for all his confederates and their corrupters, made confessions which uncovered much, if not all, of the bribe-giving and bribe-taking of several past years. Down to the 23d of March, 1910, when the following summary was

published, the results coming from this confession had been as follows:

In penitentiary—

W. W. Ramsey, ex-president of the German National Bank;
William Brand, ex-president of the Common Council;
Joseph C. Wasson, ex-Councilman, and H. M. Bolder.

Under sentence to the penitentiary—

John F. Klein, ex-Councilman.

Awaiting disposition of their cases—

E. H. Jennings, president of the Columbia National Bank, and
F. A. Griffin, cashier, who pleaded *nolo contendere*.

Under indictment—

Forty-one Councilmen.

Confessors of bribe-sharing—

Twenty Councilmen, former and present, Select and Common.

More confessors awaiting turn—

Ten former and present Councilmen.

As this goes to the printers, the bribe-givers, including some of the multi-millionaires of Pittsburg, are being dragged into court.

MUNICIPAL GOVERNMENT: St. Louis: A. D. 1900-1940.

The Unearthing of Thievery and Corruption

by Circuit Attorney Folk.

Prosecutions, Confessions, and Convictions.

One of the most notable and effective cleansings of a corrupted municipality that has occurred in the United States was accomplished in St. Louis by Joseph Wingate Folk, using the powers of the office of Circuit Attorney of the City, to

which he was fortunately elected in the spring of 1900. That bribery was active among the Aldermen and Councilmen of the two chambers of the municipal legislature, and that unscrupulous men of business were habitually employing it to secure iniquitous franchises and jobs, appears to have been a matter of common belief; but the belief had not roused feeling enough to bring about any change, until the opportunity to act was given to Mr. Folk.

One notoriously suspicious transaction, which consolidated the street railways of the city, was outlawed for all but a single actor in it by the Missouri statute of limitations, which bars criminal proceedings after three years; but the one man had been absent from the State during so large a part of those three years that he could be reached by the law, and the Circuit Attorney turned the search light of a grand jury investigation on his case. This man, R. M. Snyder, of Kansas City, was indicted, arrested, and held for trial under bonds of \$50,000. From that beginning Mr. Folk went on to the probing of a more recent franchise grant, and unearthed the fact that two deposits of cash, for sums of \$60,000 and \$75,000 were boxed in safety deposit vaults, each guarded by duplicate keys held on one side by a corporation agent, and on the other side by agents of the Council and the Aldermanic body respectively, waiting for distribution among the officials who had sold the public franchise for those sums. A rival corporation had, meantime, attacked the legality of the grant, held it up by an injunction, and so kept these corruption funds in suspension between the bribers and the bribed.

By what resolute persistence, what shrewdness, what bold ventures of surmise, Mr. Folk uncovered the cunningly secreted facts, terrified the "boodlers" and the bribers into betraying one another, and fastened their crimes upon them, cannot be told here. Two of the wealthy buyers in the rascally trade, a Mr. Turner and a Mr. Stock, became witnesses for the State

against the men whose crime they had bought. The two agents for Aldermen and Councilmen, who held the keys of the deposited bribe, J. K. Murrell and Charles Kratz, fled to Mexico, forfeiting their bail. Three others of the accused, Emil Meysenberg, Julius Lehmann and Harry Faulkner, were tried, convicted and sentenced to imprisonment for three and two years. The escape of Murrell and Kratz beyond reach of extradition embarrassed the prosecution of the remaining confederates, who seemed likely to go free for lack of sufficient evidence; but unexpectedly, in September, 1902, Murrell reappeared in St. Louis, saying that he could not endure exile any longer and was ready to bear the penalty of his wrongdoing. On his confessions eleven aldermen were arrested, charged with bribery in two cases and with perjury before the grand jury. Seven others made successful flights.

In the course of the next year another of the refugees from justice returned, supposing his time of danger to have passed. This was Charles F. Kelly, who had been Speaker of the St. Louis House of Delegates and a ready tool of Edward Butler, the St. Louis political "Boss" and legislative broker. Butler had been involved in the prosecutions, and Kelly had fled to avoid giving testimony against him, being paid, as he confessed finally, \$50,000 for his retirement into obscure foreign parts. What happened to him later, and what confessions he made were the subject of a brief story in THE OUTLOOK of November 5, 1904, in part as follows:

{440}

"Returning when it was believed that his patron was secure through the operation of the statute of limitations, Kelly was arrested and sentenced to two years in the penitentiary for perjury in his testimony in one of the boodle cases. He appealed to the Supreme Court, and meanwhile was rearrested on the charge of accepting a bribe in another deal. At, this juncture he complained that Butler had deserted him and had

advised him to plead guilty. 'It didn't look right,' he said in an interview, 'that we should take our medicine and that he should go free.' Therefore he determined to relate his dealings with Butler in the bribery cases. In his statement he says that he has reason to believe that boodling had been in progress in the St. Louis Municipal Assembly for the last twenty-five years. The boodlers did not fear exposure, because they 'knew that most of the politicians and many of the large financiers of St. Louis' would be with them. One prosecutor who attempted to bring them to justice was 'bluffed off.' When Mr. Folk began his work, there were threats of assassination, and finally a deliberate plot was arranged to ruin the prosecutor's influence by falsehoods. 'Prominent financiers' as well as the boodlers were engaged in this attempt, according to the confession.

"The general scheme of the boodle 'combine' is already fairly well known, but Mr. Kelly adds some interesting details. There were nineteen members, and the combine was 'not along party lines.' 'My experience,' he remarks, 'has been that boodlers line up according to their interests, and not under party standards.' The members of the combine held regular meetings, and decided by a majority vote on the prices to be charged for various measures. There was a 'fixed schedule of prices' for bills in accordance with the value of the privileges to be given. The combine rarely sold out for less than a thousand dollars, though once 'some of the boys took five dollars each, but were so ashamed of it they would not speak of it afterwards, because the price was so small.' The combine was in the habit of selecting one of its members to act as agent in the deals, and only in one or two instances did the representative prove untrustworthy. 'Among ourselves,' says this frank boodler, 'we had a high code of morals, and it was considered extremely dishonest for a member of the combine to accept bribe money without dividing it among his fellows.' A particularly interesting feature of the confession is the warning which it gives to St. Louis of the danger of a relapse

to the old conditions when Mr. Folk's term as Circuit Attorney shall have expired. Kelly asserts that Butler advised his indicted friends to get continuances until a new Circuit Attorney should be elected, and that he promised them that the prosecutor should be 'his man.' 'What,' asks Kelly, 'has been done in St. Louis? Nothing at all. The prosecutor has, after three years' fighting, whipped us. But it seems to me, such is the condition of public sentiment in St. Louis, that when the new prosecutor, who of course will be Ed Butler's man, takes charge, boodlers will be in clover again.' In his opinion the great trouble is that 'so many of the large corporations of the city are mixed up in boodle one way or another' that the town is willing to tolerate corruption."

Here, as in all exposed cases, the power to organize "boodle" or "graft" in municipal government is found to have been derived from the "machines" of the national political parties.

The exhibit of character and ability made by Mr. Folk in his extraordinary enforcement of law in St. Louis, to the overthrow of the stronghold of municipal thieves and corruptionists, so commended him to the people of Missouri that they nominated and elected him Governor of the State in 1904, despite the most desperate endeavor of the party organizations to defeat him. In his higher office he continued his work of reform.

MUNICIPAL GOVERNMENT: SAN FRANCISCO: A. D. 1901-1909. The Struggle with Political Corruption.

"Before the enactment of the charter of 1899 the mayoralty in San Francisco had little power, and successive political bosses had ignored it. Instead of this, they aimed to control the municipal Board of Supervisors, which had the awarding of contracts and franchises. The charter of 1899 changed all this, by concentrating vast powers of appointment and removal in the mayoralty, the office being filled by biennial

election. The office was ably and honestly administered for the first two years by Honorable Jas. D. Phelan.

"During the latter portion of Phelan's term there occurred a long and bitter industrial struggle, known as the 'Teamsters' Strike,' in which the sympathy of other labor organizations was deeply stirred. At the request of the employers Mayor Phelan consented to placing the city police upon drays and wagons as guards for non-union drivers. This action aroused violent denunciation on the part of the union labor leaders. It also served as a political object lesson. It was seen that to gain possession of the mayoralty in the interest of union labor would be a great political advantage, especially in a recurrence of industrial strife.

"In the following election (1901) Eugene E. Schmitz, orchestra leader at the Columbia theatre and head of the musicians' union, the candidate of the union labor party, was elected mayor by 21,776 votes as against 30,365 votes somewhat evenly divided between the Republican and the Democratic candidates. Two years later (1903) Schmitz was reelected in the same way, and in 1905 he was again successful, this time securing a large majority over the fusion candidate nominated by the Democratic and Republican parties combined. Throughout the whole period Schmitz's chief political manager was Abraham Ruef, a native of San Francisco, well educated, gifted and ambitious, an adroit politician, previously affiliated with the Republican party. In 1904 he was a delegate at large for California in the Republican national convention at Chicago.

"Almost from the beginning of the Schmitz administration it became recognized throughout the city that the most certain way of obtaining favors from the mayor's office was through the law office of Abraham Ruef, who acted as the legal and political adviser of Mayor Schmitz. Ruef steered a different course from political bosses generally. He kept his office open for all comers, high and low. He was thoroughly

accessible. He welcomed all applicants and dealt out encouraging assurances to every request. It soon became a matter of general belief that under the guise of legal services Ruef was selling licenses, securing special privileges for favored clients and protecting illegal concerns. Ruef's income increased enormously during the Schmitz regime, but to the end he maintained this pretense of 'attorney's fees,' and only a few months before he was indicted for extortion he stoutly maintained before a public meeting that he had never made a dollar out of politics.'

{441}

"In 1905 the grand jury made a thorough investigation of the municipal administration and became convinced of the existence of a wide-spread system of bribery and corruption. In its report to the Superior Court, filed August 19, 1905, it stated: 'that wholesale and wide-spread violation of law is open, notorious and flagrant; that it meets with the acquiescence of the mayor; that it receives the approval of the police commission; that it is aided, abetted and protected by police officials. ... We find that vice and crime have been organized so systematically, and fostered with such vigilant attention to detail, that nothing which business acumen or political expediency could suggest has been neglected or omitted.' For lack of legal evidence, however, or the funds with which to carry on an investigation for securing it, no indictments in these matters were returned.

"The municipal election of 1905 gave to Ruef the control of the Board of Supervisors as well as the administrative departments of the city. The great upheaval in business conditions produced by the earthquake and fire of April, 1906, brought new and wealthier clients to his office. Evidence made public in the later prosecutions goes to show that Ruef was paid to secure from the Board of Supervisors for the United Railroads permission to use an overhead trolley system for

operating its street cars instead of the cable system in use before the fire; that the gas company had bribed the supervisors to raise the price of gas from 75 to 85 cents per thousand feet; and that the telephone companies had used the same means to promote their interests.

"The work of securing the evidence upon which criminal indictments could be based was performed by a few determined men. Rudolph Spreckels, a young man of large fortune, came forward with a pledge of \$100,000 for the expenses of a searching investigation. District Attorney William H. Langdon, who had been elected on the same ticket with Schmitz, announced that he would conduct the inquiry without regard to party affiliations, and appointed Francis J. Heney, assistant district attorney. A man of courage and devotion to public honesty, Heney had gained distinction by the successful prosecution of land frauds before the Federal courts in Oregon. Heney requested and obtained the assistance of William J. Burns, a detective in the United States Secret Service.

"Ruef and Schmitz were soon indicted by the grand jury, charged with extorting money from restaurant proprietors. During the progress of his trial Ruef changed his plea from 'Not guilty' to 'Guilty.' Judgment against him was delayed, however, by the prosecution for the purpose of gaining evidence against others. Schmitz was tried on a similar charge and with the aid of testimony given by Ruef was convicted and [July, 1907] sentenced to imprisonment for five years in the state penitentiary.

"Meanwhile, some of the weaker supervisors having been caught in a trap set for them by Burns, confessions of bribery were obtained by the grand jury from fifteen out of eighteen members of the Board. In return for these confessions the district attorney entered into immunity contracts with the supervisors, and became temporarily the directing power in the municipal government. The office of mayor was declared vacant,

and Honorable. Edward R. Taylor, a learned and conscientious man, a professor in the Hastings College of Law in San Francisco, was appointed to the position. Gradually the whole Board of Supervisors was replaced by honest and experienced men.

"On the confessions of the discredited supervisors there followed a large number of indictments against Ruef, Schmitz and the various officers and employees of the public service corporations concerned in corrupting the city government. By May 25, 1907, the number of so-called 'graft' indictments was 137, against 19 persons. From collateral issues the number of indictments later rose to 160. The indictments against a few of the accused were subsequently dismissed. Five of the original 19 accused persons had been put on trial one or more times previous to January, 1910,—the expiration of the term of office of District Attorney Langdon. These trials were carried on with the utmost rancor on the part of opposing counsel. The greatest difficulties were encountered in securing juries and in several cases juries failed to agree. Throughout the community and in the public prints there developed factional division and bitterness. This factional hatred culminated in acts of violence and terrorism. Two houses in Oakland, Alameda County, one occupied, the other owned by James L. Gallagher, former supervisor and lieutenant of Ruef, later a most important witness for the prosecution, were dynamited and nearly destroyed. For these crimes a culprit was discovered and sent to the state prison for life by the courts of Alameda County. On November 13, 1908, during the trial of Ruef on bribery charges, Mr. Heney was shot from behind while at his post in the court-room by a half-demented sympathizer with the accused. A day later the assassin took his own life while in jail. By the merest chance Mr. Heney's wound proved not to be fatal, and after a few months he returned to his duties.

"Even in the few cases in which convictions were obtained judgment was arrested by appeals to the higher courts, which

uniformly resolved all technical questions in favor of the accused. To the end of 1909, the record of these cases is as follows:

"Number of indictments 160.

"Contracts of immunity 19.

"Tried and acquitted twice:

Tirey L. Ford, attorney for the United Railroads.

"Trials in which the jury disagreed:

Louis Glass, manager for the Pacific States Telephone Co.;

Tirey L. Ford;

Abraham Ruef;

Patrick Calhoun, president of the United Railroads.

"Judgments reversed by higher court,

Eugene E. Schmitz and Louis Glass.

"Plea of guilty nullified by higher court:

Abraham Ruef.

"Convicted, but appeals to higher court in progress:

Abraham Ruef and M. W. Coffey, a supervisor who broke his immunity contract.

{442}

"Thus it is evident that the prosecution has so far failed to punish extortion and bribery by criminal procedure. The real results of the prosecution are to be found in the prompt reform of the municipal government of San Francisco in 1907, and, in a larger way, in an awakened public conscience and a strengthened sense of civic duty. These results are not limited to San Francisco, but are a part of the great work of political regeneration in which the whole country is

concerned.

"The question of further efforts to secure convictions in these 'graft' cases was made a political issue in San Francisco by the candidacy of Mr. Heney for the office of district attorney in 1909. That a large number of voters considered such continued efforts useless or hopeless was shown by his defeat by a decisive majority of 10,000 votes against him."

The new Mayor placed at the head of the City Government by this election was the nominee of the same Union Labor Party which had seated Schmitz and his manager, Ruef, and it was made plain that he represented the opposition to all that had been done and attempted toward municipal reform.

MUNICIPAL GOVERNMENT: Spain: A. D. 1907-1909.
Municipal Reforms.

See (in this Volume)
SPAIN: A. D. 1907-1909.

MUNICIPAL GOVERNMENT: The Transvaal: A. D. 1909.
Introduction of Proportional Representation.

See (in this Volume)
ELECTIVE FRANCHISE: PROPORTIONAL REPRESENTATION.

MUNICIPAL GOVERNMENT: United States:
The "Municipal Program," framed
by the National Municipal League.

"At the joint invitation of the City Club of New York and the Municipal League of Philadelphia, a Conference for Good City Government was held in Philadelphia in January, 1894. Out of this conference grew the National Municipal League, formally organized in New York City in May, 1894. The League includes

in its affiliated membership, the leading municipal reform organizations of the country, and, in its associated membership the leading students of municipal government. At the annual meeting of the League in 1897 held in Louisville, a special committee was appointed 'to report on the feasibility of a **Municipal Program** which will embody the essential principles that must underlie successful municipal government, and which shall also set forth a working plan or system, consistent with American industrial and political conditions, for putting such principles into practical operation; and the Committee, if it finds such **Municipal Program** to be feasible, is instructed to report the same with its reasons therefor, to the League, for consideration.'

"The Committee appointed under this resolution made a preliminary report at the annual meeting of the League held in Indianapolis in 1898, and a final one at the annual meeting of the League held in Columbus in 1899. The Committee did not claim that its report constituted the final word upon the subject referred to it, but its members were convinced, as a result of their studies and investigations, that 'A **Municipal Program**' which would embody the essential principles that must underlie successful municipal government was entirely feasible, and they recommended certain Constitutional Amendments and a general Municipal Corporations Act, as setting forth a working plan or system consistent with American industrial and political conditions, for putting such principles into practical operation. The Committee's recommendations were unanimously adopted by the League at its Columbus meeting."

Horace E. Deming,
The Government of American Cities,
page 203 (G. P. Putnam's Sons, New York).

As originally published, the "Municipal Program" has gone out of print, but Mr. Deming, under an arrangement with the

League, has reproduced it as an appendix to his book, with an explanatory discussion of it. The main objects sought in it are "to clothe the city government with such broad powers as will enable it to perform all the appropriate functions of a local government without resort to the State Legislature for the grant of additional power"; and to "prevent the interference by the State Legislature with the free exercise by the city of the governmental powers granted it." Beyond this, the designers of the "Program" have worked out what seemed to them the most effective plan of organization in municipal government for the exercise of such full powers.

MUNICIPAL GOVERNMENT: WISCONSIN:

Organization of a Municipal Reference Bureau
by the State University.

Within the past year a Municipal Reference Bureau has been organized in connection with the Extension Department of the Wisconsin State University, its purpose being to offer the widest possible use of the material on questions relative to municipal government which the University has collected, by answering inquiries. The Bureau is under the charge of Mr. Ford H. MacGregor, and will work in cooperation with the very useful Legislative Reference Department of the Wisconsin Free Library Commission, which was organized a few years ago and is still conducted by Dr. Charles McCarthy.

MUNICIPAL GOVERNMENT.

See, also, (in this Volume)

ELECTIVE FRANCHISE: UNITED STATES, AND SOCIAL
BETTERMENT.

-----MUNICIPAL GOVERNMENT: End-----

MURRELL, J. K.:
Confessions.

See (in this Volume)
MUNICIPAL GOVERNMENT: ST. LOUIS.

MÜRZSTEG PROGRAMME, The.

See (in this Volume)
TURKEY: A. D. 1903-1904, and 1905-1908.

MUSHIR-ED-DOWLEH.

See (in this Volume)
PERSIA: A. D. 1907-1908 (SEPTEMBER-JUNE).

MUSTAFA FAZIL PASHA.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

MUTINY IN THE RUSSIAN NAVY.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

MUTUAL LIFE INSURANCE COMPANY:
Legislative Investigation.

See (in this Volume)
INSURANCE, LIFE.

MUZZAFER-ED-DIN:
Late Shah of Persia.

See (in this Volume)
PERSIA: A. D. 1905-1907.

MYTILENE, International Occupation of.

See (in this Volume)
TURKEY: A. D. 1905-1908.

{443}

N.

NABUCO, DR. JOAQUIN:
President of Third International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

NACIONALISTAS.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907.

NAGEL, CHARLES:
Secretary of Commerce and Labor.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

NAKAMURA, GENERAL.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

NANSHAN, BATTLE OF.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY),
A. D. 1904-1905 (MAY-JANUARY).

NAPOLEON I.:

Declining Worship of his Memory in France.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907-1908.

NASR-UL-MULK: PRIME MINISTER OF PERSIA.

His exile.

See (in this Volume)

PERSIA: A. D. 1907-1908 (SEPTEMBER-JUNE), AND 1908-1909.

NATAL.

See (in this Volume)

SOUTH AFRICA.

NATHAN, ERNESTO: MAYOR OF ROME.

See (in this Volume)

ITALY: A. D. 1909.

NATIONAL CIVIC FEDERATION, The.

See (in this Volume)

SOCIAL BETTERMENT: UNITED STATES.

NATIONAL CIVIC FEDERATION, The:

Its notable Conference on Industrial Disputes.

Its great Committee for Intermediation and Conciliation.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902.

NATIONAL CIVIC FEDERATION, The:

Its Intermediation in Coal Strike.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

NATIONAL CIVIC FEDERATION, The:

National Conference at Chicago, 1907, on Trusts
and Combinations.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D.
1907.

NATIONAL CIVIC FEDERATION, The:

Its work in Promotion of Trades Agreements.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1908.

NATIONAL CIVIC FEDERATION, The:

Its work for Uniformity in State Legislation.

See (in this Volume)

LAW AND ITS COURTS: UNITED STATES.

NATIONAL CONSERVATION ASSOCIATION.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

NATIONAL FARMERS' UNION.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1909.

NATURAL RESOURCES, The Conservation of.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES.

NATURALIZATION:

Convention between American Republics.

The following Convention was adopted and signed at the Second Conference of the American Republics, at Rio de Janeiro, 1906.

See (in this Volume)
AMERICAN REPUBLICS.

"Article I.

If a citizen a native of any of the countries signing the present Convention, and naturalized in another, shall again take up his residence in his native country without the intention of returning to the country in which he has been naturalized, he will be considered as having resumed his original citizenship, and as having renounced the citizenship acquired by the said naturalization."

"Article II.

The intention not to return will be presumed to exist when the naturalized person shall have resided in his native country for more than two years. But this presumption may be destroyed by evidence to the contrary."

"Article III.

This Convention will become effective in the countries that ratify it three months from the dates upon which said ratifications shall be communicated to the Government of the United States of Brazil; and if it should be denounced by any one of them, it shall continue in effect for one year more, to count from the date of such denouncement."

"Article IV.

The denouncement of this Convention by any one of the signatory States shall be made to the Government of the United States of Brazil and shall take effect only with regard to the

country that may make it."

NATURALIZATION: In the British Empire:
Proposed Uniformity of Law.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

NATURALIZATION: In the United States:
The Question of Treatment of Expatriated Citizens who
visit their Native Country.
The Principle asserted to Germany.
New Law of American Citizenship.-

Consequent on an increasing disposition in Germany to curtail the revisiting of their native country by Germans who had become naturalized citizens of the United States, the American Ambassador to Berlin discussed the subject with the German Foreign Minister, on the 12th of August, 1902, and reported the substance of the conversation to Washington: "Statements were made on the part of the embassy as follows: No sympathy whatever is felt with the person who deliberately emigrates and avails himself of the American naturalization laws for the mere purpose of escaping military service in Germany, and there is no wish on the part of the American authorities to enable such persons to make a convenience of their American naturalization. The embassy has also consistently declined to intervene in behalf of persons whose wish was to make their permanent residence in Germany. It is thought, however, that where German emigrants have fulfilled the conditions necessary to entitle them to 'be treated as American citizens' they should actually be so treated, and when they have emigrated in good faith they should be permitted to sojourn in Germany, for their business or pleasure, to visit at their former homes, or to enjoy the benefits afforded by German watering places, etc., in accordance with the terms of the treaty with Prussia of 1828. The sovereign right of Prussia to expel persons whose

presence is not considered desirable is not contested, but it is thought that the American Government has the right to know why the presence of any American citizen is so considered.

"Dr. Von Mühlberg's attention was called to a number of cases now pending, where naturalized American citizens have received orders to leave the country after a stay of a few weeks. He said that he would take the matter up personally and would communicate with the Prussian minister of the interior in regard to it at once."

{444}

In reply from the Department of State at Washington, the action of Ambassador White was approved, and it was said further: "You should lose no suitable opportunity to press and to emphasize the considerations which you advanced in your interview with Dr. Von Mühlberg. The essence of the right of expulsion which the German States claim is that it should be reasonably and justly applied in cases obviously calling for so extreme a measure. Expulsion should not be invoked indiscriminately, so as to operate as a deterrent to the exercise of the rights of expatriation and acquisition of new allegiance granted under the naturalization treaties, or so as to neutralize, by indirection, treatment stipulated thereafter regarding the recognition of the new national character."

***Papers relating to the Foreign Relations of
the United States, 1902, page 441.***

The doctrine of citizenship stated by Ambassador White on this occasion was embodied subsequently in a new citizenship law, which came into force on the 2d of March, 1907. The new law was based on a report made by an official commission, one of the members of which has written of it as follows:

"When a future historian shall write an account of the

achievements of this the most remarkable administration of our government since the Civil War, he will give prominent place to the naturalization law of a year ago and the citizenship law which was approved last March and is now becoming effective; for these two measures are the culmination of a hundred years of effort for reform, and affect the very foundation of our political structure. ...

"So far as the naturalization law is concerned, the objections to it come chiefly from petty courts throughout the country which are now not permitted to naturalize, and which formerly derived part of their prestige and their fees from naturalization business. Dissatisfaction with the new citizenship law flows from those people who have been living abroad in fancied security of their American citizenship, and who now find themselves obliged to take positive steps to preserve a status which they have heretofore supposed attached to them indefinitely, without the performance of any obligations on their part. Both of these laws originated in the House of Representatives, but each resulted from a report made by executive officers, and the Senate can claim little agency in them. The citizenship law was based upon a report made to Secretary Root by a board of officers of his Department, the members being James Brown Scott, the Solicitor for the Department of State, David Jayne Hill, our Minister at The Hague, and the writer of this article, with Samuel B. Crandall, Ph. D., of the Department as Secretary. ... From this report sprang a bill, introduced in the House by the Honorable James Breck Perkins of New York, which became a law on March 2nd.

"The law does not change or even modify the American doctrine of citizenship. That was already settled by the Constitution and the decisions of the Supreme Court. Anybody born in the United States, no matter what his race, unless he is an Indian living with a tribe, or however ineligible to our citizenship he may be for any other reason, is a citizen of the United

States. ...

"Broadly speaking, an individual becomes a citizen of the United States by birth or naturalization, and these facts have been well settled; but how does he lose American citizenship? This was the question to which the citizenship board chiefly addressed itself, and which Congress settled a few months ago by declaring that an American shall be held to have expatriated himself when he becomes naturalized as a citizen of another country, or when he takes an oath of allegiance to another state, or when he lives permanently outside of the United States without intent to return. ...

"We have had a constantly increasing number of so-called American citizens living abroad—men who have lived in the United States for only five years and in many cases have fraudulently secured naturalization papers after less than five years of residence; who never were really domiciled there; who never have performed any of the duties of American citizenship and who never intended to do so. ... Until the new naturalization law went into effect, it was not actually against the letter of the law for a man to commit this fraud; for, when he applied for citizenship, he was required merely to show that he had resided in the United States for five years, and no inquiry was made concerning his future intentions."

***Gaillard Hunt,
The New Citizenship Law
(North American Review, July, 1907).***

NAVAL CONFERENCE, INTERNATIONAL, AT LONDON, 1908-1909.

***See (in this Volume)
War, The Revolt against: A. D. 1907
(appended to account of Second Peace Conference
at The Hague).***

NAVIES.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

NAVIGATION LAWS:

Proposed British Imperial Policy.

See (in this Volume)

BRITISH EMPIRE: A. D. 1907.

NEERGAARD, M.: PREMIER OF DENMARK.

See (in this Volume)

DENMARK: A. D. 1905-1909.

NEGRO PROBLEMS, IN THE UNITED STATES.

See (in this Volume)

RACE PROBLEMS: UNITED STATES.

NELIDOW, M.:

President of the Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

NETHERLANDS: A. D. 1870-1905.

Increase of Population compared with other European Countries.

See (in this Volume)

EUROPE: A. D. 1870-1905.

NETHERLANDS: A. D. 1902.

Offer of mediation between Great Britain and the Boers.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

NETHERLANDS: A. D. 1903.
Laws against Railway Strikes.
Failure of General Labor Strike to prevent their Enactment.

See (in this Volume)
LABOR ORGANIZATION: NETHERLANDS: A. D. 1903.

NETHERLANDS: A. D. 1903.
Agreement for Settlement of Claims against Venezuela.

See (in this Volume)
VENEZUELA: A. D. 1902-1904.

NETHERLANDS: A. D. 1904.
Military operations against the Atchinese.

A Dutch military expedition against the long-insurgent natives of the old Sultanate of Atchin, in Sumatra, which was said to have carried death to a thousand women and children, gave rise to stormy scenes in the Netherlands when its session was opened in September. The excuse of the Government was that the warriors used the women and children as shields.

{445}

NETHERLANDS: A. D. 1905-1909.
Defeat and Fall of the Calvinistic Party of the
Reverend Dr. Kuyper.
The Suffrage and Education Questions.
The six principal Parties.
Success of the groups of "the Right" in the latest Elections.

Elections to the lower chamber of the States-General, held in June, overthrew the Conservative majority in that body and

gave the Liberals a small majority of 4. An important issue between parties had been on the question of universal suffrage, but the support given to its advocates was not strong enough to justify immediate attempts on their part to carry any measure of law. A royal Commission was appointed, however, to investigate and report generally on the need or expediency of a revision of the Constitution. The defeated Ministry of Dr. Abraham Kuyper represented an ultra-Calvinistic Church element in politics, and its defeat appears to have been due in the main to educational laws which it had carried through. According to the Dutch review, *De Gids*, from which the following has been translated, the aim of the new laws and the objection to them were much the same as in the English controversy over the Education Act of 1902, when church and clerical influences carried the day against the supporters of secular schools. "These educational laws," said *De Gids*, "were unanimously supported by, if they did not wholly originate with, the clericals, or the Anti-Revolutionary party, as they call themselves, of which Dr. Kuyper is the astute and able leader and head. They had the undivided support also of the Catholics, but were strenuously opposed by the Liberals and all the anti-clericals, including the Social Democrats. The Anti-Revolutionists and Catholics on the one hand, and the Liberals and their allies on the other, form, respectively, the Right and Left in the Chambers."

Since 1905 there seems to have been little if any change in the Dutch parties. On the approach of the quadrennial general elections of June, 1909, a correspondent of the London *Times* wrote of "the complex grouping" of the political parties contending in them: "There are six which may fairly claim to be important. The largest is probably the Catholic. It is estimated that a third of the population is Catholic by religion, and of the Catholics a very large proportion belong to the Catholic political party, and vote consistently in accordance with the commands of its leaders. Next to the

Catholics come the strict Calvinists, who have been organized by Dr. Kuyper into a compact and most formidable party, generally called the Anti-Révolutionnaire party. It finds its chief supporters among the rural population and the petite bourgeoisie, and owes its name to the doctrine, sedulously preached by Dr. Kuyper, that the Radical and Liberal parties are fomenting an anti-religious revolution, and that it is therefore necessary to choose between Christianity and Heathenism. This doctrine is generally known as 'the antithesis,' and, though its influence has waned somewhat in the towns, it still has considerable influence in the country. Closely allied to the Anti-Révolutionnaire party is the Christlijk Historisch party, which is more aristocratic, but less energetic, with many principles but no very definite programme. It not infrequently speaks against the Calvinist party, but as a rule joins it when it comes to voting.

"These three parties, Catholic, Anti-Révolutionnaire, and Christlijk Historisch, form the Right. The Left is composed of the Old and United Liberals, the Radicals or Vrijzinnige Democraten, and the Socialists, representing all shades of opinion from what in England might be called Whiggism to extreme Socialism. The questions which really divide these parties, as distinguished from the party cries on which the election is being fought, are Clericalism and Socialism, and a very large proportion of the electors are not quite sure which enemy they most fear. There is no doubt that the Anti-Révolutionnaire party and the Catholics represent two forms of Clericalism, while the Socialists are openly Collectivists. The other parties, with the exception of the Vrijzinnige Democraten, can be better described as opposed to the two extremes than as presenting any clearly marked characteristics of their own."

The first balloting of this election took place on the 11th of June and the second on the 23d. The Anti-Révolutionnaires came out of it with 23, the Catholics with 25, the Christlijk

Historischs with 12, making 60 for the groups of "the Right"; against a total of 40 in the groups of "the Left." Of this minority only 7 were in the ranks of the Social Democrats. Dr. Kuyper was among the defeated candidates.

NETHERLANDS: A. D. 1906.

At the Algeciras Conference on the Morocco Question.

See (in this Volume)

EUROPE: A. D. 1905-1906.

NETHERLANDS: A. D. 1906.

The Second Peace Conference at The Hague convoked by the Queen.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

NETHERLANDS: A. D. 1908 (April).

Treaty with Denmark, England, France, Germany, and Sweden, for maintenance of the Status Quo on the North Sea.

See (in this Volume)

EUROPE: A. D. 1907-1908.

NETHERLANDS: A. D. 1908-1909.

Trouble with Castro of Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1908-1909.

NEW BRUNSWICK: A. D. 1901-1902.

Census.

Reduced representation in Parliament.

See (in this Volume)

CANADA: A. D. 1901-1902.

NEWCOMB, PROFESSOR SIMON.

See (in this Volume)
SCIENCE AND INVENTION:
CARNEGIE INSTITUTION, AND AERONAUTICS.

NEWFOUNDLAND: A. D. 1902.
British Colonial Conference at London.

See (in this Volume)
BRITISH EMPIRE.

NEWFOUNDLAND: A. D. 1902-1905.
Negotiation and Senatorial Destruction of the Hay-Bond
Reciprocity Treaty with the United States.

In November, 1902, a Treaty of Reciprocity which would have settled the long-standing disputes over American rights of fishing on the Newfoundland coast, on terms of most equitable advantage to both countries, and especially favorable to the interests of the general public in the United States, was concluded and signed at Washington by Secretary Hay and the British Ambassador, Sir Michael Herbert. The Premier of Newfoundland, Sir Robert Bond, had taken a principal part in the negotiation, and the resulting document was known consequently as the Hay-Bond Treaty. It secured to the New England fishermen the coveted privilege of buying bait and other supplies and hiring crews in Newfoundland ports; and it admitted the greater part of American manufactures into the island duty free.

{446}

On the other hand, it opened the markets of the United States to the fish and fish products, the coal, oil, and ores of Newfoundland, for the benefit of the consumers of the country. The treaty was hailed with satisfaction by the general public of the United States, but opposed by a few interests whose gains might be lessened if any breach in their monopoly of the

sale of salted fish and coal and oil should be permitted. The majority which has seldom failed of late to be retainable in the United States Senate for the service of such private interests, against the public good, was promptly organized by Senator Lodge, first for pocketing the Treaty throughout more than two years, and finally for amending it to death, in February, 1905. The provisions that made it advantageous to Newfoundland were cut out, and it was reduced to a state which made it insulting as an offer of reciprocity. It suffered the fate which, in late years, is quite certain to befall any project of real statesmanship that has to go through the hands of the United States Senate.

NEWFOUNDLAND: A. D. 1904.

Convention between England and France touching Fishery Rights.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

NEWFOUNDLAND: A. D. 1905-1909.

Renewed Disputes over American Fishing Rights
on the Treaty Coast.

Arrangement of a Modus Vivendi.

Agreement on Questions to be submitted to a Tribunal
of Arbitration at The Hague.

Constitution of the Tribunal.

The endless friction that has attended the exercise of treaty-rights by American fishermen in the Newfoundland fisheries was freshly roughened in the fall of 1905, by a new enactment of the provincial legislature, to prevent the sale of bait or outfits and supplies of any nature to foreign fishermen, and by orders from the Minister of Marine and Fisheries forbidding vessels of American registry to fish on the Treaty Coast. This reopened debate between the State Department at Washington and the Foreign Office at London, over the intentions and meanings of that first article in the

Treaty of 1818 which has been a source of incessant dispute for ninety-one years. The following is the language of the article:

"Article I.

Whereas differences have arisen respecting the liberty claimed by the United States, for the inhabitants thereof, to take, dry, and cure fish, on certain coasts, bays, harbours, and creeks of His Britannick Majesty's Dominions in America, it is agreed between the High Contracting Parties that the inhabitants of the said United States shall have, for ever, in common with the subjects of His Britannick Majesty, the liberty to take fish of every kind, on that part of the southern coast of Newfoundland, which extends from Cape Ray to the Rameau Islands, on the western and northern coast of Newfoundland, from the said Cape Ray to the Quirpon Islands, on the shores of the Magdalen Islands, and also on the coasts, bays, harbours, and creeks, from Mount Joly, on the southern coast of Labrador, to and through the Streights of Belleisle, and thence northwardly indefinitely along the coast, without prejudice, however, to any of the exclusive rights of the Hudson's Bay Company. And that the American fishermen shall also have liberty, for ever, to dry and cure fish in any of the unsettled bays, harbours, and creeks of the southern part of the coast of Newfoundland, here above described, and of the coast of Labrador; but so soon as the same, or any portion thereof, shall be settled, it shall not be lawful for the said fishermen to dry or cure fish at such portion so settled, without previous agreement for such purpose, with the inhabitants, proprietors, or possessors of the ground. And the United States hereby renounced, for ever, any liberty heretofore enjoyed or claimed by the inhabitants thereof, to take, dry, or cure fish on or within three marine miles of any of the coasts, bays, creeks, or harbours of His Britannick Majesty's Dominions in America, not included within the above-mentioned limits: provided, however, that the American fishermen shall be admitted to enter such bays or harbours,

for the purpose of shelter, and of repairing damages therein, of purchasing wood, and of obtaining water, and for no other purpose whatever. But they shall be under such restrictions as may be necessary to prevent their taking, drying, or curing fish therein, or in any other manner whatever abusing the privileges hereby reserved to them."

With reference to the present obstruction to American fishing in Newfoundland waters, the contention of Secretary Root was set forth in the following propositions:

"1. Any American vessel is entitled to go into the waters of the Treaty Coast and take fish of any kind.

"She derives this right from the Treaty (or from the conditions existing prior to the Treaty and recognized by it) and not from any permission or authority proceeding from the Government of Newfoundland.

"2. An American vessel seeking to exercise the Treaty right is not bound to obtain a licence from the Government of Newfoundland, and, if she does not purpose to trade as well as fish, she is not bound to enter at any Newfoundland custom-house.

"3. The only concern of the Government of Newfoundland with such a vessel is to call for proper evidence that she is an American vessel, and, therefore, entitled to exercise the Treaty right, and to have her refrain from violating any laws of Newfoundland not inconsistent with the Treaty.

"4. The proper evidence that a vessel is an American vessel and entitled to exercise the Treaty right is the production of the ship's papers of the kind generally recognized in the maritime world as evidence of a vessel's national character.

"5. When a vessel has produced papers showing that she is an

American vessel, the officials of Newfoundland have no concern with the character or extent of the privileges accorded to such a vessel by the Government of the United States. No question as between a registry and licence is a proper subject for their consideration. They are not charged with enforcing any laws or regulations of the United States. As to them, if the vessel is American she has the Treaty right, and they are not at liberty to deny it.

"6. If any such matter were a proper subject for the consideration of the officials of Newfoundland, the statement of this Department that vessels bearing an American registry are entitled to exercise the Treaty right should be taken by such officials as conclusive."

{447}

On the British side, Sir Edward Grey raised two principal objections to these propositions of Mr. Root: First—that "the privilege of fishing conceded by Article I of the Convention of 1818 is conceded, not to American vessels, but to inhabitants of the United States and to American fishermen;" second, that "inhabitants of the United States would not now be entitled to fish in British North American waters but for the fact that they were entitled to do so when they were British subjects. American fishermen cannot therefore rightly claim to exercise their right of fishery under the Convention of 1818 on a footing of greater freedom than if they had never ceased to be British subjects. Nor consistently with the terms of the Convention can they claim to exercise it on a footing of greater freedom than the British subjects 'in common with' whom they exercise it under the Convention. In other words, the American fishery under the Convention is not a free but a regulated fishery, and, in the opinion of His Majesty's Government, American fishermen are bound to comply with all Colonial Laws and Regulations, including any touching the conduct of the fishery, so long as these are not in their

nature unreasonable, and are applicable to all fishermen alike."

To the first of these objections Mr. Root replied;

"We may agree that ships, strictly speaking, can have no rights or duties, and that whenever the Memorandum, or the letter upon which it comments, speaks of a ship's rights and duties, it but uses a convenient and customary form of describing the owner's or master's right and duties in respect of the ship. ... The liberty assured to us by the Treaty plainly includes the right to use all the means customary or appropriate for fishing upon the sea, not only ships and nets and boats, but crews to handle the ships and the nets and the boats. ... I am not able to discover that any suggestion has ever been made of a right to scrutinize the nationality of the crews." As for the second objection, the American Secretary appealed to history against it. "The qualification," he said, "that the liberty assured to American fishermen by the Treaty of 1818 they were to have 'in common with the subjects of Great Britain ' merely negatives an exclusive right. Under the Treaties of Utrecht, of 1763 and 1783, between Great Britain and France, the French had constantly maintained that they enjoyed an exclusive right of fishery on that portion of the coast of Newfoundland between Cape St. John and Cape Raye, passing around by the north of the island. The British, on the other hand, had maintained that British subjects had a right to fish along with the French, so long as they did not interrupt them. The dissension arising from these conflicting views had been serious and annoying, and the provision that the liberty of the inhabitants of the United States to take fish should be in common with the liberty of the subjects of His Britannic Majesty to take fish was precisely appropriate to exclude the French construction and leave no doubt that the British construction of such a general grant should apply under the new Treaty. The words used have no greater or other effect. The provision is that the *liberty* to take fish

shall be held in common, not that the **exercise** of that liberty by one people shall be the limit of the exercise of that liberty by the other."

As between these chief disputants in the matter, the first result of their exchange of arguments was a ready disposition to arrange some **modus vivendi**, under which peace might be kept on the fishing grounds until fresh undertakings could be planned for a lasting interpretation of the old enigmas in Article 1 of 1818. But the provincial Government of Newfoundland resented bitterly the imperial interference with its measures, charging that it was in violation of a pledge "given by the late Lord Salisbury in the House of Lords in 1891, to the effect that the colony had been given unlimited power with respect to its internal affairs." They were promptly told, however, that what concerned action under a British treaty went considerably beyond the internal affairs of their colony.

Considerable correspondence on the terms of the proposed **modus vivendi** brought an agreement on the 6th of October, 1906, set forth in the following communication from Ambassador Whitelaw Reid to Sir Edward Grey.

"I am authorized by my government to ratify a **modus vivendi** in regard to the Newfoundland fishery question on the basis of the Foreign Office Memorandum, dated the 25th ultimo, in which you accept the arrangement set out in my Memorandum of the 12th ultimo, and consent accordingly to the use of purse seines by American fishermen during the ensuing season, subject, of course, to due regard being paid in the use of such implements to other modes of fishery, which, as you state, is only intended to secure that there shall be the same spirit of give and take and of respect for common rights between the users of purse seines and the users of stationary nets as would be expected to exist if both sets of fishermen employed the same gear.

"My Government understand by this that the use of purse seines by American fishermen is not to be interfered with, and the shipment of Newfoundlanders by American fishermen outside the 3-mile limit is not to be made the basis of interference or to be penalized; at the same time they are glad to assure His Majesty's Government, should such shipments be found necessary, that they will be made far enough from the exact 3-mile limit to avoid any reasonable doubt.

"On the other hand, it is also understood that our fishermen are to be advised by my Government, and to agree, not to fish on Sunday.

"It is further understood that His Majesty's Government will not bring into force the Newfoundland Foreign Fishing-Vessels Act of 1906, which imposes on American fishing-vessels certain restrictions in addition to those imposed by the Act of 1905, and also that the provisions of the first part of section 1 of the Act of 1905, as to boarding and bringing into port, and also the whole of section 3 of the same Act, will not be regarded as applying to American fishing-vessels.

"It also being understood that our fishermen will gladly pay light dues if they are not deprived of their rights to fish, and that our fishermen are not unwilling to comply with the provisions of the Colonial Customs Law as to reporting at a custom-house when physically possible to do so."

To explain the stipulation relative to "purse seines" it should be said that the New England fishermen claimed to be driven to the use of them, by the local regulations which hampered their fishing otherwise.

{448}

As formulated in the note of Ambassador Reid the *modus*

vivendi was accepted by the British Government and went into effect. In due time thereafter the two Governments entered upon a discussion of ways and means for accomplishing a definite and final settlement of the whole question of American rights in the Newfoundland fisheries. The outcome was an agreement signed at Washington on the 27th of January, 1909, to the effect that the following questions shall be submitted for decision to a Tribunal of Arbitration, constituted as subsequent articles provide:—

"Question 1.

To what extent are the following contentions or either of them justified?

"It is contended on the part of Great Britain that the exercise of the liberty to take fish referred to in the said Article, which the inhabitants of the United States have for ever in common with the subjects of his Britannic Majesty, is subject, without the consent of the United States, to reasonable regulation by Great Britain, Canada, or Newfoundland in the form of municipal laws, ordinances, or rules, as, for example, to regulations in respect of

(1) the hours, days, or seasons when fish may be taken on the Treaty coasts;

(2) the method, means, and implements to be used in the taking of fish or in the carrying on of fishing operations on such coasts;

(3) any other matters of a similar character relating to fishing; such regulations being reasonable, as being, for instance—

"(a) Appropriate or necessary for the protection and preservation of such fisheries and the exercise of the rights of British subjects therein and of the liberty which

by the said Article 1 the inhabitants of the United States have therein in common with British subjects;

"(b) Desirable on grounds of public order and morals;

"(c) Equitable and fair as between local fishermen and the inhabitants of the United States exercising the said Treaty liberty and not so framed as to give unfairly an advantage to the former over the latter class.

"It is contended on the part of the United States that the exercise of such liberty is not subject to limitations or restraints by Great Britain, Canada, or Newfoundland in the form of municipal laws, ordinances, or regulations in respect of

(1) the hours, days, or seasons when the inhabitants of the United States may take fish on the Treaty coasts, or

(2) the method, means, and implements used by them in taking fish or in carrying on fishing operations on such coasts, or

(3) any other limitations or restraints of similar character—

"(a) Unless they are appropriate and necessary for the protection and preservation of the common rights in such fisheries and the exercise thereof; and

"(b) Unless they are reasonable in themselves and fair as between local fishermen and fishermen coming from the United States, and not so framed as to give an advantage to the former over the latter class; and

"(c) Unless their appropriateness, necessity, reasonableness, and fairness be determined by the United States and Great Britain by common accord and the United

States concurs in their enforcement.

"Question 2.

Have the inhabitants of the United States, while exercising the liberties referred to in said Article, a right to employ as members of the fishing crews of their vessels persons not inhabitants of the United States?

"Question 3.

Can the exercise by the inhabitants of the United States of the liberties referred to in the said Article be subjected, without the consent of the United States, to the requirements of entry or report at custom-houses or the payment of light or harbour or other dues, or to any other similar requirement or condition or exaction?

"Question 4.

Under the provision of the said Article that the American fishermen shall be admitted to enter certain bays or harbours for shelter, repairs, wood, or water, and for no other purpose whatever, but that they shall be under such restrictions as may be necessary to prevent their taking, drying, or curing fish therein or in any other manner whatever abusing the privileges thereby reserved to them, is it permissible to impose restrictions making the exercise of such privileges conditional upon the payment of light or harbour or other dues, or entering or reporting at custom-houses or any similar conditions?

"Question 5.

From where must be measured the '3 marine miles of any of the coasts, bays, creeks or harbours' referred to in the said Article?

"Question 6.

Have the inhabitants of the United States the liberty under the said Article or otherwise to take fish in the bays,

harbours, and creeks on that part of the southern coast of Newfoundland which extends from Cape Ray to Rameau Islands, or on the western and northern coasts of Newfoundland from Cape Ray to Quirpon Islands, or on the Magdalen Islands?

"Question 7.

Are the inhabitants of the United States whose vessels resort to the Treaty coasts for the purpose of exercising the liberties referred to in Article 1 of the Treaty of 1818 entitled to have for those vessels, when duly authorized by the United States in that behalf, the commercial privileges on the Treaty coasts accorded by agreement or otherwise to United States trading vessels generally?"

Of the remaining articles of the Agreement, IV. and V. provide for the determination of future questions that may arise, and for the composition of the Tribunal of Arbitration, which is to be chosen from the members of the Permanent Court at The Hague.

The agreement above was formulated at a conference in Washington between Secretary Root, Ambassador Bryce, Honourable A. B. Aylesworth, Canadian Minister of Justice, and Attorney-General Kent of Newfoundland. In March the following were chosen from the general membership of the Permanent Court at The Hague to constitute the Tribunal for this arbitration, namely:

Dr. Luis Maria Drago, Argentina;
Jonkheer de Savornin Lohmnan, Netherlands;
Judge George Gray, United States; and
Sir Charles Fitzpatrick, Chief Justice of Canada, with
Dr. H. Lammasch, of Vienna, to be umpire on points of disagreement.

The case for the United States was delivered to the British Embassy at Washington, and that for Great Britain to the American Embassy at London, on the 4th of October. A little

later it was announced that the *modus vivendi* of 1908 had been renewed until the termination of the arbitration proceedings.

{449}

NEWFOUNDLAND: A. D. 1907.
Imperial Conference at London.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

NEWFOUNDLAND: A. D. 1908-1909 (November-May).
Six Months of Political Deadlock.

From November, 1908, until the following May an extraordinary deadlock resulted from a tie between rival parties in the House of Assembly. The situation, as described by a correspondent of the London *Times*, was as follows:

"Each side has 18 seats. Neither, therefore, can elect a Speaker, much less undertake the control of public business, when Parliament meets. Sir Robert Bond, who carried 32 seats against 4 in 1900 and 30 seats against 6 in 1904, returns with only half the House—18 men. In the former contests Sir Edward Morris, who now leads the Opposition against him, had been a member of his Cabinet and his 'right-hand man,' and the November results prove that Morris's withdrawal was a serious injury to Bond. Morris went out a year or so previously owing to a disagreement as to raising the rate of wages on public works, and, being the leading Roman Catholic politician of the Island, had 14 seats, of that creed, as a solid block in Bond's party during all this period. It was therefore felt, when he resigned, that this 'solid 14' would be broken, and this conclusion proved correct, because Morris carried half of them in spite of the open and avowed hostility of many of the priests in the diocese of St. Johns."

Sir Robert Bond retained the Prime Ministry until the end of February, 1909, when, having failed to obtain a dissolution of Parliament and a new election from the Governor, Sir William Macgregor, he resigned. Sir Edward Morris then took office, and the continued deadlock made it necessary, in a few weeks, to command a dissolution and call a new election, which was held on the 8th of May. It broke the tie of parties effectually, Sir Edward Morris carrying 26 seats, against 10 filled by the partisans of Sir Robert Bond.

NEWFOUNDLAND: A. D. 1909.

A Year of Misfortune and Depression.

Scant earnings from the Fisheries and from Whaling.

Attitude of the people toward Confederation with Canada.

"The Fisheries represent fully eighty per cent. of the exports, and in order to understand the financial stringency which has now fairly settled down upon 'Our Cousin to the East' it must be borne in mind that while the catch of fish remains about the same from year to year, the price has been steadily increasing for the past ten years, until last year it was double what it was a decade ago. But this year the price has suddenly fallen to what it was at the beginning of the decade. In other words, the value of last season's catch will be just about half what it was the season before; and, instead of the merchants receiving \$7,800,000 for their fish, they will receive considerably less than \$4,000,000; and the individual fisherman who at the former price was barely able to earn \$350 will receive this year probably less than \$175, on which to support himself and family for the year, and to provide himself with an outfit for the next season's work. Many of course will not receive that much. ... Although other industries are springing up in Newfoundland, the codfishery remains the great staple and dependence of the population—the vast majority of which are fishermen, born and bred, who do not readily adapt themselves to other methods of earning a

living. The present depression is widespread and far-reaching, and every form of industry and trade, business and commerce in the Colony is suffering seriously thereby. The latest ill report comes from Bay of Islands, to the effect that the winter herring fishery on the west coast—the scene of the present controversy with the United States—is a failure. Last spring's seal fishery was not up to the average, and owing to many accidents to the fleet, necessitating heavy outlay for repairs, the promoters have realized much less than they otherwise would have secured. The whale fishery, also, which a few years ago had assumed enormous proportions, and was yielding handsome returns, has now almost reached the vanishing point. To complete the sum of the Colony's misfortunes comes the partial suspension of [iron] mining operations at Bell Island, during the winter months, at the very time when the men need employment most, and when, as a result of the lack of it, they will probably emigrate to other countries.

"This combination of misfortune is not only causing distress among all classes of citizens, but the government will also keenly feel the loss of revenue; for a conservative estimate of the reduction in the customs revenue for the current fiscal year puts the figures at \$450,000; in other words, that the revenue will not exceed \$2,000,000.

"The great drawback in Newfoundland institutions is the disproportion between the big machinery of government and the small population to be governed. A local politician has aptly described it as 'the trappings of an elephant on the back of a rat.'"

***Edwin Smith,
The Land of Baccalhos
(Canadian Magazine, July, 1909).***

Another writer in the same number of The *Canadian*

Magazine discusses the opposition in Newfoundland to union with the Dominion of Canada as follows: "The political leader who should to-day appeal to the Newfoundland electorate on the question of Confederation would be disastrously defeated. But on the day when the leader of a party in the Island Colony makes up his mind to risk temporary defeat for the purpose of accomplishing Confederation, that day brings union between Newfoundland and Canada within the horizon of the proximate future. That leader must—unless the financial exigencies of the Island bring him extraneous aid—face an arduous campaign of education, but it will be a campaign crowned with victory.

"These are the impressions left on my mind by a visit to St. John's made with the object of studying the political deadlock and the causes which led up to it. ... The residents of the outports—all settlements except St. John's are known as outports—are opposed to Confederation because they have been told that it would mean a heavy increase in their taxes; that their windows, all their domestic animals and all their personal property would be taxed. If this wrong impression were dispelled by a campaign of education, and they understood that instead of higher taxation Confederation would mean the opening up of the country, bonuses for the fishermen, and new markets for the fish in Canada and abroad through the services of Canadian Commercial agents, instead of opponents of union they would become its advocates."

{450}

NEWFOUNDLAND: A. D. 1909. (July-August).
The Imperial Defence Conference.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY AND NAVAL.

NEW HEBRIDES: Arrangement between England and France.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

NEW PROTECTION, The.

See (in this Volume)
LABOR REMUNERATION: THE NEW PROTECTION.

NEW YORK CENTRAL RAILROAD COMPANY.:
Fined for unlawful Rebates.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1909.

NEW YORK CITY: A. D. 1897.
Leadership in the Administrative Control of Tuberculosis.

See (in this Volume)
PUBLIC HEALTH: TUBERCULOSIS.

NEW YORK CITY: A. D. 1900-1903.
Beginning of Tenement House Reform.

By a steady process, accelerated in the last ten years, the congested tenement districts of New York have become one great aggregation of sunless and airless rooms. Immense buildings have gone up by the thousands, five, six, and seven stories high, in which practically no provision for ventilation has been made; and in which the occupants are undergoing a slow process of asphyxiation. Nor are these disadvantages confined to the submerged proletariat. The New York tenement system is pervasive. ... Two-thirds of the total population of New York, or 2,500,000 out of 3,500,000, live in tenement houses, a proportion which is increasing every day. ...

"It was not until Governor Roosevelt's appointment of the De Forest Tenement House Commission in 1900 that the necessary

remedial legislation took practical shape. This act itself was the result of many years' struggle against corrupt politicians,—Tammany Hall, the self-appointed guardian of the poorer classes, has been a bitter enemy of tenement reform,—and against vested interests. Its long delay had greatly exaggerated the problem; for meanwhile the conditions described had accumulated in appalling Volume. The commission, however, was of high civic character, and was composed of men, several of whom had made an exhaustive study of the tenement problem. The law which was passed as a result of their investigation was the first sweeping and effective tenement measure since the enactment in 1867 of the first tenement house act. The newly elected Low administration found the enforcement of this statute one of its most important responsibilities. The law created a new branch of municipal service,—the tenement house department; and gave the tenement commission, in the shape of an elaborate code of housing laws, important supervision over the building of new tenements and the maintenance of old."

***B. J. Hendrick,
A Great Municipal Reform
(Atlantic Monthly, November, 1903).***

NEW YORK CITY: A. D. 1900-1909.

Subways and Tunnels.

It was not until 1900 that the building of subways for city transit in New York was begun. The first line, from the City Hall to Kingsbridge and the Bronx Park, was opened in 1904. During its construction plans for its extension southerly and under East River into Brooklyn were adopted, and contracts were let. The original work was executed under an arrangement with a company known as the McDonald Syndicate, whereby the City gave its credit to secure the requisite funds and would acquire the ownership of the subway and road at the end of fifty years. In 1902 the interests of the McDonald Syndicate

were transferred to a new corporation, the Interborough Rapid Transit Company, which ultimately acquired a general control of the city railway service, and ran a crooked career to results of disaster, so far as the public was concerned. In 1905 the Board of Rapid Transit Commissioners, then exercising authority in this region of municipal affairs, under the New York State Rapid Transit Act of 1891, approved plans for an extensive additional system, comprehending as many as nineteen routes, with various "spurs," and the Board of Estimate and Apportionment consented to the execution of the plan.

The East River Tunnel to Brooklyn was finished early in 1908, and the first two tubes of four Hudson Tunnels, connecting Manhattan Island with New Jersey was opened in the last week of February, the same year. This first pair of the Hudson Tunnels realized a project which had been undertaken as far back as 1878 and which had undergone two financial failures, in 1882 and 1892. In 1902 its remains and its charter were passed on to a third courageous company, organized by Mr. William Gibbs McAdoo, who became the master-spirit of bold enterprise at New York in this engineering field. In 1903 Mr. McAdoo organized another company for the undertaking of a connection of the Pennsylvania Railroad in Jersey City with downtown New York, and also for connecting the uptown and downtown tunnels by means of a north and south line along the New Jersey water-front, so as to connect the Lackawanna, Erie, and Pennsylvania Railroads with the tunnel system, and thereby be able to give to their passengers an uptown and downtown railway delivery.

The second pair of Hudson River tubes (the downtown link) forming this New York and Jersey City Tunnel were opened on the 19th of July, 1909. Writing of the event a few days before its occurrence, the New York Evening Post summed up the existing and prospective conditions of entrance to and exit from the island of Manhattan by under-river passages as follows:

"Since the city entered its rapid transit boom and the practicability of sub-river tunnels was demonstrated to the satisfaction of the leading engineers of the world, fourteen such tubes have been under construction here. Four of them are in operation. The downtown link of the Hudson Company's system will add two more, and the remaining eight are to be opened in the course of the next two years, according to present plans.

{451}

"After the opening of the downtown Hudson tunnels, the travelling public will look forward to the operation of the other eight tubes, as follows: Two Pennsylvania Railroad tunnels beneath the Hudson River and four under the East River, meeting in Manhattan at the great terminal station now nearing completion, between Thirty-first and Thirty-third Streets, along Seventh Avenue; the pair of Steinway-Belmont tunnels, deriving their name from the originator of the franchise and the present controlling influence, running from Forty-second Street to Long Island City and held practically by the same men who control the operation of the Manhattan-Bronx subway (the Interborough Company).

"The Pennsylvania tubes under the North (Hudson) River are practically completed, and await only the finishing of the depot, while the East River tubes, though a little behind hand on account of difficulties met in the form of treacherous rock ledges, are within possibly a year of opening. The Steinway-Belmont tunnels are completed, and will be ready for operation as soon as the company makes a satisfactory arrangement with the Public Service Commission."

An official party in a passenger car went through the Pennsylvania Railroad's tubes between New Jersey and Long Island on the 18th of November.

Work on a Fourth Avenue Subway in Brooklyn was begun November 13.

The Hudson Terminal at Cortlandt and Church Streets is one of the most interesting structures in the world. Below the street is the terminal station, where all the trains "downtown" arrive and depart. This station is wholly below tide level. It is surrounded by a cofferdam of reinforced concrete 8 ft. thick, 400 ft. long, and 177 ft. wide, and is sunk 95 ft. deep to solid rock. Forty feet below the street is the track floor. Twenty feet below the street is the great "Concourse," where all traffic is collected and distributed to the various train platforms underneath. On the Concourse the Pennsylvania, the Lehigh Valley, and the Erie Railroads have ticket offices, where tickets to any part of America may be bought. This Concourse, which is about 1½ acres in extent, is one of the show places of New York. Above the street level are two great office buildings, each 22 stories in height, and containing approximately 27 acres of rentable area.

NEW YORK CITY: A. D. 1901-1903.

Municipal Elections.

Tammany's Loss and Recovery of the Government.

Tammany Hall suffered defeat in the municipal election of 1901, the Honorable Seth Low, formerly a notable Mayor of Brooklyn and latterly President of Columbia University, being carried into the Mayor's office by a roused movement of reform which fused the elements of opposition to the corrupting Tammany power. Unfortunately the Mayor's term of office had been shortened to two years by the charter amendment of the previous year, and the term was too brief for much depth and thoroughness of reform; but the city was greatly cleansed during those two years. When the next election came, in 1903, Tammany had rallied its hungry forces and secured a highly respectable nominee for Mayor, in the person of Honorable George B. McClellan, son of the famous General of the Civil

War. Mayor Low, renominated by a second Fusion of opponents to Tammany, experienced defeat.

NEW YORK CITY: A. D. 1904 (June).

The Burning of the Steamer *Slocum*.

A catastrophe of such horror as to be historical attended the burning of the excursion steamer ***General Slocum***, at New York, on the 15th of June, 1904. The boat left a New York dock in the morning with a Sunday-school picnic party aboard numbering about eleven hundred,—nearly all women and children. While passing through that part of the East River known as Hell Gate, within the New York City limits, fire was discovered in the forward part of the vessel. It was then flood tide, and the eddies and currents in those waters are very strong. The captain decided that it would be folly to attempt to land on either shore, or to beach his boat. He therefore headed the ***Slocum*** for an island two miles up stream. As the boat went forward at full steam, the fore-and-aft draught thus created fanned the flames and hastened her destruction. On the discovery of the fire by the passengers, the wildest panic ensued. It was found that the life-preservers with which the ***Slocum*** was equipped were worthless. No attempt was made to lower boats or life-rafts. The crew were engaged in trying to cope with the fire, but their efforts were futile. Within twenty minutes, the boat went to her doom, and of the women and helpless children who had embarked so gaily an hour before, more than nine hundred were drowned or burned to death. Hundreds were saved by the heroic efforts of policemen, river men, and the nurses on North Brother Island, the seat of New York's hospital for contagious diseases, where the ***Slocum*** was finally beached. Most of those who met this awful death had come from a single densely populated district of New York's great "East Side." In some cases, whole families were wiped out.

NEW YORK CITY: A. D. 1905.

Institution of the Bureau of Municipal Research.

See (in this Volume)

MUNICIPAL GOVERNMENT: NEW YORK CITY.

NEW YORK CITY: A. D. 1905.

The Municipal Election.

Especial excitements were given to the municipal election of this year in New York by the appearance in it of William R. Hearst, proprietor of several newspapers in the country which are foremost representatives of the recklessly sensational journalism called "yellow." The methods by which these papers won a great circulation include much that can hardly be described otherwise than as demagoguism, and many groups and classes of people who are restlessly discontented in life, whether reasonably or otherwise, had learned to look on Mr. Hearst as a champion of human rights. This prepared material from which to organize a personal following that took the character, for a time, of a formidable political organization, incorporated under the name of the Independence League; and the great wealth which Mr. Hearst had inherited, and which his prosperous newspapers replenished, was spent lavishly in exploiting, supporting, and controlling the organization. His political ambitions aimed high, and the mayoralty of New York City, for which his Independence League nominated him in 1905, was by no means the contemplated end.

The Tammany Democracy gave its nomination to George B. McClellan, son of the famous General, while the Republican party named William M. Ivins, a prominent lawyer of the city. The canvas was a heated one, and as it progressed the League of Mr. Hearst was seen to be dangerously large. As a consequence. Republicans who feared its control of the City government even more than they feared that of Tammany, threw their votes for McClellan, giving him a plurality of about 3500 over Hearst, and leaving Mr. Ivins far behind.

{452}

Frauds were claimed and the election contested by Hearst and his supporters, who secured, by order of a Justice of the Supreme Court of the State, a recounting of the ballots in four election districts, with the result of a gain of seventeen votes for Mr. Hearst. Appeal was then taken to the Appellate Division of the Supreme Court for an order directing not only a recount but a recanvass of votes. Such an order was granted, but set aside by the Court of Appeals, to which the question went then; the court of last resort reversing, also, the order under which the four boxes had been recounted. The assertion of fraud was still maintained with vehemence, and the legitimacy of Mayor McClellan's title to the office he filled was denied for more than a year. The Legislature then passed an Act directing a recanvass and recount of the entire ballots of the election, which had been preserved under seal. This was a labor of months, performed under the direction of Judge Lambert, of the Supreme Court. It gave a gain of 1094 votes to Hearst and a gain of 231 to McClellan, leaving a net gain of 863 to Hearst, and diminishing McClellan's plurality in the total vote to 2791. The validity of his election was thereupon declared.

A more successful and far more notable independent candidacy than that of Mr. Hearst, in the New York City election of 1905, was conducted for the purpose of retaining Mr. William Travers Jerome in the office of District Attorney for the county of New York. He had been carried into the office on a fusion ticket, four years before, and had performed its important duties with a courage, a force, an independence and a rectitude that were beyond praise. The machines of the parties would not nominate him for reëlection; but an extraordinary rally of the friends of good government in all parties put him into the field, with an emergency organization that sufficed to carry him triumphantly through. He was elected by a plurality of about 16,000. So striking a proof of the political popularity which a high quality of public service

can win has not often been given.

NEW YORK CITY: A. D. 1905-1909.

The Undertaking of Works for a Water Supply from the Catskill Mountains.

In 1905 the City of New York procured authority from the Legislature to construct the works necessary for an adequate supply of water, additional to that which had been drawn for many years from the Croton River for old New York and from the Ridgewood system for Brooklyn. The source determined on was in the Catskill Mountains, including several streams, called creeks,—namely Esopus, Rondout, Schoharie, and Catskill,—having a total water shed of 885 square miles, and estimated to furnish about 770 millions of gallons daily, even in dry years. The plan of the project in its entirety contemplates the construction of eight great reservoirs for storing and controlling the waters derived from these streams. The first to be built and the largest of such reservoirs is named the Ashokan, on Esopus Creek, about 14 miles west of the Hudson River at Kingston, near Brown's station on the Ulster and Delaware Railway. Work on this was begun in 1907. It is being constructed in the form of two basins, having a united length of about twelve and a half miles, lying between hills which are connected by numerous massive dams. The dams necessary to complete the enclosure of the water have a total length of more than five miles.

In a straight line the distance from the Ashokan Reservoir to New York is 86 miles; but the windings of the course that will have to be given to the great aqueduct from the reservoir to the city will add six miles to its length. The aqueduct is to pass from the western to the eastern side of the Hudson at Storm King Mountain, through a tunnel in solid rock, far beneath the river bed. From Breakneck on the western shore it will cross a corner of the Croton watershed to a filter site, and to two final reservoirs, the Kensico and the Hill View. In

connection with both Ashokan and Kensico reservoirs the plan of the system contemplates an aeration of the water, by flinging it to the air in thousands of fountain jets.

In the parts of the great concrete aqueduct that can be built in an open cut its dimensions are seventeen feet of height and seventeen and a half feet of width. Where it traverses tunnels the width is reduced to thirteen feet. Its delivery of water to New York is calculated to add 500,000,000 of gallons daily to the water supply of the city. The undertaking as a whole is claimed to be the greatest that any city has yet engaged in, while the engineering work involved is said to be second only in magnitude to that of the Panama Canal.

***Alfred D. Flinn,
The World's Greatest Aqueduct
(The Century Magazine, September, 1909).***

NEW YORK CITY: A. D. 1907 (April).
Great Peace Congress.

See (in this Volume)
WAR: THE REVOLT AGAINST: A. D. 1907.

NEW YORK CITY: A. D. 1909.
Unearthing of Corruptions in the Custom House.

See (in this Volume)
UNITED STATES: A. D. 1909 (OCTOBER-NOVEMBER).

NEW YORK CITY: A. D. 1909 (June).
The Wall Street Investigation, so-called.
Report on the Operations of the Stock Exchange and
other Exchanges.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909.

NEW YORK CITY: A. D. 1909.

Renewed Struggle against Tammany, with Partial but Substantial Success.

Although Tammany elected its candidate for Mayor in the municipal election of 1909, its domination was practically overthrown by the defeat of its nominees for all other offices of importance in the City Government. A coalition of the Republicans with anti-Tammany Democrats and other organizations had presented a fusion ticket headed by a prominent and much-trusted business man, Mr. Otto T. Bannard. William R. Hearst entered the field again, as an independent nominee, and Tammany named Judge William J. Gaynor, who had been one of its opponents, as a Democrat, in the past. Judge Gaynor was elected by a plurality of 73,016, the vote cast for mayor being: Gaynor 250,678; Bannard 177,662; Hearst 153,843. The City Comptroller, four of the five borough presidents, and the President of the Board of Aldermen, were elected by the Fusionists. By the election of Mr. McAneny to be President of the Borough of Manhattan (the old New York City), a very eminent political reformer and one of great force, was brought into the City Government. As president of the energetic City Club, which became a power in reform politics under his lead, and as secretary of the National Civil Service Reform League, Mr. McAneny had given abundant proof of his capacity and his earnestness in work for good government.

{453}

By controlling twelve of the sixteen votes in the important Board of Estimate, the opponents of Tammany stripped that organization of all power over public "jobs." As the fact was expressed exultingly in one of the journals of New York on the day after election, "after January 1 Charles F. Murphy and his associates no longer will say who shall have public franchises; they, too, will no longer fix the budget, sell the

city's bonds, and pay political debts with salary increases. In other words, the Tiger has lost his grip on the city's purse-strings, and this fact, perhaps, more than any other, has turned his den into a cavern of gloom."

NEW YORK CITY: A. D. 1909.

Proposed New Charter, not acted on in the Legislature.

See (in this Volume)

MUNICIPAL GOVERNMENT: NEW YORK CITY.

NEW YORK CITY: A. D. 1909-1910.

The Shirtwaist Makers' Strike.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1909-1910.

NEW YORK LIFE INSURANCE COMPANY:

Legislative Investigation.

See (in this Volume)

INSURANCE, LIFE.

NEW YORK, NEW HAVEN AND HARTFORD RAILROAD CASE.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

NEW YORK STATE: A. D. 1899-1909.

The Barge Canal under Construction.

On the 8th of March, 1899, Theodore Roosevelt, then Governor of New York, appointed a committee of private citizens, for service without pay, in studying and reporting on the policy to be adopted by the State of New York in dealing with its canals. The appointed chairman of the committee was General

Francis Vinton Greene, and the following account of the recommendations made by the committee is taken from a paper on the subject contributed by General Greene to Volume XIII. of the Publications of the Buffalo Historical Society, published in December, 1909:

"The other members were Major Thomas W. Symons of the Corps of Engineers, United States Army, then stationed at Buffalo in charge of river and harbor improvements, Honorable Frank S. Witherbee of Port Henry in the Champlain district, Honorable George E. Green, State Senator from Binghamton in the southern tier of counties, Honorable John N. Scatcherd of Buffalo, and the two state officials most intimately connected with the administration of canals, viz., Honorable Edward A. Bond, State Engineer, and Honorable John N. Partridge, Superintendent of Public Works.

"The request of the Governor was simply that we should study the canal problem and advise him. ... We devoted the greater part of the year 1899 to a study of the subject, and made our report to the Governor under date of January 15, 1900. ... The Governor promptly transmitted the report to the Legislature, adopting the conclusions and recommendations which it contained, and advising that legislation be enacted to carry them into effect. This was done in successive years ... ; finally the project was ratified and adopted by an overwhelming vote of the people in the election of 1903. ...

"As to our conclusions and recommendations, the first question to be decided was whether or not the canals should be entirely abandoned. It was claimed by many that canal transportation was antiquated and altogether out of date; that 'the railroads, with their large capital and scientific management, their durable roadbeds, powerful locomotives, larger cars, greater train loads, greater speed, and more certainty of delivery, will be able now or in the early future to reduce the cost of transportation below what is possible on the

canals.' If it should seem probable that the railroads could accomplish this, then it would be manifestly unwise and improper to expend any more public money upon the canals.

"From a consideration of all [the] facts we reached our first conclusion—which, like all the other portions of our report, was unanimously adopted—to wit, 'That the canals connecting the Hudson river with Lakes Erie, Ontario and Champlain should not be abandoned, but should be maintained and enlarged.'

"The next point to be considered was, to what extent should they be enlarged, what size of vessel they should be adapted to carry, and what would be the estimated cost of construction.

"As to the proper size of the enlarged canal, widely different views were held by engineers and by economists. Some contended that the nine foot canal authorized in 1894 was sufficiently large; others brought forward the supposed advantages of a ship canal large enough to carry ocean-going steamers without breaking bulk from Duluth to Liverpool, or any other port; others contended that a canal of intermediate size would be found to be the most economical, would cost the least amount of money for the results produced, and would, in fact, produce a lower freight rate than either the small canal on the one hand, or the ship canal on the other.

"To these questions we gave the most careful study. The ship canal had many glittering attractions, and there was a large sentiment along the lakes which had found expression in Deep Waterways conventions, which had been held in recent years and had advocated a water route of either 21 or 28 feet depth from Lake Erie to the Atlantic ocean. ... But a careful examination of the facts led us to the conclusion that while a ship canal of 21 or 28 feet depth would cost enormously more than a barge canal of say, 12 feet depth, it would not produce as low a freight rate. ...

"Having rejected the ship canal project, we had then to consider what size of enlarged canal we should recommend. In any event, we were satisfied that the route of the canal should be changed so as to use the waterways of the Seneca and Oneida rivers, Oneida lake and the Mohawk river in place of the present route; but the question was whether the depth of the canal should be 9 feet, capable of carrying a boat with cargo capacity of 450 tons, or a depth of 12 feet, carrying a boat with a cargo capacity of about 1,000 tons. With such data as we could obtain in the short time at our disposal, and without adequate surveys, we estimated the cost of the smaller project at a little more than \$21,000,000, and of the larger project at a little less than \$59,000,000.

{454}

"Our conclusion was in these words: 'In our judgment, arrived at after long consideration, and with some reluctance, the State should undertake the larger project on the ground that the smaller one is at best a temporary makeshift, and that the larger project will permanently secure the commercial supremacy of New York, and that this can be assured by no other means.' ...

"We made a fourth recommendation in the following words:

"'That the money for these improvements should be raised by the issue of eighteen-year bonds in the manner prescribed by the State Constitution, and that the interest and principal of these bonds should be paid out of taxes specifically levied, for benefits received, in the counties bordering in whole or in part on the canals, the Hudson river and Lake Champlain; such taxes to be levied in proportion to the assessed valuation of the real and personal estate in such counties. These taxes will amount to about 10 cents per \$100 of assessed valuation annually during the period of eighteen years.'

"Our object in making this recommendation was to disarm the opposition of the non-canal counties. ... We also submitted statistics in tabular and graphic form showing that the valuation of the river and canal counties was 90% of the entire valuation of the State. In any event, they would bear 90% of the expense, and it was thought wise to suggest that they bear the entire expense so as to remove every ground of alleged injustice in taxing the counties which claimed to derive no benefit.

"This recommendation was not adopted by the Legislature, nor submitted to the people. ...

"At the election the non-canal counties voted against the project by large majorities, St. Lawrence county, for instance, being 12 to 1 against it, and Steuben county, 10 to 1 against it; but, on the other hand, the canal counties voted in favor of it by almost equally large majorities, New York being 9 to 1 in favor of it; Kings, 8 to 1; Queens, 5 to 1, and Erie, nearly 5 to 1. For some unexplained reason Monroe county, in which Rochester is situated, and Onondaga county, in which Syracuse is situated, voted against it. The overwhelming vote, however, in the counties at the two terminals, New York and Buffalo, made a majority of 245,312 in the entire State in favor of the project, and a total vote of 1,100,708.

"Our fifth and final recommendation was as follows:

"That the efficiency of the canals depends upon their management quite as much as upon their physical size, and that no money should be spent for further enlargement unless accompanied by measures which will accomplish the following results:

"(a) The removal of all restrictions as to the amount of

capital of companies engaged in transportation on the canals, and the encouragement of large transportation lines for handling canal business, in place of hampering them, as has hitherto been the case.

"(b) The use of mechanical means of traction, either steam or electricity, in place of draft animals; and the use of mechanical power in place of hand power for operating the gates and valves, and moving boats in locks.

"(c) The organization of the force engaged on the public works of the State on a more permanent basis, so as to afford an attractive career to graduates of scientific institutions, with the assurance that their entry into the service, their tenure of office, and their promotion will depend solely on their fitness, as determined by proper and practical tests.

"(d) A revision of the laws in regard to the letting of public contracts by the State, so as to make impossible a repetition of the unfortunate results of the \$9,000,000 appropriation.

"Legislation has already been adopted to carry into effect (a) and (c); the adopted plans for the canal are in accordance with (b); and the specific form of contract which we recommended in connection with (d) was not adopted, but another form of contract was adopted which will practically accomplish the same result.

"It only remains to speak of the cost of the project. With such data as we had available and with such surveys as were possible during the year 1899, we estimated the cost of the project we recommended at \$58,894,668 for the Erie Canal and \$2,642,120 for the Oswego and Champlain canals, making a total of \$61,536,788. This contemplated a canal with 12 feet depth and suitable locks for carrying a barge of approximately 1,000 tons capacity from Buffalo to the Hudson river, but as to the Oswego and Champlain canals, it recommended only the

completion of the work already undertaken to provide for boats of six feet draft. ... It was ultimately determined to enlarge the Champlain and Oswego canals to the same size as the main canal between Buffalo and the Hudson river, and also to include the dredging of a 12 foot channel in the Hudson river, which we had anticipated would be done by the Federal Government. This enlargement of the project very materially increased the cost, and in the interval between the time of our report and the completion of the detailed report of the State Engineer, the prices of labor and materials had very largely advanced. In order to cover all possible contingencies, the State Engineer carried his estimate to \$101,000,000, and this was the amount appropriated by the Legislature and ratified by the people at the election of 1903."

***Francis Vinton Greene,
The Inception of the Barge Canal Project
(Buffalo Historical Society Publications, Volume 13).***

The first six contracts for the construction of the Barge Canal were let in April, 1905. The state of the work at the end of the year 1909 was announced by Governor Hughes in his Message to the next Legislature as follows:

"The contracts in force for the Barge Canal improvement amount in total price to \$48,229,467, and the contract value of the work performed to December 1, 1909, was \$15,821,275. It is estimated by the State engineer and surveyor that during 1910 work will be completed amounting to \$16,000,000, and it is expected that the work for the entire length of the Barge Canal system will be under contract by April 1, 1910. At the present rate of progress, it is said that it is not unreasonable to expect that the Barge Canal system will be completed by the end of the year 1914. It is further stated that the work is being carried on within the original estimates. This enterprise should be pushed to completion as

speedily, as economically, and efficiently as possible."

NEW YORK STATE: A. D. 1901-1909.

Legislation developing the Parole System
of dealing with Convicts.

See (in this Volume)

CRIME AND CRIMINOLOGY: INDETERMINATE SENTENCES.

{455}

NEW YORK STATE: A. D. 1905-1906.

Legislative Investigation of Life Insurance Companies and the
State Superintendency of them.
Startling Disclosures.
Remedial Legislation.

See (in this Volume)

INSURANCE, LIFE.

NEW YORK STATE: A. D. 1906-1910.

The Epoch of Governor Hughes.
The Special Significance of his Administration.
His Exemplary Fidelity to Fundamental Political Principles.
His Public Support against Hostile Party-Managers.

The election of 1906 is likely to be marked in the political history of New York as the introduction of an epoch,—the Epoch of Governor Hughes. The State has had a number of very notable Governors, in both early and late times,—Governors who left a deep and lasting impression of themselves on its history, and who have been large contributors to its prestige and influence as the Empire State of the American Union; but Governor Hughes is of a type so different from any of his predecessors, and his conduct of the Governor's high office has been so distinctive in principle and method, that his administration can hardly fail, in the retrospect, to take on a special

significance of its own.

As counsel to the Legislative Committee which investigated the scandals of life-insurance management in 1905-1906 (see, in this Volume, INSURANCE, LIFE), the conduct of the investigation by Mr. Charles Evans Hughes drew public attention, and made him known so favorably that when in the autumn of 1906 the Republican Party of the State had special need of a personally attractive candidate for Governor, an unmistakable expression of popular opinion directed the choice to him. The Independence League which Mr. William R. Hearst had rallied and organized, and which had served him the previous year in his candidacy for the mayoralty of New York (see, above, NEW YORK CITY: A. D. 1905), had been recruited so successfully throughout the State, and had absorbed so much of some elements of the Democratic Party, that the latter made terms of combination with it, and adopted Mr. Hearst as its gubernatorial nominee. The combination was one which the ordinary forces acting for the Republican Party could hardly hope to overcome; but the recent prestige of Mr. Hughes might call out reinforcements that would save the day. It was not willingly that the professional managers of the party consented to his nomination, and it was not willingly that he accepted it. He was heartily a Republican in politics, but never active in its affairs, being devoted to his profession and plainly reluctant to be turned aside at all from the career it had just fairly opened before him. But he yielded, as the party managers did, to a call from the public of the party, and the result of the election afforded proof of the reality and sincerity of the call. Hughes alone on the State ticket of the Republicans was elected; Hearst alone on the ticket of the Democratic-Independence-League combination was defeated. Governor Hughes was thus placed, on the 1st of January, 1907, at the head of an administration in which every other elective office was filled by his political opponents.

This political aloneness of Governor Hughes in his office

would have mattered very little, however, if his own party surroundings in it had been friendly and sympathetic; but very quickly it was seen that he had conceptions of official duty which those who controlled the machine-like "organization" of the party, with consequent powers of influence over its representatives in the legislature and in other official places, could in no wise comprehend. With a degree of precision and decision hardly matched by another executive, this Governor had studied, constitutionally and ethically, and had defined to himself, the obligations and limitations of his office, and had resolved them into principles of action from which he never swerved. In one particular, especially, this held him to a course which some former governors had adhered to in the main, but none, perhaps, with a consistency as firm. In the use of two powers confided to the Governor, that of the veto in legislation and that of appointment to many State offices, there had always been more or less of giving and taking between the Executive, on one side, and the Legislature and the controlling leaders of party organization on the other. A Governor actuated by personal motives, of ambition or other self-interest, would use these powers freely, in bargaining for or enforcing his desires; and a Governor who cared for public interests alone would sometimes feel driven to secure measures needful to that end at some price of concession in appointments and in the approval of bills, or some coercive use of the veto whip. Governor Hughes would do neither, and his attitude in this matter stands out so conspicuously as to mark in itself an epoch of great example in the right exercise of executive power.

No Governor has ever interested himself more earnestly in the work of the Legislature, with a watchful eye to the needs, interests, and rights of the public and to the demands of good government on every side. No Governor has ever taken a more active and effective part in the production of important legislation, and none has ever put his stamp on more of such legislation within the same time. But all that he has done in

that line of executive duty has been strictly by recommendation and by argument, addressed first to the Legislature and then to the public behind it; never by any other means. Legislatures have been coerced irresistibly into compliance with his recommendations, by public opinion, awakened by the Governor's voice; never directly by him. There has been no departure from the principle of action which he stated once in these words: "I have not attempted, through the use of political patronage or political machinery to coerce anybody, and I don't propose to do so. But under the constitution, it is my privilege and my duty to recommend legislation. If I mean what I say when I recommend, I ought to be able to tell why it is recommended, and my constituency is not the Legislature, and not any particular part of the people, but my constituency is the people of the State, and I propose, therefore, whenever I make a recommendation, and there is any question about it, to tell as forcibly, as fully and as frankly as possible why I stand for it. If it is wrong, you will know it all the sooner; if it is right, you will give it the support it deserves. I call that American government, and if we had a little less trading, a little less wirepulling and bulldozing, we would prosper to a far greater degree."

{456}

The Legislature of New York has been honored by this highminded and respectful treatment of it, which the highminded among its members have appreciated; but these have been at most times a minority. The majority, obedient to resentful party "bosses," have acted sullenly with him when the lash of public opinion has driven them to his side, and defiantly against him when they dared. His obstinate antagonists have found a reflection hard to obtain.

The most signal showing of the attitude of the public toward antagonists of Governor Hughes in the Legislature occurred in connection with a bill, recommended by the Governor in 1907,

for the amendment of a disgraceful existing law relative to race-track gambling. The State Constitution, as revised in 1894, prohibits all forms of gambling, and declares that "the Legislature shall pass appropriate laws to prevent offenses against any of the provisions of this section." In 1895 an Act (known as the Percy-Gray Law) was got through the Legislature, professedly in obedience to this mandate of the Constitution, which verbally prohibited betting on races, but penalized it only by providing that the loser of a race-track bet might sue the winner and recover twice the amount of his bet, while betting and gambling in other places were punished heavily by imprisonment and fine. This scandalous favor to the race-track interests carried a bribe at the same time to the farmers of the State, in the form of a cunning provision of the Act, which appropriated five per cent. of the gross receipts of racing associations to the benefit of agricultural societies. Repeated attempts to correct so contemptuous a violation of the Constitution had failed; but Governor Hughes renewed the attempt, with a feeling of reverence for Law and for the honor of the State which could not tolerate defeat. When the amending Bill that he recommended was put in suspense by a tie vote in the Senate, the Governor called a special session of the Legislature, and brought the question before the people in speeches which made a mighty stir. The racing interests in the State were so powerful that they almost defied defeat, and all their influence came into play. Meantime a special election to fill a vacancy in the Senate was pending in Western New York, and the issue on the race-track gambling bill was fought out there, with the Governor in the field, contending for an honest enforcement of the constitutional law of the State. The result of the election gave support to that contention, and when, at the special session, the Bill in question was again called up in the Senate, as it could be, it was passed by a majority of one. The Republican senators who voted against it were most of them retired to private life by their constituents at the senatorial elections of the ensuing fall.

Almost everything of importance in New York legislation since Governor Hughes entered office has had its origin in his recommendations, and has been carried by the weight of public backing which belief in him calls out, against resisting influences that would ordinarily have prevailed. This was notably the fact in the case of the Public Service Commissions Act of 1907 (See (in this Volume) PUBLIC UTILITIES), which established an effective supervision and regulation of corporations engaged in public services, by placing over them two commissions, appointed by the Governor, one with jurisdiction in New York City, the other in the remainder of the State, both armed with large powers. The services covered are those of railways, gas and electric light and power companies, and the authority established over them extends not only to their rates, but to their capitalization, their issues of stock and bonds, their franchises, the labor conditions under them, their equipment, and the sufficiency and quality of the service they render. The excellence of the Act has been proved by its working, in the hands of the commissions appointed by Governor Hughes.

In the checking of improper legislation by his vetoes, especially against encroachments on local rights of self-government, and against special enactments that intrude on general laws, Governor Hughes has been a teacher of political principles, as importantly as in the legislative advice which it is part of his constitutional duty to render. He taught a great lesson to every legislative body and every executive in the Union, when he disapproved a highly popular bill which prescribed a fixed rate of railway passenger fares at two cents per mile, on the ground that it was not a matter to be dealt with summarily,—without careful investigation and determination of the facts involved. So consistent, so forceful, so effective a teacher, in fact, by precept and high example, of the fundamentals of principle in political action, has rarely appeared in any country.

That Governor Hughes was renominated and reelected in 1908 for a second term was again by reason of a public insistence which neither he nor the hostile manipulators of caucus-work in his party could resist. If the election had not been coincident in time with a presidential election the "bosses" of the party would have refused the nomination to him at any cost. They were able to secure a convention of delegates that would eagerly have made that refusal; but when the Governor was persuaded to say that he would accept renomination, they dared not imperil the national interests of the party by flouting demands which came from every quarter of the land. He had become so national a figure that interest in his reelection was nation-wide.

On the powerful movement in New York to break down the practical exclusion of the people from the choosing of candidates for office, which Governor Hughes inspired.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES:
DIRECT PRIMARY NOMINATIONS.

NEW YORK STATE: A. D. 1906-1909.
Work of Reforestation.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

NEW YORK STATE: A. D. 1907.
The Gift of Letchworth Park.

A noble gift to the State was made in January, 1907, by the Honorable William Pryor Letchworth, a gentleman of distinction in benevolent work, officially as president for many years of the State Board of Charities, and privately, at the same time, as a profound student of and writer on, some of the gravest of

the problems of philanthropy, especially that of the treatment of the insane. The home of Mr. Letchworth for many years has been on a great estate which embraces the finest and most famous scenery of the Upper Genesee River, lying on both sides of the cañon [canyon] down which the river plunges in three successive falls.

{457}

The thousand acres of the estate enclose all three of the falls. This magnificent domain, preserved in all its natural beauty and improved with careful taste by half a century of Mr. Letchworth's care, has been conveyed in trust to the State, under the future custody of The American Scenic and Historic Preservation Society, to be forever, after the death of Mr. Letchworth, a Public Park. A generous citizen has thus saved from destructive uses a piece of scenery which has hardly its equal for picturesque and varied beauty in another part of the State.

NEW YORK STATE: A. D. 1907.

Enactment of the Public Utilities Law.

See (in this Volume)
PUBLIC UTILITIES.

NEW YORK STATE: A. D. 1907-1909.

Creation of the Probation System.

See (in this Volume)
CRIME AND CRIMINOLOGY: PROBATION.

NEW YORK STATE: A. D. 1909.

Gas Company's Refund.

See (in this Volume)
PUBLIC UTILITIES.

NEW YORK STATE: A. D. 1909.

Historical Commemorations. The Champlain and the Hudson-Fulton.

Three notable events of the far past were notably commemorated in New York during the summer and autumn of 1909. The tercentenary year of Champlain's discovery, in July, 1609, of the Lake which bears his name, was signalized by a week of historical pageants, fêtes, and gatherings for speech and ceremony, on and around the lake, beginning on the 4th of July. France, England, Canada, and the United States were represented in the addresses and exercises of the occasion, by the British and French Ambassadors, the Postmaster-General of the Dominion, President Taft and ex-Secretary Root, Governor Hughes of New York and Governor Prouty of Vermont. A large number of Indians took part in the pageants, occupying a floating island constructed for the occasion on the lake, and representing scenes of Indian life and warfare, the story of Hiawatha, and other reminders of the time when men of their race were the lords of the region of Lake Champlain. The occasion was made one of great interest.

Still more of interest was given to the double commemoration, in September, of Hendrick Hudson's exploration of Hudson River and of Robert Fulton's first practically successful undertaking of steamboating, on that river. The celebration of the event first named was timed appropriately on its third centennial anniversary. That of the second was belated by two years; but the two were most fitly connected. The people of Holland joined heartily in the Hudson commemoration, building and sending over to New York an exact replica of Hudson's little ship, the ***Halve Maen***, or Half Moon, in which his voyage was made. Fulton's steamboat, the ***Clermont***, was also reproduced for the occasion, and the two small, quaint vessels, strikingly in contrast with the monster battle ships and ocean liners that surrounded them, lent a singular interest to the affair. Great Britain, France, Germany, Italy, the Netherlands, Mexico, Cuba, and the Argentine Republic

accepted invitations to take part in the naval parades which formed a grand feature of the celebration, and an imposing assembly of great ships of war was shown. Eight days, from Saturday, September 25th, until the following Saturday, were filled with church services, school exercises, historical exhibitions and processions, military and naval parades, aquatic sports, carnival doings, aeroplane flights, banquets to foreign guests, etc., at New York City, after which the ***Half Moon*** and the ***Clermont*** proceeded up the river and the celebration was continued in various towns.

NEW YORK STATE: A. D. 1909.
Defeat of the Direct Primary Bill.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES:
DIRECT PRIMARY NOMINATION.

NEW YORK STATE: A. D. 1909-1910.
Munificent Gifts of Land on the Hudson
for Park Purposes offered.

In his annual Message to the Legislature, January 5, 1910, Governor Hughes announced the details of a munificent project of gifts proffered to the State for the purpose of creating a noble State Park on and near the Hudson River. Mrs. Mary W. Harriman, widow of the late E. H. Harriman, offered to convey to the State a tract of about ten thousand acres of land in Orange and Rockland counties, to be held in perpetuity as a State park; offering further to give the State \$1,000,000 in trust, to be used for the purchase of land lying between the tract mentioned and the Hudson River, so that the park may have the advantage of a river frontage. Other gifts for similar purposes amounting to \$1,625,000 were announced as a result of the activity of the Palisades Park Commission, from residents of New York, New Jersey, and Philadelphia. John D. Rockefeller and J. Pierpont Morgan each subscribed \$500,000;

Margaret Olivia Sage, William K. Vanderbilt, George F. Baker, James Stillman, John D. Archbold, Frank A. Munsey, Henry Phipps, E. T. Stotesbury, E. H. Gary, and George W. Perkins gave \$50,000 each: Helen M. Gould and V. Everit Macy contributed \$25,000 each, and Ellen F. James and Arthur C. James jointly gave a similar amount. These subscriptions were secured upon conditions stipulating, among other things, that New York State shall appropriate \$2,500,000 for the acquiring of land and the building of roads and general park purposes; that the State of New Jersey shall contribute a fair share, and that the State discontinue work on the new State prison at Great Bear Mountain in Rockland County, where preliminary work on the site for a new \$2,000,000 structure has been under way for several months.

NEW ZEALAND: A. D. 1886-1893.

Extension of the Suffrage to Women.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

NEW ZEALAND: A. D. 1896-1908.

Twelve Years of Local Option.

The working of the Law.

Warning to the Liquor Trade.

The Vote of Women.

See (in this Volume)

ALCOHOL PROBLEM: NEW ZEALAND.

NEW ZEALAND: A. D. 1902.

Colonial Conference at London.

See (in this Volume)

BRITISH EMPIRE.

NEW ZEALAND: A. D. 1903.

The Maori King a Colonial Minister.

The old fierce conflict of the Maoris with the English colonists in New Zealand would seem to have been effectually ended, since the Maori King accepted a seat in the colonial Cabinet, as a responsible Minister, in 1903.

{458}

NEW ZEALAND: A. D. 1905.

Government Ownership and Long-leasing of Land.
Its working.
Government Loans to Farmers.

The land system of New Zealand, as it was in 1895, is described in Volume VI. of this work (see NEW ZEALAND). It has since been carried farther on social-paternalistic lines, by extensive expropriations or compulsory sales of large estates to the Government, and by the institution of public loans of capital to farmers at a moderate rate of interest. The operation and result are thus described in a recent work:

"So far the government has lent to the farmers about \$20,000,000, but it has saved them \$20,000,000 in interest, because as soon as it came into the field with its cheap loans, interest rates dropped everywhere. You see Shylock has fled from these shores and will not return. The government has never lost a cent in these loans. Reform proceeded next, with a land tax graduated to an ascending scale, to discourage land-grabbing, and land speculation; so that the more land a man owns the higher is the tax-rate upon it. Thus for farms of ordinary size the rate is two cents in every \$5 of assessed valuation; but on estates of more than \$25,000 the rate increases in regular ratio to the maximum of six cents for every \$5, except for absentee owners. They must pay fifty per cent. more than residents. You can see that in New Zealand the chance for fine old families and landed gentry is slim. No

doubt the theory of these things is extremely reprehensible, but the practice is excellent. What with seizing the big estates, and what with the graduated land tax, the size of holdings has been so reduced that of 115,713 landowners in 1905 only 22,778 came under the operations of the augmented land tax. The others, having small properties, paid the smallest rate. Under the land purchase act the government has seized 691,594 acres, mostly hunting fields and uncultivated family inheritances. These have been partitioned into small farms and are occupied by actual settlers. Under the operation of all the new land laws together, the produce of New Zealand has trebled, and the New Zealand farmer has become the most prosperous in the world."

***Charles E. Russell,
The Uprising of the Many,
chapter 29
(copyright, 1907, by Doubleday, Page & Co., New York, 1907).***

NEW ZEALAND: A. D. 1906.
The Democratizing of Competition.
Labor Group Coöperation.

See (in this Volume)
LABOR REMUNERATION.

NEW ZEALAND: A. D. 1906-1909.
The Liberal Party and the Liberal Ministry.
Their years of Great Power.
Their Strength shaken in the latest Election.
Its Method and Result.
The new Ministry of Sir Joseph Ward.

In June, 1906, the Liberal Party in New Zealand experienced a great loss, in the death of Mr. Richard J. Seddon, its strong leader, and the Prime Minister of Government for some time past. His place was taken temporarily by Mr. Hall-Jones, until

Sir Joseph Ward, then absent from the country, returned and received the chief ministerial seat. Since 1893 the Liberal Party had derived large majorities in Parliament from each triennial election. The Liberal Administration had advanced accordingly, says a recent letter to the London *Times*, "under the banner of labour legislation, new land laws, and State Socialism, and was strengthened in its position by the general prosperity of the country and the expenditure of large sums of borrowed money upon public works. At the end of last Session, it was still at the head of affairs with a majority (including the four Maori members) of no fewer than 46.

"In the meantime, however, the guiding hand of Mr. Seddon, the great apostle of New Zealand democracy, had been removed from the scene, the harsh working of the Compulsory Arbitration Act had begun to alienate the sympathies of both employers and workers; the anti-freehold tendencies of the present Administration were effecting a change of feeling in the country constituencies, and the drop in the prices of some of our staple products, combined with the stringency in the local money market, began to act as a check on our commercial prosperity. Finally, the Government made some tactical blunders." Hence the Opposition, at the Parliamentary election of November, 1908, was greatly strengthened, though the ascendancy of the Liberals was still maintained. The conduct of the election and its result are described by the correspondent already quoted, as follows: "An election in New Zealand is conducted in a most orderly manner. The distribution of literature, the wearing of badges, and any touting for votes from electors on their way to the polls or in front of the polling booths are strictly prohibited by law. A half-holiday has to be observed in shops and offices, and factory owners must allow their *employés* time off to vote. The publichouses remain closed from noon until the polls are closed, the closing hour being in the country 6 P. M., and in the cities 7 P. M. Time was, in the very early days, when the polling booths were in some cases located between two

drinking saloons that did a roaring trade, and the result was much loud disputation, bad language, and fighting. Nowadays all that is changed, and women can walk into the polling booths with complete unconcern. For the 76 seats 213 candidates had been nominated. Of these 114 claimed to be Ministerialists and 52 Oppositionists, while 46 were Independents, among whom were a few Socialists and Independent Labourites. The result of the first ballot was that 34 Government supporters, 16 Opposition candidates, and three Independents were elected by absolute majorities. In 23 constituencies the candidates at the head of the poll failed to secure absolute majorities of the total votes polled, and it became necessary to hold second ballots, the number of these being practically double what was estimated by the Prime Minister. ... Twenty-two of these were held a week later, and resulted in a further strengthening of the Opposition party. One—in a widely scattered country constituency—has yet to be held. The Government secured 12 of the seats, the Opposition nine, and Independent Labour one. ...

"The result of the elections, as a whole, is greatly to strengthen the Opposition, and correspondingly to weaken the Government. The next most noticeable feature about it is the unusual change it has made in the *personnel* of the House of Representatives. While not a single Opposition member of the last Parliament who stood has lost his seat, no fewer than 17 followers of the Ministry have been relegated to private life; while the new Parliament will contain 27 new members out of 76.

{459}

The position of parties, with one second ballot yet to be decided, is—Government, 45; Opposition, 25; Independent, 4; Independent Labour, 1. At the end of last Session (excluding Maori members) the Government were 59 strong, while the Opposition, including one Independent, numbered only 17. Thus, whereas in the last Parliament the Government could reckon on a majority of 42, they cannot now be absolutely sure of a

majority of more than 15 of the European members on certain issues. There are four Maori members still to be elected, and as these generally vote with the party in power the assured Ministerial majority will be 19. This should be amply sufficient to enable Sir Joseph Ward to continue in power for the full term of the Parliament—three years."

Early in January, 1909, the Ministry was reconstructed, the Premier, Sir Joseph Ward, burdening himself with the portfolios of Finance, Defence, Lands, Agriculture, and the Post Office. This was said to be made necessary by the inexperience in office of the new Ministers whom he called to his side.

NEW ZEALAND: A. D. 1907 (April-May).
Imperial Conference at London.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

NEW ZEALAND: A. D. 1907-1909.
Working of the Compulsory Arbitration Law.

See (in this Volume)
LABOR ORGANIZATION: NEW ZEALAND.

NEW ZEALAND: A. D. 1908.
Population.

The population of the Dominion of New Zealand on December 31, 1908, was estimated as follows:

Europeans 960,000;

Maoris, 49,000;

Cook Islanders, 12,000.

There was an increase of Europeans during the year of 31,000, being at the rate of 3.36 percent. The excess of immigration over departures was 14,000—a record; while the natural

increase was 17,000. The death-rate was 9.57 per thousand, as compared with 10.95 in 1907; and the birth-rate was 27.45 per thousand, as compared with 27.30.

NEW ZEALAND: A. D. 1908-1909.

Labor Strike caused by Legislation making "Miners' Disease" a ground of Compensation from Employers.

See (in this Volume)

LABOR PROTECTION: EMPLOYERS' LIABILITY.

NEW ZEALAND: A. D. 1909.

Announcement of Railway-Building Policy.

See (in this Volume)

RAILWAYS: NEW ZEALAND.

NEW ZEALAND: A. D. 1909.

Act establishing compulsory Military Training.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY: NEW ZEALAND.

NEW ZEALAND: A. D. 1909.

The Prime Minister's testimony to the good working of Woman Suffrage.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

NEW ZEALAND: A. D. 1909 (July-August).

Imperial Defence Conference.

Offer of a "Dreadnought" to the Imperial Navy.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY AND NAVAL.

NIAGARA FALLS:

Preservation of their "Scenic Grandeur."

An Act of Congress, designed "to preserve the scenic grandeur" of Niagara Falls, approved in June, 1906, authorized the Secretary of War to grant permits for the diversion of water for the creation of power to an aggregate amount not exceeding 15,600 cubic feet a second, and to grant permits for the transmission of power from Canada to an aggregate quantity not exceeding 160,000 horsepower. The then Secretary of War, Mr. Taft, since elected President of the United States, after careful investigations and hearings, granted permits for the diversion of the maximum amount of water under the act and for the admission of the maximum quantity of power. In reporting his decision Mr. Taft explained why he believed that the diversion authorized could be made without harm to the Falls: "I have reached," he said, "the conclusion that with the diversion of 15,600 cubic feet on the American side and the transmission of 160,000 horse power from the Canadian side, the scenic grandeur of the Falls will not be affected substantially or perceptibly to the eye. With respect to the American falls this is an increase of only 2,500 cubic feet a second over what is now being diverted and has been diverted for many years, and has not affected the Falls as a scenic wonder. With respect to the Canadian side, the water is drawn from the river in such a way as not to affect the American falls at all, because the point from which it is drawn is considerably below the level of the water, at the point where the waters separate above Goat Island, and the Waterways Commission and Dr. Clark agree that the taking of 13,000 cubic feet from the Canadian side will not in any way affect or reduce the water going over the American falls. The water going over the Falls on the Canadian side of Goat Island is about five times the Volume of that which goes over the American falls. ... If the amount withdrawn on the Canada side for Canadian use were 5,000 cubic feet a second, which it is not likely to be during the three years' life of these

permits, the total to be withdrawn would not exceed ten per cent, of the Volume of the stream, and, considering the immense quantity which goes over the Horseshoe Falls, the diminution would not be perceptible to the eye."

See, also, provisions of "WATERWAYS TREATY,"
in this Volume, under CANADA: A. D. 1909 (JANUARY).

NIAGARA MOVEMENT, The.

See (in this Volume)
RACE PROBLEMS: UNITED STATES.

NICARAGUA.

See (in this Volume)
CENTRAL AMERICA.

NICHOLAS II., TSAR OF RUSSIA.

See (in this Volume)
RUSSIA.

NICHOLS, ERNEST FOX:
President of Dartmouth University.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901-1909.

NICOLSON, SIR ARTHUR:
British Ambassador at St. Petersburg.
Convention with Russia.

See (in this Volume)
EUROPE: A. D. 1907 (AUGUST).

NIEL, M.:

The head of the Confédération Générale du Travail in France.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1884-1909.

NIGERIA.

See (in this Volume)

AFRICA: FRENCH CENTRAL.

NIGHT RIDERS, of the Tobacco Farmers' Union.

See (in this Volume)

KENTUCKY: A. D. 1905-1909.

NILE BARRAGE.

See (in this Volume)

EGYPT: A. D. 1902 (DECEMBER).

{460}

NOBEL PRIZES.

By the will of Alfred Bernard Nobel, the distinguished Swedish engineer and chemist, pupil of John Ericsson and inventor of dynamite and other explosives, five great prizes, averaging nearly \$40,000 each in value, were instituted, for annual reward to persons who shall severally have made the most important discovery or invention in the domain of physics, chemistry and physiology or medicine; to the writer who has produced in literature the most distinguished work of an idealistic tendency, and to the person who has most or best promoted the fraternity of nations, the abolition or reduction of standing armies and the formation and increase of peace congresses. The award of the two prizes first named to be made by the Royal Academy of Science in Stockholm; the third by the

Caroline Medical-Chirurgical Institute in Stockholm; the fourth by the Swedish Academy in the same city; the fifth by the Storting or Parliament of Norway.

The presentation of prizes on the first award was made with impressive ceremonies on the 10th of December, 1901, that being the fifth anniversary of Mr. Nobel's death. Each year since, the awards have been made on that anniversary day. The recipients have been as follows:

PHYSICS.

1901

William Conrad Roentgen,
professor of physics at the University of Munich.

1902

Divided equally between Henrik Anton Lorentz, professor of physics at the University of Leyden, and Peter Zeeman, professor of physics at the University of Amsterdam.

1903

Half to Antoine Henri Becquerel, professor of physics at the École Polytechnique and at the Museum d'Histoire Naturelle, Paris, France, member Institut Française, and half to Pierre Curie, professor of physics at the University of Paris (Sorbonne) and teacher in physics at the Paris Municipal School of Industrial Physics and Chemistry, and his wife, Marie Sklodovska Curie, preceptress at the Higher Normal School for Young Girls at Sevres.

1904

Lord Rayleigh, professor of natural philosophy,
Royal Institution of Great Britain, London.

1905

Philippe Lenard, professor of physics at the

physical Institute of Kiel.

1906

J. J. Thomson, professor of experimental physics at the University of Cambridge.

1907

Albert A. Michelsen, professor of physics at the University of Chicago.

1908

Professor Gabriel Lippman of the University of Paris.

1909

G. Marconi, Italy, and
Professor Ferdinand Braun of Strassburg.

MEDICINE.

1901

Emil Adolf von Behring, professor of hygiene and medical history at the University of Marburg, Prussia.

1902

Ronald Ross, professor of tropical medicine at the University college of Liverpool.

1903

Niels Ryberg Finsen, professor of medicine, Copenhagen, Denmark.

1904

Ivan Petrovic Pawlow, professor of physiology in the Military Academy of Medicine, St. Petersburg.

1905

Robert Koch, member of the

Royal Academy of Science, Berlin.

1906

Professors Ramon y Cajal and Camillo Golgi of the Pavia university, Italy.

1907

Charles L. A. Laveran of the Pasteur Institute in Paris.

1908

Dr. Paul Ehrlich of Berlin and Professor Elie Metchnikoff of the Pasteur Institute, Paris.

1909

Professor E. T. Kocher, Switzerland.

CHEMISTRY.

1901

Jakob Hendrik van't Hoff, professor of chemistry in the University of Berlin.

1902

Emil Fischer, professor of chemistry in the University of Berlin.

1903

Svante August Arrhenius, professor at the University of Stockholm.

1904

Sir William Ramsay, professor of chemistry in the University college, London.

1905

Adolf von Baeyer, professor of chemistry at Munich.

1906

H. Moissan, professor of chemistry at the Sorbonne, Paris.

1907

Eduard Buchner, professor of chemistry in the agricultural high school of Berlin.

1908

Professor Ernest Rutherford of the University of Manchester, England.

1909

Professor W. Ostwald of Leipsic.

LITERATURE.

1901

Rene Francois Armand Sully-Prudhomme, member of the French Academy.

1902

Theodor Mommsen, professor of history at the University of Berlin.

1903

Bjornstjerne Bjornson, author, Norway.

1904

Half to Frederic Mistral of France and half to José Echegaray of Spain.

1905

Henryk Sienkiewicz, the author of "Quo Vadis?"

1906

Professor Giosue Carducci of Bologna, Italy.

1907

Rudyard Kipling of England.

1908

Professor Rudolf Eucken of the University of Jena.

1909

Selma Lagerlof, Sweden.

PEACE.

1901

Divided equally between Henri Dunant, founder of the International Red Cross Society of Geneva, and Frederic Passay, founder of the first French peace association, the "Société Française pour l'Arbitrage Entre Nations."

1902

Divided equally between Elie Ducommun, secretary of the international peace bureau at Bern, and Albert Gobat, chief of the interparliamentary peace bureau at Bern.

1903

William Randal Cremer, M. P., secretary of the International Arbitration league, London.

1904

The Institute of International Law, a scientific association founded in 1873 in Ghent, Belgium.

1905

Baroness Bertha von Suttner for her literary work written in the interest of the world's peace movement.

1906

Theodore Roosevelt, president of the United States, for the part he took in bringing the Russo-Japanese war to an end. Money set apart by the president for the establishment of a permanent industrial peace commission.

1907

Divided equally between Ernesto T. Moneta, president of the Lombardy Peace union, and Louis Renault, professor of international law at the University of Paris.

1908

K. P. Arnoldsén of Sweden and M. F. Bajer of Denmark.

1909

Baron d'Estournelles de Constant, Paris, and M. Beernaert, Holland, ex-Premier.

[For a contemporary list see
https://en.wikipedia.org/wiki/List_of_Nobel_laureates]

NODZU, General.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

NOGI, GENERAL.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY), and
1904-1905 (MAY-JANUARY).

NOMINATIONS, Political:
By Direct Primary Vote.

See (in this Volume)

ELECTIVE FRANCHISE: UNITED STATES.

NOMINAVIT NOVIS CONTROVERSY.

See (in this Volume)
FRANCE: A. D. 1905-1906.

NORD ALEXIS, GENERAL.

See (in this Volume)
HAITI: A. D. 1902 and 1908.

{461}

NORDENSKJÖLD, DR. OTTO:
Commanding Swedish Antarctic Expedition.

See (in this Volume)
POLAR EXPLORATION.

NORDEZ, BISHOP LE.

See (in this Volume)
FRANCE: A. D. 1905-1900.

NORTHCOTE, LORD:
On the Australian Land and Immigration Questions.

See (in this Volume)
IMMIGRATION AND EMIGRATION: AUSTRALIA.

NORTHERN SECURITIES COMPANY CASE, THE.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1901-1905.

NORTH SEA AND BALTIC AGREEMENTS.

See (in this Volume)
EUROPE: A. D. 1907-1908.

NORTHWEST TERRITORIES, CANADIAN: A. D. 1896-1909.
Their Rapid Settlement.
The "American Invasion."

See (in this Volume)
CANADA: A. D. 1896-1909.

NORTHWEST TERRITORIES, CANADIAN: A. D. 1901-1902.
Census.
Increased Representation in Parliament.

See (in this Volume)
CANADA: 1901-1902.

NORWAY: A. D. 1902-1905.
Result of the Consular Question.
Secession from the Union of Crowns with Sweden.
Acceptance by King Oscar of his virtual Deposition.
Election of Prince Charles of Denmark to the Throne.

The discontent of Norway in its union with Sweden, especially because it could have no distinct national representation, consular or diplomatic, in foreign countries, is described in Volume VI. of this work.

See (in this Volume)
SWEDEN AND NORWAY.

In 1902 a Swedish-Norwegian Consular Commission was appointed to investigate the practicability of separate consuls for each of the united kingdoms, with joint diplomatic representation. The Commission produced a report very favorable to the proposition. Prolonged negotiations followed, between

representatives of the two governments, and the outlines of a system under which Norway should acquire a separate consular service were definitely settled and accepted formally by the King, on the 21st of December, 1903. When it came, however, to the definite framing of laws for carrying the plan into effect, irreconcilable disagreements arose. Several details of the arrangement which Sweden insisted on implied a precedence and superiority of standing for that kingdom in the union of crowns which offended Norwegian pride. The Norwegian Government objected to having its selection of consuls made subject to the approval of the Foreign Minister of the dual monarchy. It objected to having the King, in his commission to them, entitled "King of Sweden and Norway"; and it rejected the Swedish proposals on other points. When the Government of Sweden replied that, while it might be willing to consider some modifications of its proposals, it must maintain the important parts of them, the Norwegian Government announced that it had no further statements to make, indicating that negotiation in the matter was at an end. Thereupon, on the 7th of February, 1905, the King made public the following statement:

"Under the present circumstances I do not see that I can resolve otherwise than to approve of what the Foreign Minister has proposed; but I cannot refrain from expressing to both my peoples my hearty desire that the two kingdoms, which have now been united for nearly a century, will never let any difference of opinion be hurtful to the Union itself. This Union is in truth the safest guarantee for the independence, the security and the happiness of both my peoples."

Feeble health now compelled King Oscar to yield the functions of royalty to his son, and the Crown Prince visited Christiania, as Regent, to confer personally with the leaders in Norwegian affairs. The outcome of his visit was the resignation of the Ministry of M. Hagcrup on the 1st of March, the formation of a new Cabinet, under M. Michelsen, and the

announcement by the latter that the Government would steadfastly maintain the sovereignty of Norway, as an independent kingdom, according to the words of its constitution, the realization of which must depend on the strength and will of the Norwegian people. All attempts in the next three months to overcome or much modify the attitude of Norway were unsuccessful. In May, the Storting passed an independent Consular Bill and laid it before King Oscar, who had resumed his duties, and the King refused to sanction it, saying: "The Crown Prince, as Regent, in Joint Council of State of April 5, has already shown the only way in which this important question can be advanced and all difficulties most likely removed, viz., through negotiation. I entirely agree with this view, and do not for the time being find it expedient to sanction this law, which means an alteration of the existing joint consular service which cannot be severed except by mutual arrangement. ... When I now refuse to sanction this law I do so in accordance with the right conferred upon the King."

See in Volume I. of this work

Section 30, Title 3, of the CONSTITUTION OF NORWAY.

"... It is my equally great love to both nations which makes it my duty to exercise this right;"

On the 7th of June, M. Michelsen, the Prime Minister, and his colleagues, gave their resignations to the Storting, whereupon that body, by unanimous vote, adopted the following resolution:

"As all the members of the Council of State have resigned their offices; as his Majesty the King has declared himself unable to give the country a new Government; and as the constitutional kingdom has thus ceased to function, the Storting authorizes the members of the Ministry, to-day resigned, to exercise in the meantime, as the Government of

Norway, the authority vested in the King, in accordance with Norway's constitution and existing laws, with the alterations necessitated by the fact that the Union with Sweden under one King has ceased on account of the king having ceased to act as Norwegian King." This action was proclaimed to the people on the same day. On the 9th the Union flag was lowered from Norwegian forts and war ships and the Norwegian flag raised in its place. On the 28th of July with King Oscar's consent, the Swedish Riksdag adopted a resolution assenting to the severance of the Union, on condition that it be approved by a vote of the people of Norway. Accordingly the question was submitted to the people on the 13th of August, and all but 184 out of 368,392 votes were given in favor of the separation. A conference at Karlstadt in September arranged the future relations of the two kingdoms with success, and the dissolution was complete. It was formally acknowledged by King Oscar on October 26th.

{462}

As he made it known that he did not wish any member of his family to accept the crown of Norway if offered, the Storting authorized the Government to open negotiations with Prince Charles of Denmark, with a view to its acceptance by him, if its proffer should be sanctioned by a popular vote. Again a plebiscite was polled and a large majority given in favor of the proffer of the crown to Prince Charles. The Prince accepted, with the permission of his grandfather, the Danish King, and proposed to take the name of Haakon VII. The name was well chosen for its significance, Haakon VI. having been the last of the old royal line of Norway, which became extinct at his death in 1387. The King-elect and his wife entered Christiania on the 25th of November and took the oath of fidelity to the Norwegian Constitution on the 27th. In the following June King Haakon was anointed and crowned with solemn ceremonies, in the ancient cathedral of Trondhjem, the capital of the first King who reigned over the whole Norse realm.

NORWAY: A. D. 1903.

Agreement for Settlement of Claims against Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

NORWAY: A. D. 1907.

Treaty with Great Britain, France, Germany, and Russia
guaranteeing the Integrity of the Kingdom.

See (in this Volume)

EUROPE: A. D. 1907-1908, and 1908.

NORWAY: A. D. 1908.

Parliamentary Suffrage extended to Women.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

NORWAY: A. D. 1909 (October).

Arbitration of the Frontier Dispute with Sweden.

The maritime frontier dispute between Norway and Sweden,
consequent on their separation, was referred to The Hague
Tribunal, and decided in October, more favorably to Sweden
than to Norway, but the decision was loyally accepted by the
latter.

NOVA SCOTIA: A. D. 1901-1902.

Census.

Reduced Representation in Parliament.

See (in this Volume)

CANADA: A. D. 1901-1902.

O.

OBOLENSKI, PRINCE JOHN.

See (in this Volume)
FINLAND: A. D. 1905.

O'CONNOR, Sir N.:
British Ambassador to Turkey.

See (in this Volume)
TURKEY: A. D. 1903-1904, and 1905-1908.

OCTOBRISTS.

See (in this Volume)
RUSSIA: A. D. 1904-1905. and 1907.

ODESSA, Disturbances in.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

OGDEN, Robert C.:
Promoter of the Annual Conference for Education in the South.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1898-1909.

OIL, PETROLEUM:
The Supply and the Waste in the United States.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

OKLAHOMA: A. D. 1904.
Marvelous Growth of Fifteen Years.

"Oklahoma is the Minerva of the States. With her there was no period of slow settlement. On the day that her borders were

opened to the settler she sprang full-fledged, a vigorous young commonwealth, into the Union. And on the day that Congress admits her to Statehood she will take rank with the foremost of the Western States. Her population of a million and three hundred thousand—which is the combined population of Oklahoma and Indian Territory, according to the annual report of Governor Ferguson for the year ending June 30, 1904, it is probably somewhat more than that now [1905]—will place her in advance of at least twenty-one of her sister States, several of them among the original thirteen. Not counting Texas, only two States west of the Missouri will be her equal in number of people—Kansas and California. In old New England, three States—New Hampshire, Vermont, and Rhode Island—could be combined and still not contain as great a population as this new commonwealth in the West will have on the first day of its Statehood.

"No other State ever had such a remarkable growth and prosperity as Oklahoma. Sixteen years ago last March the prairie winds blew over wide expanses of plains with no signs of human habitation on them for miles at a stretch. A month later, on April 22, 1889, upward of one hundred thousand persons engaged in the most spectacular race in history--a race for homes.

See, in Volume V. of this work,
UNITED STATES: A. D. 1889-1890].

That was the day when the first Oklahoma counties were opened for settlement. ... At nightfall of that first day of its history Oklahoma had a larger population than the State of Nevada. Towns were surveyed, and sprung up in a night, and in a week a new empire had been created in the Southwest. A year later the Iowa, Pottawatomie, and Sac and Fox reservations were opened for settlement."

Clarence H. Matson,

Oklahoma

(American Review of Reviews, September, 1905).

OKLAHOMA: A. D. 1906-1907.

Joined in Statehood with Indian Territory and
admitted to the Union.

See (in this Volume)

UNITED STATES: A. D. 1906.

See, also, (in this Volume)

CONSTITUTION OF OKLAHOMA.

OKU, GENERAL.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

OLD AGE HOMES, in Vienna.

See (in this Volume)

POVERTY, THE PROBLEMS OF.

OLD AGE PENSIONS.

See (in this Volume)

POVERTY, THE PROBLEMS OF.

"OLD BELIEVERS," RUSSIAN.

See (in this Volume)

RUSSIA: A. D. 1905 (APRIL-AUGUST.).

OLDENBURG: A. D. 1906.

Committed to Universal Suffrage.

See (in this Volume)

ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

OMAR JAN.

See (in this Volume)
AFGHANISTAN: A. D. 1901-1904.

ONTARIO: A. D. 1901-1902.
Census.
Reduced Representation in Parliament.

See (in this Volume)
CANADA: A. D. 1901-1902.

ONTARIO: A. D. 1906-1907.
Political Experiments.
The Salaried Leader of Opposition, etc.

See (in this Volume)
CANADA: A. D. 1906-1907.

"OPEN DOOR," THE COMING OF THE EPOCH OF THE.

See (in this Volume)
WORLD MOVEMENTS.

{463}

OPIUM PROBLEM: China: A. D. 1900-1906.
Progressive Tariff and Internal Taxation measures to check
the Consumption of the Drug.

The following is from a report on opium production and
taxation in China prepared by Mr. Williams, Chinese secretary
of the United States Legation at Peking, and sent to the State
Department at Washington, in September, 1906:

[Transcriber's note: The following paragraph includes a

variety of spellings and possibly defective type slugs.
The tael was said to be worth 73 cents in gold in 1905.
The weight of the picul is 133½ pounds.]

"Previous to 1900 native opium passing through the maritime customs at Ichaug had been paying a total charge of taels, 60 per picul exclusive of taxes at the place of production. In July, 1900, the viceroy, Chang Chih-tung, with a view to checking the consumption of opium in the territory under his jurisdiction, increased this charge to taels 72 per picul, and near the close of 1901 increased it again, making it taels 80 per picul. This, with the likin charged in Szechuen, made a total on the product coming from that province of taels 84.76. Opium designed for local consumption was still more heavily taxed, being required to pay taels 90 besides the likin of Szechuen, or a total of 94.76 taels per picul. The immediate result of this action was to greatly increase smuggling and to drive legitimate traffic to the use of native junks or roundabout land routes controlled by the native customs or likin offices, and thus to reduce the receipts of the maritime customs. Another significant result was the importation of a small amount of foreign opium to a district where it had been unknown for many years. In view of these facts, in 1903 the authorities reduced the tax to a total of 76.75 taels per picul, including the Szechuen likin.

"In February, 1904, the same tax was imposed in the province of Hunan, also in the jurisdiction of the Viceroy Chang Chih-tung, and in the summer of the same year an agreement was made with the provincial authorities of the provinces of Kiangse and Anhui that one consolidated tax, to include both likin and customs duties, should be levied at a uniform rate in the four provinces, and to prevent discrimination by the native customs as against the maritime service it was agreed that the collection of this consolidated tax should be intrusted to the imperial maritime customs at Ichang and to branch offices under its control. The port of Ichang was

chosen because it is at the head of steam navigation on the Yangtze, for which reason most of the opium from Yunnan and Szechuen was sent thither for distribution. In 1905 this arrangement was extended to four other provinces, Kiangse, Fukien, Kuangtung, and Kuangsi, and the tax increased to taels 134.79 per picul for opium destined to the four inner provinces and taels 104 for that going to those on the seaboard. Previous to this latter arrangement, however, after the experience of 1902, it was seen that unless the tax on foreign opium should also be increased the effort to stamp out the vice by heavy taxation would fail, and therefore in 1903 representations were made to the British Government by the Chinese minister in London looking toward the increase of the duty upon Indian opium. The reply of the British Government, as quoted in the Peking Gazette, was that the tax on the native drug ought to be increased by the same amount as any addition made to the duty on the foreign article. Upon this a memorial was submitted to the Imperial Chinese Government, asking that the customs duty and likin on foreign and native opium be increased by an equal amount, and the matter was referred to the proper boards for consideration and report. No further report has as yet appeared relating to the negotiations respecting foreign opium. As to the native drug, the steps to increase the taxes upon it in eight of the provinces have been related above. The success of this arrangement has been so pronounced that on the 7th of May this year (1906) an imperial edict appeared directing that the system adopted in the eight provinces mentioned above should be at once extended to all the provinces of China proper and at a later date, to be hereafter determined, to Turkestan and Manchuria."

OPIUM PROBLEM: A. D. 1906.

Imperial Edict against the use of Opium.

Undertaking to suppress it in Ten Years.

By a formal edict from the throne, published in September,

1906, the imperial Government of China undertook to eradicate the use of opium in that empire, and to do so by heroic measures within ten years. A register was ordered to be made of every consumer of the drug (estimated at 40 per cent. of the vast population of the empire) and of the quantity that he consumes. Those who are under 60 years of age must thereafter diminish their consumption by not less than twenty per cent, each year, till they are free of the habit and the use is stopped. Meantime there would be a public provision of medicines to assist the cure. To those beyond 60 years in age, and to the princes, nobles, and magnates of the empire, a certain relaxation of these rules would be allowed. But all minor officials under 60 years must drop opium entirely, at once, and there would be no toleration of an acquirement of the opium habit thereafter. No further cultivation of the poppy would be allowed, and, of course, the importation would be controlled.

Tang Shao Yi, the special Chinese envoy who visited the United States and England early in 1909, had much to do with this measure on the part of his Government, and, in addressing a deputation which called on him in London, had this to say of the circumstances connected with it:

"He had always taken a deep interest in the anti-opium movement ever since he was a student in America in the early seventies. He had never realized, however, that they could attempt to make such a movement in China till he was sent by his Government to India in 1905 in connexion with the Lhasa Convention. While there he had opportunities of studying the opium question, and he was fortunate enough to make the acquaintance of the finance secretary, Mr. Baker. From him he learnt that the Government of India could dispense with the revenue derived from opium. Nothing was more surprising to him and nothing gave him greater joy than to hear that. In that year the question was brought up in England, and when he returned to China in the winter of 1905 he informed his

Government that the British public was very 'anti-opium' and also that the Indian Government was not at all anxious for the revenue derived from opium. Therefore, he told his Government that it was for the Chinese themselves to put a stop to the opium trade, and that they must not rely upon others. He had already got regulations in his head and the Government asked him to draw up certain rules to put a stop to the opium curse.

{464}

In order not to be too radical, he suggested that three years should be allowed for putting an end to it, but the Cabinet said that was too radical, and, although he suggested six years, the final decision of the Government was to make it ten years. He said that unless they put a stop to it in two or three years they might as well let this generation die out. They fully appreciated the co-operation of gentlemen in England, and he begged that they would keep up the agitation not only for their own sakes but for the sake of the Chinese people. The Chinese people wanted to be reminded that they were opium smokers and that they must give up the practice. Some scepticism had been expressed as to the genuineness of the movement in China, but he was sure that the people there were in earnest, and he trusted that his Government and people would not disappoint Great Britain."

OPIUM PROBLEM: A. D. 1909.

Progress in the Opium Reform.

An official report on the progress of the opium reform in China, by Mr. Max Müller, Councillor of the British Legation at Peking, was published as a Parliamentary Paper (Cd. 4967), early in January, 1910. In communicating the report to the Foreign Office, Sir N. Jordan wrote:

"This report shows that considerable progress continues to be made in the task which the Chinese Government undertook three years ago. There has undoubtedly been a very sensible diminution in the consumption and cultivation of opium, and a

public opinion has been formed which will greatly strengthen the hands of the Government and the provincial authorities in the drastic measures which they contemplate taking in the near future. ... That the end, however, is so near as many of the official pronouncements would seem to indicate is, I venture to think, very doubtful. We have full and reliable information about only two of the provinces—Shansi and Yunnan—and the annexes to Mr. Max Müller's report furnish eloquent testimony of the good work that has been done in both. At the opposite extreme stand Shensi, Kansu, Hupei, and Szechuan, in all of which comparatively little has been accomplished to check either the consumption or cultivation of the drug. The last-named province, which is by far the largest producing area in the Empire, will furnish the supreme test of the success or failure of the programme of total prohibition, and as the order has gone forth that no poppy is to be sown this autumn the issue on which so much depends is doubtless being fought out as this report is being written."

OPIUM PROBLEM:

International Opium Commission, in Session at Shanghai, February, 1909.

On the suggestion of Bishop Brent, of the Philippines, the Government of the United States took the initiative in bringing about the appointment of an International Commission to investigate matters connected with the use of and traffic in opium. The Commission, composed of delegates from China, Japan, Great Britain, France, Germany, Holland, Turkey, and the United States, met at Shanghai on the 1st of February, 1909, and was in session until the 26th of that month, under the presidency of Bishop Brent. Its study of the subject appears to have been made difficult and definite conclusions prevented by the lack of trustworthy Chinese statistics of the production of opium in the Empire itself, and of other important facts. The results of four weeks of investigation and discussion were embodied in nine resolutions, the first of

which recognized the sincerity of the endeavor of the Chinese Government to eradicate the great evil from its dominion, in these words: "The Commission recognizes the unswerving sincerity of the Government of China in its efforts to eradicate the production and consumption of opium throughout the Empire, the increasing body of public opinion among the Chinese by whom these efforts are supported, and the real, though unequal, progress already made in a task of the greatest magnitude."

Of the further resolutions, one urged upon all governments the importance of drastic measures to control the manufacture, sale, and distribution of morphia and other noxious derivatives of opium; another recommended scientific investigation of so-called opium remedies; a third said all countries should adopt reasonable measures to prevent the shipment of opium or its derivatives to any country which prohibits their entry. By the terms of the remaining resolutions the delegates were urged to influence as far as possible their own governments to take steps for the gradual suppression of opium smoking in their own territories respectively; to further examine into their systems for the regulation of the traffic, in the light of the experience of other countries; to enter into negotiations with China to insure the adoption of effective and prompt measures to prohibit opium traffic in those concessions and settlements. Finally, the conference recommended that each government apply its pharmacy laws to its subjects in consular districts, concessions, and settlements in China.

In some quarters the outcome of the meeting was sharply criticised as being empty of any practical fruit, and England was accused of having rendered it so, under the influence of the Indian opium trade. But the State Department at Washington gave expression to a very different view. There it was pointed out that the Commission had been one of inquiry, only; that its instructions had been "to study the opium problem and

report as to the best and most feasible means of solving it," and that this programme was executed "to the entire satisfaction of the Governments concerned." Bishop Brent, who presided over the Shanghai meeting, declared in his inaugural address:

"It devolves upon me to pronounce with emphasis that this is a commission, and as those who are informed—as all of you must be in matters that pertain to international affairs of this kind—a commission is not a conference. The idea of a conference was suggested, but it seemed wise to choose this particular form of action rather than a conference, because, for the present at any rate, we are not sufficiently well informed and sufficiently unanimous in our attitude to have a conference with any great hope of immediate success."

{465}

As between China and Great Britain there is an opium problem which does not affect other parties. An important part of British Indian revenue is derived from the opium trade, and the Government of India can hardly be expected to throw it carelessly away, not knowing with certainty that it will not be picked up as gain for somebody else. In 1906, when China opened her campaign against opium, she entered into an agreement with England that her own production of opium should be reduced to extinction within ten years, and that the importation from India (under former commercial treaties), then amounting to 51,000 chests annually, should be reduced at the rate of 5100 chests per year. It seems to have been the lack of definite evidence as to the effective fulfilment of this agreement which made the British attitude at Shanghai a halting one.

The United States Government has not suffered the movement against opium to rest where it was left by the Shanghai Commission, but has asked the governments represented in that

Commission to send delegates to a formal International Conference at The Hague.

OPIUM PROBLEM:

The Philippine Islands, taking Instruction from the Japanese in Formosa.

A committee appointed by the Philippine Commission, to investigate methods of dealing with the sale and use of opium, included an American army officer, Major Carter, a Filipino physician, Dr. Albert, and the missionary bishop of the Protestant Episcopal Church, Bishop Brent. The following is from a summary of the committee's report, published in ***The Outlook*** of March 4, 1905:

"Although the Committee visited and studied Java, Cochin China, the Straits Settlements, and various places in China, including Hong-kong, it really found the solution of the question in the Japanese administration of Formosa. ...

"It is not surprising that the Committee recommend what is practically an adaptation of the Formosan system for the Philippines. For the maintenance of this system it is indispensable that the 'opium and the traffic therein be made a strict Government monopoly immediately.' That is the first provision. 'Second, prohibition, except for medicinal purposes, after three years. Third, only licensees, who shall be males and over twenty-one years of age, shall be allowed to use opium until prohibition goes into effect. Fourth, all venders or dispensers of opium, except for medical purposes, shall be salaried officials of the Government. Fifth, every effort shall be made

- (a) to deter the young from contracting the habit by pointing out its evil effects and by legislation,
- (b) to aid in caring for and curing those who manifest a desire to give up the habit, and
- (c) to punish and, if necessary, to remove from the islands

incorrigible offenders.'"

OPIUM PROBLEM: UNITED STATES: A. D. 1909.

Act to Prohibit the Importation and Smoking of Opium.

A stringent Act prohibitory of the importation and use of opium for any other than medicinal purposes passed the Senate of the United States on the 2d of February, 1909, having already been adopted by the other House. Smoking opium is positively forbidden; no one can bring it into the country without facing a fine of from fifty to five thousand dollars and imprisonment for two years; the mere possession of opium, a preparation of, or derivative therefrom, is to be deemed sufficient evidence to authorize conviction. For medicinal purposes, opium may be brought in under regulations prescribed by the Secretary of the Treasury.

OPSONINS.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: OPSONINS.

ORANGE FREE STATE:

End of the Republic.

See (in this Volume)

SOUTH AFRICA: A. D. 1901-1902.

ORDER OF RAILWAY CONDUCTORS.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES.

ORGANIC STATUTES, The.

See (in this Volume)

FRANCE: A. D. 1905-1906.

ORMANIAN:

Armenian Patriarch.

See (in this Volume)

TURKEY: A. D. 1903-1904.

OSAKA, The Burning of.

A large part of the city of Osaka, in Japan, was destroyed by fire in August, 1909. "Had it not been for the canals the region of destruction would have been even more extensive. Citizens by the thousand fled into the surrounding country, leaving the city to its fate. By the time the flames had spent their force more than 12,000 houses had gone up in smoke, leaving more than 100,000 people homeless. Most of the municipal, government, and other important buildings of the city were destroyed. Great numbers of people are ruined, as the Japanese carry no insurance, as a rule. The amount of insurance involved, however, is about 5,000,000 yen. Fortunately, the number of casualties was not great. About a dozen were killed by falling timbers, and several were more or less injured."

OSCAR II., King of Sweden and Norway:

Surrender of the Crown of Norway.

See (in this Volume)

NORWAY: A. D. 1902-1905.

OSMEÑA, SERGIO:

President of the Philippine Assembly.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

OSTWALD, W.

See (in this Volume)
NOBEL PRIZES (CHEMISTRY)

OXFORD UNIVERSITY:
Rhodes Scholarships.

See (in this Volume)
EDUCATION: RHODES SCHOLARSHIPS.

OXFORD UNIVERSITY:
Tutorial Classes organized for Working People.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1908-1909.

P.

PACKING-HOUSE INVESTIGATION.

See (in this Volume)
PUBLIC HEALTH: PURE FOOD LAWS: UNITED STATES.

PALMA, TOMAS ESTRADA:
President of Cuba.

See (in this Volume)
CUBA: A. D. 1901-1902 and 1902.

PALMA, TOMAS ESTRADA:
Resignation of the Presidency of Cuba.

See (in this Volume)
CUBA: A. D. 1906 (AUGUST-OCTOBER).

PAN-AMERICAN SCIENTIFIC CONGRESS.

See (in this Volume)

SCIENCE AND INVENTION: INTERNATIONAL CONGRESSES.

PAN-ANGLICAN CONGRESS, 1909.

See (in this Volume)

SOCIALISM: ENGLAND: A. D. 1909.

PANAMA, REPUBLIC OF: A. D. 1903.

Secession from Colombia.

Recognized Independence.

Treaty with the United States for the Building
of the Panama Canal.

See (in this Volume)

PANAMA CANAL.

PANAMA, REPUBLIC OF: A. D. 1904.

Constitution of the Republic.

First Election.

The Constitution of the new Republic was promulgated on the
16th of February, 1904, and the election of President and
three Vice-Presidents took place, resulting in the choice of
the following:

President, Dr. Manuel Amador;

first vice-president, Dr. Pablo Arosemena;

second vice-president, Don Domingo de Obaldia;

third vice-president, Dr. Carlos Mendoza.

{466}

The third article of the Constitution declares: "The territory
of the Republic is composed of all the territory from which
the State of Panama was formed by the amendment to the Granada
constitution of 1853, on February 27, 1855, and which was

transformed in 1886 into the Department of Panama, together with its islands, and of the continental and insular territory, which was adjudged to the Republic of Colombia in the award made by the President of the French Republic on September 11, 1900. The territory of the Republic remains subject to the jurisdictional limitations stipulated or which may be stipulated in public treaties concluded with the United States of North America for the construction, maintenance, or sanitation of any means of interoceanic transit.

"The boundaries with the Republic of Colombia shall be determined by public treaties."

PANAMA, REPUBLIC OF: A. D. 1906.

Visit of President Roosevelt.

"For the first time in the history of the United States," said President Roosevelt, when he landed at Colon, November 14, 1906, preliminary to a visit and inspection of the Panama Canal, "it has become advisable for a President of the United States to step on territory not beneath the flag of the United States." He received a most hospitable welcome and entertainment in the young republic.

PANAMA, REPUBLIC OF: A. D. 1906.

Participation in Third International Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

PANAMA, REPUBLIC OF: A. D. 1909.

Pending Tripartite Treaty with Colombia and the United States.

See (in this Volume)
COLOMBIA: A. D. 1906-1909.

PANAMA CANAL: A. D. 1901-1902.

The Second Hay-Pauncefote Treaty between the United States and Great Britain.

Its Ratification.

After the rejection by the British Government of the Amendments made by the Senate of the United States to the Interoceanic Canal Treaty negotiated in February, 1900, by Mr. John Hay, United States Secretary of State, with the British Ambassador at Washington, Lord Pauncefote negotiations on the subject were renewed, with results of success in removing objections on both sides.

See, in Volume VI. of this work,
CANAL, INTEROCEANIC: A. D. 1900 (DECEMBER).

The new Treaty was signed by Mr. Hay and Lord Pauncefote at Washington on the 18th of November, 1901, and ratifications were exchanged on the 21st of February, 1902. In the preamble of the Treaty its purpose is declared to be "to facilitate the construction of a ship-canal to connect the Atlantic and Pacific Oceans, by whatever route may be considered expedient, and to that end to remove any objection which may arise out of the Convention of the 19th April, 1850, commonly called the Clayton-Bulwer Treaty, to the construction of such canal under the auspices of the Government of the United States, without impairing the 'general principle' of neutralization established in Article VIII of that Convention." The agreements and stipulations to this end are as follows:

"Article I.

The High Contracting Parties agree that the present Treaty shall supersede the afore mentioned Convention of the 19th April, 1850.

"Article II.

It is agreed that the canal may be constructed under the

auspices of the Government of the United States, either directly at its own cost, or by gift or loan of money to individuals or Corporations, or through subscription to or purchase of stock or shares, and that, subject to the provisions of the present Treaty, the said Government shall have and enjoy all the rights incident to such construction, as well as the exclusive right of providing for the regulation and management of the canal.

"Article III.

The United States adopts, as the basis of the neutralization of such ship canal, the following Rules, substantially as embodied in the Convention of Constantinople, signed the 28th October, 1888, for the free navigation of the Suez Canal, that is to say:

"1. The canal shall be free and open to the vessels of commerce and of war of all nations observing these Rules, on terms of entire equality, so that there shall be no discrimination against any such nation, or its citizens or subjects, in respect of the conditions or charges of traffic, or otherwise. Such conditions and charges of traffic shall be just and equitable.

"2. The canal shall never be blockaded, nor shall any right of war be exercised nor any act of hostility be committed within it. The United States, however, shall be at liberty to maintain such military police along the canal as may be necessary to protect it against lawlessness and disorder.

"3. Vessels of war of a belligerent shall not revictual nor take any stores in the canal except so far as may be strictly necessary; and the transit of such vessels through the canal shall be effected with the least possible delay in accordance with the Regulations in force, and with only such intermission as may result from the necessities of the service. Prizes shall be in all respects subject to the same Rules as vessels

of war of the belligerents.

"4. No belligerent shall embark or disembark troops, munitions of war, or warlike materials in the canal, except in case of accidental hindrance of the transit, and in such case the transit shall be resumed with all possible dispatch.

"5. The provisions of this Article shall apply to waters adjacent to the canal, within 3 marine miles of either end. Vessels of war of a belligerent shall not remain in such waters longer than twenty-four hours at any one time, except in case of distress, and in such case shall depart as soon as possible; but a vessel of war of one belligerent shall not depart within twenty-four hours from the departure of a vessel of war of the other belligerent.

"6. The plant, establishments, buildings, and all works necessary to the construction, maintenance, and operation of the canal shall be deemed to be part thereof, for the purposes of this Treaty, and in time of war, as in time of peace, shall enjoy complete immunity from attack or injury by belligerents, and from acts calculated to impair their usefulness as part of the canal.

"Article IV.

It is agreed that no change of territorial sovereignty or of the international relations of the country or countries traversed by the before mentioned canal shall affect the general principle of neutralization or the obligation of the High Contracting Parties under the present Treaty.

{467}

"Article V.

The present Treaty shall be ratified by the President of the United States, by and with the advice and consent of the Senate thereof, and by His Britannic Majesty: and the

ratifications shall be exchanged at Washington or at London at the earliest possible time within six months from the date hereof."

***Papers relating to the Foreign Relations of the
United States, transmitted to Congress, December, 1902.***

PANAMA CANAL: A. D. 1902.

Undertaking of the United States endorsed by
the Second Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

PANAMA CANAL: A. D. 1903.

Purchase of the Franchises and Property of the Bankrupt
French Company.

Treaty with Colombia for the Building of the Canal rejected
by the Colombian Senate.

Secession of Panama.

Recognition of the Independence of Panama.

Treaty with the new Republic for the Building and
Control of the Canal.

President Roosevelt's narrative of events.

The transactions that were preliminary to the undertaking of
the construction of an interoceanic canal through the Isthmus
of Panama, by the Government of the United States, are
narrated down to March, 1901.

See (in Volume VI. of this work)
CANAL, INTEROCEANIC.

At that time the proposed Nicaragua route was principally
contemplated, for the reason that the rights in Panama held by
the bankrupt French Company of Lesseps (see, in Volume IV.,
PANAMA CANAL) seemed unobtainable, on any terms which the

American Government could accept. A commission appointed by President McKinley to investigate the situation had reported to that effect in November, 1900, and had recommended the building of a canal on the Nicaragua route. The effect of this report, and of the manifest disposition of the American Congress to authorize the building of a Nicaragua ship canal, was to draw from the French company an offer of its Panama franchises and entire property for the sum of \$40,000,000. After long debate this offer was accepted, and negotiations were opened with the Republic of Colombia for the necessary treaty rights. Meantime the Hay-Pauncefote treaty with Great Britain, which the American Senate had amended in a manner objectionable to the British Government, was modified to the satisfaction of the latter, and the enterprise was cleared of questions except those between Colombia and the United States. The next ensuing events can be told in the words of President Roosevelt's report of them to Congress, in his Message at the opening of the session convened on the 7th of December, 1903:

"By the act of June 28, 1902," wrote the President, "the Congress authorized the President to enter into treaty with Colombia for the building of the canal across the Isthmus of Panama; it being provided that in the event of failure to secure such treaty, after the lapse of a reasonable time, recourse should be had to the building of a canal through Nicaragua. It has not been necessary to consider this alternative, as I am enabled to lay before the Senate a treaty providing for the building of the canal across the Isthmus of Panama. This was the route which commended itself to the deliberate judgment of the Congress, and we can now acquire by Treaty the right to construct the canal over this route. The question now, therefore, is not by which route the isthmian canal shall be built, for that question has been definitely and irrevocably decided. The question is simply whether or not we shall have an isthmian canal.

"When the Congress directed that we should take the Panama

route under treaty with Colombia, the essence of the condition, of course, referred not to the Government which controlled that route, but to the route itself; to the territory across which the route lay, not to the name which for the moment the territory bore on the map. The purpose of the law was to authorize the President to make a treaty with the power in actual control of the Isthmus of Panama. This purpose has been fulfilled.

"In the year 1846 this Government entered into a treaty with New Granada, the predecessor upon the Isthmus of the Republic of Colombia and of the present Republic of Panama, by which treaty it was provided that the Government and citizens of the United States should always have free and open right of way or transit across the Isthmus of Panama by any modes of communication that might be constructed, while in return our Government guaranteed the perfect neutrality of the above-mentioned Isthmus with the view that the free transit from the one to the other sea might not be interrupted or embarrassed. The treaty vested in the United States a substantial property right carved out of the rights of sovereignty and property which New Granada then had and possessed over the said territory. The name of New Granada has passed away and its territory has been divided. Its successor, the Government of Colombia, has ceased to own any property in the Isthmus. A new Republic, that of Panama, which was at one time a sovereign state, and at another time a mere department of the successive confederations known as New Granada and Colombia, has now succeeded to the rights which first one and then the other formerly exercised over the Isthmus. But as long as the Isthmus endures, the mere geographical fact of its existence, and the peculiar interest therein which is required by our position, perpetuate the solemn contract which binds the holders of the territory to respect our right to freedom of transit across it, and binds us in return to safeguard for the Isthmus and the world the exercise of that inestimable privilege. The true interpretation of the obligations upon

which the United States entered in this treaty of 1846 has been given repeatedly in the utterances of Presidents and Secretaries of State. ...

"Attorney-General Speed, under date of November 7, 1865, advised Secretary Seward as follows: 'From this treaty it can not be supposed that New Granada invited the United States to become a party to the intestine troubles of that Government, nor did the United States become bound to take sides in the domestic broils of New Granada. The United States did guarantee New Granada in the sovereignty and property over the territory. This was as against other and foreign governments.'

{468}

"For four hundred years, ever since shortly after the discovery of this hemisphere, the canal across the Isthmus has been planned. For two score years it has been worked at. When made it is to last for the ages. It is to alter the geography of a continent and the trade routes of the world. We have shown by every treaty we have negotiated or attempted to negotiate with the peoples in control of the Isthmus and with foreign nations in reference thereto our consistent good faith in observing our obligations; on the one hand to the peoples of the Isthmus, and on the other hand to the civilized world whose commercial rights we are safeguarding and guaranteeing by our action. We have done our duty to others in letter and in spirit, and we have shown the utmost forbearance in exacting our own rights.

"Last spring, under the act above referred to, a treaty concluded between the representatives of the Republic of Colombia and of our Government was ratified by the Senate. This treaty was entered into at the urgent solicitation of the people of Colombia and after a body of experts appointed by our Government especially to go into the matter of the routes

across the Isthmus had pronounced unanimously in favor of the Panama route. In drawing up this treaty every concession was made to the people and to the Government of Colombia. We were more than just in dealing with them. Our generosity was such as to make it a serious question whether we had not gone too far in their interest at the expense of our own; for in our scrupulous desire to pay all possible heed, not merely to the real but even to the fancied rights of our weaker neighbor, who already owed so much to our protection and forbearance, we yielded in all possible ways to her desires in drawing up the treaty. Nevertheless the Government of Colombia not merely repudiated the treaty, but repudiated it in such a manner as to make it evident by the time the Colombian Congress adjourned that not the scantiest hope remained of ever getting a satisfactory treaty from them. The Government of Colombia made the treaty, and yet when the Colombian Congress was called to ratify it the vote against ratification was unanimous. It does not appear that the Government made any real effort to secure ratification.

"Immediately after the adjournment of the Congress a revolution broke out in Panama. The people of Panama had long been discontented with the Republic of Colombia, and they had been kept quiet only by the prospect of the conclusion of the treaty, which was to them a matter of vital concern. When it became evident that the treaty was hopelessly lost, the people of Panama rose literally as one man. Not a shot was fired by a single man on the Isthmus in the interest of the Colombian Government. Not a life was lost in the accomplishment of the revolution. The Colombian troops stationed on the Isthmus, who had long been unpaid, made common cause with the people of Panama, and with astonishing unanimity the new Republic was started. The duty of the United States in the premises was clear. In strict accordance with the principles laid down by Secretaries Cass and Seward ... the United States gave notice that it would permit the landing of no expeditionary force, the arrival of which would mean chaos and destruction along

the line of the railroad and of the proposed canal, and an interruption of transit as an inevitable consequence. The de facto Government of Panama was recognized in the following telegram to Mr. Ehrman:

"‘The people of Panama have, by apparently unanimous movement, dissolved their political connection with the Republic of Colombia and resumed their independence. When you are satisfied that a de facto government, republican in form and without substantial opposition from its own people, has been established in the State of Panama, you will enter into relations with it as the responsible government of the territory and look to it for all due action to protect the persons and property of citizens of the United States and to keep open the isthmian transit, in accordance with the obligations of existing treaties governing the relations of the United States to that territory.’

"The Government of Colombia was notified of our action by the following telegram to Mr. Beaupré:

"‘The people of Panama having, by an apparently unanimous movement, dissolved their political connection with the Republic of Colombia and resumed their independence, and having adopted a Government of their own, republican in form, with which the Government of the United States of America has entered into relations, the President of the United States, in accordance with the ties of friendship which have so long and so happily existed between the respective nations, most earnestly commends to the Governments of Colombia and of Panama the peaceful and equitable settlement of all questions at issue between them. He holds that he is bound not merely by treaty obligations, but by the interests of civilization, to see that the peaceful traffic of the world across the Isthmus of Panama shall not longer be disturbed by a constant succession of unnecessary and wasteful civil wars.’

"When these events happened, fifty-seven years had elapsed since the United States had entered into its treaty with New Granada. During that time the Governments of New Granada and of its successor, Colombia, have been in a constant state of flux.

[The President then gives a list, by date, of 53 more or less serious disturbances of the public peace on the Isthmus which United States consuls had reported to the Government at Washington between May, 1850, and July, 1902. From this he proceeds:]

"The above is only a partial list of the revolutions, rebellions, insurrections, riots, and other outbreaks that have occurred during the period in question; yet they number 53 for the 57 years. It will be noted that one of them lasted for nearly three years before it was quelled; another for nearly a year. In short, the experience of over half a century has shown Colombia to be utterly incapable of keeping order on the Isthmus. Only the active interference of the United States has enabled her to preserve so much as a semblance of sovereignty. Had it not been for the exercise by the United States of the police power in her interest, her connection with the Isthmus would have been sundered long ago. In 1856, in 1860, in 1873, in 1885, in 1901, and again in 1902, sailors and marines from United States war-ships were forced to land in order to patrol the Isthmus, to protect life and property, and to see that the transit across the Isthmus was kept open. In 1861, in 1862, in 1885, and in 1900, the Colombian Government asked that the United States Government would land troops to protect its interests and maintain order on the Isthmus. ...

{469}

"The control, in the interest of the commerce and traffic of the whole civilized world, of the means of undisturbed transit

across the Isthmus of Panama has become of transcendent importance to the United States. We have repeatedly exercised this control by intervening in the course of domestic dissension, and by protecting the territory from foreign invasion. In 1853 Mr. Everett assured the Peruvian minister that we should not hesitate to maintain the neutrality of the Isthmus in the case of war between Peru and Colombia. In 1864 Colombia, which has always been vigilant to avail itself of its privileges conferred by the treaty, expressed its expectation that in the event of war between Peru and Spain the United States would carry into effect the guaranty of neutrality. There have been few administrations of the State Department in which this treaty has not, either by the one side or the other, been used as a basis of more or less important demands. It was said by Mr. Fish in 1871 that the Department of State had reason to believe that an attack upon Colombian sovereignty on the Isthmus had, on several occasions, been averted by warning from this Government. In 1886, when Colombia was under the menace of hostilities from Italy in the Cerruti case, Mr. Bayard expressed the serious concern that the United States could not but feel, that a European power should resort to force against a sister republic of this hemisphere, as to the sovereign and uninterrupted use of a part of whose territory we are guarantors under the solemn faith of a treaty.

"The above recital of facts establishes beyond question: First, that the United States has for over half a century patiently and in good faith carried out its obligations under the treaty of 1846; second, that when for the first time it became possible for Colombia to do anything in requital of the services thus repeatedly rendered to it for fifty-seven years by the United States, the Colombian Government peremptorily and offensively refused thus to do its part, even though to do so would have been to its advantage and immeasurably to the advantage of the State of Panama, at that time under its jurisdiction; third, that throughout this period revolutions,

riots, and factional disturbances of every kind have occurred one after the other in almost uninterrupted succession, some of them lasting for months and even for years, while the central government was unable to put them down or to make peace with the rebels; fourth, that these disturbances instead of showing any sign of abating have tended to grow more numerous and more serious in the immediate past; fifth, that the control of Colombia over the Isthmus of Panama could not be maintained without the armed intervention and assistance of the United States. In other words, the Government of Colombia, though wholly unable to maintain order on the Isthmus, has nevertheless declined to ratify a treaty the conclusion of which opened the only chance to secure its own stability and to guarantee permanent peace on, and the construction of a canal across the Isthmus.

"Under such circumstances the Government of the United States would have been guilty of folly and weakness, amounting in their sum to a crime against the Nation, had it acted otherwise than it did when the revolution of November 3 last took place in Panama. This great enterprise of building the interoceanic canal can not be held up to gratify the whims, or out of respect to the governmental impotence, or to the even more sinister and evil political peculiarities, of people who, though they dwell afar off, yet, against the wish of the actual dwellers on the Isthmus, assert an unreal supremacy over the territory. The possession of a territory fraught with such peculiar capacities as the Isthmus in question carries with it obligations to mankind. The course of events has shown that this canal can not be built by private enterprise, or by any other nation than our own; therefore it must be built by the United States.

"Every effort has been made by the Government of the United States to persuade Colombia to follow a course which was essentially not only to our interests and to the interests of the world, but to the interests of Colombia itself. These

efforts have failed; and Colombia, by her persistence in repulsing the advances that have been made, has forced us, for the sake of our own honor, and of the interest and well-being, not merely of our own people, but of the people of the Isthmus of Panama and the people of the civilized countries of the world, to take decisive steps to bring to an end a condition of affairs which had become intolerable. The new Republic of Panama immediately offered to negotiate a treaty with us. This treaty I herewith submit. By it our interests are better safeguarded than in the treaty with Colombia which was ratified by the Senate at its last session. It is better in its terms than the treaties offered to us by the Republics of Nicaragua and Costa Rica. At last the right to begin this great undertaking is made available. Panama has done her part. All that remains is for the American Congress to do its part and forthwith this Republic will enter upon the execution of a project colossal in its size and of well-nigh incalculable possibilities for the good of this country and the nations of mankind.

"By the provisions of the treaty the United States guarantees and will maintain the independence of the Republic of Panama. There is granted to the United States in perpetuity the use, occupation, and control of a strip ten miles wide and extending three nautical miles into the sea at either terminal, with all lands lying outside of the zone necessary for the construction of the canal or for its auxiliary works, and with the islands in the Bay of Panama. The cities of Panama and Colon are not embraced in the canal zone, but the United States assumes their sanitation and, in case of need, the maintenance of order therein; the United States enjoys within the granted limits all the rights, power, and authority which it would possess were it the sovereign of the territory to the exclusion of the exercise of sovereign rights by the Republic. All railway and canal property rights belonging to Panama and needed for the canal pass to the United States, including any property of the respective companies in the

cities of Panama and Colon; the works, property, and personnel of the canal and railways are exempted from taxation as well in the cities of Panama and Colon as in the canal zone and its dependencies. Free immigration of the personnel and importation of supplies for the construction and operation of the canal are granted. Provision is made for the use of military force and the building of fortifications by the United States for the protection of the transit.

{470}

In other details, particularly as to the acquisition of the interests of the New Panama Canal Company and the Panama Railway by the United States and the condemnation of private property for the uses of the canal, the stipulations of the Hay-Herran treaty are closely followed, while the compensation to be given for these enlarged grants remains the same, being ten millions of dollars payable on exchange of ratifications; and, beginning nine years from that date, an annual payment of \$250,000 during the life of the convention."

***President's Message,
December 7, 1903.***

The text of the Treaty with Panama may be found in the Volume of "Papers relating to the Foreign Relations of the United States" for 1904, pp. 543-551.

In the view of a good many critics who are not of a captious disposition, the conduct of the Government of the United States in these transactions was not as unquestionable as it appeared to President Roosevelt. Professor Coolidge, of Harvard University, in his candid and broadly studied work on "The United States as a World Power" (prepared originally in the form of lectures delivered at the Sorbonne, in Paris), remarks that "to forbid the landing of Colombian troops was to stretch the meaning of the old American right to maintain order along the line of the railway to an extent hardly justifiable in dealing with a friendly nation, and the haste

with which the administration at Washington recognized the independence of the new republic and concluded a treaty with it appeared to many people indecent. The truth was the Americans did not feel that they were dealing with a friendly nation."

PANAMA CANAL: A. D. 1904-1905.

Beginning and Organization of the Work of Construction.

"The treaty between the United States and the Republic of Panama, under which the construction of the Panama Canal was made possible, went into effect with its ratification by the United States Senate on February 23, 1904. The canal properties of the French Canal Company were transferred to the United States on April 23, 1904, on payment of \$40,000,000 to that company. On April 1, 1905, the Commission was reorganized, and it now consists of Theodore P. Shonts, chairman, Charles E. Magoon, Benjamin M. Harrod, Rear-Admiral Mordecai T. Endicott, Brigadier General Peter C. Hains, and Colonel Oswald H. Ernst. John F. Stevens was appointed chief engineer on July 1 last. Active work in canal construction, mainly preparatory, has been in progress for less than a year and a half. During that period two points about the canal have ceased to be open to debate. First, the question of route; the canal will be built on the Isthmus of Panama. Second, the question of feasibility; there are no physical obstacles on this route that American engineering skill will not be able to overcome without serious difficulty, or that will prevent the completion of the canal within a reasonable time and at a reasonable cost. This is virtually the unanimous testimony of the engineers who have investigated the matter for the Government. The point which remains unsettled is the question of type, whether the canal shall be one of several locks above sea level, or at sea level with a single tide lock. On this point I hope to lay before the Congress at an early day the findings of the Advisory Board of American and European Engineers, that at my invitation have been considering the

subject, together with the report of the Commission thereon; and such comments thereon or recommendations in reference thereto as may seem necessary.

"The American people is pledged to the speediest possible construction of a canal, adequate to meet the demands which the commerce of the world will make upon it, and I appeal most earnestly to the Congress to aid in the fulfillment of the pledge. Gratifying progress has been made during the past year and especially during the past four months. The greater part of the necessary preliminary work has been done. Actual work of excavation could be begun only on a limited scale till the Canal Zone was made a healthful place to live in and to work in. The isthmus had to be sanitated first.

See (in this Volume)
PUBLIC HEALTH: PANAMA CANAL.

This task has been so thoroughly accomplished that yellow fever has been virtually extirpated from the Isthmus and general health conditions vastly improved. The same methods which converted the island of Cuba from a pest hole, which menaced the health of the world, into a healthful place of abode, have been applied on the Isthmus with satisfactory results. There is no reason to doubt that when the plans for water supply, paving, and sewerage of Panama and Colon and the large labor camps have been fully carried out, the Isthmus will be, for the Tropics, an unusually healthy place of abode. The work is so far advanced now that the health of all those employed in canal work is as well guarded as it is on similar work in this country and elsewhere.

"In addition to sanitating the Isthmus, satisfactory quarters are being provided for employees and an adequate system of supplying them with wholesome food at reasonable prices has been created. Hospitals have been established and equipped that are without superiors of their kind anywhere. The country

has thus been made fit to work in, and provision has been made for the welfare and comfort of those who are to do the work. During the past year a large portion of the plant with which the work is to be done has been ordered. It is confidently believed that by the middle of the approaching year a sufficient proportion of this plant will have been installed to enable us to resume the work of excavation on a large scale."

***President's Message to Congress,
December 5, 1905.***

PANAMA CANAL: A. D. 1905-1909.

Prosecution and progress of the work.

Mr. John L. Stevens was in charge of the work on the Canal, as Chief Engineer, until April 1, 1907, when he resigned, and it was then determined by the Government to place it under the direction of an army engineer. The officer chosen for the service was Lieutenant-Colonel George W. Goethals, of the Engineer Corps, with Major Gaillard and Major Siebert as assistant engineers, and this arrangement has been justified amply by results. At the same time a final determination was arrived at, against the placing of any part of the work under contract; and this, too, has been approved by experience in the undertaking since. Shortly before the occurrence of these changes Mr. Shonts had resigned the chairmanship of the Canal Commission, to take the presidency of the Interborough Co. of New York, and Colonel Goethals became Chairman of the Commission as well as Chief Engineer.

{471}

In June, 1906, the original design of a sea-level canal throughout, with no locks, was dropped, after much consideration and under weighty engineering advice. As described very tersely and clearly by an English writer on the

subject, the new plan for locks is worked out as follows:

"Beginning at deep water in Limon Bay, on the Caribbean coast, there will be a tide-water channel 500 ft. wide and 6.70 miles long to Gatun. At Gatun there will be the vast dam, the ascent of which will be effected by means of two flights of locks. In each flight there will be three locks, each 1,000 ft. long, 110 ft. wide, and 41.3 ft. deep on the sills. These will give access to a lake formed by the impounded waters of the Chagres river, with a surface level 85 ft. above mean tide level.

Through this lake will extend a channel from 500 ft. to 1,000 ft. wide for 23.59 miles to Bas Obispo, the entrance to the Culebra cut. Thence through that cut there will be a channel 300 ft. wide for 8.11 miles to Pedro Miguel, the surface level being the same as that of the lake. At Pedro Miguel there will be a dam with twin locks, side by side, by which descent of 30 ft. will be made to a smaller lake 55 ft. above tide-water.

This lake, only 0.97 of a mile long, will be traversed by a channel 500 ft. wide to Miraflores, where there will be another dam, with twin flights of locks, two locks in each flight, bringing the canal down to tide level; and from Miraflores a channel 500 ft. wide will extend 8.31 miles to deep water in the Bay of Panama. The channel will nowhere, save on the lock sills, be less than 45 ft. deep, and the locks at Pedro Miguel and Miraflores will be of the same dimensions as those at Gatun."

This altered plan received much persistent criticism,—so persistent that, in January, 1909, after the election of Mr. Taft to the Presidency of the United States, but before his assumption of the office, the President-elect, who, as Secretary of War, had been the responsible administrator of the undertaking, went to the Isthmus with a selected committee of engineers, who were asked to examine and report on the plans and methods of the work. Their reports, made in February, endorsed both. In communicating them to Congress the President characterized them as showing that "the only

criticism that can be made of the work on the isthmus is that there has sometimes been almost an excess of caution in providing against possible trouble. As to the Gatun dam itself, they show that not only is the dam safe, but on the whole the plan already adopted would make it needlessly high and strong, and accordingly they recommend that the height be reduced by twenty feet, which change in the plans I have accordingly directed." Of the engineers who made the report he remarked that they "are of all the men in their profession, within or without the United States, the men who are on the whole best qualified to pass on these very questions which they examined." The membership of the committee or board was as follows: Frederic P. Stearns, James D. Schuyler, Arthur P. Davis, Isham Randolph, Henry D. Allen, John R. Freeman, and Allen Hazen.

The engineers reported that "as the Gatun earth dam was the central point of discussion, they gave it under instructions from Mr. Taft first consideration in the light of all new evidences," and they added "that the type of dam under consideration is one which meets with our unanimous approval." Dams and locks, lock gates and all other engineering structures involved in the lock-canal project, are "feasible and safe," according to the engineers, "and can be depended upon to perform with certainty their respective functions."

Considering the cost and time of construction of a sea-level canal as compared with the lock type, they held that "most of the factors which have operated to increase the cost of the lock canal would operate with similar effect to increase the cost of the sea-level canal, and at the present time there are additional factors of even greater importance to be considered as affecting the time of completion and cost of a sea-level canal." One of these they found in the Gamboa dam. If work on this were to be started as soon as possible, they asserted it "could not be completed until after the time required for the completion of the lock-canal." Further than this, they said

that "a change in the type would result in abandoning work which represents large expenditure." They claimed that by the change the river Chagres and the rivers on the Isthmus tributary thereto, "instead of being allies, would be enemies of the canal, and floods in them would greatly interfere with the work."

Replying to the criticism that "the canal region is liable to earthquake shocks, and that a sea-level canal would be less subject to injury by earthquakes than a lock canal," they asserted that "dams and locks are structures of great stability and little subject to damage by earthquake shocks," but that even if they could regard earthquakes as a source of serious damage to any type of canal on the Isthmus, "their effect upon the dams, locks and regulating works proposed for the sea-level canal would be much the same as upon similar structures of the lock canal."

Finally, they said: " We see no reason why the canal should not be completed, as estimated by the chief engineer, by January 1, 1915; in fact, it seems that a somewhat earlier date is probable, if all goes well."

PANAMA CANAL: A. D. 1909.
Prohibition in the Canal Zone.

See (in this Volume)
ALCOHOL PROBLEM: CASUAL OCCURRENCES OF SALOON
SUPPRESSION.

PAN-AMERICAN EXPOSITION.

See (in this Volume)
BUFFALO: A. D. 1901.

PAN-AMERICAN RAILWAY:
Resolution of Third International Conference

of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

PANICS, Monetary, of 1903 and 1907.

See (in this Volume)
FINANCE AND TRADE: A. D. 1901-1909.

PAN ISLAMISM.

See (in this Volume)
SENUSSIA; also ***Egypt***: A. D. 1905-1906.

PANKHURST, MRS. EMELINE.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

PANLUNG, THE CAPTURE OF.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

PAN-LUN-SHAN REDOUBT, CAPTURE OF.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

{472}

-----PAPACY: Start-----

PAPACY: A. D. 1902.

Secession of the Independent Filipino Church.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1902.

PAPACY: A. D. 1903 (July-August).

Death of Pope Leo XIII.

Election of Pius X.

The Papal seat became vacant by the death of Pope Leo XIII. on the 20th of July, 1903. The Conclave of Cardinals for the election of his successor assembled on the 31st of the month, and its choice of Cardinal Sarto, Patriarch of Venice, was made known on August 3d. The new Pope assumed the name of Pius X.

PAPACY: A. D. 1904.

Papal Prohibition of Civil Interference with
the Election of the Roman Pontiff.

The Civil Veto, in all forms, denounced.

In the first year of his pontificate, on the 20th of January, 1904, Pope Pius X. pronounced the following denunciation and prohibition of every kind of intrusion of civil authority or influence in the election of a Roman pontiff: "When first, all unworthy as we are, we ascended this chair of Peter, we deemed it a most urgent duty of our apostolic office to provide that the life of the Church should manifest itself with absolute freedom, by the removal of all extraneous interference, as her divine Founder willed that it should manifest itself, and as her lofty mission imperatively requires.

"Now if there is one function above all others in the life of the Church which demands this liberty it is certainly that which is concerned with the election of the Roman pontiff; ***for when the head is in question, the health not of one member alone but of the whole body is involved*** (Gregory XV. Constit. Aeterni Patris in proem).

"To this full liberty in the election of the Supreme Pastor is opposed first of all that civil **Veto** which has been more than once brought forward by the rulers of some states, and by which it is sought to exclude somebody from the supreme pontificate. If this has happened sometimes, it has never been approved by the apostolic see. On the contrary the Roman pontiffs, in their enactments on the conclave, have been in nothing perhaps more emphatic or more earnest than in their efforts to exclude the interference of all extraneous powers from the sacred senate of the Cardinals summoned to elect the pontiff. ...

"But, and experience has shown it, the measures hitherto taken for preventing the civil **Veto**, or **Exclusive**, have not served their purpose, and on account of the changed circumstances of the times the intrusion of the civil power in our day is more clearly than ever before destitute of all foundation in reason or equity, therefore we, by virtue of the apostolic charge entrusted to us, and following in the footsteps of our predecessors, after having maturely deliberated, with certain knowledge and by our own motion, do absolutely condemn the civil **Veto**, or **Exclusive** as it is also called, even when expressed under the form of a mere desire, and all interventions and intercessions whatsoever, decreeing that it is not lawful for anybody, not even the supreme rulers of states, under any pretext, to interpose or interfere in the grave matter of the election of the Roman pontiff.

"Wherefore, in virtue of holy obedience, under threat of divine judgment and pain of excommunication **latae sententiae** reserved in a special manner to the future pontiff, we prohibit all and single the Cardinals of holy Roman Church, and likewise the secretary of the Sacred College of Cardinals and all others who take part in the conclave to receive, even under the form of a simple desire, the office of proposing the **Veto** or **Exclusive**, or to make

known this **Veto** in whatever manner it may have come to their knowledge, to the Sacred College of Cardinals either taken as a whole or to the individual fathers Cardinals, either by writing, by word of mouth, whether directly and proximately, or indirectly and through others. And it is our will that this prohibition be extended to all the interventions above mentioned, and to all other intercessions whatsoever, by which the lay powers, of whatsoever grade and order, endeavor to intrude themselves in the election of the pontiff.

"Finally we vehemently exhort, in the same words as those used by our predecessors, that in the election of the pontiff, ***they pay no attention whatever to the appeals of secular princes or other worldly considerations*** ... but solely with the glory of God and the good of the Church before their eyes, give their votes to him whom they judge in the Lord better fitted than the others to rule the Universal Church fruitfully and usefully. It is our will also that these our letters, together with the other constitutions of the same kind, be read in the presence of all in the first of the congregations wont to be held after the death of the pontiff; again after entrance into the conclave; also when anybody is raised to the dignity of the purple, with the addition of an oath binding to the religious observance of what is decreed in the present constitution."

PAPACY: A. D. 1904.

Amenities between the Vatican and the Quirinal.

See (in this Volume)

ITALY: A. D. 1904.

PAPACY: A. D. 1904.

Increased Participation of Catholics in the Italian Elections.

See (in this Volume)

ITALY: A. D. 1904 (OCTOBER-DECEMBER).

PAPACY: A. D. 1905.

Relaxation of the Withdrawal of Italian Catholics from
Political Action.

See (in this Volume)

ITALY: A. D. 1905-1906 .

PAPACY: A. D. 1905-1906.

The Separation of Church and State in France.

See (in this Volume)

FRANCE: A. D. 1905-1906.

PAPACY: A. D. 1906.

Anti-Clerical Movement in Spain.
Proposed Associations Law.

See (in this Volume)

SPAIN: A. D. 1905-1906.

PAPACY: A. D. 1906 (February).

Encyclical "Vehementer Nos," to the Prelates, Clergy, and
People of France, concerning the Separation Law.

The following are passages from the Encyclical known, from its
opening words in the Latin text as "Vehementer Nos," which
Pope Pius X. addressed to the French nation on the 19th of
February, 1906, after the adoption of the Law separating the
Church from the State:

"To the Archbishops, Bishops, Clergy and People of France. ...
Venerable Brethren, Well-Beloved Sons, Health and Apostolic
Benediction.

"Our soul is full of sorrowful solicitude and our heart overflows with grief when our thoughts dwell upon you. How, indeed, could it be otherwise, immediately after the promulgation of that law which, by sundering violently the old ties that linked your nation with the Apostolic See, creates for the Catholic Church in France a situation unworthy of her and ever to be lamented? That is, beyond question, an event of the gravest import, and one that must be deplored by all right-minded men, for it is as disastrous to society as it is to religion; but it is an event which can have surprised nobody who has paid any attention to the religious policy followed in France of late years. For you, Venerable Brethren, it will certainly have been nothing new or strange, witnesses as you have been of the many dreadful blows aimed from time to time at religion by the public authority. You have seen the sanctity and inviolability of Christian marriage outraged by legislative acts in formal contradiction with them; the schools and hospitals laicised; clerics torn from their studies and from ecclesiastical discipline to be subjected to military service; the religious congregations dispersed and despoiled, and their members for the most part reduced to the last stage of destitution. Other legal measures which you all know have followed—the law ordaining public prayers at the beginning of each Parliamentary session and of the assizes has been abolished; the signs of mourning traditionally observed on board the ships on Good Friday suppressed; the religious character effaced from the judicial oath; all actions and emblems serving in any way to recall the idea of religion banished from the courts, the schools, the army, the navy, and, in a word, from all public establishments. These measures and others still which, one after another, really separated the Church from the State, were but so many steps designedly made to arrive at complete and official separation, as the authors of them have publicly and frequently admitted.

"On the other hand, the Holy See has spared absolutely no

means to avert this great calamity. While it was untiring in warning those who were at the head of affairs in France, and in conjuring them over and over again to weigh well the immensity of the evils that would infallibly result from their separatist policy, it at the same time lavished upon France the most striking proofs of indulgent affection. It had then reason to hope that gratitude would have stayed those politicians on their downward path, and brought them at last to relinquish their designs. But all has been in vain—the attentions, good offices and efforts of our predecessor and ourself. The enemies of religion have succeeded at last in effecting by violence what they have long desired, in defiance of your rights as a Catholic nation and of the wishes of all who think rightly. ...

"That the State must be separated from the Church is a thesis absolutely false, a most pernicious error. Based, as it is, on the principle that the State must not recognize any religious cult, it is in the first place guilty of a great injustice to God; for the Creator of man is also the founder of human societies, and preserves their existence as He preserves our own. We owe Him, therefore, not only a private cult, but a public and social worship to honor Him. Besides, it is an obvious negation of the supernatural order. It limits the action of the State to the pursuit of public prosperity during this life only, which is but the proximate object of political societies; and it occupies itself in no fashion (on the plea that this is foreign to it) with their ultimate object, which is man's eternal happiness after this short life shall have run its course. ...

"When the State broke the bonds of the Concordat and separated itself from the Church it ought, as a natural consequence, to have left her her independence and allowed her to enjoy peacefully that liberty granted by the common law which it pretended to assign to her. Nothing of the kind has been done. We recognize in the law many exceptional and odiously

restrictive provisions, the effect of which is to place the Church under the domination of the civil power. ...

"With the existence of the association of worship, the Law of Separation hinders the pastors from exercising the plenitude of their authority and of their office over the faithful, when it attributes to the Council of State supreme jurisdiction over these associations and submits them to a whole series of prescriptions not contained in common law, rendering their formation difficult and their continued existence more difficult still; when, after proclaiming the liberty of public worship, it proceeds to restrict its exercise by numerous exceptions; when it despoils the Church of the internal regulation of the churches in order to invest the State with this function; when it thwarts the preaching of Catholic faith and morals and sets up a severe and exceptional penal code for clerics—when it sanctions all these provisions and many others of the same kind in which wide scope is left to arbitrary ruling, does it not place the Church in a position of humiliating subjection and, under the pretext of protecting public order, deprive peaceable citizens, who still constitute the vast majority in France, of the sacred right of practising their religion? ...

"In addition to the wrongs and injuries to which we have so far referred, the Law of Separation also violates and tramples under foot the rights of property of the Church. In defiance of all justice, it despoils the Church of a great portion of a patrimony which belongs to her by titles as numerous as they are sacred; it suppresses and annuls all the pious foundations consecrated, with perfect legality, to divine worship and to suffrages for the dead. The resources furnished by Catholic liberality for the maintenance of Catholic schools, and the working of various charitable associations connected with religion, have been transferred to lay associations in which it would be idle to seek for a vestige of religion. In this it violates not only the rights of the Church, but the formal and

explicit purpose of the donors and testators. It is also a subject of keen grief to us that the law, in contempt of all right, proclaims as property of the State, departments or communes, the ecclesiastical edifices dating from before the Concordat. True, the law concedes the gratuitous use of them for an indefinite period, to the associations of worship, but it surrounds the concession with so many and so serious reserves that in reality it leaves to the public powers the full disposition of them. Moreover, we entertain the gravest fears for the sanctity of those temples, the august refuges of the Divine Majesty and endeared by a thousand memories to the piety of the French people. ...

{474}

"Hence, mindful of our Apostolic charge and conscious of the imperious duty incumbent upon us of defending and preserving against all assaults the full and absolute integrity of the sacred and inviolable rights of the Church, we do, by virtue of the supreme authority which God has confided to us, and on the grounds above set forth, reprove and condemn the law voted in France for the separation of Church and State as deeply unjust to God, whom it denies, and as laying down the principle that the Republic recognizes no cult. We reprove and condemn it as violating the natural law, the law of nations, and fidelity to treaties; as contrary to the Divine constitution of the Church, to her essential rights and to her liberty; as destroying justice and trampling under foot the rights of property which the Church has acquired by many titles, and, in addition, by virtue of the Concordat. We reprove and condemn it as gravely offensive to the dignity of this Apostolic See, to our own person, to the Episcopacy and to the clergy and all the Catholics of France. Therefore, we protest solemnly and with all our strength against the introduction, the voting and the promulgation of this law, declaring that it can never be alleged against the imprescriptible rights of the Church."

***Pope Pius X.,
Encyclical Letter
(American Catholic Quarterly Review, April, 1906).***

PAPACY: A. D. 1906.

Commands forbidding French Catholics to conform to the
Separation Law or the Associations Law.

See (in this Volume)
FRANCE: A. D. 1906.

PAPACY: A. D. 1906.

Pacific Relations between State and Church in Mexico.

See (in this Volume)
MEXICO: A. D. 1906.

PAPACY: A. D. 1906 (March).

Declaration of the new French Ministry on
the Church Separation Law.

See (in this Volume)
FRANCE: A. D. 1906 (JANUARY-MARCH).

PAPACY: A. D. 1906-1907.

The Separation of Church and State in France.
Further Measures and Proceedings.
The Encyclical Gravissimo.

See (in this Volume)
FRANCE: A. D. 1906-1907.

PAPACY: A. D. 1907.

Effects of the Separation Law in France.
The Catholics lose all Legal Organization.

See (in this Volume)
FRANCE: A. D. 1907.

PAPACY: A. D. 1907 (September).
Mandates of the Encyclical on Modernism.

The following passages contain the essential mandates of the
Encyclical on Modernism, issued on the 8th of September, 1907:

"The office divinely committed to us of feeding the Lord's flock has especially this duty assigned to it by Christ, namely, to guard with the greatest vigilance the deposit of the faith delivered to the saints, rejecting the profane novelties of words and oppositions of knowledge falsely so called. There has never been a time when this watchfulness of the supreme pastor was not necessary to the Catholic body; for, owing to the efforts of the enemy of the human race, there have never been lacking 'men speaking perverse things' (Acts xx., 30), 'vain talkers and seducers' (Tit. i., 10), 'erring and driving into error' (II. Tim. iii., 13). Still, it must be confessed that the number of the enemies of the cross of Christ has in these last days increased exceedingly, who are striving, by arts entirely new and full of subtlety, to destroy the vital energy of the Church, and, if they can, to overthrow utterly Christ's kingdom itself. Wherefore we may no longer be silent, lest we should seem to fail in our most sacred duty, and lest the kindness that, in the hope of wiser counsels, we have hitherto shown them should be attributed to forgetfulness of our office.

"That we may make no delay in this matter is rendered necessary especially by the fact that the partisans of error are to be sought not only among the Church's open enemies; they lie hid, a thing to be deeply deplored and feared, in her very bosom and heart, and are the more mischievous the less conspicuously they appear. We allude, venerable brethren, to many who belong to the Catholic laity, nay, and this is far

more lamentable, to the ranks of the priesthood itself, who, feigning a love for the Church, lacking the firm protection of philosophy and theology, nay, more, thoroughly imbued with the poisonous doctrines taught by the enemies of the Church, and lost to all sense of modesty, vaunt themselves as reformers, ... not sparing even the person of the Divine Redeemer, whom, with sacrilegious daring, they reduce to a simple, mere man.

"Though they express astonishment themselves, no one can justly be surprised that we number such men among the enemies of the Church, if, leaving out of consideration the internal disposition of soul, of which God alone is the judge, he is acquainted with their tenets, their manner of speech, their conduct. Nor, indeed, will He err in accounting them the most pernicious of all the adversaries of the Church. For, as we have said, they put their designs for her ruin into operation not from without, but from within; hence the danger is present almost in the very veins and heart of the Church, whose injury is the more certain, the more intimate is their knowledge of her. Moreover, they lay the axe not to the branches and shoots, but to the very root; that is, to the faith and its deepest fibres. And having struck at this root of immortality, they proceed to disseminate poison through the whole tree, so that there is no part of Catholic truth from which they hold their hand, none that they do not strive to corrupt. Further, none is more skilful, none more astute than they in the employment of a thousand noxious arts; for they double the parts of rationalist and Catholic, and this so craftily that they easily lead the unwary into error; and since audacity is their chief characteristic, there is no conclusion of any kind from which they shrink or which they do not thrust forward with pertinacity and assurance. To this must be added the fact, which indeed is well calculated to deceive souls, that they lead a life of the greatest activity of assiduous and ardent application to every branch of learning, and that they possess, as a rule, a reputation for the strictest morality. Finally, and this almost destroys all hope of cure, their very

doctrines have given such a bent to their minds that they disdain all authority and brook no restraint; and, relying upon a false conscience, they attempt to ascribe to a love of truth that which is in reality the result of pride and obstinacy.

{475}

"Once, indeed, we had hopes of recalling them to a better sense, and to this end we first of all showed them kindness as our children, then we treated them with severity, and at last we have had recourse, though with great reluctance, to public reproof. But, you know, venerable brethren, how fruitless has been our action. They bowed their head for a moment, but it was soon uplifted more arrogantly than ever. If it were a matter which concerned them alone, we might perhaps have overlooked it; but the security of the Catholic name is at stake. Wherefore, as to maintain it longer would be a crime, we must now break silence, in order to expose before the whole Church in their true colors those men who have assumed this bad disguise.

"But since the modernists (as they are commonly and rightly called) employ a very clever artifice, namely, to present their doctrines without order and systematic arrangement into one whole, scattered and disjointed one from another, so as to appear to be in doubt and uncertainty, while they are in reality firm and steadfast, it will be of advantage, venerable brethren, to bring their teachings together here into one group, and to point out the connection between them, and thus to pass to an examination of the sources of the errors and to prescribe remedies for averting the evil. ...

"Against this host of grave errors, and its secret and open advance, our predecessor, Leo XIII., of happy memory, worked strenuously, especially as regards the Bible, both in his words and his acts. But, as we have seen, the modernists are

not easily deterred by such weapons; with an affectation of submission and respect they proceeded to twist the words of the Pontiff to their own sense, and his acts they described as directed against others than themselves. And the evil has gone on increasing from day to day. We therefore, venerable brethren, have determined to adopt at once the most efficacious measure in our power, and we beg and conjure you to see to it that in this most grave matter nobody will ever be able to say that you have been in the slightest degree wanting in vigilance, zeal or firmness. And what we ask of you and expect of you we ask and expect also of all other pastors of souls, of all educators and professors of clerics, and in a very special way of the superiors of religious institutions.

"I.

In the first place, with regard to studies, we will and ordain that scholastic philosophy be made the basis of the sacred sciences, it goes without saying that if anything is met with among the scholastic doctors which may be regarded as an excess of subtlety, or which is altogether destitute of probability, we have no desire whatever to propose it for the imitation of present generations (Leo XIII. Enc. 'Aeterni Patris'). And let it be clearly understood above all things that the scholastic philosophy we prescribe is that which the Angelic Doctor has bequeathed to us, and we, therefore, declare that all the ordinances of our predecessor on this subject continue fully in force, and, as far as may be necessary, we do decree anew and confirm and ordain that they be by all strictly observed. In seminaries where they may have been neglected let the Bishops impose them and require their observance, and let this apply also to the superiors of religious institutions. Further, let professors remember that they cannot set St. Thomas aside, especially in metaphysical questions, without grave detriment.

"On this philosophical foundation the theological edifice is to be solidly raised. Promote the study of theology, venerable

brethren, by all means in your power, so that your clerics on leaving the seminaries may admire and love it, and always find their delight in it. For in the vast and varied abundance of studies opening before the mind desirous of truth everybody knows how the old maxim describes theology as so far in front of all others that every science and art should serve it and be to it as handmaidens. ...

"With regard to profane studies, suffice it to recall here what our predecessor has admirably said: 'Apply yourselves energetically to the study of natural sciences: the brilliant discoveries and the bold and useful applications of them made in our times, which have won such applause by our contemporaries, will be an object of perpetual praise for those that come after us' (Leo XIII. Alloc., March 7, 1880). But this do without interference with sacred studies, as our predecessor in these most grave words prescribed: 'If you carefully search for the cause of these errors, you will find that it lies in the fact that in these days, when the natural sciences absorb so much study, the more severe and lofty studies have been proportionately neglected; some of them have almost passed into oblivion, some of them are pursued in a half-hearted or superficial way, and, sad to say, now that they are fallen from their old estate, they have been disfigured by perverse doctrines and monstrous errors (*loco cit.*). We ordain, therefore, that the study of natural science in the seminaries be carried on under this law.'

"II.

All these prescriptions and those of our predecessor are to be borne in mind whenever there is question of choosing directors and professors for seminaries and Catholic Universities. Anybody who in any way is found to be imbued with modernism is to be excluded without compunction from these offices, and those who already occupy them are to be withdrawn. The same policy is to be adopted towards those who favor modernism, either by extolling the modernists, or excusing their culpable

conduct, by criticizing scholasticism, the Holy Father, or by refusing obedience to ecclesiastical authority in any of its depositories; and towards those who show a love of novelty in history, archaeology, Biblical exegesis, and finally towards those who neglect the sacred sciences or appear to prefer them to the profane. In all this question of studies, venerable brethren, you cannot be too watchful or too constant, but most of all in the choice of professors, for as a rule the students are modeled after the pattern of their masters. Strong in the consciousness of your duty, act always prudently, but vigorously.

"Equal diligence and severity are to be used in examining and selecting candidates for holy orders. Far, far from the clergy be the love of novelty. God hates the proud and the obstinate. For the future the doctorate of theology and canon law must never be conferred on anybody who has not made the regular course of scholastic philosophy, if conferred, it shall be held as null and void. The rules laid down in 1896 by the Sacred Congregation of Bishops and Regulars for the clerics, both secular and regular, of Italy, concerning the frequenting of the universities, we now decree to be extended to all nations. Clerics and priests inscribed in a Catholic institute or university must not in the future follow in civil universities those courses for which there are chairs in the Catholic institutes to which they belong. If this has been permitted anywhere in the past, we ordain that it be not allowed for the future. Let the Bishops who form the governing board of such Catholic institutes or universities watch with all care that these our commands be constantly observed.

{476}

"III.

It is also the duty of the Bishops to prevent writings infected with modernism or favorable to it from being read when they have been published, and to hinder their publication

when they have not. No book or paper or periodical of this kind must ever be permitted to seminarists or university students. The injury to them would be equal to that caused by immoral reading—nay, it would be greater, for such writings poison Christian life at its very fount. The same decision is to be taken concerning the writings of some Catholics, who, though not badly disposed themselves, but ill instructed in theological studies and imbued with modern philosophy, strive to make this harmonize with the faith, and, as they say, to turn it to the account of the faith. The name and reputation of these authors cause them to be read without suspicion, and they are, therefore, all the more dangerous in preparing the way for modernism.

"To give you some more general directions, venerable brethren, in a matter of such moment, we bid you do everything in your power to drive out of your dioceses, even by solemn interdict, any pernicious books that may be in circulation there. ...

"IV.

But it is not enough to hinder the reading and the sale of bad books: it is also necessary to prevent them from being printed. Hence, let the Bishops use the utmost severity in granting permission to print. Under the rules of the Constitution 'Officiorum,' many publications require the authorization of the ordinary, and in some dioceses it has been made the custom to have a suitable number of official censors for the examination of writings. We have the highest praise for this institution, and we not only exhort, but we order that it be extended to all dioceses."

***Pope Pius X.,
The Doctrines of the Modernists
(American Catholic Quarterly Review, October, 1907).***

See (in this Volume)
TYRREL, FATHER GEORGE.

PAPACY: A. D. 1907-1909.

Revision of St. Jerome's Latin Translation of the Bible,
known as "the Vulgate."

"In May, 1907, an announcement was made of the Pope's intention to revise the Latin Bible, and the work has already made such progress that the time has come to record not only the main lines upon which the revision is being carried out but also the actual completion of its preliminary preparations. ... Pius X. ... offered the honourable though costly and arduous task to the learned Order of the Benedictines, by whom it was accepted. A commission of revision was appointed, with Abbot Gasquet, the President of the English Benedictines, as its head, and the International College of the Order at San Anselmo in Rome was chosen as the headquarters of their work. It is here that Abbot Gasquet and his fellow-workers have already made a good start upon the vast labour which their Order has undertaken.

"The object of the Commission, according to the Pope's definite instructions, is to determine and restore as far as possible the original text of St. Jerome's Latin translation made in the fourth century. How far St. Jerome's translation represents the Hebrew or Greek is another question which may be the subject some day for future criticism and another commission. ... Pius X. has made it clear to the Commission that he desires their work of revision to be conducted on the most modern and scientific lines, and that neither money nor labour should be spared to make it as thorough as possible. An exhaustive search will be made through all the libraries of Europe in the hope of finding hitherto unrecognized manuscripts of the Vulgate. Already there are 15 collaborators at work in different centres, collating the best-known and most important manuscripts with the Clementine text, while another commission, with its assistants, is making a thorough examination of the libraries and cathedral archives of Spain

in search of fresh material. ...

"The method of work is as follows. For the purpose of collation copies of the Clementine text have been printed; each page being left blank for two-thirds of its surface, the text being printed on the remaining third with no capital letters, no stops, no word divided, so as to resemble manuscript as far as possible. When a reviser wishes to collate any manuscript he has only to correct this print like an ordinary proof-sheet and so reproduce every difference of the manuscript before him.

"The printing of these copies of the Vulgate, which are to form the basis of the collations, with the preparation of the texts and correction of proofs—no light matter—has been the work of the first year. Three hundred and sixty copies have been printed in all, one hundred upon the best hand-made paper, two hundred upon ordinary book paper, and sixty upon thin paper for the purpose of postage abroad. The Pope himself has defrayed the rather heavy cost of this production. Besides the printing of this Bible considerable progress has been made during the past year with the preparation of a hand list of all the Latin Biblical MSS. in the libraries of Europe, which, when completed, will be of great use to the revisers. As the collators finish their work in the various libraries or archives where Biblical manuscripts are found, they send their annotated copies to San Anselmo, where they are bound up and added to a collection which, when complete, will form a vast library of all the different versions of the Bible. Seven important collations have already been made, and at the present rate of work the number of these Volumes will increase very rapidly."

***Rome Correspondence of the London Times,
July 21, 1909.***

PAPACY: A. D. 1908.

The new Apostolic Constitution of the Curia.

A change of far-reaching and great importance in the ecclesiastical constitution of the Roman Church was decreed by Pope Pius X. this year, by the promulgation of a new Apostolic Constitution of the Curia. It reorganized the numerous Congregations or departments of the Vatican Government which had exercised the judicial functions of the Curia for some generations past. The Pope now restores these functions to an ancient ecclesiastical court, the Rota, which had fallen out of use. The Rota is constituted as an international court, before which questions between priest and bishop, bishop and diocese, and the like, will have their hearing, and from which there is appeal to a tribunal of last resort, the Segnatura, composed of Cardinals alone.

{477}

The reorganization of the Congregation of the Propaganda by this new Constitution removes from that body the ecclesiastical jurisdiction it has exercised heretofore over the Church in Great Britain, Holland, the United States, Canada, and some other countries, thus taking them out of the Roman category of missionary lands.

PAPACY: A. D. 1908.

The situation of the Church in France.

No Organization that can hold Property.

See (in this Volume)

FRANCE: A. D. 1908.

PAPACY: A. D. 1909.

Increased Participation by Catholics in the Italian Elections.

Their Gain of Seats in Parliament.

See (in this Volume)

ITALY: A. D. 1909 (MARCH).

PAPACY: A. D. 1909.

Church Movement of Agricultural Labor Organization.

See (in this Volume)

LABOR ORGANIZATION: ITALY.

PAPACY: A. D. 1909.

Demonstration against the Religious Orders in Portugal.

See (in this Volume)

PORTUGAL: A. D. 1909.

PAPACY: A. D. 1909 (April).

The Beatification of Joan of Arc.

The ceremony of the Beatification of Joan of Arc was performed at St. Peter's, in Rome, on the 18th of April, 1909.

Proceedings which began about ten years before were brought by this ceremony to the end of their first stage, beyond which they must still be continued for possibly many years, before the Canonization of "the Maid" as a Saint becomes complete. The question of the Beatification had been under consideration in the Congregation of Rites for several years. The grounds on which that question is decided, in every case, were explained by

The Catholic Union and Times, in connection with its account of the ceremony now referred to, as follows: The Congregation of Rites "may decide that the life of the person was a very worthy and very holy one, but they require much more than that. It must be proved to their satisfaction that 'miracles' have been performed. The Congregation of Rites requires evidence of not fewer than three miracles. In the case of 'miraculous cures' it must be shown that doctors have pronounced the cases hopeless, or that diseases have been cured which doctors call incurable. Usually the report contains particulars of a number of 'miracles,' from which the Congregation of Rites may make a selection. The three chosen among those attributed to Joan of Arc relate to the curing of nuns belonging to different communities, who are said to have obtained relief from their diseases by her intercession. One of these nuns had suffered for years from cancer and was on the point of death when, it was claimed, she was instantly cured by a prayer of Joan of Arc. When the Congregation of Rites has been satisfied as to the authenticity of three miracles they prepare their report, which is submitted to the Pope, who considers it. There is then a gathering at the Vatican, to which the public is admitted. Cardinals and bishops are present, and a lawyer of the papal court reads out the decision. After this, the ceremony of beatification generally takes place within a few months."

In January, 1910, it was announced in Paris that the ecclesiastical process for the Canonization would begin on February 9.

PAPACY: A. D. 1909 (May).

Vote in British House of Commons for removal of remaining Catholic Disabilities.

See (in this Volume)

ENGLAND: A. D). 1909 (MAY).

-----PAPACY: End-----

PAPER TRUST.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES:

A. D. 1901-1906, and 1909.

PARAGUAY: A. D. 1901-1906.

Participation in Second and Third International
Conferences of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

PARAGUAY: A. D. 1902.

A nearly bloodless Revolution.
Deposition of President Aceval.
Elevation of the Vice-President.

The following, translated from the Montevideo (Uruguay)
Dia, of January 10, 1902, appears in the annual report
of "Papers relating to the Foreign Relations of the United
States," 1902, as transmitted by the United States Minister to
Uruguay, and is probably an authentic account of the
revolution described:

"Yesterday, at 10 o'clock in the morning, a revolutionary
movement occurred in Asuncion del Paraguay, without bloodshed,
without noise of arms, which immediately resulted in the
imprisonment of the President of the Republic, Dr. Emilio
Aceval, in the artillery barracks. A strange case—the chief
magistrate of Paraguay has fallen, at least for the moment, on
account of a revolution, inspired and carried into practice by
two of his own ministers, Colonel Juan Antonio Ecurra and
Señor Fulgencio Moreno, who, although belonging to the same

Colorado party as the President, differ in opinion at present, the former considering that a radical policy should be adopted against the liberals or civic accordists, Dr. Aceval not sharing this opinion, but being in favor of conciliatory measures, although this did not win for him the help of his traditional adversaries, who looked unfavorably on him, as is usually the way with those belonging to an opposite party."

In his note transmitting Montevideo newspaper reports, Minister Finch wrote of the occurrence: "It was, as will be seen, a bloodless affair; but out of it grew a discussion in the Paraguay Congress which was followed by shooting, one person being killed and several wounded."

PARAGUAY: A. D. 1904.
Successful Revolution.

The beginning of a successful revolution was reported to Washington by the American Consul at Asuncion, in a despatch dated August 11, 1904, as follows: "I beg to confirm my telegram of to-day, stating that a revolution has broken out in this republic. ... Revolutionary forces on the river and those of the Government have fought. ... The Government forces were defeated, the Minister of the Interior, who led the forces, being taken prisoner. The state of siege as declared ... places the entire country under military laws, and the Government, is amassing a large number of troops to suppress the revolution. It is impossible at present to say whether it will be of long or short duration. The revolutionary forces are proceeding up the river in boats, and the Government has placed or erected defenses along the river near the capital.

{478}

"Upon inquiries as to the cause of this revolution I am informed that the opposition to the Government is that the party in power is endeavoring to exclude entirely the liberal

element from participation in the administration of affairs, assigning that said party, which is in power, which is denominated 'Colorados,' have not sufficient persons prepared for the administration of the Government. On the other hand, the 'Colorados' assign that the revolution is due to ambitious persons who form an opposition and are classed under the name 'Azul,' colorados meaning 'reds' and azul 'blues.'"

It was not until four months later that the Consul could announce the return of peace, secured by the triumph of the revolution. The president, Colonel Ezcurra, was compelled to resign, and Señor Juan Gauna was elected in his place; the army was reorganized; a general amnesty was proclaimed.

PARDO, PRESIDENT JOSE.

See (in this Volume)
PERU.

PARKER, Alton B.:
Nominated for President of the United States.

See (in this Volume)
UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

PARKER, Edward Wheeler:
On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

PAROLE SYSTEM.

See (in this Volume)
CRIME AND CRIMINOLOGY.

PARSONS, CHARLES A.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: TURBINE ENGINE.

PARTIES:

Agrarian Socialists.

See (in this Volume)

FINLAND: A. D. 1908-1909.

PARTIES:

Anti-Revolutionnaire.

See (in this Volume)

NETHERLANDS: A. D. 1905-1909.

PARTIES:

Azul.

See (in this Volume)

PARAGUAY: A. D. 1904.

PARTIES:

Blues (Conservatives).

See (in this Volume)

COLOMBIA: A. D. 1898-1902.

PARTIES:

Boshin Club.

See (in this Volume)

JAPAN: A. D. 1909.

PARTIES:

Cadets.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

PARTIES:
Catholic Peoples' Party.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1904.

PARTIES:
Center, or Centrum.

See
GERMANY: A. D. 1906-1907.

PARTIES:
Centro Catolico.

SEE PHILIPPINE ISLANDS: A. D. 1907.

PARTIES:
Christian Workmen.

See (in this Volume)
FINLAND: A. D. 1908-1909.

PARTIES:
Christlijk.

See (in this Volume)
NETHERLANDS: A. D. 1905-1909.

PARTIES:
Civillistas.

See (in this Volume)
PERU.

PARTIES:

Clerical.

See (in this Volume)

FRANCE: A. D. 1903, and 1906;

BELGIUM: A. D. 1904;

GERMANY: A. D. 1906, and 1908-1909.

PARTIES:

Colorados.

See (in this Volume)

PARAGUAY: A. D. 1902, and 1904.

PARTIES:

Confederates.

See (in this Volume)

TURKEY: A. D. 1909 (January-May).

PARTIES:

Conservatives.

See (in this Volume)

GERMANY: A. D. 1906, and 1908-1909.

PARTIES:

Conservative-Unionist.

See (in this Volume)

ENGLAND: A. D. 1905-1906, 1909 (April-December), and 1910.

PARTIES:

Continental.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),
AND 1908 (MARCH-NOVEMBER).

PARTIES:

Constitutional Democrats.

See (in this Volume)

RUSSIA: A. D. 1905-1907.

PARTIES:

Daido Club.

See (in this Volume)

JAPAN: A. D. 1909.

PARTIES:

Democratas.

See (in this Volume)

PERU.

PARTIES:

Democratic.

See (in this Volume)

UNITED STATES; A. D. 1904 (MAY-NOVEMBER),
and 1908 (APRIL-NOVEMBER).

PARTIES:

Democristiana.

See (in this Volume)

LABOR ORGANIZATION: ITALY.

PARTIES:

Democratique and Gauche Democratique.

See (in this Volume)
FRANCE: A. D. 1906.

PARTIES:
Doshi-shukai.

See (in this Volume)
JAPAN: A. D. 1903 (JUNE).

PARTIES:
Fabian Society.

See (in this Volume)
SOCIALISM: ENGLAND: A. D. 1909.

PARTIES:
Fedakiarans.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

PARTIES:
Federal Party, Filipino.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1901, and 1907.

PARTIES:
Free Traders.

See (in this Volume)
AUSTRALIA: A. D. 1905-1906.

PARTIES:
Independents.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

PARTIES:

Independent Labor.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

PARTIES:

Independistas.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

PARTIES:

Inmediatistas.

See (in this Volume)

Philippine Islands: A. D. 1907.

PARTIES:

Intransigentes.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

PARTIES:

Kossuth Party, or Independence Party.

See (in this Volume)

AUSTRIA HUNGARY: A. D. 1902-1903.

PARTIES:

Labor Party.

See (in this Volume)

AUSTRALIA: A. D. 1903-1904, and after;

ENGLAND: A. D. 1903, and 1905-1906; also
SOCIALISM: ENGLAND.

PARTIES:

League of Liberation.

See (in this Volume)

RUSSIA: A. D. 1905-1907.

PARTIES:

Liberal-Conservative Separatist.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1904.

PARTIES:

Liberals.

See (in this Volume)

CUBA: A. D. 1906, and after;

ENGLAND: A. D. 1905-1906, 1909 (APRIL-DECEMBER), and 1910;

TURKEY: A. D. 1909 (January-May).

PARTIES:

Miguelistas.

See (in this Volume)

CUBA: A. D. 1906-1909.

PARTIES:

Moderates.

See (in this Volume)

LONDON: A. D. 1909 (March);

DENMARK: A. D. 1901, and

CUBA: A. D. 1906, and after.

PARTIES:

Moderate Republicans.

See (in this Volume)

FRANCE: A. D. 1909 (JANUARY).

PARTIES:

Nacionalistas.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

PARTIES:

National Liberty.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

PARTIES:

Nationalists.

See (in this Volume)

France: A. D. 1906.

PARTIES:

Octobrists.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

PARTIES:

Old Finns.

See (in this Volume)

FINLAND: A. D. 1908-1909.

PARTIES:

Peoples, or Populist.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

PARTIES:

Progresistas.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907,

PORTUGAL: A. D. 1906-1909.

PARTIES:

Progressists.

See (in this Volume)

FRANCE: A. D. 1906;

JAPAN: A. D. 1909.

PARTIES:

Progressives.

See (in this Volume)

LONDON: A. D. 1909 (MARCH);

SOUTH AFRICA: A. D. 1902-1904.

PARTIES:

Prohibition.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),

and 1908 (APRIL-NOVEMBER).

PARTIES:

Protectionists.

See (in this Volume)
AUSTRALIA: A.D. 1903-1904, and after.

PARTIES:
Radicals and Radical Socialists.

See (in this Volume)
FRANCE: A. D. 1906.

PARTIES:
Ralliés.

See (in this Volume)
RALLIÉS.

PARTIES:
Regeneradors.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

PARTIES:
Republican.

See (in this Volume)
UNITED STATES: A. D. 1904 (MAY-NOVEMBER),
and 1908 (APRIL-NOVEMBER).

PARTIES:
Rikken Seiyu-kai, or Seiyu-kai.

See (in this Volume)
JAPAN: A. D. 1902 (AUGUST); 1903 (JUNE), and 1909;

See in Volume VI.,
JAPAN: A. D. 1900.

PARTIES:

Sinn Fein.

See (in this Volume)

IRELAND: A. D. 1905.

{479}

PARTIES:

Social Democrats.

See (in this Volume)

RUSSIA A. D. 1905-1907;

GERMANY: A. D. 1903;

DENMARK: A. D. 1906;

SOCIALISM: GERMANY,

SOCIALISM: FRANCE,

SOCIALISM: ENGLAND.

PARTIES:

Social Revolutionists.

See (in this Volume)

RUSSIA: A. D. 1905-1907.

PARTIES:

Socialist, and Socialist Labor.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),
and 1908 (APRIL-NOVEMBER).

PARTIES:

Socialists, Radical.

Socialists, Independent.

Socialists Unified.

See (in this Volume)
FRANCE: A. D. 1906.

PARTIES:
Sons of Liberal Ottomans.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

PARTIES:
Union Republicaine.

See (in this Volume)
France: A. D. 1906.

PARTIES:
Yellows (Liberals).

See (in this Volume)
COLOMBIA: A. D. 1898-1902.

PARTIES:
Young Egypt.

See (in this Volume)
EGYPT: A. D. 1909 (SEPTEMBER).

PARTIES:
Young Finns.

See (in this Volume)
FINLAND: A. D. 1908-1909.

PARTIES:
Young Turks.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER).

PARTIES:

Yushin-kai.

See (in this Volume)

JAPAN: A. D. 1909.

PARTIES:

Zayistas.

See (in this Volume)

CUBA: A. D. 1906-1909.

PARTY REFORMS, Political.

See (in this Volume)

ELECTIVE FRANCHISE: UNITED STATES.

PASSAY, FREDERIC.

See (in this Volume)

NOBEL PRIZES.

PASSIONISTS:

Forbidden to Teach in France.

See (in this Volume)

FRANCE: A. D. 1903.

"PASSIVE RESISTANCE," OF ENGLISH NONCONFORMISTS TO THE
EDUCATION ACT OF 1902.

See (in this Volume)

EDUCATION: ENGLAND: A. D. 1902, AND 1909 (MAY).

PASTEUR, Louis:

Pronounced by Popular Vote to be the Greatest Frenchman of the Nineteenth Century.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907-1908.

PATENTS OF INVENTION: GREAT BRITAIN: A. D. 1907.

Patents and Designs Act.

A requirement of the manufacture of patented articles in the United Kingdom, introduced in an Act of the British Parliament passed and approved in August, 1907, which came into force August 28, 1908, seriously changed the operation of patents issued to foreigners. It is contained in the following sections:

"27.—(1) At any time not less than four years after the date of a patent and not less than one year after the passing of this Act, any person may apply to the comptroller for the revocation of the patent on the ground that the patented article or process is manufactured or carried on exclusively or mainly outside the United Kingdom.

"(2) The comptroller shall consider the application, and, if after enquiry he is satisfied that the allegations contained therein are correct, then, subject to the provisions of this section, and unless the patentee proves that the patented article or process is manufactured or carried on to an adequate extent in the United Kingdom, or gives satisfactory reasons why the article or process is not so manufactured or carried on, the comptroller may make an order revoking the patent either—(a) forthwith; or (b) after such reasonable interval as may be specified in the order, unless in the meantime it is shown to his satisfaction that the patented article or process is manufactured or carried on within the United Kingdom to an adequate extent: Provided that no such order shall be made which is at variance with any treaty,

convention, arrangement, or engagement with any foreign country or British possession.

"(3) If within the time limited in the order the patented article or process is not manufactured or carried on within the United Kingdom to an adequate extent, but the patentee gives satisfactory reasons why it is not so manufactured or carried on, the comptroller may extend the period mentioned in the previous order for such period not exceeding twelve months as may be specified in the subsequent order.

"(4) Any decision of the comptroller under this section shall be subject to appeal to the court, and on any such appeal the law officer or such other counsel as he may appoint shall be entitled to appear and be heard."

Twelve months after the Act became effective the London ***Times*** gave the following account of its working:

"During the year which has elapsed since Section 27 came into force, 69 applications for revocation of foreign patents have been made to the Comptroller-General. In 10 cases only were patents revoked by that official. In four of these cases the patentees appealed to the High Court, and in two cases relating to improvements in electric arc lamps, the decision of the Comptroller-General was reversed, evidence having been adduced which was not placed before the Comptroller-General, the effect of which was to show that the patented process was being adequately carried on in this country. The two other appeals to the High Court were unsuccessful, so that the number of patents finally revoked was eight. Those revoked related to the following articles or processes:—Artificial stone slabs and tiles (two patents), sewing-machines, umbrellas, adhesive stays or fastening straps used in box-making, the lubrication of gig-mills, a steam motor-car, and locks. In another case, that of a patent connected with the manufacture of china clay, the Comptroller-General made a

conditional order of revocation.

"It is too early, as yet, to say whether this new power of revocation conferred by the Act of 1907 is likely to have any appreciable effect in reducing the number of foreign patents taken out in this country. In the first seven months of this year there were 17,869 such patents applied for—an increase of 1566 as compared with the corresponding period of 1908, though only an increase of 319 upon the larger figures for the first seven months of 1907. Sixteen fewer patents were taken out in 1909 by American subjects than in 1908, and 331 fewer than in 1907. The decrease in German patents has been consistent—2000 in 1907, 1822 in 1908, and 1735 in 1909, and the same may be said of Austrian patents—253, 234, and 192 respectively. French patents, which were 620 in 1907 and 670 in 1908, decreased to 560 in 1909.

PATENTS:

Pan-American Convention.

See (in this Volume)
AMERICAN REPUBLICS.

PAULHAN, M.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

PAUPERISM.

See (in this Volume)
POVERTY.

PAWLOW, Ivan PETROVIE.

See (in this Volume)
NOBEL PRIZES.

PAYNE, HENRY C.:
Postmaster-General.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

{480}

PAYNE-ALDRICH TARIFF.

See (in this Volume)
TARIFFS: UNITED STATES.

PEACE.

See (in this Volume)
WAR, THE REVOLT AGAINST.

PEACE, International:
Awards for the Promotion of.

See (in this Volume)
NOBEL PRIZES.

PEACE CONFERENCE AT THE HAGUE, The Second International.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

PEACE TREATY, BOER-BRITISH.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

PEACE TREATY OF PORTSMOUTH.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

PEARY, Robert E.:
Exploration and Discovery of the North Pole.

See (in this Volume)
POLAR EXPLORATION: ARCTIC.

PEASANT INSURRECTION IN THE BALTIC PROVINCES.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

PEASANTRY, CONDITION OF RUSSIAN.

See (in this Volume)
Russia: A. D. 1901-1904, 1902, 1904-1905, 1905, and 1906.

PECANHA, Nilo:
President of Brazil.

See (in this Volume)
BRAZIL: A. D. 1909 (JUNE).

PEKING: A. D. 1902.
Return of the Imperial Court.

See (in this Volume)
CHINA: A. D. 1902.

PEKING-KALGAN RAILWAY.

See (in this Volume)
RAILWAYS: CHINA.

PELLAGRA.

See (in this Volume)
PUBLIC HEALTH: PELLAGRA.

PENNA, DR. ALFONSO MOREIRA:
President of Brazil.

See (in this Volume)
BRAZIL: A. D. 1906.

PENNA, DR. ALFONSO MOREIRA:
Sudden death.

See (in this Volume)
BRAZIL: A. D. 1909 (JUNE).

PENNSYLVANIA: A. D. 1906.
Reform Legislation.

The popular revolt of 1905 in Philadelphia against the intolerable rottenness of municipal government under the dominant party "machine" had prompt effects in the State.

See (in this Volume)
MUNICIPAL GOVERNMENT.

"When the election, last November, and still more the reports made by working politicians in the best organized and informed machine in the land, showed that these classes wanted a change, the machine and its leaders changed instantly. A pliant governor was as prompt to call the Legislature in extra session as he had been to find reasons for the vilest excess of the political plunderers of the State. The same Legislature as before met, and in a brief session passed every measure for which reformers had been asking in vain for twenty-five years,—two of them in more drastic form than any one had yet proposed. Save that the Corrupt Practices Act is more precise

and severe than any yet passed, except in Connecticut, and the separation and protection of the civil service of Philadelphia more complete than has yet been enacted for an American city, the new legislation follows the general trend of such measures in other States."

***Review of Reviews,
April, 1906.***

PENNSYLVANIA: A. D. 1906-1908.

Frauds in the Construction of the new State Capitol.

On the 4th of October, 1906, the new State House at Harrisburg was dedicated with imposing ceremonies, honored by the President of the United States as the principal speaker of the occasion. The State of Pennsylvania was then indulging more pride in the supposed honesty and economy with which it had been built than in the splendor it displayed; for announcement was made that the Commission charged with the work had saved about 10 per cent of the \$4,000,000 appropriated for it. Very quickly, however, there came an humiliation of that honorable pride. Complete accountings showed that, while the naked structure of the building had cost but \$3,600,000, a monstrous expenditure of more than \$9,000,000 for alleged decoration and furnishing had been added to that sum, by the most audacious "graft," perhaps, that is recorded, even in the national history which included the exploits of the Tweed Ring. The arts of sculpture and painting in the decoration were dealt with most frugally; but royal emoluments went to gas-fitters and cabinet makers and their kind,—\$2,000,000 for example, for the equipment of the building with chandeliers. For woodwork in one suite of rooms, which cost the contractor \$16,089 the State had paid \$94,208. For another, he had received \$62,486, on an expenditure by himself of but \$6,145.

The investigation of these monstrous frauds, in the fruits of which many people must have shared, resulted in the arrest of

fourteen men. The arrests were made in September, 1907, and the accused were released on bail. In the following March four were convicted of defrauding the State, namely J. H. Sanderson, a contractor, W. P. Snyder, former Auditor-General of the State, W. L. Mathues, former State Treasurer, and J. M. Shumaker, former Superintendent of Public Grounds and Buildings. The execution of the sentence was suspended pending an appeal.

Sanderson and Mathues died (of nervous breakdown, it was said), while the appeal was pending. The conviction of Snyder and Shumaker was confirmed finally on the 7th of March, 1910, and their sentence to two years of imprisonment went into effect. At the same time suits were instituted by the State against all parties connected with the frauds, to recover some \$5,000,000, estimated to be the amount of plunder taken. Meantime, seven in all of the alleged participants in the conspiracy of fraud had died.

PENOLOGY.

See (in this Volume)
CRIME.

PENSIONS, FOR OLD AGE AND INFIRMITY.

See (in this Volume)
POVERTY, PROBLEMS OF.

PENSIONS:

Military.

See (in this Volume)
GERMANY: A. D. 1902.

PENSIONS:

United States: For Teachers.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1905-1908.

PENSIONS:

For Railway Employees.

See (in this Volume)

LABOR REMUNERATION: PENSIONS.

PEONAGE:

In the United States.

The following extracts are from three reports of an official investigation of practices of peonage, conducted by the Assistant Attorney-General of the United States, Mr. Charles W. Russell, in 1906-1907:

"Under the criminal law as now in force the offense of peonage may be defined as causing compulsory service to be rendered by one man to another on the pretext of having him work out the amount of a debt, real or claimed. That is Mexican peonage proper, as defined by our highest court in the *Clyatt* case (197 U. S., p. 207). But, as fully explained in my report of October, 1907, and January, 1908, where there is no indebtedness either real or claimed, a **conspiracy** to cause compulsory service of **citizens** of the United States is punishable; and so, also, according to the only court that has directly passed upon the question, is the carrying or enticing any person from one place to another in order that he may be held in compulsory service.

{481}

"I use the words 'compulsory service' as equivalent to the constitutional phrase 'involuntary servitude' because the Supreme Court so treats them in the *Clyatt* case, and I say

that a mere claim of debt is sufficient because several inferior courts have so decided, and because in the Clyatt case the indictment, to which no objection seems to have been made, alleged a mere claim of indebtedness."

For an illustration of peonage, Mr. Russell cites the following from evidence produced at the trial of a case occurring in Alabama which he took part in:

"It was proven that Harlan, the manager, had headquarters at Lockhart, where the mill was; that in his back yard were kept what were called bloodhounds—man-trailing dogs; that the object of keeping these was to send after escaping men; that they were so used, and men chased and brought back, one of them tied on the hind part of a buggy; that one of the men, the Bulgarian Jordmans, was unmercifully kicked and beaten by Gallagher for wandering off a few yards, his sore shins being exhibited to the jury as part of the evidence; that by means of telegraph, railroad, and telephone, a justice of the peace, and a deputy sheriff, the force of men were hemmed in so that escape was almost impossible; that the foremen constantly carried pistols and often made threats; that a rope was placed around the neck of one foreigner and thrown over a beam as an object-lesson to others and to frighten him, and that all this went on systematically'. ...

"I have no doubt, from my investigations and experiences, that the chief support of peonage is the peculiar system of State laws prevailing in the South, intended evidently to compel service on the part of the workingman.

"It is hoped that an enlightened self-interest and the demand for labor made necessary by the expansion of old industries and the introduction of new will lead to the amendment or repeal of the State laws which are the chief support of peonage practices.

"These State laws take various forms and are used in various ways to uphold peonage and other kinds of involuntary servitude. Some of them are vagrancy laws, some contract labor or employment laws, some fraudulent pretense or false promise laws, and there are divers others. Some few of those in question, such as absconding debtor laws, labor enticing, and board-bill laws, were not originally passed to enslave workmen; but in view of the use to which they are put, need amendment in order that they cannot be so abused.

"These laws are used to threaten workmen who, having been defrauded into going to an employer by false reports as to the conditions of employment and the surroundings, naturally become dissatisfied as soon as they find how they have been defrauded. They are used before juries and the local public to hold the peons up as law-breakers and dishonest persons seeking to avoid their 'just obligations' and to convince patriotic juries that the defendants accused of peonage should not be convicted for enforcing, still less for threatening to enforce, the laws of their State.

"Until we began our work in October, 1906, the chief supply of peons came from the slums—i. e., foreign quarters of New York, and from Ellis Island, through the operations of licensed labor agents of New York. These were reaping a rich harvest from the price per head for laborers supplied to employers at a distance, and the temptations to fill all orders and outdo rival agents by a total disregard of truth and honesty in dealing with both laborer and employer was too great for a number of these brokers."

PEPPER, CHARLES M.:

Delegate to Second International Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

PERDICARIS, ION:

Ransomed from a Moorish Brigand.

See (in this Volume)

MOROCCO: A. D. 1904-1909.

PEREIRA, JOSE HYGINO DUARTE:

Vice-President of Second International Conference
of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

PERRY, COMMODORE MATTHEW CALBRAITH:

Monument in Japan to commemorate his Advent there in 1853.

See (in this Volume)

JAPAN: A. D. 1901 (JULY).

-----PERSIA: Start-----

PERSIA: A. D. 1905-1907.

Beginnings of the Revolutionary Movement,
in the Life of Shah Muzaffer-ed-Din.

The Taking of "Bast," and its effect.

the Extortion of a Constitution and Election of
a Representative Assembly.

Death of the Shah.

The following account of conditions and events which opened,
attended and followed the late constitutional revolution in
Persia have been derived, partly from official correspondence
of the period, between the British Legation at Teheran (or
Tehran) and the Foreign Office at London, as published in Blue
Book Cd. 4581, 1909, and partly from letters and despatches to
the leading journals of London and New York.

The Shah, Muzaffer-ed-Din, who came to the throne in 1896, on the assassination of his father, Nâsr-ed-Din (see, in Volume VI. of this work, PERSIA), was credited with a desire to reform the government of his kingdom, and made considerable effort to that end in the early years of his reign; but the adverse forces controlling his court were too strong for him, and he seems to have yielded to them completely at last. He was surrounded by a corrupt ring which lived on the spoils of government, and piled debt upon debt. Under the last of the Grand Viziers (Atabegs, or Atabeks) who ruled Persia in his name before the outbreak of revolution, "governments were put up for sale, grain was hoarded and sold at extortionate prices, the Government domains were stolen or sold for the benefit of the conspirators, rich men were summoned to Teheran (or Tehran) and forced to disgorge large sums of money, oppression of every sort was countenanced for a consideration; the property, and even the lives, of all Persian subjects were at their mercy.

{482}

Finally, there was every reason to believe that a conspiracy was on foot to dethrone the foolish and impotent Shah and to oust the Valiahd [heir to the throne]. In their place was to be put the Shooa-es-Sultaneh, the Shah's younger son, who was a by-word even in Persia for extortion and injustice. The policy of the Atabeg and his friends had thus aroused the opposition of all classes in Persia: of the few more or less patriotic statesmen, who knew to what a goal the country was being led; of the priests, who felt that their old power and independence would perish with that of their country; and of the great mass of the population and the mercantile classes, who were the daily victims of the tyranny of their oppressors. In December [1905] the storm broke. The Governor of Tehran, without any just cause, ordered an aged Seyed to be cruelly beaten. A large number of the prominent Mujtehedes took 'bast' [refuge] in the shrine of Shah Abdul Azim, near the capital."

The "taking of 'bast,'" or refuge, in some sanctuary or other place of protection, is an old Persian mode of political protest or demonstration, to command attention to public discontents. In 1848 the chief persons of the Empire had taken refuge with the English and Russian Legations in order to obtain the exile of a tyrannical Minister, Mirza Aghassi, and since then it had been the custom of persons who had grievances against their own Government to take refuge under the shelter of a foreign Legation. The "Mujtehed" mentioned in the above quotation as having resorted to this expedient in December, are the higher and more influential of the Mohammedan priests in Persia, distinguished from the Mullahs or common priests, whose ranks are open to any believer who can read the Koran and who assumes to interpret its laws.

The Government used vain endeavors of bribery and intimidation to break up the "bast" at the shrine of Shah Abdul Azim. The refugees had stirred up the whole country by a published statement of grievances, appealing to the patriotism of the people, and the Shah surrendered to the effect produced. He made promises of a grant of popular representation, and of administrative reforms. By the end of January a promising state of affairs seemed to have been brought about. "The refugees were brought back to Tehran in the Shah's own carriages, escorted by an enthusiastic crowd." But dissensions between the popular leaders and the Mujtehed soon arose. "No definite step was taken to give effect to the Shah's promises, except a vague letter promising Courts of Justice and a new Code, and the appointment of a Council to consider the whole question of reforms. In this Council it soon became evident that the Government could control the leaders of the reform movement, and that the sympathies of the great Mujtehed were not heartily with the popular movement. All was outwardly quiet in Tehran, but in the provinces the people of Shiraz and Resht had taken violent measures to prevent the reappointment of the Shah's sons as their Governors, and the movement in both cases was successful. In the capital itself the streets

and the bazaars were quiet, but every day sermons were preached in the mosques, in which, as one of the popular party said, 'What we hardly dared to think a year ago was openly spoken.' The best-known preacher of Tehran, a Prince of the Imperial house, preached every Friday against the tyrannies and corruption of the Government. An order for his expulsion was issued. The chief Mujteheds, incited by the people, pressed the Government to withdraw the measure, and the Government had to yield."

In the middle of May the Shah had a paralytic stroke and was removed to the country. For some weeks there was a lull in the popular agitation. Then, early in July, the principal Mujteheds were roused by the conduct of the Grand Vizier to a fresh preaching of revolt. On the 11th the Vizier ordered the arrest of one of the preachers; a crowd of people attempted to rescue him, and was fired on by the troops. General rioting in the capital ensued, with victory, for a time, on the side of the people; but in the end the Government appeared to have won the day. "The town was in the hands of the troops. The popular leaders had fled. The Shah was in the hands of their opponents. For the popular party the outlook was a grave one."

In these circumstances the leaders had recourse again to the "bast," and this time in a Foreign Legation.

"On the evening of the 9th fifty Mullahs and merchants appeared at the Legation and took up their quarters for the night. Their numbers soon increased, and on the 2nd September there were about 14,000 persons in the Legation garden. Their conduct was most orderly. The crowd of refugees was organized by the heads of the guilds, who took measures to prevent any unauthorized person from entering the Legation grounds. Tents were put up and regular feeding places and times of feeding were provided for. The expense was borne by the principal merchants. No damage of a wilful character was done to the garden, although, of course, every semblance of a bed was

trampled out of existence, and the trees still bear pious inscriptions cut in the bark. Colonel Douglas, the Military Attache, kept watch over the Legation buildings, but no watch was needed. Discipline and order were maintained by the refugees themselves.

"The Government sent answers to the popular demands, which they requested Mr. Grant Duff to read to the people. The Government communications were received with derision. At last there appeared to be no other resource than a personal appeal to the Shah. The people stated firmly that unless their demands were granted they would remain in the Legation, as it was their only place of safety, and they maintained that until the Shah knew what was the real situation their requests would never receive due consideration. Mr. Grant Duff obtained the consent of His Majesty's Government, and announced to the Minister for Foreign Affairs that he demanded an audience. An audience was fixed for the 30th July. The audience, however, never took place. The Commander of several of the Tehran regiments, on whom the Minister of the Court and the Grand Vizier chiefly depended, made the fatal announcement that his troops would not serve against the people, and that they were on the point of themselves taking refuge in the British Legation. The Court party yielded. The Sadr Azam [Grand Vizier] resigned, and the Azad-ul-Mulk, head of the Kajar tribe [the tribe of the imperial dynasty], proceeded to Kum in order to inform the refugee Mullahs that the Shah had granted their demands for a National Assembly and for Courts of Justice.

{483}

"The chief difficulty which then confronted Mr. Grant Dull was that the people had entirely lost confidence in their own Government, and declined to treat with them except through the British Representative. When the Government made the announcement of the projected reforms, the people answered

that they would not accept the promise of the Government unless it was confirmed and guaranteed by the Government of the King of England. This was naturally impossible. Acting under instructions, Mr. Grant Duff informed the refugees that he could do no more for them, and entirely declined to guarantee the execution of the Shah's Decrees. The Government then attempted to come to an arrangement direct. It failed. The popular leaders rejected the Shah's Decrees as vague or inadequate, and where posted up in the city they were torn down and trampled on. In this extremity the Government again appealed to Mr. Grant Duff and begged him for his assistance. At his suggestion a meeting took place at the residence of the new Grand Vizier, the late Minister for Foreign Affairs, between the Government and the popular leaders. After a long discussion, at which Mr. Grant Duff took no part except when questioned, an agreement was arrived at, and an amended Rescript published which definitely promised a National Representative assembly [in the Persian language a Mejlis or Medjliss] with legislative powers. The Rescript was read out in the British Legation to the assembled refugees and was received with enthusiasm. ... On the night of the 16th the Mujteheds returned amid popular plaudits, and on the 18th a grand meeting was held in the Palace precincts as a sort of earnest of the National Assembly."

The Court party, however, had only suffered an appearance of defeat. It spent the next week "in gradually paring down all the Shah's promises, and in the production of a Rescript in which the original project of the Constitution was hardly recognizable. The late Grand Vizier, who had lingered in the neighborhood, suddenly returned to his country seat near the Shah's residence, and the Shah absolutely refused to sign the Regulations for the Assembly. The popular excitement was intense. Notice was served on Mr. Grant Duff that the people would again take refuge in the Legation, if necessary, by force. About twenty-five of the leaders actually did take up their quarters there. It seemed as if the disturbances were

about to break out anew." But now the Russian Minister came into cooperation with Mr. Grant Duff, in representations to the Shah that overcame the evil influences by which he was swayed. Regulations for the election of delegates to the Assembly were now signed; but fresh difficulties arose from the refusal of provincial governors to carry them out. These in turn were overcome and the elections were held. "Meanwhile it had been decided, in order to avoid delay, that the Tehran Members of the Council should meet at once, without waiting for the provincial Delegates, and the first session of the new Assembly was opened [October 7, 1906] by the Shah himself, in the presence of the priests, the Court, and the foreign representatives. ... The provincial Members arrived one by one as they were elected, and as yet there are many vacant places, the provinces not showing much alacrity in electing their Members. The Assembly soon showed its power. It refused absolutely to consent to the Anglo-Russian advance [of a preferred loan] on the ground that the public revenues ought not to be pledged to foreigners. It announced its intention of instituting reforms, especially in the finances of the country, and of providing itself the necessary funds for carrying on the Government by founding and endowing a National Bank. But, before taking any steps of this nature, it insisted on having a signed Constitution. A Committee was nominated to consider the terms of the Constitution, and, in consultation with a Committee named by the Government, a Constitution was drawn up and submitted to the Chamber." It did not satisfy the popular demand and scenes of confusion followed; but in the end it was amended and approved, and, on the 1st of January, 1907, the important instrument, ratified by the Shah and by the Valiahd—the heir to the crown—was delivered to the Assembly and received with joy. One week later, on the 8th of January, the Shah died.

The text of the Constitution, as translated for communication to the British Government, is given in this Volume under the heading—CONSTITUTION OF PERSIA.

PERSIA: A. D. 1907 (January-September).

The new Shah, Mohammed Ali.

His evil surroundings.

Hostility between him and the Assembly.

Prime Ministry of Atabeg-i-Azam.

The Government without money.

Inaction of the Assembly.

Discouragement of the Atabeg.

His assassination.

The new Shah, who assumed the crown under the name or title of Mohammed Ali Shah, professed acquiescence in the constitutional change which the nation had forced his father to accept; but those who knew him appear to have expected that he would act a perfidious part. That improved conditions in the country were far from settled became apparent very soon. As early as the 30th of January, Sir C. Spring-Rice, who had succeeded Mr. Grant Duff as the diplomatic representative of Great Britain, wrote to his Government: "I regret to state that the prospects of a good understanding between the Shah and the popular party are still remote. The *entourage* of the Shah, especially his father-in-law, the Naib-es-Sultaneh, is personally interested in the continuance of the existing abuses; and their influence has certainly made itself felt to a regrettable extent, and has led to increasing agitation against the Shah himself. On the other hand the action of the popular Assembly has not been such as to lead to conciliation."

The precariousness of the situation in the country, the paralysis of government and the prevalence of disorder during a number of months following, may be indicated sufficiently by a few passages from the despatches of Sir C. Spring-Rice and Mr. Charles M. Marling, Charge d'Affaires to the British Secretary for Foreign Affairs, Sir Edward Grey:

February 27, 1907.

"It is clear that a national movement of a semi-political and semi-religious character does exist and is spreading. The great Mujteheds of Kerbela are now entering on the scene, and delegates are being sent out from the capital to the provinces to preach the principles of liberty. Patriotism, of a distinctive Persian type, has always been the characteristic of the Shiite believers. The present Shah of Persia has no religious status, and, in the view of the religious leaders, no fundamental right to the allegiance of the Persians, whose real chief is no living King, but the twelfth Imam, the coming Messiah, even now present on the earth, though unseen. The patriotism of the Shiite does not therefore centre in the person of the Kaliph, but is, or can be, of a highly revolutionary character."

May 23.

An "important question has arisen in relation to an addition to the Constitution, guaranteeing equal treatment for all Persian subjects, irrespective of their creed. The mullahs protested. Of the three great Mujteheds, only one—Seyid Mohamed—declared in favour of it. The others, supported by a large body of the clergy, maintain that Mussulman law must be enforced in a Mussulman country. The clerical world is divided on the subject. A large number of the priests, headed by Seyid Mohamed and the popular preacher Sheikh Jamal-ed-Din, declare openly that the law of Mahommed is a law of liberty and equality, and that those who say otherwise are traitors to their country and unworthy of their religion. The representative of the Parsees informs me that he has great hopes that a decision will be taken favourable to toleration; but the matter is still in suspense."

"The Atabeg-i-Azam [about whom something will be told below] arrived at Tehran the 26th April, and was formally appointed

President of the Council of Ministers and Minister of the Interior on the 2nd May. He proceeded to the National Assembly on the 4th May, accompanied by his whole Cabinet, and made a statement of policy."

"The tone of the local press is getting more and more democratic, and new papers are constantly appearing. There are at present nearly thirty papers published in Tehran alone, including several dailies. Papers are also published in nearly all the provinces, and a Persian paper of a very anti-dynastic tone is published at Baku and widely circulated in Persia. Anonymous pamphlets are also widely spread in Tehran as before. A number of them are printed at Baku, and are remarkable for their inflammatory character. The Tehran pamphlets are chiefly directed against the Atabeg-i-Azam and the Government."

June 18.

"The financial condition of the Government is, if possible, worse than ever. The police of the capital are on strike; it has been found almost impossible to scrape together money enough to induce the Tehran troops to leave for the scene of the rebellion."

"The Government would, if it dared, borrow abroad to meet its present liabilities. But, in view of the popular sentiment, it does not resort to a foreign loan. It appeals to the Assembly for help, in the form of subscriptions to the proposed National Bank. The answer it receives is that the people will subscribe as soon as the rich nobles, who are known to have large sums of money, show the way. This the rich refuse to do. As to raising money by taxation, the Assembly appears to be convinced that as soon as the Government has any money in hand it will use it for the destruction of the Medjliss. Any effective control of expenditure is regarded as quite out of the question. The exasperation against the Shah is rapidly increasing."

"There is a considerable difference between the north and the south. In the south the popular movement has an almost farcical character; it turns on personal or pecuniary questions. In the north there appears to be a more or less definite political aim and a keen sense of patriotism. So far there is no sign of an anti-foreign outbreak."

July 19.

"The general condition of the whole country is undoubtedly bad, and is probably slightly worse than last month. The disturbances at Tehran have been chiefly brought about by artificial means to serve the purposes of the reactionaries. There seems, however, no reason to regard it as dangerous, though the Government has every appearance of being bankrupt, and artificial demonstrations are of daily occurrence. There is so far no reason to fear an outbreak and consequent danger to foreign lives or property."

August 15.

"The Assembly still continues to sit, and it celebrated the anniversary of the grant of the Constitution amid great scenes of popular enthusiasm. But it has done, and is doing, nothing of practical value. Its proceedings are disorderly, and it comes to no decision. The covert opposition of the Shah and his friends is conducted with considerable skill through a section of the priestly party, who are heavily subsidized. They have obtained some measure of success, and the reactionary forces show a considerable amount of vigour. But the popular leaders are not seriously afraid of these enemies, and confidently maintain that the restoration of autocracy in Persia is now impossible. The chief enemies of the Assembly are its own members."

"The Atabeg is in a state of great depression, is afraid for his life, distrustful of the Shah, and professes that he is anxious to resign. He is useful as a man holding a middle

position between Shah and people, and possessing great experience and knowledge of the country, but he is quite incapable of organizing or administering a Government or of carrying out any thorough-going reform."

September 13.

"On the evening of the 30th ultimo the Atabeg called on me and talked at length on the political situation. The general tenor of his observations was that the Shah would withdraw his opposition, the Medjliss would work with the Government, and that very shortly the Government would be able to put an end to the disorder which reigned in the country. I never saw him in better spirits.

"The next day [August 31] the Atabeg and the Ministers repaired to the Palace and requested the Shah to accept their resignations unless he would solemnly pledge himself to cooperate with the Government and the Medjliss. They obtained the promise in writing, and repaired in a body to the Assembly. The proceedings of the Assembly on that day were on the whole harmonious and satisfactory. The Atabeg read the Shah's statement, and explained that the Government and the Assembly would now be able to proceed to the serious work of reform. There was some opposition, but it was overruled. The majority of the Members showed their sympathy with the Government.

{485}

"The Atabeg left the Assembly accompanied by the principal Mujtehed, Seyed Abdullah. They reached the outer door of the Palace inclosure, and had just parted when the Atabeg was shot and killed. One of his assailants was captured, but wounded his captor and escaped; another, finding himself surrounded, shot himself. ...

"For some time lately rumours have been spread abroad through

the local press and by word of mouth to the effect that the Atabeg was in secret collusion with the Shah, for the overthrow of the Assembly and the sale of the country to Russia. Statements to this effect reached me from Members of the Assembly. There can be no doubt as to the genuineness and intensity of the feeling against the Atabeg. A French doctor, who attended one of the assassins some time before the murder, assured Mr. Churchill that he and his friends were quiet and respectable persons of the middle class, imbued with the strongest feeling of patriotism, and ready to devote their lives to the service of their country. The attacks on the Atabeg had lately gained in virulence, and had attracted universal attention. ... Popular sentiment approved the murder, and the assassins were regarded as saviours of their country. The streets of Tabreez were illuminated. The result of the Atabeg's murder is for the time to disorganize the whole system of government."

In a recent book on Persia, by W. P. Cresson, the writer, an American, who had visited the country during the final Ministry of the Atabeg Azam, and had talked with him, describes him with admiration, having been especially impressed with his liberality of views and his knowledge of European and American affairs. In his periods of exile from Persia (which occurred several times in the course of his public life) he had visited both Europe and America and studied them well.

PERSIA: A. D. 1907 (August).

Convention between Great Britain and Russia relative to Persia.

See (in this Volume)

EUROPE: A. D. 1907 (AUGUST).

PERSIA: A. D. 1907-1908 (September-June).

A series of Political Overturnings.

The Shah deserted.

Temporary Supremacy of the Assembly.
Nasr-ul-Mulk Premier.
Addition to the Constitution.
The Shah's attempted Coup d'État and failure.
Attempted Assassination of the Shah.
His successful second Coup d'Etat.
The Assembly dispersed and its dissolution proclaimed.
New Elections promised.

The assassination of the Atabeg Azam was followed soon by a strange series of overturnings in the political situation, outlined, and but slightly explained in the following excerpts from despatches of the British Legation at Tehran:

September 13, 1907.

"A deputation recently called on the Mushir-ed-Dowleh [former Grand Vizier] and asked him to take office. He refused unless he was provided with money. He said that he would not take the dangerous responsibility of accepting a foreign loan, and that unless the Persian people supplied the funds necessary to carry on the Government, or consented to the Government finding funds elsewhere, all government would be shortly impossible."

October 2.

"Shah has been solemnly informed by a Committee composed of Princes, high military and civil officials, and great landlords, and including all the reactionaries of prominence, that, unless he maintains the Constitution and works with the Medjliss their support will be withdrawn from the throne. The usual reassuring answer was returned by His Majesty. The Minister for Foreign Affairs, whose position is very precarious owing to the strike in his own Department, is opposed to them, but the head of the new Government has promised them support. The members of the Committee yesterday took a solemn oath of fidelity to the Constitution in the Assembly, where they had repaired for the purpose. Excepting

support of the Minister for Foreign Affairs the Shah is now practically isolated, though he is supposed still to entertain reactionary views."

October 3.

"Saad-ed-Dowleh has been dismissed from post of Minister for Foreign Affairs."

October 10.

"The Mushir-ed-Dowleh died very suddenly on the evening of the 13th September.

"On the 27th September the Princes and civil and military officials of note, who had up till then formed the reactionary party, presented an ultimatum to the Shah declaring their adhesion to the Constitution and the National Assembly, and threatening to sever all connection with the throne should His Majesty not cooperate with the National party. ... There was little on the surface to indicate the sudden *volte-face* of the reactionaries. The chief cause must undoubtedly be reckoned to be fear. The murder of the Atabeg ... and the suspicion that the sudden death of Mushir-ed-Dowleh was not due to natural causes, had unquestionably produced a very deep effect. ...

"The result of the first year's work of the Assembly has been on the whole rather negative, but at least it has succeeded in asserting its will against the influence of the Shah and clergy, and has now a reasonable prospect of being able to start on the path of reconstruction."

October 25.

"New Ministry has been formed under presidency of Nasr-ul-Mulk, reappointed Minister of Finance. Most important members are Mushir-ed-Dowleh, son of the late Mushir-ed-Dowleh, Foreign Affairs; Sanied-Dowleh, Interior; Mukhber-es-Sultaneh, Justice."

November 27.

"I have the honor to transmit to you herewith a full translation of the text of the Constitutional Law as passed by the National Assembly and signed by the Shah on the 8th of October.

[This addition of articles to the Constitution signed by the Shah on the 30th of December, 1906, will be found, in this Volume, appended to that instrument, under CONSTITUTION OF PERSIA.]

The Law reduces the Sovereign to practical impotence, but by far its most important part is that defining the powers of the Tribunals. Articles 71 and the succeeding Articles, though ambiguously worded, intentionally so, will, if carried into execution, deal a deadly blow at the judicial powers of the Mollahs."

{486}

December 15.

"Disorders are threatening here. Violent speeches, denouncing the Shah and demanding the exile of the Shah's Chief Adviser and Agent, Saad-ed-Dowleh and Amir Bahadur Jang, were made yesterday at a popular meeting at the principal mosque. The Ministry has resigned, but the Shah refuses to accept resignation. This morning an excited crowd gathered outside the Assembly, but was dispersed by armed men sent by the Shah."

December 15.

"Ala-ed-Dowleh, who was sent to the Palace by the Assembly with a message, and another brother of President of Assembly were arrested by the Shah at 3 o'clock this afternoon. Shah sent for Prime Minister at 5 p. m., put chains on him, and threatened to kill him five hours after sunset. I have sent to

demand assurances for Nasr-ul-Mulk's safety from the Palace, and am requesting co-operation of Russian Minister."

December 16.

"Nasr-ul-Mulk is exiled, and leaves for Resht to-day. As he fears Shah will attempt his life on the way, he begged me to send a member of the Legation with him, as was done when the late Atabeg was sent to Kum in 1897. This, I said, I was for the moment unable to do. I am, however, sending two gholams. On his arrest the Assembly dispersed, and the Anjumans, on which its real power rested, remained inactive. The other Ministers have all resigned. They were summoned to the Palace and were practically under arrest there till they also left the Palace when Nasr-ul-Mulk was released by my demand on his behalf. ... Armed partisans of Shah have occupied principal square since midday yesterday. For the present his coup d'état seems to be successful. The Committees are collecting armed round the Assembly this morning. There is no sign of danger to Europeans, and there has been as yet no fighting."

December 17.

"More armed ruffians are being brought into the town and are congregating in Cannon Square, supported by troops and guns. ... Round the Medjliss building the Anjumans [popular associations] are again assembling armed."

December 18.

"No Government has been formed. The popular party is acting strictly on the defensive, and the Committees are still guarding the Assembly. The Shah last night conceded the Assembly's demands, which are moderate."

December 22.

"Russian Minister and I have just come back from the Palace. He laid the situation before the Shah with the utmost frankness, and the strongest assurances that he would respect and uphold the Constitution were given us by His Majesty."

Steps are now being taken by us to let the Constitutionalists understand that it is incumbent upon the two Legations to see that the Shah observes the pledges he has given us."

December 31.

"Meantime [after the interview, above reported, with the Shah], the general situation had become more threatening. The Tabreez Anjuman [local assembly or Committee] had succeeded in circulating throughout Persia the threat of deposing the Shah, and the larger cities, where the idea of constitutional government has taken root, appeared to be greatly excited. Telegrams promising armed support against the Shah had been received from Shiraz, Ispahan, Resht, Kazvin, Kerman, and Meshed, and signs of sympathy had come in from other quarters. In Tehran itself, despite unmistakable signs that the Shah must yield, as he did late in the afternoon, the excitement against His Majesty was, if anything, more marked."

"It has been difficult to find a method of conveying the Shah's guarantee in a manner agreeable to the susceptibilities of the Assembly. However, on Friday Mushir-ed-Dowleh furnished M. de Hartwig with a rough draft of a declaration which we might each communicate to the President of the Assembly, and taking this as the basis we prepared a letter in French."

January 2, 1908.

"Although Tehran is now relatively quiet, and the provinces have been much less affected than might reasonably have been apprehended by the knowledge of what was happening at the capital, I fear that relief is only temporary, and that Persia is drifting nearer and nearer to complete anarchy. The struggle between the Shah and his people has resulted in a complete victory for the latter, but I am not sanguine that the prospects of the establishment of constitutional government on a durable basis have been much improved thereby. For the moment, indeed, the Shah has been completely cowed, and is now retired into the Anderoon [harem]."

January 29.

"In the early days of the month, though externally the town was quiet enough, it seemed as though another crisis might occur. The Shah, after a few days' comparative inactivity, recommenced his campaign against the Assembly."

February 28.

"The Shah, who had not been out of the Palace since he paid his state visit to the National Assembly on the 12th November, 1907, was proceeding at 3 p. m. to his country seat at Dochantapeh when a determined attempt was made on his life. The procession was formed of a motor-car in front and a carriage behind, with the usual escort of horsemen and running footmen. A little way past the house of the Manager of the Imperial Bank, and before reaching that of the Zil-es-Sultan, a fusillade was opened on the motor-car, in which it was supposed the Shah rode, by some persons from the adjoining roofs, who evidently could not see into the vehicles from their elevated position. Two bombs were then thrown at the motor-car completely shattering it, and killing two persons and wounding about seven others. The Shah, who was seated in the carriage behind the motor-car, immediately emerged and took refuge in a neighboring house."

April 24.

"While ... the general condition of Persia has been more tranquil, at the capital all the indications show but too clearly that the struggle between the Shah and the Enjumens [Committees or Associations] has lost none of its bitterness. I say advisedly the Enjumens, for in the last trial of strength, in which the Shah was again worsted, the Assembly played a very small part indeed."

May 21.

"The condition of the country is going from bad to worse, and the feeble Government is absolutely unable to do anything to

restore a decent degree of order, and even if money were forthcoming, it is in the last degree improbable that without foreign assistance any serious measure of reform can be undertaken."

{487}

June 8.

"On Saturday morning, the 6th June, an apparent reconciliation between the Shah and the popular party took place, but the next morning it was reported to His Majesty that a telegram had been sent to Zil-es-Sultan [one of the royal princes, and an aspirant to the throne] at Shiraz by the Eujumens asking him to come to Tehran and assume the Regency. The same evening the Zil's eldest son, also Serdar Mansur, Ala-ed-Dowleh, and Azad-ul-Mulk, the Head of the Kajar tribe [the imperial tribe] who took part in the agitation last week, were arrested by the Shah."

June 23.

"About 6 o'clock this morning twenty Cossacks were sent by the Shah to arrest eight persons who were in the mosque adjoining the Assembly House. The demand for the surrender of these persons met with a refusal, and a shot was fired from the mosque. Fighting then started, and is still continuing. The number of people killed is said to be large. Guns are being used by the Shah's troops."

June 23.

"The Assembly building and the mosque have been cleared by the Shah's forces, and the meeting-place of the Azerbaijan Enjumen has been destroyed. The Shah has arrested the Chief Mujtehed, Seyyid Abdullah, the Sheikh-ul-Reis, and some ten other alleged leaders of popular party. The Cossack Brigade has lost forty men. The loss on the other side is said to be very small, but the exact number is unknown. A state of siege has been proclaimed and the Enjumens have dispersed. Some shops

and houses, including that of the Zil-es-Sultan, and the Assembly building, have been pillaged."

June 25.

"The first shot was undoubtedly fired by the people in the mosque and Assembly, among whom some Deputies were included. I believe that every preparation had been made to clear the mosque by force if this proved necessary. In any case, the Shah had reasonable ground for taking strong measures, as the attack was made by the popular party on the troops. ...

"Efforts are being made to catch Deputies, and several, including the President of the Assembly, have already been arrested. The Enjumens seem to be cowed; their supporters are falling away, and the Shah has complete mastery. Yesterday morning two prisoners were strangled at the Shah's camp, and there are about thirty persons, other than Deputies, under arrest. There are now in the Legation fifty refugees.

"There has been fighting in Tabreez between the popular party and the Shah's partisans. There is no sign from the other provinces, and the Zil-es-Sultan is trying to dissociate himself from the agitation."

June 26.

"A Proclamation stating that the present Assembly is dissolved has been issued by the Shah. Proclamation announces that new elections will be held in three months, and a Senate will be formed."

PERSIA: A. D. 1908-1909.

Final Hostilities between the Shah and the Supporters of the Constitution.

Tabriz the Center of a Revolutionary Movement.

Entrance of the Bakhtiari into the Struggle.

Siege of Tabriz and its Relief by the Russians.

Capture of Teheran by the Nationalists and Bakhtiari.

Deposition of the Shah.
A child enthroned.

The occurrences of June, narrated above, were at the beginning of the final outbreak of hostilities between the partisans of the Shah and the supporters of the Constitution, which soon ran into actual civil war.

When the Shah had established his authority at Teheran, Tabriz became the center of popular opinion on the side of the Constitutionalists, or Nationalists, and the main seat of their strength. Fighting began there on the 23d of June, simultaneously with the conflict at Teheran, and continued intermittently and indecisively throughout July and August, at the end of which time the Nationalists were said to be 10,000 strong. On the 24th of September the Royalists began a bombardment of the town, with five guns, to which the Nationalists responded vigorously with four. October 10th the Nationalists assumed the offensive, attacking the camp of the besiegers, routing their cavalry, and securing possession of a desirable bridge.

On the 24th of September, under pressure from the representatives of Great Britain and Russia, the Shah decreed that a Mejlis (National Assembly) "composed of religious and proper persons, will, by the help of God and the favor of the 12th Imam, be convoked by us for the 19th Shavval"—that is, November 14—and that a law of elections should be made known by October 27. The latter date passed without producing the promised election law and no elections followed in November; but on the 8th of the latter month the Shah's partisans organized a "demonstration" at Teheran against the Constitution, on the strength of which the mendacious sovereign replied to British and Russian remonstrances against his faithlessness by saying that "a large section of the population regarded a constitutional regime as contrary to their religion." Presently, on the 22d of November, he issued

a rescript proclaiming that the Ulema had declared such an institution as a Parliament to be contrary to Islam and therefore he would not convoke it.

Early in 1909 the revolt first organized at Tabriz became rife in many parts of the nominal Empire of the Shah, both north and south. On the 25th of January *The Times of India*, published at Bombay, where commercial and political interests in Persian affairs are equally keen, described the situation then existing as follows: The "news from Persia is extremely grave, because it indicates the collapse of the Shah's authority from north to south. The Anjumans [Enjumens—a term which seems to be applied to local assemblies and to all political associations alike] of Astrabad and Lahidjan have repudiated the present regime. This means that the Caspian littoral is being lost to the Shah. What is of even greater consequence is that the spread of the revolt to Lahidjan may mean the cutting off of the trade with Teheran via Resht, which is now the principal route open to traffic. Then in the far south, almost on the Gulf littoral, the Nationalists of Laristan have thrown off all semblance of the Shah's authority. Recently it was stated that the Bakhtiari had risen in revolt, and had looted Isfahan. It was not to be expected that the Lars, of which the Bakhtiari are an offshoot and who enjoy a modified independence, would remain quiescent under these conditions. Reuter is however in error in stating that these tribal fights 'are interrupting' communications between Bushire and Shiraz.

{488}

These have been interrupted for many months, and as we stated on Friday, the muleteers who usually ply between Bushire and Shiraz some time ago removed their animals to the Resht-Teheran road. The insecurity of this route is illustrated by the fact that the Derya Begi, the fount of Persian dignity at Bushire, was held up and robbed on his way from Teheran to his charge on the coast. All these straws point to the rapidity with which anarchy is spreading."

The Bakhtiari referred to in this account of affairs, and who now began to bear an important part in the Persian revolutionary conflict, are a semi-independent and nomadic tribe, occupying the region of the mountains which bear the same name, in western Persia, within the provinces of Luristan and Khuzistan. They claim, it is said, by descent from the Bactrians of remote antiquity, to represent the purest blood of ancient Iran. In connection with recent disturbances, they began to be mentioned in June, 1907. The head of one faction among them, Semsam-es-Sultaneh, had then been removed by the Persian provincial governor from the post of Ilkhani (a title surviving from the Mongol conquest of the 13th century,—see PERSIA: A. D. 1258-1393, in Volume IV. of this work), and his supporters were reported to be "out in every direction attacking caravans." The only mention of them in the following months was as pestilent bandits in the Ispahan quarter, holding the roads and breaking up commerce and travel; but they came at last into Persian history as allies of the Nationalists in the struggle for Constitutional Government.

Press reports from Tabriz in February were to the effect that the Shah's forces, estimated at 12,000 in number, had closely invested the town; that the besieged Nationalists were provisioned for two months, and were making sorties daily. Also that Resht was full of armed Caucasian revolutionaries. At the middle of March a correspondent of the London **Times** made his way from Teheran to Resht, and found that the revolutionary movement there was entirely "exotic." "If the Caucasian element was removed," he wrote, "nothing would remain. One can estimate fairly accurately that there are about 600 men under arms in the town and on the road. It is said that 5 per cent. of these are Persians. This morning I watched the departure of a contingent of men for the front. Greeks, Kurds, Armenians, Tartars, Russians—all the Caucasian peoples were represented, but not a single man of the race for the advancement of whose cause these men have taken arms."

This correspondent was led to suspect, as others have done, that the religious movement in Persia known as "Babism" (see, in Volume I. of this work, under BAB) had much to do, in a secret way, with the existing revolutionary undertaking. "Those who are in a position to judge," he said, "estimate the present proportion of Babis in the population of Persia at from 10 to 30 per cent. I have, indeed, heard the Persians estimate it as high as 50 per cent."

Before the end of March the Nationalists were in control of the ports of Bender Abbas and Bushire on the Persian Gulf. On the 30th of March the following went to the London **Times** from Teheran: "In spite of numerous defections to the Nationalist side during the last fortnight, the situation at Teheran remains practically unaltered. The Cossack Brigade is still the premier factor, and there seems no reason to doubt either its allegiance to the Shah or its ability to deal with any element of disturbance likely to arise in the capital. The bazaars remain partially closed, but the business of the town proceeds without interruption.

"From outside there is nothing to apprehend for the present. The Bakhtiari have made no sign, though their position has been rendered materially more secure by the recent espousal of Nationalism by the most notable family at Shiraz. From Resht the revolutionaries continue to launch remonstrance, warning, and anathema at the Shah, but they are too wise to march on the capital without a lead from elsewhere.

"To-day's news from Tabriz indicates that the situation of the town is extremely grave. A section of the Nationalists advocate negotiating with the besiegers, but Satar Khan has decided to continue his resistance. The stores of food are to be appropriated for the fighting men, and when the stock remaining is exhausted the inhabitants will have no alternative but to leave the town and run the gauntlet of the

Shah's lambs."

The Cossack Brigade referred to in the despatch above was a body of Persian Cossacks which had been for some time past in the service of the Shah, under the command of a Russian officer, Colonel Liakhoff. In the House of Commons, on the 24th of March, the British Secretary for Foreign Affairs was sharply questioned as to this employment of a Russian officer, and the alleged employment of others, in the Shah's service, and asked whether they were serving the Shah or the Tsar. In reply he said: "It may be that in the events of the summer—what is called the coup d'État—Colonel Liakhoff, the Russian officer in command of the Persian Cossacks, who had been lent to the Shah for the purpose, I understand, of disciplining that body of Persian Cossacks, to provide a bodyguard for the Shah, and in case of need to preserve order in Teheran—it may be that he exceeded the limit of those purposes. If he did so I am convinced that it was not by the instructions, on the authority, or with the approval of the Russian Government; and since the coup d'Etat there has been no question, according to reports which we have received, that the Russian officers who remained in the service of the Shah have kept within the limits of the purposes for which they were lent to the service of the Shah, and have not taken part in anything that could be called political encounters in Persia. If Colonel Liakhoff exceeded the limits in Teheran, he acted directly under the Government of the Shah, and the question whether the Russian Government approve or disapprove his action is one between himself and them, and is not a matter on which we are called upon to express an opinion."

On the 5th of April it was reported that the sufferings of Tabriz "are increasing daily, and it is undoubted that a great tragedy is approaching. If Tabriz holds out, thousands must die of starvation, while, if it falls, probably tens of thousands will be massacred." A fortnight later, on the 20th. the Shah yielded to the insistence of the British and Russian

Legations that he should allow an armistice at Tabriz of six days and the importation into the town of sufficient food for that period.

{489}

Meantime a detachment of Russian Cossacks, under General Snarsky, had crossed the frontier into Persia, and was marching to Tabriz with supplies. This Russian relief expedition, approved by the British Government, reached the beleaguered city without resistance on the 30th, and its presence brought the conflict at that point to an end. A correspondent of ***The Times***, who had been in Tabriz throughout the siege, taking some leadership in the defence (in company with a teacher attached to the American Mission's high school, Mr. Baskerville, who met death in the fighting) and who gave, two months later, a graphic narrative of the experience, said in concluding it:

"Tabriz was ultimately saved by the coming of the Russians. Their entry into the town was the direct cause of the opening of the roads, the dispersal of the disappointed armies of the Shah, the promulgation of the Constitution, and the appointment of a Constitutionalist Ministry. It saved Tabriz from a surrender which could not otherwise have been delayed for three days longer, and thereby it averted the complete collapse of the Constitutional movement."

With victory at Tabriz snatched from him, the Shah ostensibly threw up his hands. On the 5th of May it was announced that he had "signed an Imperial rescript acknowledging that the disorderly condition of the country imposed the necessity of taking measures to reorganize the administration. The rescript recognizes that this can only be secured through the constitutional principle, and his Majesty fixes July 19 for the election of a representative Assembly, for the formation of which electoral laws will soon be promulgated."

This revival of promises failed, however, to arrest the

revolutionary movement. On the 7th of May the Nationalists expelled a royal force from Kazvin—less than a hundred miles from Teheran—and declared their intention to march on Teheran. "They are well-armed and well-mounted," said a correspondent who came from Kazvin, "and possessed of plenty of money. Their commander, a Sipahdar, and his second in command, an Afghan, are now at Kazvin, and everything points to the possibility of early action. The Bakhtiari, who have assembled at Ispahan and number 3,000, also declare their intention of marching on Teheran."

Of the Sipahdar, who now becomes the fighting leader of the Nationalists, a writer in the New York *Evening Post* relates that "when a merchant in Tabriz, he offered the government his services in wiping out the brigands who scoured the provinces, and, selecting a picked band, went out to fight fire with fire, by the same methods of terrorizing that the robbers had employed. As a result, he made the provinces safe, at least."

Pressed by the Russian Legation to withdraw from Kazvin, pending the fulfilment of the Shah's promises, the Sipahdar, commanding there, declared that he could not control his men. The situation was complicated by the presence of the Russians at Tabriz. As *The Times* correspondent wrote: "The perfectly unambiguous declaration by Russia that her troops will be withdrawn from Tabriz the moment order is restored and danger to Europeans is past is valueless in the eyes of Persians while the troops are there."

The framing of a new electoral law, to the satisfaction of an electoral committee of the Nationalists, was finished on the 6th of June, and the Shah's signature to it was expected in a few days. High hopes were placed on the coming of Nasr-ul-Mulk, the exiled statesman at Paris, who had been solicited to accept the Prime Ministry, and who seemed slow to take the proffered honor. But the wrecked structure of

constitutional government could not so easily be set in motion. The revolutionaries at Kazvin became threatening again, and were in motion toward Teheran before the end of June, while the Bakhtiari began a simultaneous advance. On the 29th of June the Russian Government issued orders "to assemble a considerable force at Baku, to be held in readiness in case of a *coup de main* against the Persian capital."

Meantime the new electoral law had been signed, but not promulgated, "owing to the prevailing excitement," it was said.

On the 3d of July the Russian Government addressed a Circular Note on the situation in Persia to the Governments of foreign Powers, saying, in part:

"The Imperial Government, on consideration of the position of affairs, has come to the conclusion that the principle of absolute non-interference in the internal affairs of Persia and in the conflict between the Shah and the Persian people must remain, now as formerly, the basis of its policy in Persia. In this connexion we could not leave out of sight the fact that in the event of the Bakhtiari and revolutionaries entering Teheran the Russian and other European Legations and European institutions and subjects, as well as our road from Enzeli (on the Caspian Sea) to Teheran, might find themselves in an extremely dangerous position, and the more so because, according to information which has reached us, the only Regular troops at the Shah's disposal consist of the Persian Cossack Brigade, which is at present so weakened that it is scarcely in a condition to maintain order in Teheran.

"This circumstance imposes upon the Imperial Government the moral obligation to take all measures in order that, in case of necessity, it may be possible to render effective aid to the above-mentioned (European) establishments and subjects and to ensure unrestricted traffic between Teheran and Enzeli in all circumstances. It has, therefore, been decided to send a

force from Baku to Enzeli consisting of one regiment of Cossacks, one battalion of Russian infantry, and one battery of artillery. The force will not advance beyond Kazvin (86 miles from Teheran), and will ensure communication between Kazvin and the Caspian Sea.

"The further advance of a portion of the force depends upon the course of events. It can only ensue upon the demand of the Imperial Legation in Teheran in the event of the dangerous situation aforesaid arising."

{490}

The Russian and British Legations attempted mediation between the Sipahdar and the Shah, to check the former's advance, but his demands made their intervention hopeless. The Shah's forces pushed out to intercept the on-coming revolutionaries, encountered them on the 11th, 18 miles west of Teheran, and fighting went on at a distance from the city for two days; but forces which slipped between the defensive lines made their way into the capital on the morning of July 13th, and there was fighting in the streets until the 16th. The Shah then sought refuge at the Russian Legation, and the Russian officers of the Persian Cossacks, besieged in their barracks, made terms with the Nationalist leaders.

Four days later the Persian situation was stated to the British House of Commons by the Secretary of State for Foreign Affairs, Sir Edward Grey, as follows:

"The Shah, after taking refuge in the Russian legation, abdicated, and his son, Sultan Ahmed Mirza [a young child] has been proclaimed Shah by the Nationalist Committee under the regency of Azad-ul-Mulk, head of the Kajar tribe, pending the convocation of Parliament. The commanders of the Fedai and Bakhtiari, as temporary chiefs of the Persian Government, have accepted the services of the Persian Cossack brigade under

their Russian officers, on condition that the latter are completely under the orders of the Minister of War. This arrangement was ratified at a meeting between the commanders and Colonel Liakhoff. Teheran is quiet, and the Persian Cossacks are already fraternizing with the Fedai. The Sipahdar has been appointed Minister of War, and the Sirdar Assad Minister of the Interior." Being asked if he would represent to the Russian Government the undesirability of advancing Russian troops to Teheran, Sir Edward added: "In view of the declarations already made by the Russian Government as to the circumstances under which alone Russian troops would be sent to Teheran and in view of the fact that no troops have been sent to Teheran during the recent troubles, in spite of the fact that at one time some apprehension, which happily proved to be unfounded, was expressed for the safety of Russian subjects, such representations would be most uncalled for."

On the 17th the Provisional Government gave notice to the Anglo-Russian legations of the selection of the new Shah, and asked that he should be delivered to their keeping; whereupon, wrote the *Times* correspondent, "M. Sablin announced the request to the Shah, who replied that he thought his mother would not consent. The Shah then took M. Sablin to his mother and an affecting scene ensued. Both the mother and father broke down at the thought of parting with their favourite son and offered their second son in his place. M. Sablin replied that the selection had been made by the people and that he had no voice in the matter. The boy wept bitterly in sympathy with his parents and declined to leave his mother. Finally their Majesties were persuaded to agree. On receiving the Shah's assent, the necessary proclamation was immediately promulgated and it was arranged that the Regent and a Nationalist deputation would receive the little Shah.

"An interested crowd witnessed his departure this morning from the custody of his natural guardians. During the morning Sultan Ahmed wept bitterly at the prospect of becoming a King,

and it required a stern message to the effect that crying was not allowed in the Russian Legation before he dried his eyes. Then the little man came out bravely, entered a large carriage, and drove off alone, escorted by Cossacks, Sowars, and Persian Cossacks and followed by a long string of carriages. At Sultanatabad he was met by the Regent and the deputation and ceremoniously notified of his high position and of the hope entertained by the nation that he would prove to be a good ruler.

‘Inshallah, I will,’ replied the lad. Arrangements for the Coronation will be made hereafter. In the meanwhile the little Shah, who is guarded by a Bakhtiari, remains with his tutors at Sultanatabad, where his mother is free to visit him."

At Teheran, affairs settled quickly into quiet, but disorders were prolonged in various parts of the provinces, being especially serious at Shiraz. The deposed Shah remained for weeks at the Russian Legation, while negotiations with him for a pension or allowance in return for his surrender of jewels and money to the State went on, and the unhappy child who occupied his palace had more sorrow than he.

Early in August Colonel Liakhoff returned to Russia and was appointed to a regimental command. On the 1st of September a general amnesty, with a few exceptions, was proclaimed by the new government at Teheran. On the 9th of September the deposed Shah left the shelter of the Russian Legation and journeyed, with his queen, four younger children and several friends, under Russian escort, to a residence in Russia, at Odessa, which was his choice. Persia was still waiting for the able and much trusted constitutionalist statesman, Nasr-ul-Mulk, to return from his exile at Paris and accept the offered premiership in the government; but on the 21st of September the report went out that he had definitely declined the post. He returned to Persia, however, in October. On the 11th of October the Russian Government made known that it had decided

to withdraw the greater part of the troops it had been keeping at Tabriz. A new Mejliss, for which the Regent had ordered elections, was assembled on the 15th of November. On the 7th of December the Mejliss unanimously approved the proposals of the Government with regard to borrowing abroad and the employment of Europeans in executive capacities for the reorganization of the Finance Department. This, no doubt, will improve the situation very greatly.

PERSIA: A. D. 1909 (January).
Destructive Earthquake in Luristan.

See (in this Volume)
EARTHQUAKES: PERSIA.

-----PERSIA: End-----

-----PERU: Start-----

PERU: A. D. 1899-1908.
Outline of History.

The leading events of Peruvian history are recorded in Volume VI. of this work down to the election of President Eduardo de Romaña, in 1899. "Romaña was a member of a prominent family of Arequipa, and had been educated in England, at Stonyhurst. He further had studied for, and taken a degree as, an engineer at King's College, London; and whilst he had not acquired much experience in politics, he nevertheless successfully filled the Presidential Chair throughout his term. He was alive to the necessity for the development of the resources of the country, and, fortunately, his administration was not embarrassed by disturbances other than some small political intrigues such as inevitably take place in a country which, as Peru, was evolving a *régime* of civil government.

{491}

During this term there was some influx of North American

capitalists, who acquired important interests, in the copper mines of Cerro de Pasco, and who commenced the construction of a railway line thereto. ... The presidency of Señor Romaña uneventfully expired at its natural time; elections were held, and Señor Manuel Candamo, who had already provisionally been head of the State, was chosen as president in May, 1903. Candamo had been successful in quieting political animosities after the revolt against Caceres and in consolidating the political situation. Peru now showed real evidences of advancement. The old turbulent element was passing away; those leaders who had placed purely personal ambition before the true interests of their country had given place to the natural talent and ability of the best citizens, whom the times were calling to the front. Candamo's rule promised well for the country. He was surrounded by able men, among whom, as chief cabinet minister, was Dr. Domingo Almenard, an upright lawyer. The fiscal revenue was increased by taxes, against which there were murmurings, but which the country was able to bear, and the tax on tobacco was set apart for the construction of new railways. Unfortunately, this able administrator, Señor Candamo, continued but a short time in office, for he was overtaken by illness, and died at Arequipa in May, 1904. This event left the country under the temporary leadership of the second vice-president, Señor Calderon, for the first vice-president had died also. An election was at once called according to law, the two candidates which were put forward being Dr. Jose Pardo, son of the former president of the same name, and Señor Nicolas Piérola, who had already been at the head of the Government on two occasions. Rivalry between the partisans of these two candidates became acute, and although it was feared for a moment that some disturbance might occur, good sense prevailed, and the elections proceeded without interruption. Both contestants were good men—Piérola representing the party known as the **Democratas**, whilst Pardo headed the **Civilistas**. There were not very radical differences of principle underlying these distinctions of name; both were for civil government and for national

progress. Piérola had done good work during his former term, whilst Pardo had the prestige of the good name and administration of his father, the former president of 1872-1876, and was also held in esteem personally among the best element of the country. The result of the election—held, probably, more fairly than ever in Peru before—fell to Dr. Pardo, who took the presidential scarf and office in September, 1904, and who still guides the affairs of his country in a manner which has won the esteem of the nation, in a general sense.

Dr. Pardo's Cabinet was formed of some of the most capable men in the country, prominent among whom was the minister of Finance, Señor Leguia, to whose work is largely due the improved financial situation. At the present time—1908—the best elements of Peru are in the ascendant."

***G. Reginald Enock,
Peru: Its Former, and Present Civilization,
History and Existing Conditions,
chapter 9 (Scribner's Sons, New York).***

PERU: A. D. 1901.

Broad Treaty of Arbitration with Bolivia.

See (in this Volume)

ARBITRATION, INTERNATIONAL: A. D. 1901 (NOVEMBER).

PERU: A. D. 1901-1906.

Participation in Second and Third International Conferences
of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

PERU: A. D. 1903-1909.

Boundary disputes in the Acre region with Bolivia and Brazil.

See (in this Volume)
ACRE DISPUTES.

PERU: A. D. 1905.

Arbitration Treaties with Colombia and Ecuador.

In a message to the Peruvian Congress, July 28, 1906, President Pardo communicated treaties of arbitration with Colombia, one general in its nature, the other special for the settlement of existing boundary questions. Of the latter the message said:

"As in former treaties of the same character which have been heretofore concluded with that Republic, the controversy is submitted to the decision, to be based upon considerations of equity, of His Holiness Pope Pius X. But as our question with Colombia is connected with the one with Ecuador, it has been agreed that the arbitration with Colombia shall only take place after the termination of the one in which we are now proceeding with Ecuador, upon the adjudication by the royal Spanish arbitrator to Peru of territories which are likewise claimed by Colombia."

PERU: A. D. 1906.

Decree for the Encouragement of Immigration.

See (in this Volume)
IMMIGRATION AND EMIGRATION: PERU.

PERU: A. D. 1907.

Diplomatic Relations with Chile reestablished.
The Tacna and Arica questions remaining open.

See (in this Volume)
CHILE: A. D. 1907.

PERU: A. D. 1908-1909.

Seating of President Leguia.

Attempted Revolutions defeated.

On the 27th of May, 1908, Augusto B. Leguia became President, succeeding Dr. Pardo. Señor Leguia had previously been Premier and Minister of Finance and Commerce; prior to which he had been managing director of a great English sugar company in Peru. A revolutionary movement had been attempted a few weeks before, in which Dr. Augusto Durand and Isaias Piérola were engaged, and which suffered defeat.

A year later, on May 29, a similar attempt was announced from Lima, and ascribed to the same "agitators," who, said the despatch, "made an assault upon the palace and seized President Leguia. The army, however, remained loyal and came to his support. The revolutionists were obliged to liberate the President, who immediately took measures to put down the movement. Within an hour, although firing was still heard in the streets, President Leguia seemed to be master of the situation. Many shots were exchanged between the troops and the revolutionists and it is believed that the casualties will be heavy."

This was contradicted a week later, so far as concerned Dr. Durand. "It has been proved," said the later statement, "that the revolutionary outbreak of last week was engineered entirely by the followers of the Piérola brothers. A committee of the Liberal party to-day visited President Leguia, and, declaring that neither Dr. Durand nor José Oliva had taken part in the movement, requested that these men be set at liberty. The country is quiet."

-----PERU: End-----

PETER I., King of Servia: His Election.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA.

{492}

PETIT, Archbishop Fulbert.

See (in this Volume)
FRANCE: A. D. 1905-1906.

PETROLEUM:
The Supply and the Waste in the United States.

See (in this Volume)
Conservation of Natural Resources.

PETROPALOVSK, SINKING OF THE.

See (in this Volume)
JAPAN: A. D. 1904 (February-August).

PHAGOCYTES: THEIR DEPENDENCE ON OPSONINS.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: OPSONINS.

PHILADELPHIA: A. D. 1905.
A Spasm of Municipal Reform.

See (in this Volume)
MUNICIPAL GOVERNMENT.

PHILADELPHIA: A. D. 1909.
Defeat of Reform.

See (in this Volume)
MUNICIPAL GOVERNMENT.

-----PHILIPPINE ISLANDS: Start-----

PHILIPPINE ISLANDS:
Gains to Spain from their Loss.

See (in this Volume)
SPAIN: A. D. 1898-1908.

PHILIPPINE ISLANDS: A. D. 1900-1902.
The Stamping Out of the Bubonic Plague.

See (in this Volume)
PUBLIC HEALTH.

PHILIPPINE ISLANDS: A. D. 1901.
Second Report of the Second Philippine Commission.
Collapse of the Insurrection.
Peace in all but five Provinces.
Organization of Provincial Governments.
Native Appointments.
Central Civil Government.
Appointment of Governor Taft.
Filipino Members added to Commission.

Down to the capture of Aguinaldo, leader of the Filipino insurgents, on the 23d of March, 1901, and his submission to "the sovereignty of the United States throughout the Philippine Archipelago," as announced in an address to his countrymen on the 19th of April, the history of American rule in those islands is recorded in Volume VI. of this work. The Second Philippine Commission, with the Honorable William H. Taft at its head, had entered on the performance of its extensive legislative duties on the 1st of the previous September, while the Military Governor continued to exercise

administrative powers. The Commission had begun the organization of provincial and municipal governments, and the establishing of a system of public schools, as related in the Volume referred to. From its second report, covering ten months and a half, ending on the 15th of October, 1901, the following statements are drawn, to continue the outline of principal events and most important affairs down to that date:

"The collapse of the insurrection came in May, after many important surrenders and captures, including that of Aguinaldo. Cailles, in Laguna, surrendered in June, and Belarmino, in Albay, on July 4.

"There are four important provinces in which the insurrection still continues, Batangas, Samar, Cebu, and Bohol. Parts of Laguna and Tayabas adjoining Batangas in the mountain region are affected by the disturbances in Batangas. In Mindoro also, a thinly settled and almost unexplored island, there are insurrectos. ... Outside of the five provinces named there is peace in the remainder of the archipelago. ...

"The work of the commission since it began to legislate in September, 1900, has been constant. ... We have passed since our last report, in addition to numerous appropriation bills, a municipal code, a provincial law, a school law, a law prescribing an accounting system, acts organizing the various bureaus of the central government, acts organizing the courts, an act to incorporate the city of Manila, a code of civil procedure for the islands, and a new tariff act. ...

"The general provincial law provides for a provincial government of five officers—the governor, the treasurer, the supervisor, the secretary, and the fiscal, or prosecuting attorney. The governing board is called the provincial board, and includes as members the governor, the treasurer, and the supervisor. The prosecuting attorney is the legal adviser of the board and the secretary of the province is its secretary.

The first function of the provincial government is to collect, through the provincial treasurer, all the taxes, with few exceptions, belonging to the towns or the province. Its second and most important function is the construction of highways and bridges and public buildings. Its third function is the supervision, through the governor and the provincial treasurer, of the municipal officers in the discharge of their duties. Within certain limitations, the provincial board fixes the rate of levy for provincial taxation.

"The governor has the power to suspend any municipal officer found failing in his duty, and is obliged to visit the towns of the province twice in a year, and hear complaints against the municipal officers. ... Under the act the offices are all to be filled at first by appointment of the commission. The governor holds his office until February, 1902, when his successor is to be elected in a mass convention of the municipal councilors of the towns of the province. The secretary, treasurer, and supervisor after February next are brought under the civil-service act, and all vacancies thereafter arising are to be filled in accordance with the terms of that act. The fiscal is appointed for an indeterminate period, and is not subject to the civil-service law. ...

"The commission reached the conclusion that it would aid in the pacification of the country; would make the members of that body very much better acquainted with the country, with the people, and with the local conditions, and would help to educate the people in American methods, if the commission went to the capital of each province and there passed the special act necessary to create the provincial government and made the appointments at that time. Accordingly, the commission visited thirty-three provinces. ...

"The policy of the commission in its provincial appointments has been, where possible, to appoint Filipinos as governors and Americans as treasurers and supervisors. The provincial secretary and the provincial fiscal appointed have uniformly been Filipinos. It will be observed that this makes a majority of the provincial board American. The commission has, in several instances, appointed to provincial offices former insurgent generals who have been of especial aid in bringing about peace, and in so doing it has generally acted on the earnest recommendation of the commanding officer of the district or province. We believe the appointments made have had a good effect and the appointees have been anxious to do their duty. ...

"The central government of the islands established in September, 1900, under the instructions of the President, with a military governor as chief executive and the commission as the legislative body with certain executive functions in addition, continued until the 4th of July, 1901. At that time Major General Adna R. Chaffee relieved Major-General MacArthur as commanding general of this division and military governor. By the order of June 21, previous, in all organized provinces the civil executive authority theretofore reposed in the military governor and in the commission was transferred on July 4 to a civil governor. The president of the commission was designated as civil governor. ...

"By an order taking effect September 1, the purport of which was announced the 4th day of July, there were added to the commission, as a legislative body, three Filipinos, Dr. T. H. Pardo de Tavera, Señor Benito Legarda, and Senor José Luzuriaga. These gentlemen, the first two of them residents of Manila and the last a resident of the island of Negros, had been most earnest and efficient in bringing about peace in the islands. Dr. Tavera was the first president of the Federal party, had accompanied the commission in its trips to the southern provinces, and was most useful in the effective

speeches which he delivered in favor of peace and good order at every provincial meeting. Señor Legarda had been valuable in the extreme to General Otis and to all the American authorities by the wisdom of his suggestions, and the courage and earnestness with which he upheld the American cause as the cause most beneficial to his country. Señor José Luzuriaga was a member of the first government of the island of Negros, organized while there was insurrection rife throughout the islands, as an independent government under the supervision of a military governor, and was most active in preventing the insurrection from gaining any foothold in that important island. ...

"The theory upon which the commission is proceeding is that the only possible method of instructing the Filipino people in methods of free institutions and self-government is to make a government partly of Americans and partly of Filipinos, giving the Americans the ultimate control for some time to come. In our last report we pointed out that the great body of the people were ignorant, superstitious, and at present incapable of understanding any government but that of absolutism. The intelligence and education of the people may be largely measured by knowledge of the Spanish language. Less than 10 per cent of the people speak Spanish. With Spaniards in control of these islands for four hundred years and with Spanish spoken in all official avenues, nothing could be more significant of the lack of real intelligence among the people than this statement. The common people are not a warlike people, but are submissive and easily—indeed much too easily—controlled by the educated among them, and the power of an educated Filipino politically ambitious, willing to plot and use all the arts of a demagogue in rousing the people, is quite dangerous. The educated people themselves, though full of phrases concerning liberty, have but a faint conception of what real civil liberty is and the mutual self-restraint which is involved in its maintenance. They find it hard to understand the division of powers in a government, and the

limitations that are operative upon all officers, no matter how high. In the municipalities, in the Spanish days, what the friar did not control the presidente did, and the people knew and expected no limit to his exercise of authority. This is the difficulty we now encounter in the organization of the municipality. The presidente fails to observe the limitations upon his power, and the people are too submissive to press them. In this condition of affairs we have thought that we ought first to reduce the electorate to those who could be considered intelligent, and so the qualifications for voting fixed in the municipal code are that the voter shall either speak, read, and write English or Spanish, or that he shall have been formerly a municipal officer, or that he should pay a tax equal to \$15 a year or own property of the value of \$250."

***Report of the U. S. Philippine Commission,
from December 1, 1900, to October 15, 1901,
part 1, pages 7-20.***

PHILIPPINE ISLANDS: A. D. 1901-1902.

Report of Governor Taft.

Civil Government established in
all Christian Filipino Territory.

The Moros.

Destruction of the Carabao.

Cholera.

Ladrones.

The Native Constabulary.

"When our last report was submitted there was insurrection in the province of Batangas, where the insurgent forces were commanded by General Malvar, and in the adjacent provinces of Tayabas and Laguna; in the province of Samar, where the insurgent forces were commanded by General Lukban; in Cebu, where the insurgent forces were under the insurgent leaders Climaco and Maxilom; in Bohol, where the insurgent forces were

commanded by the insurgent leader Samson; and in the island of Mindoro. Vigorous campaigns were begun in November and December by General Bell, in Batangas, Laguna, Tayabas, and Mindoro, by General Smith in Samar, and by General Hughes in Cebu and Bohol. In November and December the insurgents in Cebu and Bohol surrendered, and conditions of peace were so completely established that the Commission soon after received the province of Cebu from the military authorities, and by act numbered 322, passed December 20, 1901, restored the civil government in that province to take effect January 1, 1902; in Bohol the province was delivered over to the Commission early in 1902, and the commission, by act of March 3, 1902, restored civil government there to take effect April 1, 1902. General Lukban, in Samar, was captured in February, 1902, and the entire force of insurgents in that island under General Guevara surrendered in April following.

{494}

"By an act passed June 17, 1902, Number 419, the Commission organized the province of Samar, and established civil government there. In April of 1902, General Malvar surrendered with all his forces in Batangas, and by act passed June 23, 1902, the Commission restored civil government to that province to take effect July 4, 1902. By act Number 424, enacted July 1, 1902, the province of Laguna was organized into a civil government. This completed the organization of all the provinces in which insurrection had been rife during the latter part of 1901, except Mindoro. There were, in addition, certain tracts of territory occupied by Christian Filipinos that had not received civil government, either because of the remoteness of the territory or the scarcity of population." The report then details the measures by which civil government was given to these tracts of territory, and proceeds:

"The question what shall be done with respect to Mindanao is

one which has not been definitely decided, first, because so much has had to be done with respect to the northern and Filipino provinces, and, second, because at present there is an unsettled condition in the Lake Lanao country. The hostility to the Americans does not reach beyond the Lake Lanao Moros. The Moros of the Jolo group, of Zamboanga, and of the Rio Grande de Mindanao Valley are all quiet, and all entirely willing to submit to American supervision. It is very possible that an arrangement can be brought about by which the Sultan of Jolo can be induced to part with such rights as he claims to have in the Jolo Archipelago, and in this way questions which now present very perplexing difficulties with respect to ownership of privileges, rights, and lands may be obviated. ... I think it wiser on the part of the Commission to postpone the consideration of the Moro question until we have passed legislation to meet needs that are more pressing throughout the northern part of these possessions of the United States. For a great many years to come there will be no question of popular government in the Moro country; the Moros do not understand popular government, do not desire it, and are entirely content with the control by their dattos. Possibly far in the future the control by dattos will cease. There is room for material and industrial development among the Moros, and with their material improvement may come a change in their political views. For the present, however, it is necessary only to provide a paternal, strong, but sympathetic government for these followers of Mohammed.

"The civil government has assumed responsibility for the preservation of order and the maintenance of law throughout the Christian Filipino territory of this archipelago at a time when the material conditions are most discouraging and present every conceivable obstacle to the successful administration of the affairs of 6,000,000 or 7,000,000 people. The war of six years since 1896 has greatly interfered with the regular pursuit of agriculture, which is almost the only source of wealth in the islands. Many years ago there was sufficient

rice raised in the islands not only to feed the people but to export it to other countries. For a number of years before the American occupancy rice had been imported. The area of cultivation of the rice has been much lessened during the war and many fields which were formerly tilled are grown now with the cogon grass because of neglect.

"The greatest blow to agriculture has been the loss of the carabao or water buffalo, upon which the cultivation of rice, according to the mode pursued in these islands, is wholly dependent. The war in some degree, and the rinderpest in a much larger degree, have destroyed about 90 per cent of the carabaos; and the natives—never very active in helping themselves—have simply neglected the rice culture, so that now the islands are compelled to spend about \$15,000,000 gold to buy food upon which to live. The carabao is not so necessary in the cultivation of the sugar crop or in the cultivation of hemp. ...

"The cholera has swept over these islands with fatal effect, so that the total loss will probably reach 100,000 deaths. Whole villages have been depopulated and the necessary sanitary restrictions to avoid its spread have interfered with agriculture, with intercommunication, and with all business. The ravages of war have left many destitute, and a guerrilla life has taken away from many all habits of industry. With no means of carrying on agriculture, which is the only occupation of these islands, the temptation to the less responsible of the former insurgents after surrender to prey upon their neighbors and live by robbery and rapine has been very great. The bane of Philippine civilization in the past was ladronism, and the present conditions are most favorable for its growth and maintenance. ... Many who were proscribed for political offences in the Spanish times had no refuge but the mountains, and being in the mountains conducted a free robber life, and about them gathered legions not unlike those of the Robin Hood days of England, so that they attracted frequently the

sympathy of the common people. In the Spanish days it was common for the large estate owners, including the friars, to pay tribute to neighboring ladrones. Every Tagalog province had its band of ladrones, and frequently each town had its recognized ladrone whom it protected and through whom it negotiated for immunity. ...

"The insurrection is over. It is true that the ladrones, though they live on nothing but cattle and rice stealing, and never attack American soldiers, and prey only upon their own people, do masquerade as insurrectos; but they recognize no authority and have no characteristics other than those of banditti. They have stirred up in some of the provinces the organization of so-called secret societies for the purpose of securing agencies with which successfully to conduct their robbery and to sell the fruits of it. ... The picture that I have given of the depressed condition of agriculture, and the tendency to ladronize in the Tagalog provinces and in some of the Visayan provinces, does not apply to those provinces in which hemp is the chief product. They are wealthy and prosperous."

***Report of Governor W. H. Taft
(Report of the Philippine Commission, 1902, part 1).***

{495}

PHILIPPINE ISLANDS: A. D. 1902.

Padre Aglipay's Secession from the Roman Catholic Church.
Organization of the Independent Filipino Catholic Church.

"Gregorio Aglipay is an Ilocano, and was an ordained priest of the Roman Catholic Church in these islands before the insurrection. During the insurrection he continued his priestly functions at Mabolos and took such action as to bring him into conflict with the hierarchy of the Church. What the merits of this controversy were I do not know. Subsequently he

assumed the leadership of the insurrecto forces in Ilocos Norte and carried on a very active campaign in the mountains of that province. He was one of the last of the leaders to surrender with his forces in North Luzon. Since his surrender he has been quite active in spreading propaganda among the native priests against the so-called Friar domination of the church in these islands. The definite refusal of the Vatican to withdraw the Spanish friars from the islands was made the occasion for the formation of the Independent Filipino Catholic Church. Actively engaged with Aglipay in this movement was Isabelo de los Reyes, the former editor of an insurrecto paper, published in Madrid, called Filipinas ante Europa, and an agitator of irresponsible and irrepressible character. ... Padre Aglipay has secured the active and open cooperation of a number of native priests, 15 of whom he has appointed bishops, himself having the title of archbishop. He has held mass in many different places in and about Manila; his services have attracted large gatherings of people. ...

"In order to prevent constant recurrence of disturbances of the peace I have had to take a firm stand with the leaders of the movement by impressing upon them that forcible dispossession of a priest of the Roman Catholic Church, for years in peaceable possession of the church and the rector's house, is contrary to law, and would be prevented by the whole police power. The leaders of the movement assure me that they have no desire to violate the law and wish to keep within it, but that their followers at times are hard to control. I have said to them that if they claim title to the churches they may assert it through the courts, and if successful will secure not only the confirmation of their title but actual possession. ...

"I have taken occasion to say, whenever an opportunity occurred, that the insular government desired to take no part whatever in the religious controversies thus arising; that it would protect Father Aglipay and his followers in worshipping

God as they chose just as it would protect the Roman Catholic Church and its ministers and followers in the same rights. But that, if the law was violated by either party, it would become the duty of the government to step in and restrain such lawlessness."

***Governor Wm. H. Taft,
Report, 1902, pages 39-40.***

PHILIPPINE ISLANDS: A. D. 1902-1903.

Governmental Purchase of the Friars' Lands.

"As early as 1898, the Peace Commission, which negotiated the treaty of Paris, became convinced that one of the most important steps in tranquilizing the islands and in reconciling the Filipinos to the American Government would be the governmental purchase of the so-called friars' agricultural lands in the Philippines, and the sale of these lands to the tenants upon long, easy payments. ... The Secretary of War and the President concurred in the recommendations of the Commission. Accordingly in May, 1902, the writer, as civil governor of the Philippine Islands, was directed by the Secretary of War to visit Rome and to confer with the Pope or such agents as he might designate in respect to the question of buying the friars' agricultural lands and other questions of a similar character which were pending between the Roman Catholic Church and the Government. The negotiations which were had on this subject in Rome were set forth in the correspondence published by the Secretary of War in his report to Congress for last year. In a word, the Pope approved the purchase of the agricultural lands of the three great religious orders that owned agricultural lands in the islands and appointed an apostolic delegate with as full powers as he could be invested with to bring about this result. ...

"In order to determine the value of the estates, the representatives of the various companies and other interests

were invited to attend a hearing, when various witnesses were called to testify. The apostolic delegate was also present. ...

"In accordance with the agreement reached in Rome, I sent to the apostolic delegate a request for a statement of the exact interests retained by the religious orders in the Philippines in the lands which were the subject of negotiation. No formal answer to this letter was ever received, but informally it was stated to me by the delegate that the authorities in the Philippines had informed him that they had so disposed of their interests that they were unable to make a statement of what their interests were, if any. The value of the lands, as estimated according to the statements of the agents of the companies, aggregated a sum between thirteen and fourteen millions of dollars gold. The estimate of Villegas, the surveyor employed by the Commission, showed the valuation of the lands to be \$6,043,000 gold, if his value in Mexican should be reduced to gold at the rate of two to one, which was the gold rate about the time of his survey and classification, though the Mexican dollar fell considerably after that. Considering the bad conditions which prevailed in agriculture, the loss of cattle, the dispute concerning title, and the agrarian question that must always remain in the management of these estates and embarrass the owner, I considered—and I believe the Commission generally agreed with me—that \$6,043,000 gold was a full price for the lands. The sum, however, was scouted by the persons representing the owners, and there appeared to be very little prospect of reaching an agreement. ...

"Not discouraged, however, by circumstances that seemed most discouraging, the apostolic delegate bent his energies to bringing the parties to a settlement. After some negotiation the delegate first stated that he thought he could arrange a sale for \$10,500,000 gold. I told him there was no hope of bringing about a purchase at that figure. ... Then followed a long and protracted discussion between the parties who were to

be the venders as to how this sum should be divided, and there was much difficulty in arriving at a solution—so great a difficulty, indeed, that I was informed that unless \$7,770,000 was paid there was no hope of reaching an agreement. With the approval of the Secretary of War and the Commission, I replied that \$7,543,000 was our ultimatum, and that we would not give more than that, and this was ultimately the basis upon which the price was fixed."

***Report of the Civil Governor of the Philippine Islands,
William H. Taft
(Fourth Report of the Philippine Commission).***

{496}

PHILIPPINE ISLANDS: A. D. 1905.

Report of Committee on Methods of Dealing with the Sale and Use of Opium.

See (in this Volume)
OPIUM PROBLEM.

PHILIPPINE ISLANDS: A. D. 1906-1907.

Resignation of Governor Ide.
Appointment and Inauguration of Governor Smith.
Complete Tranquility in the Islands.
Change in the Constitution of Provincial Boards.

"On September 20, 1906, the resignation of the Honorable Henry Clay Ide as governor-general became effective, and on that date the Honorable James F. Smith was inaugurated as governor-general of the Philippine Islands. ... Since April of this year complete tranquility has prevailed in every part of the archipelago, inclusive of the Moro province. In 21 of the provinces peace has reigned supreme during the entire year. In Bataan and Batangas there was some disturbance of the public order, caused in the case of the first-named province by the

escape of some provincial prisoners, and in the second by the operations of six or seven brigands near the boundary line of the provinces of La Laguna and Tayabas. All of the escaped prisoners and all of the bandits with the exception of two in each party have been captured. ...

"The convention of provincial governors held in Manila in October, 1906, recommended that the then existing law providing that provincial boards shall be composed of a provincial governor elected by the municipal councilors and vice-presidents of the various municipalities of the province and a provincial treasurer and a third member appointed by the executive be so amended as to permit of the election of the provincial governor and third member by direct vote of the people. This recommendation was submitted to the Secretary of War, and on receiving his approval thereof the provincial government act was amended accordingly. This innovation in the constitution and selection of provincial boards has been an advantage both to the insular and to the local government. On the one hand it has removed all cause for friction between the provincial governor elected by the people and the two members of the board named by the executive. On the other it has imposed upon the provincial governor and the third member the responsibility for the well-being of the province and has removed from the insular government much of the responsibility for conditions purely of local concern."

Report of the Philippine Commission,

December 31, 1907

(Abridgment, Message and Documents, 1907, pages 799-807).

PHILIPPINE ISLANDS: A. D. 1907.

The Philippine Election Law.

Election of a Popular Assembly.

Political Parties participating in it.

The first meeting of the Assembly.

Presence of Secretary Taft.

His account of the Assembly and of the Parties represented in it.

"In January, 1907, the Philippine Commission passed the Philippine election law. In framing this law the election codes of Massachusetts, New York, the District of Columbia, and California were consulted and features adopted from each, modified in such a way as to meet insular conditions and to avoid the mistakes and abuses that have arisen in some provincial and municipal elections in the islands. The aim has been to provide a law sufficiently explicit and not too complicated for easy comprehension. Every effort has been made to afford the necessary safeguards and machinery to insure purity, secrecy, certainty, and expedition, without causing too great a drain upon the resources of municipal and provincial governments. The prominent features of this law as amended are the division of those provinces not inhabited by Moros or other non-Christian tribes into 78 assembly districts, each province to constitute at least one district and the more populous being divided into more districts, in the ratio of 1 to every 90,000 of population and major fraction thereof remaining. In accordance with this apportionment there will be 80 delegates, two of whom will represent the city of Manila, which is considered as a province, within the meaning of the act of Congress, and divided into two districts."

***Report of the Chief of the Bureau of Insular Affairs,
October 31, 1907
(Abridgment, Message and Documents, 1907, page 781).***

"On the 28th of March, 1907, the Commission by resolution, unanimously adopted, certified to the President that for two years following the publication of the census of the islands a condition of general and complete peace had prevailed and then existed in the territory of the islands not inhabited by Moros or other non-Christian tribes. ... By virtue of this certificate

and in accordance with the provisions of the act of Congress of July 1, 1902, the President on March 28, issued a proclamation directing the Philippine Commission to call a general election for the choice of delegates to a popular assembly. Accordingly on the 30th of March, 1907, the Commission passed a resolution ordering that an election be held for delegates on July 30 and directing the governor-general to issue a proclamation announcing the election for that date. The proclamation was issued on April 1. By a strange coincidence the day of the month fixed for holding the election was the same as that on which the first legislative body in America, the house of burgesses, met in the year 1619. Under the general election law the delegates to the assembly elected at the elections held on July 30th, 1907, and seated by the Philippine assembly, will serve until January 1, 1910. Subsequent elections for delegates will be held on the first Tuesday after the first Monday in November, 1909, and on the first Tuesday after the first Monday in November in each odd-numbered year thereafter, delegates to take office on the 1st day of January next following their election and to hold office for two years, or until their successors are elected and qualified.

"The basis of representation in the Philippine assembly is one delegate for every 90,000 of population and one additional delegate for a major fraction thereof: Provided, however, that each Christian province shall be entitled to at least one delegate and that the total number of delegates shall at no time exceed 100. Provinces entitled to more than one delegate are divided into districts. The law declares Manila to be a province within the meaning of the act of Congress authorizing the assembly, and, it is allowed the same representation as other provinces. Thirty-four provinces are represented in the Philippine assembly, which is composed of 80 members.

"The act of Congress requires that delegates to the assembly shall be qualified electors of the election district in which they may be chosen, 25 years of age, and owing allegiance to the United States. The act of Congress prescribes that the qualifications of electors shall be the same as those prescribed for electors in municipal elections under laws in force at the time of the passage of the Congressional enactment. As the municipal election laws in force at the time of the passage of the act of Congress have undergone some change in regard to the qualifications of electors, the strange anomaly is presented of having certain qualifications exacted from municipal and provincial officials which are not required for delegates to the assembly. One of the results is that felons, victims of the opium habit, and persons convicted in the court of first instance for crimes involving moral turpitude, but whose cases are pending on appeal, are not eligible for election to any provincial or municipal office, but may become delegates to the assembly.

"As announced by provincial governors the elections for assemblymen held on the 30th of July, 1907, resulted in the election of 32 Nacionalistas, 4 Independistas, 7 Inmediatistas, 16 Progresistas, 20 Independents, and 1 Centro Catolico. The total number of voters registered for the assembly elections was 104,966. The number of voters registered for the provincial and municipal elections will be very much larger than that for the assembly elections. The difference in registration and votes cast at the two elections seems to show with considerable certainty that there was far more interest in the elections for provincial and municipal officials than there was in the election for assemblymen. ...

"The delegates to the Philippine assembly, in accordance with the call of the governor-general as prescribed by the act of Congress, met at the Grand Opera House in the city of Manila on the 16th day of October at 9 o'clock A. M."

***Report of the Philippine Commission,
December 31, 1907
(Abridgment, Message and Documents, 1907, pages 810-811).***

The Honorable William H. Taft, United States Secretary of War, former Governor-General of the Philippine Islands, made the long journey to the Islands on this occasion for the purpose of opening the meeting of the Assembly and personally inspecting the state of affairs. After returning, in the following December, he made an extended report to the President, in which he discussed the character of the Assembly and of the parties represented in it at considerable length. Recurring to the formation of the first political party that arose in the Islands after they came under the control of the United States, he said of it:

"It is a mistake to suppose that the war by the Filipinos against the Americans had the sympathy of all the Filipinos. On the contrary, there were many intelligent and conservative men who favored American control and who did not believe in the capacity of their people immediately to organize a government which would be stable and satisfactory, but in the face of a possible independence of the Islands, they were still. Upon Mr. McKinley's second election many of these persons reached the conclusion that it was time for them to act. Accordingly, they formed the Federal Party, the chief platform of which was peace under American sovereignty and the acceptance of the American promises to govern the Islands for the benefit of the Filipinos and gradually to extend popular self-government to the people. The Federal Party received accessions by thousands in all parts of the Islands and in every province, so that the Commission was enabled during the year 1901, and under the auspices, and with the aid of, the Federal Party, to organize civil government in some 32 or 33 provinces, or in substantially all of them. ... The main purpose and principle of the party was peace under the sovereignty of the United States. In drafting a platform its leaders had

formulated a plank favoring the organization of the Islands into a Territory of the United States, with a view to its possibly becoming a State. From this plank it took its name. In the first two or three years after its successful effort to bring on peace, many prominent Filipinos having political ambition became members, and in the gubernatorial elections the great majority of governors elected were Federals. And so substantially all who filled prominent offices in the government by appointment, including the judges, were of that party. Then dissension arose among prominent leaders and some withdrew from the party. The natural opposition to a government party led to the organization of other parties, especially among those known as Intransigentes [Irreconcilables]. The Federal Party had founded an organ, the *Democracia*, early in its existence. The opponents of the government looking to immediate independence founded a paper called the *Renacimiento*. The latter was edited with especial ability and with a partisan spirit against the American Government.

"For two years before the election of the Assembly the Filipinos who sympathized with the ***Renacimiento*** were perfecting their organization to secure a majority in the assembly. Many groups were formed, but they all were known as the Partido Nacionalista. There was some difference as to whether to this title should be added the word 'inmediatista,' but the great majority favored it. The party is generally known as the Nacionalista Party. During much of these same two years, the Federal Party was dormant. ...

"Some six months before the elections, there sprung from the ashes of the Federal Party a party which, rejecting the statehood idea, declared itself in favor of making the Philippines an independent nation by gradual and progressive acquisition of governmental control until the people should become fitted by education and practice under American sovereignty to enjoy and maintain their complete independence.

It was called the Partido Nacionalista Progresista. It is generally known as the Progresista Party. ...

{498}

"The campaign in the last two or three months was carried on with great vigor. The Nacionalistas had the advantage of being understood to be against the government. This, with a people like the Filipino people, who had been taught to regard the government as an entity separate from the people, taxing them and prosecuting them, was in itself a strong reason for popular sympathy and support. The Progresistas were denounced as a party of office-holders. The government was denounced as extravagant and burdensome to the people. In many districts the Nacionalista candidates promised that if they were returned immediate independence would follow. There were quite a number of candidates in country and remote districts where the controversy was not heated who did not declare themselves on the main question, and maintained an independence of any party. They were known as Independientes. Then, there were other Independientes who declared themselves independent of party, but in favor of immediate independence.

"The total vote registered and cast did not exceed 104,000, although in previous gubernatorial elections the total vote had reached nearly 150,000. The high vote at the latter elections may be partly explained by the fact that at the same elections town officers were elected, and the personal interest of many candidates drew out a larger number of electors. But the falling off was also in part due, doubtless, to the timidity of conservative voters, who, because of the heat of the campaign, preferred to avoid taking sides. This is not a permanent condition, however, and I doubt not that the meeting of the assembly and the evident importance of its functions when actually performed will develop a much greater popular interest in it, and the total vote will be largely increased at the next election.

"I opened the assembly in your name. The roll of the members returned on the face of the record was called. An appropriate oath was administered to all the members and the assembly organized by selecting Señor Sergio Osmeña as its speaker or presiding officer. Señor Osmeña has been one of the most efficient fiscals, or prosecuting attorneys, in the Islands, having conducted the government prosecutions in the largest province of the Islands, the province and Island of Cebu. He was subsequently elected governor, and by his own activity in going into every part of the island, he succeeded in enlisting the assistance of all the people in suppressing ladronism, which had been rife in the mountains of Cebu for thirty or forty years, so that to-day there is absolute peace and tranquillity throughout the island. He is a young man, not 30, but of great ability, shrewdness, high ideals, and yet very practical in his methods of dealing with men and things. The assembly could have done nothing which indicated its good sense so strongly as the selection of Senor Osmeña as its presiding officer. ...

"As a shibboleth—as a party cry—immediate independence has much force, because it excites the natural pride of the people; but few of their number have ever worked out its consequences, and when they have done so they have been willing to postpone that question until some of the immediate needs of the people have been met. I may be wrong, but my judgment is that the transfer of real power, by giving to the people part of the legislative control of the Christian provinces, sobers their leaders with the sense of responsibility and teaches them some of the practical difficulties of government I do not for a moment guarantee that there will not at times be radical action by the Assembly, which cannot meet the approval of those who understand the legislative needs of the Islands, but all I wish to say is that the organization and beginning of the life of the Assembly have disappointed its would-be critics and

have given great encouragement to those who were responsible for its extension of political power."

***Special Report of William H. Taft, Secretary of War,
to the President on the Philippines, January 23, 1908
(60th Cong. 1st Session, Senate Doc. No. 200).***

PHILIPPINE ISLANDS: A. D. 1909.

Change in the Governor-General's Office.

General James F. Smith was succeeded as Governor-General by the Vice-Governor-General, Mr. W. Cameron Forbes, in November, 1909.

PHILIPPINE ISLANDS: A. D. 1909.

Philippine Tariff Act.

A special Message, transmitting a Philippine Tariff Bill recommended by the Secretary of War, was sent to Congress, April 14, by President Taft. "This measure," wrote the President, "revises the present Philippine tariff, simplifies it and makes it conform as nearly as possible to the regulations of the customs laws of the United States, especially with respect to packing and packages. The present Philippine regulations have been cumbersome and difficult for American merchants and exporters to comply with. Its purpose is to meet the new conditions that will arise under the section of the pending United States tariff bill which provides, with certain limitations, for free trade between the United States and the islands. It is drawn with a view to preserving to the islands as much customs revenue as possible and to protect in a reasonable measure those industries which now exist in the islands.

"The bill now transmitted has been drawn by a board of tariff experts, of which the insular collector of customs, Colonel George R. Colton, was the president. The board held a great

many open meetings in Manila, and conferred fully with representatives of all business interests in the Philippine Islands. It is of great importance to the welfare of the islands that the bill should be passed at the same time with the pending Payne bill, with special reference to the provisions of which it was prepared."

The Bill was passed, but certain tobacco interests secured an important amendment in their favor.

PHILIPPINE ISLANDS: A. D. 1909 (November).
Success of the Nationalists in the Election.

"Practically complete returns from the recent election indicate that the Assembly will be composed of sixty Nationalists, fifteen Progressists, and five Independents. The Nationalists also gained four provincial Governors over the number elected by that party at the last election. Similar gains in other offices have been made by the Nationalists. Some of the returns are still missing, but they are not likely to make any material change in the figures given."

***Press Report from Manila,
November 5, 1909.***

-----PHILIPPINE ISLANDS: End-----

PICKETING:
The Labor Strikers' Right.
Its limit.

See (in this Volume)
LABOR ORGANIZATION: ENGLAND: A. D. 1906 (MARCH).

PICQUART, GENERAL.

See (in this Volume)

FRANCE: A. D. 1906.

PIEROLA, NICOLAS.

See (in this Volume)
PERU.

PINCHOT, GIFFORD:
Chief of the United States Forest Service.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES.

PINCHOT, GIFFORD:
On Threatened Water Power Trust.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D.
1909.

{499}

PIOUS FUND QUESTION.
Its Decision by the Hague Tribunal.

See (in this Volume)
MEXICO: A. D. 1902 (MAY).

PITTSBURG: A. D. 1906-1908.
Under a Reforming Mayor.

See (in this Volume)
MUNICIPAL GOVERNMENT.

PITTSBURG: A. D. 1907.
Enlargement and Rededication of the Carnegie Institute.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1907.

PITTSBURG: A. D. 1907-1908.
The Pittsburg Survey.
A remarkable Investigation of Living Conditions.

See (in this Volume)
SOCIAL BETTERMENT: UNITED STATES.

PIUS X., POPE.

See (in this Volume)
PAPACY.

PLAGUE, Bubonic.

See (in this Volume)
PUBLIC HEALTH.

"PLAN OF CAMPAIGN," THE.

See (in this Volume)
IRELAND: A. D. 1907.

PLATT AMENDMENT.

See (in this Volume)
CUBA: A. D. 1901-1902.

PLAYGROUND MOVEMENT, THE.

The first convention of the Playground Association of America, held at Chicago in June, 1907, was a very notable gathering, in the character of the men and women assembled,—in the quality of the discussion they gave to the subject of child-development by wholesome play,—in the spirit imparted to

it by the wonderful exhibit that Chicago could make of achievement in this new civic undertaking, and in the great impetus it gave to the playground movement throughout the country. The proceedings and incidents of the convention were reported very fully in the August number of Charities and Corrections that year.

"From one article, 'How They Played at Chicago,' by Mr. Graham Romeyn Taylor, we learn that in connection with the convention there was held a festival of sport and play, in which from first to last 'the play spirit was ascendant.' More than 5000 persons participated, and among them were President Gulick, of the national association, and Dr. Sargent, of Harvard. The play spirit, says he, captivated every one. 'Play, according to students of it, means not only a good time, but from the child's point of view it is serious business: moreover, it has vital significance in educational development.' This meeting, he claims, marks the transition of playground activity from a more or less sporadic and disconnected series of efforts in our larger cities to a firmly established and well organized national movement. A better understanding of the playground issue means better citizenship and community-life.

"President Roosevelt, honorary president, had requested that delegations be sent to this convention from many cities, 'to gain inspiration from this meeting, and to see the magnificent system that Chicago has erected in its South Park section,—one of the most notable civic achievements of any American city.' They came, and returned to their home cities with photographs of the playgrounds and recreation centers in Chicago. On these the city of Chicago has expended during the last four years \$6,500,000, and has recently appropriated \$3,000,000 additional. Moreover, it has authorized \$1,500,000 for similar facilities for children on the north and west sides as well. Each center costs about \$30,000 annually. These centers recognize that human needs transcend all other things, and tend to develop a social spirit that one day must permeate our

commingled races."

***American Review of Reviews,
September, 1907.***

"According to the new Year Book [for 1910] of the Playground Association of America, 336 municipalities in the United States are maintaining supervised playgrounds. The actual number of playgrounds operated in 267 of these cities last year was 1,535. About 56 per cent. are in the area of greatest density of population, in the North Atlantic States. The number of cities in those States maintaining playgrounds is 149, and the number of playgrounds established in 123 of them is 873. Massachusetts has led in the movement.

"In about 49 per cent. of the cities operating public playgrounds, the managing authority, wholly or in part, is the city itself, which is working through its board of education, its park department, or other municipal bureau—or by combining the activities of two or more departments. In fifteen cities the Mayors have appointed special commissions, organized, as city departments for the administration of playgrounds, which are no longer left to the philanthropist.

"In fifty-five of the larger cities, local playground associations have been established, and many of the smaller towns have organized committees that will be converted into permanent organizations. Churches, women's clubs, Young Men's Christian Associations, Associated Charities, and public-spirited men and women have contributed their help.

"An index of the interest in the movement is afforded by a survey of figures representing the yearly expenditures for sites, equipment, and the maintenance of playgrounds. In many cases specific information on this point is not available, but 184 cities have sent reports stating definitely what it costs them to operate their grounds. The total amount expended in

the year by these 184 cities is \$1,353,114. In 18 per cent, of the cities the amount of money set apart for playgrounds was appropriated entirely by the municipality, while in 23 per cent. the cities combined with private organizations."

New York Evening Post,
January 5, 1910.

In England, or in London, at least, the movement has been set on foot by an "Evening Play Centres Committee," of which Mrs. Humphry Ward is Chairman. The object of the Committee, as stated by Mrs. Ward, is "to open the school buildings in winter for play, exercise, and handwork, as an alternative to the streets, to children after school hours; and in summer to organize the playgrounds, as is now so largely done in America and Canada"; but thus far its success appears to have been mostly in the opening of indoor play centres for evening entertainment.

PLAZA, GENERAL LEONIDAS:
President of Ecuador.

See (in this Volume)
ECUADOR.

PLEHVE, M. V. de:
Defence of Russian Measures in Finland.

See (in this Volume)
FINLAND: A. D. 1901.

PLEHVE, M. V. de:
Russian Minister of the Interior.
His atrocious administration.
His assassination.

See (in this Volume)

RUSSIA: A. D. 1901-1904.

PLURAL VOTING, BELGIAN.

See (in this Volume)

BELGIUM: A. D. 1902 and 1904.

See in Volume VI.,

BELGIUM: A. D. 1894-1895.

See in Volume I.,

CONSTITUTION OF BELGIUM.

{500}

POBIEDONOSTZEFF, CONSTANTINE:

On Russian Discontent.

See (in this Volume)

RUSSIA: A. D. 1902.

POBIEDONOSTZEFF, CONSTANTINE:

Resignation.

See (in this Volume)

Russia: A. D. 1904-1905.

POBIEDONOSTZEFF, CONSTANTINE:

Death, March 23, 1907.

POGROMS: Massacres.

See (in this Volume)

RUSSIA: A. D. 1906.

POLAR EXPLORATION: Arctic: A. D. 1901-1910.

Three Expeditions of Commander Peary.

His Final Triumph.

The astounding Imposture of Dr. Cook, Pretender to an attainment of the Pole a Year in Advance of Peary.

Other Arctic Explorations of the Decade.

When the record of Polar Exploration was closed in Volume VI. of this work, on its going to press in the spring of 1901, Commander Robert E. Peary had been working within the Arctic Circle for three years, with no respite, and the Peary Arctic Club was sending a vessel, the ***Erik***, to make inquiries about him. He was found to have proved that Greenland is surrounded by water at the north, and to have further undertakings in hand. He remained another year, in the course of which he made the nearest approach to the Pole that had yet been accomplished, going directly north from Cape Hecla and reaching latitude 84° 17'. Returning to the coast, he was met and brought home, after an absence of four years. In July, 1905, he sailed northward again, equipped with a vessel, the ***Roosevelt***, built expressly for his use. After wintering on the north coast of Grant Land, he started once more with sledges and dogs toward the Pole, and this time pressed his way to 87° 6' of latitude, or within a little more than 200 miles of the Arctic hub. Then he was forced to turn back, with scant supplies, killing his dogs for food. Once more, in July, 1908, Commander Peary set his face Arcticward, on the staunch ***Roosevelt***, with two scientific companions, and equipped himself at Etah with Eskimos and dogs for another journey across the ice-fields, from some point on the Grant Land coast.

Two expeditions were fitted out in 1901 and 1903, by Mr. Ziegler, of New York, the former under Evelyn B. Baldwin, the latter under Anthony Fiala. The latter reached latitude 82° 13', remaining in the Arctic regions until the summer of 1905. In June, 1903, Captain Roald Amundsen, of Norway, sailed from Christiania in the small sloop Gjoa, beginning a voyage which carried him entirely through the Northwest Passage from Baffin

Bay to Bering Strait and which occupied three years. Much of that time, however, was devoted to studies and searches of great value in determining the location of the Magnetic Pole. In 1905 the ranks of the Arctic explorers were joined by the Duke of Orleans, who sailed from Christiania in May, in the Belgica, commanded by Lieutenant de Gerlache. In 1907, Mr. John R. Bradley, of New York, supplied Dr. Frederick A. Cook with equipments for an attempt to reach the North Pole, and accompanied him in a schooner yacht to Annatok, a little north of Etah, in North Greenland, where the Doctor, with one white man, Rudolph Francke, were landed, with their supplies, to begin the undertaking. Several attempts were made in successive years by Mr. Walter Wellman to make the journey to the Pole from Spitzbergen by a dirigible airship. Each of them, down to 1909, was frustrated by misfortunes of circumstance or weather. A tragically ended survey of the northeast coast of Greenland was accomplished in 1906-1907 by Dr. Mylius Erichsen and Lieutenant Hagen-Hagen, who perished while groping their way southward in the growing darkness of the approaching winter. These fill out the important items of the record of Arctic exploration, since April, 1901, down to the 1st of September, 1909.

On that day the whole world was startled and excited by a message, flashed first to Lerwick, in the Shetland Islands, from a passing Danish steamer, the Hans Egede, and thence to all corners of the earth, saying:

"We have on board the American traveller, Dr. Cook, who reached the North Pole April 21, 1908. Dr. Cook arrived at Upernivik (the northernmost Danish settlement in Greenland, on an island off the west coast) in May of 1909 from Cape York (in the northwest part of Greenland, on Baffin Bay). The Eskimos of Cape York confirm Dr. Cook's story of his journey."

The next day brought a cabled announcement from Dr. Cook himself, to the New York **Herald**, briefly telling of his

triumph, "after a prolonged fight against famine and frost," and describing the emotions with which he had found himself at the goal which so many had striven vainly to attain. "What a cheerless spot," he moralized, "to have aroused the ambition of man for so many ages! An endless field of purple snows. No life. No land. No spot to relieve the monotony of frost. We were the only pulsating creatures in a dead world of ice."

Two days later the hero was landed at Copenhagen, and all the excited world devoured graphic descriptions of his reception by the enthusiastic Danes: by the Crown Prince, who hastened to welcome him before he had stepped from the ship; by the crowds who cheered him; by the King, who dined him; by the University of Copenhagen which awarded him an honorary degree, and whose faculty he made happy and proud by the promise that it should be the first to examine the record of his observations and the proofs in general that he had reached the Pole.

Two more days passed, and then the climax of this world-spread excitement and astonishment was marked by another radio-electric flash of news out of the Arctic North,—this time from the American North,—proclaiming another conquest of the icy fortress of the Pole. It spoke "to the Associated Press, New York," from "Indian Harbor, via Cape Ray, Nova Scotia," saying: "Stars and Stripes nailed to North Pole. Peary." It reached New York a little after noon of September 6th, and before night, everywhere, people in all languages were asking each other: "Is it possible that two men have suddenly done what none have been able to do before?"

{501}

Other messages from Commander Peary which soon followed the first one fixed the date of his attainment of the Pole as having been April 6, 1909,—being fifteen days less than a year after Dr. Cook claimed to have planted the American flag at

the same spot. They brought angry denunciations, too, of Cook's pretension, which Peary had learned of from the Esquimaux in the North. "Cook's story," he said in one despatch, "should not be taken too seriously. The two Esquimaux who accompanied him say he went no distance north and not outside of land. Other members of the tribe confirm their story." In another he declared: "Cook has sold the public a gold brick." Dr. Cook, meantime, gave out expressions as to Peary's achievement very different in temper and tone. He had no doubt that Commander Peary had reached the Pole; but he, Cook, had been fortunately the first to enjoy the favorable conditions which gave success to them both. His magnanimity, his coolness, his easy self-confidence, in contrast with Peary's words and bearing, won public admiration and sympathy, and the majority in most communities inclined strongly, for a time, to the judgment that both explorers had done what they said they did, but that Cook, in character, was the more estimable man. When he arrived in New York, on the 21st of September, that city gave him almost as wild a hero worship as Copenhagen had done. Commander Peary was then just landing at Sydney, Nova Scotia, and it was some weeks before he would proceed to New York, or put himself at all in the way of receiving any public demonstrations of honor.

But grounds of skepticism as to Dr. Cook were acquiring a rapid multiplication. When he published his story in detail, or told it in lectures, it started questions which people having critical knowledge insisted that he must answer if he could; but he made no attempt. He was in no haste to produce the records which he had insisted would prove his claims beyond a doubt. He required weeks of time to prepare them for examination, and they must go to the University of Copenhagen before any other tribunal of science could see them. Meanwhile, he was harvesting large gains from lectures and newspaper publications, and seemed more interested in that pursuit than in the vindication of his questioned honor. Hence, suspicion of him grew, until it made itself heard and

felt at last with a force which drove the Doctor to put his professed proofs in shape and send them by the hand of his secretary, Mr. Lonsdale, to Copenhagen. Before they reached their destination he, himself, disappeared mysteriously from public view, nervously shattered, it was said, and seeking some hidden place of refuge abroad. Reports of him from various places in both Europe and South America have not been verified, and his whereabouts are still (March, 1910) a mystery.

On the 21st of December the report of the scientific committee of Copenhagen University, to which the records forwarded by Dr. Cook were submitted, was made public by the University Council. "The report, which was sent in by the committee on December 18, states that the following papers were submitted to it for investigation:—

"1. A type-written report by Mr. Lonsdale on Dr. Cook's Arctic voyage, consisting of 61 folios.

"2. A type written copy of 16 folios, made by Mr. Lonsdale, comprising the note-books brought back by Dr. Cook from his journey and covering the period from March 18 to June 13, 1908, stated to have been written on the way from Svartevaag to the Pole and back until a place west of Heibergsland was reached. ...

"The committee points out as a result of its investigations that the aforementioned report of the journey is essentially identical with that published some time ago in the *New York Herald*, and that the copy of the note-books did not contain astronomical records, but only results. In fact, the committee remarks that there are no elucidatory statements which might have rendered it probable that astronomical observations were really taken. Neither is the practical side—namely, the sledge journey—illuminated by details in such a way as to enable the committee to form an opinion. The

committee therefore considers that from the material submitted no proof can be adduced that Dr. Cook reached the North Pole.

"The council of the University accordingly declares as a result of the committee's report that the documents submitted to Copenhagen University contain no observations or explanations to prove that Dr. Cook on his last Polar journey reached the North Pole."

That Commander Peary had accomplished at last the object of his indomitable striving was never in doubt. His own testimony to the fact had sufficed from the beginning, and the decision rendered on the 3d of November by a committee of the National Geographic Society, which examined the records of his march to the Pole, added nothing to the public belief. But his laurels had been lamentably blighted by the atmosphere of scandal, wrangle, and disgust with which Cook's monstrous imposture had vulgarized the whole feeling that attended the exploit.

The incidents of the final Peary expedition, from start to finish, were summarized by the Commander in a message from Battle Harbor to the London *Times*, September 8, as follows:

"The **Roosevelt** left New York on July 6, 1908. She left Sydney on July 17th; arrived at Cape York, Greenland, on August 1st; left Etah, Greenland, on August 8th; arrived at Cape Sheridan, Grant Land, on September 1st, and wintered at Cape Sheridan. The sledge expedition left the **Roosevelt** on February 15th, 1909, and started north of Cape Columbia on March 1st. It passed the British record on March 2d; was delayed by open water on March 2d and 3d; was held up by open water from March 4th to March 11th; crossed the 84th parallel on March 11th and encountered an open lead on March 15th; crossed the 85th parallel on March 18th; crossed the 86th parallel on March 22d and encountered an open lead on March 33d [23d?]; passed the Norwegian record on March 23d; passed

the Italian record on March 24th and encountered an open lead on March 26th; crossed the 87th parallel on March 27th; passed the American record on March 28th and encountered a lead on March 28th; held up by open water on March 29th; crossed the 88th parallel on April 2d; crossed the 89th parallel on April 4th, and reached the North Pole on April 6th.

"On returning we left the pole on April 7th; reached Camp Columbia on April 23d, arriving on board the **Roosevelt** on April 27th. The **Roosevelt** left Cape Sheridan on July 18th, passed Cape Sabine on August 8th, left Cape York on August 26th and arrived at Indian Harbor.

"All the members of the expedition are returning in good health except Professor Ross G. Martin, who unfortunately drowned on April 10th, 45 miles north of Cape Columbia, while returning from 86 degrees north latitude in command of a supporting party."

{502}

POLAR EXPLORATION: Antarctic:

English, German, Swedish, and Scottish Expeditions.
The Successes of Lieutenant Shackleton.

When the account of Polar Exploration in Volume VI. of this work was closed, in April, 1901, several expeditions to the Antarctic region were reported as being under preparation, in England, Germany, and Sweden. The English expedition, for which the ship **Discovery** was being fitted out, sailed on the 6th of August, 1901, under the command of Captain Robert F. Scott, with Lieutenant Ernest H. Shackleton of the British Navy as second in command. Its object was a further exploration of the great mountainous region named Victoria Land, which Captain James Ross had discovered half a century before. This coast the **Discovery** reached in January, 1902, and followed it southward, to and beyond the Erebus

volcano, skirting the Great Ice Barrier which stretches far eastward, seeming to forbid a penetration of the frozen territory it hems in. In this survey the British explorers reached an unvisited section, which they named King Edward Land. They wintered that year near Mount Erebus, pushing sledge expeditions southward over the snow fields, finding a more upheaved and broken surface of land, less ice-capped, than is the common feature of the Arctic polar zone. In the longest of these sledge-trips the latitude of $82^{\circ} 17' S.$ was attained,—far beyond any previous approach to the southern pole, but still more than 500 miles from that goal. Through a second winter the **Discovery** was held fast in the ice, with considerable sickness among officers and men, notwithstanding which important additions to their survey of the region were made. In January, 1904, they were reached by two relief ships, and escaped from the ice in the following month, arriving at New Zealand not long after.

The German expedition commanded by Dr. Drygalski, left Kiel August 11, 1901, borne by the steamer **Gauss**, built specially for battling with ice. In January, 1902, it took on stores at Kerguelen Island, and proceeded thence to a point in the Antarctic Circle far eastward of that chosen by the British explorers, being within the region of the discoveries made by Captain Wilkes, about sixty years before, and indefinitely named Wilkes Land. It was the purpose of Dr. Drygalski to establish a station on the section of this unexplored territory known as Termination Land and from thence make thorough surveys. He failed, however, to find the supposed land in its expected place, and was unfortunately frozen in for a year, with sledge expeditions baffled by the violence of winter storms. In geographical exploration the **Gauss** party seem to have accomplished little, but they made rich collections of scientific data. As soon as they were freed from the ice they received orders from Berlin to return home.

The Swedish expedition, under Dr. Otto Nordenskjöld, left

Europe in October, 1901, in the ship ***Antarctic***, destined for Graham Land, south of the South American continent. There, on the east coast of that land, in Admiralty Inlet, Dr. Nordenskjöld established winter quarters in February, 1902, and the ***Antarctic*** was sent to South America, to return thence some months later.

A Scottish expedition, under Dr. W. S. Bruce, in the steamer ***Scotia***, was sent out in October, 1903, for special oceanographic investigations in Weddell Sea,—south of the Atlantic Ocean.

All previous Antarctic explorations were eclipsed, in 1908-1909, by that of Lieutenant Shackleton, commanding the barkentine *Nimrod*, a converted whaling vessel, much smaller than the ***Discovery***, on which Lieutenant Shackleton had accompanied Captain Scott to the same region some years before. The *Nimrod* sailed from England in July, 1907, and from New Zealand on New Year Day, 1908, going to the same section of the Arctic Circle that the ***Discovery*** had sought. Winter quarters were established at a point about twenty miles north of the spot where Scott and Shackleton had wintered in 1902-1903. One of the first achievements of the party was the ascent of Mount Erebus by six of the scientists of the expedition, who began their difficult climb on the 5th of March. Caught in a blizzard on the second day of their undertaking, they had to lie in their sleeping bags for thirty hours; but they made their way to the summit and looked down into the live fire of the crater. The party making this ascent were Lieutenant Adams, R. N. R. (geologist). Sir Philip Brocklehurst (surveyor and map maker), Professor David, of Sydney University, Mr. A. Forbes Mackay, assistant surgeon, Mr. Eric Marshall, surgeon and cartographer, and Mr. Marson a scientist of Adelaide. Early in the spring the sledging journeys were begun.

Speaking at a reception given to him by the Royal Geographical

Society, on his return to England in June, 1909, Lieutenant Shackleton gave a brief account of the most important of these journeys, led by himself, with Lieutenant Adams, geologist, Surgeon Eric Marshall, and a third companion named Wild. The march of the party was directly toward the Pole:

"On December 3 they climbed a mountain 4,000 feet high, and from its summit saw what they believed to be a royal road to the Pole—an enormous glacier stretching southwards. There was only one pony left at this time, and, taking this animal with them, they started the ascent of the glacier, which proved to be seamed with crevasses. Progress became very slow, for disaster threatened at every step. On December 7 the remaining pony was lost down a crevasse, very nearly taking Wild and a sledge with it. Finally the party gained the inland plateau, at an altitude of over 10,000 feet, and started across the great white snow plain towards the Pole.

"They were short of food, and had cut down their rations to an absolute *minimum*; the temperature at the high altitude was extremely low, and all their spare clothing had been deposited lower down the glacier in order to save weight. On January 6, [1909], they reached latitude 88° 8' 8" south [88° 8'?), after having taken the risk of leaving a depot of stores on the plateau, out of sight of all land. Then a blizzard swept down upon them, and for two days they were unable to leave their tent, while, owing to their weakened condition and the intense cold, they suffered from frostbite even in their sleeping bags. When the blizzard moderated on January 9 they felt that they had reached their limit of endurance, for their strength was greatly reduced and the food was almost done. They therefore left the camp standing, and pushing on for five hours, planted Queen Alexandra's flag in 88° 23' 23" south [88° 23'?), took possession of the plateau for the King, and turned their faces north again.

"Mr. Shackleton described the difficulties of the journey back to the coast, when the men were desperately short of food and nearly worn out, and attacks of dysentery added to their troubles. ... One day on the Barrier they were unable to march at all, being prostrated with dysentery, and they reached each depot with their food finished. On February 23, however, they reached a depot prepared for them by a party from the ship, and on March 1 Mr. Shackleton and Wild reached the ***Nimrod***. Mr. Shackleton at once led a relief party back to get Adams and Marshall, the latter having been unable to continue the march owing to dysentery, and on March 4 all the men were safe on board."

"Lieutenant Shackleton has essentially solved the problem of the position of the South Pole," said the London ***Times*** in comments on the expedition; "he may be said, indeed, to have been actually within sight of it on a dreary plateau some 10,000 ft. above sea level. He has been as successful in solving the problem of the South Pole as Nansen was in solving that of the character of the ocean which surrounds the North Pole."

An expedition to complete what Lieutenant Shackleton came so near to accomplishing is being prepared in Great Britain, with intention to sail in July, 1910. It will be commanded by Captain Scott, of the expedition of 1901. The British Government contributes \$100,000 to the cost. American and German expeditions are also being prepared.

POLES, THE: Germany: A. D. 1902-1908.

Measures for Germanizing the Polish Provinces of Prussia.

See (in this Volume)

GERMANY: A. D. 1902 (MARCH-MAY), 1906-1907, and 1908.

POLES, THE: Russia: A. D. 1904-1905.

Revolutionary Disturbances in.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

POLES, THE: A. D. 1906.
Their Present Condition.

"The Polish question ... resolves itself into a struggle between the local Russian Government, the Patriot, and the Socialists. The local Government though harassed and worried by the Socialists, is secure from any great disaster until the latter have won over all the troops, or the Russian soldier forgets his hatred for the Pole. The Socialists, well organised and energetic, are carrying out their programme with a tenacity which would be astonishing were it not for the fact that the Jewish element predominates in their ranks.

"The Polish Patriot seems to be in the worst case of all; for his hopes are centred on the programme of a party which is without efficient leaders and without the slightest chance of obtaining its demands from the existing Russian Government. The one ray of light on his political horizon is the fact that liberal Russia has expressed sympathy for his wrongs, and promised to redress them as soon as circumstances will allow, but even the most sanguine Patriot admits that his new ally has many battles to win before this promise can be fulfilled. Meanwhile, he is engaged in an unequal struggle with the Socialists and their allies, the anarchists."

***B. C. Baskerville,
The Present Condition of Poland
(Fortnightly Review, October, 1906).***

POLK, Van Leer:
Delegate to Third International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

POLLARD PLAN, OF JUDICIAL DEALING WITH DRUNKARDS.

See (in this Volume)
ALCOHOL PROBLEM: INTERNATIONAL CONGRESS.

POLTAVA PROVINCE, Peasant Doings in.

See (in this Volume)
RUSSIA: A. D. 1901-1904, and 1902.

POOLING, OF RAILWAY RATES.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1890-1902.

POOR LAWS, WORKING OF THE ENGLISH.

See (in this Volume)
POVERTY.

POPES.

See (in this Volume and Volume IV.)
PAPACY.

PORT ARTHUR: A. D. 1904-1905.

Siege and Capture in the Russo-Japanese War.

See (in this Volume)
JAPAN: A. D. 1904 (February-July) and (February-August);
also A. D. 1904-1905 (May-January).

PORTER, HORACE:

Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

PORTER, HORACE:

Search for and Recovery, at Paris, of the Remains
of John Paul Jones.

See (in this Volume)

UNITED STATES: A. D. 1905 (FEBRUARY-JUNE).

PORTLAND, OREGON: A. D. 1905.

The Lewis and Clark Exposition.

"The Lewis and Clark Centennial and American Pacific Exposition and Oriental Fair" (to give its full official title), conducted at Portland from the beginning of June until the middle of October, 1905, in commemoration of the first exploration of the American Continent from the Mississippi to the Pacific, was one of the most interesting and attractive of the undertakings of its kind in the last decade. Specially as an exhibit of the wonderful natural resources of the great Northwest, and of the more wonderful rapidity of their exploitation, it seemed wholly satisfying to all who visited it. The reclamation work of the United States Government, shown elaborately by models and otherwise in the Irrigation Building of the extensive national exhibit, afforded a feature of uncommon attractiveness. The associated Forestry Building, with its walls of mighty logs and its grand pillars of firs and cedars, six and seven feet in diameter, was a piece of unique architecture that drew all eyes. "The Oregon Cathedral," it came to be called. In metals, minerals, fruits and grains, the wealth of the Northwest was astonishingly displayed; and the Japanese from the farther side of the Pacific made the most of the opportunity to spread their artistic wares before American buyers.

The scenic setting of the Exposition grounds, on the border of a lake and with a background of hill rising from Willamette River, was a theme of praise in all reports of it.

{504}

PORTO RICO: A. D. 1901-1905.

Change of Qualifications for the Elective Franchise.

The fundamental provisions of the Act of Congress, approved April 12, 1900, under which the government of Porto Rico as a dependency of the United States was organized, will be found in Volume VI of this work.

See

PORTO RICO: A. D. 1900 (APRIL).

The Act has received amendment since, making one important organic change. The Executive Council which it created was authorized to fix the qualifications of voters for the first election of a Legislative Assembly. The suffrage in that election, held in 1900, was conferred by the Council on every male citizen of twenty-one years, resident in the island for one year and for six months in his municipal district, "who is able to read and write, or who, on September 1, 1900, owned real estate in his own right and name, or who on said date was a member of a firm or corporation or partnership, or who on September 1, 1900, owned personal property in his own right or name not less in value than twenty-five dollars." The results of the election held under that rule, and a brief summary of the doings of the Legislative Assembly at its first session, which opened on the 3d of December, 1900, and closed on the 31st of January, 1901, are given in Volume VI.

"At its second session, in 1902, the Legislative Assembly availed itself of the power given to it by the organic act and

passed a law for the government of future elections. This act followed closely the provisions of the orders that had been issued by the executive council. The system created is similar to that in the American States which have adopted the Australian ballot. As regards the franchise, the only change made was that the provision which gave the right to vote to persons owning personal property to the value of twenty-five dollars was dropped and in its place was substituted the provision conferring the franchise upon those persons meeting the conditions as regards age and residence who on the day of registration are able to produce to the board of registry tax receipts showing the payment of any kind of taxes for the last six months of the year in which the election is held. The law also provided that all persons who were registered during the year 1900 would not be required to register anew or have to meet the new requirements of the law. This was the law under which the second election in 1902 was held. In 1904 the law underwent a very important alteration as regards the qualifications for the enjoyment of the electoral franchise. By this new law the three conditions—ability to read and write, ownership of real estate, or payment of taxes—any one of which qualified a male citizen of Porto Rico who had resided in the island one year and in the district in which he offered to register for six months immediately preceding, to vote, were until July 1, 1906, wiped out, leaving only the conditions regarding sex, age and residence to be met in order to qualify a voter. After that date the additional qualification of being able to read and write must be met. The result of this amendment to the law is to provide for universal manhood suffrage until July 1, 1906, after which no new name can be added to the registration list unless its owner is able to read and write. Those persons, however, who are properly registered before that date are not required to offer themselves for registration, but continue to enjoy the full rights of the franchise."

W. F. Willoughby,

Territories and Dependencies of the United States.
page 95 (Century Company, New York, 1905).

PORTO RICO: A. D. 1905.

Extension of Local Government asked for.

A convention of municipal delegates, chosen by the elective municipal councils of the island, assembled at San Juan in July, 1905, formulated a request to the Government of the United States for a broadening of the fundamental law of 1900, which "would largely transfer the control of the local government to their own people. The Governor would remain a Presidential appointee, but the appointments by the Governor would be subject in many cases to revision by a locally elected Senate, except the courts, which would remain as now, for the most part, under our direct control. In other words, the legislative, and largely the administrative functions, subject to the limitations of the Organic Act, would be exercised by the Porto Ricans. The courts, of our own choosing, would construe limitations on these powers, and the Governor, with his police and militia, would be solely responsible for order and the lawful execution of lawful mandates."

PORTO RICO: A. D. 1906.

Visited by President Roosevelt.

His account of it.

"On November twenty-first I visited the island of Porto Rico, landing at Ponce, crossing by the old Spanish road by Cayey to San Juan, and returning next morning over the new American road from Arecibo to Ponce; the scenery was wonderfully beautiful, especially among the mountains of the interior, which constitute a veritable tropic Switzerland. I could not embark at San Juan because the harbor has not been dredged out and cannot receive an American battle ship. I do not think this fact creditable to us as a nation, and I earnestly hope

that immediate provision will be made for dredging San Juan Harbor.

"I doubt whether our people as a whole realize the beauty and fertility of Porto Rico and the progress that has been made under its admirable government. ...

"I stopped at a dozen towns all told, and one of the notable features in every town was the gathering of the school children. The work that has been done in Porto Rico for education has been noteworthy. The main emphasis, as is eminently wise and proper, has been put upon primary education; but in addition to this there is a normal school, an agricultural school, three industrial and three high schools. Every effort is being made to secure not only the benefits of elementary education to all the Porto Ricans of the next generation, but also as far as means will permit to train them so that the industrial, agricultural and commercial opportunities of the island can be utilized to the best possible advantage. It was evident, at a glance, that the teachers, both Americans and native Porto Ricans, were devoted to their work, took the greatest pride in it, and were endeavoring to train their pupils not only in mind, but in what counts for far more than mind in citizenship—that is, in character.

"I was very much struck by the excellent character both of the insular police and of the Porto Rican regiment. They are both of them bodies that reflect credit upon the American administration of the island. The insular police are under the local Porto Rican government. The Porto Rican regiment of troops must be appropriated for by the Congress. I earnestly hope that this body will be kept permanent. There should certainly be troops in the island, and it is wise that these troops should be themselves native Porto Ricans. It would be from every standpoint a mistake not to perpetuate this regiment. ...

"There is a matter to which I wish to call your special attention, and that is the desirability of conferring full American citizenship upon the people of Porto Rico. I most earnestly hope that this will be done. I cannot see how any harm can possibly result from it, and it seems to me a matter of right and justice to the people of Porto Rico. They are loyal, they are glad to be under our flag, they are making rapid progress along the path of orderly liberty. Surely we should now show our appreciation of them, our pride in what they have done, and our pleasure in extending recognition for what has thus been done by granting them full American citizenship. ...

"The Porto Ricans have complete and absolute autonomy in all their municipal governments, the only power over them possessed by the insular government being that of removing corrupt or incompetent municipal officials. This power has never been exercised save on the clearest proof of corruption or of incompetence such as to jeopardize the interests of the people of the island; and under such circumstances it has been fearlessly used to the immense benefit of the people. It is not a power with which it would be safe, for the sake of the island itself, to dispense at present. The lower house is absolutely elective, while the upper house is appointive. This scheme is working well; no injustice of any kind results from it, and great benefit to the island, and it should certainly not be changed at this time. The machinery of the elections is administered entirely by the Porto Rican people themselves, the governor and council keeping only such supervision as is necessary in order to secure an orderly election. Any protest as to electoral frauds is settled in the courts."

***Theodore Roosevelt,
Message to Congress***

(Congressional Record, December 11, 1906).

PORTO RICO: A. D. 1908.

Ten Years of Progress.

"Ten years ago exports from Porto Rico to the United States were valued at \$2,414,356, while in the fiscal year ending June 30, 1908, they were \$25,891,261. The new figures show a probable further increase for 1909. In 1898, less than \$3,000,000 worth of sugar was exported, and to-day shipments are more than \$14,000,000. In coffee, once the leading staple, increase is also marked, although sugar now holds first place.

"Four hundred and thirty-five miles of macadamized roads, in good repair, now make communication easy between San Juan and Ponce and cities on the west coast. Two-thirds of the roads have been built since the occupation. The railroad around the island, projected by the Spanish, but delayed year by year, is now built, and harbor improvements have been made in San Juan and Ponce. More than a thousand public schools are educating the Porto Rican children—and sometimes their parents. The net public debt is now less than \$3,000,000 or less than 21 per cent. of the assessed valuation, and the bulk of this money has been spent in public improvements."

***Porto Rico Correspondent New York Evening Post,
March 27, 1909.***

PORTO RICO: A. D. 1909.

Modification of the Fundamental Act.

In a special Message to Congress, May 10, 1909, President Taft called attention to the failure of the Legislative Assembly of Porto Rico to pass the usual appropriation bills, leaving the government of the island without support after the 30th of the next June. In his opinion, the situation indicated that the United States had proceeded too fast in extending political

power to the Porto Ricans, and that the full control of appropriations should be withdrawn from those "who have shown themselves too irresponsible to enjoy it." He suggested, therefore, an amendment of the fundamental act, known as the Foraker Act, to provide that when the legislative assembly shall adjourn without making the appropriation necessary to carry on the government, sums equal to the appropriations made in the previous year for the respective purposes shall be available from the current revenues, and shall be drawn by the warrant of the auditor on the treasurer and countersigned by the Governor. Such a provision applies to the Legislatures of the Philippines and Hawaii and "it has prevented in those two countries any misuse of the power of appropriation." An amendatory Act was passed in accordance with the President's suggestion.

PORTO RICO: A. D. 1909.

Change in the Governorship.

In September, 1909, Governor Regis H. Post resigned his office, and was succeeded by Mr. George R. Colton, who had had previous experience, both civil and military, in the Philippines and in Santo Domingo. The Secretary of the island underwent a change, also, Mr. Willoughby being called to Washington to take the duties of Assistant Director of the Census, and his place in Porto Rico being filled by Mr. George Cabot Ward.

PORTSMOUTH, Peace Treaty of:
Circumstances and Text.

See (in this Volume)

JAPAN: A. D. 1905 (JUNE-OCTOBER).

PORTUGAL: A. D. 1906.

At the Algeciras Conference on the Morocco question.

See (in this Volume)
EUROPE: A. D. 1905-1906.

PORTUGAL: A. D. 1906-1909.

A "rotative" system of Party Government and its results.
King Carlos assumes dictatorial authority.
His Minister, Senhor Franco.
Murder of the King and Crown Prince.
Succession of King Manuel.
Recent Ministries.

For many years prior to 1906 Portugal had been governed by two political parties, calling themselves the Regeneradors and the Progressistas, who, it has been said, "relieved one another in office, and in the spoils of office, at decent intervals, by a tacit arrangement between their leaders." This regular ministerial rotation led to the popular nickname of Rotativos, applied to both parties, and significant of the contempt in which they were held. The rotative system of party government, "while ensuring a comfortable livelihood to a class of professional politicians, was of no conspicuous benefit to the country, and it was with a view to ending it that King Carlos summoned Senhor João Franco, in May, 1906, to form a ministry. Senhor Franco, who belonged to neither of the recognized parties, set his hand zealously to the work of reform, but his attempts to purge the Administration soon brought him into conflict with powerful vested interests; and in May, 1907, the politicians whose livelihoods he was reforming away united against him in a policy of obstruction which made Parliamentary government impossible.

{506}

He then dissolved the Cortes, and with the approval of the King assumed the position of dictator. His work of reform thenceforth proceeded apace. Drastic decrees, each aimed at some abuse, followed one another with amazing rapidity. Strong in the support of the King and of the best elements in the country, execrated by the politicians whom he had spoiled, and

by the Press which he had done nothing to conciliate, he continued on his headlong course, and at the end of January, 1908, he signed a decree practically amounting to a suspension of civil liberties."

***Lisbon Correspondence,
London Times.***

A tragedy followed quickly. On the 1st day of February, 1908, the King, Dom Carlos, and the Crown Prince, Luiz Felipe, as they rode through the streets of Lisbon, with the Queen and a younger son in the same carriage, and attended by an escort, were attacked by a throng of assassins and killed. The younger prince was wounded; the Queen escaped by a miracle, one of the assassins having been shot at the instant his pistol was aimed at her. The two princes fought bravely, and the Queen threw herself in front of her husband, attempting vainly to shield him.

Prince Manuel, whose wound was not serious, succeeded to the throne; but "the shots that killed Dom Carlos and Dom Luiz on February 1 swept away the dictatorship of Senhor Franco and the whole fabric which he had built up at so much cost during 18 months. Within a few hours of the murder Senhor Franco resigned, under pressure, it is said, and left the country, declaring that he had done with politics for ever. From being the saviour of his country, the admiration of all enlightened men, both at home and abroad, he became a pariah. His supporters became mute and his system vanished. From that day to this his followers have had no more than three or four seats in the Chamber, where they have remained voiceless and without influence on the course of events.

"That a seemingly vulgar crime should have so disproportionate an effect was strange, and no less strange was the attitude of the country. Whether owing to the widely entertained suspicion that the murderers of the King were the tools of more

important personages whom it would not be safe to discover, or to the fear of a Republican rising felt by the moderate and respectable members of the community, is still a matter of opinion; the fact remains that society lost its nerve. No burst of indignation, no adequate expression of sympathy for the Royal Family was heard; no steps were taken to trace the authors of the crime. ... The disappearance of Senhor Franco left the two old 'rotativist' parties in presence, the Progressistas under Senhor Luciano de Castro, and the Regeneradores under Senhor Vilhena, the recently elected successor of the veteran Hintze Ribeiro. Compared to these, neither the Republicans, whose strength was supposed to be considerable in the country, nor the 'dissident' Progressistas, under Senhor Alpoim, were of any account as Parliamentary factors. A coalition Government was formed on March 4, under Admiral Ferreira do Amaral, consisting of two Regeneradores, two Progressistas, and two so-called Independents, personal adherents of the Premier, who resembled him in having no marked political ideals or convictions. The elections, which took place in April, returned 62 Regeneradores and 59 Progressistas, thus starting the Government on its career with the handsome following of 121 in a House of 155. The matters with which the Government had to deal were mainly three—namely, the revision of the decrees issued by Senhor Franco as Dictator, the question of the Civil List and of the advances made by the nation to the Royal Family, and electoral reform. The Civil List was successfully settled, but little progress had been made with the remainder of the programme when the first serious defection occurred. During the recess the Government announced that the municipal elections, which had been suspended by Senhor Franco in favour of nominated councils, would be held again in November, a decision bitterly attacked by Senhor Vilhena, who announced that the Regeneradores could no longer support the Government. The elections were duly held, and, owing to the deliberate abstention of the Monarchist parties, the Republicans captured unopposed every seat on the Lisbon council. The unpopularity

incurred by the Government on account of this unnecessary gift to the common enemy brought about a Government crisis. Admiral Amaral referred the matter to the Council of State, who, to his great surprise and annoyance, advised the resignation of the Government. The Premier and his two independents accordingly retired, and the Cabinet was reconstituted under Senhor Campos Henriques, who together with Senhor Wenceslao de Lima, Minister of Foreign Affairs, continued to represent the Regenerador party. The late Premier's 'Independents' made way for the Progressistas, who thus held five seats in the Cabinet to two held by the Regeneradores. Senhor Vilhena, who had brought about the fall of the late Government, was not offered a seat in the new one, and he immediately resumed his opposition; but on this occasion he only carried two-thirds of his party with him, 22 members deciding to support the Government. This defection of the Regeneradores under Senhor Vilhena, the first serious indication of a return to the old system of 'rotativism,' was shortly followed by that of the late Premier and his 'Independents,' so that when the Cortes met on March 1, [1909], the imposing Government majority of a year before had dwindled to 10 or 15."

Then followed daily scenes of disorder and obstruction in Parliament until Senhor Campos Henriques surrendered, at the end of March. As *The Times* correspondent expressed it, "as soon as the Opposition in the Lower House expressed its impatience by a banging of desks, while its leader in the House of Peers solemnly affirmed the 'incompatibility' of his party with the Government, Ministers determined to avoid all further unpleasantness by resigning." The resignation was accepted by the King, and three party leaders in succession made attempts in the next month to conduct the Government, without success. Senhor Sebastião Telles held the reins for three weeks, and then passed them to Senhor Wenceslao de Lima, who framed up a nominally non-party Ministry on the 13th of May. Senhor De Lima conducted the Government until the following December, when, on the 19th, he resigned, and a

"Progressist Ministry" was formed, under Senhor Beirao.

London Times Correspondence of various Dates.

{507}

Writing from Lisbon on the 5th of January, 1910, the ***Times*** correspondent said:

"It is the Republicans who alone seem to be making progress. Their activities are unceasing, their newspapers the best informed and most ably conducted, their meetings, held all over the land, the most largely attended and most enthusiastic. At the same hour as that of the Royal reception on New Year's Day the Republican municipality of Lisbon held a like function, not only largely and most influentially attended, but to the distinct diminution of the attendance in the Royal Palace."

PORTUGAL: A. D. 1909.

Demonstration against the Religious Orders.

The following despatch to the Press was sent from Lisbon August 3, 1909:

"Freethinkers from all political parties in Portugal, represented by a Liberal committee, to-day presented to the Cortes a petition for the suppression of the religious orders in Portugal and the abrogation of the existing laws against freedom of conscience. This step was an outcome of the meeting held in this city yesterday.

"The committee was accompanied to the Houses of Parliament by an immense crowd, and some wild scenes ensued. Among other things the petitioners asked for the abrogation of the recent law permitting religious associations to acquire landed property, a procedure which up to the present time has been

illegal. Senhor Camacho moved the consideration of the subject, and when the motion was voted down the galleries broke out in protestation. There was considerable violence on the floor of the House. The Deputies engaged in a struggle in which desks and chairs were overturned, and the Chamber had to be cleared twice. The tumult was continued in the streets, but without serious results."

PORTUGAL: A. D. 1909.

Offer of Dom Miguel to renounce his Claim to the Throne.

Dom Miguel, son of the Dom Miguel who, from 1828 to 1833 held the throne of Portugal in defiance of the rights of Maria da Gloria, his elder brother's daughter (see, in Volume IV., PORTUGAL: A. D. 1824-1889), had kept up his father's pretensions to the crown until the spring of 1909, when he offered to renounce it, if permitted to live in Portugal as a citizen. The permission was refused, for the reason that his return, with that of a number of nobles of his party, "would be regarded as a challenge to the rising tide of Liberalism."

PORTUGAL: A. D. 1909 (April).

Earthquake in and around Lisbon.

See (in this Volume)

EARTHQUAKES: PORTUGAL.

PORTUGUESE AFRICA.

See (in this Volume)

AFRICA: PORTUGUESE.

POSTAGE, BEGINNING OF INTERNATIONAL PENNY.

The postal treaty establishing two-cent or penny postage on letters between Great Britain and the United States went into effect October 1, 1909.

POSTAL SERVICE, IN CHINA.

See (in this Volume)
CHINA: A. D. 1908.

POSTAL SERVICE STRIKE, IN FRANCE.

See (in this Volume)
LABOR ORGANIZATION: FRANCE: A. D. 1909 (MARCH-MAY).

POSTAL AND TELEGRAPHIC STRIKE, IN RUSSIA.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

-----POVERTY AND UNEMPLOYMENT: THEIR PROBLEMS:
Start---

POVERTY AND UNEMPLOYMENT:
Old Age Homes, in Vienna.

"In most towns there is a tendency, in this our day, to deal more generously with destitute children than with destitute men and women. In Berlin and New York, for instance, both money and thought are lavished on the young whom the community supports; while as for the aged, what is given to them is given only of necessity. In Vienna it is otherwise; there the arrangements for the relief of the old people are better—both more carefully considered and more liberal—than those for the relief of children, a fact that says more, perhaps, for the hearts than for the heads of the authorities.

"If a man—or a woman—above 60 is without money wherewith to provide for himself, or the strength to earn the money, he applies to the Guardian of his ward for help. Then, if he has a home to live in, and someone to take care of him, or is able

to take care of himself, he is granted out relief, a money allowance if he can be trusted to spend it wisely, otherwise relief in kind. Supposing, however, he is homeless, feeble and 'alone-standing,' he is sent to a Versorgungshaus, or old-age home, if there is a vacant place there; and, if not, to a small poor-house until there is.

"Versorgungshäuser are the distinctive feature of the Austrian Poor Relief system so far as the aged are concerned. Already in the days of Joseph II. Vienna had two if not more of these homes, and at the present time it has six. One of them is reserved exclusively for Citizens; another, that at Mauerbach, is reserved for persons who, owing to their perverted notions as to what is seemly, cannot be accorded the full liberty the old people in the other homes enjoy. In all the six together there is space for more than 6,000 inmates. As the Versorgungshäuser are looked upon by classes and masses alike as the homes of the aged poor, the place where they have a right to be, no disgrace is attached to going there. ...

"Although in Vienna much is done for the poor, the burden entailed by Poor Relief is by no means overwhelming. In 1903 the full cost of indoor relief, outdoor relief and sick relief, together with the cost of administration, was only £942,870, and of this £250,672 was obtained from private sources. At that time the town was providing 31,000 adults—old men and women for the most part—with allowances ranging in amount from 30 kronen to 6 kronen a month; it was maintaining 6,790 more in old-age homes and other institutions; and was defraying the cost of the Asyl and workhouse. It was supporting, or contributing to the support of, 10,260 children who were either with their own relatives or were boarded out; and was maintaining 3,246 in orphanages, etc. It defrayed the cost of the 27,000 babies who passed through the Foundling Hospital, and of the 19,085 children who were temporarily in institutions. It also provided 77,000 boys and girls with school books, and contributed generously to many private

philanthropic societies. Roughly speaking, the cost to the town of Poor Relief in Vienna per head of the population is 8s. 4d."

***Edith Sellers,
Poor Relief in Vienna
(Contemporary Review, December, 1900).***

{508}

POVERTY AND UNEMPLOYMENT:

Pensions, &c.: Denmark: A. D. 1907.
Old Age Pensions.

Some interesting details of the working of the Danish old-age pensions system are contained in a British Consular report issued in May, 1909. The latest available statistics show that on March 31, 1907, 70,445 persons over 60 years of age were in receipt of pensions, which amounted in the aggregate to £451,000 [\$2,255,000] for the financial year 1906-1907. The number of pensioners on March 31, 1906, was 68,800, and the amount distributed in the financial year 1905-1906, £420,444. Both the number of pensioners and the average amount of the pensions are increasing. The ages of the "principal" pensioners (*i. e.*, of the actual recipients of pensions apart from wives and children dependent on them) were, on March 31st, 1906, as follows:

60 to 65 years of age—3,173 men, 4,239 women;
65 to 70 years—5,831 men, 6,756 women;
70 years and over—13,974 men and 17,037 women.

About a quarter of the population over 60 years of age is in receipt of pensions, the women especially availing themselves of their benefits. The average amount distributed to each "principal" recipient was £6 5s. in 1905-1906 and £6 11s. in 1906-1907.

POVERTY AND UNEMPLOYMENT: England: A. D. 1908.

Old Age Pensions Act.

The Working of the Law.

Its Pitiful and Appalling Disclosures.

The Act of the British Parliament, "to Provide for Old Age Pensions" (August 1, 1908), declares in its first section that "the receipt of an old age pension under this Act shall not deprive the pensioner of any franchise, right, or privilege, or subject him to any disability." The second section defines the "statutory conditions for the receipt of an old age pension by any person" to be: the person must have attained the age of seventy; must satisfy the pension authorities that he has been a British subject and resident in the United Kingdom for at least twenty years; that his yearly means, as calculated under the stipulations of the Act, do not exceed thirty-one pounds ten shillings. But, notwithstanding the fulfilment of these statutory conditions, a person is disqualified while he is in receipt of any poor relief, other than medical or surgical assistance on the recommendation of a medical officer, or relief rendered by means of the maintenance of a dependent in an asylum, infirmary, or hospital, or any relief that by law is expressly declared not to be a disqualification for any franchise, right, or privilege. Furthermore, any person is disqualified for the receipt of an old age pension "if, before he becomes entitled to a pension, he has habitually failed to work according to his ability, opportunity, and need, for the maintenance or benefit of himself and those legally dependent upon him: Provided that a person shall not be disqualified under this paragraph if he has continuously for ten years up to attaining the age of sixty, by means of payments to friendly, provident, or other societies, or trade unions, or other approved steps, made such provision against old age, sickness, infirmity, or want or loss of employment as may be recognized as proper provision for the purpose by regulations under this Act, and any such provision, when made by the husband in the case of a

married couple living together, shall, as respects any right of the wife to a pension, be treated as provision made by the wife as well as by the husband."

Disqualification exists, also, during detention in a lunatic asylum; and not only during any penal imprisonment that has been ordered "without the option fine," but for ten years thereafter.

Specific rules are given in the Act for "calculating the means of a person" who seeks the pension; and the rate of weekly pension to be paid is proportioned inversely to such ascertained means, as follows: "Where the yearly means of the pensioner as calculated under this Act:

Do not exceed £21.,—5s. 0d.;

exceed £21, but do not exceed £23, 12s. 6d.,—4s. 0d.;

exceed £23 12s. 6d., but do not exceed £26 5s.,—3s. 0d.;

exceed £26 5s., but do not exceed £28 17s. 6d.,—2s. 0c2.;

exceed £28 17s. 6d., but do not exceed £31 10s.,—1s. 0d.;

exceed £31 10s., no pension."

The Act became operative on the 1st of January, 1909. At that time the persons recommended for pensions, throughout the Kingdom, numbered 490,028, with somewhat over 148,000 pending claims. The original estimate, on the discussion of the measure, had been that the eligible pensioners would not exceed 500,000, and that the cost of the undertaking, to begin with, would be about £6,000,000. It was evident, therefore, before pension payments began, that these estimates were much too low.

From Ireland it was reported by the Press on the opening day of pension payments that "more than 4,000 persons will to-day receive old-age pensions in the city of Dublin. Claims continue to be received in large numbers, and the pension authorities estimate that, inasmuch as the last census of the city showed that there were 6,800 persons over 70 years of age

then alive, at least 1,200 eligible persons have not yet made application. Yesterday afternoon it was stated that in all 5,600 claims had been lodged.

"Of the 209,000 claims lodged altogether in Ireland, it is estimated that 50,000 will be disallowed, and that £30,000 weekly will be required to satisfy those which have been held to be good. So far as Dublin is concerned, less than 90 per cent, of the inhabitants who are over 70 years of age have claimed pensions, so that the rural districts are responsible for the larger percentage of claimants in Ireland as compared with England and Scotland."

From Scotland it was reported that "in Glasgow, the number of persons of 70 years and over is 13,160, and fully half of those made claims. A rough estimate places the number of full pensions granted at about 5,550. In addition, a number of allowances of the smaller amounts, ranging from 4s. to 1s., have been made."

In London, on the 1st of January, 1908, there had been 39,043 claims considered, of which 36,108 were allowed. Of these, 31,327 were for 5s., 1,701 for 4s., 1,827 for 3s., 797 for 2s., and 456 for 1s.

{509}

Speaking in Parliament on the 1st of March, with deep feeling, of the working of the Pension Act and of the revelation of poverty it had made, the Chancellor of the Exchequer, Mr. Lloyd-George, said: "The pension officers, especially in Ireland, had been appalled at the amount of undisclosed poverty, and that was why he was not disposed to criticize too harshly the administration of the Act in that country, even if it had resulted in addition of a considerable sum to the estimate of the Government. The details of poverty in Ireland were perfectly horrifying. It was a disgrace to any civilized

country that reasonable human beings should be allowed to live under such conditions. But the same condition of things was found in Great Britain also in many cases. He made a special point of investigating the matter, and pension committees and pension officers all told the same story of people facing poverty and privation for years with resignation, fortitude, and uncomplaining patience, and all asked the same question and asked it in vain—How on earth could those poor people have managed to keep body and soul together on such slender resources? They had not understated their resources; on the contrary, there were cases in which they had overstated them from a feeling of pride.

"What struck one in such cases was how the people had fought against the horror of the Poor Law. There were 270,000 people over 70 years of age in receipt of Poor Law relief. The Old-Age Pensions Act had disclosed the presence in the community of over 600,000 people the vast majority of whom were living in circumstances of great poverty, and yet disdained the charity of the Poor Law."

In the report of the Local Government Board for 1908, the inspector of poor-law administration in the eastern counties of England reported a substantial decrease in pauperism during the year, and attributed this mainly to the passing of the Old-Age Pensions Act. Persons verging on the age of 70 were doing everything possible to preserve their qualifications for pensions, and their sons and daughters, in the hope that the old folk will be able to stand alone, are maintaining them till the pensions are due in order that they may not be forfeited by parish relief.

POVERTY AND UNEMPLOYMENT: France: A. D. 1909. State Railway Servants Pensions.

In July, 1909, the Chamber of Deputies adopted a Bill for pensioning the railway employees of the State which had

already passed the Senate. It applies to some 308,000 persons, who will be pensioned in several classes at ages ranging from 50 to 60 years, and the estimated annual cost will exceed \$5,000,000. The Minister of Public Works, M. Barthou, described the measure as an acknowledgment on the part of the country of a debt which it owed to a deserving body of public servants, who for the last 11 years had waited patiently for the fulfilment of a promise and upon various trying occasions during that period had not abused the confidence which had been reposed in their good sense and public spirit.

POVERTY AND UNEMPLOYMENT: France: A. D. 1910. General Old-Age Pension Law.

A general measure for the pensioning of workmen in old age, which had been pending in the French Parliament for nearly three years, became law in April, 1910. Passed in the first instance by the Chamber of Deputies in 1907, it was held in the Senate, undergoing an extensive remodeling, until the 12th of February, 1910, when that body gave it an unanimous vote. In the Chamber of Deputies its exaction of compulsory contributions from the wages of workmen to the pension fund was opposed by a section of the Socialists, but supported by the Socialist leader Jaures, as well as by the Briand Ministry, and carried by a decisive vote on April 1st. "Workingmen, domestic servants, clerks, and farm laborers to the number of nearly 12,000,000, whose annual earnings are below 3,000 francs, are placed under a system of compulsory insurance. For the farmer and small proprietor whose income ranges between 3,000 and 5,000 francs, an optional form of insurance is provided. Of this class there are nearly six million men and women in the country." In all, about 18,000,000 of the population of France are beneficiaries of the Act.

POVERTY AND UNEMPLOYMENT: The German System of State-aided Pensions,

compared with other systems.

The following is from the report of a lecture on State-aided Pensions for the Poor, given in London, on the 3d of February, 1909, by the Honourable W. P. Reeves, Director of the London School of Economics and Political Science. It is an admirable summary of facts that exhibit the working, down to the present time, of the German system of working men's insurance adopted between 1883-1889.

See (in Volume IV. of this work)
SOCIAL MOVEMENTS: A. D. 1883-1889.

See (in Volume VI. of this work)
GERMANY: A. D. 1897-1900, in Volume VI.):

"The subject, said the lecturer, fell into three groups—contributory pensions, free State universal pensions, and free State limited pensions. Germany, France, and Belgium afforded examples of the contributory pensions, and Denmark, Australia, New Zealand, and the United Kingdom of the limited free pensions. The universal free pensions were likely to remain an ideal. The Belgian superannuation for the poor, provided by voluntary contributions on the part of the insurer and by State bonuses, had encouraged thrift, but it yielded an average pension of only £3 a year. It could not, therefore, be pronounced to be a success, and the State had recognized its failure by inaugurating a system of free old-age pensions for the utterly destitute. A similar superannuation scheme in France, also maintained principally by voluntary contributions, had only attracted 8 per cent. of the class for which it was intended, and there, too, it had been found necessary to introduce free old-age pensions. There was also a voluntary system in Germany, but that was a kind of side show to the great national system of insurance by compulsory contributions. This latter system was a gigantic experiment, and it really did deserve the name of national. Professor

Ashley had shown that of the 10,700,000 men who were insurable under this scheme 8,857,000 actually were insured; and of the 5,800,000 women who were qualified to provide for pensions 4,524,000 were actually paying their contributions. The system had been in operation for 26 years, and the amount paid out in that time must have exceeded £300,000,000, while 70 or 80 million persons had been benefited by it from first to last. The number of persons affected yearly by the system was 25,000,000; and in 1907 nearly £30,000,000 was spent in the three divisions of the triple system—old age, sickness, and accidents. He had only to deal with one division—old age and infirmity. The accumulated funds in this division amounted to about £70,000,000; and the amount paid out to the insurers in 1906 was nearly £8,300,000, and in 1907 £8,400,000. The population liable to insure was about 14¼ millions, and the number of pensions in force at the end of 1907 was 979,000.

{510}

"Under this German scheme the class compulsorily insured consisted of men and single women earning less than £100 a year. The funds were provided in equal contributions by employers and employed—the principle underlying the system being that of deferred wages. It was a question whether it was encouraging thrift to withhold from such wage-earners 2 per cent. of their wages. The State bore the cost of management, and added to every pension a bonus of £2 10s. a year. For the working of the system the wage-earners were divided into five grades:

- (1) Those who earn up to £17 10s. a year;
- (2) those who earn any sum between £17 10s. and £27 10s.;
- (3) those who earn any sum between £27 10s. and £42 10s.;
- (4) those who earn any sum between £42 10s. and £57; and
- (5) those who earn any sum between £57 and £100.

The lowest wage-earners paid seven-eighths of a penny per week

for their old-age pension, and the highest wage-earners about 2¼d. No special consideration was shown for a married man. The five grades of pensions were:

- (1) £5 10s. a year;
- (2) £7;
- (3) £8 10s.;
- (4) £10; and
- (5) £11 10s.

If the labourer died after subscribing for 200 weeks his wife and children were entitled to receive what he had subscribed, but nothing more.

"The lot of the widows and orphans was one of the black features of the system. A married woman could not qualify for an old-age pension. The amount of the weekly contribution was fixed for ten years. In 1906 the receipts exceeded the expenditure by £6,000,000; the cost of administration was only £850,000. But that was only the minor part of the provision made for elderly people in Germany. The main provision was made under the head of infirmity or invalidity occurring before the pension age—70. If the insurers, after having subscribed for not less than four years, broke down and were unable to earn wages, they were entitled to more generous treatment. If curable they were cured in State sanatoriums and received temporary sickness pensions. If incurable they received a pension which was regulated by the number of years they had subscribed, and varied from a *minimum* of £5 16s. in the lowest grade for four years' subscriptions to £22 10s. in the highest grade for 50 years' subscriptions. The insurer began to pay his contributions at the age of 17, and for an old-age pension he had to subscribe 50 weeks a year for 24 years—1,200 weeks in all. Though the system had not checked Socialism or militant trade unionism, it had attained its real purpose, for it had conferred an enormous boon upon the poor."

At the time when the remark quoted above, touching the defective provision of the German law for widows and orphans, was made, the Imperial Government was preparing to amend it. The London *Times* of April 17, 1909, gave, in its correspondence from Berlin, the account of a draft Bill, just made public, which the Imperial Ministry of the Interior had prepared for presentation to the Federal Council, the object being to combine and coordinate "the seven compulsory insurance laws of 1883 to 1899," together with certain amendments and additions. "It is understood," wrote the correspondent, "that the Bill will not reach the Reichstag before the autumn of this year. Whereas many authorities ... have favored a thorough unification of the three systems of invalidity and old age, accident, and sick insurance, the immediate proposals of the Government would leave the three systems separate and distinct, while codifying the law and the regulations which are common to all branches of compulsory insurance, and establishing a joint and threefold system of higher administration." The main purpose of the bill was to rectify that lack of proper provision for widows and orphans which was noted above. "The need of solving this problem," said the correspondent, "is really the immediate occasion of reform, and the proposed solution is the most important feature of the reform scheme. An essential feature of the tariff law of 1902 was the ear-marking—by the so-called Lex Trimborn—for widows and orphans' insurance of the surplus revenue from the increased Customs duties on corn and cattle. The Lex Trimborn takes effect on January 1, 1910, but the surplus revenue is lacking. For the financial year 1906 there was no surplus. For 1907 there was a surplus of about £2,000,000. For the financial year 1908 there will be no surplus, although £2,650,000 was estimated for. In these circumstances the Government—while apparently still cherishing the hope that, upon the average of a long period of years, the revised tariff will do what was expected of it—proposes to provide for widows and orphans insurance by a simple all-round extension of the system of invalidity and old-age insurance.

That is to say, the 'contributions' of employers and employed are to be raised, and an Imperial subsidy, of fixed amount, without regard to the annual revenue from Customs, is to be added to the contributions.

"It is at present proposed that the weekly 'contributions' to invalidity and old-age insurance shall, in order to provide funds for widows and orphans' pensions, be increased—upon the mean average of the contributions of the five classes of wage-earners—by one-fourth, and that the Empire shall add a subsidy of £2 10s. a year to each widow's pension and a subsidy of £1 5s. a year to each orphan's pension."

In February, 1909, a Parliamentary Committee of the British Trades Union Congress, composed of men representing the Labor Party in Parliament, reported the results of a visit to Germany which the Committee had made in the previous November, to examine conditions in that country, especially with reference to the operation of the state system of insurance. In their report they said: "The State assistance has acted as an incentive and encouragement to workmen to make additional provision for themselves and families through their trade unions and private sick clubs. This is especially the case in invalidity and old age. It has always been the workman's complaint, as well as that of the organizations, that the assistance obtainable under the workman's insurance system is quite out of proportion to the subscriptions paid, and quite insufficient for the maintenance of the pensioner.

{511}

In this connexion, it is interesting to note that in 1907 the 'Free' or Socialist unions, with a membership of 1,866,000, granted £174,000 in sick pay and £19,000 in invalidity pay; the State subsidies to invalidity and old-age pensions amounting in 1906 to £2,437,000. The insurance pensions are continually increasing; and it is stated that the invalidity pensions will eventually reach a *maximum* in the lowest wages class of £9 5s., and in the highest one of £22 10s. The

funds accumulated in the hands of the Invalidity Pension Offices amounted at the end of 1907 to about 70 million pounds, and the workmen maintain that the time has now arrived when either the pensions paid should be increased, or the contributions levied decreased, as provided for by law."

"The members of the deputation were struck by the absence of slums in the manufacturing quarters of the towns visited. Nowhere did they see any quarter that could be classified under the heading 'slum.' The cleanliness prevailing throughout all the towns visited was also remarkable. No beggars, feeble or emaciated men in tatters and rags were encountered in the streets. Hundreds upon hundreds of unemployed were seen by the deputation, but they seemed to lack that dejection and absolute misery that is so frequently met with in the streets of English towns.

"Workmen throughout Germany do not complain of any compulsory deductions made by their employers from their wages for the purpose of workmen's insurances. Many of the largest employers are favourably disposed towards these laws, and pay willingly. On the other hand, probably the majority do complain of the cost, although not opposed to the laws in principle."

POVERTY AND UNEMPLOYMENT: Poor Laws: England: A. D. 1896-1906.

Report of Royal Commission.
Increasing Pauperism.

In December, 1905, a Royal Commission, composed of nineteen men and women of distinguished ability and of special qualifications for the service, was appointed in Great Britain, "to inquire—(1) Into the working of the laws relating to the relief of poor persons in the United Kingdom; (2) into the various means which have been adopted outside of the Poor Laws for meeting distress arising from want of employment, particularly during periods of severe industrial depression;

and to consider and report whether any, and, if so, what modification of the Poor Laws or changes in their administration or fresh legislation for dealing with distress are advisable."

After three years of laborious investigation, making "more than 800 personal visits to unions, meetings of boards of guardians, and institutions in England, Scotland, and Ireland," as well as examining over 1300 witnesses, the Commission submitted an elaborate report in February, 1909. Its findings as to the present working of the poor-laws and the relief-systems of the United Kingdom, and its recommendations for reform, cannot be summarized with any clearness in such space as can be given to the subject here; but there is a startling significance in what it shows of the increase of pauperism and of the public cost of poor relief in late years.

It appears from the returns of the Local Government Board that the mean number of paupers in 1906, 1907 and 1908, was at a higher level than it had been for 31 previous years. Excluding, however, these three especially bad years, it is found that throughout the period 1896-1906 there were 24,000 more paupers than in the period 1888-1896, and 7000 more than in the period 1880-1888. In discussing the report the London **Times** remarks: "Further examination even diminishes the meagre consolation these figures afford as to the results of a generation of effort at reducing pauperism. Comparing the period 1896-1906 with 1871-1880, there has been a decrease of 3.9 per cent. in the total number of paupers, but this decrease has been accompanied by a large increase of male pauperism and is due entirely to the large decrease in the number of children, whose numbers have decreased by 18 per cent., and a small reduction in the number of women, whose numbers have increased by 2 per cent. The decrease in these two classes so affects the total as entirely to conceal an absolute increase of 18 per cent, in the number of male

paupers. Even in regard to the children, at any rate during the last 15 years, the decrease has been almost wholly in rural unions, and in the children of widows, and there has been a general increase in the number of children of able-bodied men.

"Further, so far as figures are available, they show a greater proportionate increase in the number of paupers during the working years of life than in the very young or the very old. Taking only the able-bodied in health, we find that in the period 1896-1906 in metropolitan unions the indoor paupers have increased by 38 per cent. and the outdoor by 137 per cent.; in urban unions the indoor by 24 per cent. and the outdoor by 133 per cent.; and in the whole of England and Wales the indoor by 21 per cent. and the outdoor by 49 per cent. In London alone 15,800 more paupers are being maintained than in the eighties, and the rate per 1,000 of the population, which used to be below that for England and Wales, has risen above it."

As for expenditure, it was some £8,000,000 in the year 1871-1872, and £14,000,000 in the year 1905-1906. Summing up the general situation with regard to this expenditure, the Commission says: "We find that, whilst the expenditure per inhabitant has increased from 7s. ¼d. to 8s. 2½d. since 1871-1872, and is only 7½d. less than it was in 1834, the expenditure per pauper has increased from £7 12s. 1d. to £15 12s. 6d. in the same period. The country is maintaining a multitude of paupers not far short of the numbers maintained in 1871-1902, and is spending more than double the amount upon each individual. The increased expenditure has done little towards diminishing the extent of pauperism. Such advance as the nation has made has been accomplished at an enormous cost, and absorbs an annual amount which is now equivalent to nearly one-half of the present expenditure upon the Army. It may be urged that the rate of pauperism has diminished from 31.2 per 1,000 in 1871-1879 to 22.2 per 1,000 in 1896-1905, and this is

certainly a matter for congratulation, but it has been the result of the large increase in the population rather than of any considerable reduction in the number of paupers."

{512}

This discouraging result has occurred notwithstanding the fact that the nation is spending £20,000,000 more in education than in 1831, and £13,000,000 more in sanitation and the prevention of disease than in 1841; notwithstanding the fact "that money wages in the nineties were 10 per cent. above those of the eighties, and 30 per cent, above those of the sixties," and notwithstanding the fact that "there has been a considerable flow of the working classes from the lower paid occupations to the higher paid industries."

The recommendations of the Commission include a scheme for a permanent system of public assistance for the able-bodied, which contemplates the establishment in every district of four coöperating organizations:

- (a) An organization for insurance against unemployment, to develop and secure (with contributions from public funds) the greatest possible benefits to the workmen from coöperative insurance against unemployment;
- (b) a labor exchange established and maintained by the Board of Trade to provide efficient machinery for putting those requiring work and those requiring workers into prompt communication;
- (c) a voluntary aid committee to give advice and aid out of voluntary funds especially to the better class of workmen reduced to want through unemployment;
- (d) a public assistance authority representing the county or county borough and acting locally through a public assistance

committee to assist necessitous workmen under specified conditions at the public expense. The report adds that it must be a fundamental principle of the system of public assistance that the responsibility for the due and effective assistance of all necessitous persons at the public expense shall be in the hands of one, and only one, authority in each county and county borough—viz., the public assistance authority.

POVERTY AND UNEMPLOYMENT:

Small Holdings Act of Great Britain.

See (in this Volume)

ENGLAND: A. D. 1907-1908.

POVERTY AND UNEMPLOYMENT:

Starvation Poverty in India.

See (in this Volume)

INDIA: A. D. 1905-1908.

POVERTY AND UNEMPLOYMENT:

Underfed School Children:

Provision for Meals to them.

How it is done in Various Cities.

In March, 1905, the British Foreign Office undertook, at the request of the Board of Education, to obtain information regarding the methods adopted in the great Continental and American cities for dealing with ill-fed school children. The facts collected were tabulated and published subsequently in a Parliamentary Paper (Cd. 2926-1906) from which the following statements are derived:

Generally, in the larger cities of Western Europe, some system was found to be in operation for feeding ill-fed children in the schools. Commonly this is conducted unofficially, by private charitable organizations, but sometimes in indirect

connection with the municipality, and frequently with help from municipal funds. In Berlin, however, the municipality takes on itself the responsibility of not only feeding but clothing properly the necessitous children attending its elementary schools. This made one of the functions of a municipal department, the *Städtische Schuldeputation*, which is assisted by a "Society for Feeding Poor Children" in the supplying of meals at the elementary school buildings of the city. The committee which conducts the work of that auxiliary society is appointed by the Government. As a rule, breakfasts only are given in Berlin, and only during the winter months; but four meals are supplied to such children as are thought by the head-masters of the schools to require them. No steps are taken to collect from parents any part of the cost of meals furnished in the schools.

In Paris the organization which installs and conducts canteens *scolaires* in schools belonging to the city, called the ***Caisse des Écoles***, is privately constituted, but presided over by the mayor. This connects it with the municipality, and in 1905 it had been receiving a municipal subvention of 1,000,000 francs yearly for three years, but this was not to be depended on as a permanent grant. It was necessary for the ***Caisse des Écoles*** to seek voluntary contributions. The City, however, undertakes to supply the necessary accommodations and all utensils for the school canteens, which are in operation throughout the year, every day of the week, but generally for a noon meal only; though soup is distributed in some *arrondissements* at the opening and closing of school. All children are entitled to feed at the canteen, but the meals are supplied gratis only to the children of poor families. The others pay a small sum which does not exceed 15 centimes (about 2 cents). In 1904 the total cost of meals furnished at the school canteens was 1,461,305 francs, of which 359,093 francs was paid by parents, who buy tickets for the purpose. All meals are supplied on the presentation of tickets, and nothing shows whether the tickets

have been bought or received as gifts.

In Vienna meals for poor school children are provided by a central Association, indirectly connected with the municipality, the Burgomaster being its president, and financial assistance being given to it from both imperial and municipal funds. Dinners only are provided, on every week day from November 16 to March 31, partly in the school buildings, partly in certain restaurants and kitchens. As in Paris, parents can buy tickets for these meals, but it is said to be rarely done. The total cost is about \$23,000 per year. Once a year, in the autumn, the Association makes an appeal for funds, and all classes of people respond, the Emperor giving 4,000 crowns and the Town Council voting 8,000.

Information on the subject was obtained by the British Foreign Office from thirty-eight cities, in all, of Austria, Belgium, Denmark, France, Germany, Holland, Italy, Norway, Sweden, Spain, Switzerland, and the United States. Some systematic provision, more or less adequate, for securing proper food to the children of the schools by private or public organization, was reported from more than thirty. The reports from New York, Philadelphia, and Chicago, in the United States, showed less undertakings in this direction than in any other cities of considerable size.

{513}

POVERTY AND UNEMPLOYMENT: In England:
Provision of Meals Act.

An order from the English Local Government Board on the subject of providing food for underfed school children was published on the 29th of April, 1905. It applied only to children under sixteen who were neither blind, deaf or dumb, and who were living with a father not in receipt of relief. Application in each case must be made by school managers, or

by a teacher empowered by the managers, or by an officer empowered by the education authorities. The relief might be granted in the ordinary way or as a loan, the father being allowed the opportunity of making the needful provision himself. If he failed to do so, the poor-law guardians were empowered to make it and to recover the cost, as if it were a loan. In no case could the relief be given in money, or continued on a single application for more than a month. Where possible, arrangements should be made with local charitable organizations for the issue of tickets for meals.

The above mentioned tentative order was followed, in the next year, by the passage of an Act which authorizes any "local education authority" in England and Wales to "take such steps as they think fit for the provision of meals for children" at any public elementary school, and for that purpose to "associate with themselves any committee on which the authority are represented, who will undertake to provide food for those children." Such education authority may aid the committee by furnishing necessary land, buildings, furniture and apparatus, and necessary officers and servants; but, "save as hereinafter provided, the authority shall not incur any expense in respect of the purchase of food to be supplied at such meals."

POVERTY AND UNEMPLOYMENT: Unemployment: Belgium: A. D. 1900-1904.

Municipal Organizations of Insurance against Unemployment.
The Ghent System.

The following is abridged from a report on "Agencies and Methods for Dealing with the Unemployed in certain Foreign Countries," made to the British Board of Trade, in 1904, by Mr. David F. Schloss:

During the last few years the Public Authorities of certain Belgian towns and Provinces have organised a system, to which

the name of Insurance against Unemployment is given, and under which the efforts of workmen to secure for themselves the means of tiding over periods of unemployment are assisted by the grant of subsidies provided out of public moneys, which form a supplement to the sums derived from the contributions of these work-people. This system is now in force at Ghent, Brussels, Antwerp, Bruges, Liege, Malines, and Louvain, and in the Provinces of Liege and Antwerp. In details it has been varied somewhat in different places, but the general scheme is the same, and it will be sufficient to give some account of it as organized in Ghent, where it was first worked out.

The Unemployed Fund at Ghent was initiated as the result of the recommendations made by a Special Commission on the question of unemployment, which on April 10, 1900, presented a Report, advising the creation of a Municipal Unemployed Fund under the conditions specified in a set of rules, which they submitted for consideration. The annual subvention to the Fund by the City was fixed, for three years, at \$4000. Expenses of the administration of the Fund to be borne by the City.

Administration of the Fund to be entrusted to a committee of ten citizens named by the municipal authority, but one half of whom must be members of those organizations of workmen which affiliate themselves with the Fund. The Fund may be augmented by subscriptions, donations, moneys collected by fêtes, etc.

"The intervention of the Special Fund shall consist either

(a.) in providing a supplement to sums paid to their members as unemployed benefit by workmen's organisations, or

(b.) in supplementing any provision made by individual thrift for the specific case of unemployment. The Special Fund will supplement the unemployed benefits paid by workmen's organisations by the payment of a subsidy, which may be equal to, but shall not be greater than, the amount of such benefits."

"Strikes and lock-outs, or the results attendant upon such disputes, sickness and physical incapacity for labour shall in no case give rise to the payment of an indemnity out of the monies of the Unemployed Fund."

"All workmen's organisations desiring that their members shall participate in the subsidies provided by the Fund will be required to send in each month a return showing the number and amount of all payments on account of benefits made by them, and to furnish every year their balance-sheet, also their rules and regulations."

"Workmen not being members of any Trade Union which enjoys participation in the Fund, are at liberty to join a Thrift Fund specifically constituted to meet the case of unemployment." By this rule, it will be seen, the scheme provides, under distinct branches, for Trade Unionists and non-Unionists.

POVERTY AND UNEMPLOYMENT: England: A. D. 1905-1909.
Unemployed Workmen Act, and its operation.

In the summer of 1905 a Bill brought into Parliament by the President of the Local Government Board, to provide for an organization to assist unemployed workmen, was carried through both houses with little opposition. It sought to bring about a careful discrimination between workmen who were accustomed to regular employment in ordinary circumstances, but temporarily unemployed through circumstances beyond their control, and the needy, on the other hand, who were proper objects of ordinary Poor Law relief. Its provisions were for the former entirely, and their purpose was to establish both local and central bodies, which should organize and maintain labor exchanges and employment bureaus, assist migration and emigration, and acquire, equip, and maintain farm colonies; the latter to operate continuously, for the training of persons to agricultural pursuits, preparing them for emigration or for

permanent transfer from city to country life. The local bodies contemplated were not empowered to provide work at public expense. That power was entrusted discretionally to the central bodies, which could draw on the rates for the purpose to a limited extent. Voluntary contributions were to be looked to in part for the necessary funds. The measure was decidedly conservative and tentative.

A report on the applications for relief and the relief given in England and Wales under this Act during the year ending March 31, 1909, compared with the previous year, shows as follows: The total number of applications received was 196,757, of which 49,239 were made to 29 committees in London, and 147,518 to 95 committees in other parts of the country.

{514}

The applicants belonging to the general or casual labour class (64,773) formed as in previous years by far the largest section—47.4 per cent.—of the whole number. The building trade ranked second with 23,047, or 16.9 per cent. of the total. The engineering, shipbuilding, and metal trades accounted for 17,028, or 12.5 per cent., as compared with only 8.6 per cent, in the previous year.

A Bill known as the "Right to Work" Bill came before the House of Commons in April, 1909, with the endorsement of the trade unions and the Labor Party. It was opposed by John Burns, the former labor leader, but now speaking as President of the Local Government Board and member of the Cabinet, who said: "For three and a half years he had had intimate experience of relief works, and he could not exaggerate the degradation of the workmen, the demoralization of the honest labourer, the extent to which money had been wasted and character impaired by the relief works which he had had in the name of Parliament to administer. Any member had only to take up the report of any one of the distress committees to see that what the

minority report said had happened would increasingly happen so long as these means of meeting unemployment were resorted to. The amount of work would be disproportionate to the wages paid, the wrong men would get the right work, and the best men would be excluded, because modesty was a characteristic of good workmanship and craftsmanship, and the worst men were always in the front line when relief works were set on foot."

POVERTY AND UNEMPLOYMENT: A. D. 1909.

Report of a Royal Commission.

The Royal Commission on the working of the English Poor Laws, whose general report is referred to above, issued, in September, 1909, a supplementary report on Unemployment. The main ultimate conclusions of the Commission are the following:

"When we consider the remedies proposed for unemployment we are convinced that they do not lie on the lines proposed by the Unemployed Workmen's Act, which has done nothing but systematize Relief Works. These, whether national or municipal, appear to us merely to intensify the evil as far as the ordinary workmen are concerned. The great thing necessary, we believe, is to obtain a general agreement as to the need of regularizing labour. In this the Government and municipalities ought to set a good example.

"It might be better, if any rate or State funds are to be spent on the unemployed, that such aid should take the form of supplementing trade union funds and give thereby a bonus on thrift. Any such supplementation of trade union funds would involve a Local Government Board audit, the control of the expenses of management, and a separation of the war and benefit funds. It is very doubtful whether it would be wise for trade unions to accept State aid if it involved loss of independence and an interference with their efforts to improve wages. There is little doubt, however, that grants of this kind would enormously increase their membership.

"In order to prevent the spread of the unemployed as a class it is probable that drastic measures ought to be taken, such as those recommended to check vagrancy. For the idle and worthless who now form the noisy section of the unemployed it might be necessary to establish semi-penal colonies. ...

"The solution lies in a better organization of the workers and more consideration from the employers. Better organization of industry might at once relieve the workers and render trade crises less acute by steadying the supply of labour.

"Differentiation of the unemployable from the willing workers and better classification of paupers would enable us to understand the extent of the problem and how far reorganization of labour must be carried. Raising the condition of the whole working class by better housing and better wages will help to keep decent but unskilled workmen from sinking.

"Every effort must be made to cut off the supply of unskilled and unintelligent labour by training boys to enter regular and permanent work."

POVERTY AND UNEMPLOYMENT: ENGLAND: A. D. 1909. The Labor Exchanges Act.

One of the most important of the recent enactments of the British Parliament is the Labor Exchanges Act, which encountered no serious opposition in either House. On introducing the Bill in the House of Commons, May 19, 1909, and in subsequent debate, Mr. Winston Churchill, President of the Board of Trade, gave explanations of which the following is a summary: It would divide the country into ten districts, which would have among them between 30 and 40 first-class labour exchanges, 45 second-class, and about 150 third-class for the smaller centres. The central control would be

exercised by the Board of Trade, but it is intended that, following the German example, there shall be in each principal centre a local advisory committee composed of representatives of workmen and of employers in equal numbers, with a permanent official as chairman. It is hoped that, when permanent buildings are secured, and the whole scheme is in working order, the labour exchanges will become centres of industrial life, in which employers and employed will learn to know one another better, and to discuss in common questions now too much regarded from different standpoints. These exchanges cannot make work, they can only distribute what work is to be had. They can hardly be expected to make head against the large fluctuations of trade, which must be met by some insurance scheme, which Mr. Churchill announced as being under contemplation. But there are many irregularities of distribution which labour exchanges can correct, and many seasonal fluctuations producing much distress which they can deal with to the great advantage alike of employers and employed.

It was not contemplated that fees should be charged to men applying to the labour bureaux, which were to be national institutions. They would strive to find men for jobs and jobs for men, and attention would be paid to the interests of the men who had been waiting longest for work. For the present domestic servants would not be brought within the operation of the Bill. No compulsion would be exercised to induce applicants to give evidence as to character, but of course a man would have a greater chance of obtaining work if he could give references and testimonials. In a strike the exchanges would be absolutely neutral as between capital and labour, and it would be clearly notified to all working men that there was a dispute and they would be left to act as they thought fit.

{515}

The Bill became law in September. A highly favorable report of

its operation was made six months later by the Consul-General of the United States at London, who stated that "on the opening day nearly eighty exchanges were in operation and thousands of applications for work were received. The applicants mainly represented the better class of labor. On the first day of the opening in Nottingham 557 workers and 120 employing firms registered. These were followed on the second day by 580 workers and 87 firms. One of the employers alone applied for sixty skilled hands, and though most of the skilled hands were placed, the registered firms were not able to fill all their vacancies."

POVERTY AND UNEMPLOYMENT: Germany: A. D. 1909.
Experiments of Insurance.

Representatives from the municipal authorities of fifteen German cities held a joint conference at Cologne in September, 1909, to discuss the best methods of combating unemployment. One or two speakers advocated compulsory insurance against unemployment; but the divergencies of opinion were so wide that no conclusion was reached. Annual conferences on the subject are to be held. A Press correspondent who reported the meeting remarked that it confirms "the German official view that the problem of insurance against unemployment is not ripe for systematic solution. Upon the strength of the experience, for example, of Strassburg and of Frankfurt, where the Ghent system of subsidies is in operation, demands are frequently made for the inauguration of an Imperial system of insurance. Apart, however, from the fact that other problems—especially widows and orphans insurance—have precedence, the Government maintains that Imperial legislation is impossible because no satisfactory scheme has been discovered."

Some account of the Ghent system, here referred to, will be found above, under the subheading Belgium. Besides the German cities mentioned as having introduced that measure of insurance against unemployment, Cologne and Leipsic have been

operating an organization of similar insurance for some years. As described in a report made in 1904 to the British Board of Trade by Mr. David F. Schloss, on "Agencies and Methods for Dealing with the Unemployed in certain Foreign Countries," the organization in Cologne is as follows:

"The 'City of Cologne Office for Insurance against Unemployment in Winter' was established in 1896. The object of the Office is to provide, with the assistance of the Cologne Labour Registry, an insurance against Unemployment during the winter (December to March) for the benefit of male workpeople in the Cologne district. In order to insure with the Office, a man must be at least 18 years of age, must have lived for at least a year in Cologne, and must not suffer from permanent incapacity to work. He is required to pay a weekly premium, payment of which must commence as from April 1, and must continue for 34 weeks. The amount of the premium was originally 3d. per week for both skilled and unskilled workmen; in 1901 the rate of premium was fixed at 3d. for unskilled and 4½d. for skilled men; in 1903 the rate was raised to 3½d. per week for unskilled and 4¾d. per week for skilled workmen. ...

"In return for these payments the insured workman, if and when out of work in the period named above, receives, for not more than eight weeks in all, a daily amount, which is 2s. for each of the first 20 days (nothing being paid for Sundays), and then 1s. on each subsequent day. These payments begin on the third weekday after the date on which the man has reported himself as out of work. ...

"No money is paid in respect of unemployment caused by illness or infirmity, or by the man's own fault, or by a trade dispute."

At Leipsic the institution of insurance against unemployment is on much the same lines, but differing in some details of

its rules. "The Leipsic Insurance Office was founded in April, 1903, with a guarantee fund of about £5000, provided by benevolent persons, in addition to which it proposed to receive annual subscriptions from members of the public. The town authorities granted accommodation for the Office rent free for three years. The system adopted was as follows: The right to insure with this Office is confined to men of 16 but not over 60 years of age, who have lived at Leipsic for at least two years; the general meeting may, however, allow residents in the suburbs of Leipsic to insure."

POVERTY AND UNEMPLOYMENT:

Employers' Labor Exchanges.

The Collieries Union, of colliery owners, in the Rhenish Westphalian coal district, was reported, in October, 1909, to have "decided to institute for the benefit of its members a system of centralized labour exchanges modelled upon the system which has existed for many years in the Hamburg iron industry. The principal objects in view are to secure a steady supply of permanent labour, to equalize a possible surplus of labour in certain districts and a corresponding deficit in others, and to prevent the habit on the part of miners of applying for employment at several collieries simultaneously. On the other hand, it is hoped that miners will be spared the frequently fruitless search for work."

-----POVERTY AND UNEMPLOYMENT: End-----

PRAIRIE OIL AND GAS COMPANY.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.:
UNITED STATES: A. D. 1904-1909.

PREFERENTIAL TRADE:

Discussed at the Imperial Conferences of 1902 and 1907

in London.

See (in this Volume)
BRITISH EMPIRE: A. D. 1902 and 1907.

PRESS, The:
Revived Censorship in Russia.

See (in this Volume)
RUSSIA: A. D. 1909.

PRESS CONFERENCE, The British Imperial.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909 (JUNE).

PRETORIA:
Peace Negotiations.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

PREVENTION OF CORRUPTION ACT.

See (in this Volume)
CRIME AND CRIMINOLOGY.

PREVENTION OF CRIMES ACT, BRITISH.

See (in this Volume)
CRIME AND CRIMINOLOGY.

PRIMARY, DIRECT.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES.

PRINCE EDWARD ISLAND: A. D. 1901-1902.

Census.

Reduced Representation in Parliament.

See (in this Volume)

CANADA: A. D. 1901-1902.

PRITCHETT, Henry S.:

President of the Carnegie Foundation for the Advancement
of Teaching.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1905-1908.

{516}

PRIZE COURT, CONTEMPLATED INTERNATIONAL.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907

(appended to account of Second Peace Conference
at The Hague).

PROBATION SYSTEM, THE.

See (in this Volume)

CRIME AND CRIMINOLOGY: PROBATION.

PROBLEMS OF THE TIME:

Of Crime.

See (in this Volume)

CRIME AND CRIMINOLOGY.

PROBLEMS OF THE TIME:

Of the Intoxicants.

See (in this Volume)

PROBLEMS OF THE TIME:

Of Labor and Capital.

See (in this Volume)

LABOR ORGANIZATION, LABOR PROTECTION,
AND LABOR REMUNERATION.

PROBLEMS OF THE TIME:

Of Municipal Government.

See (in this Volume)

MUNICIPAL GOVERNMENT.

PROBLEMS OF THE TIME:

Of Poverty and Unemployment.

See (in this Volume)

POVERTY.

PROBLEMS OF THE TIME:

Of Race.

See (in this Volume)

RACE PROBLEMS.

PROBLEMS OF THE TIME:

Of Railway Regulation.

See (in this Volume)

RAILWAYS.

PROBLEMS OF THE TIME:

Of the Trusts (so-called).

See (in this Volume)
COMBINATIONS, INDUSTRIAL AND COMMERCIAL.

PROBLEMS OF THE TIME:
Of War and Peace.

See (in this Volume)
WAR: PREPARATIONS FOR, AND REVOLT AGAINST.

PROBLEMS OF THE TIME:
Of Wealth.

See (in this Volume)
WEALTH.

PROFIT-SHARING.

See (in this Volume)
LABOR REMUNERATION.

PROGRESISTAS.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1907; also
PORTUGAL: A. D. 1906-1909.

PROGRESSIVES.

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1904.

PROHIBITION.

See (in this Volume)
ALCOHOL PROBLEM.

PROPORTIONAL REPRESENTATION.

See (in this Volume)
ELECTIVE FRANCHISE.

PROTECTION, THE NEW.

See (in this Volume)
LABOR REMUNERATION: THE NEW PROTECTION.

PROTECTORATES, SOUTH AFRICAN.

See (in this Volume)
SOUTH AFRICA: A. D. 1909.

PRUSSIA: A. D. 1902.
Measures for Germanizing the Polish Provinces.

See (in this Volume)
GERMANY: A. D. 1902 (March-May), and 1908 (January).

PRUSSIA: A. D. 1904.
Denominational Education restored.

See (in this Volume)
EDUCATION: PRUSSIA: A. D. 1904.

PRUSSIA: A. D. 1905.
Creation of a Government Bureau of Charities.

See (in this Volume)
SOCIAL BETTERMENT: PRUSSIA.

PRUSSIA: A. D. 1906.
Defiance of Popular Demands for Suffrage Reform.

See (in this Volume)
GERMANY: A. D. 1906-1907.

PRUSSIA: A. D. 1906.

A Comedy of Election Reform.

See (in this Volume)

ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

PRUSSIA: A. D. 1907.

Statistics of Population.

Birth Rate and Death Rate.

See (in this Volume)

GERMANY: A. D. 1907.

PRUSSIA: A. D. 1908.

Disappointing Statement by Prince Bülow about Suffrage Reform.

Socialist Successes.

A surprising word from the King.

In January, Prince Bülow, as Minister-President of Prussia, made a statement about suffrage reform which deeply disappointed all friends of that movement. It was therefore expected, when the Diet elections approached in June, that the Prussian people would be awakened by a violent agitation in favor of more liberal election laws, but nothing of the kind happened. The Socialists, indeed, made this their chief issue, and they carried a half-dozen districts, thus securing for the first time a foothold in the Diet; and the Radicals, too, gave out manhood suffrage as their watchword, but pressed it so feebly as to awaken the suspicion that their demand was not seriously meant.

"Nevertheless, the King's speech from the throne in October surprised the country by announcing that a reform of the election laws was a fundamental necessity and would be undertaken during the present session. This announcement affected the country-squire element like tapping on a hornet's

nest. The Conservative party immediately gave it to be plainly understood that it would brook no tampering with the election laws, the stronghold of its power."

W. C. Dreher,
The Year in Germany
(Atlantic Monthly, January, 1909).

PRUSSIA: A. D. 1908 (January).
More vigorous Germanizing of the Polish Provinces.

See (in this Volume)
GERMANY: A. D. 1908.

PRUSSIA: A. D. 1909-1910.
Rejection of proposed Reforms of the Elective Franchise.
The Offensive Bill of the following year.

See (in this Volume)
ELECTIVE FRANCHISE: PRUSSIA.

-----PUBLIC HEALTH: Start-----

PUBLIC HEALTH: AMERICA: A. D. 1901-1902.
Proposals of the Second International Conference of
American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

PUBLIC HEALTH: Army Sanitation:
By the Japanese.

See (in this Volume)
JAPAN: A. D. 1904-1905—at the end.

PUBLIC HEALTH: BUBONIC PLAGUE:

In India.

The bubonic plague, which began to terrorize the eastern world, especially India, in the late years of the last century (see PLAGUE, in Volume VI.), showed signs of abating in India in 1900, but regained virulence in the following years, the mortality from it in all India rising to about 560,000 in 1902, exceeding 842,000 in 1903, going beyond a million in 1904, and rising to 1,125,652 in the year from October 1, 1904, to September 30, 1905. Its worst ravages were in the Presidency of Bombay and in the Punjab. In the Bombay Presidency the victims of 1903 numbered 343,904; in the Punjab they counted 210,493.

See (in this Volume)
PUBLIC HEALTH: INDIA.

PUBLIC HEALTH: BUBONIC PLAGUE:

In the Philippines: How it was stamped out.

Full accounts of the successful campaign against bubonic plague in the Philippines, in 1900-1902, are given in the annual reports of the Philippine Commission. From that source the main facts were summarized in the May number of the National Geographic Magazine, 1903, as follows:

Bubonic plague was discovered at Manila on December 26, 1899, and slowly but steadily increased in its ravages up to December, 1901. "The deaths in 1900 numbered 199, and in 1901 reached a total of 432. The disease was at its worst each year during the hot, dry months of March, April, and May, nearly or quite disappearing during September, October, November, and December. ...

{517}

"On account of the important part which house rats are known

to play in the distribution of bubonic plague, a systematic campaign was inaugurated against these rodents in Manila. Policemen, sanitary inspectors, and specially appointed rat-catchers were furnished with traps and poison, and both traps and poison were distributed to private individuals under proper restrictions. A bounty was paid for all rats turned over to the health authorities, and stations were established at convenient points throughout the city where they could be received. Each rat was tagged with the street and number of the building or lot from which it came, was dropped into a strong antiseptic solution, and eventually sent to the Biological Laboratory, where it was subjected to a bacteriological examination for plague. During the first two weeks, 1.8 per cent. of the rats examined were found to be infected. This proportion steadily increased, reaching the alarming maximum of 2.3 per cent. in October. At this time numerous rats were found dead of plague in the infected districts, and, in view of the fact that epidemics of plague among the rats of a city in the past have been uniformly followed by epidemics among human beings, the gravest apprehension was felt, the rapid spread of the disease among the rats after the weather had become comparatively dry being a particularly unfavorable symptom.

"It was deemed necessary to prepare to deal with a severe epidemic, and a permanent detention camp, capable of accommodating fifteen hundred persons, was accordingly established on the grounds of the San Lazaro Hospital. Hoping against hope, the board of health redoubled its efforts to combat the disease. The force of sanitary inspectors was greatly increased, and under the able supervision of Dr. Meacham their work was brought to a high degree of efficiency. Frequent house-to-house inspections were made in all parts of the city where the disease was known to exist. The sick were removed to the hospital if practicable; otherwise they were cared for where found and the spread of infection guarded against.

"Plague houses were thoroughly disinfected, and their owners were compelled, under the direction of the assistant sanitary engineer, to make necessary alterations. Cement ground-floors were laid; double walls and double ceilings, affording a refuge for rats, were removed; defects in plumbing were remedied; whitewash was liberally used, and, in general, nothing was left undone that could render buildings where plague had occurred safe for human occupancy. Buildings incapable of thorough disinfection and renovation were destroyed. Buildings in which plague rats were taken were treated exactly as were those where the disease attacked the human occupants. The bacteriological examination of rats enabled the board of health to follow the pest into its most secret haunts and fight it there, and was the most important factor in the winning of the great success which was ultimately achieved.

"With very few exceptions, there was no recurrence of plague in buildings which had been disinfected and renovated. As center after center of infection was found and destroyed, the percentage of diseased rats began to decrease, and in January, 1902, when, judging from the history of previous years, plague should have again begun to spread among human beings, there was not a single case. In February, one case occurred. In March, there were two cases, as against 63 in March of the preceding year, and before April the disease had completely disappeared. This result, brought about at a time when the epidemic would, if unchecked, have reached its height for the year, marked the end of a fight begun by the board of health on the day of its organization and prosecuted unremittingly under adverse conditions for seven months, with a degree of success which has not been equaled under similar conditions in the history of bubonic plague.

"During 1901, plague appeared at several points in the provinces near Manila. Agents of the board of health were

promptly dispatched to the infected municipalities, and radical remedial measures were adopted, including, in several instances, the burning of infected buildings, the result being the complete disappearance of plague in the provinces as well as in Manila."

PUBLIC HEALTH: CANCER RESEARCH:

Mr. Barnato's Bequest.

"We are reminded to-day that the late Mr. Harry Barnato bequeathed a sum of money amounting to a quarter of a million sterling for the establishment of a charity in memory of his brother, Mr. Barney Barnato, and of his nephew, Mr. Woolf Joel, both of whom died before him. We are now officially informed that the trustees under Mr. Harry Barnato's will have determined to apply the bequest to the building and endowment of an institution for the reception of cancer patients, and to place its management under the control of the authorities of the Middlesex Hospital, where special wards for cancer patients have long been in operation, and where much has been done in devising means for the alleviation of their sufferings."

***London Times,
August 9, 1909.***

Mr. George Crocker, of California, who died in December, 1909, bequeathed a fund amounting to about \$1,500,000 to Columbia University for the prosecution of researches into the cause, prevention, and cure of cancer. Mr. Crocker, his wife, and his father, Charles Crocker of California, all died of the disease. Mr. Crocker had given \$50,000 to Columbia for the same purpose before his death. Mr. Crocker provided that, should a cure for the disease be discovered, the money should be devoted to other medical investigations, "with a view to preventing and curing diseases and alleviating human suffering." He stipulated further that no part of the fund

should be used for the erection of a building.

{518}

PUBLIC HEALTH:

The Committee of One Hundred.

Movement for a National Department or Bureau of Health.

A convincing paper read by Professor J. P. Norton, of Yale, before the economic section of the American Association for the Advancement of Science at its meeting in 1906, on the economic advisability of a national regulation of public health, led to the formation in 1907 of the Committee of One Hundred, which has labored since that time to bring about the creation of a Department or a Bureau of Public Health in the Federal administration of Government. Under the presidency of Mr. Irving Fisher, and with Mr. Edward T. Devine for its secretary, the Committee, which includes many of the most eminent men and women in the country, has awakened wide interest in the proposition, enlisting a public support which seems certain to give it success. When the subject came under discussion in the American Association for the Advancement of Science at its meeting of 1908, Professor William H. Welch, the retiring President of the Association, described the existing neglect of health as shameful, and pointed out that, if existing hygienic knowledge were fully applied, the death rate might be cut in two. As examples of what a Federal Health Bureau might do he cited the work of Pasteur and Koch, whose best work was done for the national governments of France and Germany, though the benefits have been shared by all nations. In America we lack even the statistics of disease except in a limited area.

In his Message to Congress, December 6, 1909, President Taft urged the institution of the proposed National Bureau of Health very cogently, in these words: "For a very considerable period a movement has been gathering strength, especially

among the members of the medical profession, in favor of a concentration of the instruments of the national government, which have to do with the promotion of public health. In the nature of things, the Medical Department of the army and the Medical Department of the navy must be kept separate. But there seems to be no reason why all the other bureaus and offices in the general government which have to do with the public health or subjects akin thereto should not be united in a bureau to be called the 'Bureau of Public Health.' This would necessitate the transfer of the Marine Hospital Service to such a bureau. I am aware that there is a wide field in respect to the public health committed to the States in which the Federal government cannot exercise jurisdiction, but we have seen in the Agricultural Department the expansion into widest usefulness of a department giving attention to agriculture when that subject is plainly one over which the States properly exercise direct jurisdiction. The opportunities offered for useful research and the spread of useful information in regard to the cultivation of the soil and the breeding of stock and the solution of many of the intricate problems in progressive agriculture have demonstrated the wisdom of establishing that department. Similar reasons, of equal force, can be given for the establishment of a bureau of health that shall not only exercise the police jurisdiction of the Federal government respecting quarantine, but which shall also afford an opportunity for investigation and research by competent experts into questions of health affecting the whole country, or important sections thereof, questions which, in the absence of Federal governmental work, are not likely to be promptly solved."

PUBLIC HEALTH:

The Hookworm Disease in the United States.

"In the Old World, hookworm disease was probably known to the Egyptians nearly three thousand five hundred years ago, but

its cause was not understood until about the middle of the nineteenth century, when it was shown to be due to an intestinal parasite, *Agchylostoma duodenale*. Until 1893 no authentic cases of this disease were recognized as such in the United States, but between 1893 and 1902 about 35 cases were diagnosed. In 1902 it was shown that a distinct hookworm, *Uncinaria americana*, infests man in this country, and this indicated very strongly that the disease must be present although not generally recognized. It is now established that in addition to the few cases of Old World hookworm disease imported into the United States we have in the South an endemic uncinariasis due to a distinct cause, *Uncinaria americana*. This disease has been known for years in the South and can be traced in medical writings as far back as 1808, but its nature was not understood. Some cases have been confused with malaria, others have been attributed to dirt-eating.

"The hookworms are about half an inch long. They live in the small intestine, where they suck blood, produce minute hemorrhages, and in all probability also produce a substance which acts as a poison. They lay eggs which cannot develop to maturity in the intestine. These ova escape with the feces and hatch in about twenty-four hours; the young worm sheds its skin twice and then is ready to infect man. Infection takes place through the mouth, either by the hands soiled with larvae or by infected food. Infection through the drinking water may possibly occur. Finally, the larvae may enter the body through the skin and eventually reach the small intestine.

"Patients may be divided into light cases, in which the symptoms are very obscure; medium cases, in which the anemia is more or less marked, and severe cases, represented by the dwarfed, edematous, anemic dirt-eater. Infection occurs chiefly in rural sand districts. ... Economically, uncinariasis is very important. It keeps children from school, decreases

capacity for both physical and mental labor, and is one of the most important factors in determining the present condition of the poorer whites of the sand and pine districts of the South.

"The disease is carried from the farms to the cotton mills by the mill hands, but does not spread much in the mills; nevertheless, it causes a considerable amount of anemia among the operatives."-

***Ch. Wardell Stiles, Ph. D.,
Report upon the Prevalence and Geographic Distribution
of Hookworm Disease
(Public Health and Marine Hospital Service of the
United States: Hygienic Laboratory, Bulletin No. 10).***

In the autumn of 1909 Mr. John D. Rockefeller placed a fund of \$1,000,000 under the control of a Commission, to be used for the eradication of the hookworm disease in the United States. The fund is allotted in annual instalments of \$200,000 each.

PUBLIC HEALTH: India: A. D. 1907-1908.
Mortality Statistics and Birth Rate.

According to statistics given in the "Statement Exhibiting the Moral and Material Progress and Condition of India during the year 1907-1908," in most provinces the birth-rates exceeded the death-rates, but in the Punjab the death-rate exceeded the birth-rate by no less than 21.3 per mille, mainly as a result of the persistence of plague and the unusual prevalence of other epidemics. The total number of deaths registered in the Dependency was 8,399,623, compared with 7,852,330 in 1906. This constituted a rise of the rate from 34.73 per mille to 37.18. The mean mortality per 1,000 for the quinquennium ending 1906 was 33.96. The rate in the Punjab was no less than 62.1.

Throughout the country as a whole cholera was responsible for 1.81 deaths per mille, smallpox for 0.46, fevers for 19.76, dysentery and diarrhoea for 1.25, and plague for 5.16. In the previous year (1906) there was a most welcome decline in the plague death-rate, which fell from 4.17 in 1905 to 1.33. But in the year under review this malignant disease (which first appeared in Bombay in 1896) was responsible for the record number of 1,315,892 deaths. Happily in 1908 there was again a very rapid decline of mortality, and the preliminary figures for the year give a total of less than 150,000 deaths, this being lower than in any year since 1900. The report shows that plague has been curiously partial in its distribution, many parts of the Dependency having almost entirely escaped its ravages. It is shown that the civil hospitals and dispensaries in India (2,514 in number) treated 412,425 indoor and no fewer than 24,469,548 outdoor patients.

PUBLIC HEALTH: Japan: A. D. 1904-1905.
Army Sanitation in the War with Russia.

See (in this Volume)
JAPAN: A. D. 1904-1905--at the end.

PUBLIC HEALTH: Malaria:
A Lesson in Practical Hygiene from Italy.
Slowness in using the knowledge gained.

The following is from a letter by Dr. William Osier to the London *Times*, dated at Rome, March, 3, 1909: "We owe much to the Italians for their contributions to our knowledge of the cause of malaria. Laveran's great discovery was promptly fathered by Marchiafava and Celli and Golgi, and it was through their writings that we obtained the fullest details of the nature and structure of the malarial parasite. As an old student of the disease and deeply interested in the practical problems of its prevention, one of my first visits

in Rome was to the Laboratories of Pathology and of Hygiene to find out from the Directors, Marchiafava and Celli, the progress of the battle. It was not enough to know the cause; we had to know how it worked before effective measures could be taken, and the demonstration by Ross of the transmission of the disease by the mosquito at once put malaria on the list of easily preventable infections. Just ten years ago the Italian Society for the Study of Malaria was founded, and I was able to get a full report of the work.

"In Professor Celli's lecture-room hangs the mortality chart of Italy for the past 20 years. In 1887 malaria ranked with tuberculosis, pneumonia, and the intestinal disorders of children as one of the great infections, killing in that year 21,033 persons. The chart shows a gradual reduction in the death-rate, and in 1906 only 4,871 persons died of the disease, and in 1907 4,160. This remarkable result has been very largely due to the sanitary measures introduced by the society. It has long been known that malaria disappears 'spontaneously.' The Fen country is now healthy; parts of Canada, about Lakes Ontario and Erie, which were formerly hotbeds of the disease, are now free. This cannot be attributed altogether to cultivation and drainage. I know places on the shores of the lakes just mentioned in which the conditions today are identical with those which I remember as a boy. The Desjardin Canal Marsh at the extreme western end of Lake Ontario was a well-known focus of the disease. The marsh remains, the mosquitoes are there; but a case of malaria is almost as rare as in England. The disappearance is largely due to the free use of quinine. The settlers early recognized the important fact that malaria was a disease liable to recur, and it became a common practice to take Peruvian bark every spring and autumn for a year or two after an attack. This is a point in prophylaxis which the work of the Italian Society has brought into prominence. From the summary of the decennial report just issued, the following paragraphs are of interest:

"‘The society has improved the prophylaxis of malaria, and has introduced into practice the new mechanical measures based on the defence of the habitation and the individual from the bites of mosquitoes. This being a relatively expensive procedure, the society has occupied itself chiefly with the improvement of the anti-plasmodic prophylaxis—the administration of quinine. For this purpose it has promoted and defended legislation for the gratuitous distribution of quinine to the poor and to all workers in malarial localities.

...

"‘The results have been that since 1902, when the law on State quinine was promulgated, while the consumption of quinine has been yearly increasing, the mortality from malaria has diminished from about 16,000 to about 4,000 yearly; and in the army, Custom House Offices, and in some communes where the new laws have been better applied, the morbidity from malaria has greatly diminished.’

"By these measures, and ‘by means of the agricultural and agrarian transformation of the land and colonization, rather than by the destruction of mosquitoes (a thing impossible to be done by us on a large scale),’ Italy may be freed from the scourge."

In a lecture at the Royal Institution, London, in May, 1909, Major Ronald Ross, one of the most notable workers in this field of sanitary science, spoke discouragingly of the progress made in applying the knowledge gained. He said:

"The immediate success hoped for ten years ago had not been attained. The battle still raged along the whole line, but it was no longer a battle against malaria but against human stupidity. Those who had taken part in it had reasoned and been ridiculed; had given the most stringent experimental proofs and had been disbelieved; had protested and been called charlatans. ... The few persons who had fought the fight and

failed were scarcely able to continue it, and if no stronger influences could be excited the future of malaria prevention in British dominions would certainly be as barren as the past had been."

{520}

PUBLIC HEALTH: Panama Canal:

The Sanitation of the Canal Zone.

Extirpation of Malaria and Yellow Fever.

Report of Secretary Taft.

In the fall of 1905 Secretary Taft made a visit of inspection to the Canal, and gave, on his return, an interesting account of the conditions he found, in an address before the St. Louis Commercial Club. On the work of Sanitation in progress, under the direction of Dr. W. C. Gorgas, U. S. A., he gave the following description: "When Judge Magoon [appointed Governor of the Canal Zone] arrived upon the Isthmus, he found Dr. Gorgas battling manfully against the yellow fever, but the cases seemed to be increasing. Judge Magoon conceived the idea that the fumigation which had been confined to two or three houses might well be extended to all the houses in Panama, and at considerable expense, and after procuring a large amount of material, every house in Panama was fumigated once every two weeks. To secure increased vigilance and popular assistance he employed all [the respectable Panamanian physicians of Panama as inspectors of the districts of that city, at annual salaries of \$1,200 a year. He also offered \$50 reward for the discovery of any case of yellow fever not reported. By methods of this kind the native apathy, usually so great an obstacle to successful sanitation in Spanish countries, was neutralized.

"The plan of fumigation is as follows: Strips of paper are placed across the windows, which ordinarily have no glass or any netting in them, and then by the fumes either of sulphur

or pyrethrum every nook and cranny of the house is visited. These gases are fatal or paralyzing to the mosquito. After sufficient time has passed the house is opened, and then a corps of health employees are set to work cleaning the house and sweeping out the dead mosquitoes, which are found in great numbers upon the floors. The mosquitoes are burned to avoid further mischief. By these methods, for which Dr. Gorgas and Governor Magoon are both to be credited with great praise, yellow fever has been reduced to a point where during the last month only three cases were reported, not one of these among canal employees, and all originating many miles from the canal line. The efforts to subdue the fever, instead of being relaxed, are being continued. Square miles of woven-wire netting with interstices so small as to prevent the entrance of mosquitoes are spread about the piazzas of the houses of all Americans and foreigners who come to live under the auspices of the Canal Commission in the Isthmus. The windows inside are also screened, and then mosquito-bars on the beds are used as a third precaution. Whenever a case of yellow fever is discovered, the patient is at once either removed to the hospital and put under a woven-wire screen, or, if he prefers to remain at home, the woven-wire screen is put over him and an orderly placed in charge of him at his own residence. In this way he is prevented from furnishing a supply of the poison to the healthy mosquitoes, who, in turn, by stinging, would bring it back to man. In other words, the plan is to kill all the mosquitoes, well or ill, keep them as much as possible from stinging man, and isolate every man with yellow fever, not from his fellows, but from mosquitoes. ... Little by little, and facing discouragement after discouragement, the two thousand employees of the sanitary department are winning in this fight against disease, upon which the whole success of the canal work depends. As Mr. Stevens said to me, when I crossed the Isthmus with him this month, 'I take off my hat to the work which the sanitation department has done in this Canal Zone.'

A report to the London *Times*, in June, 1909, of conditions on the Canal and in the Canal Zone, shows the effectiveness with which this work of sanitation was done. More arduous than the campaign against yellow fever, says the writer, "was the campaign against malaria, a disease from which 80 per cent. of the people were suffering to some degree. This campaign consisted in warfare against mosquitoes and in the administration of quinine, and the efforts in this respect have also been highly successful. In 1906 the proportion of canal *employés* treated for malaria was no less than 821 in the thousand. In 1908 it had fallen to 282 in the thousand. The general effect of sanitary measures may best be judged from the death-rate among the tens of thousands of canal *employés*. In 1906 it was 41.73 to the thousand, and in 1908 it was only 13.01 to the thousand, making the canal one of the most healthy industrial establishments in the world."

PUBLIC HEALTH: PELLAGRA:

Lombroso's Discovery of its Source.

Its now recognized Seriousness.

In 1872 Cesare Lombroso, the noted criminologist, "incurred a great deal of odium for a discovery which proved to be of much scientific and economic importance. He noted the fact that a large number of the inmates of asylums were suffering from

pellagra, a curious disease, which first affected the skin and afterwards attacked the brain and nervous system. Lombroso discovered that the disorder was to be traced to a poison contained in diseased maize, which the Lombardian landowners were in the habit of doling out to the poor peasantry. At a time when toxins were unknown, Lombroso succeeded in extracting the poison from the maize and infecting animals with it—quite in the manner of modern bacteriologists. His discovery was received with much derision; but a friend of Lombroso, M. Alfred Maury, reported the facts to Berthelot, the Parisian chemist, who analysed the poison and established the fact that the maize contained an injurious substance resembling strychnine but differing from it in important particulars. The validity of Lombroso's discovery was thus triumphantly established. He was not satisfied with this initial success, but for several years fought on the platform and in the Press for an improvement in the economic conditions of the peasantry whereby the ravages of the disease might be combated." In late years his work of agitation on the subject has been continued by many others. The disease is of recognized seriousness in Italy, France, and latterly in the United States. In November, 1909, the American Government appointed an official commission to investigate it.

PUBLIC HEALTH: PURE FOOD LAWS: International Congresses.

The first International Congress for discussion and action on the subject of Pure Food was assembled at Geneva in 1908, and attended by about 600 persons. The second was held at Paris in October, 1909, and much more largely attended.

PUBLIC HEALTH: PURE FOOD LAWS: United States: A. D. 1906. Legislation at the end of a long struggle.

Bulletin No. 104 of the Bureau of Chemistry, Department of

Agriculture, entitled "Food Legislation during the year ended June 30, 1906," introduces the text of National and State laws enacted that year with the following remarks: "Food legislation for the year ended July 1, 1906, is the most important in the history of the United States. A Federal pure-food bill in various forms has been before Congress continuously for more than twenty years, and such a bill became a law on June 30, 1906. On the same day, as part of the appropriation bill of the United States Department of Agriculture, in the sections providing for the Bureau of Animal Industry, important legislation was enacted with reference to the inspection of meat and meat food products."

{521}

The Federal Food and Drugs Act of June 30, 1906, enacts in its first section "That it shall be unlawful for any person to manufacture within any Territory or the District of Columbia any article of food or drug which is adulterated or misbranded, within the meaning of this Act; and any person who shall violate any of the provisions of this section shall be guilty of misdemeanor, and for each offense shall, upon conviction thereof, be fined not to exceed five hundred dollars or shall be sentenced to one year's imprisonment, or both such fine and imprisonment, in the discretion of the court, and for each subsequent offense and conviction thereof shall be fined not less than one thousand dollars or sentenced to one year's imprisonment, or both such fine and imprisonment, in the discretion of the court."

The second section declares:

"That the introduction into any State or Territory or the District of Columbia from any other State or Territory or the District of Columbia, or from any foreign country, or shipment to any foreign country of any article of food or drugs which is adulterated or misbranded within the meaning of this Act,

is hereby prohibited"; and penalties are prescribed for violations of the law, being a fine not exceeding \$200 for the first offense, and for the second offense a fine not to exceed \$300, or imprisonment not exceeding one year, or both, in the discretion of the court.

Section 3 reads as follows:

"That the Secretary of the Treasury, the Secretary of Agriculture, and the Secretary of Commerce and Labor shall make uniform rules and regulations for carrying out the provisions of this Act, including the collection and examination of specimens of foods and drugs manufactured or offered for sale in the District of Columbia, or in any Territory of the United States, or which shall be offered for sale in unbroken packages in any State other than that in which they shall have been respectively manufactured or produced, or which shall be received from any foreign country, or intended for shipment to any foreign country, or which may be submitted for examination by the chief health, food, or drug officer of any State, Territory, or the District of Columbia, or at any domestic or foreign port through which such product is offered for interstate commerce, or for export or import between the United States and any foreign port or country."

Section 4 prescribes the examination of specimens of food and drugs in the Bureau of Chemistry, and section 5 relates to prosecutions for violation of the Act. Sections 6, 7, and 8 define adulteration and misbranding, as follows:

"Section 6. That the term 'drug,' as used in this Act, shall include all medicines and preparations recognized in the United States Pharmacopoeia or National Formulary for internal or external use, and any substance or mixture of substances intended to be used for the cure, mitigation, or prevention of disease of either man or other animals. The term 'food,' as

used herein, shall include all articles used for food, drink, confectionery, or condiment by man or other animals, whether simple, mixed, or compound.

"Section 7. That for the purposes of this Act an article shall be deemed to be adulterated:

"In case of drugs:

"First. If, when a drug is sold under or by a name recognized in the United States Pharmacopoeia or National Formulary, it differs from the standard of strength, quality, or purity, as determined by the test laid down in the United States Pharmacopoeia or National Formulary official at the time of investigation: **Provided**, That no drug defined in the United States Pharmacopoeia or National Formulary shall be deemed to be adulterated under this provision if the standard of strength, quality, or purity be plainly stated upon the bottle, box, or other container thereof although the standard may differ from that determined by the test laid down in the United States Pharmacopoeia or National Formulary.

"Second. If its strength or purity fall below the professed standard or quality under which it is sold.

"In the case of confectionery:

"If it contain terra alba, barytes, talc, chrome yellow, or other mineral substance or poisonous color or flavor, or other ingredient deleterious or detrimental to health, or any vinous, malt or spirituous liquor or compound or narcotic drug.

"In the case of food:

"First.

If any substance has been mixed and packed with it so as to

reduce or lower or injuriously affect its quality or strength.

"Second.

If any substance has been substituted wholly or in part for the article.

"Third.

If any valuable constituent of the article has been wholly or in part abstracted.

"Fourth.

If it be mixed, colored, powdered, coated, or stained in a manner whereby damage or inferiority is concealed.

"Fifth.

If it contain any added poisonous or other added deleterious ingredient which may render such article injurious to health:

Provided, That when in the preparation of food products for shipment they are preserved by any external application applied in such manner that the preservative is necessarily removed mechanically, or by maceration in water, or otherwise, and directions for the removal of said preservative shall be printed on the covering of the package, the provisions of this Act shall be construed as applying only when said products are ready for consumption.

"Sixth.

If it consists in whole or in part of a filthy, decomposed, or putrid animal or vegetable substance, or any portion of an animal unfit for food, whether manufactured or not, or if it is the product of a diseased animal, or one that has died otherwise than by slaughter.

"Section 8.

That the term 'misbranded,' as used herein, shall apply to all drugs, or articles of food, or articles which enter into the composition of food, the package or label of which shall bear

any statement, design, or device regarding such article, or the ingredients or substances contained therein which shall be false or misleading in any particular, and to any food or drug product which is falsely branded as to the State, Territory, or country in which it is manufactured or produced.

"That for the purposes of this Act an article shall also be deemed to be misbranded:

"In case of drugs:

"First.

If it be an imitation of or offered for sale under the name of another article.

{522}

"Second.

If the contents of the package as originally put up shall have been removed, in whole or in part, and other contents shall have been placed in such package, or if the package fail to bear a statement on the label of the quantity or proportion of any alcohol, morphine, opium, cocaine, heroin, alpha or beta eucaine, chloroform, cannabis indica, chloral hydrate, or acetanilide, or any derivative or preparation of any of such substances contained therein.

"In the case of food:

"First.

If it be an imitation of or offered for sale under the distinctive name of another article.

"Second.

If it be labeled or branded so as to deceive or mislead the purchaser, or purport to be a foreign product when not so, or if the contents of the package as originally put up shall have

been removed in whole or in part and other contents shall have been placed in such package, or if it fail to bear a statement on the label of the quantity or proportion of any morphine, opium, cocaine, heroin, alpha or beta eucaine, chloroform, cannabis indica, chloral hydrate, or acetanilide, or any derivative or preparation of any of such substances contained therein.

"Third.

If in package form, and the contents are stated in terms of weight or measure, they are not plainly and correctly stated on the outside of the package.

"Fourth.

If the package containing it or its label shall bear any statement, design, or device regarding the ingredients or the substances contained therein, which statement, design, or device shall be false or misleading in any particular:

Provided, That an article of food which does not contain any added poisonous or deleterious ingredients shall not be deemed to be adulterated or misbranded in the following cases:

"First.

In the case of mixtures or compounds which may be now or from time to time hereafter known as articles of food, under their own distinctive names, and not an imitation of or offered for sale under the distinctive name of another article, if the name be accompanied on the same label or brand with a statement of the place where said article has been manufactured or produced.

"Second.

In the case of articles labeled, branded, or tagged so as to plainly indicate that they are compounds, imitations, or blends, and the word 'compound,' 'imitation,' or 'blend,' as the case may be, is plainly stated on the package in which it

is offered for sale: ***Provided***, That the term blend as used herein shall be construed to mean a mixture of like substances, not excluding harmless coloring or flavoring ingredients used for the purpose of coloring and flavoring only: ***And provided further***, That nothing in this Act shall be construed as requiring or compelling proprietors or manufacturers of proprietary foods which contain no unwholesome added ingredient to disclose their trade formulas, except in so far as the provisions of this Act may require to secure freedom from adulteration or misbranding."

There was never a harder fight in Congress than that by which this victory was won, over knaveries that, were not ashamed to insist on their right to swindle and poison the public by adulterations and frauds. Nothing but a thoroughly roused public feeling carried the measure through. The same feeling impelled local legislation to the same end in thirty-two States, during 1906, and 1907, all of which is set forth in the Bulletin cited above and in another of the same series (No. 112), published in two parts in the following year.

Writing in January, 1908, of what the Pure Food Law had accomplished, the Chairman of the Food Committee of the National Consumers League, Alice Lakey, said: "One of the most important results of the Pure Food Law is the awakening of many consumers to their responsibilities as buyers of food products. They are studying labels and buying foods accordingly. With an intelligent consuming public to purchase goods, the Pure Food Law will in time accomplish its full purpose. Perhaps no better phrase will then be found to describe it than the recent utterance of the manager of one of the most important food firms in the country. 'The Pure Food Law,' he said, 'passed by this Government, is the most important law ever passed by any government.'"

PUBLIC HEALTH: United States: A. D. 1906.
The Packing-House Investigation.

One of the influences which forced the passage through Congress of the pure food legislation of 1906 came from the revelations in a report laid before the President on the 4th of June that year, by two commissioners whom he had appointed to investigate the conditions existing at the stockyards and packing-houses of Chicago. In communicating the report to Congress the President characterized its disclosures as revolting, and it is certain that the whole public was sickened by the pictures it drew of reckless filthiness prevailing in the establishments where meats were prepared for sale in the markets of the country and of the world. We shall not attempt to reproduce them here.

The most important part of the report concerned the existing methods of official inspection of meats. The commissioners found it most rigorous where it is needed least, namely, at the time of killing. It was while the meat was being handled, and especially in its preparation for canning, that it underwent the most pollution. The cans which received it finally were allowed to bear labels stating that "the contents of this package have been inspected according to the Act of Congress of March 3, 1891. Quality Guaranteed." As a matter of fact, all that had been inspected was the carcass of the animal at the time of killing.

The further legislation, respecting inspections, which supplemented the law quoted from above, was resisted with all their power by the enormously rich meat-packing companies of the country, who found strong supporters in Congress, but they had to submit to defeat.

PUBLIC HEALTH:

The Sleeping Sickness in Africa.

"The most formidable enemy of both man and beast in tropical Africa is the tsetse, species *Glossina*, a genus of

blood-sucking fly peculiar to that land, which carries a minute parasite, the trypanosome, from the infected to the healthy, resulting in the production of sleeping sickness, or trypanosomiasis. When it is known that in the region lying around Victoria Nyanza, Lake Tanganyika, and the Victorian Nile over 400,000 human beings have succumbed to this fatal malady since it appeared about ten years ago, its appalling nature is apparent. Vast territories of thickly populated, fertile country near the shores of these lakes, until the advent of this terrible plague the homes of a happy, contented people, are now almost depopulated, and thousands of little villages have been swept away, their inhabitants victims of this deadly pest.

{523}

"In appearance the tsetse fly bears a remarkable resemblance to the ordinary house-fly, but is slightly larger, with longer wings, which extend beyond its body and lap each other when at rest like the blades of a pair of scissors. It is somber gray, nearly black in color, almost like the honey-bee, and has a prominent proboscis ensheathed in the palpi which project horizontally in front of its head. The abdomen is marked by four distinct yellowish bands, with a pale spot over the upper segment. It is wonderfully active, and evades every attempt at capture except in the cool of the morning or evening, when its movements are sluggish and it can be caught in the hand. ...

"Sleeping sickness has been known in Sierra Leone, in the Congo, and on the west coast of Africa since the earliest history of those lands. In 1870 a fossil tsetse fly (*Glossina morsitans*) was discovered in Colorado, and the theory has been advanced that the absence of wild horses on the American continent was due to the ravages of the disease carried by these flies.

"The malady was described as early as 1803, and later most

accurately by Livingstone, the great missionary explorer. He also advocated arsenic in its treatment. This remedy, after half a century of research and investigation, still retains its place as the best one known for prolonging life. ...

"The period of the incubation of the disease after the bite of the infected fly varies from a month to several years, depending upon the resisting power of the patient. In its earlier stages the first noticeable symptoms are irregular fever. ... This stage may continue a year, or even longer.

"In the following stage the symptoms are due to the trypanosomes reaching the cerebrospinal fluid, giving rise to cerebral manifestations; drowsiness, stupor, dullness of hearing, slowness in perception and of answering questions, with incapacity for mental exertion, and somnolence, the patient sometimes sleeping the entire day. This condition may continue several years, during which time epileptiform convulsions develop, with marked tremulousness of the muscles of the face and tongue, the patient becoming maniacal and the whole symptomatology resembling that of general paresis of the insane. ...

"Previous to 1901 sleeping sickness was unknown in Uganda. How the present epidemic originated is not positively known. The most generally accepted theory is that the soldiers of Emin Pasha and their followers introduced it, as some ten thousand of them settled in Busoga after the Sudan campaign. ...

"The duration of the sleeping sickness in man is very variable. Occasionally cases linger six or even eight years, and until the expiration of this period they are constant foci of infection.

"Recognizing the fatal nature of the disease, the various nations whose territories are most seriously affected, notably England, Germany, Portugal, France, and Belgium, appointed

commissioners, with competent assistants, to ascertain methods for its control. The enormous amount of investigation and research accomplished by these self-sacrificing men, among whom may be mentioned Bruce, Koch, Hodges, Broden, Tullock, Kopke, Martin, Hardy, and Kleine, two of whom forfeited their lives in the work, entitles their names to be enrolled among the benefactors of mankind."

***Louis L. Seaman,
The Sleeping Sickness
(The Outlook, January 15, 1909).***

PUBLIC HEALTH: Tuberculosis:
The Organized Warfare for its Eradication.

After the discovery of the all important fact that the most destroying of the diseases of the human race, tuberculosis (the dread "consumption" of the older-fashioned nomenclature of pathology), is in its nature one so propagated from victim to victim that the propagation is needless, and may absolutely be ended by right precautions universally applied, there were ardent workers soon engaged in eager efforts to bring such measures into use. The beginning of a hopefully inspired warfare against the disease dates, therefore, from the identification of the bacillus of tuberculosis by Dr. Robert Koch, in 1882; but, for nearly two decades after that inspiration it was little more than a guerrilla undertaking, by scientifically benevolent individuals and groups, here and there in the world. It was not until the latest years of the nineteenth century and the earliest of the twentieth that more public risings appeared in the movement, and it began to acquire the momentum of a crusade.

Germany appears to have been earliest in the fundamental organization of measures to instruct its people in the nature of the disease, and in the means by which it may be stamped out; as well as in the provision of special sanatoria and

hospitals for the new open-air treatment of those attacked. But the Health Department of the City of New York has the credit of being the first official body to bring the disease under efficient administrative control. On this subject Dr. Hermann M. Biggs, in an address delivered, February 16, 1904, under the auspices of the Henry Phipps Institute and published in the first annual report of the Institute, said:

"Notwithstanding all that has been said and written, notwithstanding the popular education and agitation, notwithstanding the formation of antituberculosis societies and antituberculosis leagues, notwithstanding the organization of many associations for the erection of sanatoria, and the foundation of institutions for the study of tuberculosis, notwithstanding the measures adopted for the prevention of the disease in animals, still only a very small percentage of the governmental, municipal and state sanitary authorities of this country, Great Britain and the Continent have adopted provisions which can be regarded as in any way comprehensive, or effective in dealing with this disease.

{524}

"If we seek for an adequate explanation for this attitude, it is not, after all, difficult to find. In speaking of this matter several years ago, Koch said in substance to the writer: 'The adoption in Germany of such measures as are already in force in New York City will not be possible until the generation of medical men now in control have passed away. Not until a younger generation has appeared, which has had a different scientific training, and holds views more in harmony with the known facts regarding the etiology of tuberculosis, will it be possible in my opinion to bring about an intelligent supervision of this disease. ... Notification is a necessary preliminary to any plan of supervision, and yet only five years ago a special commission of the Academy of Medicine of Paris reported against a proposition to place tuberculosis

in the class of notifiable diseases. ... Sir Richard Thorne, the Medical Officer to the Local Government Board of Great Britain, in the Harben lecture in 1898 on 'The Administrative Control of Tuberculosis,' after a careful consideration of the various problems presented under the English law relating to infectious diseases, pronounced definitely against this proposition, on the ground that the hardship to the individual, which would follow notification and the enforcement of proper regulations, would be so great as to render this measure unjustifiable. ... The compulsory notification and registration of all cases is essential. The fundamental importance of this measure is so evident that its consideration seems hardly necessary. It must of course appear at once that unless there is a system of compulsory notification, and registration, the enforcement of any uniform measures for prevention is impossible. Practical experience with this procedure has made it perfectly clear that the objections which have been urged against it are without force or foundation.

"In New York City in 1893 a system of partially voluntary and partially compulsory notification was adopted. Public institutions were required to report cases coming under their supervision; private physicians were requested to do this. Under this provision the Department of Health carried on this work for three and a half years, and then adopted in 1897 regulations requiring the notification of all cases. ... The mere fact of notification and registration has in itself a very powerful educational influence. During the year 1902 more than sixteen thousand cases were reported to the Department of Health in New York City, of which forty-two hundred were duplicates, and in 1903 more than seventeen thousand cases were reported.

"To facilitate the early and definite diagnosis of all cases of pulmonary tuberculosis, the sanitary authorities should afford facilities for the free bacteriological examination of

the sputum in all instances of suspected disease. ... The Department of Health of New York City provided facilities for such examinations in 1894, early in the history of its attempt to exercise control over the disease, and this procedure has proved of very great value to the medical profession, to the sick, and to the authorities. Following the example of New York City, other sanitary authorities have adopted similar measures."

***H. M. Biggs,
The Administrative Control of Tuberculosis
(First Annual Report, Henry Phipps Institute, 1905).***

In 1895 a Central Committee was organized in Germany to establish special hospitals for the disease.

In 1898 the first National Congress for discussion and better organization of action relative to tuberculosis was held at Paris, with some attendance from outside of France. The second National Congress was at Berlin in the following year, with similar attendance from other countries, and the third at Naples in 1900. At the Naples Congress a "Central International Committee for the Prevention of Tuberculosis" was organized, and it held its first Conference in Berlin, under the auspices of the Central German Committee, in 1902. The succeeding meetings of the Central International Committee were at Paris, 1903, at Copenhagen, 1904, at Paris again, 1904, and there, at that time, the First International Congress on Tuberculosis was held.

In 1901 the first National Congress in Great Britain for the discussion of Tuberculosis and for organizing preventive undertakings was held at London. There were said to be then fifty sanatoria for its treatment in Germany; in France a dozen private and two public institutions for the purpose; in France and Belgium a number of public dispensaries specially provided for the disease. In that year the State of New York

made its first appropriation for a Tuberculosis Hospital in the Adirondacks, and a National Sanitarium Association at Toronto, Canada, secured the site for a hospital.

In 1902, at the annual meeting of the Canada Association for the Prevention of Tuberculosis, held at Ottawa, Dr. A. S. Knopf, of New York, speaking of the progress of the anti-tuberculosis movement, said of the United States: "We have but a few small societies striving to do the same work you are doing. They are the Pennsylvania, the Colorado, the Ohio, the Maine, the Minnesota and the Illinois." Besides these State Associations the speaker mentioned a few cities,—Baltimore, Buffalo and Erie County, Cleveland, and St. Louis,—as having some organization for the work. No national organization had yet been formed. In this year, however, some advances of importance within the United States were begun. Henry Phipps, of New York, pledged the means for supporting a free Clinic for Tuberculosis at Philadelphia, which expanded within a year into the Henry Phipps Institute, founded on the 1st of February and incorporated September 1st, 1903, the purposes of which, as set forth in its charter, are: "The study of the cause, treatment, and prevention of tuberculosis, and the dissemination of knowledge on these subjects; the treatment and the cure of consumptives"; its benefits to be "administered without regard to race, creed or color." In this year, too, an active educational work, by weekly free lectures in the Assembly Hall of the United Charities Building, by distributing pamphlets, district nursing, etc., was opened in the City of New York and conducted by a Committee for the Prevention of Tuberculosis. Massachusetts was now appropriating money for its second sanatorium. In Great Britain, Sir Edward Cassell placed £200,000 at the disposal of the King for Tuberculosis hospitals and Sanatoria.

{525}

The year 1903 witnessed an important meeting at Paris of the

Central International Tuberculosis Committee, which was stirred by an appeal from Casimir-Perier, ex-President of France, for "a mobilization of all social forces" against the devastating disease. The Government of Sweden instituted a free distribution of pamphlets on the subject of Tuberculosis throughout the kingdom. In Great Britain a national committee, representing all important friendly societies and trade unions, was formed to promote the establishing of sanatoria for workers. In Belgium, Madame Rene Gauge started the movement for Open Air Schools. At Baltimore a Tuberculosis Exhibition which awakened wide interest was arranged by a Commission appointed by the Governor of Maryland in the previous year, in cooperation with the Maryland Public Health Association. State and City organizations for dealing with the disease and for educating the people to a right understanding of the means by which it might be stamped out were now multiplying rapidly throughout the United States.

In 1904 the United States obtained their first comprehensive organization for the work. The National Association for Study and Prevention of Tuberculosis was formed at a large meeting at Atlantic City in June, with Dr. Edward Trudeau of Saranac, founder of the Saranac cottage sanatoria and pioneer in America of the open air treatment of the disease, for its President, and Drs. William Osier, of Baltimore, and Hermann M. Biggs for Vice Presidents. In Boston, that year, no less than eighty-one free lectures on Tuberculosis were given in schools, churches, social settlements, before trade unions and clubs, under the auspices of the Boston Association, and 70,000 instructive leaflets were distributed. In France a special Society for the Protection of Children from Tuberculosis was formed. The Garment-makers Union and the Typographical Union of New York entered jointly into undertakings of educational work among their members, and the Central Federated Union was soon enlisted with them. A Directory of Institutions and Societies dealing with Tuberculosis in the United States, published in January, 1905,

described 125 then existing hospitals and sanatoria in which consumptives may receive treatment, and 32 special dispensaries; recounting, also, special measures for the treatment of the disease in penal institutions and hospitals for the insane.

The most important campaign of 1905 in the crusade, within the American field, was probably that connected with the great Tuberculosis Exposition in New York City, prepared and conducted by the National Association, in cooperation with the Committee of the New York Charity Organization Society. New York City, in this year, appropriated \$250,000 for a Municipal Tuberculosis Hospital, located in the Catskill Mountains.

In 1906 a duplication of the Tuberculosis Exposition of the previous December in New York was carried, as a travelling exhibit, to different parts of the city, with impressive effect; and similar exhibits were given in eleven cities of the United States. It was reported in this year that about fifty local commissions and associations were actively in operation in the United States; and that the American Federation of Labor, as well as the American Federation of Women's Clubs, were enlisted with earnestness in the work. The Fifth International Conference was held this year at The Hague.

From this time the public awakening to recognition of the measureless importance and the inspiring hopefulness of the struggle to extinguish the deadly "white plague" spread rapidly everywhere, and each year made increasing records of gains in the work and its effects. Fourteen of the American States were reported in 1907 as having founded State hospitals for the disease, supported from public funds, while measures were in progress to that end in a number of other States.

In 1908 a most powerful impulse to the crusade in America was imparted by the meeting at Washington, that year, of the

International Congress on Tuberculosis, with a large attendance of the most distinguished captains of the warfare from abroad. The local interest aroused was beyond expectation. As one writer described the meetings of the seven sections of the Congress, from September 28 to October 3, "scientists of international reputation and doctors from country villages, clubwomen, architects, social workers, manufacturers, teachers, labor men, Socialists, literary men, lawyers and lawmakers, society women, and the clergy, were all there, not only to listen, but to take part."

The subjects which received the most discussion at the Congress were the compulsory notification of pulmonary tuberculosis, the cooperation between official and non-official agencies for the prevention of the disease, the relationship between dispensaries, sanatoria, and hospitals for advanced cases, and the difference between the human and the bovine types of the bacillus. On this latter subject Dr. Koch, who was present, maintained his belief that bovine tuberculosis is not communicable to mankind, but failed to convince the majority of the scientists present. The British delegates to the Congress in their subsequent report of it, published in April, 1909, attached particular importance to the discussions on the subject of the compulsory notification of cases of tuberculosis, and pointed out that in New York the notifications were shown to be four times as numerous as the deaths, which indicated a more complete system than any yet operative in Great Britain. It appeared from their report, however, that, since the Washington meeting, the system of voluntary notification already practised in many parts of England had been extended by order of the Local Government Board, and rendered compulsory in the case of all patients suffering from pulmonary tuberculosis, who came under the official care of a parochial medical officer.

Statistics quoted in the New York *Evening Post* of May 8, 1909, from the *Imperial Gazette*, show that in recent

years there has been a steady decrease in the number of deaths in Germany from tuberculosis, and especially from tuberculosis of the lungs. The figures are based upon the monthly reports of deaths in 350 of the largest centres of population in the empire, and upon annual reports as to the causes of deaths from nearly all districts, as supplied to the Imperial Board of Health. The average of deaths per 100,000 in 1905 was 226.6. In 1908 the average had fallen to 192.15. For the rural and urban population combined statistics are forthcoming for 97 per cent. of the total population, divided into two classes—persons below the age of fifteen, and persons between fifteen and sixty.

{526}

In the latter class the average number of deaths annually between 1898 and 1902 from tuberculosis in all forms was 268.5, and from tuberculosis of the lungs, 255.7 per 100,000. During the period 1903-1907 the annual averages decreased to 242.8 and 228.8 per 100,000, respectively. The figures, however, for tuberculosis of all kinds among children between the ages of one year and fifteen show an average annual increase in deaths per 100,000 from 77.9 during the period 1898-1902 to 81.1 during the period 1903-1907. Yet during the latter period of five years the actual number of deaths among children has gradually decreased from 16,250 in 1905 to 14,283 in 1907. For the two classes together the annual average of deaths per 100,000 was as follows: From 1898-1902—from tuberculosis in all forms, 214.1, and from tuberculosis of the lungs 195.2; from 1903-1907—from tuberculosis in all forms 197.8, and from tuberculosis of the lungs 174.2.

According to a bulletin published in October, 1909, by Cressy L. Wilbur, Chief Statistician of the division of Vital Statistics in the United States Census Bureau, the warfare against tuberculosis has begun to show general effects in the United States. The statistics given are based on the annual returns of deaths from the death-registration areas of the country, which are far from comprehending the whole. The total

number of deaths from all forms of tuberculosis returned in 1908 was 78,289, exceeding those of any previous year of registration, but the death rate per 100,000 for 1908 is considerably less than that for 1907. In all registration States the death from tuberculosis showed a decline, except in Colorado, Rhode Island, and Vermont.

A Press despatch from Washington, August 9, 1909, announced that "a plan for the organization of negro anti-tuberculosis leagues in the various States, proposed recently by the United States Public Health and Marine Hospital Service, has met with a quick response. Already five State organizations have been formed, and the movement has received the endorsement of the last conference of the State and Territorial boards of health. State leagues have been formed in Georgia, Louisiana, Mississippi, North Carolina, and Virginia. One of the principal features of the plan is the issuance of a large certificate of membership to each supporter of the movement. Branches of the State leagues are to be established in the various negro churches."

In July, 1909, the Metropolitan Life Insurance Company made application to the New York State Insurance Department for permission to purchase a tract of land, 3000 acres or more, and erect thereon a sanatorium for the treatment of its employees, and possibly of its policy-holders who suffered from tuberculosis. The company was said to have ascertained that among the holders of its 9,000,000 policies there occurred, on the average, a death every thirty-two minutes from tuberculosis, and that, regarded wholly from the economic standpoint, it would be more than justified in applying its funds to such a measure for saving or prolonging life in that body of people. The Superintendent of Insurance was unable, however, to find any warrant in law for authorizing the undertaking, and felt required to deny the application. The company appealed from his decision to the courts, and the Appellate Division of the Supreme Court of the State handed

down a decision early in January, 1910, declaring the plan to purchase real estate to be used as a hospital for the care and treatment of its employees who are afflicted with tuberculosis does not violate that provision of the law which prohibits insurance companies from acquiring real estate for any purpose other than that of the transaction of their own business. "The court passes lightly over the question of the possibility of the hospital being used, in case vacancies exist in it, for the accommodation of selected cases from among the policy-holders. This possibility, it seems, had been indicated in the original petition, but 'the briefs of counsel upon either side,' says the court, 'have practically eliminated that question.' In such a use of the hospital there might be serious question of a precedent that would be open to grave objection."

Gifts to the amount of \$700,000 for the establishment of a tuberculosis preventorium for children were announced from New York, through the Associated Press, November 9, 1909. The further statement was made that, "in connection with the tuberculosis preventorium a movement has been organized which purposes to take from New York tenements children who have been affected with tuberculosis and restore them to normal health before it is too late. The plan was formally organized at a meeting this afternoon in the Fifth avenue residence of Henry Phipps. A contribution to the work by Nathan Straus includes a \$500,000 cottage and estate at Lakewood, New Jersey, occupied by the late Grover Cleveland just before his death. There the new institution will have its home. Miss Dorothy Whitney contributed a \$100,000 endowment fund."

PUBLIC HEALTH: Yellow Fever:

Eradication in Cuba, at Rio Janeiro,
and in French Western Africa.

"Three signal victories have been gained over yellow fever during these later years—in Cuba, in Brazil, and in Dakar, in

West Africa. The first is the most memorable of these events. It is the purification of the endemic center at Habana. This occurred in 1901, during the United States occupation. The daily press in countless articles has spread the details. We know that Brigadier General Leonard Wood, governor of Habana, decreed one fine day that the plague should be wiped out and the mosquitoes destroyed throughout the entire city of Habana and its suburbs, and we know that it was done. ...

"The theory was that the mosquito is the sole disseminator of the disease. This is precisely what the United States commission, appointed the year before, had just proven. It had shown that all the other supposed cases of contagion were imaginary. ...

"The yellow fever *Stegomyia* does not breed in swamps. It has not the habits of the *Anophele* of the marsh, the malaria mosquito. It does not live like that one, in the open country, but dwells in houses. It is a domestic insect. It stays at home, is wary, and is sensitive to the weather. Like many other mosquitoes, it never goes more than 500 or 600 yards away from its breeding place and journeys only when its home—a vessel or a carriage—journeys. There is no need to fear that the insect may be carried far by the wind, for it dreads the wind. It does not trust itself outdoors when there is the slightest breeze. The problem is thus simplified.

{527}

It is no longer a question of protecting immense areas. It is enough to protect the house and its immediate environs—the city and a limited surrounding zone. Still it would be useless to capture the insect on the wing or at rest. It is permitted to complete its short life, but is not allowed to have offspring. The female is prevented from laying its eggs. This is accomplished by draining stagnant water left in so many gardens and household utensils where the mosquito seeks a breeding place. Hence the efficacy of the measures which forbade the people of Habana from keeping water in any other

way than in covered receptacles or with a coat of oil or petroleum on top.

"The success of the measures taken by the American physicians, Gorgas, Finlay, and Guiteras, in Habana, was complete. Yellow fever has disappeared from there. On April 4, 1904, the President of the Republic of Cuba, in his message to the Congress, spoke thus:

"‘There has not been in Cuba since 1901 a single case of yellow fever not imported. The country should know of this excellent sanitary condition, which is due to the perfection of prophylactic measures and the vigilance of the health authorities.’

"Events happened in the same way in Brazil. Dr. Oswald Cruz, in charge of the organization of the campaign against yellow fever, with equal success repeated at Rio de Janeiro what had been done in Habana. The enforcement of the measures began April 20, 1903. The mortality which before had averaged 150 deaths a month fell to 8 in the month of April and to 4 in June. In January, 1904, there were recorded only 3 deaths.

"France decided to follow these encouraging examples. The governor-general of French Western Africa, M. Roume, adopted an administration analogous to that of Habana and Rio de Janeiro, and he knew how to profit by these examples."

**A. Dastre,
The Fight against Yellow Fever
(Annual Report, Smithsonian Institution,
1904-1905, pages 348-350).**

-----PUBLIC HEALTH: End-----

PUBLIC UTILITIES, Regulation of:
The New York and Wisconsin Laws.

The most comprehensive and well-prepared legislation yet directed in the United States to the control and regulation of corporations which render services to the public, of the nature described by the term "public utilities," is undoubtedly embodied in the New York and Wisconsin laws, enacted in 1907. Both States, and many others, had experimented previously with measures for establishing a certain degree of supervision and regulation over railway corporations, gas companies, and the like, dealing separately with them; but, excepting perhaps, in the case of Massachusetts, this had not been satisfactorily effective. Governor Hughes, of New York, was the real author of the Public Utilities Law enacted in that State in 1907, and his influence was the impelling force which carried it through the Legislature.

See(in this Volume)

NEW YORK STATE: A. D. 1906-1910).

Almost equally, ex-Governor La Follette must be credited, not immediately, but primarily, with the organization of the forces which brought out the Wisconsin Law.

The two enactments are compared by Professor John R. Commons in an article published in the ***American Review of Reviews***, of August, 1907, from which the following passages are quoted:

"The Wisconsin and New York laws are alike in that both State utilities like railroads and municipal utilities like gas are brought under the regulation of the same commission. They differ from the laws of Massachusetts, which provide a separate commission for railways. These three States, however, are the only ones that regulate municipal utilities through a State commission. Many other States have railroad commissions, but they leave whatever regulation they have of local

utilities to the local governments. ... A significant feature of the Wisconsin legislation is its disregard of stocks and bonds and its reliance on the physical valuation of the property as the first step in regulation. The New York law and the Street-Railway law of Massachusetts attack the problem of regulation through the control of future capitalization. The New York commissions have power to prohibit the issue and transfer of stocks, bonds, and other evidence of indebtedness, and to prevent the transfer of shares to holding companies. The Wisconsin law begins at the other end of the problem and, for the purpose both of regulation and of publicity, inquires into the present structural value of the property. This does not mean that the commission shall disregard other elements of valuation,—in fact, it is required by the law to take all elements into account, as indeed the courts would require if it did not. But the physical valuation is necessary in order that the public and the courts may know exactly how much is allowed for the other elements. The commission is required to value all of the properties in the State and to publish both the actual value ascertained when all elements are taken into account and the physical value ascertained by its engineers. ...

"The [Wisconsin] law as finally adopted consists really of three laws: First, an amendment to the Railway law of 1905, placing telegraph companies and street railways under the same provisions as steam railways and interurban electric lines; second, the Public-Utilities law proper, regulating heat, light, water, power, and telephone companies; third, a Street-Railway law providing for indeterminate permits similar to those of the Public-Utilities law. A fourth bill, requiring physical connection and prohibiting duplication of telephone exchanges, was defeated by a vote of the Assembly."

The New York Law created two Public Utilities Commissions of five members each, one having jurisdiction in a district comprising New York City alone, the district of the other (known as the Up-State Commission) comprehending the remainder

of the State. The five-year terms of the Commissioners expire in successive years. Appointed by the Governor, they are intended to be men of the highest character and qualifications, and receive salaries of \$15,000 each. The appointments by Governor Hughes for the New York City Commission were of ex-Postmaster William R. Wilcox, William McCarroll, Edward M. Bassett, Milo R. Maltbie, John E. Eustis. For the Up-State Commission he named originally Honorable Frank W. Stevens, of Jamestown, Charles H. Keep, of Buffalo, Thomas M. Osborne, of Auburn, James E. Sague and Martin S. Decker. Mr. Keep resigned subsequently to accept the presidency of an important New York City bank, and John B. Olmsted, of Buffalo, was appointed in his place.

{528}

PUBLIC UTILITIES:

New York City Gas Company.

In 1906 the New York Legislature passed a bill reducing the price of gas in New York City to 80 cents per thousand feet. The gas companies claimed that this rate was confiscatory. Pending final decision of the matter the citizens were compelled to pay the old rate of \$1.00 per thousand. Ultimately the law was sustained, and the gas companies refunded over eight millions of dollars in 1909 to the consumers of the past three years.

See, also (in this Volume),
RAILWAYS.

PUNJAB: The Plague.

See (in this Volume)
PUBLIC HEALTH: BUBONIC PLAGUE.

PUNJAB:

Terrific Earthquake.

See(in this Volume)
EARTHQUAKES: INDIA: A. D. 1905.

PURE FOOD LEGISLATION.

See (in this Volume)
PUBLIC HEALTH.

PU-YI (Hsuan-Tung):
Child Emperor of China.

See (in this Volume)
CHINA: A. D. 1908 (NOVEMBER).

Q.

QUEBEC, City of: A. D. 1908.
Tercentenary Celebration of its Founding.

See (in this Volume)
CANADA: A. D. 1908 (JULY).

QUEBEC, Province of: A. D. 1901.
Census.

See (in this Volume)
CANADA: A. D. 1901-1902.

R.

-----RACE PROBLEMS: Start-----

RACE PROBLEMS: In Australia:
Between Europeans and Asiatics.

"Australia occupies a unique position among the nations. It is an island, lying far from the populated centres of the Old World and in close proximity to Java and the teeming millions of Southern and Eastern Asia, who at any time may bear down in flood upon the scanty forces of the defenders. These pent-up myriads are at present in a state of unrest, and there are evidences of a distinct inclination on their part to break bounds and descend upon the coasts of the great southern land. On the north-eastern shores of the continent they have already broken through the thin red line of the British, and have firmly established themselves in the country beyond. Thursday Island, which stands at the northern entrance of the passage between the Great Barrier Reef and the shores of Queensland, has been styled the Gibraltar of Australia, and large sums of money have been spent by the Imperial and Australian Governments in fortifying it. Since it became open to the Eastern nations, the Japanese have discovered twenty different channels through the reef, by any one of which they could avoid the forts and gain an entrance to the sea within the barrier. A few years ago there were 2000 Europeans on Thursday Island, engaged in the pearl-shelling industry; but they were gradually elbowed out until to-day they number less than 100.

"The late Professor C. H. Pearson, at one time Minister for Education in Victoria, and one of the most intellectual statesmen who ever resided in Australia, in his ***National Life and Character***, admirably summarised the dangers to which his adopted country was exposed by reason of its situation, and the motives which actuated the various colonial Governments in passing enactments designed to place some restriction on the wholesale flooding of their territories.

"The fear of Chinese immigration which the Australian democracy cherishes, and which Englishmen at home find it hard to understand, is, in fact, the instinct of self-preservation, quickened by experience. We know that coloured and white

labour cannot exist side by side; we are well aware that China can swamp us with a single year's surplus of population; and we know that if national existence is sacrificed to the working of a few mines and sugar plantations, it is not the Englishmen in Australia alone, but the whole civilised world that will be the losers. Transform the northern half of our continent into a Natal, with thirteen out of fourteen belonging to an inferior race, and the southern half will speedily approximate to the condition of Cape Colony, where the whites are indeed a masterful minority, but still only as one in four. We are guarding the last part of the world in which the higher races can live and increase freely for the higher civilisation. It is idle to say that if all this should come to pass our pride of place will not be humiliated. We are struggling among ourselves for supremacy in a world which we thought as destined to belong to the Aryan race and to the Christian faith, to the letters and arts and charm of social manners which we have inherited from the best times of the past. We shall wake to find ourselves elbowed and hustled, perhaps even thrust aside by peoples whom we looked down upon as servile and thought of as bound always to minister to our needs.' ...

"The Greater Britain that is to be may be the best security for the Mother Land in years to come, and her natural ally and friend. Australian statesmen claim that they are not only safe-guarding British interests, but also legislating for posterity and looking forward to the time—perhaps a century hence—when the population of the Commonwealth may be one hundred millions or even more.

{529}

"At the present the Australian race is in a plastic condition, and whether it will become, as Marcus Clarke predicted, 'a fierce and turbulent democracy, sweeping contemporary civilisation before it,' or, as seems more probable, a

practical and enlightened people, troubles it little. Leaders and followers of every political cast, Conservatives, Liberals, and Radicals, have now but one national ideal—Purity of Race. They recognise that hybrids cannot make a great nation; that an infusion of Chinese, Japanese, or Indo-Chinese blood must result in race deterioration; and that, if they are to live happily and prosperously, it must be with no strangers within their gates other than those of Caucasian descent who are able to conform to the conditions and customs of civilised communities."

***O. P. Law, W. T. Gill,
A White Australia
(Nineteenth Century, January, 1904).***

"The great Australian Commonwealth has indeed gone very far in many directions in its war against workers of other races than the white. Thus, no contract can be made for the carrying of Australian mails with any steamship line which allows a colored man to work on any of its ships. This is a new measure, and it has been of late the subject of a lively controversy between the Australian government and the two Chamberlains in London,—namely, Mr. Joseph Chamberlain, the colonial secretary, and his son, Mr. Austin Chamberlain, who is now serving as British postmaster-general.

"The fact is that mail-carrying steamship companies which have hitherto performed the service of carrying mails back and forth between Great Britain and the Australian ports have been largely manned by dark-skinned British subjects who are natives of India, and the British Government is under a special obligation not to discriminate against these Indians in view of certain clauses in what is known as the Mutiny Act in India. These same ships, it is to be remembered, will carry, also, the Indian mails, and it would be manifestly impossible for Lord Curzon's government of India to join in mail contracts containing clauses excluding dark-skinned men

from employment."

***American Review of Reviews,
September, 1903.***

See (in this Volume)

AUSTRALIA: A. D. 1905-1906, and 1909.

RACE PROBLEMS: In Canada:

Hostility to Asiatic Labor.

Restriction of Chinese Immigration.

Riotous attacks on Japanese, Chinese, and Hindu

Laborers in British Columbia.

The opposition of organized labor to Asiatic immigration, on the Canadian Pacific Coast, directed first against an influx of Chinese, brought about, in 1904, the imposition of a head-tax of \$500 on every person of Chinese origin entering Canada thereafter, with the following exceptions:

"(a) The members of the diplomatic corps, or other government representatives, their suites and their servants, and consuls and consular agents;

"(b) The children born in Canada of parents of Chinese origin and who have left Canada for educational or other purposes, on substantiating their identity to the satisfaction of the controller at the port or place where they seek to enter on their return;

"(c) Merchants, their wives and children, the wives and children of clergymen, tourists, men of science and students, who shall substantiate their status to the satisfaction of the controller, subject to the approval of the Minister, or who are bearers of certificates of identity, or other similar documents issued by the government or by a recognized official or representative of the government whose subjects they are,

specifying their occupation and their object in coming into Canada."

This was an effective restriction; but left the door open to other "coolie" laborers, so-called, from Japan and India, whence large numbers were soon coming into British Columbia, and the labor agitation was directed against them, on the Canadian as well as the United States side of the line in the farther Northwest. It came to its climax of violence in the fall of 1907, when serious riots broke out at Vancouver, British Columbia, and at Bellingham, in the State of Washington. Many hundreds of Japanese, Chinese, and Hindus had been employed in the lumber mills and canneries of the Washington and British Columbia coast towns, displacing white labor. "In each case a mob of white men raided the mills where the foreigners were employed, battered down the doors of their lodging houses, dragged the Hindus from their beds, and drove them with violence from the town. The Hindus of Bellingham fled northward to the protection of the British flag. At Vancouver the rioters also attacked Chinese and Japanese merchants and laborers, breaking into their shops and pillaging and destroying \$20,000 worth of property. Two thousand Chinese and Japanese were driven from their homes. Later, a number of Japanese immigrants, just landed from a steamer, were attacked and in the riot that followed Baron Ishii, chief of the Japanese Bureau of Foreign Commerce, was severely injured. The Orientals, under the leadership of the Japanese, immediately organized for defense, and, having secured firearms and other weapons, the situation took on a very serious aspect."

The situation was made especially embarrassing to the British and Canadian Governments by the relations of alliance existing between Great Britain and Japan, and by the fact that the Hindus attacked are British subjects, having their established rights as such. But skilful and careful handling of the matter was successful in quieting the trouble, possibly in a lasting

way. The Japanese Government, on its own part, has undertaken to restrict the emigration of its laboring classes to Canada as well as to the United States.

Important changes in the regulations governing the immigration of Chinese were announced in a despatch from Ottawa, July 11, 1909:

"While the poll-tax of £100 on coolies is retained, the restrictions applicable to students and the sons of Chinese merchants are considerably modified. Students who already possess a liberal education, but desire to pursue a higher course of study in any Canadian University or college, are exempt from the tax. Students who intend to pursue their studies in the Dominion but are unable to produce proof of their status on entry are required to deposit the amount of the tax, but the money will be refunded on production of a certificate that they have passed two scholastic years at some seat of learning. The present law permits all Chinese visiting China to return to Canada within a year without a second payment. This has been a hardship to Chinese who have been ill. The new regulation, therefore, extends the time of exemption in such cases to 18 months, provided that satisfactory proof be furnished."

{530}

RACE PROBLEMS: In Jamaica: Between White and Black:
The Problem Non-existent.
Solved by Good Sense, Right Feeling, and Just Law.

In the *International Journal of Ethics* for May, 1906, Professor Royce reports of several visits to Jamaica,—where 14,000 or 15,000 white inhabitants are living with about 650,000 black and mulatto people,—that he had found no race problem existing—no racial antagonism—no public discussion of race equality or superiority. He accounts for this untroubled

relation between colored and uncolored fellow citizens and neighbors as follows:

"When once the sad period of emancipation and of subsequent occasional disorder was passed, the Englishman did in Jamaica what he has so often and so well done elsewhere. He organized his colony; he established good local courts, which gained by square treatment the confidence of the blacks. The judges of such courts were Englishmen. The English ruler also provided a good country constabulary, in which native blacks also found service, and in which they could exercise authority over other blacks. Black men, in other words, were trained,—under English management, of course,—to police black men. A sound civil service was also organized; and in that educated negroes found in due time their place, while the chiefs of each branch of the service were and are, in the main, Englishmen. The excise and the health services, both of which are very highly developed, have brought the law near to the life of the humblest negro, in ways which he sometimes finds, of course, restraining, but which he also frequently finds beneficent. Hence, he is accustomed to the law; he sees its ministers often, and often, too, as men of his own race; and in the main he is fond of order, and respectful toward the established ways of society. The Jamaica negro is described by those who know him as especially fond of bringing his petty quarrels and personal grievances into court. He is litigious just as he is vivacious. But this confidence in the law is just what the courts have encouraged. That is one way, in fact, to deal with the too forward and strident negro. Encourage him to air his grievances in court, listen to him patiently, and fine him when he deserves fines. That is a truly English type of social pedagogy. It works in the direction of making the negro a conscious helper toward good social order.

"Administration, I say, has done the larger half of the work of solving Jamaica's race problem. Administration has filled the Island with good roads, has reduced to a minimum the

tropical diseases by means of an excellent health service, has taught the population loyalty and order, has led them some steps already on the long road 'up from slavery,' has given them, in many cases, the true self-respect of those who themselves officially cooperate in the work of the law, and it has done this without any such result as our Southern friends nowadays conceive when they think of what is called 'negro domination.' Administration has allayed ancient irritations. It has gone far to offset the serious economic and tropical troubles from which Jamaica meanwhile suffers.

"Yes, the work has been done by administration,—and by reticence. For the Englishman, in his official and governmental dealings with backward peoples, has a great way of being superior without very often publicly saying that he is superior. You well know that in dealing, as an individual, with other individuals trouble is seldom made by the fact that you are actually the superior of another man in any respect.

The trouble comes when you tell the other man too stridently that you are his superior. Be my superior, quietly, simply showing your superiority in your deeds, and very likely I shall love you for the very fact of your superiority. For we all love our leaders. But tell me that I am your inferior, and then perhaps I may grow boyish, and may throw stones. Well, it is so with races. Grant, then, that yours is the superior race. Then you can afford to say little about that subject in your public dealings with the backward race. Superiority is best shown by good deeds and by few boasts."

RACE PROBLEMS: In South Africa: Between White and Black.

"The native population of Africa south of the Zambesi is ten millions. The white population is under one million. To-day the majority of the natives are in a semi-savage condition. But the day may come when they shall have emerged from that

condition, and have attained the degree of civilisation which prevails amongst the negroes, their kindred, in the United States. The process of evolution has begun. When it is completed, the relative position of the black and white populations in South Africa will be—what? Look to the United States and you shall find some hint of the answer.

"The native population of Cape Colony, including the territories, is, in round numbers, 1,200,000, and the white population 377,000. Day by day the power of the native grows. The gate of the political arena stands wide open to him, and he is not slow to enter. With the exception of natives occupying lands under tribal tenure (an important exception, but one that is constantly diminishing), every male person, irrespective of colour, race, and creed, and above the age of twenty-one years, and born or naturalised a British subject, is entitled to the full franchise after one year's residence in the Colony, provided he occupies property of the value of £75 or is in receipt of wages of not less than £50 annually, and is able to sign his name and state in writing his address and occupation. Such a franchise would horrify the average American in the South, and unquestionably it will have to be radically amended unless the colonists are prepared to endure political annihilation. At present neither Bondsman nor Progressive will face the situation. Neither wishes to alienate the substantial aid which his party gets from the natives. ...

"Bitter as the feud between Englishman and Dutchman is to-day, it will pass when both realise, as they are bound sooner or later to realise, that only by presenting a solid front to the oncoming hordes of superficially civilised blacks can they escape complete annihilation. For generations, if not for all time, the natives in South Africa must enormously outnumber the whites. In the olden days, tribal wars and wars with the white man, to say nothing of famines, and pestilence, served to counterbalance the prolificness of the native. These checks

are no more."

***Roderick Jones,
The Black Peril in South Africa
(Nineteenth Century, May, 1904).***

On the suffrage question for natives, connected with the Union of South African States.

See (in this Volume)
SOUTH AFRICA: A. D. 1908-1909.

{531}

RACE PROBLEMS: A. D. 1903-1908.
Between Boers and British Indians.

The British Government has many troublesome problems to deal with, as the consequence of its having drawn the reins of its sovereignty over the necks of a motley multitude of races; but none among them, perhaps, has been more delicately difficult than one which arose between its native subjects in India, who pressed with eagerness into South African fields of trade, and its Boer subjects in South Africa, who have been stubbornly opposed to their doing so. Great Britain has had the most pressing reasons for avoiding offence to either of these peoples, and no controversy could have arisen more unfortunately in its circumstances and time.

Before the Boer-British War, there had been Indian complaints of ill-treatment in the Transvaal, which added something to the controversies of Great Britain with the South African Republic. After the war, when British authority had become supreme at Pretoria, it found a legacy of existing law which was embarrassing at once. The situation was described in a despatch of May 11, 1903, from Viscount Milner, the British High Commissioner, to the Colonial Secretary at London, Mr.

Chamberlain, in which he attempted to exhibit, as he said, "the difficulty which besets any kind of action on this thorny question." The Government, he wrote, is "between two fires. On the one hand, it is accused of not enforcing the present law with sufficient strictness and is called upon to legislate in the direction of a complete exclusion of Asiatics, except as indentured labourers. Even in that capacity, their introduction meets with strenuous opposition. On the other hand, the Asiatics, of whom British Indians form by far the most numerous section, not only protest against any fresh legislation but demand the repeal of the existing law.

"The position which the Government of the Transvaal have taken up in the matter is one of which I entirely approve. They are unwilling, without the previous approval of His Majesty's Government, to embark on any legislation on this subject, to the difficulties of which they are fully alive, and have accordingly decided that, pending fresh legislation, they have no option but to carry out the existing law. They are anxious, however, to do so in the manner most considerate to the Indians already settled in the country, and with the greatest respect for vested interests, even where these have been allowed to spring up contrary to law. This is in accordance with the principle on which they have proceeded throughout, namely, that the laws of the late Republic, imperfect as they are in many respects, and contrary, very often, to British ideas, must, nevertheless, be enforced until they can be replaced by more satisfactory legislation."

The desired new legislation on this "thorny question" does not seem to have been attempted during the period in which local self-government in the Transvaal was entirely suspended; but in 1906, after the first step toward its restoration had been taken, the semi-autonomous authority then organized there adopted an ordinance on the subject of Asiatic residence in the Colony which Lord Elgin, who had succeeded Mr. Chamberlain in the Colonial Office, disapproved. In the next year,

however, when the full measure of colonial autonomy had been conferred by the Imperial Government (see, in this Volume, SOUTH AFRICA: A. D. 1905-1907), essentially the same provisions were embodied in an enactment by the new Transvaal Legislature, entitled "The Asiatic Law Amendment Act, 1907," and Lord Elgin could not venture to disapprove them again, for the reasons which he stated thus to the Colonial Governor:

"The Act which is now submitted has behind it a very different weight of authority. It has been introduced by the first responsible Ministry of the Colony, and has been passed unanimously by both Houses of the new Legislature. I consider it my duty to place it on record that His Majesty's Government do not consider the position of Asiatics lawfully resident in the Transvaal, as settled by this Act, to be satisfactory; that they adhere to the opinions which have been expressed by successive Secretaries of State as to the desirability of relaxing the restrictions to which Asiatics are at present subject; and that they commend this view to the Transvaal Government in the hope that it may be carefully considered how far practical effect can be given to it. But they feel that they would not be justified in offering resistance to the general will of the Colony clearly expressed by its first elected representatives; and I have accordingly to inform you that His Majesty will not be advised to exercise his power of disallowance with respect to the Act." This measure was followed presently by an "Immigrants' Restriction Act, 1907," which accentuated still further the inhospitality of Transvaal legislation, and made more serious trouble for the British Government, not only with its Indian subjects, but with the Chinese. On the effect of the two acts upon British Indians Lord Elgin wrote to Mr. Morley, Secretary of State for India (October 10, 1907):

"The practical effect of Section 2 (4) will be to prevent the further immigration into the Transvaal of British Indians or other Asiatics. As Mr. Morley is aware, throughout the

correspondence which has passed on this subject, His Majesty's Government have practically limited themselves to endeavouring to secure more favourable treatment for those Asiatics who have already acquired a right to reside in the Colony, and the competence of the Colonial Legislature and Government to restrict further immigration by means of legislation similar to that already adopted in other self-governing Colonies has not been disputed. ... Moreover, in the interests of British Indians themselves, it is probably desirable, in view of the state of Colonial feeling, that further immigration should be restricted. Lord Elgin does not, therefore, propose to raise any objection to this provision.

"Section 6 (c) must be considered in connection with the recent Asiatic Law Amendment Act. Under that Act, Asiatics failing to register may be ordered to leave the Colony; and failure to comply with such an order is punishable by imprisonment. The object of this section, as explained by the Attorney-General in his report is to enable the Government to deport, in lieu of imprisoning, Asiatics who fail to register under the Asiatic Law Amendment Act.

{532}

While Lord Elgin feels that the free exercise of so drastic a power would be greatly to be deprecated, he doubts whether His Majesty's Government can consistently object to a provision the object of which is to enable the Colonial Government to enforce the observance of the Asiatic Law Amendment Act, which His Majesty's Government have allowed to become law, and to which the British Indian community appears at present to be disposed to offer an organised resistance. He therefore proposes, subject to any representation which Mr. Morley may wish to make, to accept this provision also."

The India Office could only say in reply:

"Since the Asiatic Law Amendment Act, 1907, has received His Majesty's sanction, Mr. Morley recognizes that it would be

inconsistent to object to a clause framed merely in order to ensure the efficient administration of that Act so far as it affects persons already in the Transvaal. ... It is true that under the Asiatic Law Amendment Act of 1907, the Colonial Government may grant temporary permits. Mr. Morley presumes that this power will, if the occasion arise, be used to prevent such a gross scandal as the exclusion from the Colony of ruling chiefs, Indians of distinguished position, and high officials of Asiatic descent on the ground that they are 'undesirable immigrants.' But he thinks that it would be satisfactory to obtain a definite assurance that in framing the present Bill the Colonial Government had no intention of refusing access to Asiatics of this type, and he trusts that such an assurance will be obtained and placed on record before the Royal Assent is given to the measure.

"It is unnecessary to point out to Lord Elgin the unfortunate effect upon public opinion in India which must be produced by the present Bill. The very peculiar circumstances of the Transvaal have been held to justify, during the period of administrative reconstruction, exceptional measures for dealing with the influx of immigrants; but Mr. Morley did not understand, when the provisions of the Asiatic Law Amendment Act were under discussion, that the forthcoming Immigration Restriction Bill would be so framed as to perpetuate the exclusion from the Colony of all future Asiatic immigrants without distinction.

"For these reasons I am to say that Mr. Morley trusts that Lord Elgin will find it possible to impress upon the Government of the Transvaal the very strong objections, from an Imperial point of view, which stand in the way of the acceptance of Section 2 (4) of the Bill."

The most obnoxious features of the two offensive acts were an educational qualification, which required applications for admission to the colony and for trading licenses in it, and

other connected documents, to be written by the applicants in a European language, Yiddish being recognized as European, and a prescribed registration which required finger-prints as a means of identification. Both of these provisions of law were felt to be insulting and degrading by the Hindus of the better class, who organized a refusal of submission to them, and tested them without avail in the courts. Their language was treated contemptuously in the educational qualification, while, personally, they were classed with criminals by the fingerprint identification. The agitators of disaffection in India made much of these indignities, and the matter was extremely embarrassing to the British administration there. For months there seemed no prospect of a solution of the difficulty; but patient persuasion and tactful pressure brought, at last, what appeared to be a successful compromise, announced to the rejoicing Colonial Office at London by the following telegram from the Governor, January 30, 1908:

"Gandhi and other leaders of Indian and Chinese communities have offered voluntary registration in a body within three months, provided signatures only are taken of educated, propertied, or well-known Asiatics, and finger-prints of the rest, and that no question against which Asiatics have religious objection be pressed. Government have accepted this offer and undertaken pending registration not to enforce the penalties under Act against all those who register. Sentences of all Asiatics in prison will be remitted to-morrow. This course agreed to by both political parties."

Fresh discontents arose subsequently, when amendatory legislation was brought out, which did not open the colony to any fresh immigration of Asiatics, even if they could pass an educational test in a European language; but this has not appeared to have any of the seriousness of the former agitation, so far as India is concerned.

Of the intensity of feeling in India, a newspaper

correspondent, writing from Bombay, December 29, 1909, said:

"There is no mistaking the depth of feeling regarding the protest against the treatment of Indians in the Transvaal. Every Indian, no matter what may be his politics, feels that his self-respect is insulted, and demands retaliation by refusing indentured labour to Natal. Extraordinary scenes followed Mr. Surendranath Banerjee's appeal for funds for the Transvaal sufferers; jewels and money were thrown at his feet and rupees were poured into his hat. A thousand pounds was collected. The question is creating profound feeling among all classes."

RACE PROBLEMS:

The Labor Question as a Race Question.

At a meeting of the Native Labor Association at Johannesburg, in April, 1909, the President of the Association stated that the present labor supply was entirely adequate, and that the mines were not likely to be faced with serious difficulty in this respect in the immediate future. In the course of 1908 the number of Chinese laborers had decreased in the natural course by repatriation by 23,303. On the other hand, the native complement had increased in the same period by 47,766, giving a net gain of 24,373, which had been further increased during the first three months of the present year. In explanation of the sudden expansion of the native labor supply, Mr. Perry pointed, first, to the collapse of the diamond market; secondly, to the emigration of Kaffirs from the Cape owing to failure of employment there. The De Beers Mines, as he was able to show, were actually employing 50,000 fewer hands than before, which, allowing for the difference in the periods of contract, probably meant a gain to the Rand of at least 25,000. Similarly, the native statistics published by the Cape Government indicated an enormous diversion of labourers to the Rand.

In January, 1909, the London *Times*, reporting the output of gold from the Transvaal in 1908 as having been £29,957,610,—an increase of £2,553,872 over 1907, gave the following statement of labor conditions at that time:

{533}

"The increase has been gradual and quite regular, and may be expected to continue. The expansion in the gold production has resulted in the employment of nearly 1,800 more whites than were at work in January, but coloured labourers are some 4,000 less. The increase in the number of natives employed in gold mines has been 24,000, while the complement of Chinese coolies has been depleted by 20,000. At the beginning of the year some 17,500 whites, 133,500 coloured, and 33,800 Chinese were employed by gold mines; for October the figures read:—Whites 18,300, coloured 157,500, and Chinese 14,300. Native labour is perhaps the one serious problem which will place limitations on further expansion. Few of the Chinese will be left by the end of next year, and they will all have left before the expiry of 1910. Natives, however, are showing more tendency to work regularly, and the habit doubtless will grow. It is due to the Chinese to recognize that they have been useful workmen, for the improved efficiency of the coloured workman all round is largely due to the example which they set the native."

In March, 1909, Colonel Seely, Under Secretary for the Colonies, in reply to questions in the British House of Commons, gave the following figures: January, 1907, Chinese employed, 53,856; whites employed on gold mines, 17,874; December, 1908, Chinese employed, 12,275; whites employed on gold mines, 19,605. For 'Witwatersrand, taking natives and Chinese together the numbers were:—January, 1907, 148,077; December, 1908, 166,405. The corresponding figures for whites are:—January, 1907, 17,198; December, 1908, 18,687.

A Johannesburg letter of July 26 to the London *Times* reported a change in the situation, saying:

"For the half-year upon which we have just entered it requires no prophet to foretell a more rapid rate of progress, which, however, may to some extent be limited by a scarcity of native labour, signs of which have begun to loom on the horizon. After 18 months or more of steady increase in the number of native labourers available for work in mines, an increase which more than counterbalanced the outflow of Chinese labour through repatriation, the pendulum has begun to swing the other way, and already the pinch is beginning to make itself felt in certain mines. During the last two months the excess of time-expired natives and wastage over the number recruited has been more than 8000, and repatriated Chinese brings the total up to 10,000. Considering that the total coloured labour force employed on the Witwatersrand was over 180,000 in April, this comparatively small decline under normal conditions should hardly make itself felt at all. But the conditions are not normal. An era of expansion set in some 18 months ago which has been steadily growing, and which has called for an ever-increasing labour force and in the near future must require still more and more. How that demand is to be met is by no means clear."

RACE PROBLEMS: In the United States:

Between its White and Black Citizens:

Booker T. Washington's solution in progress at Tuskegee.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1906.

RACE PROBLEMS:

The "Niagara Movement."

A National Committee for the Advancement of the Negro Race.

In July, 1905, a conference of colored men from North and

South, among whom Professor W. E. Burghardt Du Bois, of Atlanta, appeared to be the leading spirit, was held at Buffalo, New York. Its outcome was an organization which has taken the name of "The Niagara Movement," and which has had some growth. At the latest annual meeting of the organization, in Sea Isle City, New Jersey, in August, 1909, ten States were reported to be represented, and the total membership of the "Movement" was said to be three hundred, distributed in forty States. Its objects are indicated in the following passages from an Address which this meeting adopted:

"For four years the Niagara Movement has struggled to make ten million Americans of negro descent cease from mere apology and weak surrender to aggression, and take a firm, unfaltering stand for justice, manhood, and self-assertion. We are accumulating property at a constantly accelerating rate; we are rapidly lowering our rate of illiteracy; but property and intelligence are of little use unless guided by the great ideals of freedom, justice, and human brotherhood.

"As a partial result of our effort we are glad to note among us increasing spiritual unrest, sterner impatience with cowardice, and deeper determination to be men at any cost. ...

"That black men are inherently inferior to whites is a wide-spread lie which science flatly contradicts, and the attempt to submerge the colored races is one with world-old efforts of the wily to exploit the weak. We must, therefore, make common cause with the oppressed and down-trodden of all races and peoples; with our kindred of South Africa and the West Indies, with our fellows in Mexico, India, and Russia, and with the cause of the working classes everywhere.

"On us rests to no little degree the burden of the cause of individual freedom, human brotherhood, and universal peace in a day when America is forgetting her promise and destiny. Let us work on and never despair because pigmy voices are loudly

praising ill-gotten wealth, big guns, and human degradation. They but represent back eddies in the tide of time."

Programme of future work adopted included the publication of a series of small tracts and an almanac, the founding of a monthly publication, and the purchase of a permanent place of meeting where an annual Chautauqua will be held.

A Conference of people of both races who are desirous of organizing more effective endeavors to better the status of the negro citizens of the United States was held in New York in May, 1909. It adopted a resolution providing for the "incorporation of a national committee to be known as a committee for the advancement of the negro race, to bring that race from slavery to full citizenship with all the rights and privileges appertaining thereto," and another resolution for a Committee of Forty charged with the organization of the national committee, with power to call the convention in 1910.

{534}

Among other resolutions discussed and adopted were the following:

"As first and immediate steps toward remedying ... national wrongs, so full of perils for the whites as well as the blacks of all sections, we demand of Congress and the Executive:

"(1.) That the Constitution be strictly enforced and the civil rights guaranteed under the Fourteenth Amendment be secured impartially to all.

"(2.) That there be equal educational opportunities for all and in all the States, and that public school expenditure be the same for the negro and white child.

"(3.) That in accordance with the Fifteenth Amendment the

right of the negro to the ballot on the same terms as other citizens be recognized in every part of the country."

RACE PROBLEMS:

Anti-Negro Riot at Atlanta.

"On the 22d and 23d of September [1906] anti-negro riots broke out in Atlanta, resulting in the death of twelve or more negroes and the injury of a great many. There had been an unusual number of reports of attacks upon white women and girls by brutal and criminal negroes in the vicinity of Atlanta during the previous days and weeks. Every report of this kind had been flaunted with great headlines in a sensational afternoon newspaper of Atlanta, as if to arouse the less orderly and thoughtful element of the white population not merely to the lynching of offenders but to an attack upon innocent and law-abiding colored people. For a time the riot was furious and negroes were indiscriminately assailed. It would seem that most of those who were killed were absolutely innocent of any offense whatsoever. Their crime consisted merely in belonging to the negro race. It would be the height of silliness for criticism to take on a geographical character. White people in the North are no more considerate of people against whom they may have a grievance or a prejudice than are white people in the South. The problem of adjusting the relations of two races so totally different as the white race and the negro race where they have to live together in the same communities is difficult under any circumstances, and it becomes increasingly so where the inferior race is present in large numbers and where many of its members are ill-disciplined, idle, and of criminal instincts."

***American Review of Reviews,
November, 1906.***

"Wherever a colored man was seen he was attacked. The mobs

closed in upon the trolley-cars and dragged the colored passengers, unprepared for the onslaught, from their seats. A riotous crowd broke into a shop where there were two negro barbers, beat them to death and mangled their bodies. One negro was killed in the shadow of a monument; another was stabbed to death on the post-office steps. The Governor mobilized the militia, but the mobs, taking it for granted that the militiamen were in sympathy with them, showed little fear of the soldiers. The Mayor of the city remonstrated with the rioters, but with little result. He called out the fire department, which cleared the streets by turning the hose on the mobs. But this only resulted in diverting the riot from one place in the city to another. Only a rain on Sunday dampened the ardor of the rioters. Order was outwardly restored by Sunday evening, but even thereafter negroes were killed. Even though the riot differed from the Russian variety in that it was not instigated and abetted by the Government and the military, it brings nothing but shame to this Nation."

The Outlook,
September 29, 1906.

RACE PROBLEMS:

The Georgia Railroad Strike.

One of the meanest of recent exhibitions of race animosity was presented in May and June, 1909, on the occasion of a strike of white men employed as firemen on the Georgia Railroad against the employment of blacks in the same capacity. Generally, the southern railroads have employed, for years, both white and black firemen. On the Georgia Railroad there were about sixty of the former and forty of the latter. The white firemen were eligible to promotion to be engineers; the blacks were not. By an unwritten law they were excluded from the higher and better paid service; but as firemen the best among them had gradually won promotion to the better trains and better "runs" on the road. It was this fact which caused

the strike of their white associates. As a labor strike it would have caused little trouble; as a race and color question it inflamed the State and the South, and disturbed the country at large for several weeks. The conflict of the railroad company was not with its own employees but with mobs along its line, always ready to be maddened by the thought of a negro in any place which a white man wanted.

A mediation in the matter undertaken, at the instance of President Taft, by the United States Commissioner of Labor, Dr. Charles P. Neill, and the Chairman of the Interstate Commerce Commission, Mr. Martin A. Knapp, succeeded, with much difficulty, in arranging a reference of the dispute to arbitration. The chosen arbitrators were Hilary A. Herbert, named by the railroad company, T. W. Hardwick, named by the employees, and Chancellor David C. Barrow, of the University of Georgia, selected by these two. This board of arbitration gave hearings to both parties and rendered its award on the 27th of June. The main proposition submitted to it by the employees was in these words: "That the Georgia Railroad Company and its terminals at Atlanta will not use negroes as locomotive firemen on the road or in the yards, nor as hostlers nor assistant hostlers."

On this its decision was as follows: "The Georgia Railroad, when using negroes as locomotive firemen on the road or in the yards, or as hostlers, or as hostlers' helpers, shall pay them the same wages as white men in similar positions." But the representative of the employees dissented from this decision in part, explaining his view, as follows: "In so far as the above finding permits the continued employment of negro firemen by the Georgia Railroad, I dissent therefrom, because I believe from the evidence that such employment is a menace to the safety of the travelling public. In so far as such finding requires that when negroes are so employed they shall receive wages equal to those paid white men, I concur therein, believing that such requirement, by removing the principal

incentive for their employment, will result in the speedy elimination of this cheaper labor, and a consequent improvement of the service."

On most of the minor points in controversy the arbitrators were agreed in their conclusions, and the settlement of the whole matter was complete.

{535}

RACE PROBLEMS:

Oriental Labor in Competition with Western Labor.
The Force of the Economic Objection to it in
a Country under the Protective System.

"Behind the economic antipathy to Oriental laborers there is a justifiable feeling. Where there is established a system of protection, it is only just that it benefit not only the capitalist but also the laborer. If the American laborer must contend as best he can with the laborer whose standard of life is lower, then the American manufacturer, in fairness, ought to be let alone in his contest with the foreign manufacturer who does not pay so much for his labor. ***The Outlook*** believes that a condition of such open competition as has prevailed between the States of the Union would be wholesome between the nations of the world. But at present the protective system prevails and apparently is firmly established in America. So long, therefore, as American capital is protected, it is a benefit for the whole country to have American labor protected. And certainly if there is any body of laborers against which the working people of America need protection, it is the coolie labor of Asia. The fact that the Japanese and Chinese laborers enter industries in which there is a scarcity of whites does not affect the case, for it is not the direct loss of jobs, but the lowering—or at least the changing—of the standards of living that brings injury to the mass."

The Outlook,
September 21, 1907.

RACE PROBLEMS:

Existing Treaties between the United States and China concerning the Admission of Chinamen.

Enactments of Law on the Subject.

Correspondence of Wu Ting-fang with Secretary Hay.

For a proper understanding of the questions of national honor and official civility that are involved in the existing laws and regulations of the United States which govern the admission of Chinamen to the country, either as visitors or immigrants, some attention must be given to a series of engagements by solemn treaty between the Governments of China and the United States, respecting the hospitality which each has pledged itself to give to the citizens of the other. Three of those treaties remain partly or wholly in force. The abrogation of the fourth one has a significance of its own.

The earliest of these treaties, negotiated in 1858, superseding one of 1844, provided very carefully for the good treatment of American citizens in China, but contains nothing on the subject of Chinamen in America, probably for the reason that few of that people had yet travelled so far abroad. The rights it stipulated for the American who visited or sought residence in the Celestial Empire were as follows:

"Article XI.

All citizens of the United States of America in China, peaceably attending to their affairs, being placed on a common footing of amity and good will with the subjects of China, shall receive and enjoy for themselves and everything appertaining to them the protection of the local authorities of government, who shall defend them from all insult or injury of any sort. If their dwellings or property be threatened or

attacked by mobs, incendiaries, or other violent or lawless persons, the local officers, on requisition of the consul, shall immediately despatch a military force to disperse the rioters, apprehend the guilty individuals and punish them with the utmost rigor of the law. Subjects of China guilty of any criminal act towards citizens of the United States shall be punished by the Chinese authorities according to the laws of China. And citizens of the United States, either on shore or in any merchant vessel, who may insult, trouble or wound the persons or injure the property of Chinese or commit any other improper act in China, shall be punished only by the Consul or other public functionary thereto authorized according to the laws of the United States. Arrests in order to trial may be made by either the Chinese or the United States authorities."

Treaty of Peace, Amity, and Commerce, 1858
(Compilation of Treaties in Force, 58th Congress,
2d Session, Senate Document Number 318, page 138).

Ten years later, in 1868, another treaty was negotiated, not to supersede that of 1858, but to supplement it; and in this agreement the reciprocation of hospitalities is pledged in the following distinct and cordial terms:

"Article V.

The United States of America and the Emperor of China cordially recognize the inherent and inalienable right of man to change his home and allegiance, and also the mutual advantage of the free migration and emigration of their citizens and subjects, respectively, from the one country to the other, for purposes of curiosity, of trade, or as permanent residents. The high contracting parties, therefore, join in reprobating any other than an entirely voluntary emigration for these purposes. They consequently agree to pass laws making it a penal offence for a citizen of the United States or Chinese subjects to take Chinese subjects either to the United States or to any other foreign country, or for a

Chinese subject or citizen of the United States to take citizens of the United States to China or to any other foreign country, without their free and voluntary consent, respectively.

"Article VI.

Citizens of the United States visiting or residing in China shall enjoy the same privileges, immunities or exemptions in respect to travel or residence as may there be enjoyed by the citizens or subjects of the most favored nation. And, reciprocally, Chinese subjects visiting or residing in the United States shall enjoy the same privileges, immunities, and exemptions in respect to travel or residence, as may there be enjoyed by the citizens or subjects of the most favored nation. But nothing herein contained shall be held to confer naturalization upon citizens of the United States in China, nor upon the subjects of China in the United States.

"Article VII.

Citizens of the United States shall enjoy all the privileges of the public educational institutions under the control of the Government of China, and, reciprocally, Chinese subjects shall enjoy all the privileges of the public educational institutions under the control of the Government of the United States, which are enjoyed in the respective countries by the citizens or subjects of the most favored nation. The citizens of the United States may freely establish and maintain schools within the Empire of China at those places where foreigners are by treaty permitted to reside, and reciprocally, Chinese subjects may enjoy the same privileges and immunities in the United States."

***Treaty of Trade, Consuls, and Emigration, 1868
(58th Congress, 2d Session,
Senate Document Number 318, pages 157-158).***

That this treaty, as well as that of 1858, is still obligatory in its hospitable spirit and intent, is a fact certified by the language of the preamble of the treaty negotiated next, by President Angell, of Michigan University, and other Commissioners, in 1880. The recital in that preamble of the purpose of the new agreement was this:

"Whereas, in the eighth year of Hsien Feng, Anno Domini 1858, a treaty of peace and friendship was concluded between the United States of America and China, and to which were added, in the seventh year of Tung Chih, Anno Domini 1868, certain supplementary articles to the advantage of both parties, **which supplementary articles were to be perpetually observed and obeyed:** and Whereas the Government of the United States, because of the constantly increasing immigration of Chinese laborers to the territory of the United States, and the embarrassments consequent upon such immigration, now desires to negotiate **a modification of the existing Treaties which shall not be in direct contravention of their spirit:** Now, therefore," &c. The following are the four articles of the treaty thus explained:

"Article I.

Whenever in the opinion of the Government of the United States the coming of Chinese laborers to the United States, or their residence therein, affects or threatens to affect the interests of that country, or to endanger the good order of the said country or of any locality within the territory thereof, the Government of China agrees that the Government of the United States may regulate, limit, or suspend such coming or residence, **but may not absolutely prohibit it. The limitation or suspension shall be reasonable, and shall apply only to Chinese who may go to the United States as laborers,** other classes not being included in the limitations. Legislation taken in regard to Chinese laborers will be of such a character only as is necessary to enforce

the regulation, limitation, or suspension of immigration, and immigrants shall not be subject to personal maltreatment or abuse.

"Article II.

Chinese subjects, whether proceeding to the United States as teachers, students, merchants or from curiosity, together with their body and household servants, and Chinese laborers who are now in the United States ***shall be allowed to go and come of their own free will and accord, and shall be accorded all the rights, privileges, immunities, and exemptions which are accorded to the citizens and subjects of the most favored nation.***

"Article III.

If Chinese laborers, or Chinese of any other class, now either permanently or temporarily residing in the territory of the United States, meet with ill treatment at the hands of any other persons, the Government of the United States will exert all its power to devise measures for their protection and to secure to them the same rights, privileges, immunities, and exemptions as may be enjoyed by the citizens or subjects of the most favored nation, and to which they are entitled by treaty.

"Article IV.

The high contracting powers having agreed upon the foregoing articles, whenever the Government of the United States shall adopt legislative measures in accordance therewith, such measures will be communicated to the Government of China. If the measures as enacted are found to work hardship upon the subjects of China, the Chinese minister at Washington may bring the matter to the notice of the Secretary of State of the United States, who will consider the subject with him; and the Chinese Foreign Office may also bring the matter to the notice of the United States minister at Peking and consider the subject with him, to the end that mutual and unqualified

benefit may result.

This is the latest of the still obligatory engagements by treaty that bear on the admission of visitors or immigrants from China to the United States. A fourth treaty, pressed on the Chinese Government in 1894, permitted the United States, during a period of ten years, to prohibit entirely the coming of Chinese laborers within its territory; but the concluding article of that treaty was as follows:

"This Convention shall remain in force for a period of ten years beginning with the date of the exchange of ratifications, and, if six months before the expiration of said period of ten years, neither Government shall have formally given notice of its final termination to the other, it shall remain in full force for another like period of ten years." The Chinese Government did give the formal notice of termination within the stipulated time, and the treaty became void on the 7th of December, 1904.

Hence the Government of the United States is now under the engagements which it made with the Government of China in 1880, which included an engagement to be faithful to the hospitable spirit of the compact of 1868. When one has looked over those engagements of national honor, it seems hard to harmonize them in spirit, or even in letter, with some of the enactments which are regulating, at the present day, the treatment of people from China who venture to approach the entry ports of the United States. Such, for example, as the following, from "the Act of May 6, 1882, as amended and added to by the Act of July 5, 1884," which, according to a recent official publication of "Laws and Regulations governing the Admission of Chinese," was "continued in force for an additional period of ten years from May 5, 1892, by the act of May 5, 1892, and was, with all laws on this subject in force on April 29, 1902, reënacted, extended, and continued without modification, limitation, or condition by the act of April 29,

1902, as amended by the act of April 27, 1904":

"Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That from and after the passage of this act, and until the expiration of ten years next after the passage of this act, the coming of Chinese laborers to the United States be, and the same is hereby suspended, and during such suspension it shall not be lawful for any Chinese laborer to come from any foreign port or place, or having so come to remain within the United States."

"Section 2.

That the master of any vessel who shall knowingly bring within the United States on such vessel, and land, or attempt to land, or permit to be landed any Chinese laborer, from any foreign port or place, shall be deemed guilty of a misdemeanor, and, on conviction thereof, shall be punished by a fine of not more than five hundred dollars for each and every such Chinese laborer so brought, and may also be imprisoned for a term not exceeding one year." ...

{537}

"Section 6.

That in order to the faithful execution of the provisions of this act, every Chinese person, other than a laborer, who may be entitled by said treaty or this act to come within the United States, and who shall be about to come to the United States, shall obtain the permission of and be identified as so entitled by the Chinese Government, or of such other foreign government of which at the time such Chinese person shall be a subject, in each case to be evidenced by a certificate issued by such Government, which certificate shall be in the English language, and shall show such permission, with the name of the permitted person in his or her proper signature, and which certificate shall state the individual, family, and tribal

name in full, title or official rank, if any, the age, height, and all physical peculiarities, former and present occupation or profession, when and where and how long pursued, and place of residence of the person to whom the certificate is issued, and that such person is entitled by this act to come within the United States.

"If the person so applying for a certificate shall be a merchant, said certificate shall in addition to above requirements, state the nature, character, and estimated value of the business carried on by him prior to and at the time of his application as aforesaid: **Provided**, That nothing in this act nor in said treaty shall be construed as embracing within the meaning of the word 'merchant,' hucksters, peddlers, or those engaged in taking, drying, or otherwise preserving shell or other fish for home consumption or exportation.

"If the certificate be sought for the purpose of travel for curiosity, it shall also state whether the applicant intends to pass through or travel within the United States, together with his financial standing in the country from which such certificate is desired.

"The certificate provided for in this act, and the identity of the person named therein shall, before such person goes on board any vessel to proceed to the United States, be viséd by the indorsement of the diplomatic representatives of the United States in the foreign country from which such certificate issues, or of the consular representative of the United States at the port or place from which the person named in the certificate is about to depart; and such diplomatic representative or consular representative whose indorsement is so required is hereby empowered, and it shall be his duty, before indorsing such certificate as aforesaid, to examine into the truth of the statements set forth in said certificate, and if he shall find upon examination that said

or any of the statements therein contained are untrue it shall be his duty to refuse to indorse the same.

"Such certificate viséd as aforesaid shall be prima facie evidence of the facts set forth therein, and shall be produced to the Chinese inspector in charge of the port in the district in the United States at which the person named therein shall arrive, and afterward produced to the proper authorities of the United States whenever lawfully demanded, and shall be the sole evidence permissible on the part of the person so producing the same to establish a right of entry into the United States; but said certificate may be controverted and the facts therein stated disproved by the United States authorities."

It will be observed that Article IV. of the Treaty of 1880 provides that, if measures enacted in the United States "are found to work hardship upon the subjects of China, the Chinese minister at Washington may bring the matter to the notice of the Secretary of State of the United States, who will consider the subject with him." One who consults the annual reports that are published, of "Papers relating to the Foreign Relations of the United States," will find that the Chinese Minister at Washington has had occasion very often to bring cases of the kind thus referred to in the Treaty to the notice of the Secretary of State, and discovered, when he did so, almost invariably, that under the enactments complained of the Secretary of State had no power even to "consider the subject" of complaint with him. The highly intelligent and keenly logical Mr. Wu Ting-fang, who represented China at Washington in 1900-1902, had much correspondence on such matters with Secretary Hay, whose sympathetic friendliness to China was well proved; but Mr. Hay could never do more than refer Mr. Wu's representations to the Treasury Department and its officials, who held all authority in the matter, and politely return to the Chinese Minister such responses as they put into his hands. The following is one example of Mr. Wu Ting-fang's

communications. It is dated at Washington, December 26, 1900:

"I have received from the imperial consul-general and from reputable Chinese merchants in San Francisco such urgent complaints that I feel it my regrettable duty to again address you on the subject of the manner in which the immigration laws of Congress are being enforced against Chinese subjects. They represent what I set forth in my note of the 30th ultimo, that under the rulings of the authorities of the port of San Francisco Chinese students holding certificates in conformity to the treaty and law of Congress are virtually debarred from entering the United States, it being held by the said authorities that such students must come here with a knowledge of the English language and with an education that will permit them to forthwith enter a college or take up an advanced professional course of study. They further represent that under the act of November 3, 1893, the Government of the United States issued certificates of residence to a large number of Chinese persons, not laborers—merchants and others—and that the rights acquired under these certificates are being entirely ignored. Holders of such certificates desiring to make a temporary visit to China are denied the privilege, and persons who have departed holding such certificates are denied the privilege of reentering the United States. They state that merchants returning to San Francisco after a temporary visit to China are often imprisoned in the detention dock for weeks and months pending their landing. Their Caucasian witnesses are put to all sorts of inconveniences and annoyances and treated with suspicion and discourtesy. When present to sign identification papers they are compelled to await the pleasure of the Chinese bureau for examination, and are plied with all sorts of immaterial questions from an inspector, who assumes the character of an inquisitor.

{538}

The result of this is that it is now very difficult for Chinese desiring to visit their native land to obtain the necessary signatures for their identification papers, thus

causing them untold mental and financial suffering. They report that it has been heretofore the custom in San Francisco for years to allow the attorney for the persons desiring to enter the United States to be present at the Chinese bureau pending the taking of evidence on their behalf, thus affording a protection to the Chinese applicants and operating as a restraint upon overzealous subordinate officials. It has just been ordered by the port authorities that henceforth no attorneys shall be allowed to be present at the taking of such testimony, or of any testimony on behalf of Chinese desiring to enter that port. They assert that this action makes the immigration inspector, whose avowed policy is to cause the return to China of every Chinese he possibly can, the master of the situation and throws all Chinese applicants at his feet."

***Minister Wu to Secretary Hay, December 26, 1900
(Foreign Relations, 1901, page 64).***

In a previous communication the Chinese Minister had expressed the opinion that the matter demanded the attention of the President; to which Secretary Hay replied that "in the Department's view the immigration acts do not confer upon the President any power to interpose in the matter. The act of August 18, 1894, provides that 'in every case where an alien is excluded from admission into the United States under any law or treaty now existing or hereafter made, the decision of the appropriate immigration or customs officers, if adverse to the admission of such alien, shall be final, unless reversed on appeal to the Secretary of the Treasury.'" On this statement Mr. Wu now remarked:

"I beg to say that I was aware of the law which is quoted in your note of the 5th instant, when I suggested the interposition of the President of the United States, but I am advised that it can hardly be interpreted as a prohibition against the exercise by that supreme official of the nation of

his influence with one of his own Secretaries, if he was convinced, upon examination of the facts, that a solemn treaty guaranty was being violated and a great wrong being done to subjects of a friendly Government. I am further advised that it was not the intent of Congress, by the act cited, to take from the President the duty, which I have understood was imposed on him by your great and wise Constitution, to 'take care that the laws be faithfully executed,' and by the same instrument the treaties with foreign nations are declared to be 'the supreme law of the land.' I feel persuaded that if you will lay the questions presented in the present note and that of the 30th ultimo before the President, he will be inspired by his high sense of justice to induce the honorable Secretary of the Treasury to revise the decisions which have been made by the official of his Department, or that he will at least submit the question to the Attorney-General for a construction of the treaty and the laws depending thereon."

***Foreign Relations,
1901, page 65.***

Any fair-minded reader of the correspondence between Chinese and American officials, relative to the treatment of Chinamen in the United States, is likely to find himself quite generally in sympathy with the former, and compelled to doubt whether the subjects of China would lose anything if all the treaty engagements supposed to be in force, between their Government and the Government of the United States, were cancelled to-morrow.

RACE PROBLEMS:

Anti-Japanese Agitation in California.

Segregation of Orientals in San Francisco Schools.

Japanese Resentment.

The Labor Question at the Bottom.

State Rights and Treaty Rights.

"The events noted in this article belong mostly to San Francisco, but to a very considerable extent the agitation is one of state and national importance.

"In November, 1904, the American Federation of Labor held its annual meeting in San Francisco. It adopted a resolution demanding that the terms of the Chinese Exclusion Act should be so extended 'as to permanently exclude from the United States and its insular territory all classes of Japanese and Koreans other than those exempted by the present terms of the act.'"

"In February, 1905, the San Francisco *Chronicle*, a daily newspaper of state-wide reputation, began to publish a series of articles having the general object of representing the immigration of Japanese, particularly of Japanese laborers, as a menace to the interests of the people of California and of the nation as well. On the date of the first publication, February 23, 1905, the purpose of the series was thus announced editorially:

"'With this issue we summon the attention of the public to a matter of grave import, a matter that no longer admits of delay if we are to preserve the integrity of our social life not only in California but throughout the Union. The Japanese invasion with which we are confronted is fraught with a peril none the less momentous because it is so silent, none the less attended with danger to American character and to American institutions because it is so peaceful. ... It will be well for us to choose now the line of least resistance, to determine now and forever whether this State and this country are to be American or whether they are to be Asiatic, whether they are to continue under the sway of American thought and aspiration or whether they are to become a seminary, an abiding place, and an inheritance for the Oriental peoples. ... This is a matter first for California and for the Pacific Coast and secondly for the whole Nation. California stands to-day as an

open door for Japan and for Asia and when these portals have been passed the road to the Atlantic is unbarred.'

"The series of articles printed conspicuously on the front page at intervals of two or three days sought to establish as fact a rapidly increasing inflow of Japanese laborers, ready to work at wages far below the white standard, and sending native-born white men into the ranks of the unemployed.

"By a unanimous vote in each House, and with only few absentees, the California Legislature on March 1 and 2, 1905, placed itself on record with respect to Japanese immigration in the adoption of a concurrent resolution. After a lengthy preamble, the Legislature—

"***Resolved***, that in view of the facts and reasons aforesaid, and of many others that might be stated, we, as representatives of the people of the State of California, do earnestly and strenuously ask and request, and in so far as it may be proper, demand for the protection of the people of this State and for the proper safe-guarding of their interests, that action be taken without delay, by treaty, or otherwise, as may be most expeditious and advantageous, tending to limit within reasonable bounds and diminish in a marked degree the further immigration of Japanese laborers into the United States.

{539}

"That our Senators and Representatives be, and they are hereby, requested and directed to bring the matters aforesaid to the attention of the President and the Department of State.'

***California Statutes, 1905,
Concurrent & Joint Res. chapter xxiv.***

"On Sunday May 7, 1905, there was held in Lyric Hall, San Francisco, a sort of convention of representatives of various Labor organizations and Improvement Clubs of San Francisco and near-by cities,—such as the Building Trades Council, District Council of Painters, Carpenters' Union No. 22, Federation of Mission Improvement Clubs, et al. After much speech-making of a demagogic character, committees were appointed and an adjournment taken to the following Sunday. On that day, May 14, organization was perfected by the election of the usual officers. All of these were men active in the promotion of labor organization.

"On May 6, 1905, the San Francisco Board of Education adopted a resolution expressing its determination 'to effect the establishment of separate schools for Chinese and Japanese pupils ... for the higher end that our children should not be placed in any position where their youthful impressions may be affected by association with pupils of the Mongolian Race.' But finding itself without sufficient funds for equipment of a separate school, the Board did not pursue the matter at this time. Its zeal in the matter was not abated by the vast amount of labor required to reestablish the schools after the great fire of April, 1906, and on October 11, 1906, it adopted and put into effect the following resolution:

"***Resolved***, That in accordance with Article X, Section 1662, of the School Law of California, principals are hereby directed to send all Chinese Japanese or Corean children to the Oriental public school, situated on the south side of Clay street, between Powell and Mason streets, on and after Monday, October 15, 1906.'

"The Consul of Japan in San Francisco at once addressed protests to the Board of Education, urging that the requirement would work great hardship upon Japanese children, by reason of distance and the difficulties of travel, street-car transportation at the time being very uncertain on

account of the derangements produced by the great conflagration of April, 1906. Protests and appeals were alike turned aside in California, but they received instant attention in Washington by President Roosevelt, who sent Honorable V. H. Metcalf, the Secretary of Commerce and Labor, to San Francisco to investigate on the ground.

"There seemed to be a possible solution of the school question by securing a judicial determination of the matter as a violation of treaty rights. Upon these points Secretary Metcalf reported to the President substantially as follows:

"1st.

There is no 'favored nation' clause in any treaty between the United States and Japan which clearly guarantees the right of education. The action of the San Francisco School Board is therefore not the denial of a treaty right.

"2nd.

Two points remain upon which the validity of the resolution of the School Board might be questioned, as follows:

"a. May the sovereign State of California delegate legislative rights to district school boards or other municipal or local bodies?

"b. Are the Japanese Mongolians, and as such covered by the state statute governing the establishment of schools?

"Suit upon these points is inadvisable for the reason that in case of a favorable decision, the next legislature would hasten to enact legislation especially singling out the Japanese for discrimination.

"In December, 1906, however, the United States District Attorney was summoned from San Francisco to Washington for conference with the President and Attorney-General, and upon

his return to San Francisco two suits were commenced. One was a petition for a writ of mandate in the Supreme Court of California, the other was a suit in equity in the United States Circuit Court for the Northern District of California. Neither suit was prosecuted, and both actions were subsequently dismissed.

"The influence of the Japanese Consul and of the leaders among the Japanese resident in San Francisco was strongly exerted toward allaying excitement and preventing any acts that might give ground for complaint. However, it was impossible to conceal the fact that the effort of the School Board toward segregation was a stinging blow to Japanese national pride.

"The San Francisco school question was suddenly lifted into national prominence by President Roosevelt, who included pointed criticism of the San Francisco authorities in his annual message to Congress, as follows:

"‘Not only must we treat all nations fairly, but we must treat with justice and good will all immigrants who come here under the law. ... Especially do we need to remember our duty to the stranger within our gates. ... I am prompted to say this by the attitude of hostility here and there assumed toward the Japanese in this country. ... It is most discreditable to us as a people and it may be fraught with the gravest consequences to the nation. ... Here and there a most unworthy feeling has manifested itself toward the Japanese—a feeling that has shown itself in shutting them out from the common schools in San Francisco, and in mutterings against them in one or two other places, because of their efficiency as workers. To shut them out from the public schools is a wicked absurdity, when there are no first-class colleges in the land, including the universities and colleges of California, which do not welcome Japanese students and on which Japanese students do not reflect credit.’ The president then specifically recommended to Congress the enactment of legislation for the

naturalization of Japanese and for the enlargement of the powers of the federal government for the better protection of resident aliens against infringement of treaty rights.

{540}

"The effect of the president's utterances was to raise new questions and to bring new and powerful influences to the support of the San Francisco authorities. In California the San Francisco School Board received at once the credit of heroic defense of the principle of state sovereignty. Expression of the same sentiment in Congress was immediate and direct.

"Early in 1907, President Roosevelt invited the San Francisco Board of Education to come to Washington. This invitation was accepted, and the Board, accompanied by the Mayor of San Francisco, journeyed across the continent. Several conferences were held, and after their return to San Francisco, public statements of results were made both by the Board of Education and by the Mayor. On March 13, 1907, the offending resolution of the previous October was repealed.

"The action of the San Francisco authorities aroused very general comment throughout the country. The actual facts in regard to the Japanese in the schools were not inquired into by the San Francisco press, nor in fact were they accurately known at the time even to the school authorities of the city. The exact facts were published by ***The Outlook*** on June 1, 1907, from accurate investigation on the ground. The Superintendent of Schools had given as the main reason for segregation, that 95 per cent. of the Japanese pupils were young men and 'we object to an adult Japanese sitting beside a twelve year old girl.' The facts were that on December 8, 1906, in all schools of primary and grammar grade there was an enrollment of 28,736 pupils. Of these there were 93 Japanese, nearly one-third of whom were born in the United States. There

were 28 girls and 65 boys. Of the 65 boys 34 were under 15 years of age, and of the remaining 31 only 2 were 20 years. 25 of the boys over 15 years were in the grammar grades, leaving but 6 to justify the objection of adults 'sitting beside children of tender years.' The conclusion of the **Outlook** inquiry was that there was nothing in the situation that could not have been met by simpler remedies than the attempted segregation, and that the underlying motive in the whole matter was a desire to win the political support of the labor unions.

"The great fire in San Francisco in 1906 drove the Japanese from their established quarters. Their attempts to gain new locations in districts previously occupied wholly by white residents tended to draw attention to them. For a time the policing of the city was inadequate, and cases of bodily violence toward Japanese were not infrequent. Anything like organized action took the form of boycotts directed against Japanese restaurants that sought white patronage and subsequently against the Japanese laundries.

"The biennial sessions of the legislature since 1905 have regularly furnished a large supply of anti-Japanese resolutions and bills, introduced for effect and without sufficient support for enactment. However, in 1909 legislation was attempted looking toward prohibiting Japanese from becoming owners of real property. It was only the strenuous protests of President Roosevelt actively supported by the governor of the state that prevented for this session the enactment of some such measure. The legislature finally contented itself with making an appropriation for a state census of Japanese.

"This census was intrusted to the state commissioner of labor, and is now (July, 1909) in progress. It may be regarded as a step toward an authoritative inquiry as to facts upon which later action may be based, if deemed necessary.

"The Japanese on the Pacific Coast uniformly exercise a most commendable self-restraint, and their officials take advantage of every opportunity to display a spirit of friendliness. This is illustrated by liberal contributions to the city's fund for the entertainment of the sailors of the Atlantic Fleet during its visit to San Francisco in May, 1908, and by an invitation extended by the Chambers of Commerce of the large cities of Japan in July, 1908, to similar bodies in the Pacific Coast states to visit Japan as guests of the country. This invitation was accepted by numerous commercial representatives of the cities from Los Angeles northward to Seattle."

***Frederick H. Clark,
Head of History Department,
Lowell High School, San Francisco.***

"If you provide a system of education which includes alien children you must not exclude these particular alien children."

Inasmuch as the Constitution and the laws of the United States made in pursuance thereof, and all treaties made under the authority of the United States, are declared to be the supreme law of the land, and that the judges in every State shall be bound thereby, anything in the constitution or laws of any State to the contrary notwithstanding, this prohibitory power was shown to be incontestable.

{541}

The common-sense ground of opinion and feeling on the whole subject in America could not be set forth more indisputably than it was by Mr. Roosevelt, after he had ceased to be President, when he wrote as a private citizen, in his editorial connection with ***The Outlook***, on the 8th of

May, 1909, this:

"The Japanese are a highly civilized people of extraordinary military, artistic, and industrial development; they are proud, warlike, and sensitive. I believe that our people have, what I personally certainly have, a profound and hearty admiration for them; an admiration for their great deeds and great qualities, an ungrudging respect for their national character. But this admiration and respect is accompanied by the firm conviction that it is not for the advantage of either people that emigrants from either country should settle in mass in the other country. The understanding between the two countries on this point should be on a basis of entire mutuality, and therefore on a basis which will preserve unimpaired the self-respect of each country, and permit each to continue to feel friendly good will for the other. Japan would certainly object to the incoming of masses of American farmers, laborers, and small traders; indeed, the Japanese would object to this at least as strongly as the men of the Pacific Coast and Rocky Mountain States object to the incoming in mass of Japanese workmen, agricultural laborers, and men engaged in small trades. The Japanese certainly object to Americans acquiring land in Japan at least as much as the Americans of the far Western States object to the Japanese acquiring land on our soil. The Americans who go to Japan and the Japanese who come to America should be of the same general class—that is, they should be travelers, students, teachers, scientific investigators, men engaged in international business, men sojourning in the land for pleasure or study. As long as the emigration from each side is limited to classes such as these, there will be no settlement in mass, and therefore no difficulty."

That the emigration from Japan has been thus closely limited was shown in September, 1909, by the issue of a statistical circular from the office of the Japanese Consul-General at San Francisco, dealing in tabulated form with the arrivals and

departures from Japan for the year 1908 and for the first six months of the year 1909. It shows that the number of the excess arrivals in Japan over the departures for 1908 was 1807, and for the first six months of the present year 737, making a total excess of arrivals in Japan over departures for the 18 months of 2544. The circular states that "no new labourers are now leaving Japan for American territory," and this may be taken as the official Japanese reply to the continued assertions of the California labour unions that large numbers of coolies are still reaching the country by way of the Canadian and Mexican frontiers.

RACE PROBLEMS:

Exclusion of Chinese.

The Law and its Administration.

The Chinese Resentment expressed in a Boycott.

President Roosevelt's Vain Appeal to Congress.

Opinion of Secretary Straus.

Resentful feeling aroused in China by the immigration and exclusion laws of the United States, in their special application to incoming Chinese and in the harshness of their administration, began to have expression at Shanghai in May, 1905, when resolutions were adopted at a meeting of the merchant guilds of that city which initiated an extensive boycotting of American goods and of everything connected with America. A report of the meeting and of its recommendations was sent to all parts of the Empire and elicited a quick and general response. The undertaking of the movement was to stop the buying of American goods; to socially ostracise tradesmen who continue to handle them, and to render no service to Americans in China, except for higher pay than is demanded from others. This boycotting attitude of large numbers in China was persisted in throughout the year, and not only made itself felt seriously in commercial circles, but impressed the American public with a proper sense of the indignities they were allowing to be imposed on a people who deserve their

respect. The President, in his Message to Congress at the opening of the session in December, dealt justly with the subject, as follows:

"The conditions in China are such that the entire Chinese coolie class, that is, the class of Chinese laborers, skilled and unskilled, legitimately come under the head of undesirable immigrants to this country, because of their numbers, the low wages for which they work, and their low standard of living. Not only is it to the interest of this country to keep them out, but the Chinese authorities do not desire that they should be admitted. At present their entrance is prohibited by laws amply adequate to accomplish this purpose. These laws have been, are being, and will be, thoroughly enforced. ... But in the effort to carry out the policy of excluding Chinese laborers, Chinese coolies, grave injustice and wrong have been done by this Nation to the people of China, and therefore ultimately to this Nation itself. Chinese students, business and professional men of all kinds—not only merchants, but bankers, doctors, manufacturers, professors, travelers, and the like—should be encouraged to come here and treated on precisely the same footing that we treat students, business men, travelers, and the like of other nations. Our law's and treaties should be framed, not so as to put these people in the excepted classes, but to state that we will admit all Chinese, except Chinese of the coolie class, Chinese skilled or unskilled laborers. There would not be the least danger that any such provision would result in any relaxation of the law about laborers. These will, under all conditions, be kept out absolutely. But it will be more easy to see that both justice and courtesy are shown, as they ought to be shown, to other Chinese, if the law or treaty is framed as above suggested. Examinations should be completed at the port of departure from China. For this purpose there should be provided a more adequate consular service in China than we now have. The appropriations, both for the offices of the consuls and for the office forces in the consulates, should be

increased.

{542}

"As a people we have talked much of the open door in China, and we expect, and quite rightly intend to insist upon, justice being shown us by the Chinese. But we can not expect to receive equity unless we do equity. We can not ask the Chinese to do to us what we are unwilling to do to them. They would have a perfect right to exclude our laboring men if our laboring men threatened to come into their country in such numbers as to jeopardize the well being of the Chinese population; and as, mutatis mutandis, these were the conditions with which Chinese immigration actually brought this people face to face, we had and have a perfect right, which the Chinese Government in no way contests, to act as we have acted in the matter of restricting coolie immigration. That this right exists for each country was explicitly acknowledged in the last treaty between the two countries. But we must treat the Chinese student, traveler, and business man in a spirit of the broadest justice and courtesy if we expect similar treatment to be accorded to our own people of similar rank who go to China."

***President's Message to Congress,
December 5, 1905.***

No effective impression on the moral sense or the rationality of Congress was made by the President's appeal, and the laws which are contemptuous of national treaties and indifferent to the national honor remain on the statute books unchanged. That others than the President in the Federal Administration felt the wrong and the shame of the law which it had to administer, was shown by an article from the pen of the Secretary of Commerce and Labor, published in the spring of 1908. The following are some passages from the article:

"It is not the policy of the Government with reference to Chinese immigration, but the manner in which it is, of necessity, carried out, by reason of the way in which the laws are framed, that causes constant friction and dissatisfaction. ... The attitude of the Chinese Government may be inferred from the fact that in 1904, after the convention of 1894 had been in force ten years, China availed herself of her reserved right and formally denounced the treaty, refusing longer to be a party to an arrangement which, as carried into effect, was offensive to her national pride. ...

"For proof of the feeling of the Chinese people it is only necessary to refer to the boycott of American goods, inaugurated by various trade guilds and business and commercial associations of the Empire during the summer of 1905. At that time China held first rank among Oriental countries as a consumer of American products. In that year, her total commerce amounted to \$497,000,000, of which \$329,000,000 were imports; \$57,000,000, or more than seventeen per cent., being supplied by the United States. The exports from the United States to China had grown to these proportions by rapid strides. They were less than \$3,000,000 in the seventies. They only reached \$7,500,000 in 1886, \$12,000,000 in 1897, \$15,000,000 in 1900, \$24,000,000 in 1902, \$57,000,000 in 1905. It was reasonable to believe that American trade would continue to progress in something like the same ratio, and a larger and larger share of the foreign trade of China accrue to the United States. Instead of that, the exports of the United States to China, according to our statistics, fell to \$44,000,000 in 1906, and to \$26,000,000 in 1907.

"It is not necessary to attribute the decline wholly to the boycott of 1905, but a drop in our exportations to that country of fifty per cent. in two years is sufficiently startling to challenge attention. But on higher grounds than those of mere commercial interest should the frame of the laws be changed. ...

"I would not suggest a change in the established policy of rigidly excluding Chinese laborers of every description, both skilled and unskilled. The policy has been and will continue to be as effectively enforced as circumstances will permit. But, at a time when this policy of exclusion has been so thoroughly applied that there remain in the United States only about 70,000 Chinese—less than one-tenth of one per cent, of our population—little danger need be apprehended from a full and fair reconsideration of the subject and a recasting of the laws upon a juster basis. ...

"By making admission the rule, and exclusion the exception, we could easily preserve the present policy in all its integrity, and even strengthen the real prohibitory features thereof, at the same time entirely removing a material cause of friction, dissatisfaction and unnecessary humiliation to the people of a friendly nation."

Oscar S. Straus
(Secretary of Commerce and Labor),
The Spirit and Letter of Exclusion
(*The North American Review*, April, 1908).

A much stronger expression was given to the shamed feeling of honorable Americans on this subject by the veteran diplomatist and former Secretary of State, Honorable John W. Foster, in an article written in 1906. The following is a passage from the article:

"I do not know how I can better illustrate the kind of protection, or want of protection, extended to the Chinese, as guaranteed by the Constitution, the treaties, and the solemn promises of the government of the United States, than by recalling a notorious case which occurred, not on the sand lots of California, not under the auspices of labor agitators, but in the enlightened city of Boston and under the conduct of

Federal officials.

"The following narrative is condensed from the newspapers of that city. At about half past seven o'clock on the evening of Sunday, October 11, 1902, a number of United States officials of Boston, New York, and other cities charged with the administration of the Chinese exclusion laws, assisted by a force of the local police, made a sudden and unexpected descent upon the Chinese quarter of Boston. The raid was timed with a refinement of cruelty which did greater credit to the shrewdness of the officials than to their humanity. It was on the day and at the hour when the Chinese of Boston and its vicinity were accustomed to congregate in the quarter named for the purpose of meeting friends and enjoying themselves after a week of steady and honest toil. The police and immigration officials fell upon their victims without giving a word of warning. The clubs, restaurants, other public places where Chinese congregated, and private houses were surrounded. Every avenue of escape was blocked. To those seized no warrant for arrest or other paper was read or shown.

"Every Chinese who did not at once produce his certificate of residence was taken in charge, and the unfortunate ones were rushed off to the Federal Building without further ceremony. There was no respect of persons with the officials; they treated merchants and laborers alike. In many cases no demand was made for certificates, the captives were dragged off to imprisonment, and in some instances the demand was not made till late at night or the next morning, when the certificates were in the possession of the victims at the time of their seizure.

{543}

"In the raid no mercy was shown by the government officials. The frightened Chinese who had sought to escape were dragged from their hiding-places, and stowed like cattle upon wagons

or other vehicles, to be conveyed to the designated place of detention. On one of these wagons or trucks from seventy to eighty persons were thrown, and soon after it moved it was overturned. A scene of indescribable confusion followed, in which the shrieks of those attempting to escape mingled with the groans of those who were injured. ...

"About two hundred and fifty Chinese were thus arrested and carried off to the Federal Building. Here they were crowded into two small rooms where only standing space could be had, from eight o'clock in the evening, all through the night, and many of them till late in the afternoon of the next day. There was no sleep for any of them that night, though some of them were so exhausted that they sank to the floor where they stood. Their captors seemed to think that they had to do with animals, not human beings. Some of them were released during the night, when relatives brought their certificates or merchants were identified. But the greater part were kept till the next day, when the publicity of the press brought friends, or relief through legal proceedings. ...

"So strong was the indignation of the respectable citizens of Boston, that a large public meeting was held in Faneuil Hall to denounce the action of the immigration officials and the police. ... It was announced by the immigration officials that their raid was organized under the belief that there were a number of Chinese in Boston and its vicinity unlawfully in the United States, and this method was adopted for discovering them. The official report of the chief officer soon after the event showed that two hundred and thirty-four Chinese were imprisoned, that one hundred and twenty-one were released without trial or requirement of bail, and that only five had so far been deported, but that he hoped that he might secure the conviction and deportation of fifty; as a matter of fact, however, the deportations fell much below that number."

J. W. Foster,

The Chinese Boycott
(Atlantic Monthly, January, 1906).

In the same article Mr. Foster recalled facts connected with the negotiation of the Treaty of 1880 which deepen the shame to the United States of what followed: "In communicating to the Secretary of State," he said, "the signature of the treaty of 1880, the American commissioners wrote: 'In conclusion, we deem it our duty to say to you that during the whole of this negotiation the representatives of the Chinese Government have met us in the fairest and most friendly spirit. They have been, in their personal intercourse, most courteous, and have given to all our communications, verbal as well as written, the promptest and most respectful consideration. After a free and able exposition of their own views, we are satisfied that in yielding to the request of the United States they have been actuated by a sincere friendship and an honorable confidence that the large powers recognized by them as belonging to the United States, and bearing directly upon the interests of their own people, will be exercised by our government with a wise discretion, in a spirit of reciprocal and sincere friendship, and with entire justice.'

"But even this treaty, which had been obtained from China so reluctantly, yet with the generous exhibition of friendship on her part just described, did not prove satisfactory to the increasing demands of the labor unions. Before ten years were passed, under the spur and excitement of the presidential campaign of 1888, and upon the hesitation of the Chinese government to make a further treaty modification, the Scott Act was passed by Congress, which was a deliberate violation of the treaty of 1880, and was so declared by the Supreme Court; but under our peculiar system it became the law of the land. Our government had thus flagrantly disregarded its solemn treaty obligations. Senator Sherman, then chairman of the Committee on Foreign Relations, stated in the Senate that we had furnished China a just cause for war."

-----RACE PROBLEMS: End-----

RACE-TRACK GAMBLING.

See (in this Volume)
GAMBLING.

RADIO-TELEGRAPHY.

See (in this Volume)
SCIENCE AND INVENTION: ELECTRICAL: TELEGRAPHY,
WIRELESS.

RADIUM, and Radio-activity.

See (in this Volume)
SCIENCE, RECENT: RADIUM;
See also
PHYSICAL.

RADOLIN, Prince de:
Arrangement with France for the Algeciras Conference.

See (in this Volume)
EUROPE: A. D. 1905-1906.

RAIGOSA, Don Genaro:
President of Second International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

-----RAILWAYS: Start-----

RAILWAYS

RAILWAYS: Abyssinia:
French Projects.

See (in this Volume)
ABYSSINIA: A. D. 1902.

RAILWAYS: Africa: A. D. 1909.
Progress of the Cape to Cairo Line.

A telegram from Broken Hill, Northern Rhodesia, November 10, 1909, announced that the Cape-to-Cairo Railroad had reached the Congo frontier on the 16th.

RAILWAYS: Argentina-Chile: A. D. 1909.
The Transandine Railway Tunnel.

The great work, of boring a tunnel through the chain of the Andes at an altitude of over 10,000 feet above sea level for the trains of the Transandine Railway was practically completed in the fall of 1909. "Early in April next the rails will be laid, and from then onward the journey from Buenos Ayres, on the eastern side of the South American continent, to Valparaiso, on the Pacific Coast, may be undertaken in comfort in a railway carriage all the year round. Up to the present time passengers from the east have had to leave the rail at Las Cuevas and proceed by a zigzag road over the mountains on mule-back or in coaches to Caracoles, the rail head on the Chilian side—a journey which occupies about two hours; but this route is only open during the summer months. In the winter, when the pass is closed by snow, travellers have to go round by sea. The route under the Andes will effect a saving of about twelve days. The work of boring the two-mile tunnel was begun four years ago and has presented exceptional difficulties."

RAILWAYS: Australia:

Government Ownership.

Difference of Gauge.

Each State having its own.

"Warfare against monopoly is easier in Australia than in some other countries for the reason that in Australia the close relation between monopoly and transportation is generally understood and is not an issue. Some few and for the most part small railroad projects, including mining and timber lines, are still in private hands. All the other railroads are publicly owned and publicly operated. So far the ownership is vested in the several states, each having its own system. In the good old conservative days before the Labor demon raised its head, there was much childish jealousy among the different governments. In the conservative view the destiny of Australia was not to be a nation but a handful of nice little colonies vying with one another in expressing loyalty to the monarchical idea and the established order. When these came to build railroads each colony established its own gauge and stuck thereto. A more preposterous notion never bewitched the human mind, but the truth is that a gauge of 4 feet 8½ inches in New South Wales actually seemed a reason (to the conservative intellect) for a gauge of 5 feet 3 inches in Victoria and a gauge of 3 feet 6 inches in Western Australia. The annoyance, delay, and expense resulting to through traffic make the thing seem like a section of Bedlam. Between Melbourne and Sydney, for instance, a line with an immense business and with otherwise excellent accommodations, you must change cars on the frontier and all the freight must be transferred. Eventually the federal Government is to take over and unify the systems of the different states. Considering the multiplicities of systems and gauges, the task that will then confront the federal Government will not be for a holiday."

Charles E. Russell,

The Uprising of the Many, chapter 27
(Doubleday, Page & Co., New York, 1907).

RAILWAYS: Canada: A. D. 1903-1909.

The Grand Trunk Pacific Railway.

See (in this Volume)

CANADA: A. D. 1903-1909.

RAILWAYS: Canada: A. D. 1904.

Establishment of the Board of Railway Commissioners
with large Regulative Powers.

In *Moody's Magazine* of January, 1906, the Honorable Robert Bickerdike, M. P., of Montreal, gave a favorable account of the operation of the Canadian Act of two years before which created a Board of Railway Commissioners, taking the place of the former Railway Committee of the Privy Council, and exercising large powers of control over rates, construction of road, and speed of trains. "No toll" (that is, freight rate), he said, "may be charged which unjustly discriminates between different localities. The board shall not approve any toll which for like goods or passengers, carried under substantially similar conditions in the same direction over the same line, is greater for a shorter than a longer distance, unless the board is satisfied that, owing to competition, it is expedient to do so. Where carriage is partly by rail and partly by water, and the tolls in a single sum, the board may require the company to declare, or may determine, what portion is charged in respect of carriage by rail, to prevent discrimination. Freight tariffs are governed by a classification which the board must approve, and the object is to have this classification uniform. Railways shall, when directed by the board, place any specified goods in any stated class. Tariffs shall be in such form and give such details as the board may prescribe. The maximum mileage tariff shall be filed with the board and be subject to its approval;

when approved, the company shall publish it in the **Canadian Gazette**, the official publication. As respects this act, the board is invested with the rights, privileges, and powers of a superior court. None, therefore, may oppose it."

RAILWAYS: Canada: A. D. 1906.

Government Ownership and Operation of a Railway Line.

See (in this Volume)

CANADA: A. D. 1906-1907.

RAILWAYS: Canada: A. D. 1908-1909.

Projected Railway from the Canadian Northwest to Hudson Bay.

In a speech at Niagara Falls, in September, 1908, the Canadian premier, Sir Wilfrid Laurier, announced positively that his government had undertaken the construction of a railway from the Canadian Northwest to Hudson Bay; that surveyors are in the field determining the route, and that plans for the construction of the road are being prepared. For a few weeks in the year this will give another outlet to the greatest wheat region of the continent for its harvests; and even a few weeks will afford important relief, no doubt, to the pressure of its need. Unfortunately, the passage from Hudson Bay to the ocean, through Hudson Strait, is sealed up with ice during much the greater part of the year. Quite recently there were reports of the return of a vessel from the strait which had found it blocked in July.

Notwithstanding the limit thus put on the usefulness of the Hudson Bay route, the Northwest is counting on immediate advantages from it. The **Manitoba Free Press** exclaims: "To bring uncounted millions of acres of wheat in Western Canada a thousand miles nearer to the market in Europe, and make a saving of many millions of dollars every year in transportation charges, thereby ensuring higher prices to the farmers of the Prairie Provinces—this is what the opening up

of the Hudson Bay outlet will achieve. It will mean a revolution in traffic routes and traffic rates. The immense amount of territory within the cost-saving reach of Hudson Bay, the New-World Mediterranean, will make this route one of the greatest trade arteries of the world. It will place the grain-growers of Western Canada in control of the markets of the world by making possible a great reduction in the cost of transportation. This saving will be brought about because the Hudson Bay route is by a very considerable distance the shortest route, and the saving is in the rail haul. ... The total cultivable area in Manitoba, Saskatchewan and Alberta is some 175,000,000 acres. Even estimating the as yet uncultivated area as being only one-half as productive as that which has already come under the plow, a tenfold increase of the present production is to be counted upon."

{545}

"Roughly speaking," says a magazine article on the subject, "Churchill [one of the proposed Hudson Bay terminals] is just 1000 miles from the grain areas of Hill's roads. New York is 2000 miles. Churchill is 1500 miles from Oregon. New York is nearly 3000. ... The harbor itself could not have been better if it had been made to order. It is a direct 550-mile plain, open deep-water sailing from the west end of the Straits,—no shoals, no reefs, deep enough for the deepest-draft keel that ever sailed the sea."

Tentative surveys of two routes from Winnipeg were undertaken in October, 1908, and a report of them made in the following spring. They were favorable to the project on either line. That to Fort Churchill would have 465 miles of length and its cost was estimated at \$11,608,000. The alternative line, to Fort Nelson, at the mouth of Nelson River, would be 397 miles long, and have an estimated cost of \$8,677,000; but harbor construction at Fort Nelson would cost heavily. The report, however, recommended the latter route. Moreover,

abundant water power is waiting development along the Nelson River, which might result in an economical electrification of the road. Furthermore, the report suggested possibilities of a canal along the river from Hudson Bay to Lake Winnipeg, and from the latter to Winnipeg city, through which ocean craft might ultimately reach the Manitoba metropolis.

In connection with this projected opening of a commercial route from America to Europe through Hudson Bay, a Danish writer has lately urged the Danish Government to bring Greenland into touch with it.

RAILWAYS: Canada: A. D. 1909.

Important Ruling by the Railway Commission, affecting American Railways.

In June, 1909, an important decision of the Canadian Railway Commission was announced, "in the case of the Dawson Board of Trade against the Yukon and White Pass Railway Company, an English Corporation, laying down that by the amendment of the Railway Act passed last session all railways, whether originating in the United States or not, are under the jurisdiction of the Canadian board. The point involved is the question of rates on the White Pass, as to which counsel asserted that if ordinary rates were ordered to prevail it would be impossible to pay dividends. The board takes time to consider the question of rates in view of the details involved, but orders both the American and Canadian sections of the line to file figures before the board. It is probable that the rates of all American railways crossing Canada will by this decision come under the jurisdiction of the board. This will affect the Vanderbilt lines, which cross the Niagara peninsula, also the Hill lines, which enter Canada from Washington, Oregon, and other States. Railway men regard the decision as the most important in the history of Canada, because it gives the Canadian Commission power to regulate rates on American railways entering Canada."

RAILWAYS: Central Africa: A. D. 1909.
Lines to Katanga.

In March, 1909, the *Temps*, of Paris, published information according to which the work of constructing the railway from the Upper Congo to the great Central African lakes was making such progress that communication with the Katanga mine fields would probably be established by the end of 1910. The British South Africa lines, also, are being pushed toward Katanga.

RAILWAYS: Chile-Bolivia: A. D. 1909.
The Arica-La Paz Railway.

According to a Press despatch from Santiago de Chile, April 5, 1909, a contract for the great railway to be made across the Andes from Arica, in Chile, to La Paz, in Bolivia, attaining an elevation of upwards of 12,000 ft. and having a length of a little over 300 miles, had just been given to an English firm. The actual money voted for the scheme was said to be £3,000,000.

RAILWAYS: China:
Extent of Railway Travel.
Unused Concessions.

See (in this Volume)
CHINA: A. D. 1904.

RAILWAYS: China: A. D. 1904-1909.
The Hankau-Sze-chuan Railway Loan.
American participation.

See (in this Volume)
CHINA: A. D. 1904-1909.

RAILWAYS: China: A. D. 1909.

The Fa-ku-menn Railway and the Antung-Mukden Railway
questions between China and Japan.

See (in this Volume)

CHINA: A. D. 1905-1909.

RAILWAYS: China: A. D. 1909.

The Chinese Eastern Railway.
New Russo-Chinese Agreement.
Municipalities on the Line.

See (in this Volume)

CHINA: A. D. 1909 (MAY).

RAILWAYS: China: A. D. 1909.

Opening of the Peking-Kalgan Line.
A purely Chinese undertaking.

The opening, October 2d, 1909, with grand ceremonies, of the Peking-Kalgan Railway, was an event of especial pride and satisfaction to the Chinese people. It has been, wrote a newspaper correspondent, "a purely Chinese undertaking, the chief engineer of which, Jeme Tienyow, a member of the Institute of Civil Engineers, and every employé are Chinese; but the rails and rolling stock are foreign. It has been paid for from the earnings of the Northern Railways, without foreign financial assistance.

"The line, the length of which is 122 miles, joins Peking with the important trade mart of Kalgan, piercing the Nankau Pass by four tunnels, the longest, under the Great Wall, being 3,580 ft. It taps extensive coalfields and is well and economically laid. Already the traffic is astonishing and will add to the wealth of the province and increase the earnings of the Northern Railways.

"The construction of the line has given training and experience to a body of young Chinese engineers, who will find ready employment in the future. The line will now be continued westwards through populous country to Kwei-hua-cheng and the Yellow River, a distance of 275 miles, the route for which was surveyed last year. This line will also be paid for from the earnings of the Northern Railways."

RAILWAYS: China: A. D. 1909-1910.

Proposal to neutralize Manchurian Railways and to internationally finance a Chinchow-Aigun Line.

See (in this Volume)

CHINA: A. D. 1909-1910.

RAILWAYS: England: A. D. 1907-1909.

Adopted System in Great Britain for pacific Settlement of Labor Disputes in the Railway Service.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1907-1909.

RAILWAYS: England: A. D. 1908.

No Passengers killed by Train Accidents.

The British public had the happiness of being informed that no passenger was killed by a train accident on the railways of Great Britain in 1908, and also that the number of passengers injured—283—was not only 251 less than in 1907 and 345 less than in 1906, but, like the number of killed, was less than any previously recorded.

{546}

RAILWAYS: France: A. D. 1908.

Government purchase of the Western Railway.

In June, 1908, the French Government secured legislation authorizing it to purchase the Western Railway of France, which adds 3100 miles to the previous 2500 miles of State-owned railways. The purchase is said to have been made with the expectation "that sufficient pressure will be brought on the other railway companies to make them adopt the methods of management applied by the State to its railways."

RAILWAYS: France: A. D. 1909.

The Pensioning of State Railway Employés.

See (in this Volume)

POVERTY AND UNEMPLOYMENT: FRANCE.

RAILWAYS: Mexico: A. D. 1906.

Nationalizing of the Mexican Railway System.

Opening of the Tehuantepec Railway.

"1906 was a year of railway consolidations in Mexico. In March last, the National Railway of Mexico bought the Hidalgo Railway, which starts from the capital, passes through the important mining camp of Pachuca, and will ultimately reach the port of Tuxpam on the Gulf of Mexico. But by far the most important operation of the year along these lines was announced by Finance Minister Limantour on December 14. The Minister, in an address to Congress, informed that body that the negotiations, which for some time past had been in progress, for the reorganization of the finances of the Mexican Central Railway, had culminated in a plan for the consolidation of that property with the Mexican National, and the incorporation of a new company, with headquarters in the City of Mexico, to own and operate the merged system. Moreover, the Minister informed the legislature that the Mexican government, which had owned a controlling interest in the Mexican National, would hold an absolute majority of the stock of the new corporation.

"The transaction is an important one, as by it the Mexican government gains unquestioned control of the transportation system of the Republic."

***F. R. Guernsey,
The Year in Mexico
(Atlantic Monthly, March, 1907).***

Early in November, 1906, President Diaz formally opened the Tehuantepec Railway. The event marks the completion of the plan first proposed by Cortez four hundred years ago, when he wrote to the king of Spain concerning the feasibility of a canal from the Atlantic to the Pacific by this route, though he little dreamt of a railway.

RAILWAYS: Mexico: A. D. 1909.

Extended Governmental Control of Railways.

"The most important step ever taken by the Mexican Government in connexion with transportation was completed on February 1, when the amalgamation of the National lines and the Mexican Central Railway became operative. With this achievement the Government secured control of 7,012 miles of railway, thus possessing a majority of the stock of the national lines and 70 per cent. of the stock of the Mexican Central. The combination includes, apart from the Mexican Central, the National, International and Interoceanic lines. The Government likewise controls the Vera Cruz and Pacific Railroad, with 265 miles, and the Tehuantepec National, with 206 miles."

***Correspondence London Times,
July 16, 1909.***

RAILWAYS: Mono-Rail System, The Brennan Gyroscopic.

See (in this Volume)
SCIENCE AND INVENTION: RAILWAYS.

RAILWAYS: Netherlands:

Laws against Railway Strikes.

See (in this Volume)

LABOR ORGANIZATION: NETHERLANDS: A. D. 1903.

RAILWAYS: New York: A. D. 1907.

The Public Service Commissions Act.

See (in this Volume)

NEW YORK STATE: A. D. 1906-1910; and

PUBLIC UTILITIES.

RAILWAYS: New Zealand: A. D. 1909.

No more building by the Government of Railways not likely to pay Interest on Cost.

A despatch from Wellington, New Zealand, to the English Press, October 18, 1909, reported that "the Premier has made an important announcement regarding his future railway construction policy. He said that the Government would not undertake the building of any more lines that were likely not to pay. If the people wanted such lines they would have to guarantee their earnings up to 3 per cent."

RAILWAYS: Nigeria: A. D. 1909.

Rapid development of the Railway System.

Early in 1909 Press despatches to London announced that "a junction had been effected between the rails proceeding northwards from Lagos and the rails proceeding southward from Jebba on the Niger River. This places the Niger River, at a point some 500 miles from its mouth, in direct communication by rail with the town of Lagos, the capital of Southern Nigeria, and fulfils the wishes of the inhabitants of Lagos that 'the iron horse should drink of the waters of the

Niger.'" "

"The completion of the southern branch of the Nigerian railway system," said a correspondent, "as far as Jebba on the Niger is an event of considerable significance in the history of British action in West Africa. The Anglo-French Agreement of 1898 secured us in the possession of what is undoubtedly the most interesting portion of West Africa; interesting above all from the character of its varied inhabitants—the agricultural Yoruba, the keen Hausa trader and manufacturer, the Fulani, by turn statesman and ruler or wandering herdsman. To this region—to many parts of it at least—Islam has brought its schools, its literature, and an effective system of administration."

RAILWAYS: Rhodesia:

Rapid Extension of Railways.

See (in this Volume)
RHODESIA.

RAILWAYS: Switzerland: A. D. 1905.

Completion of the Tunnel under the Simplon Pass.

The tunnel under the Simplon Pass, between Brigue, Switzerland, and Iselle, Italy, was finished February 24th, 1905, after seven years work and at a cost of \$14,000,000. It is twelve miles long,—two and three-quarters miles longer than the St. Gothard tunnel. It opens direct railway communication between Paris and Milan.

RAILWAYS: Switzerland: A. D. 1909.

Government Purchase of the St. Gothard Railway.

The St. Gothard Tunnel and Railway were built under an agreement (1879) with the Swiss Government under which the latter reserved the right of buying the St. Gothard within

thirty years, and the price arranged was twenty-five times the amount of the net profits of the line during the last ten years of working. The right was exercised in the spring of 1909, and thus the last of the principal Swiss lines passed into the possession of the Government. The St. Gothard Company at first demanded 215,800,000 francs, but eventually accepted 212,500,000 francs. The Confederation took over the debt of the company--117,090,000 francs (\$23,418,000) with 3½ per cent. interest, and paid six million francs for expenses of the issue of the company's loans.

{547}

RAILWAYS: Turkey: A. D. 1899-1909.

The Bagdad Railway.

In January, 1902, the Turkish Sultan signed a convention which provides a guarantee, to the extent of 12,000 francs per kilometre for the undertaking of the Bagdad Railway, to build which a concession had been obtained by a German syndicate in 1899.

See, in Volume VI. of this work,
TURKEY: A. D. 1899--NOVEMBER).

The new railway was to be an extension of the existing Anatolian Railway, starting from the terminus of the latter at Konieh and running, via Bagdad, to some point on the Persian Gulf, the selection of which was left for future arrangement. The line, with its branches, was to have a length of 2,500 kilometres or about 1550 miles.

A further convention respecting this project was signed in March, 1903, concerning which the following statement was made in the British Parliament on the 23d of that month by the Premier, Mr. Balfour: "A copy of the convention, concluded March 5, 1903, between the Turkish Government and the

Anatolian Railway Company is in our possession. It leaves the whole scheme of railway development through Asia Minor to the Persian Gulf entirely in the hands of a company under German control. To such a convention we have never been asked to assent, and we could not in any case be a party to it."

Mr. David Fraser, a young traveller of experience, was commissioned by the ***Times of India*** in 1907 to follow the proposed route of the Bagdad Railway and report on its prospects. He started from Constantinople, and traversed the completed portion of the line to where it breaks off suddenly some ten kilometres east of Eregli, "with its pair of rails," he wrote, "gauntly projecting from the permanent way and pointing in dumb amazement where the Taurus shares the horizon with the very skies." "They have now," said the ***London Times*** not long since, "been pointing thus for nearly five years, to the bewilderment of those who, not knowing the country, imagined, in 1904, that with Germany determined and Turkey desirous to push ahead, the Bagdad line would go forward with inevitable march towards its distant goal."

RAILWAYS: A. D. 1908.

Damascus to Mecca.

The Pilgrims' Road.

"The Damascus to Mecca Railway has many remarkable features which distinguish it from other lines. Its principal object is to provide a means for faithful Moslems to perform their pilgrimage to the holy places of Mecca and Medina with a greater degree of comfort than formerly. Its inception is due to the initiative of the present Sultan, and the enthusiasm created by its first announcement brought in subscriptions from the faithful in all parts of the Islamic world."

The length of the line from Damascus to Mecca is 1097 miles.

"The gauge of the line is the somewhat curious one of 1.05

meter (3 feet 5¼ inches), which was necessary, when the line was first commenced, to correspond with the gauge of the Beirut-Damascus line, over which the rolling stock had to be brought."

***Colonel F. R. Maunsell,
National Geographic Magazine,
February, 1909.***

The line was opened to Medina early in the autumn of 1908.

RAILWAYS: United States of America: A. D. 1870-1908.

Railway Rate Regulation.

Its slow Development.

"Granger" Legislation in the Middle West.

State Commissions.

Defiant Rebating.

Tardy Federal Legislation.

The Interstate Commerce Act, 1887, 1906.

President Roosevelt on the subject.

The creation of largely capitalized and therefore powerful corporations was first developed in a rapid and extensive way by the modern enterprise of railway building; and the railways became soon so essentially related to every kind of interest, personal or general, that they naturally gave rise to the earliest of the specially modern problems of public policy concerning corporations which required to be solved. For a long period society had no call to defend itself against monopolistic combinations among its railway corporations; because it was long before seriously competitive lines of rail could be built. Each served its own belt of country; but each company owning and managing a line held therefore, in itself, a monopoly of the transportation agency it had created, and could, in an unchecked management of that agency, either wrong its whole clientele by excessive rates of charge, or wrong one part of it by some favoritism of unequal rates. Those were the

original abuses of opportunity and power which provoked defensive measures of law. Naturally the earlier undertakings of defence in the United States were by State legislation, since nearly all charters of incorporation for business purposes have been derived from the States. Wherever the operations of business conducted under such charters extend over more than a single State, the constitutional power of Congress to "regulate commerce ... among the several States" gives it an undoubted right to take part in the regulation of them; but it was slow to exercise that right. The following abridgment of an excellent sketch of the slow development of railway-rate regulation gives the essential facts. It is quoted from extensively by kind permission of its authors and of The ***Boston Evening Transcript*** for which it was prepared:

"Perhaps the most remarkable fact in the whole history of interstate transportation is that, despite flagrant abuses, Federal regulation was held off until 1887. Within the States themselves railroad rates had been often subjected to severe regulation: yet even the public excitement which accompanied the 'granger' legislation between 1870 and 1880 did not result in Federal legislation. In several States, notably in the Middle West, during that epoch, detailed statutes were passed fixing maximum rates which by no present standard could be said to be anything but outrageous. In those times the Federal courts held that they would not consider legislation as confiscatory if it left to the railroad one cent of net profit above operating expenses. But even with this rule, now almost incredible, it was found in the next decade that much of the rate-fixing under the State statutes was unconstitutional.

{548}

Nor was the situation much ameliorated by the later establishment of State commissions, for many of them, according to the present standards, flagrantly abused their powers. ... After the first outburst more conservative counsels generally prevailed. The movement met much opposition in its

progress throughout the country, and although commissions were generally created in the East, they were given no final powers over rates. Then a reaction set in, due in part to the prostration of the Western roads. ... Much wise legislation dates from this period, and many State commissions acted in a moderate spirit. The history of railroad legislation in these seventeen years illustrated, however, the slow process by which a popular movement culminates in Federal legislation; and good law or bad, proper action or improper action, the legislation of the States supplied experience in view of which Congress could act wisely when, in 1887, Federal legislation became inevitable. That this legislation had become inevitable was due very largely to the continued abuse of their commercial power by the railroad managers. For several years public opinion as to railroad discrimination had become so well settled as to work a real change in the common law, yet the railroad officials persistently defied it. Rebating, which, as late as 1875, was at common law merely a doubtful practice, by 1885 had become generally accepted as an illegal business; but this change the railroads refused to recognize in any other way than to make their practices more secret. It was public indignation against long continued illegal discrimination and undue preference which brought down upon the railways the inter-State commerce legislation in 1887. The wonder is, in view of the railway practices, that it did not come sooner. But however well behaved the railways might have been, Federal regulation would have come inevitably long before the end of the nineteenth century, in accordance with the general current of public opinion that public services could no longer go without governmental regulation. Still the act itself as finally passed was really very conservative, when the nature of the crisis is considered. ... By the principal provisions of the Interstate Commerce act the railways were forbidden: (1) To charge unreasonable rates; (2) To discriminate between persons; (3) To give preference between localities; (4) To charge less for a long haul than for a shorter haul included within it 'under substantially

similar circumstances.’ These provisions were undoubtedly intended by the majority of those who framed the act as rather radical legislation, which should materially affect the practice of the railroads; but the conservative force of judicial decision soon modified the intended force of the act. From the outset the commission claimed that it not merely had power under the act to forbid any unreasonable rate upon complaint made, but that also, in giving relief, it might indicate to the railroad what should be the reasonable rate thenceforth. But within ten years the Supreme Court decided that the commission had no power to fix rates at all. This was a famous victory for the railroad bar, for without an authoritative statement by the commission of what rate it would regard as reasonable, even a railroad which yielded obedience to the decree of the commission without appeal to the courts, could make a slight reduction in the rate, and any dissatisfied shipper would be obliged to enter again into an expensive and dilatory litigation. In this way the railroads tired out objecting shippers; but in the process they stimulated a widespread demand for a power in the commission to fix rates similar to that given to many State commissions and to the corresponding body in Great Britain. The long and short haul clause provided that exceptions to it must be by special dispensation from the commission. ... But tucked away in the section was the vague phrase, ‘under substantially similar circumstances,’ which proved its destruction. At first the commission began to enforce the act according to its obvious reading, and to grant dispensations from its operation on petition of the railroad in proper cases. But the whole effort of the railway counsel was concentrated upon the courts, and it was finally held that wherever there was competition at the distant points, the conditions were dissimilar with those at the intervening points of any benefit from the clause. Water competition was first held an excuse for a lower rate for the longer haul. Then rail competition was recognized. Next potential competition over existing routes was held enough. But finally the courts refused to consider the mere

possibility of new routes. ... Commercial cities and towns were left at the mercy of the railways, as they had been before the act, and the long and short-haul clause became a dead letter. This was a cause of most bitter complaint; yet, singularly enough, when the amendments of 1906 were adopted, no attempt was made to amend this clause. ... Further action by the Federal Government was foreshadowed as before by a very considerable body of legislation throughout the United States, between 1900 and 1905. In many States there was an unfortunate recrudescence of the ill-advised 'granger' legislation, by the passing of statutes fixing maximum rates; but this time it was passenger rates which were chiefly attacked, while before it had been freight rates. The two-cent fare was a popular programme in this period, and it all but swept the country. Some legislatures, however, defied it, and some governors stood out against the legislatures. ... The legislation of this period had, however, another branch which was well-advised. It is the general characteristic of this legislation that it confers on the railroad commission the power, while setting aside unreasonable rates, of fixing a maximum rate. The giving of such power to the interstate Commission was the principal point in the programme for further Federal legislation. One other general power that has been given to State commissions in the legislation since 1900 is the authority to compel railroads to furnish proper facilities, together with power of supervision of management in other respects, which is adopted in the Federal legislation of 1906 in an experimental way. Those who would understand the Federal legislation in its latest form should study the most recent railroad regulation in Minnesota and Wisconsin, Indiana and New York. ... As finally adopted, the act of 1906 [known as the Hepburn Act] is in form of a series of amendments to the original act of 1887. ... The main object in most of the legislation was to strengthen still further the power of the commission over rates and rebates.

{549}

In regard to these, the amendments affected change chiefly along these two lines. (1) Power is given to the commission to

fix maximum rates in cases where, upon complaint, the rates fixed by the railroad were found to be excessive. This includes the power to fix joint through rates. (2) Rebating is forbidden under heavy penalties, civil and criminal, both to the railroad and to the shipper; and the cases in which a reduced rate can be given are enumerated."

***Joseph H. Beale and Bruce Wyman,
Two Years of the Railroad Rate Law
(Boston Evening Transcript, October 10, 1908).***

It was through no fault of the President that effective legislation to suppress secret rebates and other practices of favoritism to large shippers by the railways came so tardily from Congress, as appears above. In his first Message, of December, 1901, he began urging the needed amendments to the Interstate Commerce Act of 1887, saying:

"That law was largely an experiment. Experience has shown the wisdom of its purposes, but has also shown, possibly, that some of its requirements are wrong, certainly that the means devised for the enforcement of its provisions are defective. ... The act should be amended. The railway is a public servant. Its rates should be just to and open to all shippers alike. The Government should see to it that within its jurisdiction this is so and should provide a speedy, inexpensive, and effective remedy to that end. At the same time it must not be forgotten that our railways are the arteries through which the commercial life-blood of this Nation flows. Nothing could be more foolish than the enactment of legislation which would unnecessarily interfere with the development and operation of these commercial agencies. The subject is one of great importance and calls for the earnest attention of the Congress."

For five years after this reasonable and most just recommendation was addressed to Congress, the special

interests opposed to public interests in the matter were represented so controllingly in that body that the impotences of the law remained uncured. In the Presidential Message of 1904 a more imperative language on the subject was used. "It is necessary," said the Chief Magistrate, "to put a complete stop to all rebates. Whether the shipper or the railroad is to blame makes no difference; the rebate must be stopped, the abuses of the private car and private terminal-track and side-track systems must be stopped, and the legislation of the Fifty-eighth Congress which declares it to be unlawful for any person or corporation to offer, grant, give, solicit, accept, or receive any rebate, concession, or discrimination in respect of the transportation of any property in interstate or foreign commerce whereby such property shall by any device whatever be transported at a less rate than that named in the tariffs published by the earner must be enforced. ... The Government must in increasing degree supervise and regulate the workings of the railways engaged in interstate commerce; and such increased supervision is the only alternative to an increase of the present evils on the one hand or a still more radical policy on the other. In my judgment the most important legislative act now needed as regards the regulation of corporations is this act to confer on the Interstate Commerce Commission the power to revise rates and regulations, the revised rate to at once go into effect, and to stay in effect unless and until the court of review reverses it."

Still Congress did nothing in response to this demand, which was the demand of the American public, uttered by its chief and truest representative. Another year passed, and when the next annual communication of counsel from the national executive to the national legislature came forth, all other topics in it were overshadowed by this. The force of argument, admonition, and pleading in the Message was fairly overpowering, and it went to a newly chosen Congress in which the people had represented themselves with somewhat better effect. The result was the amending act of 1906.

In the energy of the President's advocacy of this legislation there was nothing of animosity to the railway corporations. His most impressive arguments, for example, were such as these: "I believe that on the whole our railroads have done well and not ill; but the railroad men who wish to do well should not be exposed to competition with those who have no such desire, and the only way to secure this end is to give to some government tribunal the power to see that justice is done by the unwilling exactly as it is gladly done by the willing. Moreover, if some Government body is given increased power the effect will be to furnish authoritative answer on behalf of the railroad whenever irrational clamor against it is raised, or whenever charges made against it are disproved. I ask this legislation not only in the interest of the public but in the interest of the honest railroad man and the honest shipper alike, for it is they who are chiefly jeopardized by the practices of their dishonest competitors."

RAILWAYS: A. D. 1890-1902.

Application of the Sherman Anti-Trust Law of 1890 to
Railway Combinations and Poolings of Rates.

The Trans-Missouri Freight Association Case.

Decision of the Supreme Court.

Remarks of the Industrial Commission.

In the period between 1870 and 1880 the widening of combination and organization in all fields of heavily capitalized industry began, especially in America, to attain proportions that could be dangerous to social interests in many ways, by its concentration of the power that money commands. Alarming possibilities of monopoly, of oppression to labor, of political corruption, of commercial tyranny exercised in many forms, were all involved. At the same time the processes working in this matter were wholly those of a natural evolution, and were shaping human industry, very plainly and surely, to perfected economic conditions and

results. Serious problems in government were thus pressed on public attention for the first time. How to realize the economic benefits which industrial organization on the large scale can produce, and which are unattainable without it, and be at the same time securely defended in all social and common interests against selfishly hostile uses of the power so engendered, became then a subject of anxious debate, and the satisfying answer to it has not yet been found.

{550}

Railway companies were now no longer alone, as corporations that challenge the exercise of public authority to control their performance of the public service for which they were chartered. The growth of mammoth organisms of business in other fields—such, for example, as the Standard Oil Company—had reached startling proportions, and the power of oppression in them was being displayed. Economists, jurists, and thoughtful legislators were giving earnest study to the problems they raised. The difficulty of the problem, in the United States more than in other countries, because of the divided jurisdictions in government under the federal system, is made plain by Mr. E. Parmelee Prentice, in the seventh chapter of his treatise on "The Federal Power over Carriers and Corporations." Before Congress attempted legislation for a general control of commercial combinations that were operative in the country at large, there was much searching for an adequate ground of constitutional power. In the first instance it was sought for, not in the authority to regulate commerce, but in the taxing power, or the right of government to protect itself from injury to the operation of its revenue laws. When this was given up there were efforts to frame an act "in restraint of competition in the production, manufacture or sale of goods 'that in due course of trade shall be transported from one State' to another." But, says Mr. Prentice, "a statute of this nature could be sustained only on the ground of an anticipating and continuing jurisdiction over

every article which, at any period in its history—from production commenced to consumption completed—had ever crossed, or would cross, State lines, and over every buyer and every seller of such article." This, too, was abandoned, as "an attempt to do the impossible." "The clause relating to diversity of citizenship was stricken out, and the bill once more rested upon the narrow power to regulate commerce." As it finally passed the two houses of Congress and was approved by the President, July 2d, 1890, this much discussed and much litigated piece of legislation, known as the Sherman Act, embodied its purpose in the first two sections, which read as follows:

"Section 1.

Every contract, combination in the form of trust or otherwise, or conspiracy, in restraint of trade or commerce among the several States, or with foreign nations, is hereby declared to be illegal. Every person who shall make any such contract or engage in any such combination or conspiracy, shall be deemed guilty of a misdemeanor, and, on conviction thereof, shall be punished by fine not exceeding five thousand dollars, or by imprisonment not exceeding one year, or by both said punishments, in the discretion of the court.

"Section 2.

Every person who shall monopolize, or attempt to monopolize, or combine or conspire with any other person or persons, to monopolize any part of the trade or commerce among the several States, or with foreign nations, shall be deemed guilty of a misdemeanor, and, on conviction thereof, shall be punished by fine not exceeding five thousand dollars, or by imprisonment not exceeding one year, or by both said punishments, in the discretion of the court."

"In a number of early cases," says the writer already quoted, "the act was applied to combinations of laborers to interrupt the free passage from State to State, the defendants in most

instances being railroad employees. At this point in the process of judicial construction the case of the Freight Association [United States v. Trans-Missouri Freight Association] presented to the Supreme Court the question whether the act applied to interstate carriers. Of the intention of Congress there is probably little doubt. Railroad transportation had been covered in 1887 by the Interstate Commerce Act. The Sherman Act of 1890 was intended to cover not transportation, but trade."

The suit of the United States against the Trans-Missouri Freight Association, the Atchison, Topeka and Santa Fe Railroad Co., and others, was brought for the dissolution of an association or combination alleged to be in restraint of trade, and in violation therefore of the Act of July 2, 1890, called the Sherman Anti-Trust Law. It was tried originally in November, 1892, before United States District Judge Riner, of the Kansas District, who ruled that the law did not apply, and dismissed the case. On appeal it was tried again with the same result the next year before Circuit Judge Sanborn and District Judges Shiras and Thayer. Judges Sanborn and Thayer affirmed the judgment of the District Court, while Judge Shiras dissented. The question then went for final adjudication to the Supreme Court, where it was argued on the 8th and 9th of December, 1896, and decided on the 22d of March, 1897. The opinion of the Court, delivered by Justice Peckham, reversed the judgment of the courts below, affirming that the Anti-Trust Act applies to railroads, and that it renders illegal all agreements which are in restraint of trade. The case was accordingly remanded to the Circuit Court "for further proceedings in conformity with this opinion." Justices White, Field, Gray, and Shiras dissented from the opinion of the majority.

"In the Final Report (transmitted to Congress in February, 1902), of the Industrial Commission, created by Act of Congress in 1898, this case of the Trans-Missouri Freight

Association, and the general status at that time of questions involved in it, are discussed at length, and partly as follows:

"It is of peculiar interest to note that this leading case was decided, not upon interpretation of the interstate commerce act itself, but under the provisions of the Sherman anti-trust law of 1890. ... Two questions were plainly before the court: First whether the Sherman anti-trust law applied to and covered common carriers by railroad; and secondly, whether the Trans-Missouri Freight Association violated any provision of that act by being an unreasonable restraint upon trade. The court itself acknowledged that it was doubtful whether Congress originally intended to include railroads under the prohibitory provisions of the anti-trust law. Counsel for the carriers showed, it would seem conclusively, that an amendment proposed by Mr. Bland to include railroads in the prohibition was rejected. The dissenting Supreme Court justices maintained that in the absence of a specific application of the anti-trust law to railroads, inasmuch as the anti-trust law was a general act, while the act to regulate commerce, antedating it by three years, was specific, the latter exempted the railroads, in any case, from the drastic provisions of the Sherman Act against combinations in restraint of trade. The court refused to consider other than mere questions of law, holding that if pooling were excepted it was the province of Congress to take appropriate action. ...

{551}

"It has very frequently been asserted that a primary cause of the notable tendency toward railroad consolidation since 1898 was the definitive prohibition of all varieties of traffic contracts or agreements by the Trans-Missouri Freight Association decision of 1897. This decision, as has already been indicated, was rendered upon the basis of the Sherman anti-trust law, without contemplation of the prohibitive

provision of the Act to regulate commerce of 1887. According to the opinion of many jurists, in fact, the latter act could not reasonably have been construed to prohibit many of the traffic agreements which have been customary between carriers. It has been urged with great force that coöperation among the railroads having been finally adjudged illegal, it became necessary to have recourse to a more drastic remedy, namely, consolidation in some of its various forms. ... The first difference to be noted between pooling and consolidation is that the latter is much more comprehensive in its scope. ... Agreements for the division of traffic constitute but the mere machinery by which a certain result is to be attained. ... Experience has abundantly shown that it is possible for railroads to maintain a large part of their identity, even reserving to themselves the power to make rates independently, under a pool, in exceptional cases, without thereby entirely nullifying the steadying influences of such traffic agreements. Consolidation, however, necessarily involves the unification of all interests as between railroads. ... In brief, pooling may still permit competition in respect to facilities. It may merely eliminate the ruinous phases of competition in rates, leaving still in force the healthful influences of reasonable rivalry. Consolidation proceeds to the uttermost to stifle competition of all kinds, whether in respect of rates or of facilities. ... A second point to be kept in mind as between the effects of consolidation and pooling lies in the fact that consolidation can never hope to accomplish the steadying influence upon rates which is claimed for railroad pools, until such time as every railroad within a given competitive territory shall have been bought up and absorbed. ... A division of territory into a number of specific groups, each absolutely monopolized by one interest, seems to be the only logical outcome of the consolidations which have been already accomplished. ...

"Pools and pooling still exist: although outwardly called gentlemen's agreement or disguised in some other way, it is

incontestable that in every case where consolidation has not proceeded to its uttermost limits, as in New England, traffic agreements exist. Railroad men are almost unanimous in the expression of their desire to have the inhibition removed. Representatives of commercial interests have, in the main, acceded to this opinion. As has been shown, the prohibition was not contemplated originally. It was included in the act only as a concession to certain opponents of pooling in the House of Representatives. ... On the other hand, it is universally recognized that certain dangers to the shipper are incident to such action. Railroad pools may, and certainly have, in some instances, operated either to raise rates, or to maintain them in face of a tendency to decline. As a consequence, the majority of these appeals for remedial legislation are accompanied by a demand that pooling, if once more permitted by law, shall be subject to governmental approval and supervision."

***Final Report of the Industrial Commission,
pages 338-348.***

RAILWAYS: A. D. 1901-1905.

The Northern Securities Case.

Another test of the Sherman Act.

The question of the Legality of Combination
between Corporations through a "Holding Company."

At about the time when the Industrial Commission was producing its final report, from which the above is taken, the courts of the United States were called on to give attention to another mode, distinctly different from either "pooling" agreements or corporate consolidation, by which an effective combination of railway lines could be secured. It came to the consideration of the courts in the case of the Northern Securities Company, which was famous in its day. Briefly related, the case arose as follows:

Although the Great Northern Railway and the Northern Pacific Railway traverse the same Northwestern section of the United States, from the Mississippi River and the western extremity of the Great Lakes to the Pacific Coast, at no great distance apart, there was not rivalry, but a community of interest between them, in 1901, when the corporations to which they belong became joint purchasers of the Chicago, Burlington and Quincy Railway system, in order to secure for each of them a direct connection with Chicago, under their joint control. This achievement of the powerful railway interests controlled by James J. Hill was followed by what is known in Wall Street as a "raid" on the stock of the Northern Pacific, by the Union Pacific interests, headed by E. H. Harriman, with the object of securing votes to elect the next board of directors in that corporation, and thus control the whole Northern transcontinental combination. The outcome of the fierce struggle was a compromise, from which issued the famous "holding company" known as the Northern Securities Company, incorporated on the 12th of November, 1901, under the accommodating laws of the State of New Jersey. The term "holding company" describes precisely the function which this corporation was created to perform. In the language of its charter, "the objects for which the corporation is formed are: To acquire by purchase, subscription or otherwise, and to hold as investment, any bonds or other securities or evidences of indebtedness. ... To purchase, hold, sell, assign, transfer, mortgage, pledge, or otherwise dispose of, any bonds or other securities or evidences of indebtedness created or issued by any other corporation. ... To purchase, hold ... etc., shares of capital stock of any other corporation ... and, while owner of such stock, to exercise all the rights, powers and privileges of ownership, including the right to vote thereon."

{552}

The specific plan of operation was set forth in a circular issued by the Northern Securities Company, on the 22d of

November, 1901, to holders of the stock of the Great Northern Railway Company, which said: "The Northern Securities Company, incorporated under the laws of the State of New Jersey, with an authorized capital stock of \$400,000,000, and with power to invest in and hold the securities of other companies, has commenced business, and has acquired from several large holders of stock of the Great Northern Railway Company a considerable amount of that stock. A uniform price has been paid of \$180 per share, in the fully paid stock of this company, at par. This company is ready to purchase additional shares of the same stock at the same price, payable in the same manner, and will accept offers made on that basis if made within the next sixty days."

"It seems," says Professor Meyer, in his "History of the Northern Securities Case," "that the capitalization of \$400,000,000 was fixed at that figure in order to cover approximately the combined capital stock of the Northern Pacific and Great Northern at an agreed price apparently based upon earning capacity. The par value of the outstanding capital stock of the Great Northern was \$123,880,400, and that of the Northern Pacific amounted to \$155,000,000. The Northern Securities Company purchased about seventy-six per cent. of the former and ninety-six per cent. of the latter, on the basis of \$115 per share of \$100 of Northern Pacific and \$180 per share of \$100 of the Great Northern."

From the side of the railway interests concerned, this holding together of the stocks of the two corporations which owned between them the connecting Burlington line to Chicago was a necessary business transaction. Their view of it was stated subsequently by Mr. Hill, in testimony given during proceedings which tested the legality of the holding company, when he said: "With the Northern Pacific as a half-owner in the shares of the Burlington and responsibility for one-half of the purchase price of these shares, the transfers of the shares of the Northern Pacific or the control of the Northern

Pacific to an interest that was adverse or an interest that had greater investments in other directions, the control being in the hands of companies whose interests would be injured by the growth and development of this country would, of course, put the Great Northern in a position where it would be almost helpless, because we would be, as it were, fenced out of the territory south which produces the tonnage we want to take west and which consumes the tonnage we want to bring east, and the Great Northern would be in a position where it would have to make a hard fight—either survive or perish, or else sell out to the other interests. The latter would be the most business-like proceeding."

On the other hand, from the standpoint of public interests, the combination looked dangerous to the Northwestern States, as being a suppression of competition and a creation of monopoly in railway transportation, and it was quickly announced that the Governor of Minnesota had determined to invite the Governors of States affected by the transaction to a conference, for the purpose of considering "the best methods of fighting the Northern Securities Company's propositions in the courts and by new legislation, if necessary." The result of the conference was a suit undertaken by the State of Minnesota, at first in the Supreme Court of the United States, where it was found to be impracticable, but finally begun in the United States Circuit Court. This State action was soon followed by proceedings taken by the Federal Government. Attorney-General Knox was asked by the President for an opinion as to the legality of the procedure involved in the formation of the Northern Securities Company, and replied that, in his judgment it violated the provisions of the Sherman Act of 1890. The President then "directed that suitable action should be taken to have the question judicially determined." Suit was begun accordingly on the 10th of March, 1902, by the United States, in the United States Circuit Court at St. Paul, against the three companies, —Northern Securities, Great Northern, and Northern Pacific.

Testimony was taken in St. Paul and New York, and the case was argued in March, 1903, at St. Louis, before a special trial court, composed of four circuit judges. The decision rendered by this court, the four judges concurring, declared the transaction illegal, and enjoined the Northern Securities Company from performing the acts that it was intended to perform. This decision was contradicted, however, by one given at about the same time in the suit of the State of Minnesota, which had its trial in the United States Circuit Court for the District of Minnesota. There the legality of the formation of the Northern Securities Company was affirmed.

Appeals from both decisions were taken to the Supreme Court, and that of the special trial court, in the suit of the Federal Government, which declared the procedure involved in the formation of the Northern Securities Company to be in violation of the Sherman Act of 1890, was fully sustained by a majority of the Court, in March, 1904. In the opinion of the majority of the justices, "if Congress has not, by the words used in the Act, described this and like cases, it would, we apprehend, be impossible to find words that would describe them."

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

The Court below was authorized accordingly to execute its decree against the Securities Company. A little later the Supreme Court decided in the Minnesota State suit that it had no jurisdiction, and sent the case back, to be remanded to the State court from which it had been originally removed. With this case nothing further was done.

In connection with the undoing of the Northern Securities Company's operations, to reconvey the property for which it had issued its stock, fresh litigation arose, over questions

that touched the construction to be put on the court's decree. This, too, went up to the Supreme Court of the United States, and was decided there in March, 1905; but it has no important bearing on the questions involved in the original case.

{553}

In the final chapter of his history of the case, Professor Meyer has this to say of it: "The chief interest of the Northern Securities case lies in the magnitude of the interests involved and in the variety of the economic and legal problems which were incidentally drawn into the controversy. From the point of view of railway organization the case presents little of consequence, except that railway corporate organization, in the process of metamorphosis or evolution, must, avoid the technicality of the particular type of holding company which the Northern Securities Company represented. From the point of view of railway regulation and the relations between the general public interests and private railway management, the case has no significance whatsoever, in spite of the fact that action against the Securities Company arose out of alleged injurious consequences to the public. It was assumed that competition had been stifled, without first asking the question whether competition had actually existed; and whether, if competition could be perpetuated, the public would profit by it."

***Balthazer Henry Meyer,
A History of the Northern Securities Case
(Bulletin of the University of Wisconsin, Number 142).***

RAILWAYS: A. D. 1901-1909.

The Harriman System.

Its Creation.

Its Magnitude.

The Rapid Rise of the late E. H. Harriman to Financial Power.

On the death of the late Edward H. Harriman, which occurred on the 9th of September, 1909, it was said that he was the absolute dictator of 75,000 miles of railroad in the United States—about one-third of the country's total mileage of railways—besides being a leading director in four ocean steamship lines, two trust companies, and three banks. Some time previously the Interstate Commerce Commission, in the report of its investigation of the Union Pacific Railroad management, said of him: "Mr. Harriman may journey by steamship from New York to New Orleans, thence by rail to San Francisco, across the Pacific Ocean to China, and, returning by another route to the United States, may go to Ogden by any one of three rail lines, and thence to Kansas City or Omaha, without leaving the deck or platform of a carrier which he controls, and without duplicating any part of his journey."

In the same report, referring to one of the most questionable of Harriman's financial operations, the Commission remarked that it was "rich in illustrations of various methods of indefensible financing," but added that it was no part of the Harriman policy to permit the properties under the Union Pacific control to degenerate. "As railroads," it was said, "they are better properties to-day, with lower grades, straighter tracks, and more ample equipment than they were when they came under that control. Large sums have been generously expended in the carrying on of engineering works and betterments which make for the improvement of the service and the permanent value of the property."

On the occasion of Mr. Harriman's death, the New York ***Evening Post***, reviewing his career, said of him that "his worst enemies are forced to admit that as a railroad executive he had no peer. What he found on taking charge of the Union Pacific was two dirt ballasted streaks of rust. The stations along the mountain grades were tumbled-down shacks, and most of the equipment was fit only for the scrap pile. Moreover, there was no organization. From top to bottom of the

staff the men had lost heart. In 1898 the Union Pacific was suffering from bankruptcy, brought on by years of political and financial intrigue. But when Harriman got his grip on the property he said to his associates: 'We will rebuild it and do it right away.'

Harriman's plans called for hundreds of millions of dollars for new rails, lower grades, and modern cars, locomotives, and terminals. After a struggle the Union Pacific directors came around to his way of thinking."

"It is necessary to remember," said the *Post*, in another article, "in summing up the Wall Street side of Mr. Harriman's history, that fifteen years ago he was hardly known, even in railway circles; that ten years ago, his name would have conveyed no meaning or association to the general public; that even at the inception of the celebrated Northern Pacific fight of 1901 [see above, under date of 1901-1905], in which he was actually a chief protagonist, Wall Street mentioned his name only incidentally in connection with it. The fight, as the Stock Exchange and the newspapers then saw it, was waged between the 'Standard Oil interest,' and the 'Morgan interest,' and the Union Pacific's chairman cut little individual figure in the public view."

RAILWAYS: A. D. 1903 (February).

Act of Congress to Further Regulate Commerce with Foreign Nations and among the States, known commonly as "the Elkins Law."

The following are the essential provisions of the Act, approved February 19, 1903, which is commonly referred to as the Elkins Anti-Rebate Law:

"The willful failure upon the part of any carrier subject to said Acts to file and publish the tariffs or rates and charges as required by said Acts or strictly to observe such tariffs

until changed according to law, shall be a misdemeanor, and upon conviction thereof the corporation offending shall be subject to a fine not less than one thousand dollars nor more than twenty thousand dollars for each offense; and it shall be unlawful for any person, persons, or corporation to offer, grant, or give or to solicit, accept, or receive any rebate, concession, or discrimination in respect of the transportation of any property in interstate or foreign commerce by any common carrier subject to said Act to regulate commerce and the Acts amendatory thereto whereby any such property shall by any device whatever be transported at a less rate than that named in the tariffs published and filed by such carrier, as is required by said Act to regulate commerce and the Acts amendatory thereto, or whereby any other advantage is given or discrimination is practiced. Every person or corporation who shall offer, grant, or give or solicit, accept or receive any such rebates, concession, or discrimination shall be deemed guilty of a misdemeanor, and on conviction thereof shall be punished by a fine of not less than one thousand dollars nor more than twenty thousand dollars. In all convictions occurring after the passage of this Act for offences under said Acts to regulate commerce, whether committed before or after the passage of this Act, or for offenses under this section, no penalty shall be imposed on the convicted party other than the fine prescribed by law, imprisonment wherever now prescribed as part of the penalty being hereby abolished. Every violation of this section shall be prosecuted in any court of the United States having jurisdiction of crimes within the district in which such violation was committed or through which the transportation may have been conducted; and whenever the offense is begun in one jurisdiction and completed in another it may be dealt with, inquired of, tried, determined, and punished in either jurisdiction in the same manner as if the offense had been actually and wholly committed therein.

"In construing and enforcing the provisions of this section the act, omission, or failure of any officer, agent, or other person acting for or employed by any common carrier acting within the scope of his employment shall in every case be also deemed to be the act, omission, or failure of such carrier as well as that of the person. Whenever any carrier files with the Interstate Commerce Commission or publishes a particular rate under the provisions of the Act to regulate commerce or Acts amendatory thereto, or participates in any rates so filed or published, that rate as against such carrier, its officers or agents in any prosecution begun under this Act shall be conclusively deemed to be the legal rate, and any departure from such rate, or any offer to depart therefrom, shall be deemed to be an offense under this section of this Act."

***Statutes at Large of the United States,
Fifty-seventh Congress, Session II, chapter 708.***

In comment on the above Act, Professor Ripley wrote, sometime after its passage:

"Two years ago, at the instance of the railways, which were desirous of stopping large leakages of revenue due to rate cutting, Congress enacted the so-called Elkins law. This was distinctly a railway measure. Hence the ease and quiet of its passage. It roused none of the corporate watch dogs of the Senate, ostensibly guardians of the public welfare. Nor was it a compromise. There was no need of compromise. Both railways and shippers were agreed in the wish to eliminate rebates. Section 3 of this law of 1903 recites 'that whenever the Interstate Commerce Commission shall have reasonable ground for belief that any common carrier is engaged in the carriage of passenger or freight traffic between given points at less than the published rates on file, ***or is committing any discriminations forbidden by law***' (our italics), it may petition any circuit judge for the issuance of an injunction

summarily prohibiting the practice. Such a remedy would seem to be prompt, efficient, and adequate. It is the basis of the universal railway testimony that no further legislation on the subject is needed, but that the Interstate Commerce Commission should quit talking and get down to business. ...

"That the Elkins law adds nothing to the original statute of 1887 is indisputable. It deals with means, not ends. It provides motive power, but not intelligent direction, for the wheels of justice. The law remains absolutely unchanged in its definition of rights and wrongs."

W. Z. Ripley,
President Roosevelt's Railway Policy
(Atlantic Monthly, September, 1905).

RAILWAYS: A. D. 1905.
International Railway Congress.

The International Railway Congress had its meeting of 1905 at Washington, on the invitation of the American Railroad Association. Between three and four hundred American railroad men were in attendance during the Congress, which lasted from May 4 to May 13. The delegates from overseas numbered three hundred and twenty, and included representatives from every country in the world. Germany, for the first time, was adequately represented in the Congress; while at no previous Congress were there so many delegates from Great Britain and from British colonies.

RAILWAYS: A. D. 1906.
Reconstruction of the Interstate Commerce Commission.

See (in this Volume)
INTERSTATE COMMERCE COMMISSION.

RAILWAYS: A. D. 1906-1909.

Decision of the Supreme Court of the United States on the Constitutionality of the "Commodities Clause" of the Hepburn Act.

The Railroad Monopoly of the Anthracite Coal Trade.

The Act of 1906 (known commonly as the Hepburn Act) which amended the Interstate Commerce Act of 1887 (see above, under date of 1870-1908), contains an important provision which was specially intended to dissolve the monopolistic combination by which a group of railroads operating in Pennsylvania have established control of the mining and marketing, as well as the transportation of anthracite coal. This was inserted in the Act on motion of Senator Elkins and is sometimes referred to as the "Elkins Clause," sometimes as the "Commodities Clause" of the Railway Rebate Act. This clause declared it to be unlawful "for any railroad company to transport from any State to any other State or to any foreign country any article or commodity other than timber manufactured, mined, or produced by it, or under its authority, or which it may own in whole or in part, or in which it may have any interest, direct or indirect, except such articles or commodities as may be necessary and intended for its use in the conduct of its business as a common carrier."

Since 1874 the Constitution of Pennsylvania had declared that "no incorporated company doing the business of a common carrier shall, directly or indirectly, prosecute or engage in mining or manufacturing articles for transportation over its works; nor shall such company directly or indirectly engage in any other business than that of common carrier, or hold or acquire lands, freehold or leasehold, directly or indirectly, except such as shall be necessary to carry on its business." But this constitutional prohibition had not sufficed to restrain the owners of the railways which tap the anthracite coal district from acquiring practical ownership of so large a part of its mines as to be able, by combinations and understandings among their managers, to monopolize the market

of that most important commodity. It was thought that the power vested in the General Government to regulate the commerce in coal between Pennsylvania and other States might be brought into exercise against this anthracite monopoly with more effect.

On the 1st of May, 1908, the "commodities clause" of the Hepburn Act became operative, and soon thereafter a suit was brought in the United States Circuit Court for the Eastern District of Pennsylvania, to test its constitutionality. In this trial of the question the Government met defeat. Two of the three Judges of the Court, namely Gray and Dallas, filed opinions against the constitutionality of the enactment, their colleague, Judge Buffington, dissenting. The case went then on appeal to the Supreme Court, and there, by a judgment so nearly unanimous that Judge Harlan alone dissented on a single point, the decision of the Circuit Court was reversed and the constitutionality of the law upheld.

{555}

The following summary of its opinion was given out by the Supreme Court at the time of the announcement, May 3, 1909:

"(1.) The claim of the government that the provision contained in the Hepburn act, approved June 29, 1906, commonly called the Commodities Clause, prohibits a railway company from moving commodities in interstate commerce because the company has manufactured, mined, or produced them, or owned them in whole or in part, or has had an interest direct or indirect in them, wholly irrespective of the relation or connection of the carrier with the commodities at the time of transportation, is decided to be untenable. It is also decided that the provision of the commodities clause relating to interest, direct or indirect, does not embrace an interest which a carrier may have in a producing corporation as the result of the ownership by the carrier of stock in such corporation irrespective of

the amount of stock which the carrier may own in such corporation, provided the corporation has been organized in good faith.

"(2.) Rejecting the construction placed by the government upon the commodities clause, it is decided that that clause, when all its provisions are harmoniously construed, has solely for its object to prevent carriers engaged in interstate commerce from being associated in interest at the time of transportation with the commodities transported, and therefore the commodities clause only prohibits railroad companies engaged in interstate commerce from transporting in such commerce commodities under the following circumstances and conditions:

"(a) When the commodity has been manufactured, mined, or produced by a railway company, or under its authority, and at the time of transportation the railway company has not in good faith before the act of transportation parted with its interest in such commodity;

"(b) When the railway company owns the commodity to be transported in whole or in part;

"(c) When the railway company at the time of transportation has an interest direct or indirect in a legal sense in the commodity, which last prohibition does not apply to commodities manufactured, mined, produced, owned, etc., by a corporation because a railway company is a stockholder in such corporation.

"Such ownership of stock in a producing company by a railway company does not cause it as the owner of the stock to have a legal interest in the commodity manufactured, etc., by the producing corporation.

"(3.) As thus construed the commodities clause is a regulation

of commerce within the power of Congress to enact. The contentions elaborately argued for the railroad companies that the clause, if applied to preexisting rights, will operate to take property of railroad companies and therefore violate the due process clause of the Fifth Amendment, were all based upon the assumption that the clause prohibited and restricted in accordance with the construction which the government gave that clause and for the purpose of enforcing which prohibitions these suits were brought.

"As the construction which the government placed upon the act and seeks to enforce is now held to be unsound, and as none of the contentions relied upon are applicable to the act as now construed, because under such construction the act merely enforces a regulation of commerce by which carriers are compelled to dissociate themselves from the products which they carry and does not prohibit where the carrier is not associated with the commodity carried, it follows that the contentions on the subject of the Fifth Amendment are without merit.

"(4.) The exemption as to timber, etc., contained in the clause is not repugnant to the Constitution.

"(5.) The provision as to penalties is separable from the other provisions of the act. As no recovery of penalties was prayed, no issue concerning them is here presented. It will be time enough to consider whether the right to recover penalties exists when an attempt to collect penalties is made.

"(6.) As the construction now given the act differs so widely from the construction which the government gave to the act, and which it was the purpose of these suits to enforce, it is held that it is not necessary, in reversing and remanding, to direct the character of decrees which shall be entered, but simply to reverse and remand the case with instructions to enforce and apply the statute as it is now construed.

"(7.) As the Delaware and Hudson Company is engaged as a common carrier by rail in the transportation of coal in the channels of interstate commerce, it is a railroad company within the purview of the commodities clause, and is subject to the provisions of that clause as they are now construed."

Six railway companies, namely, the Delaware and Hudson, the Erie, the Central of New Jersey, the Lackawanna, the Pennsylvania and the Lehigh Valley, were involved in the test suit on which this decision was given; but the ruling will affect all roads engaged in coal mining. Justice Harlan dissented from that part of the decision which relates to the ownership of stock in a producing company; otherwise the opinion, announced by Justice White, was the opinion of the entire Bench.

By ruling that "ownership of stock in a producing company by a railway company does not cause it as the owner of the stock to have a legal interest in the commodity manufactured, etc., by the producing company," the court appears to have made further legislation necessary, if the companies are to be barred from controlling the production and marketing of the coal through subsidiary corporations.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.:
UNITED STATES: A. D. 1907-1909.

RAILWAYS: A. D. 1907.

Regulative Legislation in the States.

"Never in the history of railroad legislation have our transportation systems run counter to a campaign so comprehensive, wide-spread, and disturbing as the general trend of 'regulation' in almost every State Legislature in session during 1907. It seems as if a legislative tempest

against the railroads had been unloosed simultaneously in more than thirty States upon a given signal. The welcome accorded it by our lawmakers is inexplicable, unless we are prepared to admit that our Government, as has been charged frequently, is one of impulse. On this hypothesis it is readily understood.

{556}

"Thirty-five States, in all, attempted to enact laws reducing freight or passenger rates, establishing railroad commissions, increasing the powers of existing commissions, regulating car service, demurrage, safety appliances, block signals, free passes, capitalization, liability for accidents to employees, hours of labor, blacklisting, strikes, etc. ... Uniformity was sought without discrimination or foresight. Railroads in densely populated districts and those in sparsely settled rural localities were given alike a two-cent rate. Worse than this: roads of different earning power in the same State were assigned a level rate. The prosperous and well-established road and the struggling pioneer were bracketed,—to sink or swim.

"But all of their work was not wasted. Real constructive legislation was enacted in many States in regard to corporate control, safety appliances, block signals, working hours, rights of employees, railroad mergers, valuation, capitalization, publication of rate schedules, etc., while in the States of South Carolina, South Dakota, Tennessee, and Wisconsin the rate question was given fair and temperate consideration. ...

"An analysis of the general results shows that passenger fares were either actually reduced or affected in twenty-one States: Alabama, Arkansas, Georgia, Indiana, Illinois, Iowa, Kansas, Maryland, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Carolina, North Dakota, Oklahoma, Pennsylvania, South Dakota, Virginia, West Virginia, and

Wisconsin. Two-cent rates now prevail in Arkansas, Indiana, Illinois, Minnesota, Missouri, Nebraska, Pennsylvania, and Wisconsin; and in Ohio, since 1906; two-and-one-half-cent rates in Alabama and North Dakota. North Carolina has established a two-and one-quarter-cent rate; West Virginia, a two-cent rate for railroads over fifty miles in length; Iowa, a sliding scale of from two to three cents per mile; Michigan, a two, three, and four cent rate; Kansas, Maryland, and Mississippi, two-cent rates for mileage books; the railroad commissions of Georgia and South Dakota have been authorized to establish a two-cent and a two-and-one-half-cent rate, respectively; and Oklahoma specifies in its new constitution a maximum charge of two cents for passenger fare. Virginia's Corporation Commission has adopted a two-cent rate for trunk lines, a three-cent rate for minor roads and a three-and-one-half-cent rate on one or two lines.

"Freight charges were lowered in many States. The Commodity Freight Rate law of Minnesota is probably the most scientific and equitable, and is being used by many Western roads as a basis. Commissions in other States have adopted it as a model.

"Laws prohibiting free passes were enacted in Alabama, Indiana, Kansas, Maine, Minnesota, Nebraska, Nevada, New Hampshire, New York, Oklahoma, Oregon, South Dakota, and Texas.

"Eleven States created railroad commissions: Colorado, Indiana, Michigan, Montana, Nevada, New Jersey, New York, Oklahoma, Oregon, Pennsylvania, and Vermont. Sixteen others gave increased power to existing commissions, apart from rate regulation: Alabama, Arkansas, Florida, Illinois, Iowa, Kansas, Minnesota, Missouri, Nebraska, New Hampshire, North Carolina, South Carolina, South Dakota, Texas, Washington, and Wisconsin."

Robert Emmett Ireton,

*The Legislatures and the Railways
(Review of Reviews, August, 1907).*

RAILWAYS: A. D. 1907.

Limitation of Working Hours for Trainmen.

An Act of Congress passed in January, 1907, prohibits railways engaged in interstate and foreign commerce from requiring or permitting those of their employés who have to do with the movement of trains to work more than sixteen hours consecutively, or more than an aggregate of sixteen in each twenty-four hours, and requires that when an employé shall have worked for sixteen hours there shall follow a period of rest of not less than ten hours before he shall resume his duties. Certain exceptions are made to provide for accidents, the failure of trains to make their regular schedules, connections, etc. Violation of the act is declared to be a misdemeanor punishable by a fine of from \$100 to \$1,000, and the Interstate Commerce Commission is charged with the duty of enforcing the law.

RAILWAYS: A. D. 1907.

Strike on roads west of Chicago averted
by Federal Intermediation.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1907 (APRIL).

RAILWAYS: A. D. 1907-1908.

Limitation of State Authority in matters
of Interstate Commerce.

Serious collisions between Federal and State authority which occurred in 1907, in the States of Alabama, North Carolina, and Minnesota, on questions relating to interstate railways and their commerce, were cleared by important decisions of the

Supreme Court of the United States, rendered in the spring of 1908. The States in question had enacted laws which had the effect of intimidating railway companies and their agents from appealing to Federal courts, by the severity of the penalties they imposed. Suits undertaken in consequence against the State officials acting under these laws raised the question which was carried to the Federal Supreme Court. The bearing of the judgment rendered by that Court in the Minnesota case, Justice Harlan alone dissenting, is indicated by two passages from it, as follows:

"The provisions of the acts relating to the enforcement of the rates, either for freight or passengers, by imposing such enormous fines and possible imprisonment as a result of an unsuccessful effort to test the validity of the laws themselves, are unconstitutional on their face, without regard to the question of the insufficiency of those rates."

"If the act which the State Attorney-General seeks to enforce be a violation of the Federal Constitution, the officer in proceeding under such enactment comes into conflict with the superior authority of that Constitution, and he is in that case stripped of his official or representative character and is subjected in his person to the consequences of his individual conduct. The State has no power to impart to him any immunity from responsibility to the supreme authority of the United States."

{557}

RAILWAYS: A. D. 1908.

Decision in Armour Packing Company Case.

A decision by the United States Supreme Court in the case of the United States vs. the Armour Packing Company covered cases in which identical proceedings were pending against three other packing companies and the Chicago, Burlington and Quincy

Railroad Company. The packing company had contracted with the railway company for a rate from the Mississippi to New York, to continue for seven months, soon after which the railway company filed, published, and posted a much higher rate, continuing, however, to give transportation to the packing company, on through bills of lading to foreign ports for the lower rate of the contract. The Supreme Court sustained the Circuit Court in deciding this to be in violation of the law against discrimination in rates, since that law, being in force when the contract was made, was necessarily "read into the contract" and "became part of it."

RAILWAYS: A. D. 1908 (April).

Passage of Act relating to the Liability of Common Carriers by Railroad to their Employés in Certain Cases.

See (in this Volume)

LABOR PROTECTION: EMPLOYERS' LIABILITY.

RAILWAYS: A. D. 1908 (November).

Supreme Court Decision in Case of Virginia Railroads vs. the State Corporation Commission of Virginia.

"Justice Holmes today [November 30, 1908] announced the decision of the Supreme Court of the United States in the case of the Virginia railroads versus the state corporation commission of Virginia, calling into question the order of the commission fixing a uniform rate of two cents a mile for carrying passengers in the state. The decision reversed the decision of the United States circuit court for the eastern division of Virginia on the technical ground that the railroads should have appealed from the commission's order to the supreme court of Virginia before seeking the intervention of the federal courts. In effect the court directs that the railroad companies take their case to the state court of last resort and that in order to prevent injustices through the possible application of the statute of limitations, the case

be retained on the docket of the United States circuit court, by which it was originally decided favorably to the roads."

Washington Despatch to the Associated Press.

RAILWAYS: A. D. 1908-1909.

The Missouri River Rate Case.
Permanent Injunction against
the Interstate Commerce Commission.

By an order made on the 24th of June, 1908, the Interstate Commerce Commission forbade the charging of a through rate on first class matter, by the railroads, from the Atlantic seaboard to the Missouri River (\$1.47 per hundred pounds), which equalled the rate charged from the Atlantic to the Mississippi (87 cents) plus the rate from the Mississippi to the Missouri (60 cents). In other words, the Commission sought to impose a through rate to the Missouri which would be nine cents per hundred pounds less than the sum of the rates charged on two parts of the same distance. The western railway companies affected by the order applied to the United States Circuit Court, at Chicago, for a permanent injunction to restrain its enforcement. The injunction was granted on the 24th of August, 1909, Judges Grosscup and Kohlsaat concurring in the decision, Judge Baker dissenting.

"The question raised," said Judge Grosscup, in rendering the opinion, "in its larger aspects is not so much a question between the shippers and the railroads as between the commercial and manufacturing interests of Denver and of the territory east of the Mississippi River on the one side, and the commercial and manufacturing interests of the Missouri River cities on the other. ...

"We are not prepared to say the commission has not the power to enter upon a plan looking toward a system of rates wherein the rates for longer and shorter hauls will taper downward

according to distance, providing such tapering is both comprehensively and symmetrically applied—applied with a design of carrying out what may be the economic fact, that, on the whole, it is worth something less per mile to carry freight long distances than shorter distances.

"But it does not follow that power of that character includes power, by the use of differentials, to artificially divide the country into trade zones tributary to given trade and manufacturing centres, the commission in such cases having as a result to predetermine what the trade and manufacturing centres shall be; for such power, vaster than any one body of men has heretofore exercised, though wisely exerted in specific instances, would be putting into the hands of the commission the general power of life and death over every trade and manufacturing centre in the United States."

In the dissenting opinion of Judge Baker he said: "The question is not whether a lawful power or authority has been shown to have been wrongly exercised, but whether there is any law at all for the power or authority claimed and exercised." He found the necessary law, and added: "If Congress cannot constitutionally make a general declaration that the rates shall be reasonable and not unjustly discriminatory and then trust an executive body to hear evidence and decide questions of fact respecting reasonableness and just discrimination, the power of Congress over rates would be worthless."

In September it was announced that the Commission would appeal from the injunction to the Supreme Court.

RAILWAYS: A. D. 1909.

The Seventh Transcontinental Line.

The seventh transcontinental line of railway in America, the Chicago, Milwaukee and St. Paul system, was announced as completed on the 1st of April, 1909. As its name indicates, it

is an extension of the Chicago, Milwaukee and St. Paul system by a line fourteen hundred miles long from Mobridge, South Dakota, to Seattle and Tacoma, in the State of Washington.

RAILWAYS: A. D. 1909.

Fines imposed on the New York Central Railroad Company.

Fines aggregating \$134,000, imposed on the New York Central Railway Company by the United States Circuit Court for the Southern District of New York for rebates granted to the American Sugar Refining Company in violation of law, were affirmed in February, 1909, by the Supreme Court of the United States, and were paid on the 12th of May.

RAILWAYS: A. D. 1909 (May-June).

The Georgia Railroad Strike.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1909.

{558}

RAILWAYS: A. D. 1910.

Special Message of President Taft touching Interstate Commerce.

The important Special Message addressed to Congress by President Taft on the 7th of January, 1910, recommending amendatory legislation on the two subjects of interstate commerce and the combinations called "trusts," opened with the following statement:

"In the annual report of the Interstate Commerce Commission for the year 1908 attention is called to the fact that between July 1, 1908, and the close of that year sixteen suits had been begun to set aside orders of the commission (besides one commenced before that date), and that few orders of much

consequence had been permitted to go without protest; that the questions presented by these various suits were fundamental, as the constitutionality of the act itself was in issue, and the right of Congress to delegate to any tribunal authority to establish an interstate rate was denied; but that perhaps the most serious practical question raised concerned the extent of the right of the courts to review the orders of the commission; and it was pointed out that if the contention of the carriers in this latter respect alone were sustained, but little progress had been made in the Hepburn act toward the effective regulation of interstate transportation charges. In twelve of the cases referred to, it was stated, preliminary injunctions were prayed for, being granted in six and refused in six.

"‘It has from the first been well understood,’ says the commission, ‘that the success of the present act as a regulating measure depended largely upon the facility with which temporary injunctions could be obtained. If a railroad company, by mere allegation in its bill of complaint, supported by ex-parte affidavits, can overturn the results of days of patient investigation, no very satisfactory result can be expected. The railroad loses nothing by these proceedings, since if they fail it can only be required to establish the rate and to pay to shippers the difference between the higher rate collected and the rate which is finally held to be reasonable. In point of fact it usually profits, because it can seldom be required to return more than a fraction of the excess charges collected.’

"In its report for the year 1909 the commission shows that of the seventeen cases referred to in its 1908 report, only one had been decided in the Supreme Court of the United States, although five other cases had been argued and submitted to that tribunal in October, 1909.

"Of course, every carrier affected by an order of the

commission has a constitutional right to appeal to a Federal Court to protect it from the enforcement of an order which it may show to be *prima facie* confiscatory or unjustly discriminatory in its effect; and as this application may be made to a court in any district of the United States, not only does delay result in the enforcement of the order, but great uncertainty is caused by contrariety of decision. The questions presented by these applications are too often technical in their character and require a knowledge of the business and the mastery of a great Volume of conflicting evidence which is tedious to examine and troublesome to comprehend. It would not be proper to attempt to deprive any corporation of the right to review by a court of any order or decree which, if undisturbed, would rob it of a reasonable return upon its investment or would subject it to burdens which would unjustly discriminate against it and in favor of other carriers similarly situated. What is, however, of supreme importance is that the decision of such questions shall be as speedy as the nature of the circumstances will admit, and that a uniformity of decision be secured so as to bring about an effective, systematic, and scientific enforcement of the commerce law, rather than conflicting decisions and uncertainty of final result.

"For this purpose I recommend the establishment of a court of the United States composed of five judges designated for such purpose from among the circuit judges of the United States, to be known as the 'United States Court of Commerce,' which court shall be clothed with exclusive original jurisdiction over the following classes of cases:

"(1.) All cases for the enforcement, otherwise than by adjudication and collection of a forfeiture or penalty, or by infliction of criminal punishment, of any order of the Interstate Commerce Commission other than for the payment of money.

"(2.) All cases brought to enjoin, set aside, annul, or suspend any order or requirement of the Interstate Commerce Commission.

"(3.) All such cases as under section 3 of the act of February 19, 1903, known as the 'Elkins Act,' are authorized to be maintained in a circuit court of the United States.

"(4.) All such mandamus proceedings as under the provisions of section 20 or section 23 of the Interstate Commerce law are authorized to be maintained in a circuit court of the United States.

"Reasons precisely analogous to those which induced the Congress to create the Court of Customs Appeals by the provisions in the tariff act of August 5, 1909, may be urged in support of the creation of the Commerce Court."

Further recommendations of the Message are summarized in the following:

Pooling arrangements as to rates to be allowed under direct supervision of the commission.

The commission to be empowered to pass upon freight classifications.

The commission to be empowered to hold up new rates or classifications by railroads until an inquiry can be made as to their reasonableness. If found to be unreasonable, the commission may forbid the increase.

Shippers to be given the choice of established routes on through freight.

From and after the passage of the amendments, it is provided that no railroad shall acquire any stock or interest in a

competing line, except that where a road already owns 50 per cent, or more of the stock of another road, it may complete the purchase of all the stock. Also in cases where one road is operating another under a lease of more than twenty-five years' duration, it shall have a right to acquire the demised road. Allowing these acquisitions of stock does not exempt any road from prosecution under the Anti-Trust law.

Stocks must be issued at par value for money paid in or for property or services, rates at full value, under an inquiry by the Federal authority, who shall supervise all stock and bond issues.

-----RAILWAYS: End-----

RAISULI, The Moorish Brigand.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

RALLIÉS.

A political party in France said to be made from fragments from the former Bonapartists, Orleanists, and Boulangerists.

RAMSAY, Sir William.

See (in this Volume)
SCIENCE, RECENT: RADIUM; also,
NOBEL PRIZES.

RATE REGULATION, Railway.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1870-1908.

{559}

RAYLEIGH, Lord.

See (in this Volume)
NOBEL PRIZES.

REBATE RESTRICTION, Railway.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1870-1908,
and 1903 (February).

RECIPROCITY TREATY: United States and Newfoundland:
The Hay-Bond Treaty.
Its Amendment to Death by the United States Senate.

See (in this Volume)
NEWFOUNDLAND: A. D. 1902-1905.

RECLAMATION OF ARID LANDS.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

RED CROSS SOCIETY, The American National.

By an Act of Congress passed in 1904, the American National Red Cross was incorporated under the laws of the District of Columbia and brought directly under Government supervision. Its charter provided that five members of its Board of Incorporators were to be chosen from the Departments of State, War, Navy, Treasury, and Justice. Its accounts were to be audited by the disbursing officer of the War Department. The entire support, however, aside from the income from a small endowment, comes from the dues of individual members and voluntary contributions. The election of Mr. Taft, then Secretary of War, as the first president of the reorganized

Red Cross, emphasized its new relationship to the Federal Government and its new position as a body of really National scope. At the annual meeting of the Society in December, 1908, Mr. Taft, then President-elect of the United States, consented to be reelected to the presidency of the Red Cross organization in the United States.

Throughout all the many calamities of the past decade, from earthquake, volcanic eruption, fire, flood, war, famine, and pestilence, the Red Cross Society has always been instant in readiness for effective humane service, from almost every civilized country of the world, and for any call to any quarter of the globe. In the United States it has lately undertaken a continuous and permanent service in connection with the anti-tuberculosis crusade.

RED CROSS SOCIETY:

In Japan, before and during the Russo-Japanese War.

"The Red Cross Society of Japan is by no means merely a copy of the Red Cross societies of Europe, as its name would seem to indicate; for the idea of assisting the wounded soldiers and allaying the suffering caused by war arose spontaneously in Japan. ...

"In 1867, two years before the Restoration, when Japan was considered a savage country by the West, and when she possessed neither railways nor telegraphs, machinery, etc., Count Sano, an enthusiastic humanitarian, was sent by the Shogun to the Exhibition in Paris, where he had the opportunity of studying the Red Cross societies of various countries. Again, in 1873, when this gentleman was ambassador in Vienna, he carefully observed the Red Cross Society, and especially its activity during the Franco-German War of 1870. When the Civil War of 1877 broke out in Japan, Count Sano was back in his native country, and he conceived the idea of forming a society after the model of the European Red Cross

societies. The nobility of Japan received his ideas most favourably, and a society was founded which was called Hakuaisha (Benevolent Society). ...

"The Mikado countenanced the objects of the Society and assisted it in every way. From 1887 onward he gave it a yearly contribution of 5,000 yen, to which in 1888 a gift of 100,000 yen was added. After the Chino-Japanese War, the Mikado's yearly contribution was increased to 10,000 yen, in recognition of the progress which the Society had made and of the great assistance which it had given during that campaign. Besides this sum he contributes yearly 5,000 yen to the Red Cross Society for the patients, and from time to time makes generous gifts to the Society. The motto of the Japanese Red Cross Society is 'Pay your debt to your country by helping its soldiers'; and this motto has quickly made the Society immensely popular throughout the country. ...

"The war with China of 1894-1895 demonstrated the excellence of the Japanese Red Cross Society, and proved at the same time its best advertisement, for at the end of 1895 there were more than 160,000 members. Since the Society had proved its immense practical utility, the number of its members rose by leaps and bounds, and at the end of 1898 there were 570,000 members, and the yearly receipts had reached 1,582,622 yen; at present it must count about 1,000,000 members, and must have an income of at least 3,000,000 yen, or about £300,000 per annum, a truly enormous sum for a country like Japan, where a yen goes about as far as ten shillings go in Great Britain. The latest available figures give the following record: Number of members, 920,000; funds in hand, £794,000; annual income, £231,000."

***O. Eltzbacher,
The Red Cross Society of Japan
(Contemporary Review, September, 1904).***

REDEMPTORISTS: Forbidden to teach in France.

See (in this Volume)
FRANCE: A. D. 1903.

REFERENDUM, Initiative and Recall:
In Switzerland.

According to a report on the subject made to the State Department at Washington, in June, 1902, by the United States Minister to Switzerland, the Honorable Arthur S. Hardy, down to that time, "since the referendum has been in force, 226 Federal laws and resolutions have been enacted, of which 40 were submitted to the people, 14 by the compulsory and 26 by the optional referendum. The people have exercised the initiative five times since its adoption in 1891, rejecting the measures proposed four out of five times."

REFERENDUM, Initiative and Recall:
In the United States.

"The first State to adopt a constitutional amendment providing for the initiative and referendum was South Dakota in 1898. Next came Utah (1900) with an amendment which is not self-executing, and the Legislature has not so far passed the necessary enabling act. Oregon followed in 1902, Montana in 1906, and Oklahoma in 1907. South Dakota, Oregon, and Oklahoma have also extended the constitutional amendments so as to provide for the initiative and referendum in municipal corporations. Maine, Missouri, and North Dakota are soon to vote upon constitutional amendments embodying the initiative and referendum for State matters; and Maine proposes to extend this right to municipal corporations concerning their local affairs.

In 1907 Iowa and South Dakota each enacted a general law under which cities may, if they so choose, have charters embodying the general features of the 'commission plan of government,' and acquire with them the right to have the initiative, the referendum, and the recall. In South Dakota the Constitution specifically gives to the people the right of the initiative and referendum, but in Iowa no mention thereof is made in the Constitution. The Supreme Court of Iowa, however, has held that the statute conferring the right upon cities of a certain class to adopt a commission plan of government which included the initiative, referendum, and recall was constitutional, as the State Constitution did not specifically forbid the granting of these rights. In Texas cities of a designated size can be incorporated by special act, and since Galveston obtained its new form of government several cities of Texas have been given charters by special acts, some embodying the initiative, referendum, and recall, others one or two of these rights, and some none of them or only in a modified form. The recall is the most recent of the three new measures of relief. Los Angeles in 1903 seems to have been the first city to have made the recall a part of its city charter. In 1905 San Diego, San Bernardino, Pasadena, and Fresno, California, followed. In 1906 Seattle joined the list, and in 1907 there were added Everett, in Washington, and six other California cities—Santa Monica, Alameda, Long Beach, Vallejo, Riverside and San Francisco. No State has a constitutional provision for the recall."

The Outlook,
August 15, 1908.

On the 25th of May, 1908, the Initiative and Referendum League of America addressed a memorial to Congress, asking for the passage of a Bill which had been introduced in the Senate (Senate Bill No. 7208), "For a modern system whereby the voters of the United States may instruct their National Representatives," and, further, for the passage of Senate

Joint Resolution No. 94, "asking the States to establish the machinery for taking a referendum vote on national issues whenever Congress shall so direct."

REGENERADORES.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

REGGIO:

Its Destruction by Earthquake.

See (in this Volume)
EARTHQUAKES: ITALY.

REGIE, The San Domingo.

See (in this Volume)
SAN DOMINGO: A. D. 1901-1905.

REGINA:

Capital of the Province of Saskatchewan.

See (in this Volume)
CANADA: A. D. 1905.

REID, George Houston:

Premier of Australia.

See (in this Volume)
AUSTRALIA: A. D. 1903-1904.

REID, Sir Robert T.:

Lord Chancellor of England.

See (in this Volume)
England: A. D. 1905-1906.

REINSCH, Paul S.:

Delegate to Third International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

RELIGIOUS FREEDOM:

Its Limitations in Russia.

See (in this Volume)
RUSSIA. A. D. 1905 (APRIL-AUGUST), and 1909 (JUNE).

RELIGIOUS TEACHING, in State Supported Schools:
The Controversy.

See (in this Volume)
FRANCE: A. D. 1903;
CANADA: A. D. 1905;
EDUCATION: ENGLAND: A. D. 1902 and 1906.

RENAULT, Louis.

See (in this Volume)
NOBEL PRIZES.

RENNENKAMPF, General.

See (in this Volume)
JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

REPATRIATION OF THE BOERS.

See (in this Volume)
SOUTH AFRICA: A. D. 1902-1903.

REPUBLIC, The Rescue of the Steamship.

See (in this Volume)

SCIENCE AND INVENTION: ELECTRICAL.

RESCHAD, Mohammed:

Raised to the Turkish Throne.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

RESEARCH, Original.

See (in this Volume)

SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

RESOURCES, Conservation of Natural.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES.

REVAL, Disorders in.

See (in this Volume)

RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

REVOLUTION, Persia.

See (in this Volume)

PERSIA.

REVOLUTION, Turkish.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

REYES, Rafael:

President of Colombia.

See (in this Volume)

COLOMBIA: A. D. 1905-1906, and 1906-1909.

RHODES, CECIL J.:

His death.

His continued Influence in South Africa.

His Policy carried on by Dr. Jameson.

See(in this Volume)

SOUTH AFRICA: A. D. 1902-1904.

RHODES, CECIL J.:

His Will, endowing Scholarships at Oxford for Students in the British Colonies and the United States.

See (in this Volume)

EDUCATION: RHODES SCHOLARSHIPS.

RHODESIA: A. D. 1908.

Report of the British South Africa Company.

The annual report of the directors of the British South Africa Company, presented at a meeting of shareholders in London in February, 1909, contained the following statements:

"During 1908 there has been a remarkable improvement in the circumstances of Rhodesia. This improvement has been evident in every department of trade and industry, and is reflected in the returns of administrative receipts, railways, mines and land. It was pointed out last year what an important effect even a slight increase in general prosperity would exercise upon the whole financial position, and the figures now available show that this view was correct. The administrative revenue of Southern Rhodesia during the year 1908-1909 will suffice to cover administrative expenditure without any call

whatever upon the commercial income of the company; the shortages of the railway companies in respect of the same period will be less by £100,000 than in 1907-1908; during the year ending 31st March, 1910, large additional revenue will be derived from the carriage from the port of Beira of the materials and stores for the extension of the railway into the Congo territory. ... The negotiations for the extension northwards of the Rhodesian Railway system have been brought to a successful conclusion. With the coöperation of the Tanganyika Concessions (Limited) a company has been formed called the Rhodesia-Kantanga Junction Railway and Mineral Company (Limited), which will construct a standard gauge line from the present terminus at Broken Hill to a point on the frontier of the Congo Free State; from the frontier to the Star of the Congo Mine the line will be constructed by the Couipaguie du Chemin de Fer du Kantanga. ... On the completion of the first section to the frontier, Rhodesia will be traversed by a trunk line from south to north.

{561}

"The European population shows a net increase of over 1,100 since the intermediate census, in September, 1907, when it numbered 14,018. An area of 1,169,305 acres of land has been settled and occupied during the past year. The output of gold has increased from £2,178,886 in 1907 to £2,526,037 in 1908. Imports have increased by about £100,000 during the past year."

See (in this Volume)
SOUTH AFRICA: A. D. 1904.

RIBEIRO, HINTZE.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

RICHMOND, Virginia: A. D. 1907.

Great Reunion of Confederate War Veterans.
Unveiling of Monument to Jefferson Davis.

A great gathering of the surviving veterans of the Confederacy, to the number of about 15,000, at Richmond, late in May and early in June, was brought about in connection with the unveiling of an impressive monument to Jefferson Davis. An equestrian statue of General J. E. B. Stuart was also unveiled on one of the days of the reunion.

RIFF, The.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

RIGA, Disorders in.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

RIKKEN SEIYU-KAI.

See (in this Volume)
JAPAN: A. D. 1903 (JUNE).

RIO DE JANEIRO: A. D. 1903-1905.

Eradication of Yellow Fever.

See (in this Volume)
PUBLIC HEALTH: YELLOW FEVER.

RIO DE JANEIRO: A. D. 1906.

Third International Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

RITCHIE, C. T.:

Chancellor of the Exchequer in the British Government.

See (in this Volume)

ENGLAND: A. D. 1902 (JULY).

ROBERT, CHRISTOPHER R.:

Benefactor of Robert College.

See (in this Volume)

EDUCATION: TURKEY, &C.

ROBERT COLLEGE:

Its Influence in Turkey and the Balkan States.

See (in this Volume)

EDUCATION: TURKEY, &C.

ROBERTS, SIR FREDERICK SLEIGH ROBERTS, FIRST EARL:

On the British Territorial Force and the need
of Compulsory Military Training.

See (in this Volume)

WAR, THE PREPARATIONS FOR: MILITARY.

ROCHAMBEAU MONUMENT:

The unveiling at Washington.

Representatives of the families of Rochambeau and
Lafayette invited Guests of the Nation.

See (in this Volume)

UNITED STATES: A. D. 1902 (MAY).

ROCKEFELLER, John D.:

Stupendous Endowment of the General Education Board.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1902-1909.

ROCKEFELLER, John D.:
Gift for the eradication of the Hookworm Disease.

See (in this Volume)
PUBLIC HEALTH: THE HOOKWORM DISEASE.

ROCKEFELLER, John D., Jr.:
Investing in a Concession in the Congo State.

See (in this Volume)
CONGO STATE: A. D. 1906-1909.

ROCKHILL, W. W.:
Minister to China.

See (in this Volume)
CHINA: A. D. 1901-1908.

ROENTGEN.

See (in this Volume)
RONTGEN.

ROGHI, EL.

See (in this Volume)
MOROCCO: A. D. 1909.

ROJESVENSKY,
ROZHDESTVENSKY, ADMIRAL.

See (in this Volume)
JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

ROMAN CATHOLIC CHURCH.

See (in this Volume and Volume IV.)
PAPACY.

ROMAÑA, PRESIDENT EDUARDO DE.

See (in this Volume)
PERU.

ROME: A. D. 1903.
General Strike of Workmen.

See (in this Volume)
LABOR ORGANIZATION: ITALY.

ROME: A. D. 1908.
Election of Ernesto Nathan to be Mayor.

See (in this Volume)
ITALY: A. D. 1909.

RONTGEN, Wilhelm Conrad:
Recipient of Nobel Prize.

See (in this Volume)
NOBEL PRIZES.

-----ROOSEVELT, Theodore: Start-----

ROOSEVELT, Theodore:
Becomes President of the United States on
the Assassination of President McKinley.

See (in this Volume)
BUFFALO: A. D. 1901.

ROOSEVELT, Theodore:

On the Federal Control of Corporations engaged in
Interstate Trade.

See (in this Volume)

Combinations, Industrial, &c.:

UNITED STATES: A. D. 1901-1903.

ROOSEVELT, Theodore:

On Railway Rate Regulation.

SEE

RAILWAYS: UNITED STATES: A. D. 1870-1908.

ROOSEVELT, Theodore:

His intermediation in the Anthracite Coal Strike of 1902.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

ROOSEVELT, Theodore:

Message recounting the Circumstances of the Secession from
Colombia and recognized Independence of Panama, and the Treaty
with Panama for the Building of the Isthmian Canal.

See (in this volume)

PANAMA CANAL.

ROOSEVELT, Theodore:

On the Wrong done to the Chinese.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

ROOSEVELT, Theodore:

On the Strike of the Teamsters' Union at Chicago.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1905 (APRIL-JULY).

ROOSEVELT, Theodore:
Elected President of the United States.

See (in this Volume)
UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

ROOSEVELT, Theodore:
Mediation between Russia and Japan.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

ROOSEVELT, Theodore:
Initial Invitation to the holding of the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

ROOSEVELT, Theodore:
Account of Visit to Porto Rico.

See (in this Volume)
PORTO RICO: A. D. 1906.

ROOSEVELT, Theodore:
On the Rendering of Aid to San Domingo.

See (in this Volume)
SAN DOMINGO: A. D. 1904-1907.

ROOSEVELT, Theodore:
On the Progressive Taxation of Fortunes.

See (in this Volume)
WEALTH, THE PROBLEMS OF.

ROOSEVELT, Theodore:
Defense of Japanese Treaty Rights.

See (in this Volume)
RACE PROBLEMS: UNITED STATES.

ROOSEVELT, Theodore:
Recommends remission of part of Boxer Indemnity to China.

See CHINA: A. D. 1901-1908.

ROOSEVELT, Theodore:
On the Conservation of Natural Resources.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

ROOSEVELT, Theodore:
Appointment of Country Life Commission,
and Message on its Report.

See (in this Volume)
UNITED STATES: A. D. 1908-1909 (AUGUST-FEBRUARY).

ROOSEVELT, Theodore:
On the Japanese Question in California.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

ROOSEVELT, Theodore:
Recipient of Nobel Prize for Promotion of Peace.
Its devotion to the Creation of a Foundation for

the Promotion of Industrial Peace.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1907.

ROOSEVELT, Theodore:

Veto of the Census Bill.

See (in this Volume)

CIVIL SERVICE REFORM: UNITED STATES.

{562}

ROOSEVELT, Theodore:

Renunciation of Third Term Candidacy.

See (in this Volume)

UNITED STATES: A. D. 1904 (NOVEMBER).

ROOSEVELT, Theodore:

Progress of Civil Service Reform under his Administration.

See (in this Volume)

CIVIL SERVICE REFORM: UNITED STATES.

ROOSEVELT, Theodore:

After leaving the White House.

Shortly before the ending, March 4, 1909, of his second term in the Presidency of the United States, Mr. Roosevelt became connected, as "Contributing Editor," with ***The Outlook***, and began the discussion of current topics in signed articles, published in that weekly magazine. For some time it had been known that Mr. Roosevelt intended, when released from office, to enjoy a long vacation in Central Africa, hunting wild game. His preparations were made before he left the White House, and on the 20th of March, to correct misunderstandings as to the

recreation he contemplated, he published the following announcement in ***The Outlook***:

"I am about to go to Africa as the head of the Smithsonian expedition. It is a scientific expedition. We shall collect birds and mammals for the National Museum at Washington, and nothing will be shot unless for food, or for preservation as a specimen, or unless, of course, the animal is of a noxious kind. There will be no wanton destruction whatever.

"I very earnestly hope that no representative of any newspaper or magazine will try to accompany me or to interview me during any portion of my trip. Until I actually get to the wilderness my trip will be precisely like any other conventional trip on a steamboat or railway. It will afford nothing to write about, and will afford no excuse or warrant for any one sending to any newspaper a line in reference thereto. After I reach the wilderness of course no one outside of my own party will be with me, and if any one pretends to be with me or pretends to write as to what I do, his statements should be accepted as on their face not merely false but ludicrous. Any statement purporting to have been made by me, or attributed to me, which may be sent to newspapers should be accepted as certainly false and as calling for no denial from me. So far as possible I shall avoid seeing any representative of the press, and shall not knowingly have any conversation on any subject whatever with any representative of the press beyond exchanging the ordinary civilities or courtesies. I am a private citizen, and I am entitled to enjoy the privacy that should be the private citizen's right. My trip will have no public bearing of any kind or description. It is undertaken for the National Museum at Washington, and is simply a collecting trip for the Museum. It will be extremely distasteful to me and of no possible benefit to any human being to try to report or exploit the trip, or to send any one with me, or to have any one try to meet me or see me with a view to such reporting or exploitation. Let me repeat that

while I am on steamer or railway there will be nothing whatever to report; that when I leave the railway for the wilderness no persons will have any knowledge which will enable them to report anything, and that any report is to be accepted as presumably false."

THEODORE ROOSEVELT.

The ex-President took steamer from New York on the 30th of March, and one of the journals which had been among the sharpest of his critics and opponents for years, the New York *Times*, had this to say of him that day:

"There is no need to tell him that he will carry with him wherever he goes the abiding affection of nearly 80,000,000 of people. They who dislike Colonel Roosevelt, or think they do, scarcely count in the Census. Wherever he goes he will make friends among human beings, and impress everybody with a reasonably high yet easily appreciable ideal of the American citizen. Courage, energy, quick co-ordination of muscle and brain, persistent alertness, boundless sympathy, and good fellowship are characteristics of Colonel Roosevelt. Everybody likes such a man."

Returning from his African expedition in the spring of 1910, the ex-President accepted invitations in Europe which took him to Naples, Rome, Vienna, Paris, Brussels, The Hague, Christiania, Berlin, London, and was received with extraordinary honors at every capital.

-----ROOSEVELT, Theodore: End-----

-----ROOT, ELIHU: Start-----

ROOT, ELIHU:

Secretary of War and Secretary of State.

See (in this Volume)

UNITED STATES: A. D. 1901-1905, and 1905-1909.

ROOT, ELIHU:

Correspondence relating to the establishment of the
Republic of Cuba.

See (in this Volume)

CUBA: A. D. 1901-1902.

ROOT, Elihu:

On the Alaska Boundary Commission.

See (in this Volume)

ALASKA: A. D. 1903.

ROOT, Elihu:

Correspondence on American Fishing Rights on the
Newfoundland Coast.

See (in this Volume)

NEWFOUNDLAND: A. D. 1905-1909.

ROOT, Elihu:

Visit to South American Republics, 1906.
Address at the Third International Conference
of American Republics in Rio de Janeiro.

See (in this Volume)

AMERICAN REPUBLICS.

ROOT, Elihu:

Speech in 1906 summarizing recent Governmental Action
against Corporate Wrong-doers.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-
1906.

ROOT, Elihu:

Address to Central American Peace Conference at Washington.

See (in this Volume)

CENTRAL AMERICA: A. D. 1907.

ROOT, Elihu:

At Peace Congress in New York.

See (in this Volume)

WAR: THE REVOLT AGAINST: A. D. 1907.

ROOT, Elihu:

On the Japanese Question in California.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

ROOT, Elihu:

Exchange of Notes with Japan, embodying a Declaration
of Common Policy in the East.

See (in this Volume)

JAPAN: A. D. 1908 (NOVEMBER).

ROOT, Elihu:

On National Duty in State Legislation.

See (in this Volume)

LAW AND ITS COURTS: UNITED STATES.

-----ROOT, ELIHU: End-----

ROSE, URIAH M.:

Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

ROSEBERY, ARCHIBALD F. PRIMROSE, EARL:
Opposition to Home Rule for Ireland.

See (in this Volume)
England: A. D. 1905-1906.

ROSEBERY, ARCHIBALD F. PRIMROSE, EARL:
On the State of Peace in Europe and the Preparations for War.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

ROSEBERY, ARCHIBALD F. PRIMROSE, EARL:
To the House of Lords on the Budget of 1909.

See (in this Volume)
ENGLAND: A. D. 1909 (APRIL-DECEMBER).

ROSEN, BARON ROMAN:
Russian Ambassador at Washington and Plenipotentiary
for negotiating Treaty of Peace with Japan.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-JULY).

ROSS, Dr. Ronald.

See (in this Volume)
NOBEL PRIZES.

{563}

ROTA, The.

See (in this Volume)
PAPACY: A. D. 1908.

ROTATIVOS.

See (in this Volume)
PORTUGAL: A. D. 1906-1909.

ROUMANIA: A. D. 1902.
Oppression of the Jews.
Remonstrance of the United States.

See (in this Volume)
BALKAN AND DANUBIAN STATES: ROUMANIA.

ROUVIER, Maurice:
Prime Minister of France.

See (in this Volume)
FRANCE: A. D. 1905-1906.

ROUVIER, Maurice:
Agreement with Germany for the Conference at Algeciras.

See (in this Volume)
EUROPE: A. D. 1905-1906.

ROUVIER, Maurice:
Fall of his Ministry.

See (in this Volume)
FRANCE: A. D. 1906.

ROWE, Dr. L. S.:
Delegate to Third International Conference
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

ROZHDESTVENSKY,
ROJESVENSKY, ADMIRAL.

See (in this Volume)
JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

RUEF, ABRAHAM.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO.

RUNCIMAN, Mr.:
President of the English Board of Education.
Statements.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1909.

-----RUSSIA: Start-----

RUSSIA: A. D. 1870-1905.
Increase of Population compared with other European Countries.

See (in this Volume)
[Other countries or regions]: A. D. 1870-1905.

RUSSIA: A. D. 1901 (July).
Russianizing of the Finnish Army.
Autocratic Violation of the Constitution of Finland.

See (in this Volume)
FINLAND: A. D. 1901.

RUSSIA: A. D. 1901-1904.

Persistent Occupation of Manchuria, despite Treaty with China.
Japanese Complaints and Demands.

See (in this Volume)

JAPAN: A. D. 1901-1904,

CHINA: A. D. 1901-1902.

RUSSIA: A. D. 1901-1904.

The Disaffection among the Students of the Universities.
Famine in Eastern Districts, and Industrial Depression
in the Cities.

Assassination of Sipiagin.

Advent of Plehve to Power.

Atrocities of his Administration.

Witte, Minister of Finance.

Assassination of Plehve.

In Volume VI. of this work, which went to press in the spring of 1901, the record of events in Russia was brought down to March and April of that year. The revolutionary temper, then rapidly rising in heat throughout the Empire, found its most active manifestation among the students of the universities, whose outbreaks of disaffection were punished mercilessly, by Siberian exile, by draft into the army, or more summarily by the Cossacks' knout. The Tsar, however, had seemed at last to recognize the special grievances of the students and to wish to have remedies found for them. To succeed M. Bogoliepoff, the late Minister of Instruction, whom a student had shot on the 27th of February, the Tsar appointed to that office a General Vannovsky, who was credited with having a clear and sympathetic understanding of the wrongs to the student body which provoked their disorderly conduct. It was believed, too, that full powers had been given to him for reforming the government of the universities. But, whatever may have been the excellence of disposition in General Vannovsky and in the Tsar, the projected reforms were so obstructed, in some

manner, that the students became more and more openly revolutionary in their action, and the new minister resigned in the second year of his endeavors.

A number of immediate causes of misery in the Empire were now added to the many causes which a despotic and corrupt government kept always in operation. Harvests in large parts of Eastern Russia had failed, bringing the horrors of famine on some 24,000,000 people. Simultaneously with this, an industrial crisis came, to close great numbers of factories and shops and to create a vast army of the unemployed. M. Witte, as Minister of Finance, had been extraordinarily skilful and successful in developing new industries in Russia; but had done so by measures of unnatural stimulation which had this unfortunate result. High tariffs for the protection of home manufactures from foreign competition, and the offer of attractive inducements to foreign capital, had brought about many investments which proved to be unprofitable, and the time had come, as happens always and everywhere in such cases, when the unsound structure of productive enterprise must collapse. Thus the country, having all of its industrial centers filled with suffering unemployed workmen and many of its rural districts filled with starving peasants, was a field most perfectly prepared for the seed of insurgent passion which countless agents were now busied in sowing.

Students and workmen became associated in flagrant revolutionary demonstrations, flaunting the red flag of rebellion and singing seditious songs, at St. Petersburg, Moscow, Kieff, Kharkoff, Odessa, and other cities, fighting vain battles with savage Cossacks and police. To excite the peasantry to action, a forged ukase was circulated among them, in the districts of Poltava and Kharkoff, announcing that the land, held wrongly by the nobles, had been restored to them by the Tsar; that they could take possession of it, and, with it, the present contents of granaries and barns. They proceeded accordingly to strip many estates (see below, Russia: A. D.

1902), and suffered piteously from the soldiery that came in haste to stop their deluded work. It was at this time that M. Witte set on foot an extensive inquiry into agricultural conditions, the important political outcome of which will be spoken of later on.

On the 15th of April, 1902, the Minister of the Interior, M. Sipiagin, was killed by a student named Belmatcheff. This murderous exploit of the revolutionary terrorists brought a man into power who gave Russia an experience in the next two years, of heartlessness and foulness in despotism which surpassed all that it had known before.

{564}

"Sipiagin, when Minister of the Interior, had already brought matters so far by his reactionary policy of violence that the news of his assassination at the hands of Belmatcheff was received with unmixed joy in all classes of Russian society. But the fullest proof of the irreconcilableness of autocracy with things like improvement and progress was furnished by the successor of Sipiagin, Von Plehve, who soon proved himself to be the complete personification of all evil, heartlessness, and corruption. ... The attention of the highest circles was drawn to his person when, after the assassination of Alexander II., he conducted the prosecution at the arraignment of the participators in the deed. Later, on being appointed State Secretary, he was able, by his persistent zeal in the service of the reaction, to place himself on a good footing with those in power, particularly with the Procurator of the Holy Synod, Pobiedonostseff, who, when the policy of destroying the Finnish constitution was determined upon, found a good tool in Von Plehve. In the anti-Finn *coup d'état* he played a considerable part, particularly as member of the secret committee which drafted the plan for the Russification of the Finnish Grand Duchy, and drew up the manifesto; while, still later, as Secretary for Finland, together with the then

Governor-General Bobrikoff, he conducted and carried out the well-known policy of suppression.

"As Minister of the Interior, Von Plehve lost no time in showing what policy he intended to follow, as he declared the general dissatisfaction in Russia to be solely the result of the conspiracy and machinations of a handful of evil disposed persons, who could easily be rendered incapable of harm if only the police were sufficiently strengthened and received extensive powers. ... The Minister came into conflict, shortly after his appointment, with a number of his colleagues, especially with the Finance Minister, De Witte, who had previously been practically omnipotent, and with the Minister of Justice, Muravieff. The difference with the latter hinged on the question of the treatment of 'political criminals,' the trials of whom Von Plehve wished to allocate to a special court-martial, the proceedings being conducted with closed doors, whilst the Minister of Justice required a public trial before the ordinary courts. The Tsar, as usual, followed the most reactionary counsel. ... Of deeper significance and more far-reaching effects was the conflict with the Finance Minister, who, indeed was far more menacing to Von Plehve's exalted position. Without being imbued with really liberal views, but being possessed of intelligence and a clear view as regards all social phenomena, De Witte, doubtless one of the most able statesmen Russia has possessed in recent times, recognized that, if matters in the Empire continued much longer in the same way, a catastrophe was unavoidable. ...

"De Witte obtained the consent of the Tsar to the formation of committees, in the different parts of the country, consisting of representatives of agriculture, and including both large estate owners and men of the people, to whom was allotted the task of declaring their views as to the cause of the decline of Russian agriculture, and of indicating steps for the improvement of agricultural conditions. De Witte himself urged the committees to express themselves freely and openly as to

the causes of the prevailing misery, and as to the means of remedying it. But in all probability he hardly expected that these utterances would go so far in their openness as they really did. Quite a number of committees were perspicacious enough to deal not merely with the economical, but likewise with the general political position, though recognising that the former was very closely connected with the latter. In this way the ice was broken. One committee after the other criticised the existing system of government with astonishing boldness, and required an unconditional and radical change therein. ... it was the representatives of the **zemtsvo** assemblies who played the chief part in the agricultural committees, and consequently hopes began to be cherished more or less everywhere that these assemblies would now receive amplified rights, and that in this way the basis would be laid for the future and for the constitution dreamt of by all. Such hopes were, however, not to the taste of Von Plehve, the new Minister of the Interior. ... Finally they [the committees] were dissolved, without having achieved any other result than a number of reports which had been drawn up by them, and which ended by being pigeon-holed in one record office or the other. Von Plehve had conquered the Finance Minister. But his success was a Pyrrhic victory. At one stroke he converted a large number of liberal friends of reform into radical adherents of the emancipation movement, while to all others who had followed the proceedings of the agricultural committees with interest and expectancy he brought home a clear apprehension of the fact that a régime, under which the will or the whim of an irresponsible official could bring to naught plans having for their object the amendment of the conditions of life of many millions of people, could never contribute to the promotion of national development. Similar fruits were borne by Von Plehve's policy in many other directions. ...

"Never have the police been so numerous or so powerful as under Von Plehve's regime; never were such trifling causes sufficient to deprive both sexes of citizens of their liberty,

to expose them to ill-treatment, and to send them into exile. But never, on the other hand, have such means proved to be more powerless. ... The so-called 'Organisation of the Struggle,' the same that had slain the previous Minister of the Interior, Sipiagin, also sentenced to death the Governor of Ulfa, Bogdanovitch. ... At last Von Plehve, too, was overtaken by his fate. On the 28th of July, 1904, a member of the 'Organisation of the Struggle' threw a bomb into the carriage of the Minister as he was driving towards the Warsaw railway station in St. Petersburg, on his way to an audience with the Tsar. He was killed instantaneously; while the assassin, Sasonov, and a second terrorist, Sickocki, who had lent him assistance, were arrested and condemned to twenty and eleven years respectively of penal servitude."

***K. Zilliacus,
The Russian Revolutionary Movement,
chapter 16 (New York, Dutton and Company).***

{565}

RUSSIA: A. D. 1902.

The Political Awakening of the Common People.

Ideas of the Stundists.

Peasants taking Possession of the Granaries.

Floggings and Butcheries in Progress.

"The discontented crowds are unarmed, their only weapons are, so far, shouts, banners and martyrdom for Liberty, while the auto-bureaucratic regime meets these with the infliction of wounds and death. Still there are features in this uneven struggle which are of very ill-omen for auto-bureaucracy. Such is, in the first place, the hearty compact between the factory workers and the masses of the towns on the one hand, and the forward elements of the classes, mainly represented by students of the different higher educational institutions, on the other. Secondly, there is the persistency with which the

cries 'Down with Autocracy!' 'Long live Liberty,' are now resounding throughout the Empire of the Tzars. The shooters are invariably beaten down, even shot down, as we shall see later on; but the cry is raised again and again. Revolutions are, unfortunately, not accomplished by shouts alone; but does not the Tzar's Government take all possible pains to teach the population this simple truth? ...

"Merciless wholesale flogging goes on in the Poltava province. Rifles have also been used; and a number of women and children have been wounded and several peasants shot dead. One of the bodies had fourteen bullets in it. In the Kharkov province 'peace and order' has been enforced with a still greater 'respect to uniform and arms.' The soldiers themselves state that the number of blows doled out with the bundles of birch to the peasants amounted at times to 250 per person. When fleeing from the torture eight peasants hit on a patrol. The commanding officer being drunk ordered 'fire!' and all the eight unarmed and helpless victims fell dead!

"But do these 'energetic measures' produce the desired effect? In the village of Kourlak, Province of Voronezh, the same merciless flogging was to be administered to all its inhabitants. When the thirty-seventh peasant received his portion of the torture, the villagers, after consultation, declared that they submitted. But they collected carefully **all** the birch-bundles which served for the execution. 'They will be of use to us,' said the peasants, 'when **we** shall flog

you!' All the official

explanations given them by the authorities on this occasion led them to the conclusion that the administration acknowledged the righteousness of their claims on the land, and flogged them only for using wrong means for its recovery;—that therefore they would soon have the upper hand over the officials and landlords, and would then flog them in their turn.

"Nor does the movement in the Poltava Province (see above, Russia. A. D. 1901-1904) show any sign of abatement. According to the latest private information, which dates from the last day of April, the peasant movement there does not at all bear the character of devastation; although the landlords are undoubtedly ruined by the quiet doings of the villagers. There is no pillaging. The peasants, headed by their elective elders, open the granaries of the landlords and distribute the grain among themselves according to the needs of each family (the well-to-do receiving nothing), while the remaining grain, if any, is transferred to the communal stores. Part of this appropriated grain has already been used by the peasants for sowing their own fields, as well as those they have appropriated from the gentry. As soon as the troops are marched into the rebellious locality, they take possession of the appropriated grain still remaining in the communal granaries, and return it to its former owners. But as soon as the soldiery, after wholesale flogging of the peasantry, leave the locality, the peasants again take possession of the landlords' grain. The prison at Poltava is crammed with peasants and students, and yet clandestine manifestoes are published with the regularity of the local official paper, and are distributed even among the soldiery. ...

"The present peasant movement is not confined to the three provinces already mentioned. In these it originated simply on the ground of starvation, and similar events are reported from

the provinces of Kursk, Ekaterinoslav and Podolia; also in those of Tomsk, Tobolsk, etc., in distant Siberia, where governmental grain stores suffered the fate of the landlords' granaries in Europe. But the tension of the peasants' spirit, their utter distrust of the present Government, and their readiness to take justice into their own hands may be said to be universal throughout the Empire.

"At the beginning of the Social Democratic movement in Russia no hopes of the Russian peasant were cherished by its leaders. But powerful agrarian organisations have since sprung up."

*Felix Volkhovsky,
The Russian Awakening
(Contemporary Review, June, 1902).*

RUSSIA: A. D. 1902.

Russo-Chinese Treaty concerning Tibet.

See (in this Volume)

TIBET: A. D. 1902.

RUSSIA: A. D. 1903 (April).

The Massacre of Jews at Kishineff.

The British Vice-Consul at Odessa, Mr. Bosanquet, visited Kishineff in July, to learn the facts of the barbarous attack on the Jewish population of that town, which had been made by a mob in the previous April. The following particulars are taken from his official report, published soon afterward as a Parliamentary Paper:

"The riots began on Easter Sunday (O. S.), (the 19th April, N. S.), in the afternoon, in the eastern extremity of the town ... and on that day were confined to the ordinary acts of a turbulent crowd—*e. g.*, the smashing of windows and door-panels in Jewish houses. The area of Sunday's disturbance

was comparatively small." Early the next morning they began afresh in the same quarter, and spread to other parts of the town. "They were directed entirely against the Jews." "Monday was the day when the worst crimes were committed, and these were perpetrated by bands of rioters in different parts of the town. Many people believe the riots to be the work of organized companies."

"Besides the murders committed, the interiors of houses were utterly dismantled, pillows ripped up, Jewish Scriptures torn, floors destroyed, and furniture thrown into the street; while at an early stage wine was broached, that which was not drunk pouring into the street. The local authorities took no effective step to stop the riots, which continued unabated till 4 P. M., or later, the soldiers meanwhile being passive, if not sympathetic, spectators, and the police contenting themselves with the arrest of minor criminals; then the Governor, who had remained at home giving orders by telephone, which were disregarded, at length ventured to sign the necessary order for the troops to be employed.

{566}

The only case I heard of in which the latter used their weapons occurred shortly after the issue of the Governor's order, when a Christian boy, pursuing a Jew with a stone, and refusing to desist, was knocked down and bayoneted by soldiers. An eye-witness of the scene related the facts to me. This boy (with one doubtful exception) was the only Christian killed in the disturbances. If resolute action had been taken by the authorities, it is believed that the riots could have been checked at an early stage. The more usual opinion seems to be that all the murders occurred on Monday. It is certain that none were perpetrated on Sunday, and very doubtful whether any took place after the order to employ the troops had come into effect. The disorders did not entirely cease, as next day (21st April) houses in the outskirts were pillaged; but, roughly speaking, the riots may be said to have ended on Monday. Some students are said to have taken part in the

riots."

"Apparently a feeling existed among the lower classes that the Jews ought not to be in a majority at Kishineff. The fact is that they form about 50 per cent. of the population, which amounts to some 115,000 inhabitants, the other half consisting two-thirds of Moldavians, and after them of Russians, Greeks, Armenians, Poles, Germans, &c."

The victims of these melancholy occurrences are officially estimated at 41 Jews killed, or who died subsequently of wounds, 3 severely, and 300 slightly, wounded. Among the killed was one child accidentally suffocated by its mother. The deaths are placed by another (Jewish) authority at 43, including 2 young children, and by some even as high as 47, but this figure seems to include persons who died from shock, and not directly from violence. The official estimate of deaths is identical with the figure communicated to me at the Jewish hospital.

"Three hundred and eight persons have already been convicted of thefts and other minor offenses [in connection with the riots], and have been sentenced to terms of imprisonment ranging from one week to three months. ... The accused still awaiting trial number 360. ... Of the above prisoners 260 are accused of participation in the riots without actual violence and are out on bail in sums ranging from 200 to 300 roubles. Those in this category who are found guilty will be sentenced to imprisonment without hard labour in the Maison Correctionnelle, where the discipline is more severe than in prison. The remaining 100 are charged with murder in addition to other crimes, and those found guilty will be transported to undergo penal servitude in the Island of Sakhalin."

RUSSIA: A. D. 1903 (May-October).

Intrigues against Opening Ports in Manchuria to Foreign Trade.

See (in this Volume)

CHINA: A. D. 1903 (May-October).

RUSSIA: A. D. 1903-1904.

Concert with Austria-Hungary in submitting the Mürzsteg Programme of Reform in Macedonia to Turkey.

See (in this Volume)

TURKEY: A. D. 1903-1904.

RUSSIA: A. D. 1904 (February-July).

Opening of the War with Japan.

Battles at the Yalu.

First operations in Manchuria.

First movements against Port Arthur.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

RUSSIA: A. D. 1904 (July-September).

War with Japan:

Japanese Success in Manchuria.

The great battle of Liao-Yang.

See (in this Volume)

JAPAN: A. D. 1904 (JULY-SEPTEMBER).

RUSSIA: A. D. 1904-1905.

Reforming attempts of Prince Mirsky.

Meeting of Zemstvo presidents.

The Revolutionary Workman.

Father Gapon.

The Appeal to the Tsar.

The answering Massacre of "Bloody Sunday."

Assassination of Grand Duke Sergius.

Witte's practical premiership.

The Call of the First Duma.

The General Strike on the Railways.
The Great General Strike.
The Ukase of October 30, called the Constitution of Russia.
Beginning of Reaction.
The Postal Strike.
Fatal Rising at Moscow.

The hated Plehve was succeeded by Prince Svyatopolk Mirsky, a broad-minded statesman, who began earnest efforts to set the government on a different course. One of the first measures of the prince was to win authority from the Tsar for a meeting of the presidents of the zemstvos, or provincial councils, which are bodies of a considerably representative character, exercising a limited power in their rural districts over matters of sanitation, public roads, and common schools. Ostensibly, the meeting was to concert measures of relief for the wounded in the war with Japan; but everybody knew that political questions could not escape discussion if such a meeting was held.

All the interests that uphold autocracy, aristocracy, and bureaucracy in Russia were quick to scent danger, and had no difficulty in persuading the weak-willed sovereign to recall his consent to the meeting. In his feeble, half-way manner of doing things, he forbade it as a public assembly, but allowed its members to meet unofficially and privately, in November, with no publication of their discussions or acts. They adopted resolutions setting forth a bold demand for a representation of the people in their government, and these were laid before the Tsar. He gave a public reply to them on the 26th of December, ignoring the demand for representative institutions, declaring that the government must remain autocratic, but making vague promises of reform in the laws, with especial assurances of liberty to the press and in religion; but everything granted must flow by gracious favor from the autocracy, through the channels of the bureaucracy, where it could not by any possibility run true and clear. The words of

the Tsar, vague as they were, produced some encouragement, and a feeling of trust in his good intentions; but the effect was soon destroyed.

It was at about this time that Prince Trubetskoi, in authority at Moscow, addressed a letter to Prince Mirsky, from which the following was published in translation soon after:

"Through this letter I wish to explain myself to you, and ask you not to refuse me the privilege of representing to the Emperor, most humbly, the motives which prompted me to give the zemstvo permission to assert itself. According to public opinion, in which I concur unreservedly, Russia is, at present, facing an epoch of anarchy and revolutionary movement. What is going on is, by far, no mere agitation by the youth. The youth stands forth only as a reflection of the general state prevailing in society. This state is most dangerous and terrible for our entire country, as well as for all of us, and particularly so for the holy person of the Emperor. It is, therefore, the duty of every truly loyal subject to ward off the disastrous calamity with any and all means at his disposal.

{567}

A short time ago, I had the good fortune to be received by the Emperor, and to tell him, straightforwardly and truly, to the best of my effort and knowledge, about the present state of society. I endeavored to explain to him that what is going on is not a riot, but a revolution; that the Russian people is thus being drawn into a revolution, which it does not desire, and which can be forestalled by the Emperor. Yet there is but one way out of it, just one, and that is by the Emperor placing confidence in the strength of society and of the masses. In the depths of my soul I am firmly convinced that if the Emperor only wanted to confidently group these powers around himself, Russia would free itself from all the terrors of the impending disturbance, and would support its Czar, his will, and his absolute sovereignty. In view of the state of

mind of all the people, who are filled with fear and horror over the things referred to above, it is really beyond human power to refuse them to speak about that which is vexing and tormenting everybody so fearfully."

"The opening of the next year (1905) was marked by the appearance of a new element in revolution. Certainly, there had been strikes and riots in the great cities before; there had been peasant risings and other forms of economic agitation in various parts. But as a whole the revolutionary movement as such had been inspired, directed, and even carried out by the educated classes—the students, the journalists, the doctors, barristers, and other professional men. It had been almost limited to that great division of society which in Russia is called ‘The Intelligence.’ ... It was ‘the Intelligence’ who hitherto had fought for the revolution. ... At length the first-fruits of their toilsome propaganda, continued through forty years, were seen, and the revolutionary workman appeared.

"He was ushered in by Father George Gapon, at that time a rather simple-hearted priest, with a rather childlike faith in God and the Tsar, and a certain genius for organization. His personal hold upon the working classes was probably due to their astonishment that a priest should take any interest in their affairs, outside their fees. ... Father Gapon, with his thin line of genius for organization, had gathered the workmen’s groups or trade unions of St. Petersburg into a fairly compact body, called ‘The Russian Workmen’s Union,’ of which he was President as well as founder. In the third week in January the men at the Putiloff iron works struck because two of their number had been dismissed for belonging to their union. At once the Neva iron and ship-building works, the Petroffsky cotton works, the Alexander engine works, the Thornton cloth works, and other great factories on the banks of the river or upon the industrial islands joined in the strike, and in two days some 100,000 work-people were ‘out.’

"With his rather childlike faith in God and the Tsar, Father Gapon organized a dutiful appeal of the Russian workmen to the tender-hearted autocrat whose benevolence was only thwarted by evil counsellors and his ignorance of the truth. The petition ran, in part, as follows:—

"‘We workmen come to you for truth and protection. We have reached the extreme limits of endurance. We have been exploited, and shall continue to be exploited under your bureaucracy. The bureaucracy has brought the country to the verge of ruin and by a shameful war is bringing it to its downfall. We have no voice in the heavy burdens imposed on us. We do not even know for whom or why this money is wrung from the impoverished people, and we do not know how it is expended. This is contrary to the Divine laws, and renders life impossible. It is better that we should all perish, we workmen and all Russia. Then good luck to the capitalists and exploiters of the poor, the corrupt officials and robbers of the Russian people!

"‘Throw down the wall that separates you from your people. Russia is too great and her needs are too various for officials to rule. National representation is essential, for the people alone know their own needs. Direct that elections for a constituent assembly be held by general secret ballot. That is our chief petition. Everything is contained in that. If you do not reply to our prayer, we will die in this square before your palace. We have nowhere else to go. Only two paths are open to us—to liberty and happiness or to the grave. Should our lives serve as the offering of suffering Russia, we shall not regret the sacrifice, but endure it willingly.’

"On the morning of Sunday, January 22, 1905, about 15,000 working men and women formed into a procession to carry this petition to the Tsar in his Winter Palace upon the great square of government buildings. They were all in their Sunday

clothes; many peasants had come up from the country in their best embroideries; they took their children with them. In front marched Father Gapon and two other priests wearing vestments. With them went the ikons, or holy pictures of shining brass and silver, and a portrait of the Tsar. As the procession moved along, they sang, 'God save our people. God give our orthodox Tsar the victory.'

"So the Russian workmen made their last appeal to the autocrat whom they called their father. They would lay their griefs before him, they would see him face to face, they would hear his comforting words. But the father of his people had disappeared into space. As the procession entered the square, the soldiers fired volley after volley upon them from three sides. The estimate of the killed and wounded was about 1500. That Sunday—January 9th in Russian style—is known as Bloody Sunday or Vladimir's Day, after the Grand Duke Vladimir who was supposed to have given the orders. Next morning Father Gapon wrote to his Union: 'There is no Tsar now. Innocent blood has flowed between him and the people.'"

***Henry W. Nevinson,
The Dawn in Russia, Introduction.
(Harper's, New York).***

If the atrocity of the 9th of January was intended to terrorize and paralyze the opposition to absolutism it failed. It maddened the more violent revolutionists, and increasingly desperate enterprises of assassination were provoked. The provocation was made greater by the appointment of Trepoff, notorious for brutality of temper, to a newly created office, of Governor-General of St. Petersburg. On the 17th of February the Grand Duke Sergius, uncle to the Tsar, Governor-General of Moscow, and conspicuously heartless and foul in his exercise of power, was assassinated as he drove through the streets. Strikes and riotous outbreaks were of constant occurrence in the industrial cities, especially violent in Warsaw, Lodz, and

other Polish towns.

{568}

The Tsar issued a piteous manifesto on the 3d of March, appealing for a "rally round the throne" by all "who, true to Russia's past, honestly and conscientiously have a care for all the affairs of the state such as we have ourselves." On the same day he published a rescript in which he said: "I am resolved henceforth, with the help of God, to convene the worthiest men, possessing the confidence of the people and elected by them, to participate in the elaboration and consideration of legislative measures." But, even if this expressed the personal disposition of the weak-willed sovereign, it promised nothing to correspond to it in the action of government; as was shown by the promotion of Trepoff to be Assistant-Minister of the Interior and Chief of Police. Prince Mirsky, baffled in his undertakings and hopeless of good from his service, had resigned the Ministry of the Interior, and his successor, M. Buliguine, held the office but a short time. M. Serguei Yulievitch Witte, former Minister of Finance, and latterly President of the Imperial Ministers, now acquired a substantial premiership in the administration, which does not seem to have belonged to his office before. Nothing of satisfaction came from the December promises of reformed law. Bureaucratic commissions were understood to be working on measures to make good the Tsar's word, but months passed with no result. There were fitful relaxations of the censorship of the press, so capricious that no editor could know what he might and might not say.

In April, religious liberty was proclaimed, with special rights and privileges reserved to the Russian orthodox church. M. Witte had advocated a separation of the church from the state; but that was beyond hope. There must, however, have been an important weakening of church influence in the government, since the long despotic procurator-general of the

Holy Synod, M. Pobiedonostzeff, resigned before the close of the year.

Early in the summer the heads of provincial zemstvos held another meeting, and discussed the popular demand for a constitutional and representative government without restraint. Then the Czar gave them a friendly audience, and declared to them that "the admission of elected representatives to works of state will be regularly accomplished"; but this was followed speedily by an official explanation that his majesty's remarks must not be understood as containing "any indication of the possibility of modifying the fundamental law of the empire." This was to check an eager leaping of the public mind to high hopes.

On the 19th of August the long wavering imperial mind seemed brought to a definite intention at last, in a proclamation which summoned a national assembly, or дума, to meet "not later than the middle of January, 1906."

"The Empire of Russia," said the Tsar in his preamble, "is formed and strengthened by the indestructible solidarity of the Tsar with the people and the people with the Tsar. The concord and union of the people and the Tsar are a great moral force, which has created Russia in the course of centuries by protecting her from all misfortunes and all attacks, and has constituted up to the present time a pledge of unity, independence, integrity, material well-being, and intellectual development. Autocratic Tsars, our ancestors, constantly had that object in view, and the time has come to follow out their good intentions, and to summon elected representatives from the whole of Russia to take a constant and active part in the elaboration of laws, attaching for this purpose to the higher state institutions a special consultative body, entrusted with the preliminary elaboration and discussion of measures, and with the examination of the state budget. It is for this reason that, while preserving the fundamental law regarding

autocratic power, we have deemed it well to form a State Duma, and to approve regulations for the elections to this Duma."

By the terms of the call it will be seen, "the fundamental law regarding autocratic power" was preserved with care. And, said the proclamation, "we reserve to ourselves entirely the care of perfecting the organization of the duma." It was to have no power to initiate legislation, but only to discuss and pass judgment upon measures brought before it by the ministers of the Tsar, who thus held fast to the substance of his autocratic power.

The Duma was to consist of 412 members, representing 50 governments and the military province of the Don, and only 28 members representing towns. It was to be elected for five years, unless dissolved sooner by the Tsar. Its meetings were to be secret, except as the president, in his discretion, might admit the reporters of the Press.

The limited functions proposed for the Duma, and the indefinite prescription of procedure in its election, left not much in the Tsar's project of a national assembly to satisfy the nation. In September a large meeting of representatives of the zemstvos, from all parts of the Empire, was held privately at Moscow, and it was there agreed that they should exert themselves to secure as many seats in the coming Duma as possible, with a view to making it instrumental in the movement for something better. The ultimate aim of present endeavor was defined in a programme which included: a representative national legislature; a systematic budget system; freedom of conscience, speech, press, meeting and association; inviolability of person and home; equal rights of all citizens; equal responsibility of all officials and citizens under the law; the abolition of passports.

In October, on the 21st, the workingmen organized their first great general strike, on the railways, which paralyzed travel

and traffic, except as the government could operate some military trains. The strikers made bold demands, presented to Witte on the 24th: "The claims of the working classes," they said, "must be settled by laws constituted by the will of the people and sanctioned by all Russia. The only solution is to announce political guarantees for freedom and the convocation of a Constituent Assembly, elected by direct, universal and secret suffrage. Otherwise the country will be forced into rebellion." Witte replied: "A Constituent Assembly is for the present impossible.

{569}

Universal suffrage would, in fact, only give preëminence to the richest classes, because they could influence all the voting by their money. Liberty of the press and of public meeting will be granted very shortly. I am myself strongly opposed to all persecution and bloodshed, and I am willing to support the greatest amount of liberty possible. ... But there is not in the entire world a single cultivated man who is in favor of universal suffrage." Two days after receiving this reply the Council of Labor Delegates, or "Strike Committee," declared a general strike of workmen throughout Russia, and about a million workingmen are said to have taken the risk of starvation by dropping work.

No doubt it was that evidence of determination in the revolutionary spirit of the country which drew from the Tsar, on the 30th of October, the famous ukase which was characterized hastily at the time as "the Magna Charta of Russia," "the surrender of autocracy," the founding of constitutional government. In reality, the document was no more than an injunction to the ministers of the autocrat to carry out his "absolute will" in certain matters, most of which were set forth with characteristic vagueness of terms. The following is a translation of the entire manifesto, as communicated to the Government of the United States from its embassy at St. Petersburg:

By the grace of God we, Nicholas Second, Emperor and Autocrat of all the Russias, Tsar of Poland, Grand Duke of Finland, etc.

The rioting and agitation in the capitals and in many localities of our Empire has filled our heart with great and deep affliction. The welfare of the Russian Emperor is united with the welfare of the people, and its troubles are his troubles. The agitation which has broken out may bring confusion among the people and threaten the entirety and unity of our Empire.

The solemn vow of the imperial service commands us, with all the strength of intelligence and of our power, to endeavor to stop as quickly as possible agitations so dangerous to the Empire. In ordering the competent authorities to take measures to avert the disorders, the troubles, and violence, and to guard peaceful people who are eager to fulfill quietly the duties placed upon them, we have found it necessary, in order to insure the proper execution of the general measures marked out by us, to unify the action of the supreme government.

We lay upon the government the fulfillment of our absolute will:

1. To grant to the population the inviolable basis of free citizenship, on the ground of actual inviolable personality, freedom of conscience, speech, meeting, and unions;
2. Without stopping the intended elections for the State Duma, to include now in the participation of the Duma as far as possible, in view of the corresponding short term which remains before the convocation of the Duma, those classes of the population which up to now were entirely deprived of the right to vote and to allow in future the further development of the element of a general right of election which is to be established by new legislation; and

3. To establish as an inviolable rule that no law shall take effect without its confirmation by the State Duma and that the persons elected by the population should be guaranteed the possibility of actual control over the legal activity of the persons appointed by us.

We call on all the true sons of Russia to remember their duties toward their fatherland, to assist in combating these unheard-of agitations, and together with us to unite all their strength in establishing quietness and peace in their country.

Given in Peterhof on the 17th day of October in the year of our Lord 1905 and the eleventh year of our reign.

(Signed in his own hand.)
NICHOLAS.

At the same time, the ministers of the autocrat were enjoined to "abstain from any interference in the elections of the duma;" they were to "maintain the prestige of the duma and confidence in its labors, and not resist its decisions so long as they are not inconsistent with the historic greatness of Russia." In the exercise of executive power they should embody "(1) straightforwardness and sincerity in the confirmation of civil liberty;" "(2), a tendency toward the abolition of exclusive laws;" "(3), the coordination of the activity of all the organs of government;" "(4), the avoidance of repressive measures in respect to proceedings which do not openly menace society or the state."

These orders and injunctions from the autocracy to the bureaucracy were to be the constitution of government for which Russia had made demands. They did not satisfy the demand—or satisfied only the small party who were afterwards called "Octobrists," because they asked for no more than was

granted in this ukase of October 30, 1905. The general strike was not called off, but demands for a Constituent Assembly were reiterated persistently. Agitation was kept alive, and with it the murderous warfare waged by revolutionists against high officials and the police. At the same time, reactionary officials and army officers, enraged by what the Tsar had done, stirred up mobs in various parts of the country to attack the Jews, and add to the state of public disorder, thus furnishing arguments for a fresh resort to repressive measures by the military arm. Presently there were serious outbreaks of mutiny in army and navy, at Odessa, Kronstadt, and Sevastopol, and all the foundations of public order seemed really, for a time, to be breaking up.

It is evident there was serious alarm in the circles of the autocracy. Pobiedonostzeff, the bigoted Procurator of the Holy Synod, and Trepoff, the savage head of the police, resigned. On the 4th of November an amnesty to political offenders was proclaimed, and the ancient liberties of Finland were restored, by a decree which abolished that of February, 1899 (see, in Volume VI., FINLAND), and that also annulled a later military law, of 1901, by which the Finnish army had been put on the Russian footing.

These signs of yielding to the claims "of the nation soon gave place, however, to symptoms on the reactionary side of revived courage and obstinacy among the keepers and masters of the Tsar's mind and will. A manifesto on the 12th of November declared that reforms would not be possible till the country was quieted. Another on the 13th proclaimed martial law in Poland; whereat the "strike committee" called another strike in sympathy with Poland.

{570}

On the 14th Witte published an appeal to the workmen, saying: "Brothers! Workmen! Go back to your work and cease from disorder. Have pity on your wives and children, and turn a deaf ear to mischievous counsels. The Tsar commands us to

devote special attention to the labor question, and to that end has appointed a Ministry of Commerce and Industry, which will establish just relations between masters and men. Only give us time, and I will do all that is possible for you. Pay attention to the advice of a man who loves you and wishes you well." The renewed strike was not successful. Not many of the workingmen would face the suffering from non-employment which they had gone through already. The attempt was ended on the 20th; but the Committee which called it, in annulling the order, enjoined the workers of the Empire to organize "for the final encounter between all Russia and the bloody monarchy now dragging out its last days."

Meantime, on the 17th, the Tsar sought to conciliate the peasants by reducing for one year the payments on land that were due under the land distribution which went with emancipation in 1861, and remitting them entirely after January, 1907.

See (in Volume IV.)

SLAVERY, MEDIEVAL AND MODERN: RUSSIA.

On the 20th of November a Peasants' Congress of 300 delegates met in Moscow and formulated demands for the nationalization of land and for a constituent assembly. The delegates were arrested. An alarming mutiny in the fleet and army at Sevastopol broke out on the 26th, but it was soon suppressed. Two days later the whole body of employees in the postal and telegraphic service at Moscow began a most troublesome strike, which spread from there and was continued for some weeks. Mr. Nevinson, who was in Moscow at the time, describes it in one of his chapters:

"In those happy weeks when freedom still was young and living, two things ruled the country—speech and the strike, the word and the blow. The strike was everywhere felt. No letter or telegram went or came. Each town in Russia was isolated, and

the whole Empire stood severed from the world. ... In Moscow the cooks struck, and paraded the streets with songs never heard in the drawing-room. The waiters struck, and heavy proprietors lumbered about with their own plates and dishes. The nursemaids struck for Sundays out. The housemaids struck for rooms with windows, instead of cupboards under the stairs, or sections from the water closets. Schoolboys struck for more democratic masters and pleasanter lessons. Teachers struck for higher pay. ... But at the back of the strikes and all the revolutionary movement lay the motive force of speech. ... After these centuries of suppression, all Russia was revelling in a spiritual debauch of words."

On the 6th of December General Sakharoff, formerly Minister of War and now Governor-General of a district on the Volga, was shot by a woman, to avenge the sufferings he had caused to the peasants. On the 7th the Strike Committee called on the workpeople to withdraw their money from the savings-banks; and, a little later, a joint manifesto, issued by that committee and committees of Peasants, Social Democrats, and Social Revolutionists, appealed generally to the people, not only to withdraw money from the savings banks, but "to refuse to pay taxes, or to take bank-notes, or to subscribe to loans," as a means of crippling the government financially. All papers which published this manifesto were suppressed and their editors arrested.

Then, in the last twelve days of December, came the fatal rising at Moscow, which the government, forewarned by its spies, precipitated, while the revolutionists' preparations were but half made, and which it crushed mercilessly, with ease. From a diary of the occurrences of these tragical days at Moscow, given in the report of the resident American Consul to Ambassador Meyer, at St. Petersburg, the following entries are taken:

"December 24.

Barricades were continually built during days and nights. The revolutionists were in hope that about 20,000 or 30,000 workmen from the factories in the suburbs would enter the city and join them, but this was not accomplished, as the military forces were sufficient to prevent this. The revolutionists spread a rumor amongst the workmen that the soldiers were in sympathy with the strikers and that they would not fire on the mob and would join their ranks, but this rumor turned out to be untrue, as the troops were loyal to the Government. ...

"December 27.

At 6 o'clock P. M. the house where the chief of the secret police, Mr. Voilochenkoff, resides, was surrounded by a revolutionary party and by their insistent demands the front door was opened. Six men rushed into his apartments and arrested the chief, and read the death sentence of the revolutionary party to him. His wife and three children pleaded to the revolutionists for mercy, but the revolutionists would not listen to their pleading, and they gave Mr. Voilochenkoff a short time to prepare for death and then took him out into a side street where he was shot to death, and his body left in the street. Disturbances and shooting were carried on in the different parts of the city, and new barricades erected.

"December 31.

The troops bombarded the large Prochoroff spinning mills, where a large number of revolutionists made their last stand. Many houses in the vicinity of the mill were either burnt down or wrecked by cannon balls. Many of the revolutionists and strikers were killed, wounded, or captured and the weapons confiscated. The general strike has been called off."

This was practically the end of the abortive rising. On the 5th of January, 1906, Ambassador Meyer wrote to the State Department at Washington:

"In my cable of December 25 I stated that although fighting had been stubborn and gatling guns had been used, I believed that the estimates so far given out as to loss of life were much exaggerated. It appears now that I was correct in my surmise, for in a semi-official statement given by one of the papers, from statistics taken at all the hospitals and accident bureaus, the deaths were given as about 750 and the wounded as a little over a thousand.

"I am glad to state that as yet I have heard of no injuries occurring to American citizens in Moscow; in fact in all these disturbances that have taken place in the various cities the revolutionists and strikers have refrained in all instances from attacking foreign consulates, and I believe this also applies to the property of foreign individuals."

{571}

On the 29th of January Ambassador Meyer wrote to Washington: "The revolutionary party seems to have spent its force for the time being. Instead of aiding reforms, they have greatly hampered them. By the attempted capture of Moscow, by their riots and rebellions in other parts of the country, followed by destruction of life and property, they have forced the Government into repression and reactionary methods in order to restore law and order. All this has necessarily caused a delay in the classification of the newly enfranchised voters and has given an excuse for a continued waste of precious time due to bureaucratic formality.

"Some of the factions are finally waking up to the necessity of giving attention to registration and a better comprehension of the coming elections. The Constitutional-Democratic party have decided by a large majority to take part in the elections and the Douma. The Social Democrats have also decided to participate. On the other hand, the Russian Social-Revolutionaries, at their first meeting in Finland,

lately, voted in favor of a boycott of the elections.

"At its last meeting, the Constitutional-Democratic party, in view of obstacles to free election campaigning which the local authorities are using against all opposing parties, voted to protest against the government policy, which in any way impeded free elections to the Imperial Douma, and further urged the most energetic participation of its members in the approaching elections.

"At a meeting of the marshals of the nobility, held at Moscow last week, the following resolutions were adopted: 1. That the final settlement of the agrarian question should be made the first task of the Douma. 2. That in deciding the agrarian question, it should be based on the principle of inviolability of private property."

RUSSIA: A. D. 1904-1905. War with Japan:
Siege and Surrender of Port Arthur.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST) and
1904-1905 (MAY-JANUARY)

RUSSIA: A. D. 1904-1905 (October-May).--War with Japan:
Voyage of the Baltic Fleet.
Its Destruction in the Battle of Tsushima.

See (in this Volume)

JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

RUSSIA: A. D. 1904-1905 (September-March).
War with Japan: Campaign in Manchuria.
From the Battle of Liao-Yang to the end
of the Battle of Mukden.

See (in this Volume)

JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

RUSSIA: A. D. 1904-1909.

General Consequences in Europe of the Weakening of Russian
Prestige and Power by the Russo-Japanese War.

See (in this Volume)

EUROPE: A. D. 1904-1909.

RUSSIA: A. D. 1905.

Action with other Powers in forcing Financial Reforms
in Macedonia on Turkey.

See (in this Volume)

TURKEY: A. D. 1905-1908.

RUSSIA: A. D. 1905 (February-November).

Naval Mutiny.

Army Revolt.

Peasant Risings.

Conflict in the Caucasus.

The most serious of the revolutionary outbreaks of the year was that of mutiny in the navy. "Already in February the sailors of the Black Sea fleet, instigated by the revolutionary propaganda, had burned down the barracks at Sebastopol and assaulted their officers, and on June 27 the crew of the 'Kniaz Potemkin,' the principal battle-ship of the Black Sea fleet, mutinied at sea while the squadron of which it formed part was manoeuvring, and killed nearly all its officers. The mutineers were in league with the working men at Odessa, who at the same time invaded the harbor, and, accompanied by a riotous mob, plundered and burnt in all directions. Property of immense value was consumed, and some of the troops refused to fire on the rioters. Ultimately fresh troops were brought up, the 'Kniaz Potemkin' sailed away to the Roumanian port of Constanza, where it was surrendered to

the Roumanian authorities, who gave up the ship to the Russians, and the crew was landed and disarmed. The crew of another battle-ship, the 'Georgei Pobiedonosets,' took part in the mutiny, but surrendered to the Russian authorities at Odessa. Riots also took place at the same time at the seaports of Reval, Riga, Libau, and Kronstadt, where the dockers were joined by the navy men and struck for an increase of wages. ... On July 10 Count Schouvaloff, Prefect of Police at Moscow, was assassinated, and a general strike was proclaimed at Minsk. ... In the Baltic provinces the peasants, who are Letts, constantly attacked the landed proprietors, who are German in race and speech; many of the latter were killed, the municipal buildings at Reval, Riga and Mittau were sacked. ... In September the conflict which had been going on between the Tartars and the Armenians in the Caucasus culminated in a series of horrible massacres, accompanied by much destruction of property. At Baku most of the naphtha wells were destroyed by incendiary fires, and very much of the oil industry was ruined. The Tartars, carrying green banners, proclaimed a holy war against the Armenians, many thousands of whom were killed. ... On November 25 an organized revolt took place of the soldiers, sailors and workmen of Sebastopol. There was no rioting, but several officers were killed, and for some days the town was in the hands of the rebels. The revolt was only suppressed on November 30, when a regular battle took place between the rebels and 20,000 troops that had been brought up against them. Forts and loyal ships fired on mutinous ships, and the barracks held by the rebels had to be bombarded before they were forced to surrender. ... Other mutinies of troops took place at the same time at Warsaw and in other places."

***The Annual Register 1905,
pages 313-323.***

RUSSIA: A. D. 1905 (April-August).
The Tsar's Decree of Religious Liberty.
Minister Witte's enlightened Memorial.

The Emptiness of Results.

Early in May, 1905, there was announcement that the Tsar, on the morning of the Russian Easter Day, had published a decree proclaiming absolute religious liberty to all his subjects. Previous tolerance of all religions in Russia had been subject to important limitations. No member of the state church could leave it to enter another without losing all his civil rights, and no church other than the Orthodox could proselyte. Furthermore, when members of the Russian Church and those of any other church married, it was necessary to have the ceremony performed by an Orthodox priest, and the law insisted that the children of such marriages be brought up in the Orthodox faith. These restrictions were particularly hard on the Old Believers, as they are called,—a body which separated from the Orthodox Church two and a half centuries ago and has suffered all kinds of persecution. The new ukase recognized the various orders of priesthood among the Old Believers, and gave them the right to celebrate marriage. To all the dissenting sects—Roman Catholics, Lutherans, Jews, and others—is accorded the right to erect houses of worship without restriction.

{572}

The Tsar's decree of entire religious freedom was known soon to have been the fruit of a remarkably broad minded memorial addressed to him by M. Witte, the President of his Council of Ministers, and a translation of that memorial was published in the May issue of ***The Contemporary Review***. It pictured a state of paralysis in the Russian Church, consequent on its bondage to the State. "Both the ecclesiastical and the secular press," said the writer, "remark with equal emphasis upon the prevailing lukewarmness of the inner life of the Church,—upon the alienation of the flock, particularly of the educated classes of society, from its spiritual guides; the absence in sermons of a living word; the lack of pastoral activity on the

part of the clergy, who in the majority of instances confine themselves to the conduct of divine service and the fulfillment of ritual observances; the entire collapse of the ecclesiastical parish community, with its educational and benevolent institutions; the red-tapism in the conduct of diocesan or consistorial business, and the narrowly bureaucratic character of the institutions grouped about the Synod. It was from Dostoyevski that we first heard that word of evil omen, 'The Russian Church is suffering from paralysis.'"

This condition M. Witte attributes to the position in which the Church was placed by Peter the Great. "The chief aim of the ecclesiastical reforms of Peter I. was to reduce the Church to the level of a mere government institution pursuing purely political ends. And, as a matter of fact, the government of the Church speedily became merely one of the numerous wheels of the complicated government machine. On the soil of an ecclesiastical government robbed by bureaucratism of all personal elements the dry scholastic life-shunning school arose spontaneously. This policy of coercing the mind of the Church, though it may have been attended for the moment by a certain measure of political gain, subsequently inflicted a terrible loss. Hence that decline in ecclesiastical life with which we now have to deal."

The wise President of the Tsar's Council made so much impression on the mind of his master as to draw from him the ukase of general religious freedom; but three months later, in the August number of ***The American Review of Reviews***, Dr. E. J. Dillon, whose intimate knowledge of Russian affairs is well known, described how effectually the decree had been smothered by the bureaucracy, which is stronger than the Tsar. He wrote: "The most welcome of all the concessions emanating from the throne was that which Nicholas II. bestowed upon his subjects last Easter Sunday. Inspired and drafted by M. Witte, it was at first spoken of as liberty of conscience, but was

soon afterward seen to amount to nothing more than religious toleration. And since then the bureaucracy has touched and killed it."

RUSSIA: A. D. 1905 (June-October).

Ending of the War with Japan.

Mediation by the President of the United States.

The Peace Treaty of Portsmouth.

See (in this Volume)

JAPAN: A. D. 1905 (JUNE-OCTOBER).

RUSSIA: A. D. 1905-1907.

The Recent Russian Political Parties.

As explained by Mr. Maurice Baring in his interesting book entitled ***A Year in Russia***, the crystallization of political parties in Russia began after the issue of the Manifesto of October, 1905. The most important was that of the Constitutional Democrats, nicknamed the "Cadets," a name formed from the letters "K. D." Similarly the party called Social Revolutionaries are nicknamed "S. R's." and the Social Democrats "S. D's." The party of the Constitutional Democrats was the product of a combination of Zemstvo members who had previously been united in a "League of Liberation" with the professional classes, whom Professor Milioukov had brought together in a "Union of Unions," which represented the great mass of educated Russia—the "Intelligenzia." This combination of the professional class with the Zemstvoists, who had more political experience than others could enjoy in Russia, was mainly the important work of Professor Milioukov.

RUSSIA: A. D. 1906.

The First Duma.

Election of Representatives.

Its Conflict with the Government and its Dissolution.

Rise of M. Stolypin.

The Instigated Massacres (Pogroms).

In January, 1906, when the Duma promised by the Tsar on the 19th of the previous August should have met, the conditions in the country were such that the Government dared not permit the meeting to be held, and it was postponed without date. After some weeks a more submissive state of order was restored, and the meeting was appointed for the 10th of the following May. The elections were held in March, and Ambassador Meyer described the system on which they were conducted in an extended despatch to the State Department at Washington, from which the following is borrowed:

"The total number of members of the Duma, when the elections shall have finally been completed, will be 501. The elections are, however, not carried on the same day throughout the country. Governors and vice-governors, prefects of cities and their lieutenants cannot vote in their departments, nor can members of the army or navy who are on active service, or persons doing police duty in governments or cities when elections are taking place.

"The voters are divided into classes, and that it may be more clearly shown I have made the following table;

Peasants.

Clergy

Cities not in special list

Volosts

Workmen

-----> Delegates -> Electors -> Duma Members

Landed proprietors

and special cities.

-----> Electors -> Duma Members

{573}

"From this it will be seen that the peasants are in a class by themselves and, as a matter of fact, in the present elections are not given an opportunity of expression, as it is the volosts (elected at the mir, in most instances, before the Duma was even granted) that choose the delegates. The volosts, workmen, clergy (not lauded proprietors), voters of cities (not in special list), and class C of lauded proprietors, all choose delegates. These delegates, in turn, select electors, as do also landed proprietors, and qualified voters of cities on the special list. The electors vote for Duma members in their appropriate electoral college, and their choice is confined to a member of their own body. Therefore in every instance, in order to become a member of the Duma, a candidate must be an elector and previous to that a delegate, except in the case of landed proprietors and voters of special cities. ...

"It is noticeable that the large cities in European Russia are limited to one member of the Duma, with the exception of Moscow and St. Petersburg, the former having an allotment of four and the latter of six.

"There is an exceptional provision with regard to the procedure of the peasant electors. ... Elections to the Duma, with the exception cited as to the privilege of peasant electors, are finally effected in the governments and territories by the government electoral college, and in the cities by the municipal electoral college."

Mr. Meyer reported further that an imperial manifesto had announced that the Council of the Empire would in future "consist of an equal number of elective members and members nominated by the Emperor. It will be convoked annually by an

imperial ukase at the same time with the Duma. The two assemblies will have equal legislative powers, and each can exercise the same initiative in introducing bills or interrogations. Every bill must be passed by both houses before being sent to the Tsar for his signature and approval. The elected members of the Council will be eligible for nine years, a third being reelected every three years." Of the 98 elective members of the Council (one half of the body), 18 were to be chosen from the nobles, 50 from the zemstvo of each government, 6 from the Orthodox Church, 6 from the universities, 12 from the representatives of the Council of Commerce and Industry, and 6 from representatives of the Polish landed proprietors.

On the 7th of April Ambassador Meyer wrote to Washington concerning the result of the elections: "The success of the Constitutional Democrats has made a great impression on the Government and created considerable nervousness. Witte is really anxious to resign and go out of the country for a much-needed rest. But he assured a mutual friend that he would stay and serve the Emperor as long as His Majesty desired. The elections so far have impressed upon his mind the want of confidence which exists among the people as to his administration. As he is without any supporters among the elected members of the Duma, it is difficult to believe that the Emperor will be able or even desirous of having him continue to serve as premier after the Duma is organized."

This anticipation proved correct. M. Witte had withdrawn from the ministerial premiership when the Duma assembled on the 10th of May, and M. Goremykin had taken his place.

There was conflict between the Duma and the Government from the moment that the former adopted its reply to the opening speech of the Tsar. With unanimity it demanded general amnesty for past political offenses, abolition of the death penalty, suspension of martial law, full civil liberty, universal

suffrage, abolition of the council of the empire, a review of the fundamental law, responsibility of ministers and right of interpellation, a forced expropriation of land, and a guarantee of rights to trade unions.

M. Stolypin, Minister of the Interior, now coming to the front of ministerial leadership, made his first speech in the Duma on the 21st of June, and was assailed with cries of "Murderer" and "Assassin" when he defended illegal acts of police officials and provincial governors, in the suppression of disorder, and declared his determination to maintain order. Among the replies to him was one by Prince Urussoff, former Assistant Minister of the Interior, who made a powerful attack on the sinister methods of the Government—the "policy of massacre," as he named it—declaring that massacres were always organized by secret forces. "Any investigation," he said, "of the so-called 'pogroms' (massacres) will bring the investigator face to face with the following certain symptoms; they are identical in all cases; Firstly, a massacre is always preceded by reports of its preparation, accompanied by the circulation of appeals exciting the population and of one constant kind in form and substance. They are accompanied by a certain kind of stormy petrels in the person of little known representatives of the dregs of the population. Then, too, the cause of the massacre as officially announced is afterwards always without exception found to be false. Furthermore, in these massacres there is always to be found a certain similarity of plan which gives these actions the character of chance. The murderers act on the assumption of some kind of right, as though conscious that they will not be punished, and only continue to act as long as this confidence remains unshaken—after which the massacre stops extraordinarily quickly and easily."

What Prince Urussoff had intimated, as to the instigation of the massacres from high circles was declared most distinctly and positively, three years later, by Prince Kropotkin, in a letter to the London *Times* of July 29, 1909. He wrote:

"Something which never has happened anywhere in Western Europe happened then in Russia, as M. Obninsky, a member of the first Duma, says in a terrible book of statistics he has published in 1906 at Moscow, under the title, 'A Half-Year of the Russian Revolution.' In a hundred different cities men of the so-called 'Black Hundreds' came together on some public square, received there the benediction of the clergy, sent telegrams to the Palace circles in St. Petersburg, received answers from them, and then went on killing the Jews, the Armenians, the Poles, the Russian members of the Zemstvos, and Russian 'Intellectuals' altogether, under the protection of the military, the local police, and the local governors.

{574}

"For some time I could not believe that such **pogroms** could have been organized from St. Petersburg by the authorities. Now the evidence is overwhelming. We know that proclamations inciting to **pogroms** were printed by the gendarmes in the Secret Police offices, we know from the revelations of these gendarmes themselves that men and officers were sent to the provinces with proclamations and arms to organize the pogroms; and we know how the leaders of the Union of Russian Men were petted and given money by the Tsar and how they organized murders, wholesale and retail, with the aid of members of the Secret Police; and here is the net result which I have before me in a long, very long, list compiled by the Law Review **Pravo**.

"This list is simply horrifying. The Constitution manifesto was signed on October 30. The same day took place the **pogrom** at Tver; the Zemstvo house was burnt, and 24 persons were wounded. At Moscow, November 2, 30 wounded; Odessa, October 31-November 3, more than 1,000 killed and 5,000 wounded; Kieff, October 31, 150 killed, 100 wounded; Tomsk, November 3, 150 killed and burned, 76 heavily wounded (all these, by the way, and many others are Russian towns);

Minsk, 100 killed, 400 wounded; Tiflis, November 2, more than 100 killed; and so on, and so on. ... The result of similar campaigns in different parts of Russia for twelve months only in 1905-1906 was—killed, more than 14,000; executed, about 1,000; wounded and partly died from wounds, about 20,000; arrested and imprisoned, mostly without judgment, 75,000. This last figure was given in the Duma by Professor Kovalevsky on May 2, 1906, in the presence of M. Stolypin, who did not contest it."

On the 22d of July the Duma was dissolved by imperial command, and the following manifesto to the people was published by the Autocrat on the following day:

"Persons selected by the people were called to the legislature. Trusting in the goodness of God, believing in the happy and grand future of our people, we were expecting from their labors the happiness and interest of the country. Great reforms had been indicated by us in all that concerns the life of the people, and our greatest care, which is to substitute education for the ignorance of the people and to lessen the difficulties of its life by improving the conditions under which it cultivates the ground, was foremost. A painful ordeal was reserved to our hopes. The elected of the nation, instead of turning their attention to legislative labors, have entered a field that was closed to them, and have begun to investigate the doings of authorities established by us, to indicate to us the imperfections of fundamental laws that can only be altered by our imperial will, and to commit illegal acts, such as the appeal addressed to the people of the Duma.

"The peasants, dazed by these disorders, without waiting for the legal improvement to their position, gave themselves up, in a great number of governments, to pillage and theft, refusing to submit to the law or to legal authorities. ...

"By dissolving the actual Duma of the Empire we testify to our

unalterable intention of maintaining, in all their force, the laws concerning the establishment of that institution, and, consequently, we have fixed, by our ukase given to the ruling Senate on the 8th July instant, the convocation of the new Duma on the 20th of February, 1907."

About two hundred members of the dissolved Duma went immediately from St. Petersburg to Viborg, in Finland, and held a meeting there, from which they published an address to the "Citizens of all the Russias," signed by one hundred and sixty of their number, protesting against the opposition which the Duma had encountered from the Government in all its undertakings, and practically refusing submission to its dissolution. "In the place of the present Duma," they said, "the Government promises to convoke a new one in seven months. ... For seven months the Government will act as it likes, will wrestle with the movement of the people in order to obtain a submissive and desirable Duma, and if it succeeds in entirely crushing the movement of the people it will not convoke any Duma at all. Citizens, stand firmly by the trampled rights of the representatives of the people. Stand for the Duma of the Empire. Russia must not remain one day without representatives from the people. We have the means of obtaining this. The Government has not the right without our consent to collect taxes from the people, nor to call the people to military service, and therefore, now, when the Government has dissolved the Duma of the Empire, it is your right to refuse to supply it with soldiers or money. If the Government, in order to secure resources, makes loans, such loans, made without consent of the representatives of the people, will henceforth be invalid, and the Russian people will not recognize them and will not pay for them. Consequently, until the representatives of the people are convoked, do not pay a kopeck into the treasury nor send a man to the army. Be firm in your refusal; stand for your rights, all as one man. Against the united and absolute will of the people no power whatever can resist. Citizens, in this compulsory but inevitable struggle your

representatives will be with you."

This proved to be futile action. The Government was prompt in arresting and imprisoning most of the signers of the appeal to the people, and none of them was allowed to be returned to the Second Duma when the new elections were held. Pending that election, some very substantial gifts of imperial favor were made to the peasants, to win their good will, but nothing appears to have been remembered of the October injunctions of the Tsar concerning the "confirmation of civil liberty." In August, 4,500,000 acres of crown lands were transferred by an imperial ukase to the Peasants' Bank, for sale to the peasants on easy terms; and on the 18th of October another ukase released them to a large extent from the restraints of the communal system, and decreed the equality of all citizens before the law. The following is part of the text of this important decree, as communicated in translation to the American government by Ambassador Meyer, and published in the report of 1906 on Foreign Relations.

"The Czar orders, on the basis of the fundamental law of 1906, that the following reforms be made:

"1. To accord all Russian subjects, without distinction of origin, with exception of the aborigines, equal rights with regard to the state service with persons of noble blood, and at the same time to abolish all special privileges of dress due either to official position or to the origin of the wearer.

{575}

"2. Peasants and members of other classes formerly taxable are freed (a) from the presentation of discharge papers on entering an educational institution or the civil service; further, from personal payment in kind and the performance of communal duties during the whole time the persons in question

may be either in the educational institution or civil service;
(b) from the necessity of demanding for entry into holy orders or a monastery the permission of the commune.

"3. The compulsory exclusion of peasant and other classes formally taxable from the following ranks and careers is abolished;

- (a) From entering the civil service;
- (b) from receiving rank;
- (c) from receiving orders and other distinctions;
- (d) from attaining learned grades and honors;
- (e) from completing educational courses and particularly from winning higher class rights.

"In all these cases the persons in question are allowed to retain all the rights arising from their connections with their commune, as well as the responsibilities thereof, until they have freely withdrawn from the commune or entered into other corporations of standing. With regard to the legal standing of the persons in question, there shall serve as a basis the regulations of the rank or profession which these persons have won."

See, also, below,
RUSSIA: A. D. 1909 (APRIL).

Meantime, extensive plans of insurrection, with naval and military mutiny, in five cities, had been formed and had miscarried. The outbreak was premature at Sveaborg, late in July, and the sailors who started it were quickly overcome. The same failure occurred at Kronstadt, where the revolutionists and mutinous troops took Fort Constantine and the arsenal, but found no ammunition in the latter, and were defenseless when surrounded by loyal forces. At Libau, Odessa, and Sevastopol the intended rising was given up.

On the 25th of August a desperate plot of wholesale murder,

intended to include M. Stolypin among its victims, was carried out by the explosion of a horribly destructive bomb at the country house of that Minister, on Aptekarsky Island. M. Stolypin was holding a reception, and the rooms were crowded with officials and others, when four conspirators, three of them dressed as gendarmes, drove up boldly, and were able, either to enter the house with a bomb or to throw it through a window. The effect of the explosion was so horribly destructive that the house was torn to pieces and thirty people were killed outright or injured mortally, besides an equal number that received curable wounds. Two of the Minister's children were among the latter, and he himself received slight injuries. The Governor of Penza, M. Koshoff, who stood near him, was instantly killed. Two of the assassins were among the killed and the other two were wounded and captured. On the following day a young woman of the terrorist organization slew General Min, at Peterhof railway station, by shots from a revolver. He had been active in suppressing the insurrection at Moscow.

In October Ambassador Meyer, after a trip into Poland and to Odessa, reported as the result of his observations:

"On the whole, the revolutionary movement, for the time being, has lost its momentum. A year ago it was on the crest of the wave. Then a strike could be ordered and put in force without any difficulty, but now the workmen refuse to be used for political purposes or respond to the whims of the agitator. The present conditions are liable to continue until the next Duma, March 5. Yesterday, which was the first anniversary of October 17 (Russian Style), it had to be given out by some of the revolutionists that there would be strikes, uprisings, and agitations throughout the country. But the day passed off quietly. Mr. Stolypin is facing with much courage and resolution the stupendous task which confronts him. He is endeavoring to deal fairly, while at the same time it is necessary to reestablish law and order."

On the 21st of December Count Alexei Ignatieff was assassinated at Tver, while attending a meeting of the provincial zemstvo, the assassin stating that he had acted under orders of the Socialist revolutionary committee.

RUSSIA: A. D. 1906 (April).

Invitation of the Nations to a Second Peace Conference by the Tsar.

See (in this Volume)

WAR, THE REVOLT AGAINST; A. D. 1907.

RUSSIA: A. D. 1906 (April).

At the Algeciras Conference on the Morocco Question.

See (in this Volume)

EUROPE A. D. 1905-1906.

RUSSIA: A. D. 1907 (August).

Convention with Great Britain containing Arrangements on the subject of Persia, Afghanistan, and Tibet.

See EUROPE: A. D. 1907 (AUGUST).

RUSSIA: A. D. 1907.

The Second Duma and its Early Dissolution.

Increase of Radicalism among its Members.

The New Electoral Law, under which a "Workable" Third Duma was elected.

M. Stolypin's Policy.

The promise that a second Duma would be summoned to meet in March, 1907, was fulfilled. Between the 21st of January and the end of February elections were held, with results that were exceedingly disappointing and irritating to the imperial government. It strove hard, by arbitrary measures and vigorous

working of its police, to suppress the Constitutional Democrats,—the party which it fears the most. It pursued their leaders into exile or imprisonment, broke up their meetings, harassed them so in the canvass and the election that the return of deputies by the party was reduced from 185 in the First Duma to 108; but, on the other hand, the Socialist representation in the Second Duma was raised above that in the First from 17 to 77, and the Octobrists elected 31 deputies, gaining 18 more seats than they had filled before. On the whole, as a consequence, the Second Duma held more radicalism in its make-up, with less intelligence, than the First.

Its meetings were opened on the 6th of March, and soon gave evidence that the antagonisms in the body were too extreme for any influential political work. In June M. Stolypin accused most of the Socialist members of being parties to the revolutionary propaganda in the army and navy, and demanded their suspension by the Duma. It refused to suspend them without an investigation of the truth of the charge, and appointed a committee to receive such evidence as the government could bring. Thereupon the Tsar, by a manifesto published on the 16th of June, dissolved the Second Duma as summarily as he had dissolved the First, ordered new elections, to begin on the 14th of September, and summoned the Third Duma, then elected, to meet on November 14th.

{576}

At the same time a new electoral law was proclaimed, in flagrant violation of the so-called Constitution of October 30, 1905, which had declared, as an "immutable rule," established by the "inflexible will" of the Tsar, that "no law can ever come into force without the approval of the State Duma." The new law was planned carefully and skilfully to disfranchise great numbers in the classes of people which autocracy fears; to add weight to the votes of the classes on which it leans; to diminish the representation of industrial

cities, as well as of non-Russian districts,—Poland, Siberia, etc.,—and, generally, to make a farce of the pretended concession of representative and constitutional government which the autocratic court had been playing for the amusement of the country during the past two years.

The new electoral law accomplished its purpose of securing a Duma that would keep workable relations with M. Stolypin. A very intelligent English publicist, Dr. Dillon, who discusses Foreign Politics every month in the *Contemporary Review*, whose views are broadly liberal as a rule, and whose acquaintance with Russian affairs seems to be specially intimate, inclines to justify the measure on this practical ground, or, rather, to accept it as approved by this result. When the make-up of the Third Duma had become known he wrote, in the *Contemporary Review* of December, 1907, as follows:

"M. Stolypin's electoral law has been criticised severely. And, to be frank, one must admit that from the point of view of men who advocate universal manhood suffrage it is a mere mockery. For it suspended the right of election in some places, arbitrarily lessened the number of representatives in certain provinces, created groups of electors, and authorised Government officials to decide how they should be formed; in a word, it is a means of manipulating the elections for the avowed purpose of having a certain stamp of men returned and another type of men eliminated. To say that the Chamber which has resulted from these expedients is not the elect of the nation is, of course, a truism. It is not, and was not, meant to be this. ... The data respecting the intellectual and social status of the newly elected are still very defective and untrustworthy. But so far as they go, they show that among the men who are about to rescue Russia from ruin there are:—

Members of the nobility

157	
	Priests
51	
	Merchants
22	
	Peasants
77	
	Petty tradesmen
6	
	Working-men
15	
	Honorary burghers
8	
	Ex-officers
20	
	Officials
56	
	Zemstvo workers
27	
	Employees of municipalities
23	
	Marshals of nobility
36	
	Cantonal elders and secretaries
21	
	Men who have been educated in high schools 167
	Men who have been educated in intermediate schools 82
	Men who have been educated in primary schools 61

	Members educated at home
23	
	Between the ages of 25-30
19	
	Between the ages of 30-40
81	
	Between the ages of 40-50
87	
	Between the ages of 50-60
47	
	Between the ages of 60-70
13	
	Between the ages of 70-80
1	
	Members of the Second Duma
59	
	Members of the First Duma
7	
	Members of the Council of the Empire
3	

A month later the same writer said:

"The Third Duma is already a month old, and has as yet done no work, has not even organised itself. *Festina lente* is evidently its maxim, with the accent on the second word. Debates there have been not a few, but they were as the noise of sounding brass and tinkling cymbals. The first discussion took place on the motion to thank the Tsar for the October Manifesto, which created the Legislative Chamber. A great majority of the deputies—including the Constitutional Democrats, who are adjusting themselves to their environment—were in favour of expressing their gratitude, but

they could not agree how to call the institution for which they felt grateful. Some wanted to name it a Constitution, others 'a renovated order of things.' If it is a Constitution, then there is no Autocrat, the Octobrists argued, and consequently that title of the Emperor must be dropped. 'If we are bent on thanking the Tsar,' replied the Conservatives, 'let us do it with a good grace. Whatever name we may give to the present *régime*, the title of the ruler has undergone no change. He was an Autocrat when he ascended the throne, and he is an Autocrat to day. Proofs? They are as plentiful as blackberries.' ...

"But the Constitutionalists—and among them the Octobrists favoured by M. Stolypin—insisted. 'By the Manifesto,' they argued, 'the Tsar limited his authority and curtailed his prerogatives. Thus it is no longer in his power to issue laws without the approval of the Duma; neither can he abrogate any of the Organic Statutes.' 'You are mistaken,' answered the Monarchists. 'Have the Organic Statutes not been already altered? Has the "immutable" electoral franchise not been changed?' ... But the Octobrists stood their ground, and the address was voted with a flaw in the Tsar's title. That was the work of one whole day and part of a night—an unlucky day—the 13th November Russian style. In this way the Duma offered the Sovereign a pot of honey mingled with wormwood. The Premier was upset, the Tsar offended, and the Monarchists indignant. 'This, then,' the Monarchists exclaimed, 'is M. Stolypin's Duma, the areopagus which is to prescribe remedies for the Russian nation now at death's door?'

"Three days later came the Premier in a *quos ego* mood. And he was at his best. Ever since his first appearance as a public orator, M. Stolypin has kept the high place he then won. His eloquence, like his character, is manly, and his utterance impressive. His look, his accents, his gestures, betoken sincerity, and his manner is warm with the heat of subdued enthusiasm. On this historic day he simply electrified

the House, captivated his adversaries, and extorted applause from his bitter enemies. And yet he was battling with the Duma, swimming against the current. He spoke of the Autocratic power and of the Autocratic Sovereign, and had the satisfaction of being interrupted by enthusiastic cheers. ...

{577}

"Happily M. Stolypin is a man of steadfast purpose rather than brilliant intellect, for his moral qualities may stand him in better stead, during the revolutionary crisis than would rare mental gifts. At bottom his temper is Liberal rather than Conservative, and mainly for that reason he would seem to have been chosen to be sexton of the old epoch and harbinger of the new. ...

"No fair-minded man can doubt the sincerity of M. Stolypin's Liberalism. It has withstood the test of time and the pressure of unfavourable circumstance. His faith in Liberal specifics is so firm that he declines to diagnose any diseases that call for more drastic remedies. ... M. Stolypin is at present the only influential politician in Russia who is working efficaciously for the Liberal cause. He is systematically removing hindrances to Constitutionalism which are most formidable at the outset. ...

"But the greatest service which any Minister could render a cause was performed by M. Stolypin for Liberalism at a time when it depended on him either to lay the groundwork for a Constitutional fabric or to establish firm Monarchical government. And for that service he deserves, and may yet receive, a public monument from Democratic Russia. He advised the Tsar to summon the Third Duma soon after the Second, and to issue no laws in the meanwhile. That was really the turning point in the history of Russia's Constitution, the *magnum opus* of M. Stolypin's political life. And he followed it up with a step more extraordinary and decisive still. He

himself had recourse to the Autocratic power which it is the tendency of his policy to annihilate, and he used it for the purpose of destroying Autocracy. That surely was a ***coup de maître*** which entitled the Minister to the undying gratitude of all Liberal Russia. But not a Liberal uttered a word of thanks. This deadly blow was struck at the Autocracy in the following way:

"The Electoral Law opened the portals of the Duma chiefly to Democrats and other irreconcilable enemies of the Monarchy, and so long as it remained in force, no Duma acceptable to the Government was possible. Yet it could not be abrogated. For, together with the Organic Statutes, it had been declared part of the unchangeable Constitution. The Tsar's hands, therefore, were tied, his word was pledged, and the result was a deadlock. Autocratic power could not be wielded anew without effecting a perilous ***coup d'état***. Well, the Premier advised the Crown to seize once more the sword of the Autocracy, and with it to hew off the branch on which the Autocrat was sitting. That was the true significance of the measure against which the enemies of the Autocracy still cry out. For the object directly aimed at and immediately attained by this ***coup d'état*** was the creation of the Octobrist Party, whose first work in the Duma was to declare that the Autocracy had gone forever."

E. J. Dillon,
Foreign Affairs
(Contemporary Renew, January, 1908).

RUSSIA: A. D. 1907 (November).

Treaty with Great Britain, France, Germany, and Norway,
guaranteeing the Integrity of Norway.

See (in this Volume)
EUROPE: A. D. 1907-1908.

RUSSIA: A. D. 1907-1909.

Action in Persia during the Constitutional Revolution.

See (in this Volume)

PERSIA.

RUSSIA: A. D. 1908.

Evasion of the Conscription.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1908.

RUSSIA: A. D. 1908.

North Sea and Baltic Agreements.

See (in this Volume)

EUROPE: A. D. 1908.

RUSSIA: A. D. 1908.

Proxy Parliamentary Vote given to Women of Property.

See (in this Volume)

ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

RUSSIA: A. D. 1908.

Policy of Prussia in her Polish Provinces dictated by
her relations to Russia.

See (in this Volume)

GERMANY: A. D. 1908 (JANUARY).

RUSSIA: A. D. 1908 (September).

Withdrawal from Intervention in Macedonia.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER).

RUSSIA: A. D. 1908-1909.

Attitude toward the Austrian Annexation of Bosnia and Herzegovina.

Was the Government coerced by German Threats?

See (in this Volume)

EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

RUSSIA: A. D. 1908-1909.

Exercise of Disputed Authority in Northern Manchuria.
The Kharbin question.

See (in this Volume)

CHINA: A. D. 1909 (MAY).

RUSSIA: A. D. 1908-1909.

Measures for the Destruction of the Constitutional Autonomy of Finland.

See (in this Volume)

RUSSIA: A. D. 1908-1909.

RUSSIA: A. D. 1909.

Oppressions continued.

Executions, Imprisonment, Exile, Torture, Persecution.

On the 1st of August, 1909, a letter was addressed to the British Secretary of State for Foreign Affairs by one hundred and eighty men of distinction in Great Britain,—Members of Parliament, Peers, Bishops and other clergymen, University professors, authors, editors,—asking the Government to exert such influence as might be possible with that of Russia, to induce a relaxation of the system of repression still maintained in that unhappy country, and to ameliorate the dreadful barbarities which go with imprisonment there. "We know," said these memorialists, "how slow has been our own progress in the past, and how many points in our present

condition are open to independent criticism. We are conscious of the difficulties that attend all reforms, and we desire that no feeling of impatience should cause us to withhold our sympathy from every sincere attempt to promote good government among a friendly people.

"It is in no spirit of ungenerous remonstrance that we are constrained to observe that for four years a system of repression has been maintained in Russia, which has not relaxed its severity though the evidences of any organized revolutionary movement have dwindled and disappeared. There has recently been an announcement of some relaxation in particular districts, but the greater portion of the Empire remains, in time of peace, under some form of martial law. The number of capital sentences on civilians for the period between October, 1905, and December, 1908, has reached 4,002, and the number of executions was officially stated to be 2,118. These sentences were passed, moreover, not by ordinary civil process, but by exceptional military Courts. The number of persons in exile in Siberia and Northern Russia, mostly punished without trial by administrative process, under a system of exile, which involves much physical suffering and privation, was officially reckoned in October last at 74,000.

{578}

"The number of persons exiled without trial under administrative decree cannot be realized without a serious protest, but the evidence which has reached us through the Press, from trustworthy witnesses, and above all from the reports of the debates in the Duma, has persuaded us that the sufferings of those who remain in prison justify, nay, require, a stronger remonstrance. Over 180,000 persons—a total which has more than doubled since 1905—criminals and political offenders, are crowded together in prisons built to hold 107,000. In most of these prisons epidemic diseases, and especially typhus, are prevalent; the sick and the whole lie

together—their fetters even in cases of fever are not removed. In some prisons the warders systematically beat and maltreat the sick and the whole alike. There is also evidence of more deliberate tortures, employed to punish the defiant or to extract confession from the suspect.

"Such excesses would move our indignation were all the victims ordinary criminals. We desire to base our protest on the ground of simple humanity; but it is none the less important to remember that many of these prisoners, if guilty at all, are suffering for acts or words which in any constitutional country would be lawful, or even praiseworthy.

"Our object in addressing you is to draw your attention to these facts and to place on record the impression which we have formed of them. That no direct intervention is possible we fully realize, nor do we wish to enlarge the area of international controversy. But there are probably means by which a friendly Government may exert an influence to ameliorate the lot of those who are suffering under the evils which we have described. The infliction of such wrongs upon Russians and the indignation which they excite among ourselves, are relevant and important factors in our mutual relations, of which the two Governments should be fully informed."

Later and more specific facts, illustrative of the arbitrary and barbarous oppression under which the Russian people are still suffering, were given in ***The Outlook*** of October 9, 1909, from which the following is taken:

"In the first seven months of 1909 military courts sentenced 841 persons to death in Russia and up to the 1st of August 381 of the persons so sentenced had been hanged or shot. Nearly all were civil or political offenders, who, in a constitutional country, would have been tried with proper legal forms and guarantees in the regular civil tribunals. In

these same seven months the publishers of 109 periodicals in Russia were fined in the aggregate sum of 54,425 rubles for publishing news or expressing opinions obnoxious to the Government, and in addition to these pecuniary punishments whole editions of papers and magazines were seized and destroyed, printing offices were closed, editors were arrested and employees were exiled—all by administrative process. In the month of June, 1909, three newspapers were suppressed altogether, and in August, 1909, the St. Petersburg journal *Reitch* (Speech), the organ of the Constitutional Democrats, was fined 500 rubles for printing a signed article entitled 'Suicide in the Army,' which was based wholly on reports of the Ministry of War.

"On the 28th of May, 1909, Mr. Selden, a St. Petersburg publisher, was sentenced to six months' imprisonment in a fortress for publishing one of Count Tolstoy's books, and on the 17th of August, 1909, the Count's private secretary, Mr. N. N. Gusef, was exiled by administrative process to the province of Perm for distributing the venerable author's brochure entitled 'Thou Shalt Do No Murder.' In July, 1909, Mr. W. Bogoras, author of Volume eleven of the *Memoirs of the American Museum of Natural History* (one of the Volumes containing the scientific results of the Jessup North Pacific Expedition), was sentenced to two months' imprisonment for describing the beating of citizens of Tver by dragoons in 1905, a thing that he had personally witnessed. ...

"In August, 1909, the 'Authors' and Scientists' Mutual Benefit Society,' a benevolent organization which had been in existence for eighteen years, which had eight hundred members, and which included most of the writers and scholars of Russia, was suppressed by order of Premier Stolypin, for the ostensible reason that it had given pecuniary aid to an indigent author named Vitashefski—a man of advanced age who had once, twenty years earlier, been sent to Siberia for political crime. It is believed, however, that the real reason

for the suppression of the Society is the fact that most of its members are liberals. The existing Government is extremely intolerant toward social organizations that take an independent or critical attitude toward the reactionary policy now in force. On the 21st of July, 1909, the severest form of martial law, the so-called 'law of extraordinary defense,' was proclaimed in St. Petersburg for the seventh consecutive time. The city has been under some form of martial law ever since the assassination of Alexander II. in 1881. Almost the only encouraging feature of the present situation in Russia is the fact that the members of the Duma are still allowed to talk, and the newspapers are still permitted to publish verbatim reports of the debates. The lower house of the so-called Parliament has no independent power, and no real control even over the finances of the Empire; but it can criticise, interpellate the Czar's Ministers, and promote to some extent the political education of the people.

"Three years ago Premier Stolypin defined his policy as 'progressive reform, with the restoration of order.' He has partly restored order, by hanging, imprisoning, or exiling to Siberia a large part of the disorderly population; but his reforms have 'progressed' as the land-crab is popularly supposed to walk—backward. Whether he is wholly to blame for the reactionary policy that he is enforcing, or whether he acts more or less under compulsion, we shall not know, perhaps, until he retires from office and follows the example of General Kuropatkin and General Linevitch by writing his memoirs."

On the trial, in May, of M. Selden, for publishing and distributing Count Tolstoi's pamphlets, "Thou shalt not Kill," "A Letter to Liberals," "Christianity and Patriotism," the venerable writer addressed a note to the court, challenging the prosecution of himself, instead of the publisher. "As these pamphlets," he wrote, "were written by me and published by one of my friends, not only with my consent but at my

desire, M. Selden taking a purely passive part in the affair, all the measures which are being taken against M. Selden should logically and in equity be directed against me, especially because I have repeatedly declared, and now declare again, that I consider it my duty to my conscience to disseminate, so far as lies in my power, the pamphlets in question as well as my other works, and shall continue doing so as long as I am able. I feel constrained to inform you of this, and ask you to take whatever measures may devolve from my present statement."

{579}

But the magistrate did not venture to institute proceedings against the principal in the offense, and the Government took no notice of the challenge.

RUSSIA: A. D. 1909.

Revived Censorship of the Press.

Its Stupidity.

Gains for Free Speech notwithstanding.

"At the present time, the liberties granted less than four years ago are mutilated. The censor is busy once more. The Russian journalist is again compelled to practice the arts of half-meaning, insinuation, and innuendo, which made his predecessors of a generation ago marvels of subtle expression. But that is only when a writer would say everything he wants to say. Undoubtedly, the range of the permissible has grown immensely since the early days of even Nicholas II. To write of labor wars, of conspiracies, of constitutional liberties, Russian newspapers need no longer confine themselves to telegraphic reports of foreign strikes, conspiracies, and constitutions. They need only print what the radicals in the Duma utter. Not even the full Duma's reports may be privileged at present, but, after all, the Russian censor is a stupid fellow. The censorship, like the autocracy in general, is

inefficient, spasmodic, allowing to-day what it prohibited yesterday, or even allowing in one column what it strikes out from another. St. Petersburg and Moscow in 1890 had eleven daily papers, and twenty weeklies. In 1900 the number had risen to twenty-four dailies and thirty-three weeklies. In all Russia there were then 287 periodical publications. In August, 1905, the number had risen to 1,630, of which St. Petersburg alone had 534. There were fifty daily papers at St. Petersburg and twenty-five at Moscow in those short days of freedom, when the pent-up speech of ages burst out in Russia. This, of course, was inflation. Periodicals were born and died with the rising and setting of the sun. The numerical strength of the press must be far smaller now. But much that was gained for freedom of speech in those stormy days has not been lost."

New York Evening Post,
March 23, 1909.

RUSSIA: A. D. 1909 (January-July).

Dark Secrets of the Russian Police and Spy System brought to Light.

The first in a series of startling disclosures of the dark secrets of the Russian espionage and police system was made in January, 1909, when it came to public knowledge that the head and front of the Revolutionary Socialists of the Empire, one Azeff by name, had been discovered by his associates to be a secret agent of the police; had been tried and condemned by a tribunal of their party, at Paris, and had escaped into some hiding place, with avenging emissaries in pursuit, to take his life. A little later it appeared that a former Director of the Police in the Department of the Russian Ministry of the Interior, M. Lopukhin, had been arrested for treason, on the charge of having betrayed Azeff to the Revolutionists, by making known to them the double part that the latter played, as a so-called **agent provocateur**, drawing them into criminal plots of which he kept the police informed.

The preliminary trial of Lopukhin occurred in April, and it was stated in the indictment then published that Azeff had penetrated into the very centre of the Social Revolutionary machinations, and that part of his great services to the Secret Police were rendered during the period that M. Lopukhin occupied the post of Director of the Police Department in the Ministry of the Interior—*i.e.*, from May, 1902, to March, 1905. It was affirmed that M. Lopukhin not only knew of the existence and activity of Azeff, but met the latter more than once both at his (M. Lopukhin's) house and at one of the conspiratorial headquarters in St. Petersburg. The indictment paid a warm tribute to Azeff's ability in so long maintaining his connexion with the police without awakening the suspicions of the Social Revolutionaries as to his true character. It was eventually remarked, however, that the plots in which Azeff was concerned invariably failed, whereas many of the others succeeded, and accusations of treachery began to be levelled against him. In October, 1908, a commission of inquiry was appointed by the Social Revolutionaries in Paris to inquire into the charges brought against Azeff. Burtzeff, editor of a revolutionary organ, stated before this tribunal that he had seen M. Lopukhin, who had informed him of Azeff's relations with the Russian police.

M. Lopukhin, on his trial, admitted having given this information to Burtzeff, but explained that it was in consequence of what the latter had told him of the revolutionist designs, including a pending plot against the life of the Tsar. He then felt it his duty to unmask Azeff, lest the murders which might otherwise have followed should lie on his conscience, and when the revolutionaries came to him for confirmation of what he had told Burtzeff he found it impossible to retract his words. He was convicted, however, on the 13th of May, and sentenced to five years of imprisonment at hard labor, with the loss of civil rights. The sentence was mitigated subsequently, and he was sent to exile at

Krasnoyarsk, Siberia, his family being allowed to accompany him.

Prince Urussoff, whose bold speech in the First Duma on the instigation of massacres is quoted from above (A. D. 1906), is a brother-in-law of M. Lopukhin, and derived from him, no doubt, the information on which he spoke.

In July, a new disclosure of the character of the Russian secret service police was made, as revolting as that in the Azeff case. A personage known as M. Harting, chief of that Russian service in Paris, and so favorably regarded in the French capital that he was about to be made an officer of the Legion of Honor, was discovered to have been the leader of a plot to assassinate the Tsar Alexander III. in 1890, during that monarch's visit to Paris; that he then bore the name of Landesén; that he had escaped arrest and was condemned by default to imprisonment for five years; that he subsequently, under the new name, secured secret service employment in the Russian police. All this was quickly proved to be fact by the French Government, and officially announced.

{580}

RUSSIA: A. D. 1909 (April).
The Agrarian Law.

On the basis of the decree relative to the communes which is partly described above (see A. D. 1906), a law was brought into force by the Government in 1906, known as the law of November 9, which supposedly was provisional and subject to ultimate ratification by the Duma. Writing of it in the New York *Evening Post* of May 28, 1909, S. N. Harper says:

"This law of November 9 aims directly at the destruction of the commune. Before this law a two-thirds vote of the commune was necessary for the granting of the petition of a member to

divide out. Now a local police official, whom by the way another project of reform abolishes as irresponsible and a source of abuse, can override the vote of a commune and grant the petition. A peasant who divides out receives that portion which he is using if there has been no redistribution for twenty-four years. If there has been a redistribution within twenty-four years, he receives what he would receive on the basis of a new redistribution—what this would be is again decided by the official. As we saw, no equitable reckoning is possible here.

"The peasant can sell this land which he receives from the commune, for it is now his private property. In one province which I visited this summer, in over one-half of the cases of dividing out the peasant had sold his land immediately—usually to the village 'fist'—the prosperous village usurer and boss who holds his neighbors in his fist."

The law was operative for more than two years before it received the sanction of the Duma, in April, 1909. Of the parliamentary enactment then given to it the above writer says:

"The outcome of the debates was certain. It had been secured by the change of the electoral law for the third Duma, whereby the landed gentry had been given the predominant vote. ... No more important than the vote of this assembly is the attitude of the country at large toward this law. The landed gentry are naturally for this measure. The village system is a source of danger to them. The law will establish 'peasant' landlords, whose interests will be much the same as theirs. But the peasants have shown quite plainly their hostile attitude toward this law. Only those peasants who are economically provided for and those who, for one reason or another, have become mere hangers-on of the local police officials are in favor of the law. It is these that have taken advantage of the law, with the support of the local official. But they have

done so in spite of the protest of the other peasants, only their economic position making it possible, and their friend the official has not been able to prevent, therefore, the other peasants from giving a violent character to their protest. Those who have insisted on dividing out have in many instances been burned out the next week."

RUSSIA: A. D. 1909 (April-July).

Advance of Russian Troops into Persia.

See (in this Volume)

PERSIA: A. D. 1908-1909.

RUSSIA: A. D. 1909 (May).

New Russo-Chinese Agreement, establishing Municipalities on the Line of the Chinese Eastern Railway.

See (in this Volume)

CHINA: A. D. 1909 (MAY).

RUSSIA: A. D. 1909 (June).

"Dreadnought" building.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL: RUSSIAN.

RUSSIA: A. D. 1909 (June).

Stringent Orthodoxy of the Tsar.

A Press despatch from St. Petersburg, June 4, 1909, reported:

"Premier Stolypin spoke in the Duma to-day in defence of the government's draft of a law dealing with the matter of changing from one faith to another and against the modifications removing all restrictions introduced in committee. He said that the Emperor, as head of the Orthodox Church, could not suffer backsliding from the orthodox to

non-Christian beliefs, and that if such amendments were incorporated the bill would be vetoed. Continuing he defined the relations between church and state. He conceded that the church enjoyed full independence in matters of creed and dogma, but insisted on state control. The speech was a brilliant effort, but it fell upon cold ears, and brought out no applause. The premier, for the first time in the history of the third Duma, found himself fighting for a lost cause before an adverse house."

RUSSIA: A. D. 1909 (October-November).

Differing Accounts of Political Conditions, of the work of the Duma, and of the Disposition of the Government.

The last weeks of 1909 brought from observers in Russia quite differing impressions and representations of the existing political conditions. Late in October a St. Petersburg correspondent of ***The Evening Post***, New York, wrote:

"Stolypin has given Russia a packed Duma, the predominant party in which is elected by 130,000 rural gentry, who were unable to get many more than a dozen members into the first two Dumas. As might have been expected, this Duma has done nothing for Russia. Its Land law has not been accepted by the peasantry, its Religions law remains a dead letter, because, according to the premier, the Tsar refuses to sign it. There will be a deficit of about one hundred million in the new budget, and the country is faced by bankruptcy.

"But, to return to the Duma, it has been proved during the last session that the people have no control over the purse, thanks to a 'rule' made by Count Witte before the meeting of the first Legislature. This 'rule' says that if the Duma and the Council of Empire fail to agree on the budget, then the figures of the former year's budget remain in force. As the Council of Empire (or Russian upper house) must always have a reactionary and bureaucratic majority, the Duma has no control

of the national expenditure and never can have. This was brought home very forcibly to the lower house during the last session, when a humble suggestion which it made about including a sum of 350 million rubles in the extraordinary expenditure account was rejected by the Council of Empire, which thus taught the Duma that it has no control over even the most important loan operations. When the Duma (with the strong approval of even such conservative papers as the *Novoe Vremya*) refused to sanction the naval budget until the notoriously corrupt Ministry of Marine—the ministry accountable for Tsushima—had been reformed, the government laughed at it, and got the necessary money over the deputies' heads."

Two weeks later than the above another St. Petersburg correspondent was writing to London:

"To judge from to-day's proceedings the present session of the Duma bids fair to surpass the most sanguine hopes. Having disposed of the last of the Agrarian Bills and of the First Offenders Act, the Duma began the debate on the Bill reforming the local Courts. This measure represents the foundation of all political reform in Russia.

{581}

"The Duma Committee, after 35 sittings, adopted a proposal considerably extending the scope of the Government Bill besides providing for the re-establishment of elective justices of the peace, introduced in 1804, but repealed in 1889 in favour of the arbitrary jurisdiction of the Communal Court and the Zemsky Natchalnik--both long ago discredited institutions. Just as the Agrarian reforms are calculated to promote the private ownership of land and respect for the rights of property, so the reform of the local Courts will inculcate respect for the law.

"The details of the Bill may possibly give rise to differences with the Government and the Upper House, but its substantial features will be doubtless retained in the ultimate form which will receive the Imperial sanction."

The writer of this had communicated to his journal, a few days previously, the following report of an interview with "a leading member of the Government," and apparently gave credit to the sentiment it expressed. Said the Minister interviewed:

"You ask me what are the Government's intentions regarding Poland. I can only repeat what I said before the Joint Commission on the Polish Municipal Reform Bill, which is to be laid before the Duma. We have decided to give Poland the full benefits of local government consistent with the interests of the Empire, but not autonomy. We cannot trust the Poles to that extent. We shall introduce a Bill creating a separate province of Holm, where the great majority of the population is of Russian stock, and extend to it the system of mixed Russian and Polish **Zemstvos** to be introduced in the south-western provinces.

"I am satisfied with the progress of agrarian reform. You have seen from the speech of M. Krivoshein in the Duma that one million peasant households (about 5,000,000 souls) have already abandoned the communal system.

"The continuance of executions is, I know, a source of criticism. You know that the Emperor has given orders that death sentences should be confirmed only in the worst cases. Unhappily, I know of no constitutional method for putting down revolution. Russia is so vast. It has taken a long time to bring all the guilty to trial. I am also criticized for the arbitrary acts of our local authorities, but, I ask you, does the Government derive any interest from these arbitrary acts?

"Political reforms? Yes, they have been delayed. But what, for

instance, is the good of hurrying through a Bill on the liberty of the person until we have first reformed the local Courts?

"You have heard and read the statements that the Octobrists have quarrelled with the Government; you have also been told that Russia is on the eve of a reaction. Believe neither. The Octobrists are taking a more advanced position. That is as it should be. It is better for the Duma and by no means disagreeable to the Government."

RUSSIA: A. D. 1909 (December).

Assassination of the Chief of the Secret Police.

On the 22d of December Colonel Karpoff, Chief of the Secret Police, was killed by an infernal machine at a suburban lodging occupied by a certain Voskresensky, who is supposed to be a revolutionary and a police spy like Azeff.

-----RUSSIA: End-----

RUSSO-CHINESE BANK.

See (in this Volume)

CHINA: A. D. 1901-1902.

RUTHERFORD, Professor Ernest.

See (in this Volume)

SCIENCE, RECENT: RADIUM; also
NOBEL PRIZES.

RYAN, Thomas F.:

Investing in a Concession in the Congo State.

See (in this Volume)

CONGO STATE: A. D. 1906-1909.

RYAN, Thomas F.:

Purchase of Controlling Stock of Equitable Life
Assurance Society.

See (in this Volume)
INSURANCE, LIFE.

RYAN, Thomas F.:

Sale of interests to Morgan & Co.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909-1910.

S.

SADR AZAM, The.

See (in this Volume)
PERSIA: A. D. 1905-1907.

SAGASTA, Praxedes Mateo:

Prime Minister of Spain.
His Death.

See (in this Volume)
SPAIN: A. D. 1901-1904.

SAGE FOUNDATION, The:

For the Improvement of Social and Living Conditions
in the United States.

See (in this Volume)
SOCIAL BETTERMENT: UNITED STATES: A. D. 1907.

SAGE, Mrs. Russell:
Gift to Yale University.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1910.

ST. GOTHARD RAILWAY:
Acquisition by the Swiss Government.

See (in this Volume)
RAILWAYS: SWITZERLAND.

ST. LOUIS, MISSOURI: A. D. 1900-1904.
The Unearthing of Thievery and Corruption by Attorney Folk.
Prosecutions, Confessions and Convictions.

See (in this Volume)
MUNICIPAL GOVERNMENT.

ST. LOUIS, MISSOURI: A. D. 1904.
The Louisiana Purchase Exposition.

Except the World's Columbian Exposition at Chicago, in 1893, the most important of the industrial exhibitions that have been organized in America was that of 1904, at St. Louis, which commemorated the centennial of the Louisiana Purchase from France. The Exposition was opened on the 30th of April and closed December 1st. An estimated total of \$44,500,000 was expended upon it in structures and management, of which sum about \$22,000,000 was raised by the Exposition Company. The remainder was the expenditure of governments, Federal, State and Foreign, and of concessionaires. The total attendance, from first to last, was 18,741,073. The receipts fell far short of the expenditure, and subscribers to the undertaking can have had no returns; but the public gain from it was very great. About sixty foreign countries and colonies and nearly every State and Territory of the Union were represented in the

exhibits.

{582}

A distinguished feature of the Exposition was the remarkable number and character of the gatherings, international and national, that were brought about in connection with it. The most notable of these was the International Congress of Arts and Sciences, which opened September 19th. "This Congress," said President Nicholas Murray Butler, of Columbia University, in an article describing its plan, "is not such a series of gatherings as took place at Chicago and at Paris, but is rather a carefully elaborated plan to educate public opinion, and the world of scholarship itself, to an appreciation of the underlying unity of knowledge and the necessary inter-dependence of the host of specialties that have sprung up during the past century. ... For participation in this congress there will assemble a large body of the world's greatest scholars. They will come from all parts of the world to contribute surveys of their several departments of knowledge, planning those surveys so as to emphasize the mutual relations of all the separate arts and sciences."

ST. LOUIS, MISSOURI: A. D. 1904.
Meeting of the Interparliamentary Union.

See (in this Volume)
WAR: THE REVOLT AGAINST: A. D. 1904-1909.

ST. MARK'S CATHEDRAL, at Venice:
Fall of the Campanile.

See (in this Volume)
VENICE: A. D. 1902.

ST. PETERSBURG: DISTURBANCES IN.

See (in this Volume)
RUSSIA.

ST. PIERRE:
Volcanic Destruction of the City.

See (in this Volume)
VOLCANIC ERUPTIONS: WEST INDIES.

ST. VINCENT ISLAND:
Volcanic Eruption of La Souffrière.

See (in this Volume)
VOLCANIC ERUPTIONS: WEST INDIES.

SAKHAROFF, General:
Assassination of.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

SAKURAI, Lieutenant Tadayoshi, The story of.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

SALISBURY, Lord Robert Cecil, Marquis of:
Resignation of the Premiership in the British Government.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

SALONIKA: A. D. 1903.
Dynamite Explosion by Insurgents.

See (in this Volume)
TURKEY: A. D. 1902-1903.

SALONIKA: A. D. 1903.

Center of the "Young Turk" organization.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

SALOON QUESTION.

See (in this Volume)

ALCOHOL PROBLEM.

SALT TRUST, Dissolution of the.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

SALTON SEA, The.

At a point not far from where it runs into Mexican territory the Colorado River, for a long recent period, has been deflected by bordering sand deposits from a great depression in the neighboring desert, known as the Salton Sink. In 1901 an irrigation company began works for supplying water from the Colorado to lands in that vicinity, and seems to have taken no proper precautions for controlling the flow through its canals. The result was a break through the sand hills, into the Salton Sink, which converted it for the time being into the "Salton Sea,"—so described in all accounts of the catastrophe. For nearly two years the flood of the Colorado was poured into the Sink, forming a sea or lake which covered an area of about 400 square miles. It was not until February, 1907, that the combined exertions of the Southern Pacific Railway Company, the California Development Co. (whose works produced the trouble) and the engineers of the United States Reclamation Service, succeeded in returning the Colorado to the channel it had escaped from. Since that was done

evaporation has been steadily emptying the Sink, at the rate of five or six feet annually, according to the Chief of the Weather Bureau, which has maintained a station there. At the end of a year of observations he was reported as saying: "We will get the data we want within another year probably and then we can cut off the Salton Sea station. The evaporation data we expect to obtain will be valuable for calculations on irrigation works and reservoirs."

SALVADOR.

See (in this Volume)
CENTRAL AMERICA.

SAM, Theresias Simon: President.

See (in this Volume)
HAITI: A. D. 1902.

SANBORN, Judge Walter H.:
Opinion in Suit for the Dissolution of the Standard Oil Company.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.:
UNITED STATES: A. D. 1906-1909.

SANTIAGO, Chile:
First Pan-American Scientific Congress.

See (in this Volume)
SCIENCE AND INVENTION: INTERNATIONAL CONGRESSES.

SAN DOMINGO: A. D. 1901-1905.
Financial Conditions.
Dissipation of Revenues.

"Many years ago the government, being unable to raise money on

ordinary security, adopted the practice of vesting the power of collection in its creditors. Duties are settled in *pagarés*, or promissory notes, duly indorsed, and payable usually in a month or two months. In order to secure loans, these *pagarés* were handed over to the creditor, who collected the money directly from the importer or exporter. This expedient, which was designed to protect the creditor against the government itself as well as against its enemies, was in vogue when the government in 1888 sought financial relief in Europe. Such relief was obtained from Westendorp & Company, bankers, of Amsterdam, who in that year underwrote and issued, at 83½ per cent., 6 per cent. gold bonds of the Dominican government to the amount of £770,000 sterling, the government creating a first lien on all its customs revenues, and authorizing the Westendorps to collect and receive at the custom-houses all the customs revenues of the republic. Under this contract, which was ratified by the Dominican Congress, the Westendorps created in Santo Domingo an establishment, commonly called the 'Regie,' which collected the duties directly from the importer and exporter and disbursed them, the Westendorps sending out from Europe the necessary agents and employees. It was further stipulated that the Westendorps should, in case of necessity, have the right to constitute a European commission, which it was understood was to be international in character. The power of collection and disbursement was exercised by the Westendorps down to 1893, when it was transferred to the San Domingo Improvement Company, of New York, which continued to exercise it till January, 1901, when the company was, by an arbitrary executive decree issued by President Jimenez, excluded from its function of collecting the revenues, though its employees were permitted to remain in the custom-houses till the end of the year.

{583}

"As an assurance to the foreign creditor, whose legal security

was thus destroyed, Jimenez constituted in the same decree a 'Commission of Honorables,' with whom the sums due to foreign creditors, including the American companies, were to be deposited; but their capacity as depositaries was not destined to be tested. Late in 1901, it became known that out of the reported revenues of the year, amounting to \$2,126,453, the percentages for the domestic debt had not been set aside, and that no payment had been made on the floating interior debt, but that the Jimenez 'revolutionary' claims had been paid without previous warrant of law, and that there existed a deficit. Since that time, with the exception of comparatively small amounts, nothing whatever has been paid to the foreign creditor. The omission, however, has not been due to lack of revenues. It has been due to conditions which, if all the debts of the republic were with one stroke wiped out, would continue to prevent the government from meeting its ordinary expenses. The revenues have been seized and dissipated by the government and its enemies in 'war expenses,' and in the payment of '*asignaciones*' and 'revolutionary claims.' ... That foreign governments will stand by and permit such conditions to continue cannot be expected. They have already manifested their desire to intervene."

*John Bassett Moore,
Santo Domingo and the United States
(American Review of Reviews, March, 1905).*

SAN DOMINGO: A. D. 1901-1906.

Participation in Second and Third International Conferences of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

SAN DOMINGO: A. D. 1904-1907.

Years of almost Incessant Disorder and repeated Revolutions.
Jimenez, Vasques, Wos y Gil, Morales and Caceres in

succession at the Head of Government.
Menace from the Creditors of the Republic.
Appeal to the United States.
American Treaty.
President Roosevelt on the Situation.

The assassination of President Heureaux and the election of President Jimenez are related in Volume VI. of this work (see DOMINICAN REPUBLIC). Jimenez's rule was not long, and he gave way to a provisional government, under General Vasques, which was upset by a revolt that broke out in March, 1903, and which planted General Wos y Gil so obviously in power that his Government was recognized by the United States in October. But the rapidly revolving wheel of political events seems to have soon whirled Wos y Gil out and brought Jimenez back, to be tossed into private life again in 1904 by General Carlos F. Morales, of whom Mr. Sigimund Krausz gave a most favorable account in ***The Outlook***, of September 17, 1904. "The common idea," said Mr. Krausz, "that the population of Santo Domingo consists exclusively of a horde of savages, and that the generals and politicians causing the kaleidoscopic sequence of revolutions are of the same class, and, without exception, uneducated brutes and degenerates, is quite erroneous, and has been created for the sake of sensationalism, largely by journalists and magazine writers without personal knowledge of Dominican conditions, or by native exiles who, naturally, are always enemies of the party in power. ... While it is true that the vast majority of the Dominican people in the interior of the island live in a fearful state of ignorance, superstition, and even barbarism, caused by many decades of internal warfare, there is, however, also a class of natives who certainly ought not to be thrown in the same pot with them. These are the better citizens of the capital and the larger coast towns, among whom are many intelligent and educated men who had the advantage of fairly good schools and intercourse with foreigners. Among this class are a number who have received all or part of their education

abroad, who speak two or three languages, and who, in their social intercourse and manners, may safely be pronounced gentlemen. They follow the occupations of merchants, planters, lawyers, physicians, etc., and while, as a rule, they keep aloof from politics, it is from their strata of society that spring most of the military and political leaders of Santo Domingo. There are few of these men who, by their appearance, betray the strain of negro blood in them, and the type is hardly distinguishable from that of Latin-Americans in general.

"Carlos M. Morales belongs to the better class of Dominicans mentioned before, masters French, English, and Spanish fluently, and has the advantage of an ecclesiastical education in a seminary of Santo Domingo City. He was, in fact, for eight years a priest, before disagreement with various dogmas of the Church and the desire to take an active part in the political affairs of his country induced him to throw aside the cassock. He is a close student of West Indian conditions, and well acquainted with the affairs of the world in general. While being an ardent admirer of the United States and its institutions, and sincerely desiring its political friendship, he is at the same time the strongest opponent of any policy that would tend to make Santo Domingo a political dependency of Uncle Sam, either in the form of annexation or a protectorate."

Morales was soon beset with claims from insistent foreign creditors, on account of debts which his predecessors had incurred, and which they had left nothing to satisfy. Several European governments were threatening forcible measures to secure payment for their subjects, and Morales asked for help from the United States. The situation and its outcome were reported subsequently to Congress by President Roosevelt, as follows:

"The conditions in Santo Domingo have for a number of years

grown from bad to worse until a year ago all society was on the verge of dissolution. Fortunately, just at this time a ruler sprang up in Santo Domingo, who, with his colleagues, saw the dangers threatening their country and appealed to the friendship of the only great and powerful neighbor who possessed the power, and as they hoped also the will, to help them. There was imminent danger of foreign intervention. The previous rulers of Santo Domingo had recklessly incurred debts, and owing to her internal disorders she had ceased to be able to provide means of paying the debts. The patience of her foreign creditors had become exhausted, and at least two foreign nations were on the point of intervention, and were only prevented from intervening by the unofficial assurance of this Government that it would itself strive to help Santo Domingo in her hour of need.

{584}

In the case of one of these nations, only the actual opening of negotiations to this end by our Government prevented the seizure of territory in Santo Domingo by a European power. Of the debts incurred some were just, while some were not of a character which really renders it obligatory on, or proper for, Santo Domingo to pay them in full. But she could not pay any of them unless some stability was assured her Government and people.

"Accordingly the Executive Department of our Government negotiated a treaty under which we are to try to help the Dominican people to straighten out their finances. This treaty is pending before the Senate. In the meantime a temporary arrangement has been made which will last until the Senate has had time to take action upon the treaty. Under this arrangement the Dominican Government has appointed Americans to all the important positions in the customs service, and they are seeing to the honest collection of the revenues, turning over 45 per cent to the Government for running expenses and putting the other 55 per cent into a safe depositary for equitable division in case the treaty shall be

ratified, among the various creditors, whether European or American. ...

"Under the course taken, stability and order and all the benefits of peace are at last coming to Santo Domingo, danger of foreign intervention has been suspended, and there is at last a prospect that all creditors will get justice, no more and no less. If the arrangement is terminated by the failure of the treaty chaos will follow; and if chaos follows, sooner or later this Government may be involved in serious difficulties with foreign governments over the island, or else may be forced itself to intervene in the island in some unpleasant fashion. Under the proposed treaty the independence of the island is scrupulously respected, the danger of violation of the Monroe Doctrine by the intervention of foreign powers vanishes, and the interference of our Government is minimized, so that we shall only act in conjunction with the Santo Domingo authorities to secure the proper administration of the customs, and therefore to secure the payment of just debts and to secure the Dominican Government against demands for unjust debts. The proposed method will give the people of Santo Domingo the same chance to move onward and upward which we have already given to the people of Cuba. It will be doubly to our discredit as a nation if we fail to take advantage of this chance; for it will be of damage to ourselves, and it will be of incalculable damage to Santo Domingo."

***President's Message to Congress,
December 5, 1905.***

Twenty days after the above was sent to Congress President Morales was a fugitive from his capital, expelled by a sudden revolutionary movement in which Vice-President Caceres and most of the Morales Cabinet appear to have taken a leading part. Some fighting occurred; but the Morales forces were beaten decisively in the first week of January, 1906, and

their General, Rodrigues, was killed. Morales, wounded, sought protection at the American Legation and resigned the Presidency, January 12. Caceres succeeded to the office, and a treaty of peace between the contending parties was signed on the 17th, on board an United States vessel of war. The new Government of San Domingo adhered to the arrangement made by Morales with the United States.

As ratified ultimately, in the spring of 1907, by the United States Senate and the Dominican Congress, the treaty provided for the conversion of the embarrassed republic's debt and the floating of a new issue of bonds, through the agency of a firm of New York bankers which had undertaken the management of the affair; while the Government of the United States, by its agents, was to continue its supervision of the collection of revenue.

SAN DOMINGO: A. D. 1905-1907.

The American Receivership of Dominican Revenues.

The Modus Vivendi of 1905 and the Treaty of 1907.

The working of the Arrangement.

"By the *modus vivendi* of March 31, 1905, it was provided that until the Dominican Congress and the Senate of the United States should act upon the convention of February 7, 1905, the President of the Dominican Republic, on the nomination of the President of the United States, should appoint a person to receive the revenues of all the custom-houses of the Republic. Of the net revenues collected, 45 per cent was to be turned over to the Dominican Government, and used in administrative expenses. The remainder, less the expenses of collection, was to be deposited in a bank in New York to be designated by the President of the United States, and to remain there for the benefit of all creditors of the Republic, Dominican as well as foreign, and not to be withdrawn before the Dominican Congress and the Senate of the United States should have acted upon the convention then

pending. During the operation of the *modus vivendi* all payments were to be suspended, without, however, in any way interfering with or changing the substantial rights of creditors. This *modus vivendi* went into effect on April 1, 1905. Under the receivership created by this *modus vivendi* there has been collected, to August 31, 1907, \$7,183,397.56. Of this amount 45 per cent was turned over to the Dominican Government, and \$3,318,946.97, to bear interest while on deposit, has been remitted to New York. This is in striking contrast with the results of the customs operations of former years, when, having control of the entire revenues of the Republic, the Dominican Government had not only been unable to pay its current expenses, but found its apparent public debt increased at an average rate of almost \$1,000,000 a year for some thirty odd years. The convention between the United States and the Dominican Republic, signed at Santo Domingo City on February 8, 1907, was transmitted to the United States Senate on February 19, 1907, by the President, for ratification, and was ratified on the 25th of the same month. After formal ratification by the President of the United States and the Dominican Republic, ratifications were exchanged July 8, 1907, and formal proclamation made by the President on the 25th of the same month. Regulations have been drawn up for the application of its provisions. The treaty sets forth that the debts of the Dominican Republic amount to more than \$30,000,000, nominal or face value, which have been scaled down by a conditional adjustment and agreement to some \$17,000,000, including interest, in the payment of which the Government has requested the assistance of the United States.

{585}

The latter agrees to give this assistance subject to certain conditions set out in the treaty, the principal among which are

(a) the President of the United States shall appoint the general receiver of the Dominican customs and his assistants; and

(b) that the Dominican Government shall provide by law for the payment to such general receiver of all the customs duties of the Republic.

The money collected is to be applied as follows:

- (1) To paying the expenses of the receivership;
- (2) to the payment of interest on bonds issued by the Dominican Government in connection with the settlement of its debts;
- (3) to the payment of the annual sums provided for amortization of said bonds, including interest upon all bonds held in the sinking fund;
- (4) to the purchase and cancellation or the retirement and cancellation, pursuant to the terms thereof, of any of said bonds as may be directed by the Dominican Government, and
- (5) the remainder to be paid to the Dominican Government.

On the 1st day of each calendar month the sum of \$100,000 is to be paid over by the receiver to the fiscal agent of the loan, and the remaining collection of the last preceding month paid over to the Dominican Government, or applied to the sinking fund for the purchase or redemption of bonds, as the Dominican Government shall direct. Should the revenues thus collected exceed \$3,000,000 for any one year, one-half of the surplus is to be applied to the sinking fund for the redemption of bonds."

***Report of the Chief of the Bureau of Insular Affairs,
October 31, 1907
(Abridgment, Message and Documents, 1907, page 797).***

-----SAN DOMINGO: End-----

SAN FRANCISCO: A. D. 1901-1909.

Water Supply.

The Hetch Hetchy Project.

"Under this name is designated a plan for obtaining a water supply for the city of San Francisco from the head waters of the Tuolumne River in the Sierra Nevada mountains. The Hetch Hetchy Valley is one of the most widely known regions of the high Sierras, second only to Yosemite in scenic interest. It is formed by a widening of the gorge of the Tuolumne River, about 30 miles westerly from the crest of the Sierras. It is thus described in the United States Geological Survey, 21st Annual Report.

"‘The valley proper is about three and one-half miles long and of a width varying from one-quarter to three-quarters of a mile. The rugged granite walls, crowned with spires and upon battlements, seem to rise almost perpendicular upon all sides to a height of 2500 feet above this beautiful emerald meadow.

"‘The Tuolumne River leaves this valley in a very narrow granite gorge, the sides of which rise precipitously for 800 or more feet, thus providing naturally a most favorable site for a masonry dam.’ As the result of exhaustive investigations, in 1901, having reference to the procuring of an adequate water supply for the City of San Francisco, that city, through its proper officers, selected, surveyed, filed upon and made application for the reservoir rights of way in the Hetch Hetchy Valley and Lake Eleanor, which lie within the reservation known as Yosemite National Park. These reservoir sites were recognized and surveyed as such by the United States Geological Survey, in 1891, and the survey filings and application were made in conformity with the act of Congress of February 15, 1901, relating to rights of way through certain parks, reservations and other public lands.

"Lake Eleanor is situated 136 miles east of San Francisco on the west slope of the Sierra Nevada Mountains. It is about 300 acres in extent and lies in a broad, flat valley enclosed by precipitous walls of granite, narrowing at the lower end of the valley. It is 4,700 feet above sea level and receives the direct drainage from 83 square miles, and by a diverting canal 6 miles long from 103 square miles additional of uninhabitable mountain slopes which reach an altitude of 11,000 feet, and receive a mean annual precipitation of from 40 to 50 inches, most of which is snow. About a mile and a quarter below the lake, the valley closes into a granite walled gorge and offers an excellent site and material for a dam. ...

"Hetch Hetchy reservoir (site) is about 140 miles from San Francisco on the main fork of the Tuolumne River and is about 3,700 feet above sea level. It receives the drainage from 452 square miles of the uninhabitable slopes of the Sierra Nevada, reaching to elevations of over 13,000 feet. ...

"The Hetch Hetchy project proposes to conduct the water liberated from these reservoirs by way of the gorge of the Tuolumne River 16 miles and thence by canals, tunnels and pipes."

***Frederick H. Clark,
Head of History Department, Lowell High School.***

The application of the City to the United States Government for the Lake Eleanor and Hetch Hetchy reservoir sites was denied, in the first instance (1903), by the Secretary of the Interior, the Honorable A. E. Hitchcock, but subsequently granted, on a reopening of the case and a rehearing, by Secretary James R. Garfield, in whose decision, rendered May 11, 1908, the considerations for and against the proposed use of these famous seats of natural beauty and sublimity were discussed at length and concluded to have the greater weight

in favor of the application.

One stipulation made by Secretary Garfield was that within two years the City should submit the question of water supply to the vote of its citizens, as contemplated in its Charter. This was done on November 11, 1908, and the voters of San Francisco, notwithstanding the strenuous efforts of the private water company, recorded their approval of the Hetch Hetchy Project by the overwhelming vote of 34,950 for, to 5708 against the proposition. At the same election a sale of municipal bonds to the amount of \$600,000 was authorized in order to enable the City to proceed to perfect its titles. These bonds have been sold and at this date (June, 1909) the acquisition of the required land is under way.

Almost passionate protests and pleadings against this use of the beautiful Hetch Hetchy Valley have been uttered by John Muir, the word-painter of "The Mountains of California," and many earnest voices from all parts of the country have been joined to his in the expostulation. Mr. Muir writes: "It is impossible to overestimate the value of wild mountains and mountain temples. They are the greatest of our natural resources, God's best gifts; but none, however high and holy, is beyond reach of the spoiler. These temple destroyers, devotees of ravaging commercialism, seem to have a perfect contempt for Nature, and instead of lifting their eyes to the mountains, lift them to dams and town skyscrapers. Dam Hetch Hetchy! As well dam for water-tanks the people's cathedrals and churches, for no holier temple has ever been consecrated by the heart of man.

{586}

"Excepting only Yosemite, Hetch Hetchy is the most attractive and wonderful valley within the bounds of the great Yosemite National Park and the best of all the campgrounds. People are now flocking to it in ever-increasing numbers for health and

recreation of body and mind. Though the walls are less sublime in height than those of Yosemite, its groves, gardens, and broad spacious meadows are more beautiful and picturesque. It is many years since sheep and cattle were pastured in it, and the vegetation now shows scarce a trace of their ravages. Last year in October I visited the valley with Mr. William Keith, the artist. He wandered about from view to view, enchanted, made thirty-eight sketches, and enthusiastically declared that in varied picturesque beauty Hetch Hetchy greatly surpassed Yosemite. It is one of God's best gifts, and ought to be faithfully guarded."

When this work went to press, in May, 1910, Secretary Ballinger was giving hearings on the question of revoking the permit to San Francisco.

SAN FRANCISCO: A. D. 1901 1909.

The Struggle with Political Corruption.

See (in this Volume)

MUNICIPAL GOVERNMENT: SAN FRANCISCO.

SAN FRANCISCO: A. D. 1902.

The Chinese Highbinder Associations.

Report of the Industrial Commission on their Criminal and Dangerous Character.

"Investigations made under the directions of the Industrial Commission reveal the dangerous importance to be attached to the existence of the so-called associations of 'highbinders' among the Chinese population of San Francisco. It is variously estimated that of the total number of Chinese in that city, amounting to 25,000 or 30,000, there are about 1,000 members of the highbinder associations who represent the worst class of criminals. Many of them have been compelled to flee from their native country on account of crimes committed there. They are organized under the semblance of benefit societies,

but for the purpose of blackmail and violation of the immigration laws. They impose fines arbitrarily upon the hard-working and prosperous Chinese, and enforce their decrees through criminal violence and even assassination. They nullify the judgment of American courts through their own secret tribunals and their paid assassins; they make a business of bringing to the United States slave girls and coolie laborers, and through their system of intimidation it is difficult, and often impossible, to secure witnesses who will testify to the truth. It is generally believed by those who have given attention to this matter, that if the country could be rid of this criminal class of Chinese, and the highbinders societies be permanently suppressed, one of the greatest factors in the commission of fraud in the administration of the Chinese exclusion laws would be eliminated. An eminent authority asserts that fully 75 per cent of all the frauds committed at the present time against the exclusion law can be traced directly to the highbinder associations. So perfect is the organization of these societies, and so thorough their reign of terrorism, that the efforts of the authorities to suppress them have never been successful. The only thing which they fear above all others, holding it in greater dread than our laws, our courts, and jails, is deportation to China. The only decisive remedy in that case is legislation through Congress, which should render aliens who are members of such societies, or any society having for its purpose the commission of crime or the violation of our laws, liable to deportation. What is true of the highbinders of San Francisco is probably true also of certain anarchistic societies which are recruited from Europe."

***Final Report (1902) of the Industrial Commission,
page 1009.***

SAN FRANCISCO: A. D. 1906.
The Earthquake Shock of April 18, 1906.
The Geological Explanation.

Stupendous Destruction by Fire following the Earth Tremor.
Conditions produced by the Fire.
Relief Measures.

"On the morning of April 18, 1906, the coastal region of Middle California was shaken by an earthquake of unusual severity. The time of the shock and its duration varied slightly in different localities, depending upon their position with reference to the seat of the disturbance in the earth's crust; but in general the time of the occurrence may be stated to be 5h 12m A. M., Pacific standard time, or the time of the meridian of longitude 120° west of Greenwich; and the sensible duration of the shock was about one minute.

"The shock was violent in the region about the Bay of San Francisco, and with few exceptions inspired all who felt it with alarm and consternation. In the cities many people were injured or killed, and in some cases persons became mentally deranged, as a result of the disasters which immediately ensued from the commotion of the earth. The manifestations of the earthquake were numerous and varied. ... Springs were affected either temporarily or permanently, some being diminished, others increased in flow. Landslides were caused on steep slopes, and on the bottom lands of the streams the soft alluvium was in many places caused to crack and to lurch, producing often very considerable deformations of the surface. This deformation of the soil was an important cause of damage and wreckage of buildings situated in such tracts. Railway tracks were buckled and broken. In timbered areas in the zone of maximum disturbance many large trees were thrown to the ground and in some cases they were snapped off above the ground.

"The most disastrous of the effects of the earthquake were the breaking out of fires and, at the same time, the destruction of the pipe systems which supplied the water necessary to combat them. Such fires caused the destruction of a large

portion of San Francisco, as all the world knows; and they also intensified the calamity due to the earthquake at Santa Rosa and Fort Bragg. The degree of intensity with which the earthquake made itself felt by these various manifestations diminished with the distance from the seat of disturbance, and at the more remote points near the limits of its sensibility it was perceived only by a feeble vibration of buildings during a brief period.

{587}

"The area over which the shock was perceptible to the senses extends from Coos Bay, Oregon, on the north, to Los Angeles on the south, a distance of about 730 miles; and easterly as far as Winnemucca, Nevada, a distance of about 300 miles from the coast. The territory thus affected has an extent, inland from the coast, of probably 175,000 square miles. If we assume that (the sea-bottom to the west of the coast was similarly affected, which is very probably true, the total area which was caused to vibrate to such an extent as to be perceptible to the senses was 372,700 square miles. Beyond the limits at which the vibrations were sufficiently sharp to appeal to the senses, earth waves were propagated entirely around the globe and were recorded instrumentally at all the more important seismological stations in civilized countries.

"Various manifestations of the earthquake above cited, including the cracking and deformation of the soil and incoherent surface formations, were the results of the earthquake, or commotion of the earth's crust. The cause of the earthquake, as will be more fully set forth in the body of this report, was the sudden rupture of the earth's crust along a line or lines extending from the vicinity of Point Delgada to a point in San Benito County near San Juan; a distance in a nearly straight course, of about 270 miles. For a distance of 190 miles from Point Arena to San Juan, the fissure formed by this rupture is known to be practically continuous. Beyond

Point Arena it passes out to sea, so that its continuity with the similar crack near Point Delgada is open to doubt; and the latter may possibly be an independent, tho associated, rupture parallel to the main one south of Point Arena. It is most probable, however, that there is but one continuous rupture. The course of the fissure for the 190 miles thru which it has been followed is nearly straight, with a bearing of from North 30° to 40° West, but with a slight general curvature, the concavity being toward the. northeast, and minor local curvatures. The fissure for the extent indicated follows the old line of seismic disturbance which extends thru California from Humboldt County to San Benito County, and thence southerly obliquely across the Coast Ranges thru the Tejon Pass and the Cajon Pass into the Colorado Desert."

Report of the California State Earthquake Investigation Commission, Volume 1, pages 1-2.

SAN FRANCISCO:

The Great Conflagration.

General Frederick Funston, commanding the United States troops at San Francisco, lost no time in ordering them out for service in the emergency, and his report gives many interesting particulars of the struggle with outbreaking and spreading fires, in which they took an heroic part.

"By 9 A. M.," he wrote, "the various fires were merging into one great conflagration, and were approaching the Palace Hotel, Grand Hotel, Call Building, Emporium, and other large buildings from the south. ... By the morning of the 19th the fire had destroyed the main portion of the wholesale and retail section of the city, and was actively burning on a line from about the corner of Montgomery avenue and Montgomery street southwest on an irregular line to Van Ness avenue at Golden Gate avenue. ... The progress of the fire was very slow. It averaged not more than one block in two hours. ... By the

night of the 19th about 250,000 people or more must have been encamped or sleeping out in the open in the various military reservations, parks, and open spaces of the city.

"On the night of the 19th, when the fire reached Van Ness avenue, Colonel Charles Morris, Artillery Corps, in command of the troops in that portion of the city, authorized Captain Le Vert Coleman to destroy a number of buildings far enough ahead of the fire to make a clearing along Broadway, Franklin and Gough streets, which space the fire was unable to bridge, and in this manner was stopped after it had crossed Van Ness avenue and the fire department seemed powerless. It is my opinion that if it had not been for the work done at this place the entire Western Addition of the city would have been destroyed.

"By the morning of the 20th the Western Addition, as that part of the city lying west of Van Ness avenue is called, was considered safe, except from the danger arising from a very threatening conflagration working along the slopes of Russian Hill toward that part of Van Ness avenue lying north of Broadway. All day of the 20th an heroic fight was made by the soldiers, sailors, firemen, and citizens to stop this fire, which had a frontage of about half a mile, and was working its way slowly against the wind. A number of buildings were destroyed here by high explosives, and back firing was resorted to. The fight, at this place was greatly aided by water pumped from the bay at Fort Mason. ...

"By the most tremendous exertions the flames were prevented from crossing Van Ness avenue between that port (Fort Mason) and the point where they had once crossed and been fought out. By the morning of the 21st the Western Addition was considered safe, and the advancing flames south from the Mission district had been stayed; but a rising wind caused the fire to turn northeastward from Russian Hill and destroy a portion of the city along the bay shore that had hitherto been spared."

Of the work of dynamiting that was done, mainly by the soldiers, Major General A. W. Greeley, in a special report, says: "The authority for demolitions was in every case derived from the Mayor or his representatives. During all of the 18th and until the afternoon of the 19th the city authorities withheld their permission to blow up any buildings, except those in immediate contact with others already ablaze. Consequently, although we were able to check the fire at certain points, it outflanked us time and again, and all our work had to be begun over in front of the fire. ... By [afternoon of April 19th] the Mayor gave permission to take more drastic measures to stop the fire."

SAN FRANCISCO:

After the Fire.

Of conditions after the fire General Greeley gives a vivid description, partly as follows:

"On April 18 this was a city of 500,000 inhabitants, the commercial emporium of the Pacific coast, a great industrial and manufacturing center, adorned with magnificent buildings, equipped with extensive local transportation, provided with the most sanitary appliances, and having an abundant water supply. On April 21 these triumphs of human effort, this center of civilization, had become a scene of indescribable desolation, more than 200,000 residents having fled from the burnt district alone, leaving several hundred dead under its smoldering ashes. ...

{588}

"The burnt area covered 3,400 acres, as against 2,100 in Chicago and 50 in Boston. ... Even buildings spared by the fire were damaged as to chimneys, so that all food of the entire city was cooked over camp fires in the open streets.

"Two hundred and twenty-five thousand people were not only homeless, losing homes and all personal property, but also were deprived of their means of present sustenance and future livelihood. Food, water, shelter, clothing, medicines, and sewerage were all lacking. Failing even for drinking purposes, water had to be brought long distances. Every large bakery was destroyed or interrupted. While milk and country produce were plentiful in the suburbs, local transportation was entirely interrupted so that even people of great wealth could obtain food only by charity or public relief."

SAN FRANCISCO:

Loss of Life and Property.

General Greeley "gives the loss of life in San Francisco, including some who subsequently died from injuries received, as 304 known and 194 unknown. In addition, 415 persons were seriously injured. Estimates of the value of property destroyed made up from the reports of settlements by the insurance companies are given as follows in Best's Special Report on San Francisco Losses and Settlement, published in New York, February 25, 1907:

'The total loss to insurance institutions throughout the world was from \$220,000,000 to \$225,000,000. It is probable that the sound value of the property represented by this loss was nearly or quite \$100,000,000 greater than the last named figure, so that this conflagration takes rank as the largest in history in point of values destroyed. The loss fell on 243 insurance institutions, plus those foreign companies (twenty or more in number) which have made no report to us.'

SAN FRANCISCO:

Maintenance of Order.

"After the arrival of state troops ordered into service by the

governor of California, five separate organizations were maintaining order in San Francisco—the municipal police, the national guard of California, the United States navy, citizens' committees, and the United States army. Under this multiplied control it was inevitable that some clashes of authority should occur, and that citizens should at times feel hampered by excess of regulation. 'It bears testimony,' says General Greeley, 'to the judgment and forbearance of the personnel enforcing order and to the sensible, law-abiding qualities of the people of San Francisco, that during such prolonged and desperate condition of affairs there should have been but nine deaths by violence. All killed were men, and four of the cases have been the subject of investigation under the civil law.'

SAN FRANCISCO: Relief Measures.

"Invaluable service of relief was rendered by the railway companies, the Southern Pacific, under the personal direction of President E. T. Harriman, and the Atchison, Topeka and Santa Fe, giving free transportation over their lines from April 18th to the 26th, and affording every possible facility for the forwarding of relief supplies. The ferries and suburban lines did the same.

"Food, clothing and tents furnished by Pacific coast cities began to pour in, followed quickly by similar supplies from more distant points and by the War Department of the United States under special appropriation promptly made by Congress. The proper handling and distribution of these vast quantities of material and the control of the refugee camps that filled the public parks devolved upon the military authorities. Relief service was promptly systematized by the army officers, ably assisted after the opening week by Dr. Edward T. Devine, special representative of the National Red Cross. After July 2 the army was withdrawn from the refugee camps and the relief

work passed under the control of the Red Cross and citizens' organizations. Mr. J. D. Phelan of San Francisco, chairman of the Finance Committee of the Relief and Red Cross Funds, thus commends the services of the army in its management of the relief operations: 'As citizens we feel that the army in time of peace has demonstrated its efficiency and usefulness as it has in our days of trouble signalized its splendid qualities on the field of battle.'

SAN FRANCISCO:

Behavior of the People.

"General A. W. Greeley in his special report thus characterizes the behavior of the people of San Francisco.

'It is safe to say that nearly 200,000 persons were brought to a state of complete destitution, beyond the clothing they wore or carried in their arms. The majority of the community was reduced from conditions of comfort to dependence upon public charity, yet in all my experiences I have never seen a woman in tears, nor heard a man whining over his losses. Besides this spirit of cheerful courage, they exhibited qualities of resourcefulness and self-respect which must command the admiration of the world. Within two months the bread line, which at first exceeded 300,000, was reduced to a comparative handful—less than 5 per cent. of the original number.'"

Frederick H. Clark,
Head of History Department, Lowell High School.

SAN FRANCISCO: A. D. 1906.

Segregation of Oriental Children in Public Schools.
Resentment of Japanese.

See (in this Volume)

RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

SAN FRANCISCO: A. D. 1906 (April-October).
During and after the Suppression of Saloons.

See (in this Volume)
ALCOHOL PROBLEM: CASUAL OCCURRENCES.

SAN FRANCISCO: A. D. 1906-1909.
The Rebuilding of the Shattered and Burned City.
Improvements in the Reconstruction.

"The great fire of April, 1906, practically obliterated the business section of San Francisco. Vast heaps of brick and stone and iron beams, twisted and bent, filled the area where the great hotels, banks and mercantile establishments, wholesale and retail, had stood. The opportunity to correct original errors and to make improvements in the ground plan of this portion of the city was at once recognized. People said to one another: ' London, Chicago, and Baltimore have bitterly regretted, since their great fires, that they did not improve their streets. Are we to fail to take advantage of their mistakes?' A Citizens' Committee on Reconstruction was appointed; many valuable suggestions were brought together; and an expert engineer was directed to study the plans and make practical estimates of the cost of the more important improvements. A set of most commendable changes was thus brought to the point of authoritative adoption. These changes included, particularly, the widening of streets needed for main thoroughfares, extension of a few main streets so as to facilitate the distribution of traffic, the extension of shipping facilities along the water front, and improving the thoroughfares leading thereto. The opportunity of making these improvements while the whole area was destitute of buildings was, of course, never likely to recur.

{589}

"At this point the whole matter came to a standstill. It was

the misfortune of San Francisco at this critical moment to be under a municipal administration, wholly incompetent and corrupt. Private enterprise was strained to the utmost in the effort to recover from the great losses, and from the want of governmental initiative, all projects of municipal improvement failed for the time. Under a reformed city-government after 1907, a great deal of municipal work was undertaken which will be indicated below.

"Rebuilding of private structures is a wonderful record of courage, energy and resourcefulness. The first stage was the rushing up of temporary wooden structures,—any sort of a building that would afford shelter and permit the resumption of business. For the most part the lumber yards of San Francisco were untouched by the fire, and thus the city had a considerable stock of material for immediate operations. Van Ness Avenue and other former residence streets were soon lined with one-story wooden buildings over which appeared the well-known names of down-town firms.

"The second stage in reconstruction was the removal of the ruins left by earthquake and fire. The business section of the former city was constructed mainly of brick. Whether from ignorance or prejudice the former building laws of San Francisco did not permit the use of concrete except for floors and foundations. Only a few of the more recently constructed buildings were of steel. Thus the first great problem was presented by the standing brick walls.

"For a few days the use of dynamite for the overthrow of standing walls was permitted, and in this way much additional damage was done to buildings not wholly ruined by the earthquake and fire. Subsequently it was found to be far more systematic and advantageous as well as safer to pull down the standing walls by means of wire cables and stationary engines. Pulling down old walls became for a time a trade in itself.

"Thousands of men found employment in cleaning the old bricks and stacking them up for use in rebuilding. For the removal of the vast quantities of debris,—twisted pipe and beams, broken brick and crumbled plaster, temporary railways were constructed over the level down-town district, and elaborate plans were made for a wholesale business by steam transportation. There was trouble over loading facilities, however, and the greater quantity was carried away by two horse dump-wagons, the material being used for filling in low lands along the water front and elsewhere. All California felt the demand for horses and wagons that this great work created.

"Immediately after the fire the work of revising the building laws was taken up. Fortunately this task received the intelligent guidance of a citizens' committee composed of local builders, architects and engineers. The building regulations were rescued from their contradictions and confusion, and a clear, systematic ordinance was secured. The most notable forward step was the authorization of reinforced concrete buildings.

"Architects and engineers interested in the problems of reconstruction organized a 'Structural Association' as a clearing-house for improved building methods. The utmost pains were taken to study the effects of the earthquake and the conflagration in order to secure every possible advantage from the lessons inculcated. The results of this study may be summarized as follows.

"Steel frame buildings (Class A) were perfectly able to resist the effects of earthquake shock of the severity of the disturbance of 1906, and when properly protected, to endure the test of conflagration as well. Concrete, both plain and reinforced, rose rapidly in favor as structural material. Opinion as to the continued use of brick in construction was divided, but on account of the need of brick in the cheaper buildings, there was no tendency toward its falling into

disuse. Wired glass, that is, plate glass in which a mesh of fine wire netting is embedded has been brought into favor, the idea being that when this glass is subjected to great heat it may crack, but will not fall.

"Along with the improved methods of construction, the rebuilding of office and business structures afforded an opportunity of modernizing them. Merchants went so far as to form a 'Down-Town Association' which held weekly meetings for the purpose of studying the problems of rehabilitation and of taking advantage of every suggestion for improvement. The new buildings have been perfected in lighting and sanitation and in exterior finish and interior arrangements have been brought up to the standard of the world's best types. Thus the business district of the new city has been made immeasurably superior in durability, cleanliness and appearance, to what it was before the fire.

"The amount of reconstruction that has been done is shown in the following table taken from the San Francisco **Chronicle** of April 18, 1909, which summarizes the work done in three years. The table was compiled from the municipal records.

"Private building operations, April 18, 1906 to April 18, 1909:

	Number .	Cost .
Class A	82	\$19,391,982
Class B	109	8,042,831
Class C	1,369	42,416,072

Frame	12,352	50,962,813
Alterations	6,334	9,528,310
Total		\$130,344,008

"Class A

buildings having steel frames;
stone, brick or concrete facing, fire-proof floors.
Completely fire-proof.

"Class B

buildings of reinforced concrete,
brick or stone, with steel beams entering into the main walls,
fire-proof.

"Class C

brick, stone or concrete buildings
with floors and floor-framework of wood.

"As the actual cost usually exceeds the estimate that goes into the public record by about 15 per cent. it would be proper to estimate the cost of all this construction at \$150,000,000. Of this amount it is estimated that less than \$10,000,000 has been furnished from outside of San Francisco,—local capital having proven itself sufficient for this vast work. Within this same period the public service corporations have expended nearly \$20,000,000 in reconstruction,—the greatest work being the practical rebuilding of the street-car lines. For municipal reconstruction the city has repaved nearly all of the business streets and has voted bonds for \$18,200,000. From the funds thus provided permanent improvements of great importance are now (August, 1909) in progress.

{590}

"The election authorizing the sale of bonds was held on May 11, 1908. The purposes for which these bonds were issued are thus announced by the Public Utilities Committee of the Board of Supervisors:

"Fire Protection Bonds, \$5,200,000, for the installation of an extensive high pressure water system which will give superior fire protection to the greater part of the thickly built portion of the city, and designed to be the most serviceable of its kind in the world. With this installed it will be almost impossible for a conflagration to ever again visit the city.

"Sewer Bonds, \$4,000,000, for the construction of a complete sewer system which will discharge the sewage in a manner that will perfectly safeguard the health of the city.

"School Bonds, \$5,000,000, for the construction of school-houses to the number of more than thirty, replacing those destroyed by fire in April, 1906, and providing sites and additional structures in districts now inadequately supplied.

"Hospital Bonds, \$2,000,000, for the construction of modern hospitals.

"Hall of Justice Bonds, \$1,000,000, for the construction of buildings for the police and other departments of the city government.

"Garbage System Bonds, \$1,000,000, for the construction of modern works for the disposal of the city's waste in a sanitary manner.

"With these improvements the City of San Francisco will be

equipped with public works that will insure it a prominent place in the cities of the world in respect to all things that go to make stability and give permanence to the community as a great trade and industrial center.' The rapid recovery of San Francisco from the losses of the great fire is further shown by the following comparison of values from the Assessors Reports:

Value of Taxable Property.		
	1905.	1906.
1908.		
Real Estate	\$304,136,185	
\$237,082,752	\$258,642,215	
Buildings	97,830,165	
50,250,480	90,996,500	
Personal Property	122,264,596	
88,805,510	103,912,469	
Total	\$524,230,946	
\$376,138,742	\$453,551,184	

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SAN FRANCISCO: A. D. 1908 (July).
Visit of the Battleship Fleet.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

SANITARY UNDERTAKINGS.

See (in this Volume)
PUBLIC HEALTH.

SANTOS-DUMONT, A.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

SARRIEN-CLEMENCEAU MINISTRY.

See (in this Volume)
FRANCE: A. D. 1906.

SARTO, Giuseppe, Cardinal:
Elected Pope.

See (in this Volume)
PAPACY: A. D. 1903 (JULY-AUGUST).

SASKATCHEWAN:

Organized as a Province of the Dominion of Canada.

See (in this Volume)
CANADA: A. D. 1905.

SAXONY: A. D. 1906.

Political Reform.

See (in this Volume)
ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

SCANDINAVIAN-AMERICAN SOLIDARITY.

See (in this Volume)
EDUCATION: INTERNATIONAL INTERCHANGES.

SCHMITZ, EUGENE E.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO.

SCHOOL CHILDREN, UNDERFED.

See (in this Volume)
POVERTY, PROBLEMS OF.

SCHOOL PEACE LEAGUE,
The American.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1908.

SCHOOLS.

See (in this Volume)
EDUCATION.

SCHOUVALOFF, COUNT, ASSASSINATION OF.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

SCHREINER, W. P.:
Opposition to Disfranchisement of Colored Natives
in South Africa.

See (in this Volume)
SOUTH AFRICA: A. D. 1908-1909.

-----SCIENCE AND INVENTION, RECENT: Start-----

SCIENCE AND INVENTION, RECENT: Aeronautics:

The Development of the Aeroplane and the Dirigible Balloon.

To be lifted from the earth by an inflated sack of gas lighter than air, and be drifted with it by the winds, was an interesting experience for a few adventurous people, after the Mongolfiers, in 1783, had found it could be done; but the practical advantages from it were slight, so long as the voyager of the air had no slightest control of his journeying. The possibility of such control only came within the range of inventors' dreams when motor enginery had been carried far towards the promise of much power with little weight. The promise was half a century behind its fulfilment, however, when Henri Giffard, the notable French engineer, is said to have constructed a balloon which lacked nothing but the adequately light and vigorous motor in order to be as [much a] dirigible as any of the present day. But the needed motor began to take form, and success in the propulsion of balloons on steered courses, with some independence of the winds, began to be realized, in the experiments of Count Zeppelin, in Germany, and of M. Santos-Dumont in France, beginning about 1898.

Before that date, however, invention had been started on bolder lines, seeking independence of the clumsy gas-bag, and striving to mount the air as the bird does, by pushing against it the inclined planes of his wings. Otto Lilienthal, in Germany, began experiments to that end in 1893. He had no motor; but starting from a height, and "making judicious use of the movement of the wind," he accomplished gliding flights of about 1200 feet, and the machines he constructed were suggestive of ideas to the experimenters who followed him. He was killed by a fall in 1896. Many were then working at the problem of aerial flight without the lifting force of light gases.

{591}

Some studied it scientifically and some attacked it in the rough manner of sheer empiricism. Of the former, in the United

States, were Octave Chanute, the engineer, and Professor Samuel P. Langley, the astronomer and physicist of the Smithsonian Institution; in England there was Sir Hiram Maxim. These gentlemen arrived at no practical success in their own experimenting, but they furnished good guidance to the work of their more fortunate successors. A little later the scientific students of the problem were joined by the inventor of the telephone, Alexander Graham Bell. And then came the two workers who advanced from empiricism to science in their undertaking, and who won the first great successes by a happy combination of the two.

The brothers Orville and Wilbur Wright have told, in an article contributed to ***The Century Magazine***, how they were stirred to serious interest in the aviation problem in 1896 and began to read what Langley, Chanute, Mouillard and others had written on it. Entering, purely as a sport, on experiments in gliding flight, on Lilienthal's lines, they became fascinated by the pursuit. From the first they appear to have chosen what is known as the biplane structure for their machines, the invention of which they credit to a previous inventor, Wenham, whose design of it had been improved by Stringfellow and Chanute. To this construction, of two planes, one above the other, for supporting surfaces, they have steadfastly adhered.

At the outset of their experimenting the Wrights found a difficulty in the balancing of "flyers" which previous workers did not seem to have treated seriously enough, and they settled themselves to the conquest of it at once. This and other problems soon carried them from empirical testing into scientific studies, which occupied several years. They found that the accepted measurements of wind pressure, on given plane surfaces exposed at different angles, were unreliable, and they applied themselves to the making and tabulating of measurements of their own. It was not until this work had given them "accurate data for making calculations, and a

system of balance effective in winds as well as in calms," as well as the necessary data for designing an effective screw propeller, that they felt themselves prepared "to build a successful power-flyer."

So far, these thorough-going workers at the problems of aviation had been experimenting with a machine designed, as they said, "to be flown as a kite, with a man on board," or without the man, "operating the levers through cords from the ground." Their active experimenting began in October, 1900, at Kitty Hawk, North Carolina. In 1901 they made the acquaintance of Mr. Chanute, and he spent some weeks with them, observing and encouraging their work. In September and October, they say, "nearly one thousand gliding flights were made, several of which covered distances of over 600 feet. Some, made against a wind of thirty-six miles an hour, gave proof of the effectiveness of the devices for control." Late in 1903 they had reached the point of testing a power-machine, and sailed into the air with it for the first time on the 17th of December in the presence of five lookers-on. "The first flight," they tell us, "lasted only twelve seconds: a flight very modest compared with that of birds; but it was, nevertheless, the first in the history of the world in which a machine carrying a man had raised itself by its own power into the air in free flight, had sailed forward on a level course, without reduction of speed, and had finally landed without being wrecked. The second and third flights were a little longer, and the fourth lasted fifty-nine seconds, covering a distance of 852 feet over the ground against a twenty-mile wind."

In the spring of 1904 the experimenting of the Wright Brothers was transferred from Kitty Hawk, North Carolina, to a prairie not far from their home, at Dayton, Ohio. There they overcame final difficulties in the maintaining of equilibrium when turning their machine in circles of flight; and then, at the end of September, 1905, they suspended experiments for more

than two years, which they spent in business negotiations and in the construction of new machines. Their experimenting was not resumed until May, 1908 (again at Kitty Hawk). At this time it was directed to the testing of the ability of their machine to meet the requirements of a contract with the United States Government to furnish a flyer capable of carrying two men and sufficient fuel supplies for a flight of 25 miles, with a speed of forty miles an hour.

Meantime, during the two years of suspended experimenting by the Wrights, other workers in Europe and America had been approaching their successes, so far as to be competitors for the important prizes now offered very plainly for winning in the aviation field. M. Santos-Dumont, turning his attention from dirigible balloons to aeroplanes, had made, at Paris, the first public flight on that side of the ocean; and though he covered no more than 220 yards, it was a long stride in practical success. Henry Farman, Louis Bleriot, M. Delagrange, in France, Glenn H. Curtiss and A. M. Herring, in the United States, were making ready to dispute honors with the Dayton aviators, of whose actual achievements the public knew little, as yet.

On all sides there was readiness for surprising and astonishing the public in 1908. Farman, at Paris, in March, exceeded a flight of two miles; Delagrange, at Milan, in June, covered ten miles, and more; Farman, in July, raised his record to eleven miles, and Delagrange carried his to fifteen and a half in September. The Wrights had made flights that ranged from eleven to twenty-four miles in the fall of 1905; and now, in their renewed trials of 1908, these distances were more than doubled. Wilbur Wright went abroad, to exhibit their machine in France and elsewhere, while Orville, in September, submitted it to official tests at Fort Myer, near Washington. There, on different days in that month, rounding circuits of the parade ground, he made time records of continuous flight that ran from 56 to 74 minutes, travelling estimated distances

that stretched in one instance over fifty-one and a third miles. These trials at Fort Myer were interrupted sadly by an accident, from the breaking of a propeller-blade, which caused the machine to drop to the ground while in flight. Lieutenant T. E. Selfridge, U. S. A., who rode with Mr. Wright at the time, was killed, and Mr. Wright suffered a broken leg.

{592}

Wilbur Wright, meantime, was entering on great triumphs in France. At Le Mans, on the 21st of September, he traversed 68 miles in a continuous flight of a little more than an hour and a half. This achievement was far surpassed by him on the 18th of December, when 95 miles were travelled in an hour and fifty-four minutes, and again, on the 31st of December, when the stay in the air was prolonged to two hours, nine minutes and some seconds, and the distance covered was 76½ miles.

These records of the Wrights for time of continuous flight were beaten by a number of European competitors, as will be shown below. Otherwise, the records of 1909 show no very marked advance beyond those of 1908; but the year had excitements in aviation, connected especially with attempted flights over the English Channel. Hubert Latham, a recent French practitioner in aviation, was the first to venture this leap through the air from France to England. His machine was described as being an Antoinette monoplane, designed by M. Levevasseur. He launched it from Calais in the early morning of July 19, and traversed about six miles of the passage when his motor failed and he fell to the water, unhurt, and was rescued by an attendant steamer. Six days after Latham's failure, on the 25th of July, Louis Bleriot, using another monoplane machine, made the crossing with brilliant success, flying from Calais to Dover, 21 miles, in 23 minutes, and winning the prize of £1000 which the Daily Mail, of London, had offered for the performance of the feat. M. Latham then repeated his attempt and was unfortunate again, his motor

giving out after it had carried him within two miles of the Dover shore.

Orville Wright, at this time, July 27, was demonstrating at Fort Myer the ability of his aeroplane to carry two persons in a well-sustained flight. With Lieutenant Frank P. Lahm, of the Signal Corps, as a passenger, and having President Taft among his spectators, he made a flight of an hour, twelve minutes and forty seconds, accomplishing upwards of fifty miles at an average speed of forty miles an hour. A day or two afterwards he carried Lieutenant Benjamin D. Foulois over the ten mile course from Fort Myer to Alexandria at a speed of more than forty-two miles an hour.

In the last week of August the first race meeting for heavier-than air flying machines occurred at Rheims, France, and a dozen aviators from France, England and America competed for large prizes in long distance and duration flights. A number of new records was made, and new names acquired note. Louis Paulhan kept the air for two hours and forty-three minutes with a Voisin biplane, covering 83 miles. Hubert Latham surpassed this in distance and speed, making 96 miles in two hours and eighteen minutes; and this again was beaten by Henri Farman, who travelled 118 miles, remaining in the air over three hours. M. Latham used the Antoinette monoplane, and M. Farman a biplane of his own design. Mr. Glenn H. Curtiss won the prize for speed, doing 18 miles in twenty-five minutes and forty-five seconds.

Orville Wright had now gone abroad and his brother had returned to America. In August and September the former gave exhibitions at Berlin, breaking some of his own records, carrying a passenger in his machine for an hour and thirty-five minutes, on the 18th of September, and rising, on the 1st of October, to an unexampled height, believed to have exceeded 1000 feet. This, however, was greatly exceeded in January, 1910, by Hubert Latham, at Mourmelon, France, who

rose to 3280 feet, and by Louis Paulhan, at Los Angeles, California, 4165 ft. On the 3d of October the Crown Prince of Germany was his companion in a short flight.

Meantime Wilbur Wright, in America, had endeavored to supply one of the spectacles arranged for the Hudson-Fulton celebration at New York; but the intended programme of aviation was spoiled by forbidding winds. He did, however, make one astonishing flight, on the 4th of October, from Governor's Island, up the Hudson to Grant's tomb, and, on his return, passing over the British battle-ships then lying in the river. The distance travelled was about twenty miles and the time of the journey thirty-three minutes and a half. Unfortunately it was unexpected, and was seen by a small part only of the millions who had been watching several days for a flight. On the next day Mr. Wright made the statement that no more public exhibitions would be given by his brother or himself. "Hereafter," he said, "we shall devote all our efforts to the commercial exploitation of our machines, and fly only as a matter of experiment, to test the value of whatever changes we decide to make in the construction."

Turning now back to the development of the motor-propelled and dirigible balloon, we find that field of aeronautics very nearly monopolized at the beginning of the twentieth century, so far as the public saw it, by the Brazilian millionaire, A. Santos-Dumont, who spent his time and his wealth at Paris in ballooning. The French Government had been authorizing army experiments in dirigible ballooning since 1884, and a motor-driven air-ship of that description, designed by Captain Renard, and named "La France," had made a trip from Chalais-Meudon to Paris and return in September, 1885, being the first balloon ever navigated back to its starting point; but not much in the same line to excite public interest appears to have been done in the next sixteen years. Then, on the 19th of October, 1901, a lively stir of interest everywhere was excited by the exploit of Santos-Dumont, in

navigating his balloon from St. Cloud to and around the Eiffel Tower and back to the starting point. He had done the same privately three months before, at a very early morning hour of July 12, on which occasion he broke his rudder at an early stage of the journey, descended in the Trocadero Gardens, made repairs and then went on doing the whole round in an hour and six minutes, including the stop.

Expectation, however, that controllable navigation of the air, in average conditions of wind, might really be an approaching and not very distant fact, cannot be said to have had much awakening in the world until the performances, in 1908, of Count Zeppelin's huge airship, 440 feet in length, called Zeppelin No. IV., which enclosed numerous envelopes of gas in a rigid aluminum frame. On the 2d of July, 1908, he drove this great balloon from Friedrichshafen, on Lake Constance, to Luzerne, 248 miles, within twelve hours. Starting again from Friedrichshafen, August 4, intending a 500 mile trip, he made a landing at Oppenheim, 260 miles distant, returned thence to Stuttgart, and finally to Echterdingen, where a hurricane storm wrecked his airship completely, causing its motor to explode. Public sympathy with the veteran aeronaut and public faith in his work were so strong that a fund was raised promptly by subscription for the building of another of his costly balloons.

{593}

With this he was ready for new voyages in the spring of 1909, and started from Friedrichshafen on the 30th of May, carrying two engineers and a crew of seven, travelled 456 miles to Bitterfeld, where, without landing, he turned back; but landed later near Goeppingen, receiving a slight injury to the balloon in landing by contact with a tree. The whole distance travelled was about 850 miles, in 37 hours. Late in August the Count accomplished a long desired voyage from his headquarters on Lake Constance to Berlin; but was forced to land at

Nuremberg for repairs, and again at Bitterfield, disappointing the great crowds which waited at Berlin, till late at night on the 29th, with the Emperor, to welcome his arrival. When he came, the next day, however, the public enthusiasm showed no cooling. "He was received," says a despatch from Berlin, "with all the honours which the Court and capital could pay him, and his triumphal entry into the city this afternoon as the honoured guest of the Emperor, was not merely a dramatic success but a national demonstration." And now, from this glancing survey of achievement thus far in the navigation of the air, with and without help from the levitation of gas, what expectations of further achievement can we reasonably indulge? Here is one answer, from a notably scientific mind,—that of the late Simon Newcomb, the astronomer:

"It would seem that, at the present time, the public is more hopeful of the flying-machine than of the dirigible balloon. The idea that because such a machine has at last been constructed which will carry a man through the air, there is no limit to progress, is a natural one. But to judge of possibilities, we must advert to the distinction already pointed out between obstacles interposed by nature, which cannot be surmounted by any invention, and those which we may hope to overcome by possible mechanical appliances. The mathematical relations between speed, sustaining power, strength of material, efficiency of engine, and other elements of success are fixed and determinate, and cannot be changed except by new scientific discoveries, quite outside the power of the inventor to make. That the gravitation of matter can in any way be annulled seems out of the question. Should any combination of metals or other substances be discovered of many times the stiffness and tensile strength of the fabrics and alloys with which we are now acquainted, then might one element of success be at our command. But, with the metals that we actually have, there is a limit to the weight of an engine with a given driving power, and it may be fairly assumed that this limit is nearly reached in the motors now in

use. ... Owing to the levity of the air, the supporting surface must have a wide area. We cannot set any exact limit to the necessary spread of sail, because the higher the speed the less the spread required. But, as we increase the speed, we also increase the resistance, and therefore we must have a more powerful and necessarily heavier motor. ... Bearing in mind that no limit is to be set to the possible discovery of new laws of nature or new combinations of the chemical elements, it must be understood that I disclaim any positive prediction that men will never fly from place to place at will. The claim I make is that they will not do this until some epoch-making discovery is made of which we have now no conception, and that mere invention has nearly reached its limit. It is very natural to reason that men have done hundreds of things which formerly seemed impossible, and therefore they may fly. But for every one thing seemingly impossible that they have succeeded in doing there are ten which they would like to do but which no one believes that they can do. No one thinks of controlling wind or weather, of making the sun shine when we please, of building a railroad across the Atlantic, of changing the ocean level to suit the purposes of commerce, of building bridges of greater extent than engineers tell us is possible with the strength of the material that we have at command, or of erecting buildings so high that they would be crushed by their own weight. Why are we hopeless as to all these achievements, and yet hopeful that the flying-machine may be the vehicle of the future, which shall transport us more rapidly than a railroad train now does? It is simply because we all have so clear a mental view of the obstacles in the way of reaching such ends as those just enumerated that we do not waste time in attempting to surmount them, and we are hopeful of the flying-machine only because we do not clearly see that the difficulties are of the same nature as those we should encounter in erecting a structure which would not be subject to the laws of mechanics.

"I have said nothing of the possible success of the

flying-machine for the purposes of military reconnaissance or any other operations requiring the observer to command a wide view of all that is on the landscape. This is a technical subject which, how great soever may be its national importance, does not affect our daily life."

***Simon Newcomb,
The Prospect of Aerial Navigation
(North American Review, March, 1908).***

Here is another, from Thomas A. Edison, the inventor:

"In ten years flying machines will be used to carry mails. They will carry passengers, too, and they will go at a speed of 100 miles an hour. There is no doubt of this."

These are the words of Mr. Edison in an interview published in the ***New York Times***, August 1st, 1909. But while he is sure that the "flying machine has got to come," he is not at all sure that it will come along the lines pursued in the present experiments. "The flying problem now consists of 75 per cent. machine and 25 per cent, man," he said, "while to be commercially successful the flying machine must leave little to the peculiar skill of the operator and must be able to go out in all weathers." He continued:

"If I were to build a flying machine I would plan to sustain it by means of a number of rapidly revolving inclined planes, the effect of which would be to raise the machine by compressing the air between the planes and the earth. Such a machine would rise from the ground as a bird does. Then I would drive the machine ahead with a propeller."

{594}

Mr. Edison believes it is a question of power. "Is it not thinkable that a method will be discovered of wirelessly

transmitting electrical energy from the earth to the motor of the machine in mid-air?" He asked and answered his own question, saying:—"There is no reason to disbelieve that it can and will be done." He added, however, that there was great room for improvement in explosive engines. "Any day we are likely to read that somebody has made picric acid or something else work—done some little thing that will transform the flying machine from a toy into a commercial success." And when it is perfected, he says, the flying machine may end war by becoming a means of attack that cannot be resisted.

SCIENCE AND INVENTION, RECENT:

Agriculture: Dry Farming in the West.

For twenty consecutive years, in scores of places from the James River to the Arkansas, Mr. H. W. Campbell, of Lincoln, Nebraska, the pioneer "dry farmer" of Arid America, "has been uniformly successful in producing without irrigation the same results that are expected with irrigation, with comparatively little additional expense, but not without a great deal more watchfulness and labor. What Western people have become accustomed to calling the 'Campbell system of dry farming' consists simply in the exercise of intelligence, care, patience, and tireless industry. It differs in details from the 'good-farming' methods practised and taught at the various agricultural experiment stations; but the underlying principles are the same.

"These principles are two in number. First to keep the surface of the land under cultivation loose and finely pulverized. This forms a soil mulch that permits the rains and melting snows to percolate readily through to the compacted soil beneath; and that at the same time prevents the moisture stored in the ground from being brought to the surface by capillary attraction, to be absorbed by the hot, dry air. The second is to keep the sub-soil finely pulverized and firmly compacted, increasing its water-holding capacity and its

capillary attraction and placing it in the best possible physical condition for the germination of seed and the development of plant roots. The 'dry farmer' thus stores water not in dams and artificial reservoirs, but right where it can be reached by the roots of growing crops.

"Through these principles, a rainfall of twelve inches can be conserved so effectively that it will produce better results than are usually expected of an annual precipitation of twenty-four inches in humid America. The discoverer and demonstrator of these principles deserves to rank among the greatest of national benefactors."

***John L. Cowan,
Dry Farming the Hope of the West
(Century Magazine, July, 1906).***

"It is difficult for one who is used to the commonplace methods of tilling the soil which obtained a quarter of a century ago to believe that a new method has been discovered which will triple and quadruple the results of the old system in those parts of the country in which the rainfall is somewhat restricted. The imagination cannot immediately grasp the statement that dry farming methods would lift the Kansas wheat crop from 75,000,000 to 216,000,000 bushels. Yet this is a fact.

"If the mind of the eastern farmer can grasp this tremendous fact he will be ready to credit the statement that there are millions of acres in the western country which were until a few years ago regarded as utterly worthless, but which are now cheap at \$25 an acre. To the wheat industry alone of the western country the proved fact of the value of dry farming means more than any other development fact in the agricultural history of this country. What is true of increased yields in dry farming is equally true, and in a larger degree, perhaps, with respect to irrigation. For years the government has been

warning the country that the increased production of wheat is not keeping pace with the increased consumption.

"Should this continue it would mean that ere long the United States would be compelled to draw a part of its wheat supply from the Canadian Northwest. It would also mean that the United States would lose the export wheat trade with the Orient, which is bound to increase rapidly. It is not generally known that the 400,000,000 people in China are being educated to the use of wheat and other cereals than rice, and that, therefore, the demand for wheat will continue to increase. ...

"One of the facts which Mr. Harriman realized far in advance of any one else and which was an important factor in his transportation plans was the possibilities of dry farming as well as irrigation. Before he began to talk much about these subjects he set about to prepare his system to reap the first and most substantial part of the results of dry farming and of irrigation. Other railroad builders are now beginning to realize that Mr. Harriman is prepared to transport the products of the West, of the Northwest and the Southwest between almost any parts of this country, as well as through many ports from San Francisco to the South Atlantic ports, including one or two on the western coast of Old Mexico. Although he and former President Roosevelt were at war in many respects, it was Mr. Harriman that gave the former President much of the information he acquired regarding the boundless resources of the West. By doing so he caused the government to work even more energetically than it had been working for the conservation of the nation's resources."

***Chicago Record-Herald,
July 11, 1909.***

SCIENCE AND INVENTION, RECENT:
Anniversary Celebrations.

The eightieth birthday of Dr. Rudolph Virchow, founder of cellular pathology, was celebrated on the 13th of October, 1901, by a remarkable assemblage of distinguished physicians and surgeons from many countries, who made pilgrimages to Berlin to do him honor.

The centenary of the birth of Charles Darwin, and the semi-centennial year of the publication, in 1859, of his work on "The Origin of Species," were commemorated in every part of the world; but the great collective demonstration of honor to Darwin's memory, organized by the University of Cambridge, his *alma mater*, was a tribute of surpassing impressiveness.

As described by the London *Times*, on the opening day of this extraordinary celebration, June 22, 1909, "the whole learned world, from Chile to Japan," was joined in the homage paid. "Some of those who will be present," said *The Times*, "were his comrades, most of them have been in some measure his working contemporaries.

{595}

Two hundred and thirty-five universities, academies, and learned bodies at home and abroad have nominated delegates to represent them; and of these 107 are situated in foreign countries and British dominions outside the United Kingdom. Thirty of the most famous institutions in Germany, thirty in the United States, fourteen in France, ten in Austria-Hungary, eight in Italy, as many in Sweden, seven in Russia, and lesser numbers in seven other foreign countries have honoured the occasion by naming some of their most distinguished members to take part in it. The distant seats of learning in the younger British countries have responded with not less cordiality; seven in Canada, seven in Australia, five in New Zealand, and the same number in South Africa have appointed delegates; India and Ceylon are represented by eight. Within the United Kingdom 68 universities and societies are lending their support; and, in addition to the appointed delegates, there are some 200 invited guests, who include men eminent in every

walk of life. ... No such academic tribute as the present festival has ever been paid to the memory of an individual within so short a time of his own life."

The commemorative exercises of the occasion were continued through three days.

SCIENCE AND INVENTION, RECENT:

Astronomy: The Astronomy of the Invisible.

"The discovery of double and multiple stars from the effects of the gravitational attraction on their luminous components is known as the 'Astronomy of the Invisible.' It was first suggested by the illustrious Bessel about 1840. ... The greatest extension of the Astronomy of the Invisible has been made by Professor Campbell, of the Lick Observatory. In the course of the regular work on the motion of stars in the line of sight, carried out with a powerful spectroscopic apparatus presented to the Observatory by Honorable D. O. Mills, of New York, he has investigated during the past five years the motion of several hundred of the brighter stars of the northern heavens. ... With such unprecedented telescopic power and a degree of precision in the spectrograph which can be safely depended upon, it is not unnatural that some new and striking phenomena should be disclosed. These consisted of a large number of spectra with double lines, which undergo a periodic displacement, showing that the stars in question were in reality double, made up of two components, moving in opposite directions,—one approaching, the other receding from the Earth. There were thus disclosed spectroscopic binary stars, systems with components so close together that they could not be separated in any existing telescope, yet known to be real binary stars by the periodic behaviour of the lines of the spectra so faithfully registered on different days. ...

"Campbell's work at the Lick Observatory derives increased importance from its systematic character, which enables us to

draw some general conclusions of the greatest interest. He has thus far made known the results of his study of the spectra of two hundred and eighty of the brighter stars of the northern heavens. Out of this number he finds thirty-one spectroscopic binaries, or one ninth of the whole number of objects studied. ... It seems certain that a more thorough study will materially increase the number of spectroscopic binaries; and Professor Campbell thinks one sixth, or even one fifth, of all the objects studied may eventually prove to be binary or multiple systems. Such an extraordinary generalization opens up to our contemplation an entirely new view of the sidereal universe. ...

"If we accept the conclusion that with our finest telescopes, in the best climates, on the average one star in twenty-five is visually double, it will follow from Campbell's work on some three hundred stars that five times that number are spectroscopically double. Thus, although over a million stars have been examined visually, and some five thousand interesting systems disclosed by powerful telescopes, the concluded ratio would give us, at last analysis, four million visual systems among the hundred million objects assumed to compose the stellar universe. On the other hand, the large ratio of spectroscopic binaries to the total number of stars examined by Campbell would lead us to conclude that in the celestial spaces there exist in reality no less than twenty million spectroscopic binary stars! Could anything be more impressive than the view thus opened to the human mind? ...

"It may indeed well be that the dark and unseen portion of the universe is even greater than that which is indicated by our most powerful telescopes. Half a century ago Bessel remarked:

‘There is no reason to suppose luminosity an essential quality of cosmical bodies. The visibility of countless stars is no argument against the invisibility of countless others.’"

T. J. J. See,

Recent Progress in Astronomy
(Atlantic Monthly, January, 1902).

SCIENCE AND INVENTION, RECENT: Biological:
Mendel's Law of Variation in Species.

"Gregor Mendel was Abbot of Brünn in Moravia when Darwin was at work on the Origin. He does not appear to have had any unusual interest in the problem of evolution; indeed, his main concern was with an essentially pre-Darwinian question,—the nature of plant hybrids. With this problem as an avocation from his serious clerical duties, the abbot busied himself in the garden of his cloister; a leisurely, clear-headed, middle-aged churchman in whom a great scientist was spoiled. For eight years he experimented with varieties of the common pea, and in 1865 communicated to the Society of Naturalists in Brünn the substance of the discovery which is hereafter to be known as Mendel's law, 'the greatest discovery in biology since Darwin.' Unfortunately, at that time, the Brünn Society, like the rest of the world, had other things on its mind. ... Somehow or other, Mendel's discovery escaped attention until four years ago [1900], when De Vries reached it independently. Two years later Mr. Bateson, who had been among the first to realize its significance, made a translation of the two original papers. ... Since then, Mendel's Law has been found to hold for a considerable number of cases, both among animals and plants, but most unaccountably not to work for a few others; so that, as yet, no one knows how nearly universal it may prove to be, nor how it is to be reconciled with the older Law of Ancestral Heredity of Galton. ...

{596}

"One illustration will serve to make clear the practical workings of Mendel's principle. If a single rough-coated guinea-pig of either sex be introduced into a colony of normal smooth-coated individuals, all its offspring of the first

generation will be rough-coated like itself. In the next generation, if one of the parents is smooth and the other rough, the young will be half of one sort and half of the other, but if both parents are rough, three quarters will take the 'dominant' rough coat. In the next, and all subsequent generations, one half of these rough-coated individuals which had one smooth-coated grandparent, and one-third of those which had two smooth-coated grandparents, which were not mated, will drop out the 'recessive' smooth-coatedness, and become, in all respects, like their original rough-coated progenitor, even to having only rough-coated young, no matter what their mates may have. Thus Mendel's law, though by no means simple, is very precise. The essential part of his great discovery is that in each generation of plants or animals of mixed ancestry, a definite proportion lose one half of their mingled heritage, and revert, in equal numbers, to one or other of the pure types."

***E. T. Brewster,
Some Recent Aspects of Darwinism
(Atlantic Monthly, April, 1904).***

SCIENCE AND INVENTION, RECENT:
The Carnegie Institution of Washington.
Promotion of Original Research.

The following information relative to the founding, the plan and the work of the Carnegie Institution of Washington, is derived from the, authorities of the Institution:

The Institution was founded by Mr. Andrew Carnegie, January 28, 1902, when he gave to a board of trustees \$10,000,000 in registered bonds, yielding 5 per cent annual interest. To this endowment fund an addition of \$2,000,000 was made by Mr. Carnegie on December 10, 1907. The Institution was originally organized under the laws of the District of Columbia as the Carnegie Institution. Subsequently, however, it was

incorporated by an act of Congress, approved April 28, 1904, under the title of the Carnegie Institution of Washington. The articles of incorporation declare, in general, "that the objects of the corporation shall be to encourage in the broadest and most liberal manner investigation, research, and discovery, and the application of knowledge to the improvement of mankind." By the act of incorporation the Institution was placed under the control of a board of twenty-four trustees, all of whom had been members of the original board referred to above.

The President of the Institution is Dr. Robert S. Woodward, formerly of the faculty of Columbia University. The Chairman of its Board of Trustees is Dr. John S. Billings, Director of the New York Public Library. The Board includes such notable members as William H. Taft, Elihu Root, Seth Low, Andrew D. White, Dr. S. Weir Mitchell, Henry L. Higginson and President Henry S. Pritchett.

Since the object of the Institution is the promotion of investigation "in the broadest and most liberal manner," many projects in widely different fields of inquiry have been considered, or are under consideration, by the Executive Committee. These projects are chiefly of three classes, namely:

First, large projects or departments of work whose execution requires continuous research by a corps of investigators during a series of years. Ten such departments have been established by the Institution. ...

Secondly, minor projects which may be carried out by individual experts in a limited period of time. Many grants in aid of this class of projects have been made.

Thirdly, research associates and assistants. Under this head aid has been given to a considerable number of investigators

possessing exceptional abilities and opportunities for research work.

An annual appropriation is made for the purpose of publishing the results of investigations made under the auspices of the Institution, and for certain works which would not otherwise be readily printed. Its publications are not distributed gratis, except to a limited list of the greater libraries of the world. Other copies are offered for sale at prices only sufficient to cover the cost of publication and transportation to purchasers. Lists are furnished on application.

Since its organization in 1902, about one thousand individuals have been engaged in investigations under the auspices of the Institution and there are at present nearly five hundred so engaged. Ten independent departments of research, each with its staff of investigators and assistants, have been established. In addition to these larger departments of work, organized by the Institution itself, numerous special researches, carried on by individuals, have been subsidized. Seven laboratories and observatories, for as many different fields of investigation and in widely separated localities, have been constructed and equipped. A building in Washington, D. C., for administrative offices and for storage of records and publications, is now approaching completion. A specially designed ship for ocean magnetic work has just been completed and started on her first voyage.

Mr. George Iles, in his "Inventors at Work," describes and characterizes the aims and guiding principles of the Institution as follows: "In its grants for widely varied purposes the policy of the Institution is clear: only those inquiries are aided which give promise of fruit, and in every case the grantee requires to be a man of proved ability, care being taken not to duplicate work already in hand elsewhere, or to essay tasks of an industrial character. Experience has already shown it better to confine research to a few large

projects rather than to aid many minor investigations with grants comparatively small.

"One branch of work reminds us of Mr. Carnegie's method in establishing public libraries—the supplementing of local public spirit by a generous gift. In many cases a university or an observatory launches an inquiry which soon broadens out beyond the range of its own small funds; then it is that aid from the Carnegie Institution brings to port a ship that otherwise might remain at sea indefinitely. Let a few typical examples of this kind be mentioned;—Dudley Observatory, Albany, New York, and Lick Observatory, California, have received aid toward their observations and computations; Yerkes Observatory, Wisconsin, has been helped in measuring the distance of fixed stars. Among other investigations promoted have been the study of the rare earths and the heat-treatment of some high-carbon steels. The adjacent field of engineering has not been neglected: funds have been granted for experiments on ship resistance and propulsion, for determining the value of high pressure steam in locomotive service.

{597}

In geology an investigation of fundamental principles has been furthered, as also the specific problem of the flow of rocks under severe pressure. In his remarkable inquiry into the economy of foods, Professor W. O. Atwater, of Wesleyan University, Middletown, Connecticut, has had liberal help. In the allied science of preventive medicine a grant is advancing the study of snake venoms and defeating inoculations.

"At a later day the Institution may possibly adopt plans recommended by eminent advisers of the rank of Professor Simon Newcomb, who points out that analysis and generalization are to-day much more needed than further observations of a routine kind. He has also had a weighty word to say regarding the desirability of bringing together for mutual attrition and discussion men in contiguous fields of work, who take the

bearings of a great problem from different, points of view."

George Iles,
Inventors at Work
Chapter XIX, page 276
Doubleday, Page & Co., New York
<https://www.gutenberg.org/ebooks/48454>

SCIENCE AND INVENTION, RECENT: Electrical:
A New Electric Phenomenon.

Writing recently in the London *Times*, Professor Silvanus P. Thompson has described a discovery of effects which "appear to point to a true electric momentum." "To two men, Professor Nipher, of St. Louis, and Dr. Mathias Cantor, of Würzburg, the question seems to have occurred whether, if a flow of electricity is caused abruptly to turn its path round a sharp corner, anything is observable in the neighbourhood of the sharp corner, that would suggest a momentum of the electric corpuscles. Nipher employed as conductor a sharply-bent splinter of bamboo, carrying a high-tension discharge from a large influence machine. Cantor used a thin metallic film of gold or platinum formed by deposition on the faces of a glass plate bevelled to a sharp edge; the current being provided by a battery. Nipher, investigating by photographic plates, discovered that the current passing the sharp corner emitted radiations akin to the X-rays, and capable of giving shadow pictures, even through ebonite $\frac{3}{16}$ of an inch thick. He has also used thin metal wires bent into a series of sharp corners, and finds that at every corner some of the electrons leave the wire, tending to persevere in their original direction of movement rather than undergo a sudden change of direction. Cantor, exploring electrically with a wire attached to a charged insulated electrometer, found the electrometer discharged by the emanations (or radiations) from the acute angle of his conducting film. Later, but without knowledge of what Nipher had accomplished, Cantor also exposed

a photographic plate to the angle of the film, and found it marked with streaks as if charged particles had left the angle in a particular direction. Both experimenters had already made numerous observations under different circumstances before publishing their results. Nipher's discovery was communicated to the American Philosophical Society in the early summer, and an account of his work appeared in *Science* of July 17 last [1909]. Cantor's observations were announced to the German 'Naturforscher' meeting at Cologne on September 23.

"If," remarks Professor Thompson, "we accept the modern doctrine that all inertia in what we call matter is due to the magnetic field surrounding a moving charge of electricity, this newly-discovered effect takes its natural place beside the other known effects."

SCIENCE AND INVENTION, RECENT: TELEGRAPHY: The Printer System.

The *Electrical Review* of January 2, 1909, gave the following account of the extent to which the "printer system" of telegraphy had then come into use in the United States: "Over fifty printer circuits are now in regular operation on the Western Union lines, between leading business centres of the United States, and additional wires are being equipped as fast as the printer apparatus can be installed. This is a system of rapid automatic telegraphy by which telegrams are transmitted at a high rate of speed and received at their destination printed on the regular message forms by a typewriter automatically operated by the electrical impulses transmitted over the wire. The appearance of the message as received is identical with a message turned out by the most expert typewriter operator on Morse circuits. The messages are ready for delivery as soon as they come off the wire, and the only attention required by the typewriter as it receives the messages from the wire is that of removing the blank when the message is completed and supplying a fresh, sheet to the

machine for the next message."

SCIENCE AND INVENTION, RECENT: Wireless Telegraphy.
Statement from Marconi.

"Up to the commencement of 1902 the only receivers that could be practically employed for the purposes of wireless telegraphy were based on what may be called the coherer principle—that is, the detector, the principle of which is based on the discoveries and observations made by S. A. Varley, Professor Hughes, Calsecchi Onesti, and Professor Branly. Early in that year the author was fortunate enough to succeed in constructing a practical receiver of electric waves, based on a principle different from that of the coherer. ... The action of this receiver is in the author's opinion based upon the decrease of magnetic hysteresis, which takes place in iron when under certain conditions this metal is exposed to high frequency oscillations of Hertzian waves. ...

"This detector is and has been successfully employed for both long and short distance work. It is used on the ships of the Royal Navy and on all trans-Atlantic liners which are carrying on a long-distance news service. It has also been used to a large extent in the tests across the Atlantic Ocean. ... The adoption of this magnetic receiver was the means of bringing about a great improvement in the practical working conditions of wireless telegraphy by making it possible to do away with the troublesome adjustments necessary when using coherers, and also by considerably increasing the speed at which it is possible to receive, the speed depending solely on the ability of the individual operators. Thus a speed of over 30 words a minute has been easily attained. ...

"In the spring of 1903 the transmission of news messages from America to the London *Times* was attempted, and the first messages were correctly received and published in that newspaper. A breakdown in the insulation of the apparatus at

Cape Breton made it necessary, however, to suspend the service, and, unfortunately, further accidents made the transmission of messages unreliable, especially during the spring and summer.

{598}

In consequence of this, the author's company decided not to attempt the transmission of any more public messages until such time as a reliable and continuous service could be maintained and guaranteed under all ordinary conditions. ... In October, 1903, it was found possible to supply the Cunard steamship *Lucania* during her entire crossing from New York to Liverpool with news transmitted direct to that ship from Poldhu and Cape Breton."

G. Marconi,
Recent Advances in Wireless Telegraphy
(Annual Report Smithsonian Institution, 1905-1906,
pages 137-142).

SCIENCE AND INVENTION, RECENT:

The Real Problem.

"It is well to remember that the year 1903 is the earliest date at which radio-telegraphy could be regarded as really workable, and of material practical utility. Previous to then, 'wireless' working was very uncertain, but in that year tuning devices were introduced, the principle of which was originally due to Sir Oliver Lodge; and it is these that have made so much difference in the application of Hertzian waves for the purposes of telegraphy. Practical success in radio-telegraphy should not, in fact, be judged from the point of view of the distance at which signals can be sent—or received—but rather from the standpoint of non-interference and secrecy. The essential element in wireless telegraphy—above all others—is, indeed, a discriminating or selective method. For the main purposes of radio-telegraphy, immunity from interference by syntony is essential. Thus a selective system in time of war

would be invaluable; a non-selective system almost worse than useless. Syntonic wireless telegraphy entails in the first place, a similar rate of oscillation, or time—i. e., a similar wave length—at the sending and receiving ends. Indeed, the real problem in wireless telegraphy is to arrange the receiving apparatus so that it is alive to notes of one definite frequency, or pitch, but deaf to any other notes, even though of but slightly different pitch. This is effected by the proper adjustment of inductance and capacity, as first shown by Sir Oliver Lodge. ... It is, however, at present, impossible to secure really complete secrecy from any method of open wave radiation. A radio-telegraphist, with the right apparatus and a knowledge of the tune, could upset any system of Hertzian wave telegraphy. It should, therefore, be clearly understood that there are, as yet, definite limits to the practical results of tuning for securing absolute selectivity and secrecy."

*Charles Bright,
The Useful Sphere for Radio-Telegraphy
(Westminster Review, April, 1908).*

SCIENCE AND INVENTION, RECENT: Singular Unexplained Phenomena.

Speaking at Stockholm, Sweden, on the occasion of his receiving the Nobel Prize, in December, 1909, Mr. Marconi gave the following account of some unexplained phenomena that are experienced in the working of radio-telegraphy. He said that "a result of scientific interest which he first noticed during the tests on the steamship *Philadelphia* and which was a most important factor in long distance radio-telegraphy was the very marked and detrimental effect of daylight on the propagation of electric waves at great distances, the range by night being usually more than double that attainable during daytime. He did not think that this effect had yet been satisfactorily investigated or explained. ... He was now

inclined to believe that the absorption of electric waves during the daytime was due to the ionization of the gaseous molecules of the air effected by ultra-violet light, and as the ultra-violet rays which emanated from the sun were largely absorbed in the upper atmosphere of the earth, it was probable that the portion of the earth's atmosphere which was facing the sun would contain more ions or electrons than that portion which was in darkness, and therefore, as Sir J. J. Thomson had shown, this illuminated and ionized air would absorb some of the energy of the electric waves. Apparently the length of wave and amplitude of the electrical oscillations had much to do with this interesting phenomenon, long waves and small amplitudes being subject to the effect of daylight to a much smaller degree than short waves and large amplitudes. ...

"For comparatively short waves, such as were used for ship communication, clear sunlight and blue skies, though transparent to light, acted as a kind of fog to these waves. ... It often occurred that a ship failed to communicate with a near-by station, but could correspond with perfect ease with a distant one. ... Although high power stations were now used for communicating across the Atlantic, and messages could be sent by day as well as by night, there still existed short periods of daily occurrence during which transmission from England to America, or *vice versa*, was difficult."

SCIENCE AND INVENTION, RECENT:

Transatlantic Service.

"The Transatlantic wireless service was inaugurated in October, 1907, between Ireland and Canada, the charges being reduced from 1s. per word for business and private messages and 5d. per word for Press messages to 5d. and 2½d. respectively, these charges not including the land line charges on both sides of the Atlantic. ...

"The first wireless messages across the Atlantic were sent

from the Canadian station at Table Head, in Cape Breton, in 1902. This station was afterwards removed to its present site, five miles inland, and there greatly enlarged. Ever since 1902 Mr. Marconi has been conducting experiments and making new discoveries and improvements until, at the present day, wireless telegraphy across the Atlantic, over a distance of 2000 miles, is an assured success. ... Press traffic ... was started on October 17, 1907. On February 3, 1908, the service was extended to private and business telegrams between Montreal and London. The number of words transmitted during the past year is in the neighbourhood of 300,000."

***Correspondence of the London Times,
June 25, 1909.***

SCIENCE AND INVENTION, RECENT:

Equipments at Sea.

Extent of the Service.

Compulsory Legislation Pending.

"Although an installation was carried on the St. Paul for one trip in 1899, the credit of being the pioneers in the use of wireless telegraphy on the ocean belongs to the North-German Lloyd and Cunard Companies. The first vessel fitted was the Kaiser Wilhelm der Grosse, and the lead of the Germans was immediately followed by the English company. Both vessels were fitted by the Marconi Company, which has the distinction of being the first company to equip vessels on a commercial basis. ... The Marconi Company alone has up to the present fitted nearly 200 merchant ships, while the United Wireless Telegraph Company has fitted nearly 170 ships. ...

{599}

"A very large number of vessels engaged in the coasting trade of America and on the Great Lakes are fitted with wireless telegraphy; the American list shows that 133 vessels are

equipped, while a statement issued by the United Wireless Telegraph Company shows 31 other vessels to have been fitted up to April 2, besides 15 Great Lake steamers either fitted or in course of equipment. ...

"Nearly 500 warships belonging to nine different countries have been fitted, or are in course of equipment, with radio-telegraphy. According to the American list the United States Navy has been foremost among the navies of the world in the use of 'wireless.' On October 1 last 173 United States warships were fitted with various systems. The Berne lists, issued up to May 1 last, show Great Britain to have 157 vessels equipped, Germany 80, Netherlands 11, Denmark 9, and Spain 5.

"In February last the United States House of Representatives passed a Bill providing that 'every ocean passenger steamer certified to carry 50 passengers or more, before being granted a clearance for a foreign or domestic port 100 miles or more distant from the port of her departure from the United States, shall be equipped with an efficient radio-telegraph installation, and shall have in her employ and on board an efficient radio-telegrapher.' ... The Bill, it is understood, will be considered by the Senate in the autumn, and will it is thought be passed after it has undergone some slight modification. Following the example of the United States Congress a Bill has been introduced in the Canadian House of Commons. ... An Italian Royal Decree dated March 14 last provides that all vessels of whatever nationality clearing from Italian ports with emigrants shall carry a wireless installation. So far as this country [Great Britain] is concerned no legislative action is likely to take place, at least for the present."

***Correspondence of the London Times,
July 2, 1909.***

SCIENCE AND INVENTION, RECENT:

The Cry that brought Help to the Steamship "Republic."

On the 23d of January, 1909, the service of the wireless telegraph to imperilled ships was illustrated by an incident which thrilled the world. In a dense fog, off the island of Nantucket, 26 miles distant, the steamship "Republic," of the White Star Line, was struck amidships by an Italian liner, the "Florida." Two passengers on the former were killed and two were seriously injured, while four sailors of the other were killed. Both steamers were shattered to the sinking point, but the state of the "Republic" was the worse. Fortunately she was equipped with the wireless apparatus for telegraphy, and its operator, "Jack" Binns, was a man equal to the emergency. His appealing signals, "C. Q. D." ("Come Quick! Danger"), were flashed out into all surrounding space, and brought many responses from sea and shore; but then came the difficulty of finding the sinking ships in the black fog. The first rescuing vessel to reach their vicinity was the "Baltic" of the "White Star Line," and she was helped in her groping to them, not only by the ceaseless exchange of wireless messages, but by the sounding of the submarine bell of the Nantucket lightship. The "Baltic" was fitted with receivers for taking guidance from these bells, as her Captain described afterwards in a published account of his search. "On my ship," he said, "there are two apertures on either side of the bow, which you might call submarine ears. They are connected by wires with a telephone receiver on the bridge. By listening at this telephone and switching the instrument from the starboard 'ear' to the port 'ear' and back again, you can hear the faint tones of the lightship's submarine bell when you get in range of it. If the tone is louder through the starboard 'ear' than through the port 'ear,' you know the lightship is on your starboard side. If the tone is exactly the same through both 'ears,' you know the lightship is dead ahead. This apparatus helped me greatly."

Nevertheless, the "Baltic's" search for the "Republic" went on through twelve hours, like that of "a hound on the scent," as the Captain described it. Meantime, the passengers of the "Republic" had been transferred to the "Florida," which seemed well afloat, and the "Baltic" now took everybody from both, the total exceeding 1500. The "Republic" was then towed toward Martha's Vineyard, but sank a few miles from land, her Captain remaining until the last minute on board. The conduct of all connected with the peril and the rescue was fine, and none more so than that of the sleepless and tireless operator of the wireless telegraph.

SCIENCE AND INVENTION, RECENT:

Marconi Coast Stations in Great Britain taken over by the British Government.

The following announcement was made by the British Postmaster General in the House of Commons on the 30th of September, 1909:

"I am glad to say that arrangements have been completed with the Marconi Company for the transfer to the Post Office of all their coast stations for communication with ships, including all plant, machinery, buildings, land, and leases, &c., and for the surrender of the rights which they enjoy under their agreement with the Post Office of August, 1904, for licences or facilities in respect of coast stations intended for such communication.

"In addition, the Post Office secures the right of using, free of royalty, the existing Marconi patents and any future patents or improvements, for a term of 14 years, for the following purposes:—Communication for all purposes between stations in the United Kingdom and ships, and between stations on the mainland of Great Britain and Ireland on the one hand and outlying islands on the other hand, or between any two outlying islands; and (except for the transmission of public

telegrams) between any two stations on the mainland; and on board Post Office cable ships. The inclusive consideration to be paid to the company is £15,000.

"The arrangement is in no sense an exclusive one. All the stations will, under the International Radio-Telegraphic Convention, be open for communication equally to all ships, whatever system of wireless telegraphy they may carry; and the Post Office will be free to use or to experiment with any system of wireless telegraphy at its discretion. All inland communication of messages by wireless telegraphy will be entirely under the control of the Post Office. The company will retain the licence for their long-distance stations at Poldhu and Clifden, which are primarily intended for shore-to-shore communication with America. Arrangements have also been made with Lloyd's for the transfer to the Post Office of their wireless stations for communication with ships, and for the surrender of all claims to licences for such communication."

{600}

SCIENCE AND INVENTION, RECENT:

Notes of Recent Progress.

A despatch from Seattle, March 5, 1909, reported that "the steamship Aki Maru of the Nippon Yusen Kaisha fleet accomplished her recent passage from Yokohama, Japan, to Puget Sound, a distance of 4,240 miles, without losing communication with wireless stations on either the Japanese or American coasts. The accomplishment was made possible by relaying messages through other vessels of the company, which were picked up between the Aki Maru and the coast. The Aki Maru was able to communicate directly with the Japanese coast stations, when she was 1,400 miles away."

According to Paris correspondence of the London *Daily*

Telegraph, quoted in the New York **Evening Post** of August 21, "wireless messages from New York are now received or intercepted almost daily by the military station on the Eiffel Tower. Occasionally radio telegrams have also been received from Canada, which, it is believed, forms a record in wireless telegraphy. The communications are at present only of a desultory nature, but the officer, Commandant Ferie, who is in charge of the station, hopes to be able soon to organize a regular service for government, and, perhaps, also for commercial, purposes. The new apparatus which is now being set up in the underground office on the Champ de Mars will be more powerful than any preceding ones, and will be ready probably by the end of next month. Wireless messages will then be exchanged regularly between Paris and the eastern coast of the United States, and perhaps also with Canada."

SCIENCE AND INVENTION, RECENT:

Electro-Chemistry: The Study of the Infinitely Little.

"A new branch of physical chemistry has lately been developed from the study of the infinitely little which promises to be the most important science of the future; for it deals most intimately with the problems of life. This subject is called electro-chemistry. It is based upon the effect of electricity in revealing the important reactions and motions of the smallest particles of matter. The literature of this subject in current periodicals already exceeds that of any other department of physical science. Until a comparatively late day, heat and light were considered the principal agents which chemists employed to study the reactions of matter. In the new subject of electro-chemistry, electricity occupies the first place, as a destroyer and a readjuster; and heat and light are merely subordinate parts of its manifestations, differing from it only in length of waves in the ether. The to-and-fro motion, which is our incontestable fact, is an electrical vibration. When we consider the investigations in electro-chemistry, we perceive that the most important actions

of electricity are not those we are conscious of in their great practical applications; it is rather in subtle and silent effects that it works its greatest changes on life and matter."

***John Trowbridge,
The Study of the Infinitely Small
(Atlantic Monthly, May, 1902).***

SCIENCE AND INVENTION, RECENT:

Entomological Study: What we Owe to it?
Practical Affairs.

"The insect friends and enemies of the farmer are getting attention. The enemy of the San José scale was found near the Great Wall of China, and is now cleaning up all our orchards. The fig-fertilizing insect imported from Turkey has helped to establish an industry in California that amounts to from fifty to one hundred tons of dried figs annually, and is extending over the Pacific coast. A parasitic fly from South Africa is keeping in subjection the black scale, the worst pest of the orange and lemon industry in California."

Message of President Roosevelt to Congress, 1904.

"The business man, always on the outlook for a dividend, has sometimes complained that some of our inquiries do not seem to him practical, but he must have patience and faith. A few years ago no knowledge could seem so useless to the practical man, no research more futile than that which sought to distinguish between one species of a gnat or tick and another; yet to-day we know that this knowledge has rendered it possible to open up Africa and to cut the Panama canal."

***A. E. Shipley,
on Research in Zoology, at Meeting of
British Association for the Advancement of Science, 1909.***

SCIENCE AND INVENTION, RECENT:

Esperanto.

Dr. Zamenhof, a Russian physician, inventor of the proposed international language called Esperanto, published his first pamphlet on the subject in 1887; but it was not until ten years later that the prospect of its extensive use as such began to be realized. "It was well received, first in Russia, then in Norway and Sweden. Then it was taken up in France, by M. de Beaufront. The latter had himself invented an artificial language, but gave it up as soon as he became acquainted with the admirable work of his Russian competitor. He is the man who forced the world at large to stop and seriously consider Esperanto as the solution of the great problem proposed by men like Roger Bacon, Descartes, Pascal, Leibnitz, Locke, Condillac, Voltaire, Diderot, and so many others. From France it went to Germany, Austria, Switzerland, Italy, and finally to England, where thirty societies of Esperantists were created within a little over a year. ...

"The general principle upon which Dr. Zamenhof has worked is this: to eliminate all that is accidental in our national languages, and to keep what is common to all. In consequence, and strictly speaking, he invents nothing; he builds entirely with material that has been in existence for a long time. Here, then, is the way in which he proceeds regarding the various elements that are necessary to the formation of a language.

"The Sounds.

Sounds that are peculiar to one language are eliminated. The English **th** and **w** are not found in French or German, therefore they are dropped. On the other hand, the French **u**, the German **ü**, and the French nasals do not exist in English; they too are dropped. The Spanish **ñ** and **j**, and the German **ch**, have the same

fate. Thus, only sounds which are found everywhere are kept, and no one will have any difficulty about pronunciation, no matter to what country he belongs. Spelling is of course phonetic: one and the same sound for one letter. There are no mute letters, as in French; neither are there double letters.

...

{601}

"***The Accent*** is always on the penultimate syllable. Esperanto reminds one of Italian, when spoken, and has proved extremely melodious for singing.

"***The Vocabulary.*** The principle of internationalism is applied here in a most ingenious fashion. Dr. Zamenhof proceeded thus: he compared the dictionaries of the different languages, and picked out first those words which are common to them all. He spelled them according to the phonetic system, dropped the special endings in each idiom, and adopted them as root-words in his proposed language. ... Then he picked out those which appear in most languages, although not in all. ... For the remaining words,—and there are comparatively few left,—which are never the same in the different languages, Dr. Zamenhof selected them in such a manner as to make the task of acquiring Esperanto equally difficult or equally easy for all concerned."

A. Schinz,
Esperanto: the Proposed Universal Language
(Atlantic Monthly, January, 1906).

The sixth international Congress of teachers and promoters of Esperanto is appointed to be held at Washington in 1910. An influential Esperanto Association has been organized in the United States, under the presidency of Dr. D. O. S. Lowell, of the Boston Latin School.

SCIENCE AND INVENTION, RECENT:

Eugenics: The Science and Art of being Well-born.

"We know that the old rule, 'Increase and multiply,' meant a vast amount of infant mortality, of starvation, of chronic disease, of widespread misery. In abandoning that rule, as we have been forced to do, are we not now left free to seek that our children, though few, should be at all events fit, the finest, alike in physical and psychical constitution, that the world has seen?

"Thus has come about the recent expansion of that conception of *eugenics*—or the science and art of being well-born, and of breeding the human race a step nearer towards perfection—which a few among us, and more especially Mr. Francis Galton, have been developing for some years past. Eugenics is beginning to be felt to possess a living actuality which it was not felt to possess before. Instead of being a benevolent scientific fad, it begins to present itself as the goal to which we are inevitably moving. ... Human eugenics need not be, and is not likely to be, a cold-blooded selection of partners by some outside scientific authority. But it may be, and is very likely to be, a slowly growing conviction—first among the more intelligent members of the community, and then by imitation and fashion among the less intelligent members—that our children, the future race, the torch-bearers of civilisation for succeeding ages, are not the mere result of chance or Providence, but that, in a very real sense, it is within our grasp to mould them, that the salvation or damnation of many future generations lies in our hands, since it depends on our wise and sane choice of a mate. ...

"Eventually, it seems evident, a general system, whether private or public, whereby all personal facts, biological and mental, normal and morbid, are duly and systematically registered, must become inevitable if we are to have a real guide as to those persons who are most fit or least fit to

carry on the race. Unless they are full and frank, such records are useless. But it is obvious that for a long time to come such a system of registration must be private. ... Through the munificence of Mr. Galton and the co-operation of the University of London the beginning of the attainment of these eugenic ideals has at length been rendered possible. The senate of the University has this year appointed Mr. Edgar Schuster, of New College, Oxford, to the Francis Galton Research Scholarship in Natural Eugenics. It will be Mr. Schuster's duty to carry out investigations into the history of classes and of families, and to deliver lectures and publish memoirs on the subject of his investigations. It is a beginning only, but the end no man can foresee."

***Havelock Ellis,
Eugenics and St. Valentine
(Nineteenth Century, May, 1906).***

SCIENCE AND INVENTION, RECENT: The Gasoline Engine.

Writing in 1905, in an article entitled "The Age of Gasoline," contributed to the ***American Review of Reviews***, Mr. F. K. Grain, M. E., gave this brief account of the rapid development of its use as a producer of power, threatening to supersede coal: "About fifteen years ago we first began to hear much of the gasoline engine, which was then in a very crude state. Its possibilities, however, were so attractive, and the field for its use so large,—practically unlimited,—that inventors and manufacturers at once bent their energies to its development, with the result that the gasoline engine has reached a degree of perfection in the past few years that is surprising in view of the fact that the designers were working out a new problem in a practically unknown field, and consequently had no data, theoretical or practical, of any value to assist. ... As a motive power, utilized by means of the internal-combustion engine, gasoline is at this time

revolutionizing travel, through the automobile. The automobile, in turn, has been the means of adapting gasoline to propulsion of railway trains, as this form of power is found especially useful on short lines where the traffic is light. Several railroads are now building gasoline motor cars of considerable size. ...

"The gasoline engine as now made is an adaptation of the steam engine, employing the gas produced by gasoline as a means of energy. Contrary to the general understanding, the gas or gasoline engine is but a high-pressure caloric motor. The power in the gasoline motor is derived by igniting the gas produced in the cylinder, which in turn by its heat expands, the atmosphere imparting energy to the piston by its expansion. A common error is the supposition that the explosion of the gas produces the power, the same as a blow from a hammer, whereas it is the heat generated by the ignition of the compressed gases acting expansively."

One of the speakers at a Congress of Applied Chemistry held in London in May, 1909, said that it seemed almost certain that for most purposes on land the internal combustion engine would before long replace the steam engine, at any rate for moderate powers; for whereas the best types of the latter furnish only about 12 per cent, of the energy of the fuel in the form of work, the former can ordinarily be made to yield 25 per cent., and in the case of the Diesel engine the return is as much as 37 per cent.

{602}

SCIENCE AND INVENTION, RECENT: Interferometer, The:
Principle of the Invention of Professor Michelson for
Infinitesimal Measurements.
Suggestion of an Unvarying Unit of Measurement.

"In the measurement of length or motion a most refined

instrument is the interferometer, devised by Professor A. A. Michelson, of the University of Chicago. It enables an observer to detect a movement through one five-millionth of an inch. The principle involved is illustrated in a simple experiment. If by dropping a pebble at each of two centres, say a yard apart, in a still pond, we send out two systems of waves, each system will ripple out in a series of concentric circles. If, when the waves meet, the crests from one set of waves coincide with the depressions from the other set, the water in that particular spot becomes smooth because one set of waves destroys the other. In this case we may say that the waves interfere. If, on the other hand, the crests of waves from two sources should coincide, they would rise to twice their original height. Light-waves sent out in a similar mode from two points may in like manner either interfere, and produce darkness, or unite to produce light of double brilliancy. These alternate dark and bright bands are called interference fringes. When one of the two sources of light is moved through a very small space, the interference fringes at a distance move through a space so much larger as to be easily observed and measured, enabling an observer to compute the short path through which a light-source has moved. ... Many diverse applications of the interferometer have been developed, as, for example, in thermometry. The warmth of a hand held near a pencil of light is enough to cause a wavering of the fringes. A lighted match shows contortions. ... When the air is heated its density and refractive power diminish: it follows that if this experiment is tried under conditions which show a regular and measurable displacement of the fringes, their movement will indicate the temperature of the air. This method has been applied to ascertain very high temperatures, such as those of the blast furnace. Most metals expand one or two parts in 100,000 for a rise in temperature of one degree centigrade. When a small specimen is examined the whole change to be measured may be only about $\frac{1}{10000}$ inch, a space requiring a good microscope to perceive, but readily measured by an interferometer. It means a displacement

amounting to several fringes, and this may be measured to within of a fringe or less; so that the whole displacement may be measured to within a fraction of one per cent. Of course, with long bars the accuracy attainable is much greater.

"The interferometer has much refined the indications of the balance. In a noteworthy experiment Professor Michelson found the amount of attraction which a sphere of lead exerted on a small sphere hung on an arm of a delicate balance. The amount of this attraction when two such spheres touch is proportional to the diameter of the large sphere, which in this case was about eight inches. The attraction on the small ball on the end of the balance was thus the same fraction of its weight as the diameter of the large ball was of the diameter of the earth,—something like one twenty-millionth. So the force to be measured was one twenty-millionth of the weight of this small ball. In the interferometer the approach of the small ball to the large one produced a displacement of seven whole fringes."

***George Iles,
Inventors at Work,
pages 214-218 (Doubleday, Page & Co., New York).***

SCIENCE AND INVENTION, RECENT: International Congresses of Science.

The most notable of the gatherings at St. Louis in 1904, connected with the Louisiana Purchase Exposition, was the Congress of Arts and Science.

See (in this Volume)
ST. LOUIS: A. D. 1904.

Hardly less important from some points of view was the meeting of the First Pan-American Scientific Congress, at Santiago, Chile, beginning on the 25th of December, 1908. It had been preceded by three scientific congresses of the Latin-American

states, at Buenos Aires in 1898, at Montevideo in 1901, and at Rio de Janeiro in 1905. The Pan-American comprehensiveness was given to a fourth one by an official invitation from the Chilean Government to the Government of the United States to send delegates to the meeting, and a further invitation from the Chilean Committee of Organization to fifteen of the prominent universities of the United States to do the same. The response to the invitation was cordial, and both of the American continents were well represented at the Congress. The programme of topics for discussion included a number of historically and politically scientific questions of specially American interest, such, for example, as the following:

"An explanation of the reasons why the colonies of English America were able to unite into a single state after they had attained their independence, while those of Spanish America never succeeded in establishing a permanent union.

"The extent to which America has come to possess a civilization, as well as interests and problems, different from those of Europe.

"Given the special circumstances of the states of the New World, would it be feasible to create an American international law? and if so, upon what bases should it rest, and how should it be composed?"

SCIENCE AND INVENTION, RECENT: The Moving Picture Show. The Millions entertained by it in the United States.

In 1908, in the United States, "the moving-picture show drew an attendance of 4,000,000 daily, a total attendance of more than a billion; or an average of one visit a month to this form of amusement for every man, woman, and child in the whole country. Already this infant industry has developed to a point where \$50,000,000 is invested in it, and 7,000 moving-picture houses are scattered over the country. Of the larger cities,

Chicago has at present 313 moving-picture shows, and probably will have 500 before the end of the present year. New York has 300, St. Louis 205, Philadelphia 186, San Francisco 131, Pittsburgh 90, and Boston 31. Hundreds of smaller cities and towns have from one to a dozen, and the craze has extended to Mexico, Central and South America, and the Panama Canal Zone. Nearly 1,000,000 feet, or 190 miles, of films are shown every day in the United States. ... Making of these films is in itself an enormous business. The organization which controls them not only has agents photographing scenes in every part of the world, but maintains theatres and out-of-door establishments, where complete plays and all sorts of other activities are presented before the camera."

New York Evening Post.

{603}

SCIENCE AND INVENTION, RECENT: Opsonins: A remarkable new Discovery in Biology.

Discovery of the functions of the white corpuscles found in the blood of animals was begun, it is said, by Dr. Augustus Waller, in 1843, and continued in much later years by Professor Metchnikoff, who was associated with the work of Pasteur. The latter determined the surprising and extremely important fact that the white corpuscles or cells are essentially minute living creatures, which serve the larger creature they inhabit as a sanitary guard, defending it against the invasion of microbes that are hostile to its health. They pursue and devour these malignant invaders; whence the name that has been given to them, of "phagocytes," or "eating cells."

"When we study the process familiarly known as 'inflammation,' we find the most perfect illustration at once of the duties of the white blood-cells and of the new phase and meaning of a

common occurrence which are revealed by research.

'Inflammation' is a process which follows upon a large variety of injuries, and which marks the onset and course of many diseases, from a scratch on the finger to an inflammation of the lungs. ... Given a simple scratch and the phagocytes stimulated by the injury to the tissues will come hurrying to the scene of the accident like ambulance men, eager to assist in the removal of any deleterious matter, and to give their aid in the healing process and in the formation of the new tissue, the production of which will complete the cure. But given a scratch that inoculates the finger with 'dirt,' which is only another name for microbes, and the nature of inflammation becomes clearer to us. In a few hours the finger will begin to feel painful; its temperature will rise; it will appear red and 'inflamed,' and it will exhibit swelling. Later on, if we puncture the swelling, we shall find a yellow fluid, which we name 'pus,' or 'matter,' escaping from the puncture. Now to what are the symptoms of inflammation due? The plain answer is, that they represent the results of a great migration of phagocytes from the blood-vessels, destined to attack, and if possible remove, the infective particles which threaten to do us injury. The inflammation, in this view, is the evidence of a battle being fought in our favour, and often with very long odds against us. If our phagocytes gain a complete victory, we escape the suppuration which we saw to result in the shape of the 'festering' finger. If, on the other hand, they sustain defeat, they will fight on, leaving their dead behind. It is the dead white blood-cells, which have fallen in the fray, which constitute the 'pus' or 'matter' we find in wounds. ... These dead cells, like the corpses of soldiers who fall in battle, later become hurtful to the organism they in their lifetime were anxious to protect from harm, for they are fertile sources of septicaemia and pyaemia (blood-poisoning)—the pestilence and scourge so much dreaded by operative surgeons.

"Such is the story which forms the natural prologue to the

history of 'Opsonins.' For many a day after the publication of Metchnikoff's discoveries regarding the germ-killing power of the phagocytes, it was held that these living cells alone accomplished the duty of disposing of troublesome invaders. Later on, other opinions were advanced to the effect that while the phagocytes did undoubtedly accomplish their work in the direction indicated, they demanded aid to that end from an outside source. This source was indicated and represented by the plasma or blood-fluid itself. The fluid part of the blood had long been known to possess germ-killing properties, but the extent of its powers in this direction had not been duly determined, nor had the important point been settled whether the plasma as a whole or only part thereof aided the white blood-cells in their forays on microbes. ... Researches made prior to the year 1903 gave cause for the belief in the importance of the blood-plasma in whole or in part, but it was in the year just named that very important investigations were undertaken with the view to determining the exact status of the blood-fluid in work of bactericidal kind. Drs. Wright and Douglas of St. Mary's Hospital, London, undertook a piece of research conducted on lines somewhat different from those on which previous work of this nature had been carried on. They proceeded first of all by the aid of delicate processes to separate the blood-corpuscles from the blood-fluid. The white blood-cells were thus kept in a medium or fluid of neutral kind, while the blood-fluid itself on the other hand was obtained free from its corpuscles. Next in order an emulsion of certain microbes capable of producing disease was made in a solution of salt. When the phagocytes, alive, of course, in their neutral fluid, were allowed access to the germs they did not attack them. It was as if two contending armies had been brought face to face, waiting to attack, but restrained by some negotiations proceeding between the commanders. The case was at once altered, and the battle began, when the experimenters brought the separated blood-fluid into the field. Added to the germs and to the phagocytes these elements, which had been 'spoiling for a fight,' joined issue,

and the white blood-cells performed their normal work of microbe-baiting. There was but one inference to be drawn from these facts. Clearly, the addition of the blood-fluid supplied some condition or other, necessary for the development of the fighting powers of the cells. ... Our investigators are of the opinion that the real source of the power possessed by the blood-fluid or 'plasma' is to be sought and found in substances contained therein and called 'Opsonins.' We can now appreciate the meaning of this term. It is derived from the classic verb for catering, for preparing food or for providing food. The view taken of opsonic action justifies the use of the word, for it is believed that these substances perform their share of the germ-destroying work, not by urging on or stimulating the phagocytes to the attack, but, on the contrary, by acting on the microbes, by weakening their powers of resistance and by rendering them the easy prey of the white blood-cells. The 'Opsonins' are carried by the blood-stream everywhere, and it is when they come in contact with any microbe-colonies in the body that they exert their specific action on the germs. ... The idea that the more active our white blood-cells are, and the more extensive and complete their work, the greater the amount of 'Opsonins' present, is one which seems to be founded on a rational basis. This view regards these substances as the real cause of phagocytic activity. That 'Opsonins' furthermore appear to possess definite degrees of power seems proved by the observation that a person's blood may contain sufficient to deal with one disease in the way of stimulating the phagocytes to work, while the same quantity would not equal half that required to effect a satisfactory attack on another and different disease. What has been called the 'opsonic index' of a person is the standard, if so we may call it, or measure of his germ-killing power, in so far as the amount of 'Opsonins' contained in his blood is concerned. By a technical procedure and calculation the experimenter can compute the opsonic power of a given specimen of blood."

*Andrew Wilson,
About Opsonins
(Cornhill, January, 1907).*

{604}

SCIENCE AND INVENTION, RECENT: Medical.

See (in this Volume)
PUBLIC HEALTH.

SCIENCE AND INVENTION, RECENT: Physical:

The New Conceptions of Electricity, Matter and Ether.

Statement by Madame Curie.

Sir Joseph Thomson's Address to the British Association
at Winnipeg.

Sir Oliver Lodge on the Ether of Space.

"One point which appears to-day to be definitely settled is a view of atomic structure of electricity, which goes to confirm and complete the idea that we have long held regarding the atomic structure of matter, which constitutes the basis of chemical theories. At the same time that the existence of electric atoms, indivisible by our present means of research, appears to be established with certainty, the important properties of these atoms are also shown. The atoms of negative electricity which we call electrons, are found to exist in a free state, independent of all material atoms, and not having any properties in common with them. In this state they possess certain dimensions in space, and are endowed with a certain inertia, which has suggested the idea of attributing to them a corresponding mass.

"Experiments have shown that their dimensions are very small compared with those of material molecules, and that their mass is only a small fraction, not exceeding one one-thousandth of the mass of an atom of hydrogen. They show also that if these

atoms can exist isolated, they may also exist in all ordinary matter, and may be in certain cases emitted by a substance such as a metal without its properties being changed in a manner appreciable by us.

"If, then, we consider the electrons as a form of matter, we are led to put the division of them beyond atoms and to admit the existence of a kind of extremely small particles able to enter into the composition of atoms, but not necessarily by their departure involving atomic destruction. Looking at it in this light, we are led to consider every atom as a complicated structure, and this supposition is rendered probable by the complexity of the emission spectra which characterize the different atoms. We have thus a conception sufficiently exact of the atoms of negative electricity.

"It is not the same for positive electricity, for a great dissimilarity appears to exist between the two electricities. Positive electricity appears always to be found in connection with material atoms, and we have no reason, thus far, to believe that they can be separated. Our knowledge relative to matter is also increased by an important fact. A new property of matter has been discovered which has received the name of radioactivity. Radioactivity is the property which the atoms of certain substances possess of shooting off particles, some of which have a mass comparable to that of the atoms themselves, while the others are the electrons. This property, which uranium and thorium possess in a slight degree, has led to the discovery of a new chemical element, radium, whose radioactivity is very great. Among the particles expelled by radium are some which are ejected with great velocity, and their expulsion is accompanied with a considerable evolution of heat. A radioactive body constitutes, then, a source of energy.

"According to the theory which best accounts for the phenomena of radioactivity, a certain proportion of the atoms of a

radioactive body is transformed in a given time, with the production of atoms of less atomic weight, and in some cases with the expulsion of electrons. This is a theory of the transmutation of elements, but differs from the dreams of the alchemists in that we declare ourselves, for the present at least, unable to induce or influence the transmutation. Certain facts go to show that radioactivity appertains in a slight degree to all kinds of matter. It may be, therefore, that matter is far from being as unchangeable or inert as it was formerly thought; and is, on the contrary, in continual transformation, although this transformation escapes our notice by its relative slowness."

***Madame Curie,
Modern Theories of Electricity and Matter
(Annual Report, Smithsonian Institution, 1905-1906,
pages 103-104).***

A remarkable summary of recent advances in physical science, by Sir Joseph Thomson, in his presidential address at the opening (August 25, 1909) of the seventy-ninth annual meeting of the British Association for the Advancement of Science, held at Winnipeg, Canada, contains what is, without doubt, the most successful of endeavors to give some understanding of the new conceptions of matter, ether and electricity, with which scientists are now working, to minds that have not been scientifically trained. Sir Joseph treats the subject at more length than can be given to it here, but abridgment seems possible without robbing it of the more important parts of its rich content of information:

"The period which has elapsed since the Association last met in Canada [1897] has been," said the President, "one of almost unparalleled activity in many branches of physics, and many new and unsuspected properties of matter and electricity have been discovered. The history of this period affords a remarkable illustration of the effect which may be produced by

a single discovery; for it is, I think, to the discovery of the Röntgen rays that we owe the rapidity of the progress which has recently been made in physics. A striking discovery like that of the Röntgen rays acts much like the discovery of gold in a sparsely populated country; it attracts workers who come in the first place for the gold, but who may find that the country has other products, other charms, perhaps even more valuable than the gold itself. The country in which the gold was discovered in the case of the Röntgen rays was the department of physics dealing with the discharge of electricity through gases, a subject which, almost from the beginning of electrical science, had attracted a few enthusiastic workers, who felt convinced that the key to unlock the secret of electricity was to be found in a vacuum tube.

{605}

Röntgen, in 1895, showed that when electricity passed through such a tube the tube emitted rays which could pass through bodies opaque to ordinary light; which could, for example, pass through the flesh of the body and throw a shadow of the bones on a suitable screen. ... It is not, however, to the power of probing dark places, important though this is, that the influence of Röntgen rays on the progress of science has mainly been due; it is rather because these rays make gases, and, indeed, solids and liquids, through which they pass, conductors of electricity. ... The study of gases exposed to Röntgen rays has revealed in such gases the presence of particles charged with electricity; some of these particles are charged with positive, others with negative, electricity. The properties of these particles have been investigated; we know the charge they carry, the speed with which they move under an electric force, the rate at which the oppositely charged ones recombine, and these investigations have thrown a new light, not only on electricity, but also on the structure of matter. We know from these investigations that electricity, like matter, is molecular in structure, that just as a quantity of hydrogen is a collection of an immense number of

small particles called molecules, so a charge of electricity is made up of a great number of small charges, each of a perfectly definite and known amount. ... Nay, further, the molecular theory of matter is indebted to the molecular theory of electricity for the most accurate determination of its fundamental quantity, the number of molecules in any given quantity of an elementary substance.

"The great advantage of the electrical methods for the study of the properties of matter is due to the fact that whenever a particle is electrified it is very easily identified, whereas an uncharged molecule is most elusive; and it is only when these are present in immense numbers that we are able to detect them. ...

"We have already made considerable progress in the task of discovering what the structure of electricity is. We have known for some time that of one kind of electricity—the negative—and a very interesting one it is. We know that negative electricity is made up of units all of which are of the same kind; that these units are exceedingly small compared with even the smallest atom. ... The size of these corpuscles is on an altogether different scale from that of atoms; the Volume of a corpuscle bears to that of the atom about the same relation as that of a speck of dust to the Volume of this room. Under suitable conditions they move at enormous speeds, which approach in some instances the velocity of light. The discovery of these corpuscles is an interesting example of the way Nature responds to the demands made upon her by mathematicians. Some years before the discovery of corpuscles it had been shown by a mathematical investigation that the mass of a body must be increased by a charge of electricity. This increase, however, is greater for small bodies than for large ones, and even bodies as small as atoms are hopelessly too large to show any appreciable effect; thus the result seemed entirely academic. After a time corpuscles were discovered, and these are so much smaller than the atom that

the increase in mass due to the charge becomes not merely appreciable, but so great that, as the experiments of Kaufmann and Bucherer have shown, the whole of the mass of the corpuscle arises from its charge.

"We know a great deal about negative electricity; what do we know about positive electricity? Is positive electricity molecular in structure? Is it made up into units, each unit carrying a charge equal in magnitude though opposite in sign to that carried by a corpuscle? ... The investigations made on the unit of positive electricity show that it is of quite a different kind from the unit of negative; the mass of the negative unit is exceedingly small compared with any atom; the only positive units that up to the present have been detected are quite comparable in mass with the mass of an atom of hydrogen; in fact they seem equal to it. This makes it more difficult to be certain that the unit of positive electricity has been isolated, for we have to be on our guard against its being a much smaller body attached to the hydrogen atoms which happen to be present in the vessel. ... At present the smallest positive electrified particles of which we have direct experimental evidence have masses comparable with that of an atom of hydrogen.

"A knowledge of the mass and size of the two units of electricity, the positive and the negative, would give us the material for constructing what may be called a molecular theory of electricity, and would be a starting point for a theory of the structure of matter; for the most natural view to take, as a provisional hypothesis, is that matter is just a collection of positive and negative units of electricity, and that the forces which hold atoms and molecules together, the properties which differentiate one kind of matter from another, all have their origin in the electrical forces exerted by positive and negative units of electricity, grouped together in different ways in the atoms of the different elements. As it would seem that the units of positive and

negative electricity are of very different sizes, we must regard matter as a mixture containing systems of very different types, one type corresponding to the small corpuscle, the other to the large positive unit. Since the energy associated with a given charge is greater the smaller the body on which the charge is concentrated, the energy stored up in the negative corpuscles will be far greater than that stored up by the positive. The amount of energy which is stored up in ordinary matter in the form of the electrostatic potential energy of its corpuscles is, I think, not generally realized. ... This energy is fortunately kept fast bound by the corpuscles; if at any time an appreciable fraction were to get free the earth would explode and become a gaseous nebula. The matter of which I have been speaking so far is the material which builds up the earth, the sun, and the stars, the matter studied by the chemist, and which he can represent by a formula; this matter occupies, however, but an insignificant fraction of the universe; it forms but minute islands in the great ocean of the ether, the substance with which the whole universe is filled.

{606}

"The ether is not a fantastic creation of the speculative philosopher; it is as essential to us as the air we breathe. For we must remember that we on this earth are not living on our own resources; we are dependent from minute to minute upon what we are getting from the sun, and the gifts of the sun are conveyed to us by the ether. It is to the sun that we owe not merely night and day, springtime and harvest, but it is the energy of the sun, stored up in coal, in waterfalls, in food, that practically does all the work of the world. ... On the electro-magnetic theory of light, now universally accepted, the energy streaming to the earth travels through the ether in electric waves; thus practically the whole of the energy at our disposal has at one time or another been electrical energy. The ether must, then, be the seat of electrical and

magnetic forces. We know, thanks to the genius of Clerk Maxwell, the founder and inspirer of modern electrical theory, the equations which express the relation between these forces, and although for some purposes these are all we require, yet they do not tell us very much about the nature of the ether.

"Let us consider some of the facts known about the ether. When light falls on a body and is absorbed by it, the body is pushed forward in the direction in which the light is travelling, and if the body is free to move it is set in motion by the light. Now it is a fundamental principle of dynamics that when a body is set moving in a certain direction, or, to use the language of dynamics, acquires momentum in that direction, some other mass must lose the same amount of momentum; in other words, the amount of momentum in the universe is constant. Thus, when the body is pushed forward by the light, some other system must have lost the momentum the body acquires, and the only other system available is the wave of light falling on the body; hence we conclude that there must have been momentum in the wave in the direction in which it is travelling. Momentum, however, implies mass in motion. We conclude, then, that in the ether through which the wave is moving there is mass moving with the velocity of light. The experiments made on the pressure due to light enable us to calculate this mass. ...

"The place where the density of the ether carried along by an electric field rises to its highest value is close to a corpuscle, for round the corpuscles are by far the strongest electric fields of which we have any knowledge. We know the mass of the corpuscle, we know from Kaufmann's experiments that this arises entirely from the electric charge, and is therefore due to the ether carried along with the corpuscle by the lines of force attached to it. ... Around the corpuscle ether must have an extravagant density; whether the density is as great as this in other places depends upon whether the ether is compressible or not. If it is compressible, then it

may be condensed round the corpuscles, and there have an abnormally great density; if it is not compressible, then the density in free space cannot be less than the number I have just mentioned. With respect to this point we must remember that the forces acting on the ether close to the corpuscle are prodigious. ... I do not know at present of any effect which would enable us to determine whether ether is compressible or not. And although at first sight the idea that we are immersed in a medium almost infinitely denser than lead might seem inconceivable, it is not so if we remember that in all probability matter is composed mainly of holes. We may, in fact, regard matter as possessing a bird-cage kind of structure in which the Volume of the ether disturbed by the wires when the structure is moved is infinitesimal in comparison with the Volume enclosed by them. If we do this, no difficulty arises from the great density of the ether; all we have to do is to increase the distance between the wires in proportion as we increase the density of the ether."

Some English journals, in discussing Sir Joseph Thomson's address at Winnipeg, spoke doubtingly of its scientific soundness, regarding it as too speculative, representing conclusions in advance of what physical science had obtained a real warrant to draw. These newspaper critics were called sharply to account by Sir Oliver Lodge, and told that they were suspicious of Sir Joseph's statements only because they knew nothing of the data on which he founded them.

In a magazine article of the previous year, Sir Oliver Lodge had already traversed part of the ground covered by the impressive review of Sir Joseph Thomson. In that article he said of the present conception of the ether of space, as accepted among the leaders of physical science:

"When a steel spring is bent or distorted, what is it that is really strained? Not the atoms—the atoms are only displaced; it is the connecting links that are strained—the connecting

medium—the ether. Distortion of a spring is really distortion of the ether. All strain exists in the ether. Matter can only be moved. Contact does not exist between the atoms of matter as we know them; it is doubtful if a piece of matter ever touches another piece, any more than a comet touches the sun when it appears to rebound from it; but the atoms are connected, as the planets, the comets and the sun are connected, by a continuous *plenum* without break or discontinuity of any kind. Matter acts on matter solely through the ether. But whether matter is a thing utterly distinct and separate from the ether, or whether it is a specifically modified portion of it—modified in such a way as to be susceptible of locomotion, and yet continuous with all the rest of the ether,—which can be said to extend everywhere, far beyond the bounds of the modified and tangible portion called matter—are questions demanding, and I may say in process of receiving, answers.

"Every such answer involves some view of the universal, and possibly infinite, uniform, omnipresent connecting medium, the ether of space."

***Oliver Lodge,
The Ether of Space
(North American Review, May, 1908).***

[Transcriber's Note: The Michelson-Morley experiment 21 years earlier had cast doubt on the ether concept.
<https://www.gutenberg.org/ebooks/70888>]

SCIENCE AND INVENTION, RECENT: Radium and Radio-activity:
The Discovery by Professor and Madame Curie.
The Light it throws on many Scientific Problems.
Faraday's Prophetic Anticipation.
The Dissolution of Atoms.

"In his first treatise on the X-rays, Röntgen [see in Volume

VI.] drew attention to the fact that they proceeded from those parts of the Röntgen tubes where the glass, under the influence of the impinging cathode rays, showed the most fluorescence. It therefore seemed possible that the existence of these mysterious rays was in some way dependent on previously acquired fluorescence, and many physicists tried to ascertain with the well-known Balmain dyes, which become luminous after exposure to the light, if results could be obtained resembling those with a Röntgen tube.

{607}

"Similar attempts by the French physicist, Henri Becquerel, were crowned with success in an unexpected direction. He exposed a uranium salt to the light, and then placing it in a dark room on a photographic plate covered with opaque paper he demonstrated the action of these rays on the plate through the paper, thin sheets of metal, etc. But the supposed and sought-for relation of the rays to the previous fluorescence was not evident, for Becquerel obtained precisely the same results with preparations of uranium which had not only not been previously exposed directly to the light, but had purposely been kept some time in darkness and could therefore display no stored-up luminescence. He had, however, discovered the uranium or Becquerel rays. ...

"At Becquerel's suggestion Madame Curie undertook a systematic investigation of all the chemical elements and established the fact that with none of them, excepting uranium and thorium, could an appreciable effect indicating rays be obtained with her apparatus. On the other hand, she found that many of the minerals investigated showed noticeable action in this direction. The fact that a few of them, the uranium pitchblende, for example, from Joachimsthal, Bohemia, emitted rays three or four times stronger than those of pure uranium, and which could not therefore be announced as uranium rays, led her to suppose that in the pitchblende itself, apart from

the uranium, there must exist a still more powerful radioactive substance. It is a matter of record how, in this research, which might serve as a model for such work, she and her husband, so soon afterwards to lose his life by a deplorable accident, succeeded in tracing this supposed substance more and more accurately, and finally in obtaining it pure. Madame Curie thus became the discoverer of radium, a new element possessed of wonderful, of fabulous qualities.

"Besides Madame Curie no other investigator but Professor Braunschweig, so far as I know, has yet succeeded in obtaining pure radium."

***Franz Himstedt,
Radioactivity (Annual Report, Smithsonian Institution,
1905-1906, pages 117-118).***

"The phenomena of radio-activity revive interest in the prophetic views of Michael Faraday. In 1816, when he was but twenty-four years of age, he delivered a lecture at the Royal Institution in London on Radiant Matter. In the course of his remarks there occurs this passage:—'If we now conceive a change as far beyond vaporization as that is above fluidity, and then take into account the proportional increased extent of alteration as the changes arise, we shall perhaps, if we can form any conception at all, not fall short of radiant matter; and as in the last conversion many qualities were lost, so here also many more would disappear. It was the opinion of Newton, and of many other distinguished philosophers, that this conversion was possible, and continually going on in the processes of nature, and they found that the idea would bear without injury the applications of mathematical reasoning—as regards heat, for instance. If assumed, we must also assume the simplicity of matter; for it would follow that all the variety of substances with which we are acquainted could be converted into one of three kinds of radiant matter; which again may differ from each other only in

the size of their particles or their form. The properties of known bodies would then be supposed to arise from the varied arrangements of their ultimate atoms, and belong to substances only as long as their compound nature existed; and thus variety of matter and variety of properties would be found co-essential.'"

George Iles,
Inventors at Work,
pages 204-205 (Doubleday, Page & Co., New York).

"An ascertained commercial value of £4 per milligramme (equivalent to £114,000 per ounce) has been placed upon radium by a contract just entered into between the British Metalliferous Mines (Limited) and Lord Iveagh and Sir Ernest Cassel for the supply of 7½ grammes (rather more than a quarter of an ounce) of pure radium bromide. This very large order for radium will be supplied from the above named company's mine near Grampound Road in Cornwall."

London Times, June 21, 1909.

SCIENCE AND INVENTION, RECENT: The Mono-Rail Gyroscopic System.

A mechanical invention not yet developed, but which seems more than likely to count among the most important of the next few years, is that known as the Brennan mono-rail system, which balances cars and trains of cars on a single rail by use of the principle of the gyroscope. It was first exhibited by its English inventor, Mr. Louis Brennan, in model form, before the Royal Society, in 1907, and won so much confidence in its possibilities that the British War Office and the India Office gave financial assistance to meet the cost of the long experiments that were necessary for adapting the system to service on a large practical scale. The result of these experiments was exhibited in public trials at New Brompton,

England, and, subsequently, at New York, in the later part of 1909. The following account of the exhibition at New Brompton was given by *The Times*:

"The car with which the test runs were carried out is 40 ft. in length and 10 ft. in width; its weight is 22 tons, and it is designed for a load of 10 to 15 tons. The weight of the gyroscopes, of which there are two, is $1\frac{1}{2}$ tons, each having a diameter of 3 ft. 6 in. The speed of rotation is 3,000 r. p. m., or considerably less than it was in the 6 ft. model exhibited before the Royal Society. It would be possible for the car to obtain the necessary power by collecting current from an overhead wire with a consequent saving of weight, but in the present example the motive power is provided by two Wolseley petrol engines, one of 80 h. p., and the other of 20 h. p., driving two direct-current shunt-wound motors of the Siemens type. It is not necessary that the car should be propelled electrically, and steam or other motive power could be employed; but in any case it would be necessary to spin the gyroscopes electrically, this method being ideal for the purpose. The air is exhausted from the gyroscope cases, the pressure in them being equivalent to from $\frac{1}{2}$ in. to $\frac{5}{8}$ in. of mercury. It is hoped in future installations to design the gyroscopes for higher speeds, and in that case it would be possible to reduce the size and weight of the equipment. In this first car the gyroscopes run in the vertical plane, but that is merely for convenience, the essential feature being that the trunnions should be at right angles to the track. ...

{608}

"Several experimental trips were made on the factory circular track as well as on the straight, and the car travelled with remarkable steadiness throughout. It is not likely that the Brennan mono-rail will find any wide field of application in this country, but there would appear to be great advantages in the system for mountain railways in India and elsewhere, and,

indeed, it seems suitable for adoption in any country where new railways are being planned. The inventor lays stress on the absolute safety of the system at speeds ranging up to about 150 miles per hour."

SCIENCE AND INVENTION, RECENT:
Sanitary.

See (in this Volume)
PUBLIC HEALTH.

SCIENCE AND INVENTION, RECENT:
Submarine Signal Bells.

In May, 1909, it was announced from Washington that "the Government, recognizing the substantial service rendered to shipping by submarine bells, has decided to extend their installation from time to time to light vessels and stations on both coasts and upon the great lakes. At present forty-six of the light vessels are thus equipped, and the signals which they send out are of undoubted aid to deep-water navigation. Canada, England, Germany, Holland, France, Sweden, and Denmark are following suit. The bells operate during fogs and at night and the sound waves emitted by the bell under water have been known to travel as far as twenty-seven miles. These sound waves are picked up by the receiving microphones on board ships, and by the code signal of each station the vessel's navigator is able to tell where he is."

See (in this Volume) above,
ELECTRICAL: WIRELESS TELEGRAPHY:
THE CRY THAT BROUGHT HELP.

SCIENCE AND INVENTION, RECENT:
The Turbine Steam Engine.
Its Successful Development.
First Use on Ocean Steamers.

The "Lusitania" and "Mauretania."

"For a long time and well into the nineteenth century, water was lifted by pistons moving in cylindrical pumps. Meantime the turbine grew steadily in favor as a water motor, arriving at last at high efficiency. This gave designers a hint to reverse the turbine and use it as a water lifter or pump: this machine, duly built, with a continuous instead of an intermittent motion, showed much better results than the old-fashioned pump. The turbine-pump is accordingly adopted for many large waterworks, deep mines and similar installations. This advance from to-and-fro to rotary action extended irresistibly to steam as a motive power. It was clear that if steam could be employed in a turbine somewhat as water is, much of the complexity and loss inherent in reciprocating engines would be brushed aside. A pioneer inventor in this field was Gustave Patrich De Laval, of Stockholm, who constructed his first steam turbine along the familiar lines of the Barker mill. Steam is so light that for its utmost utilization as a jet a velocity of about 2,000 feet a second is required, a rate which no material is strong enough to allow. De Laval by using the most tenacious metal for his turbines is able to give their swiftest parts a speed of as much as 1400 feet a second. His apparatus is cheap, simple and efficient; it is limited to about 300 horse-power. Its chief feature is its divergent nozzle, which permits the outflowing steam to expand fully with all the effect realized in a steam cylinder provided with expansion valve gear. Another device of De Laval which makes his turbine a safe and desirable prime mover is the flexible shaft which has a little, self-righting play under the extreme pace of its rotation.

"Of direct action turbines the De Laval is the chief; of compound turbines, in which the steam is expanded in successive stages, the first and most widely adopted was invented by the Honourable Charles A. Parsons of Newcastle-on-Tyne. ... In 1894 Mr. Parsons launched his

Turbinia, the first steamer to be driven by a turbine. Her record was so gratifying that a succession of vessels, similarly equipped, were year by year built for excursion lines, for transit across the British Channel, for the British Royal Navy, and for mercantile marine service. The thirty-fifth of these ships, the **Victorian** of the Allan Line, was the first to cross the Atlantic Ocean, arriving at Halifax, Nova Scotia, April 18, 1905. She was followed by the **Virginian** of the same line which arrived at Quebec, May 8, 1905. Not long afterward the Cunard Company sent from Liverpool to New York the **Carmania** equipped with steam turbines, and in every other respect like the Caronia of the same owners, which is driven by reciprocating engines of the best model. Thus far the comparison between these two ships is in favor of the Carmania. The new monster Cunarders, the **Lusitania** and the **Mauretania**, each of 70,000 horse power, are to be propelled by steam turbines. The principal reasons for this preference are thus given by Professor Carl C. Thomas:—Decreased cost of operation as regards fuel, labor, oil, and repairs. Vibration due to machinery is avoided. Less weight of machinery and coal to be carried, resulting in greater speed. Greater simplicity of machinery in construction and operation, causing less liability to accident and breakdown. Smaller and more deeply immersed propellers, decreasing the tendency of the machinery to race in rough weather. Lower centre of gravity of the machinery as a whole, and increased headroom above the machinery. According to recent reports, decreased first cost of machinery."

George Iles,
Inventors at Work,
pages 452-456
(Doubleday, Page & Co., New York).

In August, 1908, the **Lusitania** made the voyage from Queenstown to New York in 4 days and 15 hours; again in

February, 1909, in 4 days, 17 hours and 6 minutes. In
September, 1909, the

Mauretania crossed from New York
to Queenstown in 4 days, 13 hours and 41 minutes.

SCIENCE AND INVENTION, RECENT:

The Washington Memorial Institution.

Extension of the Usefulness of Scientific Work in Departments
of the Government.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1901.

SCIENCE AND INVENTION, RECENT:

The Nobel Prizes.

See (in this Volume)

NOBEL PRIZES.

See also

EARTHQUAKES.

-----SCIENCE AND INVENTION, RECENT: End-----

-----SCOTLAND: Start-----

SCOTLAND: A. D. 1901 (March).

Census.

According to the returns of the decennial enumeration made on
the night of the 31st of March, 1901, the population of
Scotland that day, "including those in the Royal Navy, and
belonging to the Mercantile shipping in Scottish Ports or on
Scottish waters, number 4,472,000 persons, of whom 2,173,151
are males, and 2,298,849 females.

"When compared with the corresponding population as enumerated
at the Census of 1891, a total increase of 446,353 is found to
have occurred; the male increase being 230,434, and the female

215,919.

{609}

The percentage rate of increase of both sexes during the decennial period is 11.09—that of the males being 11.86, and of the females 10.37. The corresponding total rate of increase during the preceding decennium, 1881-1891, was 7.77 per cent. ... The rate at the present Census for Scotland is, with the exception of that at 1881, the highest since the decennial period 1821-1831. ...

"In 19 Counties an increase in the population has taken place, in 14 a decrease. The highest rate of increase—both sexes combined—is in Linlithgow, 24.4 per cent.; followed by Lanark with an increase of 21.1 per cent.; Stirling with one of 20.6 per cent.; Renfrew with one of 16.5 per cent.; Dumbarton with one of 16.2 per cent.; Kincardine with one of 15.3 per cent.; Fife with one of 15.0 per cent. The greatest falling off occurs in Berwick, 4.6 per cent.; in Orkney, 5.7 per cent.; in Roxburgh, 8.8 per cent.; in Caithness 8.9 per cent.; in Wigtown, 9.4 per cent.; and in Selkirk 15.8 percent. Inverness stands almost as it was, having increased but 0.1 per cent., and the minimum rate of falling off as to population is in Banff, 0.3 per cent., and Argyll, 0.6 per cent. ...

"Among the larger Burghs the increase of population varies not a little. Thus, in Motherwell, which heads the list, the increase during the decennial period 1891-1901, is at the rate of 62.5 per cent. Partick follows with a rate of increase of 48.6 per cent.; Wishaw with one of 36.8 percent.; Hamilton with one of 31.8 per cent.; Kirkcaldy with one of 25.5 percent.; Falkirk with one of 24.3 per cent.; Govan with one of 24.2 per cent.; Coatbridge with one of 21.3 per cent.; Aberdeen with one of 22.9 per cent.; Kilmarnock with one of 20.1 per cent.; Paisley with one of 19.5 per cent.; Airdrie with one of 16.5 per cent.; Glasgow with one of 15.5 per cent.; Ayr with one of 15.1 per cent.; Edinburgh with one of 14.8 per cent.; Dunfermline with one of 14.1 percent.; Leith

with one of 12.6 per cent.; Inverness with one of 10.3 per cent.; Perth with one of 9.9 per cent.; Greenock with one of 7.4 per cent.; and Dundee with one of 4.5 percent.; while Arbroath indicates a decrease at the rate of 1.9 per cent."

Preliminary Report to Parliament.

The division of population between town districts and rural districts is shown in the following table:

Groups of Districts.		Males.
Females.	Total.	
Town Districts		1,404,382
1,520,698	2,925,080	
(Pop. 2,000 and upwards)		
Mainland-Rural Districts		479,009
495,172	974,841	
Insular-Rural Districts		58,666
67,060	125,726	
Total		1,942,717
2,082,930	4,025,647	

SCOTLAND: A. D. 1901.

Mr. Carnegie's great Gift to Universities and Students.

See (in this Volume)

EDUCATION: SCOTLAND: A. D. 1901.

SCOTLAND: A. D. 1904-1905.

Decision of the House of Lords against the Union, in 1900,
of the Free Church with the United Presbyterian.

All Property given to the Opposing Remnant.

"In 1900, the United Free Church was formed by the union of
the majority of the Free Church with the entire body of the
United Presbyterians, ...

See, in Volume VI. of this work,
SCOTLAND: A. D. 1900)

A new organisation placed in the field of Church politics in Scotland almost equals in respect of numbers and resources to the Established Church. The small minority opposed to this union inside the Free Church seceded, held some of the churches and manses by force, defying authority to the extent, in one instance, of a month's imprisonment, and retained the denomination of 'The Free Church of Scotland.' As their fathers left a 'vitiated' Establishment on purpose to preserve the freedom and purity of the National Church, so they refused to enter the new union, in order, by standing out, to save the principles, doctrines, and purposes identified with the Disruption of 1843. This minority of not more than twenty-seven ministers and as many congregations, mostly located in fastnesses beyond the Grampians, is now the Free Church of Scotland, with Presbytery, Assembly, Moderator—in short, with the offices and institutions, on a condensed scale, which are essential in Presbyterian polity. These few determined people claim to be the faithful remnant of the Disruptionists. Like Milton's Abdiel, 'unshaken, unseduced, unterrified,' nor moved to 'swerve from truth' or 'change their constant mind,' they claim to have kept their loyalty, their love, their zeal in the cause of the Disruption through all the temptations of an age in thought Pyrrhonist, in morality lax, and in religion Latitudinarian. On the assumption that they alone were the Free Church, they invoked

the aid of the Civil Courts in their defence. The Court of Session—both the Ordinary and the Inner Courts—decided in favour of the United Free Church. Home-made law could not satisfy the minority, and, on appeal, the House of Lords reversed the judgment of the Court of Session, declaring the remnant to be the Free Church of Scotland, and finding that the United Free Church was a modern composite body which, on the evidence of its ambidextrous and Latitudinarian constitution, had abandoned the fundamental doctrines and principles held by the Disruptionists. In consequence of this decision, the property of the Free Church, as it existed prior to the union of 1900, now belongs to the remnant of the Disruptionists.

"From the side of the losing United Free Church a bitter cry has arisen against this finality in law. The decision is formally accepted, yet denounced as unjust and incompetent, as denying toleration and the right to change its creed to an autonomous body; and there are murmurs about of the necessity of an appeal to Parliament. ... It seems the rankest injustice to transfer more than one million in invested funds, nearly a thousand church buildings, three superior colleges devoted to the training of Divinity students (one in Edinburgh, another in Glasgow, and a third in Aberdeen), the magnificent Assembly Hall in Edinburgh, with the offices attached, probably also much property in foreign missions, from the United Free Church to this remnant of Disruptionists, the custodians of the dying embers of Obscurantism in Scotland."

***J. M. Sloan,
The Scottish Free Church
(Fortnightly Review, September, 1904).***

{610}

To consider the situation created by the decision of the House of Lords, a Royal Commission was appointed, which investigated

all the questions involved and reported its findings in April, 1905. In the judgment of the Commission, the Free Church (the "Wee Frees," as that body was now commonly dubbed) had neither the numbers nor the resources for putting to their proper use the enormous endowment which it claimed. At the same time there would be no justice in delivering those endowments unconditionally to the United Free Church. It was recommended, accordingly, that a Commission be constituted by Act of Parliament to take charge of the whole property and funds involved, and to arrange for the allocation of the same, to the end of securing "adequate provision for the due performance of the purposes for which the funds were raised and the trusts on which they are held." A Bill in accordance with this recommendation was passed during the next session of Parliament.

On the request of the General Assembly of the Church of Scotland, the same Act enabled the Church to change the formula of subscription required from its ministers, under the Act of 1693, so that, on being ordained, a minister shall only make a "declaration of his faith in the sum and substance of the doctrine of the Reformed Churches therein contained, according to such formula as may from time to time be prescribed by the General Assembly."

SCOTLAND: A. D. 1904-1909.

Peace followed by Threatened Conflict in the Coal Mining Industry.

See (in this Volume)

LABOR ORGANIZATION: SCOTLAND.

SCOTLAND: A. D. 1909.

Working of the Old Age Pensions Act.

See (in this Volume)

POVERTY, PROBLEMS OF: PENSIONS.

-----SCOTLAND: End-----

SCOTT, James Brown:

Technical Delegate to the Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

SCOTT, Captain K. T.:

Commander of Antarctic Expedition.

See (in this Volume)

POLAR EXPLORATION.

SEAL FISHERY NEGOTIATIONS.

"Negotiations for an international conference to consider and reach an arrangement providing for the preservation and protection of the fur seals in the North Pacific are in progress with the governments of Great Britain, Japan, and Russia. The attitude of the governments interested leads me to hope for a satisfactory settlement of this question as the ultimate outcome of the negotiations."

***Message of the President of the United States to Congress,
December 6, 1909.***

SEATTLE: A. D. 1909.

The Alaska-Yukon-Pacific Exposition.

"The fair at Seattle," said ***The World's Work*** of August, 1909, "is beautiful; that goes without saying, for the best of man's art is fitted to the best of Nature's workmanship to make a balanced and blended picture never excelled in the long list of great exhibitions. But better than that, the fair at Seattle is a definite commercial lesson—and lessons in

commerce last forever. Primarily, the fair is teaching the people of the United States to know the Pacific coast; secondarily, it is teaching them a little of Alaska, a little of Japan, and a little of the Philippines. And the distinctive feature of this particular fair is the determined effort to make those lessons true." This seems to describe the impression which the Alaska-Yukon-Pacific Exposition made generally on the visitors who went to it with an intelligent purpose in going. It gave them what they went to see, with fidelity, with fulness, and in most attractive forms of display. Like its Northwestern predecessor, at Portland, four years before, it was an almost startling revelation of the possibilities of planting and ripening in cities, states, and their social institutions, that lie within trivial spaces of time in this wonderful present age.

The Exposition was on the grounds of Washington University, and seven of the principal buildings erected for it were of permanent construction and remain for the use of the University. Again, as at Portland, the most interesting of these buildings architecturally was that for the forestry exhibit, built of logs and other timber in a state as nearly natural as it could be kept.

The Exposition was open from June 1st until October 16, and registered about 3,740,000 visitors.

SEBAHEDDIN.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

SECTARIAN SCHOOL QUESTION.

See (in this Volume)
FRANCE: A. D. 1903;
also

CANADA: A. D. 1905.

SEDDON, Richard J.: Prime Minister of New Zealand.
His Death.

See (in this Volume)
NEW ZEALAND: A. D. 1906-1909.

SEGNATURA, The.

See (in this Volume)
PAPACY: A. D. 1908.

SEIYU-KAI.

See (in this Volume)
JAPAN: A. D. 1902 (August); 1903 (June), and 1909.

SELFBRIDGE, Lieutenant T. E.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

SENATORS, United States:
Proposed Election by Direct Popular Vote.

See (in this Volume)
UNITED STATES SENATORS.

SENEGAMBIA: A. D. 1904.
Cession of a portion of territory by England to France.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

SENUSSIA,
SENOUSSI:

The Pan-Islamic Movement in Africa.
Sidi Mahomed bin Ali es Senussia and his Sect.
His Doctrine and its Aim.

"We have recently heard, principally apropos of the disturbances in Egypt, a considerable amount concerning Pan-Islamism. Taking into consideration how much has been written on this subject, it is surprising to find how little has been said concerning one of the principal organisations for the propagation of Pan-Islamism. I refer to the sect known as Senussia. ... At this present moment there is throughout Africa very general discontent among the native population, not only in Mohammedan countries, but universally over the length and breadth of the entire continent. ...

"It is a comparatively easy matter to so influence any warlike Moslem people to religious enthusiasm that they are instantly ready in arms to strike a blow for the faith. But the most significant and sinister symptom of this anti-Christian crusade is that the message carried by the Senussia agents is, 'Wait, for the time is not yet ripe. Rest now, but when the hour arrives, rise, slay, and spare not.' Taking into consideration the fact that the Senussia sect was founded in 1835, that its rise has been enormously rapid, and that its propaganda has been actively and diligently preached in British possessions for many years past, with scarcely one definite item of intelligence concerning it being known, it shows clearly that the motive power and organising intelligence must be something considerably above the average.
...

{611}

"The sect was founded in 1835 by Sidi Mahomed bin Ali es Senussia, otherwise known as Sheikh Senussi, an Algerian Arab born near Mostaganem towards the end of the Turkish dominion. A lineal descendant of the prophet Mahomed, he first gained a

reputation for sanctity at Fez. He then proceeded to Mecca, where he commenced preaching. However his success, which was remarkably rapid, caused great local jealousy and he had perforce to fly to Egypt. He started a zawia or monastery at Alexandria, but being excommunicated by the Sheikh el Islam at Cairo, he was again compelled to seek safety in flight. This time he fled across the Lybian desert to Jebel el Akhdar near Benghazi on the north coast, where he again established a zawia, and in a short time had obtained a considerable following. There he lived and preached, and died in 1859 or 1860, having firmly established the Senussia sect. He was succeeded by his son Mahomed.

"The doctrine preached by the Sheikh Senussi, and which still comprises the doctrines and aims of his disciples, was as follows: To free the Mahommedan religion from the many abuses which have crept into it. To restore, under one universal leader, the former purity of faith. Finally, and most especially, to free all Moslem countries, more particularly those in Africa, from the dominion of the infidel."

***H. A. Wilson,
The Moslem Menace
(Nineteenth Century, September, 1907).***

"The growth of the Senoussi has been one of the most striking developments of modern Islam. They have adopted an active missionary policy and have spread southwards through heathen Africa, while their organization has been framed with the idea of including and coordinating all existing brotherhoods. The Senoussi have established in all countries where the Moslem is governed by an alien race a system of occult government side by side, and coinciding in its boundaries, with the state administration. This occult government exists in Algeria, Egypt, and India, and its emissaries are at work in Nigeria. The Senoussi now include within their brotherhood practically all the Sunnis, that is the majority of Moslems in Arabia,

Turkey, North Africa, Turkestan, Afghanistan and East Asia. The Shiites, who predominate in Persia, are alone prevented by their conception of orthodoxy from being Senoussi.

"The Senoussi had their headquarters at Djarboub, but some twenty years ago it was decided to send their official representative to Constantinople, and the venerable Mokkadem who occupies this position is even more powerful in councils than the Sheik ul Islam, who, nominated by the Sultan, occupies in the hierarchy the place of Expounder of the Law, second only to that of the Caliph, the 'Shadow of God on Earth.'"

***A. R. Colquhoun,
Pan-Islam
(North American Review, June, 1906).***

See, also, in Volume VI., page 835.

SERGIUS, Grand Duke,
Assassination of.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

SERVIA.

See (in this Volume)
BALKAN AND DANUBIAN STATES: SERVIA.

SEVASTOPOL:
Riot and Naval Mutiny.

See (in this Volume)
RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

SHACKLETON, LIEUTENANT ERNEST H.:
Antarctic Explorations.

See (in this Volume)
POLAR EXPLORATION.

SHA-HO, BATTLE OF THE.

See (in this Volume)
JAPAN: A. D. 1904-1905 (SEPTEMBER-MARCH).

SHANGHAI: A. D. 1902.
Withdrawal of Foreign Troops.

See (in this Volume)
CHINA: A. D. 1902.

SHANGHAI: A. D. 1905.
Boycott of Americans and American Goods.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

SHANGHAI: A. D. 1909.
International Opium Commission.

See (in this Volume)
OPIUM PROBLEM.

SHAW, LESLIE M.:
Secretary of the Treasury.

See (in this Volume)
UNITED STATES: A. D. 1901-1905, and 1905-1909.

SHEIKH-UL-ISLAM, The:
His Authority and Function at Constantinople.

See (in this Volume)
SENUSSIA.

SHEIKH-UL-ISLAM, The:
His Part in the Turkish Constitutional Revolution.

See (in this Volume)
TURKEY; A. D. 1908 (JULY-DECEMBER), and after.

SHEMSI PASHA,
Assassination of.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER).

SHERIAT, The.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

SHERMAN ANTI-TRUST ACT, of 1890.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1890-1902.

SHERMAN ANTI-TRUST ACT, of 1890.
Action of National Civic Federation on its Amendment.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1908-1909.

SHERMAN, James S.:
Elected Vice-President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

SHEVKET PASHA, Mahmud:

Commander of the Turkish Constitutional Forces.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

SHIPBUILDING AGREEMENT (BRITISH) OF 1908, THE.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1908.

SHIPPING COMBINATION, North Atlantic.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: INTERNATIONAL.

SHIRÉ HIGHLANDS:

Their Suitability for European Colonization.

See (in this Volume)

AFRICA.

SHIRTWAIST-MAKERS' STRIKE, THE.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1909-1910.

SHONTS, Theodore P.:

Chairman of the Panama Canal Commission.

See (in this Volume)

PANAMA CANAL: A. D. 1905-1909.

SHOOA-ES-SULTANEH.

See (in this Volume)
PERSIA: A. D. 1905-1907.

SHORT BALLOT REFORM.

See (in this Volume)
ELECTIVE FRANCHISE: UNITED STATES.

SIA-GU-SHAN HILL, CAPTURE OF.

See (in this Volume)
JAPAN: A. D. 1904-1905 (May-January).

SIAM: A. D. 1902.
Treaty with France.

By a fresh treaty with Siam, secured in October, 1902, France won from that kingdom another piece of territory to add to her Indo-China domain. The new acquisition is between the Rolnos and Piek Kompong Tiam rivers, on the Great Lake. In return France restores the port of Chantabun, which she has held for a long time without right, and which she agreed to restore in 1899.

See (in Volume VI.)
SIAM.

{612}

SIAM: A. D. 1904.
Declaration of England and France touching Influence in Siam.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

SIAM: A. D. 1905.
Suppression of Gambling and Edict for

the Extinction of Slavery.

An official notification of the suppression of gambling and a royal edict decreeing the abolition of the last remnants of slavery in the Kingdom of Siam were communicated to the American Government, through its Minister at Bangkok, in March and April, 1905. In part, the former stated:

"His Majesty has long been impressed by the fact that although the revenue derived from gambling is an important factor in the finances of the Kingdom the evils resulting therefrom are much greater than the benefits. People expend in gambling not only their own wealth but the wealth of others. They devote to gambling time during which they should be attending to their work. Under present conditions large sums of money which come into the hands of the gambling farmers are sent out of the kingdom. Gambling is also responsible for much of the crime that is committed. The abolition of gambling would, therefore, not only result in an improvement in the morals of the people and in increased industry, but money now expended therein would remain in circulation within the country, thereby adding to the wealth of the community. In order, however, to replace the loss of the revenue derived from gambling, some taxes must be increased and new taxes devised. In the increase of certain of these taxes it will be necessary to enter upon negotiations with foreign powers. Gambling cannot, therefore, be suppressed at once, but must be gradually abolished. His Majesty, therefore, has been pleased to order the abolition of gambling within the period of three years."

The decree concerning slavery opens thus:

"Although slavery in our realm is very different from slavery as it has existed in many other countries—most slaves being persons who have become so voluntarily and not by force and the powers of the master over the slaves being strictly limited—yet we have always considered that the institution,

even in this modified form, is an impediment to the progress of our country. We have, therefore, from the commencement of our reign, taken steps, by the enactment of laws and otherwise, for the abolition of slavery. ... We now deem it time to take more sweeping measures which will gradually result in the entire disappearance of slavery from Siam." Accordingly, a law is decreed as follows: "All children born of parents who are slaves shall be free without the execution of the condition stated in the law of Pee Chau. No person now free can be made a slave. If any person now a slave shall hereafter become free he cannot thereafter again become a slave. Wherever any person is now held a debt slave, the master shall credit upon the principal of the debt for which he is held a slave the sum of four (4) tieals for each month after the 1st of April, 124, provided that no credit shall be allowed for any time during which the slave may desert his master. If a slave changes his master, no increase shall be made in the debt for which he is actually held."

SIAM: A. D. 1909.

Treaty with Great Britain, Ceding three States in the Malay Peninsula.

By a treaty with Siam, signed on the 10th of March, 1909, Great Britain added 15,000 square miles to her dominion in the Malay Peninsula. Siam renounced, in favour of Great Britain, her suzerain rights over the native States of Kelantan, Trengganu, and Kedah, and perhaps other districts, in the Peninsula. In return the British Government consented to certain modifications in the extra-territorial rights enjoyed by British subjects in Siam. The Government of the Federated Malay States will advance to Siam the capital, about £4,000,000, required for the construction of railways in Southern Siam, by which it is hoped that direct railway communication will soon be established between Bangkok and Singapore. Kelantan lies 374 miles distant from Singapore and about 500 from Bangkok, on the shore of the China Sea. It is a

purely Malay State under the rule of a Rajah, who has not, like his predecessors, adopted the higher title of Sultan, but who claims to be an independent Sovereign, though he has been compelled to acknowledge the King of Siam as his suzerain. This condition of affairs has led to the transfer of his allegiance, very much, it is said, against his wish.

SIENKIEWICZ, HENRY K.

See (in this Volume)
NOBEL PRIZES.

SIFTON, CLIFFORD: CANADIAN MINISTER OF THE INTERIOR.
How he started the "American Invasion"
of the Canadian Northwest.

See (in this Volume)
CANADA: A. D. 1896-1909.

SIGANANDA.

See (in this Volume)
SOUTH AFRICA: NATAL: A. D. 1906-1907.

SILVER:
Suspension of Free Coinage in Mexico.

See (in this Volume)
MEXICO: A. D. 1904-1905.

SILVER EXCHANGE, WITH THE ORIENT.

See (in this Volume)
FINANCE AND TRADE: ASIA: A. D. 1909.

SIMON, GENERAL ANTOINE:
President of Haiti.

See (in this Volume)
HAITI: A. D. 1908.

SIMPLON TUNNEL.

See (in this Volume)
RAILWAYS: SWITZERLAND: A. D. 1903.

SINHA, Satyendra Prasanna:
Appointment as a Member of the Executive Council
of the Viceroy of India.

See (in this Volume)
INDIA: A. D. 1908-1909.

SINN FEIN, THE.

See (in this Volume)
IRELAND: A. D. 1905.

SIOUX INDIANS:
Colony in Nicaragua.

See (in this Volume)
CENTRAL AMERICA: NICARAGUA.

SIPAHDAR, The.

See (in this Volume)
PERSIA: A. D. 1908-1909.

SIPIAGIN, M.:
Assassination of.

See (in this Volume)
RUSSIA: A. D. 1901-1904.

SLAVERY:

In Portuguese Africa.

See (in this Volume)

AFRICA: PORTUGUESE: A. D. 1905-1908.

SLAVERY:

Abolition in Siam.

See (in this Volume)

SIAM: A. D. 1909.

SLAVERY:

Legal, but not Practical Ending in Zanzibar.

See (in this Volume)

ZANZIBAR: A. D. 1905.

SLEEPING SICKNESS.

See (in this Volume)

PUBLIC HEALTH.

SLOCUM, CONSUL-GENERAL C. R.:

Report on Affairs in the Congo State.

See (in this Volume)

CONGO STATE: A. D. 1906-1909.

"SLOCUM," BURNING OF THE.

See (in this Volume)

"GENERAL SLOCUM."

SMALL HOLDINGS ACT.

See (in this Volume)
ENGLAND: A. D. 1907-1908.

{613}

SMIRNOFF, GENERAL.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

SMITH, CHARLES E.:
Postmaster-General.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

SMITH, GOLDWIN:
On Discontent in India.

See (in this Volume)
INDIA: A. D. 1907-1909.

SMITH, CONSUL-GENERAL JAMES A.:
Report on Affairs in the Congo State.

See (in this Volume)
CONGO STATE: A. D. 1906-1909.

SMITH, JAMES F.:
Governor-General of the Philippine Islands.

See (in this Volume)
PHILIPPINE ISLANDS: A. D. 1906-1907.

SYNDER, R. M.:
Municipal "Boodler" of St. Louis.

See (in this Volume)

MUNICIPAL GOVERNMENT: ST. LOUIS.

SOCIAL BETTERMENT: ENGLAND: A. D. 1909.

The Housing and Town-Planning Act.

A Housing and Town Planning Bill, brought over from the previous session of Parliament, was introduced anew in April, 1909, by Mr. John Burns, President of the Local Government Board. It passed the Commons and went in November to the Lords, who gave it amendments which were thought to have brought it to wreck. The House of Commons would not accept them; but many in both Houses were keenly anxious for legislation on the subject, and private negotiation brought about a compromise of their differences, securing the enactment in a fairly satisfactory form.

The first part of the Act aims at improving the dwelling accommodation of the working classes, both by making it obligatory on all local authorities to provide new housing where required, and also by elaborate provisions for sanitary inspection. Every county council is required to appoint a public health and housing committee and also a medical officer of health, who shall devote his whole time to the supervision of the county area. Almost all working class dwellings in the country are covered by provisions ensuring that they shall be kept fit for human habitation throughout their tenancy. Enlarged powers of compulsory purchase, of closing and of demolition are also conferred upon local authorities or their authorized agents.

The provisions of the Act relating to town-planning are commended by ***The Times*** as marking "a new departure in legislation in this country. Hitherto new centres of population have been allowed to grow up, and existing urban areas have been allowed to expand, without control or prevision. The result has too often been that the haphazard

development of land in the vicinity of urban centres has produced slums, prevented the orderly growth of towns, and involved enormous expenditure in clearing sites, widening streets, and providing necessary open spaces. The Bill aims at securing in the future sanitary conditions, amenity, and convenience by enabling schemes to be made under which building land will be developed with due regard to future requirements. With this end in view the Local Government Board are empowered to authorize local authorities to prepare town planning schemes in connexion with land likely to be used for building purposes, or to adopt any such schemes proposed by owners of land. The schemes are to have effect, however, only if approved by the Local Government Board. The Bill provides for the payment of compensation to any person whose property is injuriously affected by the making of a town planning scheme, and, on the other hand, the local authority is empowered to recover from any person whose land is increased in value by the making of the scheme a proportion of the amount of that increase."

In anticipation of the passage of this important Act, a party of eighty representatives of municipalities and other bodies in Great Britain who would be concerned in its administration passed the Easter holidays of 1909 in some of the German cities which are most famous for the manner in which they have dealt with the problems of town-growth. The four cities selected were Cologne, Dusseldorf, Frankfurt, and Wiesbaden, each of which has formulated its own way of dealing with the problem and offers a different point of view.

SOCIAL BETTERMENT: PRUSSIA: A. D. 1905.

A Government Bureau of Charities.

In 1905 a law passed by the Prussian Diet created a national Charity Bureau, the duties of which are stated as follows:

(1) To follow the development of charity work and keep the

government informed of this development;

(2) to advise the state of conditions which justify change in existing laws or the passing of new laws, or which suggest change in government methods;

(3) to draw up opinions and make proposals which will help in framing laws for the benefit of the people;

(4) to take general control of relief stations in case of great calamities.

It will also be the duty of the department

(1) to establish relations between different charity organizations, suggest improvements in the methods of these organizations, and economize the forces of the various bodies;

(2) to follow the progress of charitable work and make an index and collection of all literature relating to the subject;

(3) to give information and advice in reference to philanthropic endeavor when requested to do so;

(4) to make reports to the state at short intervals in reference to the development and progress of the work in the nation at large;

(5) to draw up opinions and make proposals for the improvement or better organization of the charity propaganda in part or as a whole;

(6) to take charge of the development of the work in any section;

(7) to assist in putting in operation any suggestions or plans which may be made or worked out for the improvement of social conditions.

SOCIAL BETTERMENT: UNITED STATES: A. D. 1900-1909.

The National Civic Federation.

Its Origin.

Its Purposes.

Its Organization.

Its Work.

The Federation was organized in 1900, in Chicago, after a succession of national conferences had been held upon such subjects as Primary Election Reform, Foreign Policy and Trusts and Combinations. It consisted of an advisory council of five hundred members and an Executive Committee. On the Executive Committee were several of the members of the present National Executive Committee, including Franklin MacVeagh, Archbishop Ireland, Samuel Gompers, John Mitchell, D. J. Keefe, John W. Stahl, and Benjamin Ide Wheeler. The prospectus, published at the time, stated the purpose of the organization to be as follows:

{614}

"... To organize the best brains of the nation in an educational movement toward the solution of some of the great problems related to social and industrial progress; to provide for study and discussion of questions of national import; to aid thus in the crystallization of the most enlightened public opinion; and, when desirable, to promote legislation in accordance therewith."

"Fifteen national subjects were named, and it was expected that from time to time the formation of committees would result having as their special province the consideration of the subjects suggested.

"By vote, it was decided to take up for discussion, through national conferences, the three subjects of industrial arbitration, taxation and municipal ownership. The first conference, that on industrial arbitration, was held at Chicago, in December, 1900, and resulted in the organization of the Industrial Department, with A. C. Bartlett, of Chicago, chairman. In the following June a national conference on taxation was held in Buffalo, resulting in the formation of the Department on Taxation, with Edwin R. A. Seligman as chairman. It was the intention to hold the Conference on Municipal Ownership in New York the following December, but in the meantime a number of large strikes, especially the Steel Strike, the National Machinists' strike and a threatened Anthracite Coal Strike absorbed so much of the energy and attention of the active members of the Federation at that time that the Public Ownership Conference was postponed for the time being.

"Through the work done by the committee in connection with the coal and steel strikes, Senator Hanna became interested in the organization, and in December of that year was made President of the organization. His selection for that office, together with the appointment of other men of national reputation on the committee, attracted the attention of the country to the organization. For two years following that department was the only one prominent before the public, and its work in the prevention of strikes and lockouts was naturally regarded as the only purpose of the organization. The conferences held during this period were naturally confined to the subject of conciliation and collateral phases of the work. As national labor disturbances then became less frequent after two years of this special work the organization was able to resume its original programme, holding itself, however, in readiness to concentrate its energies on the industrial work at any time the need might arise.

"It was at this time that the national conference on immigration was called, and the Department of Immigration organized. After that a national commission on Municipal Ownership was formed, and by that time the public began to take interest in the broader aspects of the organization. Later came the establishment of the Industrial Economics Department, which has taken up some of the most important problems of the day, including Socialism and Trusts and Combinations. The holding of a national conference on Political Reform resulted in the organization of a department especially devoted to these subjects.

"While the subjects to be taken up by the organization are determined by the Executive Committee, the fact is here emphasized that in devoting itself to other matters than questions relating to strikes and lockouts, the organization has not deviated from, but has returned to, its original lines."

***The National Civic Federation Review,
March, 1909.***

The following additional particulars of the organization and operations of the Federation are drawn from a pamphlet statement of 1909:

"The membership of the Federation is drawn from practical men of affairs, whose acknowledged leadership in thought and action makes them typical representatives of the various elements that voluntarily work together for the general good. Its National Executive Committee is constituted of three factors: the general public, represented by the church, the bar, the press, statesmanship and finance; employers, represented by large manufacturers and the heads of great corporations, and employers' organizations; and labor, represented by the principal officials of national and international organizations of wage-earners in every important

industry.

"There are useful organizations of farmers, manufacturers, wage-earners, bankers, merchants, lawyers, economists and other distinct but interacting elements of society, which hold meetings for discussion of affairs peculiar to their own pursuits and callings. The Federation, in addition to its Departments for the accomplishment of specific purposes, provides a forum where representatives of all these elements of society may meet to discuss national problems in which they have a common interest.

"Twelve national conferences have thus been held upon such subjects as Primary Election and Ballot Reforms, Foreign Policy, Trusts, Conciliation and Arbitration, Taxation, and Immigration. These conferences have usually been attended by delegates appointed by Governors of States and by representatives selected by various commercial, industrial, and educational bodies.

"The present activities of the Federation are exercised through the following agencies:

"Trade Agreement Department,
"Industrial Conciliation Department,
"Industrial Economics Department,
"Industrial Welfare Department,
"Public Employés' Welfare Department,
"The Woman's Department,
"Public Ownership Commission,
"Immigration Department,
"Political Reform Department.

"The Trade Agreement Department [John Mitchell, Chairman] consists of employers and representatives of workingmen, who make agreements as to hours, wages and conditions of employment. The membership of the department is equally

divided between employers and labor leaders, the employers being officers of steam and street railway companies, coal operators, the publishers of large daily papers, building contractors, brewers, stove manufacturers, shippers' associations, while labor is represented by officials in corresponding crafts. ...

"The Conciliation Department [Seth Low, Chairman] deals entirely with strikes, lock-outs and arbitration. The services of this department have been enlisted in about five hundred cases, involving every conceivable phase of a problem interwoven with or underlying an industrial controversy. Its membership extends to every industrial centre, and includes representatives of leading organizations of employers and of wage-earners. Through this membership information of any threatened trouble between capital and labor usually reaches the headquarters, from one side or the other, in advance of any public rupture. ...

{615}

"The Department of Industrial Economics [Nicholas Murray Butler, Chairman] was formed to promote discussion of practical economic problems. Its membership is composed of leading economists, including the heads of the departments of political economy in universities, lecturers and economic and legal authors; editors of the daily press, of politico-social magazines, of trade papers and of labor journals; representatives of the pulpit; large employers and representatives of labor. This department has arranged a programme for the discussion, by the ablest experts to be procured, of each of the vital and frequently irritating questions that arise in the Conciliation Department in connection with the prevention or settlement of controversies. ...

"The Industrial Welfare Department [the work of which is

conducted by a number of sub-committees, at the head of one of which is the President of the United States, William H. Taft, as Chairman of the committee which studies the welfare of the Public Employés of the country, and the general Chairman of which is William H. Willcox] is composed of employers of labor in stores, factories, mines and on railroads. It is devoted to interesting employers in improving the conditions under which employés in all industries work and live. In extending the practice of Welfare Work the department has found of especial value conferences of employers, held under its auspices in different parts of the country, for the interchange of experiences. Illustrated literature is widely distributed, and stereopticon lectures are given. A bureau of exchange is maintained at headquarters, where descriptive matter, plans and photographs relating to betterments in different industries may be obtained by employers.

"Some of the subjects involved are;

"Sanitary Work Places:

Systems for providing pure drinking water;
for ventilation, including the cooling of super heated places, and devices for exhausting dust and removing gases;
for lighting work places;
and for guarding machinery;
wash rooms with hot and cold water, towels and soap;
shower baths for molders and stationary firemen;
emergency hospitals;
locker rooms;
seats for women;
laundries for men's overalls or women's uniforms;
the use of elevators for women, and luncheon rooms.

"Recreation:

The social hall for dancing parties, concerts, theatricals, billiards, pool or bowling;
the gymnasium, athletic field, roof garden, vacations and

summer excursions for employés, and rest rooms or trainmen's rest houses.

"Educational:

Classes for apprentices;
in cooking, dressmaking, millinery;
first aid to the injured;
night classes for technical training;
kindergartens and libraries.

"Housing:

Homes rented or sold to employés, and boarding houses.

"Provident Funds:

For insurance, pensions, savings or lending money in times of stress.

"The Woman's Department [of which Mrs. William H. Taft is Honorary Chairman, Mrs. Horace Brock, Chairman, and which has a strong corps of other officers] "is composed largely of women who are themselves stockholders or who are financially interested in industrial organizations (including railroads, mills, factories, mines, stores and other work places) through family relationships, and who therefore naturally should be interested in the welfare of workers in enterprises from which they draw their incomes; there are also, among other influential members, the wives of public officials.

"The object of this department is: 'To use its influence in securing needed improvements in the working and living conditions of women and men wage-earners in the various industries and governmental institutions, and to co-operate, when practicable, in the general work of the Federation.' ...

"The Public Ownership Commission [Melville E. Ingalls, Chairman], appointed by the Executive Council of the Federation, is composed of one hundred prominent men

representing practically every shade of opinion on the subject. ...

"The Department of Immigration [Franklin MacVeagh, Chairman] is composed of men selected to represent every locality in the Union affected by the admission of aliens.

"This Department was organized at the request of the National Immigration Conference, held in New York City, December 6-8, 1905, this conference being attended by more than five hundred delegates appointed by Governors of States, leading commercial, agricultural, manufacturing, labor and economic organizations, and by prominent ecclesiastical and educational institutions. It undertook an investigation of all important phases of the immigration problem, the Department being organized into seven distinct committees. ...

"Largely through the work of the Immigration Department, Congress was induced to appoint a Commission on Immigration, which commission has, with unlimited funds at its disposal, undertaken a large part of the work that had been planned by the Federation's department. In fact, two members of that department are on the commission and have utilized all the material gathered by the Federation's experts, relating to both white and Oriental immigration. ...

"The organization of a Political Reform Department was the practical outcome of a National Conference on that subject held in New York City, March 6 and 7, 1906, under the auspices of The National Civic Federation. The Conference was attended by delegates from all parts of the country, appointed by congressmen, governors, mayors, municipal and political reform bodies, and representing all shades of political opinion.

"It is the purpose of the Political Reform Department to teach practical politics, and especially to organize the young men of the country and induce them to participate actively,

through their respective party organizations, in governmental affairs--Federal, State and municipal."

{616}

SOCIAL BETTERMENT: A. D. 1904-1909.

The American Civic Association.

"Organized effort for the systematic making of a beautiful America did not manifest itself until within comparatively recent years. Prior to 1904 there had been various short-lived state associations, a few interstate societies and two national organizations, working with the same general objects in view. But at St. Louis, in 1904, the year of the great exposition, a merger of the two national organizations brought forth the American Civic Association which, since that time, has carried on with increasing success and popular support the greatly needed work for a 'More Beautiful America'; and since that time it has been recognized as the one great national agency for the furtherance of that work. With its purpose as stated in its constitution clearly before it, it has constantly widened the circle of its usefulness until recently they were grouped under fifteen general departments, each department headed by an expert in his or her particular specialty.

"In classifying its varied activities, the Association announces that it aims 'to make American living conditions clean, healthful, attractive; to extend the making of public parks; to promote the opening of gardens and playgrounds for children and recreation centers for adults; to abate public nuisances—including objectionable signs, unnecessary poles and wires, unpleasant and wasteful smoking factory chimneys; to make the buildings and the surroundings of railway stations and factories attractive; to extend the practical influence of schools; to protect existing trees and to encourage intelligent tree planting; to preserve great scenic wonders

(such as Niagara Falls and the White Mountains) from commercial spoliation.'

"So vigorously has it pursued these activities that it has seen some of them develop to such proportions that they were ready to swing off from the parent circle into spheres of their own. Such was the case with the playground movement, which for years was fostered most energetically by the American Civic Association until it grew into an independent organization known as the National Playground Association, and which is now an agency of splendid achievements in its one specialized function."

***Richard B. Watrous,
The American Civic Association
(The American City, October, 1909).***

SOCIAL BETTERMENT: A. D. 1907.

The Sage Foundation for the Improvement of Social and Living Conditions.

One of the most notable of gifts from private wealth for the endowment of undertakings to promote the general welfare of mankind was made by Mrs. Russell Sage, in 1907, when she placed a fund of \$10,000,000 in the hands of trustees, to be administered under the name of The Russell Sage Foundation. On the announcement of this endowment, Mrs. Sage, through her counsel, Mr. Henry W. de Forest, authorized the following statement, which explains clearly and fully the purposes contemplated:

"I have set aside \$10,000,000 for the endowment of this foundation. Its object is 'the improvement of social and living conditions in the United States.' The means to that end will include research, publication, education, the establishment and maintenance of charitable and beneficial activities, agencies, and institutions, and the aid of any

such activities, agencies and institutions already established.

"It will be within the scope of such a foundation to investigate and study the causes of adverse social conditions, including ignorance, poverty and vice, to suggest how these conditions can be remedied or ameliorated, and to put in operation any appropriate means to that end. It will also be within the scope of such a foundation to establish any new agency necessary to carry out any of its conclusions, and equally to contribute to the resources of any existing agencies which are doing efficient and satisfactory work, just as the present General Education Board, organized to promote higher education, is aiding existing colleges and universities. While its scope is broad, it should preferably not undertake to do within that scope what is now being done or is likely to be effectively done by other individuals or by other agencies with less resources. It will be its aim to take up the larger and more difficult problems, and to take them up so far as possible in such a manner as to secure co-operation and aid in their solution. In some instances it may wisely initiate movements with the expectation of having them maintain themselves unaided after once being started. In other instances it may start movements with the expectation of carrying them on itself. Income only will be used for its charitable purposes, because the foundation is to be permanent and its action continuous. It may, however, make investments for social betterment, which themselves produce income.

"While having headquarters in New York city, where I and my husband have lived and where social problems are most pressing and complicated, partly by reason of its extent and partly because it is the port of entry for about a million immigrants a year, the foundation will be national in its scope and in its activities. I have sought to select as my trustees men and women who are familiar with social problems and who can bring to their solution not only zeal and interest, but experience

and judgment.

"The bill for incorporation of the endowment further provides: The corporation hereby formed shall have power to take and hold, both by bequest, devise, gift, purchase, or lease, either absolutely or in trust, for any of its purposes, any property, real or personal, without limitation as to amount or value, except such limitation, if any, as the legislature shall hereinafter impose, to convey such property and to invest and reinvest any principal, and deal with, and expend the income of the corporation in such manner as in the judgment of the trustees will best promote its objects."

SOCIAL BETTERMENT: A. D. 1907-1908.

The Pittsburg Survey.

A remarkable Investigation of Living Conditions in a great Industrial Center.

"Under the name of the Pittsburgh Survey, Charities Publication Committee has carried on a group of social investigations in this great steel district. In a sense we have been blue-printing Pittsburgh. Our findings will be published in a series of special numbers ... covering in order:

"I.—The People;

"II.—The Place;

"III.—The Work.

"Full reports are to be published later in a series of Volumes by the Russell Sage Foundation, and, throughout, the text will be reinforced with such photographs, pastel, maps, charts, diagrams and tables as will help give substance and reality to our presentations of fact. ...

{617}

"The Pittsburgh Survey has been a rapid, close range

investigation of living conditions in the Pennsylvania steel district. It has been carried on by a special staff organized under the national publication committee which prints this magazine. It has been financed chiefly by three grants, of moderate amount, from the Russell Sage Foundation for the Improvement of Living Conditions. It has been made practicable by co-operation from two quarters,—from a remarkable group of leaders and organizations in social and sanitary movements in different parts of the United States, who entered upon the field work as a piece of national good citizenship; and from men, women and organizations in Pittsburgh who were large-minded enough to regard their local situation as not private and peculiar, but a part of the American problem of city building.

"The outcome has been a spirited piece of interstate co-operation in getting at the urban fact in a new way. ...

"The main work was set under way in September, 1897, when a company of men and women of established reputation as students of social and industrial problems spent the month in Pittsburgh. On the basis of their diagnosis, a series of specialized investigations was projected along a few of the lines which promised significant results. The staff has included not only trained investigators but also representatives of the different races who make up so large a share of the working population dealt with. Limitations of time and money set definite bounds to the work, which will become clear as the findings are presented. The experimental nature of the undertaking, and the unfavorable trade conditions which during the past year have reacted upon economic life in all its phases, have set other limits. Our inquiries have dealt with the wage-earners of Pittsburgh (a) in their relations to the community as a whole, and (b) in their relation to industry. Under the former we have studied the genesis and racial make-up of the population; its physical setting and its social institutions; under the latter we have

studied the general labor situation; hours, wages, and labor control in the steel industry; child labor, industrial education, women in industry, the cost of living, and industrial accidents.

"From the first, the work of the investigations has been directed to the service of local movements for improvement. For, as stated in a mid-year announcement of the Survey, we have been studying the community at a time when nascent social forces are asserting themselves. Witness the election of an independent mayor three years ago, and Mr. Guthrie's present fight to clear councils of graft. Within the field of the Survey and within one year, the Pittsburgh Associated Charities has been organized; the force of tenement inspectors has been doubled and has carried out a first general housing census, and a scientific inquiry, under the name of the Pittsburgh Typhoid Commission, has been instituted into the disease which has been endemic in the district for over a quarter of a century. A civic improvement commission, representative in membership and perhaps broader in scope than any similar body in the country, is now in process of formation.

"A display of wall maps, enlarged photographs, housing plans, and other graphic material was the chief feature of a civic exhibit held in Carnegie Institute in November and December, following the joint conventions in Pittsburgh of the American Civic Association and the National Municipal League. The local civic bearings of the Survey were the subject of the opening session of these conventions. Its economic aspects were brought forward at a joint session of the American Economic Association and the American Sociological Society at Atlantic City in December."

***P. U. Kellogg,
The Pittsburgh Survey
(Charities and the Commons, January 2, 1909).***

See (in this Volume),
CRIME AND CRIMINOLOGY;
CHILDREN, UNDER THE LAW;
LABOR PROTECTION, ETC.;
MUNICIPAL GOVERNMENT;
PUBLIC HEALTH;
POVERTY, PROBLEMS OF;
ENGLAND: A. D. 1907-1908.

SOCIAL DEMOCRATS.

See (in this Volume)
SOCIALISM: ENGLAND, AND FRANCE;
also GERMANY: A. D. 1903;
RUSSIA: A. D. 1905-1907;
DENMARK: A. D. 1906.

SOCIAL REVOLUTIONISTS.

See (in this Volume)
RUSSIA: A. D. 1905-1907, and 1906-1907.

SOCIALISM: AT LARGE: A. D. 1909. The Socialist Press in all Countries.

According to a list of the Socialist Press, in the world at large, published in November, 1909, by the International Bureau of Socialists, at Brussels, fifty-seven Socialist daily newspapers are published in Germany. English Socialists have three weekly publications, and one that appears monthly. There is a daily Socialist journal in the Argentine Republic, a weekly review in Australia, and in Austria two daily publications and a bi-weekly review. The Socialists in Belgium publish four daily organs; those of Bulgaria support two bi-weekly reviews; and those of Canada one weekly review. One daily Socialist newspaper circulates in Denmark, and four

weekly publications in Spain. In the United States there are four daily and eight weekly publications and a monthly magazine. France has two daily Socialist newspapers and ten weekly Socialist periodicals. In Greece the Socialists support a weekly publication, in Holland a daily one, and in Hungary both a daily and a weekly one. In Italy there are four daily Socialist newspapers; and a single one in Norway, Poland, and Sweden respectively. Socialists living in Switzerland have three daily and three weekly organs; while those in Russia have 20 monthly or bi-monthly ones, most of which are published secretly. In Rumania and Sweden there are also Socialist publications.

SOCIALISM: AUSTRALIA:

Government Ownership of Railways.

See (in this Volume)

RAILWAYS: AUSTRALIA.

SOCIALISM: AUSTRIA: A. D. 1903.

Adoption of a Resolution against Alcoholic Drinking by the National Convention of the Social Democracy.

See (in this Volume)

ALCOHOL PROBLEM: AUSTRIA.

SOCIALISM: BELGIUM: A. D. 1904.

Socialist Losses in the Belgium Elections.

See (in this volume)

BELGIUM: A.D. 1904.

SOCIALISM: DENMARK: A. D. 1905-1909.

Socialists Contending for Disarmament.

See (in this Volume)

DENMARK: A. D. 1905-1909.

{618}

SOCIALISM: ENGLAND: A. D. 1909.

The Principal Socialist Organizations of the Present Day. --

"There are four principal organizations actively engaged in gaining adherents to the cause of Collectivism as a practical policy, all over the kingdom. They are:

- (1) The Social Democratic Party, formerly Social Democratic Federation, and familiarly known as S. D. F.;
- (2) the Fabian Society;
- (3) the Independent Labour Party or I. L. P.;
- (4) the Clarion Fellowship and Scouts.

There are several others of minor importance, though not to be ignored, for they all represent the spread of the central idea of Socialism. Among them is the Church Socialist League, which is significant as being a society of convinced Socialists within the Church of England holding that the 'community should own the land and capital collectively and use them co-operatively for the good of all.'"

The oldest organization "began as the Democratic Federation in 1881, became the Social Democratic Federation in 1883, and has recently changed its name to the Social Democratic Party. Its object, according to the programme as revised in 1906, is:

"'The socialization of the means of production, distribution, and exchange, to be controlled by a democratic State in the interests of the entire community, and the complete emancipation of labour from the domination of capitalism and landlordism, with the establishment of social and economic equality between the sexes.'

"It demands a large number of 'immediate reforms,' including the following:

"Abolition of the Monarchy.
Abolition of the House of Lords.
Payment of members of Parliament and administrative bodies.
Adult suffrage.
Referendum.
Legislative and administrative independence for all parts of the Empire.
Repudiation of the National Debt.
Abolition of indirect taxation and a cumulative tax on all incomes exceeding £300.
Elementary education to be free, secular, industrial, and compulsory for all classes.
Age for school attendance to be raised to 16.
State maintenance of all school children.
Abolition of school rates.
Nationalization of land, of trusts, railways, docks, and canals.
Public ownership of gas, electric light, water supply, tramways, omnibuses, &c., food and coal supply;
State and municipal banks, pawnshops, restaurants, public ownership of hospitals, cemeteries, and the drink traffic.
A legal eight-hours day;
no employment under 16 years;
public provision of work for unemployed at trade union rates;
free State insurance against sickness, accident, old age, and disability;
a **minimum** wage of 30s. a week;
equal rates of pay for both sexes.
Compulsory construction of healthy dwellings by public bodies.
Free administration of justice and legal advice.
Judges to be 'chosen by the people.'
Abolition of capital punishment.
Disestablishment and disendowment of all State Churches.
Abolition of standing armies and establishment of

national citizen forces. ...

"The Social Democratic Party is the most downright and straightforward of the larger Socialist organizations. It is more outspoken and consistent, less hazy and opportunist, than the Independent Labour Party or the Fabian Society. It derives its inspiration from the Social Democrats of Germany and boldly upholds the ideal of revolutionary Socialism."

The Fabian Society, which comes next "in point of age, is at the opposite end of the scale in regard to policy. It was founded in 1884, on American inspiration, as a sort of mutual elevation society, but adopted Socialistic principles from Germany. Its 'basis' is thus stated:

"'The Fabian Society consists of Socialists. It therefore aims at the reorganization of society by the emancipation of land and industrial capital from individual and class ownership and the vesting of them in the community for the general benefit. In this way only can the natural and acquired advantages of the country be equitably shared by the whole people.

"'The society accordingly works for the extinction of private property in land and of the consequent individual appropriation, in the form of rent, of the price paid for permission to use the earth, as well as for the advantages of superior soils and sites.

"'The society further works for the transfer to the community of the administration of such industrial capital as can conveniently be managed socially.'

"It is not surprising that thorough-going Socialists denounce the Fabians as make believe, Socialism-and-water 'comrades,' and hardly worthy to be called 'comrades' at all, an honour which the Fabians, for their part, show no desire to claim. Nevertheless, the Fabians are a very influential element in

the Socialist movement. ... The Fabian Society is numerically small, but growing rapidly, and that largely by the formation of provincial branches. The headquarters are in London, where it had in March last [1908] 1085 members out of a total of 2015. ... Eleven Fabians are members of Parliament, and the society supports the Labour party; but its real work lies outside of politics, and is carried on chiefly by the distribution of literature and by lectures. It contains several well-known writers, and may almost be called a literary society. The output of tracts and leaflets sold and distributed last year was over 250,000. ... Among the best-known Fabians are Mr. Granville Barker, the Reverend R. J. Campbell, the Reverend Stewart D. Headlam, Mr. Chiozza-Money, M. P., Mr. Bernard Shaw, Mr. Sidney Webb, and Mr. H. G. Wells, who has, however, recently seceded. Many members belong also to other Socialist organizations. ...

"The third large organization on the list is the Independent Labour Party. It is considerably younger than the Social Democratic Party and the Fabian Society, but much larger and politically far more powerful than either or both together. In character it comes between them, being more opportunist and supple than the former, less nebulous and elusive than the latter. It was formally inaugurated at Bradford in 1893, under the leadership of Mr. Keir Hardie. The following are the principal [demands] in the official prospectus, revised for 1908-1909:

"1. A **maximum** of 48 hours working week, with the retention of all existing holidays and Labour Day, May 1, secured by law.

"2. The provision of work to all capable adult applicants at recognized trade union rates, with a statutory **minimum**, of sixpence per hour.

"In order to remuneratively employ the applicants, parish, district, borough, and county councils to be invested with powers to

(a) Organize and undertake such industries as they may consider desirable.

(b) Compulsorily acquire land; purchase, erect, or manufacture buildings, stock, or other articles for carrying on such industries,

(c) Levy rates on the rental values of the district and borrow money on the security of such rates for any of the above purposes.

"3. State pensions for every person over 50 years of age, and adequate provision for all widows, orphans, sick, and disabled workers.

"4. Free secular, moral, primary, secondary, and University education, with free maintenance while at school or University.

"5. The raising of the age of child labour, with a view to its ultimate extinction.

"6. Municipalization and public control of the drink traffic.

"7. Municipalization and public control of all hospitals and infirmaries.

"8. Abolition of indirect taxation and gradual transference of all public burdens on to unearned incomes with a view to their ultimate extinction.

"The Independent Labour Party is in favour of adult suffrage,

with full political rights and privileges for women, and the immediate extension of the franchise to women on the same terms as granted to men; also triennial Parliaments and second ballot.' ...

"The most prominent individuals in the Independent Labour Party are Mr. Keir Hardie, M. P., its father and guide; Mr. Ramsay Macdonald, M. P., who pulls the political strings; Mr. Philip Snowden, M. P., who is an active pamphleteer; and Mr. Bruce Glasier, who edits the ***Labour Leader***. This organization, by far the most important in Great Britain, takes much less part in international Socialism than the Social Democratic Federation, with which it has never agreed very well. ...

"The 'Clarion' organizations, - which make the fourth of the more important Socialist organizations, need only a brief mention here. They are not regular societies, like the others, but merely propagandist agencies organized by the ***Clarion*** newspaper and manned by Socialists who belong to other bodies or to none. ... The agencies include the ***Clarion*** vans, which travel round the country and proselytize; the ***Clarion*** fellowship societies, which are social bodies, and the ***Clarion*** scouts, who are young recruits, organized for special purposes."

***From a series of Articles on
"The Socialist Movement in Great Britain,"
in the London Times, January, 1909.***

SOCIALISM:

Work of the Anti-Socialist Union.

An Anti-Socialist Union in Great Britain is conducting a training school for speakers and workers whom the union sends into the constituencies to controvert the arguments of Socialist orators. Of the 175 students who entered the

training school soon after the inauguration of the union in 1908 about 50 were reported the next year as qualified to take an active part in the anti-Socialist campaign. In reply to an appeal for volunteers, nearly 2,000 applications were received from men and women who were anxious to enter the training school.

SOCIALISM: FRANCE:

The Trade Union Version of Socialism.

See (in this Volume)

LABOR ORGANIZATION; FRANCE: A. D. 1884-1909.

SOCIALISM: A. D. 1909.

The Classes to which the Socialist Principle appeals.

Strength of Socialist Political Parties.

Their Leadership.

"The agriculturist loves the land which he usually owns, and would scout the idea of becoming a farmer under the State, which would be his position under a Socialistic regime; he is frugal, hard-working, and thrifty to the point of avarice, but intolerably narrow, suspicious and bigoted. Among this class Socialism can hardly make proselytes, nor can it do so to any great extent among tradesmen and commercial men, who are either their own masters or who hope to set up for themselves when they have amassed a small capital. We therefore find ourselves reduced to two classes, the artisans and the professions, and it is among these that we must seek the Socialist voters of France. ... In France, thanks to the fact that members of Parliament are paid, the professional classes are available for the recruiting of labour leaders; indeed the younger section is naturally attracted to the Socialist standard. As regards this particular class, we can find in Great Britain no parallel. ... Young Britons appear to be too busy with their sports or social pleasures to study political questions, so that we can hardly compare them with the

continental 'Intellectuals.' The 'Intellectual' is essentially a product of modern Europe and is principally to be found in France, Germany and Russia. He is almost invariably highly educated, in sympathy with foreign progress, a humanitarian and imbued with ideas either somewhat or very much ahead of his time. The French 'Intellectual' is at his best in the twenties; he may then be quixotic, but he generally knows his subject and is fired with generous enthusiasms. ... This curious factor must never be lost sight of when the Socialist movement in any European country is examined. In Great Britain members of the educated classes almost invariably belong to one of the two great political parties; but in France they are willing to join hands with the masses, not only as leaders, but with a view to the true enthronement of the people. It is probably for this reason that the Socialist party has made so much headway in France. Such being the soldiers and officers who march under the Red Flag, it is not surprising that their political organisation should have grown so powerful. The Socialist party has hardly suffered from the ups and downs of political life; every election has sent it back to power with a greater number of seats to its credit; at the present time the party has 74 representatives in the Chamber of Deputies, to whom we must add, in certain cases, 135 Radical Socialists. ... The 'Unified Socialists' of the uncompromising type hold 53 seats, and the Independent Socialists 21; if we add these two figures to the 135 Radical Socialists, we find that they form a considerable portion of the 591 members. Though they have not an absolute majority, the weight of these 209 advanced votes is such as to colour very strongly modern legislation, and there is no reason to doubt that their progress will continue up to a certain point."

***W. L. George,
France in the Twentieth Century,
chapter 8 (John Lane Co., New York, 1909).***

SOCIALISM: Germany: A. D. 1902.

The Socialist Congress on Alcoholic Drinks.

See (in this Volume)

ALCOHOL PROBLEM: GERMANY.

SOCIALISM: A. D. 1903.

Gains of the Socialists in Elections to the Reichstag.

See (in this Volume)

GERMANY: A. D. 1903, and 1906-1907.

{620}

SOCIALISM: A. D. 1903.

Opposition among Workmen.

A great Congress of 200 delegates from bodies of German workingmen opposed to Socialism, said to represent a total of 620,000, was held in October, 1903, at Frankfort-on-the Main. Its object was to promote effective organization of workmen, to which end it appealed to "all unorganized German workmen to join those industrial organizations which do not make enmity between the classes their principle."

SOCIALISM: A. D. 1908.

Socialists win Seats in the Prussian Diet for the First Time.

See (in this Volume)

PRUSSIA: A. D. 1908.

SOCIALISM: A. D. 1909.

Statistics reported to the Socialist Congress.

The annual report to the Socialist Congress at Leipzig stated that the German Social Democratic party has a membership of 571,050 men and 62,259 women—total 633,309. The number of men had increased during the past year by 13,172, and the number

of women by 32,801. There are said to be now only 20 Reichstag constituencies in which there is no Socialist organization.

See (in this Volume)

GERMANY: A. D. 1909 (OCTOBER-DECEMBER).

SOCIALISM: Italy: A. D. 1904.

Gains in the Election claimed by the Socialists.

See (in this Volume)

ITALY: A. D. 1904 (OCTOBER-DECEMBER).

SOCIALISM: A. D. 1909.

Gains in Italian Elections.

See (in this Volume)

ITALY: A. D. 1909 (MARCH).

SOCIALISM: NEW ZEALAND.

Government Ownership of Land.

Graduated Taxation.

Public Loans to Farmers.

See (in this Volume)

NEW ZEALAND: A. D. 1905.

SOCIALISM: SPAIN: A. D. 1909.

Socialist-Republican Alliance.

See (in this Volume)

SPAIN: A. D. 1907-1909.

SOCIALISM: UNITED STATES: A. D. 1902.

Socialist Platform adopted by the Western Federation of Miners.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D). 1899-1907.

SOCIALISTIC POLITICAL PARTIES.

See (in this Volume)
PARTIES, POLITICAL.

SOKOTO:

British, Capture and Occupation.

See (in this Volume)
AFRICA: A. D. 1903 (NIGERIA).

SOMALILAND.

See (in this Volume)
AFRICA: SOMALILAND.

SONE, Viscount:

Japanese Resident-General in Korea.

See (in this Volume)
KOREA: A. D. 1905-1909.

SONNINO, BARON: PRIME MINISTER OF ITALY.

See (in this Volume)
ITALY: A. D. 1906-1909.

SOUDAN.

See (in this Volume)
SUDAN.

SOUFFRIÈRE, LA: VOLCANIC ERUPTION OF.

See (in this Volume)

VOLCANIC ERUPTIONS: WEST INDIES.

-----SOUTH AFRICA: Start-----

SOUTH AFRICA:

Suitable and Unsuitable Parts of South Africa for European Settlement.

See (in this Volume)
AFRICA.

SOUTH AFRICA: A. D. 1901-1902.

The Last Year of the Boer-British War.

The Concentration Camps.

Kitchener's Block-house System and Protected Areas.

The Opening of Negotiations for Peace.

Text of the Treaty concluded.

When Volume VI. of this work went to press, in April, 1901, and its record of events was closed, the dreadful Boer-British War had still a little more than another year to be prolonged through; but it was to be, as it had been throughout the past year, a sheerly destructive prosecution of guerrilla warfare by separate bands of the indomitable Boers. The operations of such warfare,—its raids, its counter "drives," its little battles and skirmishes, its captures and recaptures, its breaking of railway lines, and the like,—cannot be detailed in a work like this. Nothing of any decisive effect was done at any time, on either side, to constitute an important event in the war. There was simply a wearing process in operation which went on, in an inexorable and horrible slow way, till the country on which it worked was a desert, and the endurance of its surviving people was worn out.

In November, 1900, Lord Kitchener had succeeded Lord Roberts in the British command. He decided to empty the contested regions of their non-combatant population, by gathering it

into "concentration camps," thus resorting to a measure which the Spaniards had employed in Cuba, and which the Americans had copied from them in the Philippines. Accordingly, on the 21st of December, 1900, he had issued to general officers a "Memorandum" in which he said:

"Lord Kitchener desires that General Officers will, according to the means at their disposal, follow this system in the Districts which they occupy or may traverse. The women and children brought in should be camped near the railway for supply purposes, and should be divided in two categories, viz.: 1st. Refugees, and the families of Neutrals, non-combatants, and surrendered Burghers. 2nd. Those whose husbands, fathers, and sons are on Commands. The preference in accommodation, &c., should of course, be given to the first class. The Ordnance will supply the necessary tents and the District Commissioner will look after the food on the scale now in use.

"It should be clearly explained to Burghers in the field, that, if they voluntarily surrender, they will be allowed to live with their families in the camps until it is safe for them to return to their homes."

In "The Times History of the War in South Africa" it is remarked on this order: "The policy was inspired by two motives. In the first place, it was supposed that the removal of the families would induce fighting Boers to surrender, and would thus shorten the War. In the second place, it was a measure of humanity towards the unprotected occupants of lonely farms. The decision was taken somewhat lightly. In its primary object it failed absolutely. Far from providing an inducement to surrender, it lifted from the fighting burghers a load of embarrassment. To the British, military consequences were disastrous. To the Boers the gain was twofold. On the shoulders of their enemy lay the heavy tasks of removal and maintenance, involving enormous expense and a grave hindrance

to military operations, while they themselves, relieved of all responsibility for their women and children, were free to devote their energies with a clear conscience to the single aim of fighting.

{621}

While one of the British aims was signally defeated, the other, that of humanity, was at first only partially attained. The scheme for the concentration camps was lacking in foresight. Adequate provision was not made for the hosts of refugees requiring shelter. The regular medical and sanitary staff were already fully occupied with the needs of the army, and men were lacking for the organisation and supervision of the camps. Sites chosen on purely military grounds often proved wholly unsuitable. Too much reliance was placed on the capacity for self-help to be shown by the Boers themselves, and the Boers proved to be helpless, utterly averse to cleanliness and ignorant of the simplest elements of medicine and sanitation. The result was that for a certain period there was a very high rate of mortality among these unfortunate people."

***The Times History of the War in South Africa,
Volume v., chapter 3
(Low, Marston & Co., London).***

With better success Kitchener adopted and steadily perfected a block-house system, by which lines of barrier were drawn across the country in different directions, and protected areas were formed. The system and its working are thus described in the history quoted above:

"One of the first reforms undertaken by Kitchener when he assumed command in South Africa was the strengthening of the railways. At that time the defences of the lines were of the simplest description, consisting almost wholly of open trenches at stations, bridges and culverts, while the line itself was patrolled by small parties of mounted men. In

laying out these trench defences, the principal object kept in view was to render them inconspicuous and thus immune from artillery fire. The system required enormous numbers of men both for patrol work and for manning the long lines of trenches. ... It was clear that some form of permanent or semi-permanent defence must be adopted, if security was to be gained and the railway guards reduced. Early in January, accordingly, the first blockhouses were constructed. ...

"Planted at first only at stations, bridges, culverts, important cuttings and curves—at the points, in fact, which experience had proved to be most vulnerable—blockhouses came to be established at regular intervals of about a mile and a half down the whole extent of a line. This interval was steadily lessened. Ultimately it became as small as 400 yards on the Delagoa line and was reduced even to 200 yards on some portions of the Cape railways. A continuous fencing of barbed wire ran along the line; elaborate entanglements surrounded each blockhouse, and the telephone linked up the whole system. A somewhat later development was a deep trench bordering the line of barbed wire and running to within 100 yards of each blockhouse. ...

"Until July the system was confined to the railways; but in July the idea first took definite shape of throwing blockhouse lines across country, and thus creating fenced areas of manageable size within which the Boers could be dealt with piece-meal. It is important to note that these lines almost invariably followed roads, which thus became to all intents and purposes as safe as railways. In other words, a great number of additional lines of communication were opened up and secured, and the striking power of the army proportionately increased. ...

"While a thousand yards, or thereabouts, was the usual interval between cross-country blockhouses, the rule was invariably followed that each must be in sight of its

neighbour on either side. The wire fence spanning this interval always ran in the form of an obtuse angle, so that fire could be directed along it from both ends without risk to either blockhouse. In order to secure accurate fire in the dark, rests were provided for the correct alignment of rifles. Ordinary barbed wire was used at first, but the Boers became such adepts at cutting it that a quarter-inch unannealed steel wire, specially manufactured in England, had to be substituted. In Cape Colony, an eight-strand cable, manufactured in special 'rope walks' established at Naauwpoort, was largely used. Not to be daunted, the Boers took to uprooting the stays and levelling the fence bodily. The stays, accordingly, had to be anchored securely to heavy rocks sunk deep in the ground. As on the railways, alarms of all sorts were devised to give the garrisons notice of an attempt to tamper with the fence. A spring-gun would fire, dangling biscuit tins would rattle, a weight would drop in the blockhouse, and on any such signal the garrison would fire down the line of the fence. But, when all precautions were taken, it was impossible, on dark nights, to prevent determined bodies of Boers from passing the barrier. The passage could be made dangerous and difficult; that was all. ... Exaggerated hopes were built on the efficacy of the lines as barriers to determined men. ... The Boers, for a long time to come, viewed with disdain the eruption of tiny forts. It was only by degrees that they awoke to the realization that they were taken like flies in a spider's web. ... Communication between commanders became more and more difficult; concentrations on a large scale impossible.

"The ramifications of the blockhouse system and the slow formation of protected areas were not the only signs that the day of conquest was approaching. Within these areas, under the able and energetic administrations of Lord Milner, who returned to South Africa in August, and, in the Orange River Colony, of the Deputy Administrator, Sir H. Goold-Adams, marked progress was beginning to be made in the establishment

of civil industry and in administrative reconstruction. ...

"With regard to the Boer non-combatant population, an important modification of policy was initiated in December. Orders were issued to all columns that no more families, save those in actual danger of starvation and those belonging to a privileged class, ... were to be brought into the concentration camps. Since most of the accessible farms had already been emptied, the order applied mainly to the women and children who had preferred, in defiance of hardship, to accompany the commandos and who lived in nomadic laagers. The Boers, however much they had railed in the past against the inhumanity of the camps, were soon to realise and admit the essential humanity of the concentration system. The embarrassment and anxiety caused by the helpless non-combatants in their midst was to grow day by day.

{622}

Finally, at the Vereeniging Conference, the truth received frank and undisguised expression. 'To-day,' said Botha, 'we are only too glad to know that our women and children are under British protection.' The wretchedness of those who remained on the veld became, indeed, a powerful argument for submission."

***The Times History of the War in South Africa,
chapters 10, 11, 14
(London, Low, Marston & Co.).***

It was not until March, 1902, that the men of authority on both sides of the war began to give tokens of a mutual disposition to discuss terms of peace. In the previous January, the government of the Netherlands had offered to act as intermediary between Great Britain and the Boers, and the proffer had been declined, the British government repeating its determination to accept no foreign intervention. At the same time it was suggested that, inasmuch as Mr. Steyn and Mr. Schalk Burger, the chiefs of the Orange Free State and of the

Transvaal burghers, respectively, were understood to be invested with full powers of government, including the power of negotiation, those gentlemen could open, if they wished, direct communication with Lord Kitchener, who had already been instructed to forward to his government any offers that he might receive. On the 7th of March this correspondence was sent by Lord Kitchener, without comment, to the Transvaal government, then established at Stroomwater. The suggestion in it was rightly taken as an invitation, and acting President Schalk Burger at once asked for a safe-conduct for himself and the other members of his government into the British lines, with intimations of a wish for opportunity to meet the members of the Free State government, in order that they might concert proposals for peace. His wishes were readily complied with. On the 22d he entered the British lines, and all possible aid was given him in getting together the men whom he wished to consult. Some were brought away from active fighting, which went on without them, no pause on the military side being permitted for a single day, while the parleying of a month went on.

The Transvaal and Free State governments met on the 9th of April, at Klerksdorp, under British safe-conduct, and, after debate among themselves on that day and the next, sent a telegram to Lord Kitchener, requesting him to meet them and receive from them a proposal of peace. He replied promptly, inviting them to his headquarters at Pretoria, and there they were received on April 12th. Their proposal was on the basis of political independence for the two Boer states, under "an enduring treaty of friendship and peace" with the British government, as well as a customs, postal and railway union with the adjoining British colonies, and with concessions of the franchise to Uitlanders in the Transvaal. Kitchener could give no consideration to a proposal of this nature; but consented, after much discussion to cable it to London. At a second meeting on the 14th (when Lord Kitchener was joined by Lord Milner, the British High Commissioner in South Africa) he

had the answer of the British government to produce. It declared with emphasis that the government could not "entertain any proposals based on the continued independence of the former republics, which have been formally annexed to the British Crown." To this the Boer officials replied that they had no power to negotiate on any other basis than that of independence, and they asked for an armistice, to enable them to consult their people. This was refused, but, after some parleying, it was arranged that they should have free use of the railway and telegraph, and that military operations should be so conducted as to allow opportunities for meetings in all parts of the country, at which thirty burghers from each republic should be elected, with authority to act for the people. These representatives were to meet on the 15th of May, at Vereeniging, to determine the answer they would give. Between the 11th and the 15th of May immunity was promised to all commandos whose leaders should be chosen as representatives, and this practically operated as an armistice during those days.

"History records no precedent," says The Times History of the War, "for the state of affairs which existed in South Africa between April 18 and May 15, 1902. War went on, but, to borrow a metaphor from football, the ball of war was continually rolling into 'touch.' Kitchener loyally carried out his undertaking to the Boer leaders. Commandos were allowed to assemble and confer unmolested; officers and messengers scoured the country by road and railway with free passes, passing through British outpost lines, receiving the unstinted hospitality of their foes, and occasionally, to the chagrin of a junior British officer, undergoing accidental capture, followed by immediate release on the production of the magic pass. Steyn, indeed, was too ill to take part in all this activity and had retired to a farm near Wolmaransstad. But De Wet, with amazing energy, travelled over the whole of the Free State, inspiring the burghers with his leader's fiery spirit. At eight successive meetings he personally addressed

practically the whole of the commandos and secured unanimous resolutions against any surrender of independence. The Transvaal leaders were scarcely less active, though the purport of their activity was by no means the same." These chiefs of the Transvaal, Louis Botha and others, were disposed to end the struggle for independence; those of the Free State, inspired by their unconquerable President, were not.

On the 15th of May the officials of the two Boer governments met the sixty delegates from the burghers at Vereeniging, and the question between surrender and a hopeless continuation of war was threshed out. The Free State delegates and a few of the Transvaalers had been bound by pledges to vote against any surrender of independence; but in the end they were persuaded by their own legal advisers that such a restriction on the free action of a delegate was contrary to the principles of law; and gradually the question of independence gave place to other matters of consideration in the discussion of terms. On the 19th a sub-committee was appointed to consider those details, and several days of bargaining with Kitchener and Milner, at Pretoria, ensued. There was much use of the cable meantime, to secure assent in London to what might be done. The result was a draft treaty which Lord Milner assured the Boer Commissioners was absolutely final, and must be accepted or rejected without any change, on or before the 31st of May.

{623}

They took it to the convention at Vereeniging on the 29th, and there, in two days of stormy debate, the no-surrender party, led by Steyn and De Wet, made their last stand. When the decisive vote was taken, their ranks were reduced to six, against fifty-four. The Boer commissioners returned at once to Pretoria, with the accepted draft-treaty, and it was signed on the night of the 31st, a little less than an hour before the expiration of the fixed term of grace. The following is the text of this treaty, which ended one of the worst of modern wars:

"General Lord Kitchener of Khartoum, Commander-in-Chief, and His Excellency Lord Milner, High Commissioner, on behalf of the British Government;

"Messrs. S. W. Burger, F. W. Reitz, Louis Botha, J. H. De la Rey, L. J. Meyer, and J. Krogh on behalf of the Government of the South African Republic and its burghers;

"Messrs. M. T. Steyn, W. J. C. Brebner, C. R. de Wet, J. B. M. Hertzog, and C. H. Olivier, on behalf of the Government of the Orange Free State and its burghers, being anxious to put an end to the existing hostilities, agree on the following points:

"Firstly, the burgher forces now in the Veldt shall at once lay down their arms, and surrender all the guns, small arms, and war stores in their actual possession, or of which they shall have cognizance, and shall abstain from any further opposition to the authority of his Majesty King Edward VII., whom they shall acknowledge as their lawful sovereign.

"The manner and details of this surrender shall be arranged by Lord Kitchener, Commandant-General Botha, Assistant Commandant-General J. H. De la Rey, and Commander-in-Chief de Wet.

"Secondly, burghers in the Veldt beyond the frontiers of the Transvaal and of the Orange River Colony, and all prisoners of war who are out of South Africa, who are burghers, shall, on their declaration that they accept the status of subjects of His Majesty King Edward VII., be brought back to their homes, as soon as transport and means of existence can be assured.

"Thirdly, the burghers who thus surrender, or who thus return, shall lose neither their personal freedom nor their property.

"Fourthly, no judicial proceedings, civil or criminal, shall

be taken against any of the burghers who thus return for any action in connexion with the carrying on of the war. The benefit of this clause shall, however, not extend to certain deeds antagonistic to the usages of warfare, which have been communicated by the Commander-in-Chief to the Boer generals, and which shall be heard before a court-martial immediately after the cessation of hostilities.

"Fifthly, the Dutch language shall be taught in the public schools of the Transvaal and of the Orange River Colony when the parents of the children demand it; and shall be admitted in the Courts of justice, whenever this is required for the better and more effective administration of justice.

"Sixthly, the possession of rifles shall, on taking out a licence in accordance with the law, be permitted in the Transvaal and the Orange River Colony to persons who require them for their protection.

"Seventhly, military administration in the Transvaal and in the Orange River Colony shall, as soon as it is possible, be followed by civil government; and, as soon as circumstances permit it, a representative system lending towards autonomy shall be introduced.

"Eighthly, the question of granting a franchise to the natives shall not be decided until a representative constitution has been granted.

"Ninthly, no special tax shall be laid on landed property in the Transvaal and Orange River Colony to meet the expenses of the war.

"Tenthly, as soon as circumstances permit there shall be appointed in each district in the Transvaal and the Orange River Colony a Commission, in which the inhabitants of that district shall be represented, under the chairmanship of a

magistrate or other official, with a view to assist in the bringing back of the people to their farms, and in procuring for those who, on account of losses in the war, are unable to provide for themselves food, shelter, and such quantities of seed, cattle, implements, etc., as are necessary for the resuming of their previous callings.

"His Majesty's Government shall place at the disposal of these Commissions the sum of £3,000,000 for the above-mentioned purposes, and shall allow that all notes issued in conformity with Law No. 1, 1900, of the Government of the South African Republic, and all receipts given by the officers in the Veldt of the late Republics, or by their order, may be presented to a judicial Commission by the Government, and in case such notes and receipts are found by this Commission to have been duly issued for consideration in value, then they shall be accepted by the said Commission as proof of war losses suffered by the persons to whom they had originally been given. In addition to the above-named free gift of £3,000,000, His Majesty's Government will be prepared to grant advances, in the shape of loans, for the same ends, free of interest for two years, and afterwards repayable over a period of years with three per cent. interest. No foreigner or rebel shall be entitled to benefit by this clause."

The following military statistics of the War, as conducted on the British side, were published in a Parliamentary paper soon after its close:

The garrison in South Africa on August 1st, 1899, consisted of 318 officers and 9,622 men; reinforcements sent between then and the outbreak of hostilities, October 11th, 1899, totaled 12,546. Thereafter the troops sent up to May 31st, 1902, reached the great total of 386,081, besides 52,414 men raised in South Africa. The final casualty figures are: Killed, 5,774; wounded, 23,029; died of wounds or disease, 16,168.

A return made to Parliament in April, 1902, of the estimated amount of war charges in South Africa that had been and would be incurred up to the 31st of March, 1903, gave the following figures:

For the first year of the war (1899-1900), £23,217,000; for the second year, £65,120,000; for the third year, £71,037,000; for the year in which it ended, £63,600,000. Total, £222,974,000.

SOUTH AFRICA: A. D. 1902.

Cape Colony and Natal at the Colonial Conference, London.

See (in this Volume)
BRITISH EMPIRE.

{624}

SOUTH AFRICA: A. D. 1902-1903.

Repatriation and Resettlement of the Boers in
the Transvaal and Orange River Colony.

Work of the first Eight Months of Restored Peace.

The following passages from a report dated March 14, 1903, made by Governor Viscount Milner to Mr. Chamberlain, British Secretary for the Colonies, will give some intimation of the task of reconstruction and restoration which the war had imposed on the victors, and the vigor with which it was performed:

"The Terms of Surrender were signed at Pretoria on the 31st May, 1902, but the Civil Government could not really begin to take over the administration of the new Colonies, and especially the country districts, for nearly a month after that date. At Lord Kitchener's request no attempt was made to enter into possession of those districts until after the surrender of the Commandos, and though that surrender was

accomplished with extraordinary celerity and smoothness, something like three weeks elapsed before any Civil officer could even set out for the house or tent, generally a tent, allotted to him in the wilderness which we were about to take over, devoid, as it was, of crops, of stock, of population, and, to a large extent, of habitable dwellings. The period over which this review extends is, therefore, one of about eight months—from the end of June, when the work of restoration commenced, till the end of February. ...

"To begin with the Prisoners of War. The Vereeniging Terms entitled something over 33,000 people to be restored to liberty, and if they happened to be burghers imprisoned outside South Africa, to be brought back to their homes as soon as transports could be provided and their means of subsistence assured. Of this large number upwards of 24,000 were in prisoners' camps in St. Helena, Bermuda, India and Ceylon; upwards of 1,000 were in a prisoners' camp, at Simons Town, and about 1,200 were prisoners elsewhere in South Africa. Of the rest the great majority had been allowed to live in Concentration Camps, while the balance were on parole in different parts of South Africa and a few in Europe. The principal difficulty in connection with the prisoners was, of course, the bringing back and distribution of the 24,000 odd, who were at prisoners' camps oversea. ...

"The prisoners of war, on their return to South Africa, were, in the first place, with few exceptions, sent to the Concentration Camps of their respective districts, there to rejoin their families, if they had them, and to return together with them to their homes. They thus, in the majority of cases, helped to swell the enormous number of people for whom the Repatriation Departments of the two colonies had to provide the means of transport to their homes, and, as a general rule, the means of subsistence for months after such return, as well as the seeds, instruments and animals necessary to enable them to raise a crop. ... In the eight and a

half months that we have been at work, we have restored about 200,000 of the old Burgher population in the two Colonies to their homes, including all the inhabitants in the Concentration Camps in the Transvaal, the Orange River Colony, the Cape Colony and Natal, and the Prisoners of War. ...

"By hook or by crook we had succeeded by the end of 1902, in enabling the people to sow a fairly large mealie crop, besides a considerable amount of forage, potatoes and other vegetables. The change in the attitude of the farming population, about that time, was very noticeable. The extreme depression which characterised them two or three months earlier had almost completely passed away, and they were looking forward to the future with much more hopefulness. I may say that almost the whole time, even when the outlook was blackest, their attitude towards the Government was not otherwise than a friendly one. They showed, with few exceptions, great patience under hardships, and much energy and resourcefulness in making the best of the small means at their disposal."

SOUTH AFRICA: A. D. 1902-1904.

Death of Cecil Rhodes.

Survival of his Influence and his Policy.

Dr. Jameson, as his representative, made Premier of Cape Colony.

On the 26th of March, 1902, two months before the end of the British-Boer war, Cecil J. Rhodes died at Cape Town, and his death removed the most powerful of the personal influences that would have been reckoned on for determining the results of the war. He had been the master-spirit in South Africa for nearly thirty years. Indications of the part he had taken in the expansion of the British dominion in that part of the world, and in the conflict of British with Dutch ambitions which produced the war, will be found in Volume VI. of this work (see, especially, pages 460-466, 470-471, and 475-477, in

that Volume).

Had he lived and been in health there can be no doubt that he would have been a leading actor in the political reconstruction of British South Africa since the war. He had been the Premier of Cape Colony from 1890 to the end of 1895; then his career was clouded by the "Jameson raid" into the Transvaal, and he was forced to resign. But the cloud would have cleared, as it has cleared from Jameson. Indeed, the new career of Dr. Jameson, since 1904, when a general election in Cape Colony brought the party of the Progressives into power, and put the former chief lieutenant of Cecil Rhodes in the place of Sir J. Gordon Sprigg as Prime Minister of the colonial Government, is indicative of the new career that would have opened to Rhodes. It is the Rhodes policy and the Rhodes influence that has prevailed, as was said by Mr. Edward Dicey in an article written at the time:

"When Rhodes' life came to a sudden and melancholy end, Jameson felt the best way he could show his respect for his dead friend was to carry on the work of his lifetime. Amongst the Progressives there were several public men who, in normal circumstances, might have been selected as leaders of the party, but there was a well-grounded conviction that the man who could best carry on Rhodes' policy, with the least breach of continuity, was Jameson. Even the few British colonists who had not altogether condoned the Raid, felt that there was no one so qualified to lead the Progressive Party as the author of the Raid. The result was that Jameson was appointed, by acclamation, the political successor of Rhodes. It was under the new leader that the battle of the general election in the Cape Colony has been fought and won.

{625}

The Progressive majority in the Cape Parliament is small; but, in spite of all disintegrating influences, it may be trusted to hold together till a Redistribution Bill has been passed. When the influence of the Bond was supreme in the Cape

Parliament, the electoral divisions were manipulated in such a manner as to give thinly populated, rural constituencies equal representation with that enjoyed by the comparatively densely populated urban constituencies. This arose from the fact that in the country the Dutch settlers outnumbered the British, while in the town the British composed the vast majority of the electorate. The simplest way to rectify this abuse was to remodel the existing electoral system, by making population the basis of representation. This reform, however, was open to the objection that it practically disfranchised a large number of rural constituencies in which the Boers were in a majority. On Jameson being appointed Prime Minister, after Sir Gordon Sprigg's compulsory retirement, his first step was to introduce a new Redistribution Bill based on a less invidious principle than its predecessor."

***Edward Dicey,
The New Cape Premier
(Fortnightly Review, April, 1904).***

SOUTH AFRICA: A. D. 1903-1904.

The Labor Question.

Investigation and opposing Reports by a Commission.

Adoption of Ordinance to admit Unskilled Non-European Laborers.

Beginning of Importation of Chinese Coolies.

The Political Side of the Question.

Debate in the British Parliament.

Early in 1903 Lord Milner appointed a Commission to investigate and report on the labor question in South Africa, which is a question between the mining people, who maintain that the needful supply of labor for profitable mine-working is not procurable, at rates which mine-owners can afford, from any other than an Asiatic source, and their opponents who deny the need of bringing either Chinese or East Indian coolies into the mining fields. In November the Labor Commission produced a majority and a minority report, the former agreeing

substantially with the mine-owners, the latter in contention with them. The signatures to the majority report were ten in number, the latter were but two. In the discussion of the reports which took place in the Legislative Council of the Transvaal late in the year, one speaker made the statement that he was authorized by General Louis Botha to say that he and all the Dutch he represented were opposed to the introduction of Asiatics. A resolution favoring the introduction of Chinese was adopted in the Council by a vote of 22 to 4.

Ultimately, against the protests of a great majority of the Boer population, an ordinance to regulate the introduction into the Transvaal of unskilled non-European laborers was adopted by the Legislative Council. It applied to males of other races than those indigenous to Africa south of 12 degrees north of the Equator. The ordinance was to be administered by an official superintendent; the laborers were to be brought in by licensed persons only; they were to be employed only in the Witwatersrand district, and only in unskilled labor connected with the production of minerals, and they were to be sent back to the country of their origin, at the expense of their importer, at once on the termination of their contract, which should not be for a longer term than three years, renewable for two more. Provisions as to their treatment, their passport identification, their restricted residence, etc., were very precise and minute. The importation of Chinese coolies under the provisions of this ordinance began in June, 1904. At the end of the year over 20,000 had been brought in.

That the question has its political as well as its industrial side, and is one which concerns democracy no less than labor, is shown in the following: "The political and industrial position of the Rand, and, in some degree of the Transvaal as a whole, is almost unique. The only parallel that comes to mind is that of the town and district of Kimberly. A

considerable European community is dependent—on the Rand entirely, throughout the Transvaal very largely—on a single industry for the maintenance of its prosperity. This dependence necessarily places great power in the hands of the small group of men who are the owners, or represent the owners, of the capital by which the industry has been created and is now worked. Their influence is supreme. No law which threatened their interests could be placed on the Statute Book. Men who offer any effective opposition to their wishes—like Mr. Wybergh, the Commissioner of Mines, Mr. Creswell, the manager of the Village Main Reef Mine, Mr. Moneypenny, the editor of the chief Johannesburg newspaper—find it impossible to retain their positions. Two dangers, and two only, threaten the permanency of this supremacy—the Trade Union and the ballot, the combination of the men employed and the possibility of an unsympathetic majority in the legislature when a system of self government is restored. Both these dangers would be increased in degree, and brought nearer in time, by a large and rapid growth of the white population.

"‘If 200,000 native workers were to be replaced by 100,000 whites,’ said Mr. Rudd, one of the directors of the Consolidated Goldfields Company, ‘they would simply hold the Government of the country in the hollow of their hand, and, without any disparagement to the British labourer, I prefer to see the more intellectual section of the community at the helm!’ ‘ With reference to your trial of white labour for surface work on the mines,’ wrote Mr. Tarbutt, another director of the same important company and the chairman of the Village Main Reef Company, in an often-quoted letter to Mr. Creswell, ‘I have consulted the Consolidated Goldfields people, and one of the members of the board of the Village Main Reef has consulted Messrs. Wernher, Beit and Co., and the feeling seems to be one of fear that if a large number of white men are employed on the Rand in the position of labourers, the same troubles will arise as are now prevalent

in the Australian Colonies, i. e., that the combination of the labouring classes will become so strong as to be able to more or less dictate, not only on questions of wages, but also on political questions, by the power of the votes when a Representative Government is established.'

{626}

There have been other declarations of the same tenour; and, indeed, no one who is acquainted with the views that prevail among the circles of South African finance would seek to deny that this dread of a second Australian democracy influencing the political and economic future of the Rand is one of the chief motives that direct the policy of the more far-sighted men among those groups. ...

"White labour, coupled with improved mechanical appliances, stands established as the feasible remedy for the admitted shortage in the number of Kaffir workers. To reject it in favour of the introduction of Chinese is a policy which has natural attractions for the owners of the mines. It is a policy which should not have won the support of the representatives of the British people."

***Herbert Samuel,
The Chinese Labour Question
(Contemporary Review, April, 1904).***

The bringing of Asiatic laborers into the mines was resisted as strenuously in Cape Colony as by the Boer burghers and the non-mining interests in general of the Transvaal. The leading colony addressed a petition on the subject personally to King Edward, saying: "Such an immigration, hampered and restricted as it is proposed to be by stringent regulations, would, even if it were possible to enforce such regulations, which is doubtful, introduce a servile element, alien to the country, destitute of rights, or interests, either in the present or future of South Africa, and worked for the benefit of masters, in many cases non-resident, thus constituting what would

practically be a slave state, in close contact with the other free communities of South Africa. Your petitioners feel that the introduction of such a class of labour would place an obstacle in the way of the natural growth alike of European and native elements in the population. ...

"Such an importation would decide whether South Africa is in future to constitute one of those great free communities under the British flag, the growth of which shed so much lustre on the reign of your august predecessor, or whether it is to be ranked as a mere plantation worked in the interest and for the benefit of foreign holders. Your petitioners therefore most earnestly pray that your Majesty may be pleased to withhold your sanction from any measure having for its object the importation of Asiatics into South Africa, and by so doing save them and those who may come after them from consequences that will be fatal to their peace and prosperity."

***Parliamentary Papers, 1904
(Cd. 1895), page 133.***

Mr. Chamberlain, Secretary of State for the Colonies, returned to England in March, 1903, from a visit to South Africa, and made an extended statement in Parliament soon afterwards of his observations and his conclusions from what he had seen. On the labor question, then the subject of greatest agitation in South Africa, he stoutly supported the mine-owners in their contention that native labor, and supplies from beyond the Zambesi, to supplement the Kaffir supply, is a necessity of the mining industry; that white labor is impossibly expensive, and that the feeling against the introduction of Asiatic labor seemed invincibly strong. There was not, he maintained, the slightest foundation for the charge that the mine-owners wanted forced labor or slavery in any shape or form, but that they must have cheap labor if the mines were to be worked.

A few days later Lord Lansdowne, the Foreign Secretary,

received a deputation from various missionary societies to protest against a proposed exportation of native labor from Central to South Africa. In reply to them he said that the Government had no more in view at present than an experiment with 1000 laborers, who would be taken from British Central Africa to the Rand District of the Transvaal and employed there under regulations very carefully framed. If objectionable results were found the experiment would be carried no farther. This was followed by warm debate on the subject in the House of Commons, where Sir William Harcourt and others denounced the greed of the mining companies, insisting that the mines could not pay fair wages simply because the rich mines were over-capitalized and the low-grade mines had been developed only for sale. Mr. Chamberlain again championed the mine-owners, and defended the policy of the Government, which sought, he said, to promote the general prosperity of the country by getting as many of the mines as possible into working order. The debate had no practical result.

SOUTH AFRICA: A. D. 1903-1908.

Hostility to British Indian Immigration.

See (in this Volume)

RACE PROBLEMS: A. D. 1903-1908.

SOUTH AFRICA: A. D. 1904.

Census of all British South Africa.

Whites and Natives.

A general census taken in 1904 showed a total white population in all British South Africa--south of Zambesi—of 1,135,655, and a colored population of 5,169,338. The distribution of this in the several colonies was as follows; Cape Colony, 580,380 white, 1,825,172 colored; the Transvaal and Swaziland, 300,225 white, 1,030,029 colored; Natal, 97,109 white, 1,011,645 colored; Rhodesia, 12,623, white, 593,141 colored;

Orange River Colony, 143,419 white, 241,626 colored;
Basutoland, 895 white, 347,953 colored; Bechuanaland, 1,004
white, 119,772 colored.

SOUTH AFRICA: A. D. 1905.

Importation of Chinese Coolies Suspended
by orders from London.

The Liberal Ministry in Great Britain, under Sir Henry Campbell-Bannerman, which succeeded the Conservative-Unionist Ministry of Mr. Balfour on the 10th of December, 1905, had been seated but twelve days when a despatch was cabled by Lord Elgin, Secretary for the Colonies, to Lord Selborne, the High Commissioner in South Africa, that "the experiment of the introduction of Chinese laborers should not be extended farther until they could learn the opinion of the colony through an elected and really representative Legislature, and they had accordingly decided that the recruiting, embarking and importation of Chinese coolies should be arrested pending a decision as to the grant of responsible government to the Colony"—that is, the Transvaal.

SOUTH AFRICA: A. D. 1905-1907.

Fulfillment by the British Government of the Promises
of the Treaty of the Vereeniging Treaty.
Representative Government restored to the Boer States.

The seventh stipulation in the Vereeniging Treaty of May 81, 1902, which ended the Boer-British War (see above, A. D. 1901-1902), contained the promise, on the part of the British Government, that "military administration in the Transvaal and in the Orange River Colony shall, as soon as possible, be followed by civil government; and, as soon as circumstances permit it, a representative system tending towards autonomy shall be introduced."

{627}

On the 31st of March, 1905, the first step toward the

fulfillment of this pledge was taken, by the issue of letters patent from the crown (without action of Parliament, inasmuch as the Boer States, in the eye of the law, had been under the suzerainty of the British sovereign, had been in revolt, had been subjugated, and were directly subject to the crown, as conquered territory), conferring a Constitution of Civil Government on the Transvaal. It gave popular representation in a legislature of a single chamber, styled the Legislative Assembly. Not exceeding thirty-five of the members of this body were to be elected, and from six to nine others were to be appointed by the High Commissioner of South Africa,—in which office Lord Milner had been succeeded of late by Lord Selborne. Every burgher of the former Transvaal Republic not disqualified by conviction for treason since May 31, 1902, was to be entitled to vote in the election of representatives; and so were all white males of British birth occupying premises at an annual rental of not less than \$50, or possessed of capital to the value of \$500. The debates in the Assembly were to be in English—not in English or Dutch, like the English or French of the Parliament of Canada; but there is a provision that the Speaker may permit a member to use the Dutch language. No bill passed by the Legislative Assembly which should subject the natives to disabilities or restrictions could become law until it had received the sanction of the Colonial Office in London.

This organization of a partially representative colonial government extended only to the Transvaal. The Orange River Colony remained still under the Crown Colony system, which had been the status hitherto of both the Boer states since the close of the war.

This limited realization of the promise of representative government to the Boers was undoubtedly all that could be expected from the Conservative Ministry in England, which went out of power soon after it had conferred the Transvaal Constitution. Its successors, of the British Liberal party, soon broadened the basis of self-government in the Transvaal,

by a new constitutional instrument, which was outlined to Parliament on the 1st of August, and issued December 6th, 1906. This made the legislature a bicameral body, having, for the time being, an upper Council of 15 appointed members, which, however, it was said to be the intention of the Government to extinguish at no distant day. The elective Assembly was to be composed of sixty-nine members, elected by secret ballot for terms of five years. Every adult male of twenty-one years of age who had been a resident for six months, except members of the British garrison, was entitled to vote. The general lines of the old Boer magisterial districts were followed, and, on the basis of the census figures of 1904 the Rand would have 32 members, Pretoria 6, Krugersdorp 1, and the rest of the country 30. The constitution prohibited Chinese contract labor, and no more coolies could be imported into the country after November 15. Either the English or the Dutch language could be used for public business, and naturalization was made easy, but the Boers' request for woman suffrage was denied.

A Constitution framed on similar lines was given to the Orange River Colony within the same year.

In the first elections for the Transvaal Assembly there were, besides Socialists and labor organizations, three parties engaged in a somewhat embittered contest. "The Progressives are the party of the great mining houses on the Rand; the Nationalist party is composed of British electors opposed to the enormous political influence which the mining houses have hitherto exercised; while the Boers at Johannesburg and Pretoria and in the rural constituencies are organized in Het Volk. There was a coalition between the Nationalists and Het Volk. These two parties united against the Progressives, and adopted as the chief plank in their platform a declaration that the one question on which the election must turn was, 'Who shall control the Transvaal—the people or the mining houses?' The Progressives on their part insisted that the

question was, 'Shall the Transvaal be governed by the people of the Transvaal, or from Downing Street?' They were aggrieved by the action of the British Government in making legislation concerning non-European labor subject to review in London, and in the campaign they made no attempt to conceal their hostility to the Campbell-Bannerman Government. In this way the question of Chinese labor was forced to the front. The Nationalists and Het Volk coalition was successful," and General Lotus Botha, who has been the leading spirit and guiding mind among the Boers since the war ended, became the Prime Minister of the Transvaal Government then organized.

It has been fortunate for the Transvaal, and no less for South Africa at large, that so large-minded and strong a leader of the subjugated race was found for the trying period in which victors and vanquished were to have peace and friendship established between them.

SOUTH AFRICA: A. D. 1906-1907.

Revolt of the Zulus in Natal.

Their Grievances.

An extensive and determined revolt of the Zulus living within the Colony of Natal broke out late in January, 1906, as the consequence of an attempt to collect a poll-tax levied on them by the colonial Parliament. A police sergeant and two or three native policemen were killed in the first *melée*, and from that time until near the end of the following summer there was war. That it was prosecuted with fierceness, if not actual ferocity, by the whites of the Colony, is made manifest by the fact that about 3500 Zulus are said to have been slain and 2000 taken prisoners. The principal Zulu leader, a chief named Bambaata, was killed in a battle fought in June, and the revolt declined from that time. Sigamanda, another chief, was condemned to death, and twelve prisoners, convicted by court-martial of complicity in the original murder of police officers, were executed; while thirty-eight others were

sentenced to imprisonment for two years.

A serious question between the colony and the Imperial-Government arose in connection with these military trials. The sentences to death, confirmed by the governor and the Natal ministry, were about to be carried out, when Mr. Winston Churchill, with the approval of Lord Elgin, Colonial Secretary, cabled to the Natal premier ordering the suspension of the execution pending an investigation by the Liberal government, on the contention that the natives should have been tried in a civil court.

{628}

Premier Smyth refused to obey, but the governor postponed the executions, whereupon the Natal ministry resigned. Much indignation was evident in England, as well as in the colony, against what was regarded as an unwarrantable interference in colonial affairs by the Imperial government. The matter was concluded by Lord Elgin cabling to the governor of Natal that the home government had no intention of interfering in colonial matters, and that, upon the receipt of full information, it recognized the right and competency of the Natal ministry to decide the question at issue.

SOUTH AFRICA: A. D. 1907 (April-May).
Imperial Conference at London.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

SOUTH AFRICA: A. D. 1908-1909.
Formation of the Legislative Union of South Africa.
The Framing of the Constitution.
Compromise on the Race Question of Franchise.
British Imperial Assent.
The Royal Proclamation of Union.

Very quickly after the placing of the Boer colonies on a

footing of political equality with their English neighbors a fresh desire for South African Union, in which they, who had fought to the death for its prevention only six years before, now shared, began to be earnestly voiced. Its genesis was explained clearly by a correspondent of the London **Times** of May 24, 1909, who wrote "Economic causes of a special character assisted the process. A great wave of commercial depression, following hard upon the golden expectations of the peace, passed over the whole country, but made itself specially felt in the coast colonies. Here the situation was painful in the extreme. It was a tale of deficit, of retrenchment, of heroic Budgets. But far beyond the rolling hills of the Karoo and the flat tableland of the Orange River there was a wealthy State, a State with a surplus. The Transvaal, possessing in Johannesburg the principal centre of opulence and the chief market for produce, was in a position to exert economic pressure upon colonies whose principal source of revenue was derived from the profits upon their railways and from the sale of their goods to the great city on the high veld. The poorer colonies lived, so to speak, upon the custom of the Transvaal, and were unable to ignore, however much they might dislike, their position of dependence. A rate war or a tariff war between the Transvaal and the coast colonies could hardly end with a victory for Cape Town or Durban, and so by a process of reasoning which was not always pleasantly illustrated the coast colonies came to accommodate themselves to the view that some form of arrangement as to railways and Customs was desirable in their own interests. Other causes contributed to illumine and enlarge the horizon. A Zulu rebellion in Natal brought home the common danger to the white community from native unrest or from mistakes made by a weak colonial Government in its native policy; the grant of responsible government to the two conquered Colonies tended, not only to bring the English and Dutch leaders into habitual communion, but to give to the progressive section of the community a pressing interest in the construction of a Government which should be strong enough

to resist the influences of the back veld."

The first action taken to transform the desire for Union into a movement to that end was early in May, 1908, by a convention of officials from the several colonies, assembled at Pretoria to negotiate a new customs agreement and to arrange intercolonial railway rates. The railway situation was nearly, if not quite, the most serious one that brought pressure to bear on some of the colonies, forcing them to seek a union in which conflicts of interest would be overcome. It was a situation which the High Commissioner, Lord Selborne, described briefly, in a review of the many reasons for Union which he addressed to the Governors and Lieutenant-Governors of the several colonies, on the 7th of January, 1907:

"Of all the questions fruitful in divergence of opinion or of interest to the Colonies of South Africa, there is none so pregnant with danger," he wrote, "as the railway question. It is not an exaggeration to say that a field more thickly sown with the seed of future quarrel and strife than the [State-owned] railway systems of South Africa does not exist. As long as the Governments of the five British Colonies in South Africa are wholly separated from, and independent of, each other, their railway interests are not only distinct but absolutely incompatible. There is a competitive struggle between the ports of Cape Colony and of Natal to snatch from each other every ton of goods which can be snatched. The Orange River Colony desires as many tons of goods as possible to be passed to the Transvaal through its territory, but it is to the interest of Cape Colony that no such tons of goods should pass into the Transvaal through the Orange River Colony. ... In the same way it is to the interest of Natal to pass the goods consigned to the Transvaal from Durban into the Transvaal at Volksrust, and not at Vereeniging through the Orange River Colony. Thus the interests of Cape Colony, of Natal, and of the Orange River Colony conflict the one with the other. But when it comes to considering the railway

interests of the Transvaal, then it will be found that the interest of the Transvaal is diametrically opposed to the interests of Cape Colony, of Natal, and of the Orange River Colony. The Transvaal loses revenue on every ton of goods which enters the Transvaal by any other route than that from Delagoa Bay [on the Portuguese coast]. ... If the [Transvaal Government] were as indifferent to the welfare of the three sister Colonies as every State in Europe is to the welfare of every other State, the Transvaal would see that all the trade to the Transvaal came exclusively through Delagoa Bay. And what then would be the position of the railways and the finances of the three sister Colonies and of the ports of Cape Colony and of Natal? This divergence, this conflict of railway interests, this cloud of future strife, would vanish like a foul mist before the sun of South African Federation, but no other force can dissipate it."

That a railway and customs convention should start the action which united the colonies of South Africa happened as logically, therefore, as the happenings which derived the American Federal Constitutional Convention of 1787 from a River and Harbor Convention at Annapolis in 1786.

{629}

The South African Railway convention, before adjourning, adopted a resolution recommending the appointment of delegates from each colony to a convention for the framing of a Constitution of United Government. Cape Colony led off in approving the proposal, followed within a day or two by the Transvaal and Orange River Colony, and a week later by Natal, where the strongest opposition was developed. The apportionment of delegates to the Convention was, for Cape Colony 12, for the Transvaal 8, for Orange River and Natal 5 each. On the 12th of October these delegates assembled at Durban, in Natal, under the presidency of Sir Henry de Villiers and were in session there until the 5th of November,

when they adjourned to meet again at Cape Town, November 23. Their labors were not concluded until the 3d of February, 1909, when all differences had been harmonized or compromised and a draft Constitution approved, which every delegate signed that day.

The Constitution was officially published on the 9th of February, with a recommendation that the several Parliaments should meet on March 30 to consider the draft, and that the Convention should meet again in May on a day to be fixed by the president of the Convention and the Premiers in consultation. The final draft to be submitted to the Parliaments in June. Then a committee of delegates appointed by the Governments to proceed to England to facilitate the passing of the Act.

This programme was successfully carried through. Cape Colony and Natal contended for certain amendments to the draft Constitution, but the Transvaal and Orange River colonies approved the instrument and instructed their delegates to support it as a whole. The General Convention was reassembled at Bloemfontein, capital of the Orange River Colony, on the 3d of May, when it discussed the proposed amendments and agreed to eight of them. As thus amended the draft was adopted in June by the parliaments of each of the four colonies, and sent with that endorsement to the Imperial Government for the seal of Sovereign Law. It was followed by an official mission, composed of nineteen members, who represented, as a London journal remarked, "almost the whole of the driving power in South African politics," including, of course, such former antagonists as General Botha and Dr. Jameson, now shoulder to shoulder in powerful leadership of the movement for South African Union.

One feature of the Constitution, as framed by the four colonies and presented for the imperial approval, was profoundly repugnant to English feeling. It was the product of

a compromise in the colonial convention, which ran a curious parallel to that in the American constitutional convention of 1787, which gave the Southern States a representation in Congress for their slaves. The question of elective franchises and legislative representation for the colored natives had troubled the South African union-making, just as the slavery question had troubled the American. Cape Colony had conferred the suffrage on its qualified colored citizens, and refused to disfranchise them; the other colonies had disfranchised all races but the white, and refused to allow a possible election from the Cape Colony to the Union Parliament of any other than members of European descent. The necessary compromise which secured the Union left the Cape franchise undisturbed for the present, but exposed to a future chance of being overruled; and it barred all but European humanity from both houses of the general Parliament.

This compromise was opposed with unyielding resolution by a strong party in Cape Colony, led by two former premiers, Mr. W. P. Schreiner and Sir J. Gordon Sprigg. Mr. Schreiner went to England to appeal there to the Imperial Parliament against the sanctioning of these provisions of the proposed Constitution.

Mr. Schreiner found in Great Britain almost universal sympathy with the feeling that he represented. In Parliament and out, it was expressed by all parties; but there went with it a prevailing opinion that the matter in question and the attending circumstances were such that the Imperial Parliament ought not to refuse assent to the action of the colonies. The Prime Minister, Mr. Asquith, set forth the reasoning to this conclusion very clearly and concisely, when, on the 19th of August, he moved, in the House of Commons, the third reading of the South Africa Bill. "I wish," he said, "in submitting this motion to the House, to take the opportunity of putting on record the fact that this Bill, consisting of over 150 clauses and a very complicated schedule, has, after the most

careful consideration by this House, been passed without amendment. It would, however, be a totally false impression were it suggested that as regards all provisions of this Bill there is unanimity of opinion in the House. In particular as regards some of the clauses which deal with the treatment of natives—the access of native members to the Legislature—as everybody who has followed the debate can see, there is not only no difference of opinion, but absolute unanimity in the way of regret that those particular provisions should have been inserted in the Bill. I wish before the Bill leaves the Imperial Parliament to make it perfectly clear that we here have exercised, and I think wisely and legitimately exercised, not only restraint of expression, but reserve of judgment in regard to matters of this kind, simply because we desire that this great experiment of establishing free self-government in South Africa should start on the lines and in accordance with the ideas of our fellow-citizens there which they have deliberately and after long consideration come to.

"It is perfectly true that the Imperial Government cannot divest itself of responsibility in this matter. We do not do so. I think that if we have yielded, as we have, on points of detail—on some points on which many of us feel very strongly—to the considered and deliberate judgment of South Africa, it has been because we thought it undesirable at this, the last, stage in the completion of an almost unprecedentedly difficult task to put forward anything that could be an obstacle to the successful working of the Bill. Speaking for myself and the Government, I venture to express not only the hope, but the expectation, that in some of these matters that have been discussed in this House, both on the second reading and in the Committee stage, the views which have been so strongly expressed, and practically without any dissent, will be sympathetically considered by our fellow-citizens in South Africa.

{630}

For my part I think, as I have said throughout, that it would

be far better that any relaxations of what almost all of us regard as unnecessary restrictions upon the electoral rights and eligibility of our native fellow-subjects there should be carried out spontaneously and on the initiative of the South African Parliament rather than that it should appear to be forced on them by the Imperial Parliament here."

The Bill had already passed the House of Lords. It received the royal approval on the 20th of September; and, on the 2d of December, the Union of South Africa was proclaimed, to be of effect on and after the 31st of May, 1910.

Soon after the passage of the Bill, announcement was made that the Prince of Wales would visit South Africa to open the Union Parliament, as he had done on the opening of the Parliament of the Australian Commonwealth, in 1901.

In December it was made known that the Right Honourable Herbert Gladstone would be the first Governor-General of United South Africa.

For the text of the South African Constitution:

See (in this Volume)
CONSTITUTION OF THE UNION OF SOUTH AFRICA.

SOUTH AFRICA: A. D. 1909.

The Native Protectorates.

Their Condition and Circumstances on the Eve of the Inauguration of the Union of South Africa.

"It should not be forgotten that the protectorates are in being to-day not because this particular arrangement of protection was economically necessary or inevitable, nor even because the general relationship of the native tribes of South Africa made it the best that could be devised. The fact is that they came into existence at different times and as

definite and probably expedient results of various fortuitous crises in a chaotic native political history, which is at least characteristic of South Africa. ...

"To-day the protectorates are to a considerable degree isolated native communities, so far at any rate as they are concerned with any possible united feeling among the other native tribes of South Africa. They are carefully guarded by their responsible officials from interference and possible harm from outside their own territories—that is from taking any considerable interest or partnership in the real or fancied troubles of neighbouring states. They are in a sense—and more than a political sense—inside a ring fence.

"As regards the relationship between the native inhabitants and the white settlers of the several protectorates, there are no striking points of difference. In Basutoland no land is held under white ownership. Such white residents as there are, apart from officials and missionaries, are there as traders and storekeepers. No land rights have been alienated to white men. In the Bechuanaland Protectorate certain areas are held by white men, but at the same time very large areas are reserved entirely for native uses. In Swaziland the relationship was, until a few months ago, upon a very different basis—a position surely unique in the history of the British colonial possessions. I have not space to describe even briefly the extraordinary intricacy of the concessions troubles or the heroic measures found necessary to effect a settlement at once just to the concessionaire and the native. It must be sufficient to say that today about half the area of the country is held in white ownership, while rather more than one-third is reserved for the exclusive use and benefit of the natives. In Zululand certain areas of land are held by whites, but the bulk of land is held in native possession. In each case, however, it is not probable that any more land will be alienated for purposes of sale or settlement by whites. It may be accepted without doubt, I think, that the natives will

retain in perpetuity the land they hold at present. It will be seen that the material interests of the natives, at any rate as regards land, have been well guarded in the three protectorates."

***R. T. Coryndon,
The Position of the Native Protectorates
(The State, South Africa, September, 1909).***

SOUTH AFRICA: A. D. 1909.
Introduction of Proportional Representation.

See (in this Volume)
ELECTIVE FRANCHISE: SOUTH AFRICA.

SOUTH AFRICA: A. D. 1909.
Native Labor Supplanting the Chinese.

See (in this Volume)
RACE PROBLEMS: SOUTH AFRICA. A. D. 1909.

-----SOUTH AFRICA: End-----

SOUTH AMERICAN REPUBLICS.

See (in this Volume)
American Republics.

SOUTH CAROLINA, and Interstate and West Indian Exposition.

See (in this Volume)
CHARLESTON: A. D. 1901.

SPAIN: A. D. 1870-1905.
Increase of Population compared with other European Countries.

See (in this Volume)

EUROPE: A. D. 1870-1905.

SPAIN: A. D. 1898-1906.

Gains from the Loss of Cuba and the Philippines.

Growth of Close Relations with the Spanish-American States.

"In many a war it has been the vanquished, not the victor, who has carried off the finest spoils. Cuba and the Philippines have been like a tumor in the side of Spain, dragging her down in the race of civilization. They have drained her life-blood and disturbed all her national activities. Only a serious surgical operation could remove this exhausting excrescence; and Spaniards themselves have been the first to recognize that the operation, though painful, was in the highest degree beneficial. Not even the most Quixotic of Spaniards dreams of regaining these lost possessions. The war has been beneficial in at least two different ways. It has had a healthy economic influence, because, besides directing the manhood of Spain into sober industrial channels, it has led to the removal of artificial restrictions in the path of commercial activity. It has been advantageous morally, because it has forced even the most narrow and ignorant Spaniard to face the actual facts of the modern world.

"The war has had a further result in leading to a movement, for a closer sympathy between Spain and the Spanish states of South America. The attitude of these states towards the mother country has hitherto been somewhat unsympathetic; they have regarded her as hopelessly opposed to all reform; the hostility of Spain to the aspirations of Cuba and their own earlier struggles for freedom amply accounted for such an attitude. Now there is nothing to stand in the way of a movement towards approximation which has already begun to manifest itself, and may ultimately possess a serious significance."

Havelock Ellis,

The Spirit of Present-Day Spain
(Atlantic Monthly, December, 1900).

{631}

"Thoughtful Spaniards will tell you that a change has come over their country with the close of last century, and that this change has been developing since the accession of their young King. The starting-point of this evolution in national life was the close of the short struggle with the United States and the loss of what remained of their colonial empire. That turning-point in the modern annals of Spain caused a deep impression in the minds, not only of the governing classes of the country, but of the hard-working middle classes and of the masses themselves. ... Almost immediately after conclusion of the peace treaty, first a few and then more and more Spaniards dared to speak out what at heart they felt, however sore and resentful—namely, that foreign and colonial foes had rendered Spain a service by ridding her of the colonies that hampered her revival in Europe and in fields of action and enterprise nearer home. This feeling spread widely among the masses and middle classes when they perceived the first-fruits of the concentration of the resources and energies of the nation in Spain between 1899 and 1905. Much capital had flowed back from the former colonies, especially from Cuba and the Philippines, and promoted a rapid increase in enterprises of every kind—banks, financial establishments, mines, industries, syndicates, trusts, shipping-interests that, developing, perhaps, too rapidly, were led to overproduction, and thus gave rise to local crises at Bilbao, Barcelona, Santander, Cadiz, Malaga. The rebound of the last year of the nineteenth century and of the first few years of the twentieth was a consequence also of the recovery of Spanish credit, effected by a vigorous reorganization of Spanish finance and budgets by the late Señor Villaverde, and by the gallant resolution with which Governments and Parliaments, backed by the press and public opinion, undertook to honor both the domestic

engagements of Spain herself, and the engagements that resulted from saddling her treasury and budget with the debts of Cuba and the Philippines, and with the cost of the last and previous civil wars in the lost colonies. The restoration of Spain's credit abroad and at home, the successful levelling of her budgets with a surplus revenue annually of several millions of dollars since 1900, dispelled the fears of her native capitalists; and they too, large and small, came forward to invest in mines, banks, companies and railways."

World-Politics

(North American Review, November, 1905).

SPAIN: A. D. 1901-1904.

Four Years of Political Shuffling in the Government.

End of the Queen Dowager Regency.

Coronation of the Young King, Alfonso XIII.

Death of Sagasta.

A New Ministry, of Liberals, was formed in March, 1901, with the veteran leader, Praxedes Mateo Sagasta, at its head; but the military party was represented in the Government by General Weyler, as Secretary for War. Measures undertaken by the Government against unauthorized religious orders, to bring them under surveillance, gave rise to anti-clerical disturbances in some parts of the Kingdom, and were defiantly opposed by the Church. Legislative elections held in June gave the Government 280 seats, leaving but 70 to the Opposition; but any party controlling the conduct of elections in Spain was said to be able to secure whatever majority it desired.

The general condition of confusion and disturbance was continued in 1902, and constant recourse was had, in one region or another, to declarations of a "state of siege," involving martial law. General Weyler fought a battle of a week's duration in February at Barcelona, with rioting consequent on a general strike.

See (in this Volume)

LABOR ORGANIZATION: SPAIN.

On the 17th of May, his sixteenth birthday, Alfonso XIII., whose father, Alfonso XII., died before he was born, and who, consequently, had been, nominally and constitutionally, King of Spain since his birth, entered on the actual exercise of royal functions. He was crowned that day, and the regency of his mother came to an end. The coronation ceremonies were splendid; the oath taken by the young King was very simple: "I swear by God upon the Holy Bible to maintain the constitution and laws. If so I do, may God regard me; if I do not, may he call me to account." There is reason to believe that he took this oath with a serious sense of the responsibilities he assumed; but influences at Court, military, clerical, and otherwise reactionary, were stronger than the influence of his constitutional advisers for a few years, and the political distractions of the time were increased. The attempted action of Government against unauthorized religious orders ended in a compromise which gave authorization to every order demanding it.

On the 3d of December, 1902, Sagasta and his Cabinet resigned, and a Conservative Ministry, under Señor Silvela, was formed. On the 5th of January following Sagasta died. The liberalism he represented had no substantial unity left, nor were the opposing groups in a condition to give more consistency or strength to the Government. A new Ministry under Senor Villaverde succeeded that of Silvela in May, and was succeeded in turn by another in December, with Señor Maura at its head. Premier Maura, formerly of Sagasta's party, but latterly more Conservative, held the reins for a full year, escaping two attempted assassinations in 1904, and giving place to General Azcarraga on the 14th of December in that year. The General was less fortunate, for he enjoyed the honors of the prime ministry but six weeks.

SPAIN: A. D. 1903.

Agreement for Settlement of Claims against Venezuela.

See (in this Volume)

VENEZUELA: A. D. 1902-1904.

SPAIN: A. D. 1904 (April).

Declarations of England and France touching Spanish interests in Morocco.

See (in this Volume)

EUROPE: A. D. 1904 (APRIL).

SPAIN: A. D. 1905-1906.

Unsatisfactory State of the Kingdom.

Rapid Succession of Changes in the Government.

Disorders in Catalonia.

The King's Marriage.

Attempted Assassination of the King.

Proposed Anti-Clerical Law, which came to naught.

In the character of its political parties, in the condition of its finances and in the general circumstances of the country, Spain appeared to be in an increasingly unsatisfactory state. Four changes of Ministry occurred within the year 1905, and no Government was found able to project any policy that promised permanency and definiteness of line.

{632}

Don Ramon Villaverde succeeded General Azcarraga as Premier in January, and was succeeded in the following June by Don E.

Montero Rios, who had Don Jose Echegaray, the eminent poet, dramatist, novelist, and banker, for his Minister of Finance.

In turn, Señor Montero Rios, after a reconstruction of his Cabinet in October with the help of the King, gave way at the end of November to Señor Moret. The Azcarraga and Villaverde Ministries had been Conservative; those of Montero Rios and

Moret were of the Liberal type. The Parliament, which should have been convened early in the year, but was not called together until the middle of June, contained no majority which any Ministry could trust, and all the leaders in Spanish politics were afraid of it. Fresh elections in September gave the Montero Rios Ministry a decided majority; but it had quarrels within itself, and threatening disorders had arisen in many parts of the country, especially in half-rebellious Catalonia, which it seems to have lacked courage to face. An arrogant, insubordinate temper had been developed among the officers of the army, who disputed the supremacy of civil over military authority; and in many ways the conditions in the kingdom gave cause for grave anxiety to thoughtful minds.

Not much, if any, quieting of the disturbed conditions in Spain came during the next year. The Government stooped to a compromise with the insolent military faction, so far as to allow press offenses against officers of the army to be dealt with by courts-martial. On the 31st of May, 1906, King Alfonso was married to the English Princess Ena of Battenberg, who previously entered the Roman Catholic Church, much to the disturbance of Protestant feeling in England. The wedding festivities at Madrid were nearly made tragical by an anarchist attempt to kill the royal pair. As they returned from the marriage ceremony to the palace a wretch named Matteo Morales threw a bomb into the midst of the procession of carriages, killing a number of attendant people, but missing those for whom it was intended. The coolness and readiness of mind shown by the young king, and by his bride, excited general admiration, and indicated a strength of character that augured well for Spain.

In July the Moret Ministry found it expedient to resign, and the administration of Government passed to a new Cabinet, under Captain-General Lopez Dominguez. Then a strange change of attitude toward the Church of Rome was given for a brief time to the Spanish Government, as though it had caught the

temper of France. There had been signs of a disposition toward some independence of secular policy a few years before, when the strenuous opposition of the Church failed to prevent the passage of a Spanish law which authorized civil marriage between persons legally qualified, whatever their creed might be. The Church continued its hostility to this law until it succeeded, in 1900, in securing an amendment which restricted the right of civil marriage to parties one of whom should not be a Catholic. Public opinion does not seem to have approved that concession, and the original provisions of the law were now restored. This drew on the Government a fierce clerical attack; in the face of which it brought forward, in October, a project of law which seems to have been modelled very closely on that French Associations Law, of 1901, by which all religious orders, along with other associations, were brought under surveillance and regulation by the State.

See in Volume VI. of this work,
FRANCE: A. D. 1901,
and, in this Volume,
FRANCE: A. D. 1903.

This Spanish measure proposed to allow no religious order to be established in the kingdom without parliamentary authorization. It would empower the Government to withdraw the authorization of any order or association that it found dangerous to public tranquility or morals; it would permit any member of an order to renounce his or her vows; it would dissolve any order whose members were foreigners or whose directors lived abroad; it would command monasteries and convents to open their doors to representatives of the proper civil authority at any time; it would limit the property held by religious orders to the need of the objects for which they were instituted and put a limit on the gifts and bequests they could receive.

This seemed an extraordinary measure to come even under

discussion in Spain. Some of the Liberal leaders were prompt in declaring opposition to it, and its passage through the Cortes was probably impossible; but it came to no vote. Debate on it, opened on the 27th of November, was brought soon to an abrupt and not well-explained end. The Prime Minister resigned suddenly, in consequence of alleged intrigues; Señor Moret, recalled to office, was forced to retire again almost at once; a new Ministry was formed by the Marquis Vega de Armijo, and nothing more appears to have been heard of the proposed Associations Law.

SPAIN: A. D. 1906.

At the Algeciras Conference on the Morocco question.

See (in this Volume)

EUROPE: A. D. 1905-1906.

SPAIN: A. D. 1907.

Franco-Spanish Bombardment of Casablanca.

See (in this Volume)

MOROCCO: A. D. 1907-1909.

SPAIN: A. D. 1907-1909.

The Maura Conservative Ministry.

Unpopularity of the War in Morocco.

Insurgency in Barcelona.

The Ferrer Case.

The Moret Ministry.

Municipal Reform.

Present Parties.

The Ministry of Marquis Armijo de la Vega held the Government little more than a month, giving way to Señor Maura and his party, who returned to power in January, 1907. Five changes of administration had occurred within a year and a half. Elections in April yielded the Government a majority, and the

birth of an heir to the throne on the 10th of May gave much satisfaction to the country. The Liberals, however, were so indignant at the manipulation of the elections to the lower chamber that, on the advice of their leader, Señor Moret, they took no part in the senatorial elections which followed, later in May; and this proved singularly embarrassing to the Government. Bomb explosions and other anarchist outrages, centering in Barcelona, but not confined to that turbulent city, were being dreadfully increased, and a ministerial Bill was brought before the Cortes in January, 1908, providing measures of suppression so drastic, especially in its dealing with the Press, that a most formidable opposition was stirred up. The Government stood stoutly by the Bill for months, until its control of the Cortes was shaken by the coalition that took form against it.

{633}

In the end it withdrew the Anarchist Bill, but raised another obstinate and threatening storm by the proposal of a Local Administration Bill, quite startlingly revolutionary in its plans for giving more independence to municipalities and provincial councils. Contest over this Bill went on till early in February, 1909, when Premier Maura came to an understanding with Señor Moret, leader of one of the Liberal groups, which enabled a part of the extensive measure, relating to municipalities, to be passed. Among other things, this new enactment made voting in the municipalities compulsory, and elections held since are reported to have shown a heavy increase of vote, proving effectiveness in the law. The other section of the Bill, dealing with provincial councils, was held over for subsequent action in the Cortes, and had not been disposed of when Premier Maura and his Cabinet were driven to resign, in October, 1909.

The causes of the overthrow of the Maura Ministry came primarily from the serious war with the tribesmen of the Riff, Morocco, into which Spain had been drawn in the midsummer of 1909.

See (in this Volume)
MOROCCO: A. D. 1909).

The war was exceedingly unpopular from the beginning, and made more so by early reverses in its prosecution. Riotous outbreaks and labor strikes occurred in several parts of the Kingdom, but most fiercely at the turbulent city of Barcelona, where they were suppressed with a severity which embittered feeling against the Government. This feeling was excited to a climax in October by the military trial and execution, at Barcelona, of Professor Francisco Ferrer. Professor Ferrer was a teacher of high standing and wide acquaintance in Europe, extremely radical in his political opinions, and accused of disseminating seditious doctrines in the school which he conducted at Barcelona. The military authorities there put him under arrest on the charge of having been a principal instigator of the revolutionary rising in July. He was tried by court-martial, without just opportunity for defence, according to common belief, and summarily shot, the Government disregarding many appeals from all parts of Europe for its intervention in the case. An extraordinary excitement throughout the world was produced by this tragedy, and it was felt in Spain with reverberant effect. After violent speeches in the Chamber of Deputies, October 20, Señor Maura felt it necessary to resign, and the Liberal leader, Señor Moret y Prendergast, was called by the King to take the Government in hand.

The Moret Ministry made a speedy good beginning in domestic policy, by reviving, in some degree, the further undertaking of reform in local administration which Señor Maura had attempted two years before. This was now done by a decree, designed to clear away the mass of ordinances and special decrees by which the existing municipal law has been gradually choked since it was enacted in 1877, and to restore to municipal bodies the liberty and initiative that they were

originally supposed to possess. Señor Moret and his party had supported Premier Maura's Local Administration Bill in 1907; but it had been opposed and defeated by the class of politicians who are trained to a distaste for any sort of political reform. According to all accounts, the Moret Ministry, with a much mixed and uncertain support in the Cortes, has thus far done well.

Municipal elections were held throughout Spain December 12, and the introduction of compulsory voting brought out an unprecedented vote, from which the Republicans and Liberals drew most. Altogether, there are said to have been chosen 481 Republicans, Liberals, and Democrats, 253 Conservatives, and over a hundred Radicals of various shades. Madrid elected 12 Republican councillors, 2 Liberals, 1 Democrat, and 7 Conservatives, thus giving the Republicans an absolute majority. Valencia chose 15 Republicans, against 10 of all other parties. In Valladolid, 12 Liberals, 6 Republicans, and 3 Conservatives were elected; in La Coruña, 7 Republicans, 3 Liberals, and 3 others; in Córdoba, 10 Republicans, 6 Liberals, and 6 Conservatives.

In present politics the Republicans are said to have gone into alliance with the Socialist or Labor party; the alliance having its leader in a Señor Lerroux, of Barcelona, who returned lately from a long political exile, and who has had warm receptions in a number of the chief cities, where he made stirring speeches. "Señor Lerroux," says a correspondent, writing from Madrid in December, "preaches neither anarchism nor atheism nor anti-militarism. But he asks for the abolition of the Monarchy and of the religious orders. He would make the army the humble servant of the State, promote lay education and local autonomy, and do away with indirect taxation. And he looks for the realization of this programme to a well-timed revolution. Such are the ideas with which the bulk of the Republican-Socialist coalition will go to the polls at the next general election. Between these two extremes—the

Conservatives, representing the Monarchy, the aristocracy, and the Church, and the Republican-Socialist alliance, representing revolution—we see the present Government balancing itself uneasily, with a foot in each camp, amenable to pressure from both, and without any independent means of support, save that which it enjoys in virtue of its temporary control of the political machine."

-----SPAIN: End-----

SPALDING, Bishop John L.:

On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

SPANISH AMERICA: A. D. 1906.

Growth of Close Relations with Spain.

See (in this Volume)

SPAIN: A. D. 1898-1906.

SPERRY, Rear-Admiral Charles S.:

Commissioner Plenipotentiary to the Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

SPERRY, Rear-Admiral Charles S.:

Commanding the American Battleship Fleet.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

SPHAKIANAKIS, Dr.

See (in this Volume)

CRETE: A. D. 1905-1906.

SPIERS, Bishop:
Murder of.

See (in this Volume)
AFRICA: A. D. 1905.

{634}

SPITZBERGEN CONFERENCE.

"The Norwegian government, by a note addressed on January 26, 1909, to the Department of State, conveyed an invitation to the government of the United States to take part in a conference which, it is understood, will be held in February or March, 1910, for the purpose of devising means to remedy existing conditions in the Spitzbergen Islands. This invitation was conveyed under the reservation that the question of altering the status of the islands as countries belonging to no particular State, and as equally open to the citizens and subjects of all States, should not be raised.

"The European Powers invited to this conference by the government of Norway were Belgium, Denmark, France, Germany, Great Britain, Russia, Sweden, and the Netherlands.

"The Department of State, in view of proofs filed with it in 1906, showing the American possession, occupation, and working of certain coal-bearing lands in Spitzbergen, accepted the invitation under the reservation above stated, and under the further reservation that all interests in those islands already vested should be protected, and that there should be equality of opportunity for the future. It was further pointed out that membership in the conference on the part of the United States was qualified by the consideration that this government would not become a signatory to any conventional

arrangement concluded by the European members of the Conference which would imply contributory participation by the United States in any obligation or responsibility for the enforcement of any scheme of administration which might be devised by the conference for the islands."

***Message of the President of the United States
to Congress, December 6, 1909.***

SPOILS SYSTEM:

Cause of Corruption in the United States Customs Service.

See (in this Volume)

UNITED STATES: A. D. 1909 (OCTOBER-NOVEMBER).

See (in this Volume)

CIVIL SERVICE REFORM.

SPRECKELS, Rudolph.

See (in this Volume)

MUNICIPAL GOVERNMENT: SAN FRANCISCO.

SPRIGGS, SIR J. GORDON.

See (in this Volume)

SOUTH AFRICA: A. D. 1902-1904.

SPRIGGS, SIR J. GORDON.

Opposition to the Disfranchisement of Blacks
in South Africa.

See (in this Volume)

SOUTH AFRICA: A. D. 1908-1909.

SPRING-RICE, SIR C.:

British Minister to Persia.

See (in this Volume)
PERSIA: A. D. 1907 (JANUARY-SEPTEMBER).

STACKELBERG, General.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

STANDARD OIL COMPANY:
Suit by the Government for its Dissolution.
Decree of the U. S. Circuit Court.
Appeal to the Supreme Court.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1906-1909.

STATE LEGISLATION, Need of Unity in.

See (in this Volume)
LAW AND ITS COURTS: UNITED STATES.

"STATE RIGHTS":
The question in Australia.

See (in this Volume)
AUSTRALIA: A. D. 1902.

STEUNENBERG, EX-GOVERNOR FRANK, OF IDAHO:
His assassination.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1899-1907.

STEVENS, DURHAM WHITE:
Adviser to the Korean Foreign Office, by Japanese Selection.

His assassination.

See (in this Volume)
KOREA; A. D. 1905-1909.

STEVENS, JOHN L.:
Chief Engineer of the Panama Canal.

See (in this Volume)
PANAMA CANAL: A. D. 1905 and 1905-1909.

STEYN, PRESIDENT M. T.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

STOCK EXCHANGE, NEW YORK:
Report on its Operations.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909.

STOCKHOLM: A. D. 1909.
Lockout and attempted General Strike.

See (in this Volume)
LABOR ORGANIZATION: SWEDEN.

STOLYPIN, P. A.:
Premier of the Russian Government.

See (in this Volume)
RUSSIA: A. D. 1906, 1907, and after.

STONE, ELLEN M.:
Capture by Brigands in Turkey and Ransom paid for Release.

See (in this Volume)
TURKEY: A. D. 1901-1902.

STÖSSEL, GENERAL.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY); (FEBRUARY-AUGUST),
and A. D. 1904-1905 (MAY-JANUARY).

STRAUS, OSCAR S.:
Secretary of Commerce and Labor.

See (in this Volume)
UNITED STATES: A. D. 1905-1909.

STRAUS, OSCAR S.:
On the Chinese Exclusion Laws and their Administration.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1905-1908.

STRIKE, A GENERAL: THE IDEA OF IT.

See (in this Volume)
LABOR ORGANIZATION: FRANCE: A. D. 1884-1909.

STRIKES.

See (in this Volume)
LABOR ORGANIZATION.

STUNDISTS, POLITICAL IDEAS OF THE.

See (in this Volume)
RUSSIA: A. D. 1902.

SUBMARINE SIGNAL BELLS.

See (in this Volume)

SCIENCE AND INVENTION: SUBMARINE SIGNAL BELLS.

SUBWAYS, NEW YORK.

See (in this Volume)

NEW YORK CITY: A. D. 1900-1909.

SUCCESSION DUTIES:

Treaty concerning, between England and France.

See (in this Volume)

DEATH DUTIES.

SUGAR TRUST, THE FRAUDS OF THE.

See (in this Volume)

Combinations, Industrial, &c.:

UNITED STATES: A. D. 1907-1909, and 1909.

SUDAN, THE WESTERN: A. D. 1903.

English Ascendancy established in Nigeria.

See (in this Volume)

AFRICA: A. D. 1903 (NIGERIA).

SUDAN, THE WESTERN: A. D. 1907.

Great Changes wrought in Ten Years.

The new Khartoum.

"After Khartoum had fallen the palace was looted and demolished, but on its ruins another stately pile has arisen wherein Gordon's memory is kept green by a tablet marking the fatal spot where on the 26th of January, 1885, he was done to death. And even as a new palace sprang up on the ashes of the old, so likewise after a thorough clearing away of the ruins

of Gordon's city, a new Khartoum has been planned and built on the ancient site. This new city lies at an altitude of 1263 feet above sea level, has a moderate yearly rainfall of but some forty inches, and a mean annual temperature of 84° Fahrenheit; by water it is 1560 miles from the source of the Nile at Ripon Falls, and 1920 miles from the Rosetta mouth of that fertilising river. Slowly but surely vaccination is reducing the small-pox mortality among the Soudanese; the old mosquito-breeding pools have been filled up, and the mosquito brigade is still doing good work. Thus the new Khartoum may be said to enjoy a fairly salubrious climate, which, moreover, should yearly become more and more healthy. ...

{635}

"South of Khartoum proper, across the desert race-course and golf-links, and hard by what remains of Gordon's fortifications, dwell, each in their own settlement with its distinctive huts, the divers native tribes who make up the city's indigenous population. Probably the new Khartoum of to-day, with Omdurman and the near villages, totals nearly one hundred thousand souls, and, considering that its geographical situation so admirably adapts itself to fostering the expansion of trade, I venture to predict that in another fifty years Khartoum will contain half a million inhabitants. ...

"The material condition of the people is improving; indeed, it is already prosperous. For the first time in their history the Soudanese are an absolutely free people, living under a Government anxious to protect them from injustice and to promote their welfare; it is hard for stay-at-home Britishers to realise adequately how far-reaching is this change in a land 'where slavery in one form or another has been for thousands of years a permanent and universal institution.' ...

"To Lord Cromer's wise counsel and untiring efforts the new Soudan owes much, and in 1901 the Shillook and Dinka

representatives fully recognised this, when, using for the simple ceremony a sort of dark green fez, they crowned him their king. In the name of his own great Sovereign, whose ensign holds sway on every continent and on all known seas, his Lordship promised that the sacred law of Islam shall be respected; and the very remarkable agreement of the 19th of January, 1899, gave to this hitherto down trodden people their Magna Charta, for Article II. stipulates that 'the British and Egyptian flags shall be used together, both on land and water, throughout the Soudan.'"

***W. F. Miéville,
The New Khartoum
(Nineteenth Century, January, 1908).***

SUEZ CANAL:

Renewed Agreements between England and France.

See (in this Volume)
EUROPE: A. D. 1904 (APRIL).

SUFFRAGE, Political.

See (in this Volume)
ELECTIVE FRANCHISE.

SUFFRAGETTES.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

SUGAR-BOUNTY CONFERENCE, AND CONVENTION.

As the result of a Conference, at Brussels, in which Germany, Austria-Hungary, Belgium, France, Spain, Great Britain, Italy, the Netherlands, Sweden and Norway were represented, a Convention was framed and signed March 5, 1902, the occasion for which is

set forth in these words:

"Desiring, on one hand, to equalize the conditions of competition between beet and cane sugars from different sources, and, on the other hand, to promote the development of the consumption of sugar; considering that this double result can only be attained by the suppression of bounties as well as by limiting the surtax"—the high contracting parties concluded a convention, the first article of which binds them as follows:

"to suppress the direct and indirect bounties by which the production or export of sugar may benefit, and they agree not to establish bounties of this kind during the whole duration of the said convention. In view of the execution of this provision, sweetmeats, chocolates, biscuits, condensed milk, and all other analogous products which contain in a notable proportion sugar artificially incorporated, are to be classed as sugar. The above paragraph applies to all advantages resulting directly or indirectly, for the different categories of producers, from the fiscal legislation of the States, notably:

- (a) The direct bounties granted to exports.
- (b) The direct bounties granted to production,
- (c) The total or partial exemptions from taxation granted for a part of the manufactured output.
- (d) The profits derived from surpluses of output,
- (e) The profits derived from the exaggeration of the drawback.
- (f) The advantages derived from any surtax in excess of the rate fixed" in a subsequent article.

Further articles elaborate the programme of measures for carrying out this agreement. It was to come into force from September 1, 1903; to remain in force during five years from that date, and if none of the high contracting parties should have notified the Belgium Government, twelve months after the expiration of the said period of five years, of its intention to have its effects cease, it should continue for one year, and so on from year to year.

***Papers relating to the Foreign Relations
of the United States, page 80.***

Under this Convention, a Permanent Commission was established at Brussels. In July, 1907, this Commission gave attention to a suggestion from the Government of Great Britain, "to the effect that if Great Britain could be relieved from the obligation to enforce the penal provisions of the Convention they would be prepared not to give notice on the first of September next of their intention to withdraw on the 1st of September, 1908, a notice which they would otherwise feel bound to give at the appointed time." The ensuing discussion and correspondence resulted in the signing, on the 28th of August, 1907, of "An Additional Act to the Sugar Convention of March 5, 1902," renewing it for a fresh period of five years from September 1, 1908, with the privilege to any one of the contracting parties to withdraw after September 1, 1911, on one year's notice, "if the Permanent Commission, at the last meeting held before the 1st September, 1910, have decided by a majority of votes that circumstances warrant such power being granted to the contracting States. The request of Great Britain was granted in the following article of the Additional Act:

"Notwithstanding Article I, Great Britain will be relieved, after the 1st September, 1908. from the obligation contained in Article IV of the Convention. After the same date the

Contracting States may demand that, in order to enjoy the benefit of the Convention, sugar refined in the United Kingdom and thence exported to their territories shall be accompanied by a certificate stating that none of this sugar comes from a country recognized by the Permanent Commission as granting bounties for the production or exportation of sugar."

***Parliamentary Papers, 1907,
Commercial, Number 10 (Cd. 3780).***

SULLY-PRUDHOMME, RENÉ FRANÇOIS ARMAND.

See (in this Volume)
NOBEL PRIZES.

SULTAN AHMED MIRZA,
The young Shah of Persia.

See (in this Volume)
PERSIA: A. D. 1908-1909.

SUMATRA: A. D. 1909 (June).
Earthquake in Upper Padang.

See (in this Volume)
EARTHQUAKES: SUMATRA.

{636}

SUNDAY OBSERVANCE:
Legal institution of a weekly Rest Day.
Recent Legislation in Europe.
The Canadian Lord's Day.

A British Parliamentary Paper, published in the spring of 1909, gave information, gathered by the diplomatic representatives of the Government, relative to legislation in

many foreign countries bearing on the observance of Sunday, or otherwise prescribing a weekly Day of Rest. The facts presented in these reports were discussed editorially by the London *Times* in an article from which the following is quoted.

"Within quite recent years the principle of the weekly rest-day has been enforced, with various practical modifications, in most of the chief Continental countries. It forms, indeed, a striking vindication of the claim for the observance of one day's rest in seven—which was recognized among Eastern races long before the days of Moses—that while Sunday work has shown a regrettable, if in some ways scarcely avoidable, tendency to increase in this country, steps to restrict it have been widely taken elsewhere. While the English Sunday has been becoming in some respects more 'Continental,' the actual Continental Sunday has shown a distinct tendency to approximate to our own. ... The review provided by the present report of the legislation already in force in France, Germany, Austria, Belgium, Holland, and other leading industrial States gives plenty of examples of the way in which the general principle of making Sunday a day of rest has been accommodated to the necessities of a modern community. The case of France is particularly interesting, since the French method of observing Sunday has traditionally provided the English public with the most familiar contrast with its own. In France the law establishing a statutory weekly day of rest, and making that day Sunday, was passed so recently as in 1906. In common with the similar legislation passed in other countries, it allows partial and carefully regulated exceptions, to provide for the necessary sale of food, and for such uninterrupted attention as is required, for example, by foundries. But the application of the law is both thorough and extensive, while supplementary legislation is to be introduced, with the support of the Government, to extend its benefits to all servants of the State and to all other workers on railways, tramlines, and steamboat services who do

not already enjoy it. On the other hand, while the report bears decided witness to the efficiency and success with which the law has been enforced, it notes certain points on which concession is being made by the Government in deference to the strong demands of certain interests which claimed that they were being unjustly sacrificed. ...

"The law seems at first to have aroused opposition among many shopkeepers, especially those who were handicapped by competition with rivals whose business was carried on by members of the family, and therefore was not affected by it. ... The difficulty is now said to be settling itself, as the public is gradually learning to restrict its shopping to week-days, when there is a wider field of choice. The encouraging evidence provided by the operation of the law of 1906 in France is supported more or less explicitly by the reports forwarded by His Majesty's representatives in other parts of Europe. The aim and method of the various enactments show a prevailing similarity, and where they have already been sufficiently long in operation for a fair estimate to be made, their success seems to be recognized with but few exceptions. Material is not available in every case for forming a full opinion of the completeness with which the law of rest has been enforced. In Vienna, however, it is expressly reported that its administration is effective; and although no such statement is expressly made in the case of Germany, it appears improbable that the regulations, though less stringent than those of some other States, are lightly disregarded."

The Canadian "Lord's Day Act" of 1906 is a measure of much stringency. Making numerous well-defined and carefully guarded exceptions for "works of necessity and mercy," and for such railway service as is subject to provincial regulation, the prohibitions of the Act include the following:

"To sell or offer for sale or purchase any goods, chattels, or other personal property, or any real estate, or to carry on or

transact any business of his ordinary calling, or in connection with such calling, or for gain to do, or employ any other person to do, on that day, any work, business, or labour." "To require any employee engaged in any work of receiving, transmitting, or delivering telegraph or telephone messages, or in the work of any industrial process, or in connection with transportation, to do on the Lord's Day the usual work of his ordinary calling, unless such employee is allowed during the next six days of such week twenty-four consecutive hours without labour." "To engage in any public game or contest for gain, or for any prize or reward, or to be present thereat, or to provide, engage in, or be present at any performance or public meeting, elsewhere than in a church, at which any fee is charged, directly or indirectly." "To run, conduct, or convey by any mode of conveyance any excursion on which passengers are conveyed for hire, and having for its principal or only object the carriage on that day of such passengers for amusement or pleasure." "To shoot with or use any gun, rifle or other similar engine, either for gain, or in such a manner or in such places as to disturb other persons in attendance at public worship or in the observance of that day." "To bring into Canada for sale or distribution, or to sell or distribute within Canada, on the Lord's Day, any foreign newspaper or publication classified as a newspaper."

-----SUPREME COURT OF THE UNITED STATES: Start-----

SUPREME COURT OF THE UNITED STATES:

Summary of Decisions (1901-1906) touching
the Governmental Regulation of Corporations.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-
1906.

SUPREME COURT OF THE UNITED STATES:

Decision in the Case of the

Trans-Missouri Freight Association.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1890-1902.

SUPREME COURT OF THE UNITED STATES:

On Constitutionality of Utah Law restricting Hours of
Adult Labor in Mines.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902.

SUPREME COURT OF THE UNITED STATES:

In the Northern Securities Case.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1901-1905.

SUPREME COURT OF THE UNITED STATES:

In the "Beef Trust" Cases, so-called.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-
1906.

SUPREME COURT OF THE UNITED STATES:

On Interstate Commerce Act of 1887.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1870-1908.

SUPREME COURT OF THE UNITED STATES:

Limiting Police Power to regulate Hours of Labor.

See (in this Volume)

LABOR PROTECTION: HOURS OF LABOR.

{637}

SUPREME COURT OF THE UNITED STATES:

In the Tobacco Trust Case of Hale vs. Henkel.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1905-1906.

SUPREME COURT OF THE UNITED STATES:

Concerning the Isle of Pines.

See (in this Volume)

CUBA: A. D. 1907 (APRIL).

SUPREME COURT OF THE UNITED STATES:

In Case of Virginia Railroads vs. the State
Corporation Commission of Virginia.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1908 (NOVEMBER).

SUPREME COURT OF THE UNITED STATES:

On the Constitutionality of the "Commodities Clause"
of the Hepburn Act.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1906-1909.

SUPREME COURT OF THE UNITED STATES:

On the Right of a State to Specially Limit the Hours
of Labor for Women.

See (in this Volume)

LABOR PROTECTION: HOURS OF LABOR.

SUPREME COURT OF THE UNITED STATES:

Limiting State Authority in matters touching
Interstate Commerce.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1907-1908.

SUPREME COURT OF THE UNITED STATES:
On Law against Rebating in Armour Packing Company Case.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1908.

SUPREME COURT OF THE UNITED STATES:
Invalidating Debts to an Illegal Combination.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1909.

SUPREME COURT OF THE UNITED STATES:
Affirming Fines on the New York Central Railroad Company.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1909.

-----SUPREME COURT OF THE UNITED STATES: End-----

SUTTNER, BARONESS BERTHA VON.

See (in this Volume)
NOBEL PRIZES.

SWADESHI MOVEMENT.

See (in this Volume)
INDIA: A. D. 1905-1909.

SWALLOW, SILAS E.:

Nomination for President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER).

SWARAJ.

The Hindu term for self government.

SWAZILAND.

See (in this Volume)

SOUTH AFRICA: A. D. 1909.

"SWEATING," ENGLISH ACT TO SUPPRESS.

The Trade Boards Bill.

See (in this Volume)

LABOR REMUNERATION: WAGES REGULATION.

-----SWEDEN: Start-----

SWEDEN: A. D. 1901.

Unveiling of Monument to John Ericsson.

The Nobel Prizes.

The First Awarding of them.

A monument to the memory of John Ericsson, the Swedish-American inventor, was unveiled at Stockholm with impressive ceremonies on the 14th of September, 1901, that being the date of the reception of his remains at Stockholm eleven years before.

The first award of the munificent prizes for beneficial services to mankind, instituted by the will of Alfred Bernard Nobel, the eminent Swedish engineer and inventor, was made on the 10th of December, 1901.

See (in this Volume)
NOBEL PRIZES.

SWEDEN: A. D. 1903.
Agreement for Settlement of Claims against Venezuela.

See (in this Volume)
VENEZUELA: A. D. 1902-1904.

SWEDEN: A. D. 1905.
Secession of Norway from the Union of Crowns.
Acceptance by King Oscar of his Practical Deposition.

See (in this Volume)
NORWAY: A. D. 1902-1905.

SWEDEN: A. D. 1906.
At the Algeciras Conference on the Morocco Question.

See (in this Volume)
EUROPE: A. D. 1905-1906.

SWEDEN: A. D. 1908.
Municipal Office opened to Women.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

SWEDEN: A. D. 1908 (April).
Treaty with Denmark, England, France, Germany,
and the Netherlands, for maintenance of the Status
Quo on the North Sea.

See (in this Volume)
EUROPE: A. D. 1907-1908.

SWEDEN: A. D. 1909.

Franchise Reform Legislation.

During many successive years, earnest attempts by the Swedish Government, strongly backed by liberal majorities in the Second or popular Chamber of the Riksdag, to answer the public demand for a broadening of the suffrage, were defeated in the First Chamber, whose members are elected by the provincial Landstings and by municipal corporations. Success was not attained until 1909, when a Franchise Reform Bill, establishing universal suffrage and proportional representation, was passed by the Riksdag on the 10th of February, by larger majorities. According to a Press report from Stockholm, "the leader of the Liberals declared in the Lower House that, though his party had originally opposed it, they would now vote for the Bill, as the country demanded a solution of this long pending question. The Social Democrats and a few extremists of the Liberal party voted against it, considering it unacceptable in principle and inadequate because it excluded female suffrage. In the Upper House the Bill was opposed by a few uncompromising Conservatives, to whom it seemed too democratic."

SWEDEN: A. D. 1909.

Lockout and Attempted General Strike.

See (in this Volume)

LABOR ORGANIZATION: SWEDEN.

SWEDEN: A. D. 1909 (October).

Arbitration of Frontier Dispute with Norway.

See (in this Volume)

NORWAY: A. D. 1909 (OCTOBER).

-----SWEDEN: End-----

SWIFT & COMPANY et al.,

THE CASE OF THE UNITED STATES AGAINST.

See (in this Volume)
COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-1906.

SWITZERLAND:

Backwardness of Woman Suffrage.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

SWITZERLAND: A. D. 1870-1905.

Increase of Population compared with other European Countries.

See (in this Volume)
EUROPE: A. D. 1870-1905.

SWITZERLAND: A. D. 1902.

General Election.

The general election, in October, of representatives in the Federal Assembly, returned 97 Radicals, 35 Catholic Conservatives, 25 Moderate Liberals, 9 Socialists, and 1 Independent, being a total of 167. The previous Chamber had contained but 147, the increase of population having raised the number of representatives.

SWITZERLAND: A. D. 1902.

Use of the Referendum and Initiative down to that time.

See (in this Volume)
REFERENDUM.

SWITZERLAND: A. D. 1905.

Rupture between Radicals and Socialists.
Completion of the Simplon Tunnel.

The coalition hitherto maintained between Radical and Socialist parties was broken entirely in the elections of October, 1905, because of the anti-military attitude of the latter, who sought to have all national feeling and policy sunk in international sentiments and principles. The Socialists elected but two representatives in the National Council. In April the completion of the Simplon Railway Tunnel, furnishing a second passage through the Alps, was celebrated with much rejoicing. The work of boring this twelve-mile length of tunnel had been begun in 1898.

See, also, (in this Volume)
RAILWAYS: SWITZERLAND.

SWITZERLAND: A. D. 1909.

Acquisition of the St. Gothard Tunnel and Railway
by the Government.

See (in this Volume)
RAILWAYS: SWITZERLAND.

{638}

SYDOW, REINHOLD.

See (in this Volume)
GERMANY: A. D. 1908-1909.

SYNDICATES, German.

See (in this Volume)
COMBINATIONS, INDUSTRIAL (in Germany).

SYNDICATS AND SYNDICALISM, French.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1884-1909.

SZELL MINISTRY.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1902-1903.

T.

TABAH INCIDENT, THE.

See (in this Volume)

EGYPT: A. D. 1905-1906.

TABRIZ, SIEGE OF.

See (in this Volume)

PERSIA: A. D. 1908-1909.

TACNA AND ARICA QUESTIONS.

See (in this Volume)

CHILE: A. D. 1907.

TAFF-VALE DECISION.

See (in this Volume)

LABOR ORGANIZATION: ENGLAND: A. D. 1900-1906.

-----TAFT, WILLIAM H.: Start-----

TAFT, WILLIAM H.

President of the Second Philippine Commission.

Civil Governor of the Philippines.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1901.

TAFT, WILLIAM H.

Secretary of War.

See (in this Volume)

UNITED STATES: A. D. 1901-1905, and 1905-1909.

TAFT, WILLIAM H.

Report on the Purchase of the Friars' Lands.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1902-1903.

TAFT, WILLIAM H.

Organization of Provisional Government in Cuba.

See (in this Volume)

CUBA: A. D. 1906 (AUGUST-OCTOBER).

TAFT, WILLIAM H.

Special Report on the Philippine Islands.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1907.

TAFT, WILLIAM H.

Elected President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

TAFT, WILLIAM H.

Inauguration and Inaugural Address.

Cabinet Appointments.

See (in this Volume)

UNITED STATES: A. D. 1909 (MARCH).

TAFT, WILLIAM H.

On the Tariff.

See (in this Volume)

TARIFFS: UNITED STATES.

TAFT, WILLIAM H.

Statement, as President, relative to the
Tariff Maximum and Minimum Clause.

See (in this Volume)

TARIFFS: UNITED STATES: A. D. 1908-1909.

TAFT, WILLIAM H.

Tour of the United States.
Meeting with President Diaz, of Mexico.

See (in this Volume)

UNITED STATES: A. D. 1909 (SEPTEMBER-OCTOBER).

TAFT, WILLIAM H.

Legislation Recommended for the Conservation
of Natural Resources.

See (in this Volume)

CONSERVATION, &c.: UNITED STATES.

TAFT, WILLIAM H.

On Injunctions in Labor Disputes and on the Expediting
of Civil and Criminal Procedure.

See (in this Volume)

LAW AND ITS COURTS: UNITED STATES.

TAFT, WILLIAM H.

Special Message on "Trusts" and on Interstate Commerce.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D.
1910,
and RAILWAYS: UNITED STATES: A. D. 1910.

-----TAFT, WILLIAM H.: End-----

TAI HUNG CHI.

See (in this Volume)
CHINA: A. D. 1906.

TAI HUNG-TZE: GRAND COUNCILLOR OF CHINA.

See (in this Volume)
CHINA: A. D. 1909 (October).

TAIREN.

See (in this Volume)
DALNY.

TAI-TZE-HO, BATTLES AT THE.

See (in this Volume)
JAPAN: A. D. 1904 (JULY-SEPTEMBER).

TAKAHIRA KOGORO:

Japanese Minister at Washington and Plenipotentiary
for negotiating Treaty of Peace with Russia.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

TAKUSHAN HILL, CAPTURE OF.

See (in this Volume)
JAPAN: A. D. 1904-1905 (MAY-JANUARY).

TALIENWAN,
Re-named Dalny.
Later named Tairen, by the Japanese.

TAMMANY HALL:
Struggles with it.

See (in this Volume)
NEW YORK CITY.

TANG SHAO YI.

See (in this Volume)
OPIUM PROBLEM: CHINA.

TANGIER: A. D. 1905.
The German Emperor's Speech.

See (in this Volume)
EUROPE: A. D. 1905-1906.

-----TARIFFS: Start-----

TARIFFS: Australia:
The question in the First Parliament.

See (in this Volume)
AUSTRALIA: A. D. 1901-1902.

TARIFFS: Tariff Excise Act.

See (in this Volume)
LABOR REMUNERATION: THE NEW PROTECTION.

TARIFFS: Austria-Hungary: A. D. 1907.
Settlement of the Austro-Hungarian Tariff Question.

See (in this Volume)
AUSTRIA-HUNGARY: A. D. 1907.

TARIFFS: Balkan States: A. D. 1905.
Serbo-Bulgarian Customs Union.

See (in this Volume)
BALKAN STATES: BULGARIA AND SERVIA.

TARIFFS: British Empire: A. D. 1909.
Resolutions of Empire Congress of Chambers of Commerce.

See (in this Volume)
BRITISH EMPIRE: A. D. 1909 (SEPTEMBER).

TARIFFS: Canada:
Attitude of Canadian Manufacturers' Association toward Great
Britain and the United States on Tariff Questions.

See (in this Volume)
CANADA: A. D. 1903-1905.

TARIFFS: Canada and Germany:
German retaliation for Discriminating Duties in Favor
of British Goods.

Consequent on the discrimination in favor of British goods
which was granted in the Canadian tariff of 1897, Germany took
action which is explained in the following, from the Canadian
side of the official correspondence that ensued:

"Prior to July 31, 1898, Canada, as a portion of the British
Empire, received the most favourable tariff treatment in

Germany, under the terms of the treaty which had long existed between that country and Great Britain. On the date named, that treaty, having been denounced by the British Government, ceased to have effect. Provisional agreements have since been entered into from time to time between Great Britain and Germany. Canada, however, has been excluded from the benefit of such agreements. The products of Canada are no longer admitted into Germany on the favoured terms known in the German tariff as 'conventional duties,' but are specially excluded therefrom and made subject to the higher duties of the general tariff. The reason assigned by the German Government for this discrimination against Canada is the enactment by the Dominion of legislation granting preferential tariff rates to the products of Great Britain.

{639}

The undersigned desires to point out that the policy of the Canadian Government was not designed to give to any foreign nation more favoured treatment than was to be allowed to Germany. The Canadian policy has been confined to a readjustment of the commercial relations of the Dominion with the British Empire of which it is a part, a domestic affair which could hardly be open to reasonable objection by any foreign government. It would therefore seem that the action of Canada afforded no just ground for complaint by Germany. The undersigned is of opinion that there has been some misconception of the Canadian policy in this respect, and hopes that upon further consideration the German Government will see that Canada, in taking the step referred to, did not forfeit her claim to the advantages accorded by Germany to the most-favoured nations."

The German Government, however, maintained with firmness the ground it had taken; but eleven years later, in 1909, a German Canadian Economic Association at Berlin sent delegates to Canada to confer with chambers of commerce and solicit efforts for bettering commercial relations between them. The Montreal Board of Trade declined to take any action, saying,

substantially: "the reprisals against Canada were commenced by Germany on account of the granting of preference by the Dominion to Great Britain. If Germany now finds that she has made a mistake the Montreal Board holds that she should restore Canadian products to the conventional tariff, when the Canadian surtax on German goods will be automatically removed."

Finally, an agreement was reached which ended this tariff war between Germany and Canada. Announcement of it was made in the Canadian Parliament on the 15th of February, 1910, and it went into effect on the 1st of March.

TARIFFS: FRANCE: A. D. 1910.

A revision of the tariff, on which the French Parliament had long been engaged, was completed and became law on March 29, 1910, going into effect April 1.

TARIFFS: France-Canada:

Commercial Convention with Great Britain concerning Canada.

See (in this Volume)

CANADA: A. D. 1907-1909.

TARIFFS: Germany: A. D. 1902-1906.

The New Tariff Law and seven Special Tariff Treaties with European Countries.

A changed Commercial Policy.

In the Diet of the Empire the committee which had been laboring long and arduously on a tariff bill reported the measure in October, and its increase of duties, which the government did not favour, was stoutly opposed by Socialists, Radicals, and Liberals; but the Conservatives, representing the protected interests, constrained the government to withdraw its opposition and the bill was carried through as a

whole, without change.

"How deliberately the Germans go about their tariff policy; how thoroughly they study all the strong and weak points in their adversaries' positions; with what scientific care they measure their own manifold interests; how carefully they guard, in their work of tariff legislation, against disturbing the stability of existing business conditions may best be seen from the way in which the new tariff has been adopted. As early as 1898—*i. e.*, more than five years before the expiration of the old tariff treaties—a Commission of government experts and leading representatives of the industrial and commercial interests was organized to make a detailed study of the needs of every industry whose products were in any way affected by the tariff. After five years of incessant work of that character, in which more than 2,000 experts took part, the new general or so-called 'autonomous' tariff was enacted into law (but not put into effect) by the German Reichstag.

"The new tariff law adopted on December 25, 1902, with rates considerably raised, formed the basis of diplomatic bargaining, of which it took more than two years to conclude commercial treaties with the following seven countries: Austria-Hungary, Russia, Italy, Switzerland, Belgium, Roumania and Servia. These treaties, which considerably reduce some of the rates provided for in the tariff of 1902, were enacted into law on February 22d of this year, [1905], and together form the new so-called 'conventional' tariff, which will be applied to all countries enjoying 'most favored nation' privileges. Deliberate and cautious as these steps have been, the new tariff is not to be thrust upon the business community of the Empire on short notice, but the country is given one full year in which to adjust itself to the new rates. Hence the date for giving effect to the new tariff law has been set for March 1, 1906."

***N. I. Stone,
The New German Customs Tariff
(North American Review, September, 1905).***

The chief point of interest for the United States in this law is to be found, not so much in the high rates adopted, as in the statement made in the Reichstag foreshadowing a changed policy on the part of Germany in making new commercial treaties. On the final day of the tariff debate Dr. Paasche, one of the leaders of the majority, asserted that the government had promised that it would no longer extend treaty advantages to other countries than those that reciprocate with corresponding concessions. 'We expect,' said Dr. Paasche, 'that the government will undertake a thorough revision of all the treaties containing the most favored-nation clause. Promises of this kind were made to us in committee. We have absolutely no occasion to concede anything to such nations as are glad to take what we give by treaty to other countries without making us any concessions in return. The United States has introduced a limitation of the most-favored-nation clause; we have every reason to act in precisely the same manner.'

***W. C. Dreher,
A Letter from Germany
(Atlantic Monthly, March, 1903).***

In March, 1905, a few weeks after the conclusion of the last of the seven special tariff treaties referred to above, which modify the general German tariff of 1902-1906, in favor of the nations which became parties to them, the Consul-General of the United States at Berlin sent to the State Department at Washington the following table, showing, with reference to forty-six of the principal articles of German import from America (1) the then maximum or autonomous duty as paid under the tariff of 1879; (2) the same duties as modified and reduced by then existing treaty concessions; (3) the new autonomous duties that were to go into effect in 1906, and (4)

the amounts to which each of these rates of duty would be reduced on merchandise coming from certain of the seven European countries which had just concluded treaties of commerce with Germany.

{640}

The figures show in all cases, unless otherwise specified, the amount in American currency of duty per double centner (100 kilograms or 220.4 pounds):

Merchandise.

law of	Tariff	New tariff
go into	Difference.	1902 (to
1906).	(adopted in 1879).	effect in

Autonomous.	Maximum.	Reduced
by treaty.	Reduced	by treaty.

Wheat	\$1.19	\$0.83	\$1.78
\$1.30	\$0.58		
Rye	1.19	.83	1.66
1.19	.47		
Oats	.95	.67	1.66
1.19	.47		

Barley	.53	.47	1.66
.95	.71		
Corn	.47	.38	1.19
.71	.48		
Wheat Flour	2.50	1.74	4.36
2.42	1.94		
Malt	.95	.85	2.44
1.37	1.07		
Potatoes	Free.	Free.	.59
1.24	(a)		
Hops	4.76	3.38	16.66
4.76	11.90		
Dried apples, pears, apricots, peaches	.96	.95	2.38
.95	1.43		
Dried Prunes			2.38
1.19	1.19		
Fresh apples in barrels	Free.	Free.	2.38
1.19	1.19		

Sausages	4.76	4.04	16.66
9.52	7.14		
Lard	2.38	2.38	2.97
2.38	.59		
Salted			
Meats	4.76	4.04	10.71
8.33-9.25	2.38-1.46		
Butter	4.76	3.80	7.14
4.76	2.38		
Cheese	4.76	4.76	7.14
3.57-4.76	3.57-2.38		
Eggs	.71	.47	1.42
.71	.71		
Margarine	4.76	3.80	7.14
4.76	2.38		
Wood Alcohol	Free	Free	4.76
Free.	4.76		
Cows and			
oxen,			
per head	2.14	2.14	4.28
1.90	2.38		

Horses, per head	4.76	4.76	21.42 -
85.68	7.14 - 28.56	14.28 - 57.12	
Hogs, per head	1.42	1.19	4.28
2.14	2.14		
Shoes, coarse	11.90	11.90	20.23
20.23	...		
Shoes, medium	16.66	15.47	28.86
23.80	5.06		
Shoes, fine	16.66	15.47	42.84
30.70	7.14		
Lumber, rough	...	...	1.42
.47	.95		
Lumber, dressed	2.38	2.38	2.38
2.38	...		
Sewing machines	5.71	5.71	8.33

2.85 5.48

Sewing
machines,

power 5.71 5.71 4.76
1.90 2.86

Electrical machinery

a. Under 500 kilograms (
1,102 pounds) per 100 kilograms 2.14
2.14 ...

b. 500 to 3,000 kilograms
(1,102 to 6,614 pounds) 1.66
1.42 .24

c. More than 3,000 kilograms 1.42
.95 .47

Machine tools:

a. 250 kilograms
(551 pounds or less),
per 100 kilograms. 4.76
2.85 1.91

b. 250 to 1,000 kilograms
(551 to 2,205 pounds) 2.85

1.90 .95

c. 1,000 to 3,000 kilograms
(2,205 to 6,614 pounds) 1.90

1.42 .48

d. 3,000 to 10,000 kilograms
(6,614 to 22,046 pounds) 1.42

1.19 .23

Over 10,000 kilograms .97
.97 ...

Telegraph instruments,
telephones, electric
lighting and power
apparatus. 14.28
(b).95-9.52 (b)

Railway and
street cars 2.38
.71 1.67

Motor cars and motor
bicycles, each:

a. 50 kilograms
(110 pounds) or less, each 35.70

... ...

b. 50 to 100 kilograms

	(110 to 220 pounds), each	28.56
...	...	
c.	100 to 250 kilograms (220 to 550 pounds), each	21.42
...	...	
d.	250 to 500 kilograms (550 to 1,110 pounds)	14.28
9.52	4.76	
e.	500 to 1,000 kilograms (1,110 to 2,220 pounds)	9.52
5.95	3.57	
f.	1,000 kilograms and over	4.76
3.57	1.19	

(a) Free from August 1 to February 14.

(b) According to weight.

"It needs but a glance at this list," said Consul-General Mason, "to show how important will be the concessions granted to one or more of the seven treaty nations, and how formidable will be their competition in the German market against similar goods coming from countries which, for want of a reciprocal treaty or other convention, will be subject to the autonomous or unmodified tariff in exporting goods into Germany."

On the 1st day of March, 1906, this tariff came into effect, and the tariff arrangements of Germany with the United States,

under which the latter had enjoyed important concessions, secured by the "most favored nation" agreement in its commercial treaty with Germany, came to an end.

TARIFFS: A. D. 1909.

Economic Results of the Protective System.

See (in this Volume)

GERMANY: A. D. 1909 (APRIL).

TARIFFS: Great Britain: A. D. 1909.

List of articles on which Import Duties are collected.

The following is a complete list of the articles enumerated in the British tariff as subject to import duties:

Beer; Cards, Playing; Chicory; Cocoa; Coffee;
Fruit, dried or otherwise preserved without sugar;
Spirits and Strong Waters (including all alcoholic liquors, cordials and other alcoholic preparations);
Sugar (including all confectionery, sugar-preserved fruits, and other sugared preparations);
Tea; Tobacco, in all forms; Wine.

TARIFFS: A. D. 1909.

Question of Preferential Trade raised by Mr. Chamberlain.

See (in this Volume)

ENGLAND: A. D. 1903 (MAY-SEPTEMBER).

TARIFFS: The United States: A. D. 1908-1909.

The Demand for Tariff Revision.

Its Expression in the Presidential Election.

The Action of Congress and the President.

The Payne-Aldrich Tariff Act.

For more than a decade prior to the presidential election of

1908 the popular demand for a revision of the exorbitantly protective duties imposed by the so-called Dingley Tariff of 1897 had been steadily rising in the United States, and making itself heard by men in public life. It had penetrated the mind of the great captain-general of the protectionist forces.

{641}

President McKinley, as early as 1901, and his last public utterance, addressed to a multitude at the Pan American Exposition, in Buffalo, on the 5th of September, the day before he was struck down by a murderous anarchist, contained this wise admonition on the subject:

"We have a vast and intricate business, built up through years of toil and struggle, in which every part of the country has its stake, which will not permit of either neglect or of undue selfishness. No narrow, sordid policy will subserve it. The greatest skill and wisdom on the part of manufacturers and producers will be required to hold and increase it. ... Our capacity to produce has developed so enormously, and our products have so multiplied, that the problem of more markets requires our urgent and immediate attention. Only a broad and enlightened policy will keep what we have. No other policy will get more. ... We must not repose in fancied security that we can forever sell everything and buy little or nothing. If such a thing were possible, it would not be best for us or for those with whom we deal. We should take from our customers such of their products as we can use without harm to our industries and labor. Reciprocity is the natural outgrowth of our wonderful industrial development under the domestic policy now firmly established. What we produce beyond our domestic consumption must have a vent abroad. ... If perchance some of our tariffs are no longer needed for revenue or to encourage and protect our industries at home, why should they not be employed to extend and promote our markets abroad?"

TARIFFS: The Party-Platform Promises of 1908.

But President McKinley's words fell on deaf ears, among those to whom he had been leader and guide in this department of economic policy hitherto. They gave no heed to his new counsels of moderation for seven years. Even treaties of commercial reciprocity, which he had learned to appreciate since his own tariff-making was done, were negotiated in vain by the executive department of Government, to be scorned and rejected by the Senate. By 1908, however, the claim of the many-millions of consumers of the nation, for some relief from the intolerable cost to which almost every necessary of living had been worked up by the protective tariff lever, had risen to a pitch which compelled some attention from the managers of political parties and drew from them promises in the "platforms" prepared for the presidential and congressional canvassing of that year.

See (in this Volume)

UNITED STATES: A. D. 1908, APRIL-NOVEMBER)

The National Republican Convention at Chicago, which nominated Mr. Taft for the presidency, made this distinct and emphatic pledge:

"The Republican party declares unequivocally for a revision of the tariff by a special session of Congress, immediately following the inauguration of the next President, and commends the steps already taken to this end, in the work assigned to the appropriate committees of Congress, which are now investigating the operation and effect of existing schedules. In all tariff legislation the true principle of protection is best maintained by the imposition of such duties as will equal the difference between the cost of production at home and abroad, together with a reasonable profit to American industries. We favor the establishment of maximum and minimum rates to be administered by the President under limitations to be fixed in the law, the maximum to be available to meet discriminations by foreign countries against American goods

entering their markets, and the minimum to represent the normal measure of protection at home."

The National Convention, at Denver, of the Democratic party, supposedly confirmed in opposition to the whole theory of tariff protection by all its doctrinal history, made this declaration:

"We favor immediate revision of the tariff by the reduction of import duties. Articles entering into competition with trust-controlled products should be placed upon the free list, and material reductions should be made in the tariff upon the necessities of life, especially upon articles competing with such American manufactures as are sold abroad more cheaply than at home, and graduated reductions should be made in such other schedules as may be necessary to restore the tariff to a revenue basis."

The Republican Party elected its candidate for the presidency, with a majority in Congress, and was given the greater opportunity to redeem its pledge, while the Democratic Party obtained sufficient representation in both branches of Congress to aid and influence the promised revision with important effect. President Taft, in his inaugural address, spoke impressively of the urgent duty thus laid on Congress, saying:

"A matter of most pressing importance is the revision of the tariff. In accordance with the promises of the platform upon which I was elected, I shall call Congress into extra session, to meet on the fifteenth day of March, in order that consideration may be at once given to a bill revising the Dingley act."

TARIFFS:

The Making of the Payne-Aldrich Tariff.

The new Congress, as called by the President, was convened on the 15th of March, 1909, and a provisional tariff bill was introduced in the House of Representatives on the 18th by Chairman Payne of its Ways and Means Committee. This Bill was a product of the work of the House Committee of the preceding Congress, which had been giving hearings on successive tariff schedules since November. Naturally the protected interests swarmed to Washington, with attorneys and technical experts, and their side of every argument for and against existing duties was heard in its most persuasive form. Naturally, too, the unprotected consumers, less able to combine, were represented at the hearings in no such potent way, and their side of most arguments, according to all accounts, was but feebly pressed. Mr. Charles Francis Adams, who has the habit of plain speech, wrote a letter to Congressman McCall, of Massachusetts, while these hearings were in progress, in which he characterized a conspicuously greedy part of the clamorers for high duties in terms that were savagely rough, but not entirely undeserved. "Speaking after the fashion of men," he said, "they are either thieves or hogs. I myself belong to the former class. I am a tariff thief, and I have a license to steal. It bears the broad seal of the United States and is what is known as the 'Dingley Tariff.' I stole under it yesterday; I am stealing under it today; I propose to steal under it to-morrow.

{642}

The Government has forced me into this position, and I both do and shall take full advantage of it. I am therefore a tariff thief with a license to steal. And—what are you going to do about it? The other class come under the hog category; that is, they rush, squealing and struggling, to the great Washington protection trough, and with all four feet in it they proceed to gobble the swill. ... To this class I do not belong. I am simply a tariff thief. ... But, on the other hand, I am also a tariff reformer. I would like to see every protective schedule swept out of existence, my own included. Meanwhile, what inducement have I to go to Washington on a

public mission of this sort? A mere citizen, I represent no one. ... Meanwhile, have it well understood that my position is exactly the position of tens of thousands of others scattered throughout the country; to ask us to put aside our business affairs and at our own expense to go to Washington on a desperate mission is asking a little too much."

The Bill introduced by Mr. Payne was under debate in the House for three weeks, and passed on the 10th of April. In the Senate it was then nominally taken into consideration by the Finance Committee of that body, but that Committee, in fact, under the dominating lead of its chairman, Senator Aldrich, framed a new and protectively stiffened Bill, changed in 847 particulars from that of the House. A little more than twelve weeks were required for this more arduous labor of Mr. Aldrich, which the Senate approved by the passage of the Bill on the 8th of July. On the 9th it went to a conference committee of the two Houses; and there the President's influence, not much exerted, apparently, until now, wrung a few important concessions to the great public of consumers, which the special interests guarded by a majority in Congress had been determined not to yield. The American people owe it to President Taft's insistence that their shoes may be cheapened by a free importation of hides, and that lumber for their houses and coal for warming them may come from Canada at a slightly lower rate of duty than before; but he failed to loosen the grip of the woolen and cotton interests on the protected prices at which they are clothed.

After twenty days of battle the conferees reached agreement, July 29; the House adopted their report on the 31st, the Senate on the 5th of August. It was signed at once by the President, and went into effect the next day.

In the House the Bill was adopted by a vote of 195 to 183, twenty Republicans voting against it and two Democrats in its favor. In the Senate the vote stood 47 to 31, the negative

including seven Republicans, and one Democratic senator recording himself on the side of the Bill. The opposing Republicans in both Houses were stigmatized as "insurgents," and the autocratic Speaker of the House, Cannon, of Illinois, presumed, so far as the powers of his office would stretch, to "read them out" of their party. In their struggle to secure a more honest fulfilment of the election promises of both parties, and more loyalty to the welfare of the people at large, the Republican "insurgents" had no such compact and earnest support from the Democrats of Congress as even party considerations gave reason to expect.

After signing the Bill, the President gave out a statement for publication, in part as follows:

"I have signed the Payne tariff bill because I believe it to be the result of a sincere effort on the part of the Republican party to make a downward revision, and to comply with the promises of the platform as they have been generally understood, and as I interpreted them in the campaign before election.

"The bill is not a perfect tariff bill or a complete compliance with the promises made, strictly interpreted, but a fulfilment free from criticism in respect to a subject matter involving many schedules and thousands of articles could not be expected. It suffices to say that, except with regard to whiskey, liquors, and wines, and in regard to silks and as to some high classes of cottons—all of which may be treated as luxuries and proper subjects of a revenue tariff—there have been very few increases in rates.

"There have been a great number of real decreases in rates, and they constitute a sufficient amount to justify the statement that this bill is a substantial downward revision, and a reduction of excessive rates.

"This is not a free trade bill. It was not intended to be. The Republican party did not promise to make a free trade bill.

"It promised to make the rates protective, but to reduce them when they exceeded the difference between the cost of production abroad and here, making allowance for the greater normal profit on active investments here. I believe that while this excess has not been reduced in a number of cases, in a great majority, the rates are such as are necessary to protect American industries, but are low enough, in case of abnormal increase of demand, and raising of prices, to permit the possibility of the importation of the foreign article, and thus to prevent excessive prices."

"The administrative clauses of the bill and the customs court are admirably adapted to secure a more uniform and a more speedy final construction of the meaning of the law. The authority to the President to use agents to assist him in the application of the maximum and minimum section of the statute, and to enable officials to administer the law, gives a wide latitude for the acquisition, under circumstances favorable to its truth, of information in respect to the price and cost of production of goods at home and abroad, which will throw much light on the operation of the present tariff and be of primary importance as officially collected data upon which future executive action and executive recommendations may be based.

"The corporation tax is a just and equitable excise measure, which it is hoped will produce a sufficient amount to prevent a deficit, and which, incidentally, will secure valuable statistics and information concerning the many corporations of the country, and will constitute an important step toward that degree of publicity and regulation which the tendency in corporate enterprises in the last twenty years has shown to be necessary."

TARIFFS:

New Apparatus of Tariff Administration.

The President's remarks in the next to the last paragraph of the above statement have reference to an important section of the Tariff Act, which authorized the creation of a Board of General Appraisers, a Customs Court of Appeals, and an agency for the collection of information. The Board is to consist of nine general appraisers of merchandise, the salary of each to be \$9,000 per annum, who shall possess all the powers of a Circuit Court of the United States. To these general appraisers all cases of dissatisfaction with the amount and rates of duties levied by the appraisers and assistant appraisers at the various ports would be referred; the board to exercise both judicial and inquisitorial functions. The Customs Court was to be composed of a presiding Judge and four associate Judges appointed by the President, each to receive a salary of \$10,000 per annum; to be a Court of Record, with jurisdiction limited to Customs cases, and to have several judicial circuits, including Boston, New York, Philadelphia and Baltimore, New Orleans and Galveston, Chicago, Seattle, Portland and San Francisco, and such other places as may be found necessary.

More important, however, than either of these creations was the third one, embodied in a brief clause of the Act, which reads:

"To secure information to assist the President in the discharge of the duties imposed upon him by this section, and the officers of the Government in the administration of the customs laws, the President is hereby authorized to employ such persons as may be required."

The President availed himself promptly of this permission to have assistance from a commission or bureau of tariff

information, and on the 11th of September it was announced that he had chosen for the service three well-qualified gentlemen, namely: Professor Henry C. Emery, of Yale, chairman; James B. Reynolds, of Massachusetts, assistant secretary of the treasury, and Alvin H. Sanders, of Chicago, editor and proprietor of the Breeders' Gazette. In announcing the selection of the board, the following statement was made at the Executive Offices: "The President and the secretary of the treasury have agreed upon the plan that these three gentlemen are to constitute the board and are to be given authority to employ such special experts as may be needed in the investigation of the foreign and domestic tariff."

The important direction that was given at once by President Taft to this Tariff Board, as he has named it, was explained in his Message to Congress, December 6, 1909, as follows:

"An examination of the law and an understanding of the nature of the facts which should be considered in discharging the functions imposed upon the Executive show that I have the power to direct the tariff board to make a comprehensive glossary and encyclopædia of the terms used and articles embraced in the tariff law, and to secure information as to the cost of production of such goods in this country and the cost of their production in foreign countries. I have therefore appointed a tariff board consisting of three members, and have directed them to perform all the duties above described. This work will perhaps take two or three years, and I ask from Congress a continuing annual appropriation equal to that already made for its prosecution. I believe that the work of this board will be of prime utility and importance whenever Congress shall deem it wise again to readjust the customs duties. If the facts secured by the tariff board are of such a character as to show generally that the rates of duties imposed by the present tariff law are excessive under the principles of protection as described in the platform of the successful party at the late election, I

shall not hesitate to invite the attention of Congress to this fact, and to the necessity for action predicated thereon. Nothing, however, halts business and interferes with the course of prosperity so much as the threatened revision of the tariff, and until the facts are at hand, after careful and deliberate investigation, upon which such revision can properly be undertaken, it seems to me unwise to attempt it. The amount of misinformation that creeps into arguments pro and con in respect to tariff rates is such as to require the kind of investigation that I have directed the tariff board to make, an investigation undertaken by it wholly without respect to the effect which the facts may have in calling for a readjustment of the rates of duty."

TARIFFS:

The Corporation Tax.

The Corporation Tax mentioned in the final paragraph of the President's statement is one imposed by an incongruous section of the Tariff Act, designed for revenue additional to the expected yield of import duties. It exacts one per cent. of the net earnings in excess of \$5000 of all corporations, joint stock companies, and associations organized for profit and having a capital stock represented by shares, and all insurance companies. Foreign corporations are liable for the tax to the extent of their business in the United States. The net income upon which the tax is paid is to be ascertained by deducting from the gross income of the corporation all ordinary and necessary expenses of operation and maintenance; all uncompensated losses actually paid within the year on its bonded or other indebtedness not exceeding the paid-up capital stock; all Federal and State taxes already paid and all amounts received by it as dividends upon stock of other corporations subject to the tax hereby imposed.

Holding corporations were exempted in the original Bill. That exemption was struck out, but the Conference Committee adopted

the original clause. Corporations exempted from the tax are:—Labour organizations, fraternal beneficiary societies, orders or associations operating under the lodge system, and providing for the payment of life, sick, accident, and other benefits to their members and dependents; domestic building and loan associations organized and operated exclusively for the mutual benefit of their members, and any corporation or association organized and operated exclusively for religious, charitable, or educational purposes, no part of the profits of which inures to the benefit of any private stockholder, or individual, but all the profit of which is in good faith devoted to these purposes.

TARIFFS:

Two Opposite Views of the new Tariff.

The Payne-Aldrich Tariff has been and will long be a subject of bitterly contentious discussion, from opposite standpoints of disgusted disappointment and happy satisfaction, before a large indifferent audience, which takes such legislation as belonging to an established order of conditions in the United States. For a fair presentation of the conflicting judgments, two carefully chosen reviews of the Act, from the two points of view, by unquestionably representative writers, are quoted below. The first is from President Woodrow Wilson, of Princeton University, as follows:

{644}

"The methods by which tariff bills are constructed have now become all too familiar and throw a significant light on the character of the legislation involved. Debate in the Houses has little or nothing to do with it. The process by which such a bill is made is private, not public; because the reasons which underlie many of the rates imposed are private. The stronger faction of the Ways and Means Committee of the House makes up the preliminary bill, with the assistance of

‘experts’ whom it permits the industries most concerned to supply for its guidance. The controlling members of the Committee also determine what amendments, if any, shall be accepted, either from the minority faction of the Committee or from the House itself. It permits itself to be dictated to, if at all, only by the imperative action of a party caucus. The stronger faction of the Finance Committee of the Senate, in like fashion, frames the bill which it intends to substitute for the one sent up from the House. It is often to be found at work on it before any bill reaches it from the popular chamber. The compromise between the two measures is arranged in private conference by conferees drawn from the two committees. What takes place in the committees and in the conference is confidential. It is considered impertinent for reporters to inquire. It is admitted to be the business of the manufacturers concerned, but not the business of the public, who are to pay the rates. The debates which the country is invited to hear in the open sessions of the Houses are merely formal. They determine nothing and disclose very little. ...

"One extraordinary circumstance of the debates in the Senate should receive more than a passing allusion. The Republican party platform had promised that the tariff rates should be revised and that the standard of revision should be the differences between the cost of producing the various articles affected in this country and in the countries with which our manufacturers compete. One of our chief industrial competitors is now Germany, with its extraordinary skill in manufacture and the handicrafts and its formidable sagacity in foreign trade; and the Department of State, in order to enable Congress the more intelligently to fulfil the promises of the party, had, at the suggestion of the President, requested the German Government to furnish it with as full information as possible about the rates of wages paid in the leading industries of that country,—wages being known, of course, to be one of the largest items in the cost of production. The German Government of course complied, with its usual courtesy

and thoroughness, transmitting an interesting report, each portion of which was properly authenticated and vouched for. The Department of State placed it at the disposal of the Finance Committee of the Senate. But Senators tried in vain to ascertain what it contained. Mr. Aldrich spoke of it contemptuously as 'anonymous,' which of course it was not, as 'unofficial,' and even as an impertinent attempt, on the part of the German Government, to influence our tariff legislation. It was only too plain that the contents of the report made the members of the controlling faction of the Finance Committee very uncomfortable indeed. ... It would have proved that the leaders of the party were deliberately breaking its promise to the country. It was, therefore, thrown into a pigeonhole and disregarded. It was a private document.

"In pursuance of the same policy of secrecy and private management, the bill was filled with what those who discovered them were good-natured or cynical enough to call 'jokers,'—clauses whose meaning did not lie upon the surface, whose language was meant not to disclose its meaning to the members of the Houses who were to be asked to enact them into law, but only to those by whom the law was to be administered after its enactment. This was one of the uses to which the 'experts' were put whom the committees encouraged to advise them. They knew the technical words under which meanings could be hidden, or the apparently harmless words which had a chance to go unnoted or unchallenged. Electric carbons had been taxed at ninety cents per hundred; the new bill taxed them at seventy cents per hundred *feet*;—an apparent reduction if the word feet went unchallenged. It came very near escaping the attention of the Senate, and did quite escape the attention of the general public, who paid no attention at all to the debates, that the addition of the word feet almost doubled the existing duty.

"The hugest practical joke of the whole bill lay in the so-called maximum and minimum clause. The schedules as they

were detailed in the bill and presented to the country, through the committees and the newspapers,—the schedules by which it was made believe that the promise to the country of a ‘downward’ revision was being kept by those responsible for the bill, were only the minimum schedules. There lay at the back of the measure a maximum provision about which very little was said, but the weight of which the country may come to feel as a very serious and vexatious burden in the months to come. In the case of articles imported from countries whose tariff arrangements discriminate against the United States, the duties are to be put at a maximum which is virtually prohibitive. The clause is a huge threat. Self-respecting countries do not yield to threats or to ‘impertinent efforts on the part of other Governments, to affect their tariff legislation.’ Where the threat is not heeded we shall pay heavier duties than ever, heavier duties than any previous Congress ever dared impose.

"When it is added that not the least attempt was made to alter the duties on sugar by which every table in the country is taxed for the benefit of the Sugar Trust, but just now convicted of criminal practices in defrauding the Government in this very matter; that increased rates were laid on certain classes of cotton goods for the benefit, chiefly, of the manufacturers of New England, from which the dominant party always counts upon getting votes, and that the demand of the South, from which it does not expect to get them, for free cotton bagging was ignored; that the rates on wool and woollen goods, a tax which falls directly upon the clothing of the whole population of the country, were maintained unaltered; and that relief was granted at only one or two points,—by conceding free hides and almost free iron ore, for example,—upon which public opinion had been long and anxiously concentrated; and granted only at the last moment upon the earnest solicitation of the President,—nothing more need be said to demonstrate the insincerity, the uncandid, designing, unpatriotic character of the whole process. It was not

intended for the public good. It was intended for the benefit of the interests most directly and selfishly concerned."

Woodrow Wilson,
The Tariff Make-Believe
(*North American Review*, October, 1909).

{645}

The second quotation is from an article in *The Atlantic Monthly*, by Honorable Samuel W. McCall, Congressman from Massachusetts, setting forth reasons for a moderate satisfaction with the Act:

"The certain method of determining just what the Payne Act does, is, as I have said, to take its paragraphs in detail and scrutinize the new duties in comparison with those which they have supplanted. Such a course will show the exact character and number of the increases and decreases. Those who have no other means of comparison at hand may safely take the table prepared by the Honorable Champ Clark of Missouri, Democratic leader in the House of Representatives, and produced by him July 31 last, in his speech in the House of Representatives against the Conference Report on the bill. It is true that in commenting upon it he showed that he was a trifle rusty on his Cobden, and made the amount of actual revenue the test,—a method only less weird than that based upon the average ad valorem, for it is demonstrable that a purely free-trade tariff after the British model would provide us a greater revenue than does the Payne Act. While the table given by Mr. Clark exaggerates in some cases the extent of the increases, it will clearly appear from it that on the whole the decreases so vastly outnumber the increases as to make the new law seem almost revolutionary in character. If one takes the schedules in their order, he will find in the first schedule, which relates to chemicals, that the increases are a bare half-dozen in number, and include fancy soaps and alkaloids of opium and

cocaine, while the decreases are more than fifty, and include many of the articles which are in general consumption, such as sulphur, various forms of soda, potash, lead, and sulphate of ammonia, the last of which is put on the free list.

"The second schedule shows a slight increase upon the smaller sizes of plate glass, and this increase is many times offset by decreases upon fire and other brick, gypsum, various kinds of window-glass, nearly all the grades of marble, and other important articles.

"In the metal schedule there is an increase in fabricated structural steel, zinc ore, and a very few other items, some of which relate to articles not manufactured when the Dingley law was passed; but, on the other hand, the basic article of iron ore is reduced from forty to fifteen cents per ton, the lowest ad valorem that it has had in the history of the country; pig iron is reduced from four dollars to two dollars and a half per ton, scrap iron and steel from four dollars to one dollar per ton, bar iron from six-tenths to three-tenths of a cent a pound, cotton ties from five-tenths to three-tenths of a cent per pound, steel rails from seven dollars and eighty-four cents to three dollars and ninety-two cents per ton. There are nearly a hundred other reductions in the metal schedule: in fact, the reductions in this schedule are so general, and in some cases so drastic, that it may be said, practically, that these duties have been cut in two.

"The lumber schedule shows but two unimportant increases, while the schedule generally is cut nearly forty per cent. One grade of sawed boards is reduced from one dollar to fifty cents per thousand feet, and all other sawed lumber from two dollars to a dollar and a quarter per thousand. Fence posts are put on the free list. Dressed lumber, telephone poles, railroad ties, and other important products of wood, are very much reduced.

"Notwithstanding the attempt that is being made to create a sectional feeling in the West, the only schedule covering necessary articles in which increases predominate is the agricultural schedule. The duties are also increased upon champagnes and other wines, brandy, ale, beer, tobacco, silks, high-priced laces, and various other articles, which for want of a better term, are called luxuries.

"Bituminous coal is reduced from sixty-seven cents to forty-seven cents per ton, which with the exception of a very brief period, is in value the lowest duty we have ever imposed upon it.

"Agricultural implements are reduced, and a provision added admitting them free of duty from any country which admits our agricultural machinery free.

"Works of art more than twenty years old are put on the free list.

"Hides of cattle are put on the free list, and an enormous reduction made, not merely on all the products of these hides, but on nearly all articles of leather. Sole leather is cut from twenty to five per cent ad valorem, upper leather from twenty to seven and a half per cent, and boots and shoes from twenty-five to fifteen per cent, and, on important kinds, to ten per cent. ... The two great textile schedules are practically unchanged. The wool duty is politically the most powerful of any in the tariff. The farmers of the country have been pretty thoroughly educated to the belief, whether rightly or wrongly, that the free-wool agitation, culminating in the tariff of 1894, was responsible for the slaughter of their flocks. Their representatives formed the strongest single element behind the passage of the Dingley law; and, in the session just ended, their strength was so great as to discourage any assault upon the wool duties. These duties range from forty to more than one hundred per cent of the

value, and so long as they are maintained at such a high point it is idle to talk of any very material reduction on woollens or worsteds. The centre of the entire schedule is the duty upon wool. ... Every duty in this schedule from top to bottom might have been cut ten per cent without trenching upon the necessary amount of protection.

"The Dingley duties upon cottons were greatly less than those in the woolen schedule. This was doubtless due to the fact that we are the great cotton-producing nation, and our manufacturers are at no disadvantage in raw material with any of their foreign competitors. ... These duties are so complicated that it is difficult for one who is not an expert to understand them; but according to the best experts, they are, at least, no higher in the Payne Act than the Dingley duties were intended to be, and were interpreted to be for four years after the passage of the act."

{646}

The following is from an article in the *American Review of Reviews*, September, 1909:

"Summing up the changes made in the tariff as shown in the various Senate documents, the new act has increased the Dingley rates in 300 instances, while reducing them in 584 cases. The increases affect commodities imported in 1907 to the value of at least \$105,844,201, while the reductions affect not more than \$132,141,074 worth of imports. Four hundred and forty-seven million dollars' worth of imports (on the basis of 1907) remain subject to the same duties as under the Dingley tariff. That is to say, 65 per cent of the total imports remain subject to the old rates, more than fifteen per cent of the total will be subject to higher duties, the average increase amounting to 31 per cent. over the Dingley rates; and less than 20 per cent. of the imports are to be subject to lower duties, the reduction being estimated about

23 per cent. below the Dingley rates. All of these figures greatly underestimate the increases of duty for the following reasons: First they do not take into account the numerous changes (nearly all increases of duty) due to classification, similar to the instances cited in the case of sawn wood, structural iron, and cotton cloth; second a large part of the imports subject to ad valorem duties will now be assessed on the basis of domestic prices instead of the prices in foreign markets (with due allowance for freight and duty), as has hitherto been the case; and, finally, the possibility, even if remote, of the application of maximum rates to imports from some of the foreign countries, which will amount on the average to an increase of more than 50 per cent. over the new rates. The real increase of duty will not be accurately known for a year, until we have full returns of the imports and duties actually levied under the new law under the decisions of the Board of General Appraisers and the new Customs Court."

TARIFFS:

Certain Outside Effects.

As between the United States and France, the situation produced by the new Tariff Act, which caused existing commercial agreements between the two countries to be abrogated on the 31st of October, 1909, was explained as follows in a Press despatch of September 22 from Washington:

"The State Department has received from Consul-General Mason at Paris the text of the announcement by the French government of the abrogation of the several commercial agreements with the United States by the action of President Taft in conformity with the provisions of our new tariff act.

"‘Under and in consequence of these conditions,’ the French announcement says, ‘there is reason to decide that the decrees dated July 7, 1893, May 28, 1898, and February 21, 1903, which constitute the measure of the application of the

Franco-American agreement for merchandise produced in the United States and the Island of Porto Rico shall cease to be enforced on October 31, 1909.'

"On that date the articles produced in the United States and exported to France will pay what is known in France as its general tariff, but which in effect is its maximum rates of duty. The principal articles of export from the United States under this agreement are mineral oils and coffee from Porto Rico. At the same time articles imported from France into the United States under these agreements will pay our regular or highest rate. These include canned meats, fresh and dried fruits, manufactured and prepared pork meats, lard, and a few other articles of less importance."

The effect of the Payne-Aldrich Tariff Act on trade between the United States and Canada was left an open question, dependent on a decision which President Taft must make on or before April 1, 1910. Section 2 of the Law expressly provides the President with power to treat "any dependency, colony, or other political subdivision having authority to adopt and enforce tariff legislation" as a separate fiscal entity. The question for the President to decide is whether Canada, by reason of her preferential treatment of the Mother Country or by reason of the commercial treaty which she is about to conclude with France, will be judged guilty of "undue discrimination" and unworthy of the *minimum* rates.

Looked at from the English standpoint, it is thought that he "can hardly declare so natural a relationship as the existing British preference to be 'unduly' discriminatory when a similar relationship exists between Cuba and the United States, and when Porto Rico, Hawaii, and the Philippines actually enjoy reciprocal free trade with America and with America alone."

A more practical consideration in the matter, however, is that

suggested in the following, from a Boston newspaper, which remarks:

"According to the Department of Commerce and Labor, there are now 147 branch factories in Canada, representing a capital of \$125,000,000, established by United States concerns which formerly supplied their Canadian trade with the product of industry on this side the national border. This is the result of retaliatory legislation in Canada invited by our own tariff against Canadian imports. If further tariff war is invited by the imposition of the maximum schedules against Canada, still more United States capital will go over the line to provide employment and wages for Canadian workmen."

The *Monetary Times*, of Toronto, made an exhaustive inquiry on this subject late in 1909, and found 168 American manufacturing concerns in Canada, representing an estimated investment of \$226,000,000.

The spirit in which President Taft will interpret the maximum and minimum clause of the Act, and exercise his discretion in applying it, was indicated by him in his Message to Congress, December 6, 1909, when he said: "By virtue of the clause known as the 'Maximum and Minimum' clause, it is the duty of the Executive to consider the laws and practices of other countries with reference to the importation into those countries of the products and merchandise of the United States, and if the Executive finds such laws and practices not to be **unduly discriminatory** against the United States, the minimum duties provided in the bill are to go into force. Unless the President makes such a finding, then the maximum duties provided in the bill, that is, an increase of 25 per cent. ad valorem over the minimum duties, are to be in force. Fear has been expressed that this power conferred and duty imposed on the Executive is likely to lead to a tariff war. I beg to express the hope and belief that no such result need be anticipated.

{647}

"The discretion granted to the Executive by the terms 'unduly discriminatory' is wide. In order that the maximum duty shall be charged against the imports from a country, it is necessary that he shall find on the part of that country not only discrimination in its laws or the practice under them against the trade of the United States, but that the discriminations found shall be undue; that is, without good and fair reason. I conceive that this power was reposed in the President with the hope that the maximum duties might never be applied in any case, but that the power to apply them would enable the President and the State Department through friendly negotiation to secure the elimination from the laws and the practice under them of any foreign country of that which is unduly discriminatory. No one is seeking a tariff war or a condition in which the spirit of retaliation shall be aroused."

On the 19th of January, 1910, the President issued the first of his proclamations relative to the operation of the maximum and minimum rates of duty. Six countries, namely Great Britain, Russia, Italy, Spain, Switzerland, and Turkey, were designated as entitled to the minimum rates. Negotiations with Germany and France were understood to be still in progress, which might, it was hoped, clear away the differences that obstructed a similar concession to those countries. In the case of Germany, the difficulty related to the exclusion of American meats.

A second proclamation, February 7, announced the conclusion of an agreement with Germany which gave to each country the minimum rates of the other. This agreement had been ratified by the Reichstag on the 5th.

Negotiations with France and with Canada occupied more time,

being protracted in the latter case almost to the limit of the period prescribed in the Act. Terms of agreement were arrived at in both instances, and, in the end, the President was not called on to apply the maximum rates to any country.

-----TARIFFS: End-----

TARSUS:

Moslem attack on Armenians.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

TARTARS:

Holy War against Armenians in the Caucasus.

See (in this Volume)

RUSSIA: A. D. 1905 (FEBRUARY-NOVEMBER).

TASHINCHIAO, Battle of.

See (in this Volume)

JAPAN; A. D. 1904 (JULY-SEPTEMBER).

TAVERA, DR. T. H. PARDO DE.

See (in this Volume)

PHILIPPINE ISLANDS: A. D. 1901.

TAXATION:

Graduated Taxation of Land.

See (in this Volume)

NEW ZEALAND: A. D. 1905.

TAXATION:

Progressive Taxation of Fortunes.

See (in this Volume)
WEALTH, THE PROBLEMS OF.

TAYLOR, EDWARD R.

See (in this Volume)
MUNICIPAL GOVERNMENT: SAN FRANCISCO.

TEACHERS:
English and American Interchange of Visits.

See (in this Volume)
EDUCATION: INTERNATIONAL INTERCHANGES.

TEAMSTERS' UNION:
Strike at Chicago.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES: A. D. 1905 (APRIL-
JULY).

TECHNICAL EDUCATION.

See (in this Volume)
EDUCATION.

TEHERAN:
TEHRAN:
Revolutionary events in.

See (in this Volume)
PERSIA.

TELEGRAPHERS' STRIKE:
In France.

See (in this Volume)

LABOR ORGANIZATION: FRANCE: A. D. 1909 (MARCH-MAY).

TELEGRAPHERS' STRIKE:

In Russia.

See (in this Volume)

RUSSIA: A. D. 1904-1905.

TELEGRAPHERS' STRIKE:

In the United States.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1907.

TELEGRAPHY.

See (in this Volume)

SCIENCE AND INVENTION: ELECTRICAL.

TELEPHONE AND TELEGRAPH MERGER, United States.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D. 1909.

TELISSU, Battle of.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

TELLES, Sebastião.

See (in this Volume)

PORTUGAL: A. D. 1906-1909.

TEMPERANCE.

See (in this Volume)
ALCOHOL PROBLEM.

TENEMENT HOUSE REFORM.

See (in this Volume)
NEW YORK: A. D. 1900-1903.

TERRITORIAL FORCE, THE BRITISH.

See (in this Volume)
WAR, THE PREPARATIONS FOR: MILITARY.

TEWFIK PASHA.

See (in this Volume)
TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

TEXAS: A. D. 1906-1909.

Successful Prosecution of the Waters-Pierce Oil Company.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.:
UNITED STATES: A. D. 1904-1909.

THEOTOKIS MINISTRY.

See (in this Volume)
GREECE: A. D. 1906, and 1909.

THIBET.

See TIBET.

THOMSON, Sir Joseph:

Presidential Address to British Association for the
Advancement of Science, at Winnipeg.

See (in this Volume)
SCIENCE AND INVENTION: RECENT: PHYSICAL.

THOMSON, J. J.

See (in this Volume)
NOBEL PRIZES.

TIBET: A. D. 1902.

Russo-Chinese Treaty for Control of the Country.

"A Russo-Chinese treaty concerning Tibet was negotiated [in the later months of 1902] ... by Yung-lu. And as it had to be notified to the Chief-Lamas of the different Buddhist countries, it became possible to obtain the confidential communication of its text immediately on its conclusion. This text, which I published a month ago in the *Frankfurter Zeitung*, and which has since been admitted as correct by Russian semi-official papers, runs as follows:

"Article 1st.

Tibet being a territory situated between Central China and Western Siberia, Russia and China are mutually obliged to care for the maintenance of peace in that country. In case troubles should arise in Tibet, China, in order to preserve this district, and Russia, in order to protect her frontiers, shall despatch thither military forces on mutual notification.

{648}

"Article 2nd.

In case of apprehension of a third Power's contriving, directly or indirectly, troubles in Tibet, Russia and China oblige themselves to concur in taking such measures as may

seem advisable for repressing such troubles.

"Article 3d.

Entire liberty in what concerns Russian orthodox as well as Lamaist worship will be introduced in Tibet; but all other religious doctrines will be absolutely prohibited. For this purpose, the Grand-Lama and the Superintendent of the Orthodox Peking Mission are bound to proceed amicably and by mutual assent, so as to guarantee the free propagation of both religions and take all necessary measures for avoiding religious disputes.

"Article 4th.

Tibet shall be made, gradually, a country with an independent inner administration. In order to accomplish this task, Russia and China are to share the work. Russia takes upon herself the reorganisation of the Tibetan military forces on the European model, and obliges herself to carry into effect this reform in a good spirit and without incurring blame from the native population. China, for her part, is to take care of the development of the economic situation of Tibet, and especially of her progress abroad."

***Alexander Ular,
England, Russia, and Tibet
(Contemporary Review, December, 1902).***

TIBET: A. D. 1902-1904.

British Enforcement of Unfulfilled Promises.

The Peaceful Mission of Colonel Younghusband which forced its way to Lhasa.

For a dozen years prior to 1902 there had been unfulfilled promises from China to India of a settlement of trade relations between Tibet and the latter, so far as the nominal suzerain at Peking had power to settle them. In that year the Chinese Government proposed to send a Commissioner to the

Tibetan frontier to discuss matters there, and the Viceroy of India, assenting promptly to the proposal, commissioned Colonel Younghusband, in June, 1903, to proceed, with the British Political Officer in Sikkim, to Khamba Jong, for a meeting with Chinese and Tibetan representatives. The mission was escorted by 200 native troops, and reached the meeting place in July, but found no Chinese or Tibetan envoys on the spot. It remained encamped at the appointed place for six months or more, Colonel Younghusband returning personally meantime to Simla to report the situation and receive instructions. A reserve force was stationed in Sikkim to protect the mission in case of need.

Early in 1904 the mission moved forward, over the Tang Pass, to Tuna, where it halted again until the end of March, no envoys appearing, but many marks of hostility shown. Then, after being reinforced,—as the intention of Tibetans to oppose its further advance had become plain,—its march was resumed. Thrice attacked within the next few days and forced to severe fighting, it reached Gyangtse on the 11th of April, where it was halted again until near the end of June, in a camp established on the plain. There Colonel Younghusband received a communication from the Chinese Resident or Amban at Lhasa, promising to meet him in three weeks. This was followed immediately however by a fierce attack of the Tibetans on the British camp. The assault was repelled, but bombardment of the camp was opened from a neighboring fort. The Mission now abandoned attempts to maintain its peaceful character, and with approval of the governments behind it, both in India and Great Britain, prepared to force its way to Lhasa and extort fulfilment of the promises on the strength of which it had been sent. General Macdonald, who held the military command, brought up further reinforcements, and the expedition, now numbering about 1000 British and 2000 native troops, after capturing the fort at Gyangtse which had harassed it, set forth on its march to Lhasa July 14th. It met with slight resistance in the Karola Pass, across which a wall had been

built; but otherwise it found little but the natural obstacles of the mountain country to overcome. Lhasa was reached, but not entered in force, on August 3d. The Dalai Lama had left the city, but had appointed an intelligent monk to act as regent in his place. With him and with the Chinese Amban Colonel Younghusband succeeded in negotiating the treaty desired, which was signed September 7th. As soon as possible thereafter the expedition started on its return, but suffered severely from the cold and snows of the mountains before India was reached. Its total death roll was 411, of which only 37 officers and men had died from battle-wounds.

By the treaty secured, the Tibetan Government was pledged to carry out former agreements concerning the marking of boundaries and the opening of trade at three marts; to arrange a fixed tariff; to maintain certain roads from the frontier; and to make no territorial, political, or commercial concession to any foreign Power without granting similar or equivalent concessions to Great Britain. It also undertook to pay an indemnity for the cost of the British expedition, pending the payment of which the Chumbi Valley should be held by a British force.

TIBET: A. D. 1907.

Convention between Great Britain and Russia relative to Tibet.

See (in this Volume)

EUROPE: A. D. 1907 (AUGUST).

TIBET: A. D. 1910.

Chinese Authority strengthened in Tibet.

Flight of the Dalai Lama.

His formal Deposition.

The Dalai Lama, who had fled from Lhasa in 1904, on the approach of the British expeditionary force under Colonel Younghusband, did not return to Tibet until more than five

years later. Meantime he had visited Peking, where he was coldly received, and seems to have wandered widely through the Empire. During his absence the Chinese authority in Tibet had been strengthened, and his return was followed by a considerable reinforcement of troops to support the Ambans who represent the Chinese Government at Lhasa. Exactly what friction arose then has not yet been made clear; but, in February, 1910, the Lama fled again from his capital, into India, and on the 25th he was solemnly deposed from his sacred office by an imperial decree.

TIEN-TSIN:

Delivered to the Chinese Viceroy.

See (in this Volume)

CHINA: A. D. 1902.

TIGER HILL.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

TILAK, BAL GANGADHAR:

His Trial and Imprisonment.

See (in this Volume)

INDIA: A. D. 1907-1908.

TIRPITZ, Admiral:

On German Navy-building.

See (in this Volume)

WAR, THE PREPARATIONS FOR: NAVAL.

TISZA MINISTRY.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1902-1903; 1905-1906.

{649}

TITTONI MINISTRY.

See (in this Volume)
ITALY: A. D. 1905-1906.

TOBACCO FARMERS' UNION, IN KENTUCKY:
Its Night-Riders.

See (in this Volume)
KENTUCKY: A. D. 1905-1909.

TOBACCO TRUST:
Suit of the Government against it.
Report of Commissioner of Corporations.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES:
A. D. 1901-1906; 1905-1906; 1907-1909; and 1909.

TOGO, Admiral:
In the Russo-Japanese War.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY), and after.

TOLSTOI, COUNT LYOFF:
His Challenge to the Russian Government.

See (in this Volume)
RUSSIA: A. D. 1909.

TOMUCHENG.

See (in this Volume)
JAPAN: A. D. 1904 (JULY-SEPTEMBER).

TORONTO: A. D. 1909.
Meeting of International Council of Women.

See (in this Volume)
WOMEN, INTERNATIONAL COUNCIL OF.

TOWN-PLANNING LEGISLATION.

See (in this Volume)
SOCIAL BETTERMENT: ENGLAND; A. D. 1909.

TRADE BOARDS BILL, THE ENGLISH.

See (in this Volume)
LABOR REMUNERATION: WAGES REGULATION.

TRADE UNIONS.

Disputes.
Agreements:

See (in this Volume)
LABOR ORGANIZATION.

TRANSANDINE RAILWAY TUNNEL.

See (in this Volume)
RAILWAYS: ARGENTINE-CHILE.

en.wikipedia.org/wiki/Transandine_Railway

TRANS-MISSOURI FREIGHT ASSOCIATION, The Case of the.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1890-1902.

TRANSVAAL, THE.

See (in this Volume)
SOUTH AFRICA.

TREPOFF.

See (in this Volume)
RUSSIA: A. D. 1904-1905.

TRIPLE ALLIANCE, THE: A. D. 1902.
Renewal.

The Triple Alliance of Germany, Austria-Hungary, and Italy, originally negotiated in 1879, was renewed in June, 1902, for twelve years from May, 1903.

TRIPLE ALLIANCE, THE: A. D. 1905.
Effect of the Defeat of Russia in the War with Japan.

See (in this Volume)
EUROPE: A. D. 1904-1909.

TROUBETZKOI, PRINCE S. N.

See (in this Volume)
RUSSIA: A. D. 1905-1907.

TRUSTS.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.

TSAI-TSE, PRINCE: HIS MISSION ABROAD.

See (in this Volume)

CHINA: A. D. 1905-1908.

TSONTSHEFF, GENERAL:
Operations in Macedonia.

See (in this Volume)
TURKEY: A. D. 1902-1903.

TSUSHIMA, NAVAL BATTLE OF.

See (in this Volume)
JAPAN: A. D. 1904-1905 (OCTOBER-MAY).

TUBERCULOSIS, THE CRUSADE AGAINST.

See (in this Volume)
PUBLIC HEALTH.

TUNG FANG.

See (in this Volume)
CHINA: A. D. 1906.

TURBINE ENGINE.

See (in this Volume)
SCIENCE AND INVENTION, RECENT.

-----TURKEY: Start-----

TURKEY: A. D. 1901.

The Bulgarian Committee which directs Revolutionary
Operations in Macedonia.
Its Instructions to the Bands and Control of their Murders.

"The Committee which was originally formed at Sofia for the
purpose of conducting the nationalist campaign among the

Macedonians has been the dominant factor in the later developments of the Macedonian problem, and is directly responsible for all the periodical outbreaks which students of Eastern politics have been accustomed to look for at the approach of spring during the last few years. The nature of this Society will be clearly appreciated from the following document, which sets forth in unequivocal terms both the Committee's mission and the means resorted to for its fulfilment. This document was seized on the Bulgarian conspirators who in the spring of 1901 were arrested at Salonica, tried, sentenced to fifteen years' incarceration at Rhodes, and permitted to escape a few months after. I obtained a literal translation of it from an official source at the time ...:

"'Each armed band to consist of Bulgarians belonging to each particular district. Their duty is to carry out secretly the orders given by the president of the committee. The bands are armed with weapons furnished by the Committee. These bands are formed by the revolutionary committees of each district or village, and receive the military training necessary for their purpose. These bands depend on the committees, and in their turn distribute arms among those whom they enrol or gain over to the cause. ... The armed bands are placed under the command of the local committees in accordance with the following rules:

"'To obey received instructions. By means of persuasion or intimidation to place new recruits at the committees' disposal. To put to death the persons indicated by the committees. ... Each band, under the command of the revolutionary committee established in the district, to be ready to raise the standard of revolt on being so ordered by the local committee, which cannot act except by the order of the president of the Sofia committee. ... The bands shall also commit political crimes: that is to say, they shall kill and put out of the way any person who will attempt to hinder them

from attaining their ends, and shall immediately inform the Sofia committee of the crimes committed. The instructions of the bands must be kept quite secret, as the least indiscretion may lead to great disaster. ... "Acts of personal vengeance, attacks on villages, and generally all kinds of unauthorised attempts to raise a revolution are strictly forbidden, and those who are guilty of such acts will be sentenced to death. No murder shall be committed by the bands without a previous decision taken by the committee, except those which are inevitable in an accidental encounter.'

"The reports of the action of the Committee in Macedonia during the last twelve months alone form a *dossier* which leaves little doubt to the reader of average candour that the regulations printed above are not allowed to remain a dead letter, but that practice goes hand in hand with, or rather outstrips, precept. The exploits of the Committee and its brigands in the country may be classed under three heads: extortion, intimidation, provocation. ...

{650}

"Cases of wanton massacre, though not so numerous as the atrocities committed with a material object in view, are not uncommon. The victims in these cases are generally Mohammedans. ... The motive of these outrages is purely to provoke reprisals—that is, a general massacre—and then pose as the victims of Turkish cruelty and fanaticism, a cry which never fails to move the nations of Europe to sympathy and their Governments to intervention."

G. F. Abbott,
The Macedonian Question
(Nineteenth Century, March, 1903).

TURKEY: A. D. 1901-1902.

Abduction of Miss Ellen M. Stone, by Brigands.

The Ransom paid for her Release.

In a communication to the President of the United States, March 24, 1908, the Secretary of State, Mr. Root, recited the circumstances which attended the abduction by brigands, in 1901, of Miss Ellen M. Stone, an American missionary to Turkey, as she travelled the highway from Raslog to Djumabala in the Turkish Empire, and the necessary payment of a ransom to her captors, to secure her release. In the judgment of Mr. Root the Government should refund the ransom money to the citizens from whom it was obtained by subscription at the time, and his communication, as follows, was to that end:

"Our diplomatic and consular representatives in Turkey, in correspondence with the Department of State, shortly after the capture, indicated their belief that the motive therefor was to obtain a ransom, and stated that they had requested the Turkish officials to abstain from too close pursuit of the brigands, lest the death of the captured might result. From later correspondence with our representatives it appeared that the brigands had retired to the mountains with the captive, probably over the border into Bulgaria. The exact location of the party during the captivity, however, is not established by any evidence in the possession of the Department of State, nor does it appear clearly of what government the bandits were subjects.

"About October 1, 1901, the bandits opened negotiations for a ransom, demanding £25,000, and transmitting a letter from Miss Stone, asking that the sum demanded be paid and that pursuit of the brigands by the Turkish troops be stopped. Our diplomatic representatives were of the opinion that Miss Stone's release could only be obtained by the payment of the ransom, and the State Department shared this view. Miss Stone's friends, of course, entered into correspondence with the Department regarding the payment of the ransom, and were told that it must be raised by private means.

"On October 3, 1901, the State Department wrote to the Reverend Judson Smith, of the American Board of Commissioners for Foreign Missions, Boston, Massachusetts, as follows: 'It seems imperative that the amount (of the ransom) should be raised or pledged, so as to be available by your treasurer at Constantinople in season to save Miss Stone. Statutory prohibitions make it impossible for this Government to advance the money or guarantee its payment. If paid by Miss Stone's friends, every effort will be made to obtain reimbursement from whichever government may be found responsible under international law and precedent. In the event of its proving impossible to hold any foreign government responsible for the capture and to secure the repayment of the money, this Government is willing in the last resort to urge upon Congress as strongly as possible to appropriate money to repay the missionaries.'

"It is claimed that this assurance given by the Department in its letter to Mr. Smith, to the effect that, as a last resort, a recommendation would be made to Congress looking toward the appropriation of a sum sufficient to pay the donors, was largely instrumental in enabling Miss Stone's friends to secure the sum of \$66,000, which was raised through public subscription in this country by October 23, 1901, for the purpose of effecting Miss Stone's release. After negotiations of considerable length, the brigands finally consented to accept the amount raised and arrangements were made by United States Minister Leishman for the payment of the money at a point near Bansko, Macedonia, the Turkish authorities consenting to withhold their troops from the vicinity of the place in order that the negotiations might have a successful issue. The release of the captive was not obtained so soon as expected, but was finally reported by Minister Leishman on February 23, 1902.

"After careful consideration of all the facts my predecessor,

Mr. Hay, decided on January 19, 1905, that it was not advisable to attempt to hold the Turkish Government responsible for the capture and to secure the repayment of the money. Upon the subsequent application for reconsideration of this decision Mr. Hay again, on April 11, 1905, reaffirmed the judgment which he had originally expressed. Upon a further review of the same subject I have come to the conclusion that it is not advisable to reverse or change the conclusion which Mr. Hay reached.

"It would seem, therefore, that the Executive Department is bound to make good its promise to recommend to Congress that money be appropriated to repay the ransom money, a promise which was probably relied upon by many of those who contributed of their private means to save the life of an American citizen believed to be in the gravest peril. Accordingly I have the honor to advise that Congress be recommended to appropriate an amount sufficient to repay the contributors."

60th Congress 1st Session, Senate Document No. 408.

TURKEY: A. D. 1902-1903.

Conventions for Building the Bagdad Railway.

See (in this Volume)

RAILWAYS: TURKEY: A. D. 1899-1909.

TURKEY: A. D. 1902-1903.

Insurgent operations in Macedonia.

Horrible Retaliatory Atrocities.

Misery of the Macedonian Peasants.

Contradictory Reports and Views of the Situation.

Insurgent operations in Macedonia were opened in the fall of 1902 and continued the following year, and into 1904. Besides an activity of insurgent bands and collisions with Turkish

soldiery, there were many dynamite explosions, wrecking a bank at Salonica, blowing up a railway train, a passenger steamer, and other outrages of that kind. Then came confused and revolting accounts of a terrible retaliation by the Turks. According to Dr. Dillon, the monthly reviewer of "Foreign Politics" for *The Contemporary Review*, the substantial facts of what occurred were these:

{651}

"The insurrection in Macedonia planned by outsiders and fixed for last autumn [1902] proved abortive. The first shot should have been fired in August, but the members of the revolutionary agencies which organised the scheme quarrelled among themselves at the Congress held during that month in Sofia, and then split up into hostile factions. In the committee of one of these sections, General Tsontsheff occupied the foremost position, and he resolved on his own initiative to stir up the Macedonians to rebellion. Now it should be borne in mind that all these committees are composed of so-called outsiders—that is to say, mainly Macedonian refugees in Bulgaria, and that whether their aim be to get the provinces annexed to Bulgaria or Servia, or to demand simple autonomy, they meet with but little sympathy and less active support in Macedonia itself, where there is a very intelligent native organisation in favour of self-government. Tsontsheff was therefore left largely to his own resources. On the 23rd of September his adjutant, Nikoloff, crossed the frontier, but owing to the Shipka festivities, it was not until the 15th of October that Tsontsheff himself, who had meanwhile escaped from prison, took the field. The scene of action was the valley of the Struma, which a week later was wholly occupied by the Turks, and the insurrection, which had hardly even flashed, suddenly fizzled and went out. The natives warned by their own committee had generally held aloof. But there were people among them who, not content with holding back, resolved to act in the spirit of the admonitions vouchsafed to them by

the Great Powers, and ordered the revolutionary bands to quit the country, and when the latter refused, actually drove them off with arms in their hands. ...

"When the people had gone home the Turks came to search for arms. The peasants denied that they possessed any, and then the work of torture began. All who could, ran away, and, owing to the height of the mountain passes and the enormous snowdrifts, had to leave their wives and children behind. Before this calamity overtook the place, the district of Razlog had twelve hamlets and 3,665 Bulgarian houses containing about 25,000 inmates. Of these Madame Bakhmetieff, the American wife of the Russian minister in Sofia, counted 961 fugitives, besides some hundreds who found a refuge in the Peshtshersky district. The entire number of able-bodied men driven away from Razlog alone is about 1,500!

"In that loyal and well-conducted district there were fourteen churches with twenty-two priests; of the latter eight escaped to Bulgaria, one was killed, one arrested, and the fate of the remainder is unknown. According to the statement of the priest who, having made good his escape, found an asylum in the Principality, their churches were defiled and destroyed by the Turks. A considerable number of the remaining peasants are said to have perished on the way over the mountains. Over one-third, therefore, of the male population of the best behaved district of Macedonia has been thus forced to flee the country. ...

"We have the authority of Madame Bakhmetieff—who travelled about in the deep snow with the thermometer at 22 Celsius below freezing point, to bring succour to the fugitives—for saying that two priests of the villages of Oranoff and Padesh were tortured in a manner which suggests the story of St. Lawrence's death. They were not exactly laid on gridirons, but they were hung over a fire and burned with red hot irons. In the Djumaïsk District six churches were destroyed, and the

Church of St. Elias was turned into a stable, while the shrine dedicated to the same saint in Shelesnitza was converted into a water closet. The churches of Padesh, Troskoff and Serbinoff were razed to the ground; the school buildings in the Djumaïsk District were used as barracks, and the teachers put in prison or obliged to flee. The horror of the situation is intensified, Madame Bakhmetieff says, by the fact that large numbers of fugitives have been driven back by the Turks into the interior southwards towards Seres, where their horrible sufferings and their miserable end will be hidden from all who might give them help or pity."

***E. J. Dillon,
The Reign of Terror in Macedonia
(Contemporary Review, March, 1903).***

Another view of the Macedonian situation is presented in the following, from another of the English reviews:

"The Macedonian problem is desperate mainly because it has been overlaid with abstractions. We talk of trouble in the Balkans, of insurgent excesses, and Turkish atrocities, without realising that these occasional and startling phenomena are the product of a misery that is as constant as it is uninteresting—and unbearable. We think of Turkish misrule as an isolated and irrational fact, without comprehending that it is a highly organised and quite intelligent system, designed to promote the profit of a small minority of officials, tax farmers, and landlords. It rests on a substantial basis of corrupt and anti-social interest. The political mismanagement is the least of all the evils it produces. The reality behind the whole muddle of racial conflicts, beyond the Chauvinism of the Balkan peoples and the calculations of the greater Powers, is the unregarded figure of the Macedonian peasant, harried, exploited, enslaved, careless of national programmes, and anxious only for a day when he may keep his warm sheepskin coat upon his back, marry

his daughter without dishonour, and eat in peace the bread of his own unceasing labour. All our efforts might fail to bestow upon him an ideal government—there are not the makings of a harmonious nation in Macedonia. But politics are, after all, a mere fraction of life. While Servia earns the contempt of the civilised world, the Servian peasant sows in hope and reaps in peace, keeping for winter evenings the tale of murdered forbears and ravished ancestors. The Macedonian villager is ignorant. But his leaders have heard of a far-off England which twenty-five years ago flung them back under the heels of the Turk, after Russia had won their freedom at San Stefano. The tale runs that this same England then guaranteed them, at Berlin, the amplest of reforms. And thereupon these simple men will talk about their rights. It is for these they are fighting."

***H. N. Brailsford,
The Macedonian Revolt
(Fortnightly Review, September, 1903).***

{652}

And still a third view in this which follows:

"The Turks are honestly doing their best to administer justice indifferently. Again and again during my travels in Macedonia I have admired the energy of Valis and Kaimakams, who hold thankless posts with courage and determination. If the Albanians could be kept in order and Bulgarian anarchism could be suppressed, there would be no grievances in Macedonia to-day. The Albanians are turbulent sportsmen, engaging as individuals, but intolerable as neighbours. They must be made to understand that no further nonsense will be permitted. The Porte would be quite capable of reducing them to order if they had not a powerful protector at hand. The Porte could also reduce the Bulgarian conspirators if she did not fear to arouse prejudice in Europe. The echo of former Bulgarian

‘atrocities’ (as resolute government was dubbed), paralyses effective action. The Turks cannot punish Christian criminals so long as Exeter Hall is on the *qui vive* to defend them. Give the Sultan a free hand, and the Macedonian conspiracy may be ended in a few weeks."

***Herbert Vivian,
The Macedonian Conspiracy
(Fortnightly Review, May, 1903).***

The British Government received the following representation of facts from its Minister to Bulgaria, Mr. Elliott, in a despatch dated May 19, 1903.

"There are some points which appear to me to be too frequently lost sight of in apportioning responsibilities for occurrences in Macedonia. In the first place, the term ‘Bulgarian’ is applied indiscriminately to subjects of the Principality and to Macedonians of Bulgarian race, and the former are made to bear the blame for the actions of the latter. In the same way, it appears to be believed that the ‘Bulgarian bands’ which make incursions into Macedonia from the territory of the Principality are composed of Bulgarian subjects, whereas the latter probably do not contribute more than 10 per cent, of the number of incursionists, the remainder being all Macedonians, of whom there are some 200,000 in the Principality."

The same Minister wrote from Sophia on the 1st of July: "All the reports received concur in stating that every Turkish official, civil and military, from Hilmi Pasha downwards, look to war as the only means of escape from a situation which is becoming intolerable. It is obvious that in such a war both sides would have much to lose and little material advantage to gain; but the Turks argue that if they could administer a crushing defeat to Bulgaria, of which they have no doubt, they would, even if they were afterwards obliged to withdraw,

obtain some years' peace in Macedonia, by the destruction of what they have been taught to believe, with some justification in the past, is the centre of disaffection, though the real cause of it is to be sought in their own maladministration. The Bulgarians, although believing that the conquest of Bulgaria would not prove the easy matter that the Turks seem to imagine, are, for the most part, under no illusions as to their ability to hold out single-handed against the Ottoman Empire; they are unprepared, and they have apparently been deserted by their protectors. They are, therefore, sincere in their desire to do everything to avoid a conflict. But it does not rest with them to avoid it. The Macedonian agitators will naturally do all they can to provoke a war. It is therefore of the most urgent importance that an attempt should be made by the Turkish Government to restore the conditions of life in Macedonia to something like their normal state. If the persecutions of the last few weeks continue, it will be impossible for the Government to restrain the Macedonians established in this country."

Parliamentary Papers, Cd. 1875.

The condition of suffering in the region of country tormented by this inhuman strife is indicated by such despatches as the following, from the British Vice-Consul at Monastir, writing September 23, 1903:

"According to the best data actually available, the number of persons now wandering on the mountains homeless and destitute cannot be estimated at less than 40,000, while the number of Christians massacred may be safely put down at 3,000. Some of my colleagues, notably the Austrian, French, and Italian Consuls, have sent even higher figures to their embassies."

***Parliamentary Papers
(Turkey, No. 2, 1904), Cd. 1879.***

TURKEY: A. D. 1903-1904.

The Müritzsteg Programme of Reforms in the Administration of Macedonia.

During a meeting of the Emperors of Austria-Hungary and Russia, in 1903, at Müritzsteg, in the Austrian Alps, a plan of supervised administration in Macedonia (known since as the Müritzsteg Programme), to be pressed on the Turkish Government, was agreed upon by the two sovereigns and their advisers. With the assent and support of the other Powers in Europe this was submitted to the Porte, and was accepted in principle on the 25th of November; but it was not until the following May that it could be said to have been brought at all into action.

Turkey "agreed

(1) to the appointment, for two years only, of Austrian and Russian civil agents, with a limited staff of dragomans and secretaries, to reside in the same place as the Inspector-General, and to make tours in the interior, accompanied by a Turkish official, to question the inhabitants as to their grievances;

(2) to the appointment of an Italian general to reorganize the gendarmerie;

(3) to consider the question of altering the administrative districts so as to establish a more regular grouping of the various nationalities;

(4) that neither race nor religion shall be a hindrance to official employment;

(5) that an amnesty shall be granted to all persons implicated in the insurrection, except those guilty of dynamite outrages; and

(6) to exempt the inhabitants of destroyed villages from all

taxation for one year."

Annual Register, 1904, page 318.

General De Giorgis, of Italy, was appointed to the command of the gendarmerie. Hostility to the arrangements of the Mürzsteg programme in Albania was carried to the extent of open warfare, and a number of serious engagements between Turkish and Albanian forces occurred. Other collisions between the various quarreling races—Greek, Bulgarian and Servian—were not stopped by the reorganized

gendarmerie. Turkish action

and inaction afforded about equal occasion for Bulgarian complaints; but in April the Bulgarian and Turkish governments came to mutual agreements, that the former would stop the work of revolutionary committees within her territory, and that the latter would carry out the reforms of the Mürzsteg programme in good faith. No effective performance of either engagement appears to have been secured.

{653}

TURKEY: A. D. 1903-1904.

Incursions of Armenian

Revolutionists from Russia and Persia into Asiatic Turkey.

Exaggerated accounts of retaliatory Massacre.

Many bands of revolutionary Armenians who crossed the frontiers from Russia and Persia during 1903 and 1904, making incursions into Armenian Turkey, and bringing upon the inhabitants there the tender mercies of Turkish troops, appear to have been acting generally in cooperation with the Bulgarian revolutionists in Macedonia. The consequent barbarities were dreadful enough, no doubt, but were found to be greatly exaggerated in the reports current at the time.

This was the conclusion of the British Ambassador to Turkey, derived from investigations made on the ground by a consular officer who traversed it with care. In a despatch dated August 16, 1904, the Ambassador, Sir N. O'Connor, related a conversation on the subject that he had had with the Armenian Patriarch, Mgr. Ormanian, as follows:

"In the course of conversation I told his Beatitude that I had heard with deep concern the statements he had made to several newspaper correspondents, to the effect that he believed that between 6,000 and 9,000 persons had been massacred in the Sasun and Talori districts during the late troubles, and that

I deeply regretted that upon my applying for precise information which would enable me to make earnest representations to the Grand Vizier, his Beatitude has sent me word that he was unable to indicate the places at which these massacres had taken place or to affirm that his reports were based on really trustworthy information. His Beatitude replied that he had had no means of controlling these reports, and that he had communicated them to others as he had received them. I said that, judging from the reports of His Majesty's Consul at Van, who had visited many of the districts in question, the numbers of victims mentioned by his Beatitude was grossly exaggerated. Captain Tyrrell was more inclined to estimate the number at 900 than 9,000, and he had, moreover, been unable to confirm the statements in the public press that there had been any massacre of Armenians in the ordinary sense of these words, although, no doubt, many innocent persons had been killed both by the insurgents and the troops. ... I did not despair of following to the end the investigations which had been set on foot by the Grand Vizier. If, however, his Beatitude could now furnish me with more definite information, I would do all in my power, in conjunction with my French and Russian colleagues, to bring about a searching investigation on the spot. Mgr. Ormanian replied that he was not in a position to give me this information."

TURKEY: A. D. 1903-1905.

A "Holy War" in Arabia.

The Sheik Hamid Eddin contesting the Caliphate with the Sultan.

"Under the obscure heading of 'Rebellion in the Yemen,' a series of brief telegrams has recently appeared in the British and American press, describing in skeleton language the exploits of Sheik Hamid Eddin, the Sovereign of Hadramaut, against the troops of the Turkish Sultan. Absorbed in the contemplation of the Far-Eastern struggle, neither the writers nor readers of the newspapers have yet found leisure to

reflect upon the meaning of the movement, which the Lord of the Land of Frankincense is leading. ... But the Government in Constantinople, though it would fain throw dust in the eyes of Europe, is itself painfully conscious of the menacing character of the challenge which has gone forth from Arabia. It is, indeed, impossible for it any longer to doubt that Hamid Eddin, the namesake of Abdul Hamid, is contesting not only the possession of Yemen, but also the spiritual supremacy of Islam. A Holy War, in fact, has started in Arabia, and upon its issue depend the fate of Mecca and the title of Caliph. ...

"For several years, the propaganda proceeded on comparatively peaceful lines. Only occasionally it was marked by collisions with the Turkish troops. But, towards the end of 1903, the Sheik entered the northern district of the Yemen and laid siege to the Turkish garrison of Assyr. The engagement ended disastrously for the Turks. ... For a whole year the Turks refrained from attempting any serious resistance to the Arabian movement. In February of this year, however, they succeeded in inflicting on Hamid Eddin a slight reverse, which the authorities in Constantinople, for political reasons, at once magnified into a disaster."

***W. F. Bullock,
The Fight for the Caliphate
(North American Review, August, 1905).***

TURKEY: A. D. 1905-1906.

Demand in Crete for Union with Greece.

Resignation of Prince George as High Commissioner.

Appointment of M. Zaimis.

See (in this Volume)

CRETE: A. D. 1905-1906.

TURKEY: A. D. 1905-1906.

Anti-British agitation in Egypt.

Encroachments on the Sinai Frontier.
The Tabah Incident.

See (in this Volume)
EGYPT: A. D. 1905-1906.

TURKEY: A. D. 1905-1908.

Continued Reign of Terror in Macedonia.
Financial Reform forced on Turkey by a Naval Demonstration.
Barbaric Warfare of Greek and Bulgarian Bands.
Efforts of Great Britain to secure further action by the Powers.

On the 17th of January, 1905, the Austro-Hungarian and Russian Governments proposed to supplement the Mürzsteg Programme by a measure of financial reform, which would empower the agencies of the Imperial Ottoman Bank to "act as Treasurer and Paymaster-General in the three vilayets of Salonika, Kossovo and Monastir," to receive the net revenues of those vilayets, and to "be intrusted with the issue of payments of whatever nature and in whatever form." The Turkish Government submitted a counter proposition, somewhat to the same purpose, on the 5th of March; and, after much discussion between the six great Powers, of Austria-Hungary, Russia, Germany, Great Britain, France, and Italy, they joined in a note to the Sublime Porte, on the 8th of May, accepting the Turkish project of financial reform, provided the Porte would consent to complete it by adding the following:

"To supervise the execution of the financial reforms and the application of the preceding Regulation, and to insure its observation, the Governments will each nominate a financial Delegate. These Delegates of the four Powers will act in concert with the Inspector-General and the Austro-Hungarian and Russian Civil Agents, whose functions were defined in the Mürzsteg programme. The Commission thus formed will have all the powers necessary for the accomplishment of its task, and particularly for the supervision of the regular collection of

taxes, including also the tithe.

{654}

Before being finally settled, the budgets must be submitted to the Commission, which will have the right to amend, under the head of receipts and expenditure, any provision which may be inconsistent with the existing laws or unsuited to the economic and financial requirements of the country. With a view to facilitating its task, the Commission will have the power of nominating for each vilayet an inspector charged with the supervision of the agents employed in the different services of the Treasury."

The Porte declined to acquiesce in a proposal which it declared to be "contrary to the essential principles of the maintenance of the rights and independence of the Imperial Government." The demand was persisted in by the six Powers, inflexibly, and resisted as determinedly by the Sultan and his Ministers, during more than six months of parley. By that time the Powers had arranged for a joint naval demonstration, and landed forces at Mytilene on the 26th of November. This brought the Turkish Government to terms; details of the financial reform were settled on the 16th of December, 1905, and the international fleet was withdrawn.

Meantime conditions in the wretched country for which these attempted reforms of government were being so deliberately and laboriously prepared do not seem to have been much improved, if at all. On the 4th of September, the British Ambassador, Sir N. O'Connor, forwarded to his Government "a statistical résumé of the despatches recording occurrences in Macedonia" sent to him "by His Majesty's Consuls at Salonica, Uskup, and Monastir between the 1st of January and the 27th of August," giving "the number of deaths for which the various nationalities and organizations are responsible" in those eight months of the year. The statistics were as follows:

Christians killed by Bulgarian Komitajis [Committees], 69;

Moslems killed by Bulgarian Komitajis, 60;
Christians killed by Greek Komitajis, 211;
Moslems killed by Servian Komitajis, 12;
Christians killed by Servian Komitajis, 10;
total, 362.

Troops killed by various bands, 60;
Bulgar Komitajis killed by troops, 145;
Greek Komitajis killed by troops, 38;
Serb Komitajis, killed by troops, 83;
total 326.

Christians murdered by Moslems, 43;
Christians killed during military operations, 54;
total 97.

Throughout the next two years the monthly reports of British consular officers and the despatches of the Ambassador at Constantinople, as published in the British Blue Books, are monotonous in their sickening enumeration of single murders, wholesale massacres, destruction of villages, flights to the mountains of starving refugees,—outrages and miseries beyond description. On the 10th of June, 1906, the Consul-General at Salonika wrote:

"The general state of insecurity in the disturbed areas tends to grow worse rather than better, chiefly owing to the increase in the numbers and activity of the Greek bands and a slight recrudescence of Moslem crime, the most remarkable cases of which are attributed to a band of fifteen Albanians, who at the beginning of the month infested the forest country north of Niausta, where they robbed and murdered with impunity. The fact that their victims were nearly all Greeks has given rise to the belief in Greek circles that they have been acting in the interests of the Vlach and Bulgarian propagandas, though, so far as I know, there is no evidence whatever in support of this theory. The operations of Turkish

troops have been on the whole very successful as against the small Bulgarian and Servian bands which still kept the field. Four of the former and two of the latter were totally destroyed, with comparatively small loss to the soldiery. It will be seen that the loss of life by violence again amounts to over 200 during the month. Of armed revolutionaries, about 40 Bulgarians, 19 Servians and 26 Greeks were accounted for, at a loss to the Turkish army of 23 killed. The great majority of the unarmed victims were Bulgarians, of whom 33 were killed by Greek bands, 15 by soldiers or in operation by the troops, about 15 by the Moslems, and 12 by Bulgarian Komitajis of rival factions; while 11 Vlachs were killed by Greek bands, 14 Greeks by Albanian brigands, 1 Greek by Bulgarian Komitajis, and 6 Mussulmans by Greek revolutionaries."

Conditions were still the same at the end of another year, and in December, 1907, the British Government addressed a memorandum on the subject to France and similarly to the other Powers, reciting some of the recent facts reported by its consular officers, and saying: "These facts and the circumstances of the outrages committed afford striking evidence of the manner in which the gradual extermination of the Christian inhabitants is being tolerated in Macedonia, where the Ottoman authorities have displayed an utter incapacity to maintain public tranquility. It therefore devolves upon the Powers to suggest the adoption of measures which will put an end to such a condition of affairs, and His Majesty's Government earnestly hope that the French Government will give their most serious consideration to the proposals which they are about to put forward. ... His Majesty's Government are profoundly convinced that the time has now arrived when General Degiorgis and the foreign Staff Officers should be intrusted with a full measure of executive control, and when the force under his command should be properly qualified for effective action by a substantial increase in numbers and an adequate equipment."

To this communication there was no encouraging response from any other Government; and on the 3d of March, 1908, the British Foreign Minister, Sir Edward Grey, reopened the subject, expressing the regret with which His Majesty's Government had received the replies made to their proposals.

"The situation is not beyond remedy, but it cannot be remedied by half-measures. Were a Governor of Macedonia to be appointed who would be given a free hand and be irremovable for a term of years except with the consent of the Powers, and were an adequate force of gendarmerie and European officers placed at his disposal, His Majesty's Government are convinced that the country might be cleared of bands and pacified in a short time."

{655}

The measure proposed to other Powers by the British Government, in this communication of the 3d of March, 1908, obtained the assent of none, but it opened a discussion of the subject between London and St. Petersburg which brought Great Britain and Russia together, in joint action that gave promise of effective results. The negotiations ensuing, between the two Governments led to the drafting of two schemes of further reform in Macedonia, to be pressed upon the Porte. Great Britain accepted the Russian scheme, submitted in the form of an *aide mémoire*, dated July 2, 1908. Some inkling of this new programme, which the European Concert of Powers was about to be asked to support, had been given to the public by this time, and it seems to have precipitated a revolutionary conspiracy for the self-reformation of Turkish Government, which had been in the process of organization for many years, and which had now drawn near to the point of open action.

TURKEY: A. D. 1906.

A Troublesome Punctilio removed.

The United States represented at Constantinople

by an Ambassador.

"According to usage in Constantinople, an Ambassador may obtain an audience at any time with the Sultan, and force many items through even against the influence of both the Palace and the Porte. But every representative lower than an Ambassador can never appear before the Sultan except when called for by His Gracious Majesty. This invitation can be secured sometimes by indirect means; but when, for any reason, the Sultan does not wish to see a Minister of any foreign Power, the Palace officials can baffle him, if necessary, for years. Now, the American representative is called 'Envoy Extraordinary and Minister Plenipotentiary,' and is outranked by every Ambassador to Turkey. Hence, he lacks the all-important privilege of approaching the Sultan uninvited."

*Americus,
Some Phases of the Issues between
the United States and Turkey
(North American Review, May, 1906).*

The obstacle to American influence with the Turkish Government which is explained in the statement above was removed in 1906, by raising the diplomatic representative of the United States at Constantinople to the rank of Ambassador.

TURKEY: A. D. 1907-1909.

The Cretan Situation as dealt with by
the Four Protecting Powers.

See (in this Volume)
CRETE: A. D. 1907-1909.

TURKEY: A. D. 1908.

Building the Damascus to Mecca Railway.

See (in this Volume)

RAILWAYS: ASIATIC: A. D. 1908.

TURKEY: A. D. 1908 (March).

The Races in Macedonia.

Struggle for Political Predominance.

The Bulgarian Propaganda.

"Macedonia, although a country of numerous tribes and tongues, has a population of which the chief ethnic elements are Serbs, Bulgarians, and Greeks. The last-named are numerically the most important, while the Turks are, so to say, intruders. Between Bulgarians and Serbs, a bitter struggle has been waged for political predominance, each party being supported more or less effectively by its kindred in the kingdom of Servia or the Principality of Bulgaria. Both races in Macedonia speak almost the same language, profess the same religion, and inter-marry, so that the need of distinguishing between them did not arise until the Bulgarian Church, freeing itself from the Greek Patriarch, established an exarchate. Then all the flock of the Exarchate was deemed to consist of Bulgarians, although in reality many were Serbs; and the vigorous proselytising campaign carried on by agents from the Principality was successful in gathering many thousands more into the true fold.

"Bulgaria had luck from the outset. Before this people had been freed from the Mohammedan yoke the Turkish Government favoured them because it hated the Serbs, who were believed to be trying to gather together all Slavs and to found a powerful Slav state. After the creation of the Bulgarian Principality the Turks continued to wink at the Bulgarian propaganda in Macedonia, because of Stambuloff's anti-Russian and Turcophile policy. And in this way crowds of Macedonians were won over to the Bulgarian Exarchate. Moreover, the Prince's Government warmly seconded the efforts of its agents. Money was spent liberally and judiciously. Many Macedonians who distinguished themselves at school were sent to finish their education at

Sofia, where the most gifted among them received high places in the civil service or the army. In time, however, peaceful agitation gave way to filibustering expeditions, culminated in bloodshed, and drove the Turks to repressive measures against the Bulgarian element in Macedonia."

***E. J. Dillon,
Foreign Affairs
(Contemporary Review, March, 1908).***

TURKEY: A. D. 1908 (July-December).

The Young Turk party and its Revolutionary organization.
Its Plans hurried by the Anglo-Russian project of a
new Macedonian Intervention.
Beginning and Rapid Spread of Revolt.
Proclamation of the Constitution of 1876.
Yielding of the Sultan.
Intense Joy in the Empire.
Election of a Parliament.

Until July 3, 1908,—the day after M. Isvolsky, Russian Minister of Foreign Affairs, had dated (as stated above) his ***aide mémoire*** of Macedonian Reform, which he and Sir Edward Grey were about to submit to the Powers,—the Turkish party since famous under the name of "the Young Turks" had attracted not much general attention, and, even in diplomatic circles, there does not seem to have been much known of the extraordinary work of revolutionary propagandism and organization it had done. Its leadership, seated at Salonika, had been in a Committee, named formerly the Committee of Liberty, but styled in later years the Ottoman Committee of Union and Progress. Of the rise and origin of this Young Turk party, the following account was written some years before it leaped into public fame, by the veteran apostle of political liberty, Karl Blind:

"I remember its rise and origin in the sixties, when, between

1867 and 1868, a small group of Turkish exiles—namely, Zia Bey, Ali Suavi, and Aghaia Effendi—lived in London. They published here and in Paris an ably conducted journal, called the ***Mukhbir*** (the ‘Advertiser’), copies of which are still in my library. That paper came out under the auspices of Mustafa Fazil Pasha, the well-known statesman who contributed so much to the spread of public instruction and of Liberal ideas by sending young students and others—among them, a distinguished poet, Kemal—to Paris and London. In the ***Mukhbir***, parliamentary institutions and all other desirable reforms were advocated.

{666}

"In 1876, the Sofia rising at Constantinople at last brought about the introduction of a Charter under the young Sultan, who had just come to the throne—the present Abdul Hamid the Second. It was a popular movement, officered by the better educated class of Mohammedans. In a famous rescript, the Sultan said that ‘if his sire had lived longer, a constitutional era would have been inaugurated under him. Providence, however, had reserved for him (the son) the task of accomplishing this happy transformation, which is the highest guarantee of the welfare of his subjects.’ He went on to denounce ‘the abuses which are the result of the arbitrary rule of one or of some individuals.’ He then enumerated the various reforms to be accomplished by the National Assembly: responsibility of ministers; parliamentary right of control; independence of the courts of justice; equilibrium of the budget.

"All races and all creeds were represented in that Parliament, which sat during 1877-1878: Turks and Armenians, Bulgars, Greeks, Albanese, Syrians, and Arabs; Mohammedans, Greco-Catholics, Armenian Christians, Protestants, and Jews. Its debates, through the whole of which I went carefully at the time in the French text of the Constantinople press,

exhibited a remarkable degree of ability. I learnt afterwards, from men conversant with Turkish, and who had repeatedly been present at the sittings, that these official reports had even considerably toned down the liveliness of the discussions.

"I need not refer to the activity of Midhat Pasha, nor go into the many useful reforms then debated, including freedom of the press; equality before the law; liberty in matters of public instruction; admission of all citizens, irrespective of race and creed, to the various public employments; an equal imposition of taxes; free exercise of every religious cult, and so forth. ...

"How did that Assembly come to grief? When the Russian army arrived before the gates of Constantinople [in 1878], the Sultan, pressed close by the Czar, and being at issue with the representatives of the people on account of the exile of Midhat and about budget questions, suddenly **prorogued** Parliament. Alexander the Second, the 'Divine Figure from the North,' was thus freed from the danger of hearing Liberal subjects of his own uttering the cry: 'Let us, by way of reward for our sacrifices in blood and money in this war, have parliamentary government as in Turkey!'

"Prorogued the Turkish National Assembly was, let it well be remembered—not abolished; not dissolved even. Ever since, the Young Turkish party has called for its restoration."

***Karl Blind,
Macedonia and England's Policy
(Nineteenth Century, November, 1903).***

When it came to be known, in the spring or early summer of 1908, that Great Britain and Russia were concerting a fresh proposal to the Powers of more thorough going intervention in Macedonian affairs, the Young Turk leaders are said to have been driven to a hurried rearrangement of their own plans.

They had not expected, it seems, to be in readiness for a decisive movement until some months or a year hence; but they could not afford to have the Concert of Europe as well as the despotism of the Sultan to deal with in their revolutionary undertaking, contemplating as that did a state of government for Turkey which outside nations would have no right or need to be meddlesome with. Hence they hastened preparations for an explosion of the revolt they had organized so patiently, and its first outbreaks chanced to occur just as M. Isvolsky had signed and dated the statement of his scheme of intervention for communication to other Powers.

The beginnings, on the 3d of July, were in the vilayet of Monastir, where the officers and soldiers of two battalions, at Resna and Presba, with some officials of the district, formed themselves openly into a "Young Turk" band, seized arms and the military chest, and went into the mountains. Similar movements in the Kossovo and Salonika vilayets followed quickly. On the 7th, at the city of Monastir, General Shemsi Pasha, when setting forth to take command of operations against the insurgents, was shot, and the soldiers of his escort were reported to have allowed the assassins to escape by firing in the air. Other murders of officers who showed activity against the rebels were soon announced. The Ottoman Committee of Union and Progress had now issued a manifesto, announcing that the object of their League was to secure the restoration of the Constitution of 1876, and appealing to the Great Powers "to show their good will towards the peoples of Turkey by earnestly urging His Majesty, the Sultan, to yield to the legitimate demands of his subjects, who are loyal, though in revolt against the shameful situation of their country." The Committee protested solemnly that the League entertained no hostility to non-Moslems; that it would avoid useless bloodshed, and employ "energetic methods" only in extreme cases against the enemies of liberty.

By the 22d of the month the Sultan had become sufficiently

alarmed to dismiss his Grand Vizier, Ferid Pasha, and call Kiamil Pasha, the former Grand Vizier, to his council again. Kiamil exacted conditions which his master was slow in yielding to, and he seems to have been Grand Vizier *de facto* for a short time before he accepted the responsible title. Change of Ministry, however, did not check the deepening and spreading of revolt. On the 23d of July the Young Turks, having complete possession of the cities of Monastir and Salonica, and of several lesser towns, made solemn proclamation of the Constitution, with popular demonstrations and ceremonies of prayer and speech in which Moslems and Christians were joined. That night the Sultan held long counsel with his Ministers, at the Palace, and before morning the reestablishment of the suspended Constitution of 1876 was decided.

See (in this Volume)
CONSTITUTION OF TURKEY.

The morning papers of the 24th gave the decree to the public of Constantinople and the news of it was flashed throughout the Empire and to the ends of the earth. This was the message that went from the Grand Vizier to Hilmi Pasha, Inspector General at Salonika:

"In compliance with the wish expressed by the people and by order of His Majesty the Sultan, the Constitution promulgated on the 11th (23d) December, 1876, which had for various reasons been withdrawn, has been again enforced. The General Assembly (Senate and Chamber of Deputies) may assemble on the terms prescribed by law. I beg you to convey this news to the public."

{657}

According to all accounts of the time, the feeling evoked by the announcement of a constitutionalized government—as soon as

the long oppressed people could be persuaded of its actuality—was quite extraordinary, and it swept away temporarily, at least, the enmities of religion and race to a remarkable extent. What occurred, for example, at Beirut, in Syria, as described by a missionary, was probably not exceptional in that place. "Men gathered," he says, "in large groups. Audiences and orators sprung up like mushrooms. The torrent of eloquence that poured forth there was such as would put Niagara to shame. There were people mingling together there who during the past years had been bitterly antagonistic to each other, but who now were showing their friendship in public; Greek Orthodox and Mohammedan priests were embracing each other; branches were cut down from the trees; rugs were brought out from the houses; the streets were lined with people offering their hospitality to their new-found brothers; everywhere, even among the criminal classes, there were these evidences of good fellowship."

***Howard S. Bliss,
Address to National Geographic Society,
December 18, 1908.***

On the night of the 26th of July the Sultan received a deputation, headed by the Sheikh-ul-Islam, who petitioned for the removal of certain obnoxious favorites of the "Palace camarilla," and especially for the dismissal of the notorious Izzet Pasha, one of his secretaries, who was hated and feared above all. Abdul Hamid refused at first; but three days later he ordered Izzet Pasha into exile and disgraced Ismail Pasha, his Aide-de-camp, who was said to be the chief spy of the military schools. Izzet succeeded, a few days later, in escaping from the country, and so, undoubtedly, saved his life.

On the 29th of July the British Ambassador at Constantinople, Sir G. Lowther, sent the following telegram to Sir Edward Grey:

"The Sultan has sworn on the Koran, as Caliph, not to repeal the Constitution, and the Sheikh-ul-Islam has officially notified the oath, which was registered at his Department, to the people. It religiously binds not only Abdul Hamid but also his successors in the Caliphate to govern in accordance with the Constitution, and becomes part of the Sheri law. This step was demanded by the Young Turkey and Constitutional party, in order to prevent the Constitution being put aside, as was that of 1876." On the 31st, announcement was made in the morning papers of Constantinople that "a Hatti Humayun which is binding on the successors of the Sultan will be publicly read at the Porte confirming the Constitution." Subsequently, on sending a copy of this instrument to his Government, Sir G. Lowther remarked that "a Hatti Humayun is the most binding form of legislation in the Ottoman Empire." In the present case it seems to have supplemented as well as confirmed the original Constitution, pledging equality of freedom and of rights to all subjects of every race and religion; supremacy of law; inviolability of the individual domicile; inviolability of the Post; freedom of the Press; freedom of Education, etc., etc.

The ministers and spies of the old regime of despotism and corruption were now proceeded against with celerity and vigor. Some escaped, some were imprisoned, some were killed by enraged crowds of people. The latter was the fate of Fehim Pasha, who had been at the head of the secret police. At the same time exiles of an opposite character were returning to their country and meeting with excited welcomes as they came.

Kiamil Pasha took his proper place as Grand Vizier on the 7th of August, and formed a new Cabinet, with Tewfik Pasha as President of the Council of State and Minister of Foreign Affairs. In announcing the composition of the Cabinet, Ambassador Lowther remarked: "Kiamil Pasha appears very wisely to have taken the League of Union and Progress into his

counsels in forming his Ministry, all of whom were incorruptible opponents of the old regime, while two of them are Christians, in accordance with the principles of the Constitution."

While practically dominating the Imperial Government on one hand, the ruling Committee of the League was likewise bringing to terms the lawless Bulgarian, Greek, and other bands which had tortured and terrorized Macedonia so long, and was respectfully but plainly intimating its expectation that foreign management of the gendarmerie and the finances of that region would soon be withdrawn. Already, as early as the 25th of July, M. Isvolsky had withdrawn, for the time being, at least, his project of further intervention, saying that "Russia will follow with the most sympathetic attention the efforts of Turkey to insure the working of the new regime. She will abstain, for her part, from all interference calculated to complicate this task, and will exercise all her influence in order to obviate and prevent all disturbing action on the part of the Balkan States." Of course the British Government was moved by the same feeling, and, as the new order in Turkey gave more and more promise of stability, the willingness to suspend the foreign organization of gendarmerie in the Macedonian provinces became general among the Powers. A collective note, accordingly, was addressed to the Sublime Porte in September, asking if the Imperial Government had any objection to a provisional suspension of its contract with foreign officers, with leave of absence to them *sine die*. The Porte promptly acquiesced and the Macedonian intervention came to an end.

Preparations for the election of representatives in the new Parliament became active in October, the League of Union and Progress sending agents into the provinces to give much-needed instructions to officials and people as to what they must do and how. The elections were conducted under a complicated electoral law. Excepting foreign residents, natives in foreign

service, soldiers not on furlough, bankrupts, criminals, and a few other classes, all male tax-payers twenty-five years of age were made "electors in the first degree." By their vote they chose, not the parliamentary representative, but "electors in the second degree" who would meet subsequently and make that choice. At the preliminary elections 250 to 750 voters were entitled to one elector; 750 to 1250 to two, and so on. The representation in Parliament was by one Deputy for 25,000 to 75,000 electors of the first degree; two for 75,000 to 125,000,—and further at that rate. Candidates for Parliament were to be not less than thirty years of age.

{658}

According to the Constitution the chosen Deputies to Parliament were to assemble at Constantinople on the 30th of October, old style; but inevitable delays in the elections postponed the meeting of Parliament until the 17th of December, on which day it was opened by the Sultan in person, good order prevailing in the city. In a written Speech from the Throne, read by his First Secretary, he offered as an explanation of the long suspension of the Constitution of 1876, that, in consequence of the difficulties encountered in operating the parliamentary system thirty years ago, it was thought best that "the execution of the said Constitution should be postponed until, by the progress of instruction in my Empire, the capacity of my people should be brought up to the desired level." As this was now believed to have been accomplished, he had "proclaimed the Constitution anew without hesitation, in spite of those who hold views and opinions opposed thereto." With marked abruptness the Sultan's speech was then turned to some recent occurrences which have not yet been touched in this narrative of events. Its reference to them was in these words: "Whilst the Ministry formed under the Presidency of Kiamil Pasha, to whom the office of Grand Vizier was intrusted upon this change in the system of administration, was occupied with organizing the new

Constitutional Administration, Prince Ferdinand, Prince of Bulgaria and Vali of the Province of Eastern Roumelia, departing, for whatever reason, from the loyalty due to our Empire, proclaimed the independence of Bulgaria; and immediately after this the Government of Austria-Hungary also announced to the Porte and to the Cabinets of the other Great Powers that it had decided to annex to the sphere of its dominion Bosnia and Herzegovina, which were subject to the temporary occupation and administration of Austria in accordance with the Treaty of Berlin. These two important events, which are prejudicial to existing legal rights and relations, are occurrences which have moved me to very great regret, and our Ministers have been intrusted with the task of taking the necessary action consequent on these encroachments and of safeguarding (he rights of the State. In regard to this matter, and under all circumstances, the help and support of Parliament are desired."

The concluding words of the Sultan's brief speech were these:

"I open the Chamber of Deputies to-day with prayers for the happiness and prosperity of our Empire and country. I am happy to see in my presence the Deputies of my nation. My intention to govern our country under the Constitution is absolute and unalterable. Please God our Chamber of Deputies will accomplish good work for our Empire and our nation, and our fatherland will attain to happiness of every kind. May God make us all the objects of His divine grace!"

TURKEY: A. D. 1909.

American Mission Schools.

See (in this Volume)

EDUCATION: TURKEY AND THE NEAR EAST.

TURKEY: A. D. 1909 (January-May).

Wise Moderation of the Young Turks.

Gathering of Opposition to them.
The Counter-Revolution of April 13.
Treacherous Agency of the Sultan in it.
Quick Recovery of Power by the Young Turks.
Battle in Constantinople.
Moslem attack on Armenians in Asiatic Turkey.
Deposition of Abdul Hamid.
Mohammed V. placed on the Throne.

The declaration of Bulgarian independence and the Austrian annexation of Bosnia and Herzegovina, protested against by the Sultan in his Speech from the Throne at the opening of the new Parliament, on the 17th of December, are recounted at some length in another place, with notice of the prolonged anxieties they produced in Europe at large.

See (in this Volume)
EUROPE: A. D. 1908-1909 (OCTOBER-MARCH).

In Turkey itself the feeling roused by these offensive proceedings was overborne to a great extent by increasing excitements in home politics at the time. The first unity of welcome and support to the revolution, as organized by the League of Union and Progress, was now being broken, as always happens in such movements, by conflicts of ambition and differences of opinion and aim. In other words, contentions of party and faction were coming into play. The Young Turk leaders of the League had manifestly conducted the whole movement of revolution with extraordinary ability, self-effacement, and restraint. The President of Robert College, at Constantinople, Dr. C. Frank Gates, who must be accounted a trustworthy observer of events in the Ottoman capital, writing in *The Outlook*, November 7, 1908, of "Turkey under the New Regime," paid this high tribute to its chiefs:

"One of the most striking features of this movement to those

who have lived long in the country is the moderation shown by the Young Turks. The regime which has been overthrown was oppressive in the extreme, and all the people had suffered terribly from it. The Turks have often said, 'We suffer more than the Christians.' Many have predicted a day of terrible retribution, when the old regime should fall into the hands of its victims. But there have been no reprisals. Officers of the army were killed in order to gain control of the army, a few spies fell into the hands of the people and were killed, the notorious Fehim Pasha was torn to pieces by the mob at Broussa, but most of the rascals have been held for regular trial, and the leaders of the new movement have firmly insisted that it is no time for vengeance or for the gratification of personal animosities; only one consideration can be admitted, and that is the good of the country. Their eyes are upon the future, not upon the past. This is wonderful. If one could have expected a reign of terror anywhere, here was the place to expect it, but it has not come.

"The Young Turks have shown a practical wisdom in dealing with the various parties and in solving the questions which have arisen which commands the admiration of all. A friend who is very well acquainted with the leaders in this movement said the other day, 'The most wonderful thing of all is the committees.' Properly speaking, there are no committees and no tangible organization. There are men who stand behind the present Government and practically guide and control it, but they are content to be unknown and to work in silence. They say, 'It is the work of God,' 'Do not congratulate us: thank God.'

{659}

"The difficulties which these men have to face are enormous. There is the difficulty of financing the Government, which is aggravated by the fact that some of the provinces have

understood liberty as meaning freedom from taxes. Then there is the difficulty of forming a programme for the new regime. There have been two parties among the Young Turks, the Committee of Union and Progress, and the Party of Decentralization headed by Sebaheddin. ... Sebaheddin has been explaining his programme to popular audiences. His plan is to have local assemblies in the provinces, to which shall be relegated many of the functions which have been centralized in Constantinople under the old regime."

The working of the new machinery of government went smoothly, in appearance, for some weeks after this was written. On the 1st of January the Sultan gave a banquet to the Deputies of Parliament at the Yildiz Kiosk, sitting with them at table and speaking to them with eloquent piety and patriotism; subsequently permitting a general kissing of his hands, which performance of affectionate reverence was much disapproved by some of the Turkish journals next day. A fortnight later Mr. Hagopian, special correspondent at Constantinople of the New York ***Evening Post***, seemingly intimate in acquaintance with the inner circles of parties, began to be sharply critical of the Committee of Union and Progress, saying that their "arrogant programme" "has led more enlightened Turks to organize a new party, the Sons of Liberal Ottomans." Then he speaks of what appears to be another party, "the association of 'Fedakiarans' (Confederates), composed of all former political exiles and prisoners who became free after the establishment of the new regime. On the surface their aim is said to be to assist all their unfortunate members who have been brought to poverty, or disabled by the tortures of prison and exile. Their membership within the last four months has reached twenty thousand. ...

"The mistake which the Young Turks committed in opposing Kiamil Pasha, and in persecuting the Confederates," this writer goes on to say, "has strengthened the cause of Sabakheddin Bey and his followers. All the oppressed Christian

ances, who welcomed the inauguration of a liberal government in Turkey, were alarmed when a part of the young Turks came forward as champions of Panislamism, and to-day they are inclined to be in the rank and file of this new liberal movement. The Young Turkish Parliament has shown a tendency to be a Moslem institution."

A fortnight later Kiamil Pasha, the Grand Vizier, or Prime Minister, as he preferred, it is said, to be called, dropped Ali Riza Pasha, Minister of War, and Aarif Pasha, Minister of Marine, from his Cabinet, appointing them to other posts, which they declined; and this completed his breach with the Committee of Union and Progress. Mr. Hagopian, in his next letter to the *Evening Post*, averred that the Grand Vizier had discovered a plot, organized by the Young Turks, to dethrone the Sultan and proclaim Youssuf-Izeddin, elder son of Abdul Aziz, the murdered former Sultan, and that he defeated their project by the sudden change he made in the Ministries of War and Marine. Other reporters from Constantinople to the Press do not seem to have given credit to this explanation. Whatever the inner facts may have been, the Young Turk Committee proved stronger than the Grand Vizier, and they forced his resignation on the 13th of February, by an overwhelming vote in the Chamber of Deputies, 198 to 8, that he "no longer possesses its confidence." He had commanded foreign confidence more, perhaps, than any other Turkish statesman, and his overthrow gave a serious shock for the moment to the hopefulness with which the Turkish constitutional experiment had come to be quite generally regarded.

Hilmi Pasha, who had been Minister of the Interior under Kiamil, was now called by the Sultan to be Grand Vizier, and a new Cabinet was formed, Ali Riza Pasha resuming the portfolio of the Ministry of War, and with it that of the Marine. The administration was now entirely in harmony with the Committee of Union and Progress. During the next two months there was

not much in Turkish affairs to command attention abroad. But political hostility to the Committee of Union and Progress was evidently increasing. The correspondent of the London *Times* wrote to his paper from Constantinople in March that "one of the most perplexing and disquieting features of the situation since the fall of the late Cabinet has been the persistent manner in which the Committee have denied that any extra-Parliamentary pressure was employed to effect that change, or that, since it was accomplished, extra-Parliamentary forces have exercised any influence on the conduct of affairs. Had they frankly admitted that such influences had been, and were still, brought to bear—as, indeed, the speech of the President of the Chamber implicitly acknowledges—but that such interference was justified by circumstances and would continue to be exercised until the country had safely emerged from the critical period through which it is passing, many who are now falling away from them would have been found to agree, and few persons capable of forming an unbiased opinion would have ventured to declare that their contention was altogether unreasonable and unjustifiable. By adopting a different course they have alienated much of the sympathy and confidence they hitherto commanded, and given rise to suspicions, quite possibly unfounded, as to the purity of their motives, with the result that the country, which needs and will long continue to need the united energies of all its ablest and most enlightened citizens, for the tremendous task of regeneration and reorganization, is now weakened by a fierce party struggle, and that many competent observers regard a fresh Ministerial crisis as an event which cannot be delayed for many weeks."

The anticipated crisis came about four weeks after this had been written, in a form much more serious than that of a mere Ministerial collapse. It was precipitated by excitements that followed the murder, on the 6th of April, of a political journalist, Hassan Fehmi Effendi, editor of the *Serbesti*, the organ of the Liberal party. As the

murdered man had been a vigorous critic and opponent of the Committee of Union and Progress, that organization was accused at once of having brought about his death.

{660}

This gave the start to agitations and demonstrations that were secretly pushed for several days, until they culminated, on the 13th, in an outbreak of soldiers and city mobs which reversed for a time the Young Turk revolution of the previous July. That the crafty Abdul Hamid had more than lent his hand to the reactionary outbreak was universally believed; but when it had accomplished the overthrow of Hilmi Pasha and his Ministry the Sultan did not venture to call creatures of his own to take their place. On the contrary, he gave the office of Grand Vizier to Tewfik Pasha, one of the most respected and independent of the elder officials of the Empire, charging him, in an imperial rescript, "to form a Cabinet to conform more directly to the sacred law and to maintain the Constitution and guard public order." These words are indicative of the nature of the hostility to the regime of the Young Turks which had been worked up. Formerly, as appears in one of the quotations above from Mr. Hagopian, the Young Turks had been accused of being "champions of Pan-Islamism," and their Parliament of showing "a tendency to be a Moslem institution." Latterly, Moslem orthodoxy had been appealed to against them on the charge that they were unfaithful to "the sacred law" (the Sheriat), and that they were making the Constitution a mere cover for designs that boded evil to Islam. A fair inference from the contradictoriness of the charges brought against them is decidedly favorable to the party of the Young Turks.

At the outset of the revolutionary riot in Constantinople a few murders were committed and some fatal shooting at random was done, the victims including the Minister of Justice, an Albanian Deputy and a few officers of the riotous soldiery; but the mob-rising, as a whole, appears to have been kept under singular restraint. No important members of the League

of Union and Progress are reported to have been killed. Those who were in Constantinople escaped, and their ruling Committee was soon established in activity at Salonika again, taking measures which resulted quickly in the recovery of more than the power that they had seemed for the moment to have lost.

That no reaction of substantial influences at Constantinople against constitutional and representative government was signified by what had occurred there was made plain by an important proclamation, issued on the 16th of April, by the Committee of the Ulema, the Moslem Doctors of the Sacred Law. It was addressed to the Deputies and the Nation, in these words:

"We are informed that certain Deputies, fearing for their lives, wish to resign, while, on the other hand, the public fears the return of despotic rule. The Committee of the Ulema, which has never doubted that the Constitution is in entire conformity with sacred law, and has not forgotten the burning of Islamic books at Gulhaneh in the days of absolutism, will defend the Constitution, which is in conformity with the Sheriat, to the last, aided by the army and Parliament. Its members consider it to be a religious duty to sacrifice their lives for this end. They and the nation preserve the confidence of Deputies, Moslem and non-Moslem alike, save such as have resigned, or have fled and are thereby considered to have resigned. Deputies, therefore, are informed that henceforth those who resign will be considered traitors. Let them do their duty justly and honourably, and they may be sure of the support of the nation and the spiritual aid of the Prophet. We beg the glorious army to maintain order and discipline, following the counsels of the Ulema, for it is thus that the Almighty will grant salvation to the country and happiness in this world and the next."

But Asiatic Turkey was easily made distrustful and suspicious of a change in government which appeared to lower the

authority and dignity of the Sultan-Caliph; and news of the seeming triumph of that sacred sovereign in what had happened at Constantinople must have had not a little to do with the sudden outburst, on the 15th of April, of Moslem hostility to the Armenian Christians in parts of Asia Minor and Syria. The fighting and massacre then begun, and which continued for many days, was most fiercely carried on within a circle of towns at the corner where Syria and Asia Minor touch, and where the Gulf of Iskanderun runs far into the land. On the northern and western side, this piece of the Turkish dominion was the ancient province of Cilicia, which Pompey added to the empire of Rome; in which St. Paul was born, and which received its modern name of Adana from Haroun al Raschid, the most famous of the Caliphs of Bagdad,—thanks to "The Arabian Nights." In and around its three principal towns, of Adana, Mersina, and Tarsus, the first and worst of the atrocities occurred.

The League of Union and Progress had given way for an instant, only, to the outbreak at Constantinople, which must have taken its leaders by surprise. But the momentary reverse was a gift of opportunity, in fact, to prove the astonishing energy of ability that was in this remarkable body of men. They had been betrayed by a considerable part, at least, of the division of the army which garrisoned Constantinople, and which is said to have been heavily bribed with money that must have come from the Sultan's purse. But the Second and Third Corps of the army in Macedonia were unshaken in fidelity to them and their cause. It was on Tuesday, the 13th of April, that their opponents at the capital had their triumph; on Wednesday, the 14th, the two trusted corps were under orders from Salonika to march on Constantinople. Nine days later Mahmud Shevket Pasha, who commanded the movement, was in full possession of the city, with the Sultan a prisoner, and the victorious general was about to publish the following brief report of what had been done in the interval:

"Our Second and Third Army Corps," he wrote, "being the

nearest to Constantinople, undertook as the executive power of the whole Ottoman nation to shed the last drop of their blood in defence of the Constitutional *régime*. Having therefore taken counsel together and organized a force sufficient for the purpose, they marched to Constantinople, in order to counteract the effects of the despotic blow recently struck at that *régime*, to subdue and chastise the guilty, and to take the necessary measures for the prevention of similar attempts in the future. Leaving Salonika on Wednesday, I arrived the following day at San Stefano and gave orders for a general movement preparatory to entering the capital on Friday.

{661}

The troops quartered at the Ministry of War were compelled to surrender before they had time to defend themselves. Only the mutinous troops at Taslikishla and other barracks in Pera offered any resistance to the army of occupation. These barracks were accordingly bombarded and destroyed, their garrisons being disabled or forced to surrender. As our heroic army began operations at night and entered the town at dawn, and as the inhabitants remained in their houses and the shops were closed, there were no deaths in the civil population and no disorder took place. The losses on both sides were heavy, but the numbers are not yet known. I pray God that the hearts of all Ottomans may rejoice at the news of this great victory and that it may prove the dawn of a great future for our country."

Military observers who accompanied Shevket Pasha and his army are said to have been profoundly impressed by the masterly handling of the whole operation, from start to finish. His fellow Constitutionalists were equally impressed by the qualities that he had revealed. A Press despatch to New York, from Constantinople, April 26, reported:

"Schefket Pasha, commander of the Constitutional army, is the man of the hour. The leading civilian members of the Committee

of Union and Progress desire him to be grand vizier in succession to Tewfik Pasha, and he has been assured that a majority of Parliament would gladly support a ministry under his leadership in succession to the Tewfik ministry, which resigned to-day. In reply to these proposals Schevket Pasha said that the premiership afforded such a splendid opportunity to assist in the political development of the country that he would have rejoiced to accept the honor had it come to him under any other circumstances, but that he could not accept it while still leader of the army. To do so would not accord with his ideas of civil and political liberty of action." This seems to have been a true exhibit of the fine spirit and intelligent patriotism of the man, and it added much to the hopefulness of the regenerative undertaking of the Young Turks. Shevket is an Arab, from Bagdad, who had his training as a soldier in Germany and had lived in Europe twelve years.

What to do with Abdul Hamid was a question over which the Committee of Union and Progress wasted very little time. He became their captive on the 24th. On the 26th it was known that he would be deposed and exiled to Salonika. His falsity in all that he had professed of a willing adoption of constitutional government, and his treacherous engineering of the conspiracy against it, were believed to be open to no doubt. It was probably not easy to save him from the doom of death which he feared: but the men of calmly tempered mind and will who had ruled the revolution from its beginning were still in control. On the morning of the 27th a *fetva* or formal decision by the Sheik-ul-Islam, authorizing the deposition of Abdul Hamid from the Ottoman throne, was sent to the National Assembly and read. It was in the form of a question from that body, answered tersely by the supreme judge of the law of Islam,—as follows:

"What becomes of an Imam [the title of the Sultan of Turkey as head of the Orthodox faith] who has destroyed certain holy writings, who has seized property in contravention to the

Sheri laws, who has committed cruelties in ordering the assassination and imprisonment of exiles without any justification under the Sheri laws, who has squandered the public money, who, having sworn to govern according to the Sheriat, has violated his oath, who, by gifts of money, has provoked internecine bloodshed and civil war, and who no longer is recognized in the provinces?" To this the Sheik-ul-Islam replied: "He must abdicate or be deposed." At once, by unanimous vote, the deposition of Abdul Hamid and the succession of his younger brother, Mohammed Reschad Effendi was pronounced by the National Assembly. The new Sultan was proclaimed with impromptu ceremony in the afternoon, at the Seraskierat, to which he went in the plain costume of a Turkish gentleman. He was received by Mahmud Shevket Pasha and his staff in the central court. The Grand Vizier, the Sheikh-ul-Islam, Said Pasha, President of the Senate, and Ahmed Riza, President of the Chamber, stood at the foot of the stairs. All kissed hands, and the whole group, headed by his Majesty, proceeded to a reserved chamber, the gallery above the court being in the meantime crowded with Senators, Deputies, officers, journalists, and ordinary sightseers. The Deputies and Senators were then admitted to kiss hands, and a prayer was recited. This ended the simple ceremony of the day; but one of more solemnity occurred on the 10th of May, when the Sultan received the sword of Osman—the equivalent of a coronation—in the Mosque Ayub, which Christians are never permitted to enter, and was conducted in an imposing procession through the streets of the city.

Mohammed Reschad Effendi, who reigns as Mohammed V., was in his sixty-fifth year when he came to the throne. Until the revolution of the previous July he had been practically a prisoner in one of the palaces on the Bosphorus, surrounded by the creatures of his jealous and suspicious brother, without whose permission he could not leave the palace grounds. Latterly he had enjoyed some degree of personal freedom, for the first time in his life. An anonymous contributor to the

London Times, who had had an opportunity to meet him since the revolution broke his bonds, wrote thus of the interview:

"I had the privilege of a long conversation with Reschad when I was in Constantinople in the autumn, on condition that the visit should be conducted with some secrecy and should remain secret until the return of Hamidianism was beyond the range of possibility. I believe I was the first European whom he had seen since the revolution of July mitigated the severity of the reclusion enforced for 30 years by Abdul Hamid. The Heir Apparent was still living in the Palace adjoining Dolma Baghche, which had been his prison throughout the reign, jealously guarded by the Sultan's Pretorians at the entrances from the main road, and by a gunboat moored in the Bosphorus opposite the water approach. ...

"His Highness talked slowly and hesitatingly, often lowering his voice to a whisper and casting furtive glances round the room as if he was still haunted by the fear of spies, but he listened eagerly while I told him of my own many journeyings in Turkey, whose people I had known since the beginning of the Hamidian *régime*, occasionally interrupting me with an apposite remark, or asking for an explanation which showed both interest and intelligence.

{662}

There was something strangely pathetic in this desire for information about his own country, over which his Highness was soon destined to reign. A full hour's conversation left the impression that, given favourable circumstances and good advisers, the Prince was well qualified to preside over a period of peaceful transition."

Punishment of the authors of the counter-revolution followed quickly on the reestablishment of constitutional authority, and it was sternly meted out. As Mr. Hagopian expressed the feeling of the Young Turks, in his letter of April 26 to the

New York *Evening Post*, they "could not afford to be lenient. The conspiracy of April 13," he added, "was no longer a secret. In the last two days 15,000 soldiers and 6,000 *hodjas* and spies had been arrested. In their possession over half a million dollars had been found. Where had this money come from? Who could deny any longer that Abdul Hamid drew from his bank about ten million dollars a month ago? His favored son, Burhaneddin Effendi, went from barrack to barrack and distributed the money among the soldiers. Former spies, disguised in Turkish clergymen's garments, went among the troops and won them over with the Sultan's bribes. Soldiers, when arrested, were found to have an average of one hundred dollars; some had two hundred, three hundred, and even five hundred. Indeed, Abdul Hamid was the head of the conspiracy, and the massacre in Adana was instigated by his emissaries sent from Constantinople. The old and the new Yildiz cliques were not less responsible." By the 12th of May thirty-eight executions had been reported, most of them by hanging in public places. "A member of the court-martial that sentenced these men to death explained the reason of the public hangings by saying that Constantinople was such a city of rumor and traditions of corruption that, had the announcement been made that these men had been executed in private, it would not have been believed by the masses. It was desired to impress the people with the fact that the guilty had been punished."

TURKEY: April-December.

Outbreak of Massacre in Southeastern Asia Minor.

The first news of the outbreak of massacre in southeastern Asia Minor came to Europe and America in a telegram from Constantinople, dated April 15, saying: "A massacre of Armenians is in progress to-day at Mersina, a seaport of Asia Minor on the Mediterranean." In this report the outbreak was ascribed to the provocation of a murder of two Moslems by an Armenian; but nothing that appeared subsequently gave any confirmation to this. The Sultan has been accused of having

instigated the rising, as a means of starting complications which might check the Young Turks; but that remains unproved.

Mersina, from which the first report of massacre came, is thirty-six miles by railway from Adana, the capital of the vilayet of that name and an important missionary station of several American missionary organizations. Adana was a city of about 45,000 inhabitants, mostly Mohammedans, but with Armenians in considerable numbers and a few Greeks. The Christian missions included important schools. In this city the murderous mob had begun its work on the 14th of April, a day prior to the Mersina report, and it is found to have been the center of the deadly outbreak throughout. The Moslem fury was directed against the Armenians, and, though two missionaries were among the killed, they do not appear to have been objects of attack, but to have suffered incidentally to the efforts they made for the protection of their Armenian neighbors and their schools. There were Turkish troops in the city from the beginning of the slaughter, but they did nothing to stop it for five days. According to some accounts the vali, or governor, kept them shut up in quarters; according to others they took part in the massacre. The Reverend Stephen Trowbridge, who was in Adana during these terrible days, declared a little later: "One man is responsible for the disorders here. This is the vali himself. He had it in his power to suppress lawlessness and massacre, but deliberately refrained from doing so. He said simply: 'We are not responsible.' The better class of Turks in Adana," Mr. Trowbridge continued, "the members of the Committee of Union and Progress, are deeply grieved and saddened at these dreadful events. Some of them are ready to join us in relief work for the Armenians. One Bey already has opened his house to refugees." This gives color to the belief that the outbreak was not mere mob-madness, but captained in some way from a higher center of Turkish authority. Such, indeed, was the firm conviction of many who were witnesses of what occurred. Writing on the 24th of April from Tarsus, which bore its share

of the widespread attack, another missionary said: "The massacres all began on the same day, Wednesday, the 14th, showing, were there no other proof, that they were inaugurated by telegraphic orders from Adana, probably from Constantinople. The only places where the Christians took up arms for a short time to defend themselves were Adana, Hadjin, and near the battle-field of Issus; at the latter place they are still holding out. The statement by Turkish officials that there was an Armenian insurrection, that Turks were massacred, and houses burned by the Christians, etc., etc., are simply abominable lies. This cannot be put too strongly. ... During fifty long hours, while battle and murder and burnings were going on all around our school and residence in Adana, the vali, though he had hundreds of soldiers at the Konak, sent not one to protect us and our property."

According to a report made some months later, after investigations under the new Turkish regime, and quoted from a Turkish newspaper, the number killed in all parts of the province was 20,008; 620 were Moslems, and the remaining 19,400 were non-Moslems. Of the non-Moslems killed, 418 were Old Chaldeans, 163 Chaldeans, 210 Armenian Catholics, 655 Protestants, 99 Greeks, and the remainder Gregorian Armenians. The same report estimated the destruction of property as having been equal to two-thirds of the entire wealth of the province. The appearance of Adana and of the surrounding country after the massacres were stopped was described by one who made the journey from Tarsus to Adana, and who wrote:

{663}

"Leaving behind us the ruins of Tarsus, and the hundreds of weeping widows and orphans there, we came by train to Adana. Near the city the road runs for miles through vineyards and gardens, in former days a beautiful sight. But now it is a waste of desolation; all the houses of the Christians are heaps of ruins; in and around those houses more than five

hundred were slain during the three terrible days of April. The houses of Moslems have not been injured. We noted a like contrast as respects the numerous farms on the plain between Tarsus and Adana. And yet the charge is made, and believed, that the Armenians were the aggressors!

"In the once prosperous Adana, nothing but ruins; it is like the pictures I have seen of Pompeii. The wretched survivors wander by twos and threes around the places where once stood their happy homes; they look more like ghosts than human beings, these pale, dejected, barefooted widows and orphans."

On the 12th of May, after the Young Turks had recovered power at Constantinople, the Turkish Embassy at London gave out the following announcement: "Order and tranquillity prevail throughout the Sanjak of Djebel-i-Bereket. Troops are arriving gradually and are being distributed according to the necessities of each place. The local authorities at Adana are about to proceed at once to confiscate stolen property and to disarm Musulmans and non-Musulmans alike. This measure will be adopted generally in the other parts of the vilayet as soon as the troops which are coming from the various places have reached the positions to which they have been assigned. The authorities are very busily engaged in finding homes for people who are without shelter and in supplying them with food. A Commission for that purpose has been appointed at Adana."

A Court Martial and a Parliamentary Commission were now sent to Adana to investigate the massacre and punish the guilty. Their work was soon showing results. On the 24th of May a report came from Constantinople that "Ferid Pasha has informed a representative of the Tanin that several of the soldiers who took part in the recent massacres in Cilicia have been arrested. Nine persons have already been condemned to death by the Court-martial. With regard to the responsibility for the outbreak, the Minister said that, while he could not

definitely ascribe it to official promptings, certain officials had failed to do their duty, among them the Mutesarrif of Jebel Bereket, who had been imprisoned pending an inquiry into his conduct. The reactionaries had certainly played a part in fomenting the outbreak, but other elements—which the Minister did not specify—had contributed thereto."

On the 13th of July it was reported that "an Imperial Iradeh has been issued ordering the arrest of the ex-Governors of Adana and Djebel Bereket, the commander of the Adana garrison, and a number of notables of Cilicia, among whom is the editor of the Itidal, the notorious Baghdadi."

Two days later it was said that "the ex-Governors of Adana and Djebel Bereket have been sent to Adana under a strong escort. Some 20 leading Moslem notables of Adana who have been arrested will be immediately brought before a Court-Martial. The Grand Vizier has given orders for a manifesto to be prepared by the Sheikh-ul-Islam, demonstrating by means of texts from the Koran and the Traditions that the duty of all good Moslems is to treat Christians with justice and to regard them as fellow-citizens with equal rights. It is to be distributed by the kadis, muftis, and hodjas in every town and village of the empire, and the most learned ulema are to take it as their text in the sermons to be preached during next Ramazan."

July 18th the court-martial was stated to have made a report which concluded as follows:

"'Fifteen persons have been already hanged, 800 deserve death, 15,000 deserve hard labour for life, and 80,000 deserve minor sentences. If it is decided to proceed with the punishment, we will draw a cordon around the town and deal expeditiously with the matter.' In view, however, of the general reconciliation between the various elements, the Court-martial recommends a

general amnesty on the occasion of the National Fête."

The 11th of August brought accounts of the publication of a declaration by a Commission of three ministers in the Turkish Cabinet appointed to prepare it, acquitting the Armenians of all responsibility for the outbreak at Adana. This declaration, drawn up after a careful examination of the reports of the members of the Parliamentary Commission on the massacres and approved by the Council of Ministers, ascribes the massacre to the ignorance of the population. "In the reign of Abdul Hamid the people had become imbued with the idea that every Armenian was a separatist at heart, and were therefore averse from equality with the Armenian community. They had become in consequence the tools of religious or political agitators. The declaration censures severely the local officials for their failure, not only to quell the outbreak, but to warn the Government that the situation in Cilicia was critical."

One of the Deputies of the Parliamentary Commission which investigated matters at Adana gave, perhaps, a more distinct idea of the causes that worked to produce the massacres, in an interview published during August, when he said:

"The massacre in Adana had two strong causes: reaction and tyranny. The joy of the July demonstrations [of 1908] had scarcely passed when, at the beginning of August, tyrannical tendencies began to appear. The former Mufti of Bakhcheh went hither and thither declaring that liberty and the constitution were the work of the Christians, that the constitution was contrary to the Sheriat. In this way he stirred up Moslems against the Christians and the constitution. In place of the joy which appeared among all classes during the first days of the constitution, a spirit of revenge and enmity against non-Moslems began to spread."

Evidently the amnesty recommended by the Court-martial in July

was not granted; for the following telegram was sent from Constantinople on the 12th of December to the London *Times*: "Twenty-six Moslems, who were sentenced to death in connexion with the Adana massacres in April last, were executed at Adana yesterday and to-day. Order was maintained, although the population was much moved, the women relatives of the condemned publicly manifesting their grief. One Armenian is awaiting execution."

{664}

Nevertheless the Armenians have not been satisfied with the punishments inflicted, and the Armenian Patriarch resigned in September, as a mark of protest, maintaining that the real instigators of the massacres went unpunished.

TURKEY: A. D. 1909 (May-December).

Hilmi Pasha, Grand Vizier.

Parliament opened by the new Sultan.

Constitutional Amendments on Religion and Education.

The Committee of Union and Progress.

Change of Ministry.

From the 1st to the 5th of May Tewfik Pasha was Grand Vizier, by appointment from the new Sultan. Then, as had been expected, Hilmi Pasha was called to his place, and remained at the head of the Government until the last week of the year. On the 20th of the month the Sultan in person opened the session of Parliament, and, after a speech from the throne had been read by the Grand Vizier, pronounced the following words: "I have sworn to respect the Sheriat and the Constitution in its entirety, and not to transgress for one instant from safeguarding the national rights and interests of the country. You must now in return take the necessary oath." The oath was then taken by the Senators and Deputies in turn, his Majesty watching the proceedings from the Imperial box. On the 24th the Grand Vizier announced the programme of measures and

general policy to be undertaken by his Ministry, and received, after debate, a vote of confidence by 190 to 5. The reconstituted Government was now a fully organized fact.

Questions concerning the attitude of the State towards religion and education, as it should be defined in the Constitution, were among the earliest of high importance to be brought before the Parliament. On the 8th of June it adopted an amendment to the article in the Constitution of 1876 reading as follows:

See, (in this Volume)
CONSTITUTION OF TURKEY.

"Islam is the State religion.

"The State, while safeguarding this principle, guarantees the free exercise of all cults recognized in the Empire, and maintains the religious privileges granted to divers communities, provided public order and morality be not infringed."

On the subject of education the Constitution was amended to read:

"Education is free.

"All schools are placed under the control of the Government. The necessary measures shall be taken to assure to every Ottoman subject a uniform system of education. There shall be no interference with the religious education of the different communities."

The Christian communities, especially the Greek, objected strenuously to this, fearing that governmental control would be found to mean the imposition of the Turkish language in all schools, as an instrument of nationalization.

Another proposed amendment, making members of the Chamber of Deputies eligible for the posts of Parliamentary Under-Secretaries of State, failed to secure the requisite two-thirds majority, and this was regarded as a defeat of the civilian leaders of the "Young Turk" Committee of Union and Progress, who were supposed to be desirous of holding the posts in question, while sitting also in the Chamber.

The firm control of affairs which the Committee in question had exercised throughout the revolutionary movement, while keeping itself mysteriously anonymous in the background, had been extraordinarily successful, indicative of high wisdom and a very genuine public spirit. But the forces thus handled by the Committee, especially in the military element of the revolution, were growing restive, it would appear, under the feeling of too much subordination, and gave increasing signs of discontent with the invisibility of the wires by which they were pulled. Without doubt, it was evidence of this which led the Committee, at a meeting at Salonika, in October, to resolve and announce that their organization should no longer be a secret society, but open to public knowledge and directed henceforth by a responsible executive. Whether the Committee did or did not strengthen itself by thus coming into the open, it has maintained its ascendancy and still exercises a controlling power.

The second session of Parliament was opened by the Sultan, on the 14th of November, with a speech of roseate contentedness in its contemplation of Turkish affairs. Late in December a change of Ministry occurred, in somewhat obscure connection with a consolidation of steamer lines on the Euphrates. A British line of steamers, known as the Lynch Line, which had been running on that river since 1860, was being consolidated with a Turkish line that the Turkish Government controlled, and something in the transaction which raised an issue between Parliament and the Grand Vizier. Hilmi Pasha, led the latter

to resign December 28. Nobody seems to have doubted, however, that the real cause of his leaving office was in the willingness of the Committee that he should do so. General Mahmud Shevket, the able military leader of the Revolution, was invited to form a Cabinet, but declined, as he is said to have done before. The high office was then conferred on Hakki Bey, Turkish Ambassador at Rome, and Mahmud Shevket Pasha accepted office in his Cabinet as Minister of War.

TURKEY: A. D. 1909 (October).

Railway and Irrigation Projects in the Tigris-Euphrates Delta.

Sir William Willcocks, the British engineer who has been engaged for some time past in surveys for the Turkish Government, having reference to irrigation and railway improvements for the reclamation of the great Mesopotamian region, made a report to the Ministry of Public Works at Constantinople in October, 1909, of which the following account was given to the Press through Reuter's Agency:

"Sir William Willcocks advocates the construction of a railway from Baghdad to the Mediterranean. The proposed railway would start from Baghdad, cross the Euphrates at Feludia, and follow the Valley to Hit. At Hit the line would take the Euphrates Valley and traverse the flat desert in a straight line to El Kaim, near Abu Kemal, the northern limit of the cataracts. From El Kaim to Der Zor, the Euphrates has no cataracts, and the river Khabour, which joins the Euphrates at Mayadin, the ancient Rehoboth, is, like the Euphrates, navigable during the whole year. These parts of the Euphrates and Khabour could be extensively developed and all their products transported to El Kaim by boat and thence by rail. From El Kaim the railway would proceed to Tidmor (Palmyra) and follow the old trade route over a flat desert supplied with water. From Palmyra the line would go either to Homs or Damascus. The total length of the railway from Baghdad to Damascus is placed at 880 kilometres.

{665}

"The report next deals with the works of irrigation to be undertaken at once. These consist of barrages of the Hindich canal, dams on the Habbania and Sakhlawia, and works for the navigation on the Tigris. The total cost of the entire works on the Euphrates is estimated at £T1,034,000, while that of the works on the Tigris is placed at £T1,110,480. The cost of the works to be undertaken forthwith attains the following figures:—

On the Euphrates, £T822,700;
on the Tigris, £T710,000;
total, £T1,532,700.

The railway could be built in two years, while the irrigation works would take eight years to complete. To begin with, one million hectares of land would be restored to its former prosperity out of five million hectares which comprise the Tigris-Euphrates delta."

-----TURKEY: End-----

TUSKEGEE INSTITUTE:
Its Twenty-fifth Anniversary.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1906.

TWEEDMOUTH, LORD:
First Lord of the Admiralty.

See (in this Volume)
ENGLAND: A. D. 1905-1906.

TWO-HUNDRED-AND-THREE METRE HILL.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

TWO POWER STANDARD, NAVAL.

See (in this Volume)

War, The PREPARATIONS for.

TURNEY, DANIEL BRAXTON:

Nominated for President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1908 (APRIL-NOVEMBER).

TYRREL, Father George:

Writer of a Famous Letter on Questions of Religion.

His death.

The Reverend George Tyrrel, widely known as Father Tyrrel, died on the 15th of July, 1909, at Storrington, Sussex, England. He was the writer of a letter which gave a notable impulse to the movement of thought in the Roman Catholic Church known as "Modernism," which Pope Pius X. condemned as heretical in his encyclical of 1907. The letter was addressed to an English man of science (supposed to have been Professor Mivart) who, being a Roman Catholic, found difficulty in reconciling his scientific convictions with the tenets of his Church. Parts of the letter obtained publication in Italy, and led to the expulsion of Father Tyrrel from the Society of Jesus. He then gave publication to the full text of the letter, under the title of "A Much Abused Letter." On the appearance of the encyclical against Modernism he criticised it with keenness, and was virtually excommunicated from the Church. The fact that on his death-bed, when stricken with speechlessness, he received the sacraments of the Church, gave rise to much controversy, as to his volition in the matter and

as to the justification of the priest who ministered to him.

Father Tyrrel had entered the Roman Church in 1879, under the influence of the writings of Cardinal Newman.

TZE-HSI:

Dowager-Empress of China.
Her death.

See (in this Volume)
CHINA: A. D. 1908 (NOVEMBER).

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UGANDA:

Its habitability by Whites.

See (in this Volume)
AFRICA.

ULEMA, THE.

See (in this Volume)
TURKEY: A. D. 1909 (JANUARY-MAY).

UNDERFED SCHOOL CHILDREN.

See (in this Volume)
POVERTY, THE PROBLEMS OF.

UNEMPLOYMENT, THE PROBLEM OF.

See (in this Volume)
POVERTY, THE PROBLEMS OF.

UNIFORM STATE LAWS.

See (in this Volume)
LAW AND ITS COURTS: UNITED STATES.

UNITED DRY GOODS COMPANIES.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &C.: UNITED STATES: A. D.
1909.

UNITED FREE CHURCH, OF SCOTLAND.

See (in this Volume)
SCOTLAND: A. D. 1904-1905.

UNITED MINE-WORKERS, OF AMERICA.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES.

UNITED PRESBYTERIAN CHURCH, OF SCOTLAND.

See (in this Volume)
SCOTLAND: A. D. 1904.

-----UNITED STATES OF AMERICA: Start-----

UNITED STATES OF AMERICA: A. D. 1901 (September).
The Assassination of President McKinley.

"On the sixth of September, President McKinley was shot by an anarchist while attending the Pan-American Exposition at Buffalo, and died in that city on the fourteenth of that month. Of the last seven elected Presidents, he is the third who has been murdered, and the bare recital of this fact is sufficient to justify grave alarm among all loyal American citizens. Moreover, the circumstances of this, the third assassination of an American President, have a peculiarly

sinister significance. Both President Lincoln and President Garfield were killed by assassins of types unfortunately not uncommon in history; President Lincoln falling a victim to the terrible passions aroused by four years of civil war, and President Garfield to the revengeful vanity of a disappointed office-seeker. President McKinley was killed by an utterly depraved criminal belonging to that body of criminals who object to all governments, good and bad alike, who are against any form of popular liberty if it is guaranteed by even the most just and liberal laws, and who are as hostile to the upright exponent of a free people's sober will as to the tyrannical and irresponsible despot.

"It is not too much to say that at the time of President McKinley's death he was the most widely loved man in all the United States; while we have never had any public man of his position who has been so wholly free from the bitter animosities incident to public life. His political opponents were the first to bear the heartiest and most generous tribute to the broad kindness of nature, the sweetness and gentleness of character, which so endeared him to his close associates.

{666}

To a standard of lofty integrity in public life he united the tender affections and home virtues which are all-important in the make-up of national character. A gallant soldier in the great war for the Union, he also shone as an example to all our people because of his conduct in the most sacred and intimate of home relations. There could be no personal hatred of him, for he never acted with aught but consideration for the welfare of others. No one could fail to respect him who knew him in public or private life. The defenders of those murderous criminals who seek to excuse their criminality by asserting that it is exercised for political ends, inveigh against wealth and irresponsible power. But for this assassination even this base apology cannot be urged. ...

"The blow was aimed not at this President, but at all Presidents; at every symbol of government. President McKinley was as emphatically the embodiment of the popular will of the Nation expressed through the forms of law as a New England town meeting is in similar fashion the embodiment of the law-abiding purpose and practice of the people of the town. On no conceivable theory could the murder of the President be accepted as due to protest against 'inequalities in the social order,' save as the murder of all the freemen engaged in a town meeting could be accepted as a protest against that social inequality which puts a malefactor in jail."

***Message of President Roosevelt to Congress,
December 3, 1901.***

See (in this Volume)
Buffalo: A. D. 1901.

UNITED STATES OF AMERICA: A. D. 1901 (September).
Settlement of Boxer Indemnity from China.

See (in this Volume)
CHINA: A. D. 1901-1908.

UNITED STATES OF AMERICA: A. D. 1901 (December).
Communication of German Claims and Complaints against Venezuela.
The President's Reply.
Interpretation of the Monroe Doctrine.

See (in this Volume)
VENEZUELA: A. D. 1901.

UNITED STATES OF AMERICA: A. D. 1901-1902.
The "Boom Years" in Trade and Investment of Capital.

See (in this Volume)
FINANCE AND TRADE: A. D. 1901-1909.

UNITED STATES OF AMERICA: A. D. 1901-1902.

Efforts of Secretary Hay to maintain the "Open Door"
in Manchuria.

See (in this Volume)

CHINA: A. D. 1901-1902.

UNITED STATES OF AMERICA: A. D. 1901-1902 (October-January).

The Second International Conference of American Republics.

See (in this Volume)

AMERICAN REPUBLICS.

UNITED STATES OF AMERICA: A. D. 1901-1902 (November-February).

Negotiation and Ratification of the Second Hay-Pauncefote
Treaty, relative to a Ship Canal between the Atlantic
and Pacific Oceans.

See (in this Volume)

PANAMA CANAL: A. D. 1901-1902.

UNITED STATES OF AMERICA: A. D. 1901-1903.

Urgency of President Roosevelt for more Effective Legislation
to control the Operation of so-called Trusts.

See (in this Volume)

COMBINATIONS: INDUSTRIAL, &c.:

UNITED STATES: A. D. 1901-1903.

UNITED STATES OF AMERICA: A. D. 1901-1903.

Purchase of Franchises and Property of French Panama Canal Co.
Failure of Canal Treaty with Colombia.
Secession and recognized Independence of Panama.
Treaty with the Republic of Panama.
Undertaking of the Canal.

See (in this Volume)
PANAMA CANAL.

UNITED STATES OF AMERICA: A. D. 1901-1905.

The Cabinet of President Roosevelt during his First Term.

On succeeding the murdered President McKinley, to fill the unexpired term, President Roosevelt retained his predecessor's Cabinet, three members of which remained in it throughout the term. These were John Hay, Secretary of State, Ethan Allen Hitchcock, Secretary of the Interior, and James Wilson, Secretary of Agriculture. Lyman J. Gage, Secretary of the Treasury, resigned in 1902 and was succeeded by Leslie M. Shaw. Elihu Root, Secretary of War, was succeeded by William H. Taft in 1904. John D. Long, Secretary of the Navy, retired in 1902, to be succeeded by William H. Moody, who went two years later to the Department of Justice, as Attorney-General, taking the place of Philander C. Knox, and being followed in the Navy Department by Paul Morton. Charles E. Smith, Postmaster-General, left the Cabinet in 1902, and his place was taken by Henry C. Payne, who was succeeded in turn by Robert J. Wynne in 1904. The Department of Commerce and Labor, created in February, 1903, was filled first by George B. Cortelyou, until 1904, then by Victor H. Metcalf.

UNITED STATES OF AMERICA: A. D. 1901-1905.

Urgency of President Roosevelt for more effective Railway Rate Legislation.

See (in this Volume)
RAILWAYS: UNITED STATES: A. D. 1870-1908.

UNITED STATES OF AMERICA: A. D. 1901-1906.

Governmental Action against Corporate Wrongdoing.
A summary of Legislation, Litigation, and Court Decisions.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1901-1906.

UNITED STATES OF AMERICA: A. D. 1901-1909.

Progress of Civil Service Reform under President Roosevelt.

See (in this Volume)

CIVIL SERVICE REFORM: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1901-1909.

The great National Movement for an organized Conservation of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1902.

Arbitration at The Hague of the Pious Fund Dispute with Mexico.

See (in this Volume)

MEXICO: A. D. 1902.

UNITED STATES OF AMERICA: A. D. 1902 (August).

Assertion to Germany of Principles involved in the Right of Expatriation.

See (in this Volume)

NATURALIZATION.

UNITED STATES OF AMERICA: A. D. 1902 (January).

Founding of the Carnegie Institution of Washington.

See (in this Volume)

SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

UNITED STATES OF AMERICA: A. D. 1902 (February-March).

Visit of Prince Henry of Prussia.

A visit by Prince Henry of Prussia, brother of the German Emperor, was an event of considerable importance, in what it signified of friendly relations between Germany and the United States. The Prince arrived on the 22d of February and remained in the country until the 11th of March, visiting and being entertained at Washington (and Mt. Vernon), Annapolis, West Point, Philadelphia, New York, and making a six days trip into the West.

UNITED STATES OF AMERICA: A. D. 1902 (March).
Creation of a Permanent Census Bureau.

After long urging, Congress, in February, 1902, passed a bill authorizing the organization of a permanent Census Bureau in the Department of the Interior.

{667}

UNITED STATES OF AMERICA: A. D. 1902 (May).
Unveiling of a Monument to Marshal de Rochambeau.

A joint resolution of the two Houses of Congress, in the following words, was approved by the President on the 21st of March, 1902:

"That the President be, and is hereby, authorized and requested to extend to the Government and people of France and the family of Marshal de Rochambeau, commander in chief of the French forces in America during the war of independence, and to the family of Marquis de Lafayette, a cordial invitation to unite with the Government and people of the United States in a fit and appropriate dedication of the monument of Marshal de Rochambeau to be unveiled in the city of Washington on the twenty-fourth day of May, nineteen hundred and two; and for the purpose of carrying out the provisions of this resolution the sum of ten thousand dollars is hereby appropriated, out of

any money in the Treasury not otherwise appropriated, the same, or so much thereof as may be necessary, to be expended under the direction of the Secretary of State."

The invitation was conveyed to the President of France by an autograph letter from President Roosevelt, while Secretary Hay, at the same time, communicated it officially, through the American Ambassador at Paris, to representatives of the families of Marshal de Rochambeau and the Marquis de Lafayette. France, in response, sent a battleship, the **Gaulois**, bearing a general and an admiral, with two aids each, and two officials from the foreign office. The invitation was accepted by the present Count and Countess de Rochambeau; and, as explained by Ambassador Porter in a despatch, "Mr. Gaston de Sahune de Lafayette and his wife, not being able to proceed to the United States, the invitation is accepted for Mr. Paul de Sahune de Lafayette, who has been living in the United States for the last two years and who speaks English. He is the brother of Mr. Gaston de Sahune de Lafayette."

The ceremonies of the unveiling of the monument took place at Washington on the 24th of May, and were followed by official hospitalities to the guests of the occasion at Washington, Annapolis, West Point, New York, Newport, and Boston. With the sailing of the **Gaulois**, on the 1st of June, the formalities of the visit came to an end.

UNITED STATES OF AMERICA: A. D. 1902 (May).

Establishment of the Republic of Cuba.

Transfer of Executive Authority from U. S. Military Governor to President-elect Palma.

See (in this Volume)

CUBA: A. D. 1901-1902.

UNITED STATES OF AMERICA: A. D. 1902 (May-November).

The Restoration of the White House.

Until 1902 the residence and the executive offices of the President of the United States were crowded together in the historic White House, with increasing inconvenience and impropriety. Many projects for their separation had been discussed, involving generally the erection of a new mansion for the chief magistrate; but they had no result until President Roosevelt, with characteristic resolution, took the matter in hand. His emphatic pronouncement that "under no circumstances should the President live elsewhere than in the historic White House" appealed strongly to a very common public feeling, and smoothed the way for an undertaking which speedily cleared the White House of its secretarial and clerical offices and made it a fit and worthy residence for the chief citizen of the Republic and his family.

On consultation with the Park Commission of Washington, and especially with the architect, Mr. McKim, who was one of its members, as to the expenditure of the annual appropriations of Congress for repairs to the White House, it was decided to be thrifless policy "to patch a building that needed thorough reconstruction. When asked for his ideas as to such reconstruction, Mr. McKim advised that a temporary one-story building be located west of the White House, nearly on the site once occupied by Thomas Jefferson's offices, and be distinctly subordinate to the main building; and that the White House be restored to its original uses as a residence. This solution commended itself to the President, but lateness in the session of Congress seemed to make the project impossible of immediate execution.

"The discussion was still in the academic stage when, one day [in May, 1902], Mr. McKim outlined his ideas to the late Senator McMillan, who straightway asked the cost of the proposed changes. Pressed for an immediate answer, Mr. McKim made a rough estimate. The Sundry Civil Appropriation Bill was

then pending in the Senate Committee on Appropriations, and within an hour from the time the figures were given that committee agreed to insert an item for the restoration of the White House and for the construction of temporary executive offices. To Senators Allison and Hale the President afterward submitted the architect's scheme; and when the item was reached during the passage of the bill in the Senate, the plan was received with favor, and the appropriation was agreed to without objection."

It passed the House with equal promptitude. The President then stipulated that "the work should be completed in time for the next social season, and that the executive offices and the living portion of the White House should be ready in November, 1902. That meant a campaign. Stones for floors and stairways must be selected piece by piece at the distant quarry; steel must be found to replace the over-tired wooden floor-beams; velvets and silks must be woven; hardware must be fashioned; and a thousand and one details must be looked after, because in less than six months the White House was to be made over from cellar to garret, and every piece of woodwork, every item of furniture, each ceiling and panel and moulding, must be both architecturally correct and also befitting a house of the latter part of the eighteenth century. Such was the task which the architects, Messrs. McKim, Mead & White, took upon themselves. ...

"The total amount which Congress placed in President Roosevelt's hands for both the executive offices and the White House was \$530,641, and he might expend the money either by contract or otherwise in his discretion. This amount was based on estimates furnished by the architects, with the understanding that any portion saved on one item might be used on others, a very happy proviso, as it turned out, because the electric wiring had to be entirely renewed, new heating apparatus provided, and even a new roof put on the house--all unforeseen requirements. ...

"At the outset the architects discovered that simply by carrying out completely the early plans as to the exterior, and by making certain rearrangements in the interior, the ... White House problems could be solved, at least for the immediate future, without destroying one single feature of the historic building. ...

{668}

"By the restoration of the east and west terraces the White House now rises from a stylobate 460 feet in length, thus greatly enhancing the dignity of the structure. The roofs of these terraces (which are level with the ground on the north) are surrounded with stone balustrades bearing electric lamps."

***Charles Moore,
The Restoration of the White House
(Century Magazine, April, 1903).***

UNITED STATES OF AMERICA: A. D. 1902 (June).
Reclamation (Irrigation) Act of Congress.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1902 (October).
Failure of Projected Purchase of the Danish West Indies.

See (in this Volume)
DENMARK: A. D. 1902.

UNITED STATES OF AMERICA: A. D. 1902-1903.
Friendly course of Germany in undertaking Proceedings,
with Great Britain and Italy, against Venezuela.
Recognition of the Monroe Doctrine.
Intermediation of the United States.

"If any proof were needed of Germany's purpose to maintain good relations with our country [the United States], her course in the Venezuela matter has amply supplied it.

See (in this Volume)
VENEZUELA: A. D. 1902-1904]

Indeed, the fact that Germany came to an understanding with our government before taking forcible measures against Venezuela is of most momentous significance. Why? Because this was the first explicit recognition of the Monroe Doctrine by any Continental Power. It is a notable milestone passed in the history of our country and its relations with European governments. It gives the Monroe Doctrine a validity no longer to be disputed. All this was instantly recognized in Germany. 'America for the Americans,' said a great Berlin daily, 'has become an irreversible fact.' German Jingo organs were dazed, and angrily exclaimed, 'Must we ask permission at Washington to collect our claims from Venezuela?' Papers of more rational temper, however, accepted Germany's course, as not only without detriment to her dignity, but as in harmony with her political interests. Indeed, this saner section of the German press was even pleased that the government had thus made such an emphatic disavowal of the aims and dreams of the noisy, fantastic Pan-Germans."

W. C. Dreher,
A Letter from Germany
(Atlantic Monthly, March, 1902).

UNITED STATES OF AMERICA: A. D. 1902-1903.
Extension of Civil Service Classification
to Rural Free Delivery Service.
Order concerning Unclassified Laborers.

See (in this Volume)

CIVIL SERVICE REFORM: UNITED STATES: A. D. 1902-1903.

UNITED STATES OF AMERICA: A. D. 1902-1905.

Negotiation and Senatorial Destruction of the Hay-Bond
Reciprocity Treaty with Newfoundland.

See (in this Volume)

NEWFOUNDLAND: A. D. 1902-1905.

UNITED STATES OF AMERICA: A. D. 1902 (February).

Creation of the Department of Commerce and Labor in
the National Government.

The Bureau of Corporations.

"The establishment of the Department of Commerce and Labor, with the Bureau of Corporations thereunder, marks a real advance in the direction of doing all that is possible for the solution of the questions vitally affecting capitalist and wage-workers. The act creating the Department was approved on February 14, 1903, and two days later the head of the Department was nominated and confirmed by the Senate. Since then the work of organization has been pushed as rapidly as the initial appropriations permitted, and with due regard to thoroughness and the broad purposes which the Department is designed to serve. After the transfer of the various bureaus and branches to the department at the beginning of the current fiscal year, as provided for in the act, the personnel comprised 1,289 employees in Washington and 8,836 in the country at large. The scope of the Department's duty and authority embraces the commercial and industrial interests of the Nation. It is not designed to restrict or control the fullest liberty of legitimate business action, but to secure exact and authentic information which will aid the Executive in enforcing existing laws, and which will enable the Congress to enact additional legislation, if any should be found necessary, in order to prevent the few from obtaining privileges at the expense of diminished opportunities for the

many.

"The preliminary work of the Bureau of Corporations in the Department has shown the wisdom of its creation. Publicity in corporate affairs will tend to do away with ignorance, and will afford facts upon which intelligent action may be taken. Systematic, intelligent investigation is already developing facts the knowledge of which is essential to a right understanding of the needs and duties of the business World. The corporation which is honestly and fairly organized, whose managers in the conduct of its business recognize their obligation to deal squarely with their stockholders, their competitors, and the public, has nothing to fear from such supervision. The purpose of this Bureau is not to embarrass or assail legitimate business, but to aid in bringing about a better industrial condition—a condition under which there shall be obedience to law and recognition of public obligation by all corporations, great or small."

***Message of the President to Congress,
December 7, 1903.***

UNITED STATES OF AMERICA: A. D. 1903 (February).

Passage of the Act to further regulate Commerce with Foreign Nations and among the States, known commonly as the Elkins Anti-Rebate Law.

See (in this Volume)

RAILWAYS: UNITED STATES: A. D. 1903 (FEBRUARY).

UNITED STATES OF AMERICA: A. D. 1903 (October).

Settlement of the Alaska Boundary Question.

See (in this Volume)

ALASKA: A. D. 1903.

UNITED STATES OF AMERICA: A. D. 1903 (October).

Lease from Cuba of two Coaling and Naval Stations.

See (in this Volume)
CUBA: A. D. 1903.

UNITED STATES OF AMERICA: A. D. 1903 (October).
New Treaty with China.
Two Ports in Manchuria opened to Foreign Trade.

See (in this Volume)
CHINA: A. D. 1903 (MAY-OCTOBER).

UNITED STATES OF AMERICA: A. D. 1903 (October).
Commercial Relations with Germany as affected by the
new German Tariff Law.

See (in this Volume)
GERMANY: A. D. 1902 (OCTOBER).

UNITED STATES OF AMERICA: A. D. 1903-1904.
The Financial Crisis.

See (in this Volume)
FINANCE AND TRADE: A. D. 1901-1909.

UNITED STATES OF AMERICA: A. D. 1903-1904.
Contention against Canadian claims to Sovereignty over Land
and Sea in Hudson Bay Region.
Canadian Measures to establish it.

See (in this Volume)
CANADA: A. D. 1903-1904.

UNITED STATES OF AMERICA: A. D. 1903-1905.
Investigation and Prosecution of the "Beef Trust," so called.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1903-1906.

{669}

UNITED STATES OF AMERICA: A. D. 1903-1906.

Unearthing of Extensive Frauds in the Land Office.

Late in December, 1902, the Secretary of the Interior Department, the Honorable Ethan Allen Hitchcock, received information which led him, with the President's approval, to demand the resignation of the Commissioner of the Land Office, Binger Hermann, of Oregon. Mr. Hermann was a man of importance in the Republican party, and he rallied powerful influences to his support. They could not anchor him durably in the Land Office, but they did delay his departure from it for about a month, during which time he is said to have destroyed thousands of letters and documents bearing on land frauds which he was under suspicion of having protected and promoted. Returning to Oregon from Washington he sought and obtained from his party an election to Congress, to fill a vacancy which death had caused opportunely, and this seemed to augment his political power. But agents of the Interior Department were in Oregon and other Western States at the same time, gathering evidence which soon removed all doubt of the huge conspiracy of fraud which Commissioner Hermann had been a party to, and which had wide ramifications wherever public lands of value were open to entry, under the Homestead Act, the Desert Land Act, or the Timber and Stone Act.

The frauds were carried on under false appearances of compliance with the requirements of law, and the dismissal of Hermann had not cleared from the General Land Office all the treacherous connivance which made them possible. Other allies of the land-thieves were tracked to their official desks, some at Washington, some in the Interior Department, some in Congress, and some out in the land offices at the West. Then

the Federal Grand Jury at Portland, Oregon, began to turn out indictments, on evidence handled by Francis J. Heney, now entering on a famous career, as special prosecutor for the Government. Mr. Heney was appointed by the President on the recommendation of Secretary Hitchcock and Attorney-General Knox, with neglect of advice from Oregon Senators and Congressmen. One of the first of the indictments found struck an Oregon Senator, John H. Mitchell, and brought him to a prison sentence, which death rescued him from. Another put a member of the House of Representatives, J. H. Williamson, on trial; a third put its brand on a recently removed United States District Attorney, John H. Hall. Binger Hermann, a State Senator, and several special agents of the Land Office were among the other subjects of prosecution, besides a large number of private operators in the land-thieves' ring.

These proceedings were at the beginning of vigorous measures which have gone far towards, if not fully to the end of arresting the frauds which were rapidly robbing the nation of the last of its valuable public lands.

UNITED STATES OF AMERICA: A. D. 1904.
Representation in the Interparliamentary Union.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1904-1909.

UNITED STATES OF AMERICA: A. D. 1904 (May).
Kidnapping of Mr. Ion Perdicaris at Tangier, for Ransom.

See (in this Volume)
MOROCCO: A. D. 1904-1909.

UNITED STATES OF AMERICA: A. D. 1904 (May-October).
The Louisiana Purchase Exposition.

See (in this Volume)

ST. LOUIS: A. D. 1904.

UNITED STATES OF AMERICA: A. D. 1904 (May-November).

The Presidential Election.

Parties, Candidates, and Platforms.

Election of President Roosevelt.

The questions of leading interest and influence in the canvass preliminary to the Presidential election of 1904 were undoubtedly those relating to the governmental regulation of interstate railways and of the capitalistic combinations called "trusts"; but those questions had not yet acquired the height of importance in the public mind which they reached before the next quadrennial polling of the nation occurred. The question of tariff revision and a moderated protective system, in the interest of the great mass of consumers, was rising in interest, especially at the West; but that, too, was but mildly influential in the campaign. As for the imperialistic ambitions that had been excited for a time by the conquests of 1898, they had cooled to so great a degree as to offer no longer much challenge to opposition; opinion in the country now differing on little more than the length of time to which American guardianship over the Philippine Islands should be allowed to run. The voters of the United States, in fact, made their election between the men who were offered to it as candidates, far more than between the parties and the policies whom the candidates represented; and President Roosevelt was reelected on personal grounds, in the main, because the kind of vigorous character he had shown was greatly to the liking of a large part of the people.

The first nominating convention to be held was that of the Socialist party, whose delegates met at Chicago, May 2, and nominated for President Eugene V. Debs, of Indiana; for Vice-President Benjamin Hanford, of New York.

On the same day the United Christian Party, whose declaration

of principles appears below, met at St. Louis.

The Convention of the Republican Party, also held at Chicago, came next in time, June 21, and, with Theodore Roosevelt, of New York, for reelection as President, it named for Vice-President Charles Warren Fairbanks, of Indiana.

The Prohibition Party, in convention at Indianapolis, June 29, named Silas C. Swallow, of Pennsylvania, for President, and George W. Carroll, of Texas, for Vice-President.

On the 4th of July the People's or Populist Party held convention at Springfield, Illinois, and nominated Thomas E. Watson, of Georgia, for President, with Thomas H. Tibbles, of Nebraska, for Vice-President.

Meeting two days earlier, in New York City, but in session some days longer, the Socialist Labor Party named for President Charles Hunter Corregan, of New York, and for Vice-President William Wesley Cox, of Illinois.

The convention of the Democratic Party opened its session, at St. Louis, on the 6th of July. Its nominee for President was Alton B. Parker, of New York; for Vice-President Henry G. Davis, of West Virginia.

The National Liberty Party met at St. Louis on the 7th of July and put forth its platform of principles.

The last of the nominations were presented on the 31st of August, at Chicago, by a convention representing a new party, the Continental, whose candidates then named declined and were subsequently replaced by Austin Holcomb, of Georgia, for President, and A. King, of Missouri, for Vice-President.

With some abridgment, the declarations of principles and pledges of party policy adopted by these several conventions on the main questions at issue are given conveniently for comparison in the following arrangement by subjects:

Trusts.

The Republican Party contented itself with a brief boast of "laws enacted by the Republican party which the Democratic party failed to enforce," but which "have been fearlessly enforced by a Republican President," and of "new laws insuring reasonable publicity as to the operations of great corporations and providing additional remedies for the prevention of discrimination in freight rates."

The Democratic Party condemned with vigor the failure of Republicans in Congress to prohibit contracts with convicted trusts; declared that "gigantic trusts and combinations" "are a menace to beneficial competition and an obstacle to permanent business prosperity;" denounced "rebates and discrimination by transportation companies as the most potent agency in promoting and strengthening these unlawful conspiracies against trade," demanded "an enlargement of the powers of the Interstate Commerce Commission," "a strict enforcement of existing civil and criminal statutes against all such trusts, combinations and monopolies," and "the enactment of such further legislation as may be necessary to effectually suppress them."

The People's Party set forth the proposition that, "to prevent unjust discrimination and monopoly the Government should own and control the railroads and those public utilities which in their nature are monopolies." It should "own and operate the general telegraph and telephone systems and provide a parcels post." Corporations "should be subjected to such governmental regulations and control as will adequately protect the public," and demand was made for "the taxation of monopoly

privileges, while they remain in private hands, to the extent of the value of the privileges granted."

The Continental Party contended for a guarded chartering by Congress of "all railroad and other corporations doing business in two or more States," and for having the "creating of 'corners' and the establishing of exorbitant prices for products necessary to human existence ... made a criminal offence."

The United Christian Party declared that "Christian government through direct legislation will regulate the trusts and labor problem according to the golden rule."

The Tariff.

The Republican Party declared "Protection" to be its "cardinal policy," maintenance of the principles of which policy is insisted upon; wherefore "rates of duty should be readjusted only when conditions have so changed that the public interest demands their alteration," and "this work cannot safely be committed to any other hands than those of the Republican party."

The Democratic Party, on the contrary, denounced "protection as a robbery of the many to enrich the few," favored "a tariff limited to the needs of the Government, economically administered," and called for a "revision and gradual reduction of the tariff by the friends of the masses, for the commonwealth, and not by the friends of its abuses, its extortions and its discriminations."

The People's Party declared for a change in our laws that "will place tariff schedules in the hands of an omni-partisan commission."

The Continental Party limited its declaration on this subject

to one pronouncing for an "adherence to the principles of reciprocity advocated by that eminent statesman, James G. Blaine, as applied to Canada and all American Republics."

Capital and Labor.
Public Ownership.
Socialism.

The Republican Party recognized "combinations of capital and labor" as "being the results of the economic movements of the age," but "neither must be permitted to infringe upon the rights and interests of the people"; "both are subject to the laws, and neither can be permitted to break them."

The Democratic Party expressed similar impartiality, in favoring "the enactment and administration of laws giving labor and capital impartially their just rights."

The People's Party pledged its effort to "preserve inviolate" "the right of labor to organize for the benefit and protection of those who toil." It would seek "the enactment of legislation looking to the improvement of conditions for the wage-earners, the abolition of child labor, the suppression of sweat shops and of convict labor in competition with free labor"; also the "exclusion from American shores of foreign pauper labor," and "the shorter work day."

The Continental Party adopted these expressions of the People's Party, in identical words.

The National Liberty Party asked "that the General Government own and control all public carriers in the United States."

The Prohibition Party declared itself "in favor of ... the safeguarding of the people's rights by a rigid application of the principles of justice to all combinations and organizations of capital and labor."

The United Christian Party pronounced simply for "Government ownership of coal mines, oil wells and public utilities."

The Socialist Party pledged itself "to watch and work, in both the economic and the political struggle, for each successive immediate interest of the working class": for "shortened days of labor and increases of wages"; for "insurance of the workers against accident, sickness and lack of employment"; for pensions; for "public ownership of the means of transportation, communication and exchange"; for graduated taxation of incomes, etc.; for "complete education of children and their freedom from the workshops"; for "free administration of justice"; for "the initiative, referendum, proportional representation, equal suffrage for men and women," etc.; and for "every gain or advantage for the workers that may be wrested from the capitalist system and that may relieve the suffering and strengthen the hands of labor"; but in so doing it proclaims that it is "using these remedial measures as means to the one great end of the co-operative commonwealth."

The Socialist Labor Party declared that "the existing contradiction between the theory of democratic government and the fact of a despotic economic system ... perverts government to the exclusive benefit of the capitalist class"; wherefore, "against such a system the Socialist Labor Party raises the banner of revolt, and demands the unconditional surrender of the capitalist class."

{671}

Nomination and Election.
Initiative and Referendum.

The Democratic Party declared for the election of United States Senators by direct popular vote.

he People's Party demanded "that legal provision be made under which people may exercise the initiative and referendum, and proportional representation, and direct vote for all public officers, with the right of recall."

The Continental Party demanded "the enactment by the several States of a primary election law"; the "elimination of the party 'boss'"; "direct legislation by the method known as the initiative and referendum," and the possession by each State of "the sole right to determine by legislation the qualifications required of voters within its jurisdiction, irrespective of race, color or sex."

The Prohibition Party expressed itself in favor of the popular election of United States Senators; of "a wise application of the principle of the initiative and referendum," and of making the right of suffrage "depend upon the mental and moral qualifications of the citizen."

Natural Resources.

Land.

Reclamation.

Waterways.

The Republican Party pointed simply to the fact that it had "passed laws which will bring the arid lands of the United States within the area of cultivation."

The Democratic Party congratulated "our western citizens upon the passage of the law known as the Newlands Irrigation Act," claiming it as "a measure framed by a Democrat, passed in the Senate by a non-partisan vote, and passed in the House against the opposition of almost all Republican leaders, by a vote the majority of which was Democratic." It declared for "liberal appropriations for the improvement of waterways of the country," and pronounced its opposition to "the Republican

policy of starving home development in order to feed the greed for conquest and the appetite for national prestige."

The People's Party asserted that "Land, including all the natural sources of wealth, is a heritage of all the people, and should not be monopolized for speculative purposes; and alien ownership of land should be prohibited."

Each of the party platforms was fluent on many other topics, such as the protection of citizens at home and abroad, the Panama Canal, territories and dependencies, injunctions, public economy, taxation, monetary questions, pensions, the civil service, army and navy, merchant marine, liquor-licensing and prohibition (the specialty of the Prohibition Party), divorce, polygamy, etc.; but these entered so little into the canvass that the party declarations on them had small effect, if any, on the popular vote.

At the election, in November, the votes given to the Republican nominees numbered 7,623,486; to Democratic, 5,077,971; to Socialist, 402,283; to Prohibition, 258,536; to People's, 117,183; to Socialist Labor, 31,249.

The electoral votes cast were 336 for Roosevelt and Fairbanks; 140 for Parker and Davis.

The States which gave Republican majorities were California, Colorado, Connecticut, Delaware, Idaho, Illinois, Indiana, Iowa, Kansas, Maine, Massachusetts, Michigan, Minnesota, Missouri, Montana, Nebraska, Nevada, New Hampshire, New Jersey, New York, North Dakota, Ohio, Oregon, Pennsylvania, Rhode Island, South Dakota, Utah, Vermont, Washington, West Virginia, Wisconsin, Wyoming,—32.

Democratic majorities were given in Alabama, Arkansas, Florida, Georgia, Kentucky, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee, Texas, Virginia,—12.

In Maryland, where the electors are chosen by the Legislature, 6 votes were given to the Democratic candidates and 2 to the Republican.

UNITED STATES OF AMERICA: A. D. 1904 (October).

Initial invitation by the President to the holding of a Second Peace Conference.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1907.

UNITED STATES OF AMERICA: A. D. 1904 (November).

President Roosevelt's Renunciation of any Third Term Candidacy.

On the evening of the day of election, as soon as the result was known to have given him a second term in the presidential office, President Roosevelt issued the following acknowledgment and announcement to the country:

"I am deeply sensible of the honor done me by the American people in thus expressing their confidence in what I have done and have tried to do. I appreciate to the full the solemn responsibility this confidence imposes upon me, and I shall do all that in my power lies not to forfeit it. On the Fourth of March next I shall have served three and one-half years, and this three and one-half years constitutes my first term. The wise custom which limits the President to two terms regards the substance and not the form. Under no circumstances will I be a candidate for or accept another nomination."

UNITED STATES OF AMERICA: A. D. 1904-1905.

Beginning and Organization of Work on the Panama Canal.

See (in this Volume)

PANAMA CANAL: A. D. 1904-1905.

UNITED STATES OF AMERICA: A. D. 1904-1909.
Progress of State, County, and Town Prohibition.

See (in this Volume)
ALCOHOL PROBLEM: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1905.
Arbitration Treaty with Mexico.

See (in this Volume)
MEXICO: A. D. 1904-1905.

UNITED STATES OF AMERICA: A. D. 1905.
Reopened Controversy over American Fishing Rights on
the Newfoundland coast.

See (in this Volume)
NEWFOUNDLAND: A. D. 1905-1909.

UNITED STATES OF AMERICA: A. D. 1905.
Assistance to San Domingo against threatening Creditors.

See (in this Volume)
SAN DOMINGO: A. D. 1904-1907.

UNITED STATES OF AMERICA: A. D. 1905 (February).
Concentration of Forest Service in the Department
of Agriculture.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1905 (February-June).
Recovery from France of the body of Admiral John Paul Jones.

On the 13th of February, 1905, President Roosevelt addressed
a Message to Congress which gave the following information:

"For a number of years efforts have been made to confirm the historical statement that the remains of Admiral John Paul Jones were interred in a certain piece of ground in the city of Paris then owned by the Government and used at the time as a burial place for foreign Protestants. These efforts have at last resulted in documentary proof that John Paul Jones was buried on July 20, 1792, between 8 and 9 o'clock P. M., in the now abandoned cemetery of St. Louis, in the northeastern section of Paris. About 500 bodies were interred there, and the body of the admiral was probably among the last hundred buried. It was encased in a leaden coffin, calculated to withstand the ravages of time.

{672}

"The cemetery was about 130 feet long by 120 feet wide. Since its disuse as a burial place the soil has been tilled to a level and covered almost completely by buildings, most of them of an inferior class. The American ambassador in Paris, being satisfied that it is practical to discover and identify the remains of John Paul Jones, has, after prolonged negotiations with the present holders of the property and the tenants thereof, secured from them options in writing which give him the right to dig in all parts of the property during a period of three months for the purpose of making the necessary excavations and searches, upon condition of a stated compensation for the damage and annoyance caused by the work. The actual search is to be conducted by the chief engineer of the municipal department of Paris having charge of subterranean works at a cost which has been carefully estimated. The ambassador gives the entire cost of the work, including the options, compensation, cost of excavating and caring for the remains as not exceeding 180,000 francs, or \$35,000, on the supposition that the body may not be found until the whole area has been searched. If earlier discovered, the expense would be proportionately less."

The President recommended an appropriation of the sum named, "or so much thereof as may be necessary for the purposes above described, to be expended under the direction of the Secretary of State."

On the 14th of April following a telegram from the Ambassador at Paris, General Horace Porter, announced that his "six years' search for the remains of Paul Jones" had resulted in success, and described the identification of the body. This had been verified by Doctors Capitan and Papillault, distinguished professors of the School of Anthropology, who had ample particulars of information from which to judge. Arrangements were made at once for sending a naval squadron, under Admiral Sigsbee, to France, to bring the remains to the United States. This was done in the following June, when the relics of the first of American naval heroes received the high honors that were due to his exploits. They were deposited in a vault on the grounds of the Naval Academy at Annapolis.

UNITED STATES OF AMERICA: A. D. 1905 (June-October).
Mediation by the President between Russia and Japan.
The Peace Treaty of Portsmouth.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

UNITED STATES OF AMERICA: A. D. 1905 (July).
Proclamation of the Death of John Hay, Secretary of State.

"John Hay, Secretary of State of the United States, died on July 1st. His death, a crushing sorrow to his friends, is to the people of this country a national bereavement; and it is in addition a serious loss to all mankind, for to him it was given to stand as a leader in the effort to better world conditions by striving to advance the cause of international peace and justice. He entered the public service as the

trusted and intimate companion of Abraham Lincoln, and for well nigh forty-five years he served his country with loyal devotion and high ability in many positions of honor and trust, and finally he crowned his life work by serving as Secretary of State with such far-sighted reading of the future and such loyalty to lofty ideals as to confer lasting benefits not only upon our own country, but upon all the nations of the earth.

"As a suitable expression of national mourning, I direct that the diplomatic representatives of the United States in all foreign countries display the flags over their embassies and legations at half-mast for ten days; that for a like period the flag of the United States be displayed at half-mast at all forts and military posts and at all naval stations and on all vessels of the United States. I further order that on the day of the funeral the Executive Departments in the city of Washington be closed, and that on all public buildings throughout the United States the national flag be displayed at half-mast.

"Done at the city of Washington this third day of July, A. D. 1905, and of the Independence of the United States of America the one hundred and twenty-ninth. Theodore Roosevelt."

UNITED STATES OF AMERICA: A. D. 1905-1906.
American Claims against Venezuela.

See (in this Volume)
VENEZUELA: A. D. 1905-1906, and 1907-1909.

UNITED STATES OF AMERICA: A. D. 1905-1906.
Part taken in the organization of the International
Institute of Agriculture.

See (in this Volume)
AGRICULTURE.

UNITED STATES OF AMERICA: A. D. 1905-1906.

The new Period of Inflated Exploitation of Capital.
Increased Cost of Living.

See (in this Volume)

FINANCE AND TRADE: A. D. 1901-1909.

UNITED STATES OF AMERICA: A. D. 1905-1907.

Receivership of San Domingo Revenues.
The "Modus Vivendi" and the Treaty.

See (in this Volume)

SAN DOMINGO: A. D. 1905-1907.

UNITED STATES OF AMERICA: A. D. 1905-1909.

The Cabinet of President Roosevelt during his Second Term.

During the second term of President Roosevelt his Cabinet underwent the following changes: On the death of John Hay, in July, 1905, Elihu Root became Secretary of State, and continued in the office until January, 1909, when he resigned, and was succeeded by the Assistant Secretary of State, Robert Bacon. Leslie M. Shaw left the Treasury Department in 1907, and the secretaryship was given to George B. Cortelyou. William H. Taft continued in charge of the War Department until his nomination for President, in 1908, when General Luke E. Wright was called to his place. Charles J. Bonaparte, appointed Secretary of the Navy at the beginning of the President's new term, was transferred in 1907 to the Department of Justice, succeeding Attorney-General Moody, appointed to the bench of the Supreme Court, and being succeeded in the Navy Department by Victor H. Metcalf, previously Secretary of Commerce and Labor. In the Department of the Interior, Secretary Hitchcock resigned in 1907, and James R. Garfield, previously Commissioner of Corporations, came into his place. George B. Cortelyou had been called to

the Post Office Department at the beginning of the new presidential term, and transferred thence to the Treasury Department in 1907. His place in the Post Office was then filled by George von L. Meyer. The Secretary of Agriculture, James Wilson, remained at the head of that Department throughout the term. On the transfer of Mr. Metcalf from the Department of Commerce and Labor to that of the Treasury, in 1907, his place in the former was taken by Oscar S. Straus.

{673}

UNITED STATES OF AMERICA: A. D. 1906.

Joint Action with Mexico in Central American Mediation.

See (in this Volume)
CENTRAL AMERICA.

UNITED STATES OF AMERICA: A. D. 1906.

Act for the Preservation of the Scenic Grandeur
of Niagara Falls.

See (in this Volume)
NIAGARA FALLS.

UNITED STATES OF AMERICA: A. D. 1906.

Dealings with Turkey facilitated by making the
American Minister an Ambassador.

See (in this Volume)
TURKEY: A. D. 1906.

UNITED STATES OF AMERICA: A. D. 1906.

Enactment of a National Pure Food Law.

See (in this Volume)
PUBLIC HEALTH.

UNITED STATES OF AMERICA: A. D. 1906 (January-April).

Represented at the Algeciras Conference on
the Morocco Question.

Instructions to the Delegates.

Declaration made on signing the Act of the Conference.

See (in this Volume)

EUROPE: A. D. 1905-1906.

UNITED STATES OF AMERICA: A. D. 1906 (March).

Supreme Court Decision enforcing the Demand of the Government
for the production of Books and Papers by the so-called
Tobacco Trust before a Federal Grand Jury.

See (in this Volume)

COMBINATIONS, INDUSTRIAL: UNITED STATES: A. D. 1905-
1906.

UNITED STATES OF AMERICA: A. D. 1906 (April).

Laying the Corner Stone of an Office Building for Congressmen.

On the 14th of April, 1906, the corner stone of a building
designed to supply each member of the House of Representatives
with an office was laid with ceremony, the President
delivering an address. Besides 410 distinct offices, the
design of the building contemplated a large assembly room for
public hearings before committees of the House. Its estimated
cost was something over \$3,000,000. A corresponding office
building for the Senate was also in view.

UNITED STATES OF AMERICA: A. D. 1906 (April).

Convention with British Government for Determining and
Marking the Alaska Boundary Line.

See (in this Volume)

ALASKA: A. D. 1906.

UNITED STATES OF AMERICA: A. D. 1906 (April-July).
Long and Widespread Suspension of Coal Mining,
both Anthracite and Bituminous.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1906.

UNITED STATES OF AMERICA: A. D. 1906 (June).
The Joint Statehood Act.

By the Joint Statehood Bill, approved by the President June 16, 1906, Indian Territory and Oklahoma were united to form the State of Oklahoma, the people being authorized to adopt a constitution. Arizona and New Mexico were proffered a similar union, in a State to be called Arizona. On the question of such union the Bill provided for a vote to be taken in each Territory, following which, if a majority in each should be found to favor the union, delegates to be chosen at the same election should meet and frame a constitution for submission to the people. The contemplated vote was taken at the election of November 6, and resulted in the rejection of the proposal by Arizona, while New Mexico gave assent. The project was thus defeated.

The plan of union was successful, however, in the creation of the State of Oklahoma. Delegates to a convention for framing its Constitution were elected November 6, 1906; the convention began its session on the 20th of the same month, and finished its labors on the 16th of July, 1907. By proclamation of the President the new State,—the 46th of the Federal family,—was admitted to the Union on the 16th of November following, under the Constitution which had been ratified by vote of a majority of the citizens of each of the Territories now united in it. For some account of the Constitution;

See (in this Volume)

CONSTITUTION OF OKLAHOMA.

UNITED STATES OF AMERICA: A. D. 1906 (July-August).
The Third International Conference of American Republics,
at Rio de Janeiro.

See (in this Volume)
AMERICAN REPUBLICS.

UNITED STATES OF AMERICA: A. D. 1906 (August).
The Brownsville Affair.

On the 13th of August, 1906, a riotous affair of a much-disputed nature occurred at Brownsville, Texas, in which one man was killed and two, at least, were wounded. The shooting was alleged to have been done by colored soldiers who formed part of a battalion of the Twenty-fifth Infantry, United States Army, stationed at Brownsville. An investigation of the affair convinced the President that some few soldiers of the battalion were guilty of what had been done, and that their comrades knew of their guilt, but were shielding them, by assertions to the contrary. On this belief he ordered the entire battalion to be discharged from the service, and angry controversy over his action arose at once. The negro soldiers were championed by a considerable part of the Press of the country, and by a section of Congress when it met. The evidence of their guilt was declared to be more than doubtful, and the authority of the President to issue the order of discharge was challenged.

In the annual report of the then Secretary of War, now President Taft, the action of President Roosevelt was firmly sustained. Secretary Taft's version of the circumstances of the affair was substantially to the following effect: Some number of men, from a battalion of 170, formed a preconcerted plan to revenge themselves upon the people of a town for insults which they resented. They left their barracks about midnight and fired into the houses of the town for the purpose

of killing those against whom they had a grievance. They did kill one man, wound another, and seriously injure the chief of police. There can be no doubt, therefore, that this squad of men were guilty; the purpose of one was the purpose of all. Within a few minutes after the crime was committed, the men returned to their places in the ranks (a call to arms having been sounded), and must have been among the last to take their places, for the firing continued after the formations had begun. The absence of their rifles from the racks could not have escaped the attention of the sergeants who had the keys; yet all the sergeants swear that the rifles were in the racks, untouched. It is impossible that many of the battalion who did not take part as active members of the conspiracy were not made aware, by one circumstance or another, of the identity of the persons who committed the offense, instead of giving to their officers or the inspectors the benefit of anything which they knew tending to lead to a conviction of the guilty men, there was a conspiracy of silence on the part of many who must have had some knowledge of importance. "These enlisted men," said Secretary Taft, "took the oath of allegiance to the Government, and were to be used under the law to maintain its supremacy. Can the Government properly, therefore, keep in its employ for the purpose of maintaining law and order any longer a body of men, from five to ten per cent. of whom can plan and commit murder, and rely upon the silence of a number of their companions to escape detection? "

{674}

Mr. Taft then called attention to the fact that "when a man enlists in the army he knows that, for the very purpose of protecting itself, the Government reserves to itself the absolute right of discharge, not as a punishment, but for the public safety or interest." He thus corrected the supposition that the discharge was a punishment either of the innocent or the guilty. He said further: "The discharge 'without honor' is merely the ending of a contract and separation from the

service under a right reserved in the statute for the protection of the Government, which may work a hardship to the private discharged, but which, in the public interest, must sometimes be arbitrarily exercised."

Of the repeated investigations, Congressional and military, that ensued, and of the protracted disputation, led in Congress by Senator Foraker, and echoed in the newspapers, it is needless to attempt an account; for no greater certainty as to the facts in the case can be recognized to-day than when Secretary Taft's report was made.

UNITED STATES OF AMERICA: A. D. 1906 (August-October).
Insurrection in Cuba.
American Intervention called for.
The Cuban Government dissolved.
Provisional Government established by Secretary-of-War Taft.

See (in this Volume)
CUBA: A. D. 1906 (AUGUST-OCTOBER).

UNITED STATES OF AMERICA: A. D. 1906 (October-November).
Segregation of Orientals in San Francisco Schools.
Resentment of the Japanese.

See (in this Volume)
RACE PROBLEMS: UNITED STATES: A. D. 1904-1909.

UNITED STATES OF AMERICA: A. D. 1906-1909.
The Provisional Government of Cuba.
Reinstatement of the Republic.

See (in this Volume)
CUBA: A D. 1906-1909.

UNITED STATES OF AMERICA: A. D. 1906-1909.
The Reform of the Consular Service.

See

CIVIL SERVICE REFORM: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1907.

Monetary Panic.

Distress among the Speculative Great Capitalists.

Industrial Paralysis.

Unemployment for Labor.

See (in this Volume)

FINANCE AND TRADE: A. D. 1901-1909.

UNITED STATES OF AMERICA: A. D. 1907.

Enactment of a new Law of Citizenship.

See (in this Volume)

NATURALIZATION.

UNITED STATES OF AMERICA: A. D. 1907 (January).

Act to prohibit Corporations from making Contributions
in connection with Political Elections.

The following Act of Congress was approved by the President,
January 26, 1907.

"That it shall be unlawful for any national bank, or any corporation organized by authority of any laws of Congress, to make a money contribution in connection with any election to any political office. It shall also be unlawful for any corporation whatever to make a money contribution in connection with any election at which Presidential and Vice-Presidential electors or a Representative in Congress is to be voted for or any election by any State legislature of a United States Senator. Every corporation which shall make any contribution in violation of the foregoing provisions shall be subject to a fine not exceeding five thousand dollars, and

every officer or director of any corporation who shall consent to any contribution by the corporation in violation of the foregoing provisions shall upon conviction be punished by a fine of not exceeding one thousand and not less than two hundred and fifty dollars, or by imprisonment for a term of not more than one year, or both such fine and imprisonment in the discretion of the court."

According to a statement presented to the Senate in February, 1908, the laws of the following nineteen States and Territories contain provisions for the publicity of election contributions or expenditures originally enacted at the dates given:

Alabama, 1903;
Arizona, 1895;
California, 1893
Colorado, 1891;
Connecticut, 1895;
Iowa, 1907;
Massachusetts, 1892;
Minnesota, 1895;
Missouri, 1893;
Montana, 1895;
Nebraska, 1897;
New York, 1890;
Pennsylvania, 1906;
South Carolina, 1905;
South Dakota, 1907;
Texas, 1905;
Virginia, 1903;
Washington, 1907;
Wisconsin, 1897.

The laws of the three following States, which contain no publicity provisions, forbid corporations to contribute in any manner for political purposes: Florida, 1897; Kentucky, 1897;

Tennessee, 1897.

UNITED STATES OF AMERICA: A. D. 1907 (April).
First National Peace Congress.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

UNITED STATES OF AMERICA: A. D. 1907 (June-October).
Represented at the Second Peace Conference.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

UNITED STATES OF AMERICA: A. D. 1907-1909.
The World-round Cruise of the Battleship Fleet.

See (in this Volume)
WAR, THE PREPARATIONS FOR: NAVAL.

UNITED STATES OF AMERICA: A. D. 1908.
Supreme Court Decision affirming right to specially limit
the Hours of Labor for Women.

See (in this Volume)
LABOR PROTECTION: HOURS OF LABOR.

UNITED STATES OF AMERICA: A. D. 1908 (April).
Conditional Ratification, by the Senate of the Peace
Conference Convention for the Pacific Settlement of
International Disputes.

See (in this Volume)
WAR, THE REVOLT AGAINST: A. D. 1907.

UNITED STATES OF AMERICA: A. D. 1908 (April).
Treaty with Great Britain respecting the Demarcation of the

International Boundary between the United States and Canada.

See (in this Volume)

CANADA: A. D. 1908 (APRIL).

UNITED STATES OF AMERICA: A. D. 1908 (April).

Convention for the Preservation and Propagation of Food
Fishes in waters contiguous to the United States and Canada.

See (in this Volume)

FOOD FISHES.

UNITED STATES OF AMERICA: A. D. 1908 (April).

Passage of Act relating to the Liability of Common Carriers
by Railroad to their Employees.

See (in this Volume)

LABOR PROTECTION: EMPLOYERS' LIABILITY.

UNITED STATES OF AMERICA: A. D. 1908 (April-November).

The Presidential Election.
Parties, Candidates, and Platforms.
Election of President Taft.

In the interval between the presidential elections of 1904 and 1908 the Trust and the Tariff questions had both received an increase of attention and of real study, and were factors of more influence in the latter than in the former election. The energy with which President Roosevelt had pressed both legislative and executive action, towards a more effective restraint and regulation of monopolistic combinations, had greatly strengthened his party in public favor. His extraordinary personal force, moreover, had made itself felt in many quickenings and stimulations of public spirit and of governmental action, which gave a cheering experience to the country.

{675}

The various ends to which this worked, and especially on the lines which looked to the rescuing of the rich natural resources of the country from private monopoly and reckless waste became associated in thought with the President, and widely talked of as belonging to "the Roosevelt policies." Popular satisfaction with these policies and their champion would have given Mr. Roosevelt a renomination by his party, if he had not emphatically reiterated his pledge of four years before, that "under no circumstances" would he "be a candidate for or accept another nomination." There were some who strove to persuade him to be false to that pledge; but they were not the people who esteemed him most truly. Naturally the nomination that would have gone again to Mr. Roosevelt if he had been free to accept it sought a candidate so closely identified with what he had stood for and labored for that no departure from the favored "policies" need be feared. Quite as naturally that candidate won a large majority of the popular votes.

The first nominating convention held in 1904 was that of the People's or Populist Party, which sat in St. Louis April 2-3, and again named its old leader, Thomas E. Watson, of Georgia, for President, with Samuel W. Williams, of Indiana, for the second place.

Reverend Daniel Braxton Turney, of Illinois, was the next to be named for President, and L. S. Coffin, of Iowa, for Vice-President, by the United Christian Party, at Rock Island, Illinois, May 1.

On the 10th of May the Socialist Party met in convention at Chicago and was in session until the 18th, again nominating Eugene V. Debs, of Indiana, and Benjamin Hanford, of New York, for President and Vice-President.

The Republican convention was assembled at Chicago, June 16-19, and its nominees were William Howard Taft, of Ohio, for

President, and James Schoolcraft Sherman, of New York, for Vice-President.

The Socialist Labor Party, at New York, July 24, nominated, for President, August Gillhaus, of New York; for Vice-President, Donald L. Munro, of Virginia.

At Denver, July 7-10, the Convention of the Democratic Party named, for the third time, William Jennings Bryan, of Nebraska, for President, and for Vice-President John Worth Kern, of Indiana.

The Prohibitionists convened at Columbus, Ohio, July 15-16, and the candidates named by them for President and Vice President were Eugene W. Chafin, of Illinois, and Aaron S. Watkins, of Ohio.

The last of the parties to meet in convention was that organized by William R. Hearst and named the Independence Party. The candidates put forward were Thomas L. Hisgen, of Massachusetts, and John Temple Graves, of Georgia.

Of the eight political parties which offered candidates to the voters of the nation, four presented them on special grounds, aside from which their standing on other questions of public policy was but slightly and incidentally made known. The "platforms" of the remaining four were of the scope of general politics, defining positions taken on all or most of the political discussions of the time. The declarations of these latter on the questions which enlisted real interest in the country will be given, as in the treatment of the party platforms of 1904, under a dissected arrangement, by subjects, for convenient comparison; while the former cannot easily be dealt with in that analytic way. In both cases the distinctly declaratory text of the platforms, only, will be given, with some abridgment, as follows:

Trusts.

"The Republican Party," it asserted, "passed the Sherman anti-trust law over Democratic opposition, and enforced it after Democratic dereliction. ... But experience has shown that its effectiveness can be strengthened and its real objects better attained by such amendments as will give to the Federal Government greater supervision and control over, and secure greater publicity in, the management of that class of corporations engaged in interstate commerce having power and opportunity to effect monopolies."

The Democratic Party demanded "the enactment of such additional legislation as may be necessary to make it impossible for a private monopoly to exist in the United States." Among the additional remedies required it specified three:

(1) "A law preventing a duplication of directors among competing corporations";

(2) requirement of a federal license for a manufacturing or trading corporation, "before it shall be permitted to control as much as 25 per cent. of the product in which it deals, the license to protect the public from watered stock, and to prohibit the control by such corporation of more than 50 per cent. of the total amount of any product consumed in the United States"; and

(3) "a law compelling such licensed corporation to sell to all purchasers in all parts of the country on the same terms, after making due allowance for the cost of transportation."

The People's Party declared that "the Government should own and control the railroads and those public utilities which in their nature are monopolies," including the telegraph and telephone systems, and should provide a parcels post. From

those trusts and monopolies which are not public utilities or national monopolies it demanded a withdrawal of the special privileges they enjoy; taxation of all such privileges while they remain in private hands, and "a general law uniformly regulating the powers and duties of all incorporated companies doing interstate business."

The Independence Party denounced all combinations which "are not combinations for production, but for extortion," and demanded "the enforcement of a prison penalty against the guilty and responsible individuals controlling the management of the offending corporations." It advocated, "as a primary necessity for sounder business conditions and improved public service, the enactment of laws, State and National, to prevent watering of stock, dishonest issues of bonds and other forms of corporation frauds."

Tariff.

The declarations of the Republican and Democratic national conventions touching a revision of the tariff have been quoted already in this Volume.

See (in this Volume)
TARIFFS: UNITED STATES.

The Independence Party, like the Democratic, demanded a revision of the tariff, not by its friends, but by the friends of the people, and declared for a gradual reduction of tariff duties.

{676}

Capital and Labor.
Injunctions.

The Republican Party recited the enactments of the existing

Congress in the interest of labor, and pledged "its continued devotion to every cause that makes for safety and the betterment of conditions among those whose labor contributes to the progress and welfare of the country." On the burning question of the interference of courts of law, by writ of injunction, with labor "strikes," it declared that, while "the Republican Party will uphold at all times the authority and integrity of the courts," it believes "that the rules of procedure in the writ of injunction should be more accurately defined by statute, and that no injunction or temporary restraining order should be issued without notice, except where irreparable injury would result from delay, in which case a speedy hearing thereafter should be granted."

The Democratic Party gave expression to the same desire to maintain the dignity of the courts, but had seen that "experience has proven the necessity of a modification of the present law relating to injunctions," and added: "we reiterate the pledges of our national platforms of 1896 and 1904 in favor of the measure which passed the United States Senate in 1896, but which a Republican Congress has ever since refused to enact, relating to contempts in Federal courts and providing for trial by jury in cases of indirect contempt. ... We deem ... that injunctions should not be issued in any case in which injunctions would not issue if no industrial dispute were involved." Its further declarations were against any "abridgment of the right of wage-earners and producers to organize for the protection of wages and the improvement of labor conditions"; for "the eight hour law on all government work"; for the enactment by Congress of a "general employers' liability act," and for the creation of "a department of labor, represented separately in the President's cabinet."

The Independence Party denounced "the so-called labor planks of the Republican and Democratic platforms as political buncombe and contemptible clap trap," and asserted "that in all actions growing out of a dispute between employers and

employees concerning terms and conditions of employment no injunction should issue until after a trial upon the merits; that such trial should be held before a jury, and that in no case of alleged contempt should any person be deprived of liberty without a trial by jury." In further declarations the party indorsed "those organizations among farmers and workers which tend to bring about a just distribution of wealth," and favored legislation to "remove them from the operation of the Sherman anti-trust law"; endorsed the eight-hour work day, and would have it applied to all work done for the Government; called for legislation to prohibit "any combination or conspiracy to blacklist employees"; demanded "protection for workmen through enforced use of standard safety appliances and provision of hygienic conditions"; advocated State and Federal inspection of railways to secure a greater safety for employees and the travelling public; condemned the manufacture and sale of prison-made goods; favored a Federal department of labor, with its chief in the Cabinet; and called for a Federal inspection of grain.

The People's Party condemned "all unwarranted assumption of authority by inferior Federal courts in annulling by injunction the laws of the States," and demanded legislation to "restrict to the Supreme Court of the United States the exercise of power in cases involving State legislation"; condemned the "attempt to destroy the power of trades unions through the unjust use of the Federal injunction"; demanded the abolition of child labor in factories and mines, suppression of sweat shops, exclusion of foreign pauper labor, the enactment of an employers' liability act and measures against carelessness in the operation of mines; opposed the use of convict labor; favored the eight-hour work-day, and "legislation protecting the lives and limbs of workmen through the use of safety appliances"; declared that when working men are thrown into enforced idleness works of public improvement should be inaugurated.

Banking and Currency.

The Republican Party approved "the emergency measures adopted by the government during the recent financial disturbances" and declared the party to be "committed to the development of a permanent currency system, responding to our greater needs." It favored the establishment of a postal savings bank system.

The Democratic Party pointed to the panic of 1907, "coming without any legitimate excuse," as furnishing additional proof that the Republican party "is either unwilling or incompetent to protect the interests of the general public," having "so linked the country to Wall Street that the sins of the speculators are visited upon the whole people." It declared the belief that "in so far as the needs of commerce require an emergency currency, such currency should be issued, controlled by the Federal Government and loaned on adequate security to National and State banks." It pledged itself "to legislation under which the national banks should be required to establish a guarantee fund for the prompt payment of the depositors of any insolvent national bank under an equitable system which shall be available to all State banking institutions wishing to use it." It favored a postal savings bank "if the guaranteed bank can not be secured, and believed that it should be so constituted as to keep the deposited money in the community where the depositors live."

The People's Party reiterated its belief that "the issuance of money is a function of government and should not be delegated to corporation or individual." It therefore demanded "that all money should be issued by the Government direct to the people, without the intervention of banks, and shall be a full legal tender for all debts, public and private, and in quantities sufficient to supply the needs of the country." It also demanded postal savings banks.

The Independence Party made a similar declaration, "that the

right to issue money is inherent in the Government," and it favored "the establishment of a central governmental bank, through which the money so issued shall be put into general circulation." It also called for an extension of the parcels post system and for postal savings banks, the deposits in which should "be loaned to the people in the locality of the several banks."

Railroads.

The Republican Party approved the railroad rate law and "the vigorous enforcement by the present administration of the statutes against rebates and discriminations"; believing, "however, that the interstate commerce law should be further amended so as to give railroads the right to make and publish traffic agreements subject to the approval of the commission." It declared for legislation and supervision to "prevent the future overissue of stocks and bonds by interstate carriers."

{677}

The Democratic Party asserted "the right of Congress to exercise complete control over interstate commerce, and the right of each State to exercise like control over commerce within its borders"; and it demanded a needed enlargement of the powers of the interstate commerce commission. It recommended a valuation of railroads by the commission. It favored legislation to "prohibit the railroads from engaging in business which brings them into competition with their shippers"; to prevent the overissue of stocks and bonds, and to "assure such reduction in transportation rates as conditions will permit." It approved the laws prohibiting the pass and the rebate. It favored giving to the interstate commerce commission "the initiative with reference to rates and transportation charges," also permitting it, "on its own initiative to declare a rate illegal," and otherwise enhancing its efficiency.

The Independence Party advocated "a bill empowering shippers in time of need to compel railroads to provide sufficient cars for freight and passenger traffic and other railroad facilities through summary appeal to the courts." It also favored "the creation of an Interstate Commerce Court, whose sole function it shall be to review speedily and enforce summarily the orders of the Interstate Commerce Commission," and it urged that the Commission "should proceed at once with a physical valuation of railroads engaged in interstate commerce."

Natural Resources.

Public Lands.

Waterways.

The Republican Party indorsed "the movement inaugurated by the administration for the conservation of natural resources"; commended "the work now going on for the reclamation of arid lands"; reaffirmed "the Republican policy of the free distribution of the available ... public domain to the landless settler," and declared it to be "the further duty, equally imperative, to enter upon a systematic improvement, upon a large and comprehensive plan, just to all portions of the country, of the water harbors and Great Lakes."

The Democratic Party repeated "the demand for internal development and for the conservation of our national resources contained in previous platforms," covering lines of policy the same as above, and adding "the development of water power and the preservation of electric power generated by this natural force from the control of monopoly." It insisted upon "a policy of administration of our forest reserve which shall ... enable homesteaders as of right to occupy and acquire title to all portions thereof which are especially adapted to agriculture, and which shall furnish a system of timber sales available as well to the private citizen as to the larger

manufacturer and consumer." It called for regulations "in relation to free grazing upon the public lands outside of forest or other reservations until the same shall eventually be disposed of." It favored the "immediate adoption of a liberal and comprehensive plan for improving every water course in the Union which is justified by the needs of commerce," with "the creation of an ample fund for continuous work."

The People's Party declared that the public domain is a sacred heritage of all the people, and should be held for homesteads for actual settlers only; alien ownership should be forbidden.

The Independence Party rejoiced "in the adoption in both the Democratic and Republican platforms of the demand of the Independence party for improved national waterways." It declared for the reclamation of arid lands and generally for the conservation of the country's natural resources. It called for provision to be made for free grazing on public lands outside of forest or other reservations. It protested against the sale of water and electric light power derived from public works to private corporations.

On other subjects touched in their platforms the declarations of these parties varied little from those of 1904, and cannot be regarded as having much historical significance.

Of the remaining parties, which are organizations with special objects, the Socialist set forth the most elaborate programme of demands, under three headings,—General, Industrial, and Political. The first included "immediate Government relief for the unemployed" by public works of many descriptions; collective ownership of railroads, telegraphs, etc., and all lands; "collective ownership of all industries which are organized on a national scale and in which competition has virtually ceased to exist"; inclusion of mines, quarries, oil wells, forests and water-power in the public domain.

Industrial demands included improved industrial conditions; shortened work days; a weekly rest-period of not less than a day and a half; effective inspection of factories and shops; no child labor under sixteen years of age; no interstate transportation of products of child labor; substitution of compulsory insurance against unemployment, illness, age, etc., for all official charity. Political demands were for extended and graduated inheritance taxes; a graduated income tax; equal suffrage for men and women; the initiative, referendum, recall, and proportional representation; abolition of the Senate; abolition of power in the Supreme Court to pass on the constitutionality of legislation; amendability of the Constitution by a majority vote, election of all judges for short terms; free administration of justice; further measures for general education and conservation of health.

The Socialist Labor Party repeated in substantially the same words its general declarations of 1904, against a "despotic economic system," as quoted above, under the heading "Capital and Labor."

The Prohibition Party embodied its fundamental object in demands for the submission of a constitutional amendment prohibiting the manufacture, sale, etc., of alcoholic liquors for beverage purposes; suppression of the liquor traffic in all places under the jurisdiction of the National Government, and repeal of the internal revenue tax on alcoholic liquors. To this it added demands for a popular election of United States Senators; graduated income and inheritance taxes; postal savings banks; guarantee of deposits in banks; regulation of corporations doing an interstate business; a permanent tariff commission; uniform marriage and divorce laws; enforcement of law against the social evil; an equitable employers' liability act; court review of post office decisions; prohibition of child labor in mines, workshops and factories; suffrage based on ability to read and write the English language; preservation of the resources of the

country, and improvement of highways and waterways.

{678}

The United Christian Party, basing its platform, as before, on the ten commandments and the golden rule, favored "direct primary elections, the initiative, referendum, recall, uniform marriage and divorce laws, equal rights for men and women, government ownership of coal mines, oil wells and public utilities; the regulation of trusts and the election of the president and vice-president and senators of the United States by the direct vote of the people."

The votes cast at the popular election, November 3, numbered 7,637,676 for the Republican nominees; 6,393,182 for the Democratic; 420,464 for the Socialist; 231,252 for the Prohibitionist; 83,183 for the Independence; 33,871 for the Populist; 15,421 for the Socialist Labor. The total of votes polled, including a few thousands to other than party nominees, was reported to be 14,863,711.

The States which gave Republican majorities were California, Connecticut, Delaware, Idaho, Illinois, Indiana, Iowa, Kansas, Maine, Massachusetts, Michigan, Minnesota, Montana, Nevada, New Hampshire, New Jersey, New York, North Dakota, Ohio, Oregon, Pennsylvania, Rhode Island, South Dakota, Utah, Vermont, Washington, West Virginia, Wisconsin, Wyoming,—29.

The States which gave Democratic majorities were Alabama, Arkansas, Colorado, Florida, Georgia, Kentucky, Louisiana, Mississippi, Missouri, Nebraska, North Carolina, Oklahoma, South Carolina, Tennessee, Texas, Virginia,—16.

Maryland, where the electors are chosen by the Legislature, divided its vote, giving 6 to the Democratic nominees and 2 to the Republican.

The total vote in the Electoral College was 326 for Taft and Sherman and 157 for Bryan and Kern.

UNITED STATES OF AMERICA: A. D. 1908 (May).
The Emergency Currency Act.

See (in this Volume)
FINANCE AND TRADE; UNITED STATES: A. D. 1908.

UNITED STATES OF AMERICA: A. D. 1908 (July).
Remission to China of Part of Boxer Indemnity.

See (in this Volume)
CHINA: A. D. 1901-1908.

UNITED STATES OF AMERICA: A. D. 1908 (October).
Reply of Secretary Root to the announcement from Belgium of
the Annexation of the Congo State.
Recognition of the Annexation reserved.

See (in this Volume)
CONGO STATE: A. D. 1906-1909.

UNITED STATES OF AMERICA: A. D. 1908 (November).
Supreme Court Decision in Case of Virginia Railroads vs.
the State Corporation Commission of Virginia.

See (in this Volume)
RAILWAYS. UNITED STATES: A. D. 1908 (NOVEMBER).

UNITED STATES OF AMERICA: A. D. 1908 (November).
Exchange of Notes with Japan embodying a Declaration of
Common Policy in the East.

See (in this Volume)
JAPAN: A. D. 1908 (NOVEMBER).

UNITED STATES OF AMERICA: A. D. 1908 (December).
Extension of the Competitive System of Appointment to
Fourth Class Postmasters in a large section of the Country.

See (in this Volume)

CIVIL SERVICE REFORM: UNITED STATES: A. D. 1908.

UNITED STATES OF AMERICA: A. D. 1908 (December).
Relief for the Survivors of the Earthquake at
and around Messina.

See (in this Volume)

EARTHQUAKES: ITALY.

UNITED STATES OF AMERICA: A. D. 1908-1909.
Diminished Consumption of Whiskey and Beer.

See (in this Volume)

ALCOHOL PROBLEM: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1908-1909.
The Government giving attention to Liberian Affairs.

See (in this Volume)

LIBERIA: A. D. 1907-1909.

UNITED STATES OF AMERICA: A. D. 1908-1909 (August-February).
The Country Life Commission, and its Report.

On the 10th of August, 1908, President Roosevelt addressed a letter to five gentlemen whom he asked to serve upon a Commission on Country Life. The five thus addressed were Professor L. H. Bailey, New York State College of Agriculture, Ithaca (named as Chairman of the Commission); Mr. Henry Wallace, of *Wallace's Farmer*, Des Moines, Iowa; President Kenyon L. Butterfield, Massachusetts Agricultural College, Amherst; Mr. Gilford Pinchot, of the United States

Forest Service; Mr. Walter H. Page, of *The World's Work*, New York. Subsequently, Mr. Charles S. Barrett, of Georgia, and Mr. William A. Beard, of California, were added to the Commission.

In his letter to the original appointees the President wrote: "I doubt if any other nation can bear comparison with our own in the amount of attention given by the Government, both Federal and State, to agricultural matters. But practically the whole of this effort has hitherto been directed toward increasing the production of crops. Our attention has been concentrated almost exclusively on getting better farming. In the beginning this was unquestionably the right thing to do. The farmer must first of all grow good crops in order to support himself and his family. But when this has been secured the effort for better farming should cease to stand alone, and should be accompanied by the effort for better business and better living on the farm. It is at least as important that the farmer should get the largest possible return in money, comfort, and social advantages from the crops he grows as that he should get the largest possible return in crops from the land he farms. Agriculture is not the whole of country life. The great rural interests are human interests, and good crops are of little value to the farmer unless they open the door to a good kind of life on the farm. ... The farmers have hitherto had less than their full share of public attention along the lines of business and social life. There is too much belief among all our people that the prizes of life lie away from the farm."

The Commission entered promptly on its task, of obtaining wide and exact information as to the existing conditions of farm life and work in the country, as to homes and schools; means of communication and intercourse, by postal service, telephone, highway, electric railway and other railways; neighborhood organizations to promote mutual advantages in buying and selling; profitable sale of products; supply of

labor; facilities for business in banking, credit, insurance; sanitary conditions; social entertainment; meetings for mutual improvement, etc., etc.

{679}

This was sought, in the first instance, by a circular of questions, about 550,000 copies of which were sent to names supplied by the United States Department of Agriculture, state experiment stations, farmers' societies, women's clubs, to rural free deliverymen, country physicians and ministers, and others. To these inquiries about 115,000 persons have replied before the report of the Commission was made, "mostly with much care and with every evidence of good faith."

In addition to the replies given to the circular questions, a great number of persons sent carefully written letters and statements that were invaluable. At thirty places, in all sections of the country, the Commission, or part of it, held appointed hearings in November and December, and obtained much light from those. Its report of the conclusions to which it had been led was presented to the President on the 23d of January, 1909, and transmitted by him to Congress on February 9th.

The Commission found an unquestionable lack in the country of a well organized rural society, and came to clear conclusions concerning the many causes therefor, which are fully discussed in its report. The leading specific causes are summarized with brevity at the outset, as follows.

"A lack of knowledge on the part of farmers of the exact agricultural conditions and possibilities of their regions;

"Lack of good training for country life in the schools;

"The disadvantage or handicap of the farmer as against the

established business systems and interests, preventing him from securing adequate returns for his products, depriving him of the benefits that would result from unmonopolized rivers and the conservation of forests, and depriving the community, in many cases, of the good that would come from the use of great tracts of agricultural land that are now held for speculative purposes;

"Lack of good highway facilities;

"The widespread continuing depletion of soils, with the injurious effect on rural life;

"A general need of new and active leadership.

"Other causes contributing to the general result are: Lack of any adequate system of agricultural credit, whereby the farmer may readily secure loans on fair terms; the shortage of labor, a condition that is often complicated by intemperance among workmen; lack of institutions and incentives that tie the laboring man to the soil; the burdens and the narrow life of farm women; lack of adequate supervision of public health."

To this summary of main deficiencies the Commission adds the following, of chief remedies:

"Congress can remove some of the handicaps of the farmer, and it can also set some kinds of work in motion, such as:

"The encouragement of a system of thorough-going surveys of all agricultural regions, in order to take stock and collect local fact, with the idea of providing a basis on which to develop a scientifically and economically sound country life;

"The encouragement of a system of extension work in rural communities, through all the land-grant colleges, to the people at their homes and on their farms;

"A thorough investigation by experts of the middleman system of handling farm products, coupled with a general inquiry into the farmer's disadvantages in respect to taxation, transportation rates, cooperative organizations and credit, and the general business system;

"An inquiry into the control and use of the streams of the United States, with the object of protecting the people in their ownership and of saving to agricultural uses such benefits as should be reserved for these purposes;

"The establishing of a highway engineering service, or equivalent organization, to be at the call of the States in working out effective and economical highway systems;

"The establishing of a system of parcel posts and postal savings banks;

"Providing some means or agency for the guidance of public opinion toward the development of a real rural society that shall rest directly on the land. ...

"Remedies of a more general nature are: A broad campaign of publicity, that must be undertaken until all the people are informed on the whole subject of rural life, and until there is an awakened appreciation of the necessity of giving this phase of our national development as much attention as has been given to other phases or interests; a quickened sense of responsibility in all country people, to the community and to the State, in the conserving of soil fertility, and in the necessity for diversifying farming in order to conserve this fertility and to develop a better rural society, and also in the better safe-guarding of the strength and happiness of the farm women; a more widespread conviction of the necessity for organization, not only for economic but for social purposes, this organization to be more or less cooperative, so that all

the people may share equally in the benefits and have voice in the essential affairs of the community; a realization on the part of the farmer that he has a distinct natural responsibility toward the laborer in providing him with good living facilities and in helping him in every way to be a man among men; and a realization on the part of all the people of the obligation to protect and develop the natural scenery and attractiveness of the open country.

"Certain remedies lie with voluntary organizations and institutions. All organized forces, both in town and country, should understand that there are country phases as well as city phases of our civilization, and that one phase needs help as much as the other."

In his Message communicating the reports of the Commission to Congress the President focussed attention on four "great general and immediate needs of country life" which stand out of the exhibit before all others:

"First, effective coöperation among farmers, to put them on a level with the organized interests with which they do business.

"Second, a new kind of schools in the country, which shall teach the children as much outdoors as indoors and perhaps more, so that they will prepare for country life, and not as at present, mainly for life in town.

"Third, better means of communication, including good roads and a parcels post, which the country people are everywhere, and rightly, unanimous in demanding.

{680}

"To these may well be added better sanitation: for easily preventable diseases hold several million country people in

the slavery of continuous ill health.

"The commission points out, and I concur in the conclusion, that the most important help that the Government, whether National or State, can give is to show the people how to go about these tasks of organization, education, and communication with the best and quickest results. This can be done by the collection and spread of information."

UNITED STATES OF AMERICA: A. D. 1908-1909.

Spasmodic Process of Recovery from
the Financial Crisis of 1907.

See (in this Volume)

FINANCE AND TRADE: A. D. 1901-1909.

UNITED STATES OF AMERICA: A. D. 1908-1909.

Second Conference of State Governors and Report
of National Conservation Commission.
Its Inventory of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1909.

Existing Treaties with China and existing Enactments relative
to the Admission of Chinamen to the United States.
The Question of their Consistency with each other.
Chinese Complaints.
The present Status of the Question.

See (in this Volume)

RACE PROBLEMS: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1909.

The Census Bill and the President's Veto.
The Amended Bill, which became Law.

See (in this Volume)
CIVIL SERVICE REFORM: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1909.
Protest against the Russo-Chinese Agreement of May, relative
to Municipalities on the line of the Chinese Eastern Railway.

See (in this Volume)
CHINA: A. D. 1909 (MAY).

UNITED STATES OF AMERICA: A. D. 1909.
Trouble with Nicaragua.

See (in this Volume)
CENTRAL AMERICA: A. D. 1909.

UNITED STATES OF AMERICA: A. D. 1909 (January).
The Waterways Treaty with Great Britain, concerning Waters
between the United States and Canada.

See (in this Volume)
CANADA: A. D. 1909 (JANUARY).

UNITED STATES OF AMERICA: A. D. 1909 (February).
Anti-Opium Act.

See (in this Volume)
OPIUM PROBLEM.

UNITED STATES OF AMERICA: A. D. 1909 (February).
Initiative in securing International Opium Commission
at Shanghai.

See (in this Volume)
OPIUM PROBLEM.

UNITED STATES OF AMERICA: A. D. 1909 (February).
Invitation of Canada and Mexico to a Conference on
the Conservation of Natural Resources.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES: NORTH AMERICA.

UNITED STATES OF AMERICA: A. D. 1909 (March).

The Inauguration of President Taft.

Intimations of Policy in his Inaugural Address.

His Cabinet.

The ceremonies of the inauguration of President Taft on the 4th of March were performed under singularly unfavorable circumstances, in consequence of one of the most dreadful storms that ever visited the Capital. Trains blocked by it contained thousands of people who reached Washington too late for what they had travelled far to witness or to take part in, while those who did arrive on the scene were hardly gladdened by their success. The President, however, accepted the untoward conditions with a characteristic high-hearted equanimity. His inaugural address, delivered in the Senate Chamber, instead of in the open air at the East front of the Capitol, opened with the following words:

"Any one who takes the oath I have just taken must feel a heavy weight of responsibility. If not, he has no conception of the powers and duties of the office upon which he is about to enter, or he is lacking in a proper sense of the obligation which the oath imposes.

"The office of an inaugural address is to give a summary outline of the main policies of the new Administration, so far as they can be anticipated. I have had the honor to be one of the advisers of my distinguished predecessor, and as such, to hold up his hands in the reforms he has initiated. I should be untrue to myself, to my promises, and to the declarations of

the party platform upon which I was elected to office, if I did not make the maintenance and enforcement of those reforms a most important feature of my administration. They were directed to the suppression of the lawlessness and abuses of power of the great combinations of capital invested in railroads and in industrial enterprises carrying on interstate commerce. The steps which my predecessor took and the legislation passed on his recommendation have accomplished much, have caused a general halt in the vicious policies which created popular alarm, and have brought about, in the business affected, a much higher regard for existing law. To render the reforms lasting, however, and to secure at the same time freedom from alarm on the part of those pursuing proper and progressive business methods, further legislative and executive action are needed."

From this general intimation of the course to which his mind was turned, the incoming President went on to a more specific unfolding of his views on many subjects of governmental care. The following is a summary of the suggestions of future policy conveyed in the Address:

Reorganization of the Department of Justice and the Bureau of Corporations of the Department of Commerce and Labor and of the Interstate Commerce Commission.

Tariff revision in accord with the promises made in the national platform adopted at Chicago.

A continuation of scientific experiments in the Department of Agriculture for the improvement of agricultural conditions.

The enactment and carrying out of laws for the conservation of the resources of the country.

Maintenance of the army and navy in such a state of preparation as will insure a continuance of peace with other

countries.

A continuation of that treatment of aliens which will insure for the people of the United States respect and fair treatment among the peoples of other countries.

The enactment of legislation which will empower the Federal government to enforce treaty promises made to other countries within every State.

Such changes in the monetary and banking laws as will insure a greater elasticity of the currency.

The enactment of a law providing for postal savings banks.

The encouragement of American shipping through the use of mail subsidies.

A continuation of work on the Panama canal along the plans which have been adopted for a lock type with such energy as will insure the earliest possible completion of the work.

The continuation of a colonial policy which will still further increase the business prosperity of our dependencies.

{681}

The betterment of the condition of the negro in the South through observance of principles laid down in the Fifteenth Amendment.

The promotion of legislation for the protection of labor and the betterment of labor conditions.

On the day following his inauguration the President named his chosen Cabinet to the Senate, and the nominations were duly confirmed, as follows.

Philander C. Knox of Pennsylvania, to be Secretary of State.

Franklin MacVeagh of Illinois, to be Secretary of the Treasury.

Jacob M. Dickinson of Tennessee, to be Secretary of War.

George W. Wickersham of New York, to be Attorney-General.

Frank H. Hitchcock of Massachusetts, to be Postmaster-General.

George von L. Meyer of Massachusetts, to be Secretary of the Navy.

Richard A. Ballinger of Washington, to be Secretary of the Interior.

James Wilson of Iowa, to be Secretary of Agriculture.

Charles Nagel of Missouri, to be Secretary of Commerce and Labor.

A few days after the appointment of the Cabinet, Mr. Dickinson, the new Secretary of War, in a speech at Chicago, explained why President Taft had chosen him, a Democrat, for a place in a Republican Cabinet, and why he had accepted it. He said that Mr. Taft, as President of the whole country, desired to have a representative of the South among his counsellors. To have chosen a Southern Republican would have been to perpetuate the bitter sectionalism which it was Mr. Taft's desire to obliterate. He had therefore chosen a Democrat who had voted against him. Mr. Dickinson continued:—

"That his purpose was broad, magnanimous, and patriotic none can question. The wisdom both of his purpose and his selection must be tried by time, but I have every assurance that his action in appointing me, and my action in accepting, are

approved by the South, and, having this approval, I can bear with equanimity any criticism from individual Democrats elsewhere."

UNITED STATES OF AMERICA: A. D. 1909 (March).
Passage of new Copyright Act.

See (in this Volume)
COPYRIGHT.

UNITED STATES OF AMERICA: A. D. 1909 (March-August).
Tariff Revision.
The Payne-Aldrich Tariff-Act.

See (in this Volume)
TARIFFS: UNITED STATES.

UNITED STATES OF AMERICA: A. D. 1909 (May).
Creation of the Senate Committee on Public Expenditures.

An important incident of the Special Session of Congress which was called by President Taft immediately after his inauguration, was the creation by the Senate of a new Standing Committee, on Public Expenditures, the function of which was indicated in the following resolution of the Senate, adopted May 29:

"Resolved, That the Committee on Public Expenditures be, and they are hereby, authorized and directed, by subcommittee or otherwise, to make investigations as to the amount of the annual revenues of the Government, and as to the expenditures and business methods of the several departments, divisions, and branches of the Government, and to report to the Senate from time to time the result of such investigations and their recommendations as to the relation between expenditures and revenues and possible improvements in Government methods; and for this purpose they are authorized to sit, by subcommittees

or otherwise, during the recesses or sessions of the Senate, at such times and places as, they may deem advisable, to send for persons and papers, to administer oaths, and to employ such stenographic, clerical, expert, and other assistance as may be necessary, and to have such printing and binding done as may be necessary, the expense of such investigations to be paid from the contingent fund of the Senate."

Seven members of the Committee are the chairmen of the seven committees in the Senate to some one of which every bill providing for revenue or carrying an appropriation is submitted. "Thus," as has been remarked, "is provided a medium for better co-ordination and co-operation between what may be termed the revenue and appropriation committees. The powers of existing committees are not affected, but an avenue is provided for concentration and distribution of information—a committee forum for the discussion and recommendation of fundamentals affecting the Government."

UNITED STATES OF AMERICA: A. D. 1909 (May).

Establishment in the Government of a General Supply Committee.

On the 13th of May the President issued an Executive Order establishing an Administrative General Supply Committee, which is to purchase all supplies for Government use, paying one price instead of several prices for the same supplies.

UNITED STATES OF AMERICA: A. D. 1909 (May).

Second National Peace Congress.

See (in this Volume)

WAR, THE REVOLT AGAINST: A. D. 1909.

UNITED STATES OF AMERICA: A. D. 1909 (July).

Proposed Constitutional Amendment authorizing the Levying of an Income Tax.

Without a dissenting vote, on the 5th of July, 1909, the Senate adopted a joint resolution providing for the submission to the several States of a proposed amendment to the Constitution of the United States, as follows:

"Article XVI.

The congress shall have the power to lay and collect taxes on incomes, from whatever source derived, without any apportionment among the several states and without regard to any census or enumeration."

In reporting this action, a newspaper correspondent of considerable sagacity remarked that the ease with which the resolution glided through the Senate, and would with certainty pass the House, must be regarded as "an indication of the expectation of the representatives of capital and of high protection that twelve states can be found among the forty-six in the union to refuse their assent to the amendment, in which event it will fail."

The endorsement of the House to the resolution was given on the 12th, by a vote of 317 to 14, the negative votes being all from Republicans. An attempt to have the resolution amended so that the constitutional amendment would be submitted to state conventions for ratification instead of to legislatures was ruled out of order, and an appeal from Speaker Cannon's ruling was voted down, 185 to 143, on a strict party division.

{682}

The first State to act on the proposed amendment was Alabama, where it was ratified by the Legislature and signed by the Governor, August 17.

In the State of New York, on the 5th of January, 1910, Governor Hughes addressed a special message to the Legislature, recommending that the amendment in its proposed

form should not be ratified. He said: "I am in favor of conferring upon the Federal government the power to lay and collect an income tax without apportionment among the States according to population. I believe that this power should be held by the Federal government so as properly to equip it with the means of meeting national exigencies.

"But the power to tax incomes should not be granted in such terms as to subject to Federal taxation the incomes derived from bonds issued by the State itself, or those issued by municipal governments organized under the State's authority. To place the borrowing capacity of the State and of its governmental agencies at the mercy of the Federal taxing power would be an impairment of the essential rights of the State, which, as its officers, we are bound to defend. ...

"The comprehensive words, 'from whatever source derived,' if taken in their natural sense, would include not only incomes from ordinary real or personal property, but also incomes derived from State and municipal securities. It may be urged that the amendment would be limited by construction. But there can be no satisfactory assurance of this. The words in terms are all-inclusive. ...

"In order that a market may be provided for State bonds, and for municipal bonds, and that thus means may be afforded for State and local administration, such securities from time to time are excepted from taxation. In this way lower rates of interest are paid than otherwise would be possible. To permit such securities to be the subject of Federal taxation is to place such limitations upon the borrowing power of the State as to make the performance of the functions of local government a matter of Federal grace."

UNITED STATES OF AMERICA: A. D. 1909 (July).
The Question of American Participation in the
Hankau-Szechuan Railway Loan.

See (in this Volume)
CHINA: A. D. 1904-1909.

UNITED STATES OF AMERICA: A. D. 1909 (September).
Visit of a Commercial Commission from Japan.

See (in this Volume)
JAPAN: A. D. 1909 (SEPTEMBER).

UNITED STATES OF AMERICA: A. D. 1909 (September-October).
Tour of President Taft.
Meeting with President Diaz on Mexican Soil.

In the fall of 1909 President Taft made an extended tour of the country, from New England to the Pacific Coast and southward to Mexico and the Gulf, speaking to great assemblies at many points on all the important questions, political and economical, that were then before the country. In the course of the tour a meeting between President Diaz of Mexico and himself was arranged, and took place on the 16th of October, first at El Paso, on the Texas side of the Rio Grande, and then at Ciudad Juarez, on the Mexican side, formal visits being thus exchanged. Finally, in the evening, President Taft was entertained at dinner in the Mexican city by President Diaz. This was a second time that a President of the United States had left the soil of his own country while in office, President Roosevelt having done the same at Panama in 1906.

UNITED STATES OF AMERICA: A. D. 1909 (October-November).
Further Disclosures of Corruption in the Customs Service.

The shameful disclosure in 1907-1908 of Sugar Trust frauds on the Federal Treasury afforded glimpses of a state of corruption in the Customs Service of the Government, at the port of New York especially, which were more than verified within the next year and a half.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1907-1909.

The Collector of Customs, Mr. William Loeb, Jr., who took charge of the New York office in the spring of 1909, exercised a watchfulness which soon put him on the traces of fraud, and he pursued them with an energy and determination that cannot have been brought into action before. The first case brought to light was that of a cheese-importing firm, the members of which, father and son, were found to have paid bribes to weighers of the Custom House for false reports of the quantities on which duties were paid. Conviction was obtained by means of evidence from some of the guilty officials, who were given immunity and retained in service, in order to secure information without which, it was said, the well-covered corruption in the service could not be successfully probed. In his annual report, made in December, 1909, Secretary MacVeagh, of the Treasury Department, had this to say of the vigorous reformatory measures thus undertaken at the port of New York, and of the significance of the consequent revelations:

"The revelations made and proven were so startling and impressive that opposition was silenced; and in this silence the necessary, clear-cut measures could be carried out without meeting serious obstructions.

"It soon developed that the frauds of the American Sugar Refining Company, while, perhaps, the most important instances, were as had been apprehended, symptoms of a diseased condition, not universal by any means, but almost general. And difficult as it always is to sufficiently bring to light the facts of such a condition to afford a basis for rehabilitation, this has been already largely accomplished. Much has been discovered to afford an understanding of the

situation, with the result of numerous seizures, of numerous prosecutions made or projected, and of important and successful beginnings of a complete rehabilitation. While the recovery of evaded duties, and the prosecution of individuals have been of large significance, the greatest asset to the government of these disgraceful conditions is the knowledge and the light which guarantee in time a wholesome reorganization.

"The study of the causes of the demoralization which has been revealed is still incomplete, but the main causes are evident. It is clear, for instance, that the influence of local politics and politicians upon the customs service has been most deleterious, and has promoted that laxity and low tone which prepare and furnish an inviting soil for dishonesty and fraud. Unless the customs service can be released from the payment of political debts and exactions, and from meeting the supposed exigencies of political organizations, big and little, it will be impossible to have an honest service for any length of time. Any considerable share of the present cost of this demoralization to the public revenues, to the efficiency of the service, and to public and private morality is a tremendous amount to pay in mere liquidation of the small debts of political leaders.

{683}

"It is also clear that the widespread disposition of returning American travellers to evade the payment of legal duties has greatly helped to create the conditions which have become intolerable. Those Americans who travel abroad belong to the sections of the people which most readily create public sentiment, and are most responsible for it; and the fact that in so many instances these travellers are willing to defraud the government out of considerable or even small sums creates an atmosphere on the docks that strongly tends to affect the morale of the entire customs service. And when to this is

added the frequent willingness upon the part of these responsible citizens to specifically corrupt the government's men, then the demoralization is further accentuated."

UNITED STATES OF AMERICA: A. D. 1909 (November).
Arbitration of the Alsop Claim against Chile.

See (in this Volume)
CHILE: A. D. 1909.

UNITED STATES OF AMERICA: A. D. 1909 (December).
Proposal to neutralize Manchurian Railways.

See (in this Volume)
CHINA: A. D. 1909-1910.

UNITED STATES OF AMERICA: A. D. 1910 (January).
President's Message on Legislation relating to "Trusts"
and Interstate Commerce.

See (in this Volume)
COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D.
1910,
and
RAILWAYS: UNITED STATES: A. D. 1910.

UNITED STATES OF AMERICA:
Movements of Reform in Municipal Government.

See (in this Volume)
MUNICIPAL GOVERNMENT.

UNITED STATES OF AMERICA:
Comparative Statement of the Consumption of Alcoholic Drink.

See (in this Volume)
ALCOHOL PROBLEM.

UNITED STATES OF AMERICA:

The Interchange of People between the United States and Canada.

See (in this Volume)

CANADA: A. D. 1896-1909.

-----UNITED STATES OF AMERICA: End-----

UNITED STATES SENATORS:

Proposed Election by Direct Popular Vote.

"On December 3, 1895, the State of Idaho, taking advantage of that provision of article 5, which permits States to apply to Congress for authority to hold a constitutional convention, passed a resolution requesting Congress to call such a convention. Since then the States of Wyoming, Ohio, Minnesota, Montana, Utah, North Carolina, North Dakota, Nevada, Washington, Tennessee, South Dakota, Colorado, Oregon, Michigan, Nebraska, Iowa, Kansas, Missouri, Illinois, Wisconsin, New Jersey, Louisiana, Oklahoma, Pennsylvania, Indiana, Texas, California, Arkansas, Kentucky, and Alabama, have taken legislative action in some form or other expressing either a demand similar to that of the State of Idaho, or a sympathy with the intent of the Idaho resolution. These thirty-one States form a constitutional two-thirds of the forty-six States of the Union.

"One of the complications which have arisen in connection with these resolutions is the fact that only twenty-four of them are of record as having been actually received by the Senate of the United States. One of them, that of the State of Ohio, which was the third State to act, was only recently discovered to be in the Senate files. It is possible therefore, that since the question of submitting the proposed amendment has become a live issue, a further search of the files may increase the number of State resolutions on this subject which

are actually on hand.

"A legal quibble is bound to ensue over the form of some of these resolutions. Nine of the resolutions now on file in the Senate are already held to be of doubtful legality, but the ground on which they are held doubtful will appeal to most people as a mere splitting of legal hairs. Nevertheless, the Senate of the United States, at least, is, as a whole, a notorious legal hair-splitter, and this fact must be taken into account.

"It is, of course, a matter of record, that the House of Representatives has four times sent to the Senate a proposed joint resolution calling for the direct election of United States Senators."

***Washington Correspondent of the New York Evening Post,
October 13, 1909.***

UNITED STATES STEEL CORPORATION:

Its conflict with the Amalgamated Association of Iron, Steel and Tin Plate Workers.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1901.

UNITED STATES STEEL CORPORATION:

The Placing of its Stock among its Employés.

See (in this Volume)

LABOR REMUNERATION: PROFIT-SHARING.

UNIVERSITIES.

See (in this Volume)

EDUCATION.

URIBE-URIBE, RAFAEL.

See (in this Volume)
COLOMBIA: A. D. 1898-1902.

URUGUAY: A. D. 1901-1906.

Participation in Second and Third International Conferences
of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

URUGUAY: A. D. 1904.

Rebellion and prolonged Civil War.

On the 8th of January, 1904, the American Minister at Montevideo reported by telegram to the State Department at Washington "that another crisis is at hand in Uruguay; that encounters have taken place between groups of 'Blanco,' and the Government forces, and that the former, who were neither concentrated nor well organized, have been dispersed. A number were killed and wounded. The Government is making an aggressive campaign and demands obedience to the constituted authority as a condition before peace negotiations will be entered into."

This was the beginning of a state of civil war that was prolonged through nine months, with infinite harm to the country.

When peace came, at the end of September, it was practically bought from the insurgents, the terms of submission, as officially announced, including the following: "Sixth, incorporation into the army of all the chiefs and officers included in the amnesty law. Seventh. A mixed committee appointed by agreement by the Government and insurgents will distribute the sum of \$100,000 between the chiefs, officers,

and soldiers of the rebel forces."

URUGUAY: A. D. 1910.

Agreement with Argentina concerning the River Plate.

See (in this Volume)

ARGENTINE REPUBLIC: A. D. 1910.

URUSSOFF, PRINCE:

Speech in the Duma.

See (in this Volume)

RUSSIA: A. D. 1906.

URYU, ADMIRAL.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

UTAH:

Law limiting Hours of Adult Labor in Mines.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902.

UTILITIES, PUBLIC.

See (in this Volume)

PUBLIC UTILITIES.

{684}

V.

VACUUM OIL COMPANY.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES. A. D. 1904-1909.

VALIAHD, The:
Heir to the Persian throne.

See (in this Volume)
PERSIA: A. D. 1905-1907.

VANNOVSKY, GENERAL.

See (in this Volume)
RUSSIA: A. D. 1901-1904.

VALPARAISO, DESTRUCTIVE EARTHQUAKE AT.

See (in this Volume)
EARTHQUAKES: CHILE.

VEHEMENTER NOS, THE PAPAL ENCYCLICAL.

See (in this Volume)
PAPACY: A. D. 1906 (FEBRUARY).

VENEZUELA: A. D. 1901.

Claims and Complaints of Germany.
Memorandum presented to the Government of the United States.
Its Reply.
Interpretation of the Monroe Doctrine.

On the 11th of December, 1901, the German Embassy at Washington presented to the State Department of the Government of the United States a memorandum of the claims and complaints of Germany against the Government of Venezuela. The principal claim recited was that of the Berlin Company of Discount, "on account of the non-performance of engagements which the Venezuelan Government has undertaken in connection with the

great Venezuelan Railway which has been built by the said Government." In respect to this it is remarked that the "behaviour of the Venezuelan Government could, perhaps, to a certain degree, be explained and be excused by the bad situation of the finances of the State; but our further reclamations against Venezuela, which date from the Venezuelan civil wars of the years 1898 until 1900, have taken during these last months a more serious character. Through those wars many German merchants living in Venezuela and many German land-owners have been seriously damaged"; and the treatment of claims for these damages is characterized as "a frivolous attempt to avoid just obligations." After some recital of circumstances in these cases, the memorandum proceeds to announce that "the Imperial Government believes that further negotiations with Venezuela on the present base are hopeless," and that measures of coercion are contemplated. "But we consider it of importance to let first of all the Government of the United States know about our purposes, so that we can prove that we have nothing else in view than to help those of our citizens who have suffered damages. ... We declare especially that under no circumstances do we consider in our proceedings the acquisition or the permanent occupation of Venezuelan territory."

In reply, the Department of State returned a memorandum, in part as follows:

"The President in his Message of the 3d of December, 1901, used the following language: 'The Monroe Doctrine is a declaration that there must be no territorial aggrandizement by any non-American Power at the expense of any American Power on American soil. It is in no wise intended as hostile to any nation in the Old World.' The President further said: 'This doctrine has nothing to do with the commercial relations of any American Power, save that it in truth allows each of them to form such as it desires. ... We do not guarantee any State against punishment if it misconducts itself, provided that

punishment does not take the form of the acquisition of territory by any non-American Power. ... The President of the United States, appreciating the courtesy of the German Government in making him acquainted with the state of affairs referred to, and not regarding himself as called upon to enter into the consideration of the claims in question, believes that no measures will be taken in this matter by the agents of the German Government which are not in accordance with the well-known purpose, above set forth, of His Majesty the German Emperor."

***Papers Relating to the Foreign Relations
of the United States
(House Doc's, 57th Congress 1st Session, Volume 1),
pages 192-195***

VENEZUELA: A. D. 1901.

Delegates withdrawn from Second International Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

VENEZUELA: A. D. 1902-1904.

Concerted Action by Great Britain, Germany, and Italy to enforce Claims.

Blockade of Ports and seizure of Warships.

Intermediation of the United States.

Agreements Secured.

Reference to the Tribunal at The Hague.

The rebellion and revolution in Venezuela which gave control of the government to General Cipriano Castro, in 1899, and the speedy outbreak of revolt against his self-assumed administration, are told of in Volume VI. of this work.

See, also, (in this Volume)

COLOMBIA: A. D. 1898-1902.

The first insurrection was overcome in May, 1900; but other risings, concentrated in leadership finally under Manuel A. Matos, followed in 1901-1902. Partly growing out of the disturbances in the country and partly due to the arbitrary and wayward conduct of Castro (who obtained election to the Presidency in 1902, for six years) many claims for indemnity and debt against that Government accumulated and citizens of many countries were interested in them. As no satisfaction could be obtained from President Castro by diplomatic methods, peremptory proceedings against Venezuela were concerted in 1902 by Great Britain, Germany and Italy. A blockade of Venezuelan ports and seizure of war vessels was undertaken by the three Powers, with results which are narrated as follows in the Message of President Roosevelt to the Congress of the United States, on its meeting in December, 1903:

The "employment of force for the collection of these claims was terminated by an agreement brought about through the offices of the diplomatic representatives of the United States at Caracas and the Government at Washington, thereby ending a situation which was bound to cause increasing friction, and which jeopardized the peace of the continent. Under this agreement Venezuela agreed to set apart a certain percentage of the customs receipts of two of her ports to be applied to the payment of whatever obligations might be ascertained by mixed commissions appointed for that purpose to be due from her, not only to the three powers already mentioned, whose proceedings against her had resulted in a state of war, but also to the United States, France, Spain, Belgium, the Netherlands, Sweden and Norway, and Mexico, who had not employed force for the collection of the claims alleged to be due to certain of their citizens.

"A demand was then made by the so-called blockading powers that the sums ascertained to be due to their citizens by such mixed commissions should be accorded payment in full before anything was paid upon the claims of any of the so-called peace powers. Venezuela, on the other hand, insisted that all her creditors should be paid upon a basis of exact equality. During the efforts to adjust this dispute it was suggested by the powers in interest that it should be referred to me for decision, but I was clearly of the opinion that a far wiser course would be to submit the question to the Permanent Court of Arbitration at The Hague. It seemed to me to offer an admirable opportunity to advance the practice of the peaceful settlement of disputes between nations and to secure for the Hague Tribunal a memorable increase of its practical importance. The nations interested in the controversy were so numerous and in many instances so powerful as to make it evident that beneficent results would follow from their appearance at the same time before the bar of that august tribunal of peace.

"Our hopes in that regard have been realized. Russia and Austria are represented in the persons of the learned and distinguished jurists who compose the Tribunal, while Great Britain, Germany, France, Spain, Italy, Belgium, the Netherlands, Sweden and Norway, Mexico, the United States, and Venezuela are represented by their respective agents and counsel. Such an imposing concourse of nations presenting their arguments to and invoking the decision of that high court of international justice and international peace can hardly fail to secure a like submission of many future controversies. The nations now appearing there will find it far easier to appear there a second time, while no nation can imagine its just pride will be lessened by following the example now presented. This triumph of the principle of international arbitration is a subject of warm congratulation and offers a happy augury for the peace of the world."

***Message of President Roosevelt,
December 7, 1903.***

The claims of the Powers against Venezuela, presented in September, summed up as follows:

France,	\$16,040,000;
United States,	\$10,900,000;
Italy,	\$9,300,000;
Belgium,	\$3,003,000;
Great Britain,	\$2,500,000;
Germany,	\$1,417,300;
Holland,	\$1,048,451;
Spain,	\$600,000;
Mexico,	\$500,000;
Sweden,	\$200,000.

The claim of Great Britain, Germany, and Italy to a right of priority in payment, because of their action which compelled the Government of Venezuela to arrange a settlement, was submitted to the Tribunal at The Hague in November. The decision, rendered in the following January, affirmed the right of the three Powers which had exercised coercion in the case to priority in the payment of their claims, and it imposed on the United States the duty of overseeing the fulfilment of the agreements which Venezuela had made. In this last particular the decision of the Tribunal could be regarded as an international affirmation of the Monroe Doctrine, and of signal importance in that view.

VENEZUELA: A. D. 1902-1905.

A short Period of Comparative Tranquility.

"After the blockade instituted in December, 1902, by Germany, Great Britain and Italy, had been raised, and protocols had

been signed for the settlement of all duly recognized claims of foreign nations against Venezuela, Venezuela enjoyed a short period of tranquility; but, by the beginning of 1905, every legation in Caracas had a list of grievances founded on alleged unfair awards of arbitrators, on denials of justice on the part of the Venezuelan courts and on the diminution by President Castro of the percentage he had agreed to pay to the creditor nations from the receipts of his custom-houses. Moreover, Germany and Great Britain began to show signs of restlessness, because President Castro had not provided, as had been agreed in the protocols, for the payment of interest to British and German bondholders. The situation looked even worse than before the blockade, for the principal nation aggrieved was the United States, and it had the moral support of all other nations represented in Caracas by legations.

"The main issue between the United States and Venezuela was the asphalt case. In July, 1904, President Castro had demanded ten million dollars from the American Company, known as the 'New York and Bermudez Asphalt Company,' and had threatened, if that amount was not paid immediately, that the whole asphalt lake and the property of the Company would be seized. He based his demand on the alleged support given by the Asphalt Company to the Matos revolution of 1902; but, as he did not demand anything from the countless other supporters of the revolution, it was clear that his demand on the Asphalt Company was piratical."

***H. W. Bowen,
Queer Diplomacy with Castro
(North American Review, March 15, 1907).***

VENEZUELA: A. D. 1904.
Adoption of a new Constitution.

The following summary of the provisions of a new Constitution, adopted in Venezuela, on the 27th of April, 1904, was

communicated to the State Department at Washington by United States Minister Bowen:

It reduces the number of States to thirteen—Aragua, Bermudez, Bolivar, Carabobo, Falcon, Guarico, Lara, Merida, Miranda, Tachira, Trujillo, Zamora, and Zulia—and provides for five Territories—Amazonas, Cristobal Colon, Colon, Delta Amacuro, and Yururari—and the Federal District, which is composed of the Departments Libertador, Varagas, Guaicaipuro, and Sucre, and the island of Margarita.

The States enjoy equality and autonomy, having all rights not delegated to the central Government. The Territories are administered by the President.

The Government is divided into three branches—the legislative, the executive, and the judicial.

The legislative branch is called the Congress, and is composed of two bodies—the Senate and the House of Deputies. One deputy will be elected by every 40,000 inhabitants, and all deputies, as well as senators (two from every State) and the President, will serve for six years. Deputies must be 21 years of age, senators 30, and the President over 30. No extraordinary powers are given to the Congress, except that 14 of its members shall be chosen by itself to elect every sixth year a President, a first and a second vice-president, and to elect a successor to the second vice-president.

{686}

The President, besides being charged with the usual executive duties, is authorized to declare war, arrest, imprison, or expel natives or aliens who are opposed to the reestablishment of peace, to issue letters of marque and reprisal, to permit aliens to enter the public service, to prohibit the immigration into the Republic of objectionable religious

teachers, and to establish rules for the postal, telegraph, and telephone services.

The judicial power is vested in the Corte Federal y de Casacion (seven judges elected by the Congress) and the lower courts (appointed by the State governments).

All Venezuelans over 21 years of age may vote, and aliens can obtain that right by getting naturalized. No length of time is prescribed for an alien to live in the Republic before he can become naturalized.

Article 15 of the constitution denies the right of natives or aliens to present claims to the nation or States for damages caused by revolutionists.

Article 17 abolishes the death penalty.

And article 120 provides that all of Venezuela's international treaties shall hereafter contain the clause, "All differences between the contracting parties shall be decided by arbitration, without going to war."

In conclusion, the constitution provides that the next constitutional terms shall begin May 23, 1905. Up to that date General Castro will be Provisional President. He took his oath of office as such on the 5th instant, and on the same day Juan Vicente Gomez was made first vice-president and Jose Antonio Velutini second vice-president.

As Provisional President, General Castro has been authorized to name the presidents of the States, to organize the Federal Territories, to fix the estimates for the public expenses, and, in short, to exercise the fullest powers.

VENEZUELA: A. D. 1905-1906.

Troubles with the United States and France.

President Castro's Vacation.

Both France and the United States had troubles which became acute in 1905 with the arrogant President of Venezuela, growing out of his high-handed treatment of French and American business interests and rights in that country. In the case of the United States, the most serious grievance, as stated above, was that of the New York and Bermudez Company, which had a concession dating back to 1883, and a later mining title, under Venezuela laws, to the asphalt deposit known as Bermudez Lake, together with the fee-simple ownership of land surrounding the lake. Ever since the advent of Castro, the company had been harassed by litigious proceedings, behind which the Government was said to be always in action. In 1905 these were carried to the point of putting the whole property into the hands of a receiver or "depository," practically transferring its capital and plant to its rivals in business. A little later, a judicial decision, pronounced by a Venezuela court, annulled the company's concession. The main ground of this confiscation appears to have been the charge that the company had contributed funds to the support of the Matos revolt, in 1901.

The same accusation was brought against the French Cable Company, whose franchise was annulled and its property confiscated in like manner. In both cases, the matter was a proper one for arbitration, and this Castro refused, maintaining the finality of the decision of the Venezuela courts. Neither France nor the United States could afford to permit such a penalty of confiscation to be imposed on its citizens without a searching investigation of the justice of the act. Under instructions from Secretary Hay, the American Minister to Venezuela informed the Government of that country that if it refused to arbitrate the questions involved in this and other American claims, "the Government of the United States may be regretfully compelled to take such measures as it may find necessary to effect complete redress without

resort to arbitration"; and France, about the same time, made a significant movement of armored cruisers to the French Antilles. Not contented with the strain thus brought on the relations of his Government with those of two considerable Powers in the world, the Venezuelan President soon—in January, 1906—gave a fresh and quite wanton provocation to France. The French ***Chargé d’Affaires*** in Venezuela had gone on board a French steamer without official permit, and was refused permission to return to shore, on the pretence that he might bring yellow fever infection. France at once dismissed the Venezuelan ***Chargé*** from Paris, and added a demand for apologies to her other claims.

Having brought his country into this interesting situation, the eccentric Castro, of incalculable mind and temper, found the occasion opportune for a vacation, and announced it, April 9, 1906, in a proclamation which opened as follows:

"Fatigue, produced by constant labor, and which I have been endeavoring to overcome for some time past, makes it imperative for me now, in order to restore my broken health, to retire from the exercise of the office of prime magistrate.

"In accordance with a provision of the constitution I have called to power General Juan Vincente Gomez, a very meritorious citizen of well-known civic virtues, who in my absence will fulfill strictly the duties of his office. You all know him, and you know perfectly well that in view of his character you must support him without any hesitation whatever, in order that the administration may continue, as it has up to now, under the surest bases of stability, order, and progress, thus making the action of the executive the most expeditious possible.

"On retiring from power I wish you to take into consideration my effort and my sacrifices for the country's cause, which has been, and still is, the cause of the people, of reason,

justice, and right, so that you will agree with me that he who has thus labored has a right to even a slight rest, and this cannot be taken except in retirement and solitude.

"On the other hand, our present international situation, completely defined and clear, gives us reason to hope that everything will continue harmoniously and on a basis of mutual respect and consideration."

{687}

The next morning he left quietly for Los Teques, where he has a private estate; his late cabinet resigned, and a new Ministry was formed by the acting President, Gomez. Six weeks later, on the 23d of May, the President-on-vacation, from his retirement, issued a second proclamation, announcing his wish to withdraw permanently from public life, and his intention to resign the presidency at the next session of Congress. But differences appear to have arisen soon after this between the retired President and his substitute, General Gomez, over cabinet appointments, and presently there was a delegation sent to request the former to abandon his intended resignation. The delegation succeeded in its mission, and on the 4th of July the now rested and refreshed Chief Magistrate returned to Caracas and reburdened himself with the cares of state.

VENEZUELA: A. D. 1905-1909.

Trouble given to Colombia over the Navigation of Rivers flowing through both countries.

See (in this Volume)

COLOMBIA: A. D. 1905-1909.

VENEZUELA: A. D. 1906.

No participation in Third International Conference of American Republics.

See (in this Volume)
AMERICAN REPUBLICS.

VENEZUELA: A. D. 1907-1909.

President Castro's obstinate Provocations to France and the United States.

His Quarrel with Holland.

His unwary venture Abroad.

The Triumph of his Enemies in Venezuela.

The Foreign Governments he Quarrelled with take part in Preventing his Return.

President Castro, practically Dictator in Venezuela, continued obstinate in his provocative attitude towards both France and the United States, and added Holland at length to the list of exasperated nations which were questioning and studying how to deal with insolence from so petty a source. His courts, after confiscating the franchises and seizing the property of the French Cable Company and the American asphalt concessionaries, imposed fines of \$5,000,000 on each. Of the five claims for redress or indemnity which the American Government pressed upon him he refused to submit any to arbitration, in any form, at The Hague or elsewhere. This situation continued until the American Legation was withdrawn from Caracas, in June, 1908, to signify that negotiation was ended, and the whole correspondence of the State Department with Venezuela was laid before Congress, for such action as it might see fit to take.

Castro had opened his quarrel with Holland in a characteristic way. The bubonic plague had got a footing at the Venezuelan port of La Guayra, and he refused to allow his own medical officers, who reported the fact, to take measures for preventing the spread of the disease. Then, when his Dutch neighbors at Curaçao protected themselves by a quarantine against La Guayra he retaliated by an embargo on commerce with Curaçao, exchanged angry letters with the Dutch Minister at

Caracas, and ordered him finally to quit the country. The Netherland Government acted slowly, with deliberation, on the matter, despatching a battle-ship, at length, to the scene, and otherwise manifesting serious intentions.

But now the domestic situation in Venezuela underwent a sudden change; or, rather, a recurrence to the situation in 1906, when Castro had found it easy to lay down the reins of authority and take them up again at his pleasure. He was afflicted with some ailment, for which he went abroad to seek treatment, appointing Vice-President Gomez to conduct the Government in his absence. Landing at Bordeaux on the 10th of December, 1908, he made a short visit to Paris, receiving no official recognition or entertainment, and went thence to Berlin. In Germany he stayed with his family and suite for about three months, undergoing a surgical operation with subsequent treatment for his malady. Meantime, in Venezuela, his enemies, or the opponents of his rule, had acquired the upper hand, and were prepared to resist his return. On the 16th of December a mob at Caracas, crying "Down with Castro," wrecked considerable property of his friends. A few days later some of his partisans were arrested on the charge of having plotted the death of Acting-President Gomez, and that trusted representative of the absent President became openly antagonistic to him. The Castro Cabinet was dismissed, and an anti-Castro Ministry was formed.

Pacific overtures were now made to the foreign governments with which Castro had quarrelled. The Honorable William I. Buchanan, an able diplomat, of much experience in Spanish-America, was sent from the United States to reopen negotiations at Caracas, where he arrived on the 20th December, and the late Venezuelan Minister of Foreign Affairs went abroad as an agent of President Gomez to treat with the Netherlands, Great Britain, and France. Mr. Buchanan found difficulty in arranging modes of settlement in the case of two American claims, that of the New York and Bermudez Company,

and that of the Orinoco Corporation, which claimed very extensive concessions; but the obstacles were overcome and a satisfactory protocol signed, February 13, 1909.

Before this time, criminal proceedings had been instituted against Castro, on the charge that he had instigated the assassination of Vice-President Gomez, and the High Federal Court had decided that adequate evidence had been adduced to warrant the action. To this accusation Castro made answer from Dresden, February 27, saying: "The only charge that has been raised against me is that I tried to instigate the murder of Gomez. It is incredible that, after having shown my interest in him in so many ways, I should try to cause him to be murdered. If Gomez had given me occasion to suspect him, I would have given orders regarding him before my departure from Venezuela, and I would not have been so stupid as to send such an order by cable. Whoever knows me knows also that I am incapable of such disgraceful cowardice. I give this declaration in the interest of truth to the press and to the foreign countries, in order to set at rest in places where I am not known all doubts and suspicions regarding my behavior."

Having no apparent doubt that he could master the adverse situation in Venezuela, Castro was now making his arrangements to return. On the 24th of March he arrived at Paris, on his way to Bordeaux, to take passage on the Steamer **Guadeloupe**. There he was met by a statement from the steamship company, "that it had been informed by the Venezuelan government that Señor Castro will not be permitted to land in Venezuela; that he will be arrested on board the Guadeloupe if this vessel calls at a Venezuelan port, and that even the movement of the **Guadeloupe** in Venezuelan ports will be controlled by the authorities, if Castro is a passenger.

{688}

As a result of this communication the company will embark Castro only on condition that he leave the **Guadeloupe**

before reaching Venezuela, either at Martinique or Trinidad. This official notification to the steamship company was handed in by José de Jesus Paul, the special Venezuelan envoy to Europe. Señor Paul says in part:

"‘Cipriano Castro is under criminal prosecution in Venezuela, and the High Federal Court having suspended his function as President, he is liable, in accordance with the laws of Venezuela, to imprisonment pending the result of the trial. A warrant of arrest can be executed even on board the *Guadeloupe* at the first Venezuelan port.’ "

At Bordeaux he was forced to take passage with the understanding that he must leave the ship before she reached a Venezuelan port, and he accepted tickets to Port-au-Spain, Trinidad. On leaving Paris his parting words had been: "I believe that God and destiny call me back to Venezuela. I intend to accomplish my mission there, even though it involves revolution." But he mistook the call, and mere earthly authority sufficed to frustrate the mission he had in mind. The British Government, after consultation with the United States and other Powers most interested in the avoidance of fresh disturbances in Venezuela, forbade his landing at Trinidad, and he found no port to receive him but that of Fort de France, Martinique. From that French soil, too, he was ordered away the next day, and took passage back to France, ultimately settling himself with his family in Spain. If he has made further efforts or plans to recover a footing in Venezuela, the public has not learned of them.

As soon as the out-cast President had been thus eliminated from Venezuelan politics, he was cleared, May 21, of the charge of plotting to assassinate General Gomez, by decision of the Criminal Court. Both Holland and France had settled, by this time, their differences with Venezuela, and restored diplomatic relations. On the 12th of August, Vice-President Gomez was formally elected Provisional President by Congress

in the exercise of powers claimed under the new Constitution. On the 11th of September announcement was made that all but one of the five American claims for which Mr. Buchanan had arranged modes of settlement had been settled, and that one—of the Orinoco Steamship Company—was before the tribunal at The Hague.

VENICE: A. D. 1902.

Fall of the Campanile of St. Marks.

On the morning of July 14, 1902, the Campanile or bell-tower of the cathedral of St. Marks fell to the ground. An attentive architect had been calling attention for several years to signs of danger in its walls, but nothing had been done to avert the destruction of the most interesting monument of antiquity in the city. The building of the tower was begun in the year 888, and underwent a reconstruction in 1329. Its height was 322 feet.

"At 9 o'clock, according to the story of an American architect who witnessed the fall of the tower from the neighborhood of the Rialto, he saw the golden angel slowly sink directly downward behind a line of roofs, and a dense gray dust arose in clouds. Instantly, from all parts of the city, a crowd rushed toward the Piazza, to find on their arrival that nothing was left of all that splendid nave but a mound of white dust, 80 feet high." A press telegram from Venice, January 4, 1910, announced that "the Campanile, after seven years' work, is now approaching completion. The shaft is finished, and only lacks the belfry, the separate pieces of which are ready to be set in place."

VEREENIGING, BOER-BRITISH TREATY OF PEACE AT.

See (in this Volume)

South Africa: A. D. 1901-1902.

VERESTCHAGIN, VASILI, DEATH OF.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

VERNON-HARCOURT, LOUIS:

First Commissioner of Works.

See (in this Volume)

ENGLAND: A. D. 1905-1906.

VESUVIUS, MOUNT:

Violent Eruption in 1906.

See (in this Volume)

VOLCANIC ERUPTIONS.

VETO, CIVIL, IN PAPAL ELECTIONS.

See (in this Volume)

PAPACY: A. D. 1904.

VIBORG CONFERENCE.

See (in this Volume)

RUSSIA: A. D. 1906.

VICTOR EMMANUEL III., KING OF ITALY:

His Agency in founding the International Institute
of Agriculture.

See (in this Volume)

AGRICULTURE.

VILHENA, SENHOR.

See (in this Volume)

PORTUGAL: A. D. 1906-1909.

VILLAZON, ELIDORO:

President of Bolivia.

See (in this Volume)

ACRE DISPUTES.

VIRCHOW, RUDOLPH:

Celebration of his Eightieth Birthday.

See (in this Volume)

SCIENCE AND INVENTION: ANNIVERSARY CELEBRATIONS.

VIRGINIA: A. D. 1907.

The Jamestown Tercentennial Exposition.

See (in this Volume)

JAMESTOWN.

VITHÖFT, ADMIRAL.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

"VLADIMIR'S DAY."

See (in this Volume)

RUSSIA: A. D. 1904-1905.

VLADIVOSTOCK:

In the Russo-Japanese War.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

VOLCANIC ERUPTIONS: ITALY: A. D. 1906 (April).

Great Outburst of Vesuvius.
The Most Violent since 1631.

"At a meeting of the Geological Society, London, on May 9, a paper giving a scientific account of the recent great eruption of Mount Vesuvius was read by Professor Giuseppe de Lorenzo, of the Mineralogical Museum in the Royal University of Naples, a foreign correspondent of the society. According to the report in the London *Times* Professor de Lorenzo stated that after the great eruption of 1872 Vesuvius lapsed into repose, marked by merely solfataric phenomena, for three years. Fissuring of the cone and slight outpourings of lava began in May, 1905, and continued until April 5, 1906, when the fourth great outburst from the principal crater occurred, accompanied by the formation of deeper and larger fissures in the south-eastern wall of the cone, from which a great mass of fluid and scoriaceous lava was erupted. After a pause the maximum outburst took place during the night of April 7 and 8, and blew 3,000 feet into the air scoriæ and lapilli of lava as fragments derived from the wreckage of the cone.

{689}

The southwesterly wind carried this ash to Ottajano and San Giuseppe, which were buried under three feet of it, and even swept it on to the Adriatic and Montenegro. At this time the lava which reached Torre Annunziato was erupted. The decrescent phase began on April 8, but the collapse of the cone of the principal crater was accompanied by the ejection of steam and dust to a height of from 22,000 to 26,000 feet. On April 9 and 10 the wind was northeast, and the dust was carried over Torre del Greco and as far as Spain; but on April 11 the cloud was again impelled northward. The ash in the earlier eruptions was dark in color and made of materials derived directly from the usual type of leucotephritic magma; but later it became grayer and mixed with weathered elastic material from the cone. The great cone had an almost horizontal rim on April 13, very little higher than Monte Somma, and with a crater possibly exceeding 1,300 feet in

diameter; this cone was almost snow white from the deposit of sublimates. Many deaths, Professor de Lorenzo states, were due to asphyxia, but the collapse of roofs weighted with dust was a source of much danger, as was the case at Pompeii in A. D. 79. The lava streams surrounded trees, many of which still stood in the hot lava with their leaves and blossoms apparently uninjured. The sea level during April 7 and 8 was lowered six inches near Pozzuoli, and as much as twelve inches near Portici, and had not returned to its former level on April 13. The maximum activity conformed almost exactly with full moon, and at the time the volcanoes of the Phlegræan Fields and of the islands remained in their normal condition. Professor de Lorenzo believes that this eruption of Vesuvius is greater than any of those recorded in history with two exceptions—those of A. D. 79, the historic eruption which destroyed Pompeii and Herculaneum, and of 1631, when Torre del Greco was overwhelmed and 4,000 persons perished."

Scientific Notes and News
(Science, May 25, 1906).

VOLCANIC ERUPTIONS: WEST INDIES: A. D. 1902 (May).
Of Mont Pelee and La Souffrière, on the islands of Martinique and St. Vincent.
Destruction of the City of St. Pierre.

The most appalling catastrophe in the annals of the Western Hemisphere is that which burst from the long torpid volcano of Mont Pelée, overlooking the city of St. Pierre, on the French island of Martinique, and from its slumbering neighbor, La Souffrière, of the British island of St. Vincent, on the morning of the 8th of May, 1902. The following particulars of the frightful volcanic explosion are borrowed from a graphic account prepared for ***The American Review of Reviews*** by W. J. McGee, of the Smithsonian Institution.

"The outbreak of Mont Pelée seems to have been second only to

that of Krakatoa in explosive violence in the written history of the world. Nor was the catastrophe confined to a mountain and a city, or even to an island: the towns and villages of northern Martinique were devastated or utterly destroyed as far southward as Fort de France, while the scant 400 square miles of the whole island were at once shaken from below and showered from above with uncounted tons of hot rock-powder, scorching what it touched, and desolating the tropical luxuriance of one of the fairest among the gems of the Antilles. At the same time the Vulcanian spasm thrilled afar through subterranean nerves and stirred into sympathetic resurrection other long-dead volcanoes; and one of these,—La Souffrière, on the island of St. Vincent, over a hundred miles away,—sprang into baleful activity, poured out vast sheets of viscid lava, showered land and sea with its own scorching rock-powder, devastated another gem in the Antillean necklace, and slew its thousands. The vigor of such volcanic outbursts as those of Martinique and St. Vincent, and the vastness of their products, are beyond realization. The governor of Barbados, Sir Frederick Hodgson, estimates that 'two million tons of volcanic dust' fell on his island, which is 110 miles from La Souffrière, and still farther from Mont Pelée. ...

"About the middle of April of the present year the inhabitants of Martinique and passing seafarers began to note the appearance of 'smoke' about the crest of the mountain; and within a few days the report spread that Mont Pelée was in an ugly mood. The smoky columns and clouds increased at intervals, and anxiety deepened both at St. Pierre and Fort de France; but as the days went by without other manifestations, apprehension faded. On May 5, detonations were heard and a tremor shook St. Pierre, while a mass of mud was violently erupted from the old crater. The indications are that this eruption was occasioned by the rise of viscous lava, accompanied by steam and other gases attending its formation, probably through the old vent, in sufficient quantity and with sufficient violence to blow the lake out of the ancient crater

and vaporize the water. Portions of the lava were apparently blown into dust by the flashing into steam of water imprisoned in its interstices, after the manner of volcanic ejecta generally; and this material (better called 'lapilli' than 'ashes') hastened condensation of the aqueous vapor in the air already overcharged by the addition of that cast up from the lake. The consequence was a shower of mud, apparently of limited extent. Some of the accounts indicate that the greater part of this mud was not vomited into the air, but that it welled up in such wise as to fill and overflow the old crater, and send scalding streams down the gorges seaming the rugged sides of Mont Pelée; one of these flooded a sugar factory and enveloped a score or more of the employees; others mingled with the rivers, converting them into hot and muddy torrents, carrying destruction down their channels to the sea. ... So matters rested, with Pelée still grumbling, until the evening and night of May 7, when the black vapor-clouds and subterranean groanings grew more terrifying; but it was too late to escape before another day.

"About 7:50 A. M. on May 8 came the great shock, of which that of May 5 was the precursor; and within ten minutes St. Pierre and the smaller towns of Martinique were in ruins. Few witnesses were left to describe the event, and the accounts of these vary so widely as to require interpretation through the testimony of other witnesses of similar eruptions elsewhere. Briefly it seems evident that the lava mass, of which the uppermost portion exploded on May 5, had continued to rise in the vent after the temporary shock due to the recoil of the initial explosion, and that by the morning of May 8 it had reached such a height in the throat as to find relief from the stupendous pressure of the lower earth-crust.

{690}

Coming up with the high temperature of subterranean depths, the mass was, like other rocks in a state of nature, saturated with water held in liquid state by the pressure, and charged with other mineral substances ready to flash into gas or to

oxidize on contact with the air; and these more volatile materials, being of less density than the average, were more abundant in the upper portions of the mass.

"As the viscid plug of red-hot rock forced its way upward, the mighty mountain travailed, the interior rocks were rent, and the groaning and trembling were conveyed through the outer strata to the surface and strange shakings of the shores and quiverings of the sea marked the approach of the culmination. Then the plug passed above the zone of rock-pressure great enough to compress steam into water whatsoever the heat,—and with this relief the liquid flashed into steam and the superheated rock-matter into gases, while the unoxidized compounds leaped into flame and smoke as they caught the oxygen of the outer air. The lava was probably acidic, and hence highly viscous; and when the imprisoned droplets of water expanded, they formed bubbles, or vesicles, often much larger than the Volume of rock-matter; doubtless some of this matter remains in the form of vesicular pumice; but unquestionably immense quantities were blown completely into fragments representing the walls of the bubbles and the angular spicules and thickenings between bubbles. Of these fragments lapilli, or so-called volcanic ashes, consists; and the Mont Pelée explosion was so violent that much of the matter was dust-fine, and drifted hundreds of miles before it settled from the upper air to the sea or land below. When the imprisoned water burst into steam, the heavier gases were evolved, also, with explosive violence; and while the steam shot skyward, carrying lapilli in vast dust-clouds, these gases rolled down the slopes, burning (at least in part) as they went; and at the same time the heavier lava fragments, together with rock-masses torn from the throat of the crater by the viscid flood, were dropped for miles around. ...

"Both press dispatches and physical principles indicate that it was the debacle of burning gas that consumed St. Pierre even before the red-hot rocks reached the roofs and balconies.

Meantime the aerial disturbance was marked by electrical discharges, with continuous peal of thunder and glare of lightning, while portions of the hot rock-powder were washed down from the clouds by scalding rains. The heat of millions of tons of red-hot lava and of the earth-rending explosion, as well as of the burning gases, fell on Martinique; green things crumbled to black powder, dry wood fell into smoke and ashes, clothing flashed into flame, and the very bodies of men and beasts burst with the fervent heat. Such, in brief, were the evil events of Pelée and St. Pierre for May 8."

Simultaneously, on St. Vincent's Island, the outbreak of La Souffrière occurred that day. "The accounts are vague or conflicting as to the hour and as to the precise nature of the initial and later throes; yet it would appear, from the burden of the testimony, that the outbreak quickly succeeded that of Pelée. Apparently, too, the extravasation of rock-matter, both of liquid and lava, exceeded that of the northern neighbor; yet the indications are that the explosion was feebler, and that the formation of gases was proportionately less abundant. Lapilli are reported to cover the entire island to depths ranging from an inch or more to several feet, several roofs,—like those of Pompeii of old,—being crushed in by the weight; the estimates of human mortality ranged from a few hundreds in the early reports to over two thousand, and were afterward slightly reduced, while the destruction of property seems to have been relatively greater than on Martinique. So far as the accounts of the two outbursts go, they indicate that the Pelée eruption was primarily an explosion due to the flashing of water and other gases on relief from pressure, with attendant heat and meteorologic disturbances, followed by a limited and quiet outflow of lava from the deeper and drier portion of the lava plug; but that the upwelling lava of Souffrière was in some way nearer equilibrium,—perhaps drier, perhaps cooler, perhaps from less depth and pressure,—and hence poured out in broad sheets of viscid rock-matter, likened by some observers to burning sealing wax.

"Such, in brief, is the record of La Souffrière on May 8,—a record that would have appalled the nations had it not been eclipsed by the ghastly tale of Mont Pelée and St. Pierre."

In the case of St. Pierre almost the entire population had remained in the town, not sufficiently warned by the outbreak of May 5, and was, in consequence, destroyed. It is estimated that 30,000 people perished in or near that town alone. Death came to them almost instantaneously,—not from the flow of lava or the showers of hot ashes that fell to the depth of perhaps two feet, but from such a fierce current of burning gases that men breathed flames instead of air.

On the English island, there was no large town close to the mountain, and therefore not as great loss of life as in Martinique, but nearly two thousand persons in the rural districts lost their lives. These were burned to death by hot sand or were killed by lightning, there being no suffocation, as in St. Pierre. A layer of ashes fell over the entire island, and in the northeastern part the land was buried in ashes and stones to the depth of eighteen inches. As a consequence, all the crops were destroyed.

Repeated outbreaks of both Mont Pelée and La Souffrière occurred at intervals during more than a year following the great explosion, adding much to the destruction of the means of living on large parts of the islands and to the misery of the inhabitants remaining in the regions affected, though not greatly to the loss of life. Of the relief in money and supplies from all sources that was poured into the two afflicted islands no full reckoning can be obtained; but the Governor of the Windward Islands reported to the Colonial Office at London on the 20th of June, 1903, that total receipts for the Eruption Fund to that date were £77,000, and expenditures £42,787. "I shall have sufficient funds left in the Colony," he added, "to meet all present needs, unless any

further unforeseen misfortune takes place."

VULGATE, REVISION OF THE.

See (in this Volume)
PAPACY: A. D. 1907-1909.

{691}

W.

WAGES AND COST OF LIVING.

See (in this Volume)
LABOR REMUNERATION: WAGES, &c.

WAI-WU-PU.

See (in this Volume)
CHINA: A. D. 1901-1908.

WALDECK-ROUSSEAU, PIERRE MARIE:
Resignation of Ministry.

See (in this Volume)
FRANCE: A. D. 1902 (APRIL-OCTOBER).

WALLER, DR. AUGUSTUS.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: OPSONINS.

WALL STREET INVESTIGATION, THE.

See (in this Volume)
FINANCE AND TRADE: UNITED STATES: A. D. 1909.

-----WAR, THE PREPARATIONS FOR: Start-----

WAR, THE PREPARATIONS FOR: At Large:

Contradictory Feeling and Action in the World.

Its Causes.

International Barbarism with Inter-Personal Civilization.

The Two Main Knots of Difficulty in the Situation.

The British and the German Posture.

There was never before in the world so wide-spread and so passionate a hatred of War, among civilized peoples, or so earnest and determined an endeavor to supplant it by rational methods of composing international disputes. At the same time, there was never so frenzied a rivalry of preparation among the nations for Warfare, by monstrous accumulation of its horrible engines and tools. How can the glaring inconsistency be accounted for without impeaching the general sanity of mankind?

The strangeness of the situation was described most graphically and feelingly, not long since, by Lord Rosebery, in speaking at a banquet given to the delegates attending the British Imperial Press Conference, at London, in June, 1909, and his own feeling that went into the description of it affords an explanation of the anomaly. "I do not know," said the eloquent Earl, "that in some ways I have ever seen a condition of things in Europe so remarkable, so peaceful, and in some respects so ominous as the condition which exists at this moment. There is a hush in Europe, a hush in which you may almost hear a leaf fall to the ground. There is an absolute absence of any questions which ordinarily lead to war. One of the great Empires which is sometimes supposed to menace peace is entirely engrossed with its own internal affairs. Another great Eastern empire which furnished a perpetual problem to statesmen has taken a new lease of life and youth in searching for constitutional peace and reform.

"All forebodes peace; and yet at the same time, combined with this total absence of all questions of friction, there never was in the history of the world so threatening and so overpowering a preparation for war. That is a sign which I confess I regard as most ominous. For 40 years it has been a platitude to say that Europe is an armed camp, and for 40 years it has been true that all the nations have been facing each other armed to the teeth, and that has been in some respects a guarantee of peace. Now, what do we see? Without any tangible reason we see the nations preparing new armaments. They cannot arm any more men on land, so they have to seek new armaments upon the sea, piling up these enormous preparations as if for some great Armageddon—and that in a time of profoundest peace. We live in the midst of what I think was called by Petrarch *tacens bellum*—a silent warfare, in which not a drop of blood is shed in anger, but in which, however, the last drop is extracted from the living body by the lancets of the European statesmen. There are features in this general preparation for war which must cause special anxiety to the friends of Great Britain and the British Empire, but I will not dwell upon these. I will only ask you who have come to this country to compare carefully the armaments of Europe with our preparations to meet them, and give your impressions to the Empire in return. (Cheers.) I myself feel confident in the resolution and power of this country to meet any reasonable conjunction of forces. But when I see this bursting out of navies everywhere, when I see one country alone asking for 25 millions of extra taxation for warlike preparation, when I see the absolutely unprecedented sacrifices which are asked from us on the same ground, I do begin to feel uneasy at the outcome of it all and wonder where it will stop, or if it is nearly going to bring back Europe into a state of barbarism, (hear, hear), or whether it will cause a catastrophe in which the working men of the world will say, 'We will have no more of this madness, this foolery which is grinding us to powder.' (Cheers.)

"We can and we will build Dreadnoughts—or whatever the newest type of ship may be (loud cheers)—as long as we have a shilling to spend on them or a man to put into them. (Loud cheers.) All that we can and will do; but I am not sure that even that will be enough, and I think it may be your duty to take back to your young dominions across the seas this message and this impression—that some personal duty and responsibility for national defence rests on every man and citizen. (Loud and prolonged cheers.) Yes, take that message back with you. Tell your people—if they can believe it—the deplorable way in which Europe is lapsing into militarism and the pressure which is put upon this little island to defend its liberties—and yours. (Cheers.) But take this message also back with you—that the old country is right at heart, that there is no failing or weakness in heart, and that she rejoices in renewing her youth in her giant dominions beyond the seas. (Loud cheers.) For her own salvation she must look to herself, and that failing her she must look to you. (Cheers.)"

{692}

Here, in the feeling of one superlatively civilized man, is the feeling of more than half the world epitomized. It shrinks with horror from the enormity of preparations that are "as if for some great Armageddon," and shudders over what seems to be "nearly going to bring back Europe into a state of barbarism"; but suspicion, distrust, fear impel it nevertheless, to cry with Lord Rosebery: "We can and we will build Dreadnoughts as long as we have a shilling to spend on them or a man to put into them—because others are building them who may use them against us." There is senselessness in this predicament of mind, but it is the senselessness of a persisting international barbarism, which keeps nation-neighbors still standing in attitudes toward one another which became foolishness to individual neighbors a thousand years ago. It means, simply, that the society of nations is as barbaric as it was when Englishmen and Normans fought at Senlac; and that

it is only in little street-neighborhoods that men have arrived at the rational relationships which offer an appearance of civilization in some parts of the world.

Two principal knots of difficulty must be cut in some way, before an international civilization can be developed, by the rational and moral processes which have civilized us interpersonally in some considerable degree. The hardest of these knots is tightened upon England, by the weight and the strain of her great world-wide empire on the little island to which it is bound. Not only the whole exterior fabric of British Empire, but the bare subsistence of the people of the small island at its center, depends on the uninterrupted use of the surrounding seas for trade and travel between its parts. To lose freedom in that use means the downfall of Great Britain, not merely as a militant power, but in everything that could carry her past importance into the future of the world. It means so much as this, because the resources of the island-home of the nation, within themselves, are so small. There can be no wonder, then, that Englishmen reckon nothing else so important to them as an indisputable free use of the seas. Nor can there be wonder that they learned in the past to look on an indisputable free use of the seas as implying a mastery of the sea. Until within the last generation or two this was the sole condition on which there could be security in ocean trade. That it remains so still is the continued belief of all the Governments which put millions on millions into bigger and bigger steel-clad battleships, and of the publics behind the Governments, which cry with Rosebery, "We can and we will build Dreadnoughts as long as we have a shilling to spend on them or a man to put into them." England differs from the rest only in the imperativeness to her of what is simply important to them. If security in the use of the seas is still impossible of attainment without the supremacy over them of an irresistible sea-power, then England has justifications for the enormity of her naval armament which no other nation can claim.

So long as a majority of Englishmen feel constrained to believe that their ocean trade is made secure from hostile obstruction by nothing but their naval strength, so long they will strive to maintain a navy that shall be equal to the combined navies of any other two Powers; and so long as that "Two Power Standard" of British naval policy remains inflexible, it seems forbidding to the hope of a common agreement among the maritime nations to reduce their building of battleships. With other Powers than Germany there might be possibilities of such an agreement, even subject to a concession of British naval supremacy, because of the exceptionality of circumstance in England's case; but it is here that we come to the second of the two principal knots of difficulty which hinder the international civilization of the world, now so flagrantly over-due. Germany, coming late, by a tardy unification, into the national career which the German people are entitled to, by their energy of spirit and capacity of brain, is impatient in the ambitions that were repressed so long. Her industries, her commerce, her maritime undertakings have been pushed in the last generation, against the older competitions of Europe and America, with an impassioned determination that has won extraordinary triumphs on every line. Here, again, as in the case of England, there is an exceptional exposure of the nation to those perils from war which the state of international barbarism still keeps in suspense. Germany elbows so many close neighbors in Europe that nothing but a perfectly trusting friendship or a perfectly organized reign of law among them can make safety for any. In the absence of both friendly trust and authoritative law, they stand on guard against each other in the twentieth century as they did in the tenth; but with arms a hundred-fold more hellish and a thousand-fold more ruinous in cost. Under the pressure of her long-pent ambitions and energies, Germany has beaten all her neighbors in this as in other fields of exertion. She commands the best trained, the best organized, the best equipped army in the world, and

stands admittedly the first among military Powers. But military power does not give "world power," in the accepted meaning of that term, and Germany is impelled by all the strong motives of our time to acquire that. She is competing with England in commerce, in shipping, in exploitations of enterprise, everywhere, and she manifestly hopes yet to make good the lateness of her coming into the field of colonial plantation. By everything in the prevailing theories of statesmanship, this calls for a development of naval power to mate the military; and Germany has been zealously obedient to the call,—so zealously that England has taken alarm. Since about the year 1900 a German navy has been created so fast that the "two power standard" of Great Britain has begun of late to be a seriously difficult, because a frightfully costly, naval standard to maintain. Yet England more than ever believes that she must maintain it at any cost; because the strenuousness of the German navy-building inspires her with a new distrust. Hence these two Powers are setting a new pace to the increase of naval armament, all other Governments catching some infection from the new temper of suspicion and distrust which works in theirs.

And this, mainly, at least, is why the world is busier to-day than it was ever busy before in building monstrous ships and guns and horrible inventions of a thousand sorts for battle, while it loathes battle and war as they were never loathed by mankind before.

{693}

One of the most impressive of recent utterances on this grave subject fell from the lips of the Secretary for Foreign Affairs in the Government of Great Britain, Sir Edward Grey, on the 29th of March, 1909, when he said in Parliament: "Sir, the martial spirit, I should be the last to deny, has its place, and its proper place, in the life of a nation. That the nation should take pride in its power to resist force by force

is a natural and wholesome thing. It is a source of perfectly healthy pride to have soundness of wind and limb and physical strength, and it has no unworthy part in the national spirit. That I sympathize with entirely, but I would ask the people to consider to what consequences the growth of armaments has led. The great countries of Europe are raising enormous revenues and something like one-half of them is being spent on naval and military preparations. You may call it national insurance, that is perfectly true; but it is equally true that one-half of the national revenue of the great countries in Europe is being spent on what are, after all, preparations to kill each other. Surely the extent to which this expenditure has grown really becomes a satire and a reflection upon civilization. (Cheers.) Not in our generation, perhaps, but if it goes on at the rate at which it has recently increased, sooner or later I believe it will submerge that civilization. The burden already shows itself in national credit—less in our national credit than in the national credit of other nations—but sooner or later, if it goes on at this rate, it must lead to national bankruptcy. Is it to be wondered that the hopes and aspirations of the best men in the leading countries are devoted to trying to find some means of checking it? (Cheers.) Surely that is a statement of the case in which, however attached a man may be to what I may call the martial spirit, he may at least see that the whole of Europe is in the presence of a great danger. But, Sir, no country alone can save that."

WAR, THE PREPARATIONS FOR: At Large:

Lord Morley on the Responsibility of the Press.

Speaking to the Imperial Press Conference, at London, in June, 1909, and referring to the "rebarbarism of Europe—the rattling back into arms and the preparation to use arms," Lord Morley said he thought the Press was more answerable for this than all the ministers, officers, and diplomatists taken together, and he pleaded for a systematic and persevering work

on the part of newspapers in behalf of peace among the nations.

WAR, THE PREPARATIONS FOR: Military:

Average Cost of the Armies of the Great Military Powers.

In his report on the French army budget of 1909 M. Gervais made a calculation of the average military expenditure of the six Powers—namely, Russia, Germany, France, Austria-Hungary, Italy, and Japan, which can mobilize the largest armies, and found the total amount spent annually to be no less than 5,037 million francs (more than \$1,000,000,000), and the number of men which they could put into the field to be 31,700,000. The army which England can mobilize comes seventh, and is given as 555,000 men, though her average annual expenditure is the same as that of France—namely, 700 million francs (\$140,000,000). Comparing next the expenditure and the effectives of France and Germany, the report states that the German army estimates show an increase in 1909 to 69 million francs, being fixed at 1,067,862,437f., of which 838,037,151f., belong to the ordinary budget and 229,825,226f. to the extraordinary budget. The French army estimates for the year were 742,443,745f. (\$150,000,000). The totals on either side were: Germany, 34,118 officers and 602,670 men; France, 27,310 officers and 511,930 men. The average cost per man in Germany is 1,398f. and in France 1,150f.

WAR, THE PREPARATIONS FOR:

Belgian Military Service Stiffened.

Substitution Abolished.

Personal Service Exacted.

Conscription of a mild type has existed in Belgium for some years, supplemented by voluntary enlistments and ameliorated by hired substitution, which released the well-to-do from military service if they wished to escape it. The Liberals and Socialists have for a long time been advocating the abolition

of the practice of substitution in favor of a system of personal and universal military service; and, latterly they were joined in the demand by a section of the Catholics. The question became a dominant one in politics, and brought about an extraordinary session of the Belgian Chamber in October, 1909, for discussion of a comprehensive measure of military reform, for strengthening the self-defense of the kingdom. It resulted in a decision that "general personal service restricted to one son per family should be introduced, that the annual contingent should be raised to 18,000 men, that the peace strength should stand at 48,400, and that the eventual war strength should be 250,000 men. It was also agreed that, the ecclesiastics should be exempt."

WAR, THE PREPARATIONS FOR: Brazilian Military Service.

Service in the Brazilian army was made obligatory by legislation in 1907.

WAR, THE PREPARATIONS FOR: The British Territorial Force. The Reorganization of 1907-1908. Lord Roberts' Criticism. His Bill for Compulsory Training.

The volunteer or militia forces of the United Kingdom, for home service, underwent an important reorganization in 1907, according to the provisions of an Act entitled the "Territorial and Reserve Forces Act," the general scheme of which may be learned from the following clauses, taken out of the text of the Act:

"For the purposes of the reorganisation under this Act of His Majesty's military forces other than the regulars and their reserves, and of the administration of those forces when so reorganised, and for such other purposes as are mentioned in

this Act, an association may be established for any county in the United Kingdom, with such powers and duties in connection with the purposes aforesaid as may be conferred on it by or under this Act. Associations shall be constituted, and the members thereof shall be appointed and hold office in accordance with schemes to be made by the Army Council."

"It shall be the duty of an association when constituted to make itself acquainted with and conform to the plan of the Army Council for the organisation of the Territorial Force within the county and to ascertain the military resources and capabilities of the county, and to render advice and assistance to the Army Council and to such officers as the Army Council may direct, and an association shall have, exercise, and discharge such powers and duties connected with the organisation and administration of His Majesty's military forces as may for the time being be transferred or assigned to it by order of His Majesty signified under the hand of a Secretary of State or, subject thereto, by regulations under this Act, but an association shall not have any powers of command or training over any part of His Majesty's military forces."

{694}

"The Army Council shall pay to an association, out of money voted by Parliament for army services, such sums as, in the opinion of the Army Council, are required to meet the necessary expenditure connected with the exercise and discharge by the association of its powers and duties.

"All men of the Territorial Force shall be enlisted by such persons and in such manner and subject to such regulations as may be prescribed: Provided that every man enlisted under this Part of this Act—

(a)

Shall be enlisted for a county for which an association has been established under this Act and shall be appointed to serve in such corps for that county or for an area comprising the whole or part of that county as he may select, and, if that corps comprises more than one unit within the county, shall be posted to such one of those units as he may select:

(b)

Shall be enlisted to serve for such a period as may be prescribed, not exceeding four years, reckoned from the date of his attestation:

(c)

May be re-engaged within twelve months before the end of his current term of service for such a period as may be prescribed not exceeding four years from the end of that term."

"Any part of the Territorial Force shall be liable to serve in any part of the United Kingdom, but no part of the Territorial Force shall be carried or ordered to go out of the United Kingdom. Provided that it shall be lawful for His Majesty, if he thinks fit, to accept the offer of any part or men of the Territorial Force, signified through their commanding officer, to subject themselves to the liability to serve in any place outside the United Kingdom."

"Subject to the provisions of this section, every man of the Territorial Force shall, by way of annual training—

(a)

Be trained for not less than eight nor more than fifteen, or in the case of the mounted branch eighteen, days in every year at such times and at such places in any part of the United Kingdom as may be prescribed, and may for that purpose be called out once or oftener in every year:

(b)

Attend the number of drills and fulfill the other conditions relating to training prescribed for his arm or branch of the service":

"His Majesty in Council may—Order that the period of annual training in any year of all or any part of the Territorial Force be extended, but so that the whole period of annual training be not more than thirty days in any year."

The King is empowered to make orders with respect to pay and allowances of the Territorial Force, as well as concerning its government and discipline.

Under this Act the Territorial Force assumed form on the 1st of April, 1908. The former organizations of Yeomanry and Volunteers were given until 30th June to transfer to the new Force. The strength of the Yeomanry and Volunteers on 31st March had been 9,174 officers and 241,085 men. On 1st July the strength of the new Force, including both transfers and recruits, was about 8,000 officers and 176,500 men. Of these some 112,000 men had joined for one year.

The latest published statement of the enrollment in the Territorial Force (that can be referred to, here) was made on the 26th of April, 1909, in the House of Lords, by Lord Lucas, speaking for the Government, in reply to questions as to "how many of the 315,000 men required to complete the Territorial Force had been enrolled up to date; how many of these now serving in the force were under 20 years of age; what was the lowest age at which they had been and were now accepted; and how many Territorials now serving had engaged for one year only." The answer was: "the strength of the Territorial Force on the first of this month was 8,938 officers out of an establishment of 11,267, or 79 percent.; 254,524 men out of a strength of 302,047; or a total of 263,462 out of an establishment of 313,314, which came out at 84 per cent. In answer to the second question he was sorry that they had not

got later particulars than October 1, 1908, but on that day there were 188,785 men on the strength of the Territorial Force of whom 62,288 were under 20. The answer to the third question was that the limit of age for men was 17, and for boys 14. In answer to the fourth, he could not give the noble earl the actual number of men serving at the present time for one year, but the figures he could give would make it pretty clear. They had last year 107,857 one-year men serving in the force—Volunteers who had transferred for one year. On April 1 last out of these 107,857 men 56,238 had already reengaged for one year or more. That was to say, that these men had signified their intention of re-engaging before their year was actually up."

Lord Roberts has no confidence in the efficiency of the Territorial Force, as a voluntary organization. In a letter read to the House of Lords on the 17th of May, 1909, when a motion expressive of this opinion was to be made and he found himself unable to attend and support it personally, he wrote:

"On July 10, 1905, I said that 'I have no hesitation in stating that our armed forces as a body are as absolutely unfitted and unprepared for war as they were in 1899-1900. Close upon four years have passed since then, and I have no hesitation in reaffirming my conviction.'"

Subsequently Lord Roberts introduced in the House of Lords a "National Service (Training and Home Defence) Bill," on which he spoke with great earnestness on the 12th of July. His Bill imposed on all male subjects the obligation of serving in the Territorial Force between the ages of 18 and 30, excepting officers of the Regular and Reserve Forces, naval and military, and some others; but subject to this and other modifications every person who came under the Bill would be in the same position as a person who voluntarily joins the existing Territorial Force. The liability to training would not extend over the whole term of service, but be limited to

four years. The Bill provided for absolute equality of treatment of all classes, no purchase of discharge or of exemption from service being allowed; but in the matter of training various exemptions were provided for.

The Bill encountered more opposition than support in the debate on it, and did not secure a second reading.

{695}

WAR, THE PREPARATIONS FOR:

British Army Reorganization.

Creation of a General Staff.

Result of the Report of the Esher Army Commission.

Work of the Defence Committee.

Speaking, in April, at the Imperial Conference of 1907, Mr. Haldane, the Secretary for War in the British Ministry, gave a brief but clear account of the reforms in the organization of the Army which had been in progress since 1904. "The effect of the war in South Africa," he said, "made a profound impression on the minds of our advisers here. We realized that we had gone into the war without adequate preparation for war on a great scale, and that we had never fully apprehended the importance of the maxim that all preparation in time of peace must be preparation for war; it is of no use unless it is designed for that; it is the only justification for the maintenance of armies—the preparation for war. In consequence, when the war was over, the then Government set to work—and the present Government has continued to work—to endeavour to put the modern military organization into shape. In 1904 a very important committee sat. It was presided over by a civilian who had given great attention to the study of military organization, Lord Esher, and it contained on it two very distinguished exponents of naval and military views, Sir John Fisher and Sir George Clarke, as its other members. The committee reported, and its report contained a complete scheme

for the reorganization of the War Office and of the Army. That scheme was adopted by the late Government and has been carried on by the present Government. One broad feature is this, that our naval organization has been the one with which we have been conspicuously successful in the history of this country, as distinguished from our military organization, and, therefore, as far as was possible, the naval organization was taken as a type. But the broad feature which emerged with regard to military preparations was this—Count Moltke was able to organize victory for the Prussian and German armies in 1866, and again in 1870, because he and the General Staff working under him were free to apply their minds wholly to war preparation. That he was able to do this was due to the fact that the organization and business administration of the Army in peace were kept entirely distinct from the service which consisted in the study of war problems and in the higher training of the Staff and of the troops. That was the principle recommended by the Esher Committee, and it culminated in the provision of a brain for the Army in the shape of a General Staff. That General Staff we have been at work on for a long time past in endeavouring to get together. The task was not as difficult as it seemed at first, because the effect of the war was to bring to the front a number of young officers who had shown remarkable capacity, and who constituted the nucleus of a serious and thoughtful military school. They were got together under the Esher reorganization, and virtually there has been a General Staff in existence for some time. But it was not until last September that it received formal and complete shape in the Army Order of that month."

Besides this fundamental reform, the Esher Commission pointed the way to other important changes or effective improvements in the administrative system of the Army. In place of the commander-in-chief, a new post, that of inspector-general, with a term of five years, was proposed, the principal duty of the office being to inspect and report on the efficiency of

the military forces. Earl Roberts had just retired from the position of commander-in-chief, and the Duke of Connaught became inspector-general under the new regime. The existing Defence Committee, instituted in 1902, was to be enlarged by the addition of a permanent secretary, holding office for five years; two naval officers, selected by the admiralty; two military officers, chosen by the Viceroy of India; and, if possible, other colonial representatives, holding office for two years.

Of the importance of this Defence Committee, and of its work, Prime Minister Asquith took occasion to speak recently in Parliament (July 29, 1909). "Under the present Government," he said, "during the four years we have been in office the full Committee constituted by my predecessor, and which has since rendered the same service to myself, has consisted of six Cabinet Ministers in addition to the Prime Minister—namely, the four Secretaries of State other than the Home Secretary, the First Lord of the Admiralty, and the Chancellor of the Exchequer. It has consisted next, as representing the Navy, of the First Sea Lord and the Director of Naval Intelligence, and as representing the Army the Chief of the General Staff and the Director of Military Operations; and in addition to these official members it has had the services and the coöperation of the Inspector-General of the Forces (Sir John French), who occupies an independent position; of Lord Esher, who is a great expert in all these matters; and latterly, at my nomination, Admiral Sir Arthur Wilson. That has been the composition of the full Committee, but from time to time we were able to add to it, and we ought to add to it, members *ad hoc*. ...

"The functions of the Defence Committee arise out of the necessity felt, I think, in almost all the great countries of the world, but which is nowhere so pressing as it is here owing to our geographical and economic conditions—the necessity of coordinating the work of the Navy and Army. It is

the primary business of the Defence Committee to study and determine what is the best provision that can from time to time be made for the military and naval requirements of the Empire as a whole, to keep both naval and military requirements, and their due relation to each other, constantly in view." Giving examples of the subjects which the committee had discussed, he said they had had under consideration the military needs of the Empire with reference to recent changes in Army organization; its military requirements as affected by the defence of India; the strategical aspects of the Firth of Clyde Canal; aerial navigation in view of the present and prospective developments; our policy in regard to the Channel tunnel and to the means of transit across the Channel; the standard of fixed defences and garrisons in various parts of the Empire, and the scale of reinforcements.

{696}

"In 1905 Mr. Balfour, who was then Prime Minister, made a statement of the highest importance in regard to the possibility of an invasion of these islands. Since then Lord Roberts had asked for a reinvestigation of the problem in the light of new facts and of the changed situation, and in 1907 a special committee of the Committee of Imperial Defence was appointed to go into the whole matter. In arriving at their conclusion the committee conceded to those who were apprehensive of invasion that it would take place when our Regular Forces were absent upon some foreign expedition and that the attack might be a surprise attack. The view unanimously arrived at was, in the first place, that as long as the naval supremacy of the country was adequately assured, invasion on a large scale, involving the transport of 150,000 men, was an absolutely impracticable operation. The committee held, on the other hand, that if we were permanently to lose command of the sea, whatever might be the strength and organization of our military forces at the moment—even if we had an army like that of Germany—the subjection of the country

by the enemy would be inevitable. It followed from this that it was the business of the Admiralty to maintain our naval supremacy at such a height as would enable us to retain command of the sea against any reasonably possible combination. The second conclusion arrived at was that we ought to have an Army for home defence sufficient in numbers and organization to repel raids and to compel an enemy who contemplated invasion to embark a force so considerable that it could not possibly evade our Fleet. The belief of the Admiralty was that a force of 70,000 men could not get through; but an ample margin must be allowed for safety, and it therefore became the business of the War Office to see that we had a force capable of dealing effectively with 70,000 men. For this country, then, to be secure against invasion we ought to have an unassailable supremacy at sea and a home Army ready to cope with a force of the dimensions he had named. It was upon these conclusions that both the military and naval policy of the country during his administration would be carried on."

Speaking in Parliament, in June, 1909, of the peculiar character and efficient quality of the Regular Army of Great Britain, Mr. Haldane, the Secretary for War, described it as "an Army of the kind which no other Power in the world possesses to the same extent as we do. It is customary," he said, "to speak of the small British Army; but what Power in the world has 80,000 white soldiers raised in their own country stationed in a country like India, and 40,000 in other parts of the Empire, and a further large force at home which is tending to increase—and more and more the overseas Dominions are tending to undertake their own defence? Now that force is not primarily for use at home, though it may be used for that; its real purpose is to work with the Navy overseas and to undertake wars there. The great armies of the Continent can only be mobilized for a limited time, and they cannot undertake wars which last for two or five or ten years, as ours can because it is a professional Army and leaves the resources of the nation unaffected. That kind of overseas Army

is a peculiarity of the military organization of this country, a peculiarity which is too often overlooked, but which is just as essential as the command of the sea."

WAR, THE PREPARATIONS FOR: German Emperor's Speech.

The following speech by the Emperor William was made at Karlsruhe, September 11, 1909, after a military review in Baden: "We Germans are a people glad to bear arms and proud of the game of war (*kriegsspielfreudig*). We carry the burden of our defence lightly and willingly, for we know that, we must preserve and maintain our peace in which alone our labour can prosper. At the review from which I have just come I have seen that portion of the warrior sons of our Fatherland which springs from the land of Baden. Today, under the command of their illustrious lord, they have given me the most complete satisfaction. So long as there are peoples there will be enemies and envious folk; and so long as there are enemies and envious folk it will be necessary to be on one's guard against them. Consequently there will continue to be prospects of war, and even war itself, and we must be ready for everything. Hence our army before all forms the *rocher de bronze* on which the peace of Europe is based and with which no one intends to pick a quarrel. It is to preserve this peace, to maintain the position in the world which is our due, that our army serves; this also is the aim of the strenuous days which are expected of it. But I am firmly convinced that it will stand its test successfully and that our German Fatherland may rest in confidence that we are on guard and that with God's help and under God's protection nothing will befall us."

MILITARY AND NAVAL;

WAR, THE PREPARATIONS FOR: British Imperial Defence Conference of 1909. Its Agreements for an Imperial System.

Compulsory Military Training contemplated in Australia.

In connection with the doubts that were awakened in Great Britain, and throughout the British Empire, in 1909, as to the adequacy of their general preparations for defence, the Premier announced in the House of Commons, on the 3d of May, that steps had "been taken to ascertain whether the Governments of the self-governing Dominions are prepared to favour a conference at an early date for the discussion of Imperial co-operation for defence. The Government had suggested, he said, that the conference should be held this summer—if possible, in July." The proposal was approved throughout the Empire, and delegates to the Conference from each of the self-governing Dominions came to London and held sessions with representatives of the Home Government, beginning on the 28th of July. The delegates in attendance were the following;

Commonwealth of Australia.—

Colonel J. F. Foxton, Minister without portfolio, assisted by Captain Creswell and Colonel Bridges, naval and military experts.

New Zealand.—

Sir Joseph Ward, Prime Minister and Minister of Defence.

Canada.—

Sir Frederick Borden, Minister of Militia and Defence, Mr. L. Brodeur, Minister of Marine and Fisheries, these Ministers being assisted by Admiral Kingsmill and General Sir Percy Lake, as naval and military advisers.

Newfoundland.—

Sir E. P. Morris, Prime Minister.

Cape Colony.—

Mr. J. F. X. Merriman, Prime Minister.

Natal.—

Mr. J. R. Moor, Prime Minister, assisted by
Colonel Greene, Minister of Railways.

The Transvaal.—

General J. C. Smuts, Colonial Secretary.

Orange River Colony.—

General Hertzog, Colonial Secretary.

{697}

The discussions of the Conference were unreported, but on the 26th of August, after its adjournment, the Premier, in a statement to the House of Commons, summarized its main conclusions as follows: "First as regards military defence: after the main Conference at the Foreign Office, a military Conference took place at the War Office, and resulted in an agreement on the fundamental principles set out in papers which had been prepared by the General Staff for consideration by the delegates. The substance of these papers, which will be included among the papers to be published, was the recommendation that, without impairing the complete control of the Government of each Dominion over the military forces raised within it, those forces should be standardized, the formation of units, the arrangements for transport, the patterns of weapons, and so forth, being as far as possible assimilated to those which have been recently worked out for the British Army. Thus while the Dominion troops would in each case be raised for the defence of the Dominion concerned, it would be made readily practicable in case of need for that Dominion to mobilize and use them for the defence of the Empire as a whole. The military Conference then entrusted to a sub-Conference, consisting of military experts at headquarters and from the various Dominions, and presided over by Sir William Nicholson, acting for the first time in the capacity

of Chief of the Imperial General Staff, the duty of working out the detailed application of these principles. I may point out here that the creation early this year of an Imperial General Staff thus brought into active working is a result of the discussions and resolutions of the Conference of 1907. Complete agreement was reached by the members of the sub-Conference, and their conclusions were finally approved by the main Conference and by the Committee of Imperial Defence, which sat for the purpose under the presidency of the Prime Minister. The result was a plan for so organizing the forces of the Crown wherever they are that while preserving the complete autonomy of each Dominion, should these Dominions desire to assist in the defence of the Empire, in a real emergency, their forces could be rapidly combined into one homogeneous Imperial Army.

"Naval defence was discussed at meetings of the Conference held at the Foreign Office on August 3, 5, and 6. The Admiralty memorandum which had been circulated to the Dominion representatives formed the basis of the preliminary conference. The alternative methods which might be adopted by Dominion Governments in co-operating in Imperial naval defence were discussed. New Zealand preferred to adhere to her present policy of contribution; Canada and Australia preferred to lay the foundation of fleets of their own. It was recognized that in building up a fleet a number of conditions should be conformed to. The fleet must be of a certain size in order to offer a permanent career to the officers and men engaged in the service: the

personnel should be trained and disciplined under regulations similar to those established in the Royal Navy, in order to allow of both interchange and union between the British and the Dominion services, and with the same object the standard of vessels and armaments should be uniform. A remodelling of the squadrons maintained in Far Eastern waters was considered on the basis of establishing a Pacific Fleet, to consist of three units in the East Indies, Australia, and the China Seas. ... The generous offer of New Zealand and then of the Commonwealth Government to contribute to Imperial naval defence by the gift each of a battleship was accepted with the substitution of cruisers of the new 'Indomitable' type for battleships, these two ships to be maintained one on the China and one on the Australian station. Separate meetings took place at the Admiralty with the representatives of Canada, Australia, and New Zealand, and general statements were agreed to in each case for further consideration by their respective Governments.

"As regards Australia, the suggested arrangement is that with some temporary assistance from Imperial funds the Commonwealth Government should provide and maintain the Australian unit of the Pacific Fleet. The contribution of the New Zealand Government would be applied towards the maintenance of the China unit, of which some of the smaller vessels would have New Zealand waters as their headquarters. The New Zealand armoured cruiser would be stationed in China waters. As regards Canada, it was considered that her double seaboard rendered the provision of a fleet unit of the same kind unsuitable for the present. It was proposed according to the amount of money that might be available that Canada should make a start with cruisers of the 'Bristol' class and destroyers of the improved 'River' class, a part to be stationed on the Atlantic seaboard and a part on the Pacific. In accordance with an arrangement already made, the Canadian Government would undertake the maintenance of dockyards at

Halifax and Esquimault, and it was a part of the arrangement proposed by the Australian representatives that the Commonwealth Government should eventually undertake the maintenance of the dockyard at Sydney. Papers containing all the material documents will be laid before Parliament in due course, and it is hoped before the conclusion of the Session."

In Australia and New Zealand there had been eagerness for some time to take a more effective part in the defence of the Empire, their remote position and their contiguity to swarming alien populations giving their people some special anxieties which are reasonable enough. They are lonely communities of Europeans, planted on the edge of the prodigious populations of the Asiatic world. They have learned suddenly that some, at least, of those populations can do things, in war and otherwise, that were supposed to be reserved especially for effective performance by the white variety of the human race. What disposition of mind will move the Eastern folk in the exercise of these powers of action—which are discoveries as new to them as to us—has yet to be learned. It is doubtful if they themselves know what the inclination of their career will be, when they have really digested the new contents of their minds and have fully surveyed their new position in the world. Meantime, Australia has good reason to think anxiously of what Japan certainly and China most probably can do, if they are moved by imperialistic ambitions to an aggressive career.

{698}

If anywhere in the British Empire there was reason for the lively stir of increased preparation for defence, it was Far East Australasia. New Zealand, in March, had put a heavy strain on its resources by offering to build a ***Dreadnought*** for the Imperial Navy, and Australia had followed quickly by the proffer of another. When, subsequently, these projects were superseded by the arrangement made at the London Conference, funds raised by

private subscription for the Australian *Dreadnought* were applied partly to the foundation of a naval college near Sydney for the training of officers of the Australian squadron, and partly to the establishment of at least two farms for the training of young British immigrants, who will be specially selected by the county colonization societies.

In acting promptly to realize the plans of military organization that were formed at the London Conference, Australia went far beyond anything that is likely to be done by any other of the British Dominions, unless it may be New Zealand; for that Commonwealth has undertaken to organize a system of compulsory military training. A Defence Bill introduced in the Federal Parliament on the 21st of September applies compulsory training to all males from the age of 12 to that of 20. "Junior cadets are to have annually 120 hours' physical drill, elementary marching, and practice with miniature rifles, for two years. Senior cadets will have 96 hours' annually, including four whole-day drills, elementary naval or military exercises, and musketry practice at ranges up to 500 yards, for four years. The citizen forces are to have 16 whole-day drills or their equivalent annually, including eight days in camp for two years. Those who are to undergo naval, artillery, and engineer training will have 25 days instead of 16. Males from the age of 20 to 26 will remain enrolled, attending only one muster parade each year. Exemptions will be made only on the ground of unfitness or in the case of persons of non-European descent. The latter, however, will be trained in non-combatant duties. Sparsely populated districts may be exempted temporarily. Persons failing to attend the training will be fined from £5 to £500 according to the culprit's wealth, or may be confined and trained till they have performed the duties they have shirked. Persons failing to reach efficiency must undergo another year's training. The cadet training begins in 1911, and the citizen training in 1912. When the scheme is in full working order it is estimated that it will provide 40,000 junior

cadets, 75,000 senior cadets, and 55,000 citizen soldiers under 21. The Militia, 25,000 strong, will thenceforth be recruited only from the fully-trained, and will become a corps d'élite."

On this subject of British imperial defence,

See (in this Volume)
BRITISH EMPIRE: A. D. 1909.

WAR, THE PREPARATIONS FOR:

New Zealand adoption of Compulsory Military Training.

An Act which establishes compulsory military training in New Zealand, on lines similar to that in Australia, passed the colonial Parliament during its session which closed December 29, 1909.

NAVAL:

WAR, THE PREPARATIONS FOR:

Brazil and Argentina in a "Dreadnought" Competition.

"The controversy between Brazil and Argentina about what is called 'equilibrium of armament' is still carried on with much animation in the Press of both countries, but apparently without producing any effect, good or otherwise. The subject of discord is the Brazilian Government's order for three large battleships of the 'Dreadnought' type, which is to be met by an Argentine triplet, for which tenders are urgently called. Fortunately these big ships take a long time to build, and by the time they are ready the Press will probably be commenting upon the *entente cordiale* in South America and the obsolescence of floating engines of war; but in the meantime taxpayers in both countries are inclined to support the somewhat daring proposal from Buenos Ayres that Brazil should keep the first 'Dreadnought,' cede the second to Argentina,

and cancel the order for the third."

***Rio de Janeiro Correspondent
London Times, December 22, 1902.***

Four months later the same correspondent telegraphed, May 3, 1909, among other statements quoted from the President's Message to Congress, that day: "In regard to the navy seven vessels would be launched under the new programme. Two-thirds of the total expenditure of £4,500,000 had already been paid from ordinary resources, and this proved that the reorganization of the navy would not be disastrous to the national finances. Tenders would shortly be invited for the construction of a new dry dock."

WAR, THE PREPARATIONS FOR:
British Navy War Council.

The following is from an official statement issued by the British Admiralty, October 11, 1909: "In further development of the policy which has actuated the Board of Admiralty for some time past of organizing a Navy War Council, it has been decided to place on an established footing the arrangements made in previous years for the study of strategy and the consideration and working out of war plans. A new department, called the Naval Mobilization Department, has been formed under the directorship of a flag officer, and there is concentrated in it that part of the business of the Naval Intelligence Department and the Naval War College which related to war plans and mobilization. Under the presidency of the First Sea Lord, the officers directing the Naval Intelligence Department and the Naval Mobilization Department, and the Assistant Secretary of the Admiralty will form the standing Navy War Council."

WAR, THE PREPARATIONS FOR:
The British "Two Power Standard."

During the debate in the British House on the Navy Estimates, in the spring of 1909, the Premier, Mr. Asquith, was called on by the Opposition to define the Government's understanding of the requirements of the "two Power standard" of naval strength, so called (see above). In reply, he laid it down that in dealing with this standard they must not merely take into account the number of Dreadnoughts and Invincibles, but the total effective strength of the British for defensive purposes as compared with the combined effective strength of any two other navy Powers. That was the two-Power standard as understood by successive Administrations, and the present Government had in this matter in no way changed the policy pursued by preceding Administrations. For the moment this question was an academic one, because whatever two Powers might be selected, their combined effective strength for aggressive purposes against Great Britain was far below the defensive strength of the latter. The expression "two-Power standard" was a purely empirical generalization, a convenient rule of thumb, and he should be very sorry to predict that this formula would be an adequate or necessary formula some years hence.

{699}

In measuring the combined effective strength of the two next strongest fleets the power of one powerful homogeneous fleet ought to be borne in mind. Further it had been established that the rule only applied to battleships and ships ejusdem generis. Then in existing conditions "we ought not," he said, "to limit our vision to Europe alone; but at the same time, while considering the combined effective strength of any other two Powers for aggressive purposes against this country regard should be had to geographical conditions." Supposing China had a fleet of Dreadnoughts, no rational Minister would treat that fleet as standing upon the same footing for the purpose of the two-Power standard as the German or French fleet. In the same way, the fleet of the United States could not be put in the same category with the fleets of France and Germany.

WAR, THE PREPARATIONS FOR:

Canadian Share of the Undertakings of British Imperial Defence.

For performance of the share assumed by Canada, of undertakings of British imperial defence agreed to at the Imperial Conference in London, July, 1909 (see above), Sir Wilfrid Laurier brought forward a Bill in the Dominion House of Commons, on the 12th of January, 1910, the essential provisions of which he set forth in a speech from which the following passages are taken:

"The bill is entitled 'An act respecting the naval service of Canada.' It provides for the creation of a naval force to be composed of a permanent corps, of a reserve force, and of a volunteer force on the same pattern absolutely as the present organization of the militia force. ... Every man who will be enrolled for naval service in Canada will be enrolled by voluntary engagement. There is no compulsion of any kind, no conscription, no balloting. ... 'Active service' as defined by the act means service or duty during an emergency, and emergency means war, invasion or insurrection, real or apprehended. The act provides also that at any time when the Governor in Council deems it advisable, in case of war, invasion, or insurrection, the force may be called into active service. There is also an important provision that while the naval force is to be under the control of the Canadian Government, and more directly under the control and administration of the Department of Marine, yet in case of emergency the Governor in Council may place at the disposal of his Majesty for general service in the Royal Navy the naval force or any part thereof, and any ships or vessels of the naval service and any officers or men serving on these vessels, or any officers or men of the naval service. There is a subsequent provision that if action is taken by the Governor in Council at a time when Parliament is not sitting, Parliament shall immediately be called. ...

"Another important provision of the bill is that it provides for the establishment of a naval college on the pattern of the Military College now in existence at Kingston."

Coming to a statement of the armament contemplated, the Premier said: "Two plans were proposed and discussed, one involving the expenditure of \$2,000,000 a year and the other involving an expenditure of \$3,000,000. The first one would have consisted of seven ships, the second one would have consisted of eleven ships, namely—four Bristols, one Boadicea, and six destroyers. We have determined to accept the second proposition, that is to say, the larger one of eleven ships. That is the force which we intend to create, and to start with four Bristols, one Boadicea and six destroyers. Perhaps it will be interesting to the House to understand what is meant by a fleet unit, by a Bristol, a Boadicea, and a destroyer. The fleet unit, which was suggested and which has been accepted by Australia, and to which the government contributed a certain sum per annum, is to be composed of one armored cruiser of the type of the Indomitable, three protected cruisers, six destroyers and three submarines. Now the fleet which we have agreed to accept is to be composed of four Bristols, one Boadicea, and six destroyers.

"A Bristol is a protected cruiser, which means that it has a steel deck which protects all the vital parts of the ship. It has a tonnage of 4,800 tons, with a speed of 25 knots. The number of guns has not yet been determined, but the largest Indomitable carries eight guns. A Boadicea carries six guns, so that it is probable that the number of guns will be eight. It has a total crew of 391 men, of which twenty are officers. The Boadicea is an unarmored cruiser, with a tonnage of 3,300 tons, and carries six 4-inch guns. It has a crew of 278 men, of whom seventeen are officers. We are to build six destroyers of what is known as the improved river class. ...

"The total cost of these eleven ships will be, according to the British figures, £2,338,000, or a little more than \$11,000,000. According to Canadian prices, supposing the ships were to be built in Canada, we would have to add at least 33 per cent, to the cost just given. I may say that it is our intention to start at the earliest possible moment with the construction of this fleet, and, if possible, to have the construction done in Canada."

The leader of the Opposition, Mr. Borden, who spoke after Mr. Laurier, endorsed fully the purpose of the Bill, but criticised the proposals of the Government as being inadequate. "They are," he said, "either too much or too little. They are too much for carrying on experiments in the organization of a Canadian naval service; they are too little for immediate and effective aid, and it seems to me that the policy of the Government will be attended with a very great waste of money, with no immediate effective result."

The Bill embodying the naval programme of the Government, as set forth by the Prime Minister, was enacted on the 11th of March, 1910, by 119 votes to 78.

WAR, THE PREPARATIONS FOR: Chilian Navy-building.

It was reported from Santiago de Chile to the English Press, October 21, 1909, that "the Government has decided upon a naval expenditure of £4,000,000, which includes a 20,000 ton battleship, two ocean-going destroyers, and several submarines. Instructions for tenders have been sent to the Commission in London." A later message to the American Press, November 12, stated that "the naval building programme decided upon by the Chilian government, provides for the construction of one battleship, four torpedo boat destroyers, and two submarines at an expenditure of \$14,000,000."

{700}

WAR, THE PREPARATIONS FOR:

The Chinese Programme.

A Press message from Peking, October 11, 1909, announced that a naval commission, consisting of Prince Tsai-hsun, the Regent's brother, Admiral Sa Chen-ping, and Sir Chen Tung Liang Cheng, who was secretary to the Special Chinese Embassy to the Diamond Jubilee celebrations in 1897, left that day for Europe. This was understood to be the first step toward the fulfilment of China's programme for the expenditure of £40,000,000 on the rehabilitation of her army and navy.

WAR, THE PREPARATIONS FOR:

Denmark's Fortification and Naval Defense.

See (in this Volume)

DENMARK: A. D. 1905-1909.

WAR, THE PREPARATIONS FOR:

The "Dreadnought" Era.

Outclassing of all Battleships built prior to 1906.

The New Type.

Effects of its Introduction.

The evolution of sea-fighting monstrosities received a startling and revolutionizing impulsion in 1906, when a new ***Dreadnought*** (replacing an obsolete battleship of that name) was added to the British navy. In size, plan and armament it embodied naval teachings just taken from the Russo-Japanese War, and was supposed to put every other existing battle-ship into an inferior second class. It brought suddenly a new standard into all comparative measurements of naval power, impairing seriously the worth of the costly monsters then afloat. It signalled, in fact, a start for entirely new racing among the competitors for "sea-power,"

since the prizes of substantial fighting efficiency among the navies must all be won over again, by the quickest builders of the ***Dreadnought*** type of ship. England had more reason than any other nation to lament this happening, and her Lords of the Admiralty have been sharply criticised for bringing it about; though the new type of battle-ship would have had creation elsewhere (as still newer types of monstrosity are being created already) if English naval architects had not produced it. Even Admiral Lord Charles Beresford has lashed the naval authorities of his country for bringing on the ***Dreadnought*** craze. In a speech at London within the past year he said that "he did not object to Dreadnoughts or improvements in battleships; what he did object to was the advertisement connected with the first Dreadnought. Then they had told another nation that that ship would sink the whole of its fleet, and the result was that that nation set to work upon a definite naval programme of its own. Having given that insane advertisement of their Dreadnought, the British delayed ship-building with the inevitable result that they would have to pay a great deal more than if they had kept up their yearly proportion of ships. The command of the seas was their life, and he believed that they would have to spend £50,000,000 more than they need have spent through that insane advertisement. It would be absolutely impossible for Great Britain alone, under present conditions, to keep up the two-Power standard, and if there were no other alternative, there could only be the prospect of bankruptcy or defeat; but the two-Power standard could easily be kept up with an Imperial Navy."

Similar criticism appeared in a pamphlet published last year by Mr. Carnegie; and when his attention was called to the fact that both Japan and Russia had bigger ships than the ***Dreadnought*** on the stocks before the latter was begun, he wrote:

"Britain, having so much larger a Navy compared with any other Power or compared with several other Powers together, should

have adopted the policy of waiting before building a type that rendered most of her ships ineffective. She had nothing to fear from Japan, Russia, nor the United States, and could easily have overtaken Germany if Germany began building the new type. Britain made such a noise about the Dreadnought as to attract the attention of the whole world."

The following account of the ***Dreadnought*** and of the interest she had excited in naval circles appeared in a prominent technical magazine while the building of the ship was in progress:

"Not for many years has the building of a man-of-war excited such wide-spread interest as that of H. M. S.

Dreadnought. In many respects this ship has assumed a sensational character; she is the largest vessel ever constructed for any war fleet; she was the first to be commenced after the recent great struggle in the Far East; her design, which embodies many new features, has hitherto been kept an official secret, and the work of construction has been pressed forward with so much success that it is hoped she will be in commission within fourteen months of the laying of the keel plates. All these facts have contributed to arouse curiosity, particularly as it is well known that British naval attaches were accorded special privileges by the Japanese and were enabled to watch the progress of the war to greater advantage than the representatives of other powers. Consequently, from the day when the first whispers of the coming of the ***Dreadnought*** were heard, an unusual amount of interest has been taken in this ship, not only in the United Kingdom, but in foreign countries, and the influence of the design may be traced in the new programmes of several rival Powers. ... The essential feature of the ***Dreadnought*** which distinguishes her from all battleships now in commission in the world's fleets is that she is of huge size and mounts only one type of gun for use in line of battle, instead of three types, as in the 'King Edward

VII.' class.

"The war between Japan and Russia conclusively showed that the intermediate armament carried by the vessels flying European flags was not effective at modern battle ranges. Even on the partial evidence obtained by the French authorities it has been calculated that the effective ranges for battle have been raised from 3000 yards to 7000 or 8000 yards. Careful calculations show that at such a distance the striking power of 7.5-inch and 6-inch guns, which have been the favourite intermediate weapons in the British Navy hitherto, are comparatively useless. ... It is understood that originally the ***Dreadnought*** was to have carried twelve guns of the 12-inch type, but difficulties arose in working out the design, and it was eventually decided to drop out two of these weapons in order to mount effectively ten pieces of this colossal striking power, so as to enable eight of them to fire on the broadside, six ahead and four astern, without endangering either the stability of the ship or running any undue risks owing to the blast. ... With a broadside of eight 12-inch guns, the ***Dreadnought*** is equivalent to any two battleships built for the British fleet prior to the construction of 'King Edward VII.,' and yet her total cost, complete with guns, will be only £1,797,497, while the ships of the 'King Edward VII.,' class, carrying only four 12-inch guns and the same number of 9.2-inch guns, represent an outlay of just under a million and a half sterling."

Cashier's Magazine,
June, 1906.

{701}

The steadily increasing sine of the ***Dreadnought*** ships is shown in the following, reported from Portsmouth, England, September 30, 1909: "Since the launch of the ***Dreadnought*** by the King in February, 1906, each

successive ship which has taken the water at Portsmouth has exceeded her predecessor in size. The weight of the *Neptune*, successfully floated by the Duchess of Albany to-day shows an advance of no fewer than 1,500 tons upon that of the vessel launched by his Majesty; and of 500 tons over that of the St. Vincent, the preceding battleship on the building slip. The ship which is to be laid down next month will probably far exceed the dimensions of the *Neptune*."

WAR, THE PREPARATIONS FOR:

England and Germany.

Their "Dreadnought" Building Compared.

The Question in the British Parliament and the Hysteria in the Country.

An exciting period of debate in Parliament and of discussion throughout Great Britain was opened on the 17th of March, 1909, when the Navy estimates for the coming year were submitted to the House of Commons. In his speech on bringing forward the Estimates, which contemplated an expenditure of £35,142,700, being nearly £3,000,000 in excess of the expenditures of the current year, the First Lord of the Admiralty, Mr. Reginald McKenna, explained the reasons for the increase at length, saying in part: "We cannot take stock of our Navy, and measure our requirements except in relation to the strength of foreign navies. I am, therefore, obliged to refer to foreign countries in making estimates of our naval requirements. Several of the Powers are rapidly developing their naval strength at this moment; but none at a pace comparable with that of Germany. If in what I have to say now I select that Power as the standard by which to measure our own requirements, the House will understand that I do so only for what may be called arithmetical purposes, and without presuming upon the expression of any feeling or opinion of my own—except it be one of respectful admiration for administrative and professional efficiency. ...

"When the Estimates were presented to Parliament a year ago we had seven battleships of the Dreadnought class and three cruisers of the Invincible class, either afloat or in process of construction. The whole of these were due for completion by the end of 1910. At that time Germany was building four Dreadnoughts and one Invincible, of which two Dreadnoughts were expected to be completed by the end of this year, and the remaining three ships in the autumn of 1910. Thus, at that time, we had a superiority in these classes of ships of ten to five in course of construction, with the additional advantage that the whole of ours were expected to be completed some months in advance of the last three of the German ships. The new German Fleet Bill had at that time become law, and according to our interpretation of its provisions three Dreadnoughts and one Invincible would be laid down in the course of the year 1908-1909. The financial provisions of that Bill were such as to lead us to the opinion that no work would be commenced upon these four ships until the month of August last year, and that they would not be completed before February, 1911. This time last year, therefore, we had to contemplate five German ships under construction, three of which would be completed in the autumn of 1910 and four more ships to be commenced about August, 1908, and commissioned in February, 1911. In view of this state of affairs this House of Commons last year approved of a programme of two large ships to be laid down at such a time as would give to this country a total of 12 of these new ships, as against a possible completed German total of nine. In the face of last year's programme no one could with any fairness charge this Government with having started upon a race of competitive armaments. By example as well as by precept we sought to check the rapid rate of shipbuilding. We failed. ...

"The difficulty in which the Government find themselves placed at this moment is that we do not know—as we thought we did—the rate at which German construction is taking place. We know

that the Germans have a law which, when all the ships under it have been completed, will give them a navy more powerful than any at present in existence. We know that, but we do not know the rate at which the provisions of this Act are to be carried into execution. We now expect that the four German ships of the 1908-1909 programme will be completed, not in February, 1911, but in the autumn of 1910. I am informed, moreover, that the collection of materials and the manufacture of armaments, guns, and gun-mountings have already begun for four more ships which, according to the Navy Law, belong to the programme of 1909-1910. Therefore we have to take stock of the new situation, in which we reckon not nine but 13 German ships may be completed in 1911, and in 1912 such further ships, if any, as may be begun in the course of the next financial year, or laid down in April, 1910. We may stop here and pay a tribute to the extraordinary growth of the power of constructing ships of the largest size in Germany. Two years ago, I believe, there were in Germany, with the possible exception of one or two slips in private yards, no slip capable of carrying a Dreadnought. To-day they have actually no less than 14 such slips and three more under construction. And what is true of the hull of the ships is true also of the guns, armour, and mountings. Two years ago any one familiar with the capacity of Krupp's and other great German firms would have ridiculed the possibility of their undertaking the supply of all the component parts of eight battleships in a single year. To-day this productive power is a realized fact, and it will tax the resources of our own great firms if we are to retain the supremacy in rapidity and Volume of construction.

{702}

"Having said so much on foreign naval development, I turn to our own programme of construction. As I have said, we shall have in March, 1911, eight completed Dreadnoughts and four Invincibles. We propose to lay down two more Dreadnoughts in July of this year, and the terms of the contracts will provide

that they shall be completed in July, 1911. ... Two more ships will be laid down in November this year, to be completed in 1911, and in that year our total strength in Dreadnoughts and Invincibles will be 12 of the former and four of the latter. The date, however, which we have to bear in mind is that up to which the present programme must provide—April, 1912. I have shown that we shall in the course of 1911 have 16 of these modern ships, as against 13 ships for which Germany is already making provision. The German law provides for four more ships to be laid down in 1910-1911. But if the construction of these ships is accelerated—as I understand was the case of the four ships of the 1909-1910 programme—they would be completed by April, 1912. Therefore on that date Germany would have 17 Dreadnoughts and Invincibles. But even if no acceleration takes place before April, 1910, this number would be completed in the autumn of 1912. This is a contingency which his Majesty's Government have to take into account.

"We cannot afford to run risks. If we are to be sure of retaining superiority in this by far the most powerful types of battleships, the Board of Admiralty must be in a position, if the necessity arises, to give orders for guns, gun-mountings, armour, and other materials at such a time and to such an amount as will enable them to obtain delivery of four more large armoured ships by March, 1912. We should be prepared to meet the contingency of Germany having 17 of these ships in the spring of 1912 by our having 20, but we can only meet that contingency if the Government are empowered by Parliament to give the necessary orders in the course of the present year. I can well imagine that this method of calculating in Dreadnoughts and Invincibles alone may seem unsatisfactory, and even unfair to many persons. They may say: 'What has become of the Lord Nelsons, the King Edwards, the Duncans, and the Formidables and the earlier battleships on which our naval superiority has been so constantly reckoned? Is no account to be taken of our powerful fleet of armoured cruisers, numbering no less than 35?' Yes; the Board of

Admiralty have not forgotten these ships. They still constitute a mighty fleet. The Dreadnought has not rendered them obsolete, and many of them would give a good account of themselves in the line of battle for many years to come. But, though they have not been rendered obsolete by the Dreadnoughts and the Invincibles, yet their life has been shortened. ... A battleship must be regarded as a machine of which the output is fighting capacity. All improvements in the designs of ships which increase the fighting capacity necessarily shorten the life of earlier battleships just as in the case of any other machine. The greater the value of the improvements, the sooner the earlier ships become obsolete."

Mr. McKenna's reckoning of the comparative numbers of Dreadnoughts that Great Britain and Germany would have in 1912 was challenged at once by the leader of the Opposition, Mr. Balfour, who said: "On the two-years' basis of building we shall in December, 1910, as I calculate, have ten, and only ten, Dreadnoughts. But the Germans at that date, as I calculate, will have 13. That assumes, of course, that I am right in stating, and I do not think I shall be contradicted, that the Germans anticipated their programme by four months. If you work that out, and assume that the German ships begun last November, in anticipation by five months of the ordinary date, are completed in two years, then you will find that I am not wrong in saying that in December, 1910, we shall have only ten Dreadnoughts and the Germans will have 13. That danger period in which, according to my calculation, the ratio of British to German Dreadnoughts is as ten to 13 extends, on the basis of two years' building, from December, 1910, to the end of March, 1911. On April 1, 1911, the Germans, as I understand it, will have only 13 and we shall have raised our number to 12. We should still, therefore, on April 1, 1911, according to my calculation, have one less than the Germans, and that period of what I might call the 12 British to 13 Germans will last until July, 1911. Then we shall have 14; but in the meanwhile the Germans, if they build their four ships this

year, in addition to the anticipated ships they laid down in November, will have 17, as I understand. We should still have 14 in July, 1911, but the Germans would, as I make out, have 17."

Mr. Balfour contended that the four ships which, according to the German programme, were to be laid down on the 1st of April coming (1909) had been actually laid down in advance of that time. He had information to that effect; whereas Mr. McKenna was informed that materials for them had been collected in advance, but that the construction was not begun. Mr. Balfour contended stoutly for the correctness of his own information, and argued: "If they [the four battleships supposedly waiting to be laid down April 1, 1909] were laid down in November, as I believe, that means that the Germans laid down eight Dreadnoughts last year. They may lay down no Dreadnoughts this year, and they may say, 'We anticipated our four ships for 1909-1910; we anticipated them by laying them down in November; we have no ships for this financial year.' But there are two other things to remember. Having laid down eight ships last year, they may lay down four ships this year, or they may lay down eight ships this year. That the capacity of their yards and their great engineering shops renders that process perfectly feasible no one now doubts. ... If the Germans go on at that rate, which is more than possible, the probability is that they will have on April 1, 1912, 21 Dreadnoughts to our 20. The hypotheses, then, are these, and I want to make it clear to the Government and to the House:—Eight Dreadnoughts have been laid down in 1908 by Germany. If four are laid down in 1909, there will be 17 on April 1, 1912; if eight are laid down—as eight have been laid down last year—there will be 21 on April 1, 1912, to our 20; and if the Germans imitate the policy of the present Government and lay down not only their eight in the financial year, but begin a new group of four when the Government propose their group of four, on April 1, 12 months hence, they will then have 25."

Over this difference of information as to the facts of German Dreadnought-building, and consequent differences of conclusion, controversy raged throughout the kingdom for weeks. The Prime Minister, Mr. Asquith, tried unavailingly to moderate the impeachment of German good faith in the matter. "It is fair and right to the German Government that I should say," he remarked, "that we have had a most distinct declaration from them that it is not their intention to accelerate their programme (cheers) and we cannot possibly, as a Government, believing as we do most explicitly in the good faith of those declarations (cheers), we cannot possibly put before the House of Commons and Parliament a programme based on the assumption that a declaration of that kind will not be carried out. Be it observed—I want to be very careful in the language I use about this—I am not saying that it is a pledge in the sense of an agreement between the two countries. Nothing of the kind. I should not accuse the German Government of anything in the nature of bad faith if they altered their intention. We have been told by them expressly and explicitly that that is their intention, an intention not to accelerate, or in other words not to do what the right honourable gentleman contemplates, when he credits them with the intention possibly of doing—namely, of laying down as many as eight ships in one financial year. It is impossible in framing these Estimates to do so while at the same time ignoring that declaration from the German Government, and that is why I say in taking this power to lay down if need be four ships on April 1 next year we are making such provision as prudence shows to be necessary for all the contingencies which we can reasonably anticipate at the present moment."

At the same time, Mr. Asquith made a statement of importance in reply to the question, Why should there be an increasing competition in naval expenditure between these two countries? "The question," he said, "has been raised by us, the British

Government, more than once, with a view to ascertaining whether any proposal for a mutual reduction of expenditure for naval purposes would be accepted by the German Government, but we have been assured more than once, and in the most formal manner, that their naval expenditure is governed solely by reference to their own needs, and that their programme does not depend upon ours. That is the statement which has been made to us. They tell us quite plainly that if we build 100 Dreadnoughts we must not assume that they would add to their naval programme, and, on the other hand, if we built no Dreadnoughts at all they would go on with their programme just as it is. If that is so, it is perfectly clear that there is no possibility of an arrangement for mutual reduction. I regret it very much, but I do not complain. The Germans, like every other nation, are the best judges of their own national requirements and necessities."

As will have been learned from Mr. McKenna's statement, quoted above, the Government desired authority to begin construction of two new Dreadnoughts in July and two in November, 1909, with contingent authority in addition to give orders during the year for four more, if reasons for doing so appeared. This did not satisfy the Opposition, which insisted that not less than eight the new type of battle-ships should be built outright; and a veritable panic of public excitement on the subject of German designs against England was created in the country, by the combined agency of speech and press and the melodramatic stage. The Government was so little shaken by the clamor that a motion of censure on its "declared policy" in the matter was defeated in the House of Commons by a majority of 218. Nevertheless, on the 26th of July, Mr. McKenna made the following announcement of a modification in its naval programme:

"After very anxious and careful examination of the condition of shipbuilding in foreign countries the Government have come to the conclusion that it is desirable to take all the

necessary steps to ensure that the second four ships referred to in this year's programme should be completed by March, 1912. They propose to take all the necessary steps in the way of preparation of plans, getting out of specifications, invitations to tender, and, finally, the giving of orders which will procure the delivery of these ships at the time I have named. As was said in the month of March, there will be no need to lay the keels of these ships in the course of the present financial year. It will be quite time enough if the keels are laid in the month of April next. ...

"The examination of the state of foreign shipbuilding programmes to which I have referred is bound to lead in the minds of most members of the Committee to the conclusion that the Government had no other course open to them. The Committee had stated to them last March very amply what was the condition of foreign shipbuilding up to that date. Since then the development of shipbuilding in foreign countries has gone on apace. Two countries, Italy and Austria, have now declared a definite programme of four large armoured ships of the latest type. In Italy one of those ships is already laid down, a second is to be laid down immediately, and the remaining two are both to be laid down in the course of the present year. With regard to the Austrian programme, sceptics might say they would never believe in it until, as in the case of Italy, they saw the keels actually laid down, but the fact is every earnest has been given of the determination of the Austrian Government, and two large slips have been prepared for the construction of battleships of the largest type."

WAR, THE PREPARATIONS FOR:

The English Naval Programme for 1910.

"The navy estimates for 1910, which were issued by the British Admiralty last night, provide for an expenditure of \$203,000,500, [thousands digits, "000", obscured and unknown] an increase of \$27,805,000 over 1909. The increase is almost

wholly taken up by shipbuilding armaments authorized by Parliament before dissolution. The new programme provides for five large armored ships, five protected cruisers, twenty destroyers, and a considerable number of submarines. By April 1 there will be under construction seven battleships, three armored, nine protected, and two unarmored cruisers, thirty-seven destroyers, and nine submarines."

New York Evening Post,
March 10, 1910.

{704}

WAR, THE PREPARATIONS FOR:
The French Naval Administration.
Alarming discovery of Bad Conditions.

France was greatly startled and shocked in March, 1909, by rumored scandals in naval administration, uncovered by the investigations of a Parliamentary Commission, but not yet officially made known. The report of the Commission was not published until late in June, and when it appeared it confirmed, not the worst of the state of things which rumor had described, but enough to show an alarming and unsuspected weakness of the nation on that side of its armament for war. From the conclusion of the elaborate report a few translated passages will suffice to indicate some of the conditions it brought to light. In this final summary, the Commission states that the testimony submitted by it establishes, among other facts, the following:

"That during the last ten years Parliament has been asked to authorize the construction of ships for which in most cases the plans have not been definitely (*sérieusement*) fixed; that months, and most generally years, elapsed between the different contracts for the essential parts of the ships, the hulls, the turrets, the boilers, &c., entailing

considerable loss of time and of money ...; that numerous and important changes were introduced in the course of construction, ... changes the chief inconvenience of which, apart from the increase of expenditure and the retardation of construction, is to impair that homogeneity which is the supreme quality of a squadron; that most of these defects are aggravated in the case of the six battleships of the Danton type, the original contract for which, signed at the end of December, 1906, has undergone hundreds of modifications which must now be placed on a proper basis. ...

"That the arsenals are not at present in a state to carry out with the rapidity which is desirable new constructions and repairs; that the mechanical equipment is in general inadequate and out of date; that the abolition of piece-work, which has coincided with a reduction of working hours and the diminution of the powers and authority of the superintendents in charge, has resulted in a considerable lessening of production; and that lack of material sometimes entails a stoppage of work. ...

"That the four divisions of battleships and the cruiser division of the Mediterranean Squadron have not the regulation supply of steel shells, that the two divisions of armoured cruisers of the Northern Squadron have only one-third of their proper supply of steel shells, and that for both squadrons the stores for renewing their supplies of steel shells are not ready.

"That the various branches of the administration are wanting in unity of views and purpose, in method and in defined responsibility, and that neglect, disorder, and confusion too frequently prevail. ...

"In view of the fact that only a small part of the scheme of 1901 for modernizing ports and (lock yards in accordance with the requirements of the construction programme of 1900 has

been executed, and in view of the total failure to provide docking accommodation for the large battleships of the Danton class, the Commission invites the Chamber to censure the want of foresight and the indifference which these lamentable discoveries disclose."

WAR, THE PREPARATIONS FOR:

French Naval Programme revised in 1909.

Radical Changes in the Department of the Marine.

A despatch from Paris, June 8, 1909, announced:

"According to the *Temps* this evening, the Navy Council has finally decided to recommend that, in addition to 45 ships of the line, the fleet shall consist of 12 'scout cruisers,' 60 large destroyers, and 64 submarines. The importance attached to an increase in the number of capital ships, which is the chief feature of the new proposals, is illustrated by a comparison with the so-called 'programmes' of 1900 and 1907. In 1900 it was decided on paper that the fleet should consist of 28 battleships, 24 armoured cruisers, 52 destroyers, 263 torpedo-boats, and 38 submarines or submersibles. In 1907 the composition of the fleet was changed to 38 battleships, 20 armoured cruisers, six scouts, 109 destroyers, 170 torpedo-boats, 82 submarines for offensive purposes, and 49 defence submarines.

"A comparison of these three 'programmes' shows an increase in the number of capital ships and destroyers, the abolition of armoured cruisers as a separate class and of torpedo-boats in favour of destroyers, and a decrease in the number of submarines. With regard to the existing armoured cruisers, which the Navy Council no longer regards as efficient fighting units, it may be noted that two out of the four 14,000-ton Gambettas have not yet been completed. Given the age limit of armoured ships as fixed at 20 years, only the six Danton and the six République battleships would still figure on the

effective list by 1925. In other words, 33 armoured ships would have to be completed during the next 16 years. In addition, 12 scout cruisers would have to be constructed, and, besides a number of submarines, over 100 destroyers would have to be laid down, since the life of this class of vessel is fixed at 17 years."

On the 29th of July the Paris correspondent of the London **Times** wrote: "It is semi officially announced this evening that the Council of Ministers at its meeting to-day approved a number of radical changes proposed by the new Minister of Marine, among the higher ranks of the **personnel** of the naval administration. All the heads of departments at the Ministry of Marine appointed under the old regime have been removed and their places have been filled by Admiral Boué de Lapeyrère's own nominees. So complete a reconstruction of a public department is without precedent in modern French history. These changes, moreover, are supplemented by a number of new appointments in the commands afloat."

On the first of April, 1910, it was announced from Paris that the Chamber of Deputies had voted to lay down two battle-ships in the current year, designed to equal the latest type added to the navies of Great Britain and Germany.

WAR, THE PREPARATIONS FOR:

French Naval Administration.
Parliamentary Investigation.

See (in this Volume)
FRANCE: A. D. 1909 (MARCH-JUNE).

{705}

WAR, THE PREPARATIONS FOR:

The German Emperor's Statement of his Peace Policy based

on Preparation for War.

In the spring of 1905, speaking at Bremen, on the unveiling of a monument to his father, the Emperor made an impressive statement of his motives in striving for the creation in Germany of a great naval and military power. He said that in boyhood he had been angered at the weakness of the German navy, and that his policy had sprung from that feeling, not directed toward aggression, but to the command of respect from the rest of the world. His aim was to "do everything possible to let bayonets and cannon rest, but to keep the bayonets sharp and the cannon ready, so that envy and greed shall not disturb us in tending our garden or building our beautiful house." "I vowed," he said, "never to strike for world-mastery. The world-power that I then dreamed of was to create for the German Empire on all sides the most absolute confidence as a quiet, honest, and peaceable neighbor. I have vowed that if ever the time comes that history shall speak of a German world-power, or a Hohenzollern world-power, this should not be based upon conquest, but should come through the mutual striving of nations after common purposes."

It is not difficult to believe in the perfect truthfulness of this assertion of high motives, and the perfect sincerity with which they have been obeyed, while seeing at the same time how much, in their working, they have threatened the peace of the world. As the power of Germany has grown under his hand, the Kaiser has been tempted more and more to impose his will on neighbors whose cannon were not as ready or their sharpened bayonets as many as his. The world-power of his desire has become more and more a dictatorial power. The peace he has preserved by it has been peace on his own terms, more than once. The result has been to excite throughout the world such a feeling of being menaced by war as had not been known since Napoleon's day, and to impel among nations, big and little, a more feverish and competitive arming for war than ever busied them before. As worked out by the man, the Kaiser's policy of

peace-making by the tools of war has certainly lost the innocence it had when conceived by the boy.

WAR, THE PREPARATIONS FOR:

The German Side of the Navy-building Question.

When, in March, 1909, debate on the Navy Estimates in England started excitement over the rapidity with which Germany seemed to have developed the building of Dreadnoughts, Chancellor Bülow, on the 29th of that month, said in the Reichstag: "The Federated Governments entertain no thoughts of entering into competition with British sea-power by means of the construction of the German navy. According to the provisions of the Navy Law, the immovable purpose of German naval policy is founded upon the fact that we desire to create our naval armaments solely for the protection of our coasts and our trade. It is, moreover, an indisputable fact that the programme of our naval construction lies open in absolute publicity. We have nothing to keep secret, nothing to hide, and it is not intended to accelerate the carrying out of our construction programme beyond the limits of time contemplated by the law (*über die gesetzliche Frist hinaus zu beschleunigen*). All rumours to the contrary are false. In the autumn of 1912, at the earliest, we shall have ready for service the 13 large new ships, including three armoured cruisers, provided by law."

This statement was supplemented by one from Admiral Tirpitz, who said:

"Now, as previously, we build all ships in about 36 months—about 40 months in the small yards. To that period are added trials, which last for several months. Equally inaccurate is the assertion that, with a view to more rapid construction, the contracts for the newer ships are placed sooner than is allowed by the estimates. All that is true is the following: Subject to approval by the Reichstag, contracts for two ships

of the 1909 financial programme were last autumn promised to two private yards at comparatively low prices. This was done because there was a danger that, if orders for four ships were placed at the same time at the beginning of 1909 there would be a considerable advance in price. If orders for two ships were already placed the Imperial Navy Office was in a much more favourable position for placing orders for the other two. We can put the Imperial yards into competition with the private yards. The Imperial yards cannot undertake more than two ships at once. The private firms, therefore, will be compelled to ask lower terms. If the matter has been kept secret, that is solely because the firms must not be made aware of the business transactions of the Navy Office. Contracts for the ships have not been placed; assurances only have been given. The contract is concluded only after the voting of the estimate. The period for delivery is 36 months from April 1, 1909. Not a penny is available for the 'promised' ships before April 1. That must be clear to everybody who knows the Parliamentary conditions and our accounts system. Not even indirectly has any money been procured from banks for the yards in any way whatever by the agency of the Navy Office.

"In regard to the placing of the order for the first of the two ships special account was taken of the fact that the yard in question is principally engaged in the construction of this kind of ship. Accelerated completion of these two ships is neither asked for nor intended. The firms get their money only in quarterly instalments. Contracts for the two other ships of this year's programme are not to be placed until some months after the conditions for tendering are drawn up late in the summer. As the private yards no more than the Imperial yards know whether they will get the orders for these ships, there can be no possibility of special preparation of material. If there has been any such accumulation, it is, presumably, due to business reasons, certainly to no incentive of ours.

"In conclusion, I repeat once more with emphasis that, as the Imperial Chancellor has already said, we shall have ready for use in 1912 ten Dreadnoughts and three Invincibles—in all 13, and not 17, large modern ships—and that not in the spring, but in the autumn. How far it is right to base comparisons of naval strength upon the number of Dreadnoughts is a question which I shall not here discuss."

As to the suggested readiness and desire of Great Britain to join in an international agreement for the limiting of naval armaments, the Germans have always had a rather reasonable answer, which was phrased forcibly by one of the Agrarian organs when it said:

"When the weaker promises the stronger to abstain from all means of increasing his strength, the strong man needs to make no further effort to retain his relative preponderance for ever. If the other naval Powers entered into such an agreement, England, without taking upon herself any further burdens, would retain mastery at sea before which all must bow. Little need as we have to interfere with regard to England's programme, even so little need has England to look askance upon our construction of ships, not to attack England, but only in order to have a naval power with which even the strongest opponent will not light-heartedly engage in battle. This good right of ours we shall not surrender by any agreement."

{706}

But a better view was that taken by one of the German Conservative journals, the *Kreuz Zeitung*, which said last summer: "First of all we must complete our construction programme. Before that we could not agree to any limitation of naval armaments. Otherwise we should not be able to create the navy of moderate size which corresponds to our position as a seafaring people. ... Even after the completion of our

construction programme our navy will be but a dwarf as compared with the British Navy. Nevertheless, the moment ought then to have arrived for entering into an international agreement about limitation of armaments, and on the part of Germany there will, presumably, be readiness for it."

WAR, THE PREPARATIONS FOR:

Elasticity of the German Navy Law.

At the annual meeting of the German Navy League in June, 1909, Admiral Weber, speaking of the German Navy Law, praised its elasticity. "In international relations," he said, "it had lately proved to be a political instrument of equal force with the American Monroe doctrine and the English two-Power standard. In 1906 the Reichstag had agreed to increase the size of capital ships without altering the number. The amending law of 1908 (which shortened the 'life' of battleships) had rendered possible a rational fulfilment of all immediate possibilities with regard to battleships, small cruisers, torpedo-boats, and submarines."

WAR, THE PREPARATIONS FOR:

Italian and Austrian Programmes of Naval Construction.

A despatch from Rome in May, 1909, announced that the minister of marine, Admiral Mirabello, had obtained the approval of the Cabinet to a naval programme that provides for the construction within three years at a total expense of \$52,800,000 of four "Dreadnoughts" and a number of fast scout cruisers. A local paper stated that the decision to build these vessels was reached after Italy had learned that Austria-Hungary was going to spend \$40,000,000 on increased naval power.

Four months later, on the 1st of October, a report came to the English Press from Rome as follows:

"The Minister of Marine announced in June that the ships would be begun at once, and completed before the middle of 1912. Only one, the Dante Alighieri, has yet been laid down, and owing to some blunder with regard to her steel plates, no work has been done on her for more than a month. The second is still awaiting the completion of a building slip before it can be laid down. As to the other two, according to the *Tribuna*, the contracts, which ought to have been concluded with two shipbuilding firms last June, have not yet been even examined by the Council of State; consequently neither firm has yet been able to begin the work which will be necessary in its yards before the ships can be laid down. The *Tribuna* throws the blame upon the bureaucratic system."

WAR, THE PREPARATIONS FOR: Italian Fighting Strength at the End of 1909.

The fighting strength of the Italian Navy was reckoned by the Rome correspondent of the London *Times*, in November, 1909, as follows:

"Counting in all four of the San Giorgio cruisers [only two of which were then finished] as forming part of the available navy at the end of this year, and setting aside some 20 ships of various kinds and 40 or 50 torpedo-boats, which may, however, be of some secondary use, the full fighting force of the Italian navy at the beginning of 1910 should be six first-class battleships, five second class battleships, seven first-class armoured cruisers, three second-class armoured cruisers, 19 destroyers, and 36 first-class torpedo-boats. But it must be borne in mind that eight of the first 21 fighting units—the five battleships and three armoured cruisers described here as of the second class—are not very modern ships.

"The shipbuilding programme of Admiral Mirabello promises, besides other less important vessels, four battleships of the

Dreadnought type. As far as one could learn at first these ships were to be on much the same lines as the Bellerophon, with a displacement of 18,200, and an armament of ten 12 inch guns. The chief question then was, When would they be ready for sea? Admiral Mirabello said in 1912. In order to effect this he would have had to revolutionize the whole system of shipbuilding in the Italian navy."

WAR, THE PREPARATIONS FOR:

Japan's Armament, Present and Prospective.

The naval status of Japan in December, 1909, as ascertained and described by the Tokio correspondent of *The Times*, London, was as follows:

"Ever since the Russo-Japanese War it has been well-nigh impossible for the public to form a clear idea of what steps were in progress with regard to the expansion and maintenance of the Japanese Navy. In the year before the outbreak of the conflict—namely, 1903, a programme of expansion was approved by the Diet. It involved the building of three battleships, three armoured cruisers, and two second-class cruisers; that is to say, eight fighting vessels, displacing 100,000 tons approximately. The cost was set down as ten millions sterling, and the programme was to have been spread over a period of 11 years, ending in 1913. Subsequently, however, owing to financial expediency, the time of completion was extended, first to 1915, and thereafter to 1916, so that seven years still remain. Knowing this and observing carefully what ships were laid down from time to time, there should have been, it will appear, no difficulty in forming a clear perception of the actual conditions at any moment.

{707}

"But naturally the war produced a radical change in the plans of the Japanese Admiralty. It became necessary at once to

adopt special measures for recouping the losses suffered in battle, as well as for renewing armaments. Of course the general public was not taken into official confidence in such matters, and some time elapsed before people became vaguely conscious that not one building programme only, but three, had been taken in hand. Occasionally announcements were made of the launch of such-and-such a battleship or the laying down of such-and-such a cruiser, but as to which vessel belonged to which programme, and what dimensions the several programmes were ultimately to take, nothing could be clearly ascertained. Now, at length, this obscurity has been removed. It is seen that two of the programmes were undertaken with funds included in the war expenditures, and that, therefore, the nation is not required to make any further provision of money on these accounts. These programmes are, first, an emergency programme, carried out with what is called an 'implementing fund,' and, secondly, an emergency programme carried out with an 'adjustment fund.' Under the three programmes, respectively, the following vessels have been bought, built, or are building:—

Third Period Expansion Programme.

	Tons.
Katori, battleship	15,950
Kashima, battleship	16,400
Ibuki, armoured cruiser	14,600

Emergency Implementing Programme.

Aki, battleship	19,150
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Satsuma, battleship	19,150
Tsukuba, armoured cruiser	13,750
Ikoma, armoured cruiser	13,750
Kurama, armoured cruiser	14,600
Tone, cruiser	4,400
Yodo, despatch boat	1,250
Mogami, despatch boat	1,350

Emergency Adjustment Programme.

Kawachi, battleship	21,000
Settsu, battleship	21,000

"There is here a total of 13 ships displacing 176,000 tons, approximately, and to these have to be added 29 destroyers built under the 'emergency implementing programme.' As for the vessels which have still to be built, but which have not yet been laid down, they are as follows:-

Third Period Programme.

Battleship, 1	16,000 tons
Armoured cruisers, 2	11,000 tons each

Cruisers, 2	5,000 tons each
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Emergency Implementing Programme.

Armoured cruiser, 1	14,600 tons
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Cruisers, 2	4,100 tons each
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Destroyers, several	375 tons each
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Torpedo-boats, 6	120 tons each
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"These eight vessels, exclusive of torpedo craft, aggregate over 70,000 tons, and if the two lists be combined, we get a total of 21 ships displacing 247,000 tons, approximately, apart from about 35 destroyers and six torpedo boats. ...

"It may be mentioned that in February last the ships on the active list of the Japanese Navy were:—

Battleships	13
Armoured Cruisers	12
Other Cruisers	43
Destroyers	59
Torpedo-boats	69"

WAR, THE PREPARATIONS FOR:
Russian "Dreadnoughts" Building.

"The keels of the four Dreadnoughts which are to represent the nucleus of Russia's future navy were laid down in St. Petersburg this morning. The materials to be employed will be throughout Russian; the designs and the supervision will be British. It is an open secret that the Tsar has taken a deep personal interest in arrangements that have been made for placing the contracts for the new ships."

***St. Petersburg Correspondent
London Times, June 16, 1909.***

WAR, THE PREPARATIONS FOR:
The United States Navy in 1909.

As summarized in the Annual Report of the Navy Department for the fiscal year 1909, the United States Navy was composed, on the 30th of June in that year, of the following vessels:

Fit for Service, including those under Repair:

First-class battle ships, 25;
second-class battle ship, 1;
armored cruisers, 12;
armored ram, 1;
single-turret harbor-defense monitors, 4;
double-turret monitors, 6;
protected cruisers, 22;
unprotected cruisers, 3;
scout cruisers, 3;
gunboats, 9;
light-draft gunboats, 3;
composite gunboats, 8;
training ships, 3;
training brigantine, 1;
special class (Dolphin, Vesuvius), 2;
gunboats under 500 tons, 12;
torpedo boat destroyers, 16;
steel torpedo boats, 33;

wooden torpedo boat, 1;
submarine torpedo boats, 12;
iron cruising vessels, steam, 5;
wooden ditto, 5;
wooden sailing vessels, 5;
tugs, 44;
auxiliary cruisers, 5;
converted yachts, 21;
colliers, 8;
transport and supply ships, 8;
hospital ships, 2;
receiving ships, 4;
prison ships, 3.
Total, 292.

Under Construction:

First-class battle ships, 6;
torpedo boat destroyers, 20;
submarine torpedo boats, 16;
tug, 1;
colliers, 6.
Total 49.

Authorized:

First-class battle ships, 2;
gunboat for Great Lakes, 1;
submarine torpedo boats, 4;
colliers, 2.
Total 9.

Unfit for Service:

Of all descriptions, 12.

Grand Total, 362.

Since the above report, the House of Representatives, by vote on the 8th of April, 1910, authorized the building of two

additional battle ships of the first class, at a cost of \$6,000,000 each.

WAR, THE PREPARATIONS FOR:

The World-round Cruise of the American Battleship Fleet, 1907-1909.

On the 16th of December, 1907, a fleet of battle-ships which, comprised practically the whole available fighting force of the United States Navy steamed away from Hampton Roads, on the longest and most notable cruise ever made by so formidable an assemblage of ships of war. Its primary appointment was to circuit the American continents from the Atlantic to the Pacific shores of the United States, and the further direction of the voyage was left for future decision. Ultimately, invitations from foreign governments drew the fleet to Australia, New Zealand, China and Japan, and it returned from these visits in the Far East by way of the Suez Canal and the Mediterranean Sea. The duration of the long voyage was a year, two months and six days, and the total miles of ocean traversed were about 45,000. Many foreign ports were visited, South American, Australasian, Asiatic and European, and boundless hospitalities were bestowed everywhere on the fleet. Its stay of some days at San Francisco, before leaving American waters, was the grand event of the year to Americans of that coast, and its call at Manila gave emphasis to American authority in the Philippines.

Until it reached San Francisco the fleet was under the command of Rear-Admiral Robley D. Evans; but physical disabilities then compelled the retirement of Admiral Evans, and he was succeeded in the command by Rear-Admiral Charles S. Sperry, under whom the remainder of the voyage was made. The sixteen battleships of the fleet were divided into two squadrons and four divisions, each division consisting of vessels of the same general type; the first division comprised the Connecticut, Admiral Evans's flag-ship, the Kansas, the

Vermont, and the Louisiana; the second included the Georgia, the New Jersey, the Rhode Island and the Virginia; the third included the Minnesota, the Ohio, the Missouri, and the Maine; the fourth contained the Alabama, the Illinois, the Kearsarge, and the Kentucky. The battle-ships were accompanied by two supply-ships, a repair-ship, and a tender, and were preceded from Hampton Roads by a flotilla of six torpedo-boats and a squadron of armored cruisers.

{708}

From San Francisco to New Zealand the voyage of 6000 miles was made with one stop, only, at Honolulu, and so perfectly in order, it is said, that only twice did any ship fall out of the line of formation, in which the ships steamed steadily together, two hundred and fifty yards apart. This order, with time-table regularity of movement, was maintained from beginning to end, and when, on the 22d of February, 1909, President Roosevelt welcomed the return of the fleet to Hampton Roads, he was able to say with just pride: "This is the first battle fleet that ever circumnavigated the globe. Those who perform the feat again can but follow your footsteps. You have falsified every prediction of failure made by the prophets. In all your long cruise not an accident worthy of mention has happened to a single battleship, nor yet to the cruisers or torpedo-boats. You left this coast in a high state of battle efficiency, and you return with your efficiency increased as a war machine, as the fleet returns in better shape than when it left. In addition, you have shown yourselves the best of all possible ambassadors and heralds of peace. Wherever you have landed you have borne yourselves so as to make us at home proud of being your countrymen."

Before the undertaking of this notable cruise of a battle-ship fleet having no militant mission, many political reasons for and against the movement were urged and discussed. From the naval point of view, professionally, the true motive of the

project was stated undoubtedly by Captain A. T. Mahan, in an article published in the *Scientific American*, and it had no political purpose whatever. "A perfectly sufficient reason," said Captain Mahan, "is the experience to be gained by the fleet in making a long voyage, which otherwise might have to be made for the first time under the pressure of war, and the disadvantage of not having experienced at least once the huge administrative difficulties connected with so distant an expedition by a large body of vessels dependent upon their own resources. By 'own resources' must be understood, not that which each vessel carries in herself, but self-dependence as distinguished from dependence on near navy-yards—the great snare of peace times. The renewal of stores and coal on the voyage is a big problem, whether the supply vessels accompany the fleet or are directed to join from point to point."

The following statistics are given of the cost of the cruise: "The fleet burned 400,320 tons of coal, costing \$1,078,994. The transportation of this coal by naval and hired colliers cost \$1,463,825. The total coal bill was \$2,646,069. There were used on the engines and other machinery 125,000 gallons of oil costing \$43,750. No official statement has been made of the cost of ammunition used in target and battle practice. The figure is put at above a million dollars, and \$20,000,000 is estimated as the total cost of the 14 months' cruise."

WAR, THE PREPARATIONS FOR:

The World Naval Armament.

Fleets of the Great Powers in March, 1910.

A British Parliamentary Paper made public on the 29th of April, 1910, gave statistics of the navies of the greater Powers as they existed on the 31st of March. The following summary of the figures appeared in the next issue of *The Mail*. The letters at the heads of the columns signify—
E., England;
F., France;

R., Russia;
G., Germany;
I., Italy;
U., United States; and
J., Japan:--

Ships Built.

			E.	F.	R.	G.
I.	U.	J.				
10	Battleships		56	17	7	33
	30	14				
-	Armored C. D. Vessels		-	8	2	7
	10	-				
8	Armored Cruisers		38	20	4	9
	15	12				
-	Protected Cruisers, I.		18	5	7	-
	3	2				
3	Protected Cruisers, II.		35	9	2	23
	16	11				
11	Protected Cruisers, III		16	8	2	12
	2	6				
-	Unprotected Cruisers		2	-	-	10
	5	6				

-	Scouts	8	-	-	-
3					
-					
	Torpedo Vessels	23	10	6	1
5	2 2				
	T. B. Destroyers	150	60	97	85
21	25 57				
	Torpedo Boats	116	246	63	82
96	30 69				
	Submarines	63	56	30	8
7	18 9				

Ships Building.

		E.	F.	R.	G.
I.	U. J.				
	Battleships	9	6	8	8
2	4 3				
	Armored Cruisers	3	2	2	3
2	- 1				
	Protected Cruisers, II.	9	-	-	5
-	- 3				
	Unprotected Cruisers	2	-	-	-
-	- -				

	T. B. Destroyers	37	17	-	12
2	15 2				

	Submarines	11	23	3	*
-	10 3				

* Number uncertain.

-----WAR, THE PREPARATIONS FOR: End-----

-----WAR, THE REVOLT AGAINST: Start-----

WAR, THE REVOLT AGAINST: A. D. 1899-1909.

General Treaties of Arbitration concluded since the First Peace Conference at The Hague.

"Arbitration in the sense of the present day dates from Jay's Treaty of 1794, in which Great Britain and the United States bound themselves to arbitrate contested boundary claims (Article 5); claims preferred by British creditors (Article 6); and, more especially, the claims of American and British creditors based upon 'irregular or illegal captures or condemnations of their vessels and other property' (Article 7). ...

"The first award under it [Jay's Treaty] was made in 1798, so that exactly one hundred years elapsed until the call of the First Hague Conference. Arbitrations in this period were very frequent. Writers differ as to the exact number; for example Dr. Darby instances no less than 471 cases, but in his enthusiasm for the peaceful settlement of international differences he has included a large number of interstate arrangements, which cannot be regarded as international arbitrations in the strict sense of the word. Mr. Fried, in his Handbook of the Peace Movement, enumerates some 200. M. La

Fontaine gives a list of 177 instances to the year 1900, which should be reduced to 171 arbitrations or agreements to arbitrate before the meeting of the First Conference in 1899. Professor John Bassett Moore is more conservative and enumerates 136 cases of international arbitration during the nineteenth century, in 57 of which the United States was a party, with a like number of 57 to which Great Britain has been a party.

{709}

"But, as happily said by M. Descamps, arbitration is not a question of mathematics, and whether the instances be 471, according to Darby or 136, according to Professor Moore, the recourse to arbitration bids fair to become a habit with nations."

***James Brown Scott,
The Hague Peace Conferences of 1899 and 1907,
Volume 1, pages 210 and 224-225.***

Dr. Scott cites from M. La Fontaine a table showing the participation of each State in arbitration. Germany has no representation in the table, either as a whole or by any of its parts; whereas every other nation of the least importance in the world appears as having arbitrated some of its disputes, prior to the preparation of this table.

At the First Peace Conference, of 1899, an attempt, strongly supported, was made to frame and secure the adoption of a treaty of arbitration by which the nations would bind themselves to arbitrate a carefully selected list of subjects. This failed, says Dr. Scott, in the work quoted above, "owing to the opposition of Germany. As a compromise, Article 19 of the convention for the peaceful adjustment of international differences was adopted:

"'Independently of existing general or special treaties imposing the obligation to have recourse to arbitration on the part of any of the Signatory Powers, these powers reserve to themselves the right to conclude, either before the ratification of the present convention or subsequent to that date, new agreements, general or special, with a view of extending the obligation to submit controversies to arbitration to all cases which they consider suitable for such submission' (re-enacted in 1907 as Article 40).

"The article did not seem at the time to be of any special importance and it was generally looked upon as useless because independent and sovereign States possess the right without special reservation to conclude arbitration agreements, general or special, without being specifically empowered to do so. The fact is, however, that this article, insignificant and useless as it may seem, marks, one may almost say, an era in the history of arbitration. The existence of the article has called attention to the subject of arbitration and by reference to it many States have negotiated arbitration treaties. It is true that there is no legal obligation created by the article and it is difficult to find a moral one, for it is not declared to be the duty of any State to conclude arbitration treaties. The moral effect of the article has, however, been great and salutary, and the existence of numerous arbitration treaties based upon the reservation contained in the article shows the attention and respect which nations pay to the various provisions of the Hague Conference."

Dr. Scott adds to these remarks a list of treaties, of the character contemplated, which had been entered into since the First Hague Conference, up to the time at which he wrote, with appended notes describing briefly the nature of the variously broadened or narrowed reference clauses contained in them. A more extended list has been published since by the International Peace Bureau of Berne, Switzerland, for a copy

of which I am indebted to Mr. Frederick P. Keppel, Secretary of Columbia University, New York. The list below is mainly that of the International Peace Bureau, with the addition of a few more recent treaties to which the United States has been a party, obtained from the State Department at Washington. Some, but not all, of Dr. Scott's notes have been borrowed, with his permission.

In the list of treaties as they are given here the date of signature is entered first, with the prefix S.; that of ratification follows, with the prefix R. When two dates of ratification are given, the first is that by the government named first in the entry of the parties to the treaty in question. [Notes "A", "B", "C" and "E" are defined following entry 105 below.]

WAR, THE REVOLT AGAINST:

List of States between which Permanent Treaties of Arbitration have been concluded since the First Peace Conference at The Hague, with the Dates of their Signature and Ratification.

1. Brazil and Chile.

S. May 18, 1899.

R. March 7, 1906, at Santiago.

2. Argentine and Uruguay.

S. June 8, 1899.

R. December 21, 1901.

Additional protocol

S. December 21, 1901.

R. December 18, 1901.

3. Argentine and Paraguay,

S. November 6, 1899.

R. June 5, 1902.

Additional protocol

S. January 25, 1902.

R. June 5, 1902.

4. Bolivia and Peru.

S. November 21, 1901.

R. December 29, 1903.

5. Spain and Mexico.

S. January 11, 1902.

R. July 18, 1902.

6. Nicaragua, Salvador, Honduras, Costa Rica.

S. January 20, 1902.

[R. No date given.]

7. Argentine and Spain.

S. January 28, 1902.

[R. No date given.]

8. Spain and Salvador.

S. January 28, 1902.

R. July 18, 1902.

9. Spain and Dominican Republic.

S. January 28, 1902.

R. July 18, 1902.

10. Spain and Uruguay.

S. January 28, 1902.

R. July 18, 1902.

11. Pan-American Treaty of obligatory arbitration between
Argentina, Bolivia, Guatemala, Mexico, Paraguay.

Peru, Dominican Republic, Salvador, and Uruguay (for
differences relating to diplomatic privileges, rights of
navigation, questions of frontiers and interpretation and
enforcement of treaties). E

S. January 29, 1902, at Mexico. According to Article 21 of the

Treaty it would become of force as soon as three States among those which signed the Treaty should make known their approbation to the government of Mexico, which would communicate the information to other governments. It has been ratified by the governments of Salvador, May 28, 1902, of Guatemala, August 25, 1902, and of Uruguay, January 31, 1903.

12. Special Treaty between the seventeen States represented at the Pan-American Conference at Mexico, including the United States of America, relating to the adjustment by means of arbitration of difficulties resulting from financial questions.

S. January 30, 1902, at Mexico.

[R. No date given.]

13. Argentine and Bolivia.

S. February 3, 1902.

R. March 13, 1902.

14. Bolivia and Spain.

S. February 17, 1902.

R. October 10, 1903.

15. Colombia and Spain.

S. February 17, 1902

R. July 18, 1902.

16. Spain and Guatemala.

S. February 28, 1902.

R. July 18, 1902.

{710}

17. Mexico and Persia.

S. May 14, 1902.

[R. No date given.]

18. Argentine and Chile. E

S. May 28, 1902.

R. July 30, 1902.

19. Germany and Venezuela.

S. May 7, 1903.

(R. La ratification n'a pas été exigée.)

20. Paraguay and Peru.

S. May 18, 1903.

[R. No date given.]

21. France and Great Britain. C

S. October 14, 1903.

R. February 25, 1904.

22. Guatemala, Nicaragua, Honduras and Salvador.

S. November, 1903.

[R. No date given.]

23. France and Italy. C

S. December 25, 1903.

R. March 26, 1904-March 7, 1904.

24. Great Britain and Italy. C

S. February 1, 1904.

Not ratified.

25. Denmark and The Netherlands. B

S. February 12, 1904.

R. March 8, 1906, at The Hague.

26. Spain and France. C

S. February 26, 1904.

R. March 7, 1904-April 20, 1904.

27. Spain and Great Britain. C

S. February 27, 1904.
R. March 7, 1904-March 16, 1904.

28. France and The Netherlands. C
S. April 6, 1904.
R. July 5, 1905, at Paris.

29. Spain and Portugal.
S. May 31, 1904.
Not ratified.

30. France and Sweden. C
S. July 9, 1904.
R. November 9, 1904.

31. France and Norway. C
S. July 9, 1904.
R. November 9, 1904.

32. Germany and Great Britain. C
S. July 12, 1904.
Without reserve of ratification.

33. Great Britain and Sweden. C
S. August 11, 1904.
R. November 9, 1904.

34. Great Britain and Norway. C
S. August 11, 1904.
R. November 9, 1904.

35. The Netherlands and Portugal.
S. October 1, 1904.
R. October 29, 1908, at The Hague.

36. Spain and Nicaragua.
S. October 4, 1904.

R. March 19, 1908.

37. Belgium and Russia. A

S. October 17/30, 1904.

R. September 9/August 27, 1905-July 27 /August 9, 1905.

38. Belgium and Switzerland. A

S. November 15, 1904.

R. August 19, 1905.

39. Great Britain and Switzerland. C

S. November 16, 1904.

R. July 12, 1905.

40. Great Britain and Portugal. C

S. November 16, 1904.

Not ratified.

41. Germany and The United States of America.

S. November 22, 1904.

Not ratified.

42. Italy and Switzerland. C

S. November 23, 1904.

R. December 5, 1905.

43. Norway and Russia. A

S. November 26/December 9, 1904.

R. February 27, 1905-February 12/25, 1905.

44. Russia and Sweden. A

S. November 26/December 9, 1904.

R. February 12/25-February 27/14, 1905.

45. Belgium and Sweden. A

S. November 30, 1904.

R. August 11, 1905.

46. Belgium and Norway. A
S. November 30, 1904.
R. August 11, 1905-October 30, 1906.
47. Austria-Hungary and Switzerland. C
S. December 3, 1904.
R. October 17, 1905, at Vienna.
48. France and Switzerland. C
S. December 14, 1904.
R. July 13, 1905.
49. Sweden and Switzerland. A
S. December 17, 1904.
R. July 13, 1905.
50. Norway and Switzerland. A
S. December 17, 1904.
R. July 13, 1905.
51. Austria-Hungary and The United States of America.
S. January 6, 1905.
Not ratified.
52. Austria-Hungary and Great Britain. C
S. January 11, 1905.
R. May 17, 1905, at Loudon.
53. Spain and Sweden.
S. January 23, 1905.
R. March 20, 1905.
54. Spain and Norway.
S. January 23, 1905.
R. March 20, 1905.

55. Belgium and Spain. A
S. January 23, 1905.
R. December 16-July 28, 1905.

56. Great Britain and The Netherlands. C
S. February 15, 1905.
R. July 12, 1905, at London.

57. Denmark and Russia. A
S. February 16/March 1, 1905.
R. April 11, 1905-March 20/April 3, 1905.

58. Italy and Peru.
S. April 18, 1905.
R. November 11, 1905.

59. Belgium and Greece. A
S. April 19/May 2, 1905.
R. July 9/22, 1905.

60. Belgium and Denmark. A
S. April 26, 1905.
R. May 2, 1906.

61. Portugal and Sweden. C
S. May 6, 1905.
Not ratified.

62. Norway and Portugal. C
S. May 6, 1905.
Not ratified.

63. Italy and Portugal. C
S. May 11, 1905.
Not ratified.

64. Spain and Honduras.

S. May 13, 1905.
R. July 16, 1906.

65. Belgium and Roumania. A
S. May 27/14, 1905.
R. October 9/September 26, 1905.

66. Portugal and Switzerland. C
S. August 18, 1905.
R. October 23, 1908, at Berne.

67. Argentine and Brazil.
S. September 7, 1905.
R. September 28, 1908-October 2, 1908.

68. Colombia and Peru.
S. September 12, 1905.
R. July 6, 1906, with the modus *rivendi*.

69. Denmark and France. C
S. September 15, 1905.
R. May 31, 1906.

70. Denmark and Great Britain. C
S. October 25, 1905.
R. May 4, 1906.

71. Norway and Sweden. A
S. October 26, 1905.
Without reserve of ratification.

72. Denmark and Spain. A
S. December 1, 1905.
R. May 10, 1906-May 14. 1906.

73. Denmark and Italy. B
S. December 16, 1905.

R. May 22--March 30, 1906.

74. Austria-Hungary and Portugal. C

S. February 13, 1906.

R. October 16, 1908, at Vienna.

75. Belgium and Nicaragua.

S. March 6, 1906.

Not ratified.

76. France and Portugal. C

S. July 29, 1906.

Not ratified.

77. Denmark and Portugal. B

S. March 20, 1907.

R. October 26, 1908, at Copenhagen.

78. Nicaragua and Salvador.

S. April 3, 1907.

Not ratified.

79. Spain and Switzerland. C

S. May 14, 1907.

R. July 9, 1907.

80. Argentine and Italy.

S. September 18, 1907.

Not ratified.

81. Italy and Mexico.

S. October 16, 1907.

R. December 31, 1907.

82. Honduras, Guatemala, Salvador, Nicaragua and Costa Rica.

S. December 20, 1907, at Washington.

R. March, 1908.

83. United States of America and France. D
S. February 10, 1908.
R. March 12, 1908, at Washington.

84. United States of America and Greece.-
S. February 29, 1908.
Not ratified [?].

85. United States of America and Switzerland. D
S. February 29, 1908.
R. December 23, 1908.

86. United States of America and Mexico. D
S. March 24, 1908.
R. June 27, 1908, at Washington.

{711}

87. United States of America and Italy. D
S. March 28, 1908.
R. January 22, 1900.

88. United States of America and Great Britain. D
S. April 4, 1908.
R. June 4, 1908, at Washington.

89. United States of America and Norway. D
S. April 4, 1908.
R. June 24, 1908, at Washington.

90. United States of America and Portugal. D
S. April 6, 1908.
R. November 14, 1908.

91. United States of America and Spain. D
S. April 20, 1908.

R. June 2, 1908, at Washington.

92. United States of America and Sweden. D

S. May 2, 1908.

R. August 18, 1908, at Washington.

93. United States of America and The Netherlands. D

S. May 2, 1908.

R. March 25, 1909.

94. United States of America and Japan. D

S. May 5, 1908.

R. August 24, 1908, at Washington.

95. Denmark and the United States of America. D

S. May 18, 1908.

R. March 29, 1909.

96. Denmark and Sweden. D

S. July 17, 1908.

Not ratified.

97. China and the United States of America. D

S. October 8, 1908.

R. April 6, 1909.

98. Denmark and Norway.

S. October 8, 1908.

Not ratified.

99. United States of America and Austria-Hungary. D

S. January 15, 1909, at Washington.

R. May 13, 1909.

100. United States of America and Peru. D

S. December 5, 1908, at Washington.

R. June 29, 1909.

101. United States of America and Salvador. D
S. December 21, 1908, at Washington.
R. July 3, 1909.

102. United States of America and Costa Rica. D
S. January 13, 1909, at Washington.
R. July 20, 1909.

NOTES.

The treaties differ in the range given to the obligation imposed on the signatory parties, as to the nature of the differences which they shall submit to arbitration. Most of them, however, are divisible in this respect into three classes, distinguished above by the reference letters "A," "B," and "C," and the distinction described in the following notes thus marked, from Dr. Scott's work. Treaties concluded by the United States have an otherwise distinct character, as explained in note "D."

A.—The article of reference in these treaties is substantially (when not identically) as follows:

"The high contracting parties agree to submit to the permanent Court of Arbitration established at The Hague by the Convention of July 29, 1899, the differences which may arise between them in the cases enumerated in Article 3, in so far as they affect neither the independence, the honor, the vital interests, nor the exercise of sovereignty of the contracting countries, and provided it has been impossible to obtain an amicable solution by means of direct diplomatic negotiations or by any other method of conciliation.

"1. In case of disputes concerning the application or interpretation of any convention concluded or to be concluded between the high contracting parties and relating—a. To

matters of international private law; b. To the management of companies; c. To matters of procedure, either civil or criminal, and to extradition.

"2. In cases of disputes concerning pecuniary claims based on damages, when the principle of indemnity has been recognized by the parties.

"Differences which may arise with regard to the interpretation or application of a convention concluded or to be concluded between the high contracting parties and in which third powers have participated or to which they have adhered shall be excluded from settlement by arbitration."

"B. The treaties of this noble class are the few thus far concluded which pledge the parties engaged in them to submit ***all differences that may arise between them to pacific arbitration***, reserving no dispute, of any nature, to become a possible entanglement in war. The formula of reference in them is substantially this:

"The high contracting parties agree to submit to the permanent Court of Arbitration established at The Hague by the Convention of July 29, 1899, all differences of every nature that may arise between them, and which cannot be settled by diplomacy, and this even in the case of such differences as have had their origin prior to the conclusion of the present Convention."

C.—The reference clause in these treaties is substantially alike in all, to the following purpose:

"Differences which may arise of a legal nature, or relating to the interpretation of treaties existing between the two contracting parties, and which it may not have been possible to settle by diplomacy, shall be referred to the Permanent Court of Arbitration, established at The Hague by the

convention of the 29th July, 1899; provided, nevertheless, that they do not affect the vital interests, the independence, or the honor of the two contracting States, and do not concern the interests of third parties."

D.—In the treaties of arbitration negotiated by the United States the article of reference is like that last quoted, in Note C; but the following is added to it:

"In each individual case the High Contracting Parties, before appealing to the Permanent Court of Arbitration, shall conclude a special Agreement, defining clearly the matter in dispute, the scope of the powers of the arbitrators, and the periods to be fixed for the formation of the Arbitral Tribunal and the several stages of the procedure. It is understood that on the part of the United States such special agreements will be made by the President of the United States, by and with the advice and consent of the Senate thereof, and on the part of Costa Rica shall be subject to the procedure required by the Constitution and laws thereof."

This was required by the United States Senate, which rejected a number of earlier arbitration treaties, negotiated by Secretary Hay, because they would have allowed cases of controversy with other nations to be referred to The Hague Tribunal by the President without specific consent from the Senate in each particular case. This brings the general treaty of arbitration down very close to absurdity, leaving almost nothing of its intended pacific influence to act.

E.—See below: A. D. 1901 (November), and 1902.

WAR, THE REVOLT AGAINST: A. D. 1901 (November).
Treaty of Unreserved Arbitration for all Controversies between Bolivia and Peru.

On the 21st of November, 1901, the republics of Bolivia and

Peru set a great example of trust in arbitration as a means of settling controversies between nations, by concluding a convention which pledged them for ten years to submit every disagreement between themselves to that peaceful solution, reserving no question whatsoever. Their example, as will be seen, was remarkably imitated among their Spanish-American neighbors in the following year. The subjoined are the important articles of their compact of peace:

"Article 1.

The high contracting parties pledge themselves to submit to arbitration all the controversies which have thus far been pending, and those which, while the present treaty is in force, may arise between them, whatever may be their nature and causes provided that it has been found impossible to settle them by direct negotiation.

"Article 2.

In each case that may arise the contracting parties shall conclude a special agreement with a view to determining the subject-matter of the controversy, to fixing the points that are to be settled, the extent of the powers of the arbitrators, and the procedure to be observed.

"Article 3.

In case the high contracting parties do not succeed in agreeing on the points referred to in the foregoing article, the arbitrator shall be authorized to determine, in view of the claims of both parties, the points of fact and of law that are to be decided for the settlement of the controversy, and to establish the mode of procedure to be followed.

{712}

"Article 4.

The high contracting parties agree that the arbitrator shall be the permanent court of arbitration that may be established

in virtue of the decisions adopted by the Pan-American Conference now sitting in the City of Mexico.

"Article 5.

For these two cases: (*a*) If the court referred to in the foregoing article shall not be created, and (*b*) if there is need of having recourse to arbitration before that court shall be created, the high contracting parties agree to designate as arbitrator the Government of the Argentine Republic, that of Spain, and that of the United Mexican States for the performance of this duty, one to act in case of the disability of the other, and in the order in which they are named.

"Article 6.

If, while the present treaty is in force, and in the two contingencies referred to in the foregoing article, different cases of arbitration shall arise, they shall be successively submitted for decision to the aforesaid governments in the order above established.

"Article 7.

The arbitrator shall further be competent:

1. To pass upon the regularity of his appointment, the validity of the agreement, and the interpretation thereof.
2. To adopt such measures as may be necessary, and to settle all difficulties that may arise in the course of the debate. Concerning questions of a technical or scientific character that may arise during the debate, the opinion of the Royal Geographical Society of London or that of the International Geodetic Institute of Berlin shall be asked.
3. To designate the time in which he shall perform his arbitral functions.

"Article 8.

The arbitrator shall decide in strict obedience to the provisions of international law, and, on questions relating to boundary, in strict obedience to the American principle of 'uti possidetis' of 1810, whenever, in the agreement mentioned in article 2, the application of the special rules shall not be established, or in case the arbitrator shall (not ?) be authorized to decide as an amicable referee.

"Article 9.

The decision shall decide, definitely, every point in dispute, stating the reasons therefor. It shall be prepared in duplicate, and notice thereof shall be given to each of the parties through its representative before the arbitrator.

"Article 10.

The decision, legally pronounced, shall decide, within the limits of its scope, the contest between the parties.

"Article 11.

The arbitrator shall fix, in his decision, the time within which said decision is to be executed.

"Article 12.

No appeal from the decision shall be allowed, and its execution is intrusted to the honor of the nations that sign this treaty.

"Nevertheless, an appeal for revision to the arbitrator who pronounced it shall be admissible, provided that such appeal be taken before the expiration of the time fixed for its execution, in the following cases:

1. If the decision has been pronounced on the basis of a counterfeit document, or of one that has been tampered with.
2. If the decision has been, either in whole or in part, the

consequence of a fact resulting from the proceedings or documents of the case."

WAR, THE REVOLT AGAINST: A. D. 1902.

Noble Treaties between Argentina and Chile for Obligatory Arbitration of all Disputes, and for Restriction of Naval Armaments.

Notwithstanding the fortunate arrangement, in 1898, for arbitration of a serious boundary dispute between the Argentine Republic and Chile (see, in Volume VI. of this work, Argentine Republic), there continued to be troublesome frictions between the two Spanish-American neighbors, while awaiting the decision of the arbitrator, King Edward VII., which was not rendered until November 27, 1902. These had led to a ruinous rivalry in naval armament. Reporting on this state of affairs in May of that year, Mr. William P. Lord, the American Minister to the Argentine Government, wrote:

"Both countries have incurred heavy expense for the equipment and maintenance of largely increased army and naval forces. Chile has recently contracted for two formidable warships involving a heavy cost with the object of putting her navy upon an equality with the Argentine navy, whereupon Argentina, not to be outdone, contracted for two war ships larger in size and perhaps more formidable at a like heavy cost in order to continue and maintain her naval superiority. The costly expenditure incurred on account of war and naval preparations is paralyzing industrial activity and commercial enterprise. Both countries are largely in debt and confronted with a deficit. Both have appropriated their conversion funds which had been set apart for a specific purpose, and which, it would seem, should have been preserved inviolable. Neither is able to make a foreign loan without paying a high rate of interest and giving guarantees to meet the additional expenses which their war policy is incurring, and both Governments know and their people know that the only remedy to which either can

resort to meet existing financial conditions is to levy fresh taxes of some description, notwithstanding nearly everything that can be taxed is now taxed to the utmost limit. The weight of taxation already imposed bears heavily upon the energies and activities of the people. The outlook is not promising, business being dull, wage employment scarce, and failures frequent."

Happily, good sense prevailed over this folly very soon after Minister Lord wrote his account of it. On the 3d of June, 1902, the same writer was enabled to forward to Washington the text of four remarkable "peace agreements" which had been signed on the 28th of May, at the Chilean capital, by the Chilean Minister of Foreign Relations and the Argentine Minister Plenipotentiary to Chile, who had been brought to negotiations by the friendly mediation of Great Britain. The four documents were: a political convention declaring a common international policy on the part of the two republics; a broad treaty of general arbitration; an agreement for the reducing of naval forces; an agreement for the conclusive marking of boundary lines by the engineers of the arbitrator, King Edward. The general arbitration treaty is no less unreserved and comprehensive than that between Peru and Bolivia and offers another Spanish-American model for imitation in the interest of peace. Its articles are as follows:

"Article 1.

The high contracting parties bind themselves to submit to arbitration every difficulty or question of whatever nature that may arise between them, provided such questions do not affect the precepts of the respective constitutions of the two countries, and that they can not be solved through direct negotiation.

{713}

" Article 2.

This treaty does not embrace those questions that have given rise to definite agreements between the two parties. In such cases the arbitration shall be limited exclusively to questions of validity, interpretation, or fulfillment of these agreements.

"Article 3.

The high contracting parties designate as arbitrator the Government of His Britannic Majesty or, in the event of either of the powers having broken off relations with the British Government, the Swiss Government. Within sixty days from the exchange of ratifications the British Government and the Swiss Government shall be asked to accept the charge of arbitrators.

"Article 4.

The points of controversy, questions or divergencies shall be specified by the high contracting parties, who may determine the powers of the arbitrator or any other circumstance connected with the procedure.

"Article 5.

In the case of divergence of opinion, either party may solicit the intervention of the arbitrator, who will determine the circumstances of procedure, the contracting parties placing every means of information at the service of the arbitrator.

"Article 6.

Either party is at liberty to name one or more commissioners near the arbitrator.

"Article 7.

The arbitrator is qualified to decide upon the validity of the obligation and its interpretation, as well as upon questions as to what difficulties come within the sphere of the arbitration.

"Article 8.

The arbitrator shall decide in accordance with international law, unless the obligation involves the application of special rules or he have been authorized to act as friendly mediator.

"Article 9.

The award shall definitely decide each point of controversy.

"Article. 10.

The award shall be drawn up in two copies.

"Article 11.

The award legally delivered shall decide within the limits of its scope the question between the two parties.

"Article 12.

The arbitrator shall specify in his award the term within which the award shall be carried out, and he is competent to deal with any question arising as to the fulfillment.

"Article 13.

There can be no appeal from the award, and its fulfillment is intrusted to the honor of the signatory powers. Nevertheless, the recourse of revision is admitted under the following circumstances:

1. If the award be given on the strength of a false document;
2. If the award be the result, either partially or totally, of an error of fact.

"Article. 14.

The contracting parties shall pay their own expenses and each a half of the expenses of the arbitration.

"Article 15.

The present agreement shall last for ten years from the date

of the exchange of the ratifications, and shall be renewed for another term of ten years, unless either party shall give notice to the contrary six months before expiry."

***Papers relating to the Foreign Relations
of the United States, 1902, pages 13-20.***

In their convention on naval armaments the two governments "renounced the acquisition of the war vessels they have in construction and the making for the present of any new acquisitions," agreeing to reduce their fleets to "a prudent equilibrium."

WAR, THE REVOLT AGAINST: A. D. 1902.

Ten South and Central American Nations join in Protocol of Convention for Compulsory Arbitration.

"Ten of the nineteen nations represented at the City of Mexico [Second Pan-American Conference, 1902] united in the project of a treaty, to be ratified by their respective governments, providing for compulsory arbitration of all controversies which, in the judgment of any of the interested nations, do not affect either their independence or national honor; and it is prescribed that in independence and national honor are not included controversies concerning diplomatic privileges, limits, rights of navigation, or the validity, interpretation, and fulfillment of treaties. Mexico became a party to this project, but the United States declined; thus showing an entire change of attitude on the part of these two nations since the Washington conference of 1890. Mexico had in the meantime adjusted its boundary dispute with Guatemala. But since Mr. Blaine's ardent advocacy of compulsory arbitration the Senate of the United States had manifested its opposition to the policy by the rejection of the Olney-Pauncefote arbitration treaty of 1897, and it is to be inferred that the Secretary of State did not think it wise to commit our government to a measure which had been disapproved of by the

coordinate branch of the treaty-making power."

J. W. Foster,
Pan-American Diplomacy
(Atlantic Monthly, April, 1902).

See (in this Volume)
AMERICAN REPUBLICS.

WAR, THE REVOLT AGAINST: A. D. 1902.

Central America.

Treaty of Compulsory Arbitration between Nicaragua, Salvador,
Honduras, Costa Rica, and Guatemala.

A treaty of compulsory arbitration and obligatory peace,
between four of the States above named, in fulfillment of the
agreement at Mexico was signed at Corinto on the 20th of
January, 1902.

See (in this Volume)
AMERICAN REPUBLICS: SECOND INTERNATIONAL
CONFERENCE.

Its essential provisions were the following:

"The Governments of Nicaragua, Salvador, Honduras, and Costa Rica, desirous of contributing by all the means in their power to the maintenance of the peace and good harmony that exists and should exist among them, have agreed to celebrate a convention of peace and obligatory arbitration, and to that effect have named as their respective plenipotentiaries: ... Who, after having presented their credentials and the same being found in good and due form, have agreed upon the following covenant:

"Article 1.

It is declared that the present convention has for object the

incorporation in form of public treaty the conclusions to which have arrived their excellencies, the Presidents, General Don J. Santos Zelaya, General Don Tomas Regalado, General Don Terencio Sierra, and Don Rafael Iglesias, in the several conferences that have been held in this port with the sole object of maintaining and assuring, by all possible means, the peace of Central America.

"Article 2.

The contracting Governments establish the principle of obligatory arbitration, in order to adjust every difficulty or question that might present itself between the contracting parties, binding themselves in consequence to submit them to a tribunal of Central American arbitrators.

{714}

"Article 3.

Each one of the contracting parties shall name an arbitrator and a substitute to constitute the tribunal. The terms of the arbitrators shall be for one year, counting from their acceptance, and then they may be reelected.

"Article 4.

The arbitrators of those states among whom exists the disagreement shall not form part of the tribunal for the consideration of the concrete case, this remaining entirely with the arbitrator or arbitrators of the remaining states.

"Article 5.

If, through pairing, there should be no decision, the tribunal shall select a third among the substitutes. The third should necessarily adhere to one of the views given out.

"Article 6.

As soon as a difficulty or question presents itself between two or more states, their respective Governments shall advise

the remaining signers of the present convention.

"Article 7.

The contracting Governments establish and recognize the right of each one of them to offer without delay, singly or conjointly, their good offices to the Governments of the states that are in disagreement, even without previous acceptance by them, and though they should not have notified them of the difficulty or question pending.

"Article 8.

The friendly offices exhausted without satisfactory result, the government or governments that would have exercised them shall notify the others, declaring at the proper time arbitration proceedings. This declaration shall be communicated with the greatest possible brevity to the member of the tribunal corresponding to the president of same, with the object that within a period not exceeding fifteen days the tribunal that is to know and decide the case comes together. The installation of the tribunal shall be communicated by telegraph to the signing governments, demanding from the contending parties the presentation of their claims within the fifteen days following.

"Article 9.

The tribunal shall give its judgment within five days following the expiration of the term which has been spoken of.

"Article 10.

The difficulties that may arise through questions of pending limits, or through interpretation, or execution of treaties of limits, shall be submitted by the governments interested to the knowledge and decision of a foreign arbitrator of American nationality

"Article 11.

The Governments of the states in dispute solemnly agree not to

execute any hostile act, warlike preparations, or mobilization of forces, with the object of not impeding the arrangement of the difficulty or question through the means established by the present agreement."

On the 1st of March following the signing of this peace treaty by the four Presidents named above, the United States Minister to Costa Rica, Mr. William Lawrence Merry, reported to his Government that the President of Guatemala had added his signature to theirs.

WAR, THE REVOLT AGAINST: A. D. 1903.

Gift of a Court House and Library for the Permanent Court of Arbitration at The Hague.

By a deed signed October 7, 1903, Mr. Andrew Carnegie created a foundation or trust under the Netherland law (a ***Stichting*** in the Dutch language), "for the purpose of building, establishing, and maintaining in perpetuity at The Hague a court-house and library (temple of peace) for the permanent court of arbitration established by the treaty of July 29, 1899." As stated in the deed, "the Netherland Government, according to agreement, will see to the appointment of a board of directors under proper control, and draw up the rules according to which the 'Stichting' shall be governed, so as to ensure in perpetuity its maintenance and efficiency. The words maintaining, maintenance, in this agreement are not to be construed as relieving the signatory powers to the treaty of July 29, 1899, from the financial obligations incurred and so far discharged in connection with the permanent court of arbitration. If at any time the purpose for which the 'Stichting' was founded should fail, the assets of the 'Stichting' shall be employed for promoting the cause of international peace and concord in such a manner as shall be determined jointly by the sovereign of the Netherlands and the President of the United States."

WAR, THE REVOLT AGAINST: A. D. 1904.

International Peace Congresses.

The Thirteenth at Boston.

The First International Peace Congress was held in London in 1843, when men who could think of the possibility of ending war were jeered at, and little heed was given to their talk. In the next ten years it had six successors, all in Europe, and three of them in Great Britain. Then came the succession of wars in the fifties, sixties and seventies, which seemed to discourage peace-dreams, and it was not until 1878, on the occasion of the Paris Exposition, that an eighth international gathering of the dreamers was attempted. Then they waited eleven years for hope and faith enough to draw them for a ninth time together. After that date the series ran on under growing impulsions and encouragements, and when Boston, in 1904, invited its moving spirits to honor America, for the first time, with their assemblage, the Congress gathered in that city, in early October, was the Thirteenth of its name and kind. It was given exceptional brilliancy by the attendance of many distinguished people from abroad who had been drawn to the United States that season by the Exposition at St. Louis and the various conferences there.

WAR, THE REVOLT AGAINST: A. D. 1904.

A Philosopher's Plan for Ending War.

"Man lives in habits, indeed, but what he lives for is thrills and excitements. The only relief from Habit's tediousness is periodical excitement. From time immemorial wars have been, especially for non-combatants, the supremely thrilling excitement. Heavy and dragging at its end, at its outset every war means an explosion of imaginative energy. The dams of routine burst, and boundless prospects open. The remotest spectators share the fascination. ...

"This is the constitution of human nature which we have to

work against. The plain truth is that people *want* war. They want it anyhow; for itself; and apart from each and every possible consequence. It is the final bouquet of life's fireworks. The born soldiers want it hot and actual. The non-combatants want it in the background, and always as an open possibility, to feed imagination on and keep excitement going. ...

{715}

"We do ill, I fancy, to talk much of universal peace or of a general disarmament. We must go in for preventive medicine, not for radical cure. We must cheat our foe, politically circumvent his action, not try to change his nature. In one respect war is like love, though in no other. Both leave us intervals of rest; and in the intervals life goes on perfectly well without them, though the imagination still dallies with their possibility. ... Let the general possibility of war be left open, in Heaven's name, for the imagination to dally with. Let the soldiers dream of killing, as the old maids dream of marrying. But organize in every conceivable way the practical machinery for making each successive chance of war abortive. Put peace-men in power; educate the editors and statesmen to responsibility;—how beautifully did their trained responsibility in England make the Venezuela incident abortive! Seize every pretext, however small, for arbitration methods, and multiply the precedents; foster rival excitements and invent new outlets for heroic energy; and from one generation to another, the chances are that irritations will grow less acute and states of strain less dangerous among the nations. Armies and navies will continue, of course, and will fire the minds of populations with their potentialities of greatness. But their officers will find that somehow or other, with no deliberate intention on any one's part, each successive 'incident' has managed to evaporate and to lead nowhere, and that the thought of what might have been remains their only consolation."

***William James,
Remarks at the Peace Banquet
(Atlantic Monthly, December, 1904).***

WAR, THE REVOLT AGAINST: A. D. 1904-1909.
The Interparliamentary Union.

The Interparliamentary Union, composed of members of the parliamentary bodies of many countries, had its origin in 1888, when, on the 31st of October, thirty members of the French Chamber of Deputies met with ten members of the British Parliament, at Paris, to discuss the practicability of cooperation in efforts for the promotion of international peace. William Randal Cremer, a labor union member of Parliament, is credited with the conception and the active agency which set the movement on foot, and in 1903 he received the Nobel Prize of \$35,000, for distinguished service to the cause of peace. He devoted the money to the same cause. He received further honors from the Government of France, which made him a Chevalier of the Legion of Honor. The results of the undertaking he led have already acquired high importance, and exhibit more each year. If the glorious dream of a World Parliament, empowered to enact international law, is ever realized, the realization may be a growth from this seed.

Thus far, the growth has produced an Interparliamentary Union composed of representatives from the legislatures of every country in Europe which has a really constitutional government, and from the United States. The Congress of the latter became represented in the Union in the winter of 1904, and the next meeting of the Union was held at St. Louis that year, while the Louisiana Purchase Exposition was in progress. The membership of the Union had then risen to about 2000 in number, drawn entirely from the national law-making bodies of the world,—elected representatives of many millions of people, making up a powerfully influential combination of experienced

public men. The St. Louis meeting was attended by two hundred of these, including many of distinguished standing in the parliaments of their several countries. This session of the Union was under the presidency of the Honorable Richard Bartholdt, Member of Congress from Missouri. Its most important action was the adoption, by unanimous vote, of the following resolution:

"**Whereas**, Enlightened public opinion and the spirit of modern civilization alike demand that differences between nations should be adjudicated and settled in the same manner as disputes between individuals are adjudicated—namely, by the arbitrament of courts in accordance with recognized principles of law;

"The Conference requests the several governments of the world to send representatives to an International Conference, to be held at a time and place to be agreed upon by them, for the purpose of considering—

"First, the questions for the consideration of which the Conference at The Hague expressed a wish that a future conference be called;

"Second, the negotiation of arbitration treaties between the nations represented at the Conference to be convened;

"Third, the advisability of establishing an International Congress to convene periodically for the discussion of international questions;

"And this Conference respectfully and cordially requests the President of the United States to invite all the nations to send representatives to such a Conference."

Subsequently, this resolution was presented to the President, at Washington, by the members of the Union, and his assent to

the request was received. Out of this came the train of proceedings which brought about the Second Peace Conference at The Hague.

In 1905 the meeting of the Interparliamentary Union was held at Brussels; in 1906 at London; in 1908 at Berlin.

WAR, THE REVOLT AGAINST: A. D. 1907.

The First National Peace Congress in the United States, assembled at New York.

The Peace Congress assembled at New York April 14, 1907, (the first National assembly of its character), on the initiative of Andrew Carnegie, "surpassed expectation. First of all, in numbers. Delegates registered by the thousand. The best hall in the metropolis proved inadequate. Overflow and additional meetings were held in other halls and in churches. For the first time in the history of great conferences, two banquets were necessary at the close, taking place coincidentally, with some of the same speakers passing from one to the other, no hotel accommodations being sufficient for the function if all applicants were to be housed in one place. Even with this doubling the issuance of tickets had to be stopped.

"Secondly, the Congress was the first really National peace meeting in America. In comparison, previous peace congresses have been sectional. But at last week's over thirty-five States were represented by their Governors or their representatives, by members of State tribunals and State Legislatures, and by Mayors of important cities. The Federal Government was represented by members of the Hague Court, of the Supreme, Circuit, and District Courts, and of Congress. Thus the resultant body was a peculiarly representative official gathering. ...

"Still another striking feature of the Congress lay in the prominent place given to the representatives of labor and commerce, a feature comprised in two meetings, addressed by prominent leaders of the various industries. The general position was well taken by Mr. Samuel Gompers, President of the American Federation of Labor: 'Not as workers will we permit ourselves to be shot down in order to conquer the markets of barbarians and savages. I know of no gathering of labor in the last twenty-five years which has not declared itself unequivocally for international brotherhood and peace.'"

"A final and chief feature of interest lay in the notably practical character of the vast majority of speakers and listeners. The Congress was no 'collection of cranks and fools,' as a hard-headed man of affairs dubbed it in passing the hall, without looking in to verify his statement. Neither was it a collection of white-blooded, weak-kneed theorists, feebly appreciating the actual conditions that govern individual passions and national prejudices. As one glanced around, there were the faces of great captains of industry, of practical leaders of labor, of men who bulk large in commercial enterprises, of trusted political leaders. Nor was the Congress any mere anti-war affair: its business was positive, not negative; it was to affirm the necessity of substituting reason for passion. There was a general sentiment that it ought to emphasize, not 'rainbows' or distant Utopias, but only practical plans certain of realization, and of realization, too, not in the far future, but in this very coming summer by action at The Hague."

The Outlook,
April 27, 1907.

Among the prominent speakers were Mr. Carnegie, who presided, Mr. Root, Secretary of State, Governor Hughes, of New York, Ambassador Bryce, Mr. William J. Bryan, Congressman Bartholdt,

President of the American group in the Inter-parliamentary Union, Professor Münsterberg, President Eliot, Baron d'Estournelles, the eminent peace advocate of France, and Mr. W. T. Stead. Mr. Root pointed out the great obstacle to arbitration—a fear that the tribunals selected would not be impartial, because arbitrators are thought often to act diplomatically rather than judicially. "We need," he said, "for arbitrators, not distinguished public men concerned in all the international questions of the day, but judges interested only in the question appearing on the record before them. Plainly, this end is to be attained by the establishment of a court of permanent judges."

Mr. Bryan made the excellent suggestion that in time of war money-lenders shall not be allowed to wax fat by loans, taking advantage of a nation's weakness and urging it to continue hostilities. A loan by the citizens of a neutral nation, he pointed out, is practically a loan by the nation itself, and should be objected to as much as furnishing shot and shell.

Mr. Stead, writing of the Congress in the *American Review of Reviews*, characterized it as "in many respects the most notable Congress of its kind that has ever been held in the Old World or the New," and as being "the pioneer or John the Baptist of the Second International Conference" soon to meet at The Hague. "It represented," he said, "the first rudimentary, crude, but nevertheless definite effort on the part of the New World to impress its will on the Old World." But he thought the resolutions of the Congress, "as a whole, were hardly worthy of the importance of the occasion or the representative character of the conference," and criticised the committee for taking "no steps for pressing their adoption upon other governments than their own."

WAR, THE REVOLT AGAINST: A. D. 1907.

Second International Peace Conference at The Hague:
Its Conventions, Declarations, and Recommendations.

Text of the Convention for a Pacific Settlement of International Disputes, and of the "Final Act," with its recommended Draft Convention for the Creation of a Judicial Arbitration Court.

"Pursuant to a request of the Interparliamentary Union, held at St. Louis in 1904, that a further peace conference be held, and that the President of the United States invite all nations to send representatives to such a conference, the late Secretary of State, at the direction of the President, instructed, on October 21, 1904, the representatives of the United States accredited to each of the signatories to the acts of The Hague Conference of 1889 to present overtures for a second conference to the ministers for foreign affairs of the respective countries.

"The replies received to this circular instruction of October 21, 1904, indicated that the proposition for the calling of a second conference met with general favor. At a later period it was intimated by Russia that the initiator of the First Conference was, owing to the restoration of peace in the Orient, disposed to undertake the calling of a new conference to continue as well as to supplement the works of the first. The offer of the Czar to take steps requisite to convene a second international peace conference was gladly welcomed by the President, and the Final Act of the Conference only recites in its preamble the invitation of the President.

"The Russian Government thus assumed the calling of the Conference, and on April 12, 1906, submitted the following programme, which was acceptable to the Powers generally and which served as the basis of the work of the Conference:

"1. Improvements to be made in the provisions of the convention relative to the peaceful settlement of international disputes as regards the Court of Arbitration and the International commissions of inquiry.

"2. Additions to be made to the provisions of the convention of 1899 relative to the laws and customs of war on land—among others, those concerning the opening of hostilities, the rights of neutrals on land, etc. Declaration of 1899. One of these having expired, question of its being revived.

"3. Framing of a convention relative to the laws and customs of maritime warfare, concerning—

"The special operations of maritime warfare, such as the bombardment of ports, cities, and villages by a naval force; the laying of torpedoes, etc.

"The transformation of merchant vessels into war ships.

"The private property of belligerents at sea.

"The length of time to be granted to merchant ships for their departure from ports of neutrals or of the enemy after the opening of hostilities.

{717}

"The rights and duties of neutrals at sea, among others the questions of contraband, the rules applicable to belligerent vessels in neutral ports; destruction, in cases of *vis major*, of neutral merchant vessels captured as prizes.

"In the said convention to be drafted there would be introduced the provisions relative to war on land that would be also applicable to maritime warfare.

"4. Additions to be made to the convention of 1899 for the adaptation to maritime warfare of the principles of the Geneva Convention of 1864.

"The United States, however, reserved the right to bring to discussion two matters of great importance not included in the programme, namely, the reduction or limitation of armaments and restrictions or limitations upon the use of force for the collection of ordinary public debts arising out of contracts.

"It was finally decided that the Conference should meet at The Hague on the 15th day of June, 1907, and thus the Conference, proposed by the President of the United States, and convoked by Her Majesty the Queen of The Netherlands upon the invitation of the Emperor of All the Russias, assumed definite shape and form. ...

"In the circulars of October 21 and December 16, 1904, it was suggested as desirable to consider and adopt a procedure by which States nonsignatory to the original acts of The Hague Conference may become adhering parties. This suggestion was taken note of by the Russian Government and invitations were issued to forty-seven countries, in response to which the representatives of forty-four nations assembled at The Hague and took part in the Conference. No opposition was made to the admission of the nonsignatory States."

The delegation of the United States to the Conference was composed of the following members: Commissioners plenipotentiary with the rank of ambassador extraordinary: Joseph H. Choate, of New York, Horace Porter, of New York, Uriah M. Rose, of Arkansas; Commissioner plenipotentiary: David Jayne Hill, of New York, envoy extraordinary and minister plenipotentiary of the United States to the Netherlands; Commissioners Plenipotentiary with rank of minister plenipotentiary: Brigadier General George B. Davis, Judge-Advocate-General, United States Army, Rear-Admiral Charles S. Sperry, United States Navy, William I. Buchanan, of New York; Technical delegate and expert in international law: James Brown Scott, of California; Technical delegate and expert attache to the Commission: Charles Henry Butler, of New

York; Secretary to the Commission: Chandler Hale, of Maine; Assistant secretaries to the Commission: A. Bailly-Blanchard, of Louisiana, William M. Malloy, of Illinois.

"The Dutch Government set aside for the use of the Conference, the Binnenhof, the seat of the States-General, and on the 15th day of June, 1907, at 3 o'clock in the afternoon, the Conference was opened by his excellency the Dutch minister for foreign affairs in the presence of delegates representing forty-four nations. ... At the conclusion of the address of welcome his excellency suggested as president of the Conference His Excellency M. Nelidow, first delegate of Russia, and, with the unanimous consent of the assembly, M. Nelidow accepted the presidency and delivered an address." ...

In accordance with the suggestion of the president, an order of procedure, in twelve articles, was adopted, and the Conference was divided into four Commissions, between which the subjects specified in the programme of the Conference were apportioned. "The actual work of the Conference was, therefore, done in commission and committee. The results, so far as the several commissions desired, were reported to the Conference sitting in plenary session for approval, and after approval, submitted to the small subediting committee for final revision which, however, affected form, not substance. The results thus reached were included in the Final Act and signed by the plenipotentiaries on the 18th day of October, 1907, upon which date the Conference adjourned."

***Report of the Delegates of the United States
(60th Congress, 1st Session Senate Doc. 444).***

The results of the Conference are embodied in fourteen Conventions duly formulated and signed, and a "Final Act" in which certain principles are declared as being "unanimously admitted." Of the Conventions entered into, that most important one which provides means for a pacific solution of

international conflicts is but a revision of the Convention for the same purpose which the Powers represented at the First Peace Conference, of 1899, gave adhesion to, and the full text of which is printed in Volume VI. of this work (pages 356-359). To a large extent the articles of the Convention are unchanged, and the changes made are mostly in the nature of an amplification of provisions and prescriptions of procedure for carrying out the agreements set forth in the compact of 1899. This occurs especially in Part III., relating to "International Commissions of Inquiry," the specifications for which, merely outlined in six articles of the Convention of 1899, were detailed with precision in twenty-eight articles of the Convention of 1907. A similar amplification was given to the chapters on "The System of Arbitration" and "Arbitral Procedure." By a verbal change of some significance, the parties to the Convention are designated "Contracting Powers," instead of "Signatory Powers," as before.

Other important features of the revision are noted in an article which the Honorable David Jayne Hill, one of the American Commission at the Conference, communicated to *The American Review of Reviews* of December, 1907. Dr. Hill wrote:

"With regard to good offices and mediation, a slight step forward was taken by the acceptance of the American proposition that the initiative of powers foreign to the controversy in offering them is not only 'useful' but 'desirable.' Greater precision has been given to the operation of commissions of inquiry, whose great utility has already been tested, but it was decided that the functions of such commissions should be confined to a determination of facts and should not extend to fixing responsibility. As regards arbitration, while it was reasserted that 'in questions of a legal character, and especially in the interpretation or application of international conventions, arbitration is recognized by the contracting powers as the most efficacious

and at the same time the most equitable means of settling differences that have not been adjusted by diplomacy,' and, 'in consequence, it would be desirable that, in contentions of this character, the powers should resort to arbitration,' it was not found possible to render this resort an obligation.

{718}

"It is necessary to state, however, that while unanimity upon this proposal was not obtainable—even for a convention that omitted all questions affecting 'the vital interests, independence, or honor' of the contestants and included only a meagre list of mainly unimportant subjects—32 powers voted in favor of it, only 9 were opposed, and 3 abstained from voting. As practical unanimity was held to be necessary for the inclusion of a convention in the final act, even this very moderate attempt at obligatory arbitration was unfruitful. Still, as this strong manifestation of a disposition to make a definite engagement could not conveniently be nullified without being in some measure recognized, it was resolved, with four abstentions, that the first commission was: 'Unanimous (1) in recognizing the principle of obligatory arbitration; and (2) in declaring that certain differences, notably those relative to the interpretation and application of conventional stipulations, are susceptible of being submitted to obligatory arbitration without restriction.'

"Regarding this resolution as a retreat from the more advanced position that had been taken by 32 powers, the head of the American delegation clearly explained its attitude and refrained from voting.

"It must, in justice, be added that some of the powers voting against an obligatory arbitration convention probably did so chiefly for the purpose of avoiding the isolation of others, and that some of the powers most earnest in opposing the project not only have negotiated special treaties of

obligatory arbitration, but declare their intention of negotiating many more. The state of the question, then, is this: All accept the principle of obligatory arbitration in certain classes of cases, 32 powers are prepared to make definite engagements with all the rest, 9 prefer to make them only with states on whose responsibility they can rely, and 3 decline at present to commit themselves."

On the part of the United States, when this important Convention was submitted subsequently to the Senate, it was ratified conditionally, by the following resolution, adopted April 2, 1908.

"Resolved (two-thirds of the Senators present concurring therein), That the Senate advise and consent to the ratification of a convention signed by the delegates of the United States to the Second International Peace Conference, held at The Hague from June sixteenth to October eighteenth, nineteen hundred and seven, for the pacific settlement of international disputes, subject to the declaration made by the delegates of the United States before signing said convention, namely:

"‘Nothing contained in this convention shall be so construed as to require the United States of America to depart from its traditional policy of not intruding upon, interfering with, or entangling itself in the political questions of policy or internal administration of any foreign state; nor shall anything contained in the said convention be construed to imply a relinquishment by the United States of its traditional attitude toward purely American questions.’

"Resolved further, as a part of this act of ratification, That the United States approves this convention with the understanding that recourse to the permanent court for the settlement of differences can be had only by agreement thereto through general or special treaties

of arbitration heretofore or hereafter concluded between the parties in dispute; and the United States now exercises the option contained in article fifty-three of said convention, to exclude the formulation of the 'compromis' by the permanent court, and hereby excludes from the competence of the permanent court the power to frame the 'compromis' required by general or special treaties of arbitration concluded or hereafter to be concluded by the United States, and further expressly declares that the 'compromis' required by any treaty of arbitration to which the United States may be a party shall be settled only by agreement between the contracting parties, unless such treaty shall expressly provide otherwise."

Of the other Conventions agreed to and signed at the Conference it will be sufficient to give here in part a summary statement of their objects and provisions which was prepared by the Honorable James Brown Scott, one of the Technical Delegates to the Conference from the United States, originally for publication in ***The American Journal of International Law*** for January, 1908. They are described by Mr. Scott as follows:

"The second is the convention restricting the use of force for the recovery of contract debts. This was introduced by the American delegation, loyally and devotedly seconded by Doctor Drago, who has battled for the doctrine to which he has given his name. Without the support of Doctor Drago, it is doubtful if Latin America—for whose benefit it was introduced—would have voted for this very important doctrine. The proposition is very short; it consists of but three articles, but we must not measure things by their size. In full it is as follows; 'In order to avoid between nations armed conflicts of a purely pecuniary origin arising from contractual debts claimed from the government of one country by the government of another country to be due to its nationals, the contracting powers agree not to have recourse to armed force for the collection of such contractual debts.

"‘However, this stipulation shall not be applicable when the debtor state refuses or leaves unanswered an offer to arbitrate, or, in case of acceptance, makes it impossible to formulate the terms of submission, or after arbitration, fails to comply with the award rendered.

"‘It is further agreed that arbitration here contemplated shall be in conformity, as to procedure, with Title IV, Chapter III of the convention for the pacific settlement of international disputes adopted at The Hague, and that it shall determine, in so far as there shall be no agreement between the parties, the justice, and the amount of the debt, the time and mode of payment thereof.’ ...

{719}

"The third convention relates to the opening of hostilities and provides, in Article I, that the contracting powers recognize that hostilities between them should not commence without notice, which shall be either in the form of a formal declaration of war or of an ultimatum in the nature of a declaration of conditional war. This is to protect belligerents from surprise and bad faith. Article 11 is meant to safeguard the rights of neutrals. The state of war should be notified without delay to neutral powers, and shall only affect them after the receipt of a notification, which may be sent even by telegram.’ ...

"The fourth convention concerns the laws and customs of land warfare, [and is] a revision of the convention of 1899. It is highly technical and codifies in a humanitarian spirit the warfare of the present.

"The fifth convention attempts to regulate the rights and duties of neutral powers and of neutral persons in case of land warfare. Short, but important, its guiding spirit is

expressed in the opening paragraph of the preamble, namely, to render more certain the rights and duties of neutral powers in case of warfare upon land and to regulate the situation of belligerent refugees in neutral territory. ...

"The sixth is the convention concerning enemy merchant ships found in enemy ports or upon the high seas at the outbreak of hostilities. Custom forbids the capture of enemy vessels within the port of the enemy on the outbreak of hostilities and allows them a limited time to discharge or load their cargo and depart for their port of destination. The attempt was made to establish this custom or privilege as a right. The proposition, however, met with serious opposition and, instead of the right, the convention states that it is desirable that enemy ships be permitted freely to leave the port. The convention, therefore, was restrictive rather than declaratory of existing international practice. The same might be said of another provision of the convention concerning the treatment of enemy merchant ships upon the high seas. It may be said that the expression of a desire is tantamount to a positive declaration, but, strictly construed, the convention is not progressive. It lessens rights acquired by custom and usage, although it does, indeed, render the privilege granted universal. The American delegation, therefore, refrained from signing the convention.

"The seventh convention deals with the transformation of merchant ships into ships of war, and it must be said that the positive results of this convention are of little or no practical value. The burning question was whether merchant ships might be transformed into men-of-war upon the high seas. As the transformation of merchant vessels into war vessels upon the high seas caused an international commotion during the recent Russo-Japanese war. Great Britain and the United States insisted that the transfer should only be allowed within the territorial jurisdiction of the transforming power. Some of the continental states, on the contrary, refused to

renounce the exercise of the alleged right. The great maritime states were thus divided, and as the question was too simple and too plain to admit of compromise, it was agreed to drop it entirely for the present. In order, however, that something might remain of the careful and elaborate discussions of the subject, a series of regulations was drawn up regarding the transformation of merchant ships into vessels of war, declaratory of international custom. ... Indirectly, the rightfulness or wrongfulness of privateering was concerned, and inasmuch as the United States would not consent to abolish privateering unless the immunity of private property be safeguarded, the American delegation abstained from signing the convention.

"The eighth convention relates to the placing of submarine automatic mines of contact, a subject of present and special interest to belligerents; while the interest of the neutral is very general. ... Mines break from their moorings and endanger neutral life and property. The conference, therefore, desires to regulate the use of mines in such a way as not to deprive the belligerents of a recognized and legitimate means of warfare, but to restrict, as far as possible, the damage to the immediate belligerents. ...

"The ninth convention forbade the bombardment by naval forces of undefended harbors, villages, towns, or buildings. The presence, however, of military stores would permit bombardment of such ports for the sole purpose of destroying the stores, provided they were not destroyed or delivered up upon request. Notice, however, should be given of the intention to bombard. In like manner, the convention permitted the bombardment of such undefended places if provisions were not supplied upon requisition to the naval force. Bombardment, however, was not allowed for the collection of mere money contributions. ...

"The tenth convention adapted to maritime warfare the principles of the Geneva Convention of 1906. ...

"The eleventh convention relates to certain restrictions in the exercise of the right of capture in maritime war. It is a modest document, but is all that was saved from the wreck of the immunity of private property. The American delegation urged the abolition of the right of capture of unoffending enemy private property upon the high seas, but great maritime powers such as Great Britain, France, Russia, and Japan were unwilling to relinquish this means of bringing the enemy to terms. ...

"The twelfth convention sought to establish an international court of prize, and there only remains the ratification of this convention by the contracting powers in order to call into being this great and beneficent institution. For years enlightened opinion has protested against the right of belligerents to pass final judgment upon the lawfulness of the capture of neutral property, and it is a pleasure to be able to state that the interests of the neutrals in the neutral prize are henceforward to be placed in the hands of neutral judges with a representation of the belligerents, in order that the rights of all concerned may be carefully weighed and considered. ...

{720}

"The thirteenth convention concerns and seeks to regulate the rights and duties of neutral powers in case of maritime war. This is an elaborate codification of the rights and duties of neutrals in which the conference essayed to generalize and define on the one hand the rights of neutrals and the correlative duties of the belligerents, and in the second place to set forth in detail the duties of neutrals, thus safeguarding the rights of belligerents in certain phases of maritime warfare. ... The result, however, was unsatisfactory to some of the larger maritime powers, which prefer their present regulations on the subject of neutrality or which were

unwilling to accept the modifications proposed. The United States was not satisfied with certain provisions of the convention, and reserved the right to study the project in detail before expressing a final opinion. It therefore abstained from voting and signing.

"The fourteenth convention is a reenactment of the declaration of 1899 forbidding the launching of projectiles and explosives from balloons. The original declaration was agreed to for a period of five years, and as this period had expired the powers were without a regulation on the subject. The reenactment provided that the present declaration shall extend, not merely for a period of five years, but to the end of the Third Conference of Peace."

Reprinted in

Senate Document Number 433, 60th Congress, 1st Session.

Appended to these Conventions are the Resolutions or Declarations of accepted Principles embodied in the "Final Act"; and these are far from being the least important of the fruits of the Conference. They need presentation in full.

WAR, THE REVOLT AGAINST:

Final Act of the Second International Peace Conference.

"At a series of meetings, held from the 15th June to the 18th October, 1907, in which the above Delegates [named in a preamble] were throughout animated by the desire to realize, in the fullest possible measure, the generous views of the august initiator of the Conference and the intentions of their Governments, the Conference drew up for submission for signature by the Plenipotentiaries, the text of the Conventions and of the Declaration enumerated below [named in their order, as summarized above] and annexed to the present Act:—

"These Conventions and Declaration shall form so many separate Acts. These Acts shall be dated this day, and may be signed up to the 30th June, 1908, at The Hague, by the Plenipotentiaries of the Powers represented at the Second Peace Conference.

"The Conference, actuated by the spirit of mutual agreement and concession characterizing its deliberations, has agreed upon the following Declaration, which, while reserving to each of the Powers represented full liberty of action as regards voting, enables them to affirm the principles which they regard as unanimously admitted;—

"It is unanimous—

"1. In admitting the principle of compulsory arbitration.

"2. In declaring that certain disputes, in particular those relating to the interpretation and application of the provisions of International Agreements, may be submitted to compulsory arbitration without any restriction.

"Finally, it is unanimous in proclaiming that, although it has not yet been found feasible to conclude a Convention in this sense, nevertheless the divergences of opinion which have come to light have not exceeded the bounds of judicial controversy, and that, by working together here during the past four months, the collected Powers not only have learnt to understand one another and to draw closer together, but have succeeded in the course of this long collaboration in evolving a very lofty conception of the common welfare of humanity.

"The Conference has further unanimously adopted the following Resolution:—

"The Second Peace Conference confirms the Resolution adopted by the Conference of 1899 in regard to the limitation of military expenditure; and inasmuch as military expenditure has

considerably increased in almost every country since that time, the Conference declares that it is eminently desirable that the Governments should resume the serious examination of this question.

"It has besides expressed the following opinions:—

"1. The Conference calls the attention of the Signatory Powers to the advisability of adopting the annexed draft Convention for the creation of a Judicial Arbitration Court, and of bringing it into force as soon as an agreement has been reached respecting the selection of the Judges and the constitution of the Court.

"2. The Conference expresses the opinion that, in case of war, the responsible authorities, civil as well as military, should make it their special duty to ensure and safeguard the maintenance of specific relations, more especially of the commercial and industrial relations between the inhabitants of the belligerent States and neutral countries.

"3. The Conference expresses the opinion that the Powers should regulate, by special Treaties, the position, as regards military charges, of foreigners residing within their territories.

"4. The Conference expresses the opinion that the preparation of regulations relative to the laws and customs of naval war should figure in the programme of the next Conference, and that in any case the Powers may apply, as far as possible, to war by sea the principles of the Convention relative to the Laws and Customs of War on land.

"Finally, the Conference recommends to the Powers the assembly of a Third Peace Conference, which might be held within a period corresponding to that which has elapsed since the preceding Conference, at a date to be fixed by common

agreement between the Powers, and it calls their attention to the necessity of preparing the programme of this Third Conference a sufficient time in advance to ensure its deliberations being conducted with the necessary authority and expedition.

"In order to attain this object the Conference considers that it would be very desirable that, some two years before the probable date of the meeting, a preparatory Committee should be charged by the Governments with the task of collecting the various proposals to be submitted to the Conference, of ascertaining what subjects are ripe for embodiment in an International Regulation, and of preparing a programme which the Governments should decide upon in sufficient time to enable it to be carefully examined by the countries interested. This Committee should further be intrusted with the task of proposing a system of organization and procedure for the Conference itself.

"In faith whereof the Plenipotentiaries have signed the present Act and have affixed their seals thereto."

{721}

WAR, THE REVOLT AGAINST:

Draft Convention recommended for the Creation of a Judicial Arbitration Court.

The following are the more important provisions of the "annexed draft Convention for the creation of a Judicial Arbitration Court" which the Signatory Powers are asked, in the first of the "Opinions" expressed above, to consider "the advisability of adopting":

"Article I.

With a view to promoting the cause of arbitration, the Contracting Powers agree to constitute, without altering the

status of the Permanent Court of Arbitration, a Judicial Arbitration Court, of free and easy access, composed of Judges representing the various juridical systems of the world, and capable of insuring continuity in jurisprudence of arbitration.

"Article II.

The Judicial Arbitration Court is composed of Judges and Deputy Judges chosen from persons of the highest moral reputation, and all fulfilling conditions qualifying them, in their respective countries, to occupy high legal posts, or be jurists of recognized competence in matters of international law. The Judges and Deputy Judges of the Court are appointed, as far as possible, from the members of the Permanent Court of Arbitration. The appointment shall be made within the six months following the ratification of the present Convention.

"Article III.

The Judges and Deputy Judges are appointed for a period of twelve years, counting from the date on which the appointment is notified to the Administrative Council created by the Convention for the Pacific Settlement of International Disputes. Their appointments can be renewed. Should a Judge or Deputy Judge die or retire, the vacancy is filled in the manner in which his appointment was made. In this case, the appointment is made for a fresh period of twelve years.

"Article IV.

The Judges of the Judicial Arbitration Court are equal and rank according to the date on which their appointment was notified. The Judge who is senior in point of age takes precedence when the date of notification is the same. The Deputy Judges are assimilated, in the exercise of their functions, with the Judges. They rank, however, below the latter.

"Article V.

The Judges enjoy diplomatic privileges and immunities in the exercise of their functions, outside their own country. Before taking their seat, the Judges and Deputy Judges must swear, before the Administrative Council, or make a solemn affirmation to exercise their functions impartially and conscientiously.

"Article VI.

The Court annually nominates three Judges to form a special delegation and three more to replace them should the necessity arise. They may be re-elected. They are balloted for. The persons who secure the largest number of votes are considered elected. The delegation itself elects its President, who, in default of a majority, is appointed by lot. A member of the delegation cannot exercise his duties when the Power which appointed him, or of which he is a national, is one of the parties. The members of the delegation are to conclude all matters submitted to them, even if the period for which they have been appointed Judges has expired.

"Article VII.

A Judge may not exercise his judicial functions in any case in which he has, in any way whatever, taken part in the decision of a National Tribunal, of a Tribunal of Arbitration, or of a Commission of Inquiry, or has figured in the suit as counsel or advocate for one of the parties. A Judge cannot act as agent or advocate before the Judicial Arbitration Court or the Permanent Court of Arbitration, before a Special Tribunal of Arbitration or a Commission of Inquiry, nor act for one of the parties in any capacity whatsoever so long as his appointment lasts. ...

"Article X.

The Judges may not accept from their own Government or from that of any other Power any remuneration for services connected with their duties in their capacity of members of the Court.

"Article XI.

The seat of the Judicial Court of Arbitration is at The Hague, and cannot be transferred, unless absolutely obliged by circumstances, elsewhere. ...

"Article XII.

The Administrative Council fulfills with regard to the Judicial Court of Arbitration the same functions as to the Permanent Court of Arbitration.

"Article XIV.

The Court meets in session once a year. The session opens the third Wednesday in June and lasts until all the business on the agenda has been transacted. ...

"Article XVII. The Judicial Court of Arbitration is competent to deal with all cases submitted to it, in virtue either of a general undertaking to have recourse to arbitration or of a special agreement.

"Article XXXII.

The Court itself draws up its own rules of procedure, which must be communicated to the Contracting Powers. After the ratification of the present Convention the Court shall meet as early as possible in order to elaborate these rules, elect the President and Vice-President, and appoint the members of the delegation.

"Article XXXIII.

The Court may propose modifications in the provisions of the present Convention concerning procedure. These proposals are communicated through the Netherland Government to the Contracting Powers, which will consider together as to the measures to be taken."

WAR, THE REVOLT AGAINST:

The sequent International Naval Conference at London in 1908-1909.

The action of the Peace Conference which contemplated the establishment of an International Prize Court (embodied in the Twelfth Convention described above) had a sequel in the next year, resulting from the suggestion by the British Government that, preliminary to the creation of such a court, the prior holding of an International Naval Conference was desirable, for the purpose which it explained in the following words: "Having regard to the importance attached by his Majesty's Government to the setting up of that Court, they decided to take the initiative in inviting the co-operation of the Powers whose belligerent rights would be most directly affected, in formulating in precise terms a set of rules relative to the law of prize, which should be recognized as embodying doctrines held to be generally binding as part of the existing law of nations." In connection with this suggestion a list of questions was submitted to the several Governments consulted, "on which his Majesty's Government, after careful examination, considered that an understanding should if possible be reached, and which would therefore appropriately constitute the programme of a special naval conference to meet in London."

{722}

The questions were as follows:

"(a.)

Contraband, including the circumstances under which particular articles can be considered as contraband; the penalties for their carriage; the immunity of a ship from search when under convoy; and the rules with regard to compensation where vessels have been seized but have been found in fact only to be carrying innocent cargo;

"(b.)

Blockade, including the questions as to the locality where seizure can be effected, and the notice that is necessary before a ship can be seized;

"(c.)

The doctrine of continuous voyage in respect both of contraband and of blockade;

"(d.)

The legality of the destruction of neutral vessels prior to their condemnation by a Prize Court;

"(e.)

The rules as to neutral ships or persons rendering 'unneutral service' ('assistance hostile');

"(f.)

The legality of the conversion of a merchant-vessel into a war-ship on the high seas;

"(g.)

The rules as to the transfer of merchant-vessels from a belligerent to a neutral flag during or in contemplation of hostilities;

"(h.)

The question whether the nationality or the domicile of the owner should be adopted as the dominant factor in deciding whether property is enemy property."

Responses to the British invitation by the greater naval Powers were favorable, and the resulting International Naval Conference had sittings in London from December 4, 1908, until February 26, 1909. The Powers sending representatives to take part in it were Great Britain, France, Germany, Russia, Austria-Hungary, Italy, the United States, Japan, Spain,

Holland. A report of the proceedings and conclusions arrived at was made public on the 22d of March. On two, only, of the questions, proposed by Great Britain, no agreement was reached, and these were left open,—namely; "the legality of the conversion of a merchant-vessel into a war-ship on the high seas, and the question whether the nationality or the domicile of the owner should be regarded as the dominant factor in deciding the character, neutral or enemy, of property." Original differences on other questions were compromised.

A serious difficulty in the undertakings of the Conference was occasioned by the fact that the Constitution of the United States is held to preclude any right of appeal from decisions of its Supreme Court. What was done to overcome this difficulty is explained in the report of the British Delegates as follows: "The Conference was asked to express its acceptance of the principle that, as regards countries in which such constitutional difficulty arose, all proceedings in the International Prize Court should be treated as a rehearing of the case *de novo*, in the form of an action for compensation, whereby the validity of the judgments of the national courts would remain unaffected, whilst the duty of carrying out a decision of the International Court ordering the payment of compensation would fall upon the government concerned. The proposal was further coupled with the suggestion that the jurisdiction of the International Prize Court might be extended, by agreement between two or more of the signatory Powers, to cover cases at present excluded from its jurisdiction by the express terms of the Prize Court Convention, and that in the hearing of such cases that court should have the functions, and follow the procedure, laid down in the Draft Convention relative to the creation of a Judicial Arbitration Court, which was annexed to the Final Act of the Second Peace Conference of 1907.

"Great hesitation was felt in approaching these questions. It

was undeniable that they lay wholly outside the programme which the Conference had been invited to discuss, and to which the Powers accepting the invitation had expressly assented. It was, however, not disputed that so much of the United States proposal as related to the difficulties in the way of the ratification of the Prize Court Convention was in so far germane to the labours of the Conference, as these also were avowedly directed to preparing the way for the more general acceptance of the Prize Court Convention. As it must clearly be desired by all countries interested in the establishment of the International Prize Court that the United States should be one of the Powers submitting to its jurisdiction and bound by its decisions, the Conference thought it right, notwithstanding its lack of formal authority, to go so far as to express the wish ('vœu') which stands recorded in the final Protocol of its proceedings, and of which the substance is that the attention of the various Governments represented is called by their delegates to the desirability of allowing such countries as are precluded by the terms of their constitution from ratifying the Prize Court Convention in its present form, to do so with a reservation in the sense of the first part of the United States proposal. On the other hand, the question of setting up the Judicial Arbitration Court, which seemed to have no necessary connexion with the Prize Court Convention, was decided by all the delegations, except that which had brought it forward, to be one which the Conference could not discuss."

Parliamentary Papers, 1909:

Papers by Command, 4554.

Also,

London Times, March 22, 1909.

WAR, THE REVOLT AGAINST:

Central American Peace Conference at Washington.

General Treaty of Peace and Amity.

Convention establishing a Central American Court of Justice.

See (in this Volume)

CENTRAL AMERICA: A. D. 1907.

WAR, THE REVOLT AGAINST: A. D. 1907-1908.

Waning of the Military Passion in France.

Two very striking indications of the cooling in the French people of the militant passion which made them in former times one of the most warlike of the European races have been afforded within the past three years. The first appeared in the winter of 1907, when a Paris newspaper of great circulation collected votes from its readers on the question, "Who was the Greatest Frenchman of the Nineteenth Century?" Much interest in the query was excited, and more than 15,000,000 [votes] were said to have been cast.

{723}

From any prior generation the answer of a big majority would undoubtedly have been, "Napoleon Bonaparte"; but the French of the Twentieth Century have developed so different an estimate of human greatness that Louis Pasteur, the Man of Science, led the poll, receiving 1,838,103 votes; while Victor Hugo came next below him, by somewhat more than a hundred thousand votes, and Gambetta was put third in the list. Napoleon received only the fourth place of honor in the estimate of fifteen millions of the French of these days.

About a year later the same change was betokened in a hardly less significant way, by a speech from the Prime Minister of France. The occasion of the address was the inauguration of a monument to M. Scheurer-Kestner, who had been vice-president of the French Senate when the Dreyfus iniquities began to be dragged out of darkness into light, and who was one of the few men in public life then who strove heroically to have the truth ascertained and justice done. Scheurer-Kestner was an Alsatian, and this fact gave Premier Clemenceau an opportunity to break silence on the sore subject of the loss of Alsace,

which French statesmen have not ventured to refer to since the heart-breaking surrender of 1871. His breaking of that silence was meant to break, and assuredly does break, the long brooding of revengefulness in French hearts which has been a menace to the peace of Europe for nearly 40 years.

"I do not fear," he said, "to call up the memory of that bloody past. I am mindful of the responsibility which belongs to my office, and I can speak without constraint of events which have entered into history. I can proclaim feelings which we cannot repudiate—which we cannot even hide without lowering ourselves." And this is his open proclamation of the feeling to which France has come, in its thought of Alsace:

"We received France issuing from frightful trial. To rebuild her in her legitimate power of expansion as well as in her dignity as a great moral person, we have no need either to hate or to lie, nor even to recriminate. We look to the future. Sons of a great history, jealously careful of the lofty impulses native to us, in which the civilizing virtue of France was fashioned, we can look in quiet of soul on the descendants of strong races which for centuries have measured themselves with the men of our lands in battlefields beyond numbering. Two such great rival peoples, for the very honor of their rivalry, have a like interest to keep their respect, the one for the other."

WAR, THE REVOLT AGAINST: A. D. 1907-1909.

German Opposition to the "Navy Fever,"
in High Circles as well as Low.

Views of Herr Von Holstein and Admiral Galster.

How far the naval ambitions and costly naval policy of Germany are supported by public opinion is much of a question. It is certain that they are a cause of wide discontent in the industrial classes, and no less certain that the weightiest influence behind them is that of the Emperor, who stimulates

the exertions of a powerful Navy League. That there is an effective disapproval of the policy in high political circles has been shown lately by the publication of some expressions on the subject by the late Herr von Holstein, who was for many years the chief of the Political Department of the German Foreign Office,—the mentor and prompter from behind the scenes of several successive Chancellors of the Empire. In some reminiscences of this important official, by an intimate friend, Herr von Rath, who published them in September, 1909, he is quoted as having, in 1907, denounced what he called "navy fever" in Germany in these strong words;

"This dangerous disease is fed upon the fear of an attack by England, which is not in accordance with facts. The effect of the 'navy fever' is pernicious in three directions—in domestic politics on account of the intrigues of the Navy League, which also produce the greatest ill-feeling in South Germany; in the finances on account of the prohibitive expenditure; in foreign politics on account of the mistrust which these armaments awake. England sees in them a menace which keeps her bound to the side of France. At the same time, even with taxation strained to the utmost limit, the construction of a fleet able to cope with the united fleets of England and France is entirely out of the question. From the menace which everybody in England sees in German naval construction the present Liberal Government in England will not draw serious conclusions. It will be different when the Conservatives come into power. The danger of war between Germany on the one hand and England and France on the other is even today playing a part in the political calculations of other countries. Against armaments on land nobody will offer any objection, because they are justified by the needs of defence. In our naval armaments several Powers see a perpetual menace.

"Even among Parliamentary Deputies there are many who condemn the 'navy fever,' but no one of them will take the

responsibility of refusing to vote ships, a responsibility which would recoil upon him in the event of a defeat at sea. Anybody who to-day makes a stand against the prevailing 'navy fever' is attacked from all sides as wanting in patriotism, but a few years hence the justice of my opinion will be established."

According to Herr von Rath, Herr von Holstein declared in February, 1909, three months before his death, that the navy question transcended all others in importance. He is said to have watched with approval the campaign which is still more or less vigorously carried on by Vice-Admiral Galster and others against the "big ship policy," and to have said, with reference to one of Admiral Galster's pamphlets:—"The main thing is to expose the lying and treacherous fallacy expressed in the statement that every fresh ship is an addition to the power of Germany—when every fresh ship causes England, to say nothing of France, to build two ships."

The Vice-Admiral Galster here referred to contends that submarines are more effective for defence than Dreadnoughts, and he labors to persuade his fellow countrymen to be satisfied with defensive armament, repudiating what creates suspicion of offensive designs.

WAR, THE REVOLT AGAINST: A. D. 1908.
School Peace League, The American.

"The American School Peace League [organized in 1908] aims to secure the cooperation of the educational public of America in the project for promoting international justice and equity. ... It is hoped that every teacher in the country will subscribe to the purposes of the League by becoming a member. Much of the work will be done by committees, five of which have been organized up to the present time. ...

"The Committee on Meetings and Discussion aims to induce educational associations throughout the country to place the subject of internationalism on their programs. It also seeks to stimulate literary and debating societies, in colleges and schools, to study the subject. The Committee recommends to educational associations the establishment of International Committees, or Departments, for the purpose of making a detailed study of the relation of the International Movement to school instruction.

"The Committee on Publications intends to build up a body of literature, dealing with the interrelation between peoples and nations along political, industrial, and social lines. To this end, the Committee purposes to issue, directly or indirectly, a series of publications for the young, that may be used in the geography, history, science, and literature classes; it also intends to make a collection of the present songs which illustrate the peace sentiment, and to stimulate the writing of new ones.

"The Press Committee, which comprises some of the leading educational editors of the country, is prepared to acquaint teachers with the work of the League through the columns of the educational magazines.

"The Committee on Teaching History will study the textbooks with reference to the space devoted respectively to war and to peace. It hopes to develop among teachers a sentiment which shall lay emphasis on the arts of peace, and on the industrial and social conditions of the people, rather than on campaigns, battles, and other military details. It further aims to arrange, if possible, courses in history to be given at summer schools and teachers' institutes, with special attention to the growth of international friendship.

"The International Committee intends to make a constructive

study of international cooperation in activities which particularly affect educational work."

Mrs. Fannie Fern Andrews, Secretary.
Objects of the American School Peace League,

WAR, THE REVOLT AGAINST: A. D. 1908.

Evasion of the Conscription in Russia.

According to statistics published in the spring of 1909 by the military organ, the ***Russky Invalid***, the conscription of 1908 took place in the following circumstances. The annual contingent had been fixed by the Duma at 456,481 men. Altogether 1,281,655 conscripts were called up for examination. Of this huge number 80,165 men failed to appear, including 20,693 Jews, out of a total of 64,005 Jews conscripted. The largest number of absentees was in the provinces of Suwalki, Lomja, Plotzk, and Kovno. It is from these provinces that a general exodus of Polish, Lithuanian, and Jewish youths to America is noticeable. The actual number found to be fit for military service in 1908 was 17,926 short of the contingent fixed by the Duma. This deficiency was composed of 943 Russians, 5,154 other Christians, 10,677 Jews, 1,082 Mahomedans, and 70 other non-Christians. The recruiting stations noted a general falling off in the physique of the conscripts.

WAR, THE REVOLT AGAINST: A. D. 1909.

Changed Conditions in Europe making for Peace.

See (in this Volume)
EUROPE: A. D. 1909.

WAR, THE REVOLT AGAINST:

International School of Peace.

Mr. Ginn's Great Fund for Peace Propagandism.

Members of the various Boston peace organizations took part last evening [December 15] in the formation of an International School of Peace. The idea originated with Edwin Ginn, the publisher, and the 'house warming' took place at No. 29 Beacon Street, where a room was appropriately adorned for the occasion with the flags of many nations and large portraits of Sumner and Cobden and other great international leaders.

"Mr. Ginn welcomed the company in a speech wherein the motives and experience which prompted him to found the school were set forth. He explained what he hoped of the organization, how he had for years appealed to various millionaires to unite with him in some larger provision than any which existed for the systematic education of the people in peace principles, the response to which had been disappointing.

"Mr. Ginn felt that some large beginning must be made by somebody; and so he had appropriated \$50,000 a year to the work from now on, and provided in his will that the bulk of his estate, after proper provision for family and friends, should go to this cause, which he felt to be the greatest and most necessary cause in the world. This action had brought him multitudes of letters, he said, and clearly awakened much interest; and if it prompted others to do much more than he could do, that was what he wanted. The friends of the cause, especially its wealthy friends, had been strangely asleep to the pressing need for this work of popular education. It must be thoroughly organized to reach the schools and colleges, the churches and newspapers and business men. He gave illustrations of the awful cost and waste of the present military system, which he said violated every principle of good business, political economy, and common sense. ...

'The room is not only a bureau for the office force, but a reading-room and library, where the latest information touching the progress of the movement will always be furnished

to teachers, preachers, and all who are interested. Regular conferences upon the different aspects of the movement will also be held there."

The Boston Transcript,
December 16, 1909.

WAR, THE REVOLT AGAINST: A. D. 1909.

The Second National Peace Congress in the United States, assembled at Chicago.

The Second National Peace Congress in the United States held its session in Chicago, May 3-5, 1909. The attendance was large, the speaking of high quality and the prevailing spirit earnest in its repudiation of all reasoning or feeling that is tolerant of the barbarism of war. Respectful attention was given to an address by the German Ambassador to the United States, Count Bernstorff, who defended the attitude of his Government on the question of a limitation of armaments, but the expressions of the Congress on the subject were not toned to agreement with his plea. Among its resolutions was the following:

"Resolved, That no dispute between nations, except such as may involve the national life and independence, should be reserved from arbitration, and that a general treaty of obligatory arbitration should be included at the earliest possible date. Pending such a general treaty, we urge upon our government, and the other leading Powers, such broadening of the scope of their arbitration treaties as shall provide, after the example of the Danish Netherlands treaty, for the reference to the Hague Court of all differences whatever not settled otherwise by peaceful means."

{725}

WAR, THE REVOLT AGAINST: A. D. 1909.

The Annual Lake Mohonk Peace Conferences in the United States.

The annual Peace Conferences at Lake Mohonk, in the United States, have been held with regularity. At the Fifteenth, convened in May, 1909, a strong resolution was adopted, asking the Government of the United States to consider "whether the peculiar position it occupies among the nations does not afford it a special opportunity to lead the way towards ... carrying into effect the strongly expressed desire of the two Peace Conferences at The Hague, that the governments examine the possibility of an agreement as to the limitation of armed forces by land and sea, and of war budgets."

Privately during the Conference there was discussion of the suggestion that if four or five of the great Powers—England, Germany, France, Italy, the United States, and Japan, and perhaps Spain and Russia—could join in establishing a Supreme Court of the nations, to which they would refer their difficulties, other nations would be compelled by the course of events to accept the tribunal and its decisions, and to come into participation in it on such terms as might later be agreed upon.

WAR, THE REVOLT AGAINST: A. D. 1909.

Exchange of Parliamentary Visits between France and Sweden.

Seventy-six members of the French Parliament, representing the international arbitration group, visited Stockholm in July, 1909, under the leadership of Baron d'Estournelles de Constant. The visit was paid in return for one made by the members of the three Scandinavian Parliaments to Paris some time before.

WAR, THE REVOLT AGAINST: A. D. 1909.

A World Petition for a General Treaty of Obligatory Arbitration.

At the annual meeting of the International Peace Bureau at Brussels, October 9, 1909, the following resolution was adopted, expressing approval of the world-petition to the third Hague Conference in favor of a general treaty of obligatory arbitration:

"**Whereas**, Public opinion, **if recorded**, will prove an influential factor at the third Hague Conference; and

Whereas, The 'world-petition to the third Hague Conference' has begun to successfully establish a statistical record of the men and women in every country who desire to support the governments in their efforts to perfect the new international order based on the principle of the solidarity of all nations;

Resolved, That the Commission and the General Assembly of the International Peace Bureau, meeting at Brussels October 8 and 9, 1909, urgently recommend the signing of the 'world-petition to the third Hague Conference.'"

WAR, THE REVOLT AGAINST: A. D. 1909.

Evasion of Military Service in France.

Spread of Anti-Militarism.

According to returns of the recruiting for the French Army, published in the summer of 1909, there appears to be a steady increase in the evasion of service by young men at the times they are required by law to enter it. "Since 1906, when the number of refractory recruits amounted to 4,567, the figures have slowly risen, until they have now reached 11,782. The **soldat insoumis** may be punished in France by imprisonment of from one month to one year. But on about an average of every two years during the last 20 years Parliament has regularly voted an Amnesty Bill in favour of deserters and recalcitrant recruits or reservists." This is one supposed cause of the increasing evasions; but a more important

influence working with it is the propagandism of anti-military doctrines, preached passionately by Gustav Hervé, accepted widely, it is said, among the primary teachers of the country, as well as in the ranks of the workingmen. The General Confederation of Labor is reported to be distributing annually some thousands of "soldiers' manuals" in which desertion is urged as a duty to humanity at large.

WAR, THE REVOLT AGAINST: A. D. 1909 (October).

American Proposal that the Prize Court now established be also a Court of Arbitral Justice.

By reference to the proceedings of the Second Peace Conference at The Hague, as set forth above, it will be seen that the Conference gave favorable consideration to a draft Convention for the creation of a "Judicial Arbitration Court" (the text of which draft is given at the end of said proceedings), and that the Conference went so far as to declare the "advisability of adopting ... and of bringing it into force as soon as an agreement has been reached respecting the selection of the judges and the constitution of the Court." It will be seen, also, that the Conference adopted measures for the creation of an International Prize Court, preliminary to which an International Naval Conference was held in London from December 4, 1908, until February 26, 1909. At that Conference a suggestion was made that "the jurisdiction of the International Prize Court might be extended, by agreement between two or more of the signatory Powers, to cover cases at present excluded from its jurisdiction by the express terms of the Prize Court Convention, and that in the hearing of such cases that Court should have the functions and follow the procedure laid down in the draft Convention relative to the creation of a Judicial Arbitration Court, which was annexed to the Final Act of the Second Peace Conference, of 1907."

In line with this suggestion, it was made known, in the later part of the past year, that the Government of the United

States, through its State Department, had proposed in a circular note to the Powers, that the Prize Court should be invested with the jurisdiction and functions of the proposed Judicial Arbitration Court. The difficulties in selecting judges for that contemplated Court, which caused the creation of it to be postponed in 1907, would thus be happily surmounted, and, as remarked by Secretary Knox, there would be at once given "to the world an international judicial body to adjudge cases arising in peace, as well as controversies incident to war."

WAR, THE REVOLT AGAINST: A. D. 1909.
Attitude of the Workingmen.

At the Twentieth International Congress of Miners, held in Berlin, in May, 1909, there were strong declarations for disarmament, and one Belgian delegate, M. Maroille, said significantly: If it were better organized the International Federation of Miners could by itself render wars impossible. They need not do anything violent or illegal; they had only to remain quiet, so very quiet that war could not be carried on.

{726}

WAR.

See (in this Volume)
Red Cross Society.

WARD, SIR JOSEPH GEORGE:
Prime Minister of New Zealand.

See (in this Volume)
NEW ZEALAND A. D. 1906-1909.

WARD, SIR JOSEPH GEORGE:
At the Imperial Conference of 1907.

See (in this Volume)
BRITISH EMPIRE: A. D. 1907.

WARD, SIR JOSEPH GEORGE:
Testimony on the Working of Woman Suffrage in New Zealand.

See (in this Volume)
ELECTIVE FRANCHISE: WOMAN SUFFRAGE.

WARSAW, DISTURBANCES IN.

See (in this Volume)
RUSSIA: A. D. 1904-1905, and 1905 (FEBRUARY-NOVEMBER).

WASHBURN, Reverend. Dr. George:
President of Robert College.

See (in this Volume)
EDUCATION: TURKEY, &c.

WASHINGTON, BOOKER T.:
His work at Tuskegee Institute.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1906.

WASHINGTON: A. D. 1908.
Meeting of International Congress on Tuberculosis.

See (in this Volume)
PUBLIC HEALTH. TUBERCULOSIS.

WASHINGTON MEMORIAL INSTITUTION, THE.

See (in this Volume)
EDUCATION: UNITED STATES: A. D. 1901.

WATER POWER TRUST:

Threatened in the United States.

Precautionary Measures taken.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.: UNITED STATES: A. D.
1909.

WATERS AND WATER POWER, CONSERVATION OF.

See (in this Volume)

CONSERVATION OF NATURAL RESOURCES.

WATERS-PIERCE OIL COMPANY.

See (in this Volume)

COMBINATIONS, INDUSTRIAL, &c.:
UNITED STATES: A. D. 1904-1909.

WATERWAYS COMMISSION AND WATERWAYS TREATY.

See (in this Volume)

CANADA: A. D. 1909 (JANUARY).

WATKINS, THOMAS H.:

On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1902-1903.

WATSON, J. C.:

Premier of Australia.

See (in this Volume)

AUSTRALIA: A. D. 1903-1904.

WATSON, Thomas E.:

Nomination for President of the United States.

See (in this Volume)

UNITED STATES: A. D. 1904 (MARCH-NOVEMBER),
and 1908 (MARCH-NOVEMBER).

WAZEER, GRAND.

See (in this Volume)

MOROCCO: A. D. 1903.

WEALTH:

Its Concentration in Great Britain.

In a speech made in Parliament, on a motion to graduate the Income Tax, March 24, 1909, Mr. Chiozza-Money, who speaks with considerable authority on such subjects, made the following statements: "Statistics were available in Somerset House showing the product of the graduated scale of death duties imposed by Sir William Harcourt in 1894. Of the 700,000 persons who died annually, only about 80,000 left sufficient property to need an inquisition by Somerset House. Out of the 80,000 persons nearly the whole of the property was left by 27,000 persons; and £200,000,000 worth of property was left by about 4,000 persons each year. This was not only a curious fact, but it was a constant fact in relation to this problem. He also showed that there had arisen a tendency among rich persons to devise part of their property before death in order to escape the death duties, with the result that a good deal of wealth did not come under the review of Somerset House. What he described as his own conservative estimate of the wealth of the United Kingdom was a total of about £11,500,000,000. Of that sum five millions of persons owned £10,900,000,000. One-ninth of the population owned 95 per cent. of the entire capital stock of the United Kingdom. Thus the whole of the country regarded as a business undertaking

was in the hands of a handful of people. Taking the income of the country at 1,800 millions a year, there were about five million persons who took one-half and 39 millions the other half. Of the five million persons who took 900 millions of income about 1¼ million persons, or 250,000 families, took 600 millions out of the 900 millions. From this state of facts the most terrible inequalities resulted, evidences of which could be seen along the Embankment and other parts of Westminster almost within a stone's throw of that House."

WEALTH PROBLEM, THE.

The Question of a Progressive Taxation.

"At this moment we are passing through a period of great unrest—social, political and industrial unrest. It is of the utmost importance for our future that this should prove to be not the unrest of mere rebelliousness against life, of mere dissatisfaction with the inevitable inequality of conditions, but the unrest of a resolute and eager ambition to secure the betterment of the individual and the nation. ... It is a prime necessity that if the present unrest is to result in permanent good the emotion shall be translated into action, and that the action shall be marked by honesty, sanity, and self-restraint. There is mighty little good in a mere spasm of reform. The reform that counts is that which comes through steady, continuous growth; violent emotionalism leads to exhaustion.

"It is important to this people to grapple with the problems connected with the amassing of enormous fortunes, and the use of those fortunes, both corporate and individual, in business. We should discriminate in the sharpest way between fortunes well won and fortunes ill won; between those gained as an incident to performing great services to the community as a whole, and those gained in evil fashion by keeping just within the limits of mere law-honesty. Of course no amount of charity in spending such fortunes in any way compensates for misconduct in making them. As a matter of personal conviction,

and without pretending to discuss the details or formulate the system, I feel that we shall ultimately have to consider the adoption of some such scheme as that of a progressive tax on all fortunes, beyond a certain amount, either given in life or devised or bequeathed upon death to any individual—a tax so framed as to put it out of the power of the owner of one of these enormous fortunes to hand on more than a certain amount to any one individual; the tax, of course, to be imposed by the National and not the State Government. Such taxation should, of course, be aimed merely at the inheritance or transmission in their entirety of those fortunes swollen beyond all healthy limits."

***President Roosevelt,
Address at the Laying of the Corner Stone of the
Office-Building of the House of Representatives,
April 14, 1906.***

WEAVER, JOHN: MAYOR OF PHILADELPHIA.

See (in this Volume)
MUNICIPAL GOVERNMENT.

{727}

WEEKLY REST DAY.

See (in this Volume)
SUNDAY OBSERVANCE.

"WE FREES."

See (in this Volume)
SCOTLAND: A. D. 1904-1905.

WEI-HAI-WEI:
Strategic Worthlessness of the Port.

See (in this Volume)
ENGLAND: A. D. 1902 (FEBRUARY).

WEKERLE, ALEXANDER: PRIME MINISTER OF HUNGARY.

See (in this Volume)
AUSTRIA HUNGARY: A. D. 1905-1906, and 1908-1909.

WELSH COERCION ACT.

See (in this Volume)
EDUCATION: ENGLAND: A. D. 1902.

WERMUTH, Herr:
Secretary of the German Imperial Treasury.

See (in this Volume)
GERMANY: A. D. 1908-1909.

WEST AFRICA:
White Colonization impossible in Present Conditions.

See (in this Volume)
AFRICA.

WEST INDIES, DANISH:
Failure of Projected Sale to the United States.

See (in this Volume)
DENMARK: A. D. 1902.

WESTERN FEDERATION OF MINERS.

See (in this Volume)
LABOR ORGANIZATION. UNITED STATES: A. D. 1899-1907.

WET, C. R. de.

See (in this Volume)
SOUTH AFRICA: A. D. 1901-1902.

WEYLER, GENERAL Y NICOLAU:
Suppression of Strike at Barcelona.

See (in this Volume)
LABOR ORGANIZATION: SPAIN.

WEYLER, GENERAL Y NICOLAU:
Spanish Minister of War.

See (in this Volume)
SPAIN: A. D. 1901-1904.

WHITE, HENRY:
American Delegate to the Algeciras Conference'
on the Morocco Question.

See (in this Volume)
EUROPE: A. D. 1905-1906.

WHITE HOUSE, THE:
Its Restoration.

See (in this Volume)
UNITED STATES: A. D. 1902 (MAY-NOVEMBER).

WHITE MOUNTAIN FOREST, PRESERVATION OF THE.

See (in this Volume)
CONSERVATION OF NATURAL RESOURCES: UNITED STATES.

WHITE SLAVE TRADE, MOVEMENT FOR THE SUPPRESSION OF
THE.

The movement for the suppression of what is now described as the White Slave Traffic, and which has grown into an important international organization, appears to have had its beginning in the formation of a committee at London, in 1880, "for the purpose of exposing and suppressing the [then] existing traffic in English, Scotch and Irish girls for foreign prostitution." This committee presented a memorial on the subject to Lord Granville, then Secretary for Foreign Affairs, setting out a statement of facts which "revealed the existence of systematic abduction to Brussels, and elsewhere on the Continent of Europe, of girls who were English subjects, and who, having been induced to go abroad under promise of obtaining employment or respectable situations, were on arrival taken to the office of the 'Police des Mœurs' for registration as prostitutes." The memorialists craved Lord Granville's influence "in favour of measures which would render it impossible that British subjects, however humble, should in the future be subjected to such infamy and degradation, including the loss of their personal liberty."

Such measures were taken, Parliament passing an Act which became law in 1885, with so much effectiveness that "the traffic was at once checked. The miscreants who were engaged in it were dismayed by its provisions, and within five years after the Act had come into operation the Burgomaster of Brussels, which had been the head-quarters of the traffic, questioned as to the effect produced by that measure, in April 1890 wrote as follows: 'Comme suite à votre lettre du 15 courant, j'ai l'honneur de vous faire connaître que depuis 1880 aucune fille de nationalité Anglaise n'a été inscrite aux registres de Bruxelles.' While, however, the traffic, so far as the United Kingdom was concerned, was thus almost extinguished, it seems to have increased and spread in certain districts of Eastern Europe to an extent which attracted the serious and alarmed attention of the Governments and public authorities of the countries immediately concerned. About the

year 1898 the National Vigilance Society, headed by the late Duke of Westminster, then its President, resolved 'to open definite measures for its mitigation—if possible, its suppression.' This organization was fortunate in having for its Secretary and chief administrative officer Mr. William Alexander Coote, a man of remarkable energy and determination."

Parliamentary Papers, 1907 (Cd. 3453).

Mr. Coote went on a mission to the Continent and aroused the interest of the Governments most concerned. International conferences on the subject were held, in London, 1899, at Paris, 1902, and again at Paris in 1906, producing concerted action. In 1904 an International Agreement was signed at Paris, May 18, by the plenipotentiaries of Great Britain, Germany, Belgium, Denmark, Spain, France, Italy, the Netherlands, Portugal, Russia, Sweden and Norway, and Switzerland, the first two articles of which were as follows:

"Article 1.

Each of the Contracting Governments undertakes to establish or name some authority charged with the co-ordination of all information relative to the procuring of women or girls for immoral purposes abroad; this authority shall be empowered to correspond direct with the similar department established in each of the other Contracting States.

Article 2.

Each of the Governments undertakes to have a watch kept, especially in railway stations, ports of embarkation, and ***en route***, for persons in charge of women and girls destined for an immoral life. With this object instructions shall be given to the officials and all other qualified persons to obtain, within legal limits, all information likely to lead to the detection of criminal traffic. The arrival of persons who clearly appear to be the principals, accomplices

in, or victims of, such traffic shall be notified, when it occurs, either to the authorities of the place of destination, or to the Diplomatic or Consular Agents interested, or to any other competent authorities."

***Parliamentary Papers, 1905,
Treaty Series No. 24 (Cd. 2689).***

Meantime, in the United States, due attention was not given to the matter, until it was found that the abominable traffic had become organized to an appalling extent in the country, especially in connection with its foreign immigration, and had a principal seat in New York, with a suspected connivance on the part of men having political influence, if not official power. An investigation of the facts became one of the main objects of the Congressional Immigration Commission which pursued inquiries in Europe and America in 1909, and was the leading subject of the preliminary report made public by the Commission, December 10.

{728}

In this report the Commission says that the white slave traffic is the most pitiful phase of the immigration question. The business has assumed large proportions, and has exerted an evil influence upon the country. The inquiry covered the cities of New York, Chicago, San Francisco, Seattle, Portland, Salt Lake, Ogden, Butte, Denver, Buffalo, Boston, and New Orleans. No attempt was made to investigate conditions in every important city. But the commission believes that enough evidence with reference to women of different races and nationalities, living under different conditions has been obtained from localities sufficiently scattered to warrant the reports being used as a basis for official action.

Among other recommendations of the Commission is one that the transportation of persons from one State, Territory, or district, to another for the purpose of prostitution be forbidden under heavy penalties. The commission also expresses

the opinion that the Legislatures of the several States should consider the advisability of enacting more stringent laws regarding prostitution. It is suggested that the Illinois statute regarding pandering be carefully considered. A number of suggestions of administrative changes and more rigid enforcement of existing regulations by the Department of Commerce and Labor, particularly by the Bureau of Immigration, and amendments of the Immigration act itself are submitted by the commission.

Legislation on the lines recommended is now pending in Congress and in New York and other States, while the alleged organization of the traffic in the city of New York is being investigated by a special grand jury of one of the State Courts.

WICKERSHAM, GEORGE W.:
Attorney-General.

See (in this Volume)
UNITED STATES: A. D. 1909 (MARCH).

WIJU.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY).

WILLIAM II., German Emperor:
Statement of his Peace Policy based on Preparation for War.

See (in this Volume)
WAR, THE PREPARATIONS FOR.

WILLIAM II., German Emperor:
His speech at Tangier.

See (in this Volume)

EUROPE: A. D. 1905-1906.

WILLIAM II., German Emperor:

His published Interview with an Englishman and its Effect.

See (in this Volume)

GERMANY: A. D. 1908 (NOVEMBER).

WILSON, James:

Secretary of Agriculture.

See (in this Volume)

UNITED STATES: A. D. 1901-1905; 1905-1909; AND 1909
(MARCH).

WILSON, General John M.:

On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)

LABOR ORGANIZATION: UNITED STATES: A. D. 1903-1903.

WILSON, Woodrow:

President of Princeton University.

See (in this Volume)

EDUCATION: UNITED STATES: A. D. 1901-1909.

WINE-GROWERS' REVOLT, IN FRANCE.

See (in this Volume)

FRANCE: A. D. 1907 (MAY-JULY).

WINNIPEG: A. D. 1909.

Meeting of British Association for the Advancement of Science.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: PHYSICAL.

WIRELESS TELEGRAPHY.

See (in this Volume and in Volume VI.)
SCIENCE, RECENT: ELECTRICAL.

WISCONSIN: A. D. 1900-1909.

Governor and Senator La Follette.

The recognized "new movement" in American politics which has been putting a distinctive mark on the last decade, directed towards the emancipation of parties from a selfishly organized system, or "machine," had nowhere in the West a more vigorous starting than in Wisconsin; and nobody can doubt that the initial force given to it there came mostly from the energy of the leader it found in Robert Marion La Follette. He had entered politics when he entered the profession of law, in 1880. From 1889 to 1901 he was a representative in Congress. At the end of that period he had been elected Governor of his State, and he held the office for three terms, resigning it in 1905 to accept a seat in the Senate of the United States, where he exercises a degree of independence not common in that assembly. All this advancement in public service has gone with a personal leadership in politics, resisted unavailingly by the old party organization.

WISCONSIN: A. D. 1907.

Enactment of Public Utilities Law.

See (in this Volume)
PUBLIC UTILITIES.

WISCONSIN STATE UNIVERSITY:

Its Legislative Reference Department and Municipal Reference Bureau.

See (in this Volume).

MUNICIPAL GOVERNMENT.

WITBOIS, THE.

See (in this Volume)
Africa: A. D. 1904-1905,
and
GERMANY: A. D. 1906-1907.

WITTE, Sergius Yulievitch:
As Russian Finance Minister and practically as Premier.

See (in this Volume)
RUSSIA: A. D. 1901-1904, and 1904-1905.

WITTE, Sergius Yulievitch:
Withdrawal from Premiership.

See (in this Volume)
RUSSIA: A. D. 1906.

WITTE, Sergius Yulievitch:
Memorial to the Tsar on Religious Liberty and the Bondage
of the Church to the State.

See (in this Volume)
RUSSIA: A. D. 1905 (APRIL-AUGUST).

WITTE, Sergius Yulievitch:
Russian Plenipotentiary for negotiating Treaty of Peace
with Japan.

See (in this Volume)
JAPAN: A. D. 1905 (JUNE-OCTOBER).

WOLF'S HILL, The Capture of.

See (in this Volume)

JAPAN: A. D. 1904-1905 (MAY-JANUARY).

WOMAN SUFFRAGE.

See (in this Volume)

ELECTIVE FRANCHISE.

WOMEN, International Council of: A. D. 1909.

Proceedings at Toronto.

The International Council of Women was assembled at Toronto, Canada, in June, 1909, being then in the twenty-fifth year of its existence. Its large gatherings are undertaken but once in five years, executive meetings being held in years between. The Toronto session was opened on the 17th of June, and was prolonged interestingly for ten days. The delegates attending numbered 160, from all parts of Europe, America and Australasia, Great Britain sending the largest number. Germany comes next with 19, Sweden sends 7, Denmark 4, Italy 3, Austria-Hungary 5, Norway 10, Belgium 4, Greece 3, the Netherlands 11, Australasia 11, the United States 16, and Canada 11.

Lady Aberdeen, the President of the Council, in her opening remarks, indicated the breadth of the ideas of service to the world which this international organization contemplates, when she said: "Having proved that we are truly representative of the women workers of the world and that within our various councils we have gathered organizations of women of all races, creeds, classes, and parties, what is the outcome?

{729}

What do we stand for? What practical contribution can we offer to the world's welfare?" Turning to the Canadian delegates, she answered these questions by alluding to the sympathy that the National Council of Canada had created between the women of the different provinces and the way in which it had made

them recognize their true relationship to their country and the world. From this Lady Aberdeen went on to say:

"Our International Council must indeed be of necessity the strongest peace society that can exist, for if the homes of the different countries of the world are brought in touch with one another and understand and believe in one another, there can be no more war. Again, the health movement which our national councils' reports show us is going on in all countries of the world is one that has within itself potentialities far beyond the immediate objects it aims at. What are these medical and scientific congresses, these international conferences on tuberculosis, infant mortality, school hygiene, temperance, and the like doing? Are they not bringing the world's thinkers and workers into line for the preservation of life, for the furtherance of a high and vigorous type of life based on knowledge, principle, and self-control, for international action in the interests of the world's health? Here is work which concerns all women in all countries, and in which every society has an interest. ... But ... the keynote of our success and influence must always lie in the fact that we lay stress in being more than doing, in the spirit of our work more than the work itself, in the motive underlying our union, rather than in our actual federation."

Peace and Arbitration, Woman Suffrage (favored by a majority of the delegates in attendance), the "White Slave Traffic," so-called, Public Health, Education, Immigration, cheapened International Postage, were among the principal subjects of discussion taken up on successive days.

The next quinquennial council was appointed to be held at Rome, in 1914, with executive meetings in Sweden in 1911 and in the Netherlands in 1913. Lady Aberdeen was reelected President.

WOMEN WORKERS:

Legal Regulation of Hours and Conditions.

See (in this Volume)

LABOR PROTECTION: HOURS OF LABOR.

WOOD, GENERAL LEONARD:

Military Governor of Cuba.

See (in this Volume)

CUBA: A. D. 1901-1902.

WOODWARD, Dr. Robert S.:

President of the Carnegie Institution of Washington.

See (in this Volume)

SCIENCE AND INVENTION: CARNEGIE INSTITUTION.

WORKMEN.

See (in this Volume)

LABOR ORGANIZATION.

WORKMEN'S COMPENSATION ACT, BRITISH.

See (in this Volume)

LABOR PROTECTION.

WORLD MOVEMENTS:

Fichte's Prophecy of a World Commonwealth.

The Progress of a Century toward its Fulfilment.

"Fichte says: 'It is the vocation of our race to unite itself into one single body, all the parts of which shall be thoroughly known to each other, and all possessed of similar culture. Nature, and even the passions and vices of men have, from the beginning, tended towards this end: a great part of the way towards it is already passed, and we may surely

calculate that this end, which is the condition of all further progress, will in time be attained. ... Until the existing culture of every age shall have been diffused over the whole inhabited globe, and our race become capable of the most unlimited inter-communication with itself, one nation or one continent must pause on the great common path of progress, and wait for the advance of the others; and each must bring as an offering to the universal commonwealth, for the sake of which alone it exists, its ages of apparent immobility, or retrogression. When that first point shall have been attained, when every useful discovery made at one end of the earth shall be at once made known and communicated to all the rest, then, without further interruption, without halt or regress, with united strength and equal step, humanity shall move onward to a higher culture, of which we can at present form no conception.'

"This was an end-of-the-eighteenth-century utterance, and events have followed it as if it were a resistless fiat compelling its own fulfilment, rather than the dictum of a philosopher. The nations have striven fiercely to carry forward the work which the great Seer pointed to as the essential condition of the higher progress. Inspired by varied aims, and carried forward by diverse means, the end has been ever the same. The missionary with his religious mandate, the devil-may-care adventurer seeking excitement, the restless military caste craving advancement, the trader thirsting for gain, all promote the 'Divine plan.' ...

"The pride of independent nationality must gradually give way to the pride of being members of the great confederations. The transition from Nationalism to internationalism will be brought about by a threefold pressure, and will be rendered easy by the system we have evolved with our great Colonies. There will be the pressure of the higher organisation on the lower, the larger upon the less; there will be racial pressure, as yellow and black begin to feel their power; and

there will be commercial pressure. This irresistible pressure will be gradually recognised as a benevolent despotism forcing the practical recognition of the brotherhood of man.

"With regard to commercial pressure. A glance ahead will show that the Western nations, in forcing their trade on yellow and black races, are educating the latter into formidable competitors. Like the Japs they will better the instruction, and, with their more favourable economic conditions, will flood the Western world with commodities at prices it cannot compete with. To avoid being dragged down to their lower level of subsistence the great world powers will be compelled to draw a ring-fence of tariffs round their possessions. In our case the British Empire contains nearly all climates and resources that will enable it to be entirely self-contained and self-supporting. The comparative free trade within the fence will starve isolated countries to come in.

{730}

"There is no reason why an Empire such as ours should not be much more truly happy and prosperous than it has yet been, if we organise it scientifically. The loss of our abnormal position in foreign trade will be a blessing if we exercise foresight. In the furtherance of the World-purpose it was necessary that the progressive nations should for a time worship foreign trade as a fetich, and as the chief means of prosperity. Nothing else would have given them the needed stimulus, and forced them to such Herculean efforts to conquer and keep foreign markets. But when all foreign markets have been opened up, and we have unintentionally educated other races, not only to supply their own wants, but to swamp us with their manufactures, then we must readjust our ideas, and adopt less one-sided aims. In our ambition to be the Cheap John of the world, we have developed some of our resources abnormally, and neglected others. To foster foreign trade we converted a large part of our island home into black country,

we have been prodigally wasteful of our mineral resources, and have neglected our agriculture. In striving for foreign markets we have neglected the best market in the world—the Home market—and have left ourselves miserably dependent on the foreigner. This is really incipient heart disease of the Empire.

"It was providential that we adopted 'free trade' when we did, as it gives a moral justification for our annexations which no protective nation can show; but as the other great Powers extend their sway, and their tariff barriers, we shall cease to need our free trade justification. Then we can reconsider the case."

***E. W. Cook,
The Organisation of Mankind
(Contemporary Review, September, 1901).***

WORLD MOVEMENTS:

The Making of a World Constitution and the development of World Legislation.

"In the relations of nations to one another, as proved by their treaties and code of international law, certain truths are recognized which involve the very nature of mankind as a created whole. That is, there is a world-constitution, unwritten, not called by that name, but existing as truly as the animal creation existed before it was named by man, and as independent of his recognition and his naming as the animal creation was independent of human recognition. Though that world-constitution has remained obscure and unrecognized, yet world progress toward its formal expression has been wonderfully rapid in recent years.

"In the first place that constitution is bringing about the formal existence of an organ for the use and for the expression of the intelligence and the will of the world.

Nations, repeatedly, in separate congresses, upon special subjects, have expressed their intelligence and their will, and have entrusted to the nations severally the duty of carrying out that will, as is most perfectly illustrated in the case of the Universal Postal Union. That is, the nations are creating a world legislative department.

"In the next place, the establishment of the Hague Court of Arbitration is doubtless the beginning of the establishment of a judicial department which will include other duties than the settlement of causes dangerous to the peace of nations. Lastly, the formal establishment of some world-executive will not long lag behind the creation of the legislative and judicial departments. The world is moving rapidly toward political organization as one body, and the situation must soon reveal itself to present doubters."

***R. L. Bridgman,
World-Organization secures World-Peace
(Atlantic Monthly, September, 1904).***

"At the session of the Massachusetts Legislature of 1902 a petition was presented in favor of a world-legislature. That petition was referred to the Legislature of 1903 in order that the subject might receive further public consideration, and the chairman of the committee which heard the petitioners said, in each branch respectively, that the proposal was meritorious. According to the report, the petition is pending before the Legislature of 1903, with hundreds of signers, including some of the best citizens. The American Peace Society, by vote of its directors, signed the petition, while it also presented another petition of its own, asking for a movement for a world-conference or congress, with recommendatory powers, to meet at stated intervals, say once in seven years. Thus the proposal of world-organization is formally before the public.

"Since the first petition was presented repeated instances have occurred to support the main argument for it,—that business exigencies of the world were becoming so urgent that world-organization, as a necessity, would precede the efforts of pure philanthropy or statesmanship for the same end. Early in the year came the Pan-American Congress. Among its proposals, suited for a world-scale, were these: a Pan-American bank; a custom-house congress, and an international customs commission; a statistical bureau of international scope; an international copyright law; an international commission to codify international law; international regulations to cover inventions and trademarks; a common treaty of extradition and protection against anarchy; international regulations for the world-wide practice of the liberal professions; an international archaeological commission; an international office as depositary of the archives of international conferences; an international regulation granting equal rights to all foreigners from any of the signatory countries, and some minor plans.

"Other world-propositions which developed during the year included (in January) the organization of the International Banking Corporation, with power, under a Connecticut charter, of doing business all over the world; (early in the year) circulation by the Manchester (England) Statistical Society of a pamphlet advocating an international gold coinage; (in July) suggestion by Russia of an international conference to protect the nations against trusts and other private operations of capital; (in July) another plan for an international bank; (in August) meeting of the International Congress on Commerce and Industry; and (in December) the meeting of the International Sanitary Conference in Washington; to which may be added (in January, 1903) the meeting in New York of the International Customs Congress. For one year that is a notable record of progress toward world-organization in matters of business, not as matters of theory or of pure philanthropy. These instances illustrate the truth, which many persons still fail to

realize, that the world is getting together at a rapid rate, and that, as a matter of self-interest, the nations must soon have a permanent legislative body as a means of establishing regulations for the benefit of all.

{731}

"Pertinent to the case is the fact that world-legislation has occurred repeatedly, though no world-legislature has been organized. ... In the case of the International Postal Union we have absolute world-legislation. ... That is the most conspicuous and most successful illustration of world-legislation, because it embraces organized mankind, and because it is so eminently successful. ...

"Mention may be made of the International Conference in Washington, in 1885, for the establishment of a common prime meridian, at which twenty-six nations were represented. At the International Sanitary Conference in Vienna in 1892, fifteen nations were represented. At the Dresden International Sanitary Conference in 1893, nineteen nations were represented."

***R. L. Bridgman,
A World-Legislature
(Atlantic Monthly, March, 1903).***

WORLD MOVEMENTS:

The Passing of the Age of Colonial Dominion.
The Coming of the Epoch of the "Open Door."

The old notions of colonial dominion, which had pricked the ambition of nations since the sixteenth century, came practically to the end of their working in the last years of the nineteenth. The European partitioning of Africa, in the decade after 1884, the scramble for footings in China between 1897 and the Boxer rising, and the Spanish-American War of

1898, may be looked upon as the expiring operations of statesmanship on lines of "colonial policy," in the acquisitive sense. As certainly as anything in politics can be certain, the epoch of the founding and spreading of colonial dominions came then to its close.

The colonial policy of that epoch meant colonial dominion necessarily, for the reason that the commerce-spreading nations of the West could not think of agreeing to open doors of trade with the feebler or more backward folk of the East. Each could make sure of marts in the great orient and oceanic region only by seizing and walling them in, behind well-locked doors, to keep the others out. Now, however, they have arrived at a state of things in the world which compels them to think of the "open door" for commerce, as a substitute for the colonial dependency, held under lock and key. Several changes have worked together in bringing this new situation about.

Principally, of course, it results from the near approach to an exhaustion of the territory available for easy conquest and colony-making. Africa and the great archipelagos of the South Sea have all been divided up. Japan, with China making ready to stand with her, has undertaken a policing of Eastern Asia, to stop the staking out of lawless claims there. Moreover, confidence in the stability as well as belief in the usefulness of colonial dominion is much shaken of late, by increasing signs of relaxing bonds in the great British Empire, without much sign of harm to the prosperity or the power of the imperial nation itself. Several of the outlying dependencies of the British crown have grown to so much of independence that they have taken the doorkeeping of their commerce into their own hands and the sovereign mother country makes no objection or complaint.

For many years past the commercial experience of England has been furnishing proof that trade and dominion, under the conditions of the present day, have little of necessary

connection with each other; and now the Germans, within later years, have been adding to that proof. The few colonies they have laid hands on, in Africa and Oceanica, have been of less profit than expense to them; but, more rapidly than any other people, they have pushed their trade in regions where they have no political influence or control, by sheer energy and careful learning of the conditions to be met.

The commercial mind, which has always dictated the policies of government, is being thus compelled to turn its thought to the "open door," and that, as a commercial aim, will evidently extinguish colonial undertakings hereafter. It ruled the settlement of the Chinese troubles of 1900 (thanks to John Hay); it has gone into the recent treaties of Japan with England, Russia and France; it gave a practicable solution to the Morocco problem, at the Algeciras conference; it furnished the ground in 1907 for an arrangement of long-troubled relations between England and Russia in Persia, Tibet, and Afghanistan.

Manifestly, the commercial policy of the future is to be, not the policy of colonial dependencies, but the policy of open doors. Even the imperialists and the stand-patters of the United States will have to accept it; and in due time the tariff-walled nations, after practicing themselves sufficiently in the dictatorial opening of other people's doors, will be ready to unlock their own.

WORLD MOVEMENTS:

For and against War.

See (in this Volume)

WAR, THE PREPARATIONS FOR,

and

WAR, THE REVOLT AGAINST.

World's Prohibition Confederation.

See (in this Volume)
ALCOHOL PROBLEM; INTERNATIONAL CONGRESS.

WOS Y GIL, GENERAL:
Revolutionary President of San Domingo.

See (in this Volume)
SAN DOMINGO: A. D. 1904-1907

WRIGHT, DR. A. E.,
WRIGHT, DR. DOUGLAS;
The Discoverers of Opsonins.

See (in this Volume)
SCIENCE AND INVENTION, RECENT. OPSONINS.

WRIGHT, Carroll D.:
On the Anthracite Coal Strike Arbitration Commission.

See (in this Volume)
LABOR ORGANIZATION: UNITED STATES; A. D. 1902-1903.

WRIGHT, GENERAL LUKE E.:
Secretary of War.

See (in this Volume)
UNITED STATES: A. D. 1905-1909.

WRIGHT, ORVILLE AND WILBUR.

See (in this Volume)
SCIENCE AND INVENTION, RECENT: AERONAUTICS.

WURTEMBERG: A. D. 1906.
Displacement of Privileged Members from the Parliament.

See (in this Volume)
ELECTIVE FRANCHISE: GERMANY: A. D. 1906.

WYNDHAM, G.:
Chief Secretary for Ireland.

See (in this Volume)
ENGLAND: A. D. 1902 (JULY).

WYNNE, Robert J.:
Postmaster-General.

See (in this Volume)
UNITED STATES: A. D. 1901-1905.

{732}

Y.

YALU, BATTLES AT THE.

See (in this Volume)
JAPAN: A. D. 1904 (FEBRUARY-JULY).

YAMAGATA, Prince Aritomo.

See (in this Volume)
JAPAN: A. D. 1903 (JUNE) and 1909 (OCTOBER).

YANGTZULING, BATTLE OF.

See (in this Volume)
JAPAN: A. D. 1904 (JULY-SEPTEMBER).

YASHIMA, SINKING OF THE.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-AUGUST).

YASS-CANBERRA.

Chosen Site of the Capital of Australia.

See (in this Volume)

AUSTRALIA: A. D. 1905-1906.

YELLOW FEVER.

See (in this Volume)

PUBLIC HEALTH.

YOUNG EGYPT.

See (in this Volume)

EGYPT. A. D. 1909 (SEPTEMBER).

YOUNG FINNS:

See (in this Volume)

FINLAND: A. D. 1908-1909.

YOUNG TURKS.

See (in this Volume)

TURKEY: A. D. 1908 (JULY-DECEMBER), and after.

YOUNGHUSBAND, COLONEL GEORGE J.:

Mission to Tibet.

See (in this Volume)

TIBET: A. D. 1902-1904.

YOUSSEF IZEDDIN.

See (in this Volume)

TURKEY: A. D. 1909 (JANUARY-MAY).

YUAN SHIH-KAI:

His abrupt Dismissal from Office.

See (in this Volume)

CHINA: A. D. 1909 (JANUARY).

YUKON DISTRICT, THE:

Census, 1901.

See (in this Volume)

CANADA: A. D. 1901-1902.

YUSHIN-KAI.

See (in this Volume)

JAPAN: A. D. 1909.

ZAHLE MINISTRY.

See (in this Volume)

DENMARK: A. D. 1905-1909.

ZAIMIS, M.,

High Commissioner of Crete.

See (in this Volume)

CRETE: A. D. 1905-1906.

ZAMENHOF, DR.:

Inventor of Esperanto.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: ESPERANTO.

ZANARDELLI, Giuseppe:
Premier of Italy.

See (in this Volume)
ITALY: A. D. 1901 and 1903.

ZANZIBAR: A. D. 1903.
Practical Ending of Slavery.

The following remarks are from reports made by British consular officers in 1903. By decree of the Sultan of Zanzibar the legal status of slavery was annulled in 1897: "As I have anticipated in my former Reports, the number of slaves who have thought fit to present themselves for freedom to the Zanzibar Government has been very small. ... It is as well known as ever throughout the Island of Zanzibar that a slave has only to appear and ask for freedom and it is immediately granted. But the slaves have long since discovered that freedom is not such 'a bed of roses' as was anticipated. They have learnt that practically they lose far more than they gain by leaving their owners to get freedom, and then having to find a new home and support themselves."

"The slavery question may be said to be at an end in Pemba. Those slaves who still remain in a state of servitude are slaves only in name, and they continue to be so of their own free will, for there is not a man or a woman at this time in the island unaware of the fact that any slave can obtain manumission for the asking. A small number of slaves do apply for and obtain their freedom month by month, but the bulk of the servile population in Pemba appear to be content with their existing status."

ZASULICH, General.

See (in this Volume)

JAPAN: A. D. 1904 (FEBRUARY-JULY).

ZAYISTAS.

See (in this Volume)

CUBA: A. D. 1906-1909.

ZEEMAN, Peter.

See (in this Volume)

NOBEL PRIZES.

ZELAYA, JOSE CANTOS:

President of Nicaragua.

See (in this Volume)

CENTRAL AMERICA: NICARAGUA: A. D. 1909.

ZEMSTVOS, RUSSIAN.

See (in this Volume)

RUSSIA: A. D. 1904-1905, and 1905-1907.

ZEPPELIN, Count.

See (in this Volume)

SCIENCE AND INVENTION, RECENT: AERONAUTICS.

ZICHY, Count.

See (in this Volume)

AUSTRIA-HUNGARY: A. D. 1904; 1905-1906.

ZIEGLER ARCTIC EXPEDITIONS.

See (in this Volume)

POLAR EXPLORATION.

ZIL-ES-SULTAN.

See (in this Volume)

PERSIA: A. D. 1907-1908 (SEPTEMBER-JUNE).

ZULUS, The:

Their revolt in 1906.

See (in this Volume)

South Africa.

{733}

COURSES FOR STUDY OR READING

PREPARED by C. W. CHASE

As an aid to those possessors of this work who may wish to pursue in it regular courses of reading or study, the following directory, as it may be called, has been prepared by a gentleman whose acquaintance with the contents of the Volumes and with their arrangement is very thorough, and whose equipment of historical knowledge is large. This responds to a great number of requests and suggestions that have been coming to the publishers of "History for Ready Reference," ever since it began to make itself known as the best of compilations for "Topical Reading" in history, as well as for "Ready Reference," because drawn from the best historical writers in their own exact words.

Those who make use of these "Studies" should bear in mind that the first five Volumes of "History for Ready Reference" cover all times, from the earliest, down to its publication in 1895, and are under one comprehensive arrangement, for which reason the numbering of pages in those Volumes is consecutive from the first to the last; whereas Volumes VI. and VII. deal with

two succeeding periods, of Recent History, and have separately numbered pages. Hence reference in the "Studies" to pages in the first five Volumes is without mention of the number of the Volume.

On revision of the original five-Volume work in 1901 some rearrangement of matter occurred which changed the page numbers. This necessitates the giving of both new and old numbers in the reference to every matter within those Volumes. For copies of the work purchased before 1901 the numbers are in parenthesis, and those for the later edition precede them.

The following is a subject index to the "Studies" appended:

ALEXANDER'S CONQUESTS:

Study X.

AMERICA:

Study XXIII.

(See, also, UNITED STATES, CANADA, and SPANISH AMERICA.)

AUSTRIA-HUNGARY:

Studies
XIV.,
XV.,
XXVII.,
XXXIV.,
XXXV.,
XXXVI.

BABYLONIA AND ASSYRIA:

Study IV.

CANADA:

Study XLIX.

CHINA:
Studies
VII., LI.

CHRISTIANITY:
Studies
XVIII.,
XIX.,
XX.,
XXIV.

CRUSADES:
Study XXV.

EGYPT, ANCIENT:
Study V.

ENGLAND:
Studies
XXVIII.,
XXIX.,
XXX.,
XXXI.,
XXXII.,
XXXIII.,
XXXV.,
XXXVI.,
XLII.,
XLVIII.

EUROPE AT LARGE:
Studies
XII.,
XIII.,
XIV.,
XVIII.,
XIX.,

XX.,
XXII.,
XXIII.,
XXIV.,
XXV.,
XXVII.,
XXXIV.,
XXXV.,
XXXVI.

FRANCE:

Studies
XIII.,
XIV.,
XVI.,
XXIII.,
XXIV.,
XXV.,
XXXIV.,
XXXV.,
XXXVI.,
XLIII.

FRENCH REVOLUTION AND NAPOLEON:

Studies
XXXV
XXXVI.

GERMANY:

Studies
XIII.,
XIV.,
XV.,
XXIII.,
XXIV.,
XXVII.,
XXXIV.,

XXXV.,
XXXVI.,
XLIV.

GREAT BRITAIN.

See ENGLAND.

GREECE, ANCIENT:

Studies
VIII.,
IX.,
X.

HISTORY AND ITS STUDY:

Study I.

INDIA, ANCIENT:

Study VII.

ITALY, MEDIÆVAL AND MODERN:

Studies
XIV.,
XVII.,
XXIII.,
XXXV.,
XXXVI.,
LV.

JAPAN:

Study L.

JEWS:

Study VI.

MIDDLE AGES:

Studies
XIII.,
XIV.,
XV.,
XVI.,
XVII.

MOHAMMEDANISM:

Studies
XXI.,
XXII.

MONASTICISM:

Study XX.

NETHERLANDS:

Study XXVI.

PAPACY:

Study
XIX.,
XXIV.,
XXV.

PRIMITIVE PEOPLES:

Studies
II.,
III.

REFORMATION, PROTESTANT:

Studies
XXIV.,
XXV.

RENAISSANCE:

Study XXIII.

ROME, ANCIENT:

Studies

XI.,

XII.,

XIII.

RUSSIA:

Study LII.

SPAIN:

Studies

XXVI.,

XXXVI.

SPANISH AMERICA:

Study LIV.

(See, also, AMERICA.)

TURKISH EMPIRE:

Study LIII.

UNITED STATES OF AMERICA:

Studies

XXXVII.,

XXXVIII.,

XXXIX.,

XL.,

XLI.,

XLV.,

XLVI.,

XLVII.

{734}

APPENDIX

COURSES FOR STUDY OR READING

Note.

The text of "History for Ready Reference" is made up of matter taken from the best writers and special students of all ages and all nations. Under the various topics in these Studies, therefore, the historical works referred to are those from which the matter of the text is taken; the figures following each citation indicating the pages in "History for Ready Reference" where the matter may be found,—the figures inclosed in parentheses showing where the same matter may be found in the first (1895) edition of the work. These extracts vary from a quarter of a column to five or six columns in length.

[Transcriber's note—A colon (:) at the end of a line indicates the following line begins a subheading, a citation, or the citation title.]

STUDY I.

HISTORY AND ITS STUDY.

"It is seldom appreciated what a very large share of the world's literature is history of some sort. The primitive savage is probably the only kind of a man who takes no interest in it. But as soon as a spark of civilization illumines this primitive darkness men begin to take interest in other men,—not only beyond their immediate surroundings, but beyond the limits of their own generation. Interest in the past and provision for the future are perhaps essential differences between the civilized man and the savage. Accordingly as this care for the past and future increases, all literature divides itself into that which concerns the forces of nature, and that which concerns the history of man."

PROFESSOR J. P. MAHAFFY.

1. VARIOUS VIEWS AS TO WHAT HISTORY IS:

R. Flint:

History of the Philosophy of History,
1686-1687 (1648-1649).

archive.org/details/historyphilosop00flingoog

"With us the word 'History,' like its equivalents in all modern languages, signifies either a form of literary composition, or the appropriate subject matter of such composition,—either a narrative of events, or events which may be narrated."

R. FLINT.

2. THE PROPER SUBJECTS AND OBJECTS OF HISTORY:

E. A. Freeman:

Practical Bearings of European History,
1687-1688 (1648-1649).

T. B. Macaulay:

History (Essays),
1692 (1658).

"The perfect historian is he in whose work the character and spirit of an age is exhibited in miniature. ... By judicious selection, rejection, and arrangement, he gives to truth those attractions which have been usurped by fiction. ... He shows us the court, the camp, and the senate. But he also shows us the nation. He considers no anecdote, no peculiarity of manner, no familiar saying, as too insignificant for his notice, which is not too insignificant to illustrate the operation of laws, of religion, and of education, and to mark the progress of the human mind."

T. B. MACAULAY.

3. THE PHILOSOPHY OF HISTORY:

R. Flint:
Philosophy of History,
1688 (1649).

4. HISTORY AS A SCIENCE; and HISTORY AS THE ROOT OF ALL SCIENCE:

H. T. Buckle:
History of Civilization in England,
1688 (1649).
www.gutenberg.org

J. G. Droysen:
Outline of the Principles of History,
1689 (1650).
archive.org/details/outlineofprincip01droy

T. Carlyle:
On History (Essays),
1689-1690 (1650-1651).

"There is, I speak humbly, in common with Natural Science, in the study of living History, a gradual approximation to a consciousness that we are growing into a perception of the workings of the Almighty ruler of the world. ... The study of History is in this respect, as Coleridge said of Poetry, its own great reward, a thing to be loved and cultivated for its own sake. ... For one great, insoluble problem of astronomy or geology, there are a thousand insoluble problems in the life, in the character, in the face of every man that meets you in the street. Thus, whether we look at the dignity of the subject matter, or at the nature of the mental exercise which it requires, or at the nature of the field over which the

pursuit ranges, History, the knowledge of the adventures, the development, the changeful career, the varied growths, the ambitions, aspirations, and, if you like, the approximating destinies of mankind, claims a place second to none in the roll of Sciences."

BISHOP STUBBS.

5. HOW TO STUDY HISTORY:

A. B. Hart:
How to Study History,
1693 (1654).

6. THE EDUCATIONAL AND PRACTICAL VALUE OF HISTORY; ITS MORAL LESSONS:

J. A. Froude:
Short Studies on Great Subjects,
1690 (1651).

W. E. H. Lecky:
The Political Value of History,
1690 (1651).

C. K. Adams:
Manual of Historical Literature,
1690-1691 (1651-1652).

W. Stubbs:
The Study of Modern History,
1691 (1652).

"The effect of historical reading is analogous, in many respects, to that produced by foreign travel. The student, like the tourist, is transported into a new state of society. He sees new fashions. He hears new modes of expression. His mind is enlarged by contemplating the wide diversities of

laws, of morals, and of manners."

T. B. MACAULAY.

7. THE PROVINCE AND VALUE OF THE HISTORICAL ROMANCE:

G. H. Lewes:

Historical Romance,
1692-1693 (1653-1654).

A. Thierry:

The Merovingian Era,
1693 (1654).

J. R. Seeley:

History and Politics,
1693 (1654).

"To say that there is more real history in his (Scott's) novels on Scotland and England than in the philosophically false compilations which still possess that great name, is not advancing anything strange in the eyes of those who have read and understood 'Old Mortality,' 'Waverley,' 'Rob Roy,' the 'Fortunes of Nigel,' and the 'Heart of Midlothian.'"

A. THIERRY.

"We can hardly read the interesting Life of Lord Macaulay without perceiving that the most popular historical work of modern times owes its origin in a great measure to the Waverley Novels. Macaulay grew up in a world of novels: his youth and early manhood witnessed the appearance of the Waverley Novels themselves. He became naturally possessed by the idea which is expressed over and over again in his Essays, and which at last he realized with such wonderful success, the idea that it was quite possible to make history as interesting as romance."

J. R. SEELEY.

{736}

8. THE IMPORTANCE OF A KNOWLEDGE OF UNIVERSAL HISTORY:

O. Browning:
The Teaching Of History In Schools,
1604 (1655).

"To know History is impossible; not even Mr. Freeman, not Professor Ranke himself, can be said to know history. ... No one, therefore, should be discouraged from studying History. Its greatest service is not so much to increase our knowledge as to stimulate thought and broaden our intellectual horizon,

and for this purpose no study is its equal."

W. P. ATKINSON.

STUDY II.

Page references in first 1895 edition in parentheses.

THE DAWN OF HISTORY; PRIMITIVE PEOPLES.

I. THE THREE MARKED DIVISIONS OF THE HUMAN RACE WHEN THE EARLIEST HISTORIC RECORD BEGINS:

(a) The Aryan:

144 (137), 145 (138) and
Appendix A., Volume V. (Volume I).

(b) The Semitic:

2963-2966 (2886-2889).

(c) The Turanian:

3245, 1740, 2265 (3129, 1701, 2221).

2. THESE DIVISIONS WERE NOT PROPERLY RACIAL, BUT LINGUISTIC,

THOUGH USAGE HAS GIVEN THEM A RACIAL SIGNIFICANCE:

"Aryan in Scientific language is utterly inapplicable to race.
It means language, and nothing but language ... I have declared
again and again that if I say 'Aryas,' I mean simply those who
speak the 'Aryan' language."

MAX MÜLLER.

"The 'Semitic race' owes its name to a confusion of ethnology
and philology. A certain family of speech, composed of
languages closely related to one another, and presupposing a
common mother tongue, received the title of 'Semitic' ... But

whatever justification there may have been for speaking of a Semitic family of languages, there was none for speaking of a Semitic race."

A. H. SAYCE.

3. BIRTHPLACE OF THE ARYANS:

C. F. Keary:
The Dawn of History,
144-145 (137-138).
www.gutenberg.org/ebooks/52030.

J. N. Larned:
A Historical Sketch of Europe,
1018 (990).

J. Rhys:
Race Theories,
145 (138).

4. EARLY ARYAN MIGRATIONS:

(a) To India.

W. W. Hunter:
History of India,
1740-1741 (1701-1702).

M. Duncker:
History of Antiquity,
1741-1742 (1702-1703).

M. Williams:
Religious Thought in India,
1742 (1703).

(b) To Greece.

E. Curtius:
History of Greece,
2603 (2535).

C. W. C. Oman:
History of Greece,
1604-1605 (1566-1567).

J. N. Larned:
Europe,
1019-1021 (991-993).

D. G. Hogarth:
Authority and Archaeology,
Volume VI., 23-25.

(c) To Italy.

T. Mommsen:
History of Rome,
1016-1017, 1845 (988-989, 1805).

F. Haverfield:
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(d) To Western Europe.

J. Rhys:
Celtic Britain,
412 (402).

J. N. Larned:
Europe, 1019 (991).

(e) In General.

Appendix A.
at end of Volume V. (Volume I.).

Ethnological Map,
before Title Page, Volume I.

5. ORIGIN OF THE SEMITIC PEOPLES:

George Adam Smith:
Historical Geography of the Holy Land,
2964-2965 (2887-2888).

6. THE VARIOUS DIVISIONS OF THE SEMITES:

(a) In General.

J. F. McCurdy:
History, Prophecy, and the Monuments,
2963-2964 (2886-2887).

(b) The Babylonian.

J F. McCurdy:
History, Prophecy, and the Monuments,
2965-2966 (2888-2889).

Z. A. Ragozin:
The Story of Chaldea,
246-247 (239-240).

A. H. Sayce:
Recent Discoveries in Babylonia,
Volume VI., 14-15.

(c) The Canaanitic and Phoenician.

F. Lenormant:
Ancient History of East,
2598-2599 (2530-2531).

(d) The Hebraic.

A. Kuenen:
Religion of Israel,
1936 (1895).

H. Ewald:
History of Israel,
1937 (1896).

S. R. Driver:
Authority and Archaeology,
Volume VI., 12.

7. DISTINCTIVE CHARACTERISTICS OF SEMITES, AND THEIR CONTRIBUTION TO THE WORLD CIVILIZATION:

A. H Sayce:
Babylonian Literature,
246 (239).

E. Renan:
Studies in Religious History,
2965 (2888).

"We owe to the Semitic race neither political life, art,
poetry, philosophy, nor Science. What, then, do we owe to
them? We owe to them Religion. The whole world, if we except
India, China, Japan, and tribes altogether savage, has adopted
the Semitic religion."

E. RENAN.

8. RELATION BETWEEN THE EARLY SEMITES AND THE

PRIMITIVE CHINESE:

R. K. Douglas:
China,
430-432 (416-418).

T. de Lacouperie:
History of Chinese Civilization,
246 (239).

9. ORIGIN AND RACIAL CONNECTIONS OF THE PRIMITIVE EGYPTIAN PEOPLES:

H. Brugsch Bey:
Egypt under the Pharaohs,
777 (750).

G. Rawlinson.
History of Ancient Egypt,
777 (750).

W. M. F. Petrie:
Recent Research in Egypt,
Volume VI., 18-20.

10. THE EARLIEST SEMITES KNOWN TO HISTORY:

J. F. McCurdy:
History, Prophecy, and the Monuments,
2965-2966 (2888-2889).

Max Müller:
The Enormous Antiquity of the East,
2966 (2889).

A. H. Sayce:
Babylonian Literature,

246 (239).

"The Babylonians were ... the first of the Semites to enter the arena of history, and they did so by virtue of the civilization to which they attained in and through their settlement on the lower Euphrates and Tigris."

J. F. MCCURDY.

{737}

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THE LIFE OF PRIMITIVE PEOPLES; ARCHAEOLOGICAL RESEARCH.

1. GENERAL CHARACTER OF WORK OF EXCAVATION OF BURIED CITIES:

W. M. F. Petrie.
The Story of a "Tell,"
782 (755).

G. Smith:
Assyrian Discoveries,
149-150 (143).

H. V. Hilprecht:
Recent Research in Bible Lands,
Volume VI., 12.

Sunday School Times,
Volume VI., 13.

2. PREHISTORIC CULTURE AND CIVILIZATION:

(a) Babylonia.

A. H. Sayce:
Babylonian Literature,
246 (239).

J. F. McCurdy:
History, Prophecy, and The Monuments,
2965-2966 (2888-2889).

S. R. Driver:
Authority and Archaeology,
Volume VI., 12.

Perrot and Chipiez:
Art in Chaldæa and Assyria,
2969 (2892).

"When civilization makes up its mind to reenter upon that country, nothing more will be needed for the reawakening in it of life and reproductive energy, than the restoration of the great works undertaken by the contemporaries of Abraham and Jacob."

PERROT AND CHIPIEZ.

(b) Egypt.

H. G. Tomkins:
Studies on Times of Abraham,
778-779 (751-752).

W. M. F. Petrie:
Recent Egyptian Exploration,
Volume VI., 20, 21.

(c) Greece.

C. W. C. Oman:
History of Greece,
1605, last column, (1567).

P. Gardner:
New Chapters in Greek History,
1605-1606 (1567-1568).

S. H. Butcher:
Aspects of Greek Genius,
1675 (1636).

A. J. Evans:
London Times,
Volume VI., 23, 24.

A. L. Frothingham:
Archaeological Progress,
Volume VI., 25.

(d) Italy and Rome.

Padre de Cara:
The Academy,
1845 (1805).

J. N. Larned:
Europe,
1020-1021 (992-993).

F. de Coulanges:
The Ancient City,
2731 (2657).

Goldwin Smith:
The Greatness of the Romans,
2732-2733 (2658-2659).

"It may seem a paradox, but we suspect that in their imperial ascendancy is seen one of the earliest and not least important steps in that gradual triumph of intellect over force, even in war, which has been an essential part of the progress of civilization. The happy day may come when Science in the form of a benign old gentleman with a bald head and spectacles on nose, holding some beneficent compound in his hand, will confront a standing army, and the standing army will cease to exist. That will be the final victory of intellect. But in the meantime, our acknowledgments are due to the primitive inventors of military discipline. They shivered Goliath's spear."

GOLDWIN SMITH.

(e) India.

W. W. Hunter:
History of Indian People,
1740-1741 (1701-1702).

(f) China.

R. K. Douglas:
China,
430-432 (416-418).

3. Early Language and Literature:

(a) Babylonia and Assyria.

A. H. Sayce:
Fresh Light from the Monuments,
150, 245-246, 664-665 (143, 238-239, 641-642).

A. H. Sayce:
Social Life of Assyrians and Babylonians,

2044 (2000).

A. H. Sayce:
Races of the Old Testament,
2963 (2886)

A. Lefèvre:
Race and Language,
2971 (2894).

(b) Egypt.

H. Brugsch-Bey:
History of Egypt,
777 (750).

M. Duncker:
History of Antiquity,
777 (750).

E. A. W. Budge:
The Mummy,
1684-1685 (1645-1646).

A. Mariette-Bey:
Monuments of Upper Egypt,
2826 (2752).

(c) Phoenicia.

Perrot and Chipiez:
Art in Phoenicia,
2601 end of last column, (2533).

(d) Greece

E. Curtius:

History of Greece,
1674-1675 (1635-1636).

W. E. Gladstone:
Homer,
1699-1700 (1660-1661).

W. Leaf:
Companion to the Iliad,
1700 (1661).

A. Lang:
Homer and the Epic,
1700 (1661).

D. G. Hogarth:
Authority and Archæology,
Volume VI., 25.

(e) Italy and Rome.

T. Mommsen:
History of Rome,
1845 (1805).

G. A. Simcox:
History of Latin Literature,
2734 (2660).

(f) India.

M. Duncker:
History of Antiquity,
1741-1742 (1702-1703).

M. Williams:
Religious Thought in India,

1742 (1703).

4. EDUCATION:

(a) Babylonia and Assyria.

A. H. Sayce:
Babylonian Literature,
246, 697-698 (239, 674-675).

A. H. Sayce:
Social Life among the Babylonians,
698 (675).

A. H. Sayce:
Fresh Light from the Monuments,
150 (143).

"The primitive Chaldeans were preeminently a literary people, and it is by their literary relics, by the scattered contents of their libraries, that we can know and judge them. As befitted the inventors of a system of writing, like the Chinese they set the highest value on education, even though examinations may have been unknown among them. Education, however, was widely diffused."

A. H. SAYCE.

(b) Egypt.

G. Maspero:
Life in Ancient Egypt,
697 (674).

H. Brugsch-Bey:
History of Egypt,
697 (674).

"In the education of youth the Egyptians were particularly strict; and 'they knew,' says Plato, 'that children ought to be early accustomed to such gestures, looks, and motions, as are decent and proper; and not to be suffered either to hear or learn any verses and songs other than those which are calculated to inspire them with virtue.'"

J. G. WILKINSON.

(c) Greece.

(1) Athenian.

Plato:
Protagoras,
701 (678).

Aristotle:
Politics,
701-702 (678-679).

J. P. Mahaffy:
Old Greek Education,
703 (680).

J. A. St. John:
The Hellenes,
703-704 (680-681).

W. W. Capes:
University Life in Ancient Athens,
5 (5).

Guhl and Koner:
Life of Greeks and Romans,
1657 (1619).

(2) Spartan.

C. Thirlwall:
History of Greece,
704-5 (681-2).

(d) Alexandria.

J. H. Newman:
Historical Sketches,
708 (685).

(e) Rome.

J. J. Döllinger:
Gentile and Jew,
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(f) Judæa.

E. Schürer:
History of Jewish People,
700 (677).

H. Graetz:
History of the Jews,
700-1 (677-678).

(g) China.

W. A. P. Martin:
The Chinese,
698-699 (675-676).

(h) Persia.

G. Rawlinson:
The Five Great Monarchies,

699-700 (676-677).

5. RELIGION:

(a) China.

R. K. Douglas:
China,
432-433 (418-419).

(b) Egypt.

A. B. Edwards:
The Academy,
305 (296).

(c) Greece.

C. C. Felton:
Greece, Ancient and Modern,
804-805, 2453 (777-778, 2401).

{738}

E. Curtius:
History of Greece,
2452 (2400).

W. M. Leake:
Topography of Athens,
2451 (2399).

C. Thirlwall:
History of Greece,
2451 (2399).

G. Grote:

History of Greece,
680 (657).

(d) India.

M. Williams:
Religious Thought in India,
1742 (1703).

Hinduism,
1743-1744 (1704-1705).

J. T. Wheeler:
History of India,
406 (396).

(e) Persia.

G. Rawlinson:
Religions of the Ancient World,
3788-3789 (3666-3667).

M. Haug:
Lectures on Zoroaster,
3790 (3668).

(f) Rome.

T. Arnold:
History of Rome,
2981 (2903).

H. Macmillan:
Roman Mosaics,
2981 (2903).

T. Mommsen:

History of Rome,
195 (188).

W. Ramsay:
Roman Antiquities,
196-197 (189-190).

Guhl and Koner:
Greeks and Romans,
3743 (3623).

N. Hawthorne:
The Marble Faun,
2476 (2417).

Note.—In nearly all cases, in the Studies that follow, all chronological divisions previous to the sixth or seventh centuries B. C. must be regarded as approximate only. The dates given are those generally accepted by the best scholars of the present day.

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G. Rawlinson:
Five Great Monarchies,
2198 (2154).

F. Lenormant:
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2964 (2887).

G. Adam Smith:

Historical Geography of the Holy Land,
2964 (2887).

2. CHALDEA-BABYLONIA:

A. H. Sayce:
Fresh Light from the Monuments,
245-246 (239), and following authorities.

3. THE ACCADIANS, SUMERIANS, ELAMITES, AND CUSHITES:

A. H. Sayce:
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A. H. Sayce:
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A. H. Sayce:
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2963 (2886).

Z. A. Ragozin:
Story of Chaldea,
795(768).

J. F. McCurdy:
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2965-2966 (2888-2889).

Dr. Tiele:
History of Babylonia,
2967 (2890).

F. Lenormant:
Ancient History of the East,

128-129 (121-122).

A. H. Sayce:
Contemporary Review,
Volume VI., 14.

4. THE ERA OF CITY STATES (5000 to 3800 B. C.):

Z. A. Ragozin:
Story of Chaldea,
246-247 (239-240).

5. CONQUESTS OF SARGON I. (3750 B. C.):

Dr. Tiele:
History of Babylonia,
2967 (2890).

F. Max Müller:
Enormous Antiquity of the East,
2966 (2889).

Z. A. Ragozin:
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247 (240).

A. H. Sayce:
Contemporary Review,
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E. J. Simcox:
Primitive Civilizations,

2967(2890).

J. F. McCurdy:
History, Prophecy, and the Monuments,
2967 (2890).

A. H. Sayce:
Ancient Empires of the East,
247 (240).

7. THE CITY OF BABYLON:

A. H. Sayce:
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247 (240).

G. Rawlinson:
Herodotus,
245 (238).

W. B. Wright:
Ancient Cities,
2969-2970 (2893).

B. T. A. Evetts:
New Light on the Bible and Holy Land,
2970-2971 (2893-2894).

8. THE KASSITE EMPIRE AND EGYPTIAN INVASIONS (1800-1250 B. C.):

J. F. McCurdy:
History, Prophecy, and the Monuments,
2967 (2890).

A. H. Sayce:
Higher Criticism and Verdict of the Monuments,

2968 (2891).

A. Lefèvre:
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G. Rawlinson:
History of Ancient Egypt,
779-780 (752-753).

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Perrot and Chipiez:
History of Art in Chaldea and Assyria,
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L. von Ranke:
Universal History,
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2415 (2363).

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11. THE LAST BABYLONIAN EMPIRE (625-536 B. C.):

E. A. W. Budge:
Babylonian Life and History,
2969 (2892).

A. H. Sayce:
Ancient Empires of East,
247 (240).

Introduction to Books of Ezra, Nehemiah, and Esther,
2577-2578 (2510-2511).

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A. H. Sayce:
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A. H. Sayce:
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698 (675).

A. H. Sayce:
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(c) Trade and Commerce.

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E. J. Lubbock:
History of Money,
2243 (2199).

Sir J. Simcox:
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(d) Treatment of Diseases.

G. Rawlinson:
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2166 (2122).

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{739}

13. THE PRE-EMINENT FIGURES IN BABYLONIAN AND ASSYRIAN HISTORY:

	B. C.
Sargon I	3750
Hammurabi	2250
Tiglathpileser I.	1110-1090
Tiglathpileser III.	745-727
Sargon II	722-705
Sennacherib	705-681
Assurbanipal	
(Sardanapalus)	668-626
Nebuchadnezzar	605-562

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H. Brugsch-Bey:
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G. Rawlinson:
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777 (750).

M. Duncker:
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17 (19).

2. HISTORICAL ANTIQUITY:

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776-777 (750).

W. M. F. Petrie:
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W. M. F. Petrie:
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3. PREHISTORIC CIVILIZATION:

W. M. F. Petrie:
Recent Egyptian Exploration,
Volume VI., 20.

4. THE OLD AND MIDDLE EMPIRES (4700-2750 B. C.);

F. Lenormant:
Ancient History,
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W. M. F. Petrie:

Recent Research in Egypt,
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G. Rawlinson:
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E. Wilson:
The Egypt of the Past,
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E. A. W. Budge:
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G. Rawlinson:
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779-780 (752-753).

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46 (39).

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History of the Church,
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E. Gibbon:
Decline and Fall of Roman Empire,
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Sir W. Muir:
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15. EGYPT AND THE CRUSADES (1216-1254 A. D.):

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The Crusades,
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S. Lane-Poole:
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17. OVERTHROW OF THE OTTOMAN POWER BY NAPOLEON
(A. D. 1798):

W. Massey:
History of England,
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J. G. Lockhart:
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18. OVERTHROW OF FRENCH POWER BY ENGLAND,
AND RESTORATION OF EGYPT TO TURKEY
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J. R. Green:
History of English People,
1368-1369 (1335-1336).

19. BANKRUPTCY OF THE STATE AND ENGLISH OCCUPATION
(1875-1883):

H. Vogt:

The Egyptian War of 1882,
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Conflict of East and West in Egypt,
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2964-2965 (2887-2888).

A. H. Sayce:
Races of the Old Testament,
2963 (2886).

J. F. McCurdy:
History, Prophecy, and the Monuments,
2963-2964 (2886-2887).

A. Lefèvre:
Race and Language,
2971 (2804).

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1937 (1896).

E. Wilson:
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365 (355).

A. Kuenen:
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F. Lenormant:
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A. H. Sayce:
The Hittites,
1695 (1656).

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Civiltà Cattolica,
1845 (1805).

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The Hittites,
116 (109).

(d) The Moabites.

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2237 (2193).

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Egypt under the Pharaohs,
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E. Naville:
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S. Sharpe:
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W. Robertson Smith:
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701 (678).

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H. Graetz:
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E. Renan:
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3210 (3699).

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W. Robertson Smith:

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J. Wellhausen:
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2872 (2797).

12. THE KINGDOM OF JUDAH (724-598 B. C.):

M. Arnold:
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H. H. Milman:
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A. Kuenen:

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1949 (1908).

P. H. Hunter:
After the Exile,
1949-1950 (1908-1909).

M. Duncker:
History of Antiquity,
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Gentile and Jew,
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2960 (2883).

C. Thirlwall:
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T. Mommsen:
History of Rome,
1956 (1915).

E. Schürer:
History of Jewish People,
1957 (1916).

T. Keim:
History of Jesus of Nazara,
1958 (1917).

E. Schürer,
History of the Jewish People,
1677-1678 (1638-1639).

15. HEROD AND THE HERODIANS; ROMAN SUPREMACY
(B. C. 40-A. D. 44):

T. Keim:
History of Jesus of Nazara,
1958-1959 (1917-1918).

T. Mommsen:
History of Rome,
1960 (1919).

H. H. Milman:
History of the Jews,
1960 (1919).

16. THE BIRTH OF JESUS AND THE FALL OF JERUSALEM
(B. C. 8-A. D. 70):

T. Keim:
History of Jesus of Nazara,
1960-1961 (1919-1920).

E. de Pressensé:
Jesus Christ,
1961-1962 (1920-1921).

C. Merivale:
History of the Romans,
1962 (1921).

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Jerusalem,
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History of the Jews,
1963 (1922).

"Nations that are fitted to play a part in universal history must die first that the world may live through them' A people must choose between the prolonged life, the tranquil and obscure destiny of one who lives for himself, and the troubled, stormy career of one who lives for humanity. The nation which revolves within its breast social and religious problems is always weak politically. Thus it was with the Jews, who in order to make the religious conquest of the world must needs disappear as a nation. They lost a material city; they opened the reign of the Spiritual Jerusalem."
RENAN.

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A. INDIA.

1. THE NAME, AND ORIGINAL INHABITANTS:

J. R. Seeley:
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H. G. Keene:
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C. F. Keary:
Dawn of History,
144-145 (137-138).

W. W. Hunter:
History of Indian People,
1740-1741 (1701-1702).

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1748 (1708).

2. THE ARYAN CONQUEST (B. C. 1500-1400 (?)):

M. Duncker:
History of Antiquity,
1741-1742 (1702-1703).

M. Williams:
Religious Life in India,
1742 (1703).

3. THE INVASION AND CONQUESTS OF ALEXANDER THE GREAT (B. C. 327-322):

J. T. Wheeler:
History of India,
1742-1743 (1703-1704).

C. A. Fyffe:
History of Greece,
2103 (2059).

G. Rawlinson:
Sixth Great Oriental Monarchy,
2960 (2883).

4. THE SPREAD OF BUDDHISM (B. C. 312-):

M. Williams:
Hinduism,
1743-1744 (1704-1705).

V. Smith:
London Times,
Volume VI., 57-58.

5. TRADE AND COMMERCE:

Mrs. Manning:
Ancient and Mediaeval India,
3208 (3697).

M. Duncker:
History of Antiquity,
3208 (3697).

B. CHINA.

1. THE NAME AND GEOGRAPHY OF THE COUNTRY:

H. Yule:
Cathay,
428 (416).

E. Reclus:
The Earth and its Inhabitants,
428-430.

2. THE ORIGIN AND EARLY HISTORY OF THE PEOPLE:

T. de Lacouperie:
Babylonia and China,

246 (239).

T. de Lacouperie:
History of Chinese Civilization,
246 (239).

R. K. Douglas:
China,
431-432 (416-418).

3. LIFE OF THE EARLY PEOPLE:

(a) Religion.

R. K. Douglas:
China,
432-433 (418-419).

T. W. Rhys Davids:
Buddhism,
433 (419).

(b) Education.

W. A. P. Martin:
The Chinese,
699 (675-676).

(c) Trade and Commerce.

Sir J. Lubbock:
History of Money,
2244-2245 (2200-2201).

E. J. Simcox:
Primitive Civilizations,
3215 (3704).

STUDY VIII.

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EARLY GREECE AND THE PERSIAN WARS.

"Our interest in Ancient history, it may be said, lies not in large masses. It matters little how early the Arcadians acquired a political unity or what Nabis did to Mycenae; that which interests us is the Constitution of Athens, the repulse of Persia, the brief bloom of Thebes."

S. H. BOTCHER.

1. THE LAND, AND ITS INFLUENCE UPON THE PEOPLE:

C. Thirlwall:

History of Greece,
3192 (3107).

E. Reclus:

The Earth and its Inhabitants,
1603 (1565).

E. A. Freeman:

Practical Bearings of European History,
1604 (1566).

F. B. Jevons:

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History of Greece,
1606 (1568).

E. Abbott:

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1606 (1568).

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E. Curtius:
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2562-2563 (2496-2497).

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2563 (2497).

{741}

C. F. Keary:
The Dawn of History,
145 (138).

E. Curtius:
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(b) The Pelopids and Mycenae.

G. Grote:
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2563 (2497).

E. Curtius:
History of Greece,
2563 (2497).

P. Gardner:
New Chapters of Greek History,
1605-1606 (1567-1568).

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History of Greece,
3241-3242 (3125-3126).

The Nation:
Dr. Schliemann's Work,
3242 (3126).

(c) The Cretans and Knossos.

G. Schömann:
Antiquities of Greece,
647 (624).

A. J. Evans:
London Times,
Volume VI., 23-24.

D. G. Hogarth:
Authority and Archaeology,
Volume VI., 24-25.

A. L. Frothingham:
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Volume VI., 25.

3. EARLY MIGRATIONS:

(a) In General.

C. W. C. Oman:
History of Greece,
1605 (1567).

E. Abbott:
History of Greece,

146-147 (139-140).

(5) Dorians and Ionians.

C. O. Müller:
History of Dorian Race,
687, 1682 (664, 1643).

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History of Greece,
687 (664).

G. Schömann:
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3100 (3018).
194-195 (187-188).

J. N. Larned:
Europe,
1020-1021 (992-993).

(c) Æolians.

G. Schömann:
Antiquities of Greece,
9-10.

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146-147 (139-140).

4. THE EARLY CITY STATES, AND POLITICAL INSTITUTIONS:

C. A. Fyffe:
History of Greece,
1606 (1568).

Thucydides:
History,
151-153 (144-146).

J. N. Larned:
Europe,
1019 (991).

Z. A. Ragozin:
Story of Chaldea,
246-247 (239-240).

L. von Ranke:
Universal History,
1607 (1569).

Perrot and Chipiez:
Chaldea and Assyria,
2968, top of second column, (2891).

F. B. Jevons:
History of Greek Literature,
1676, second column, (1637).

P. Gardner:
New Chapters in Greek History,
189, second column, (182).

M. Duncker:
History of Greece,
3189-3190 (3105).

5. THE RENOWNED LAWGIVERS:

(a) Lycurgus.

E. Abbott:
History of Greece,
3100-3102 (3018-3020).

C. H. Hanson:
The Land of Greece,
3103 (3021).

(b) Draco.

G. Grote:
History of Greece,
153 (146).

(c) Solon.

C. F. Hermann:
Political Antiquities of Greece,
155 (148).

W. Wachsmuth:
Historical Antiquities of the Greeks,
155-156 (148-149).

G. Grote:
History of Greeks,
673 (649-650).

6. THE RISE OF ATHENS:

E. Curtius:
History of Greece,
194-195 (187-188).

Thucydides:
History,
151-153 (144-146).

W. W. Leake:
Topography of Athens,
151 (144).
See Maps, 152 (145).

E. Bulwer-Lytton:
Athens, 154 (147).

7. THE PISISTRATIDÆ AND CONSTITUTION OF CLEISTHENES (560-507 B. C.):

E. Abbott:
History of Greece,
156 (149).

C. Thirlwall:
History of Greece,
156-157 (149-50).

8. CONTEST WITH SPARTA FOR SUPREMACY (509-506 B. C.):

C. H. Hanson:
The Land of Greece,
3102 (3021).

C. Thirlwall:
History of Greece,
156-157 (149-150).

C. W. Cox:
The Greeks and Persians,
157 (150).

9. THE IONIAN REVOLT AND PERSIAN WARS (B. C. 500-479):

(a) In General.

Herodotus:

Story of the Persian War,
1607-1608 (1569-1570).

P. Smith:

Ancient History of the East,
2579 (2512).

P. Smith:

History of the World, 1609 (1571).

L. von Ranke:

Universal History,
157-159 (150-152).

G. Rawlinson:

Ancient History,
2580 (2513).

(b) Marathon.

G. Grote:

History of Greece,
1609 (1571).

E. Curtius:

History of Greece,
1609-1610 (1571-1572).

(c) Thermopylae.

Herodotus:
History,
1610-1611 (1572-1573).

B. G. Niebuhr:
Ancient History,
160-161 (153-154).

(d) Plataea and Mycale.

Herodotus:
History,
1612, 1613 (1574, 1575).

E. Curtius:
History of Greece,
1613 (1575).

B. G. Niebuhr:
Ancient History,
160-161 (153-154).

10. THE CONFEDERACY OF DELOS AND END OF PERSIAN WARS (B. C. 477-461):

G. W. Cox:
History of Greece.
1613 (1575).

W. W. Lloyd:
The Age of Pericles,
1614 (1576).

T. Keightley:
History of Greece,
164 (157).

J. Fiske:
Greek Federations,
1137 (1109).

11. POLITICAL RESULTS OF PERSIAN WARS:

G. Grote:
History of Greece,
163 (155-156).

Aristotle:
Constitution of Athens,
163-164 (156-157).

"None of these men were enervated by wealth or hesitated to resign the pleasures of life. ... And when the moment came they were minded to resist and suffer, rather than to fly and save their lives; they ran away from the word of dishonor, but on the battlefield their feet stood fast, and in an instant, at the height of their fortune, they passed away from the scene, not of their fear, but of their glory. Such was the end of these men; they were worthy of Athens; and the living may not desire to have a more heroic spirit although they may pray for a less fatal issue. ... The sacrifice which they collectively made was individually repaid to them; for they received again each one for himself a praise which grows not old, and the noblest of all sepulchers—I speak not of that in which their remains are laid, but of that in which their glory survives, and is proclaimed always and on every fitting occasion both in word and deed. For the whole earth is the sepulcher of famous men; not only are they commemorated by columns and inscriptions in their own country, but in foreign lands there dwells also an unwritten memorial of them, graven not on stone, but in the hearts of men."

From the Funeral Oration of Pericles,
pages 175-178 (168-171).

STUDY IX.

Page references in first 1895 edition in parentheses.

THE GOLDEN AGE OF GREECE.

"To Greece we owe the love of Science, the love of Art, the love of Freedom; not Science alone, Art alone, or Freedom alone, but these vitally correlated with one another and brought into organic union. And in this union we recognize the distinctive features of the West. The Greek genius is the European genius in its first and brightest bloom. From a vivifying contact with the Greek spirit Europe derived that new and mighty impulse which we call Progress."

S. H. BUTCHER.

I. ATHENS AFTER THE PERSIAN WARS:

(a) The Rebuilding of the City.

E. Curtius:

History of Greece,
161-152 (154-155).

J. N. Larned:

Europe,
1022-1023 (994-995).

(b) The Enlargement of the Democracy.

G. Grote:

History of Greece,
162-163 (155-156).

{743}

Aristotle:

The Constitution of Athens,
163-164 (156-157).

A. J. Grant:
The Age of Pericles,
1615 (1577).

C. Thirlwall:
History of Greece,
132 (125).

(c) Quarrels with Sparta.

C. W. C. Oman:
History of Greece,
165-166 (158-159).

C. Thirlwall:
History of Greece,
166-167 (159-160).

A. J. Grant:
Age of Pericles,
1614 (1576).

E. Curtius:
History of Greece,
1615-1616 (1577-1578).

2. THE RISE OF PERICLES (B. C. 466-429):

C. W. C. Oman:
History of Greece,
165-166 (158-159).

A. J. Grant:

The Age of Pericles,
1615 (1577).

3. THE AGE OF PERICLES (B. C. 445-429):

(a) The Splendor of Athens.

E. Abbott:
Pericles,
167-168 (160-161).

E. Bulwer-Lytton:
Athens,
168 (161).

(b) Art and the Domestic Life.

E. E. Viollet-le-Duc:
Habitations of Man in All Ages,
168-169 (161-162).

R. C. Jebb:
Influence of Classical Greek Poetry,
1676 (1637).

(c) Education and Literature.

Plato:
Protagoras,
701 (678).

Aristotle:
Politics,
702 (679).

J. P. Mahaffy:

Old Greek Education,
702-703 (679-680).

O. Browning:
Educational Theories,
703 (680).

J. A. St. John:
The Hellenes,
703-704 (680-681).

F. B. Jevons:
History of Greek Literature,
1676-1677 (1637-1638).

S. H. Butcher:
Some Aspects of Greek Genius,
1675 (1636).

(d) Law and its Administration.

Sir H. S. Maine:
Ancient Law,
170 (163).

J. P. Mahaffy:
Social Life in Greece,
170-171 (163-164).

(e) The Political Life.

E. A. Freeman:
Athenian Democracy,
172 (165).

E. A. Freeman:
Comparative Politics,

171-172 (164-165).

S. H. Butcher:
Some Aspects of Greek Genius,
172 (165).

J. S. Blackie:
What does History Teach,
173 (166).

Pericles:
Funeral Oration,
175-178 (168-171).

4. THE GREAT PLAGUE AND DEATH OF PERICLES (B.C. 430-429):

Thucydides:
History,
178 (171).

5. THE RISE OF THE DEMAGOGUES (429-421 B. C.):

E. Curtius:
History of Greece,
178-179 (171-172).

E. A. Freeman:
Historical Essays,
179 (172).

6. SOCRATES AS SOLDIER AND CITIZEN:

F. J. Church:
Trial and Death of Socrates,
179-180 (172-173).

E. Zeller:
Socrates,
705-706 (682-683).

7. THE PELOPONNESIAN WAR (B. C. 431-404):

(a) First Period (431-421) to Peace of Nicias:

Thucydides:
History,
1620 (1582).

W. Mitford:
History of Greece,
1620-1621 (1582-1583).

C. W. C. Oman:
History of Greece,
1622 (1584).

T. Timayenis:
History of Greece,
1623-1924 (1585-1586).

C. W. C. Oman:
History of Greece,
181 (174).

E. Curtius:
History of Greece,
181 (174).

J. N. Larned:
Europe,
1023 (995).

(b) Alcibiades; The Sicilian Expedition
(B. C. 415-413):

B. G. Niebuhr:
Ancient History,
1624-1625 (1586-1587).

Y. Duruy:
History of Greek People,
182 (175).

E. A. Freeman:
Story of Sicily,
182-183 (175-176).

E. Curtius:
History of Greece,
1625-1627 (1587-1589).

T. N. Talfourd:
History of Greece,
1629 (1591).

W. Wachsmuth:
Antiquities of the Greeks,
184-185 (177-178).

E. Curtius:
History of Greece,
185 (178).

(c) Battle of Ægospotami; Overthrow of Athens
(405 B. C.).

G. Grote:
History of Greece,
185 (178).

G. W. Cox:
Athenian Empire,
1629-1630 (1591-1592).

8. THE OVERTHROW OF DEMOCRACY:

E. Curtius:
History of Greece,
185-186 (178-179).

9. EXPEDITION OF CYRUS; RETREAT OF THE "TEN THOUSAND" (B. C. 401-400):

E. Curtius:
History of Greece,
2581 (2514).

10. THE SUPREMACY OF THEBES (B. C. 379-362):

E. Curtius:
History of Greece,
1631-1632 (1593-1594).

Xenophon:
Hellenica,
1632 (1594).

C. Sankey:
The Spartan and Theban Supremacies,
1632-1634 (1594-1596).

11. CHÆRONEA; END OF GREEK INDEPENDENCE (B. C. 338):

B. G. Niebuhr:

Ancient History,
1634-1636 (1596-1598).

W. W. Fowler:
The City State,
186-187 (179-180).

P. Gardner:
Greek History,
189, first column, (182).

12. HELLENIC GENIUS, CULTURE, AND INFLUENCE:

The Funeral Oration of Pericles,
175-178 (168-171).

P. Gardner:
New Chapters in Greek History,
189-190 (182-183).

J. P. Mahaffy:
Greek Life and Thought,
188, 189, 706 (181, 182, 683).

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Aristotle,
704 and 705 (681, 682).

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703 (680).

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Free Schools in Greece,
705 (682).

W. W. Capes:
University Life in Ancient Athens,
706-707 (683-684).

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2956-2957.

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5 (5).

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1679 second column, (1640).

"So long as Greece was free and the spirit of freedom animated the Greeks, so long their literature was creative and genius marked it. When liberty perished, literature declined. The field of Chæronea was fatal alike to the political liberty and to the literature of Greece."

F. B. JEVONS.

{744}

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2101 (2057).

P. Smith:
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B. G. Niebuhr:
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E. Curtius:
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A. H. L. Heeren:
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188 (181).

"No alliance could save Greece from the Macedonian power, as subsequent events plainly showed. What was needed was a real federal union between the leading states, with a strong central controlling force; and Demosthenes' policy was hopeless just because Athens could never be the center of such a union, nor could any other city. Demosthenes is thus the last, and in some respects the most heroic champion of the old Greek instinct for autonomy. He is the true child of the City-State, but the child of its old age and decrepitude."

W. W. FOWLER.

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44 (37).

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44-45 (37-38).

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(B.C. 323-301).

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Sixth Great Oriental Monarchy,
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B. G. Niebuhr:
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P. Gardner:
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J. H. Newman:
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707-708 (684-685).

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6. THE ACHAIAN LEAGUE (E. C. 280-146):

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Federal Government,
1640-1641 (1602-1603).

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1137 (1109).

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C. Merivale:
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C. Thirlwall:
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191 (184).

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"So too it was with Greece. As a people she ceased to be. When her freedom was overthrown at Chæronea, the page of her history was to all appearance closed. Yet from that moment 'she was to enter on a larger life and on universal empire. ... As Alexander passed conquering through Asia, he restored to the East, as garnered grain, that Greek civilization whose seeds had long ago been received from the East. Each conqueror

in turn, the Macedonian and the Roman, bowed before conquered Greece and learnt lessons at her feet. To the modern world too Greece has been the great civilizer, the œcumenical teacher, the disturber and regenerator of slumbering societies. She is the source of most of the quickening ideas which remake nations and renovate literature and art. If we reckon up our secular possessions, the wealth and heritage of the past, the large share may be traced back to Greece. One half of life she has made her domain,—all, or well-nigh all, that belongs to the present order of things, and to the visible world.

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{745}

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2735-2736 (2661-2662).

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and Comitia Tributa.

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504, 505 (490, 491).

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{746}

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E. Gibbon:
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"If a man were called to fix the period in the history of the world during which the condition of the human race was most happy and prosperous, he would, without hesitation, name that which elapsed from the death of Domitian to the accession of Commodus. The vast extent of the Roman Empire was governed by absolute power, under the guidance of virtue and wisdom. The armies were restrained by the firm but gentle hand of four successive Emperors whose characters and authority commanded involuntary respect."

E. GIBBON.

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Christianity and Roman Empire,
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Europe,
1035-1036 (1007-1008).

"Shortly after the beginning of the fourth century there occurred an event which, had it been predicted in the days of Nero or even of Decius, would have been deemed a wild fancy. It was nothing less than the conversion of the Roman Emperor to the Christian faith. It was an event of momentous importance in the history of the Christian religion. The Roman Empire, from being the enemy and persecutor of the Church, thenceforward became its protector and patron. The Church entered into an alliance with the State, which was to prove fruitful of consequences, both good and evil, in the subsequent history of Europe. Christianity was now to reap the advantages and incur the dangers arising from the friendship of earthly rulers, and from a close connection with the civil authority."

G. P. FISHER.

{747}

"This important crisis in the history of Christianity almost forcibly arrests attention to contemplate the change wrought in Christianity by its advancement into a dominant power in the State. By ceasing to exist as a separate community, and by advancing its pretensions to influence the general government

of mankind, Christianity, to a certain extent, forfeited its independence. It was no longer a republic, governed exclusively—as far, at least, as its religious concerns—by its own internal policy. The interference of the civil power in some of its most, private affairs, the promulgation of its canons and even, in some cases, the election of its bishops, by the State, was the price which it must inevitably pay for its association with the ruling power."

H. H. MILMAN.

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519 (505).

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521 (507).

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Development of Superior Education,
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E. Reich:
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{748}

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B. Bosanquet:
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{749}

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E. Gibbon:
Decline and Fall,
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J. C. L. Sismondi:
The French under the Merovingians,
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339 (329).

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W. Stubbs:
Constitutional History of England,
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R. G. Latham:
The Germany of Tacitus,
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C. J. Stillé:
Mediaeval History,
1467-1468 (1436-1437).

R. W. Church:
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E. Emerton:
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J. B. Mullinger:
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"Gibbon has remarked, that of all the heroes to whom the title of 'The Great' has been given, Charlemagne alone has retained it as a permanent addition to his name. The reason may perhaps be that in no other man were ever united, in so large a measure, and in such perfect harmony, the qualities, which, in their combination, constitute the heroic character,—such as energy, or love of action; ambition, or the love of power; curiosity, or the love of knowledge; and sensibility, or the

love of pleasure. Not, indeed, the love of forbidden, unhallowed, or of enervating pleasure, but the keen relish for those blameless delights by which the burdened mind and jaded spirits recruit and renovate their powers. ... His lofty stature, his open countenance, his large and brilliant eyes, and the dome-like structure of his head, imparted, as we learn from Eginhard, to all his attitudes the dignity which becomes a King, relieved by the graceful activity of a practised warrior. ... Whether he was engaged in a frolic or a chase—composed verses or listened to homilies—fought or negotiated—cast down thrones or built them up—studied, conversed, or legislated, it seemed as if he, and he alone, were the one wakeful and really living agent in the midst of an inert, visionary, and somnolent generation."

SIR JAMES STEPHEN.

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L. Leger:
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J. Bryce:
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H. H. Milman:
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S. Menzies:
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H. Hallam:
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E. A. Freeman:
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The Franks and Gauls,

1438 (1405).

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{750}

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W. B. Boyce:
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S. A. Dunham:
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J. H. Allen:
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G. B. Adams:
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J. Alzog:
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Hildebrand,
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1474-1475 (1443-1444).

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K. Lamprecht:
History of Germany,
1475-1476 (3759-3760).

T. Carlyle:
Frederick the Great,
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J. Jastrow:
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C. Beard:
Martin Luther,
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W. J. Wyatt:
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U. Balzani:
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O. Browning:
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A. B. Pennington:
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1854-1855 (1814-1815).

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History of the Crusades,
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Jerusalem,
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The Holy Roman Empire,
1481-1482 (1448-1449).

"We have seen the Roman Empire revived in A. D. 800, by a prince whose vast dominions gave ground to his claim of universal monarchy; again erected, in A. D. 962, on the narrower but firmer basis of the German Kingdom. We have seen Otto the Great and his successors during the three following centuries, a line of monarchs of unrivalled vigor and abilities, strain every nerve to make good the pretensions of their office against the rebels in Italy and the ecclesiastical power. The Roman Empire might, and, so far as practical utility was concerned, ought now to have been suffered to expire; nor could it have ended more gloriously than with the last of the Hohenstaufen. That it did not so expire, but lived on 600 years more, till it became a piece of antiquarianism hardly more venerable than ridiculous,—till, as Voltaire said, all that could be said about it was that it was neither Holy, nor Roman, nor an Empire,—was owing partly indeed to the belief, still unshaken, that it was a necessary part of the world's order, yet chiefly to its connection, which was by this time indissoluble, with the German Kingdom. The Germans had confounded the two characters of their sovereign so long, and had grown so fond of the style and pretensions of a dignity whose possession appeared to exalt them above the other peoples of Europe, that it was now too late for them to separate the local from the universal monarch."

JAMES BRYCE.

7. THE HANSEATIC LEAGUE

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Der Deutschen Rechtsgeschichte,
1663-1664.

K. Lamprecht:
Deutsche Geschichte,
1664-1665.

8. THE RISE OF THE HAPSBURGS:

Sir R. Comyn:
History of the Western Empire,
1482-1483 (1449-1450).

W. Coxe:
History of the House of Austria,
206 (199).

J. Bryce:
The Holy Roman Empire,
1481-1482 (1448-1449).

Sir R. Comyn:
The Western Empire,
206-207 (199-200).

T. H. Dyer:
Modern Europe,
1710 (1671).

The Legend of Tell and Rütli,
3127, first column, (3043).

9. A CENTURY OF CONFUSION:

C. T. Lewis:
History of Germany,
1484 (1451).

S. A. Dunham:
The Germanic Empire,
1484-1485 (1451-1452).

H. Hallam:
The Middle Ages,
1485-1486 (1452-1543).

L. von Ranke:
The Reformation in Germany,
1486 (1453).

10. THE HOLY ROMAN EMPIRE:

J. Bryce:
The Holy Roman Empire,
1435 and 2725 (1402 and 2652).

L. von Ranke:
History of the World,
2725-2726.

W. von Giesebrecht:
The German Empire,
2726.

F. A. Gregorovius:
History of Rome,
2726.

C. W. Koch:
Revolutions of Europe,
1471, second column, (1440).

L. von Ranke:
History of the Reformation,
1471-1472 (1440-1441).

J. Bryce:
The Holy Roman Empire,
1481-1482 (1448-1449).

L. von Ranke:
History of the Reformation,
1486 (1453).

J. Bryce:
The Holy Roman Empire,
1541 (1507).

{751}

"On August 1, the French Envoy at Regensburg announced to the Diet that his master, who had consented to become Protector of the Confederate princes, no longer recognized the existence of the Empire. Francis II. resolved at once to anticipate this new Odoacer, and by a declaration, dated August 6, 1800, resigned the imperial dignity. ... Throughout, the term German Empire (deutsches Reich) is employed. But it was the crown of Augustus, of Constantine, of Charles, of Maximilian, that Francis of Hapsburg laid down, and a new era in the world's history was marked by the fall of its most venerable institution. One thousand and six years after Leo, the Pope, had crowned the Frankish King, eighteen hundred and fifty-eight years after Cæsar had conquered at Pharsalia, the Holy Roman Empire came to its end."

JAMES BRYCE.

STUDY XVI.

Page references in first 1895 edition in parentheses.

FRANCE TO THE CLOSE OF THE MIDDLE AGES (A. D. 1000-1453).

1. GENERAL CONDITIONS AT THE BEGINNING OF THE PERIOD (ABOUT A. D. 1000):

E. de Bounechose:
History of France,
1189 (1159).

E. A. Freeman:
The Franks and the Gauls,
1189 (1159).

E. Lavisse:
Political History of Europe,
1189 (1159).

J. C. L. Sismondi:
France under the Feudal System,
1189-1190 (1159-1160).

G. W. Kitchin:
History of France,
1190 (1161).

M. Arnold:
Schools and Universities,
717-718 (694-695).

2. THE RISE OF FREE CITIES AND OF THE COMMUNES:

Achille Luchaire:

The French Communes,
1190-1193 (3748-3750).

W. Stubbs:
Constitutional History of England,
505-506 (491-492).

F. P. Guizot:
History of France,
506 (492).

3. CONSOLIDATION AND EXPANSION OF THE KINGDOM (A. D. 1100-1225):

C. M. Yonge:
History of France,
1193 (1162).

Mrs. J. R. Green:
Henry the Second,
826 (799).

H. Hallam:
The Middle Ages,
1193-1194 (1162).

E. Smedley:
History of France,
2551 (2485).

W. Stubbs:
Constitutional History of England,
828 (801).

See Maps between pages 1200-1201 (1168-1169).

4. THE NOTABLE REIGN OF SAINT LOUIS, LOUIS IX.

(1226-1270):

G. Masson:
St. Louis,
1194 (1163).

A. L. la Marche:
France under Saint Louis,
1194-1196 (3750-3753).

Saint Louis of France,
1196 (1164).

H. Hallam:
The Middle Ages,
1197 (1165).

H. H. Milman:
Latin Christianity,
1197 (1165).

F. P. Guizot;
History of France,
657-658 and 658-659 (634-635 and 635-636).

Origin of the Houses of Valois and Bourbon,
1197, 3714 (1165, 3594).

Duc d'Aumale:
The House of Condé,
314 (304).

"St. Louis struck at the spirit of the Middle Age, and therein insured the downfall of its forms and whole embodiment. ... He undermined Feudalism, because he hated injustice; he warred with the Middle Age, because he could not tolerate its disregard of human rights; and he paved the way for

Philip-le-Bel's struggle with the Papacy, because he looked upon religion and the Church as instruments for man's salvation, not as tools for worldly aggrandizement. The first calm, deliberate, consistent opposition to the centralizing power of the great See was that offered by its truest friend and honest ally, Louis of France. ... He is perhaps the only monarch on record who failed in most of what he undertook of active enterprise, who was under the control of the prejudices of his age, who was a true conservative, who never dreamed of effecting great social changes,—and who yet, by his mere virtues, his sense of duty, his power of conscience, made the most mighty and vital reforms."

5. PHILIP IV. AND THE STRUGGLE WITH THE PAPACY (A. D. 1285-1314):

G. M. Bussey:
History of France,
1198 (1166).

G. Trevor:
Fall of the Western Empire,
2494-2495 (2434-2435).

A. R. Pennington:
The Church in Italy,
2495 (2435).

G. W. Kitchin:
History of France,
3177 (3092).

6. THE PARLIAMENT OF PARIS AND THE STATES GENERAL:

Sir James Stephen:
History of France,
2554-2555 (2488-2489).

Lord Brougham:
History of England and France,
2555 (2489).

Sir James Stephen:
History of France,
3108-3109 3026-3027).

F. P. Guizot:
History of France,
3109 (3027).

A. Thierry:
The Tiers État,
1202-1203 (1170-1171).

7. THE ACCESSION OF PHILIP OF VALOIS, PHILIP VI. (A. D. 1328):

J. Michelet:
History of France.
1200 (1168).

E. de Bonnechose:
History of France,
1200 (1168).

J. Michelet:
History of France,
1200 (1168).

8. THE ONE HUNDRED YEARS WAR (A. D. 1327-1435):

(a) The First Period (1327-1380).

J. Froissart:
Chronicles,
1200-1201 (1168-1169).

H. Hallam:
Middle Ages,
1201 (1169).

F. Guizot:
History of Civilization,
2868 (2794).

G. W. Kitchen:
History of France,
2868 (2794).

H. Hallam:
The Middle Ages,
2868 (2794).

G. W. Kitchen:
History of France,
1201 (1169).

H. Hallam:
The Middle Ages,
1201 (1169).

J. Michelet:
History of France,
1201-1202 (1169-1170).

A. Thierry:
The Tiers État,
1202-1203 (1170-1171).

Professor de Vericour:

The Jacquerie,
1204 (1172).

F. P. Guizot:
History of France,
1204 (1172).

E. Bonnechose:
History of France,
1205 (1173).

(b) The Second Period
(1415-1435).

A. J. Church:
Henry the Fifth,
1205-1206 (1173-1174).

C. M. Yonge:
English History,
1206 (1174).

F. P. Guizot:
History of France,
1207 (1175).

9. MISSION OF THE MAID OF ORLEANS (A. D. 1429-1431);

A. de Lamartine:
Joan of Arc,
1207-1208 (1175-1176).

S. Luce:
Jeanne d'Arc,
1208 (3755).

A. de Lamartine:
Joan of Arc,
1208-1209 (1175-1176).

Lord Mahon:
Historical Essays,
1209 (1177).

J. O'Hagan:
Joan of Arc,
1209 (1177).

T. de Quincey:
Joan of Arc,
1209-1210 (1177-1178).

"Her ways and habits during the year she was in arms are attested by a multitude of witnesses. Dunois and the Duke of Alençon bear testimony to what they term her extraordinary talents for war, and to her perfect fearlessness in action; but in all other things she was the most simple of creatures. She wept when she first saw men slain in battle, to think that they should have died without confession. She wept at the abominable epithets which the English heaped upon her; but she was without a trace of vindictiveness. ... In her diet she was abstemious in the extreme, rarely eating until evening, and then for the most part, of bread and water, sometimes mixed with wine. In the field, she slept in her armor; but when she came into a city, she always sought out some honorable matron, under whose protection she placed herself; and there is wonderful evidence of the atmosphere of purity which she diffused around her, her very presence banishing from men's hearts all evil thoughts and wishes. Her conversation, when not of war, was entirely of religion. She confessed often, and received communion twice in the week."

J. O'HAGAN.

{752}

10. THE EFFECTS OF THE ONE HUNDRED YEARS WAR:

E. E. Crowe:
History of France,
1210 (1178).

H. Hallam:
The Middle Ages,
1211 (1179).

C. W. Oman:
Warwick the King-Maker,
846-847 (819-820).

J. N. Larned:
Europe,
1065-1068 (1037-1040).

11. THE PRAGMATIC SANCTION OF CHARLES VII. (A. D. 1438):

R. C. Trench:
Church History,
2500 (2440).

M. Creighton:
History of the Papacy,
1210-1211 (1178-1179).

"Such were the chief reforms of its own special grievances which France wished to establish. It was the first step in the assertion of the rights of National Churches to arrange for themselves the details of their own ecclesiastical organizations."

M. CREIGHTON.

STUDY XVII.

Page references in first 1895 edition in parentheses.

ITALY TO THE END OF THE MIDDLE AGES (A. D. 1000-1450).

1. GENERAL CONDITIONS AT THE CLOSE OF THE TENTH CENTURY:

J. Bryce:
The Holy Roman Empire,
1848 (1808).

A. F. Villemain:
Life of Gregory VII.,
2820 (2746).

H. H. Milman:
Latin Christianity,
2820 (2746).

J. C. L. Sismondi:
The Italian Republics,
1848 (1808).

H. Hallam:
The Middle Ages,
1848-1849 (1808-1809).

J. Bryce:
The Holy Roman Empire,
2725 (2652).

L. von Ranke:

History of the World,
2725-2726.

P. Godwin:
History of France,
2078, first column, (2034).

2. THE NORMAN SETTLEMENTS (A. D. 1000-1100):

A. Thierry:
Conquest of England,
2418 (2366).

Sir F. Palgrave:
History of Normandy, etc.,
2419-2420 (2367-2368).

E. A. Freeman:
The Norman Conquest,
2421-2422 (2369-2370).

Sir F. Palgrave:
History of Normandy,
2422 (2370).

C. Thirlwall:
History of Greece,
2981-2982 (2903-2904).

E. A. Freeman:
Story of Sicily,
2983 (2905).

G. Finlay:
The Byzantine Empire,
2984 (2906).

E. Gibbon:
Decline and Fall,
2984 (2906).

J. Michelet:
History of France,
1849 (1809).

G. Procter:
History of Italy,
1849-1850 (1809-1810).

H. H. Milman:
Latin Christianity,
2821 (2747).

A. H. Johnson:
The Normans in Europe,
1850-1851 (1810-1811).

J. N. Larned:
Europe,
1051 (1023).

3. RISE OF THE FREE CITIES:

P. Godwin:
History of France,
2077-2078 (2033-2034).

J. C. L. Sismondi:
The Italian Republics,
1850 (1810).

Hinschius:
Investiturstreit,

2488-2489 (3794-3796).

H. E. Napier:
Florentine History,
3273 (3157).

(a) Milan.

W. Ihne:
History of Rome,
2746-2747 (2672-2673).

E. Gibbon:
Decline and Fall,
2226 (2182).

G. B. Testa:
War of Frederick I. against Lombardy,
2226 (2182).

T. Hodgkin:
Italy and Her Invaders,
2226-2227 (2182-2183).

(b) Florence.

H. E. Napier:
Florentine History,
1160 (1130).

T. A. Trollope:
Commonwealth of Florence,
1160-1161 (1130-1131).

B. Duffy:
The Tuscan Republics,
1161 (1131).

(c) Pavia.

G. B Niebuhr:
History of Rome,
2070 (2026).

E. Gibbon:
Decline and Fall,
2077 (2033).

(d) Pisa.

L. Pignotti:
History of Tuscany,
2605-2606 (2537-2538).

J. C. L. Sismondi:
Italian Republics,
2606-2607 (2538-2539).

(e) Venice.

E. Gibbon:
Decline and Fall,
3722 (3602).

T. Hodgkin:
Italy and Her Invaders,
3722 (3602).

G. Finlay:
Byzantine Empire,
3722-3723 (3602-3603).

J. C. L. Sismondi:
Italian Republics,

3724-3725 (3604-3605).

4. ESTABLISHMENT OF THE STATES OF THE CHURCH:

J. N. Murphy:
The Chair of Peter,
2492 (2432).

H. E. Napier:
Florentine History,
3273 (3157).

M. Creighton:
History of the Papacy,
2493 (2433).

5. CONDITIONS IN ROME.

J. I. Dollinger:
European History,
2821 (2747).

H. H. Milman:
Latin Christianity,
2821 (2747).

E. Gibbon:
Decline and Fall,
2822 (2748).

6. STRUGGLE OF THE ITALIAN REPUBLICS WITH THE EMPERORS:

(a) With Frederick I., Barbarossa (A. D. 1154-1183).

O. Browning:
Guelphs and Ghibellines,

1478-1479 (1445-1446).

J. C. L. Sismondi:
The Italian Republics,
1851-1852 (1811-1812).

U. Balzani:
The Popes and the Hohenstaufen,
1852 (1812).

J. C. L. Sismondi:
The Italian Republics,
1852 (1812).

U. Balzani:
The Popes and the Hohenstaufen,
1852-1853 (1812-1813).

W. Menzel:
History of Germany,
1853 (1813).

(b) With Frederick the Second
(A. D. 1220-1250).

J. Bryce:
The Holy Roman Empire,
1854 (1814).

J. C. L. Sismondi:
Italian Republics,
1137-1138 (1109-1110).

E. A. Freeman:
European History,
1479 (1446).

E. A. Freeman:
Frederick the Second,
1480, first column (1447).

J. A. Symonds:
The Revival of Learning,
720 (697).

(c) The Results of the Contest.

J. Burckhardt:
The Renaissance in Italy,
1856-1857 (1816-1817).

O. Browning:
Guelfs and Ghibellines,
1856 (1816).

E. Smedley:
History of France,
1858-1859 (1818-1819).

J. A. Symonds:
Florence and the Medici,
1163 (1133).

7. THE GUELF AND GHIBELLINES:

U. Balzani:
The Popes and the Hohenstaufen,
1478 (1445).

H. Hallam:
Middle Ages,
1652 (1614).

Sir A. Halliday:

Annals of House of Hanover,
1652 (1614).

T. A. Trollope:
Commonwealth of Florence,
1857-1858 (1817-1818).

R. W. Church:
Dante,
1858 (1818).

N. Machiavelli:
History of Florence,
1161-1162 (1131-1132).

{753}

O. Browning:
Guelphs and Ghibellines,
1162 (1132).

T. A. Trollope:
The Commonwealth of Florence,
1162-1163 (1132-1133).

8. THE AGE OF THE DESPOTS (A. D. 1250-1500):

J. Burckhardt:
The Renaissance in Italy,
1856-1857 (1816-1817).

T. A. Trollope:
The Commonwealth of Florence,
1857-1858 (1817-1818).

E. A. Freeman:

Historical Geography of Europe,
1859 (1819).

J. A. Symonds:
The Renaissance in Italy,
1859 (1819).

J. Yeats:
Growth of Commerce,
2249, second column, (2205).

A. von Reumont:
Lorenzo de' Medici,
2250 (2206).

T. A. Trollope:
Commonwealth of Florence,
2250 (2206).

J. A. Symonds:
The Renaissance,
2463-2464.

J. N. Larned:
Europe,
1074-1045 (1046-1047).

9. CONTINUED CONTESTS BETWEEN THE GUELF AND GHIBELLINES:

W. Hunt:
History of Italy,
1860-1861 (1820-1821).

H. E. Napier:
Florentine History,
1861 (1821).

G. Procter:
History of Italy,
1862-1863 (1822-1823).

10. RIENZI; THE LAST OF THE TRIBUNES
(A. D. 1347-1354):

Professor de Vericour:
Rienzi, 2822-2824 (2748-2750).

W. W. Story:
The Castle of St. Angelo,
2824-2825 (2750-2751).

11. THE INFAMOUS "FREE COMPANIES"
(ABOUT A. D. 1340-1390):

T. A. Trollope:
Commonwealth of Florence,
1865-1866 (1825-1826).

W. P. Urquhart:
Life of F. Sforza,
1866 (1826).

Sir John Hawkwood,
1866 (1826).

12. DEVELOPMENT OF THE CITY PRINCIPALITIES:

(a) Florence.

(1) The Passing of the Republic.

J. A. Symonds:
Florence and the Medici,

1163 (1133).

C. Balbo:
Life of Dante,
1164 (1134).

W. P. Urquhart:
Life of F. Sforza,
1165 (1135).

T. B. Macaulay:
Machiavelli,
1166 (1136).

G. Boccaccio:
The Decameron,
1166 (1136).

J. E. T. Rogers:
History of Agriculture,
292-293 (283-284).

T. A. Trollope:
Commonwealth of Florence,
1166-1167 (1136-1137).

H. E. Napier:
Florentine History,
1167 (1137).

(2) The Medici.

J. A. Symonds:
Florence and the Medici,
1167-1168 (1137-1138).

T. A. Trollope:

Commonwealth of Florence,
1168-1169 (1138-1139).

W. B. Scaife:
Florentine Life,
1169 (1139).

W. Hunt:
History of Italy,
1169 (1139).

A. von Reumont:
Lorenzo de' Medici,
1169-1170 (1139-1140).

J. C. L. Sismondi:
Italian Republics,
1170-1171 (1140-1141).

P. Villari:
Machiavelli,
1171-1172 (1141-1142).

Mrs. Oliphant:
Makers of Florence,
1172 (1142).

H. A. Taine:
Italy, Florence, and Venice,
1172-1173 (1142-1143).

(3) Savonarola.

O. T. Hill:
Savonarola's Triumph of the Cross,
1173-1175 (1143-1145).

H. E. Napier:
Florentine History,
1176 (1146).

J. A. Symonds:
Studies in Italy,
1176-1177 (1146-1147).

Mrs. Oliphant:
Makers of Florence,
1172 (1142).

"Florence was as near a pagan city as it was possible for its rulers to make it. ... Society had never been more dissolute, more selfish, or more utterly deprived of any higher aim. Barren scholarship, busy over grammatical questions, and elegant philosophy, snipping and piecing its logical systems, formed the top-dressing to that half-brutal, hall-superstitious ignorance of the poor. The dilettante world dreamed hazily of a restoration of the worship of the pagan gods; Cardinal Bembo bade his friend beware of reading St. Paul's Epistles, lest their barbarous style should corrupt his taste. ... Thus limited intellectually, the age of Lorenzo was still more hopeless morally, full of debauchery, cruelty and corruption, violating oaths, betraying trusts, believing in nothing but Greek manuscripts, coins, and statues, caring for nothing but pleasure. This was the world in which Savonarola found himself."

MRS. OLIPHANT.

(b) Milan.

J. C. L. Sismondi:
Italian Republics,
1851, second column, (1811).

J. C. L. Sismondi:

1852, second column, (1812).

J. A. Symonds:
Age of Despots,
2227-2228 (2183-2184).

W. Robertson:
Charles the Fifth,
2228 (2184).

A. von Reumont:
Lorenzo de' Medici,
2228-2229 (2184-2185).

(c) Pisa.

J. T. Bent:
Genoa,
2606-2607 (2538-2539).

J. A. Symonds:
Studies in Italy,
50-51 (43-44).

E. Gibbon:
Decline and Fall,
522-523 (508-509).

G. Procter:
History of Italy,
1862-1863 (1822-1823).

W. Hunt:
History of Italy,
1868 (1828).

J. N. Murphy:

The Chair of St. Peter,
2498 (2438).

(d) Genoa.

J. T. Bent:
Genoa,
1452-1453, 2606-2607 (1419-1420, 2538-2539).

J. A. Symonds:
Renaissance in Italy,
2227, second column, (2183).

J. T. Bent:
Genoa,
1454, 2251-2252 (1421, 2207-2208).

G. B. Malleson:
Genoese History,
1454 (1421).

J. N. Larned:
Venice and Genoa,
3220 (3709).

J. C. L. Sismondi:
Italian Republics,
1454 (1421).

(e) Venice.

G. Finlay:
Byzantine and Greek Empires,
3726 (3606).

The Republic of Venice,
3726 (3606).

E. Pears:
The Fall of Constantinople,
3726 (3606).

W. C. Hazlitt:
The Venetian Republic,
3727 (3607).

J. Yeats:
The Growth of Commerce,
3727 (3607).

G. Finlay:
Byzantine and Greek Empires,
523-524 (509-510).

F. A. Parker:
Fleets of the World,
3728 (3608).

J. T. Bent:
Genoa,
3729 (3609).

J. C. L. Sismondi:
Italian Republics,
1869 (1829).

STUDY XVIII.

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THE EARLY CHRISTIAN CHURCH: FROM PENTECOST TO
GREGORY THE GREAT
(A. D. 30(?)-600).

1. JUDÆA AT THE BEGINNING OF THE CHRISTIAN ERA:

E. de Pressensé:
Jesus Christ,
1961-1962 (1920-1921).

E. Schürer:
The Jewish People,
1678 (1639).

A. Edersheim:
Life of Jesus,
446 (432).

H. W. Hulbert:
Historical Geography,
446 (432).

{754}

2. HEROD AND THE HERODIANS (B. C. 40-A. D. 44):

T. Keim:
Jesus of Nazara,
1958-1959 (1917-1918).

T. Mommsen:
History of Rome,
1960 (1919).

H. H. Milman:
History of the Jews,
1960 (1919).

3. THE BIRTH OF JESUS:

T. Keim:
Jesus of Nazara,
1960-1961 (1919-1920).

W. Hales:
Analysis of Chronology,
1011 (984).

4. PENTECOST, AND THE ESTABLISHMENT OF THE FIRST CHURCHES:

G. Y. Lechler:
The Apostolic Times,
447 (433).

A. Sabatier:
The Apostle Paul,
447 (433).

J. B. Lightfoot:
The Apostolic Age,
448 (434).

W. Moeller:
The Christian Church,
448 (434).

J. E. Wiltsch:
Statistics of the Church,
448 (434).

J. B. Lightfoot:
The Apostolic Age,
449 (435).

W. Moeller:

The Christian Church,
449 (435).

5. THE APOSTOLIC PERIOD (A. D. 30(?)-100):

(a) The Church at Antioch.

C. Thirlwall:
History of Greece,
2107, 2960 (2063, 2883).

W. Moeller:
The Christian Church,
448 (434).

J. J. von Döllinger:
European History,
449 (435).

W. M. Ramsay:
The Church in the Roman Empire,
449 (435).

W. Moeller:
The Christian Church,
449 (435).

B. Weiss:
Introduction to the New Testament,
450 (436).

G. B. Brown:
From Schola to Cathedral,
450 (436).

(b) The Missions of St. Paul.

G. P. Fisher:
The Christian Church,
450 (436).

A. Sabatier;
The Apostle Paul,
450-451 (436-437).

A. Sabatier;
The Apostle Paul,
451, second column, (437).

J. B. Lightfoot:
Biblical Essays,
451 (437).

W. M. Ramsay:
The Church in the Roman Empire,
451 (437).

C. T. Cruttwell:
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The Christian Church,
453 (439).

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Infallibility of the Church,
2476 (2417).

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History of the Church,
2476-2477 (2417-2418).

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Early Days of Christianity,
2781-2782 (2707-2708).

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The Apostolic Age,
453 (439).

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The Cities of Egypt,
44 (37).

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Development of Superior Education,
708 (685).

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History of the Christian Church,
452 (438).

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Alexander's Empire,
2973 (2896).

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The Apostolic Age,
449 (435).

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The Apostolic Age,
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History of Greece,
146, second column, (139).

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Discoveries at Ephesus,
1008-1009 (981-2)

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"For Christians are not distinguished from the rest of mankind either in locality or in speech, or in customs. ... They dwell in their own countries as the lot of each is cast, but only as sojourners; they bear their share in all things as citizens, and they endure all hardships as strangers. Every foreign country is a fatherland to him and every fatherland is foreign. ... Their existence is on earth, but their citizenship

is in heaven. They obey the established laws, and they surpass the laws in their own lives. They love all men, and they are persecuted by all. War is urged against them as aliens by the Jews, and persecution is carried on against them by the Greeks, and yet those that hate them cannot tell the reason of their hostility."

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G. B. Brown:

From Schola to Cathedral,
455 (441).

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Religious Thought in the West,
453-454, 454 (439-440, 440).

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History of the Christian Church,
454 (440).

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Conflict of Christianity with Heathenism,
454 (440).

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The Church in the Roman Empire,
455 (441).

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Church History,
457 (443).

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The Fathers of the Third Century,
457 (443).

See Map between pages 446-7 (432-3),
and Appendix D, 3806-3810 (End of Volume I.).

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G. Uhlhorn:
Conflict of Christianity with Heathenism,
454 (440).

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Translation Epistle to Diognetus,
454 (440).

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Gifts of Civilization,
455 (441).

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Apostolic Age,
457 (443).

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Christian Church,
459 (445).

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The Church in the Roman Empire,
456 (442).

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Diocesan Synods,
456 (442).

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History of the Christian Church,
457 (443) .

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Fathers of the Third Century,
457 (443).

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Church History,
459 (445).

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W. D. Killen:
The Old Catholic Church,
458 (444).

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The Apostolic Age,
458 (444).

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The Mission of the Church,
458 (444).

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The Christian Religion,
458 (444).

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F. W. Puller:
Primitive Saints,
458 (444).

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Literary History of Early Christianity,

459-460 (445-446).

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Alexandrian Theology,
460 (446).

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Christian Church,
460 (446).

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The Christian Platonists,
460-461 (446-447).

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Church of the First Three Centuries,
1589 (1551).

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W. Moeller:
The Christian Church,
462 (448).

R. Lanciani:
Pagan and Christian Rome,
462-463 (448-449).

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Early Years of Christianity,
463 (449).

(c) Carthage.

C. T. Cruttwell:
Literary History of Early Christianity,
461-462 (447-448).

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European History,
462 (448).

{755}

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The Conflict of Christianity with Heathenism,
456 (442).

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From Schola to Cathedral,
455 (442).

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(A. D. 64-68).

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Early Days of Christianity,
2781-2782 (2707-2708).

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(A. D. 93-96).

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History of Rome,
2784 (2710).

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(A. D. 112-116).

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History of Rome,
2786, first column, (2712).

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(A. D. 175-178).

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2788 (2714).

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(about A. D. 250).

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2790 (2716).

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(A. D. 303-5).

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History of the Early Christians,
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The Ante-Nicene Churches,
Appendix D, 3806 (End of Volume I.).

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History of the Christian Church,
454 (440).

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The Christian Church,
456-457 (442-443).

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Church History,

457 (443).

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Fathers of the Third Century,
457 (443).

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The Christian Church,
460 (446).

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Church of the Early Fathers,
461 (447).

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European History,
462 (448).

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Early Years of Christianity,
463 (449).

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Church in the Fourth Century,
468 (454).

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The Celtic Church,
472 (458).

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Church in the Fourth Century,
471 (456-457).

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The Holy See,
2482 (2423).

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(A. D. 323):

G. P. Fisher:
History of the Christian Church,
465 (451).

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The Church and the Roman Empire,
465-466 (451-452).

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Ecclesiastical History,
2794 (2720).

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Constantine the Great,
2794-2795 (2721).

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History of the Christian Church,
2795 (2721).

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Fall of the Roman Empire,
2795 (2721).

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History of Christianity,
466-467, 467-468 (452-453, 453-454).

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E. L. Cutts:
Constantine the Great,

519 (505).

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Greece under the Romans,
520 (506).

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Italy and Her Invaders,
2801 (2727).

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The Church and the Eastern Empire,
468-469 (454-455).

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The Gifts of Civilization,
469 (455).

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The Greek Church,
470 (456).

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The Councils of the Church,
644 (621).

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Fall of the Roman Empire,
138 (131).

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Decline and Fall,
138-139 (131-132).

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St. Athanasius,
2411 (2359).

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Christian Church,
466 (452).

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The Dynasty of Theodosius,
2799, second column, (2725).

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Charlemagne,
1150 (1120).

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History of Christian Church,
1150 (1120).

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Conflict of Christianity with Heathenism,
2796-2798 (2722-2724).

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Fall of the Roman Empire,
2798, first column, (2724).

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History of the Christian Church,
2801 (2727).

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Decline and Fall,

2800-2801 (2726-2727).

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E. de Pressensé:
Early Years of Christianity,
463 (449).

C. A. A. Scott:
Ulfilas,
464, 1594 (450, 1556).

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Beginning of the Middle Ages,
1432 (1399).

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The Church in Germany,
472 (458).

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Church History,
464 (450).

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Gifts of Civilization,
465 (451).

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Church of the Early Fathers,
464 (450).

Appendix D, 3807-3810 (End of Volume I.).

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J. Watt:

The Latin Church,
471 (457).

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Early Church History,
471 (457).

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Organization of the Christian Churches,
471 (457).

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The Celtic Church,
472 (458).

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History of the Church,
2481 (2421-2482).

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Leo the Great,
2481 (2422).

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Page references in first 1895 edition in parentheses.

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Infallibility of the Church,
2476 (2417).

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2476-2477 (2417-2418).

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The Faith of Our Fathers,
2477-2478 (2418-2419).

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The Papacy,
2478-2479 (2419-2420).

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History of the Church,
2480 (2421).

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Christian Unity,
2480 (2421).

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Early Years of Christianity.
463 (449).

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W. D. Killen:
The Old Catholic Church,
458 (444).

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Mission of the Church,
458 (444).

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The Apostolic Age, 458 (444).

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The Christian Religion,

458 (444).

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Organization of the Christian Churches,
471 (457).

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Leo the Great,
2481 (2422).

{756}

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Christendom; Ecclesiastical and Political,
466 (452).

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Statistics of the Church,
466 (452).

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The Greek Church,
470, first column, (456).

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Early Church History,
471 (457).

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History of the Church,
2480-2481 (2421-2422).

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Leo the Great,
2481 (2422).

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Ecclesiastical and Political Christendom,
476 (462).

V. Duruy:
Middle Ages,
476 (462).

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The Eastern Church,
2480 (2421).

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St. Athanasius,
2411 (2359).

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J. Watt:
The Latin Church,
471 (457).

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Church History,
471 (457).

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The Christian Churches,
471 (457).

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Leo the Great,
2481 (2422).

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The Christian Church,
2479, last column, 2480 (2421).

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Europe, 1045 (1017).

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The Middle Ages,
475-476 (461-462).

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Gregory the Great,
2481-2482 (2422-2423).

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The Holy See,
2482 (2423).

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History of the Papacy,
2818 (2744).

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Early Church History,
476 (462).

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The Middle Ages,
476-477 (462-463).

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History of Music,
2280-2281.

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(A. D. 600-800):

The Succession of Popes,
2482-2483 (2423-2424).

(a) The Rise of Papal Sovereignty at Rome.

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The Byzantine Empire,
2483 (2424).

E. Gibbon:
Decline and Fall,
2483 (2424).

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History of the Catholic Church,
2483 (2424).

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History of France,
2483 (2424).

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The Holy Roman Empire,
2483 (2424).

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Mediaeval History,
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1732 (1692-1693).

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The Greek Church,
470 (456).

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(1846-1806). [sic]

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1846-1847 (1806-1807).

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Studies in Mediaeval History,
1467-1468 (1436-1437).

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The Middle Ages,
1434-1435 (1401-1402).

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THE HOLY SEE
(A. D. 300-1073):

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Essays,
2485-2486 (2426-2427).

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Life of Gregory VII.,
2820 (2746).

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The Catholic Church,
2820 (2746).

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The Revolutions of Europe,
1471 (1439-1440).

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European History,
2820-2821 (2746-2747).

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Christian History,
1473 (1442).

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Civilization during Middle Ages,
1473-1474 (1442-1443).

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Charlemagne,
1150 (1120).

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1150 (1120).

"Such are a few of the most prominent features of the ecclesiastical history of these dreadful times, when, in the words of St. Bruno, 'the world lay in wickedness, holiness had disappeared, justice had perished, and truth had been buried; Simon Magus lording it over the Church, whose bishops and priests were given to luxury and fornication.' Had we lived in such deplorable times ... we should have felt for certain, that if it was possible to retrieve the Church, it must be by some external power; she was helpless and resourceless; and the civil power must interfere, or there was no hope."

CARDINAL J. H. NEWMAN.

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Count de Montalembert:
Monks of the West,
2486-2487 (2427-2428).

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Manual of History,
2487-2488 (2428).

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Civilization during Middle Ages,
1473-1474 (1442-1443).

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The Chair of Peter,
2492 (2432).

(a) Papal Elections.

H. Hallam:
The Middle Ages,
2491-2492 (2431-2432).

(b) Celibacy.

Sir James Stephen:
Hildebrand,
2488 (2429).

(c) Investitures.

Hinschius:
Investiturstreit,
2488-2489 (3794-3796).

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W. Moeller:
The Christian Church,
2490 (2430).

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Hildebrand and His Times,
396-397 (386-387).

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The Turning-Point of the Middle Ages,

2490-2491 (2430-2431).

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Christian History,
1474 (1442).

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Latin Christianity,
2821 (2747).

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History of Germany,
1474 (1443).

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History of the Church,
1474-1475 (1443-1444).

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Mediaeval Church History,
2491 (2431).

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J. C. L. Sismondi:
The Italian Republics,
1850 (1810).

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History of the Papacy,
2492-2493 (2432-2433).

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The Middle Ages,

2493-2494 (2433-2434).

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The Popes and the Hohenstaufen,
1478 (1445).

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Guelphs and Ghibellines,
1478-1479 (1445-1446).

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European History,
1479 (1446).

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Frederick the Second,
1479-1480 (1446-1447).

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The Holy Roman Empire,
1854 (1814).

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Frederick the Second,
1855-1856 (1815-1816).

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Europe,
1050 and 1054 (1022, 1026).

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G. Trevor:
Rome,
2494-2495 (2434-2435).

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History of the Popes,
2495-2496 (2435-2436).

M. Creighton:
History of the Papacy,
2496 (2436).

{757}

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W. W. Story:
Castle St. Angelo,
2497 (2437).

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The Chair of Peter,
2498 (2438).

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History of the Popes,
2498 (2438).

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Manual of Church History,
2498-2499 (2438-2439).

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Mediaeval Church History,
2500 (2440).

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Wycliffe and Reform Movements,
2501 (2441).

T. H. Dyer:
Modern Europe,
2501 (2441).

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English Literature,
2501-2502 (2441-2442).

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Renaissance in Italy,
2502, 2503 (2442, 2443).

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T. Kolde:
Martin Luther,
2504.

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History of the Reformation,
2504-2505 (2443-2444).

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The Reformation,
2505 (2444).

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Lectures on Catholic Church,
2505-2506 (2444-2445).

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2506 (2445).

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The Catholic Reaction,
1789-1791 (1750-1752).

STUDY XX.

Page references in first 1895 edition in parentheses.

MONASTICISM AND THE RELIGIOUS ORDERS.

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Christian Monasticism,
468 (454).

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The Jewish People,
1014 (3745).

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The Hermits,
119-120 (112-113).

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2239-2240 (2195-2196).

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Monks of the West,
2240-2241 (2196-2197).

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The Coming of the Friars,
2241-2242 (2197-2198).

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Monks of the West,
2050-2051 (2006-2007).

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Books in Manuscript,
2051-2052 (2007-2008).

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711 (688).

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Christian Schools,
711-712 (688-689).

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(a) The Original Order.

C. J. Stillé:
Mediaeval History,
288 (279).

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Mediaeval History,
495 (481).

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J. E. Darras:
The Catholic Church,
405 (395).

M. A. Schimmelpenninck:
La Grande Chartreuse,
405 (395).

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(a) The Original Order.

K. Norgate:
England under the Angevin Kings,
487 (472-473).

C. J. Stillé:
Mediaeval History,
491-492 (477-478).

H. Stebbing:
The Universal Church,
492 (478).

G. W. Cox:
The Crusades,
653 (630).

(b) The Trappists
(about 1150).

C. Lancelot:
La Grande Chartreuse,
3237-3238 (3121-3122).

(c) Port Royal

(A. D. 1204-1710).

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Pascal,
2637 (2565).

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France under Mazarin,
2637-2639 (2565-2567).

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2639 (2567).

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2640 (2568).

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European History,
2640 (2568).

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K. Norgate:
England under the Angevin Kings,
197 (190).

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Middle Ages,
2656 (2584).

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J. L. von Mosheim:

Ecclesiastical History,
401 (391).

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(ABOUT A. D. 1200):

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Manual of Church History,
2196 (2152).

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Renaissance in Italy,
1789-1791 (1750-1752).

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(ABOUT A. D. 1225):

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Middle Ages,
2196 (2152).

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End of the Middle Ages,
285 (276).

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Ecclesiastical History,
286 (277).

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The Papacy,
2493, first column, (2433).

See
"The Recollects,"
2700 (2627).

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(ABOUT A. D. 1500):

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Manual of Church History,
399 (389).

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(ABOUT A. D. 1525):

A. W. Ward:
The Counter-Reformation,
3189 (3104).

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History of the Popes,
3189 (3104).

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(ABOUT A. D. 1625):

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Universal History,
2039 (1995).

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(A. D. 1118-):

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The Crusaders,
1701-1702 (1662-1663).

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Military Religious Orders,
1702 (1663).

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The Byzantine and Greek Empires,
1702 (1663).

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Reign of Philip II.,
1703-1704 (1664-1665).

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The Crusaders,
3176 (3091).

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The Knights Templars,
3176 (3091).

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History of France,
3177 (3092).

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Secret Fraternities of the Middle Ages,
1438-1439 (1405-1406).

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Hours with the Mystics,
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(ABOUT A. D. 1190):

F. C. Woodhouse:
Military Religious Orders,
3185-3186 (3100-3101).

G. F. Maclear:
Apostles of Mediæval Europe,
2684-2685 (2612-2613).

{758}

15. THE SOCIETY OF JESUS
(A. D. 1540-):

(a) Loyola, and the Founding of the Order.

L. Häusser:
The Reformation,
1928-1929 (1887-1888).

G. B. Nicolini:
The Jesuits,
1929 (1888).

A. T. Drane:
Christian Schools,
731 (708).

G. Compayré:
History of Pedagogy,
731-732 (708-709).

O. Browning:
Educational Theories,

732 (709).

(b) Early Jesuit Missions.

A Historical Sketch of the Jesuits,
1929-1930 (1888-1889).

W. P. Greswell:
The Dominion of Canada,
1930 (1889).

F. Parkman:
The Jesuits in North America,
1930-1931 (1889-1890).

R. Mackenzie:
America,
371-372 (361-362).

The Hundred Years of Christianity in Japan,
1915-1916 (1875-1876).

D. Murray:
The Story of Japan,
1916 (1876).

(c) Changes in the Statutes of the Order.

L. von Ranke:
History of the Popes,
1931-1932 (1890-1891).

(d) Expulsion of the Order from France
(A. D. 1595).

T. H. Dyer:
Modern Europe,

1246, first column, (1214).

(e) Controversy with the Jansenists
(A. D. 1653-1715).

J. B. Perkins:
France and Mazarin,
2637-2639 (2565-2567).

H. Martin:
History of France,
2639 (2567).

(f) General Suppression of the Society throughout Europe
(A. D. 1757-1775).

H. M. Stephens:
The Story of Portugal,
1932-1933 (1891-1892).

W. H. Jervis:
History of the Church of France,
1933-1934 (1892-1893).

(g) Suppression of the Order by the Pope (A. D. 1773),
and Restoration (A. D. 1814).

The Jesuits and Their Expulsion,
1934-1935, and 1935 (1893-1894, and 1894).

Clement XIV. and the Jesuits,
1935 (1894).

"Himself without home or country, and not holding the
doctrines of any political party, the Disciple of Jesus
renounced everything which might alienate him among varying
nationalities, pursuing various political aims. Then he did

not confine his labors to the pulpit and the confessional; he gained an influence over the rising generation by a systematic attention to education, which had been shamefully neglected by the other orders. It is a true saying, that 'he who gains the youth possesses the future'; and by devoting themselves to the education of youth, the Jesuits secured a future to the Church more surely than by any other scheme that could have been devised. What the schoolmasters were for the youth, the confessors were for those of riper years; what the clerical teachers were for the common people, the spiritual directors and confidants were for great lords and rulers—for the Jesuits aspired to a place at the side of the great, and at gaining the confidence of Kings."

L. HÄUSSER.

STUDY XXL

Page references in first 1895 edition in parentheses.

THE RISE AND CONQUESTS OF MOHAMMEDANISM.

1. ARABIA AND THE ARABS; THE SARACENS;

A. H. Sayce;
Races of the Old Testament,
2963 (2886).

G. Rawlinson:
Notes to Herodotus,
128 (121).

F. Lenormant:
Ancient History.
128-129 (121-122).

A. H. Sayce:
Ancient Arabia,

129-130 (122-123).

E. Gibbon;
Decline and Fall,
2878 (2803).

H. H. Milman:
Note to Gibbon,
2878 (2803).

H. Yule:
Cathay,
3215-3216, and 3216-3217 (3704-3705, and 3705-3706).

2. The Birth and Career of Mohammed (A. D. 570-632):

E. A. Freeman:
Conquests of the Saracens,
2112 (2067).

Sir W. Muir:
Life of Mahomet,
2112-2113 (2067-2068).

J. W. H. Stobart
Islam and Its Founder,
1843 (1803).

Sir H. Nicholas:
Chronology of History,
1011 (984).

S. Lane-Poole:
Studies in a Mosque,
2194 (2150).

3. THE FIRST CALIPHATE; FROM ABU BEER TO ALI (A. D. 632-661);

See
Caliph,
363 (353).

R. D. Osborn:
Islam under the Khalifs,
1735 (1696).

(a) Conquest of Syria.

George Adam Smith:
Geography of Holy Land,
3141-3142 (3057-3058).

E. Gibbon:
Decline and Fall,
2113-2114 (2068-2069).

W. Irving:
Mahomet and His Successors,
1923 (1882).

(b) Conquest of Persia.

G. Rawlinson:
Seventh Oriental Monarchy,
2114 (2069).

(c) Conquest of Egypt.

Sir W. Muir:
Annals of Early Caliphate,
2114-2115 (2069-2070).

Researches on Burning of Library of Alexandria,
2047-2048 (2003-2004).

(d) Conquest of Northern Africa.

T. Mommsen:
History of Rome,
2442 (2390)

H. E. M. Stutfield:
El Maghreb,
2133-2134 (2089-2090).

E. A. Freeman:
Conquest of Saracens,
2115 (2070).

E. Gibbon:
Decline and Fall,
2115 (2070).

4. THE OMEYYAD CALIPHATE (A. D. 661-750)

E. A. Freeman:
Conquests of the Saracens,
2116 (2071).

Sir W. Muir:
Annals of the Early Caliphate,
2116-2117 (2071-2072).

5. THE SUBJUGATION OF THE TURKS (A. D. 710):

E. Gibbon:
Decline and Fall, 3246 (3130).

E. Gibbon:
Decline and Fall, 2117 (2072).

6. THE CONQUEST OF SPAIN (A. D. 711-13),
AND BATTLE OF TOURS (732):

R. W. Church:
Beginning of the Middle Ages,
1599-1600 (1561-1562).

H. Coppée:
The Conquest of Spain,
3054 (2974).

P. Godwin:
History of France,
2117-2118, 2119 (2072-2075, 2076).

7. THE DIVIDED CALIPHATE; THE OMEYYADS AND ABBASSIDES
(A. D. 715):

Sir W. Muir:
Annals of the Early Caliphate,
2118 (2075).

E. A. Freeman:
Conquests of the Saracens,
2119, 2120 (2076, 2077).

E. H. Palmer:
Haroun Alraschid,
2119 (2076).

T. Nöldeke:
Eastern History,
2120 (2077).

8. TURKISH SUPREMACY, AND ESTABLISHMENT OF THE SULTANATE

(A. D. 1000-):

E. Gibbon:
Decline and Fall.
3247 (3131).

A. Vambéry:
History of Bokhara,
3247, 3249 (3131, 3133).

R. D. Osborn:
Islam under Khalifs of Bagdad,
3247-3248 (3131-3132).

E. Pears:
The Fall of Constantinople,
3248 (3132).

G. Finlay:
The Byzantine and Greek Empires,
3348 (3133).

{759}

9. RISK OF THE OTTOMAN EMPIRE (A. D. 1250-):

Besant and Palmer:
Jerusalem,
3867 (3793-3763).

J. F. Michaud:
History of the Crusades,
3867 (3793).

E. Gibbon:
Decline and Fall,
3349-3350 (3133-3131).

10. CIVILIZATION OF THE SARACENS:

(a) Education.

J. W. Draper.
Intellectual Development of Europe,
713 (690).

Westminster Review:
Intellectual Revival,
713-714 (690-691).

(b) Medical Science.

J. H. Baas:
History of Medicine,
3173-3174 (3130).

G. F. Fort:
Medical Economy of Middle Ages,
2174 (2130).

P. V. Renouard:
History of Medicine,
3174 (2130).

(c) Commerce.

H. Yule:
Cathay,
3215-3217 (3704-3706).

G. Finlay:

The Byzantine Empire,
3217-3218 (3706-3707).

STUDY XXII.

Page references in first 1895 edition in parentheses.

THE CRUSADES.

"‘You,’ continued the eloquent pontiff [Urban II.], ‘you, who hear me, and who have received the true faith, and been endowed by God with power, and strength, and greatness of soul,—whose ancestors have been the prop of Christendom, and whose Kings have put a barrier against the progress of the infidel,—I call upon you to wipe off these impurities from the face of the earth, and lift your oppressed fellow Christians from the depths into which they have been trampled.’ Palestine was, he said, a land flowing with milk and honey, and precious in the sight of God, as the scene of the grand events which have saved mankind. That land, he promised, should be divided among them. Moreover, they should have full pardon for all their offenses against God or man. ‘Go then,’ he added, ‘in expiation of your sins; and go assured that, after this world shall have passed away, imperishable glory shall be yours in the world to come.’ The enthusiasm was no longer to be restrained, and loud shouts interrupted the speaker; the people exclaiming as with one voice, ‘Dieu le veult! Dieu le veult!’"

C. MACKAY.

1. CAUSES OF THE MOVEMENTS:

W. Irving:
Mahomet and His Successors,
1923 (1882).

E. A. Freeman:
Conquests of the Saracens,

2120 (2077).

G. Finlay:
Byzantine and Greek Empires,
649 (626).

2. PREACHING OF POPE URBAN II., AND PETER THE HERMIT:

C. Mackay:
Popular Delusions,
649-50 (626-627).

E. Gibbon:
Decline and Fall,
650 (627).

3. THE FIRST CRUSADE (A. D. 1096-1099):

E. Gibbon:
Decline and Fall,
650-651 (627-628).

Besant and Palmer:
Jerusalem,
1923-1924 (1882-1883).

T. Keightley:
The Crusaders,
651-652 (628-629).

H. F. Brown:
Venice,
3725-3726 (3605-3606).

4. THE LATIN KINGDOM OF JERUSALEM (A. D. 1099-1291):

E. Gibbon:
Decline and Fall,
1924 (1883).

T. Keightley:
The Crusaders,
1924 (1883).

C. Mills:
The Crusades,
1924-1925 (1883-1884).

G. W. Cox:
The Crusades,
1925 (1884).

5. THE SECOND CRUSADE (A. D. 1147-1149):

H. von Sybel:
The Crusades,
652-653 (629-630).

G. W. Cox:
The Crusades,
653 (630).

C. M. Yonge:
History of France,
1193 (1161-1162).

K. Norgate:
England under the Angevin Kings,
127-128 (120-121).

6. THE THIRD CRUSADE

(A. D. 1188-1192):

J. F. Michaud:
The Crusades,
653 (630).

E. Gibbon:
Decline and Fall,
653-654 (630-631).

G. W. Cox:
The Crusades,
654 (631).

7. THE FOURTH AND FIFTH CRUSADES (A. D. 1196-1203):

G. W. Cox:
The Crusades,
654 (631).

E. Pears:
The Fall of Constantinople,
654-655 (631-632).

8. THE CONQUEST OF CONSTANTINOPLE (A D. 1204):

G. Finlay:
The Byzantine and Greek Empires,
3726 (3606).

E. Pears:
The Fall of Constantinople,
3726, and 350-351 (3606 and 340-341).

G. Finlay:

History of Greece,
351 (341).

E. Gibbon:
Decline and Fall,
351-352 (341-342).

G. Finlay:
History of Greece,
6 and 2730 (6 and 2656).

G. Finlay:
Byzantine and Greek Empires,
1649-1650 (1611-1612).

9. MINOR CRUSADING MOVEMENTS:

(a) The Children's Crusade (A. D. 1212).

Besant and Palmer:
Jerusalem,
655-656 (632-633).

(b) Against the Albigenses (A. D. 1209-1229).

G. Rawlinson:
Seventh Oriental Monarchy,
2127-2128 (2083-2084).

J. L. Mosheim:
Christianity.
2128 (2084).

H. H. Milman:
Latin Christianity,
39 (32).

J. Alzog:
Manual of Church History,
39 (32).

Sir J. Stephen:
History of France,
39 (32).

E. Smedley:
History of France,
39-40 (32-33).

Sir James Stephen:
History of France,
40 and 41 (33 and 34).

E. A. Freeman:
Historical Geography of Europe,
40-41 (33-34).

(c) Against the Livonians
(about A. D. 1200).

G. F. Maclear:
Apostles of Mediaeval Europe,
2075 (2031).

(d) Against the Prussians
(about A. D. 1250-).

G. F. Maclear:
Apostles of Mediæval Europe,
2684-2685 (2612-2613).

T. Carlyle:
Frederick the Great,
2685 (2613).

(e) Against the Almohades
(A. D. 1212).

E. A. Freeman:
Conquest of the Saracens,
49 (42.)

H. Coppée:
Conquest of Spain by the Moors,
3058 (2977).

10. THE SIXTH CRUSADE
(A. D. 1216-1229):

G. Procter:
The Crusades,
656-657 (633-634).

E. A. Freeman:
Emperor Frederick the Second,
1480 (1446-1447).

Besant and Palmer:
Jerusalem,
1926 (1885).

11. THE SEVENTH CRUSADE
(A. D. 1248-1254):

F. P. Guizot:
History of France,
657-658 (634-635).

J. F. Michaud:
The Crusades,
658 (635).

12. FINAL MOVEMENTS

(A. D. (1270-1299):

F. P. Guizot:
HISTORY OF FRANCE,
658-659 (635-636).

G. Procter:
The Crusades,
1927-1928 (1886-1887).

W. Stubbs:
Mediaeval and Modern History,
1928 (1887).

C. G. Addison:
The Knights Templars,
659 (636).

{760}

13. THE EFFECTS OF THE CRUSADES:

E. Gibbon;
Decline and Fall,
659 (636).

H. Hallam;
The Middle Ages,
659 (636).

W. Robertson;
Progress of Society in Europe,
659 (636).

W. Stubbs;

Mediaeval and Modern History,
660 (637).

F. Guizot:
History of Civilization,
660-661 (637-638).

"The principle of the Crusades was a savage fanaticism; and the most important effects were analogous to the cause. Each pilgrim was ambitious to return with his sacred spoils, the relics of Greece and Palestine; and each relic was preceded and followed by a train of miracles and visions. The belief of the Catholics was corrupted by new legends, their practice by new superstitions; and the establishment of the inquisition, the mendicant orders of monks and friars, the last abuse of indulgences, and the final progress of idolatry, flowed from the baleful fountain of the holy war."

E. GIBBON.

STUDY XXIII.

Page references in first 1895 edition in parentheses.

THE RENAISSANCE—THE BIRTH OF THE MODERN AGE (A. D. 1400-1500).

1. THE GENERAL MEANING OF THE TERM:

J. A. Symonds:
Renaissance in Italy,
2703-2704 (2630-2631).

P. Villari:
Niccolo Machiavelli,
2704 (2631).

J. N. Larned:
Europe,
1077-1079 (1049-1051).

2. THE LEADING INFLUENCE OF ITALY IN THE AWAKENING:

J. A. Symonds:
Renaissance in Italy,
1872-1873, 1874-1875 (1832-1833, 1834-1835).

Vernon Lee:
Euphorion,
1874 (1834).

H. A. Taine:
Italy, Florence, and Venice,
1173 (1143).

"When Machiavelli called Italy 'the corruption of the world,' he did not speak rhetorically. An impure and worldly clergy; an irreligious, though superstitious, laity; a self-indulgent and materialistic middle class: an idle aristocracy, excluded from politics and unused to arms; a public given up to pleasure and money getting; a multitude of scholars, devoted to trifles, and vitiated by studies which clashed with the ideals of Christianity—from such elements in the nation proceeded a widely spread and ever-increasing degeneracy. ... Religion expired in laughter, irony, and license. Domestic simplicity yielded to vice, whereof the records are precise and unmistakable. The virile virtues disappeared. What survived of courage assumed the forms of ruffianism, ferocity, and treasonable daring. Still, simultaneously with this decline in all the moral qualities which constitute a powerful people, the Italians brought their arts and some departments of their literature to a perfection that can only be paralleled by Ancient Greece. The anomaly implied in this statement is striking; but it is revealed to us by evidence

too overwhelming to be rejected.

J. A. SYMONDS.

3. OTHER GREATLY CONTRIBUTING CAUSES:

(a) The Capture of Constantinople by the Turks (A. D. 1453):

C. C. Felton:
Greece, Ancient and Modern,
524 (510).

Demetrios Bikelas:
The Byzantine Empire,
352 (342).

J. N. Larned:
The Greek Revival,
1077-1078 (1050).

(b) The Invention of Printing (A. D. 1456).

J. N. Larned:
The Invention of Printing,
1077 (1049).

H. Bouchot:
The Printed Book,
2660 (2588).

W. Blades:
Books in Chains,
2660-2661 (2588-2589).

(c) The Marvelous Results of Exploration and Discovery.

J. N. Larned:
Europe,

1078-1079 (1050-1051).

J. A. Blanqui:
History of Political Economy,
3730-3731 (3610-3611).

(1) The Early Successes of the Portuguese.

C. R. Markham:
The Sea Fathers,
2644 (2572).

J. Yeats:
Growth of Commerce,
2644-2645 (2572-2573).

J. W. Draper:
Intellectual Development of Europe,
2645 (2573).

(2) The Spanish Discoveries.

H. H Bancroft:
History of the Pacific States,
55 (48).

Sir A. Helps:
The Spanish Conquest,
55-56 (48-49).

C. R. Markham:
The Sea Fathers,
56 (49).

W. Irving:
Life of Columbus,
57-58 (50-51).

J. Fiske:
The Discovery of America,
60 (53).

J. Winsor:
Narrative and Critical History of America,
61-62 (54-55).

(3) The English Discoveries.

G. Bancroft:
History of the United States,
58 (51).

H. Harrisse:
Discovery of North America,
59.

H. Harrisse:
Discovery of North America,
61 (3678).

4. THE EFFECTS OF THE RENAISSANCE:

(a) In Italy.

H. A. Taine:
History of English Literature,
2502 (2442).

W. Hunt:
History of Italy,
1870 (1830).

Mrs. Oliphant:
Makers of Florence,

1172 (1142).

H. A. Taine:
Italy, Florence, and Venice,
1172-1173 (1142-1143).

(b) In France.

J. A Symonds:
Renaissance in Italy,
1872-1873 (1832-1833).

Mrs. Mark Pattison:
The Renaissance of Art,
1216-1217 (1184-1185).

A. Tilley:
Literature of the French Renaissance,
1217 (1185).

(c) In Germany.

M. Arnold:
Schools on the Continent,
727 (704).

(d) In England.

H. A. Taine:
English Literature,
851-852 (824-825).

J. A. Symonds:
Shakespeare's Predecessors,
852-853 (825-826).

5. THE INFLUENCE OF THE RENAISSANCE:

(a) Upon Art.

R. N. Wornum:
Epochs of Painting,
2462-2463.

J. A. Symonds:
Renaissance in Italy,
2463-2454.

R. Westmacott:
Handbook of Sculpture,
2957-2958.

J. A. Symonds:
Renaissance in Italy,
3732 (3612).

W. B. Scaife:
Florentine Life,
1169 (1139).

(b) Upon Education.

G. Compayré:
History of Pedagogy,
725 (702).

M. Arnold:
Schools on the Continent,
727 (704).

D. Campbell:
The Puritan in Holland, etc.,
728-729 (705-706).

A. Lang:
Oxford,
729-730 (706-707).

(c) Upon Music.

W. J. Henderson:
The Story of Music,
2284.

H. G. B. Hunt:
A History of Music,
2284.

(d) Upon the Foundation of Libraries.

J. A. Symonds:
The Renaissance in Italy,
2052-2053 (2008-2009).

G. W. Greene:
Historical Studies,
2053 (2009).

E. Edwards:
Statistics of Libraries,
2054 (2010).

(e) Upon Trade and Commerce.

J. N. Larned:
Modern Trade Routes, etc.,
3224-3228 (3713-3717).

J. A. Blanqui:
History of Political Economy,
3730-3731 (3610-3611).

D. Campbell:
The Puritan in Holland,
2299 (2251).

{761}

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THE GREAT REFORMATION (A. D. 1517-).

1. STATE OF RELIGION AT THE CLOSE OF THE FIFTEENTH CENTURY:

Vernon Lee:
Euphorion,
1874 (1834).

R. L. Poole:
Wyclif and Reform,
2501 (2441).

T. H. Dyer:
Modern Europe,
2501 (2441).

H. A. Taine:
English Literature,
2502 (2442).

J. A. Symonds:
Renaissance in Italy,
2502 (2442).

J. N. Larned:
Europe,
1081-1082 (1053-1054).

2. REFORMERS BEFORE THE REFORMATION:

(a) The Albigenses
(A. D. 1209-1229).

(1) Their Origin and Beliefs.

H. Hallam:
The Middle Ages,
2561 (2495).

H. H. Milman:
Latin Christianity,
39 (32).

A. Neander:
The Christian Church,
39 (32).

Sir J. Stephen:
History of France,
39 (32).

R. C. Trench:
Mediaeval Church,
409 (399).

R. C. Trench:
Mediaeval Church,
3762-3763 (3641-3642).

(2) Their Extermination.

E. Smedley:
History of France,
39-40 (32-33).

Sir J. Stephen:
History of France.
40 (33).

E. E. Crowe:
History of France,
41 (34).

E. A. Freeman:
Historical Geography of Europe,
41 (34).

Sir J. Stephen:
History of France,
41 (34).

(b) Wyclif and the Lollards
(about A. D. 1375-1400).

A. M. F. Robinson:
End of Middle Ages,
285 (276).

C. Ullmann;
Reformers before the Reformation,
285-286 (276-277).

B. Herford:
Story of Religion in England,
841-842 (814-815).

R. L. Poole:
Wyclif and Reform,

842 (815).

J. A. Froude:
History of England,
842 (815).

J. Gairdner:
English History,
842 (815).

C. H. Pearson:
English History,
843-844 (816-817).

J. R. Green:
History of English People,
844 (817).

(c) Hus and the Bohemian Reformation
(A. D. (1405-1434).

J. N. Larned:
Europe,
1072-1073 (1044-1045).

R. C. Trench:
Mediaeval Church,
296-297 (287-288).

B. Taylor:
History of Germany,
297-298 (288-289).

(d) Savonarola
(A. D. 1490-1498).

Mrs. Oliphant:

Makers of Florence,
1172 (1142).

O. T. Hill:
Introduction to Savonarola's Triumph of the Cross,
1173-1175 (1143-1145).

3. THE IMMEDIATE CAUSES OF THE REFORM OUTBREAK:

G. P. Fisher:
The Christian Church,
1489-1490 (1456-1457).

L. Ranke:
History of Reformation,
2504-2505 (2443-2444).

G. P. Fisher:
The Reformation,
2505 (2444).

Cardinal Wiseman:
Doctrines of Catholic Church,
2505-2506 (2444-2445).

T. Kolde:
Martin Luther,
2503-2504.

J. N. M. D'Aubigné:
Story of the Reformation,
2506 (2445).

4. LUTHER'S PROTEST AND THE AWAKENING OF GERMANY (A. D. 1517):

F. Seebohm:

The Protestant Revolution,
2506-2507 (2445-2446).

L. Ranke:
History of the Reformation,
2507 (2446).

J. N. Larned:
Europe,
1081-1082 (1053-1054).

5. THE NINETY-FIVE THESES:

Full Text of Luther's Manifesto,
2507-2509 (2446-2448).

6. LUTHER BURNS THE PAPAL BULL (1520); THE DIET AT WORMS (1521):

S. Baring-Gould;
The Church in Germany,
1490 (1457).

T. H. Dyer:
Modern Europe,
2509-2511 (2448-2450).

J. A. Froude:
Luther,
2512-2513 (2451-2452).

"The presence in which he [Luther, at the Diet] found himself would have tried the nerves of the bravest of men; the Emperor, sternly hostile, with his retinue of Spanish priests and nobles; the Archbishops and bishops, all of the opinion that the stake was the only fitting place for so insolent a heretic; the dukes and barons, whose stern eyes were little

likely to reveal their sympathy, if sympathy any of them felt. Only one of them, George of Frundsberg, had touched Luther on the shoulder as he passed through the ante-room. 'Little monk, little monk,' he said, 'thou hast work before thee that I, and many a man whose trade is war, never faced the like of. If thy heart is right, and thy cause good, go on, in God's name. He will not forsake thee.' ... There was a pause, and then Eck said that he had spoken disrespectfully; his heresies had already been condemned at the Council at Constance; let him retract on these special points, and he should have consideration for the rest. He required a plain Yes or No from him 'without horns.' The taunt roused Luther's blood. His full brave self was in the reply. 'I will give you an answer,' he said, 'which has neither horns nor teeth. Popes have erred and Councils have erred. Prove to me out of Scripture that I am wrong, and I submit. Till then my conscience binds me. Here I stand. I can do no more. God help me. Amen.' All day long the storm raged. Night had fallen, and torches were lighted before the sitting closed. Luther was dismissed at last. When he had reached his lodging again, he flung up his hands. 'I am through!' he cried. 'I am through! If I had a thousand heads they should be struck off one by one before I would retract.'"

J. A. FROUDE.

7. ZWINGLI, AND THE REFORMATION IN SWITZERLAND (A. D. 1519-1531):

G. Waddington:
The Reformation,
2511 (2450).

Hug and Stead:
Switzerland,
2511-2512 (2450-2451).

Hug and Stead:
Switzerland,

3130-3131 (3046-3047).

J. N. Larned:
Europe,
1087-1088 (1059-1060).

8. THE REFORMATION MOVEMENT IN FRANCE:

M. Creighton:
The Papacy,
1210-1211 (1178-1179).

A. Tilley:
The French Renaissance,
1217 (1185).

G. P. Fisher:
The Reformation,
2513-2514 (2452-2453).

R. Heath:
The Reformation in France,
2514 (2453).

9. THE REVOLT IN THE NETHERLANDS:

J. E. T. Rogers:
The Story of Holland,
2302 (2254).

T. H. Dyer:
Modern Europe,
2302-2303 (2254-2255).

C. Ullmann:
Reformers before the Reformation,
326 (316).

W. E. Griffis:
Influence of the Netherlands,
326 (316).

D. Campbell:
The Puritan in Holland, etc.,
728-729 (705-706).

G. P. Fisher:
The Reformation,
2303 (2255).

J. L. Motley:
The Dutch Republic,
2303-2304 (2255-2256).

10. GROWTH OF THE LUTHERAN MOVEMENT IN GERMANY (A. D. 1522-1529):

W. Coxe:
House of Austria,
2515-2516 (2454-2455).

G. P. Fisher:
The Reformation,
2516 (2455).

11. ORIGIN OF THE NAME "PROTESTANT" (A. D. 1529):

P. Bayne:
Martin Luther,
2516-2517 (2455-2456).

12. THE FINAL BREACH; THE "AUGSBURG CONFESSION" (A. D. 1530):

J. Michelet:
Life of Luther,
2517 (2456).

J. Alzog:
Manual of Church History,
2517-2518 (2456-2457).

W. Robertson:
Charles V.,
1493-1494 (1460-1461).

J. N. Earned:
Europe,
1086-1087 (1058-1059).

{762}

13. CALVIN, AND HIS ECCLESIASTICAL STATE:

J. Tulloch:
Leaders of the Reformation,
1450 (1417).

R. Heath:
Reformation in France,
2514 (2453).

L. Häusser:
The Reformation,
1451-1452 (1417-1419).

14. THE BEGINNING OF THE COUNTER-REFORMATION (ABOUT A. D. 1535):

"I intend to use this term Counter-Reformation to denote the

reform of the Catholic Church, which was stimulated by the German Reformation, and which, when the Council of Trent had fixed the dogmas and discipline of Latin Christianity, enabled the Papacy to assume a militant policy in Europe, whereby it regained a large portion of the provinces that had previously lapsed to Lutheran and Calvinistic dissent. ... The centre of the world-wide movement which is termed the Counter-Reformation was naturally Rome. Events had brought the Holy See once more into a position of prominence. It was more powerful as an Italian State now, through the support of Spain and the extinction of national independence, than at any previous period of history."

J. A. SYMONDS.

J. A. Symonds:
The Italian Renaissance,
1883-1884 (1843-1844).

A. W. Ward:
The Counter-Reformation,
2518 (2457).

J. A. Symonds;
The Catholic Reaction,
2518-2519 (2457-2458).

15. TWO EFFECTIVE AGENTS OF THE ROMAN CHURCH:

(a) The Council of Trent
(A. D. 1545-1563).

L. Häusser:
The Reformation,
2519-2520 (2458-2459).

L. von Ranke:
History of the Popes,

2520-2521 (2459-2460).

A. W. Ward:
The Counter-Reformation,
2521 (2460).

J. N. Larned:
Europe,
1092 (1064).

(b) The Society of Jesus (A. D. 1540-).

L. Häusser:
The Reformation,
1928-1929 (1887-1888).

G. B. Nicolini:
History of the Jesuits,
1929 (1888).

L. von Ranke:
History of the Popes,
1931-1932 (1890-1891).

16. PROGRESS OF LUTHERANISM IN GERMANY (A. D. 1530-1620):

J. N. Larned:
Europe,
1086-1087 (1058-1059).

W. Robertson:
Charles V.,
1493-1494 (1460-1461).

S. A. Dunham:
The Germanic Empire,

1494-1495 (1461-1462).

S. Baring-Gould:
The Story of Germany,
118-119 (111-112).

17. WAR WITH THE EMPEROR (A. D. 1546-1561):

C. D. Yonge:
Three Centuries of Modern History,
1495-1496 (1462-1463).

J. Alzog:
Universal Church History,
1496-1497 (1463-1464).

W. Menzel:
History of Germany,
1497-1498 (1464-1465).

18. INTERNAL DISSENSIONS AND THE CATHOLIC REACTION:

W. Zimmerman:
History of Germany,
1498-1499 (1465-1466).

O. Kämmer:
German History,
2521-2522 (3766-3767).

STUDY XXV.

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THE REFORM MOVEMENT AND RELIGIOUS WARS IN FRANCE.

1. THE COMPARATIVE INDEPENDENCE OF THE GALLICAN CHURCH:

H. Hallam;
The Middle Ages,
1197 (1165).

H. H. Milman:
Latin Christianity,
1197 (1165).

M. Creighton:
The Papacy,
1210-1211 (1178-1179).

F. P. Guizot:
History of France,
1219-1220 (1187-1188).

W. H. Jervis:
The Church of France,
1220 (1188).

"The long contest for Gallican rights had lowered the prestige of the popes in France, but it had not weakened the Catholic Church, which was older than the monarchy itself, and, in the feelings of the people, was indissolubly associated with it. The College of the Sorbonne, or the Theological Faculty at Paris, and the Parliament, which had together maintained Gallican liberty, were united in stern hostility to all doctrinal innovations."

G. P. FISHER.

2. BEGINNING OF THE PROTESTANT REFORM MOVEMENT (ABOUT A. D. 1520):

A. Tilley:
The French Renaissance,
1217 (1185).

G. P. Fisher:
The Reformation,
2513-2514 (2452-2453).

R. Heath:
The Reformation in France,
2514 (2453).

W. Hanna:
The Wars of the Huguenots,
2292-2293 (2244-2245).

E. de Bonnechose:
History of France,
1225-1226 (1193-1194).

3. THE RISE OF THE HUGUENOTS (ABOUT A. D. 1560):

L. Häusser:
The Reformation,
1229 (1197).

H. M. Baird:
The Rise of the Huguenots,
1230 (1198).

J. N. Larned:
Europe,
1089 (1061).

4. BEGINNING OF THE CIVIL WARS; THE GUISES, CONDÉS, ET AL.:

G. Masson:
The Huguenots,
1230 (1198).

W. Besant:
Gaspard de Coligny,
1230-1232 (1198-1200).

J. N. Larned:
Europe,
1097-1098 (1069-1070).

5. ROCHELLE, AND HENRY OF NAVARRE:

W. Hanna:
The Wars of the Huguenots,
2292-2293 (2244-2245).

W. Hanna:
The Wars of the Huguenots,
1232-1233 (1200-1201).

L. Häusser:
The Reformation,
1233-1234 (1201-2120).

6. THE MASSACRE OF ST. BARTHOLOMEW'S DAY (A. D. 1572):

J. A. Froude:
History of England,
1236 (1204).

T. Wright:
History of France,
1236 (1204).

7. THE FOURTH AND FIFTH CIVIL WARS
(A. D. 1572-1576):

F. P. Guizot:
History of France,
1236-1237 (1204-1205).

E. E. Crowe:
History of France,
1237-1238 (1205-1206).

S. A. Dunham:
History of Poland,
2615-2616 (2547).

8. THE CATHOLIC LEAGUE AND THE POPE'S BULL
(A. D. 1576):

W. H. Jervis:
The Church of France,
1238-1239 (1206-1207).

G. W. Kitchin:
History of France,
1239 (1207).

9. HENRY OF NAVARRE, AND THE BATTLE OF COUTRAS
(A. D. 1584-1589):

Duc d'Aumale:
Princes of Condé,
1240-1241 (1209).

W. Hanna:
Wars of the Huguenots,
1241 (1209).

V. Duruy:
History of France,
1241-1242 (1209-1210).

"The struggle lasted but an hour, yet within that hour the Catholic army lost 3000 men, more than 400 of whom were members of the first families in the Kingdom; 3000 men were made prisoners. Not more than a third part of their entire army escaped. The Huguenots lost only about 200 men. ... Before night fell Navarre wrote a few lines to the French King, which ran thus:

‘Sire, my Lord and Brother,—Thank God,

I have beaten your

enemies and your army.' It was but too true that the poor King's worst enemies were to be found in the very armies that were marshalled in his name."

W. HANNA.

{763}

10. HENRY BECOMES HENRY IV. OF FRANCE; THE BATTLE OF IVRY

(A. D. 1589):

Henry the Fourth of France,
1242-1243 (1210-1211).

"My friends, if you share my fortune this day, I share yours. I am resolved to conquer or to die with you. Keep your ranks firmly, I beg; if the heat of the combat compels you to quit them, think always of the rally; it is the gaining of the battle. If you lose your ensigns, pennons, and banners, do not lose sight of my white plume; you will find it always on the road of honor and victory.'

HENRY OF NAVARRE.

11. HENRY'S ABJURATION OF PROTESTANTISM

(A. D. 1593):

Duc d'Aumale:
The Princes of Condé,
1244-1245 (1212-1213).

H. M. Baird:
The Huguenots,
1245 (1213).

Sir J. Stephen:

History of France,
1245 (1213).

12. THE SIEGE OF PARIS; INTERFERENCE OF PHILIP II.
(A. D. 1590-1598):

J. L. Motley:
The United Netherlands,
1243-1244 (1211-1212).

T. H. Dyer;
Modern Europe,
1245-1247 (1213-1215).

13. FROM THE EDICT OF NANTES (1598)
TO ASSASSINATION OF THE KING (1610):

H. M. Baird:
The Huguenots,
1247-1248 (1215-1216).

W. Hanna:
Wars of the Huguenots,
1248 (1216).

A. de Bonnechose;
History of France,
1248 (1216).

"For the benefit of the Protestants the cardinal concession of the Edict was liberty to dwell anywhere in the royal dominions, without being subjected to inquiry, vexed, molested, or constrained to do anything contrary to their conscience. As respects public worship, while perfect equality was not established, the dispositions were such as to bring it within the power of a Protestant in any part of the Kingdom to meet his fellow-believers for the holiest acts, at least from

time to time. ... Scholars of both religions were to be admitted without distinction of religion to all universities, colleges, and schools throughout France. The same impartiality was to extend to the reception of the sick in the hospitals, and to the poor in the provision made for this relief. More than this, the Protestants were permitted to establish schools of their own in all places where their worship was authorized."

H. M. BAIRD.

14. THE RISE OF RICHELIEU, AND DISTRACTION OF THE KINGDOM:

Voltaire:
Ancient and Modern History,
1248-1249 (1216-1217).

J. B. Perkins:
France under Mazarin,
1251 (1219).

G. W. Kitchin:
History of France,
1251-1252 (1220).

15. THE HUGUENOT REVOLT (A. D. 1627-1628):

C. D. Yonge:
France under the Bourbons,
1252-1253 (1220-1221).

A. D. White:
The Statesmanship of Richelieu,
1253 (1221).

R. Heath:
The Reformation in France,

1253 (1221).

16. ACCESSION OF LOUIS XIV., AND RENEWED PERSECUTION
OF THE HUGUENOTS (A. D. 1661):

J. C. Morison:
Reign of Louis XIV.,
1265 (1233).

S. Smiles:
The Huguenots,
1265-1266 (1233-1234).

17. REVOCATION OF THE EDICT OF NANTES (1685),
AND EXODUS OF THE HUGUENOTS (1681-1688):

A. de Lamartine:
Memoirs of Celebrated Characters,
1269 (1237).

R. L. Poole:
Huguenots of the Dispersion,
1269-1270 (1237-1238).

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Page references in first 1895 edition in parentheses.

SPAIN AND THE NETHERLANDS—THE INQUISITION.

1. CONQUEST OF SPAIN BY THE ARAB MOORS
(A. D. 711-713):

H. Coppée:
Conquest of Spain,
3054 (2974).

S. A. Dunham:
History of Spain,
3056-3057 (2976-2977).

2. RISE OF THE CHRISTIAN STATES:

H. Coppée:
Conquest of Spain,
3055 (2975).

E. A. Freeman:
Conquest of the Saracens,
3055 (2975).

S. A. Dunham:
History of Spain,
2291 and 3056 (2243, 2976).

E. A. Freeman:
Historical Geography of Europe,
3058 (2977).

3. UNION OF CASTILE AND ARAGON:

E. E. Hale:
The Story of Spain,
3060 (2979).

C. H. Pearson:
English History,
3061-3062 (2980-2981).

H. Hallam:
Middle Ages,
3062-3063 (2981-2982).

4. RISE AND FALL OF THE MOORISH KINGDOM OF GRANADA:

C. M. Yonge:
The Christians and Moors of Spain,
3059-3060 (2978-2979).

H. Coppée:
Conquest of Spain,
3061 (2980).

H. Coppée:
Conquest of Spain,
3063-3064 (2982-2983).

W. H. Prescott:
Ferdinand and Isabella,
3064 (2983).

5. THE EARLY SPANISH CORTES AND THE SANTA HERMANDAD:

W. H. Prescott:
Ferdinand and Isabella,
639-640 (616-17).

H. Hallam:
Middle Ages,
640-641 (617-618).

W. H. Prescott:
Ferdinand and Isabella,
1698-1699 (1659-1660).

6. ESTABLISHMENT OF THE INQUISITION:

J. A. Symonds:
Renaissance in Italy,
1789-1791 (1750-1752).

J. I. von Döllinger:
The Jews in Europe,
1966 (1925).

H. T. Buckle:
History of Civilization,
2270-2271 (2226-2227).

7. EARLY HISTORY OF THE NETHERLANDS:

J. L. Motley:
Rise of the Dutch Republic,
2298 (2250).

W. T. McCullagh:
The Free Nations,
2298-2299 (2250-2251).

D. Campbell:
The Puritan in Holland, etc.,
2299 (2251).

C. M. Yonge:
Cameos of History.
2300 (2252).

8. RELATIONS WITH BURGUNDY; THE STATES GENERAL:

C. M. Davies:
History of Holland.
2300 (2252).

J. L. Motley:
The Dutch Republic,
2300-2301 (2252-2253).

9. MARRIAGE OF MARY OF BURGUNDY TO MAXIMILIAN OF AUSTRIA

(A. D. 1477):

Philip de Commynes:
Memoirs,
2301 (2253).

C. M. Davies:
History of Holland,
2301-2302 (2254).

10. RISE OF THE AUSTRO-SPANISH DYNASTY:

W. H. Prescott:
Ferdinand and Isabella,
3065-3066 (2984-2985).

J.E.T. Rogers:
The Story of Holland,
2302 (2254).

T. H. Dyer:
Modern Europe,
2302-2303 (2254-2255).

J. Bigland:
History of Spain,
3066 (2985).

T. H. Dyer:
Modern Europe,
3066-3067 (2985-2986).

W. H. Prescott:
Philip II.,
3067 (2986).

11. BEGINNING OF THE REFORMATION IN THE NETHERLANDS:

G. P. Fisher:
The Reformation,
2303 (2255).

J. L. Motley:
The Dutch Republic,
2303-2304 (2255-2256).

{764}

12. THE ACCESSION AND HORRIBLE CHARACTER OF PHILIP II. (A. D. 1555):

C. M. Davies:
History of Holland,
2304 (2256).

T. C. Grattan:
History of the Netherlands,
2304-2305 (2256-2257).

C. Gayarré:
Philip II.,
2305, 3068 (2257, 2987).

13. PHILIP II. AND THE CATHOLIC REACTION:

G. Procter:
History of Italy,
2520 (2459).

L. von Ranke:
History of the Popes,
2520-2521 (2459-2460).

O. Kämmer:
History of Germany,
2521-2522.

14. BEGINNING OF ORGANIZED RESISTANCE TO THE TYRANNY OF PHILIP

(A. D. 1562):

W. H. Prescott:
The Reign of Philip II.,
2305-2306 (2257-2258).

J. L. Motley:
The Dutch Republic,
2306 (2258).

T. C. Grattan:
History of the Netherlands,
2306-2307 (2258-2259).

T. H. Dyer:
Modern Europe,
2307 (2259).

F. Schiller:
The Revolt of the Netherlands,
2307 (2259).

J. N. Larned:
Europe,
1094-1095 (1066-1067).

15. THE DUKE OF ALVA AND HIS COUNCIL OF BLOOD (A. D. 1567):

L. Häusser:

The Reformation,
2307-2308 (2259-2260).

J. L. Motley:
The Dutch Republic,
2309-2310 (2261-2262).

16. THE STUPENDOUS DEATH-SENTENCE (A. D. 1568):

J. L. Motley:
The Dutch Republic,
2310 (2262).

"Upon the 16th February, 1568, a sentence of the Holy Office condemned all the inhabitants of the Netherlands to death as heretics. From this universal doom only a few persons, especially named, were excepted. A proclamation of the King, dated ten days later, confirmed this decree of the Inquisition, and ordered it to be carried into instant execution, without regard to age, sex, or condition. This is probably the most concise death-warrant that was ever framed. Three millions of people, men, women, and children, were sentenced to the scaffold in three lines; and as it was well known that these were not harmless thunders, like some bulls of the Vatican, but serious and practical measures which it was intended should be enforced, the horror which they produced may be easily imagined."

J. L. MOTLEY.

17. BEGINNING OF THE FORTY YEARS' WAR (A. D. 1568):

C. D. Yonge:
Modern History,
2310-2311 (2262-2263).

J. L. Motley:
The Dutch Republic,
2311-2312
(2263-2264).

A. Young:
History of the Netherlands,
2312-2313 (2264-2265).

18. THE RECALL OF ALVA, AND THE SIEGE OF LEYDEN
(A. D. 1573-1574):

C. M. Davies:
History of Holland,
2313-2314 (2265-2266).

D. Campbell:
The Puritan in Holland, etc.,
729 (706).

19. THE PACIFICATION OF GHENT, AND THE UNION OF BRUSSELS
(A. D. 1575-1577):

T. H. Dyer:
Modern Europe,
2314-2316 (2266-2268).

J. E. T. Rogers:
The Story of Holland,
2316-2317 (2268-2269).

J. L. Motley:
The Dutch Republic,
2317-2318 (2269-2270).

20. THE ASSASSINATION OF WILLIAM OF ORANGE,
AND BIRTH OF THE REPUBLIC (A. D. 1584-1585):

T. Grattan:
History of the Netherlands,
2318 (2270).

J. L. Motley:
The United Netherlands,
2318-2320 (2270-2272).

"Thus constituted was the commonwealth upon the death of William the Silent. The gloom produced by that event was tragical. Never in human history was a more poignant and universal sorrow for the death of any individual. The despair was, for a brief season, absolute; but it was soon succeeded by more lofty sentiments. ... Even on the very day of the murder, the Estates of Holland, then sitting at Delft, passed a resolution 'to maintain the good cause, with God's help, to the uttermost, without sparing gold or blood.' ... The next movement, after the last solemn obsequies had been rendered to the Prince, was to provide for the immediate wants of his family. For the man who had gone into the revolt with almost royal revenues, left his estate so embarrassed that his carpets, tapestries, household linen—nay, even his silver spoons, and the very clothes of his wardrobe—were disposed of at auction for the benefit of his creditors."

J. L. MOTLEY.

21. THE DOWNFALL OF ANTWERP (A. D. 1585):

J. L. Motley:
The Dutch Republic,
125 (118).

G. L. Craik:
History of British Commerce,
3107 (3025).

J. N. Larned:
The Flemings and Dutch,
3226-3227 (3715-3716).

T. H. Dyer:
Modern Europe,
2320 (2272).

22. THE UNITED PROVINCES AND ELIZABETH OF ENGLAND:

Sir T. E. May:
Democracy in Europe,
2320-2321 (2272-2273).

J. A. Froude:
History of England,
2321-2322 (2274).

C. M. Davies:
History of Holland,
2322 (2274).

23. STEADY DECLINE OF SPANISH POWER, AND DEATH OF PHILIP II.

(A. D. 1590-1598):

Sir E. Cust:
The Thirty Years' War,
2322-2323 (2274-2275).

Sir T. E. May:
Democracy in Europe,
2323-2324 (2275-2276).

24. RISE OF DUTCH COMMERCE; THE EAST INDIA COMPANY (A. D. 1595-1620):

W. T. McCullagh:
Industrial History,
2324 (2276).

F. H. H. Guillemard:
Malaysia,
2124.

J. N. Larned:
The Flemings and the Dutch,
3226-3228 (3715-3717).

25. JOHN BARNEVELDT, AND THE ARMINIAN CONTROVERSY
(A. D. 1600-1620):

C. M. Yonge:
Cameos from English History,
2324-2326 (2276-2278).

D. Campbell:
The Puritan in Holland, etc.,
729 (706).

26. FINAL ESTABLISHMENT OF PEACE BETWEEN SPAIN AND
THE UNITED PROVINCES
(A. D. 1648):

J. B. Perkins:
France under Mazarin,
2329-2330 (2281-2282).

J. Geddes:
John De Witt,
2330 (2282).

27. PROSPERITY OF THE DUTCH REPUBLIC, WHICH BECOMES

HOLLAND

(ABOUT A. D. 1660):

D. Campbell:

The Puritan in Holland, etc.,
2332-2333 (2284-2285).

O. Airy:

The English Restoration,
2333 (2285).

{765}

STUDY XXVII.

Page references in first 1895 edition in parentheses.

THE THIRTY YEARS' WAR

(A. D. 1618-1648).

"The Thirty Years' War was the last struggle which marked the progress of the Reformation. This war, whose direction and object were equally undetermined, may be divided into four distinct portions, in which the Elector Palatine, Denmark, Sweden, and France played in succession the principal part. It became more and more complicated until it spread over the whole of Europe. It was prolonged indefinitely by various causes.

I. The intimate union between the two branches of the house of Austria and of the Catholic party,—their opponents, on the other hand, were not homogeneous.

II. The inaction of England, the tardy intervention of France, the poverty of Denmark and Sweden, etc. The armies which took part in the Thirty Years' War were no longer feudal militias,

they were permanent armies, and lived at the expense of the countries which they laid waste."

J. MICHELET.

1. CONDITIONS WHICH LED UP TO THE WAR:

O. Kämme:

History of Germany,
2521-2522 (3767).

E. L. Godkin:

History of Hungary,
1717, first column, (1678).

W. Zimmerman:

History of Germany,
1498-1499 (1465-1466).

F. Schiller:

The Thirty Years' War,
301-302 (293).

J. Sime:

History of Germany,
1499-1500 (1466-1467).

J. Michelet:

Modern History,
1500 (1467).

J. N. Larned:

Europe,
1099-1100 (1071-1072).

2. THE PROSTRATION OF PROTESTANTISM (A. D. 1618-1626):

F. Kohlrausch:
History of Germany,
1500-1501 (1467-1468).

B. Chapman:
Gustavus Adolphus,
1501-1502 (1469).

S. R. Gardiner:
Thirty Years' War,
1502 (1469).

W. Coxe:
House of Austria,
1502-1504 (1469-1471).

3. THE SUPPRESSION OF BOHEMIA (A. D. 1621-1648):

L. Häusser:
The Great Reformation,
302 (293).

J. N. Larned:
Europe,
1100 (1072).

"No succor reached the unfortunate people; but neither did the victors attain their end. Protestantism and Hussite memories could not be slain, and only outward submission was extorted. ... But a desert was created; the land was crushed for a generation. Before the war Bohemia had 4,000,000 inhabitants, and in 1648 there were but 700,000 or 800,000. In some parts of the country the population has not attained the standard of 1620 to this day."

L. HÄUSSER.

4. THE RISE OF PRUSSIA:

C. F. Johnstone:
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318 (308).

H. von Treitschke:
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2685-2686 (3768-3769).

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T. H. Dyer:
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2893-2894 (2818-2819).

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2894-2896 (2819-2821).

J. L. Stevens:
Gustavus Adolphus,
2896-2897 (2822).

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G. B. Malleson:
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J. Mitchell:
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G. P. R. James:
Dark Scenes of History,

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7. THE ADVENT OF GUSTAVUS ADOLPHUS (A. D. 1630-1632):

C. T. Lewis:
History of Germany,
1507-1508 (1475).

F. Schiller:
The Thirty Years' War,
1508 (1475).

C. R. L. Fletcher:
Gustavas Adolphus,
1508-1509 (1475-1476).

J. N. Larned:
Europe,
1100-1101 (1072-1073).

8. THE DECISIVE BATTLE AT LEIPSIG (BREITENFELD) (A. D. 1631):

B. Chapman:
Gustavus Adolphus,
1509-1510 (1477).

C. R. L. Fletcher:
Gustavus Adolphus,
1510 (1477).

"The battle of Breitenfeld was an epoch in war, it was an epoch in history. It was an epoch in war, because first in it was displayed on a great scale the superiority of mobility over weight. It was an epoch in history, because it broke the force upon which the revived Catholicism had relied for the

extension of its empire over Europe. Germany might tear herself to pieces for yet another half-generation, but the actual result of the Thirty Years' War was as good as achieved."

C. R. L. FLETCHER.

9. RECALL OF WALLENSTEIN;
THE BATTLE OF LÜTZEN;
DEATH OF GUSTAVUS
(A. D. 1632):

C. M. Yonge:
English History,
1510-1511 (1477-1478).

T. H. Dyer:
Modern Europe,
1511-1512 (1478-1479).

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1512 (1479).

10. RICHELIEU BECOMES AN ACTIVE FACTOR IN THE WAR:

J. Mitchell:
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Turenne,
1513 (1480).

G. B. Malleson:
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1513-1514 (1480-1481).

11. SUCCESSES OF THE SWEDISH ARMY UNDER TORSTENSON
(A. D. 1640-1642):

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The Reformation,
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12. THE FINAL CAMPAIGNS OF THE WAR
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H. M. Hozier:
Turenne,
1515-1516 (1482-1453).

T. O. Cockayne:
Life of Turenne,
1516 (1483).

F. Schiller:
The Thirty Years' War,
1516-1517 (1483-1484).

13. THE HORRORS OF THE THIRTY YEARS' WAR:

R. C. Trench:
Gustavus Adolphus,
1517-1518 (1484-1485).

H. von Z-Südenhorst:
History of Germany,
1518 (3770).

J. N. Larned:
Europe,
1101 (1073).

"This, which had been a civil war at the first, did not

continue such for long, or rather it united presently all the dreadfulness of a civil war and a foreign. It was not long before the hosts which trampled the German soil had in large part ceased to be German; every region of Europe sending of its children, and, as it would seem, of those whom it must have been gladdest to be rid of, to swell the ranks of the destroyers. ... Under conditions like these it is not wonderful that the fields were left untilled; for who would sow, what he could never reap? What wonder that famine, thus invited, should before long have arrived? ... Persons were found dead in the fields with grass in their mouths, while the tanner's and knackers' yards were beset for the putrid carcasses of beasts. Men climbed up the gibbets and tore down the bodies which were suspended there, and devoured them. Prisoners were killed that they might be eaten. Children were enticed from home. ... Putting all together, it is not too much to say that the crowning horrors of Samaria, of Jerusalem, of Saguntum, found their parallels, and often worse than their parallels, in Christian Germany only two centuries ago. ... Of the population it was found that three-fourths, in some parts a far larger proportion, had perished ... or fled to Switzerland, to Holland, and to other countries never to return from them again."

R. C. TRENCH.

14. THE PEACE OF WESTPHALIA (A. D. 1648);

G. W. Kitchin:
History of France,
1518-1519 (1486).

A. Gindely:
The Thirty Years' War,
1519 (1486).

F. Kohlrausch:
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J. N. Larned:
Europe,
1101 (1073).

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J. Bryce:
The Holy Roman Empire,
1520 (1487).

S. A. Dunham:
The Germanic Empire,
1520-1521 (1487-1488).

S. E. Turner:
The Germanic Constitution,
683-684 (660-661).

S. A. Dunham:
The Germanic Empire,
684 (661).

See Map of Germany at Peace of Westphalia,
1518-1519 (1486-1487).

{766}

"Both Lutherans and Calvinists were declared free from all jurisdiction of the Pope or any Catholic prelate. Thus the last link which bound Germany to Rome was snapped, the last of the principles by virtue of which the Empire had existed was abandoned. ... The Peace of Westphalia was therefore an abrogation of the sovereignty of Rome, and of the theory of Church and State with which the name of Rome was associated. ... The Peace of Westphalia is an era in imperial history not less clearly marked than the Coronation of Otto the Great, or the

death of Frederick II. ... Properly, indeed, it was no longer an Empire at all, but a Confederation, and that of the loosest sort. ... There were 300 petty principalities between the Alps and the Baltic, each with its own laws, and its own courts, its little armies, its separate coinage, its tolls and custom-houses on the frontier, its crowd of meddlesome and pedantic officials. This vicious system, which paralyzed the trade, the literature, and the political thought of Germany, had been forming itself for sometime, but did not become fully established until the Peace of Westphalia, by emancipating the princes from imperial control, had made them despots in their own territories."

JAMES BRYCE.

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H. von Treitschke:
History of Germany,
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L. Häusser:
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C. Merivale:
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H. M. Scarth:
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E. Gibbon:
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The Making of England,
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W. Stubbs:
Constitutional History of England,
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Italy and Her Invaders,
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The English People,
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F. Palgrave:
The Anglo-Saxons,
808 (781).

J. M. Lappenberg:
England under the Anglo-Saxon Kings,
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E. A. Freeman:
Old English History,
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A. T. Drane:

Christian Schools,
711-712 (688-689).

"The rapid extension of the monastic institute in Ireland, and the extraordinary ardour with which the Irish cœnobites applied themselves to the cultivation of letters, remain undisputed facts. 'Within a century after the death of St. Patrick,' says Bishop Nicholson, 'the Irish seminaries had so increased that most parts of Europe sent their children to be educated here, and drew thence their bishops and teachers.' The whole country for miles round Leighlin was denominated the 'land of Saints and Scholars.' By the ninth century Armagh could boast of 7000 students, and the schools of Cashel, Dindaleathglass, and Lismore vied with it in renown."

A. T. DRANE.

7. THE SAXON HEPTARCHY:

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F. Gneist:
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M. J. Guest:
History of England,
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Thomas Hughes:
Alfred the Great,
813-814 (786-787).

S. R. Gardiner:
English History,
815-816 (788-789).

J. A. Giles:
Alfred the Great,
713 (690).

"Alfred is the most perfect character in history. ... No other man on record has ever so thoroughly united all the virtues both of ruler and of the private man. In no other man on record were so many virtues disfigured by so little alloy. A saint without superstition, a scholar without ostentation, a warrior all whose wars were fought in the defense of his

country, a conqueror whose laurels were never stained by cruelty, a prince never cast down by adversity, never lifted up to insolence in the day of triumph—there is no other name in history to compare with his. ... The virtue of Alfred, like the virtue of Washington, consisted in no marvelous displays of superhuman genius, but in the simple, straight-forward discharge of the duty of the moment."

E. A. FREEMAN.

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{767}

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2915 (2840).

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2916 (2840-2841).

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William the Conqueror,
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C. Kingsley:

Hereward the Wake,
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T. Taswell-Langmead:
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I. Taylor:
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C. H. Pearson:
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J. H. Round:
Geoffrey de Mandeville,
824-825 (797-798).

J. F. Bright:
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3106-3107 (3024-3025).

E. W. Robertson:
Scotland's Early Kings,
2918 (2842-2843).

17. THE ANGEVIN KINGS (PLANTAGENETS);
HENRY II. (A. D. 1154-1189):

Sir F. Palgrave:
England and Normandy,
121-122 (114-115).

J. R. Green:
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122 (115).

K. Norgate:
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(A. D. 1162-1170):

J. Campbell:
Lives of the Lord Chancellors,
826-827 (799-800).

F. W. Maitland:
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Pollock and Maitland:
English Law,
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J. B. Thayer:
Older Modes of Trial,
2000-2001 (1956-1957).

W. Forsyth:
Trial by Jury,

2001 and 2002 (1957-1958).

"He [Henry II.] was a foreign King who never spoke the English tongue, who lived and moved for the most part in a foreign camp, surrounded with a motley host of Brabançons and hirelings. ... It was under the rule of a foreigner such as this, however, that the races of conquerors and conquered in England first learnt to feel that they were one. It was by his power that England, Scotland, and Ireland were brought to some vague acknowledgment of a common suzerain lord, and the foundations laid of the United Kingdom of Great Britain and Ireland. It was he who abolished feudalism as a system of government, and left it little more than a system of land tenure. It was he who defined the relations established between Church and State, and decreed that in England churchman as well as baron was to be held under the common law. ... His reforms established the judicial system whose main outlines have been preserved to our own day. It was through his 'Constitutions' and his 'Assizes' that it came to pass that over all the world the English-speaking races are governed by English and not by Roman law. It was by his genius for government that the servants of the royal household became transformed into Ministers of State. It was he who gave England a foreign policy which decided our continental relations for seven hundred years. The impress which the personality of Henry II. left upon his time meets us wherever we turn."

MRS. J. R. GREEN.

19. RICHARD CŒUR DE LION
(A. D. 1189-1199):

M. Burrows:
History of England,
828 (801).

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G. W. Kitchen:
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3. MAGNA CARTA (A. D. 1215, JUNE 15):

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W. STUBBS.

{768}

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E. A. Freeman:
Growth of the English Constitution,
2552-2553 (2486-2487).

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(A. D. 1314):

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Life of Margaret of Anjou,
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J. S. Brewer:
Reign of Henry VIII.,
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W. Denton:
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É. Boutmy:
The English Constitution,
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J. Gairdner:
Henry VII.,
1801 (1761).

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849 (822).

C. M. Yonge:
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J. N. Larned:
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1069-1071 (1041-1043).

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(a) The Renaissance in England.

H. A. Taine:
English Literature,
851-852 (824-825).

J. A. Symonds:
Shakespeare's Predecessors,
852-823 (825-826).

A. Lang:
Oxford,
729-730 (706-707).

{769}

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B. Ten Brink:
English Literature,
840-841 (813-814).

H. C. M. Lyte:
The University of Oxford,
722 (699).

A. Lang:
Oxford,
722-723 (699-700).

V. A. Huber:
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J. Mullinger:
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W. Everett:
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F. Seebohm:
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2009-2010 (1965-1966).

(d) Trade and Commerce.

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British Commerce,
3222 (3711).

W. Cunningham:
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Europe,
1089 (1061).

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G. Bancroft:
History of the United States,
58 (51).

H. Harrisse:
The Discovery of America,
61 (3678).

"The discovery of the continent of North America and the first landing on its east coast were accomplished, not by Sebastian Cabot, but by his father John, in 1197, under the auspices of King Henry VII. ... The voyage of 1498, also accomplished under the British flag, was likewise carried out by John Cabot personally ... and the exploration embraced the northeast coast of the present United States, as far as Florida."

HENRY HARRISSE.

"Under this patent John Cabot, taking with him his son Sebastian, embarked in quest of new islands and a passage to Asia by the northwest. On the 24th day of June [1497], almost fourteen months before Columbus came in sight of the main, and more than two years before Amerigo Vespucci sailed west of the Canaries, he discovered the western Continent, probably in the latitude of about 56°, among the dismal cliffs of Labrador. He ran along the coast for many leagues, it is said for even 300, and landed on what he considered to be the territory of the

Grand Cham."
GEORGE BANCROFT.

3. HENRY VIII. (1509-1547) AND CARDINAL WOLSEY:

Sir R. Comyn:
The Western Empire,
1218 (1186).

M. Creighton:
Cardinal Wolsey,
854 (827).

4. THE FIELD OF THE CLOTH OF GOLD (A. D. 1520):

J. Michelet:
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1222 (1190).

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Henry VIII.,
1148 (1119).

5. HENRY VIII., AND THE DIVORCE QUESTION:

G. P. Fisher:
The Christian Church,
854-855 (827-828).

Sir J. Mackintosh:
Sir Thomas More,
855-856 (828-829).

Sir J. Mackintosh:
History of England,
858-859 (831-832).

6. THE REFORMATION IN ENGLAND (A. D. 1530-):

(a) Origin of the Term "Protestant."

P. Bayne:
Martin Luther,
2516-2517 (2455-2456).

(b) Henry's Rupture with Rome.

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Europe,
1089-1090 (1061-1062).

(c) The Establishment of the Church of England.

T. B. Macaulay:
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J. Tulloch:
Christian Philosophy,
856-857 (829-830).

G. G. Perry:
The Reformation in England,
857 (830).

"The Reformation in England was singular amongst the great religious movements of the sixteenth century. It was the least heroic of them all—the least swayed by religious passion, or moulded and governed by spiritual and theological necessities.

From a general point of view, it looks at first little more than a great political change. The exigencies of royal passion, and the dubious impulses of statecraft, seem its moving and really powerful springs. ... The lust and avarice of Henry, the policy of Cromwell, and the vacillations of the leading clergy, attract prominent notice; but there may be traced beneath the surface a widespread evangelical fervour amongst the people, and, above all, a genuine spiritual earnestness and excitement of thought at the universities. These higher influences preside at the first birth of the movement. They are seen in active operation long before the reforming task was taken up by the Court and the bishops."

J. TULLOCH.

(d) The Suppression of the Monasteries.

H. Hallam:
History of England,
857-858 (830-831).

G. G. Perry:
Reformation in England,
858 (831).

F. A. Gasquet:
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858 (831).

(e) The Reaction; The "Six Articles."

J. F. Bright:
History of England,
859 (832).

(f) The Establishment of Protestantism under Edward VI.
(A. D. 1547-1553).

D. Hume:
History of England,
859-860 (832-833).

J. R. Green:
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J. H. Burton:
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Sir W. Scott:
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D. Wilson:
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(b) Ireland.

M. Haverty:
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1801-1802 (1761-1762).

J. R. Green:
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(c) France.

W. Robertson:
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F. P. Guizot:
History of France,
1225 (1193).

E. de Bonnechose:
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2928-2929 (2853-2854).

L. von Ranke:
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2930 (2855).

M. Creighton:
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{770}

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Sir J. Mackintosh:
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861 (834).

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862 (835).

J. A. Froude:
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D. Hume:
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C. Beard:
The Reformation,
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(b) The Civil Government.

M. Burrows:
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H. Hallam:
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E. Fischel:
The English Constitution,
2993 (2915).

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Austin Abbott:
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W. Hazlitt:
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J. A. Symonds:
Elizabethan and Victorian Poetry,
864-865 (837-838).

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The Oxford Reformers,
730-731 (707-708).

T. Hughes:
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733-735 (710-712).

Our Public Schools—Their Discipline,
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(e) Trade and Commerce.

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History of England,
865 (838).

D. Neal:
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866 (839).

T. B. Macaulay:
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H. O. Wakeman:
The Church and the Puritans,
867 (840).

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T. Fuller:
Church History of Britain,
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P. Heylyn:
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H. Hallam:
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D. Wilson:
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M. Mac Arthur:
History of Scotland,
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E. S. Beesly:
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J. Skelton:
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(A. D. 1587):

J. R. Green:
History of the English People,
868-869 (841-842).

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R. Southey:
Lives of British Admirals,
869 (842).

S. A. Dunham:
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J. L. Motley:
The United Netherlands,
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From Crécy to Assye,
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W. Camden:
History of Queen Elizabeth,
871-872 (844-845).

"The flame of patriotism never burnt purer; all Englishmen alike, Romanists, Protestant Episcopalians, and Puritans, were banded together to resist the invader. Every hamlet was on the alert for the beacon-signal. ... Philip's preparations had been commensurate with the grandeur of his scheme. ... A vast armament, named, as if to provoke Nemesis, the 'Invincible Armada,' on which for three years the treasures of the American mines had been lavished, at length rode the seas, blessed with Papal benediction and under the patronage of the Saints. ... The 129 vessels were armed with 2430 brass and iron guns of the best manufacture, and carried 5000 seamen. Parma's army amounted to 30,000 men—Spaniards, Portuguese, Italians, and Walloons; and 19,000 Castilians and Portuguese, with 1000 gentlemen volunteers, were coming to meet him. ... The overthrow of this armament was effected by the navy and the elements. ... More than two-thirds of the expedition perished; and of the remnant that again viewed the hills of Spain all but a few hundred returned only to die."

H. R. CLINTON.

18. PROGRESS OF THE REFORMATION IN SCOTLAND:

M. C. Taylor:
John Knox,
2934 (2859).

T. Carlyle:
Heroes and Hero Worship,

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Scottish Church History,
2936 (2861).

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Sir W. Scott:
History of Scotland,
2937 (2862).

19. THE ACCESSION OF THE STUARTS; JAMES I. (A. D. 1603):

J. Forster:
Historical Essays,
872 (845).

"His [James'] mother was Marie Stuart, or Mary, Queen of Scots, born of her marriage with Lord Darnley. He came to the English throne at a time when the autocratic spirit of the Tudors, making use of the peculiar circumstances of their

time, had raised the royal power and prerogative to their most exalted pitch; and he united the two Kingdoms of Scotland and England under one sovereignty. The noble inheritance fell to a race who, comprehending not one of the conditions by which alone it was possible to be retained, profligately misused until they lost it utterly. ... What is called the Great Rebellion can have no comment so pregnant as that which is suggested by the character and previous career of the first of the Stuart Kings."

J. FORSTER.

{771}

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2925 (2850).

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The Privy Council,
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2. THE REIGN OF JAMES I. (A. D. 1603-1625):

T. McCrie:
Scottish Church History,
872-873 (845-846).

D. Hume:
History of England,
873 (846).

H. Hallam:
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John Fiske:
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History of the United States,
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G. Punchard:
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2691 (2618).

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The Founders of New Plymouth,
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S. A. Drake:
Around the Hub,
2146-2147 (2102-2103).

R. C. Winthrop:
Boston Founded,
2147 (2103).

4. CHARLES I. (A. D. 1625-1649);
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T. B. Macaulay:
History of England,
874 (847).

C. D. Yonge:
History of France,
1252-1253 (1220-1221).

W. E. H. Lecky:
History of England,
1805 (1765).

J. N. Larned:
Europe,
1103-1104 (1075-1076).

"He [Charles I.] seems to have learned from the theologians
whom he most esteemed that between him and his subjects there

could be nothing of the nature of mutual contract; that he could not, even if he would, divest himself of his despotic authority; and that, in every promise which he made, there was an implied reservation that such promise might be broken in case of necessity, and that of the necessity he was the sole judge."

T. B. MACAULAY.

5. THE PETITION OF RIGHT

(A. D. 1628):

H. Hallam:

Constitutional History of England,
874 and 875 (847, 848).

Full Text of the Petition of Right,
875-876 (848-849).

"Our English Constitution was never made, in the sense in which the Constitutions of many other countries have been made. There never was any moment when Englishmen drew out their political system in the shape of a formal document, whether as the carrying out of any abstract political theories or as the imitation of the past or present system of any other nation. There are indeed certain great political documents, each of which forms a land mark in our political history. There is the Great Charter [1215], the Petition of Right [1628], and the Bill of Rights [1689]. But not one of these gave itself out as the enactment of anything new. All claimed to set forth, with new strength, it might be, and with new clearness, those rights of Englishmen which were already old. ... The life and soul of English law has ever been precedent; we have always held that whatever our fathers once did their sons have a right to do again."

E. A. FREEMAN.

"Lord Chatham called these three [Magna Carta, the Petition of

Right, and the Bill of Rights] 'The Bible of the English Constitution,' to which appeal is to be made on every grave political question."

SIR E. S. CREASY.

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T. Carlyle:
Cromwell's Letters and Speeches,
877 (850).

T. B. Macaulay:
Essays.—Hampden,
878-879 (851-852).

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W. Godwin:
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879 (852).

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Full text of the National Covenant,
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M. MacArthur:
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Cromwell's Letters and Speeches,
879-880 (852-853).

11. WENTWORTH'S SYSTEM OF "THOROUGH":

R. Hassencamp:

History of Ireland,
1805-1806 (1765-1766).

R. Browning:
Thomas Wentworth,
1806 (1766).

12. THE LONG PARLIAMENT (1640-1641); EXECUTION OF STRAFFORD:

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Essays.—Hampden,
880 (853).

G. B. Smith:
History of the English Parliament,
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J. R. Green:
The English People,
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H. D. Traill:
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Text of the Articles of Impeachment of Strafford,
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13. RISE OF PERMANENT PARTIES; CAVALIERS AND ROUNDHEADS:

T. B. Macaulay:

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D. Masson:
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Historical Essays,
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Full Text of the Grand Remonstrance,
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D. Hume:
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Letters and Speeches of Cromwell,
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Life of John Milton,
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Oliver Cromwell,
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{772}

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J. F. Bright:
History of England,
895-896 (868-869).

T. Carlyle:
Letters and Speeches of Cromwell,
896 (869).

F. Harrison:
Oliver Cromwell,
896 (869).

"These were the men who ultimately decided the war, and established the Commonwealth. On the field of Marston, Rupert gave Cromwell the name of Ironside, and from thence this famous name passed to his troopers. There are two features in their history which we need to note. They were indeed 'such men as had some conscience in their work'; but they were also much more. They were disciplined and trained soldiers. They were the only body of 'regulars' on either side. The instinctive genius of Cromwell from the very first created the strong nucleus of a regular army, which at last in discipline, in skill, in valor, reached the highest perfection ever attained by soldiers either in ancient or modern times."

FREDERIC HARRISON.

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D. Masson:

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Text of the Solemn League and Covenant,
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Ireland in 17th Century,
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History of the Rebellion,
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N. L. Walford:
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900 (873).

C. Knight:
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The English Revolution,
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C. Knight:
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909 (882).

Text of the Act arraigning the King,
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"As the head of the King rolled on the scaffold the old Feudal Monarchy expired forever. In January, 1649, a great mark was set in the course of the national life—the Old Rule behind it, the New Rule before it. Parliamentary government, the consent of the Nation, equality of rights, and equity in the law—all date from this great New Departure. The Stuarts indeed returned for one generation, but with the sting of the old monarchy gone, and only to disappear almost without a blow. The Church of England returned; but not the Church of Laud or of Charles. The peers returned, but as a meek House of Lords with their castles razed, their feudal rights and their political power extinct. It is said that the regicides killed Charles I. only to make Charles II. King. It is not so. They killed the old Monarchy; and the restored monarch was by no means its heir, but a royal Stadtholder or Hereditary President."

FREDERIC HARRISON.

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D. Masson:
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4. PASSAGE OF THE NAVIGATION ACTS (A. D. 1651):

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2332-2333 (2284-2285).

G. L. Craik:
British Commerce,
2293 (2245).

E. G. Scott:
Constitutional Liberty in English Colonies,
3286-3287 (3170-3171).

{773}

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J. R. Green:
Short History of England,
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912-913 (885-886).

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Full Text of the Instrument of Government,
914-918 (887-891).

D. Masson:
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913-914 (886-887).

F. Harrison:
Oliver Cromwell,
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King and Commonwealth,
919 (892).

"His [Cromwell's] wish seems to have been to govern constitutionally, and to substitute the empire of the laws for that of the sword. But he soon found that, hated as he was, both by Royalists and Presbyterians, he could be safe only by

being absolute. ... Those soldiers who would not suffer him to assume the kingly title, stood by him when he ventured on acts of power as high as any English King has ever attempted. The government, therefore, though in form a republic, was in truth a despotism, moderated only by the wisdom, the sobriety, and the magnanimity of the despot."

T. B. MACAULAY.

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A. B. Buckley:
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A. Carrel:
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C. Butler:
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E. Fischel:
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925-926 (898-899).

W. Blackstone:
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Full Text of the Act,
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G. Burnet:
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2253-2254 (2209-2210).

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Lombard Street,
2254-2255 (2210-2211).

"It was indeed not easy to guess that a bill, which purported only to impose a new duty on tonnage for the benefit of such persons as should advance money towards carrying on the war was really a bill creating the greatest commercial institution that the world had ever seen."

T. B. MACAULAY.

22. THE ACT OF SETTLEMENT (A. D. 1701):

J. Rowley:
Settlement of the Constitution,
940-941 (913-914).

H. Hallam:
Constitutional History of England,
941 (914).

"According to the tenor and intention of the Act of Settlement all prior claims of inheritance, save that of the issue of King William and the Princess Anne, being set aside and annulled, the Princess Sophia became the source of a new royal line. The throne of England and Ireland, by virtue of the paramount will of Parliament, stands entailed upon the heirs of her body, being protestants. In them the right is as truly hereditary as it ever was in the Plantagenets or the Tudors. But they derive it not from those ancient families. The blood indeed of Cerdic and of the Conqueror flows in the veins of his present majesty [George IV.]. Our Edwards and Henries illustrate the almost unrivalled splendor and antiquity of the house of Brunswick. But they have transmitted no more right to the allegiance of England than Boniface of Este or Henry the Lion. That rests wholly on the Act of Settlement, and resolves itself into the sovereignty of the legislature."

H. HALLAM.

23. THE REIGN OF QUEEN ANNE

(A. D. 1702-1714):

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English Thought in 18th Century,
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944-945 (917-918).

27. END OF THE STUART LINE (A. D. 1714):

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History of England,
945 (918).

E. E. Morris:
The Early Hanoverians,
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History of England,
1748-1749 (1709-1710).

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3. THE EVOLUTION OF THE CABINET:

A. C. Ewald:
The Crown and Its Advisers,
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T. B. Macaulay:
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John Morley:
Walpole,
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The Privy Council,
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"George I. cared very little for his new Kingdom, and knew very little about its people or its institutions. ... His expeditions to Hanover threw the management of all domestic affairs almost without control into the hands of his English ministers. If the two first Hanoverian Kings had been Englishmen instead of Germans, if they had been men of talent and ambition, or even men of strong and commanding will without much talent, Walpole would never have been able to lay

the foundations of government by the House of Commons and by Cabinet so firmly that even the obdurate will of George III. was unable to overthrow it. Happily for the system now established, circumstances compelled the first two sovereigns of the Hanoverian line to strike a bargain with the English Whigs, and it was faithfully kept until the accession of the third George. The King was to manage the affairs of Hanover, and the Whigs were to govern England. It was an excellent bargain for England."

JOHN MORLEY.

4. THE SOUTH SEA BUBBLE, AND THE MISSISSIPPI SCHEME:

Lord Mahon:
History of England,
3051-3052 (2971-2972).

J. W. Monette:
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(A. D. 1740-1748):

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J. Graham:
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10. THE LAST RISING OF THE JACOBITES

(A. D. 1745-1746):

J. R. Green:

History of the English People,
2954 (2879).

11. ADOPTION OF THE GREGORIAN CALENDAR

(A. D. 1751):

W. Hales:

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357 (347).

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12. THE SEVEN YEARS' WAR

(A. D. 1754-1763):

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951-952 (924-925).

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"It may be doubted whether Junius had any confidant or trusted friend. When dedicating his collected letters to the English people, he declares: 'I am the sole depository of my own secret, and it shall perish with me.'"

LORD MAHON.

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Expansion of England,
1754 (1715).

"The words 'wonderful,' 'strange,' are often applied to great historical events, and there is no event to which they have been applied more freely than to our [the English] conquest of India. But the event was not wonderful in a sense that it is difficult to discover adequate causes by which it could have been produced. If we begin by remarking that authority in India had fallen on the ground through the decay of the Mogul Empire, that it lay there waiting to be picked up by somebody, and that all over India in that period adventurers of one kind or another were founding Empires, it is really not surprising that a mercantile corporation which had money to pay a mercenary force should be able to compete with other adventurers, nor yet that it should outstrip all its competitors by bringing into the field English military science and generalship, especially when it was backed over and over again by the whole power and credit of England and directed by English statesmen. ... England did not, in a strict sense, conquer India; but certain Englishmen, who happened to reside in India at the time when the Mogul Empire fell, had a fortune like that of Hyder Ali or Runjeet Singh and rose to supreme power there."

J. R. SEELEY.

(b) The Administration of Clive.

T. B. Macaulay:
Lord Clive,
1754-1756 (1715-1717).

C. Knight:
History of England,
1756 (1717).

Sir W. Hunter:
India,
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(c) Passing of the East India Company; Warren Hastings.

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Sir J. Strachey:
Hastings and the Rohillas,
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L. J. Trotter:
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British Dominion in India,
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J. M. Ludlow:
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Sir J. Strachey:
India,
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(e) The Impeachment of Warren Hastings.

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1766-1768 (1727-1729).

Sir A. Lyall:
Warren Hastings,
1768 (1729).

22. RISE OF THE YOUNGER PITT:

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Pitt,
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W. Bagehot:
William Pitt,
968-969 (941-942).

Sir T. E. May:

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Three English Statesman,
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S. Smiles:
Lives of Boulton and Watt,
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E. Gosse:
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A. Dobson:
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The Thirty Years' War,
1519 (1486).

J. Bryce:
The Holy Roman Empire,
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S. A. Dunham:
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H. Tuttle:
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{777}

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H. M. Hozier:
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T. H. Dyer:
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C. M. Yonge:
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(1074).

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T. Wright:
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T. O. Cockayne:
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O. Airy:
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F. P. Guizot:
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J. C. Morison:
Reign of Louis XIV.,
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"What the age of Pericles was in the history of the Athenian Democracy, what the age of the Scipios was in the history of the Roman Republic, that was the reign of Louis XIV. in the history of the old monarchy of France. ... It is not only the most conspicuous reign in the history of France—it is the most conspicuous reign in the History of Monarchy in general. ... His court was an extraordinary creation. He made it the microcosm of all that was most brilliant and prominent in France. Every order of merit was invited there and received courteous welcome. ... But Louis XIV.'s reign has better titles than the adulations of courtiers and the eulogies of wits and poets to the attention of posterity. It marks one of the most memorable epochs in the annals of mankind. It stretches across history like a great mountain range, separating ancient France from the France of modern times. On the farther slope are Catholicism and Feudalism in their various stages of splendor and decay—the France of crusade and chivalry, of St. Louis and Bayard. On the hither side are free-thought, industry, and centralization—the France of Voltaire, Turgot, and Condorcet. When Louis came to the throne, the Thirty Years' War still wanted six years of its end, and the heat of theological strife was at its intensest glow. When he died, the religious temperature had cooled nearly to the freezing point, and a new vegetation of science and positive inquiry was overspreading

the world."

J. C. MORISON.

6. THE ADMINISTRATION OF COLBERT (A. D. 1661-1683):

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J. A. Blanqui:
History of Political Economy,
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W. T. McCullagh:
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M. Chamberlain:
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3286-3287 (3170-3171).

(h) The System of Colbert.

Lady Dilke:
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T. B Macaulay:
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Landmarks of History,
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The English Restoration,
2336 (2288).

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H. Martin:
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9. THE PEACE OF NIMEGUEN
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H. Martin:
History of France,
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Reign of Louis XIV.,
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W. Coxe:
House of Austria,
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France under Mazarin,
2086-2087 (2042-2043).

H. Martin:
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1265-1266 (1233-1234).

A. de Lamartine:
Bossuet,
1269 (1237).

R. L. Poole:
Huguenots of the Dispersion,
1270 (1237-1238).

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E. Hale:
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T. B. Macaulay:
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J. W. Gerard:
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1275-1276 (1243-1244).

H. Martin:
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14. THE WAR OF THE SPANISH SUCCESSION (A. D. 1702-1714):

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H. M. Baird:
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Epochs of the Papacy,
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A. Thierry:
The Tiers État,
1278 (1246).

{778}

Y. Duruy:
History of France,
1278-1279 (1246-1247).

"When the reign, which was to crown ... the ascendant march of the French monarchy, had falsified the unbounded hopes which its commencement had excited; when in the midst of fruitless victories and continually increasing reverses, the people beheld progress in all the branches of public economy changed into distress,—the ruin of the finances, industry, and agriculture—the exhaustion of all the resources of the country,—the impoverishment of all classes of the nation, the dreadful misery of the population, they were seized with a bitter disappointment of spirit, which took the place of the enthusiasm of their confidence and love."

A. THIERRY.

"Succeeding generations have remembered only the numerous victories, Europe defied, France for twenty years preponderant, and the incomparable splendor of the Court of Versailles, with its marvels of letters and arts, which have given to the 17th century the name of the age of Louis XIV. It is for history to show the price which France has paid for her King's vain attempts abroad to rule over Europe, and at home to enslave the wills and consciences of men. ... The weight of

the authority of Louis XIV. had been crushing during his last years. When the nation felt it lifted, it breathed more freely; the court and the city burst into disrespectful demonstrations of joy; the very coffin of the great King was insulted."

V. DURUY.

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V. Duruy:
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W. Smyth;
The French Revolution,
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J. B. Perkins:
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A. Rambaud:
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Voltaire:
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J. Mitchell:
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1505-1506 (1473).

G. P. R. James:
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F. Schiller:
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Scandinavia,

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24. WAR OF THE AUSTRIAN SUCCESSION (A. D. 1740-1748):

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25. THE SEVEN YEARS' WAR (A. D. 1754-1763):

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26. THE PARTITION OF POLAND:

G. W. Kitchin:
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H. von Sybel:
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I. Butt:
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A. Sorel:
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{779}

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H. A. Taine:
Ancien Régime,
1289-1291 (1256-1258).

T. H. Huxley:
The Revolutionary Spirit,
1291 (1258).

Chancellor Pasquier:
Memoirs,
1291-1292 (1258-1259).

H. von Holst:
The French Revolution,
1292 (3757).

M. de la Rocheterie:
Marie Antoinette,
1292 (1259).

"I am miserable because too much is taken from me. Too much is taken from me because not enough is taken from the privileged. Not only do the privileged force me to pay in their place, but, again, they previously deduct from my earnings their ecclesiastical and feudal dues. When, out of my income of 100 francs, I have parted with 58 francs, or more, to the collector, I am obliged again to give 14 francs to the seignior, also more than 14 for tithes, and, out of the remaining 18 or 19 francs I have additionally to satisfy the exciseman.' ... These, in precise terms, are the vague ideas beginning to ferment in the popular brain and encountered on

every page of the records of the States-General. ... The privileged wrought their own destruction."

H. A. TAINE.

"In 1791, long before the inauguration of the Reign of Terror, there were in a population of 650,000 [in Paris], 118,000 paupers. Under the 'ancien regime' the immigrant proletariat from the country was by the law barred out from all ways of earning a livelihood except as common day laborers, and the wages of these were in 1788, on an average, 26 cents for men and 15 for women, while the price of bread was higher than in our times. What a gigantic heap of ferment!"

H. VON HOLST.

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Sir J. Stephen:
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F. P. Guizot:
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A. Thierry:
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Voltaire:

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F. A. Mignet:
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H. von Sybel:
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A. Thierry:
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W. E. H. Lecky:
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History of the Bastille,
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H. A. Taine:
The French Revolution,
1294-1295 (1261-1262).

Chancellor Pasquier:
Memoirs,
1295-1296 (1262-1263).

6. THE WORK OF THE ASSEMBLY;
THE DECLARATION OF RIGHTS:

B. Tuckerman:
Life of Lafayette,
1296-1297 (1264).

H. M. Stephens:
The French Revolution,
1297-1298 (1264-1265).

G. H. Lewes:
Life of Robespierre,
1298-1299 (1265-1266).

G. H. Lewes:
Life of Robespierre,
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T. Carlyle:
The French Revolution,
1299-1300 (1266-1267).

F. A. Mignet:
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1300-1301 (1267-1268).

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Sir T. E. May:

Democracy in Europe,
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W. O'C. Morris:
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Chancellor Pasquier:
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The Girondists,
1312-1313 (1280).

H. A. Taine:
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Sir A. Alison:
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The French Revolution,
228-229 (221-222).

H. von Sybel:
The French Revolution,
1537-1539 (1503-1505).

C. A. Fyffe:
Modern Europe,
1316-1317 (1283-1284).

17. THE TRIAL, SENTENCE, AND EXECUTION OF LOUIS XVI. (JANUARY, 1793):

F. A. Mignet:
The French Revolution,
1317-1318 (1284-1285).

W. O'C. Morris:
The First Empire,
1318 (1285).

T. Carlyle:
The French Revolution,
1319-1320 (1286-1287).

18. INCREASING ANARCHY; THE REVOLUTIONARY TRIBUNAL:

T. H. Dyer:

Modern Europe,
1320-1321 (1287-1288).

H. M. Stephens:
The French Revolution,
1322-1324 (1289-1291).

{780}

19. THE INSURRECTION IN LA VENDÉE (A. D. 1793):

A. Thiers:
The French Revolution,
1321-1322 (1288-1289).

A. de Lamartine:
The Girondists,
1324-1325 (1292).

F. A. Mignet:
The French Revolution,
1325 (1292).

F. A. Mignet:
The French Revolution,
1327-1328 (1294-1295).

20. FORMATION OF EUROPEAN COALITION AGAINST FRANCE:

J. R. Green:
History of the English People,
969-970 (942-943).

Goldwin Smith:
Three English Statesmen,
970 (943).

G. W. Cooke:
History of Party,
970 (943).

H. von Sybel:
The French Revolution,
1318 (1285).

J. R. Green:
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1318 (1285).

Sir A. Alison:
History of Europe,
1324 (1291).

21. THE COMMITTEE OF PUBLIC SAFETY (AUGUST, 1793):

R. Lodge:
Modern Europe,
1325-1326 (1292-1293).

L. Gronlund:
Ça Ira,
1326 (1293).

22. CHARLOTTE CORDAY; THE ASSASSINATION OF MARAT:

B. M. Gardiner:
The French Revolution,
1326-1327 (1293-1294).

23. THE "REIGN OF TERROR"; EXECUTION OF MARIE ANTOINETTE, AND MME. ROLAND

(A. D. 1793):

H. Martin:
History of France,
1329-1331 (1296-1298).

H. M. Stephens:
The French Revolution,
1331-1332 (1298-1299).

Sir T. E. May:
Democracy in Europe,
1333 (1300).

T. Carlyle:
The French Revolution,
1333-1334 (1300-1301).

J. N. Larned:
Europe,
1119-1120 (1091-1092).

24. ABANDONMENT OF CHRISTIANITY; THE WORSHIP OF REASON:

C. MacFarlane:
The French Revolution,
1332 (1299).

W. H. Jervis:
The Gallican Church,
1332-1333 (1299-1300).

John Morley;
Robespierre,
1334-1335 (1301-1302).

"Before the year ended [1793] the legislators of Paris voted that there was no God, and destroyed or altered nearly everything that had any reference to Christianity. ... They decreed that on the 10th of November the 'Worship of Reason' should be inaugurated at Notre Dame. A temple dedicated to 'Philosophy' was erected on a platform in the middle of the choir. A motley procession of citizens of both sexes, headed by the constituted authorities, advanced towards it; on their approach, the Goddess of Reason, impersonated by a well known figurante of the opera, took her seat upon a grassy throne in front of the temple; a hymn, composed in her honor by the poet Chenier, was sung by a body of young girls dressed in white and bedecked with flowers; and the multitude bowed the knee before her in profound adoration. It was the 'abomination of desolation sitting in the holy place.' ... The example set by Paris, was faithfully repeated, if not surpassed in atrocity, throughout the provinces. Religion was proscribed, churches closed, Christian ordinances interdicted; the dreary gloom of atheistical despotism overspread the land."

W. H. JERVIS.

25. PROGRESS OF THE WAR AGAINST THE COALITION (A. D. 1793-1794):

W. O'C. Morris:
The French Revolution,
1328 (1295).

Sir A. Alison:
History of Europe,
1328-1329 (1296).

W. Massey:
History of England,
1336-1337 (1303-1304).

26. THE CLIMAX OF THE "REIGN OF TERROR" (A. D. 1794);

THE 22D PRAIRIAL;

John Morley:
Robespierre,
1337-1338 (1304-1305).

H. von Sybel:
The French Revolution,
1338 (1305).

A. Thiers:
The French Revolution,
1338 (1305).

H. A. Taine:
The French Revolution,
1338 (1305).

"It is estimated that, in the eleven western departments, the dead of both sexes and of all ages exceeded 400,000. Considering the programme and principles of the Jacobin sect, this is no great number; they might have killed a good many more. But time was wanting; during their short reign they did what they could with the instrument in their hands."

H. A. TAINE.

27. FALL OF ROBESPIERRE; END OF THE "REIGN OF TERROR" (JULY, 1794):

J. E. Symes:
The French Revolution,
1338-1339 (1305-1306).

T. B. Macaulay:
Barère's Memoirs,
1340 (1307).

H. Martin:
History of France,
1340 (1307).

Sergent Marceau:
Reminiscences of a Regicide,
1340 (1307).

B. M. Gardiner:
The French Revolution,
1340-1341 (1307-1308).

28. PROGRESS OF THE FOREIGN WARS:

T. H. Dyer:
Modern Europe,
1341-1342 (1308-1309).

H. Van Laun:
The Revolutionary Epoch,
1342-1343 (1309-1310).

H. Martin:
History of France,
1345-1346 (1312-1313).

Sir A. Alison:
History of Europe,
1346 (1313).

29. THE CONSTITUTION OF THE YEAR III. (A. D. 1795):

F. A. Mignet:
The French Revolution,
1343-1344 (1310-1311).

A. Thiers:
The French Revolution,
1344-1345 (1311-1312).

30. NAPOLEON BONAPARTE; THE DIRECTORY (A. D. 1795):

J. G. Lockhart:
Life of Napoleon,
1346-1347 (1314).

E. de Bonnechose:
History of France,
1347 (1314).

"Within five days from the 'Day of the Sections' Buonaparte was named second in command of the army of the interior; and shortly afterwards, Barras finding his duties as Director sufficient to occupy his time, gave up the command-in-chief of the same army to his 'little Corsican officer.'"

J. G. LOCKHART.

STUDY XXXVI.

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1. NAPOLEON IN COMMAND (A. D. 1795):

J. G. Lockhart:
Life of Napoleon,
1346-1347 (1313-1314).

E. de Bonnechose:
History of France,
1347 (1314).

J. N. Larned:
Europe,
1120 (1092).

2. THE ITALIAN CAMPAIGN (A. D. 1796-1797):

C. A. Fyffe:
Modern Europe,
1347-1349 (1314-1316).

Count de Melito:
Memoirs,
1349 (1316).

R. Lodge:
Modern Europe,
1349-1350 (1316-1317).

3. THE STATE OF ENGLAND:

A. Alison:
History of Europe,
970-971 (943-944).

T. Wright:
History of France,
1349 (1316).

W. Bagehot:
Lombard Street,
2255 (2211).

4. THE OVERTHROW OF VENICE;
PEACE OF CAMPO FORMIO:

T. Mitchell:
Rise of Napoleon,
1350-1351 (1317-1318).

T. H. Dyer:
Modern Europe,
1351-1352 (1318-1319).

See Map between pages 2622-2623 (2554-2555).

{781}

5. THE COUP D'ÉTAT OF THE 18TH FRUCTIDOR
(A. D. 1797):

E. de Bonnechose:
History of France,
1352-1353 (1319-1320).

A. Thiers:
The French Revolution,
1353 (1320).

Chevalier O'Clery:
The Italian Revolution,
1353-1354 (1320-1321).

6. THE UNITED STATES AND THE REVOLUTION;
THE X. Y. Z. LETTERS:

E. Everett:
Life of Washington,
3422 (3306).

H. C. Lodge:
George Washington,
3422 (3306).

T. W. Higginson:
The United States,
3431 (3315).

"The plan of this covert intercourse came through the private Secretary of M. de Talleyrand, then French Minister for Foreign Affairs; and the impudence of these three letters of the alphabet went so far as to propose" a bribe of 1,200,000 francs. 'You must pay money, a great deal of money,' remarked Monsieur Y. The secret of these names was kept, but the diplomatic correspondence was made public, and created much wrath in Europe, as well as in America. ... At last the insults passed beyond bearing, and it was at this time that 'millions for defense, not one cent for tribute,' first became a proverbial phrase, having been originally used by Charles C. Pinckney."

T. W. HIGGINSON.

7. THE HELVETIC REPUBLIC:

H. Zschokke:
History of Switzerland,
3133-3134 (3049-3050).

C. A. Fyffe:
Modern Europe,
3134-3135 (3050-3051).

Sir A. Alison:
History of Europe,
3135 (3051).

8. Napoleon in Egypt (A. D. 1798-1799);
Battle of the Nile:

W. Massey:
History of England,
1354-1355 (1321-1322).

J. G. Lockhart:
Life of Napoleon,
1357-1359 (1326).

9. THE SECOND EUROPEAN COALITION
(A. D. 1798-1799):

H. Van Laun:
The Revolutionary Epoch,
1355-1357 (1322-1324).

T. Wright:
History of France,
1359-1360 (1326-1327).

Sir A. Alison:
History of Europe,
1360-1361 (1327-1328).

Sir W. Scott:
Life of Napoleon,
1361 (1328).

F. C. Schlosser:
The Eighteenth Century,
1361-1362 (1328-1329).

J. Adolphus:
History of England,
1362 (1329).

10. END OF THE FIRST REPUBLIC;
NAPOLEON FIRST CONSUL
(A. D. 1799):

C. K. Adams:
Democracy in France,
1362-1364 (1329-1331).

F. A. Mignet:
The French Revolution,
1364 (1331).

F. C. Schlosser:
The Eighteenth Century,
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11. THE SECOND CONQUEST OF ITALY;
PEACE OF LUNEVILLE
(A. D. 1800-1801):

R. H. Horne:
Napoleon Bonaparte,
1365-1366 (1332-1333).

W. O'C. Morris:
The French Revolution,
1366-1367 (1333-1334).

Sir W. Scott:
Life of Napoleon,
1367 (1334).

Sir A. Alison:
History of Europe,
1539-1540 (1505-1506).

C. T. Lewis:
History of Germany,
1540 (1506).

12. LOUISIANA WRESTED FROM SPAIN AND SOLD TO THE
UNITED STATES
(A. D. 1802-1803):

M. Thompson:
The Story of Louisiana,
2093-2094 (2049-2050).

C. F. Robertson:
The Louisiana Purchase,
2094 (2050).

H. von Holst:
Constitutional History of the United States,
3443 (3327).

T. M. Cooley:
The Acquisition of Louisiana,
3443-3444 (3327-3328).

Henry Adams:
History of the United States,
3444 (3328).

13. THE "CONTINENTAL SYSTEM"; NAPOLEON'S DOMESTIC
POLICIES:

J. R. Green:
The English People,
1368-1369 (1335-1336).

L. Levi:
British Commerce,

1379-1380 (1346-1347).

Captain A. T. Mahan:
Influence of Sea Power,
1380-1381 (1347-1348).

H. Martin:
History of Europe,
1369-1370 (1336-1337).

C. A. Fyffe:
Modern Europe,
1370-1371 (1337-1338).

P. Lanfrey:
History of Napoleon,
1371 (1338).

M. Arnold:
Schools on the Continent,
738-739 (715-16).

"The significance of the Peace of Luneville lay in this, not only that it was the close of the earlier revolutionary struggle in Europe; ... but that it marked the concentration of all her energies in a struggle with Britain for the supremacy of the world. ... The country [Britain] stood utterly alone while the Peace of Luneville secured France from all hostility on the Continent. ... To strike at England's wealth had been among the projects of the Directory; it was now the dream of the First Consul. ... Her carrying trade must be annihilated if he closed every port against her ships. It was this gigantic project of a 'Continental System' that revealed itself as soon as Buonaparte became master of France."

J. R. GREEN.

14. WAR DECLARED BY GREAT BRITAIN;

NAPOLEON BECOMES EMPEROR:

H. Martineau:
History of England,
1371-1373 (1338-1340).

J. R. Seeley:
History of Napoleon I.,
1373-1374 (1340-1341).

Chancellor Pasquier:
Memoirs,
1374 (1341).

Sir W. Scott:
Life of Napoleon,
1374-1375 (1341-1342).

15. THIRD EUROPEAN COALITION; TRAFALGAR AND AUSTERLITZ (A. D. 1805):

R. Lodge:
Modern Europe,
1375 (1342).

J. F. Bright:
History of England,
1375-1376 (1342-1343).

W. O'C. Morris:
Napoleon,
1376-1377 (1343-1344).

16. THE CAMPAIGN AGAINST PRUSSIA AND RUSSIA (A. D. 1806-1807):

W. Menzel:
History of Germany,
1540-1541 (1506-1507).

J. Bryce:
Holy Roman Empire,
1541 (1507).

J. G. Lockhart:
Life of Napoleon,
1542-1544 (1510).

Sir A. Alison:
History of Europe,
1544-1545 (1511).

H. Martin:
History of France,
1545-1546 (1511-1512).

A. Rambaud:
History of Russia,
1546-1547 (1513).

R. Lodge:
Modern Europe,
1547 (1513).

C. Joyneville:
Life of Alexander I.,
1547-1548 (1514).

17. THE CHARACTER OF NAPOLEON'S EMPIRE AND RULE:

W. O 'C. Morris:
The French Revolution,
1381-1382 (1348-1349).

P. Lanfrey:
History of Napoleon,
1382 (1349).

Sir H. L. Bulwer:
Historical Characters,
1382-1383 (1349-1350).

Sir A. Alison:
History of Europe,
1383-1384 (1350-1351).

H. Martin:
History of France,
2526 (2464).

Sir A. Alison:
History of Europe,
2526-2527 (2464-2465).

M. Talleyrand:
Memoirs,
2527-2528 (2465-2466)

18. THE PENINSULAR WAR (A. D. 1808-1814):

M. M. Busk:
History of Portugal,
2647-2648 (2576).

J. R. Seeley:
Napoleon I.,
3082-3083 (3000-3001).

T. H. Dyer:

Modern Europe,
3083-3084 (3001-3002).

P. Lanfrey:
History of Napoleon I.,
1384 (1351).

H. R. Clinton:
The War in the Peninsula,
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C. Knight:
History of England,
3084-3085 (3002-3003).

H. R. Clinton:
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3087 (3005).

The Times:
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T. Hamilton:
The Peninsular Campaigns,
3089-3090 (3907-3908).

P. Lanfrey:
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3091 (3009).

{782}

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The Peninsular War,
3092 (3010).

J. F. Bright:
History of England,
3092-3093 (3010-3011).

J. N. Larned:
Europe,
1123 (1095).

19. THE RUSSIAN CAMPAIGN (A. D. 1812):

J. R. Seeley:
History of Napoleon,
1385-1386 (1353).

P. Lanfrey:
History of Napoleon I.,
1386 (1353).

E. Labaume:
The Campaign in Russia,
1386 (1353).

A. Rambaud:
History of Russia,
2842-2843 (2768-2769).

L. Tolstoi:
The Russian Campaign,
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A. Thiers:
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V. Duruy:
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Sir R. Wilson:
The Invasion of Russia,
2846-2847 (2772-2773).

E. Labaume:
The Campaign in Russia,
2847 (2773).

A. Thiers:
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1387 (1354).

20. THE GERMANIC UPRISING;
BATTLE OF LEIPSIC
(A. D. 1812-1813):

H. Martin:
History of France,
1555-1556 (1521-1522).

W. Menzel:
History of Germany,
1556 (1522).

J. Mitchell:
The Fall of Napoleon,
1557-1558 (1523-1524).

J. G. Lockhart:
Life of Napoleon,
1558-1559 (1525).

R. H. Horne:
History of Napoleon,
1560 (1526).

C. T. Lewis:
History of Germany,
1561-1562 (1528).

W. Hazlitt:
Life of Napoleon,
1562-1563 (1528-1529).

A. Thiers:
History of the Empire,
1563 (1529).

Sir A. Alison:
History of Europe,
1563-1564 (1530).

21. INVASION OF THE ALLIES;
ABDICATION OF NAPOLEON
(A. D. 1814):

A. Rambaud:
History of Russia,
1387-1389 (1354-1356).

J. Mitchell:
The Fall of Napoleon,
1389-1391 (1356-1358).

Sir A. Alison:
History of Europe,
1895 (1855).

W. R. Thayer:
Dawn of Italian Independence,
1895-1896 (1855-1856).

I. Butt:
History of Italy,
1896-1897 (1856-1857).

"The act of abdication was worded in the following terms: 'The Allied Powers having proclaimed that the Emperor Napoleon is the sole obstacle to the re-establishment of peace in Europe, the Emperor Napoleon, faithful to his oath, declares that he is ready to descend from the throne, to quit France, and even to relinquish life, for the good of the country, which is inseparable from the rights of his son, from those of the regency in the person of the Empress, and from the maintenance of the laws of the Empire. Done at our palace of Fontainbleau, 4th April, 1814. Napoleon.'"

J. MITCHELL.

22. THE POPE AND THE JESUITS:

M. Talleyrand:
Memoirs,
2527-2528 (2465-2466).

Fraser's Magazine:
The Jesuits,
1935 (1894).

23. THE CONGRESS OF VIENNA (SEPTEMBER, 1814):

C. A. Fyffe:
Modern Europe,
3745-3747 (3624-3626).

R. Lodge:
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24. THE NEW GOVERNMENT;
LOUIS XVIII.:

H. Martin:
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1391-1392 (1358-1359).

T. H. Dyer:
Modern Europe,
1392 (1359).

25. THE "ONE HUNDRED DAYS";
WATERLOO
(A. D. JUNE 18, 1815):

G. Hooper:
Waterloo,
1392-1394 (1359-1361).

H. R. Clinton:
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1394-1396 (1361-1363).

G. Hooper:
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The Campaign of Waterloo,
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History of the United States,
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Discovery of North America,
59 (3678).

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61 (3678).

2. THE ABORIGINES:

D. G. Brinton:
The Lenape,
84 (77).

J. G. Palfrey:
History of New England,
84-85 (77-78).

J. W. Powell:
Ethnological Report,

85 (78).

J. R. Brodhead:
History of New York,
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3. EARLIEST ENGLISH VENTURES:

E. J. Payne:
Elizabethan Seamen,
74-75, 76 (67-69).

E. Hayes:
Sir Humphrey Gilbert,
76 (69).

I. N. Tarbox:
Sir Walter Raleigh,
77 (70).

J. A. Doyle:
English in America,
76-77 (69-70).

G. Bancroft:
History of the United States,
77-78 (70-71).

J. G. Palfrey:
History of New England,
78-79 (71-72).

4. THE VIRGINIA COMPANY AND COLONY:

J. Fiske:
Beginnings of New England,
3748 (3627).

G. Bancroft:
History of the United States,
3748-3749 (3627-3628).

H. C. Lodge:
The English Colonies,
3749 (3628).

R. A. Brooke:
Virginia,
3749-3750 (3628-3629).

G. Bancroft:
History of the United States,
3751 (3630).

C. Campbell:
The Colony of Virginia,
3751-3752 (3630-3631).

H. B. Adams:
College of William and Mary,
749-750 (726-727).

5. VIRGINIA UNDER THE STUARTS:

R. Hildreth:
History of the United States,
3752 (3631).

R. Beverley:
History of Virginia,
3752-3753 (3632).

J. E. Cooke:
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3753 (3632).

W. Ware:
Nathaniel Bacon,
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6. THE MAYFLOWER AND THE PLYMOUTH COLONY (A. D. 1620):

C. Deane:
New England,
2141 (2097).

F. B. Dexter:
The Pilgrim Church,
2141-2142 (2097-2098).

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The American Colonies,
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7. THE MASSACHUSETTS BAY COMPANY:

H.C. Lodge:
English Colonies,
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History of New England,

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2146 (2101-2142).

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History of the United States,
2148-2149 (2104-2105).

8. FOUNDING OF BOSTON (A. D. 1630):

S. A. Drake:
Around the Hub,
2146-2147 (2102-2103).

R. C. Winthrop:
Boston Founded,
2147 (2103).

G. G. Bush:
Harvard,
751 (728).

The Oldest School in America,
750-751 (727-728).

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2147-2148 (2103-2104).

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Massachusetts,
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{783}

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79-80 (72-73).

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New Netherlands,
2377 (2325).

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G. W. Schuyler:
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J. W. Gerard:
William Kieft,
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H. R. Stiles:
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Mrs. M. J. Lamb:
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11. THE BEGINNINGS OF CONNECTICUT (A. D. 1634):

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B. Trumbull:
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C. W. Bowen:
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The Beginnings of New England,
510-511 (496-497).

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513 (499).

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A. Johnston:
A New England State,
514-515 (500-501).

(b) Constitution Making.

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511 (497).

Public Records of Colony of Connecticut,
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Full Text of the Fundamental Orders,
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The Puritan Colonies,
513-514 (499-500).

C. H. Levermore:
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514 (500).

J. H. Trumbull:
The True Blue Laws,
514 (3691-3692).

12. ROGER WILLIAMS, AND THE PROVIDENCE PLANTATIONS:

(a) The Persecution of Williams.

S. G. Arnold:
History of Rhode Island,
2707 (2634).

T. Durfee:
Historical Discourse,
2707-2708 (2634-2635).

J. L. Diman:
Orations and Essays,
2708-2709 (2636).

J. R. Bartlett:
Letters of Roger Williams,
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W. Gammell:
Life of Roger Williams,
2709-2710 (2636-2637).

J. D. Knowles:
Memoir of Roger Williams,
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G. W. Greene:
Rhode Island,
2712 (2639).

Stephen Hopkins:
The Planting of Providence,
2712-2714 (2639-2641).

(c) First Baptist Church.

W. R. Staples:
The Town of Providence,
2714 (2641).

13. THE FOUNDING OF RHODE ISLAND:

R. Hildreth:
History of the United States,
2711-2712 (2638-2639).

O. S. Straus:
Roger Williams,
2712 (2639).

14. LORD BALTIMORE, AND MARYLAND:

(a) The Planting of the Colony.

J. McSherry:
History of Maryland,
2135 (2091).

J. L. Bozman:
Maryland,
2135-2136 (2091-2092).

J. G. Shea:
Catholic Church in Colonial Days,
2136-2137 (2092-2093).

G. B. Keen:
New Albion,
2353 (2305).

(b) Religious Troubles, and Toleration.

J. A. Doyle:
English in America,
2137-2138 (2093-2094).

G. L. Davis:
American Freedom,
2138 (2094).

W. H. Browne:
Maryland,
2138 (2094).

H. C. Lodge:
The English Colonies,
2138-2139 (2094-2095).

15. THE SWEDISH SETTLEMENT IN DELAWARE:

J. R. Brodhead:
History of New York,
677 (654).

G. Bancroft:
History of the United States,
677 (654).

B. Ferris:
Settlements on the Delaware,
677-678 (654-655).

G. W. Schuyler:
Colonial New York,
678 (655).

E. H. Roberts:
New York,
678-679 (655-656).

16. EARLY HISTORY OF PENNSYLVANIA:

(a) Rival Claims to Territory.

G. Bancroft:
History of the United States,
2354 (2306).

W. H. Browne:
Maryland,
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C. H. Levermore:
Republic of New Haven,
2368 (2319).

J. R. Brodhead:

History of New York,
2384-2385 (2332-2333).

(b) The Territory and Government of Penn.

Susan Coolidge:
History of Philadelphia,
2564-2565 (2498-2499).

Scharf and Westcott:
Philadelphia,
2565 (2499).

T. Clarkson:
Memoirs of Penn,
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W. H. Dixon:
History of Penn,
2566-2567 (2500-2501).

B. A. Hinsdale:
Old Northwest,
2567 (2501).

J. Dunlop:
Controversy between Penn and Baltimore,
2567-2568 (2501-2502).

B. Fernow:
The Middle Colonies,
2568-2569 (2502-2503).

17. GENERAL REVIEW OF THE SETTLEMENT OF THE COLONIES,
AND THEIR
RELATION TO THE MOTHER COUNTRY, 3281-3286 (3165-3170).

18. FIRST CONFEDERATION OF COLONIES
(A. D. 1643):

R. Hildreth:
History of the United States,
2357-2358 (2309-2310).

19. NEW AMSTERDAM BECOMES NEW YORK
(A. D. 1664):

J. A. Stevens:
The English in New York,
2382-2383 (2330-2331).

R. L. Fowler:
History of New York,
2383 (2331).

B. Tuckerman:
Peter Stuyvesant,
2384 (2332).

J. R. Brodhead:
History of New York,
2384-2385 (2332-2333).

J. R. Brodhead:
History of New York,
2336-2337 (2288-2289).

20. ATTEMPTED OVERTHROW OF CHARTERS;
ANDROS;
THE CHARTER OAK:

J. G. Palfrey:
History of New England,
2385 (2333).

G. L. Austin:
History of Massachusetts,
2153-2154 (2109-2110).

Brooks Adams:
Emancipation of Massachusetts,
2154-2155 (2110-2111).

H. C. Lodge:
The English Colonies,
2155-2156 (2111-2112).

J. S. Barry:
History of Massachusetts,
2156-2157 (2112-2113).

G. H. Hollister:
History of Connecticut,
515 (501).

E. B. Sanford:
History of Connecticut,
515-516 (501-502).

A. Johnston:
Connecticut,
516 (502).

G. Bancroft:
History of the United States,
516-517 (502-503).

{784}

21. KING PHILIP'S WAR
(A. D. 1674-1678):

G. Bancroft:
History of the United States,
2358-2359 (2310-2311).

C. W. Elliott:
New England History,
2359 (2311).

R. Hildreth:
History of the United States,
2359-2360 (2311-2312).

J. G. Palfrey:
History of New England,
2360 (2312).

J. Fiske:
Beginnings of New England,
2360 (2312).

22. FIRST COLONIAL CONGRESS (A. D. 1690), AND KING WILLIAM'S WAR:

R. Frothingham:
Rise of the Republic,
3287-3288 (3171-3172).

G. Bancroft:
History of the United States,
376-377 (366-367).

J. G. Palfrey:
History of New England,
377 (367).

J. S. Barry:

History of Massachusetts,
377-378 (367-368).

23. THE SALEM WITCHCRAFT MADNESS
(A. D. 1692-1693):

J. G. Palfrey:
History of New England,
2157-2158 (2113-2114).

C. W. Elliott:
New England History,
2158-2159 (2114-2115).

G. Bancroft:
History of the United States,
2159 (2115).

C. W. Upham:
Salem Witchcraft,
2159 (2115).

J. R. Lowell:
Witchcraft,
2159 (2115).

24. THE CAROLINAS AND GEORGIA:

J. A. Doyle:
English in America,
76-77 (69-70).

G. Bancroft:
History of the United States,
77-78 (70-71).

F. X. Martin:

History of North Carolina,
81 (74).

J. H. Wheeler:
North Carolina,
2424 (2372).

F. L. Hawks:
History of North Carolina,
2424-2425 (2372-2373).

W. G. Simms:
History of South Carolina,
2425 (2373).

G. Bancroft:
History of the United States,
2425-2426 (2373-2374).

J. A. Doyle:
English in America,
2426 (2374).

W. G. Simms:
History of South Carolina,
3047 (2967).

R. Mackenzie:
America,
1457 (1424).

25. THE INTERCOLONIAL WARS; LOUISBURG:

R. Johnson:
The French War,
2362 (2314).

J. Grahame:
History of the United States,
2362-2363 (2314-2315).

R. Hildreth:
History of the United States,
2363-2364 (2315-2316).

T. C. Haliburton:
The English in America,
2364-2365 (2316-2317).

26. THE STRUGGLE FOR THE OHIO VALLEY:

R. G. Thwaites:
The Colonies,
3290 (3174).

Viscount Bury:
Exodus of Western Nations,
3290 (3174).

F. Parkman:
Montcalm and Wolfe,
3290-3291 (3174-3175).

H. Hale:
Iroquois Book of Rites,
2444-2445 (2392-2393).

B. A. Hinsdale:
The Old Northwest,
378-379 (368-369).

B. A. Hinsdale:
The Old Northwest,

2445-2446 (2393-2394).

J. Winsor
Narrative and Critical History of America,
2446 (2394).

R. Mackenzie:
America,
2446-2447 (2394-2395).

T. H. Dyer:
Modern Europe,
2975 (2898).

27. THE CONGRESS AT ALBANY (A. D. 1754):

B. Franklin:
Autobiography,
3291 (3175).

W. E. Foster:
Stephen Hopkins,
3291 (3175).

Full Text Representation of the
Present State of the Colonies,
3291-3293 (3175-3177).

Text of the Plan of Union,
3293-3294 (3177-3178).

28. Mason and Dixon's Line:

W. H. Dixon:
William Penn,
2566-2567 (2500-2501).

G. Bancroft:
History of the United States,
2571 (2505).

B. A. Hinsdale:
The Old Northwest,
2571 (2505).

29. The Scotch-Irish:

W. W. Henry:
The Scotch-Irish,
2912-2913 (2837-2838).

T. Roosevelt:
Winning of the West,
2913 (2838).

"Full credit has been awarded the Roundhead and the Cavalier for their leadership in our history; nor have we been altogether blind to the deeds of the Hollander and the Huguenot; but it is doubtful if we have wholly realized the importance of the part played by that stern and virile people, the Irish whose preachers taught the creed of Knox and Calvin. These Irish representatives of the Covenanters were in the West almost what the Puritans were in the Northeast, and more than the Cavaliers were in the South. ... That these Irish Presbyterians were a bold and hardy race is proved by their at once pushing past the settled regions, and plunging into the wilderness as the leaders of the white advance. ... They were fitted to be Americans from the very start; they were kinsfolk of the Covenanters; they deemed it a religious duty to interpret their own Bible, and held for a divine right the election of their clergy. For generations, their whole ecclesiastic and scholastic systems had been fundamentally democratic."

T. ROOSEVELT.

30. EARLY WESTERN SETTLEMENTS:

(a) The Northwest Territory.

T. Roosevelt:
Winning of the West,
2429 (2377).

W. F. Poole:
The West from 1763 to 1783,
2429-2430 (2377-2378).

(5) The Wyoming Valley.

A. Johnston:
Connecticut,
2569-2570 (2503-2504).

(c) Transylvania and Daniel Boone.

N. S. Shaler:
Kentucky,
1981-1982 (1939-1940).

(d) The Watauga Commonwealth.

T. Roosevelt:
Winning of the West,
3179-3180 (3094-3095).

(e) The State of Franklin, and Sevier.

J. B. McMaster:
History of the United States,
3181-3182 (3096-3097).

W. H. Carpenter:
History of Tennessee,
3182 (3097).

31. COLONIAL LIFE:

(a) Religion.

J. G. Palfrey:
History of New England,
2147 (2103).

G. E. Ellis:
Early Massachusetts,
2147-2148 (2104).

J. A. Doyle:
American Colonies,
2149 (2105).

G. E. Ellis:
Early Massachusetts,
2149-2150 (2105-2106).

C. F. Adams:
Massachusetts,
2150-2151 (2106-2107).

J. Fiske:
Beginnings of New England,
2151 and 2153 (2107, 2109).

J. Fiske:
Beginnings of New England,
309 (299).

W. R. Staples:
The Town of Providence,
2714 (2641).

D. Weston:
Early Baptists,
266-267 (3690).

R. Hildreth:
History of the United States,
2568 (2502).

G. L. Davis:
American Freedom,
2138 (2094).

R. Hildreth:
History of the United States,
3755-3756 (3635).

J. A. Russell:
Catholic Church in the United States,
2526 (2464).

(b) Education.

H. B. Adams:
College of William and Mary,
749-750 (726-727).

The Oldest School in America,
750-751 (727-728).

G. G. Bush:
Harvard,
751 (728).

R. G. Boone:
Education in the United States,
751-752 (728-729).

J. L. Stewart:
The University of Pennsylvania,
752 (729).

J. G. Palfrey:
History of New England (Yale),
752-753 (729-730).

{785}

The College of New Jersey,
753 (3799).

Columbia College Handbook,
753-754 (730-731).

G. T. Curtis:
Daniel Webster (Dartmouth),
754-755 (3741-3742).

R. A. Guild:
Rhode Island College (Brown),
755 (3693).

(c) Printing and the Press.

C. R. Hildeburn:
Printing in New York,
2668-2669 (2596-2597).

I. Thomas:
History of Printing,
2669-2670 (2598).

G. Bancroft:
History of the United States,
2670 (2598).

G. Bancroft:
History of the United States,
2387 (2335).

F. Hudson:
Journalism in the United States,
2672 (2600).

J. Parton:
Life of Franklin,
2061-2062 (2017-2018).

B. Samuel:
The Father of American Libraries,
2062-2063 (2018-2019).

(d) Money and Banking.

W. B. Weeden:
Indian Money,
2252-2253 (2208-2209).

J. R. Snowden:
Description of Coins,
2253 (2209).

J. J. Knox:
United States Notes,
2255-2256 (2212).

W. G. Sumner:
History of American Currency,

2256 (2212).

John Fiske:
American Revolution,
2256 (2212).

(e) Trade and Commerce.

J. E. T. Rogers:
Economic Interpretation of History,
3229-3230 (3718-3719).

E. Eggleston:
Commerce in the Colonies,
3230 (3719).

M. Chamberlain:
Revolution Impending,
3286-3287 (3170-3171).

J. L. Bishop:
American Manufactures,
3289 (3173).

G. L. Beer:
Commercial Policy of England,
3296-3297 (3180-3181).

John Morley:
Edmund Burke,
3298 (3182).

(f) Slavery.

E. J. Payne:
Elizabethan Seamen,
74-75 (67-68).

G. W. Williams:
Negro Race in America,
2998 (2920).

G. Bancroft:
History of the United States,
3751 (3630).

E. Washburn:
Slavery in Massachusetts,
2998-2999 (2920-2921).

G. W. Greene:
Rhode Island,
2715 (2642).

W. E. Foster:
Stephen Hopkins,
3002 (2924).

J. A. Doyle:
English in America.
3047-3048 (2968).

G. Bancroft:
History of United States,
3048 (2968).

T. Clarkson:
Abolition of the Slave Trade,
3000 (2922).

J. Fiske:
Critical Period,
3001 (2923).

T. Jefferson:
The State of Virginia,
3001 (2923).

J. E. Cooke:
Virginia,
3001 (2923).

E. B. Sanford:
Connecticut,
3001-3002 (2923-2924).

W. F. Poole:
Anti-Slavery Opinions,
3002 (2924).

STUDY XXXVIII.

Page references in first 1895 edition in parentheses.

THE AMERICAN REVOLUTION.

1. RELATIONS BETWEEN THE COLONIES AND THE CROWN ON THE EVE OF THE REVOLUTION:

M. Chamberlain:
Revolution Impending,
3286-3287 (3170-3171).

G. L. Craik:
British Commerce,
2293 (2245).

G. Bancroft:
History of the United States,

3288 (3172).

H. W. Preston:
American History,
3288-3289 (3172-3173).

J. L. Bishop:
History of American Manufactures,
3289 (3173).

B. A. Hinsdale:
The American Government,
3295 (3179).

G. L. Beer:
Commercial Policy of England,
3296-3297 (3180-3181).

John Morley:
Edmund Burke,
3298 (3182).

"Historians, in treating of the American rebellion, have confined their arguments too exclusively to the question of internal taxation, and the right or policy of exercising this prerogative. The true source of the rebellion lay deeper, in our traditional colonial policy. Just as the Spaniards had been excited to the discovery of America by the hope of obtaining gold and silver, the English merchants utilized the discovery by the same fallacious method, and with the same fallacious aspirations. ... They only saw that a colonial trade had sprung up, and their jealousy blinded them to the benefits that accrued to themselves as a consequence of it. Their folly found them out. ... The result of the whole transaction was the birth of a very strong sense in the minds of the colonists that the mother country looked upon them as a sponge to be squeezed. This conviction took more than a passing hold upon

them. It was speedily inflamed into inextinguishable heat, first by the news that they were to be taxed without their own consent, and next by the tyrannical and atrocious measures by which it was proposed to crush their resistance."

JOHN MORLEY.

2. THE QUESTION OF TAXATION:

G. Bancroft:

History of the United States,
3294-3295 (3178-3179).

W. Tudor:

Life of James Otis,
3295-3296 (3179-3180).

J. Fiske:

The War of Independence,
3297-3298 (3181-3182).

T. Hutchinson:

Province of Massachusetts Bay,
3298-3299 (3182-3183).

3. THE STAMP ACT, AND THE STAMP ACT CONGRESS (A. D. 1765):

J. G. Palfrey:

History of New England,
3299 (3183).

G. Bancroft:

History of the United States,
3303 (3187).

W. Wirt:

Life of Patrick Henry,

3303-3305 (3187-3189).

W. W. Henry:
Patrick Henry,
3305 (3189).

J. A. Stevens:
The Stamp Act,
3305 (3189).

John Fiske:
The American Revolution,
3305-3306 (3189-3190).

E. B. Sanford:
History of Connecticut,
517 (503).

R. Frothingham:
Rise of the Republic,
3306-3307 (3190-3191).

W. E. H. Lecky:
History of England,
3317-3319 (3201-3203).

Full Text of the Stamp Act,
3299-3302 (3183-3186).

"It was in the midst of this magnificent debate, while he [Patrick Henry] was descanting on the tyranny of the obnoxious act, that he exclaimed in a voice of thunder, and with the look of a god: 'Caesar had his Brutus—Charles the First his Cromwell—and George the Third—('Treason!' cried the speaker. 'Treason, treason!' echoed from every part of the house. It was one of those trying moments that is decisive of character. Henry faltered not for an instant; but rising to a loftier

attitude, and fixing on the speaker an eye of the most determined fire, he finished his sentence with the firmest emphasis)—may profit by their example. If this be treason, make the most of it.'"

W. WIRT.

4. EXAMINATION OF FRANKLIN BY THE HOUSE OF COMMONS (A. D. 1766):

J. Bigelow:
Life of Benjamin Franklin,
3317 (3201).

Full Text of the Questions and Answers from the
"Parliamentary History of England,"
3308-3317 (3192-3201).

"What used to be the pride of the Americans?"

"To indulge in the fashions and manufactures of
Great Britain."

"What is now their pride?"

"To wear their old clothes over again, until they can
make new ones."

{786}

5. THE "BOSTON MASSACRE," AND ITS RESULTS (A. D. 1770):

J. K. Hosmer:
Samuel Adams,
311 (301).

W. E. H. Lecky:

History of England,
311-312 (301-302).

R. Frothingham:
Rise of the Republic,
3321 (3205).

G. Bancroft:
History of the United States,
3321 (3205).

6. THE TOWNSHEND ACTS, AND THE "BOSTON TEA PARTY":

J. K. Hosmer:
Samuel Adams,
3319 (3203).

C. J. Stillé:
Life of John Dickinson,
3319-3320 (3203-3204).

G. Bancroft:
History of the United States,
3321-3322 (3206).

J. Fiske:
War of Independence,
3322 (3206).

J. K. Hosmer:
Samuel Adams,
3322-3323 (3206-3207).

J. K. Hosmer:
Samuel Adams,
3324-3325 (3208-3209).

A. Gilman:
The Story of Boston,
312 (302).

7. THE BOSTON PORT BILL AND ITS EFFECTS
(A. D. 1774):

W. M. Sloane:
The French War and the Revolution,
3325 (3209).

R. Frothingham:
The Siege of Boston,
313-314 (303-304).

E. G. Scott:
Development of Constitutional Liberty,
3325-3326 (3209-3210).

8. EXAMINATION OF GOVERNOR HUTCHINSON BY KING
GEORGE
(A. D. 1774):

Diary of Thomas Hutchinson,
Full Text of the Conversation.
3326-3330 (3210-3214).

9. THE FIRST CONTINENTAL CONGRESS
(A. D. 1774):

R. Frothingham:
Rise of the Republic,
3330 (3214).

J. C. Hamilton:
History of the United States,
3330-3331 (3214-3215).

P. L. Ford:
The First Congress,
3331-3332 (3215-3216).

M. Chamberlain:
John Adams,
3332 (3216).

H. von Holst:
Constitutional History of the United States,
3332-3333 (3216-3217).

10. THE GENERAL SITUATION IN THE COLONIES, AND IN PARLIAMENT:

R. Frothingham:
The Siege of Boston,
3333 (3217).

H. B. Carrington:
The American Revolution,
3333 (3217).

W. E. H. Lecky:
History of England,
3334 (3218).

Edmund Burke:
His Great Speech in the House of Commons,
3334-3337 (3218-3221).

G. Pellew:
John Jay,
2388-2389 (2336-2337).

B. J. Lossing:

Life of Philip Schuyler,
2389-2390 (2337-2338).

M. L. Booth:
History of New York,
2390-2391 (2338-2339).

H. S. Randall:
Life of Jefferson,
3756 (3635).

R. Hildreth:
History of the United States,
3049 (2969).

11. THE BEGINNING OF THE WAR (APRIL, 1775):

R. Frothingham:
The Siege of Boston,
2160-2161 (2116-2117).

T. W. Higginson:
History of the United States,
3338 (3222).

G. E. Ellis:
Battle of Bunker's Hill,
3338-3340 (3222-3224).

G. Bancroft:
History of the United States,
3340-3341 (3225).

J. Sparks:
Life of Ethan Allen,
3341 (3225).

C. W. Elliott:
New England History,
3341-3342 (3225-3226).

A. Johnston:
History of the United States,
3343 (3227).

J. Winsor:
Narrative and Critical History of America,
3343 (3227).

G. E. Ellis:
The Battle of Bunker's Hill,
3343-3344 (3227-3228).

"Allen sought and found the Commander's bed-room, and when Captain Delaplace waked he ... opened the door, with trousers in hand, and there the great gaunt Ethan stood, with a drawn sword in his hand. 'Surrender!' said Ethan. 'To you?' asked Delaplace. 'Yes, to me, Ethan Allen.' 'By whose authority?' asked Delaplace. Ethan was growing impatient, and raising his voice, and waving his sword, he said: 'In the name of the Great Jehovah, and of the Continental Congress.' Delaplace little comprehended the words, but surrendered at once. Thus, on the morning of 10th of May, the strong fortress of Ticonderoga was taken by the border-men, and with it 44 prisoners, 120 iron cannon, with swivels, muskets, balls, and some powder, without the loss of a single man. The surprise was planned and paid for by Connecticut, and was led by Allen, a Connecticut-born man, but was carried out by the 'Green Mountain Boys.'"

C. W. ELLIOTT.

12. WASHINGTON, COMMANDER-IN-CHIEF OF THE
CONTINENTAL ARMY:

W. Irving:
Life of Washington,
3342 (3226).

E. Everett:
Life of Washington,
3345 (3229).

E. E. Hale:
Naval History of the Revolution,
3345-3346 (3229-3230).

13. WAR MEASURES OF PARLIAMENT; THE HESSIANS:

H. S. Randall:
Life of Jefferson,
3346 (3230).

Earl Stanhope:
History of England,
3347 (3231).

E. J. Lowell:
Hessians in the Revolution,
3347-3348 (3231-3232).

14. INDEPENDENCE DECLARED (JULY 4, 1776):

L. Sabine:
Biographical Sketches,
3337-3338 (3222).

G. Bancroft:
History of the United States,

3340-3341 (3225).

H. S. Randall:
Life of Jefferson,
3347 (3231).

J. Q. Adams:
Life of John Adams,
3348-3349 (3232-3233).

J. T. Morse, Jr.:
Thomas Jefferson,
3349-3350 (3233-3234).

J. Fiske:
American Revolution,
3350 (3234).

H. von Holst:
Constitutional History of the United States,
3352 (3236).

Text of the Declaration, and Signers,
3351-3352 (3235-3236).

15. THE WAR IN NEW YORK AND NEW JERSEY (A. D. 1776-1777):

B. J. Lossing:
History of the United States,
3352-3353 (3237).

H. C. Lodge:
George Washington,
3353-3354 (3238).

J. Fiske:

War of Independence,
3354-3356 (3238-3240).

H. P. Johnston:
Campaign of 1776,
3356 (3240).

E. Lawrence:
New York in the Revolution,
3356-3357 (3240-3241).

16. THE CAMPAIGN ON THE DELAWARE (A. D. 1777):

F. D. Stone:
The Struggle for the Delaware,
3361-3362 (3245-3246).

G. Washington:
Writings,
3362-3363 (3246-3247).

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E. Everett:
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{787}

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CLARK'S CONQUEST OF THE NORTHWEST
(A. D. 1778-1779)

E. H. Roberts:
New York,
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E. Cruikshank:
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A. F. McDavis:
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W. L. Stone:
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O. Turner:
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W. Irving:
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C. B. Hartley:
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George Washington,
3381-3382 (3265-3266).

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"At the end of 1779 Congress was at its wit's end for money. Its issues had put specie entirely out of reach, and the cause of the Revolution was in danger of being drowned under the paper sea. ... In the spring of 1780 the bills were worth two cents on the dollar, and then ceased to circulate. The paper was now worth more for an advertisement or a joke than for any prospect of any kind of redemption. A barber's shop in Philadelphia was papered with it; and a dog, coated with tar, and with the bills stuck all over him, was paraded in the streets."

W. G. SUMNER.

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J. C. Hamilton:
History of the United States,
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T. Balch:
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R. Hildreth:
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R. C. Winthrop:
Address at Yorktown,
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W. E. H. Lecky:
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H. B. Adams:
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B. A. Hinsdale:
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E. B. Andrews:
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3400 (3284).

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J. Bigelow:
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H. W. Preston:
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T. Pitkin:
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3409-3411 (3293-3295).

T. Roosevelt:
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3411-3412 (3295-3296).

29. THE DISSOLUTION OF THE CONTINENTAL ARMY:

G. T. Curtis:
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W. B. Weeden:
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J. Schouler:
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2161 (2117).

"Four years only elapsed, between the return of peace and the downfall of a government which had been framed with the hope and promise of perpetual duration. ... But this brief period was full of suffering and peril. There are scarcely any evils or dangers, of a political nature, and springing from political and social causes, to which a free people can be exposed, which the people of the United States did not experience during that period."

G. T. CURTIS.

"It is not too much to say that the period of five years following the peace of 1783 was the most critical moment in all the history of the American people."

JOHN FISKE.

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The Public Domain,
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{788}

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J. Winsor:
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A. Johnston:
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3419-3420 (3303-3304).

H. C. Lodge:
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6. THE FIRST CENSUS (A. D. 1790):
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7. ORGANIZATION OF THE SUPREME COURT
(A. D. 1789):

J. S. Landon:
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J. Bryce:
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E. A. Freeman:
The English People,
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"It [the Supreme Court] is, I believe, the only national tribunal in the world which can sit in judgment on a national law, and can declare an act of all the three powers of the Union to be null and void. No such power does or can exist in England. Any one of the three powers of the State,—King, Lords, or Commons,—acting alone, may act illegally, the three acting together cannot act illegally. An act of Parliament is

final; it may be repealed by the power which enacted it; it cannot be questioned by any other power. For in England there is no written constitution; the powers of Parliament,—of King, Lords, and Commons, acting together,—are literally boundless. But in your Union, it is not only possible that President, Senate, or House of Representatives, acting alone, may act illegally; the three acting together may act illegally. ... Congress may pass, the President may assent to a measure which contradicts the terms of the Constitution. If they so act, they act illegally, and the Supreme Court can declare such an act to be null and void. This difference flows directly from the difference between a written and unwritten constitution."

E. A. FREEMAN.

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B. J. Lossing:
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J. Phelan:
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H. G. McDougall:
Fugitive Slaves,
3421-3422 (3305-3306).

William Jay:
Letter to Josiah Quincy,
3422 (3306).

J. W. Draper:
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H. Von Holst:

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3431-3432 (3315-3316).

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"CITIZEN" GENET;
THE X. Y. Z. LETTERS:

E. Everett:
Life of Washington,
3422 (3306).

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George Washington,
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{789}

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George Tucker:
History Of The United States,
2572-2573 (2506-2507).

14. STRAINED RELATIONS WITH GREAT BRITAIN;
THE JAY TREATY
(A. D. 1794-1795):

G. Pellew:
John Jay,
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WASHINGTON'S FAREWELL ADDRESS
(A. D. 1796):

H. von Holst:
Constitutional History of the United States,
3430-3431 (3314-3315).

W. Irving:
Life of Washington,
3424-3425 (3308-3309).

Full Text of the Farewell Address,
3425-3430 (3309-3314).

"In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish; that they will control the usual current of the passions, or prevent our nation from running the course which has hitherto marked the destiny of nations. But if I may even flatter myself that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit, to warn against the mischiefs of foreign intrigue, to guard against the impostures of pretended patriotism; this hope will be a full recompense for the solicitude for your welfare, by which they have been dictated. ... Though, in reviewing the incidents of my administration, I am unconscious of intentional error, I am, nevertheless, too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my Country will never cease to view them with indulgence; and

that after forty-five years of my life dedicated to its service with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest."

GEORGE WASHINGTON, FAREWELL ADDRESS.

16. THE DEATH OF WASHINGTON (DECEMBER 14, 1799):

H. C. Lodge:
George Washington,
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17. THE ALIEN AND SEDITION LAWS (A. D. 1798):

J. S. Landon:
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H. C. Lodge:
Alexander Hamilton,
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Life of John Jay,
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R. Hildreth:
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A. Bradford:
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A. B. Magruder:
John Marshall,
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J. Schouler:
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T. Roosevelt:
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2429 (2377).

H. Hale:
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C. Gayarré:
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G. Bancroft:
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See maps between pages
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T. M. Cooley:
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C. F. Robertson:
The Louisiana Purchase,
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"The purchase, according to the Federal view of the Constitution, was perfectly legitimate. ... But the Federalists in general took narrow and partisan views, and in order to embarrass the administration resorted to quibbles which were altogether unworthy the party which had boasted of Washington as its chief and Hamilton as the exponent of its doctrines. ... The Federal leaders did not stop at cavils; they insisted that the unconstitutional extension of territory was in effect a dissolution of the Union, so that they were at liberty to contemplate and plan for a final disruption."

JUDGE T. M. COOLEY.

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G. Tucker:
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Henry Adams:
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10. AARON BURR'S FILIBUSTERING SCHEME
(A. D. 1806-1807):

J. D. Hammond:
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{790}

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W. F. Poole:
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C. P. Lucas:
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E. Quincy:
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James Madison,
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Thomas Barclay,
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JAMES MADISON PRESIDENT (A. D. 1808):

J. Schouler:
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14. THE THIRD CENSUS (A. D. 1810),
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15. LOUISIANA ADMITTED TO THE UNION
(A. D. 1812):

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New Orleans,
2095 (2051).

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Missouri,
2095 (2051).

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C. Schurz:
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R. Johnson:
The War of 1812,

3456-3457 (3340-3341).

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A. Gallatin:
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T. Roosevelt:
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A. Johnston:
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C. B. Todd:
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D. Kinley:
The Treasury of the United States,
2258-2259 (2214-2215).

W. G. Sumner:
Andrew Jackson,
2259 (2215).

A. Johnston:
History of American Politics,
2259 (2215).

26. THE EIGHTH PRESIDENTIAL ELECTION; JAMES MONROE ELECTED

(A. D. 1816):

N. Sargent:
Public Men and Events,
3475-3476 (3359-3360).

E. Stanwood:

Presidential Elections,
3476 (3360).

27. THE FIRST MOVE TOWARD "INTERNAL IMPROVEMENTS"
(A. D. 1816-1817):

A. B. Hart:
Formation of the Union,
3476 (3360).

C. Colton:
Life of Henry Clay,
3476 (3360).

28. ADMISSION OF NEW STATES TO THE UNION:

(a) Indiana (A. D. 1816).

T. Donaldson:
The Public Domain,
2434-2435 (2382-2383).

J. W. Monette:
The Mississippi Valley,
1787-1788 (1748-1749).

(b) Mississippi (A. D. 1817).

J. W. Monette:
The Mississippi Valley,
2233 (2189).

T. Donaldson:
The Public Domain,
2094 (2050).

J. Schouler:

History of the United States,
2233 (2189).

(c) Illinois (A. D. 1818).

J. Wallace:
History of Illinois,
1734 (1695).

B. A. Hinsdale:
The Old Northwest,
3379-3380 (3263-3264).

J. B. McMaster:
History of the United States,
2430-2431 (2378-2379).

J. W. Monette:
The Mississippi Valley,
1787-1788 (1748-1749).

R. G. Thwaites:
The Boundaries of Wisconsin,
3776 (3655).

(d) Alabama (A. D. 1819).

W. Brewer:
Alabama,
30 (32).

(e) Maine (A. D. 1820).

C. W. Tuttle:
Captain John Mason,
2354-2355 (2306-2307).

C. W. Elliott:
New England History,
2122-2123 (2079-2080).

G. L. Austin:
History of Massachusetts,
2123 (2080).

W. D. Williamson:
History of Maine,
2123 (2080).

29. THE SEMINOLE WARS:

A. S. Gatschet:
The Creek Indians,
108 (101).

D. G. Brinton:
The Floridian Peninsula,
108-109 (101-102).

Bryant and Gay:
History of the United States,
1183 (1153).

W. G. Sumner:
Andrew Jackson,
1183-1184 (1154).

T. Roosevelt:
Life of Benton,
1184 (1154).

30. THE DARTMOUTH COLLEGE CASE (A. D. 1819):

G. T. Curtis:
Life of Daniel Webster,
754-755 (3741-3742).

{791}

31. THE BEGINNING OF OCEAN NAVIGATION:

F. E. Chadwick:
Development of the Steamship,
3115-3116 (3033-3034).

32. NINTH PRESIDENTIAL ELECTION; THE "ERA OF GOOD FEELING" (A. D. 1820):

J. Schouler:
History of the United States,
3478 (3362).

T. W. Higginson:
History of the United States,
3478 (3362).

"Monroe like Washington was re-chosen President by a vote practically unanimous. One, however, of the 232 electoral votes cast was wanting to consummate this exceptional honor; for a New Hampshire elector, with a boldness of discretion which, in our days and especially upon a close canvass, would have condemned him to infamy, threw away upon John Quincy Adams the vote which belonged like those of his colleagues to Monroe, determined, so it is said, that no later mortal should stand in Washington's shoes. Of America's Presidents elected by virtual acclamation history furnishes but these two examples; and as between the men honored by so unapproachable a tribute of confidence, Monroe entered upon his second term of office with less of real political opposition than

Washington."

J. SCHOULER.

33. THE FOURTH CENSUS (A. D. 1820),
3478 (3362).

34. THE FIRST GREAT CONFLICT OVER SLAVERY;
THE MISSOURI COMPROMISE
(A. D. 1818-1821):

Waring and Cable:
New Orleans,
2095 (2051).

L. Carr:
Missouri,
2095 (2051).

Carl Schurz:
Life of Henry Clay,
3476-3477 (3360-3361).

J. A. Woodburn:
The Missouri Compromise,
3477-3478 (3361-3362).

35. THE MONROE DOCTRINE
(A. D. 1823):

T. W. Higginson:
History of the United States,
3478-3479 (3362-3363).

D. C. Gilman:
James Monroe,
3479 (3363).

36. TARIFF LEGISLATION;
"THE AMERICAN SYSTEM"
(A. D. 1816-1824):

O. L. Elliott:
The Tariff Controversy,
3153-3154 (3069-3070).

T. H. Benton:
Thirty Years' View,
3154 (3070).

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Page references in first 1895 edition in parentheses.

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THE COMPROMISE OF 1850.

1. TENTH PRESIDENTIAL ELECTION
(A. D. 1824):

J. Quincy:
Life of J. Q. Adams,
3479-3480 (3364).

J. P. Kennedy:
Life of William Wirt,
3480 (3364).

Goldwin Smith:
The United States,
3480-3481 (3364-3365).

2. RECONSTRUCTION OF PARTIES:

T. H. Benton:
Thirty Years' View,
3481 (3365).

A. Johnston:
History of American Politics,
3481-3482 (3365-3366).

3. TARIFF CHANGES;
"THE BILL OF ABOMINATIONS":

T. H. Benton:
Thirty Years' View,
3154 (3070).

H. C. Lodge:
Daniel Webster,
3154 (3070).

W. G. Sumner:
Andrew Jackson,
3154-3155 (3071).

C. Schurz:
Life of Henry Clay,
3155 (3071).

4. ELEVENTH PRESIDENTIAL ELECTION;
ANDREW JACKSON
(A. D. 1828):

W. G. Sumner:
Andrew Jackson,
3482 (3366).

T. H. Benton:

Thirty Years' View,
3482 (3366).

5. NULLIFICATION AND DISUNION SENTIMENT:

S. H. Gay:
James Madison,
3438-3439 (3322-3323).

T. M. Cooley:
The Acquisition of Louisiana,
3443-3444 (3327-3328).

A. Johnston:
American Politics,
3470 (3354).

H. von Holst:
Constitutional History,
3470 (3354).

Texts of Kentucky and Virginia Resolutions,
3435-3438 (3319-3322).

6. NULLIFICATION ORDINANCE OF SOUTH CAROLINA; WEBSTER-HAYNE DEBATE:

G. T. Curtis:
Life of Daniel Webster,
3482-3483 (3366-3367).

C. Schurz:
Life of Henry Clay,
3483 (3367).

G. Hunt:
The Nullification Struggle,

3483-3484 (3367-3368).

Text of Ordinance of Nullification,
3485 (3369).

7. THE BEGINNING OF THE "SPOILS SYSTEM":

John Fiske:
Civil Government in the United States,
490.

8. RISE OF THE ABOLITIONISTS:

H. von Holst:
Constitutional History,
3005-3006 (2927-2928).

B. Tuckerman:
William Jay,
3485-3486 (3369-3370).

Goldwin Smith:
William Lloyd Garrison,
3486 (3370).

J. F. Clarke:
Anti-Slavery Days,
3487 (3370-3371).

"The 'Liberator' was a weekly journal, bearing the names of William Lloyd Garrison and Isaac Knapp as publishers. Its motto was, 'Our Country is the world, Our Countrymen are Mankind,' a direct challenge to those whose motto was the Jingo cry of those days, 'Our Country, right or wrong!' ... The salutary of the 'Liberator' avowed that its editor meant to speak out without restraint. 'I will be as harsh as truth and as uncompromising as justice. On this subject [Slavery] I do

not wish to think, or speak, or write with moderation. No! No! Tell a man whose house is on fire to give a moderate alarm; tell him to moderately rescue his wife from the hands of the ravisher; tell the mother to gradually extricate her babe from the fire into which it has fallen—but urge me not to use moderation in a cause like the present. I am in earnest—I will not equivocate—I will not excuse—I will not retreat a single inch—I will be heard.' This promise was amply kept."

GOLDWIN SMITH.

9. THE FIFTH CENSUS (A. D. 1830).

3487 (3371).

10. THE FIRST RAILROADS:

W. J. M. Rankine:
The Steam Engine,
3111-3112 (3029-3030).

S. Smiles:
Life of George Stephenson,
3112 (3030).

C. F. Adams, Jr.:
Railroads,
3112-3113 (3030-3031).

11. JACKSON AND THE UNITED STATES BANK:

D. Kinley:
The Independent Treasury,
2258-2259 (2214-2215).

W. G. Sumner:
Andrew Jackson,

2259 (2215).

A. Johnston:
American Politics,
2259 (2215).

J. Parton:
Life of Jackson,
3487-3488 (3371-3372).

C. Schurz:
Life of Clay,
3488 (3372).

12. BIRTH OF THE WHIG PARTY (A. D. 1834):

E. Stanwood:
Presidential Elections,
3488 (3372).

G. T. Curtis:
Life of Webster,
3488-3489 (3372-3373).

13. SLAVERY IN THE DISTRICT OF COLUMBIA; THE RIGHT OF PETITION:

N. Sargent:
Public Men and Events,
3489 (3373).

J. F. Clarke:
Anti-Slavery Days,
3490 (3374), 3494 (3378).

Bryant and Gay:

History of the United States,
3490 (3374).

T. H. Benton:
Thirty Years' View,
3492 (3376).

14. THIRTEENTH PRESIDENTIAL ELECTION (A. D. 1836):

A. D. Morse:
Political Influence of Jackson,
3490-3491 (3374-3375).

G. Bancroft:
Martin Van Buren,
3491 (3375).

{792}

15. THE FINANCIAL PANIC OF 1837:

A. Johnston:
American Politics,
2259 (2215).

E. M. Shepard:
Martin Van Buren,
3489 (3373).

A. Johnston:
History of the United States,
3774 (3653).

Century Magazine:
Cheap Money Experiments,
2259-2260 (2215-2216).

T. M. Cooley:
Michigan,
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E. G. Spaulding:
100 Years of Banking,
2260 (2216).

A. S. Bolles:
Financial History,
3491 (3375).

16. ADMISSION OF NEW STATES;
ARKANSAS, MICHIGAN:

T. Donaldson:
The Public Domain,
2094 (2050).

J. W. Monette:
The Mississippi Valley,
140 (133), 1787-1788 (1748-1749).

R. G. Thwaites:
The Boundaries of Wisconsin,
2223-2224 (2179-2180).

17. THE SIXTH CENSUS
(A. D. 1840).

3493 (3377).

18. THE HARRISON-TYLER ADMINISTRATION
(A. D. 1841-1845):

N. Sargent:

Public Men and Events,
3493 (3377).

A. Johnston:
American Politics,
3493-3494 (3377-3378).

J. F. Clarke:
Anti-Slavery Days,
3494 (3378).

A. S. Bolles:
Financial History,
3158 (3074).

J. Schouler:
History of the United States,
3494-3495 (3378-3379).

19. THE POLK ADMINISTRATION (A. D. 1845-1849):

W. Wilson:
Division and Reunion,
3495 (3379).

E. M. Shepard:
Martin Van Buren,
3496 (3380).

20. THE "WALKER TARIFF" (A. D. 1846):

A. L. Perry
Political Economy,
3159 (3075).

J. G. Blaine:
Twenty Years in Congress,
3159-3160 (3075-3076).

21. ADMISSION OF NEW STATES TO THE UNION;
FLORIDA, TEXAS, IOWA, WISCONSIN:

R. Hildreth:
History of the United States,
1184 (1154).

T. Roosevelt:
Life of Benton,
1184 (1154).

H. Wilson:
The Slave Power,
3495-3496 (3379-3380).

J. W. Monette:
The Mississippi Valley,
3186 (3101).

C. Schurz:
Life of Clay,
3187 (3102).

J. W. Draper:
American Civil War,
3187-3188 (3102-3103).

R. G. Thwaites:
Boundaries of Wisconsin,
3776 (3655).

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3442-3443 (3326-3327).

22. THE WAR WITH MEXICO
(A. D. 1846-1848):

H. Wilson:
The Slave Power,
2217 (2173).

J. W. Draper:
American Civil War,
2217-2218 (2173-2174).

A. H. Noll:
History of Mexico,
2218 (2174).

Bryant and Gay:
History of the United States,
2218 (2174).

J. R. Soley:
Wars of the United States,
2218-2219 (2174-2175).

H. O. Ladd:
War with Mexico,
2219-2220 (2175-2176).

23. THE FREE SOIL PARTY;
SIXTEENTH PRESIDENTIAL ELECTION
(A. D. 1848):

E. M. Shepard:
Martin Van Buren,
3498 (3382).

C. F. Adams:

Richard Henry Dana,
3498 (3382).

C. Colton:
Life of Clay,
3498 (3382).

24. THE SEVENTH CENSUS (A. D. 1850),
3499 (3383).

25. CONQUEST OF CALIFORNIA;
DISCOVERY OF GOLD:

J. Royce:
California,
358 (348).

E. E. Dunbar:
Romance of the Age,
359-360 (349-350).

J. S. Hittell:
Discovery of Gold,
360 (350).

J. E. Cairnes:
Political Economy,
2261 (2217).

26. AGGRESSION OF THE SLAVE POWER;
WEBSTER'S "SEVENTH OF MARCH" SPEECH
(A. D. 1850):

J. S. Landon:
Constitutional History,
3499 (3883).

F. W. Seward:
Seward at Washington,
3499-3500 (3883-3884).

Daniel Webster:
Works,
3500-3503 (3384-3387).

H. C. Lodge:
Daniel Webster,
3503 (3387).

J. F. Rhodes:
History of the United States,
3503 (3387).

H. Wilson:
The Slave Power,
1685 (1646).

"When Seward came to the territorial question, his words created a sensation. 'We hold,' he said, 'no arbitrary authority over anything, whether acquired lawfully or seized by usurpation. The Constitution regulates our stewardship; the Constitution devotes the domain (i. e. the territories not formed into States) to union, to justice, to defense, to welfare, and to liberty. ***But there is a higher law than the Constitution***, which regulates our authority over the domain, and devotes it to the same noble purposes. The territory is a part, no inconsiderable part, of the common heritage of mankind, bestowed upon them by the Creator of the Universe. We are His stewards, and must so discharge our trust as to secure in the highest attainable degree their happiness.' This remark about 'a higher law' ... was destined to have a transcendent moral influence. A speech which can be condensed into an aphorism is sure to shape convictions."

J. F. RHODES.

27. The Fugitive Slave Law;
"Compromise of 1850":

M. G. McDougall:
Fugitive Slaves,
3421-3422 (3305-3306)

W. R. Houghton:
American Politics,
3503-3504 (3387-3388).

J. F. Rhodes:
History of the United States,
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C. Schurz:
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3504-3507 (3388-3391).

STUDY XLII

Page references in first 1895 edition in parentheses.

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FROM THE FALL OF NAPOLEON TO THE DEATH OF QUEEN
VICTORIA.

1. ENGLAND AT THE CLOSE OF THE NAPOLEONIC WARS:

J. F. Bright:
History of England,

975-976 (948-9).

J. McCarthy:
Sir Robert Peel,
977-978 (950-951).

H. Ashworth:
Richard Cobden,
3152-3153 (3068-3069).

2. AGITATION FOR PARLIAMENTARY REFORM (A. D. 1816-):

C. Knight:
History of England,
976-977 (949-950).

J. McCarthy:
Sir Robert Peel,
977-978 (950-951).

3. REMOVAL OF DISABILITIES FROM DISSENTERS (A. D. 1827):

J. R. Green:
History of the English People,
923-924 (896-897):

J. Stoughton:
Religion in England.
924 (897).

W. E. H. Lecky:
History of England,
944-945 (917-918).

S. Walpole:

England from 1815,
979 (952).

4. UNION OF GREAT BRITAIN AND IRELAND; CATHOLIC EMANCIPATION:

J. H. McCarthy:
Ireland since the Union,
1817 (1777).

W. F. Collier:
History of Ireland,
1817-1818 (1778).

W. A. O'Connor:
The Irish People,
1818 (1778).

W. E. H. Lecky:
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1818-1819 (1778-1779); 1822-1823 (1782-1784).

{793}

W. Massey:
Reign of George III.,
1821-1822 (1782).

W. E. H. Lecky:
Leaders of Public Opinion,
1824-1825 (1784-1785).

J. A. Hamilton:
Daniel O'Connell,
1825 (1785).

5. PARTY DIVISIONS:

R. Burnet: History of My Own Time,
3772 (3651).

R. Chambers:
Annals of Scotland,
3772-3773 (3652).

D. Hume:
History of England,
930 (903).

I. Jennings:
The Croker Papers,
518 (504).

6. THE GREAT REFORM OF REPRESENTATION (A. D. 1830-1832):

W. Heaton:
Three Reforms of Parliament,
980-982 (953-955).

Sir T. E. May:
Constitutional History,
982-983 (955-956).

J. N. Larned:
Europe,
1126 (1098).

7. SUPPRESSION OF SLAVE TRADE; ABOLITION OF COLONIAL SLAVERY (A. D. 1792-1833).

C. P. Lucas:
British Colonies,

3003 (2925), 3006 (2928).

L. Herstlet:
Treaties and Conventions,
3003 (2925).

J. McCarthy:
Epoch of Reform,
983 (956).

8. The Oxford, or Tractarian Movement
(1833-):

H. O. Wakeman:
Religion in England,
2459-2460 (2407-2408).

S. Walpole:
History of England,
2460 (2408).

9. COMMERCIAL SUPREMACY;
FREE TRADE AGITATION:

H. deB. Gibbins:
British Commerce,
3230-3231 (3719-3720).

A. J. Wilson:
British Trade,
3231-3232 (3720-3721).

A. L. Bowley:
Foreign Trade,
3232 (3721).

H. Ashworth:

Recollections of Cobden,
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John Morley:
Life of Cobden,
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G. Howell:
Conflicts of Capital and Labor,
1133-1134 (1105-1106).

C. D. Wright:
Factory Legislation,
1134 (1106).

11. ACCESSION AND MARRIAGE OF QUEEN VICTORIA (A. D. 1837, 1840):

A. H. McCalman:
History of England,
984 (957).

J. McCarthy:
Sir Robert Peel,
985 (958).

J. McCarthy:
History of Our Own Times,
988-989 (959-960).

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C. Knight:
History of England,

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J. McCarthy:
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S. Walpole:
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C. Knight:
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437 (423).

S. W. Williams:
The Middle Kingdom,
437 (423).

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C. Knight:
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988 (961).

W. N. Molesworth:
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(A. D. 1840-1850):

J. N. Larned:
Europe,
1130-1131 (1102-1103).

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Sir C. G. Duffy:
Irish History,
1825-1827 (1785-1787).

E. Lawless:
The Story of Ireland,
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S. Walpole:
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(c) The Great Famine
(A. D. 1845-1847).

A. M. Sullivan:
New Ireland,
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L. Levi:
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1831 (1791).

Sir R. Blennerhassett:
Ireland,
1832 (1792).

T. P. O'Connor:
The Parnell Movement,
1832 (1792).

16. BANK OF ENGLAND;
CHARTER ACT OF 1844:

T. B. Macaulay:
History of England,
2253-2254 (2209-2210).

W. Bagehot:
Lombard Street,
2254-2255 (2210-2211).

W. C. Taylor:
Sir Robert Peel,
2260 (2216).

F. C. Montague:
Life of Peel,
2260-2261 (2216-2217).

17. REPEAL OF THE CORN LAWS (A. D. 1846);
PERFECTED FREE TRADE:

F. G. Montague:
Sir Robert Peel,
3157-3158 (3073-3074).

L. Levi:
History of British Commerce,
3158-3159 (3074-3075).

H. Martineau:
History of Thirty Years' Peace,
3159 (3075).

W. N. Molesworth:
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J. McCarthy:
Epoch of Reform,
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A. Mongredien:
Free Trade Movement,
3160-3161 (3076-3077).

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ADVENT OF DISRAELI
(A. D. 1846):

J. McCarthy:
Epoch of Reform,
989 (962).

J. A. Froude:
Lord Beaconsfield,
989-990 (982-983).

19. CIVIL SERVICE REFORM
(A. D. 1853-1855):

D. B. Eaton:
Civil Service in Great Britain,
489-490 (475-476).

20. THE CRIMEAN WAR
(A. D. 1853-1856):

S. Walpole:
Foreign Relations,

2848-2849 (2774-2775).

J. McCarthy:
History of Our Own Times,
2849-2850 (2775-2776).

J. F. Bright:
History of England,
2850-2851 (2776-2777).

W. N. Molesworth:
England,
2851-2852 (2777-2778).

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J. McCarthy:
History of Our Own Times,
439-441 (425-427).

22. SEPOY MUTINY IN INDIA (A. D. 1857-1858):

W. W. Hunter:
Brief History of Indian People,
1779 (1740)

Lord Lawrence:
Speech,
1779-1780 (1740-1741).

H. S. Cunningham:
Earl Canning,
1780 (1741).

Sir O. T. Burne:

Clyde and Strathnairn,
1780-1782 (1741-1743).

J. T. Wheeler:
Short History,
1782-1783 (1743-1744).

R. B. Smith:
Lord Lawrence,
1783-1784 (1744-1745).

W. N. Molesworth:
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S Walpole:
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1786 (1747).

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The Queen's Proclamation of Neutrality,
3544 (3428).

Proclamation of President Lincoln,
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The Case of the United States at Geneva,
3544-3545 (3428-3429).

J. Jay:
The Great Conspiracy,

3545 (3429).

J. Watts:
Facts of the Cotton Famine,
993-994 (966-967).

{794}

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A. H. McCalman:
History of England,
994-995 (967-968).

B. C. Skottowe;
History of Parliament,
995-996 (968-969).

D. W. Rannie:
The English Constitution,
996 (969).

R. Wilson,
Queen Victoria,
997 (970).

25. MR. GLADSTONE'S FIRST IRISH MEASURES (A. D. 1868-1870):

J. McCarthy:
History of Our Own Times,
996-997 (969-970).

26. TREATY OF WASHINGTON; GENEVA ARBITRATION (A. D. 1869-1872):

B. J. Lossing:
The Civil War,
30-31 (23-24).

Case of the United States Before Tribunal of Arbitration,
31 (24).

C. Cushing:
The Treaty of Washington,
34(27); 35-36 (28-29).

Treaties and Conventions between United States
and Other Powers,
34-35 (27-28).

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THE HOME RULE PARTY;
PARNELL;
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(A. D. 1873-1882).

J. H. McCarthy:
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1835-1836 (1795-1796).

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33. RETIREMENT OF GLADSTONE
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Volume VI., 203-204.

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(A. D. 1895):

See Study XLVI.

35. DIAMOND JUBILEE OF THE QUEEN
(A. D. 1897):

The Message of the Queen to her Subjects,
Volume VI., 207-208.

36. Death of Gladstone (May 19, 1898):

Tributes of Lords Salisbury and Rosebery, and Mr. Balfour,
Volume VI., 209-210.

"The most distinguished political name of the century has been
withdrawn from the roll of Englishmen."

LORD SALISBURY.

"This country, this nation, loves brave men. Mr. Gladstone was

the bravest of the brave. There was no cause so hopeless that he was afraid to undertake it; there was no amount of opposition that would cower him when once he had undertaken it."

LORD ROSEBERY.

37. THE GREAT BOER WAR (A. D. 1899-1902):

[The treatment of this subject in Volumes VI. and VII. of History for Ready Reference covers sixty-five of its large double-column pages (456-517 in Volume 6 and 620-624 in Volume 7), and is the most complete statement of all the causes that led up to that conflict that can be found in any work. The scope of these Studies does not admit of a detailed analysis of this material, nor is such an analysis necessary; as all the despatches, State papers, and descriptive matter are arranged in such an orderly manner, under the general head of "South Africa," that one needs no aid in studying the subject.]

38. DEATH OF QUEEN VICTORIA (JANUARY 28, 1901):

Detailed Account of her last illness,
Volume VI., 212-213.

Tributes of leading Statesmen,
Volume VI., 213-216.

"The simple dignity, befitting a Monarch of this realm, in that she could never fail, because it arose from her inherent sense of the fitness of things. It was no trapping put on for office, and therefore it was that this dignity, this Queenly dignity, only served to throw into a brighter light those admirable virtues of the wife, the mother, and the woman, with which she was so richly endowed."

A. J. BALFOUR, Leader of the House of Commons.

"But have you realized what the personal weight of the late Queen was in the councils of the world? She was by far the senior of all the European Sovereigns. The German Emperor was her grandson by birth. The Emperor of Russia was her grandson by marriage. She had reigned eleven years when the Emperor of Austria came to his throne. She had seen two dynasties pass from the throne of France. She had seen, as Queen, three Monarchs of Spain, and four Sovereigns of the House of Savoy in Italy. ... Can we not realize, then, what a force the personal influence of such a Sovereign was in the troubled councils of Europe? And when, as we know, that influence was always given for peace, for freedom, and for good government, we feel that not merely ourselves but all the world has lost one of its best friends."

LORD ROSEBERY.

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"It is a fact, the great self-assertion of individuality among us makes constitutional government very hard in Prussia. ... We are perhaps too 'cultured' to tolerate a constitution; we are too critical; the ability to pass judgment on measures of the government or acts of the legislature is too universal; there is a large number of 'Catilinarian Characters' in the land whose chief interest is in revolutions. People are too sensitive about the faults of government. ... Our blood is too hot, we are fond of wearing an armor too large for our small body; now let us utilize it. ... Prussia must consolidate its might and hold it together for the favorable moment, which has been allowed to pass unheeded several times. Prussia's boundaries, as determined by the Congress of Vienna, are not conducive to its wholesome existence as a sovereign state. Not by speeches and resolutions of majorities the mighty problems of the age are solved—that was the mistake of 1848 and 1849—but by Blood and Iron."

BISMARCK.

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A. Forbes:
William of Germany,
1579-1580 (1544).

R. Rodd:
Frederick, Crown Prince,
1580 (1544).

21. THE CONSTITUTION OF THE NEW EMPIRE:

Proclamation by the Emperor,
April 16, 1871,
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Text of the Constitution,
567-575 (547-554).

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22. ESTABLISHMENT OF UNIFORM GOLD COINAGE (A. D. 1871-1873):

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History of Bimetallism,
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23. GOVERNMENT OF ALSACE-LORRAINE:

C. Lowe:
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J.N. Murphy:
The Chair of Peter,
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"There is therefore great importance for the German Empire in the character that is given to our diplomatic relations with the head of the Roman Church, wielding, as he does, an influence in this country unusually extensive for a foreign potentate. I scarcely believe, considering the spirit dominant at present in the leading circles of the Catholic Church, that any Ambassador of the German Empire could succeed ... by persuasion in exerting an influence to bring about a modification of the position assumed by His Holiness the Pope toward things secular. The dogmas of the Catholic Church recently announced and publicly promulgated make it impossible for any secular power to come to an understanding with the Church without its own effacement, which the German Empire, at

least, cannot accept. Have no fear; we shall not go to Canossa, either in body or in spirit."
BISMARCK.

25. ADOPTION OF THE PROTECTIVE POLICY:

H. Villard:
German Tariff Policy,
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Commerce of Nations,
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É. de Laveleye:
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A. S. White:
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I. Jastrow:
Geschichte des deutschen Einheitstraumes,
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Tariff Changes,
Volume VI., 239-240;
Volume VII., 639-640.

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Volume VI., 240-241.

"You have, my children, sworn allegiance to me. That means that you have given yourselves to me body and soul. You have only one enemy, and that is my enemy. With the present socialist agitation, I may order you—which God forbid!—to shoot down your brothers, and even your parents, and then you must obey me without a murmur."

THE EMPEROR, TO THE FOOT GUARDS.

"Even the word 'opposition' has reached my ears. Gentlemen, an Opposition of Prussian noblemen, directed against their King, is a monstrosity. ... I, in my turn, like my imperial grandfather, hold my Kingship as by the grace of God. ... To you, gentlemen, I address my summons to the fight for religion, morality, and order against the parties of revolution. Even as the ivy winds round the gnarled oak, and, while adorning it with its leaves, protects it when storms are raging through its topmost branches, so does the nobility of Prussia close round my house. May it, and with it, the whole nobility of the German nation, become a brilliant example to those sections of the people who still hesitate. Let us enter into this struggle together. Forward with God, and dishonor to him who deserts his King."

EMPEROR WILLIAM II.

31. THE KAISER WILHELM SHIP CANAL:

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32. THE AGRARIAN PROTECTIONISTS:

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T. Barth:
Political Germany,
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Papers by Command,
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The Civil Code of Germany,
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E. Givskov:
Germany and her Subjected Races,
Volume VII., 288-289.

R. Blennerhassett.
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41. CHANCELLOR BÜLOW'S "BLOC":

The occasion of the "Bloc,"
Volume VII., 290-292.

The Breaking of the "Bloc,"
Volume VII., 295-297.

42. THE MOROCCO QUESTION:

The Kaiser's Speech at Tangier, and after,
Volume VII., 252-255.

43. THE TRIALS OF EDITOR HARDEN:

The Outlook:
Summary of Facts.
Volume VII., 292-293.

44. EMPEROR'S INTERVIEW WITH AN ENGLISHMAN:

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Volume VII., 294-5.

45. BUILDING OF DREADNOUGHTS;
THE NAVAL PROGRAMME:

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Debate;
Volume VII., 701-703.

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{799}

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E. Stanwood:
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2. APPEARANCE OF UNCLE TOM'S CABIN (A. D. 1852):

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History of the United States,
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Uncle Tomitudes,
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"It is but nine months since this Iliad of the blacks, as an English reviewer calls 'Uncle Tom,' made its appearance among books, and already its sale has exceeded a million of copies; author and publisher have made fortunes out of it, and Mrs. Stowe, who was before unknown, is as familiar a name in all parts of the civilized world as that of Homer or Shakespeare. ... The book was published on the 20th of last March ... and the publishers have paid to the author \$20,300 as her share of the profits on the actual cash sales for the first nine months. But it is in England where Uncle Tom has made his deepest mark. ... We know of twenty rival editions in England and Scotland, and that millions of copies have been produced. ... Uncle Tom was not long in making his way across the British Channel, and four rival editions are claiming the attention of the Parisians, one under the title of 'le Père Tom,' and another 'la Case de l'Oncle Tom.'"

C. F. BRIGGS, IN PUTNAM'S MAGAZINE, JANUARY, 1853.

"Of translations into different languages there are nineteen, viz: Armenian, one; Bohemian, one; Flemish, one; French, eight distinct versions, and two dramas; German, five distinct versions, and four abridgments; Hungarian, one complete version, one for children, and one versified abridgment; Illyrian, two distinct versions; Italian, one; Polish, two distinct versions; Portuguese, one; Roman, or modern Greek, one; Russian, two distinct versions; Spanish, six distinct versions; Swedish, one; Wallachian, two distinct versions; Welsh, three distinct versions."

MRS. F. T. MCCRAY.

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W. H. Seward,
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Lincoln,
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T. Roosevelt:
Life of Benton,
2454-2455 (2402-2403).

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11. JOHN BROWN AT HARPER'S FERRY
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H. Greeley:
The American Conflict,
3519-3520 (3404).

H. von Holst:
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Last Days of John Brown,
3520 (3404).

"At the last, when John Brown, wounded and a prisoner, lay waiting his death ... he writes, 'My health improves slowly, and I am quite cheerful concerning my approaching end, since I am convinced that I am worth infinitely more on the gallows than

I could be anywhere else.' ... One year after the execution of Brown, on the 20th of December, 1860, South Carolina declared its secession from the Union, and on May 11, 1861, the Second Massachusetts Regiment of Infantry was raised, which was first to sing on its march South,—'John Brown's body lies mouldering in the grave. His Soul goes marching on.'"

H. VON HOLST.

12. THE EIGHTH CENSUS (A. D. 1860),
3521 (3405).

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(A. D. 1860):

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J. F. Claiborne:
Life of Quitman,
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H. S. Foote:
War of the Rebellion,
3523 (3407).

Text of the Ordinance of Secession, and Declaration of Causes,
3523-3525 (3407-3409).

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THE CRITTENDEN COMPROMISE:

J. G. Blaine:
Twenty Years in Congress,
3526 (3410).

J. W. Draper:
The American Civil War,
3526-3527 (3410-3411).

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S. L. Woodford:
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3527-3528 (3411-3412).

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Political History,
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E. A. Pollard:
First Year of the War,
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Speech Against Secession,
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American Civil War,
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The Southern States,
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Constitutional View of the War,
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J. E. Cooke:
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3759 (3638).

V. A. Lewis:
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Full Text of the Inaugural Address,
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clearly presented in Volume V. that a guide is hardly needed if one wishes to study the subject as a whole; while each individual topic may readily be found in the usual manner.)

{800}

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"The fall of Sumter was the resurrection of patriotism. The North needed just this. Such a universal burst of patriotic indignation as ran over the North under the influence of this insult to the national flag has never been witnessed. It swept away all party lines as if it had been flame and they had been flax."

J. G. HOLLAND.

20. PRESIDENT LINCOLN'S CALL TO ARMS (APRIL 15, 1861);

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Abraham Lincoln,
3539-3540 (3423-3424).

Goldwin Smith:
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3540-3541 (3424-3425).

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General Johnston,
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J. H. Stine:
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W. H. Seward,
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The *Monitor* and the *Merrimac*,
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"No battle was ever more widely discussed or produced a greater sensation. It revolutionized the navies of the world. ... In this battle old things passed away, and the experience Of a thousand years was forgotten. The effect of the news was best described by the London 'Times,' which said: ' Whereas we had available for immediate purposes 149 first class war

ships, we have now two, these two being the *Warrior* and her sister *Ironside*. There is not now a ship in the English navy apart from these two that it would not be madness to trust to an engagement with that little Monitor.' The Admiralty at once proceeded to reconstruct the navy."

J. T. WOOD.

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L. Farragut:
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M. Thompson:
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C. C. Chesney:
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G. Welles:
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31. PRESIDENT LINCOLN AND THE COPPERHEADS:

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VICKSBURG, GETTYSBURG:

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U. S. Grant,
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{801}

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HIS LAST PUBLIC ADDRESS:

Carl Schurz:
Abraham Lincoln,
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SURRENDER AT APPOMATTOX:

A. L. Long:
Memoirs of R. E. Lee,
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F. Lee:
General Lee,
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STUDY XLVI

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"I spent most of the afternoon [on the day of Johnson's inauguration] in a political caucus, held for the purpose of considering the necessity for a new Cabinet, and a line of policy less conciliatory than that of Mr. Lincoln; and while everybody was shocked at his murder, the feeling was nearly universal that the accession of Johnson to the Presidency would prove a godsend to the country. Aside from Mr. Lincoln's known policy of tenderness to the Rebels, which now so jarred upon the feelings of the hour, his well-known views on the subject of reconstruction were as distasteful as possible to radical Republicans."

G. W. JULIAN.

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The 39th Congress,
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The 39th Congress,
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(A. D. 1866-1871):

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The Slave Power,
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(A. D. 1867):

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Tribes of the Northwest,
88 (81).

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93 (86).

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E. Stanwood:
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(A. D. 1868-1870):

W. Allen:
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The Slave Power,
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GOLD SPECULATION;
BLACK FRIDAY
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SUPPRESSION OF COLORED VOTE:

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The Slave Power,
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The American Commonwealth,
3688 (3572).

{802}

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(A. D. 1870), 3689 (3573).

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(A. D. 1869-1872):

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The Civil War,
30-31 (23-24).
Case of the U. S.,
31 (24).

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The Treaty of Washington,
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Progress of Civil Service Reform,
490-491 (476-477).

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Address,
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THE ELECTORAL COMMISSION
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(A. D. 1880),
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Volume VI., 51.

Treaty of Arbitration,
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THE "MILLS BILL"
(A. D. 1887-1888):

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Volume VI., 554-557.

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(A. D. 1895):

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Volume VI., 684-687.

Reply of Lord Salisbury,
Volume VI., 687-688.

The Message of President Cleveland,
Volume VI., 689-690.

Commission to determine the Boundary,
Volume VI., 690.

Text of Arbitration Treaty,
Volume VI., 691-692.

Text of the Decision of the Tribunal,
Volume VI., 692-693.

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British Feeling,
Volume VI., 559-560.

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The Venezuelan Question,
Volume VI., 560.

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Messages and Documents,

Volume VI., 560-562.

Political Science Quarterly,
Volume VI., 562.

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(A. D. 1896):

Conditions preceding,
Volume VI., 563-564.

Full Texts of Party Platforms,
Volume VI., 564-573.

The Campaign, and Results,
Volume VI., 573-574.

{803}

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(A. D. 1897):

Text of the President's Message,
Volume VI., 574-576.

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(A. D. 1896-1898):

Proceedings, January 12, 1897,
Volume VI., 576.

Hostile Attitude of the United States Senate,
Volume VI., 576.

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(A. D. 1897):

The Inaugural Address,
Volume VI., 580-581.

His Cabinet,
Volume VI., 581.

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(A. D. 1897):

Extra Session of Congress,
Volume VI., 581.

Analysis of the Bill,
Volume VI., 581-2.

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Tariff History,
Volume VI., 582.

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(A. D. 1897).

Text of the Treaty,
Volume VI., 577-579.

Action of the Senate; Popular Indignation,
Volume VI., 579-580.

STUDY XLVII.

(Entirely in Volumes VI. and VII.)

THE UNITED STATES FROM THE OUTBREAK OF WAR WITH SPAIN
(1898) TO 1910.

1. CAUSES OF THE WAR:

United States Senate Document, 54th Congress:
Cuban Insurrection, A. D. 1895,
Volume VI., 171-173.

Captain-General Weyler:
Concentration Orders,
Volume VI., 173.

President Cleveland:
Message, A. D. 1896,
Volume VI., 173-174.

Text of Constitution granted by Spain to Cuba and Porto Rico,
Volume VI., 175-180.

General F. Lee:
Cuba and her Struggle,
Volume VI., 180, 181.

Senator Proctor:
Speech in Congress,
Volume VI., 181-182.

President McKinley:
Message on the Destruction of the Maine,
Volume VI., 583-584.

President McKinley:
Message on the Cuban Situation,
Volume VI., 585-590.

Resolutions of Congress and Declaration of War,
Volume VI., 590-591.

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(A. D. 1898):

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Report of General Otis,
August, A. D. 1899,
Volume VI., 371-372.

F. H. Sawyer:
Inhabitants of the Philippines,
Volume VII., 372-373.

J. Foreman:
Will the United States withdraw?
Volume VI., 373.

Official and other Reports and Statements,
Volume VII., 373-375.

Instructions by the President of the United States
to the Military Governor,
Volume VI., 375-376.

Proclamation and Report of Military-Governor Otis,
Volume VI., 376-377.

Counter Proclamation of Aguinaldo,
Volume VI., 377-378.

President McKinley:
Instructions to First Commission to the Philippines,
Volume VI., 378-379.

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Publication Number 7,
Volume VI., 379-380.

Reports of Philippine Commission, United States Secretary
of War, Military-Governor Otis, and others, A. D. 1899-1900,
Volume VI., 380-389.

Instructions to the Second Commission,
Volume VI., 389-392

Appeal of Citizens of Manila,
Volume VI., 392-393.

Reports of the United States Secretary of War and of the
Second Commission on the Civil Government of the Islands,
Volume VI., 393-396.

The Problem of the Friars,
Volume VI., 396-399.

Congressional grant of powers for Philippine Government,
Volume VI., 399-401.

Senator Hoar:
Speech against the Subjection of the Philippines,
Volume VI., 641-645.

Organization of Provincial Governments,
Volume VI., 401-402.

Capture of Aguinaldo,
Volume VI., 402-403.

4. ESTABLISHMENT OF THE GOLD STANDARD OF VALUE (MARCH 14, A. D. 1900):

Report of the Secretary of the Treasury,
Volume VI., 639-640.

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Party Platforms and Nominations:
Re-election of President McKinley,
Volume VI., 646-666.

Inaugural Address of President McKinley,
Volume VI., 680-682.

6. CONSTITUTIONAL STATUS OF THE NEW POSSESSIONS:

Supreme Court Decisions,
Volume VI., 668-674, 683.

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Act of Congress,
Volume VI., 678-680, 682.

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Statement of Population,
Volume VI., 645-646.

Apportionment of Representatives,
Volume VI., 674-678.

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ACCESSION OF VICE-PRESIDENT ROOSEVELT
(A. D. 1901):

Message of President Roosevelt to Congress,
Volume VII., 665-666.

President Roosevelt's Cabinet,
Volume VII., 666.

W. Wellman:
Narrative of the Tragedy,
Volume VII., 59-61.

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(A. D. 1901-1904):

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Volume VII., 684.

Message of President Roosevelt,
Volume VII., 684-685.

H. W. Bowen:
Queer Diplomacy with Castro,
Volume VII., 685.

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(A. D. 1901-1902 AND 1906):

Reports of American Delegates,
Volume VII., 20-25.

Secretary Root:
Address at Rio Janeiro,
Volume VII., 24-25.

Bureau of American Republics,
Volume VII., 25.

{804}

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First Hay-Pauncefote Treaty,
Volume VI., 69-70.

Second Hay-Pauncefote Treaty,
Volume VII., 466-437.

Messages of the President and Official Reports,
Volume VII., 467-471.

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[The first Federal legislation regulative of the railway service of commerce between the States, creating the Interstate Commerce Commission, in 1887, is briefly noted in Volume V., p. 3699 (3582). In six and one half pages of Volume VI., under the heading "Trusts" (pages 529-536), the rise of the great industrial and commercial combinations, which began at about the beginning of the present century to cause serious anxiety in the country, is related quite fully, from the report of the United States Industrial Commission created by Congress in 1898, and from other sources. In Volume VII., under the two headings of "Combinations, Industrial and Commercial" (pages 116-135), and "Railways" (pages 547-558), an extended history of the vigorous proceedings of Government, between 1900 and 1910, to restrain wrong uses of the power

which great corporate combinations of capital can acquire, is compiled. The particulars, of legislation, executive prosecution and judicial decision, are too numerous to be detailed here.]

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President Roosevelt's Messages, etc.,
Volume VII., 145-148.

Conference of Governors:
Declaration,
Volume VII., 148-149.

National Conservation Commission:
Report,
Volume VII., 149-151.

President Taft's Recommendations,
Volume VII., 152.

15. CIVIL SERVICE REFORM UNDER PRESIDENT ROOSEVELT:

A notable record,
Volume VII., 104-108.

16. ESTABLISHMENT OF THE REPUBLIC OF CUBA (A. D. 1902):

Senate Document 312, 58th Congress, 2d Session, etc.,
Volume VII., 174-177.

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Charles Moore:
Restoration of the White House,
Volume VII., 667-668.

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(A. D. 1903):

President Roosevelt:
Message,
Volume VII., 9.

F. B. Tracy:
Tercentenary History of Canada,
Volume VII., 9.

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(A. D. 1903-1904):

New York Evening Post,
Volume VII., 263.

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(A. D. 1903-1906):

Indictments and Prosecutions,
Volume VII., 669.

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(A. D. 1904):

Parties, Candidates and Platforms; Result,
Volume VII., 669-671.

22. ARBITRATION OF NEWFOUNDLAND FISHERIES QUESTIONS
(A. D. 1905-1909):

Correspondence and Agreement,

Volume VII., 446-448.

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President Roosevelt:
Message,
Volume VII., 583-584.

Bureau of Insular Affairs:
Report,
Volume VII., 584-585.

24. MEDIATION BETWEEN JAPAN AND RUSSIA (A. D. 1905):

President Roosevelt's Proffer, and the Replies,
Volume VII., 356-357.

F. De Martens:
The Portsmouth Peace Conference,
Volume VII., 357.

E. J. Dillon:
Story of the Peace Negotiations,
Volume VII., 357-358.

Text of the Treaty of Portsmouth,
Volume VII., 358-360.

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An extended Account,
Volume VII., 684-688.

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Text of the resulting Treaty,
Volume VII., 77-79.

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(A. D. 1906):

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Bulletin 104,
Volume VII., 520-522.

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(A. D. 1906):

United States Secretary of State:
Instructions to Delegates,
Volume VII., 254.

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(A. D. 1906-1909):

U. S. Papers Relating to Foreign Relations,
Volume VII., 178-180.

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(A. D. 1906):

F. H. Clark:
Anti-Japanese Agitation in California,
Volume VII., 538-541.

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New York Evening Post,
Volume VII., 264.

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(A. D. 1907):

G. Hunt:
The New Citizenship Law,
Volume VII., 443-444.

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(A. D. 1907):

United States Senate Documents, and other Sources,
Volume VII., 716-722.

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(A. D. 1907-1909).

Various Sources,
Volume VII., 707-708.

35. PRESIDENTIAL ELECTION,
(A. D. 1908):

Parties, Platforms, Candidates, Results,
Volume VII., 674-678.

36. THE EMERGENCY CURRENCY ACT
(A. D. 1908):

Summary of the Act,
Volume VII., 266.

37. PARTIAL REMISSION TO CHINA OF BOXER INDEMNITY
(A. D. 1908):

Correspondence on the Subject,
Volume VII., 92-93.

38. UNDERSTANDING WITH JAPAN:

Exchange of Notes on Policy to the East,
Volume VII., 362.

39. COMMISSION TO LIBERIA:

United States Secretary of State:
Memorandum to the President,
Volume VII., 414-417.

40. THE COUNTRY-LIFE COMMISSION:

President Roosevelt:
Letter,
Volume VII., 679.

Report of the Commission,
Volume VII., 679-680.

41. New Copyright Act:

New York Evening Post:
Summary of the Act,
Volume VII., 166-167.

{805}

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(A. D. 1909):

Party Promises of 1908,
Volume VII., 641.

C. F. Adams:
On the Hearings at Washington,
Volume VII., 641-642.

President Taft:

Statement on signing the Bill,
Volume VII., 642.

Woodrow Wilson:
The Tariff Make-Believe,
Volume VII., 644-645.

S. W. McCall:
Reasons for Satisfaction,
Volume VII., 645-646.

American Review of Reviews:
On the Changes Made,
Volume VII., 646.

Outside Effects.
Volume VII., 646-647.

43. PROPOSED INCOME TAX AMENDMENT TO THE CONSTITUTION:

Governor Hughes, of New York:
Objections stated,
Volume VII., 681-682.

44. HANKAU-SZECHUAN RAILWAY LOAN QUESTION:

President Taft:
Message,
Volume VII., 94-95.

STUDY XLVIII.

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VOLUME 7 ***

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